

CODE OF ORDINANCES

City of

OPA-LOCKA, FLORIDA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-23, adopted July 23, 2025.

See the Code Comparative Table—Ordinances and the Land Development Regulations Comparative Table for further information.

Remove Old Pages

TP:3

xv—xx

CD2:1—CD2:9

CD2:11—CD2:24

CD2:35—CD2:40

CD2:49—CD2:58

CD2:69—CD2:78

CD2:99—CD2:102

CD4:3—CD4:6

CD7:5, CD7:6

CD8.5:3, CD8.5:4

CD13:11, CD13:12

CD14:1

CD14:13

CD15:7—CD15:10

CD19:11, CD19:12

CD21:23—CD21:26

CCT:27, CCT:28

CDi:1—CDi:10

CDi:19, CDi:20

CDi:25—CDi:34

LDR:vii

Insert New Pages

TP:3

xiii, xiv

xv—xx

Checklist of up-to-date pages
(following Table of Contents)

SH:1 (following Checklist of up-to-date
pages)

CD2:1—CD2:9

CD2:11—CD2:24

CD2:35—CD2:40.1

CD2:49—CD2:58.1

CD2:69—CD2:78.6

CD2:99—CD2:102.1

CD4:3—CD4:6

CD7:5, CD7:6

CD8.5:3, CD8.5:4

CD13:11, CD13:12

CD14:1, CD14:2

CD14:13—CD14:21

CD15:7—CD15:10.1

CD19:11, CD19:12

CD21:23—CD21:26

CCT:27, CCT:28

CDi:1—CDi:10

CDi:19—CDi:20.1

CDi:25—CDi:34.1

LDR:vii

INSTRUCTION SHEET—Cont'd.

Remove Old Pages

LDR:1—LDR:6
LDR:13, LDR:14
LDR:43—LDR:50
LDR:99—LDR:102
LDR:115—LDR:118
LDR:145, LDR:146
LDRCT:5
LDRi:15, LDRi:16

Insert New Pages

LDR:1—LDR:6
LDR:13—LDR:14.1
LDR:43—LDR:50.1
LDR:99—LDR:102
LDR:115—LDR:118.1
LDR:145—LDR:146.2
LDRCT:5, LDRCT:6
LDRi:15, LDRi:16

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.



info@municode.com | 800.262.2633 | www.municode.com

P.O. Box 2235 Tallahassee, FL 32316

**OPA-LOCKA, FLORIDA CODE OF
ORDINANCES AND LAND
DEVELOPMENT REGULATIONS**

Consisting of:

**CITY OF OPA-LOCKA, FLORIDA CODE OF
ORDINANCES AND OPA-LOCKA, FLORIDA LAND
DEVELOPMENT REGULATIONS**

Published in 2025 by Order of the City Commission

municode
POWERED BY CIVICPLUS[®]

info@municode.com | 800.262.2633 | www.municode.com

P.O. Box 2235 Tallahassee, FL 32316

OFFICIALS
of
OPA-LOCKA,
FLORIDA
AT THE TIME OF THIS PUBLICATION

John H. Taylor Jr.
Mayor

Joseph L. Kelley
Vice-Mayor

Dr. Sherelean Bass
Natasha L. Ervin
Luis B. Santiago
City Commission

Burnadette Norris-Weeks
City Attorney

Sha'mecca Lawson
Interim City Manager

Joanna Flores, CMC
City Clerk

Checklist of Up-to-Date Pages

(This checklist will be updated with the
printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

Page No.	Supp. No.	Page No.	Supp. No.
TP:1	OC	CD1:3, CD1:4	OC
iii	OC	CD1:5	OC
TP:3	1	CD2:1, CD2:2	1
ix, x	OC	CD2:3, CD2:4	1
xi	OC	CD2:5, CD2:6	1
xiii, xiv	1	CD2:7, CD2:8	1
xv, xvi	1	CD2:9	1
xvii, xviii	1	CD2:11, CD2:12	1
xix, xx	1	CD2:13, CD2:14	1
SH:1	1	CD2:15, CD2:16	1
CHT:1, CHT:2	OC	CD2:17, CD2:18	1
CHT:3, CHT:4	OC	CD2:19, CD2:20	1
CHT:5, CHT:6	OC	CD2:21, CD2:22	1
CHT:7, CHT:8	OC	CD2:23, CD2:24	1
CHT:9, CHT:10	OC	CD2:25, CD2:26	OC
CHT:11, CHT:12	OC	CD2:27, CD2:28	OC
CHT:13, CHT:14	OC	CD2:29, CD2:30	OC
CHT:15, CHT:16	OC	CD2:31, CD2:32	OC
CHT:17, CHT:18	OC	CD2:33, CD2:34	OC
CHTCT:1	OC	CD2:35, CD2:36	1
CD1:1	OC	CD2:37, CD2:38	1

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
CD2:39, CD2:40	1	CD2:103, CD2:104	OC
CD2:40.1	1	CD2:105, CD2:106	OC
CD2:41, CD2:42	OC	CD2:107, CD2:108	OC
CD2:43, CD2:44	OC	CD2:109, CD2:110	OC
CD2:45, CD2:46	OC	CD2:111, CD2:112	OC
CD2:47, CD2:48	OC	CD2:113, CD2:114	OC
CD2:49, CD2:50	1	CD2:115, CD2:116	OC
CD2:51, CD2:52	1	CD2:117, CD2:118	OC
CD2:53, CD2:54	1	CD2:119, CD2:120	OC
CD2:55, CD2:56	1	CD2:121, CD2:122	OC
CD2:57, CD2:58	1	CD2:123, CD2:124	OC
CD2:58.1	1	CD2:125, CD2:126	OC
CD2:59, CD2:60	OC	CD2:127, CD2:128	OC
CD2:61, CD2:62	OC	CD2:129, CD2:130	OC
CD2:63, CD2:64	OC	CD2:131, CD2:132	OC
CD2:65, CD2:66	OC	CD2:133, CD2:134	OC
CD2:67, CD2:68	OC	CD2:135, CD2:136	OC
CD2:69, CD2:70	1	CD2:137, CD2:138	OC
CD2:71, CD2:72	1	CD2:139, CD2:140	OC
CD2:73, CD2:74	1	CD2:141, CD2:142	OC
CD2:75, CD2:76	1	CD2:143, CD2:144	OC
CD2:77, CD2:78	1	CD2:145, CD2:146	OC
CD2:78.1, CD2:78.2	1	CD2:147, CD2:148	OC
CD2:78.3, CD2:78.4	1	CD3:1	OC
CD2:78.5, CD2:78.6	1	CD3:3, CD3:4	OC
CD2:79, CD2:80	OC	CD4:1	OC
CD2:81, CD2:82	OC	CD4:3, CD4:4	1
CD2:83, CD2:84	OC	CD4:5, CD4:6	1
CD2:85, CD2:86	OC	CD5:1	OC
CD2:87, CD2:88	OC	CD5:3, CD5:4	OC
CD2:89, CD2:90	OC	CD5:5	OC
CD2:91, CD2:92	OC	CD6:1	OC
CD2:93, CD2:94	OC	CD7:1, CD7:2	OC
CD2:95, CD2:96	OC	CD7:3	OC
CD2:97, CD2:98	OC	CD7:5, CD7:6	1
CD2:99, CD2:100	1	CD7:7, CD7:8	OC
CD2:101, CD2:102	1	CD7:9, CD7:10	OC
CD2:102.1	1	CD7:11, CD7:12	OC

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
CD7:13, CD7:14	OC	CD11:9, CD11:10	OC
CD7:15, CD7:16	OC	CD11:11, CD11:12	OC
CD7:17, CD7:18	OC	CD11:13, CD11:14	OC
CD7:19, CD7:20	OC	CD11:15, CD11:16	OC
CD7:21, CD7:22	OC	CD11:17, CD11:18	OC
CD7:23, CD7:24	OC	CD11:19, CD11:20	OC
CD7:25, CD7:26	OC	CD11:21, CD11:22	OC
CD7:27, CD7:28	OC	CD11:23, CD11:24	OC
CD7:29, CD7:30	OC	CD11:25, CD11:26	OC
CD7:31, CD7:32	OC	CD11.1:1	OC
CD7:33, CD7:34	OC	CD11.5:1	OC
CD7:35, CD7:36	OC	CD11.5:3	OC
CD7:37, CD7:38	OC	CD12:1	OC
CD7:39, CD7:40	OC	CD13:1, CD13:2	OC
CD7:41	OC	CD13:3, CD13:4	OC
CD7.5:1	OC	CD13:5, CD13:6	OC
CD8:1	OC	CD13:7, CD13:8	OC
CD8:3, CD8:4	OC	CD13:9, CD13:10	OC
CD8.1:1	OC	CD13:11, CD13:12	1
CD8.2:1	OC	CD13:13, CD13:14	OC
CD8.2:3, CD8.2:4	OC	CD13:15, CD13:16	OC
CD8.2:5, CD8.2:6	OC	CD13:17, CD13:18	OC
CD8.2:7, CD8.2:8	OC	CD13:19, CD13:20	OC
CD8.2:9, CD8.2:10	OC	CD13:21, CD13:22	OC
CD8.2:11, CD8.2:12	OC	CD13:23, CD13:24	OC
CD8.2:13, CD8.2:14	OC	CD13:25, CD13:26	OC
CD8.2:15	OC	CD13:27, CD13:28	OC
CD8.5:1	OC	CD13:29, CD13:30	OC
CD8.5:3, CD8.5:4	1	CD13:31, CD13:32	OC
CD9:1	OC	CD13:33, CD13:34	OC
CD9:3, CD9:4	OC	CD13:35, CD13:36	OC
CD9:5	OC	CD13:37, CD13:38	OC
CD10:1	OC	CD13:39, CD13:40	OC
CD10:3, CD10:4	OC	CD13:41, CD13:42	OC
CD11:1, CD11:2	OC	CD13:43, CD13:44	OC
CD11:3, CD11:4	OC	CD13:45, CD13:46	OC
CD11:5, CD11:6	OC	CD13:47	OC
CD11:7, CD11:8	OC	CD14:1, CD14:2	1

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
CD14:3, CD14:4	OC	CD19.5:3, CD19.5:4	OC
CD14:5, CD14:6	OC	CD19.5:5, CD19.5:6	OC
CD14:7, CD14:8	OC	CD19.6:1	OC
CD14:9, CD14:10	OC	CD19.6:3	OC
CD14:11, CD14:12	OC	CD20:1	OC
CD14:13, CD14:14	1	CD20:3, CD20:4	OC
CD14:15, CD14:16	1	CD20:5	OC
CD14:17, CD14:18	1	CD21:1, CD21:2	OC
CD14:19, CD14:20	1	CD21:3, CD21:4	OC
CD14:21	1	CD21:5, CD21:6	OC
CD15:1, CD15:2	OC	CD21:7, CD21:8	OC
CD15:3, CD15:4	OC	CD21:9, CD21:10	OC
CD15:5, CD15:6	OC	CD21:11, CD21:12	OC
CD15:7, CD15:8	1	CD21:13, CD21:14	OC
CD15:9, CD15:10	1	CD21:15, CD21:16	OC
CD15:10.1	1	CD21:17, CD21:18	OC
CD15:11, CD15:12	OC	CD21:19, CD21:20	OC
CD15:13, CD15:14	OC	CD21:21, CD21:22	OC
CD16:1, CD16:2	OC	CD21:23, CD21:24	1
CD16:3, CD16:4	OC	CD21:25, CD21:26	1
CD16:5, CD16:6	OC	CD21:27, CD21:28	OC
CD16:7, CD16:8	OC	CD21:29, CD21:30	OC
CD17:1	OC	CD21:31, CD21:32	OC
CD17:3, CD17:4	OC	CD21:33, CD21:34	OC
CD17:5, CD17:6	OC	CD21:35, CD21:36	OC
CD17:7, CD17:8	OC	CD21:37, CD21:38	OC
CD18:1	OC	CD21:39, CD21:40	OC
CD18:3, CD18:4	OC	CD21:41	OC
CD18:5, CD18:6	OC	CD22:1	OC
CD18:7, CD18:8	OC	CD22:3	OC
CD19:1	OC	CD23:1	OC
CD19:3, CD19:4	OC	CD23:3, CD23:4	OC
CD19:5, CD19:6	OC	CD23:5	OC
CD19:7, CD19:8	OC	CCT:1, CCT:2	OC
CD19:9, CD19:10	OC	CCT:3, CCT:4	OC
CD19:11, CD19:12	1	CCT:5, CCT:6	OC
CD19:13	OC	CCT:7, CCT:8	OC
CD19.5:1	OC	CCT:9, CCT:10	OC

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
CCT:11, CCT:12	OC	LDR:vii	1
CCT:13, CCT:14	OC	LDR:1, LDR:2	1
CCT:15, CCT:16	OC	LDR:3, LDR:4	1
CCT:17, CCT:18	OC	LDR:5, LDR:6	1
CCT:19, CCT:20	OC	LDR:7, LDR:8	OC
CCT:21, CCT:22	OC	LDR:9, LDR:10	OC
CCT:23, CCT:24	OC	LDR:11, LDR:12	OC
CCT:25, CCT:26	OC	LDR:13, LDR:14	1
CCT:27, CCT:28	1	LDR:14.1	1
SLT:1, SLT:2	OC	LDR:15, LDR:16	OC
SLT:3, SLT:4	OC	LDR:17, LDR:18	OC
CHTi:1, CHTi:2	OC	LDR:19, LDR:20	OC
CHTi:3	OC	LDR:21, LDR:22	OC
CDi:1, CDi:2	1	LDR:23, LDR:24	OC
CDi:3, CDi:4	1	LDR:25, LDR:26	OC
CDi:5, CDi:6	1	LDR:27, LDR:28	OC
CDi:7, CDi:8	1	LDR:29, LDR:30	OC
CDi:9, CDi:10	1	LDR:31, LDR:32	OC
CDi:11, CDi:12	OC	LDR:33, LDR:34	OC
CDi:13, CDi:14	OC	LDR:35, LDR:36	OC
CDi:15, CDi:16	OC	LDR:37, LDR:38	OC
CDi:17, CDi:18	OC	LDR:39, LDR:40	OC
CDi:19, CDi:20	1	LDR:41, LDR:42	OC
CDi:20.1	1	LDR:43, LDR:44	1
CDi:21, CDi:22	OC	LDR:45, LDR:46	1
CDi:23, CDi:24	OC	LDR:47, LDR:48	1
CDi:25, CDi:26	1	LDR:49, LDR:50	1
CDi:27, CDi:28	1	LDR:50.1	1
CDi:29, CDi:30	1	LDR:51, LDR:52	OC
CDi:31, CDi:32	1	LDR:53, LDR:54	OC
CDi:33, CDi:34	1	LDR:55, LDR:56	OC
CDi:34.1	1	LDR:57, LDR:58	OC
CDi:35, CDi:36	OC	LDR:59, LDR:60	OC
CDi:37, CDi:38	OC	LDR:61, LDR:62	OC
CDi:39, CDi:40	OC	LDR:63, LDR:64	OC
CDi:41, CDi:42	OC	LDR:65, LDR:66	OC
TP:5	OC	LDR:67, LDR:68	OC
LDR:iii, LDR:iv	OC	LDR:69, LDR:70	OC

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
LDR:71, LDR:72	OC	LDR:145, LDR:146	1
LDR:73, LDR:74	OC	LDR:146.1, LDR:146.2	1
LDR:75, LDR:76	OC	LDR:147, LDR:148	OC
LDR:77, LDR:78	OC	LDR:149, LDR:150	OC
LDR:79, LDR:80	OC	LDR:151, LDR:152	OC
LDR:81, LDR:82	OC	LDR:153, LDR:154	OC
LDR:83, LDR:84	OC	LDR:155, LDR:156	OC
LDR:85, LDR:86	OC	LDR:157, LDR:158	OC
LDR:87, LDR:88	OC	LDR:159, LDR:160	OC
LDR:89, LDR:90	OC	LDR:161, LDR:162	OC
LDR:91, LDR:92	OC	LDR:163, LDR:164	OC
LDR:93, LDR:94	OC	LDR:165, LDR:166	OC
LDR:95, LDR:96	OC	LDR:167, LDR:168	OC
LDR:97, LDR:98	OC	LDR:169, LDR:170	OC
LDR:99, LDR:100	1	LDR:171, LDR:172	OC
LDR:101, LDR:102	1	LDR:173, LDR:174	OC
LDR:103, LDR:104	OC	LDR:175, LDR:176	OC
LDR:105, LDR:106	OC	LDR:177, LDR:178	OC
LDR:107, LDR:108	OC	LDR:179, LDR:180	OC
LDR:109, LDR:110	OC	LDR:181, LDR:182	OC
LDR:111, LDR:112	OC	LDR:183, LDR:184	OC
LDR:113, LDR:114	OC	LDR:185, LDR:186	OC
LDR:115, LDR:116	1	LDR:187, LDR:188	OC
LDR:117, LDR:118	1	LDR:189, LDR:190	OC
LDR:118.1	1	LDR:191, LDR:192	OC
LDR:119, LDR:120	OC	LDR:193, LDR:194	OC
LDR:121, LDR:122	OC	LDR:195, LDR:196	OC
LDR:123, LDR:124	OC	LDR:197, LDR:198	OC
LDR:125, LDR:126	OC	LDR:199, LDR:200	OC
LDR:127, LDR:128	OC	LDR:201, LDR:202	OC
LDR:129, LDR:130	OC	LDR:203, LDR:204	OC
LDR:131, LDR:132	OC	LDR:205, LDR:206	OC
LDR:133, LDR:134	OC	LDR:207, LDR:208	OC
LDR:135, LDR:136	OC	LDR:209, LDR:210	OC
LDR:137, LDR:138	OC	LDR:211, LDR:212	OC
LDR:139, LDR:140	OC	LDR:213, LDR:214	OC
LDR:141, LDR:142	OC	LDR:215, LDR:216	OC
LDR:143, LDR:144	OC	LDR:217, LDR:218	OC

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
LDR:219, LDR:220	OC	LDRi:3, LDRi:4	OC
LDR:221, LDR:222	OC	LDRi:5, LDRi:6	OC
LDR:223, LDR:224	OC	LDRi:7, LDRi:8	OC
LDR:225, LDR:226	OC	LDRi:9, LDRi:10	OC
LDR:227, LDR:228	OC	LDRi:11, LDRi:12	OC
LDR:229, LDR:230	OC	LDRi:13, LDRi:14	OC
LDR:231, LDR:232	OC	LDRi:15, LDRi:16	1
LDR:233, LDR:234	OC	LDRi:17, LDRi:18	OC
LDR:235, LDR:236	OC	LDRi:19	OC
LDR:237, LDR:238	OC		
LDR:239, LDR:240	OC		
LDR:241, LDR:242	OC		
LDR:243, LDR:244	OC		
LDR:245, LDR:246	OC		
LDR:247, LDR:248	OC		
LDR:249, LDR:250	OC		
LDR:251, LDR:252	OC		
LDR:253, LDR:254	OC		
LDR:255, LDR:256	OC		
LDR:257, LDR:258	OC		
LDR:259, LDR:260	OC		
LDR:261, LDR:262	OC		
LDR:263, LDR:264	OC		
LDR:265, LDR:266	OC		
LDR:267, LDR:268	OC		
LDR:269, LDR:270	OC		
LDR:271, LDR:272	OC		
LDR:273, LDR:274	OC		
LDR:275, LDR:276	OC		
LDR:277, LDR:278	OC		
LDR:279, LDR:280	OC		
LDR:281, LDR:282	OC		
LDR:283, LDR:284	OC		
LDRCT:1, LDRCT:2	OC		
LDRCT:3, LDRCT:4	OC		
LDRCT:5, LDRCT:6	1		
LDRSLT:1	OC		
LDRi:1, LDRi:2	OC		

OPA-LOCKA, FLORIDA

CODE OF ORDINANCES AND

LAND DEVELOPMENT REGULATIONS

Consisting of:

CITY OF OPA-LOCKA, FLORIDA CODE OF
ORDINANCES AND OPA-LOCKA, FLORIDA
LAND DEVELOPMENT REGULATIONS

Published in 2025 by Order of the City Commission

Adopted May 14, 2025

municode

POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com

P.O. Box 2235 Tallahassee, FL 32316

PREFACE

This Code constitutes a recodification of the general and permanent ordinances (land development regulations excepted) of the City of Opa-locka, Florida.

Source materials used in the preparation of the Code were the 1983 Code, as supplemented through January 13, 2021, and ordinances subsequently adopted by the city commission. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the Code, as supplemented, and any ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER	CHT:1
CHARTER COMPARATIVE TABLE	CHTCT:1

RELATED LAWS COMPARATIVE TABLE	RLCT:1
CODE	CD1:1
CODE APPENDIX	CDA:1
CODE COMPARATIVE TABLES	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
CHARTER INDEX	CHTi:1
CODE INDEX	CDi:1

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgements

This publication was under the direct supervision of Roger D. Merriam, Senior Code Attorney, and Amanda Heath, Editor, of the CivicPlus, LLC, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to John Pate, City Manager, Burnadette Norris-Weeks, City Attorney, Candice Cobb, Assistant City Attorney, Joanna Flores, CMC, City Clerk, Gregory Gay, Director of Planning and Community Development, Corion DeLaine, Interim CRA Manager/City Planner, Gerald Lee, Planner/Zoning Official, Robert Anathan, Budget Administrator, Airia Austin, Public Works Director/Director of Capital Improvement Projects, Steven Barreira, Chief of Police, Nikeya Hill, Assistant Chief of Police, Geraldine Lazarre, Financial Consultant, and Nelson Rodriguez, Director of Information Technology, for cooperation and assistance during

the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

Copyright

All editorial enhancements of this Code are copyrighted by CivicPlus, LLC, and the City of Opa-locka, Florida. Editorial enhancements include, but are not limited to: organization; table of contents; section catchlines; prechapter section analyses; editor's notes; cross references; state law references; numbering system; code comparative table; state law reference table; and index. Such material may not be used or reproduced for commercial purposes without the express written consent of CivicPlus, LLC, and the City of Opa-locka, Florida.

© Copyrighted material.

CivicPlus, LLC, and the City of Opa-locka, Florida. 2025.

ORDINANCE NO. 2025-14

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING AND ENACTING A NEW CODE FOR THE CITY OF OPA-LOCKA, FLORIDA; PROVIDING FOR THE REPEAL OF CERTAIN ORDINANCES NOT INCLUDED THEREIN; PROVIDING A PENALTY FOR THE VIOLATION THEREOF; PROVIDING FOR THE MANNER OF AMENDING SUCH CODE; AND PROVIDING WHEN SUCH CODE AND THIS ORDINANCE SHALL BECOME EFFECTIVE.

WHEREAS, after several years, CivicPlus, LLC conducted a review of the City of Opa-locka's ("City") Code of Ordinances; and

WHEREAS, the conducted review included updating past amended Ordinances for the purpose of the recodification; and

WHEREAS, all ordinances of a general and permanent nature enacted on or before April 10, 2024 have been reviewed by CivicPlus (Municode) and codified to align with the City's Code of Ordinances; and

WHEREAS, the City desires to incorporate the Land Development Regulations into the City's Code of Ordinances so that those provisions are searchable online; and

WHEREAS, the City Commission finds that it is in the best interest of the City and its residents to adopt and enact a new City Code of Ordinances, as provided herein, which can be found at https://library.municode.com/fl/opa-locka/codes/code_of_ordinances.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AS FOLLOWS:

SECTION 1. Incorporation of Recitals. The above recitals are true and correct and are incorporated into this Ordinance by reference.

SECTION 2. The Code entitled "City of Opa-locka, Florida Code of Ordinances" published by CivicPlus, LLC, consisting of chapters 1 through 23, each inclusive, is adopted.

SECTION 3. All ordinances of a general and permanent nature enacted on or before April 10, 2024, are hereby included in the Code or recognized and continued in force by reference therein, are repealed and replaced accordingly.

SECTION 4. The repeal provided for in Section 3 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

SECTION 5. Unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code or any ordinance, rule or regulation adopted or issued in pursuance thereof shall be punished by a fine not exceeding five hundred dollars (\$500.00) or imprisonment for a term not exceeding sixty (60) days, or by both such fine and imprisonment. Each day any violation of any provision of the Code shall continue shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section, whether or not such penalty is reenacted in the amenda-

tory ordinance. In addition to the penalty prescribed above, the city may pursue other remedies such as abatement of nuisances, injunctive relief and revocation of licenses or permits.

SECTION 6. Additions or amendments to the Code when passed in such form as to indicate the intention to make the same as part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

SECTION 7. Ordinances adopted after April 10, 2024, that amend or refer to ordinances that have been codified in the Code shall be construed as if they amend or refer to like provisions of the Code.

SECTION 8. Severability. The provisions of this Ordinance are severable, and it is the legislative intention to confer upon the whole or any part of the Ordinance the powers herein provided. If any provision of this Ordinance shall be held unconstitutional by any court of competent jurisdiction, the decision of such court shall not affect or impair any remaining provisions of the Ordinance. It is hereby declared to be the legislative intent that this Ordinance would have been adopted had such unconstitutional provision not been included herein.

SECTION 9. Conflict & Repealer. All ordinances and parts of ordinances in conflict with this ordinance are hereby repealed.

SECTION 10. Inclusion In Code. It is the intention of the City Commission of the City of Opa-locka that the provisions of this Ordinance shall, at some time in the future, become and be made a part of the General Code of Ordinances of the City of Opa-locka and that the sections of this Ordinance may be renumbered or re-lettered and the word "Ordinance" may be changed to "Chapter," "Section," "Article" or such other appropriate word or phrase, the use of which shall accomplish the intentions herein expressed. The recodified code shall be viewed within the Office of the City Clerk for the City of Opa-locka or may be viewed at https://library.municode.com/fl/opa-locka/codes/code_of_ordinances.

SECTION 11. Scrivener's Errors. Sections of this Ordinance may be renumbered or re-lettered and corrections of typographical errors which do not affect the intent may be authorized by the Interim City Manager without need of public hearing following review by the City Attorney, by filing a corrected or re-codified copy of same with the City Clerk.

SECTION 12. Effective Date. This ordinance shall become effective upon adoption by the City Commission and review by the Governor of the State of Florida or designee.

PASSED FIRST READING this 23rd day of April 2025.

PASSED SECOND READING this 14th day of May 2025.

/s/ _____
John H. Taylor Jr., Mayor

/s/ _____
Joanna Flores, City Clerk

TABLE OF CONTENTS

	Page
Officials of the City at the Time of this Recodification	iii
Current Officials (Reserved)	v
Preface.....	ix
Adopting Ordinance	xiii
Checklist of Up-to-Date Pages.....	[1]
Supplement History Table.....	SH:1

PART I

CHARTER

Charter	CHT:1
Citizens' Bill of Rights.....	CHT:3
Art. I. Incorporation, Form of Government, Boundary and Powers.....	CHT:4
Art. II. City Commission	CHT:5
Art. III. Administrative	CHT:8
Art. IV. Legislative	CHT:10
Art. V. Elections	CHT:13
Art. VI. Charter Amendments.....	CHT:16
Art. VII. General Provisions	CHT:17
Art. VIII. Transition Provisions.....	CHT:17
Charter Comparative Table—Legislation	CHTCT:1

PART II

CODE OF ORDINANCES

Chapter	
1. General Provisions	CD1:1
2. Administration	CD2:1
Art. I. In General	CD2:11
Art. I.5. Code of Ethics; Conflict of Interest	CD2:14
Art. II. City Commission	CD2:19
Div. 1. Generally	CD2:19
Div. 2. Rules of Procedure	CD2:21
Div. 3. Reserved.....	CD2:29
Art. III. Administrative Rules and Procedures.....	CD2:29
Div. 1. Generally	CD2:29
Div. 2. Removal of Board or Agency Members	CD2:33
Div. 3. Procedures for Public Hearings and Personal Appearances	CD2:34
Art. IV. Personnel	CD2:37
Div. 1. Generally	CD2:37

OPA-LOCKA CODE

Chapter	Page
Div. 2. Severance Pay; Extra Compensation.....	CD2:39
Div. 3. Residency Requirement in Employment.....	CD2:40
Div. 4. City Holidays.....	CD2:44
Div. 5. Pensions and Retirement	CD2:44
Div. 6. Deferred Compensation Program	CD2:45
Subdiv. 1. In General	CD2:45
Subdiv. 2. Employees Deferred Compensation Plan Act.	CD2:45
Div. 7. Reserved.....	CD2:47
Div. 8. Drug Free Workplace	CD2:47
Art. V. Charter Revisions and Amendments	CD2:48
Art. VI. Purchasing.....	CD2:49
Div. 1. Generally	CD2:49
Div. 2. Wages for Laborers and Mechanics.....	CD2:58
Div. 3. Department of Purchasing.....	CD2:59
Div. 4. Reserved.....	CD2:60
Art. VII. Special Assessments	CD2:60
Art. VIII. Department of Buildings and Licensing	CD2:60
Art. VIII.5. Department of Public Affairs	CD2:60
Art. IX. Department of Public Works and Utilities	CD2:61
Art. IX.5. Department of Planning and Zoning	CD2:62
Art. IX.5.1. Department of Information Technology	CD2:64
Art. X. Housing Authority.....	CD2:65
Div. 1. Generally	CD2:65
Div. 2. Safety and Sanitation Violations	CD2:67
Art. X.5. Housing and Social Services Department	CD2:69
Art. XI. Boards, Commissions and Committees	CD2:75
Div. 1. Generally	CD2:75
Div. 2. Community Relations, Recreation and Activities Board	CD2:75
Div. 3. Planning and Zoning Board.....	CD2:75
Div. 4. Education Committee.....	CD2:78
Div. 5. Civil Service Board	CD2:78
Div. 6. Reserved.....	CD2:78.5
Div. 7. Housing Authority and Nuisance Abatement Board	CD2:78.5
Div. 8. Reserved.....	CD2:82
Div. 9. Reserved.....	CD2:82
Div. 10. Code Enforcement Board.....	CD2:82
Subdiv. 1. Reserved	CD2:82
Subdiv. 2. Code Enforcement: Special Magistrate Dispute Resolution	CD2:82
Subdiv. 3. Private Property Rights and Dispute Res- olution Procedures.....	CD2:88
Div. 11. Reserved.....	CD2:93
Div. 12. Accountability Board	CD2:93
Div. 13. Historic Environmental Preservation Board ...	CD2:99
Art. XII. Improvements	CD2:107
Div. 1. In General	CD2:107

TABLE OF CONTENTS—Cont'd.

Chapter	Page
Div. 2. Safe Neighborhood Improvement Districts	CD2:107
Div. 3. East-West Neighborhood Improvement District	CD2:107
Art. XIII. Finance	CD2:108
Div. 1. In General	CD2:108
Div. 2. Financial Integrity	CD2:108
Art. XIV. Schedule of Fees	CD2:110
3. Advertising	CD3:1
Art. I. In General	CD3:3
Art. II. Signs	CD3:3
Art. III. Benches	CD3:3
4. Alcoholic Beverages	CD4:1
Art. I. In General	CD4:3
Art. II. Total or Partial Nudity and Sexual Conduct in Alcoholic Beverage Establishments	CD4:6
5. Animals and Fowl	CD5:1
Art. I. In General	CD5:3
Art. II. Dogs	CD5:3
Div. 1. Generally	CD5:3
Div. 2. Keeping for Commercial Purposes	CD5:4
Art. III. Domestic Fowl	CD5:5
Art. IV. Livestock	CD5:5
6. Reserved	CD6:1
7. Buildings, Housing and Structural Regulations	CD7:1
Art. I. In General	CD7:5
Art. II. Housing	CD7:6
Art. III. Contractors	CD7:12
Art. IV. Work Affecting Utility Property	CD7:13
Art. V. Dangerous or Substandard Structures	CD7:14
Art. VI. Flood Damage Protection	CD7:19
Div. 1. In General	CD7:19
Div. 2. Flood-Resistant Development	CD7:31
Art. VII. Wireless Communications Systems	CD7:34
7.5. Reserved	CD7.5:1
8. Civil Defense and Disasters	CD8:1
Art. I. In General	CD8:3
Art. II. Continuity of Government	CD8:3
8.1. Reserved	CD8.1:1
8.2. Environment	CD8.2:1
Art. I. In General	CD8.2:3
Art. II. Tree Protection and Conservation	CD8.2:3
8.5. Elections	CD8.5:1
9. Excavations and Filling	CD9:1
10. Fire Prevention	CD10:1
Art. I. In General	CD10:3

OPA-LOCKA CODE

Chapter	Page
Art. II. Liquefied Petroleum Gas.....	CD10:3
11. Garbage and Trash	CD11:1
Art. I. In General	CD11:3
Art. II. Charges for Assessment of Residential Collection ...	CD11:11
Art. III. Private Nonresidential Collection.....	CD11:13
Art. III-A. Waste Compacting Services	CD11:20
Art. III-B. Recycled Materials	CD11:22
Art. IV. Dumpster Enclosures	CD11:23
Art. V. Commercial Solid Waste Collection and Enforcement	CD11:25
11.1. Reserved	CD11.1:1
11.5. Health and Sanitation	CD11.5:1
Art. I. In General	CD11.5:3
Art. II. Reserved	CD11.5:3
12. Reserved.....	CD12:1
13. Licenses and Business Regulations	CD13:1
Art. I. In General	CD13:5
Art. II. License and Permit Denial and Revocation.....	CD13:7
Art. III. Business Tax Receipts of Restaurants, Grocery Stores and Retailers	CD13:8
Art. IV. Reserved	CD13:9
Art. V. Coin-Operated Devices	CD13:9
Art. VI. Reserved	CD13:14
Art. VII. Junk and Junk Dealers	CD13:14
Art. VIII. Street and Mobile Vendors.....	CD13:14
Art. IX. Reserved	CD13:21
Art. X. Reserved	CD13:21
Art. XI. Flea Markets and Bazaars.....	CD13:21
Art. XII. Reserved.....	CD13:28
Art. XIII. Towing Companies	CD13:28
Art. XIV. Landlord Permit.....	CD13:38
Art. XV. Massage Therapy Establishments	CD13:45
14. Nuisances.....	CD14:1
Art. I. In General	CD14:3
Art. II. Improperly Displayed Vehicles	CD14:9
Art. III. Abandoned and Inoperative Vehicles (Junk Cars) ..	CD14:11
Art. IV. Registration of Abandoned, Vacant Foreclosure Prop- erties	CD14:13
15. Offenses—Miscellaneous	CD15:1
Art. I. In General	CD15:3
Art. II. Reserved	CD15:4
Art. III. Littering.....	CD15:5
Art. IV. Reserved	CD15:8
Art. V. Noise	CD15:8
Art. VI. Using Public Property for Habitation.....	CD15:9
Art. VII. Graffiti	CD15:11

TABLE OF CONTENTS—Cont'd.

Chapter	Page
Art. VIII. Sex Offenders	CD15:12
Art. IX. Prohibitions on the Use of Motorized Scooters, All-Terrain Vehicles, Dirt Bikes, and Go-Peds	CD15:12
Art. X. Signalized Intersection Safety	CD15:13
Art. XI. Synthetic Substances	CD15:13
16. Parks and Recreation	CD16:1
Art. I. In General	CD16:3
Art. II. Use and Conduct Regulations	CD16:3
Div. 1. Generally	CD16:3
Div. 2. Specific Regulations	CD16:5
17. Planning and Development	CD17:1
Art. I. In General	CD17:3
Art. II. Comprehensive Planning	CD17:3
Art. III. Subdivisions and Platting	CD17:4
Div. 1. In General	CD17:4
Div. 2. Vacating Streets and Alleys	CD17:4
Div. 3. Unity of Title	CD17:7
18. Police	CD18:1
Art. I. In General	CD18:3
Art. II. Alarm Systems	CD18:4
Art. III. Gated Communities	CD18:7
19. Streets and Sidewalks	CD19:1
Art. I. In General	CD19:3
Art. II. Sidewalk Construction and Repair	CD19:10
Art. III. Naming of Public Facilities and Streets	CD19:11
Art. IV. Requirement to Number All Buildings	CD19:12
19.5. Taxation	CD19.5:1
Art. I. In General	CD19.5:3
Art. II. Utility Tax	CD19.5:3
Art. III. Local Communications Services Tax	CD19.5:6
19.6. Budget Reserve	CD19.6:1
20. Trailers	CD20:1
21. Water, Sewer, and Stormwater Utilities	CD21:1
Art. I. In General	CD21:5
Art. II. Water	CD21:5
Div. 1. Generally	CD21:5
Div. 2. Service Lines and Connections	CD21:10
Div. 3. Service Rates and Charges	CD21:12
Div. 4. Cross-Connection Control Program	CD21:16
Div. 5. Water Shortage Emergency Restrictions	CD21:19
Art. III. Sewers and Sewage Disposal	CD21:22
Div. 1. Generally	CD21:22
Div. 2. Work on or Affecting Sewers	CD21:30
Div. 3. Service Charges	CD21:33
Div. 4. Septic Tanks	CD21:36

OPA-LOCKA CODE

Chapter	Page
Art. IV. Stormwater Utility	CD21:36
22. Zoning	CD22:1
23. Employee Protection Whistleblower Act	CD23:1
Code Comparative Table—1955 Code	CCT:1
Code Comparative Table—1983 Code	CCT:9
Code Comparative Table—Legislation	CCT:19
State Law Reference Table—Code	SLT:1
Charter Index	CHTi:1
Code Index	CDi:1

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omitted."

Ord. No.	Date Adopted	Included/Omitted	Supp. No.
Supp. No. 1			
2024-16	9-11-2024	Included	1
2024-20	10-23-2024	Included	1
2024-21	11-13-2024	Included	1
2024-22	11-13-2024	Included	1
2025-03	2-12-2025	Included	1
2025-05	2-12-2025	Included	1
2025-06	2-12-2025	Included	1
2025-07	4- 9-2025	Included	1
2025-08	4- 9-2025	Included	1
2025-09	4- 9-2025	Included	1
2025-10	4- 9-2025	Included	1
2025-12	4-23-2025	Omitted	1
2025-13	4-23-2025	Omitted	1
2025-14	5-14-2025	Included	1
2025-15	5-14-2025	Included	1
2025-16	6-23-2025	Included	1
2025-17	6-23-2025	Included	1
2025-18	6-23-2025	Included	1
2025-19	6-23-2025	Included	1
2025-21	7- 9-2025	Omitted	1
2025-22	7-23-2025	Included	1
2025-23	7-23-2025	Included	1

PART I

CHARTER*

Citizens' Bill of Rights

Article I. Incorporation, Form of Government, Boundary and Powers

- Sec. 1.1. Incorporation.
- Sec. 1.2. Corporate boundary.
- Sec. 1.3. Form of government.
- Sec. 1.4. Powers.

Article II. City Commission

- Sec. 2.1. Election and term of office.
- Sec. 2.1.1. Term limits.
- Sec. 2.2. Qualifications.
- Sec. 2.3. Mayor and commission compensation.
- Sec. 2.4. Presiding officer, mayor; commissioners; vice-mayor.
- Sec. 2.5. Powers.
- Sec. 2.6. Induction of commission into office; meetings of commission.
- Sec. 2.7. Vacancies; forfeiture of office; filling of vacancies.
- Sec. 2.8. Recall.

Article III. Administrative

- Sec. 3.1. City manager.
- Sec. 3.2. City manager; appointment, removal.
- Sec. 3.3. Powers and duties of the city manager.
- Sec. 3.4. Acting city manager.
- Sec. 3.5. Bond of city manager.
- Sec. 3.6. City clerk.
- Sec. 3.7. City attorney.
- Sec. 3.8. Expenditure of city funds.
- Sec. 3.9. City boards and agencies.
- Sec. 3.10. Competitive bid requirements/purchasing.

Article IV. Legislative

- Sec. 4.1. Commission meeting procedure.
- Sec. 4.2. Prohibitions.
- Sec. 4.3. Ordinances.
- Sec. 4.4. Emergency ordinances.
- Sec. 4.5. Annual budget adoption.
- Sec. 4.6. Fiscal year.
- Sec. 4.7. Appropriation amendments during the fiscal year.
- Sec. 4.8. Authentication, recording and disposition of ordinances; resolutions and Charter amendments.
- Sec. 4.9. Tax levy, assessments and fees.
- Sec. 4.10. Independent audit.

***Editor's note**—Printed in this part is the city Charter, being Res. No. 12-8434, § 2, adopted July 18, 2012. Amendments are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original. Obvious misspellings have been corrected without notation. For stylistic purposes, a uniform system of headings and catchlines has been used. Additions made for clarity are indicated by brackets.

State law reference—Procedure for amending municipal Charters, F.S. § 166.031.

OPA-LOCKA CODE

Sec. 4.11. Borrowing.

Article V. Elections

Sec. 5.1. Municipal elections.

Sec. 5.2. Initiative and referendum.

Article VI. Charter Amendments

Sec. 6.1. Procedure to amend.

Article VII. General Provisions

Sec. 7.1. Severability.

Sec. 7.2. Conflicts of interest; ethical standards.

Sec. 7.3. City personnel system.

Sec. 7.4. Variation of pronouns.

Sec. 7.5. No discrimination.

Sec. 7.6. Precedence over related laws.

Article VIII. Transition Provisions

Sec. 8.1. Interim adoption of codes, ordinances and resolutions; pending matters.

Sec. 8.2. Effective date; terms of office.

CHARTER

CITIZENS' BILL OF RIGHTS

(A) This government has been created to protect the governed, not the governing. In order to provide the public with full and accurate information, to promote efficient administration management, to make government more accountable, and to insure to all persons fair and equitable treatment, the following are guaranteed:

- (1) *Convenient Access.* Every person has the right to transact City business with a minimum of personal inconvenience. It shall be the duty of the city commission and the city manager to provide, within budget limitations, reasonably convenient times and places for required inspections and for transacting business with the City.
- (2) *Truth in Government.* No municipal official or employee shall knowingly furnish false information on any public matter, nor knowingly omit significant facts when giving requested information to members of the public.
- (3) *Public Records.* All audits, reports, minutes, documents and other public records of the City and its boards, agencies, departments and authorities shall be open for inspection at reasonable times and places convenient to the public.
- (4) *Minutes and Ordinance Register.* The city clerk shall maintain and make available for public inspection an ordinance register separate from the minutes showing the votes of each member on all ordinances and resolutions listed by descriptive title. Written minutes of all meetings and the ordinance register shall be available for public inspection not later than 30 days after the conclusion of the meeting.
- (5) *Right to be Heard.* So far as the orderly conduct of public business permits, any interested person has the right to appear before the city commission or City agency, board or department for the presentation, adjustment or determination of an issue, request, or controversy within the jurisdiction of the City. Matters shall be scheduled for the convenience of the public. The city commission shall adopt agenda procedure and schedule hearings in a manner that will enhance the opportunity for public

participation. Nothing herein shall prohibit any governmental entity or agency from imposing reasonable time limits and procedures for the presentation of a matter.

- (6) *Right to Notice.* Persons entitled to notice of City hearing shall be timely informed as to the time, place and nature of the hearing and the legal authority pursuant to which the hearing is to be held. Failure by an individual to receive such notice shall not constitute mandatory grounds for canceling the hearing or rendering invalid any determination made at such hearing. Copies of proposed ordinances or resolutions shall be made available at a reasonable time prior to the hearing, unless the matter involves an emergency ordinance or resolution.
- (7) *No Unreasonable Postponements.* No matter, once having been placed on a formal agenda by the City, shall be postponed to another day except for good cause shown in the opinion of the city commission, board or agency conducting such meeting, and then only on conditions that the affected person shall, upon written request, receive mailed notice of the new date of any postponed meeting. Failure by an individual to receive such notice shall not constitute mandatory grounds for canceling the hearing or rendering invalid any determination made at such hearing.
- (8) *Right to Public Hearing.* Upon a timely written request from any interested party, and after presentation of the facts to and approval of the commission, a public hearing shall be held by any City agency, board, department or authority upon any significant policy decision to be issued by it which is not subject to subsequent administrative or legislative review and hearing. This provision shall not apply to the Law Department of the City nor to any person whose duties and responsibilities are solely advisory.

At any zoning or other hearing in which review is exclusively by certiorari, a party or his/her counsel shall be entitled to present his/her case or defense by oral or documentary evidence, to submit rebuttal evidence, and to conduct such cross examination as may be

OPA-LOCKA CODE

required for a full and true disclosure of the facts. The decision of such agency, board, department or authority must be based upon the facts in the record. Procedural rules establishing reasonable time and other limitations may be promulgated and amended from time to time.

- (9) *Notice of Action and Reasons.* Prompt notice shall be given of the denial in whole or in part of a request of an interested person made in connection with any City administrative decision or proceeding when the decision is reserved at the conclusion of the hearing. The notice shall be accompanied by a statement of the grounds for denial.
- (10) *Manager's and Attorney's Report.* The city manager and City Attorney shall periodically make a public status report on all major matters pending or concluded within their respective areas of concern.
- (11) *Budgeting.* In addition to any budget required by state statutes, the city manager, at the direction of the city commission, shall prepare a budget showing the cost of each department of each budget year. Prior to the city commission's first public hearing on the proposed budget required by state law, the city manager shall make public a budget summary setting forth the proposed cost of each individual department and reflecting the personnel for each department, the purpose therefor, the estimated millage cost of each department and the amount of any contingency and carryover funds for each department.
- (12) *Quarterly Budget Comparison.* The city manager shall make public a quarterly report showing the actual expenditures during the quarter just ended against one quarter of the proposed annual expenditures set forth in the budget. Such report shall also reflect the same cumulative information for whatever portion of the fiscal year that has elapsed.

(B) The foregoing enumeration of citizens' rights vests large and pervasive powers in the citizenry of the City. Such power necessarily carries with it responsibility of equal magnitude for the successful operation of government in the City. The orderly, efficient and fair operation of government requires the participation of

individual citizens exercising their rights and dignity and restraint so as to avoid any sweeping acceleration on the cost of government because of the exercise of individual prerogatives, and for individual citizens to grant respect for the dignity of public office.

(C) All provisions of this Bill of Rights shall be construed to be supplementary to and not in conflict with the general laws of Florida. If any part of this Bill of Rights shall be declared invalid, it shall not affect the validity of the remaining provisions.

We, the people of the City of Opa-locka, in order to secure for ourselves the benefits and responsibilities of home rule, in order to provide a municipal government to serve our present and future needs, do hereby adopt this Charter.

ARTICLE I. INCORPORATION, FORM OF GOVERNMENT, BOUNDARY AND POWERS

Sec. 1.1. Incorporation.

The inhabitants of the City of Opa-locka, within the corporate limits as now established or as hereafter established in the manner provided by law, shall continue to be a municipal body politic and corporate in perpetuity, under the name of the "City of Opa-locka."

Sec. 1.2. Corporate boundary.

Until modified by subsequent annexations or exclusions in the manner provided by law, the municipal corporation of the City of Opa-locka shall comprise, and have full municipal jurisdiction, powers, rights and privileges over the territory and persons now and from time to time hereafter within the following boundaries in Dade County, Florida, to-wit:

Commencing at the Northeast corner of Section 22, Township 52 South, Range 41 East, for the point or place of beginning; thence run West to the Northwest corner of Section 20, Township 52 South, Range 41 East; thence run South to the Southwest corner of Section 29, Township 52 South, Range 41 East; thence run East to the Southeast corner of said Section 29; thence run North along the East section line of said Section 29 to the Southeast corner of the Northeast quarter of said section; thence run East along the center line of Section 28, Township 52 South, Range 41 East to the Southeast corner of the Northeast quarter of said Section 28; thence run North to the Southwest

corner of said Section 22; thence run East along the South line of said Section 22 to the Southeast corner thereof; thence run North along the East side of said Section 22 to the point or place of beginning, all of said land being more particularly described as Section[s] 20, 21, 22 and 29 and the North half of Section 28, Township 52 South, Range 41 East, Dade County, Florida.

Sec. 1.3. Form of government.

The municipal government provided by this Charter shall be known as the "commission-manager government." Pursuant to its provisions and subject only to the limitations imposed by the state constitution and by this Charter, all powers of the city shall be vested in an elective council, hereinafter referred to as "the commission," which shall enact local legislation, adopt budgets, determine policies, and appoint the city manager, who shall execute the laws and administer the government of the city. All powers of the city shall be exercised in the manner prescribed by this Charter, or if the manner be not prescribed, then in such manner as may be prescribed by ordinance.

Sec. 1.4. Powers.

(1) The City shall have all governmental[,] corporate and proprietary powers to enable it to conduct a municipal government, perform municipal services, and may exercise any power for municipal purposes except as otherwise provided by law. In order to secure for the City the broad exercise of home rule powers as provided by Article VIII, Section 2(b) of the Constitution of the State of Florida, the provisions of all general laws relating to and governing municipalities generally in the State of Florida are hereby adopted and incorporated herein as though expressly set forth in full, it being intended that all such powers, rights, and limitations be and are hereby granted to the City of Opa-locka.

(2) The powers of the City shall be construed liberally in favor of the City, limited only by the Constitution, general law and specific limitations contained herein. Special acts pertaining to the jurisdiction and exercise of powers by the City shall be considered amendments to this Charter and, pursuant to the provisions adopted for the incorporation of other Charter amendments, shall be incorporated as amendments to the Charter. Enumeration of particular powers by this Charter shall not be deemed to be exclusive, and in

addition to the powers enumerated herein or applied thereby, or appropriated to the exercise of such powers, it is intended that the City shall have and may exercise all powers which, under the Constitution of the State, it would be competent for this Charter specifically to enumerate.

(3) The powers of the City, in addition to limitations imposed by law, are further limited as follows:

- (a) The commission shall have and exercise all powers of the City not specifically conferred upon other offices [officers] and employees. It may delegate any power except the power to fix the rate of taxes, enact ordinances and resolutions, incur debts, adopt a budget and appropriate money.
- (b) The City may not otherwise dispose of that part of its real property now, or hereafter held for parks, playgrounds or other recreational facilities, except by ordinance passed by $\frac{2}{3}$ vote of the city commission.

ARTICLE II. CITY COMMISSION

Sec. 2.1. Election and term of office.

The commission shall consist of the mayor and four (4) commissioners elected from the City at large in the manner and for terms provided for herein or until their successors have been elected and take office.

Sec. 2.1.1. Term limits.

(a) No person may appear on the ballot for re-election to the office of mayor or city commissioner of the City of Opa-locka if, by the end of the current term of office, the person will have served (or, except for resignation, suspension, or removal, would have served) in office for eight (8) consecutive years.

(b) For purposes of this section, service as a city commissioner shall include any service on the city commission, regardless of whether the seats are specifically designated, and regardless of whether a city commissioner seeks to run for re-election to the city commission from another designated seat.

(c) The limitation on appearing on the ballot set forth in subparagraph "(a)," relating to eight (8) consecutive years, shall not be extended by switching from

mayor to commissioner, or vice versa, or by running for different positions on the city commission, including mayor.

(d) If approved by the voters, this amendment shall take effect as of the November 2014 elections, and elected service prior to November 2014, shall be measured retroactively from the elected official's first consecutive election as an elected official of the City of Opa-locka.

(Res. No. 14-8826, § 2, 7-23-2014)

Sec. 2.2. Qualifications.

The mayor and commissioners shall be qualified electors of the City. If the mayor or a commissioner shall cease to possess any of these qualifications or shall be convicted of crime involving moral turpitude, his office shall immediately become vacant.

Sec. 2.3. Mayor and commission compensation.

Compensation for the mayor and commissioners shall be set at five hundred fifty dollars (\$550.00) per month.

Sec. 2.4. Presiding officer, mayor; commissioners; vice-mayor.

(a) The candidate for mayor receiving the highest number of votes in each general election shall, for a term of four (4) years immediately following thereafter, have the title of mayor, shall preside at meetings of the commission, and shall be recognized as head of the city government for all ceremonial purposes and by the governor for purposes of military law, but shall have no regular administrative duties.

(b) The candidate for commissioner receiving the highest number of votes in each general election shall, for the term of two (2) years immediately following thereafter, have the title of vice mayor.

(c) All candidates for the office of mayor shall qualify and stand for election separate and apart from those candidates qualifying and standing for election as commissioners. The term of office of the mayor shall be four (4) years. The terms of office for commission members shall be four (4) years.

Sec. 2.5. Powers.

All powers of the city and the determination of all matters of policy shall be vested in the commission. Without limitation of the foregoing, the commission shall have power to:

- (1) Appoint and remove the city manager;
- (2) Establish administrative departments;
- (3) Adopt the budget of the city;
- (4) Authorize the issuance of bonds by a bond ordinance;
- (5) Inquire into the conduct of any office, department or agency of the city and make investigations as to municipal affairs;
- (6) Appoint the members of the duly constituted City boards and committees;
- (7) Adopt plats;
- (8) Adopt and modify the official map of the city;
- (9) Regulate and restrict the height and number of stories of buildings and other structures, the size of yards and courts, the density of population and the locations and use of buildings for trade, industry, business, residence or other purposes;
- (10) Provide for safe and sanitary housing accommodation[s] for families of low income;
- (11) Adopt, modify and carry out plans proposed [for] the clearance of slum districts and rehabilitation of blighted areas;
- (12) Adopt, modify and carry out plans proposed for the replanning, improvement and redevelopment of neighborhoods and for the replanning, reconstruction or redevelopment of any area or district which may have been destroyed in whole or in part by disaster;
- (13) Provide for an independent annual audit.

Sec. 2.6. Induction of commission into office; meetings of commission.

The first meeting of each newly elected commission and mayor for induction into office shall be held as soon as practicable after the vote has been certified.

Sec. 2.7. Vacancies; forfeiture of office; filling of vacancies.

(A) *Vacancies.* The office of a commission member shall become vacant upon his/her death, resignation, disability, suspension or removal from office in any manner authorized by law, or by forfeiture of his/her office.

(B) *Forfeiture of Office.*

- (1) *Forfeiture by disqualification.* The mayor, vice mayor or commission member, shall forfeit his/her office if at any time during his/her term s/he:
 - (1) ceases to maintain his/her permanent residence in the City.
 - (2) by legal declaration of mental incompetence of a member.
 - (3) otherwise ceases to be a qualified elector of the City.
 - (4) is convicted of a felony.
 - (5) violates any express prohibition of this Charter.
 - (6) lacks at any time during the term of office for which elected any qualification for the office prescribed by this Charter or by law.
- (2) *Forfeiture by absence.* The mayor, vice-mayor or commission member shall be subject to forfeiture of his/her office, in the discretion of the remaining commission members, if s/he is absent without good cause from any three regular meetings of the commission during any calendar year or if s/he is absent without good cause from any three consecutive regular meetings of the commission, whether or not during the same calendar year.
- (3) *Procedures.* The commission shall be the sole judge of the qualifications of its members and shall hear all questions relating to forfeiture of a commission member's office, including whether or not good cause for absence has been or may be established. The burden of establishing good cause shall be on the commission member in question; provided, however, that any commission member may at any time during any duly held meeting move to establish good cause for the absence of him/

herself or the absence of any other commission member, from any past, present or future meeting(s), which motion, if carried, shall be conclusive. A commission member whose qualifications are in question, or, who is otherwise subject to forfeiture of his/her office, shall not vote on any such matters. The commission member in question shall be entitled to a public hearing upon request regarding an alleged forfeiture of office. If a public hearing is requested, notice thereof shall be published in one or more newspapers of general circulation in the City at least one week in advance of the hearing. Any final determination by the commission that a commission meeting has forfeited his/her office shall be made by a majority of the commission by resolution. All votes and other acts of the commission member in question prior to the effective date of such resolution shall be valid regardless of the grounds of forfeiture.

(C) *Filling of vacancies.* A vacancy on the commission shall be filled as follows:

- (1) If less than six (6) months remain in the unexpired term, the vacancy shall be filled by the city commission within 30 calendar days following the occurrence of the vacancy.
- (2) If six (6) months or more remain in the unexpired term, the vacancy shall be filled by the city commission within 30 calendar days following the occurrence of the vacancy. The person chosen shall fill the vacancy until the next regularly scheduled Miami-Dade County-wide election, at which time an election shall be held to fill the vacancy for the balance of the term. However, if the commission is unable to fill the vacancy within the 30-day period, a special election to fill that vacancy shall be held no later than 90 calendar days following the occurrence of the vacancy. The person so elected shall serve until the next scheduled City Regular Election, at which time any remaining balance of the term shall be filled by election.
- (3) If the mayor's position becomes vacant, the vice-mayor shall complete the term of mayor. Vacancy of vice-mayor thus created shall be filled in the manner that the position of vice-

mayor is generally filled under this Article. If the elected mayor shall be returned to office, s/he shall automatically resume the duties of the office for the remainder of the term for which elected, and the vice-mayor shall return to complete the balance of his/her term. The appointment of the person to complete the term of the vice-mayor shall be automatically rescinded.

- (4) A vacancy in a commission seat shall be filled by a qualified elector residing in the City.
- (5) Persons filling vacancies shall meet the qualifications specified in this Article.
- (6) If no candidate for a vacancy meets the qualifications under this Article for that vacancy, the commission shall appoint a person qualified under this Article to fill the vacancy.
- (7) Notwithstanding any quorum requirements established in this Charter, if at any time the full membership of the commission is reduced to less than a quorum, the remaining members may, by majority vote, confirm additional members to the extent otherwise permitted or required under this subsection (C).
- (8) In the event that all members of the commission are removed by death, disability, recall, forfeiture of office and/or resignation, the Governor of the State of Florida shall appoint interim commission members who shall call a special election within not less than 30 calendar days or more than 60 calendar days after such appointment. Such election shall be held in the same manner as the first elections under this Charter; provided however, that if there are less than six months, remaining in any of the unexpired terms, such interim commission appointee(s) by the Governor shall serve out the unexpired terms. Appointees must meet all requirements for candidates provided for in this Article.

Sec. 2.8. Recall.

The electors of the City shall have the power to recall and to remove from office any elected official of the City to the extent permitted and in the manner prescribed by the Constitution and the laws of the State of Florida. The minimum number of electors of the

City which shall be required to initiate a recall petition shall be ten (10) percent of the total number of electors registered to vote at the last regular City election.

ARTICLE III. ADMINISTRATIVE

Sec. 3.1. City manager.

There shall be a city manager (the "city manager") who shall be the chief administrative officer of the City. The city manager shall be responsible to the commission for the administration of all City affairs and for carrying out policies adopted by the commission. The term, conditions, and compensation of the city manager shall be established by the commission.

Sec. 3.2. City manager; appointment, removal.

The city manager shall be appointed a majority vote of the commission. The city manager may be removed by a majority vote of the commission provided that at least three (3) affirmative votes shall be required for removal.

Sec. 3.3. Powers and duties of the city manager.

The manager shall:

- (1) Be responsible for the appointing, hiring, promoting, supervising and removing of all City employees, except the City Attorney, the city clerk, and all employees of the Office of the City Attorney and all employees of the office of the city clerk;
- (2) Direct and supervise the administration of all departments and offices but not City boards or committees, unless so directed by the commission from time to time;
- (3) Attend commission meetings and have the right to take part in discussion, but not the right to vote;
- (4) Ensure that all laws, provisions of this Charter and directives of the commission, subject to enforcement and/or administration by him/her or by employees subject to his/her direction and supervision, are faithfully executed;
- (5) Prepare and submit to the commission a proposed annual budget and capital program;

- (6) Submit to the commission and make available to the public an annual report on the finances and administrative activities of the City as of the end of each fiscal year;
- (7) Prepare such other reports as the commission may require concerning the operations of City departments, offices, boards and agencies;
- (8) Keep the commission fully advised as to the financial condition and future needs of the City and make such recommendations to the commission concerning the affairs of the City as s/he deems to be in the best interests of the City;
- (9) Execute contracts and other documents on behalf of the City as authorized by the commission;
- (10) Perform such other duties as are specified in this Charter or as may be required by the commission; and
- (11) Pursue the collection of all allowable fees and taxes and maximize financial reserves as is necessary to sustain the City and the service levels requested by the citizenry. Periodically compare fee structure to similarly sized municipalities to ensure fair and appropriate pricing.

Sec. 3.4. Acting city manager.

To perform his/her duties during his/her temporary absence or disability, the city manager may designate by letter filed with the commission, a qualified employee of the City. In the event of failure of the city manager to make such designation or should the commission be dissatisfied with performance of the person designated, the commission may appoint another employee to serve as Acting city manager during the absence or disability of the city manager.

Sec. 3.5. Bond of city manager.

The city manager shall furnish a fidelity bond to be approved by the commission, and in such amount as the commission may fix, said bond to be conditioned on the faithful performance of his/her duties. The premium of the bond shall be paid by the City.

Sec. 3.6. City clerk.

The city clerk shall be appointed by a majority vote of the commission. The city clerk may be removed by a majority vote of the city commission, provided that at least three (3) affirmative votes shall be required for removal. The city clerk shall be the official keeper of the city seal and shall in addition thereof, but not in limitation thereof, perform and be responsible for the following:

- (1) The city clerk shall be the supervisor of elections and shall be responsible for the preparation of the ballot and the conduct of all elections of the city.
- (2) The city clerk shall appoint such deputy clerks as may from time to time be necessary to carry out the duties of the office.
- (3) The city clerk shall attend all meetings of the city commission and shall keep the minutes of all such meetings.
- (4) The city clerk shall certify and maintain all permanent official records and archives of the city.
- (5) The city clerk shall perform such other duties as required by ordinance or resolution of the city commission or as otherwise provided by this Charter.

Sec. 3.7. City attorney.

The city commission shall appoint, by majority vote, an individual attorney or law firm to act as the City Attorney under such terms, conditions, and compensation as may be established by the commission. The City Attorney shall report to the commission and may be removed by majority vote of the commission, provided that at least three (3) affirmative votes shall be required for removal.

Sec. 3.8. Expenditure of city funds.

No funds of the City shall be expended except pursuant to duly approved appropriations or as authorized by ordinance.

Sec. 3.9. City boards and agencies.

All City boards or agencies existing prior to the adoption of this Charter shall be de-authorized subject to reauthorization under the provisions of this Charter.

The commission shall establish or terminate such boards and agencies as it may deem advisable from time to time. The boards and agencies shall report to the commission.

Sec. 3.10. Competitive bid requirements/purchasing.

(A) Except as otherwise provided by law, contracts for public improvements and purchases of supplies, materials or services shall be awarded or made on the basis of clearly drawn specifications and competitive bids, except in cases where the commission, based on the written communication of the city manager, specifically determines by affirmative vote of at least three commission members that it is impracticable or not advantageous to the City to do so. The city commission shall have the power to reject all bids and advertise again.

(B) The city manager, by an ordinance approved by a majority (three or more votes) of the commission may be granted purchasing power without competitive bidding or as otherwise provided by law.

ARTICLE IV. LEGISLATIVE

Sec. 4.1. Commission meeting procedure.

(A) *Meetings.* The commission shall hold at least 11 regular monthly meetings in each calendar year, at such times and places as the commission may prescribe. Special meetings may be held on the call of the mayor, city manager or a majority of the commission members upon no less than 24 hours' notice to the public or such shorter time as a majority of the commission deems necessary in case of an emergency affecting life, health, property or the public peace.

(B) *Rules and Minutes.* The commission shall determine its own rules of procedure and order of business and shall keep minutes open for public inspection.

(C) *Quorum and Voting.* A majority of the commission shall constitute a quorum. Voting on ordinances and resolutions shall be by roll call on final reading. Voting on all other matters may be by voice vote unless a commission member or the city clerk request otherwise. In the event that three or more commission members are unavailable to vote on a particular matter due to required abstention pursuant to State law, then the remaining members of the commission may vote and approve such matter by unanimous vote.

(D) *Meeting Time Limits.* No meeting of the commission shall extend later than midnight except upon the affirmative vote of a majority of members present at the meeting, provided that there is a quorum present.

Sec. 4.2. Prohibitions.

(A) *Appointment and Removals.* Neither the commission nor any of its members shall in any manner dictate the appointment or removal of any City employees, whom the city manager or any of his/her subordinates are empowered to appoint. The commission may express its views and fully and freely discuss with the city manager anything pertaining to appointment and removal of such officers and employees.

(B) Interference with Administration.

(1) Except for the purpose of inquiries and investigations made in good faith and in accordance with a resolution adopted by the commission, the commission and any of its individual members shall deal with City employees who are subject to the direction and supervision of the city manager solely through the city manager, and neither the commission nor its members shall give orders to any such employee, except the city manager, the city clerk and the City Attorney, either publicly or privately. It is the express intent of this Charter that recommendations for improvement in City government operations by individual commission members are made solely to and through the city manager. commission members may discuss with the city manager any matter of City business; however, no individual commission member shall give orders to the city manager.

(2) Any commissioner violating the provisions of this section, shall be guilty of a misdemeanor and, upon conviction thereof, shall cease to be a commissioner.

(C) *Holding Other Office.* No elected City Official shall hold any appointed City Office or City employment while in office. No former elected City official shall hold any compensated appointive City office or City employment until one (1) year after the expiration of his/her term.

(D) *[Lobbying After Leaving Office.]* Elected officials shall be prohibited for one (1) year following the expiration of their term of office from lobbying before any City board, committee or agency including the city commission.

Sec. 4.3. Ordinances.

(A) *Actions Requiring an Ordinance.* In addition to other acts required by law or by specific provisions of this Charter to be affected or authorized by ordinance, those acts of the city commission shall be by ordinance which:

- (1) Adopt or amend an administrative regulation or establish, alter or abolish any City office, department, board or agency;
- (2) Establish a rule or regulation the violation of which carries a penalty;
- (3) Levy taxes or appropriate funds;
- (4) Grant, renew or extend a franchise;
- (5) Set service or user charges for municipal services or grant administrative authority to set such charges;
- (6) Authorize the borrowing of money in accordance with section 4.11;
- (7) Convey or lease or authorize by administrative action the conveyance or lease of any lands of the City;
- (8) Regulate land use through zoning and other means;
- (9) Amend or repeal any ordinance previously adopted, except as otherwise provided in this Charter.

Sec. 4.4. Emergency ordinances.

To meet a public emergency affecting life, health, property or the public peace, the commission may adopt, in the manner provided in this Section, one or more emergency ordinances, but emergency ordinances may not: levy taxes, grant, renew or extend any municipal franchise; set service or user charges for any municipal services; or authorize the borrowing of money except as provided under the emergency appropriations provision of this Charter, if applicable.

- (1) *Form.* An emergency ordinance shall be introduced in the form and manner prescribed for

ordinances generally, except that it shall be plainly designated in a preamble as an emergency ordinance and shall contain, after the enacting clause, a declaration stating that an emergency exists and describing it in clear and specific terms.

- (2) *Procedure.* An emergency ordinance may be adopted with or without amendment or rejected at the meeting at which it is introduced and shall be enacted by no less than four members of the commission. After its adoption, the ordinance shall be published and printed as prescribed for other ordinances.
- (3) *Effective Date.* An emergency ordinance shall become effective upon adoption or at such other date as may be specified in the ordinance.
- (4) *Repeal.* Every emergency ordinance except emergency appropriation ordinances shall automatically be repealed as of the [sixty-first] 61st calendar day following its effective date, but shall not prevent reenactment of the ordinance under regular procedures, or if the emergency still exists, in the manner specified in this Section. An emergency ordinance may also be repealed by adoption of a repealing ordinance in the same manner specified in this Section for adoption of emergency ordinances.
- (5) *Emergency Appropriations.* The commission may make emergency appropriations in the manner provided in this Section. Notwithstanding the provisions of Section 4.11 to the extent that there are no available unappropriated revenues to meet such appropriations, the commission may authorize the issuance of emergency notes, which may be renewed from time to time, but the emergency notes, including renewals thereof, shall be payable no later than the last day of the fiscal year next succeeding the fiscal year in which the emergency appropriation ordinance was originally adopted.

Sec. 4.5. Annual budget adoption.

- (A) *Balanced Budget.* Each annual budget adopted by the commission shall be a balanced budget and adopted in accordance with Florida law.

(B) *Budget Adoption.* The commission shall by ordinance adopt the annual budget on or before the thirtieth (30th) day of September of each year. If it fails to adopt the annual budget by this date, the commission may by resolution direct that the amounts appropriated for current operations for the current fiscal year shall be deemed adopted for the ensuing fiscal year for a period of fifteen (15) days and renewed by resolution each fifteen (15) days, with all items in it prorated accordingly, until such time as the commission adopts an annual budget for the ensuing fiscal year. An ordinance adopting an annual budget shall constitute appropriation of the amounts specified therein.

(C) *Specific Appropriation.* The budget shall be specific as to the nature of each category of appropriations therein. Reasonable appropriations may be made for contingencies, but only within defined spending categories.

Sec. 4.6. Fiscal year.

The fiscal year of the City government shall begin on the first day of October and shall end on the last day of September of the following calendar year. Such fiscal year shall also constitute the annual budget and accounting year.

Sec. 4.7. Appropriation amendments during the fiscal year.

(A) *Supplemental Appropriations.* If, during any fiscal year, revenues in excess of those estimated in the annual budget are available for appropriation, the commission may by ordinance make supplemental appropriations for the fiscal year up to the amount of such excess.

(B) *Reduction of Appropriations.* If, at any time during the fiscal year, it appears probable to the city manager that the revenues available will be insufficient to meet the amount appropriated, s/he shall report in writing to the commission without delay, indicating the estimated amount of the deficit, and his/her recommendations as to the remedial action to be taken. The commission shall then take such action as it deems appropriate to prevent any deficit spending.

(C) The commission may otherwise amend the annual budget from time to time during the year, by ordinance, as it deems necessary to do so.

Sec. 4.8. Authentication, recording and disposition of ordinances; resolutions and Charter amendments.

(A) *Authentication.* The Mayor and the city clerk shall authenticate by their signature all ordinances and resolutions adopted by the commission. In addition, when Charter amendments have been approved by the electors, the Mayor and the city clerk shall authenticate by their signatures the Charter amendment, such authentication to reflect the approval of the Charter amendment by the electorate.

(B) *Recording.* The city clerk shall keep properly indexed books in which shall be recorded, in full, all ordinances and resolutions passed by the commission. Ordinances shall, at the direction of the commission, be periodically codified. The city clerk shall also maintain the Charter in current form including all Charter Amendments.

(C) *Availability of Enactments.* The commission shall establish procedures for making all resolutions, ordinances, technical codes adopted by reference, and this Charter available for public inspection and available for purchase at a reasonable price.

Sec. 4.9. Tax levy, assessments and fees.

The City, by majority of the commission, shall have the right to levy, assess and collect all such taxes, assessments and fees as are permitted by law, including without limitation, fines, ad valorem taxes, special assessments and fees, excise, franchise or privilege taxes and taxes on services and utilities.

Sec. 4.10. Independent audit.

The commission shall provide for an annual independent audit of all City accounts and may provide more frequent audits as it deems necessary. Audits shall be made in accordance with generally accepted auditing standards by a certified public accountant or firm of such accountants who have no personal interest direct or indirect in the fiscal affairs of the City government, its employees or officers. Residency, per se, shall not constitute a direct or indirect interest. A summary of the results, including any deficiencies found, shall be made public. A written response to any noted deficiencies shall be the responsibility of the city manager. The

response shall be made public no more than 90 calendar days from delivery of the independent auditor's report.

Sec. 4.11. Borrowing.

The City shall incur no debt unless the incurrence of such debt is approved by a majority of the commission.

ARTICLE V. ELECTIONS

Sec. 5.1. Municipal elections.

A. Holding elections[.] The regular election for members of the commission and mayor shall be held on the first Tuesday after the first Monday in November of each even numbered calendar year. The commission shall order special elections on other dates to fill vacancies on the commission when such elections are mandatory under this Charter. Special elections may also be called on at least thirty (30) days' notice at any time to validate general obligation bond issues, to ratify a new Charter or amend a current one, to initiate ordinances or secure an expression from the electors on referred ordinances in the manner prescribed in this Charter, or for any or all other lawful purposes.

B. Regulation of elections. The commission shall by ordinance establish such rules and regulations as it considers needful or desirable, not inconsistent with this Charter, governing the conduct of municipal elections, for the prevention of fraud in such elections, and for the recount of ballots in case of doubt or fraud. Municipal elections shall be supervised by the city clerk and conducted by an election board consisting of an election clerk and two (2) or more qualified electors for each precinct appointed by the commission who shall act as inspectors of the election.

C. Registration of voters; compliance with ordinances and laws[.] Elections and maintenance of voters registration lists shall be conducted in accordance with the ordinances of the city and the laws of the State of Florida.

D. Regular elections of mayor and commissioners; run-off elections; qualifications of voters; conduct to conform to statutes.

- (1) A general election shall be held on the first Tuesday after the first Monday in November of each even-numbered year to choose a suc-

cessor to the elective office of mayor or commissioner where said are expiring, unless the general election being conducted by the Miami Dade County Elections Department is held on another day, in which case the Opa-locka election shall be held on the same day. The candidate for mayor receiving highest number of ballots cast shall be deemed the duly elected mayor. The two (2) candidates for commissioner receiving the highest number of votes cast for commission shall be deemed duly elected. In any special election to fill an unexpired term on the commission, the candidate receiving the highest number of votes shall be deemed duly elected.

- (2) Any person who shall possess the qualifications requisite to be an elector at the general state election and shall have resided in the City of Opa-locka more than forty-five (45) days next preceding the city election at which he offers to vote, and shall have registered with the elections division of Miami Dade County, shall be a qualified elector of the city.
- (3) Any person who shall be a qualified elector of the city and who shall have resided in the City of Opa-locka more than 365 days prior to the day of the election at which the person seeks to qualify as a candidate for the office of commissioner or mayor shall be qualified as candidate to seek the office of commissioner or mayor.
- (4) All elections held in the City of Opa-locka shall be conducted and held according to the provisions of the general election laws of the State of Florida, except as otherwise provided for in the Charter of the City of Opa-locka and except that the city commission shall be substituted for a board of County commissioners.
- (5) The name of any elector of the city shall be printed upon the ballot as a candidate for nomination to the office of commissioner or mayor of the City of Opa-locka the sum of two hundred fifty dollars (\$250.00) being deposited with the Clerk of the City of Opa-locka at the time of seeking qualifications as a

qualifying fee for such candidate to the office of commissioner or mayor of the City of Opa-locka, Florida.

The qualification period for elector candidates for the office of mayor and commissioner shall commence at 9:00 a.m. on the first Monday in August of each even-numbered year, and continuing until 12:00 noon on the Friday which is eleven (11) days after the commencement date. Each elector shall submit concurrently there with a sworn statement of the elector's name, address together with a statement under oath as to residency in the City of Opa-locka for more than 365 days prior to the date of election sought for qualification as a candidate, occupation and willingness to serve if elected.

- (6) The word "resident" and all of its derivatives shall mean that a person shall be considered as such when he actually lives in a house, trailer, or an apartment within the boundaries of the City of Opa-locka. The Supervisor of Elections is required to request proof of residency, including, but not limited to, homestead exemption, driver's license, motor vehicle registration, voter's registration card, lease agreement, from anyone who applies to qualify as a candidate for the office of commissioner or mayor. A business address or location shall not entitle a proposed candidate or elector to be considered as a "resident."

E. Form of ballots; listing of candidates. All ballots used in any regular, special or general election of commissioners or mayor held under authority of this Charter shall be without party mark or designation and without any insignia or mark of any association or organization thereon and shall be substantially in the same form as the election ballot used in all general state elections. The following additional provisions with respect to ballots used in any general or special election of commissioners [or mayor] shall also apply:

- (1) The full names of all candidates nominated for the commission or mayor, as hereinbefore provided, except such as may have withdrawn, died or become ineligible, shall be printed on the official ballots. If two (2) candidates with the same surname, or with names so similar as

to be likely to cause confusion, are nominated, the addresses of their places of residence may be placed with their names on the ballot.

- (2) The names of the candidates shall be arranged in the alphabetical order of their surnames.
- (3) Where voting machines are not used, commissioners or mayor shall be voted for on ballots separate and distinct from ballots used for any other office or question, and the ballot boxes used for the election of commissioners or mayor shall be separate and distinct from ballot boxes used for any other office or question.
- (4) When voting machines are used, the laws of the State of Florida shall apply, and the form of the ballot shall be modified to conform thereto.

F. What commissioners declared elected; how tie vote decided. At any regular municipal election held under the provisions of this Charter, the candidates for the office of commissioner, in number equal to the number of commissioners to be elected, who shall have received the greatest number of votes cast, shall be declared elected. The candidate for mayor receiving the greatest number of votes cast shall be declared elected. A tie between two (2) or more candidates for the office of commissioner shall be decided by a run-off election to be held within thirty (30) days of the certification of the results of the regular election. Similarly, a tie between two or more candidates for mayor shall be decided by a run-off election to be held within thirty (30) days of the certification of the results of the regular election. No runoff shall be held less than twenty-one (21) days after the regular election.

G. Candidacy of incumbent commissioner and mayor. If an incumbent commissioner qualifying for nomination and election to the office of mayor or an incumbent mayor qualifies for nomination and election to office of commissioner resigns to run as required herein or by State law, the remaining term of his office becomes vacant thereby, and said vacancy shall be filled in accordance with the procedure set forth in this Charter.

Sec. 5.2. Initiative and referendum.

- (A) *Power to Initiate and Reconsider Ordinances.*
- (1) *Initiative.* The electors of the City shall have the power to propose ordinances to the com-

mission and, if the commission fails to adopt an ordinance so proposed without any change in substance, to adopt it at a City election, provided that the required signatures in Sec. 5.2(c)(1) have been met and provided that such power shall not extend to the annual budget or capital program or any ordinance appropriating money, levying taxes or setting salaries of City officers or employees.

- (2) *Referendum.* The electors of the City shall have power to require reconsideration by the commission of any adopted ordinance and, if the commission fails to repeal an ordinance so reconsidered, to approve or reject it at a City election, provided that such power shall not extend to the annual budget or capital program or any ordinance appropriating money, levying taxes or setting salaries of city officers or employees.

(B) *Commencement of Proceedings.* A minimum of ten electors may commence initiative or referendum proceedings by filing with the city clerk an affidavit (the "Affidavit") stating they will constitute the petitioners' committee (the "Committee") and be responsible for circulating the petition (the "Petition") and filing it in proper form, stating their names and addresses and specifying the address to which all notices to the Committee are to be sent, and setting out in full the proposed initiative ordinance or citing the ordinance sought to be reconsidered. Promptly after the Affidavit of the Committee is filed, the city clerk shall, at the Committee's request, issue the appropriate Petition blanks to the Committee at the Committee's expense. Petitioners' proposed ordinance shall be approved as to legal sufficiency by the City Attorney prior to circulation.

(C) *Petitions.*

- (1) *Number of Signatures.* Initiative and referendum petitions must be signed by at least ten (10) percent of the total number of electors registered to vote at the last regular City election.
- (2) *Form and Content.* All pages of a Petition shall be assembled as one instrument of filing. Each signature shall be executed in ink and shall be followed by a printed name and address of the person signing. Petitions shall contain or have

attached throughout their circulation the full text of the ordinance proposed or sought to be reconsidered.

- (3) *Affidavit of Circulator.* Each page of a Petition shall have attached to it when filed an affidavit executed by the circulator stating that s/he personally circulated the page, the number of signatures contained, that all the signatures were affixed in his/her presence that s/he believes them to be genuine signatures of the persons whose names they purport to be and that each signer had an opportunity before signing to read the full text of the ordinance proposed or sought to be reconsidered.
- (4) *Filing Deadline.* All Petitions must be filed within 60 calendar days of the date a proper Affidavit is filed pursuant to subsection (B) of this section.

(D) *Procedure for Filing.*

- (1) *Certificate of Clerk; Amendment.* Within 20 calendar days after an initiative Petition is filed or within five business days after a referendum Petition is filed, the city clerk shall verify all signatures required for initiatives or referendums with the Miami-Dade Supervisor of Elections and complete a certificate as to its sufficiency ("the Certificate"). If insufficient the Certificate shall specify the particulars of the deficiency. A copy of the Certificate shall be promptly sent to the Committee by registered mail. Grounds for insufficiency are only those specified in subsection (C) of this Section. A Petition certified insufficient for lack of the required number of valid signatures may be amended once if the Committee files a notice of intention to amend it with the city clerk within two calendar days after receiving the copy of the Certificate and files a Supplementary Petition ("Supplementary Petition") with the city clerk with additional valid signatures within ten calendar days after receiving the copy of such Certificate. Such Supplementary Petition shall comply with the requirements of subsection (C) of this Section. Within five business days after a Supplementary Petition is filed the city clerk shall, after verifying signatures with Miami-Dade County Supervisor of Elections, complete a Certificate as to

the sufficiency of the Petition as amended ("Amended Petition") and promptly send a copy of such Certificate to the Committee by registered mail. If a Petition or Amended Petition is certified sufficient, or if a Petition or Amended Petition is certified insufficient and the Committee does not elect to amend or request commission review under paragraph (2) of this subsection within the time required, the city clerk shall promptly present his/her certificate to the commission and such Certificate shall then be a final determination as to the sufficiency of the petition.

- (2) *Commission Review.* If a Petition has been certified insufficient and the Committee does not file notice of intention to amend it or if an Amended Petition has been certified insufficient, the Committee may, within two calendar days after receiving the copy of such Certificate, file a request with the city clerk that it be reviewed by the commission. The commission shall review the Certificate at its next regularly scheduled meeting following the filing of such request and approve or disapprove it. The commission's determination shall then be a final determination as to the sufficiency of the Petition.

(E) *Action on Petitions.*

- (1) *Action by commission.* When an initiative or referendum Petition has been finally determined sufficient, the commission shall promptly consider the proposed initiative ordinance or reconsider the referred ordinance by voting its repeal. If the commission fails to adopt a proposed initiative ordinance without any change in substance within 45 calendar days or fails to repeal the referred ordinance within 30 calendar days, it shall submit the proposed or referred ordinance to the electors of the City. If the commission fails to act on a proposed initiative ordinance or a referred ordinance within the time period contained in this paragraph, the commission shall be deemed to have failed to adopt the proposed initiative ordinance or failed to repeal the referred ordinance on the last day that the commission was authorized to act on such matter.

- (2) *Submission to Electors.* The vote of the City on a proposed or referred ordinance shall be held not less than 30 calendar days or more than 60 calendar days from the date the commission acted or was deemed to have acted pursuant to paragraph (1) of this subsection. If no regular election is to be held within the period described in this paragraph, the commission shall provide for a special election. Copies of the proposed or referred ordinance shall be made available at the polls.

- (3) *Referendum.* See [subsection] F(2).

(F) *Results of Election.*

- (1) *Initiative.* If a majority of the qualified electors voting on a proposed initiative ordinance vote in its favor, it shall be considered adopted upon certification of the election results. If conflicting ordinances are approved at the same election, the one receiving the greatest number of affirmative votes shall prevail to the extent of such conflict. If the proposed initiative ordinance fails, it or any ordinance that is substantially similar may not be submitted in accordance with this Article for at least one year from the date of the election.
- (2) *Referendum.* If a majority of the qualified electors voting on a referred ordinance vote for repeal, the repealed ordinance shall be considered repealed upon certification of the election results.

ARTICLE VI. CHARTER AMENDMENTS

Sec. 6.1. Procedure to amend.

(A) The Charter may be amended in accordance with the provisions of Section 5.03 of the Home Rule Charter of Miami-Dade County. The City shall enact an ordinance to implement this Article.

(B) If conflicting amendments are adopted at the same election, the one receiving the greatest number of affirmative votes shall prevail to the extent of such conflict.

ARTICLE VII. GENERAL PROVISIONS

Sec. 7.1. Severability.

If any article, section or part of a section of this Charter shall be held invalid by a court of competent jurisdiction, such holding shall not affect the remainder of this Charter or the context in which such article, section or part of section so held invalid may appear, except to the extent that an entire article, section or part of section may be inseparably connected in meaning and effect with the section or part of section to which such holding shall directly apply.

Sec. 7.2. Conflicts of interest; ethical standards.

(A) All commission members, officials and employees of the City shall be subject to the standards of conduct for public officers and employees set by Miami-Dade County or such other ethical standard adopted by the commission. The commission may, by ordinance, adopt additional standards of conduct and a code of ethics, but in no case inconsistent with state law.

(B) All elected officials, employees and appointed board or committee members shall disclose any interest in real estate or other business(es) upon entering office or being hired and shall re-disclose annually thereafter, except as otherwise provided by law.

(C) Without in any way limiting the generality of the foregoing, no commission member shall have a financial interest, direct or indirect, or by reason of ownership of stock or other equity ownership in any corporation or entity, in any contract or in the sale to the City or to a contractor supplying the City of any land or rights or interest in any land, materials, supplies, or services unless, after full disclosure to the commission of the nature and extent of such interest, the same is authorized by the commission before the event or accepted and ratified by the commission after the event. No member of the commission who possesses such a financial interest shall vote on, or participate in the commission deliberations concerning, any such contract or sale. Any violation of this Section with the knowledge of the person or entity contracting with the City shall render the contract voidable by the commission.

Sec. 7.3. City personnel system.

All new employment, appointments and promotions of City employees shall be made pursuant to personnel procedures to be established by the Manager from time to time. The City shall make all efforts to encourage the hiring of City residents and to encourage employees to reside within the municipal boundaries.

Sec. 7.4. Variation of pronouns.

All pronouns and any variation thereof used in this Charter shall be deemed to refer to masculine, feminine, neutral, singular or plural as the identity of the person or persons shall require and are not intended to describe, interpret, define or limit the scope, extent, or intent of this Charter.

Sec. 7.5. No discrimination.

The City shall not adopt any ordinance or policy that discriminates against any person due to race, religion, color, national origin, physical or mental disability, creed, age, sexual preference or gender.

Sec. 7.6. Precedence over related laws.

In case of a conflict between the provisions of this Charter and the provisions of the Code to be adopted pursuant thereto, the Charter terms shall control. Moreover, nothing in this Charter shall be construed to alter, abolish, affect or amend the general laws of this State, now in force, or which hereinafter may be enacted relative to or affecting this City, except where such laws are in direct conflict in which case the provisions of this Charter or Code adopted pursuant thereto shall supersede and be in full force and effect to the extent permitted by law.

ARTICLE VIII. TRANSITION PROVISIONS

Sec. 8.1. Interim adoption of codes, ordinances and resolutions; pending matters.

Unless otherwise modified or replaced by this Revised Charter, or the city commission, all codes, ordinances and resolutions in effect on the date of adoption of this Revised Charter shall remain in force and effect as municipal codes, ordinances and resolutions of the City, to the extent they are not in conflict with this Revised Charter, and all officers shall continue to hold

their office until replaced as provided herein. All pending actions and matters shall continue unimpaired except where in conflict, or upon action of the city commission. The city commission may adopt transition ordinances, including emergency ordinances as provided herein, as may be required to achieve a smooth and continuous transition.

Sec. 8.2. Effective date; terms of office.

This Revised Charter shall take effect upon adoption and ratification by a majority vote of the electors of the City at an election called for that purpose. Upon adoption, the terms of any officeholders now scheduled to expire in November 2012, shall still expire in 2012, and shall be filled thereafter in the manner provided herein. The terms of those office holders scheduled to expire in 2014 shall still expire in 2014 (which scheduled elections shall continue unimpaired by, but subject to, the provisions of this Charter).

CHARTER COMPARATIVE TABLE

LEGISLATION

This table shows the location of amendments to the Charter.

Legislation	Date	Section	Charter Section
Res. No. 12-8434	7-18-2012	2	Char. (note)
Res. No. 14-8826	7-23-2014	2	2.1.1

PART II

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1.	How Code designated and cited.
Sec. 1-2.	Rules of construction.
Sec. 1-3.	Catchlines of sections; history and other notes; references.
Sec. 1-4.	Effect of repeal of ordinances.
Sec. 1-5.	Severability of parts of Code.
Sec. 1-6.	Certain ordinances not affected by Code.
Sec. 1-7.	General penalty; continuing violations.
Sec. 1-8.	Court costs for law enforcement education.
Sec. 1-9.	Prior offenses, penalties, contracts or rights not affected by adoption of Code.
Sec. 1-10.	Provisions considered as continuation of existing ordinances.

Sec. 1-1. How Code designated and cited.

The ordinances embraced in the following chapters and sections shall constitute and be designated the "City of Opa-locka, Florida Code of Ordinances," and may be so cited.

(Code 1955, § 1-1; Code 1983, § 1-1)

Sec. 1-2. Rules of construction.

In the construction of this Code, and of all ordinances, the following rules shall be observed, unless the context clearly indicates otherwise:

City. The term "city" means the City of Opa-locka, Florida.

City commission. Whenever the term "city commission" is used, it means the city commission of the City of Opa-locka.

City manager. The term "manager" or "city manager" means the city manager of the City of Opa-locka, Florida.

Computation of time. In computing any period of time prescribed or allowed by this Code, the day of the act, event or default from which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included unless it is a Saturday, Sunday or legal holiday in which event the period shall run until the end of the next day, which is neither a Saturday, Sunday or legal holiday. When the period of time prescribed or allowed is less than seven (7) days, intermediate Saturdays, Sundays and legal holidays shall be excluded in the computation.

State law reference—Similar provisions, Fla. R. Jud. Admin. 2.514.

County. The term "county" means Miami-Dade County.

F.S. The abbreviation "F.S." means the latest edition of Florida Statutes, as now or hereafter amended.

Gender. Words of gender include all genders.

State law reference—Similar provisions, F.S. § 1.01(2).

Number. The singular includes the plural and vice versa.

State law reference—Similar provisions, F.S. § 1.01(1).

Oath. The term "oath" includes affirmations.

State law reference—Similar provisions, F.S. § 1.01(6).

Officers, departments, agencies. Wherever in this Code, reference is made to any officer, department or agency,

such as, without limitation, "the city manager," "the mayor," "department of public works," "housing authority," etc., it shall be construed to mean such officer, department or agency of the city, and shall include the duly authorized subordinates of such officer, department or agency.

Owner. The term "owner," applied to a building or land, shall include any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety, of the whole or of a part of such building or land.

Person. The term "person" includes individuals, children, firms, associations, joint adventures, partnerships, estates, trusts, business trusts, syndicates, fiduciaries, corporations and all other groups or combinations.

State law reference—Similar provisions, F.S. § 1.01(3).

Personal property includes every species of property except real property.

Preceding, following. The terms "preceding" and "following" mean next before and next after, respectively.

Shall. The term "shall" is always mandatory and not merely directory.

State. The term "state" means the State of Florida.

Tense. Words used in the present or past tense include the future as well as the present or past.

Titles. Whenever reference is made to officials, boards, departments and similar official bodies of the city by title only, i.e., director of public works, recreation director, etc., such title shall be construed as if the words "of the City of Opa-locka, Florida" followed it; and shall include the duly authorized subordinates of such official, board, department or similar body.

(Code 1955, § 1-2; Code 1983, § 1-2; Ord. No. 80-16, § 1, 9-10-1980)

Sec. 1-3. Catchlines of sections; history and other notes; references.

(a) The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be the titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or re-enacted.

(b) The history or source notes appearing in parentheses after sections in this Code have no legal effect and only indicate legislative history. Editor's notes, charter references, and cross references, county code references and state law references that appear in this Code after sections or subsections or that otherwise appear in footnote form are provided for the convenience of the user of the Code and have no legal effect.

(c) All references in this Code to chapters, articles, divisions, subdivisions, or sections are to chapters, articles, divisions, subdivisions, or sections of the Code, unless otherwise specified.

(Code 1955, § 1-3; Code 1983, § 1-3)

Sec. 1-4. Effect of repeal of ordinances.

(a) The repeal of an ordinance shall not revive any ordinances in force before or at the time the ordinance repealed took effect.

(b) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for an offense committed or cause of action arising under the ordinance repealed.

(Code 1955, § 1-4; Code 1983, § 1-4)

State law reference—Repealed statute not revived by implication, F.S. § 2.04.

Sec. 1-5. Severability of parts of Code.

The sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional, invalid or unenforceable by the valid judgment or decree of the court of competent jurisdiction, such unconstitutionality, invalidity or unenforceability shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code.

(Code 1955, § 1-5; Code 1983, § 1-5)

Sec. 1-6. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of any of the following:

- a. Any ordinance promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness;

- b. Any administrative ordinances not in conflict or inconsistent with the provisions of this Code;
- c. Any appropriation ordinance or ordinance providing for the levy of taxes or for an annual budget, or any amendment thereto;
- d. Any ordinance annexing territory to the city or excluding territory as a part of the city;
- e. Any ordinance granting any franchise, permit or other right;
- f. Any ordinance dedicating, naming, establishing, locating, relocating, opening, closing, paving, widening, vacating or establishing grades of any street or public way in the city;
- g. Any ordinance providing for local improvements or relating to special assessments therefor;
- h. Any ordinance dedicating or accepting any plat or subdivision in the city;
- i. Any ordinance approving, authorizing or otherwise relating to any contract, agreement, lease, deed or other instrument;
- j. Any ordinance zoning or rezoning specific property in the city as to zoning classification;
- k. Reserved;
- l. Any temporary or special ordinance;

and all such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length herein. Each of the above-mentioned ordinances shall in no way be repealed except as the same may be in conflict with the provisions of this Code.

(Code 1983, § 1-6)

Sec. 1-7. General penalty; continuing violations.

It shall be unlawful for any person to violate or fail to comply with any provision of this Code and where no specific penalty is provided therefor, the violation of any provision of this Code shall be punished by a fine not exceeding five hundred dollars (\$500.00) or imprisonment for a term not exceeding sixty (60) days, or by both such fine and imprisonment. Each day any violation of any provision of this Code shall continue shall constitute a separate offense.

(Code 1955, § 1-6; Code 1983, § 1-7; Ord. No. 80-16, § 2, 9-10-1980)

Sec. 1-8. Court costs for law enforcement education.

The judge of the court having jurisdiction shall assess, in addition to all other costs, fines and forfeitures permitted by law, the sum of two dollars (\$2.00) as a court cost against every person convicted for a violation of a state penal or criminal statute or convicted for violation of a municipal or county ordinance as may be adopted by reference as a code of the city. All such costs collected shall be deposited to the general fund of the city to be used for the purposes provided in F.S. § 938.15.

(Code 1955, § 1-6; Code 1983, § 1-8; Ord. No. 80-16, § 2, 9-10-1980)

State law reference—Authority to levy court costs for law enforcement education, F.S. § 938.15.

Sec. 1-9. Prior offenses, penalties, contracts or rights not affected by adoption of Code.

(a) Nothing in this Code or the ordinance adopting this Code shall affect any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code.

(b) The adoption of this Code shall not be interpreted as authorizing or permitting any use or the continuance of any use of a structure or premises in violation of any ordinance or resolution in effect on the date of adoption of this Code.

Sec. 1-10. Provisions considered as continuation of existing ordinances.

The provisions appearing in this Code, so far as they are substantially the same as ordinances existing at the time of the effective date of this Code, shall be considered continuations thereof and not as new enactments.

Chapter 2

ADMINISTRATION*

Article I. In General

- Sec. 2-1. Officers to turn receipts over to finance director.
- Sec. 2-2. Manager to appoint boards and commissions secretaries.
- Sec. 2-3. Copies of official documents.
- Sec. 2-3.1. National criminal history screening for city manager.
- Sec. 2-4. Notary fee.
- Sec. 2-5. Approval required to use community buildings, facilities; application.
- Sec. 2-6. Responsibility for damages arising from use of community buildings or facilities.
- Sec. 2-7. Regulations governing use of community buildings and facilities.
- Sec. 2-8. Procedures for organizations, agencies requesting assistance from city.
- Sec. 2-8.1. Defense of civil actions against public officers, employees or agents.
- Sec. 2-8.2. Payment of judgments or settlements against certain public officers or employees.
- Sec. 2-8.3. Provision of insurance in anticipation of judgments or settlements against officers, employees or agents of the city.
- Sec. 2-8.4. Search committee established as option.
- Sec. 2-8.5. Notification of funding sources by community-based organizations.

Article I.5. Code of Ethics; Conflict of Interest

- Sec. 2-9. Applicability and definitions.
- Sec. 2-10. Transacting business with city; appearing before city commission, agencies and/or boards.
- Sec. 2-11. Applicability of F.S. ch. 112.
- Sec. 2-12. Prohibited from benefiting from the sale, purchase or donation of real property.
- Sec. 2-13. Standards of conduct.
- Sec. 2-14. Orientation of elected officials.
- Sec. 2-15. Voting conflicts.
- Sec. 2-16. Financial disclosure.
- Sec. 2-17. Penalties.
- Sec. 2-18. Lobbying.
- Secs. 2-19—2-25. Reserved.

Article II. City Commission

Division 1. Generally

- Sec. 2-26. Compensation.
- Sec. 2-27. Expense account for mayor and each city commissioner.
- Sec. 2-28. Date, time for regular meetings.
- Sec. 2-29. Calling special meetings.
- Sec. 2-30. Special emergency meetings on call of manager.
- Sec. 2-31. Per diem.
- Sec. 2-32. Smoking during meetings.
- Sec. 2-33. Reserved.
- Secs. 2-34—2-40. Reserved.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

OPA-LOCKA CODE

Division 2. Rules of Procedure

- Sec. 2-41. Applicability.
- Sec. 2-42. Governing rules.
- Sec. 2-43. Regular meetings.
- Sec. 2-44. Special meetings.
- Sec. 2-45. Agenda.
- Sec. 2-46. Mayor presiding officer, duties.
- Sec. 2-47. Parliamentary.
- Sec. 2-48. Attorney.
- Sec. 2-49. Call to order.
- Sec. 2-50. Roll call.
- Sec. 2-51. Quorum.
- Sec. 2-52. Order of business.
- Sec. 2-53. Rules of debate.
- Sec. 2-54. Reading minutes.
- Sec. 2-55. Method of voting.
- Sec. 2-56. Addressing the commission.
- Sec. 2-57. Addressing commission, manner, time.
- Sec. 2-58. Decorum.
- Sec. 2-59. Sergeant-at-arms.
- Sec. 2-60. Committees.
- Sec. 2-61. Ordinances, resolutions, motions, contracts.
- Sec. 2-62. Adjournment.
- Sec. 2-63. Clerk, minutes, agenda.
- Sec. 2-64. Suspension of the rules.
- Sec. 2-65. State of the city.
- Sec. 2-66. Appeal procedure before commission.
- Sec. 2-67. Residents' right to know.
- Secs. 2-68—2-81. Reserved.

Division 3. Reserved

Secs. 2-81.1—2-81.7. Reserved.

Article III. Administrative Rules and Procedures

Division 1. Generally

- Sec. 2-82. Applicability generally.
- Sec. 2-83. Special rules or procedures for specific agencies.
- Sec. 2-84. Board, agency members to be residents.
- Sec. 2-85. Family members not to serve on same board or agency.
- Sec. 2-86. Meetings of boards, agencies.
- Sec. 2-87. Vote required for board or agency action.
- Sec. 2-88. Notice of violation permitted.
- Sec. 2-89. Complaints by city officers of violations.
- Sec. 2-90. Licenses, permits nontransferable.
- Sec. 2-91. Form, contents of applications generally.
- Sec. 2-92. Change of address or personnel by applicant.
- Sec. 2-93. Certification of application examination and form.
- Sec. 2-94. Certification of conformity with agency action, zoning, compliance.
- Sec. 2-95. Activities requiring approval by other governmental jurisdictions.
- Sec. 2-96. Refund of fees upon application withdrawal.
- Sec. 2-97. Business tax receipts, permits or certificates; due dates and delinquency; penalties.
- Sec. 2-98. Surety bonds.
- Secs. 2-99—2-108. Reserved.

ADMINISTRATION

Division 2. Removal of Board or Agency Members

- Sec. 2-109. Applicability.
- Sec. 2-110. Affidavit of charges required.
- Sec. 2-111. Referral of affidavit to city commission.
- Sec. 2-112. Action of commission on affidavit.
- Sec. 2-113. Calling, notice of hearing.
- Sec. 2-114. Conduct of hearing.
- Sec. 2-115. Conclusion of testimony.
- Sec. 2-116. Final determination of commission.
- Sec. 2-117. Commissioner bringing charges to abstain.
- Sec. 2-118. Failure to appear at hearing.
- Sec. 2-119. Requests for testimony of city employees.
- Sec. 2-120. Automatic removal for absences.
- Secs. 2-121—2-130. Reserved.

Division 3. Procedures for Public Hearings and Personal Appearances

- Sec. 2-131. Applicability.
- Sec. 2-132. Calling and notice.
- Sec. 2-133. Quorum.
- Sec. 2-134. City commission procedures applicable.
- Sec. 2-135. Certification of applications.
- Sec. 2-136. Reading of applications; display of exhibits.
- Sec. 2-137. Amendments to application.
- Sec. 2-138. Presentation by applicant.
- Sec. 2-139. Comment by officers.
- Sec. 2-140. Public participation.
- Sec. 2-141. Rebuttal by applicant.
- Sec. 2-142. Questioning permitted.
- Sec. 2-143. Final action by agency.
- Sec. 2-144. Action to be recorded; resolution.
- Sec. 2-145. Proceedings to be recorded; transcripts.
- Secs. 2-146—2-190. Reserved.

Article IV. Personnel

Division 1. Generally

- Sec. 2-191. Appointment of director; subordinate personnel.
- Sec. 2-192. First source hiring referral program.
- Secs. 2-193—2-221. Reserved.

Division 2. Severance Pay; Extra Compensation

- Sec. 2-222. Prohibiting severance pay and extra compensation beyond state statutory limits.
- Secs. 2-223—2-245. Reserved.

Division 3. Residency Requirement in Employment

- Sec. 2-246. Purpose.
- Sec. 2-247. Definitions.
- Sec. 2-248. Residency requirements and procedures.
- Sec. 2-249. Enforcement and appeal.
- Sec. 2-250. Waiver.
- Secs. 2-251—2-259. Reserved.

OPA-LOCKA CODE

Division 4. City Holidays

Sec. 2-260. Established.
Secs. 2-261—2-278. Reserved.

Division 5. Pensions and Retirement

Sec. 2-279. Social Security system established.
Sec. 2-280. Manager to execute Social Security agreements.
Sec. 2-281. Withholdings for Social Security.
Sec. 2-282. Appropriations for Social Security.
Sec. 2-283. Records and reports for Social Security.
Sec. 2-284. Employees under prior retirement systems exempt from Social Security.
Sec. 2-285. Social Security Act adopted.
Sec. 2-286. Finance director designated custodian of Social Security funds.
Sec. 2-287. Reserved.

Division 6. Deferred Compensation Program

Subdivision 1. In General

Sec. 2-288. Established.

Subdivision 2. Employees Deferred Compensation Plan Act

Sec. 2-289. Short title.
Sec. 2-290. Definition.
Sec. 2-291. Segregation of funds.
Sec. 2-292. Reserved.
Sec. 2-293. Compensation programs.
Sec. 2-294. Adoption.
Sec. 2-295. Reserved.
Sec. 2-296. Contributions; vested ownership rights; notification; options, enforceability.

Division 7. Reserved

Sec. 2-297. Reserved.

Division 8. Drug Free Workplace

Sec. 2-297.5. Intent.
Sec. 2-297.6. Definitions.
Sec. 2-297.7. Testing.
Sec. 2-297.8. Establishment of rules.
Sec. 2-297.9. Confidentiality.

Article V. Charter Revisions and Amendments

Sec. 2-298. Methods for drafting.
Sec. 2-299. Creation of a Charter review board.
Sec. 2-300. Membership, term, duties and responsibilities.
Secs. 2-301—2-313. Reserved.

Article VI. Purchasing

Division 1. Generally

Sec. 2-314. Legislative intent.
Sec. 2-315. Definitions.

ADMINISTRATION

- Sec. 2-316. Administrative policies; powers, duties and functions of city manager.
- Sec. 2-317. Formal competitive procurement required.
- Sec. 2-318. Exceptions to competitive procurement requirement.
- Sec. 2-319. Contracts for professional services.
- Sec. 2-320. Cone of silence.
- Sec. 2-321. Contract document.
- Sec. 2-322. Sale of city property worth \$250.00 or less.
- Sec. 2-322.1. Execution of contracts by city manager.
- Sec. 2-323. Minority vendor procurement program.
- Sec. 2-324. Protest procedures.
- Sec. 2-325. Verification of services required prior to payment.
- Secs. 2-326—2-334. Reserved.

Division 2. Wages for Laborers and Mechanics

- Sec. 2-335. Specifications to stipulate minimum.
- Sec. 2-336. Provisions required in contract.
- Sec. 2-337. Definitions.
- Sec. 2-338. Computation of overtime.
- Secs. 2-339—2-345. Reserved.

Division 3. Department of Purchasing

- Sec. 2-346. Created.
- Sec. 2-347. Purchasing officer.
- Sec. 2-348. Duties of purchasing officer—Uniform manner of purchasing.
- Sec. 2-349. Duties of purchasing officer—Inventory.
- Sec. 2-350. Duties of purchasing officer—Procedures manual.
- Sec. 2-351. Duties of purchasing officer—Minority vendor procurement program.
- Secs. 2-352—2-360. Reserved.

Division 4. Reserved

- Secs. 2-361—2-377. Reserved.

Article VII. Special Assessments

- Sec. 2-378. Fund created.
- Sec. 2-379. Improvement lien book required.
- Sec. 2-380. Separation of improvement accounts; reports.
- Sec. 2-381. Authority of city commission.
- Secs. 2-382—2-391. Reserved.

Article VIII. Department of Buildings and Licensing

- Sec. 2-392. Created.
- Sec. 2-393. Director, other personnel; appointment, compensation.
- Sec. 2-394. Jurisdiction of department.
- Secs. 2-395—2-400. Reserved.

Article VIII.5. Department of Public Affairs

- Sec. 2-401. Established; responsibilities.
- Sec. 2-402. Appointment of director; provision for salaries and costs.
- Secs. 2-403—2-405. Reserved.

Article IX. Department of Public Works and Utilities

- Sec. 2-406. Created.

OPA-LOCKA CODE

- Sec. 2-407. Appointment, term of director; salaries; additional employees.
- Sec. 2-408. Functions and duties.
- Secs. 2-409—2-420. Reserved.

Article IX.5. Department of Planning and Zoning

- Sec. 2-421. Created; functions and duties.
- Sec. 2-422. Appointment of director; provision for salaries and costs.
- Sec. 2-423. Schedule of fees.
- Secs. 2-424—2-427. Reserved.

Article IX.5.1. Department of Information Technology

- Sec. 2-428. Created; functions and duties.
- Secs. 2-429—2-433. Reserved.

Article X. Housing Authority

Division 1. Generally

- Sec. 2-434. Established.
- Sec. 2-435. Membership; terms; appointments.
- Sec. 2-436. Creation of vacancies.
- Sec. 2-437. Compensation.
- Sec. 2-438. Officers; clerical assistance.
- Sec. 2-439. Executive director designated; duties.
- Sec. 2-440. Funding.
- Sec. 2-441. General functions.
- Sec. 2-442. Powers; limitations; rules and regulations authorized.
- Sec. 2-443. Approval of rules and regulations.
- Sec. 2-444. Applicability of general rules and procedures.
- Sec. 2-445. State Landlord-Tenant Act adopted.
- Sec. 2-446. Authority to receive assignments.
- Sec. 2-447. Authority to take evidence; legal services.
- Sec. 2-448. When meetings held.
- Sec. 2-449. Meetings to be open; notice required.
- Sec. 2-450. Amendments authorized.
- Secs. 2-451—2-460. Reserved.

Division 2. Safety and Sanitation Violations

- Sec. 2-461. Jurisdiction of authority.
- Sec. 2-462. Investigation, report of building official.
- Sec. 2-463. Rule to show cause.
- Sec. 2-464. Hearing.
- Sec. 2-465. Assignment of security deposits.
- Sec. 2-466. Findings of fact; recommendations; orders.
- Sec. 2-467. Duties of building official.
- Sec. 2-468. Appeal.
- Secs. 2-469, 2-470. Reserved.

Article X.5. Housing and Social Services Department

- Sec. 2-471. Department established.
- Sec. 2-472. Qualifying developments pursuant to F.S. § 166.04151(7), under the Live Local Act.

ADMINISTRATION

Article XI. Boards, Commissions and Committees

Division 1. Generally

Secs. 2-473—2-478. Reserved.

Division 2. Community Relations, Recreation and Activities Board

Sec. 2-479. Power and duties.
Sec. 2-480. Membership terms.
Secs. 2-481—2-496. Reserved.

Division 3. Planning and Zoning Board

Sec. 2-497. Created; composition; term of office; qualifications; organization; meetings; records.
Sec. 2-498. Duties and responsibilities.
Secs. 2-499—2-510. Reserved.

Division 4. Education Committee

Sec. 2-511. Created.
Sec. 2-512. Composition.
Secs. 2-513—2-525. Reserved.

Division 5. Civil Service Board

Sec. 2-526. Power and duties.
Sec. 2-527. Membership terms.
Sec. 2-528. Rules of procedure.
Sec. 2-529. Competitive examination in administrative service.
Sec. 2-530. Powers of director of human resources.
Sec. 2-531. Duties of director of human resources as director of civil service board.
Sec. 2-532. Civil service board qualifications.
Sec. 2-533. Quorum of civil service board; investigations; civil service board chairman.
Sec. 2-534. Definitions for classified service and unclassified service.
Sec. 2-535. Director of human resources to prepare and maintain record of service.
Sec. 2-536. Filling of vacancies in higher positions.
Sec. 2-537. Schedule of pay.
Sec. 2-538. Members of civil service board authorized to administer oaths.
Sec. 2-539. Prohibited acts; penalty for violation.
Sec. 2-540. Suspension; reduction in payor class.
Sec. 2-541. Persons exempt from working tests; probationary appointments.
Sec. 2-542. Conflict with collective bargaining agreements.
Sec. 2-543. Reserved.

Division 6. Reserved

Secs. 2-544—2-549. Reserved.

Division 7. Housing Authority and Nuisance Abatement Board

Sec. 2-549.1. Established.
Sec. 2-550. Power and duties.
Sec. 2-551. Membership terms.
Sec. 2-552. Definitions.
Sec. 2-553. Legislative findings and intent.
Sec. 2-554. Operating procedures.
Sec. 2-555. Conduct of hearings.

OPA-LOCKA CODE

- Sec. 2-556. Recording of orders, fines and costs; enforcement of orders.
- Sec. 2-556.1. Appeals.

Division 8. Reserved

Division 9. Reserved

Secs. 2-560—2-570. Reserved.

Division 10. Code Enforcement Board

Subdivision 1. Reserved

Secs. 2-570.1—2-570.24. Reserved.

Subdivision 2. Code Enforcement: Special Magistrate Dispute Resolution

- Sec. 2-570.25. Purpose.
- Sec. 2-570.26. Jurisdiction.
- Sec. 2-570.27. General provisions for code enforcement violations and dispute resolution procedures.
- Sec. 2-570.28. Special magistrate selection.
- Sec. 2-570.29. Definitions.
- Sec. 2-570.30. Citation and enforcement procedures; supplemental.
- Sec. 2-570.31. Hearing procedures before special magistrate.
- Sec. 2-570.32. Conduct of hearing.
- Sec. 2-570.33. Schedule of civil penalties.
- Secs. 2-570.34—2-570.43. Reserved.

Subdivision 3. Private Property Rights and Dispute Resolution Procedures

- Sec. 2-570.44. General provisions.
- Sec. 2-570.45. Special magistrate selection.
- Sec. 2-570.46. Conduct of hearing.
- Sec. 2-570.47. Hearing procedures.
- Sec. 2-570.48. Special magistrate recommendation.
- Sec. 2-570.49. Response to special magistrate's recommendation.
- Sec. 2-570.50. Available use or ripeness decision.
- Sec. 2-570.51. Delivery of notice.
- Sec. 2-570.52. Time limit.
- Secs. 2-570.53—2-570.60. Reserved.

Division 11. Reserved

Division 12. Accountability Board

- Sec. 2-570.66. Purpose.
- Sec. 2-570.67. Policy.
- Sec. 2-570.68. Scope.
- Sec. 2-570.69. Objectives.
- Sec. 2-570.70. Timeliness standards.
- Sec. 2-570.71. Board membership.
- Sec. 2-570.72. Definitions/responsibilities.
- Sec. 2-570.73. Procedures.
- Sec. 2-570.74. Cases involving noncity personnel.
- Sec. 2-570.75. Evaluation.
- Secs. 2-570.76—2-570.80. Reserved.

ADMINISTRATION

Division 13. Historic Environmental Preservation Board

- Sec. 2-570.81. Created; composition; term of office; qualifications; organization; meetings; records.
- Sec. 2-570.82. Duties and responsibilities.
- Sec. 2-570.83. Scope of regulations.
- Sec. 2-570.84. Definitions.
- Sec. 2-570.85. Vested power, authority and jurisdiction.
- Sec. 2-570.86. Rules and regulations.
- Sec. 2-570.87. Designation process and procedure.
- Sec. 2-570.88. Maintenance of designated properties.
- Sec. 2-570.89. Certificates to dig.
- Sec. 2-570.90. Appeals.
- Sec. 2-570.91. Penalties.
- Sec. 2-570.92. Incentives.

Article XII. Improvements

Division 1. In General

Secs. 2-571—2-590. Reserved.

Division 2. Safe Neighborhood Improvement Districts

- Sec. 2-591. Districts authorized.
- Sec. 2-592. Method of establishment.
- Secs. 2-593—2-600. Reserved.

Division 3. East-West Neighborhood Improvement District

- Sec. 2-601. Created.
- Sec. 2-602. Title.
- Sec. 2-603. Authority to apply for and receive grants.
- Sec. 2-604. Utilization of tax or special assessment.
- Sec. 2-605. Designation of board of directors.
- Sec. 2-606. Establishment of advisory board.
- Secs. 2-607—2-639. Reserved.

Article XIII. Finance

Division 1. In General

Secs. 2-640—2-649. Reserved.

Division 2. Financial Integrity

- Sec. 2-650. Financial integrity principles.
- Sec. 2-651. Financial integrity principles; adopted.
- Sec. 2-652. Promoting operating efficiencies.

Article XIV. Schedule of Fees

- Sec. 2-653. Permit fees.
- Sec. 2-654. Business tax receipts—Schedule of fees.
- Sec. 2-655. Community development fees.
- Sec. 2-656. Public works fees.
- Sec. 2-657. Parks and recreation fees.
- Sec. 2-658. Miscellaneous fees.

ARTICLE I. IN GENERAL**Sec. 2-1. Officers to turn receipts over to finance director.**

Unless otherwise specifically provided by law, all fees and other monies received by any officer or employee of the city in the city's behalf shall be promptly paid over to the director of finance.
(Code 1983, § 2-1)

Sec. 2-2. Manager to appoint boards and commissions secretaries.

Except as otherwise provided by this Code with reference to particular boards and commissions, the city manager shall appoint and designate secretaries of boards and commissions of the city.
(Code 1983, § 2-2)

Sec. 2-3. Copies of official documents.

Except as otherwise provided, copies of any official document may be obtained from the city clerk for a charge fifteen cents (\$0.15) per page; except that this charge shall not be assessed against city officers, board or agency members.
(Code 1955, § 2-87; Code 1983, § 2-3)

Sec. 2-3.1. National criminal history screening for city manager.

(a) Pursuant to F.S. § 166.0442, as such may be amended from time to time, state and national criminal history background checks shall be required for the city manager.

(b) Each such person shall be fingerprinted who is applying for city manager or continuing employment or appointment as city manager. The city department of human resources, its successor department, and other applicable departments shall conduct such state and national criminal history background checks.

(c) Fingerprints obtained pursuant to the authority of this section shall be submitted to the state department of law enforcement for a state criminal history records check and also to the Federal Bureau of Investigation for a national criminal history records check. The information obtained from each respective criminal history record check conducted pursuant to this section shall be used to determine a person's eligibility

for employment or appointment and to determine a person's eligibility for continued employment and appointment.
(Code 1983, § 2-3.1; Ord. No. 17-10, §§ 2, 3, 8-2-2017)

Sec. 2-4. Notary fee.

In addition to any other fees or charges prescribed or required by this Code, any other ordinance, or by law, there shall be a charge of one dollar and fifty cents (\$1.50) for the notarizing of any document by any city officer or employee, except that this charge shall not be assessed against city officers, board or agency members.
(Code 1983, § 2-4)

Sec. 2-5. Approval required to use community buildings, facilities; application.

The use of community buildings, or other facilities of the city shall be permitted by individuals, civic or other quasi-public organizations without commercial purpose as permitted by the manager without rent or other payment. Individuals, firms or corporations may use buildings or facilities designated by the manager for commercial purposes for such rent as may be determined by the city manager and approved by the city commission. The following are minimum requirements in addition to such other requirements as may be requested by the city manager:

- (a) Written application must be made to the city manager and if by an organization, attested by its secretary, for the use of the facilities on a specific date.
- (b) The application shall state the purpose for which the building or other facilities are to be used, whether or not admission fees or any other charges are to be made.

(Code 1955, § 2-1; Code 1983, § 2-5; Ord. No. 80-15, § 1, 9-10-1980)

Sec. 2-6. Responsibility for damages arising from use of community buildings or facilities.

The person or organization using community buildings or other facilities shall be responsible for any and all damages that might occur during the use of the

premises, either to the premises or to a person using the same and, in addition to all other requirements provided in this Code, such person or organization shall:

- (1) Indemnify and hold harmless the city from any and all liability whatsoever in the use of the buildings by any such person or organization;
- (2) Provide a performance bond in an amount established by the city manager conditioned on restoring the premises to the same condition as existed prior to use and for faithful performance of all regulatory provisions of this Code applicable to use of buildings and facilities.

(Code 1955, § 2-2; Code 1983, § 2-6; Ord. No. 80-15, § 2, 9-10-1980)

Sec. 2-7. Regulations governing use of community buildings and facilities.

The use of the buildings or other facilities shall be subject to the following regulations:

- (a) The city manager or his designee will open up the building for the use of the buildings, but the applicant is responsible for extinguishing lights and locking up the building and placing furniture and equipment back in place as found.
- (b) No bicycle, roller skates or other vehicles will be allowed in any public building.
- (c) Except as provided in F.S. § 413.08, no dogs or other animals are allowed on the premises.
- (d) The applicant assumes full responsibility for the proper use of city furnishings and other facilities.
- (e) No applications will be accepted from minors except through a responsible chaperone.
- (f) No improper, illegal or offensive use shall be permitted.

(Code 1955, § 2-3; Code 1983, § 2-7; Ord. No. 80-15, § 3, 9-10-1980)

Sec. 2-8. Procedures for organizations, agencies requesting assistance from city.

- (a) All organizations, agencies or governmental entities requesting monies or other assistance from the city for purposes beneficial to the citizens of the city

shall, prior to making application for said request to the city commission, submit to the city manager the following:

- (1) A true copy of the charter, bylaws, governmental authority, federal tax-exempt number and other information setting forth the nature of the organization, agency or governmental entity making the request.
- (2) A statement as to the nature of the request and the beneficial services to be supplied to the citizens of the city.
- (3) Fiscal information relating to the amount of the request, the current financial statement of the applicant, the amount of said monies to be expended within the city limits or for the benefit of the citizens of the city.
- (4) A statement showing all sources of revenue during the past two (2) years for the project, including the total amount of support from other jurisdictions, whether fiscal, in kind or through use of tax exemption or other indirect support.
- (5) The names, addresses and qualifications of all directors, officers and agents of the organization, agency or governmental entity.
- (6) The city manager may require such additional information or exhibits as may be necessary to inform the city commission as to the valid public purpose to be served by said request.

(b) All applications for support from the city, whether fiscal or in kind, shall be filed with the city manager no later than the first Tuesday of June of each calendar year.

(c) The city manager shall, prior to the preparation of the annual budget, submit all applications for support to the city commission for consideration. Those organizations, agencies or governmental entities receiving approval from the city commission for support shall be included in the annual budget of the city in such amounts as may be authorized by the city commission.

(Code 1955, § 2-11.3; Code 1983, § 2-8)

Sec. 2-8.1. Defense of civil actions against public officers, employees or agents.

The policy of the city is to provide an attorney to defend any civil action arising from a complaint for damages or injury suffered as a result of any act or omission of action of any of its officers or former officers, employees or former employees, or agents for an act or omission arising out of and in the scope of his or her employment or function, unless, in the case of a tort action, the officer, employee, or agent acted in bad faith, with malicious purpose, or in a manner exhibiting wanton and willful disregard of human rights, safety, or property.

(Code 1983, § 2-8.1; Ord. No. 90-21, § 1, 11-14-1990)

Sec. 2-8.2. Payment of judgments or settlements against certain public officers or employees.

(1) The city shall expend available funds to pay:

- (a) Any final judgment, including damages, costs, and attorney fees, arising from a complaint for damages or injury suffered as a result of any act or omission of action of any officer or employee in a civil or civil rights lawsuit described in F.S. § 111.07. If the civil action arises under F.S. § 768.28 as a tort claim, the limitations and provisions of F.S. § 768.28 governing payment shall apply. If the action is a civil rights action arising under 42 USC 1983, or similar federal statutes, payments for the full amount of the judgment may be made unless the officer, employee, or agent has been determined in the final judgment to have caused the harm intentionally.
- (b) Any compromise or settlement of any claim or litigation as described in subsection (a) of this section, subject to the limitations set forth in subsection (a) of this section.
- (c) Any reimbursement required under F.S. § 111.07 for court costs and reasonable attorney fees when the city has failed to provide an attorney and the defendant prevails.

(2) For the purpose of this section, the term "final judgment" means a judgment upon completion of any appellate proceedings.

(Code 1983, § 2-8.2; Ord. No. 90-21, § 2, 11-14-1990)

Sec. 2-8.3. Provision of insurance in anticipation of judgments or settlements against officers, employees or agents of the city.

The city manager, on behalf of the city and its employees and officers, is authorized to enter into risk management programs, or to purchase liability insurance for whatever coverage it may choose or to have any combination thereof in anticipation of any judgment or settlement which its officers, employees, or agents may be liable to pay pursuant to a civil or civil rights lawsuit described in F.S. § 111.07.

(Code 1983, § 2-8.3; Ord. No. 90-21, § 3, 11-14-1990)

Sec. 2-8.4. Search committee established as option.

(a) There may be established a five-member search committee for the purpose of soliciting, screening and recommending, when applicable, candidates for the positions of city manager, city attorney and city clerk.

(b) The committee shall mean the city commission, or any other such committee appointed by the city commission to solicit, screen and recommend candidates for the positions of city manager, city attorney and city clerk. The committee shall elect a chairperson and determine its meeting dates and times. The committee shall notice and conduct its meetings in accordance with the city's Charter and Code, and applicable federal, state and local laws. If the city commission decides to appoint a search committee, other than itself to serve, the names of the appointees of the mayor and each commissioner shall be submitted to the city clerk not later than ten (10) days of the position becoming vacant.

(c) If a search is conducted, the search committee shall make every effort to conduct a thorough local and/or nationwide search for candidates for the positions of city manager, city attorney and city clerk.

(d) In conducting its search for candidates, the committee shall use, at a minimum, the qualifications for the positions contained in articles I, III and V, respectively, of the city Charter as the criteria for evaluating each candidate.

(e) The committee shall convene and conduct its search and make a recommendation, if applicable, of no more than five (5) candidates for the vacant position.

(f) The search committee shall dissolve automatically upon the appointment by the city commission of a candidate to the vacant position.

(g) Nothing set forth in this section shall prevent the city commission from directly appointing a candidate by a majority vote of the city commission for the positions of city manager, city clerk and city attorney. (Code 1983, § 2-8.4; Ord. No. 02-6, §§ 2—7, 4-10-2002; Ord. No. 09-15, § 2, 9-9-2009; Ord. No. 2025-18, § 2, 6-23-2025)

Sec. 2-8.5. Notification of funding sources by community-based organizations.

All community-based organizations shall be required to notify the city manager by letter on October 1, annually, its source of funding (federal, state, or county), including the amount thereof and the nature and scope of services to be rendered to the community. (Code 1983, § 2-8.5; Ord. No. 08-01, § 2, 1-9-2008)

ARTICLE I.5. CODE OF ETHICS; CONFLICT OF INTEREST*

Sec. 2-9. Applicability and definitions.

(a) Unless otherwise indicated, this article shall be applicable to and binding upon every officer, official and employee of the city, including every member of any board, commission or agency of the city, including those normally considered autonomous and/or semiautonomous. Other than the city attorney, this article shall not be applicable to attorneys who represent the city, either in a ceremonial or other capacity.

(b) References in this article to the Florida Statutes (F.S.) shall be interpreted as meaning state statutes, as amended from time to time.

Business entity shall have the meaning ascribed in F.S. § 112.312(5).

Candidate shall have the meaning ascribed in F.S. § 112.312(6).

Conflict or *conflict of interest* shall have the meaning ascribed in F.S. § 112.312(8).

Gift shall have the meaning ascribed in F.S. § 112.312(12).

*State law reference—State code of ethics, F.S. § 112.311 et seq.

Public officer shall have the meaning ascribed in F.S. § 112.313(1). In addition, the term "public officers within the city" means heads of departments and persons in supervisory positions.

Relative shall have the meaning ascribed in F.S. § 112.312(21).
(Code 1983, § 2-9; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-10. Transacting business with city; appearing before city commission, agencies and/or boards.

(a) No person included in section 2-9 shall enter into any contract or transact any business with the city or any person or agency acting for the city. Nor shall such person appear in representation of any third party before the city commission or other city board, commission or agency. Any such contract, agreement or appearance entered into in violation of this section shall render any transaction resulting from the same voidable.

(b) The term "person" appearing in subsection (a) of this section shall, for purposes of this section, include officers, officials and employees, as set forth in section 2-9, and the following family members of such person: spouse, son, daughter, parent, brother or sister.

(c) The prohibition upon any activity which is set forth in subsection (a) of this section shall remain in effect for a period of two (2) years after the officer, official, or employee has left city service or terminated city employment.
(Code 1983, § 2-10; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-11. Applicability of F.S. ch. 112.

Nothing in the city code of ethics for public officers shall be interpreted or construed as conflicting with F.S. ch. 112, pt. III (F.S. § 112.311 et seq.), which is also applicable to public officers of the city. This article is intended to supplement state law provisions governing ethics in government.
(Code 1983, § 2-11; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-12. Prohibited from benefiting from the sale, purchase or donation of real property.

No city commissioner, officer or employee or member of a city board/committee of the city shall benefit from the sale, purchase or donation of real property owned or formally owned by the city. This section shall

include, but not be limited to, the following enumerated elective and appointive officers or employees of the city:

Mayor;
 City commission;
 City attorney;
 City clerk;
 City manager;
 Assistant city manager;
 Finance director;
 Department and division heads;
 City planner;

or firms providing such services to the city.
 (Code 1983, § 2-12; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-13. Standards of conduct.

In furtherance of the public trust assumed by public officers of the city upon their election or appointment to public office or employment, the following standards of conduct shall be applicable to public officers of the city:

- (a) Core values. Each public officer pledges his or her commitment to the core values of the city, as follows:

- (1) *Leadership by example.* A public officer will display leadership by:

- a. Subscribing to the city's ethics for public officers;
- b. Promoting a sense of community, community values, and community spirit and by embracing diversity within the community, while focusing on the importance and values of family;
- c. Practicing a "can do" attitude rather than an attitude of negativity and division;
- d. Developing vision or focus on the future, and supporting the achievement of vision;
- e. Being responsive;
- f. Having fun and enjoying one's role as a public officer of the city;

- g. Recognizing and fostering leadership throughout the city government and the residential and business communities of the city;
- h. Balancing statesmanship and political and professional goals;
- i. Maintaining a positive image, while working towards the best interests of the city and its citizens; and
- j. Treat everyone with respect and courtesy, even during times when there is disagreement.

- (2) *Empowerment (mindset/orientation) attitude.* A public officer will display an empowerment attitude by:

- a. Encouraging citizens to be active, responsible partners in city government that function with public officers of the city to achieve a shared vision;
- b. Empowering city administration to continuously improve the quality of and the services provided by city government;
- c. Encouraging entrepreneurship by governing the city as a successful, ethical business model; and
- d. Maximizing revenue for the city.

- (3) *Customer focus and involvement (volunteerism/action).* A public officer will encourage and promote customer focus and involvement by:

- a. Encouraging citizens and residents to be involved in government and bridging the gap between city government and community;
- b. Promoting specific avenues by which citizen input is gathered and information is disseminated by the city;
- c. Encouraging citizen involvement in decision-making; and
- d. Supporting data-based decision-making.

- (4) *Continuous improvement.* A public officer will work towards continuous improvement through:
- a. Self-improvement through education, personal growth, and personal learning;
 - b. Supporting process improvement in city systems and key process improvements through knowledge-based decision-making;
 - c. Supporting and encouraging personal wellness and professional development throughout city government;
 - d. Supporting innovation through technology; and
 - e. Promoting effective use of customer feedback to improve quality of government and the providing of government services.
- (b) Each public officer shall be dedicated to the concepts of effective and democratic local government, respecting the principals and spirit of representative democracy, and setting a positive example of good citizenship by scrupulously observing the letter and spirit of applicable laws, rules, and regulations.
- (c) Each public officer shall pledge himself or herself to affirm the dignity and worth of the services rendered by city government and to maintain a constructive, creative, and practical attitude towards urban affairs incorporating a deep sense of social responsibility as a public servant.
- (d) Each public officer shall be dedicated to the highest ideals of honor and integrity in all public and personal relationships and shall conduct themselves in a manner which maintains and promotes public confidence in city government.
- (e) Each public officer shall recognize that the main function of local government, at all times, is to serve and promote the best interests of the public.
- (f) Each public officer pledges to keep the community informed on the affairs of city government, emphasize and practice friendly and courteous service to the public, and seek to improve the quality and image of public service.
- (g) Each public officer pledges that he or she will not misuse the office or position, will not participate in debate on any matter which may come before the city commission for decision, and which may benefit a family member, client, or business acquaintance, and will not seek or accept any personal profit or gain, or unwarranted favor or privilege for himself or herself, or any relative.
- (h) Each public officer pledges not to improperly influence or attempt to influence other public officers.
- (i) A public officer shall not engage in, solicit, negotiate for, or promise to accept private employment or render services for private interests or conduct a private business when such employment, service, or business creates a conflict with the proper discharge of his or her official duties as a public officer.
- (j) A public officer shall not invest or hold any investment, directly or indirectly, in any financial business, commercial, or other private transaction that creates a conflict with one's official duties as a public officer.
- (k) Florida's Gift Law, as amended from time to time and as codified in F.S. § 112.3148 is hereby incorporated herein by reference. A public officer shall not directly or indirectly solicit, accept, or receive any gift, whether it be money, services, loan, travel, entertainment, hospitality, promise, or any other form if:
- (1) It could be reasonably inferred or expected that the gift was intended to influence the performance of a public official's duties; or
 - (2) The gift was intended to serve as an inducement for an improper action or as a reward not otherwise permitted under state law.
- (l) Each public officer agrees to be honest, fair, and respectful to others in performing his or her duties as a public officer and agrees to refrain from and avoid conduct creating an appearance of impropriety or which is other-

wise unbefitting a public officer, including, but not limited to, making false accusations or personal attacks against another public officer, or behaving in a rancorous or contentious manner.

- (m) A public officer shall not use the provisions of this code of ethics to further frivolous claims against any other public officer. Frivolous claims shall be those forwarded with knowledge that the claim contains one (1) or more false allegations or those made with reckless disregard as to whether the complaint or claim contains false allegations of fact material to a violation of this code of ethics.
- (n) Each public officer pledges to uphold and adhere to the provisions of the Charter of the city.
- (o) A public officer shall not knowingly violate any federal, state, or local law, rule or regulation.
- (p) When applicable, each public officer serving on the city commission or an advisory board of the city, when appearing before any other governmental body shall inform the recipient of the oral communication that the issue being presented is not the official position taken by the city commission or an advisory board and indicate that his or her appearance is not authorized by the city commission.
- (q) A public officer shall not disclose confidential information acquired in one's capacity as a public officer to others or use such confidential information to further one's personal interests.
- (r) No public officer shall undermine the duties, responsibilities, and role of the city administrator, as provided in the Charter and the Code of Ordinances and as assigned by the city commission, from time to time.
- (s) Each public officer shall disclose all personal relationships in any instance whether there could be a conflict of interest or an appearance of conflict.
- (t) Nothing herein shall be construed to apply to the solicitation or acceptance of contributions

to the campaign of an announced candidate for elective city office, as governed by F.S. ch. 106.

- (u) No public officer; however, shall be prohibited from giving or receiving:
 - (1) An award publicly presented in recognition of public service;
 - (2) Commercially reasonable loans made in the ordinary course of a lender's business; or
 - (3) Reasonable entertainment, meals, or refreshments furnished in connection with public events, appearances, or ceremonies related to official duties or city government business.
- (v) No public officer shall be prohibited from making an inquiry for information or providing assistance on behalf of a citizen or interested person if no fee, reward, or other thing of value is promised to, given to, or accepted by the public officer or a relative of a public officer, whether directly or indirectly, in return therefor. However, no public officer shall "influence peddle" or use his or her position as a public officer to gain favors or benefits inconsistent with city policy or applicable law on behalf of any citizen or other person.
- (w) A public official may not appoint, employ, promote, or advance, or advocate for appointment, employment, promotion, or advancement, in or to a position in the department in which the person is serving or over which the person exercises jurisdiction or control, any individual who is a relative of the public official. An individual may not be appointed, employed, promoted, or advanced in or to a position in a department if such appointment, employment, promotion, or advancement has been advocated by a public official, serving in or exercising jurisdiction or control over the department, who is a relative of the individual or if such appointment, employment, promotion, or advancement is made by a collegial body of which a relative of the individual is a member.

(Code 1983, § 2-13; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-14. Orientation of elected officials.

(a) Newly elected members of the city commission shall, within twelve (12) months of the administration of the oath of office, attend and successfully complete the Institute for Elected Municipal Officials (EMO), Florida League of Cities Orientation or similar program deemed qualified by the city commission.

(b) Upon request, newly elected members of the city commission shall receive a structural orientation on city government from the city administrator and the city attorney within ten (10) business days of the administration of the oath of office.

(c) All public officers of the city and candidates for city elective office, upon appointment, election, or qualifying, are strongly encouraged to submit a signed statement to be provided by the city clerk acknowledging that they have received, read, understand, and agree to be bound by the city code of ethics.
(Code 1983, § 2-14; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-15. Voting conflicts.

No commissioner shall vote in an official capacity upon any measure which would inure to his or her special private gain or loss; which he or she knows would inure to the special private gain or loss of any principal by whom he or she is retained or to the parent organization or subsidiary of a corporate principal by which he or she is retained, other than an agency as defined in F.S. § 112.312(2); or which he or she knows would inure to the special private gain or loss of a relative or business associate of the public officer. Such public officer shall, prior to the vote being taken, publicly state the nature of the officer's interest in the matter from which he or she is abstaining from voting and, within fifteen (15) days after the vote occurs, disclose the nature of his or her interest as a public record in a memorandum filed with the person responsible for recording the minutes of the meeting, who shall incorporate the memorandum in the minutes.
(Code 1983, § 2-15; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-16. Financial disclosure.

With regard to financial disclosure, the mayor and city commission as well as all other persons listed in section 2-12 above, shall comply with state law and the of Miami-Dade County, Florida, where applicable.
(Code 1983, § 2-16; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-17. Penalties.

Violation of any of the provisions of this article may constitute grounds for suspension, removal from office or termination from employment, pursuant to applicable statutory and constitutional procedures. Any advisory board member who violates any of the provisions of this article may be removed from any and all boards pursuant to applicable statutes and local ordinances. Any elected public officer that violates the city code of ethics shall also be subject to censure by a four-fifths ($\frac{4}{5}$) vote of the city commission.
(Code 1983, § 2-17; Ord. No. 09-01, § 2, 1-14-2009)

Sec. 2-18. Lobbying.

(a) As used in this section, the term "city personnel" means those city officers and employees specified in section 2-12.

(b) The term "lobbyist" means all persons, firms or corporations employed or retained by a principal who seeks to encourage the passage, defeat, or modifications of ordinance, resolution, action or decision of the city commission; any action, decision, recommendation of any city board or committee; or any action, decision or recommendation of city personnel during the time period of the entire decision-making process on such action, decision or recommendation which foreseeably will be heard or reviewed by the city commission, or a city board or committee. The term "lobbyist" specifically includes the principal, as described above, as well as any agent, officer or employee of a principal, regardless of whether such lobbying activities fall within the normal scope of employment of such agent, officer or employee.

(c) All lobbyists shall, before engaging in any lobbying activities, register with the city clerk. Every person required to so register shall:

(d) Register on forms prepared by the city clerk;

(e) Pay a registration fee of three hundred dollars (\$300.00); and

(f) State under oath his or her name, business address, the name and business address of each person or entity which has employed said registrant to lobby, and the specific issues on which he or she has been employed to lobby.

If the lobbyist represents a corporation, partnership or trust, the chief officer, partner or beneficiary shall also

be identified. Without limiting the foregoing, the lobbyist shall also identify all persons holding, directly or indirectly, a five (5) percent or more ownership interest in such corporation, partnership, or trust. Separate registration shall be required for each specific issue. Such issue shall be described with as much detail as is practical, including, but not limited to, a specific description (where applicable) of a pending request for a proposal, invitation to bid, public hearing number, etc. The city clerk shall reject any registration statement which does not provide a description of the specific issue on which such lobbyist has been employed to lobby. Registration of all lobbyists shall be required prior to October 1 of every year, and each person who withdraws as a lobbyist for a particular client shall file an appropriate notice of withdrawal. Every registrant shall be required to state the extent of any business or professional relationship with any current person described in subsection (b) of this section. The registration fees required by this subsection shall be deposited by the city clerk into a separate account and shall be expended only to cover the costs incurred in administering the provisions hereof. There shall be no fee required for filing a notice of withdrawal and the city commission may, in its discretion, waive the registration fee upon a finding of financial hardship.

(g) Any public officer, employee or appointed official who only appears in his or her official capacity shall not be required to register as a lobbyist.

(h) Any person who only appears in his or her individual capacity for the purpose of self-representation without compensation or reimbursement, whether direct, indirect or contingent, to express support of or opposition to any item, shall not be required to register as a lobbyist.

(i) Any person who only appears as a representative of a not for profit corporation or entity (such as a charitable organization, a neighborhood association, or a trade association or trade union), without special compensation or reimbursement for the appearance, whether direct, indirect or contingent, to express support of or opposition to any item, shall register with the city clerk as required by this subsection, but, upon request, shall not be required to pay any registration fees.

(j) Lobbyists shall submit to the city clerk a signed statement under oath listing all lobbying expenditures for the preceding calendar year. A statement shall be filed even if there have been no expenditures during the reporting period.

(k) The city clerk shall publish logs on a quarterly and an annual basis reflecting the lobbyist registrations which have been filed in accordance with this section and such information shall be included within commission meeting material.

(l) The city shall investigate any person engaged in lobbying activities to the city commission on a standard form. The city attorney shall report the results of the investigation to the city commission. The city commission may reprimand, censure, suspend or prohibit each person from lobbying before the city commission or any committee, board or personnel of the city; suspension or prohibition may not exceed a period of two (2) years. Notwithstanding any other provision of the conflict of interest and code of ethics ordinance, or the city Code of Ordinances, the penalties provided in this subsection shall be the exclusive penalties imposed for violations of this section.

(m) All members of the city commission, and all city personnel, shall be diligent to ascertain whether persons required to register pursuant to this section have complied. Commissioners or city personnel may not knowingly permit a person who is not registered pursuant to this section to lobby the commissioners, or the relevant committee, board or city personnel.

(n) The validity of any action or determination of the city commission or city personnel, board or committee shall not be affected by the failure of any person to comply with the provisions of this section.
(Code 1983, § 2-18; Ord. No. 09-01, § 2, 1-14-2009)

Secs. 2-19—2-25. Reserved.

ARTICLE II. CITY COMMISSION

DIVISION 1. GENERALLY

Sec. 2-26. Compensation.

Pursuant to the provisions of section 7 of the Charter, there is hereby prescribed as the compensation to be received by the mayor the sum of five hundred fifty dollars (\$550.00) per month and to be received by each member of the city commission the sum of five hundred fifty dollars (\$550.00) per month as salary for their respective offices; provided, however, that no individual commissioner nor the mayor shall receive com-

pensation from the city in excess of the amounts set forth herein for any month pursuant to the provisions of this section.

(Code 1955, § 2-10; Code 1983, § 2-26; Ord. No. 81-12, § 1, 5-13-1981; Ord. No. 82-20, § 1, 12-8-1982)

Sec. 2-27. Expense account for mayor and each city commissioner.

The mayor and each city commissioner, in addition to the compensation pursuant to the Charter, and in addition to per diem and travelling expenses paid pursuant to F.S. § 112.061, may receive reimbursement of monies expended during each monthly period, not to exceed the sum of three hundred dollars (\$300.00) per month, for monies paid for publications (subscriptions), dues, food and drink for dignitaries and public officials, cleaning, gasoline, transportation, communications and other similar and related expenses incurred in the performance of the duties of mayor and commissioner, provided:

- (a) A voucher, in a form prepared by the city manager, is executed by the mayor or commissioner submitting said voucher setting forth the nature of the expense and the purpose therefor.
- (b) Receipts are attached, if available, or estimates of gasoline based on mileage.

(Code 1955, § 2-11; Code 1983, § 2-27; Ord. No. 01-4, § 2, 3-28-2001; Ord. No. 2023-19, § 2(2-27), 10-11-2023)

Sec. 2-28. Date, time for regular meetings.

Regular meeting of the commission shall begin at 6:00 p.m. on the second and fourth Wednesday of each month. In the event such day falls on a legal or national holiday, then the time of such regular meeting shall be determined by a majority of the commission.

(Code 1955, § 2-8; Code 1983, § 2-28; Ord. No. 84-15, § 1, 8-8-1984; Ord. No. 2025-15, § 2, 5-14-2025)

Sec. 2-29. Calling special meetings.

Special fact-finding meetings, trips or gatherings for ceremonial or investigative purposes within or without the boundaries of the city may be proposed by any member of the commission or by the city manager by giving each commissioner written notice at least one (1) hour prior to the time of the meeting. Such notice, of which receipt must be given by each commissioner, shall state the purposes of the meeting and only busi-

ness enumerated in the notice shall be transacted at such meeting. A true copy of the notice shall be posted at locations required by section 2-44(b). No vote or other formal action shall be taken by the commission at any special meeting called under this section. No special meeting called pursuant to this section shall be held unless a majority of the commission signifies its approval in writing. Minutes shall be kept and filed with the city clerk. Any member of the media who shall request notification of any meeting hereunder by filing a written request before the city clerk shall be notified by the city clerk of the call of such meeting.

(Code 1955, § 2-8; Code 1983, § 2-29; Ord. No. 84-8, § 1, 5-24-1984)

Sec. 2-30. Special emergency meetings on call of manager.

(a) In the event the city manager declares that a state of public unrest or emergency exists within the city, such declaration shall be served upon each of the members of the city commission by telephonic notice or by written notice. Upon receipt of said notice, each commissioner shall appear at the city commission room within one (1) hour, and the commission shall convene itself in a special meeting for the purpose of passing such ordinances, motions or resolutions as may be necessary to deal with the matter of public unrest or declared emergency.

(b) The special meeting may be adjourned or recessed from time to time, subject to being reconvened by notice from the city manager or any individual commissioner by notice as set forth above. The commission may require the presence of any city official at said meeting as they may at their discretion, deem necessary and proper. Failure to appear at said special meeting pursuant to notice, as provided, shall be excused only in the event of disabling illness, failure to receive notice, impossibility of attendance by virtue of being absent from the city, or other reason as may be approved by the remaining members of the commission.

(Code 1955, § 2-11.1; Code 1983, § 2-30)

Sec. 2-31. Per diem.

City travelers for Class A and Class B travel, as defined in F.S. § 112.061, who travel overnight, shall be

entitled to the per diem, as set forth in F.S. § 112.061, with the exception that the amounts set forth in F.S. § 112.061(6)(b) shall be as follows:

1. Breakfast: twenty dollars (\$20.00).
 2. Lunch: thirty dollars (\$30.00).
 3. Dinner: fifty dollars (\$50.00).
- (Code 1983, § 2-31; Ord. No. 05-19, § 2, 11-16-2005; Ord. No. 2023-09, § 2(2-31), 5-24-2023)

Sec. 2-32. Smoking during meetings.

See F.S. § 386.201 et seq.
(Code 1955, § 2-11.2; Code 1983, § 2-32)

Sec. 2-33. Reserved.

Secs. 2-34—2-40. Reserved.

DIVISION 2. RULES OF PROCEDURE

Sec. 2-41. Applicability.

The following rules in this division shall govern all regular meetings of the city commission and all other meetings if required by majority vote of the commission.
(Code 1955, § 2-8; Code 1983, § 2-41; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-42. Governing rules.

Except as may be provided in the Charter or by these rules, questions or order, the methods of organization and the conduct of business of the commission shall be governed by Robert's Rules of Order as revised in all cases to which they are applicable.
(Code 1955, § 2-8; Code 1983, § 2-42; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-43. Regular meetings.

All regular meetings shall be held in the city hall or such place or times, as may be approved by resolution or motion adopted at a regular meeting by a majority of the commission members, and shall be open to the public and all news media.
(Code 1955, § 2-8; Code 1983, § 2-43; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-44. Special meetings.

(a) Special meetings shall be called as provided in Charter § 4.1. The city clerk shall within one (1) hour thereafter, give both a verbal and written notice upon each member of the commission stating the date, hour and place of the meeting and purpose for which such meeting is called. No other business shall be transacted at the meeting.

(b) Notice of any special meeting of the commission shall be posted by the city clerk simultaneously with service of notice on the city commissioners as follows:

- (1) Bulletin board located outside city hall;
- (2) Any other location designated by the city commission by resolution;
- (3) If, after reasonable diligence, it was impossible to give notices to each commissioner, such failure shall not affect the legality of the meeting if a quorum attends. The minutes of each special meeting shall show the manner and method by which notice of such special or emergency meeting was given to each member of the commission or shall show a waiver of notice. All special meetings shall be open to the public and shall be held and conducted in the city hall or other suitable city building. Minutes thereof shall be kept by the city clerk.
(Code 1955, § 2-8; Code 1983, § 2-44; Ord. No. 81-3, § 1, 1-14-1981; Ord. No. 09-09, § 2, 5-13-2009)

Sec. 2-45. Agenda.

(a) There shall be an official agenda for every meeting of the city commissioners, which shall determine the order of business conducted at the meeting. The city commission shall not take action upon any matter, proposal, or item of business which is not listed upon the official agenda, unless permitted by four-fifths ($\frac{4}{5}$) vote of the commission.

(b) The commission shall not take action upon any matter when it is first presented to the commissioners in a report or reports made by the city commissioners.

(c) The agenda shall be prepared by the city clerk in the following order or form:

- (1) Call to order;
- (2) Roll call;

- (3) Invocation;
- (4) Pledge of allegiance;
- (5) Awards/proclamations/acknowledgements;
- (6) Approval of consent agenda and pull list (deferrals and deletions);

If any city commissioner is desirous of discussion on any item appearing on the consent agenda, said item shall be pulled for discussion and placed under "action items" and an ensuing vote taken thereafter. After the official agenda has been closed, by the city clerk, no items shall be added to the consent agenda.

- (7) Approval of agenda;
- (8) Approval of minutes;
- (9) District one/district two—County commissioner report;
- (10) Public presentations of matters;
(Persons desiring to address the commission enter their name and subject matter on an agenda located at the lectern, prior to the start of the meeting;)
- (11) Citizens' forum;
- (12) Action items;
- (13) The consent agenda;
- (14) New items;
- (15) Planning and zoning:
 - a. Hearings;
 - b. Appeals;
- (16) Ordinances/resolutions/public hearing:
 - a. First reading;
 - b. Second reading/public hearing;
 - c. Resolutions;
- (17) City manager's report;
- (18) Official board reports;
- (19) Mayor/commission reports;
- (20) Official board appointments;
- (21) Adjournment.

(d) The number of consent agenda items to be sponsored by each member of the city commission. Each member of the city commission shall be permitted to sponsor four (4) consent agenda items per commission meeting.

(e) Preparation of agendas.

- (1) All requests for placement of items on a regular city commission agenda by the city manager or a department head shall be submitted and reviewed by the city manager, or the city manager's designee, for a fiscal impact analyses, no later than 12:00 p.m. on the Monday, twelve (12) business days prior to the regularly scheduled commission meeting;
- (2) The city manager, or designee, shall serve as a central repository of the items, prepare any financial impact statements and forward all requests for legislation to the city attorney within twenty-four (24) hours from the Monday received, eight (8) business days before the agenda is printed and disseminated;
- (3) The city attorney shall prepare all legislative items; approve, if legally sufficient and submit the completed items to the city clerk's office no later than 12:00 p.m. on the Tuesday, three (3) business days before the agenda is disseminated;
- (4) All agenda requests shall be submitted in writing, explaining specifically the requested legislation and include all back-up materials at the time of submission to the city clerk;
- (5) The clerk is required to time stamp any items not submitted electronically;
- (6) Any items that are submitted beyond the deadlines set forth herein may be placed on the following regular commission agenda subject to the process described herein;
- (7) Emergency items must be submitted by noon on the Tuesday before the commission meeting, but only if the requesting party certifies the item to be an emergency affecting life, health, property, or the financial stability of the city; and if the commission concurs at the meeting by a four-fifths ($\frac{4}{5}$) vote of the city commission;

(8) These procedures shall supersede any prior legislation on this topic.

(Code 1955, § 2-8; Code 1983, § 2-46; Ord. No. 81-3, § 1, 1-14-1981; Ord. No. 98-12, § 1, 12-9-1998; Ord. No. 05-01, § 1, 1-26-2005; Ord. No. 05-12, § 2, 7-13-2005; Ord. No. 07-20, § 1, 11-14-2007; Ord. No. 10-04, § 2, 3-10-2010; Ord. No. 11-07, § 2, 5-11-2011; Ord. No. 12-25, § 2, 10-24-2012; Ord. No. 12-26, § 2, 10-24-2012; Ord. No. 15-01, § 2, 1-14-2015; Ord. No. 15-25, § 2, 9-9-2015; Ord. No. 16-02, § 2, 1-13-2016; Ord. No. 18-02, § 3, 4-25-2018; Ord. No. 2020-12, § 2, 9-9-2020; Ord. No. 2023-03, § 2(2-45), 2-8-2023; Ord. No. 2024-07, § 2(2-45), 3-27-2024; Ord. No. 2024-09, § 2(2-45), 4-10-2024; Ord. No. 2024-22, § 2, 11-13-2024)

Sec. 2-46. Mayor presiding officer, duties.

The mayor shall preside at all meetings at which he is present. In the absence of the mayor, the vice-mayor shall preside. The presiding officer shall preserve strict order and decorum at all meetings of the commission. He shall restate every motion coming before the commission and announce the decision of the commission on all matters before it. A majority vote of the members present shall govern and conclusively determine all questions of procedure not otherwise set forth herein. The presiding officer shall vote on all questions, his name being called last. In the absence of the mayor from the city or in the event of his inability to serve by reason of illness or accident, the vice-mayor shall perform the duties and functions of the mayor until his return to the city or recovery and resumption of duty. (Code 1955, § 2-8; Code 1983, § 2-46; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-47. Parliamentarian.

The city attorney, or his designee in his absence, shall act as parliamentarian, and shall advise and assist the presiding officer in matters of parliamentary law. (Code 1955, § 2-8; Code 1983, § 2-47; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-48. Attorney.

The city attorney or such member of his office as he may designate, shall be available to the commission at all regular meetings and at such special meetings as may be requested by the commission or city manager. (Code 1955, § 2-8; Code 1983, § 2-48; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-49. Call to order.

The mayor shall take the chair at the hour appointed for the meeting and shall call the commission to order immediately. In the absence of the mayor and the vice-mayor, the clerk shall then determine whether a quorum is present and, in that event, shall call for the election of a temporary chairman. Upon the arrival of the mayor, or the vice-mayor, the temporary chairman shall relinquish the chair upon the conclusion of the business immediately before the commission. (Code 1955, § 2-8; Code 1983, § 2-49; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-50. Roll call.

Before proceeding with the business of the commission, the clerk or designee shall call the roll of the members in their seated order, and the names of those present shall be entered in the minutes. In the event the roll call reflects the absence of any member on official city business that fact shall be noted in the minutes. Any city commissioner who intends to be absent from any commission meeting shall notify the city clerk of the intended absence as soon as convenient. (Code 1955, § 2-8; Code 1983, § 2-50; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-51. Quorum.

(a) A majority of the whole number of members of the commission shall constitute a quorum. No ordinance, resolution or motion shall be adopted by the commission without the affirmative vote of the majority of all the members. Any member of the commission who announces a conflict of interest on a particular matter and a decision to refrain from voting or otherwise participating in the proceedings related to that matter shall leave the commission chambers until the consideration of that matter is concluded. Any such member who does not leave the chambers shall be deemed absent for purposes of constituting a quorum, counting the vote, or for any other purpose.

(b) Should no quorum attend within thirty (30) minutes after the hour appointed for the meeting of the commission, the mayor, or the vice-mayor or, in their absence, the clerk or his designee, may adjourn the meeting until the next day, unless by unanimous agree-

ment another day and time shall be established by those members present and their action at such meeting shall be recorded in the minutes by the clerk.

(Code 1955, § 2-8; Code 1983, § 2-51; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-52. Order of business.

All meetings of the commission shall be open to the public. Promptly at the hour set for each meeting, the members of the commission, the city attorney, the city manager and the city clerk shall take their regular chairs in the commission chamber, and the business of the commission shall be taken up for consideration and disposition in accordance with the agenda for the meeting.

(Code 1955, § 2-8; Code 1983, § 2-52; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-53. Rules of debate.

(a) *Question under consideration.* When a motion is presented and seconded, it is under consideration and no other motion shall be received thereafter, except to adjourn, to lay on the table, to postpone, or to amend until the question is decided. These motions shall have preference in the order in which they are mentioned and the first two (2) shall be decided without debate. Final action upon a pending motion may be deferred until a date certain by a majority of the members present.

(b) *As to the chairman.* Upon relinquishing the chair, the mayor or such other member of the commission, as may be presiding, may move, second and debate, subject only to such limitations of debate as are by these rules imposed upon all members.

(c) *Getting the floor, improper references to be avoided.* Every member desiring to speak for any purpose shall address the presiding officer, and, upon recognition, shall confine himself to the question under debate, avoiding all personalities and indecorous language.

(d) *Interruption.* A member, once recognized, shall not be interrupted when speaking unless it is to call him to order or as otherwise provided. If a member, while speaking, is called to order, he shall cease speaking until the question of order is determined by the presiding officer, and if, in order, he shall be permitted to proceed. Any member may appeal to the commission from the decision of the chair upon a question of order,

when, without debate, the chair shall submit to the commission the question, "Shall the decision of the chair be sustained?" and the commission shall decide by a majority vote.

(e) *Privilege of closing debate.* The commissioner moving the adoption of an ordinance, resolution or motion shall have the privilege of closing the debate.

(f) *Roll call.* Upon any roll call, there shall be no discussion by any member voting, and he shall vote yes or no. Any member, upon voting, may give a brief statement to explain his vote. A member shall have the privilege of filing with the city clerk a written explanation of his vote. Any member of the commission who announces a conflict of interest on a particular matter and a decision to refrain from voting or otherwise participating in the proceedings related to that matter shall leave the commission chambers until the consideration of that matter is concluded. Any such member who does not leave the chambers shall be deemed absent for purposes of constituting a quorum, counting the vote, or for any other purpose.

(g) *Reconsideration.* An action of the commission may be reconsidered only at the same meeting at which the action was taken. A motion to reconsider may be made only by a member who voted on the prevailing side of the question. Adoption of a motion to reconsider shall rescind the action reconsidered.

(h) *Vote change.* Any commissioner may change his vote before the next item is called for consideration, or before a recess or adjournment is called whichever occurs first but not thereafter.

(i) *Renewal.* Once action is taken on a proposed ordinance, neither the same matter nor its repeal or rescission may be brought before the commission again during the six (6) month period following the action (subject to the provisions of subsection (g) of this section), unless application for renewal by four (4) members of the commission is first submitted to the mayor. Should an ordinance be proposed that raises the same previously resolved matter, or its repeal or rescission, in different or modified form during the six (6) month period, the mayor may declare the proposal out of order.

(Code 1955, § 2-8; Code 1983, § 2-53; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-54. Reading minutes.

Unless a reading of the minutes of a meeting is requested by a majority of the commission, such minutes, when approved by the commission and signed by the mayor and the city clerk, shall be considered approved without reading, provided that the city clerk delivers a copy thereof to each member of the commission and to the city attorney at least two (2) full working days preceding the meeting. The minutes of prior meetings may be approved by a majority of the members present, and upon such approval shall become the official minutes.

(Code 1955, § 2-8; Code 1983, § 2-54; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-55. Method of voting.

Upon every roll call, the names of the commissioners shall be called alphabetically by surname, except that the names shall be rotated after each roll call vote, so that the commissioner who voted first on a preceding roll call shall vote last upon the next subsequent matter; provided, however, that the mayor, if presiding, shall always cast his vote last. Upon relinquishing the

chair, the mayor may vote in alphabetical order with the other commissioners, and the then presiding officer shall cast his vote last. The clerk shall call the roll, tabulate the votes, and announce the results. The vote upon every ordinance and resolution shall be taken by roll call. The vote upon any motion or other matter may be by voice vote, provided that the chairman or any commissioner may require a roll call vote to be taken upon any resolution or motion if request is made by a commissioner.

(Code 1955, § 2-8; Code 1983, § 2-55; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-56. Addressing the commission.

(a) *Agenda items.* All proceedings and the order of business at all meetings of the commission shall be conducted in accordance with the official agenda. Any person shall be entitled to be placed on the official agenda of a regular meeting of the commission in accordance herewith. The deadline for placing a person on the agenda is 12:00 noon on Wednesday of the week preceding the week of the meeting at which the person wishes to be heard. Any person shall be entitled to speak on any matter appearing on the official agenda under the sections entitled "public hearings," and "public presentation of matters by citizens," only as to those items listed in the agenda.

(b) *Non-agenda matters.* Persons shall address the commission on non-agenda matters only during the citizens' forum.

(Code 1955, § 2-8; Code 1983, § 2-56; Ord. No. 81-3, § 1, 1-14-1981; Ord. No. 98-13, § 1, 12-9-1998)

Sec. 2-57. Addressing commission, manner, time.

(a) Each person, other than salaried members of the city staff, who address the commission shall step up to the front of the commission and shall give the following information in an audible tone of voice for the minutes:

- (1) Name;
- (2) Address;
- (3) Whether he speaks for himself, a group of persons, or a third party. If the person represents an individual or organization, the commission may require the speaker to:
 - a. Indicate the number of members in the organization;

- b. The date of the most recent meeting of the organization's board or governing council, and whether the view expressed by the speaker represents an established policy of the organization approved by the board or governing council.

(b) Unless further time is granted by the commission, he shall limit his address to three (3) minutes. All remarks shall be addressed to the commission as a body and not to any member thereof. No person, other than commissioners, city manager, city attorney or city clerk and the person having the floor, shall be permitted to enter into any discussion, either directly or through a member of the commission, without the presiding officer. No question shall be asked a commissioner except through a presiding officer.

(Code 1955, § 2-8; Code 1983, § 2-57; Ord. No. 81-3, § 1, 1-14-1981; Ord. No. 02-16, § 1, 12-11-2002)

Sec. 2-58. Decorum.

The city commission desires to exercise the following standards for decorum:

- (a) Any person making impertinent or slanderous remarks or who becomes boisterous while addressing the commission, shall be declared to be out of order by the presiding officer, unless permission to continue or again address the commission be granted by the majority vote of the commission members present.
- (b) Ground rules for decorum regarding members of the city commission. The following shall constitute the guidelines for decorum to be adhered to by members of the city commission in their respective roles as elected public officers of the city:

- (1) Members of the city commission shall:
 - a. Each conduct themselves with dignity;
 - b. Agree to disagree with each other; and
 - c. Show respect for the points of view of other members of the city commission.
- (2) Members of the city commission shall not:
 - a. Falsely accuse another member of the city commission of wrongdoing;

- b. Criticize each other in a rancorous or unprofessional manner;
- c. Make personal attacks on another member of the city commission; or
- d. Individually act without the support of the city commission.

- (3) Members of the city commission in treatment toward appointed officers and generally city staff shall:

- a. Make all efforts to meet with staff and appointed officers in advance of public meetings on issues of concern to the commissioner;
- b. Work with appointed officers to make sound decisions for the city;
- c. Treat appointed officers and staff with courtesy and respect during public meetings;
- d. Refrain from suggesting that staff is being dishonest or otherwise speaking in a manner that would cause clear embarrassment to staff during public meetings.

(Code 1955, § 2-8; Code 1983, § 2-58; Ord. No. 81-3, § 1, 1-14-1981; Ord. No. 08-22, § 2, 11-12-2008)

Sec. 2-59. Sergeant-at-arms.

The police chief, or such other city official or employee as the commission may designate, shall be the sergeant-at-arms of the commission meeting. The sergeant-at-arms shall carry out all orders and instructions given by the presiding officer for the purpose of maintaining order and decorum at the meetings.

(Code 1955, § 2-8; Code 1983, § 2-59; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-60. Committees.

(a) There shall be no committee of the board of city commissioners, other than those provided for in subsection (b) of this section, except that the board may resolve itself into a committee of the whole at any regular or special meeting and select a chairman to preside over such meeting of the committee of the whole. Provided, however, that all committees in being at the time of the adoption of these rules shall continue

in existence until dissolved by vote of a majority of the commission members present at any regular meeting, or at a special meeting called for that purpose.

In addition thereto, whenever the commission deems it necessary or desirable that the commission shall be represented at meetings, conferences or other occasions involving other governmental entities, agencies, officials or groups, or nongovernmental organizations, or departments, agencies or officials of the city government, the mayor, or the vice mayor in his absence may designate members of the commission or himself to represent the commission at such meetings, conferences or other occasions, with the consent of the designee. A majority of the board then present may disapprove any such appointment. Such representatives shall have no power to act for or on behalf of the commission or to make any commitment or binding obligation on behalf of the commission of the city. Such representatives shall report in writing to the commission with regard to such meeting, conference or other occasion.

(b) The commission may establish special ad hoc committees from time to time as specific needs arise. The mayor, or vice-mayor in his absence, shall make appointments to such committees with the consent of the appointees. A majority of the commission present may disapprove any appointment. Any special ad hoc committee may be abolished by the mayor, or the vice-mayor in his absence, when its continued existence no longer is necessary. A majority of the board then present may disapprove any such action.
(Code 1955, § 2-8; Code 1983, § 2-60; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-61. Ordinances, resolutions, motions, contracts.

(a) *Preparation of ordinances.* The city attorney, when requested, shall prepare ordinances and resolutions. Ordinances may be introduced and adopted by title and shall be read by title only by the city attorney or his designed before consideration by the commission on first reading. Copies of all proposed ordinances shall be furnished to each commissioner and shall be made available to all interested persons.

(b) *Introducing for passage or approval.* Ordinances, resolution and other matters and subjects requiring action by the commission, must be introduced and sponsored by a member of the commission, except that either the city manager or the city attorney may present

ordinances, resolutions and other matters or subjects to the commission for consideration, and any commissioner may assume sponsorship thereof by moving that such ordinance, resolution, matter or subject be adopted in accordance with law; otherwise they shall not be considered.

(c) *When action to be taken by resolution or ordinance.* All actions of the commission may be taken by resolution or ordinance except that any action of the commission which provides for raising revenue, appropriating funds or incurring indebtedness, or which provide a penalty or establishes a rule or regulation for the violation of which a penalty is imposed, shall be by ordinance, and except that approval of purely administrative matters may be accomplished by motion duly adopted and recorded in the minutes of the meeting. Whenever action cannot be taken because the vote of the commission has resulted in a tie, the status quo shall continue in effect and the proposed ordinance, resolution or motion that produced the tie vote shall be removed from the agenda without prejudice to its reintroduction on a de novo basis at a later time.
(Code 1955, § 2-8; Code 1983, § 2-61; Ord. No. 81-3, § 1, 1-14-1981; Ord. No. 08-21, § 2, 11-12-2008)

Sec. 2-62. Adjournment.

A motion to adjourn shall always be in order and decided without debate.
(Code 1955, § 2-8; Code 1983, § 2-62; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-63. Clerk, minutes, agenda.

The city clerk, or his designated deputy clerk, shall act as clerk of the commission. The city clerk shall duplicate the minutes and all resolutions and ordinances, and for a reasonable charge shall furnish copies to persons desiring them. The city clerk shall make available to the commissioners a copy of the agenda seventy-two (72) hours before the meeting.
(Code 1955, § 2-8; Code 1983, § 2-63; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-64. Suspension of the rules.

No rule of procedure adopted by this commission shall be suspended.
(Code 1955, § 2-8; Code 1983, § 2-64; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-65. State of the city.

The mayor shall prepare and deliver a report on the state of the city to the people of the city between January 1 and January 31, annually. Such report shall be prepared after consultation with city commissioners, city manager and the city attorney.

(Code 1955, § 2-8; Code 1983, § 2-65; Ord. No. 81-3, § 1, 1-14-1981)

Sec. 2-66. Appeal procedure before commission.

Unless otherwise provided by Charter or ordinance, or the provisions of the zoning and land development regulations, any person may appeal any administrative action to the city commission by giving notice of appeal within the appeal period provided by ordinance, or in the event no appeal period is provided by ordinance within thirty (30) days after the final administrative action by filing with the city clerk a notice of appeal stating the following:

- (1) The full name and address of the appellant;
- (2) The date of the final administrative action appealed from;
- (3) The nature of the administrative action appealed from;
- (4) Whether or not the person is represented by an attorney or any other person and, if so, the name and address of the attorney or person representing the appellant;
- (5) Grounds for the appeal.

(Code 1955, § 2-8; Code 1983, § 2-66; Ord. No. 81-3, § 1, 1-14-1981; Ord. No. 85-14, 1, 6-12-1985)

Sec. 2-67. Residents' right to know.

(a) *Legislative intent.* It shall be the policy of the city to provide targeted neighborhood notice, timely opportunities for input, and procedural fairness in hearings for any proposed policy, ordinance, project, or other matter that impacts residents' quality of life.

(b) *Impacts to residents' quality of life.* Matters that impact residents' quality of life shall include the following:

- (1) Any position that has been formally adopted by resolution of a registered neighborhood association and transmitted to the city through its city manager;

- (2) Any application for development review before the city's land use boards, or any proposed zoning legislation before the city commission that includes the potential for lot aggregation or that includes the potential for material increase in traffic over current levels; required parking; building height; base elevation; intensity of uses; density, or floor area ratio;
- (3) Development proposals that require approval by the city commission which propose:
 - a. Changes of use or commercialization in a public park, public beach, or other public property or public easement;
 - b. The design and implementation of a streetscape, transit, pedestrian parking, or area improvement project (other than routine repairs and maintenance); and
- (4) Any material change to any of the matters listed in subsections (b)(1) through (3) of this section.

For purposes of this section, the term "material increase" means any increase in building height or base elevation over three (3) feet, any increase in density, or any increase in floor area ratio. Additionally, the term "material increase" means any increase in traffic over current levels, required parking, or intensity of uses that the planning director considers to be substantial.

(c) *Targeted neighborhood notice.* The city commission shall adopt a process by resolution (as may be amended from time to time) for registering neighborhood associations and shall provide targeted electronic notices on matters that impact residents' quality of life, as defined above, and, in addition to targeted electronic notice, the city shall post such notices on the city's website. Targeted neighborhood notices at each step in the public process, excluding emergency matters requiring immediate action, shall be in addition to any other public notices required by law. Notices shall be written in plain English, and both the title and summary shall objectively describe the proposed action.

For purposes of this section, the term "neighborhood association" means an organization of residential homeowners and tenants created to address quality of life issues in a defined neighborhood or community.

Notwithstanding the above, an individual resident of Opa-locka may also register to receive tar-

geted neighborhood notices. In order to be eligible for registration, an individual shall have been a resident of the city for a minimum of six (6) months and must provide the city with a reasonable form of identification exhibiting proof of residency (to be defined in the resolution described above) upon registering.

Registered neighborhood associations (and individuals who choose to register) must renew their registrations on an annual basis.

(d) *Timely opportunities for input.* Once a matter that impacts residents' quality of life (as defined in this section) is referred to a city commission committee or land use board, or once a matter is placed on an agenda for approval by the city commission, the city shall use reasonable good faith efforts to ensure that registered neighborhood associations (and individuals who choose to register) have an opportunity to participate in city processes that shape any matter that impacts residents' quality of life (as defined in subsection (b) of this section).

(e) *Procedural fairness in quasi-judicial hearings.* The city shall ensure that representatives of registered neighborhood associations (and individuals who choose to register) shall have the opportunity at quasi-judicial hearings before the city's land use boards, or the city commission, to present or rebut evidence relevant to matters that impact residents' quality of life. This shall include the opportunity to request a time certain for the convenience of the public. Registered neighborhood associations (and individuals who choose to register) do not need to retain legal counsel to exercise these procedural rights. Notices of filing, and a copy of each quasi-judicial application, shall promptly be made available on the city's website upon filing, and amendments thereto or supplemental information shall be filed and promptly made available on the city's website in advance of the date of the scheduled hearing.

(f) *Deferral or reconsideration.* A registered neighborhood association (or individual who chooses to register) may request deferral of any matter that requires targeted notice, or the reconsideration of that matter, if such matter is not duly noticed pursuant to this section. Reconsideration may only be requested at the publicly noticed land use board or city commission meeting immediately following the meeting at which the challenged action was taken. However, the land use board or city commission shall have the sole discretion

to grant or deny any such request. Consistent with Robert's Rules of Order, a motion to reconsider must be made by a board member or commissioner who voted with the prevailing side.

(g) *Amendment or repealer.* Any amendment to this section (including the repealer of any provision herein) shall require the affirmative vote of four-fifths ($\frac{4}{5}$) of the city commission.

(h) *Periodic review and annual report.* The city manager, or the city manager's designee, shall, annually during the city commission's review and approval of the city's annual operating budget, present a written report to the city commission tracking and identifying the operational implementation and fiscal impact of this section. The report shall include statistics relating to the number of registered neighborhood associations and individuals registered under the section and any amendments thereto; issues pertaining to impacts to residents' quality of life that have resulted in the issuance of targeted notices; and any violations and/or complaints received by the city administration with regard to the implementation of the procedures set forth in the section.

(i) *Administration of this section.* This section shall be administered by the office of the city manager. (Code 1983, § 2-67; Ord. No. 17-16, § 1, 10-25-2017)

Secs. 2-68—2-81. Reserved.

DIVISION 3. RESERVED

Secs. 2-81.1—2-81.7. Reserved.

ARTICLE III. ADMINISTRATIVE RULES AND PROCEDURES

DIVISION 1. GENERALLY

Sec. 2-82. Applicability generally.

All boards, authorities, committees, officers and agencies of the city, hereinafter referred to as a board or agency, shall be governed by the following rules, regulations and procedures, except where specific provisions of this Code, establish conflicting provisions, or except as otherwise provided in this article. (Code 1955, § 2-81; Code 1983, § 2-82)

Sec. 2-83. Special rules or procedures for specific agencies.

In the event any board or agency of the city, by virtue of its designated function, requires a special rule or administrative procedure, not encompassed within this article, the board or agency may adopt an administrative rule or procedure relating solely to said board or agency, provided the administrative rule or procedure is not inconsistent with the provisions of this chapter and has been passed by a majority of the members of said board or agency, or approved by the city manager if promulgated by an administrative officer or department, and shall have been certified to the city commission on the following form:

"CERTIFICATION OF
ADMINISTRATIVE RULE
FILED WITH THE CITY
COMMISSION OF THE
CITY OF OPA-LOCKA, FLORIDA

1. The rule or administrative procedure set forth herein shall be hereafter known as Rule No. _____ of the _____ (board or agency), and is attached hereto.
2. The purpose of adopting or amending said rule or administrative procedure is as follows:

I DO HEREBY CERTIFY that the attached rule or administrative procedure is a true and correct copy as promulgated and adopted on the ____ day of _____, 20____.

(Board or Agency)

No. of copies _____

Certified _____

Signature of Presiding Officer or City Manager

Each rule or administrative procedure shall be typed on eight and one-half (8 ½) inches by eleven (11) inches paper, double-spaced, with a two (2) inch margin at the top and bottom, and a one (1) inch margin on either

side. The rule or administrative procedure as filed with the city commission shall become effective after its approval by the city commission by resolution duly adopted after public hearing thereon. The city commission shall and does hereby reserve unto itself, the authority to amend, change, alter or nullify any and all rules or procedures established or created by any board or agency of the city at any time.
(Code 1955, § 2-81; Code 1983, § 2-83)

Sec. 2-84. Board, agency members to be residents.

All members of any board or agency of the city shall be residents of the city, except where otherwise provided by this Code or the Charter.
(Code 1955, § 2-95; Code 1983, § 2-84)

Sec. 2-85. Family members not to serve on same board or agency.

No two (2) members of an immediate family shall serve at any one (1) time on any board or agency of the city. Immediate family shall consist of husband, wife and children. Members of the same immediate family may be appointed to and serve on other boards and agencies of the city.
(Code 1955, § 2-96; Code 1983, § 2-85)

Sec. 2-86. Meetings of boards, agencies.

(a) *Regular meetings.* Regular meetings of any board, authority, committee or agency of the city, except where otherwise provided in this Code, shall begin at a specific time, and on a designated day of each month as may be designated by a majority of the members of the board or agency and approved by the city commission as an administrative rule or procedure pursuant to section 2-83.

(b) *Special meetings.* Special meetings may be proposed by any member of the board or agency by each member of the board or agency being served written notice of the proposed meeting at least twenty-four (24) hours prior to the time of the meeting. Meetings shall not begin before 6:00 p.m. The notice shall state the purpose of the meeting and only business enumerated in the notice shall be transacted at such meeting. A notice of special meeting shall first be delivered to the city manager, who shall arrange for notification of the board or agency members in accordance with requirements stated above.
(Code 1955, § 2-93; Code 1983, § 2-86)

Sec. 2-87. Vote required for board or agency action.

All matters requiring a vote of any board, authority, committee or agency of the city shall be deemed passed only after receiving the affirmative vote of a majority of all of the members thereof. Matters receiving an affirmative vote of the members present (as distinguished from a majority vote of the entire membership), shall be continued until the next meeting at which time the matter shall be again considered without further discussion. Any matter failing to receive an affirmative vote of the entire membership of the board, authority, committee or agency of the city, shall thereafter be deemed defeated, notwithstanding that a majority of the members present may have acted affirmatively. Failure of any member of a board, authority, committee or agency of the city to attend a meeting to consider voting on any matter after continuation of said matter as aforesaid, shall constitute grounds for removal pursuant to division 2 of this article.
(Code 1955, § 2-93; Code 1983, § 2-87)

Sec. 2-88. Notice of violation permitted.

(a) Whenever a license, permit or a certificate is required or any act or forbearance is required by any of the provisions of this Code or any other ordinance and it appears to any officer or employee of the city that persons or corporations have failed to comply therewith, there may be issued to said person or corporation a notice of violation of the applicable provision of this Code or such other ordinance. Such notice of violation shall be permitted to be issued only once, in order to permit compliance with the applicable provisions of this Code or other ordinance within five (5) days. The notice provided by this section is permissive and failure to issue a notice shall not constitute a defense to any action brought for violation of this Code or other ordinance. Service of a notice of violation shall in no event be required as a condition precedent to institution of any action seeking enforcement by way of fine or imprisonment for such violation.

(b) In the event any person or corporation who has received a notice of violation aforementioned shall fail to obtain from the city the applicable license, permit or certificate or perform the act or desist as required, the proper officer of the city shall cause to be issued a complaint charging violation of this Code or the applicable municipal ordinance.
(Code 1955, § 2-89; Code 1983, § 2-88)

Sec. 2-89. Complaints by city officers of violations.

Where there is alleged to be a violation of this Code, the proper officer of the city may, in addition to all other remedies permitted, cause to be filed with the court having jurisdiction a summons and complaint, charging with particularity the violation of a specific section of this Code. The complaint shall be under oath and shall charge a person or corporation with an offense under this Code on a particular day at a time and place stated. The complaint shall be in writing and in the name of the city and shall set forth substantially the nature of the offense. The complaint shall be filed by the officer making same and shall set forth the date when executed.
(Code 1955, § 2-91; Code 1983, § 2-89)

Sec. 2-90. Licenses, permits nontransferable.

No license or permit shall be transferable, unless otherwise provided.
(Code 1955, § 2-82; Code 1983, § 2-90)

Sec. 2-91. Form, contents of applications generally.

All applications (except for business tax receipts and personnel applications) filed with the city, shall be filed in duplicate, and with such additional copies as shall be required by rules. Every blank space shall be filled in and where not applicable, the words "not applicable" shall be used. Applications shall be signed by the real party in interest or its authorized attorney or agent-in-fact. All applications and exhibits shall become a part of the records of the city and be filed with the records of the board, agency or officer before whom originally filed. Exhibits required to be attached shall be attached in their final form as numbered exhibits to the application and shall thereafter be referred to by number. No action shall be taken on any application by any officer, board or agency of the city until the above requirements have been met. Letters and informal applications shall substantially comply with these rules. Whenever it is necessary for an appeal to be taken to any board, agency or to the city commission, as required by the Charter or this Code, all supporting documents shall be attached thereto as exhibits and referred to as an "exhibit" by number.
(Code 1955, § 2-82; Code 1983, § 2-91)

Sec. 2-92. Change of address or personnel by applicant.

If any applicant moves or changes location, or if any corporate applicant shall have any change in the office

of president, a rider describing said change shall be filed forthwith with the department of buildings and licenses, prior to the city granting the relief sought. (Code 1955, § 2-82; Code 1983, § 2-92)

Sec. 2-93. Certification of application examination and form.

When an officer of the city is required to issue any permit or license, the officer shall cause to be recorded upon the application the following certificate:

"I do hereby certify that I have examined the application set forth above and that the application is in true and correct form according to the ordinances of the City of Opa-locka, this ____ day of _____, 20____.

Officer

(Code 1955, § 2-85; Code 1983, § 2-93)

Sec. 2-94. Certification of conformity with agency action, zoning, compliance.

The officer of the city issuing a permit or license shall certify that the permit or license issued is in conformity with the action of the board or agency authorizing issuance and that the use of the property is permitted under the applicable zoning ordinance. (Code 1955, § 2-86; Code 1983, § 2-94)

Sec. 2-95. Activities requiring approval by other governmental jurisdictions.

Where any license, permit or zoning use is dependent or conditioned upon the action or approval of any other governmental jurisdiction, upon receipt by the city clerk of notice of the determination by other governmental jurisdictions, the city clerk shall note the approval, disapproval or other action of the governmental jurisdiction upon the application and the proper official of the city shall be governed thereby. (Code 1955, § 2-86; Code 1983, § 2-95)

Sec. 2-96. Refund of fees upon application withdrawal.

No fee shall be refunded in the event an application is withdrawn, unless withdrawn prior to processing or action being taken on the application. (Code 1955, § 2-83; Code 1983, § 2-96)

Sec. 2-97. Business tax receipts, permits or certificates; due dates and delinquency; penalties.

(a) All business tax receipts shall be sold by the appropriate tax collector beginning July 1 of each year, are due and payable on or before September 30 of each year and expire on September 30 of the succeeding year. If September 30 falls on a weekend or holiday, the tax is due and payable on or before the first working day following September 30. Business tax receipts that are not renewed when due and payable are delinquent and subject to a delinquency penalty of ten (10) percent for the month of October, plus an additional five (5) percent penalty for each subsequent month of delinquency until paid. However, the total delinquency penalty may not exceed twenty-five (25) percent of the business tax for the delinquent establishment.

(b) Any person who engages in or manages any business, occupation, or profession without first obtaining a local business tax receipt, if required, is subject to a penalty of twenty-five (25) percent of the license due, in addition to any other penalty provided by law or ordinance.

(c) Any person who engages in any business, occupation, or profession covered by this section, who does not pay the required business tax within one hundred fifty (150) days after the initial notice of tax due and who does not obtain the required business tax receipt is subject to civil actions and penalties, including court costs, reasonable attorney fees, additional administrative costs incurred as a result of collection efforts, and a penalty of up to two hundred fifty dollars (\$250.00).

(d) The provisions of this section are applicable to the issuance of any license, permit or certificate. Should it appear that the proper persons, corporations or entities required to obtain same have not obtained the applicable license, permit or certificate within the time required by law, the assessment as outlined above shall be instituted and enforced.

(Code 1955, § 2-90; Code 1983, § 2-97; Ord. No. 96-14, §§ 1—3, 9-25-1996)

State law reference—Similar provisions, F.S. § 205.053.

Sec. 2-98. Surety bonds.

(a) All surety bonds required to be submitted with an application, or prior to the issuance of any permit or license, must have attached thereto an original copy of the power of attorney of the attorney-in-fact executing the bond on behalf of the surety, and the bond must be

countersigned by a state agency or surety. The name and address of the principal on the bond must be correctly stated and should precisely agree with the name of the applicant on the application. The name in which the business is conducted should follow the name and address of the principal, where the applicant does business under a fictitious name.

(b) In the event the applicant's surety bond is cancelled for any reason, all licenses or permits shall be automatically revoked, without further action by the city. The license or permit shall not be reinstated unless another surety bond is furnished to and approved by the city attorney within ten (10) days after cancellation of the original bond.

(c) All surety bonds shall be filed with and held by the city manager.

(Code 1955, § 2-84; Code 1983, § 2-98)

Secs. 2-99—2-108. Reserved.

**DIVISION 2. REMOVAL OF BOARD OR
AGENCY MEMBERS**

Sec. 2-109. Applicability.

Any member of a board or agency of the city, subject to removal for cause, may be removed by the city commission in accordance with the applicable Charter and ordinance provision relating to said board or agency as provided by this division.

(Code 1955, § 2-94; Code 1983, § 2-109)

Sec. 2-110. Affidavit of charges required.

Any person desiring the removal of any board or agency member for cause, shall submit to the city manager an affidavit setting forth the charge or charges which the complainant believes, if true, would constitute sufficient cause for removal of the individual as a member of a board or agency by the city commission, and all facts in support of the charges.

(Code 1955, § 2-94; Code 1983, § 2-110)

Sec. 2-111. Referral of affidavit to city commission.

The city commission shall receive said affidavit from the city manager at the next regular or special commission meeting occurring not more than three (3) days after the filing of the affidavit with the city manager. It

shall be the duty of the city manager to place the affidavit on the agenda of the city commission meeting for consideration.

(Code 1955, § 2-94; Code 1983, § 2-111)

Sec. 2-112. Action of commission on affidavit.

The city commission, after consideration of the affidavit, may, by any of the following motions:

- (a) Move that no further action be taken. In the event no motion is made or seconded, the matter shall be deemed dismissed.
- (b) Determine that the charges, if true, are insufficient to cause the removal of the board or agency member, in which event the matter shall be deemed dismissed.
- (c) Determine that the charges, if true, are sufficient to cause removal and set public hearing, wherein the truth of the charges shall be determined. Upon the passage of this motion, the board or agency member shall be deemed suspended from office and shall not take part in any matter pending before his board or agency.

(Code 1955, § 2-94; Code 1983, § 2-112)

Sec. 2-113. Calling, notice of hearing.

In the event the commission determines that the charges, if true, are sufficient to constitute cause for removal, the commission shall forthwith cause the board member or agency member to be notified of the charges and a copy thereof shall be served upon him with notice of hearing before the commission. All persons having knowledge of the charges brought, shall be permitted to testify before the commission and the commission shall be permitted to make such investigations as it deems necessary under the provisions of section 2-3.

(Code 1955, § 2-94; Code 1983, § 2-113)

Sec. 2-114. Conduct of hearing.

The hearing shall be conducted by the mayor who shall direct the city clerk to place under oath, all persons who shall appear before the commission. Witnesses may be excluded from the commission chambers prior to testifying. The affidavit shall be read in full by the city attorney. Thereafter, the complainant may make a statement. The complainant shall be subject to cross-examination by the board or agency member or his

counsel. Any member of the commission or the city attorney may question the complainant. Thereafter, the mayor shall call any witnesses in support of the charges brought, which witnesses may be examined by the mayor and/or any commissioner and the city attorney. The witnesses shall be subject to cross-examination by the board or agency member. At the conclusion of the testimony of all witnesses in support of the charges, the agency member or board member may or may not testify in his own behalf. In the event the board or agency member testifies in his own behalf, he shall be subject to cross-examination by the complainant and questioning of the commission and city attorney. Both the complainant and the board or agency member may request the mayor to call any additional witnesses they may deem necessary, who shall be examined in the same manner as the witnesses in support of the charges, subject to cross-examination by the mayor, commission and city attorney.

(Code 1955, § 2-94; Code 1983, § 2-114)

Sec. 2-115. Conclusion of testimony.

At the conclusion of the testimony, the commission may discuss the matter, adjourn to another fixed time and place for the purpose of investigation or hearing additional testimony or for additional discussion, or close the public hearing.

(Code 1955, § 2-94; Code 1983, § 2-115)

Sec. 2-116. Final determination of commission.

At the conclusion of the discussion from the commission, the commission may make any of the following motions:

- (a) Move that no further action be taken, or in the event no motion is made and seconded, the matter shall be deemed dismissed.
- (b) Determine that those portions of the charges proved are insufficient to cause removal and the matter shall be deemed dismissed.
- (c) Determine that the charges have been proven and the board or agency member may be either:
 - (1) Suspended from office for a period of time; or
 - (2) Dismissed and removed.

(Code 1955, § 2-94; Code 1983, § 2-116)

Sec. 2-117. Commissioner bringing charges to abstain.

At all times during the aforementioned procedure, no commissioner, who shall have caused the charges to be brought, shall participate at any stage of the proceedings and shall cause himself to abstain from participation in any vote in the proceedings.

(Code 1955, § 2-94; Code 1983, § 2-117)

Sec. 2-118. Failure to appear at hearing.

Failure of the board or agency member whose removal is sought to appear at the public hearing shall automatically constitute grounds for dismissal from office without further public hearing.

(Code 1955, § 2-94; Code 1983, § 2-118)

Sec. 2-119. Requests for testimony of city employees.

The board or agency member may request the city manager to require any employee of the city to appear and give testimony before the city commission in any matter relating to the proceedings, provided a request designates the name of the employee and shall be filed in writing with the city manager twenty-four (24) hours prior to the time of hearing before the city commission.

(Code 1955, § 2-94; Code 1983, § 2-119)

Sec. 2-120. Automatic removal for absences.

In the event any member of any board or agency of the city shall fail to attend three (3) consecutive meetings after receipt of notice thereof, whether special or regular meeting, and said absence shall not have been excused by majority vote of the board, or excused by the city commission, then the term of said board member shall be deemed completed and the city commission shall appoint a replacement as soon as practicable. Absence as a result of illness requiring confinement shall be deemed excusable unless said illness shall require confinement for more than eight (8) consecutive regular or special meetings, in which event the term of the member shall be deemed completed.

(Code 1955, § 2-94; Code 1983, § 2-120)

Secs. 2-121—2-130. Reserved.

DIVISION 3. PROCEDURES FOR PUBLIC HEARINGS AND PERSONAL APPEARANCES

Sec. 2-131. Applicability.

Whenever a public hearing is required or authorized, or personal appearance permitted, by virtue of

the provisions of this Code or the Charter before any agency, officer or board of the city, the provisions of this division shall be observed.

(Code 1955, § 2-87; Code 1983, § 2-131)

Sec. 2-132. Calling and notice.

Whenever a public hearing is required by any ordinances or Charter provisions of the city or is requested by any applicant in writing, the appropriate board or agency shall set a time and place and give notice thereof according to the applicable provisions relating to public notice. Unless otherwise provided to the contrary, by the provisions of the Charter or any other specific ordinances of the city, public notice shall consist of the following:

- (a) No action on any application shall be taken by any board or agency until a public hearing has been held upon at least seven (7) days' notice of the time and place of such hearing, published in accordance with applicable Florida law, in Dade County, which publication shall include the time and place of the hearing before the proper board or agency.
- (b) A courtesy notice containing substantially the same information set forth in the published notice aforesaid, shall be mailed to the property owners of record, their tenants or agents, within a radius of three hundred (300) feet of the property described in the application, or such greater distance as the board or agency may prescribe; provided, however, that failure to mail or receive such courtesy notice shall not affect any action or proceeding taken before said board or agency.
- (c) The board or agency may require an additional notice in the event of a continuation.
- (d) To provide additional notice to the public, the property may be posted in a manner as may be designated by the board or agency. Such posting shall be by a sign, or signs, including, but not limited to, the relief requested and the time and place of the first public hearing. Failure to post such property shall not affect an action taken by the board or agency, how-

ever, the board or agency may in its discretion defer action on the application until the property has been properly posted.

(Code 1955, § 2-88; Code 1983, § 2-132; Ord. No. 2025-05, § 2, 2-12-2025)

State law reference—Notice of proposed changes in zoning of private property, F.S. § 166.041(3)(c).

Sec. 2-133. Quorum.

A majority of the board or agency shall be present to constitute a quorum and their presence shall be noted on the minutes or upon the transcript, except for hearings before city officials.

(Code 1955, § 2-87; Code 1983, § 2-133)

Sec. 2-134. City commission procedures applicable.

All proceedings shall be conducted according to the procedures governing the conduct of city commission meetings.

(Code 1955, § 2-87; Code 1983, § 2-134)

Sec. 2-135. Certification of applications.

A proper officer or administrative official of the city shall certify to the board or agency in writing on the face of the application that the application is in proper form with all exhibits attached.

(Code 1955, § 2-87; Code 1983, § 2-135)

Sec. 2-136. Reading of applications; display of exhibits.

All applications shall be read by title or, upon request of a board member present, read in full, and all exhibits shall be displayed to all members of the board or agency.

(Code 1955, § 2-87; Code 1983, § 2-136)

Sec. 2-137. Amendments to application.

In the event any amendment to the application is desired by the applicant or requested by the board or agency, said amendment shall be made publicly, in writing, by suitable instrument, signed by the applicant or his authorized representatives.

(Code 1955, § 2-87; Code 1983, § 2-137)

Sec. 2-138. Presentation by applicant.

The applicant or his authorized agent and witnesses, if any, shall first appear before the board and make

such presentation as desired. In the event any factual representations are made by the applicant which are not contained in the application, or any of the exhibits attached thereto, the board shall not consider same unless the factual representations are presented by signed amendment to the application. Any exhibits used or displayed before the board or agency, shall not be considered unless they shall be received by the board or agency, marked and made a part of the applicant's file. (Code 1955, § 2-87; Code 1983, § 2-138)

Sec. 2-139. Comment by officers.

Appropriate comment by an officer of the city may be required by the presiding officer.
(Code 1955, § 2-87; Code 1983, § 2-139)

Sec. 2-140. Public participation.

The presiding officer of the board or agency shall thereafter permit reasonable public participation, not exceeding five (5) minutes by each public participant, who shall be limited to the subject matter of the application. Thereafter, no further public participation shall be permitted unless by unanimous consent by the members of the board.
(Code 1955, § 2-87; Code 1983, § 2-140)

Sec. 2-141. Rebuttal by applicant.

At the close of public participation, the applicant shall be given an opportunity to rebut or present additional matters relating to the application.
(Code 1955, § 2-87; Code 1983, § 2-141)

Sec. 2-142. Questioning permitted.

The presiding officer shall then permit board members or city officials to ask questions of the applicant and discuss the merits, without further participation by the public, unless any board member or city official shall specifically request permission to question any person present in the audience.
(Code 1955, § 2-87; Code 1983, § 2-142)

Sec. 2-143. Final action by agency.

At the conclusion of the board, agency or committee's participation, the presiding officer shall submit the matter under consideration to such affirmative action as a majority of all of the members shall desire. In all matters requiring a vote, an affirmative vote of a

majority of the total numbers of members constituting any board, agency or committee of the city shall be required.
(Code 1955, § 2-87; Code 1983, § 2-143)

Sec. 2-144. Action to be recorded; resolution.

The action of the board, officer or agency relating to the application shall be noted in the minutes of the board or agency or the transcript of hearing. Certified copies of a resolution substantially in the following form shall be executed by the presiding officer and attached to the application.

"No. _____

Resolution of the Board or Agency relating to the application of _____, for _____

WHEREAS, the applicant has appeared before this board (or agency) for the relief requested in the application and all evidence, documents and exhibits have been received and marked pursuant to the Code of Ordinances of the city.

NOW, THEREFORE, IT IS RESOLVED AS FOLLOWS:

1. That the relief requested in the application by the applicant be and the same is hereby (approved) (disapproved) (not determined until additional consideration at the regular meeting to be held on the ____ day of _____, 20____).
2. That the following special conditions be and they are hereby imposed, conditioning the determination aforementioned.
 - a) _____

 - b) _____

 - c) _____

CERTIFICATE

I HEREBY CERTIFY that the attached resolution containing the determination of this board or agency,

is a true and correct copy as is reflected upon the public records of the City of Opa-locka, this ____ day of _____, 20 ____.

Board or agency

No. of copies

Certified: _____

Presiding Officer

Administrative Head

Title."

(Code 1955, § 2-87; Code 1983, § 2-144)

Sec. 2-145. Proceedings to be recorded; transcripts.

All proceedings shall be recorded verbatim by stenographic or electronic methods, and summaries thereof shall be distributed to all board or agency members. Verbatim copies of proceedings shall be made upon order of any board or agency member. Any member of the public may obtain a transcription upon payment to the city, in advance of preparation, of the estimated cost of the transcript at a rate of two dollars and fifty cents (\$2.50) per page.

(Code 1955, § 2-87; Code 1983, § 2-145)

Secs. 2-146—2-190. Reserved.

ARTICLE IV. PERSONNEL

DIVISION 1. GENERALLY

Sec. 2-191. Appointment of director; subordinate personnel.

The city manager is hereby authorized and directed to appoint a director of the department of personnel to serve at the will and pleasure of the city manager. Provision for salary of the director and such additional assistants or employees as may be necessary, shall be provided in subsequent annual budget and pay scales. (Code 1983, § 2-191)

Sec. 2-192. First source hiring referral program.

(a) *Title.* This section shall be referred to as the first source hiring referral program.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

- (1) *Implementing order* or *IO* means the implementing order developed by the mayor or mayor's designee and approved by city commissioners (the "commissioner") to give effect to the provisions of this section.
- (2) *City contract* means an agreement for the purchase of goods and services specifically identified in the implementing order.
- (3) *Contractor* means any person or entity which enters into a contract with the city.
- (4) *First source register* means the register of unemployed persons maintained by the referral agency in accordance with the provisions of this section.
- (5) *Referral agency* means the South Florida Workforce Investment Board (SFWIB).
- (6) *Referral period* means the three (3) to five (5) day period following notification to the referral agency of employment availability.

(c) *First source register created.* The referral agency shall compile and maintain a first source register, which shall be a listing of unemployed persons, including graduates of programs funded by the Workforce Investment Act to be made available to contractors as a first source for their employment needs. The referral agency shall not discriminate on the basis of race, ethnicity, sex, residence, or other protected category or class, in the compilation or maintenance of the first source register, or in its referral activities provided for in this section. The referral agency shall, to the extent allowed by law, maintain a data base which identifies the race, ethnicity, sex, and residence of the persons within the first source register sufficient to permit adequate analysis of the available work force.

(d) *Referral procedure.*

- (1) The referral agency shall be the first source for employees to fill jobs created to satisfy the requirements of city contracts. The following

requirements shall be included in all city contracts, except those covered under the community workforce program (CWP), and except those covered under programs intended to encourage and assist in the employment of the blind and other severely handicapped persons such as described in F.S. §§ 413.032—413.037:

- a. The contractor, prior to hiring to fill each vacancy arising under a city contract, shall first notify the referral agency of the vacancy and list the vacancy with the referral agency. The listing shall contain a detailed description of the job responsibilities and qualifications and be posted during the referral period. The referral agency shall provide a list of qualified candidates, if such candidates are available, to contractor within twenty-four (24) hours of receiving notice of vacancy. Thereafter, contractor shall (a) review the resumes and qualifications of the candidates; and (b) make a good faith effort as determined by the city, to fill a minimum of fifty (50) percent of its employment needs under the city contract from the first source register. Notwithstanding the foregoing, if after the referral period a suitable employee is not found from the referral agency, the contractor is free to fill its vacancies from other sources.
- b. A good faith effort to employ candidates from the referral agency shall constitute, at a minimum, evaluating the qualification of such candidates, and conducting interviews with those candidates who satisfy the minimum competency requirements. The contractor is not required to hire any individual candidate referred. However, contractors shall not commit to fill vacancies in any other manner until after the end of the referral period, unless the referral agency notifies the contractor in writing prior to the end of the referral period that qualified candidates are not available in sufficient numbers to fill the vacancies. Upon such notification, the contractor may immediately fill vacancies using other sources.
- c. In determining whether a contractor has made good faith efforts, the city may consider, among other criteria to be set forth in the implementing order: (a) the number, skills and composition of the contractor's labor force ultimately hired; (b) whether minimum requirements were established for available positions beyond reasonable requirements to complete the job; (c) the number of referred candidates interviewed for the position; and (d) the contractor's use of the first source register to satisfy its labor needs in contracts other than city contracts. The city's determination as to whether a contractor has made such good faith efforts is final and binding.
- d. All competitive solicitations for contracts, except those covered under CWP, shall set forth the requirements of this section.

(e) *Monitoring and compliance.*

- (1) City contracts shall require the contractor to submit quarterly reports to the referral agency indicating the name and number of employees hired by the contractor in the previous quarter, including the source from which such employees were found, and payroll records and tallies of employee work hours. If none of the candidates referred to a contractor by the referral agency were hired, the contractor shall report the reasons why all referred candidates were rejected in its quarterly reports. Each quarterly report shall be submitted to referral agency within two (2) weeks of the end of the quarter.
- (2) For each contract, the contractor shall retain records sufficient to determine compliance with this section. Such records shall include: (1) notifications to the referral agency; (2) referrals from the referral agency; (3) job applications received from sources other than the referral agency; and (4) the number of candidates hired based on referrals from the referral agency. To the extent allowed by law, such records shall be made available to referral agency upon request.

- (3) Referral agency shall be entitled to perform random, unannounced site visits to applicable project sites to determine whether or not contractor has filled its vacancies.
- (4) Referral agency shall report to the city, any noncompliance with the requirements of this section, any related implementing order, or first source agreement between referral agency and contractor.

(f) *Implementation.*

- (1) The mayor or mayor's designee shall prepare and submit to the commissioners for approval, the implementing order which shall, at a minimum:
 - a. Indicate that all city contracts shall be subject to the requirements of this section. The requirements of this section shall be implemented to the maximum extent feasible, for all city purchases of goods and services.
 - b. Develop a timeframe for implementation of first source hiring referral program. A rollout department shall be identified to use the referral agency with its city contracts, and all other city departments will be phased into this process within six (6) months of the passage of the ordinance from which this section is derived.
 - c. Advise prospective and awarded contractors of the nature of the first source hiring referral program.
 - d. Set forth procedures to determine contractor compliance with the requirements of this section.
 - e. Recommend and establish a minimum funding threshold.
 - f. Establish a procedure for review and investigation of allegations of noncompliance with the provisions of this section, implementing order, or first source hiring agreement.
 - g. Establish a procedure to determine appropriate sanctions for failure to comply

with the terms of this section, implementing order, or first source hiring agreement.

- h. Establish an appeals process for determinations of noncompliance with the provisions of this section, implementing order, or first source hiring agreement.

- (2) The mayor or mayor's designee shall prepare quarterly reports for the commissioners which shall include: (a) the dollar amount of each city contract utilizing the first source hiring referral program; and (b) an analysis of the effectiveness of the program during each quarterly reporting period.

(g) *Sanctions for violations.*

- (1) Each contract shall include provisions stating the nature of the sanctions to be imposed on a contractor that is not in compliance with this section. Such sanctions shall include, but not be limited, to the following:
 - a. Suspension of contract until contractor performs obligations, if appropriate.
 - b. Default and/or termination.
 - c. Payment of one thousand five hundred dollars (\$1,500.00) per employee, or the value of wages that would have been earned by employees injured by contractor's noncompliance, whichever is less.
- (2) If any contractor attempts to comply with the provisions of this section through fraud, misrepresentation or material misstatement, the city, in its sole discretion, may immediately terminate the subject city contract.

(Code 1983, § 2-192; Ord. No. 13-04, § 2, 3-13-2013)

Secs. 2-193—2-221. Reserved.

DIVISION 2. SEVERANCE PAY; EXTRA COMPENSATION

Sec. 2-222. Prohibiting severance pay and extra compensation beyond state statutory limits.

- (a) No severance pay shall be provided to the city manager, city attorney, city clerk (collectively, "charter officers") or any other employee where the individual is terminated for cause. "Cause" shall include, but is not

limited to: misconduct, malfeasance, gross negligence, breach of contract, violation of law, or any other justifiable basis as defined in the officer's employment agreement, city policy or state law.

(b) Pursuant to F.S. § 215.425, the city shall not provide any bonus, extra compensation, or additional payment to any charter officer of the city after services have been rendered or after a contract has been executed, unless otherwise authorized by Florida law or by a majority vote of the city commission.

(c) Any contract or employment agreement, or renewal or renegotiation of an existing contract or employment agreement, that contains a provision for severance pay with an officer, agent, employee, or contractor must include the following provisions in the contract: (1) a requirement that severance pay provided may not exceed an amount greater than twenty (20) weeks of compensation; (2) a prohibition of provision of severance pay when the officer, agent, employee, or contractor has been fired for misconduct, as defined in F.S. § 443.036(29), by the unit of government.

(d) Severance pay for a charter officer shall be permitted only in the following cases, and only upon a majority vote of the city commission: (1) voluntary resignation where severance is a part of the contract terms; and (2) termination without cause where the severance pay does not exceed the limits established under applicable state law.

(e) As a condition of receiving any severance pay, the charter officer must execute a written separation agreement that includes a comprehensive release of liability in favor of the city, its officials, employees, and agents. The release must be in a form approved by the city attorney and shall fully release the city from any and all claims arising from the officer's employment or separation from the city. The officer shall have thirty-one (31) calendar days from the date of separation or notice of termination to execute and deliver the signed separation agreement to the city clerk. An agreement is not executed and returned within the thirty-one-day period, the officer shall be deemed to have waived all rights to severance pay, and the city shall have no further obligation to provide such payment. The city shall issue any approved severance payment within thirty (30) calendar days of receiving the fully executed agreement.

(f) Any extra compensation or severance payments made to a charter officer prior to and including the calendar year 2022 shall be considered forgiven, and no further effort shall be made by the city to recoup such funds. This forgiveness provision applies solely to past payments and does not authorize future payments inconsistent with this section.

(Ord. No. 2025-16, § 2, 6-23-2025)

Secs. 2-223—2-245. Reserved.

DIVISION 3. RESIDENCY REQUIREMENT IN EMPLOYMENT

Sec. 2-246. Purpose.

The purpose hereof is to protect and give a preference to resident workers.

(Ord. No. 95-6, § 2, 6-14-1995; Code 1983, § 2-246)

Sec. 2-247. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Domicile means a place where a person has a true, fixed, and permanent home and principal establishment; proof thereof may be found, among other places, in the records of the voters' registration.

Employer includes the city, other public agencies, and private businesses, companies and corporations. The term "employer" does not include private homeowners/lessees employing domestic workers.

Nonresident worker means any person who is capable of performing services or labor and who is not a resident within the city limits. Nonresident workers shall be employed only to supplement the labor force of available and qualified resident workers.

Personnel board means the board which advises the city commission on issues concerning personnel administration and conducts any investigation regarding the administration of personnel.

Preference means a resident worker shall be given priority in employment in the city in any industry or occupation for which such worker is qualified and available.

Resident worker means any person who is capable of performing services or labor and who is domiciled within the city limits. No resident worker shall suffer any reduction in his workweek below forty (40) hours a week by reason of an employer employing a nonresident worker.

Waiver means an exception to the residency requirement made for certain individuals who meet the criteria provided below.

(Ord. No. 95-6, § 3, 6-14-1995; Code 1983, § 2-247)

Sec. 2-248. Residency requirements and procedures.

For the purposes of this division, and without limitation on the scope or extent of powers, duties or responsibilities vested by other provisions hereof, or of any other federal, state or local law and/or regulation:

- (a) For employment with the city, the Job Services of Florida and other local employment agencies may:
 - (1) Require each and every applicant to complete and execute either a residency form or nonresidency form (depends upon the individual's status) containing inquiries in the same or similar manner as those set forth in appendixes A and B of this section.
 - (2) In the placement of workers, perform all certification functions in relation to wage requirements and the determination of the occupational qualifications and classifications applicable to individual workers, resident or nonresident. Nothing contained herein shall be construed to limit the power of the city manager to make wage or classification determinations in accordance with applicable law.
 - (3) Canvass employment services in the city to obtain workers before issuing waiver certificates as ordered by the city commission or personnel board.
 - (4) In cooperation with the city manager and local businesses conduct continuing surveys of manpower needs, prepare training programs and recommend other measures for alleviating shortages and reducing the need for nonresident workers.

(b) The city manager shall:

- (1) Enforce the provisions of this division and Resolution No. 5058, including the performance of investigatory functions necessary or appropriate thereto, and the enforcement of waiver orders issued by the city commission or personnel board as well as agreements entered into by him/her and employers concerning the employment of nonresident workers as provided for herein.

- (2) Furnish a listing of the minimum recruitment wages to Job Services of Florida or other local employment agencies on a regular and continuous basis.
 - (3) Cooperate with the city commission in furtherance of the objectives of this division and in effectuation of the provisions hereof.
 - (4) Utilize such employment services located within the city and any other employment agency for the recruitment of resident workers.
 - (5) Cooperate with both federal and state labor agencies and organizations in the enforcement of the conditions and the minimum wage.
 - (6) Provide a mechanism wherein employers interested in doing business within the city or with the city must complete and execute appropriate agreements regarding the hiring, retention and promoting of resident workers.
 - (7) Encourage existing local businesses to comply with subsection (b)(6) of this section.
- (c) Employers shall:
- (1) Apply for workers through Job Services of Florida and other local employment agencies within the city and shall, at the same time, file a signed copy of his/her application with the city manager and shall state (a) the place and nature of the employer's business; (b) the number of workers desired and occupational qualifications of such workers; and (c) the wages to be paid to such workers, which shall not be less than the minimum wages as certified by the city manager.
 - (2) Keep and present immediately upon demand of the city manager up-to-date records with the following information: (1) number, names, and addresses of employees in his employ; (2) status of each with respect to legal residence; (3) if bonded, the company's name and date when bonds will expire; (4) classification and wage rate of each employee and payrolls showing number of hours worked each day and each week and compensation received by employee, and whatever deductions have been made from his wages.
- (d) Upon receipt of an application pursuant to the provisions of subsection (c) of this section; Job Services of Florida and other local employment agencies should first endeavor to fill the job vacancies reported by the employer by referral of qualified resident workers registered with these employment agencies. In the event of inability to supply sufficient qualified resident workers from such source, Job Services of Florida and other local employment agencies should cause the existence of the vacancies and the applicable minimum recruitment wage rates for each occupation as determined by the city manager and employer, to be publicized, including notice to active labor unions, posting of notice in public places in the city and where workers are to be employed, the use of newspaper and other advertising media when appropriate, and such other means as the department may determine to be feasible. The city manager shall be empowered to assist them in advertising the job vacancies referred to in this section.
- (e) No later than twenty (20) days from the date of filing of the employer's application in accordance with the provisions of subsection (a) of this section, the city manager, upon a finding that: (a) there are no occupationally qualified resident workers available to fill all or some of the vacancies applied for; and (b) such employment of nonresident workers will not adversely affect the wages and working conditions of domestic workers similarly employed; (c) upon receiving, no later than ten (10) days from the date of filling the employer's application, a favorable recommendation from the city manager, with approval from the city commission may issue a waiver order for the employment of nonresident workers for the position for which no qualified resident workers are available. If, at any time, a qualified resident worker becomes available for a position in an occupational classification occupied by a

nonresident worker pursuant to a waiver order, the city manager shall so notify the commission.

- (f) Before submission of a waiver order the city manager shall require a written agreement from the employer in a similar form as set forth in appendix C to this section, stating that: (a) the employer requires such nonresident workers for immediate employment, and the waiver of residency is sought for the purpose of building a labor service; (b) the employer is paying or intends to pay not less than the minimum wage to all employees in the same or related occupational classification as the nonresident workers; (c) the employer agrees to comply with minimum employment conditions or other pertinent matters consistent with the provisions of this division and such other applicable laws as the city manager or city commission may determine; and (d) such workers are guaranteed a workweek not to be less than forty (40) hours, except that a lesser workweek, not to be less than twenty (20) hours per week, shall be guaranteed nonresident workers in such industries and occupations as may be determined by the city manager except that any employer who has a bona fide labor union contract, as determined by the city manager and city attorney, under which the employer's workers are guaranteed full employment and such other benefits as the city manager may deem satisfactory shall not be required to guarantee any minimum workweek under the provision of this clause.
- (g) The city manager shall provide nonresident workers covered by this division with a copy of the agreement required by subsection (c) of this section and with a certificate, the information on which shall be determined by the city manager and the city commission.
- (h) If at any time subsequent to the employment of a nonresident worker pursuant to a waiver order, the city manager, upon notice to such effect or upon his own investigation, shall ascertain that there is available an occupationally qualified resident worker to fill the position of such nonresident worker, or if at any time the city manager finds, after investigation and hearing, that the public interest and wel-

fare demand such action, the city manager shall notify the employer in writing and thereupon the employer shall, after giving the nonresident worker fourteen (14) days' notice of such fact, terminate the employment of the nonresident worker.

- (i) A resident worker who has replaced a nonresident worker pursuant to the provisions of this division and whose services are contracted for without a definite term may not be discharged except for incompetence, insubordination, misconduct, violation of employers' rules and regulations or other just cause and shall not be replaced by the same or by any other nonresident worker unless so discharged and no other resident worker with the required skills is available.
- (j) Any discharged resident worker who is aggrieved and believes his/her dismissal was without just cause may file a complaint with the personnel board within ten (10) working days following such dismissal and the personnel board shall cause an investigation to be made. If upon investigation the personnel board determines that a prima facie case of wrongful dismissal exists, she/he shall hold a hearing at which the employer and employee may introduce evidence to establish the facts. If it is the personnel board's determination that the worker was discharged in violation of the provisions set forth in this section, then the city manager shall order the reinstatement of the worker and the employer shall be ordered to pay the employee back pay from the date of dismissal to the date of reinstatement. The hearing and determination of the city manager shall be concluded not later than twenty (20) working days after the date of filing of the complaint.
- (k) No employer shall reduce the regular workday or workweek of resident workers for the purpose of giving employment to nonresident workers.
- (l) Any layoffs, by reasons of reduction in force, shall affect nonresident workers first. No resident worker shall be laid off while a nonresident worker is retained in the same occupational classification for which the resident

worker is qualified and available. This provision shall not apply to identified nonresident workers who are members of the collective bargaining unit employed by the city on or before July 5, 1995. With regards to this subsection, those identified bargaining unit workers employed by the city on or before July 5, 1995, shall have the same status as resident workers.

- (m) No wavier order shall be approved by the city commission to an employer for work in any place of employment where a strike is in progress, nor in any case where said order will aid directly or indirectly in filling a job: (1) which is vacant because the former incumbent is on strike or is being locked out in the course of a labor dispute; or (2) the filling of which is an issue in a labor dispute. For purposes of this section, the city manager shall certify to the city commission when she/he finds that a strike or lockout is in progress or that filling of a job is an issue in a labor dispute.

(Code 1983, § 2-248; Ord. No. 95-6, § 4, 6-14-1995; Ord. No. 98-6, § 1, 7-22-1998)

Sec. 2-249. Enforcement and appeal.

(a) Enforcement.

- (1) The city manager shall investigate all complaints involving violations of these regulations, and after notice and hearing issue an order disposing of the matter.
- (2) The city manager shall petition any court of competent jurisdiction for the enforcement of an order issued under the provisions of this division, and the appropriate temporary relief or restraining order, and shall file in the court a transcript of the records in the proceedings, including where appropriate the pleading and testimony upon which the order was entered and the findings and order of the city manager. Upon such filing, the court shall cause notice to be served upon the person against whom the order is directed. Thereupon, the court shall have jurisdiction of the proceeding and may grant such temporary relief or restraining order as it shall deem just and proper, or issue a decree enforcing, modifying and enforcing as so modified, or setting aside in

whole or in part the order of the city manager. In all such actions the city manager shall be represented by the city attorney and shall not be required to give bond as a condition to filing or maintaining any action for an injunction or restraining order.

- (3) Any employer who willfully violates the provisions of this division or of any rules or regulations issued pursuant thereto shall be guilty of an offense. Each week or portion of week thereof during which an employer continues in willful violation shall constitute a separate offense.
- (4) Injunctions. In addition to any other penalties prescribed by law, the city attorney may bring action in any court in the county to restrain violations of this division.

(b) *Appeals.* Anyone aggrieved by a decision or order of the city manager may appeal said decision to the city commission within ten (10) days following the date of the decision or order. The commencement of any proceedings in any court shall not operate as a stay of compliance with any provisions of this division or any rules, regulations or orders issued thereunder unless an injunction is entered by a court of competent jurisdiction. All findings, decisions or orders by the city manager as to questions of fact shall be deemed final if supported by substantial evidence.

(Code 1983, § 2-249; Ord. No. 95-6, § 5, 6-14-1995; Ord. No. 98-6, § 1, 7-22-1998)

Sec. 2-250. Waiver.

(a) For the purposes of this division, a nonresident applicant or worker who meets the criteria, as set forth hereunder, shall receive an order of waiver from the personnel board to be approved by the city commission and submitted with his/her application for employment with Job Services of Florida or other local employment agencies. Residency requirements may be waived by the city manager and approved by the city commission if:

- (1) By not hiring the nonresident applicant or retaining the nonresident worker, it would create an unreasonable hardship to the applicant/worker because of the employee's economic or personal family problems resulting from the relocation within the city limits;

- (2) The residency requirements results in a limitation of the number of qualified persons who may be available for employment; or
- (3) It is not in the best interest of the city for delivery of city services as may be determined by the city manager and approved by the city commission.

(b) An employer who meets the criteria as set forth hereunder shall receive an order of waiver from the city commission to hire a nonresident employee.
(Code 1983, § 2-250; Ord. No. 95-6, § 6, 6-14-1995)

Secs. 2-251—2-259. Reserved.

DIVISION 4. CITY HOLIDAYS

Sec. 2-260. Established.

(A) The following holidays shall be paid employee holidays observed by the city:

New Year's Day.

Martin Luther King Day.

Presidents Day.

Memorial Day.

Independence Day.

Labor Day.

Columbus Day.

Veterans Day.

Thanksgiving.

Day After Thanksgiving.

Christmas Day.

Juneteenth Independence Day, June 19.

(B) If any of these (*) holidays fall on Saturday, the preceding Friday shall be observed as a holiday. If any of these holidays fall on Sunday, the following Monday shall be observed as a holiday.

(C) The city manager shall have the discretion to implement by administrative policy the application of the observance of the paid holidays for bargaining, nonbargaining, exempt, nonexempt, part-time, and full-

time employees to maintain the operational integrity of city functions and the contractual obligations of the city.

(Ord. No. 2021-08, § 2, 6-9-2021)

Secs. 2-261—2-278. Reserved.

DIVISION 5. PENSIONS AND RETIREMENT

Sec. 2-279. Social Security system established.

It is hereby declared to be the policy and purpose of the city to extend, effective as of April 1, 1954, to the employees and officials thereof, not excluded by law, nor excepted herein, and whether employed in connection with a governmental or proprietary function, the benefits of the system of old-age and survivor's insurance as authorized by the Federal Social Security Act and amendments thereto, including Public Law 734 of the 81st Congress, and by F.S. ch. 650; and to cover by such plan all services which constitute employment, as defined in F.S. § 650.02, performed in the employ of the city by employees thereof.

(Code 1955, § 17-1; Code 1983, § 2-279)

Sec. 2-280. Manager to execute Social Security agreements.

The city manager, as chief executive officer of the city, is hereby authorized and directed to execute all necessary agreements and amendments thereto with the state department of management services, as state agency, or its successor as state agency, for the purpose of extending the benefits provided by the system of old-age and survivor's insurance to the employees and officials of this city as provided in section 2-279, which agreement shall provide for such methods of administration of the plan by the city as are found by the state agency to be necessary for the proper and efficient administration thereof, and shall be effective with respect to services in employment covered by such agreement performed after April 1, 1954.

(Code 1955, § 17-2; Code 1983, § 2-280)

Sec. 2-281. Withholdings for Social Security.

Withholdings from salaries, wages or other compensation of employees and officials for the purpose provided in section 2-279 are authorized to be made, and shall be made, in the amounts and at such times as may be required by applicable state or federal laws or regu-

lations and shall be paid over to the state agency designated by the laws or regulations to receive such amounts. (Code 1955, § 17-3; Code 1983, § 2-281)

Sec. 2-282. Appropriations for Social Security.

There is hereby appropriated from available funds, such amounts, at such times, as may be required to pay promptly the contributions and assessments required of the city as employed by applicable state or federal laws or regulations, which shall be paid over to the lawfully designated state agency at the times and in the manner provided by law and regulation. (Code 1955, § 17-4; Code 1983, § 2-282)

Sec. 2-283. Records and reports for Social Security.

The city shall keep such records and make such reports, as may be required by applicable state or federal laws or regulations and shall adhere to the regulations of the state agency. (Code 1955, § 17-5; Code 1983, § 2-283)

Sec. 2-284. Employees under prior retirement systems exempt from Social Security.

There is hereby excluded from this division any authority to make any agreement with respect to any position or any employee or official now covered, or authorized to be covered, by any ordinance or law creating any retirement system for any employee or official of the city. (Code 1955, § 17-6; Code 1983, § 2-284)

Sec. 2-285. Social Security Act adopted.

The city does hereby adopt the terms, conditions, requirements, reservations, benefits, privileges and other conditions thereunto appertaining of title II of the Social Security Act, as amended by Public Law, No. 734, 81st Congress, for and on behalf of all the officers and employees thereof and of its departments and agencies, save and except any of such officers and employees now covered or authorized to be covered by any retirement system provided by law, and further excepting any official or employee who occupies any position, office or employment not authorized to be covered by applicable state or federal laws or regulations, or whose service is specifically excepted in section 2-279. (Code 1955, § 17-7; Code 1983, § 2-285)

Sec. 2-286. Finance director designated custodian of Social Security funds.

The finance director is hereby designated the custodian of all sums withheld from the compensation of officers and employees and of the appropriated funds for the contribution of the city. The finance director is hereby made the withholding and reporting agent and charged with the duty of maintaining personnel records for the purposes of this division. (Code 1955, § 17-8; Code 1983, § 2-286)

Sec. 2-287. Reserved.

DIVISION 6. DEFERRED COMPENSATION PROGRAM

Subdivision 1. In General

Sec. 2-288. Established.

(a) The city manager shall establish such plan or plans of deferred compensation for city employees as may be available through or offered by qualified companies or persons. The city commission shall approve one (1) or more such plans by resolution.

(b) The city manager may adopt any rule necessary to administer and implement the deferred compensation plan or plans and shall make the determination provided for in F.S. § 112.215(6)(b).

(c) The city manager, with the approval of the city commission, may delegate the responsibility for administration of the plan to a person he determines to be qualified.

(d) The administrator of the deferred compensation plan shall abide by the rules governing taxable income of deferred compensation benefits pursuant to federal and state law. (Code 1983, § 2-288; Ord. No. 91-1, § 1, 1-9-1991)

Subdivision 2. Employees Deferred Compensation Plan Act

Sec. 2-289. Short title.

This subdivision shall be known and may be cited as the "City of Opa-locka Employees Deferred Compensation Plan Act." (Code 1983, § 2-289; Ord. No. 93-3, § 1, 2-24-1993)

Sec. 2-290. Definition.

The following words, terms and phrases, when used in this subdivision, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Employee means any person, whether appointed, elected, or under contract, providing services for the city for which compensation or statutory fees are paid. (Code 1983, § 2-290; Ord. No. 93-3, § 2, 2-24-1993)

Sec. 2-291. Segregation of funds.

The city manager is authorized and directed to create a trust or other special account for the segregation of funds resulting from compensation deferred at the request of employees; or compensation deferred pursuant to employment contracts; or as may be established by ordinance of the city commission. There shall be no minimum and the maximum deferred amounts shall be as established by contract or as established by this subdivision.

(Code 1983, § 2-291; Ord. No. 93-3, § 3, 2-24-1993)

Sec. 2-292. Reserved.**Sec. 2-293. Compensation programs.**

The deferred compensation programs authorized by this subdivision, and any plan approved and adopted as herein provided, shall exist and serve in addition to any other retirement, pension, or benefit system established by the state or its agencies and shall not supersede, make inoperative, or reduce any benefits provided by the state retirement system. All records identifying individual participants in any plan under this subdivision and their personal account activities shall be confidential and are exempt from the provisions of F.S. § 119.07(1).

(Code 1983, § 2-293; Ord. No. 93-3, § 5, 2-24-1993)

Sec. 2-294. Adoption.

The city manager may adopt any rule necessary to administer this act with respect to deferred compensation plans for city employees.

(Code 1983, § 2-294; Ord. No. 93-3, § 6, 2-24-1993)

Sec. 2-295. Reserved.**Sec. 2-296. Contributions; vested ownership rights; notification; options; enforceability.**

(a) *Contribution.* Under both federal and state law, the city Employees Deferred Compensation Plan Act allows city employees and elected officials to make unlimited contributions to their accounts, exclusive of any contributions made by the city on employees' and elected officials' behalf.

(b) *Vested ownership rights.* The city Employees Deferred Compensation Plan Act grants to each employee and elected official in whose name an account is established by the city in a qualified and/or nonqualified plan ownership rights to the deferred compensation amount including all interests which shall immediately vest at the end of their service to the city and the amounts shall be a liability to the city, which shall be obligated to make payment promptly upon request by the former employee or elected official.

(c) *Notification.* The city commission and city manager shall immediately notify the employee and elected official whose service has ended that s/he is entitled to all funds, including interest, that have been paid to his/her account under these provisions and is entitled to all funds, including earned interest, contributed by said employee and elected official.

(d) *Options.* The city manager shall advise the former city employee and elected official that s/he has options to do the following: (1) immediately withdraw any part of or all of the balance in his/her account; (2) rollover any amount in his/her account to another plan; (3) request periodic withdrawals from his/her account; or (4) any other available alternative. Also, the city manager should advise the former city employee and elected official that s/he should consult with an accountant or tax expert.

(e) *Enforceability.* Should the city commission and/or the city manager fail or refuse to act in accordance with the provisions of this legislation, the former city employee and elected official shall have the right to have a court of competent jurisdiction enforce the terms herein including the amount of the deferred compensation account, interest, attorney fees and costs. In addition, the court shall have the power to impose criminal penalties against those persons refusing to act according to the deferred compensation provisions which shall include jail time.

(Code 1983, § 2-296; Ord. No. 96-02, §§ 1—5, 2-14-1996)

DIVISION 7. RESERVED

Sec. 2-297. Reserved.

DIVISION 8. DRUG FREE WORKPLACE

Sec. 2-297.5. Intent.

It is the intent of the city to maintain a healthy and productive workforce with safe working conditions, free from the effects of drugs. Drug use creates a variety of workplace problems, including increased injury on the job, increased absenteeism, increased financial burden on health and benefits programs, increased workplace theft, decreased employee morale, decreased productivity and a decline in the quality of products and services. By promoting a drug free workplace, through fair and reasonable drug testing methods for the protection of the city and its employees, the city intends to discourage drug abuse. Employees who choose to engage in drug abuse face the risk of unemployment and the forfeiture of benefits, including worker's compensation benefits.

(Code 1983, § 2-297.5; Ord. No. 10-06, § 2, 3-10-2010)

Sec. 2-297.6. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Chain of custody refers to the methodology of tracking specified materials or substances for the purpose of maintaining control and accountability from initial collection to final disposition for all such materials or substances and providing accountability at each stage in handling, testing, storing specimens and reporting of test results.

Drug means alcohol, including distilled spirits, wine, malt beverages, and intoxicating liquors; amphetamines, cannabinoids, cocaine, phencyclidine (PCP), hallucinogens, methaqualone, opiates, barbiturates, benzodiazepines, synthetic narcotics, designer drugs or a metabolite of any of the substances listed in this definition.

Drug test means any chemical, biological or physical instrumental analysis administered for the purpose of determining the presence or absence of a drug or its metabolites.

Employees shall include all personnel working for the city, including all classified, unclassified and police personnel, all appointed officers, and members of all boards, commissions and committees. The city commission members may choose to comply voluntarily with the provisions of this division.

(Code 1983, § 2-297.6; Ord. No. 10-06, § 2, 3-10-2010)

Sec. 2-297.7. Testing.

(a) Job applicants of the city shall undergo pre-employment drug testing as a condition of employment, to include testing for any drug described in section 2-297.6. Refusal to submit to testing or a positive confirmed drug test may be used as a basis for refusing to hire.

(b) Employees shall undergo drug testing according to the standards set forth in the applicable collective bargaining agreement, if any, for any drug described in section 2-297.6.

(c) If an employee voluntarily enters an employee assistance program for drug-related problems or a drug rehabilitation program, the city may require a follow-up drug test, with no advance notice to the employee.

(d) The cost of initial and confirmation drug testing required by the city shall be paid by the city. Any additional drug tests not required by the city shall be paid by the job applicant or employee.

(e) Drug tests shall be conducted by licensed laboratories, using chain of custody procedures.

(Code 1983, § 2-297.7; Ord. No. 10-06, § 2, 3-10-2010)

Sec. 2-297.8. Establishment of rules.

The city is permitted to establish reasonable work rules related to the possession, use, sale, trafficking or solicitation of drugs or other drug-related offenses by employees and to take action based upon a violation of the rules.

(Code 1983, § 2-297.8; Ord. No. 10-06, § 2, 3-10-2010)

Sec. 2-297.9. Confidentiality.

Except as provided in F.S. ch. 112, all information received as a result of a drug testing program is confidential and exempt from the provisions of F.S. § 119.07(1).

(Code 1983, § 2-297.9; Ord. No. 10-06, § 2, 3-10-2010)

ARTICLE V. CHARTER REVISIONS AND AMENDMENTS

Sec. 2-298. Methods for drafting.

Pursuant to the requirements of section 6.03 of the Home Rule Charter of Miami-Dade County, Florida, the procedure for the drafting, or having drafted, of a proposed charter, amendment, revocation or abolition of the government of the city, is hereby determined to be by the method of:

- (a) Accepting the question for submission to referendum, without amendment, revocation or abolition, contained in a petition certified to contain the signatures of ten (10) percent of the qualified electors of the city.
 - (b) Having prepared by the city attorney and approved by the city commission (either with or without the prior preparation and approval of a charter board or committee), a resolution or resolutions calling referendums providing for the adoption, amendment or revocation of the Charter of the city or to abolish its existence.
- (Code 1955, § 2-7.5; Code 1983, § 2-298)

Sec. 2-299. Creation of a Charter review board.

The city commission hereby creates an advisory board to the commission to be known as the Charter review board.
(Ord. No. 2021-14, § 2, 11-10-2021)

Sec. 2-300. Membership, term, duties and responsibilities.

(a) Membership. The Charter review board shall consist of five (5) resident electors (each appointed by one member of the city commission) and two (2) advisory (non-voting) members appointed by a majority vote of the city commission. Each board member so appointed shall be a qualified elector of the city with an outstanding reputation for civic pride, interest, integrity, responsibility and business or professional ability. advisory board members may reside outside of the city.

(b) Term. Upon city commission appointment, the term of each individual member to the Charter review board shall commence. Each member so appointed shall be appointed for a term of (1) one year from the date of appointment. The Charter review board shall

provide its report and recommendations to the city clerk. Any recommended Charter changes shall be prepared for consideration by the city commission.

(c) Duties. The Charter review board may provide recommendations to the city commission regarding amendments and revisions to the Charter, which may be advisable for placement on the election ballot.

(d) Responsibilities.

- (1) The Charter review board shall have an organization meeting. The Charter review board shall elect a chair and a vice-chair from among its membership. The meetings shall be held on the call of the chair or a majority of its members at a noticed meeting. All meetings shall be open to the public and held in the city commission chambers. A majority of members shall constitute a quorum to do business.
- (2) Notice of all meetings shall be posted at least 48 hours in advance in city hall and on the city's website. The city shall provide a written record of each meeting through summary minutes.
- (3) The meetings shall be conducted governed by Robert's Rules of Order.
- (4) The Charter review board shall make recommendations to the city commission. No amendments or revisions to the city Charter shall be submitted to the city commission for consideration unless favorably voted upon by an affirmative vote of a majority of the board members.
- (5) Any elector of the city who in good faith believes that an amendment should be made to the Charter of the city shall indicate his or her recommendation in writing and shall file the same with the clerk of the city who shall forward a copy of same to each of the members of the charter board and at the next regularly scheduled public meeting of the board, said elector shall be heard and may give evidence concerning his recommendations. The board shall also hear the recommendations of the city commission, the city attorney, the city manager and the city clerk, when presented.

- (6) The board shall make all recommendations to the city commission as to revisions to the Charter within one hundred twenty (120) days from passage of said recommendations.
 - (7) The members shall serve without compensation but sufficient funds shall be provided by the city commission in the annual budget for reasonable and necessary expenses to be incurred by the board in performance of its duties. The city manager shall provide such administrative and clerical staff as may be necessary in the proper performance of its duties.
- (Ord. No. 2021-14, § 3, 11-10-2021)

Secs. 2-301—2-313. Reserved.

ARTICLE VI. PURCHASING*

DIVISION 1. GENERALLY

Sec. 2-314. Legislative intent.

(a) The city commission recognizes that fair and open competition is a basic tenet of public procurement; that such competition reduces the appearance and opportunity for favoritism and inspires public confidence that contracts are awarded equitably and economically; and that documentation of the acts taken and effective monitoring mechanisms are important means of curbing any improprieties and establishing public confidence in the process of which contractual services are procured. It is essential to the effective and ethical procurement of contractual services that there be a system of uniform procedures to be utilized by city agencies in managing and procuring contractual services; that detailed justification of department or division decisions in the procurement of contractual services be maintained; and that adherence by the department or division and the consultant to specific ethical considerations be required.

(b) To ensure efficient and economical purchasing practices, the city manager shall prepare and submit proposed rules and regulations as necessary for city purchases to the city commission for their consideration. Such rules shall have the force and effect of law

*State law reference—Competitive selection of architects, engineers, landscape architects, land surveyors, F.S. § 287.055.

when adopted by a majority of the city commission by separate resolution. Amendments thereto may be made in the same manner.

(c) The rules and regulations shall cover administrative procedures and policies to govern the various phases of the city's purchasing practices. (Code 1983, § 2-314; Ord. No. 90-7, §§ 1, 2, 7-25-1990; Ord. No. 20-07, § 2(2-314), 4-8-2020)

Sec. 2-315. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Agency means any of the various city officers, departments, divisions, bureaus, and any other unit of organization, however designated, of the city government.

Artist means an individual or group of individuals who profess and practice a demonstrated creative talent and skill in the area of music, dance, drama, folk art, creative writing, painting, sculpture, photography, graphic arts, craft arts, industrial design, costume design, fashion design, motion pictures, television, radio, or tape and sound recording or in any other related field.

Contractual service means the rendering by a contractor of its time and effort rather than the furnishing of specific supplies. The term "contractual service" applies only to those services rendered by individuals and firms who are independent contractors, and such services may include, but are not limited to, evaluations; consultations; maintenance; accounting; security; management systems; management consulting; educational training programs; research and development studies or reports on the findings of consultants engaged thereunder; and professional, technical, and social services.

Extension means an increase in the time allowed for the contract period due to circumstances which, without fault of either party, make performance impracticable or impossible, or which prevent a new contract from being executed, with a proportional increase in the total dollar amount, which increase is to be based on the method of rate previously established in the contract.

Invitation to bid means a written solicitation for sealed competitive bids with the title, date, and hour of the public bid opening designated and specifically defining the supplies, group of supplies, or services for which bids are sought. It includes instructions prescribing all conditions for bidding and shall be distributed to all prospective bidders simultaneously. The invitation to bid is used when the agency is capable of specifically defining the scope of work for which a contractual service is required or when the agency is capable of establishing precise specifications defining the actual supplies or group of supplies required.

Qualified bidder or qualified offeror means a person who has the capability in all respects to perform fully the contract requirements and has the integrity and reliability which will ensure good faith performance.

Renewal means contracting with the same contractor for an additional contract period after the initial contract period, only if pursuant to contract terms specifically providing for such renewal.

Request for letter of interest (RFLI) means a formal invitation from the city to submit an offer. It identifies in general terms the work required and directs respondents to provide a letter regarding their interest in working with City on a project. Respondents provide a statement of experience and qualifications of key personnel. Costs are not part of the response. Responses are evaluated by an evaluation committee. If there are a large number of respondents, a short list of three to five most qualified respondents are identified. Interviews are conducted by the evaluation committee and are ranked. This ranking is presented to the city commission with a request for the city manager to be authorized to negotiate and execute a contract which then is then brought back to the city commission for final approval.

Request for proposals means a written solicitation for sealed proposals with the title, date, and hour of the public opening designated. The request for proposals is used when the agency is incapable of specifically defining the scope of work for which the supplies, group of supplies, or contractual service is required and when the agency is requesting that a qualified offeror propose supplies, group of supplies, or contractual service to meet the specifications of the solicitation document. A request for proposals includes, but is not limited to, general information, applicable laws and rules, functional or general specifications, statement of work,

proposal instructions and evaluation criteria. Requests for proposals shall state the relative importance of price and any other evaluation criteria.

Request for qualifications (RFQ) is a formal invitation to vendors to submit a statement of qualifications. This differs from a RFP in that it places greater emphasis on the qualification of the bidder and his/her track record rather than how well the bidder responds to detailed project specifications and requirements. The RFQ identifies the desired minimum qualifications of the firm, a scope of work statement, any project requirements and states the relative importance of selection criteria that will be used in compiling the short list of prospective bidders for further consideration. Responses are evaluated by an evaluation committee. If there are a large number of bidders, a short list of three to five most qualified bidders are identified. Interviews are conducted by the evaluation committee and are ranked. This ranking is presented to the city commission with a request for the city manager to be authorized to negotiate and execute a contract which then is then brought back to the city commission for final approval.

Responsive bidder or responsive offeror means a person or firm who has submitted a bid which conforms in all material respects to the invitation to bid or request for proposals.

Supplies means all personal property, including, but not limited to, supplies, goods, equipment, material, and printed goods, purchased, leased, or otherwise contracted for by the city.
(Code 1983, § 2-315; Ord. No. 90-7, §§ 1, 2, 7-25-1990; Ord. No. 20-07, § 2(2-315), 4-8-2020)

Sec. 2-316. Administrative policies; powers, duties and functions of city manager.

The city manager shall develop such administrative policies as necessary for the city purchases to ensure efficient and economical purchasing practices. He/she shall have the following powers, duties and functions:

- (1) (a) To canvass all sources of supplies, establish and maintain a vendor list, and contract for the purchase, lease, or acquisition in any manner, including purchase by installment sales or lease-purchase contracts which may provide for the payment of interest on unpaid portions of the purchase price, of all supplies re-

- quired by the city government or any of its agencies under competitive bidding or by contractual negotiation. Any contract providing for deferred payments and the payment of interest shall be subject to specific rules adopted by the city manager.
- (b) The city manager may remove from the vendor list any source of supplies or services which fails more than once to fulfill any of its duties specified in a contract with the city. He/She may reinstate any such source of supplies or services when he/she is satisfied that further instances of default will not occur.
- (2) To plan and coordinate purchases in volume and to negotiate and execute purchasing agreements and contracts under which the city manager shall require city agencies to purchase budgeted supplies.
 - (3) To establish a system of coordinated, uniform procurement policies, procedures, and practices to be used by agencies in acquiring contractual services which shall include, but are not limited to:
 - (a) Development of a list of interested vendors to be maintained by classes of contractual services. This list shall not be used to prequalify vendors or to exclude any interested vendor from bidding. All vendors listed in a particular class shall be mailed, by the agency, at the address provided to the city by the vendor, a notice of the ITB, RFP, RFQ or RFLI at least twenty-eight (28) days prior to the date set for submittal of bids or proposals.
 - (b) Development of procedures for the releasing of an ITB, RFP, RFQ or RFLI which shall include, but not be limited to, notice in accordance with applicable Florida law, twenty-eight (28) days prior to the date set for submittal of bids or proposals.
 - (c) Development of procedures for the receipt of responses.
 - (d) Development of procedures to be used by an agency in deciding to contract, including, but not limited to, identifying and assessing in writing project needs and requirements, availability of agency employees, budgetary constraints or availability, facility equipment availability, current and projected agency work load capabilities, and the ability of any other city agency to perform the services.
 - (e) Development of procedures to be used by an agency in maintaining a contract file for each contract which shall include, but not be limited to, all pertinent information relating to the contract during the preparatory stages, a copy of the ITB, RFP, RFQ or RFLI, documentation relating to the bid process, opening of bids, evaluation and tabulation of bids, and determination and notice of award of contract.
 - (4) To prescribe the methods of securing bids or negotiating and awarding supplies contracts, unless otherwise provided by law.
 - (5) To prescribe specific supplies and quantities to be purchased locally.
 - (6) To govern the purchase by any agency of any supplies; to establish standards and specifications for any supplies; and to set the maximum fair prices that shall be paid for any supplies.
 - (7) To establish definitions and classes of contractual services. The authority of the city manager under this section shall not be construed to impair or interfere with the determination by city commission of their need for, or their use of, services including particular specifications.
 - (8) Except as otherwise provided herein, to adopt rules necessary to carry out the purposes of this section, including the authority to delegate to any city agency any and all the responsibility for supervision thereof. Such purchasing of supplies and procurement of contractual services by city agencies shall be in strict accordance with the rules and procedures prescribed by the city manager and this law.

- (9) To award contracts for the purchase of supplies and contractual services as provided below:
- a. Any contract for supplies and contractual services not exceeding one thousand dollars (\$1,000.00) may be made in accordance with the small purchase procedures. Supplies purchases shall not be artificially divided so as to constitute a purchase under this section.
 - b. Purchases of supplies and contractual services when the estimated value is between one thousand dollars and one cent (\$1,000.01) and two thousand, five hundred dollars (\$2,500.00) may be made upon receipt of two (2) documented telephone quotes. Purchase shall be made from the most responsive and responsible quoter.
 - c. Purchases of supplies and contractual services when the estimated value is between two thousand, five hundred dollars and one cent (\$2,500.01) and seven thousand, five hundred dollars (\$7,500.00) may be made upon receipt of not less than three (3) documented telephone quotes. In order to determine a fair and reasonable price, additional quotes may be solicited. Purchase shall be made from the most responsive and responsible quoter.
 - d. Purchases of supplies and contractual services when the estimated value is between seven thousand, five hundred dollars and one cent (\$7,500.01) and twenty-five thousand dollars (\$25,000.00) may be made upon receipt of not less than three (3) written quotes. In order to determine a fair and reasonable price, additional quotes may be solicited. Purchase shall be made from the most responsive and responsible quoter.
 - e. Purchases of supplies and contractual services when the estimated value is greater than twenty-five thousand dollars (\$25,000.00) will be acquired through formal bidding procedures unless exempted as defined in Section 2-318. All purchases of supplies and contractual services must be approved the city commission before the purchase is made.
- (10) To renew contracts below twenty-five thousand dollars (\$25,000.00) for supplies and contractual services provided that the following criteria are all satisfied.
- a. The terms and conditions of the original contract expressly provide for the city's right to renew the contract at the same prices as originally awarded by the city commission or within price adjustment clause parameters as defined in the solicitation documents or agreement.
 - b. A market survey and/or contract quality review has been conducted to determine if renewal of the contract is in the best interest of the city. For supplies and contractual services originally procured through the request for proposals or letter of interest processes, a market survey shall be performed only if it is determined that, due to a significant change in the industry or profession providing the services, an evaluation of current market conditions would be effective.
 - c. An evaluation of the performance of the contractor under the preceding contract term has determined, in writing, that such performance meets established criteria regarding service, responsiveness and quality levels.
- (11) To delegate purchasing authority to procure supplies and contractual services relating to the maintenance and repair of city equipment in an amount not to exceed one thousand dollars (\$1,000.00) to city staff in accordance with established purchasing procedures. In the case of an emergency situation declared by either the federal government, state government, or city commission, delegated purchasing authority may be increased to an amount not to exceed seven thousand five hundred dollars (\$7,500.00).
- (12) To sell, trade or otherwise dispose of surplus and obsolete property belonging to the city either by sale, barter or exchange, by sealed bid, public auction, cannibalization, trade in,

or other means of disposal as may be appropriate and in the best interests of the city. Disposal of surplus or obsolete property for sums in excess of twenty thousand dollars (\$20,000.00) per item, shall be made only after approval by the city commission.

- (13) The city manager shall have no authority to purchase, lease or sell real property without prior city commission authorization and approval.

(Code 1983, § 2-316; Ord. No. 90-7, §§ 1, 2, 7-25-1990; Ord. No. 96-08, § 1, 3-13-1996; Ord. No. 10-11, § 2, 4-14-2010; Ord. No. 15-02, § 2, 1-14-2015; Ord. No. 15-05, § 2, 5-13-2015; Ord. No. 20-07, § 2(2-316), 4-8-2020; Ord. No. 2025-05, § 3, 2-12-2025)

Sec. 2-317. Formal competitive procurement required.

All initial awards of contract for supplies and contractual services when the estimated total cost thereof shall exceed twenty-five thousand dollars (\$25,000.00) shall be awarded by the city commission through the process of competitive sealed bidding, competitive request for proposals and qualifications, or request for Letters of Interest, except as otherwise provided herein. (Ord. No. 20-07, § 2(2-317), 4-8-2020)

Sec. 2-318. Exceptions to competitive procurement requirement.

The following are exempt from the requirements of formal competitive procurement:

- (1) Sole source procurement.

- a. All specifications shall be drafted so as to promote overall economy for the purposes intended, to encourage competition in satisfying the city's need and shall not be unduly restrictive. Brand name specifications are restrictive of competition and shall only be used as specifically provided in this article.
- b. A contract may be awarded without competition when the city manager makes a written determination, after conducting a good faith review of available sources, that there is only one (1) source for the required supplies or contractual service. The city manager shall conduct negotiations as appropriate to price, delivery

and terms. A record of sole source procurement shall be maintained as a public record and shall list each contractors name, amount and type of each contract, and the identification number of each contract file.

- c. All sole source procurements, where the cost of the supplies or contractual services exceeds twenty-five thousand dollars (\$25,000.00), shall be authorized by the city commission.

- (2) Emergency procurements. The city manager may make emergency procurements of supplies or contractual services where the cost exceeds twenty-five thousand dollars (\$25,000.00) when there exists a clear and present threat to public health, property, welfare, safety or other substantial loss to the city, provided, however, that such emergency procurements shall be made with such competition as is practicable under the circumstances. A written determination of the basis for the emergency and for the selection of the particular contractor shall be included in the contract file. As soon as practicable, a record of the emergency procurement shall be made and shall set forth the contractor's name, the amount and type of the contract, a listing of the supplies or contractual service procured under this contract, and the number of the purchase order, if any. The city commission must be notified, after the fact, of such procurements in excess of twenty-five thousand dollars (\$25,000.00) at the next scheduled commission meeting. In any event any increase over the original amount of an emergency procurement reported to the city commission exceeding ten (10) percent must be reported to the city commission to be noted for the record.

- (3) Purchases and acquisitions under contracts of the federal government, the State of Florida or its political subdivisions and also municipal co-operative purchasing organizations and programs. Purchases of supplies or contractual services under the provisions of local, state, and federal purchasing contracts as well as municipal co-operative purchasing organizations and programs shall be exempt from the

competitive procurement requirements, provided that the following criteria are all satisfied:

- a. The terms and conditions of the original contract by federal, state, local government or municipal co-operative purchasing organization or program are satisfactory to the city and such terms and conditions are extended to other governmental bodies.
 - b. The original contract by the federal, state, local government or municipal co-operative purchasing organization or program for supplies purchases or procurement of contractual services is current and in effect at the time of the proposed purchase of supplies or services by the city.
 - c. The city manager has determined that the prices of the original contract are competitive and reasonable.
 - d. The city commission must authorize such procurement when the cost of the supplies or contractual services exceeds twenty-five thousand dollars (\$25,000.00).
- (4) Exempt contractual services not subject to the competitive procurement requirement are defined as:
- a. Services involving special skill, ability, training, or expertise, which in their nature are unique, original or creative.
 - b. Legal services including paralegals, expert witnesses, appraisal services, investigative services and court reporters.
 - c. Actuarial services.
 - d. Auditing services.
 - e. Academic program reviews or lectures or seminars by individuals.
 - f. Health services involving examination, diagnosis, treatment, prevention, medical consultation or administration.
 - g. Artistic services which are original and creative in character and skill in a recognized field of artistic endeavor such as music, dance, drama, painting, and sculpture, photography, culinary arts, fashion

design and the like provided however, that contracts for artistic instructors, coaches, teachers, aides, and assistants are deemed contractual services subject to the requirements of competitive procurement.

- h. Performing artists and entertainers hired to provide entertainment for the benefit of the citizens of Opa-locka and the general public at any city facility.
- i. Maintenance service of equipment. When considered to be in the best interest of the city and recommended by the using department and the services to be performed are by the equipment manufacturer, manufacturer's service representative, a distributor of the manufacturer's equipment or when at least three (3) responsible services have been evaluated, the services may be procured without bid.
- j. Advertising.
- k. Utilities including but not limited to electric, water and telephone.
- l. Goods and services provided by other government entities or not-for-profit organizations.
- m. Copyrighted materials (books, videotapes, etc.) except computer software.
- n. Food, clothing and other promotional items purchased for resale or distribution to the public.
- o. The foregoing enumeration of services deemed to be exempt from the competitive procurement requirements is not intended to be an exhaustive or exclusive list. The city manager or his designee may determine if a contractual service must be procured through the competitive procurement process, if not expressly indicated above.

(Ord. No. 20-07, § 2(2-318), 4-8-2020)

Sec. 2-319. Contracts for professional services.

All contracts for professional services as that term is defined in the Consultants Competitive Negotiations Act, F.S. § 287.055 (1991), as amended from time to

time, shall be awarded in accordance with the procedures set forth in that Act and any city purchasing procedures adopted in furtherance of that Act.

Selection and negotiation committees shall be created to evaluate the qualifications and performance capabilities of offerors responding to the solicitation for professional services, and to competitively negotiate contracts therefore, in accordance with the requirements of the Consultants Competitive Negotiations Act. The city manager shall have the authority to appoint the members of the selection and negotiation committees for each procurement of professional services made pursuant to the Consultants Competitive Negotiations Act.

(Ord. No. 20-07, § 2(2-319), 4-8-2020)

Sec. 2-320. Cone of silence.

(a) *Purpose.* A cone of silence shall be applicable to all city staff, the mayor and city commission and its staff, the city attorney and his/her staff, the city clerk and his/her staff regarding any communication relating to requests for proposal (RFP), requests for qualification (RFQ), invitations to bid (ITB), request for letters of interest (RFLI), or any other advertised solicitations for the provision of goods and services, professional services, and public works or improvements for amounts greater than \$25,000.00, unless otherwise exempted in this section.

(b) *Definition.* The term "cone of silence" means a prohibition on:

- (1) Any communication regarding a particular RFP, RFQ, ITB, RFLI, or any other advertised solicitation between a potential proposer, offeror, respondent, bidder, lobbyist or consultant and the city's staff including, but not limited to the city manager and his/her staff;
 - (2) Any communication regarding a particular RFP, RFQ, RFLI, ITB or any other advertised solicitation between a potential proposer, offeror, respondent, bidder, lobbyist, or consultant and any member of the selection/evaluation committee therefore;
 - (3) Any communication regarding a particular RFP, RFQ, RFLI, ITB or any other advertised solicitation between a potential proposer, offeror, respondent, bidder, lobbyist, or consultant and the mayor and city commission and their respective staff, the city attorney and his/her respective staff, the city manager and his/her respective staff.
- (c) *Exemptions.* Notwithstanding the foregoing, the cone of silence shall not apply to:
- (1) Communications between a potential proposer, offeror, respondent, bidder, consultant and city purchasing staff, prior to bid opening date or receipt of proposals, provided the communication is limited strictly to matters of process or procedure already contained in the corresponding solicitation document;
 - (2) Duly noticed pre-bid/proposal conferences and site inspections;
 - (3) Duly noticed site visits to determine the competency of bidders/proposers regarding a particular solicitation during the time period between the opening of bids/receipt of proposals and the time the city manager presents his/her written recommendation to city commission;
 - (4) Emergency procurements;
 - (5) Communications with the city attorney;
 - (6) Sole source procurements;
 - (7) Those purchases that are exempted from competitive requirements in accordance with section 2-319 and section 2-320;
 - (8) Bid waivers;
 - (9) Oral presentations before selection/evaluation committees and communications occurring during duly noticed meetings of selection/evaluation committees;
 - (10) Public presentations made to the city commission and communications occurring during any duly noticed public meeting;
 - (11) Communications in connection with the collection of industry comments or the performance of market research regarding a particular RFP, RFQ, RFLI, ITB or any other advertised solicitation by the purchasing staff;
 - (12) Contract negotiations that occur after an award; and
 - (13) Any communication regarding a particular RFP, RFQ, RFLI, ITB or any other adver-

tised solicitation between the city manager and his/her staff, and the mayor and city commission and their staff.

(d) *Procedure.*

- (1) *Imposition.* A cone of silence shall be imposed upon each RFP, RFQ, RFLI, ITB or any other advertised solicitation when the solicitation is advertised in accordance with applicable Florida law. At the time of imposition of the cone of silence, the city manager or his/her designee shall issue a notice thereof to the affected department, the city clerk, the city attorney, mayor and city commission and shall include in any advertised solicitation a statement disclosing that the solicitation is subject to the cone of silence.

- (2) *Termination; city council awarding authority.* Except as otherwise provided herein, the cone of silence shall terminate at the date and time of the city commission meeting where the award will be made; provided, however, that if the city commission defers the matter to a future date, the cone of silence shall be reimposed until such time as the matter is brought back before the city council for further deliberation. In the event the city council decides to reject all bids, then the cone of silence shall be lifted.

- (3) *City manager awarding authority.* Except as otherwise provided herein, the cone of silence shall terminate at the time the issuing department issues a written recommendation to the city manager; provided, however, that if the city manager refers the recommendation back for further review, the cone of silence shall be reinstated until such time as the city manager issues a recommendation for award pending the bid protest period.

- (e) *Penalties.* Violation of the cone of silence by a particular bidder or proposer shall render the award to said bidder or proposer voidable by the city commission. A violation of this section by a particular bidder, proposer, offeror, respondent, lobbyist or consultant shall subject said bidder, proposer, offeror, respondent, lobbyist or consultant to five hundred dollars (\$500.00) fine per violation and debarment.

(Code 1983, § 2-320.2; Ord. No. 16-08, § 2, 9-14-2016; Ord. No. 20-07, § 2(2-320), 4-8-2020; Ord. No. 2025-05, § 4, 2-12-2025)

Sec. 2-321. Contract document.

(a) Every procurement of contractual services shall be evidenced by a written agreement embodying all provisions and conditions of the procurement of such services, which provisions and conditions shall include but not be limited to:

- (1) A provision that bills for fees or other compensation for services or expenses be submitted in detail sufficient for a proper pre-audit and post-audit thereof.
- (2) A provision that bills for any travel expenses shall be submitted in accordance with Section 112.061 of the Florida Statutes. A city agency may establish rates lower than the maximum provided in Section 112.061, Florida Statutes.
- (3) A provision allowing unilateral cancellation by the agency for refusal by the contractor to allow public access to all documents, papers, letters, or other material subject to the provisions of F.S. ch. 119 and made or received by the contractor in conjunction with the contract.
- (4) A provision dividing the contract into units of deliverables, which shall include, but not be limited to, reports, findings, and drafts, that must be received and accepted in writing by the contract manager prior to payment.
- (5) A provision specifying the criteria and the final date by which such criteria must be met for completion of the contract.
- (6) Where applicable, a provision specifying that the contract may be renewed on a yearly basis for a maximum of two (2) years after the initial contract specifying, the terms under which the cost may change as determined in the invitation to bid or request for proposals; and specifying that renewals shall be contingent upon satisfactory performance evaluations by the agency and subject to the availability of fund.

(b) The written agreement shall be signed by the city manager and the contractor prior to the rendering of any contractual service, except in the case of a valid emergency as certified by the city manager.

(Code 1983, § 2-321; Ord. No. 90-7, §§ 1, 2, 7-25-1990; Ord. No. 20-07, § 2(2-321), 4-8-2020)

Sec. 2-322. Sale of city property worth \$250.00 or less.

The city manager shall be authorized to sell any city property certified by him/her to be obsolete and unusable without securing competitive bid if it appears that the obsolete and unusable property shall be of less value than two hundred fifty dollars (\$250.00).

(Ord. No. 18-16, 2, 9-26-2018; Ord. No. 20-07, § 2(2-322), 4-8-2020)

Sec. 2-322.1. Execution of contracts by city manager.

The city manager shall execute and sign all contracts awarded by the governing body and authorized pursuant to law. The signature of the city manager shall be attested by the city clerk. In the absence of the city manager, the assistant city manager may execute and sign all contracts which shall be attested by the city clerk.

(Ord. No. 20-07, § 2(2-323), 4-8-2020)

Sec. 2-323. Minority vendor procurement program.

It is in the best interest of the city that a minority vendor procurement program for qualified vendors be established to enable the city to fully utilize the skills and services of such minority vendors in acquiring goods and services by the city.

(Code 1983, § 2-324; Ord. No. 83-6, § 10, 4-27-1983; Ord. No. 20-07, § 2(2-323), 4-8-2020)

Sec. 2-324. Protest procedures.

The following shall govern any protest made by a participant in any competitive process utilized for the selection of a person or entity in regard to any response to a city request for proposal (RFP)/invitations to bid (ITB)/request for letters of intent (RFLI) and/or requests for qualification (RFQ):

- (1) Protest of any city recommendation for an award in response to a request for proposals shall be filed with the city clerk and mailed by the protesting party to all responders to the bid proposal within seventy-two (72) hours of the city's recommendation for an award or the city's actual award, whichever comes first. Such protest shall be in writing, shall state the particular grounds on which it is based, and shall include all pertinent documents and evidence. The protest letter to the city clerk shall include proof of mailing/receipt to other responders to the bid and shall be accompanied by a

cashier's check in the amount of five hundred dollars (\$500.00) representing the filing fee, plus a cost bond in the amount of two thousand five hundred dollars (\$2,500.00) to reimburse the city for all administrative costs associated with the appeal process. The two thousand five hundred dollars (\$2,500.00) bond shall be returned to the protester if the protester prevails in the hearing before the hearing examiner/special magistrate. If the protester does not prevail the city shall keep the bond. Any grounds not stated shall be deemed waived.

- (2) Protests shall be referred by the city clerk to the city manager who shall select a hearing examiner or special magistrate who shall hold a hearing and submit written findings and recommendations within fifteen (15) days of the filing of the protest. The hearing examiner shall consider the written protests, supporting documents in evidence, the city's recommendations and supporting documentation and all evidence presented at the hearing. Such finding and recommendation shall be filed with the city clerk.
- (3) Hearing examiners/special magistrates shall be members of the Florida Bar.
- (4) The hearing examiner/special magistrate's findings shall be final. Appeals of a decision by the hearing examiner shall be to the county circuit court. The prevailing party in the appeal may be entitled to recover any and all attorney fees and costs incurred in the appeal.
- (5) Failure to follow the protest procedures set forth herein shall automatically nullify any protest or claim brought by an aggrieved bidder, offeror or contractor.

(Code 1983, § 2-325; Ord. No. 16-09, § 2, 9-14-2016; Ord. No. 20-07, § 2(2-324), 4-8-2020)

Sec. 2-325. Verification of services required prior to payment.

(1) Except as permitted by this under section, no payment shall be issued by the city for contractual services unless and until authorized by the city manager and verified that documented services were:

- (a) Satisfactorily received;

- (b) Performed in accordance with the contract or agreement terms; and
- (c) Delivered in full pursuant to agreed upon milestones, unless an exception is granted in writing by the city manager or designee.

(2) Advance deposits or retainers may be permitted when the following conditions apply:

- (a) Clearly authorized by written agreement;
- (b) Approved by the city manager or designee following city commission approval of same; and
- (c) Documented with clear terms regarding purpose, amount, and payback terms.

(3) *Contract language requirement.* All city contracts for services shall include language stating the following:

- (a) No final or milestone payment shall be made unless services have been verified by the city manager or designee and work has been satisfactorily performed;
- (b) Advance deposits may be made only if expressly authorized by this agreement.

(Ord. No. 2025-17, § 2, 6-23-2025)

Secs. 2-326—2-334. Reserved.

DIVISION 2. WAGES FOR LABORERS AND MECHANICS

Sec. 2-335. Specifications to stipulate minimum.

The advertised specifications for every contract in excess of five thousand dollars (\$5,000.00) to which the city or any of its departments, agencies or authorities is a party, for construction, alteration and/or repair, including painting and decorating, of public buildings or public works within the geographical limits of the city, and which requires or involves the employment of mechanics and/or laborers shall contain a provision stating the minimum wages to be paid various classes of laborers and mechanics which shall be based upon the wages that will be determined by the United States Secretary of Labor or the state, whichever is the higher,

to be prevailing for the corresponding classes of laborers and mechanics employed on projects of a character similar to the private contract work in the county. (Code 1955, § 2-22.1; Code 1983, § 2-335)

Sec. 2-336. Provisions required in contract.

Every contract based upon these specifications shall contain a stipulation that the contractor or his subcontractor shall pay all mechanics and laborers employed directly upon the site of the work, unconditionally and not less often than once a week, and without subsequent deduction or rebate on any account, the full amount accrued at time of payment, computed at wage rates not less than those stated in the advertised specifications, regardless of any contractual relationship which may be alleged to exist between the contractor or subcontractor and such laborers and mechanics, and that the scale of wages to be paid shall be posted by the contractor in a prominent and easily accessible place at the site of the work; and the further stipulation that there may be withheld from the contractor so much of accrued payments as may be considered necessary by the contracting officer to pay to the laborers and mechanics employed by the contractor or any subcontractor on the work the difference between the rates of wages required by the contract to be paid laborers and mechanics on the work and the rates of wages received by such laborers and mechanics and not refunded to the contractor, subcontractors or their agents. (Code 1955, § 2-22.1; Code 1983, § 2-336)

Sec. 2-337. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Wages, scale of wages, wage rates, minimum wages and prevailing wages include:

- (a) The basic hourly rate of pay; and
- (b) The amount of:
 - (1) The rate of contribution irrevocably made by a contractor or subcontractor to a trustee or to a third person pursuant to a fund, plan or program; and
 - (2) The rate of costs to the contractor or subcontractor which may be reasonably anticipated in providing benefits to la-

borers and mechanics pursuant to an enforceable commitment to carry out a financially responsible plan or program which was communicated in writing to the laborers and mechanics affected for medical or hospital care, pensions on retirement or death, compensation for injuries or illness resulting from occupational activity, or insurance to provide any of the foregoing, for unemployment benefits, life insurance, disability and sickness insurance, or accident insurance, for vacation and holiday pay, for defraying costs of apprenticeship or other similar programs, or for other bona fide fringe benefits. Provided, that the obligation of a contractor or subcontractor to make payment in accordance with the prevailing wage determinations insofar as this definition is concerned may be discharged by the making of payments in cash, by the making of contributions of a type referred to in subsection (b)(1) of this section, or by the assumption of an enforceable commitment to bear the costs of a plan or program of a type referred to in subsection (b)(2) of this section, or any combination thereof, where the aggregate of any such payments, contributions and costs is not less than the rate of pay described in subsection (a) of this section plus the amount referred to in subsection (b) of this section.

(Code 1955, § 2-22.1; Code 1983, § 2-337)

Sec. 2-338. Computation of overtime.

In determining the overtime pay to which the laborer or mechanic is entitled under any state or federal law, his regular or basic hourly rate of pay (or other alternative rate upon which premium rate of overtime compensation is computed) shall be deemed to be the

rate computed under section 2-337(a), except that where the amount of payments, contributions or costs incurred with respect to him exceeds the prevailing wage applicable to him under this division, such regular or basic hourly rate of pay (or such other alternative rate) shall be arrived at by deducting from the amount of payments, contributions or costs actually incurred with respect to him, the amount of contributions or costs of the type described in subsection 2-337(a) actually incurred with respect to him, or the amount determined under subsection 2-337(b) but not actually paid, whichever amount is the greater.

(Code 1955, § 2-22.1; Code 1983, § 2-338)

Secs. 2-339—2-345. Reserved.

DIVISION 3. DEPARTMENT OF PURCHASING

Sec. 2-346. Created.

There is hereby created a department of the city to be known as the department of purchasing.

(Code 1983, § 2-346; Ord. No. 83-6, § 1, 4-27-1983)

Sec. 2-347. Purchasing officer.

The department of purchasing's director shall be known as the purchasing officer.

(Code 1983, § 2-347; Ord. No. 83-6, § 2, 4-27-1983)

Sec. 2-348. Duties of purchasing officer—Uniform manner of purchasing.

As provided by the laws of the State of Florida, the Charter of the city and this Code of Ordinances, those regulations and procedures adopted in accordance with this article, the purchasing officer shall cause all purchases of materials, services, equipment or supplies of the city to be made in a uniform manner and at the most favorable price for services, equipment and supplies of similar quality. In addition, the purchasing officer shall ensure that all purchases are delivered in correct number, quality and that purchases comply with the standards and specifications established in the procedures manual in effect at the time of purchase.

(Code 1983, § 2-348; Ord. No. 83-6, § 3, 4-27-1983)

Sec. 2-349. Duties of purchasing officer—Inventory.

The purchasing officer shall cause to be kept an inventory of all city property and it shall be the duty of

each officer or employee of the city having city property in their custody or control to keep or provide inventory information relating to such property to the purchasing officer on request.

(Code 1983, § 2-349; Ord. No. 83-6, § 4, 4-27-1983)

Sec. 2-350. Duties of purchasing officer—Procedures manual.

The purchasing officer with the approval of the city manager shall prepare a procedures manual for the internal management and operation of the department of purchasing.

(Code 1983, § 2-350; Ord. No. 83-6, § 5, 4-27-1983)

Sec. 2-351. Duties of purchasing officer—Minority vendor procurement program.

The purchasing officer is hereby directed to institute a minority vendor procurement program to utilize minority skills and services. Such programs shall, at a minimum, provide:

- (a) Except to the extent that the city manager shall determine otherwise, not less than twenty (20) percent of the amounts expended by the city shall be expended with small business concerns owned and controlled by socially and economically disadvantaged individuals as defined by section 8(d) of the Small Business Act (15 USC 637(d) and relevant subcontracting regulations promulgated pursuant thereto.
- (b) Such other provisions as the city manager through the purchasing officer in his discretion may deem necessary to carry out the general intent of this article. The city manager shall engage an outside consultant to establish an affirmative action minority business enterprise program.
- (c) The city commission may adopt by resolution general policy guidelines which shall be included in and made a part of the procedures manual and amended from time to time by resolution of the commission.

(Code 1983, § 2-351; Ord. No. 83-6, § 11, 4-27-1983)

Secs. 2-352—2-360. Reserved.

DIVISION 4. RESERVED

Secs. 2-361—2-377. Reserved.

ARTICLE VII. SPECIAL ASSESSMENTS

Sec. 2-378. Fund created.

There is hereby created a special assessment fund out of which may be paid the costs of any proposed improvement authorized by the city commission under F.S. ch. 170, where special assessments are levied or are to be levied to pay all or any portion of the cost of such improvements. All the provisions for the manner of payment by bonds or certificates of indebtedness, pursuant to F.S. § 170.11 are incorporated as a part of this section.

(Code 1955, § 20-14; Code 1983, § 2-378)

Sec. 2-379. Improvement lien book required.

The proper officers or officials of the city are authorized and directed to maintain accurate and complete assessment records by legal property description, ownership and amount of assessment in a special book to be known as the improvement lien book, and such record of lien in said book entered by the clerk of the city shall constitute prima facie evidence of its validity.

(Code 1955, § 20-15; Code 1983, § 2-379)

Sec. 2-380. Separation of improvement accounts; reports.

All monies, certificates of indebtedness or bonds received or expended on behalf of any proposed improvement shall be kept separate and apart from other improvement projects and a report of the current fiscal status of any improvement shall be made by the city manager upon request of the city commission.

(Code 1955, § 20-16; Code 1983, § 2-380)

Sec. 2-381. Authority of city commission.

All disbursements of monies, certificates of indebtedness or bonds which are deemed necessary to be paid under special improvement projects shall be first authorized by the city commission, and a special assessment fund created for the financing of each project shall be authorized by the city commission.

(Code 1955, § 20-17; Code 1983, § 2-381)

Secs. 2-382—2-391. Reserved.

ARTICLE VIII. DEPARTMENT OF BUILDINGS AND LICENSING

Sec. 2-392. Created.

There is hereby created and established a department to be known as the department of buildings and licensing.

(Code 1955, § 2-12; Code 1983, § 2-392)

Sec. 2-393. Director, other personnel; appointment, compensation.

The city manager is hereby authorized and directed to appoint a director of the department to serve at the will and pleasure of the city manager. Provision for salary of the director and such additional assistance or employees as may be necessary, shall be provided in budgets and pay scales.

(Code 1955, § 2-13; Code 1983, § 2-393)

Sec. 2-394. Jurisdiction of department.

The department shall be charged with the responsibility for buildings, electricity, plumbing and enforcement of same, line and grade permits, boiler, smoke, elevators, issuance of certificates of occupancy, inspections and licensing as provided by the Code of Ordinances or in connection with any construction, excavation or building within the city.

(Code 1955, § 2-14; Code 1983, § 2-394)

Secs. 2-395—2-400. Reserved.

ARTICLE VIII.5. DEPARTMENT OF PUBLIC AFFAIRS

Sec. 2-401. Established; responsibilities.

(a) There is hereby established a department to be known as the department of public affairs.

(b) The department of public affairs shall be responsible for the following:

- (1) Preparation and distribution of the city newsletter and other city publications.
- (2) Establishment of a central location within the city whereby members of the press and citi-

zens may obtain copies of official statements and documents of the city, city commission, city manager and all departments of the city.

- (3) Preparation and presentation for distribution of all publicity, promotion and information of the city.
 - (4) Preparation and recommendation of methods of promotion of city projects, city activities, board activities and all governmental initiatives.
 - (5) Cooperation with the city chamber of commerce and other business groups and commercial activities within the city as authorized by the city manager and city commission by supplying information, copies of publications and dissemination of information.
 - (6) Coordination and development of all city participation and utilization of the cable TV systems within the city, as approved by the city manager and city commission.
 - (7) Cooperation with the county school system, Biscayne College, and other educational institutions in relation to the utilization of city information, projects and other initiatives approved by the city manager and the city commission.
 - (8) Carrying out such additional duties as may be requested by the city manager and city commission.
- (Code 1983, § 2-401; Ord. No. 83-1, § 1, 1-12-1983)

Sec. 2-402. Appointment of director; provision for salaries and costs.

The city manager is hereby authorized and directed to appoint a director of the department of public affairs. Provision for salaries and costs related to the duties and functioning of this department shall be provided in the annual budget and pay plan of the city under the title "department of public affairs."
(Code 1983, § 2-402; Ord. No. 83-1, § 2, 1-12-1983)

Secs. 2-403—2-405. Reserved.

ARTICLE IX. DEPARTMENT OF PUBLIC WORKS AND UTILITIES

Sec. 2-406. Created.

There is hereby created a department to be known as the department of public works and utilities.
(Code 1955, § 2-17; Code 1983, § 2-406)

Sec. 2-407. Appointment, term of director; salaries; additional employees.

The city manager is hereby authorized and directed to appoint a director of the department of public works and utilities to serve at the will and pleasure of the city manager. Provisions for salaries and such additional assistance or employees as may be necessary shall be provided in budgets and pay scales under the title department of public works and utilities.
(Code 1983, § 2-407)

Sec. 2-408. Functions and duties.

The department of public works and utilities shall have the following functions and duties:

- (a) It shall have charge of the construction, improvement, repair, maintenance and operation of streets, sidewalks, alleys, lanes, bridges, viaducts and other public highways; drains, ditches, culverts, canals, streams and watercourses, all public buildings and boulevards, and all other public places and grounds belonging to the city or dedicated to public use and not specifically made the responsibility of some other department or agency. It shall have charge of the maintenance, operation, improving, constructing and repairing of public warehouses. It shall have charge and control of all public utilities of the city other than water and sewer plants, water and sewer distribution systems and their appurtenances. It shall have charge of the enforcement of all the obligations of privately owned and operated public utilities enforceable by the city except those relating to water and sewer systems.
- (b) It shall have charge of the making and preservation of all surveys, maps, plans, drawings and estimates for public work; the cleaning, sprinkling and lighting of streets and public places; the collection and disposal of waste, garbage, and offal; the preservation of con-

tracts, papers, plans, tools and appliances belonging to the city and pertaining to the department. It shall have charge of all public buildings; not specifically made the responsibility of some other department or agency.

(Code 1955, § 2-18; Code 1983, § 2-408)

Secs. 2-409—2-420. Reserved.

ARTICLE IX.5. DEPARTMENT OF PLANNING AND ZONING

Sec. 2-421. Created; functions and duties.

(a) There is hereby created a department to be known as the department of planning and zoning.

(b) The department shall have the following functions and duties:

- (1) Responsibility for coordinating all city planning activity, including, but not limited to, preparation and assistance in the preparation of the comprehensive plan and amendment thereof.
- (2) Research, selection, storage and retrieval of data sources, demographics, and general information applicable to the development of the city.
- (3) Preparation of plans and reports relating to capital improvements, needs and necessities.
- (4) Assistance of the planning and zoning board and such other boards, agencies and committees of the city as may be directed by the city manager.
- (5) Preparation of formats and recommendations for proposed amendments to elements of the comprehensive plan.
- (6) Preparation of proposals and recommendations relating to project planning for business development within the city.
- (7) Preparation of reports and analysis for the planning and zoning board pending applications.

- (8) Preparation and supervision of the preparation of graphics and displays.
- (9) Investigation, analysis and recommendation to the city manager and city commission of the need and necessity, if any, for disposition or acquisition of city property in connection with any planned project.
- (10) Review and recommendation of sites within the city for use by the city in connection with any proposed project.
- (11) Surveying the city's administrative needs and recommending improvements, acquisition, or construction of additional buildings or facilities.
- (12) Supervision and implementation of methods for the collection of research data.
- (13) Establishment and maintenance of the city archives and filing system and assistance of the city clerk in maintaining and accessing information contained therein.
- (14) Cooperation with and participation, if possible, in the design and development of permanent and regional development plans by the county and the state.
- (15) Continual investigation and recommendation of the needs and necessity if any, for intergovernmental agreements.
- (16) Cooperation with, and providing assistance to, the departments of public works, building, licensing and code enforcement.
- (17) Carrying out any additional duties requested by city manager or city commission.

(Code 1983, § 2-421; Ord. No. 83-2, § 1, 1-12-1983)

Sec. 2-422. Appointment of director; provision for salaries and costs.

The city manager is hereby authorized and directed to appoint the director of the department of planning and zoning. Provision for salaries and costs related to the duties and functioning of this department shall be provided in the annual budget and pay plan of the city under the title "department of planning and zoning." (Code 1983, § 2-422; Ord. No. 83-2, § 2, 1-12-1983)

Sec. 2-423. Schedule of fees.

<i>Fee</i>	<i>Service Request</i>	<i>Comments</i>
\$400.00	Planning and zoning board application	Nonprofits/residential/property homeowner
\$500.00	Planning and zoning board application business/commercial	
\$500.00	Planning and zoning board application commercial apartment	Industrial/PUD's residential building
\$250.00	Housing authority board application	
\$700.00	Advertisement newspaper ad and preparation	
\$150.00	Preliminary staff plans review	First hour
\$50.00	Supplemental staff plans review	\$50.00 per additional half hour
\$100.00	Final staff review	
\$50.00	Administrative fee	Letters, copies, mail outs, etc.
\$150.00	Records search of property owner	Record search 1 hour
\$75.00	Supplemental property search	\$75.00 per additional half hour
\$1,000.00	Tentative plat	
\$1,050.00	Final plat	
\$500.00	Comprehensive plan amendment	Zoning/land use changes
\$150.00	Preliminary drainage plan review	
\$75.00	Final drainage plan review	\$75.00 Fee per additional half hour
\$100.00	Fill permit request evaluation	
\$75.00	Supplemental fill permit review	\$75.00 Fee per additional half hour
\$150.00	Preliminary site plan review	
\$150.00	Final site plan review	
\$100.00	Conditional use permit—No plans	
\$150.00	Conditional use permit—With plans	
\$300.00	Environmental review analysis	
\$100.00	Special exception—No plans	
\$1,000.00	Subdivision of plat	Recorded/unrecorded plat
\$0.25	Regular photocopies per page	Black & white
\$1.00	Photocopies per page	Black & white—Specialties
\$2.00	Photocopies per page	Color—Specialties
\$5.00	Property list	City-owned
\$5.00	Abandoned building/vacant property list	
\$50.00	Report of transcribed meeting's minutes	Certified copy
\$25.00	Staff time per hour	Ancillary users
\$25.00	Additional copies of meeting minutes	Noncertified copy
\$1.00	Summary copies of minutes	Fee per page
\$25.00	Zoning maps	22×17 Black & white
\$30.00	Zoning maps	22×17 Color
\$10.00	Zoning maps	11×17 Black & white
\$15.00	Zoning maps	11×17 Color

<i>Fee</i>	<i>Service Request</i>	<i>Comments</i>
\$2.00	Zoning maps	8.5×11 Black & white
\$5.00	Zoning maps	8.5×17 Color
\$50.00	Large-print report maps	36×72
\$40.00	Copy of City Code of Ordinances/zoning book	
\$75.00	Copy of city comprehensive plan book	
\$25.00	Copies of aerial maps	Black & white
\$40.00	Copies of aerial maps	Color
\$100.00	Reproduction of graphics art rendering	
\$100.00	Planning and zoning board policy workbook	

(Code 1983, § 2-423; Ord. No. 03-11, § 2, 4-30-2003)

Secs. 2-424—2-427. Reserved.

ARTICLE IX.5.1. DEPARTMENT OF INFORMATION TECHNOLOGY

Sec. 2-428. Created; functions and duties.

(a) There is hereby created a department to be known as the department of information technology.

(b) The department of information technology shall be responsible for the hardware and software infrastructure of the entire city. This consists of the city's enterprise systems, government applications, web sites, internet access, carrier services (voice, local, long distance, mobile), telephone networks, WAN and LAN infrastructure, network security, fiber optics and systems engineering projects. It shall further provide efficiency and cost savings through the use of information systems and technology to serve the citizens of the city. The department will be responsible for managing all aspects of OPATV, the local PEG channel and the video production assistant personnel.

(c) The department shall have:

- (1) *Director of information technology.* The director is a highly responsible technical position that on a continual basis manages the long-term development, maintenance, security and operation of the city's computer operations and telephone systems. The position requires considerable initiative and independent judgment. Installs, maintains and monitors the operation of the city's multiple LAN and WAN networks. Evaluates vendor products in hardware, software and telecommunications equip-

ment; and recommends purchases consistent with short and long-term objectives. Recommends and implements local area network policies and standards, ensuring adherence to security procedures.

- (2) *Information technology network administrator.* Responsible for daily administration/support of existing network infrastructure. This includes resolution of WAN/LAN, firewall and voice issues, patching, ticket queue responsibilities, design validation, hardware refresh, first line troubleshooting and root cause analysis of network issues. Adheres to firm standard policies and procedures and change control processes. Participates and/or takes the lead in the patching, troubleshooting and analysis of WAN/LAN/VPN issues. Analyzes issues and creates timely solutions to meet operational needs.
- (3) *Information technology system specialist.* Responsible for day-to-day configurations and operation of the business systems to include server, network and client administration of Windows-based systems. Ensures the security and integrity of the network and its systems by managing firewall and responding to warnings. Assists users in their use of the system and provides troubleshooting for hardware problems and LAN issues.

(Code 1983, § 2-428; Ord. No. 07-21, § 1, 11-28-2007)

Secs. 2-429—2-433. Reserved.

ARTICLE X. HOUSING AUTHORITY***DIVISION 1. GENERALLY****Sec. 2-434. Established.**

There is hereby established a housing authority of the city. The city commission hereby finds and declares that there is a need for such an authority to function in the city.

(Code 1955, § 2-23; Code 1983, § 2-434; Ord. No. 93-5, § 1, 3-10-1993; Ord. No. 98-5, § 1, 7-22-1998)

Sec. 2-435. Membership; terms; appointments.

(a) The membership of the housing authority board shall be composed of seven (7) persons who shall serve as commissioners of the authority. The mayor, with the approval of the city commission, shall make appointments as provided for herein. Each commissioner shall be appointed as aforesaid for a term of office of four (4) years, except that a vacancy shall be filled for the unexpired term by an appointment by the mayor with the approval of the governing body within sixty (60) days after such vacancy occurs.

(b) Membership shall comply with F.S. § 412.05.

(c) Reserved.

(d) Membership on the authority shall be filled by the mayor, with the approval of the governing body. (Code 1955, § 2-24; Code 1983, § 2-435; Ord. No. 93-5, § 1, 3-10-1993; Ord. No. 98-5, § 1, 7-22-1998; Ord. No. 01-6, § 1, 4-25-2001; Ord. No. 05-09, § 2, 6-8-2005)

State law reference—Housing authority membership, F.S. § 421.05.

Sec. 2-436. Creation of vacancies.

Vacancies on the housing authority may be created for any one (1) of the following reasons:

- (a) By death or resignation of a commissioner.
- (b) By a commissioner being convicted of a felony or crime involving moral turpitude.
- (c) By legal declaration of mental incompetency of a commissioner.

*State law reference—Housing Authorities Law, F.S. § 421.001 et seq.

(d) By the removal of a commissioner by the mayor with the concurrence of the governing body. (Code 1955, § 2-24; Code 1983, § 2-436; Ord. No. 93-5, § 1, 3-10-1993; Ord. No. 98-5, § 1, 7-22-1998)

State law reference—Removal of housing authority members, F.S. § 421.07.

Sec. 2-437. Compensation.

The members of the housing authority shall serve without any compensation but shall be entitled to traveling and other necessary expenses incurred in the discharge of their duties. Sufficient funds shall be provided by the city commission in the annual budget for reasonable and necessary expenses to be incurred by the authority in the performance of its duties, including expert witness fees and legal fees.

(Code 1955, §§ 2-24, 2-29; Code 1983, § 2-437; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-438. Officers; clerical assistance.

Officers and employees of the commission shall be chosen as required by and in compliance with F.S. § 421.05. No compensation is to be paid to anyone the authority employs without the approval of the city manager and the city commission. The city manager shall direct other necessary and proper city officials to assist the authority in carrying out its functions.

(Code 1955, § 2-24; Code 1983, § 2-438; Ord. No. 93-5, § 1, 3-10-1993; Ord. No. 96-10, § 1, 4-24-1996; Ord. No. 98-5, § 1, 7-22-1998)

Sec. 2-439. Executive director designated; duties.

The executive director shall carry out any policy decisions which are made a part of the rules and regulations of the authority.

(Code 1955, § 2-27; Code 1983, § 2-439; Ord. No. 93-5, § 1, 3-10-1993; Ord. No. 98-5, § 1, 7-22-1998)

Sec. 2-440. Funding.

The city commission shall provide sufficient monies in the annual budget to fund the operation of the housing authority. Said monies, together with monies received by assignment of security deposits or recovery of judgments, shall be administered by the authority.

(Code 1955, § 2-24; Code 1983, § 2-440; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-441. General functions.

The housing authority is hereby vested with full rights and authority to administer, manage, operate and control any and all housing projects or units acquired by the city. Further, said authority shall be subject to this Code of Ordinances and shall enforce or cause to be enforced all statutes, codes or rules and regulations for the safe and sanitary operation of multifamily housing.

(Code 1955, § 2-23; Code 1983, § 2-441; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-442. Powers; limitations; rules and regulations authorized.

The housing authority shall have the power to acquire, plan, construct, reconstruct, alter, repair, maintain, or operate any housing project or housing accommodation as may be declared necessary by the city commission. The housing authority may exercise these powers within the annual budgetary limitations approved by the city commission, and within the provisions of any bond covenants necessary to purchase or complete a housing project. The housing authority shall establish rules and regulations for governing the rental, maintenance and general operation of a housing project.

(Code 1955, § 2-26; Code 1983, § 2-442; Ord. No. 93-5, § 1, 3-10-1993)

State law reference—General powers of housing authority, F.S. § 421.08.

Sec. 2-443. Approval of rules and regulations.

Rules and regulations adopted by the authority shall be approved by the city commission in the manner applicable to rules and regulations of the other boards and agencies of the city generally.

(Code 1955, § 2-25; Code 1983, § 2-443; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-444. Applicability of general rules and procedures.

The housing authority shall be subject to the rules and procedures governing all governmental agencies of the city and shall also be subject to F.S. ch. 421.

(Code 1955, § 2-29; Code 1983, § 2-444; Ord. No. 93-5, § 1, 3-10-1993; Ord. No. 98-5, § 1, 7-22-1998)

Sec. 2-445. State Landlord-Tenant Act adopted.

The provisions of the Florida Residential Landlord and Tenant Act (F.S. § 83.40 et seq.) be and the same is hereby adopted as an ordinance of the city.

(Code 1955, § 2-26; Code 1983, § 2-445; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-446. Authority to receive assignments.

The authority is authorized to receive assignments of any rights of action, contracts, leases or funds which either the landlord or the tenant may be entitled to under law.

(Code 1955, § 2-28; Code 1983, § 2-446; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-447. Authority to take evidence; legal services.

The housing authority may administer oaths and compel the attendance of witnesses and the production of documents. The city attorney shall supply all necessary legal services to the authority.

(Code 1955, § 2-29; Code 1983, § 2-447; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-448. When meetings held.

The housing authority shall meet at a date determined by the majority of the members in accordance with the rules and regulations applicable to boards and agencies generally, but not later than three (3) days after receiving a petition from a person seeking relief from violation of law or applicable ordinance.

(Code 1955, § 2-29; Code 1983, § 2-448; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-449. Meetings to be open; notice required.

All decisions of the housing authority shall be made at open public meetings in compliance with the laws of the state. The housing authority shall give notice of any proposed meeting by posting the notice of the meeting on the city's bulletin board not less than three (3) hours prior to said meeting or by public notification at a prior meeting.

(Code 1955, § 2-29; Code 1983, § 2-449; Ord. No. 93-5, § 1, 3-10-1993)

State law reference—Meetings to be open to public, F.S. § 286.011.

Sec. 2-450. Amendments authorized.

It is contemplated hereunder that the city commission may, from time to time, amend this article with respect to the duties of the housing authority as experience in operation and new programs may dictate. (Code 1955, § 2-25; Code 1983, § 2-450; Ord. No. 93-5, § 1, 3-10-1993)

Secs. 2-451—2-460. Reserved.

DIVISION 2. SAFETY AND SANITATION VIOLATIONS

Sec. 2-461. Jurisdiction of authority.

(a) The housing authority is hereby vested with the power and authority to issue orders directing the proper city officials to enforce the provisions of the Florida Residential Landlord and Tenant Act (F.S. § 83.40 et seq.) and such other provisions of this Code of Ordinances and the applicable ordinances of the county as may be necessary and proper to provide for safe and sanitary housing accommodations for multifamily dwellings within the city.

(b) Upon the filing with the housing authority of a sworn petition by one (1) or more persons, the authority shall have the power to determine whether or not any other governmental agency, bureau, committee or board has exclusive or concurrent jurisdiction to determine whether or not the leased or rented multifamily dwelling complies with either the landlord's obligations to maintain said premises pursuant to the provisions of F.S. § 83.51 or the tenant's obligation to maintain the dwelling pursuant to F.S. § 83.52.

(c) In the event the housing authority determines that it has current or original jurisdiction to determine whether or not the obligations of the landlord or the tenant have been performed in accordance with the law relating to rented or leased premises, the housing authority shall cause an examination to be made of the allegations of the sworn petition and shall determine whether or not the circumstances alleged, if true, constitute a prima facie violation of the applicable provisions of F.S. §§ 83.51, 83.52, this Code of Ordinances or the ordinances of the county.

(d) The housing authority shall thereafter determine whether or not an emergency condition exists which requires immediate remedial action in order to

protect the public welfare. Upon finding that an emergency condition exists, the housing authority shall set forth the nature of the emergency condition, and direct the proper persons to cause the repair, maintenance, resupply or replacement necessary to protect the public welfare, and designate a reasonable time in which to remedy the emergency condition.

(e) In the event the emergency condition is not corrected within the time set forth by the housing authority, the housing authority is empowered to cause the expenditure of funds budgeted for said purpose for the proper repair, maintenance, resupply, or replacement for those items of structure, equipment or supplies which are necessary to protect the public welfare by eliminating or alleviating the declared emergency conditions or enter its order declaring the premises uninhabitable.

(f) The housing authority may receive, administer and expend security deposit funds, grants and other budgeted funds of the housing authority pursuant to the terms of this section for the purpose of providing safe and sanitary housing conditions.

(g) The housing authority may initiate the prosecution of persons violating the statutes, ordinances, rules and regulations establishing standards for safe and sanitary housing accommodations within the city, said prosecution to be initiated in a court of competent jurisdiction.

(h) The housing authority may file civil actions in courts of competent jurisdiction to recover any and all monies expended by the housing authority, including reasonable attorney fees, in the event the housing authority deems it necessary and proper to repair, maintain, resupply or replace items of structure, equipment or supplies in order to protect the public welfare. (Code 1955, § 2-28; Code 1983, § 2-461; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-462. Investigation, report of building official.

The housing authority, after determining its jurisdiction, may direct the director of the department of buildings and licensing to make an investigation of the premises for the purpose of reporting to the housing authority the following:

- (1) Whether or not, in the opinion of the director of the department of buildings and licensing, a violation exists on the premises because of

either the landlord or the tenant pursuant to the provisions of F.S. § 83.51 or 83.52 or any other applicable ordinance.

- (2) The nature of the violation and recommendation as to remedial action.

(Code 1955, § 2-29; Code 1983, § 2-462; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-463. Rule to show cause.

(a) After determining its jurisdiction and receiving the report of the director, as aforesaid, if necessary, the housing authority shall determine whether or not probable cause exists of a violation of law relating to the safety and sanitary conditions of housing accommodations for multifamily dwellings within the city, and shall thereafter issue its rule to show cause to the owner of the premises and to its tenants setting forth the alleged violation of either the landlord's or the tenant's obligations. The rule to show cause shall be served on the owner of the premises and its tenants residing therein by the city manager who shall cause said service to be effected by leaving a copy thereof posted on the premises in a conspicuous place or by mailing a certified copy thereof to the owner of the premises and the tenants residing therein at their last known addresses or by delivering a copy of said rule to the owner of the premises and each tenant residing therein.

(b) All rules to show cause shall be returnable before the housing authority not less than five (5) days nor more than ten (10) days from the date of service. (Code 1955, § 2-29; Code 1983, § 2-463; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-464. Hearing.

A public hearing shall be held before the housing authority in all matters. (Code 1955, § 2-29; Code 1983, § 2-464; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-465. Assignment of security deposits.

(a) Prior to holding a hearing on said rule to show cause, the applicant, if a tenant, shall cause to be filed with the city clerk an assignment of his security deposit to the housing authority. Where the applicant is a landlord, money deposited or advanced by a tenant as security for the performance of the rental agreement or as advance rent, shall be assigned to the housing authority. (In lieu of said monies deposited, the landlord

shall post a surety bond in the total amount of the security deposits or advance rent held by him as may be permitted by the provisions of F.S. § 83.49.)

(b) The form of assignment shall be approved by the city attorney as to its legal sufficiency.

(c) Monies assigned to the housing authority shall be subject to use by the housing authority to pay the expenses and costs of improvements to the premises and for the purpose of correcting violations of applicable statutes or ordinances relating to the safe and sanitary condition of multifamily dwelling units within the city.

(Code 1955, § 2-30; Code 1983, § 2-465; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-466. Findings of fact; recommendations; orders.

(a) Upon conclusion of the public hearing on the rule to show cause, the housing authority shall determine whether or not the duties of the tenant or landlord, as set forth in F.S. § 83.51 or 83.52, or any other applicable ordinance, statute or code, has been performed.

(b) In the event that said duties have not been performed the housing authority shall determine whether or not the circumstances and conditions constitute an emergency condition requiring an immediate remedy.

(c) In addition, the housing authority shall issue orders to effectuate compliance by the landlord or the tenant with their obligation as follows:

- (1) Notify the appropriate enforcement agency of the city, county, state or federal government, where breach of duty constitutes a violation of law.
- (2) Make recommendations to the commission.
- (3) Make recommendations to the appropriate enforcement agency as to the specific remedial action.
- (4) Authorize the city manager to expend monies in amounts not to exceed the amount of the security deposits assigned to the city to remedy such emergency conditions in the event the owner or tenant fails to comply with the findings of the housing authority.

(Code 1955, § 2-30.1; Code 1983, § 2-466; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-467. Duties of building official.

(a) Where no work has been commenced by the landlord or correction implemented by the tenant to eliminate or alleviate the emergency condition within twenty-four (24) hours after the finding and entry of the order of the housing authority, the building official shall cause the prompt repair, maintenance, resupply or replacement of those items of structure, equipment or supplies which are necessary to correct, eliminate or alleviate the emergency condition, the cost of which shall be deducted from the security deposits assigned to the city. Monies expended in excess of security deposit funds shall be recovered by the city in appropriate civil action together with reasonable attorney fees.

(b) Where no emergency condition has been found by the housing authority, the building official shall cause the appropriate enforcement agency of the city, county, state or federal government to institute such proceedings as may be permitted by law to effect the maintenance, repair, resupply or replacement of the items of structure, equipment or supplies which are necessary to correct or eliminate or alleviate the failure of the landlord's or tenant's obligations. In connection therewith, the building official may cause the city attorney to appear for and on behalf of the city in said proceedings.

(Code 1955, § 2-30.2; Code 1983, § 2-467; Ord. No. 93-5, § 1, 3-10-1993)

Sec. 2-468. Appeal.

Any person, including city officials, may appeal any final decision of the housing authority to the circuit court in accordance with the Florida Appellate Rules. (Code 1955, § 2-30.3; Code 1983, § 2-468; Ord. No. 93-5, § 1, 3-10-1993)

Secs. 2-469, 2-470. Reserved.

ARTICLE X.5. HOUSING AND SOCIAL SERVICES DEPARTMENT

Sec. 2-471. Department established.

The city commission hereby establishes a housing and social services department which shall be charged with providing and facilitating services not limited to: tenant-occupied rental assistance programs; owner-occupied housing rehabilitation program; eviction pre-

vention program; minor home repairs for seniors; utility assistance program; homeownership assistance; hurricane preparedness; emergency paint program; veterans benefits advocate services; summer internship and job programs for the youth; career resource center; resource and referral center for federal, state and county benefits (housing, food childcare etc.); community based organizations partnerships.

(Ord. No. 2024-06, § 2(2-471), 3-27-2024)

Sec. 2-472. Qualifying developments pursuant to F.S. § 166.04151(7), under the Live Local Act.

I. (a) *Intent and purpose.* The purpose of this section is to establish procedures and regulations for the development of mixed-use affordable housing developments pursuant to the provisions of F.S. § 166.04151(7), as created by Chapter 2023-17, Laws of Florida, the "Live Local Act" (the "Act"), which development involves a combination of residential and non-residential components, and a combination of dwelling units, at least forty (40) percent of which must qualify as affordable housing units, as defined in F.S. § 420.0004, to accomplish the following purposes:

- (1) Protect and promote the public health, safety, and general welfare of the residents of the city.
- (2) Facilitate the orderly and efficient development of affordable multi-family housing in the city pursuant to the Act;
- (3) Confirm that qualifying developments proposed pursuant to the Act are mixed-use residential developments, as required by the Act, given that less than twenty (20) percent of the city's land area is designated for commercial or industrial use. Per the City of Opa-locka Comprehensive Master Plan, twenty-six (26) percent of the land use in the City of Opa-locka is industrial and eleven (11) percent of the land use is commercial. This excludes residential, parks and civic land use. The Miami-Dade Opa-locka Executive Airport is included under civic land use.
- (4) Specify the city zoning districts to which this section is applicable and within which

- qualifying developments proposed pursuant to the Act are authorized and may be approved administratively pursuant to the Act;
- (5) Confirm the land development regulations applicable to proposed qualifying developments under the Act, including acknowledgment of the statutory mandates regarding use, height and density.
 - (6) Provide the minimum nonresidential floor area for qualifying developments proposed under the Act in order to ensure a meaningful mixed-use development to support community sustainability and to reduce vehicle trips and vehicle miles traveled; and
 - (7) Establish and administrative approval process for qualifying developments under the Act.
- (b) *Applicability.* Applications for a qualifying development pursuant to this section must be deemed complete prior to October 1, 2033. No applications for qualifying developments shall be accepted after October 1, 2033, unless the legislature extends or reenacts F.S. § 166.04151(7) and the city commission extends these deadlines accordingly. A qualifying development pursuant to the Live Local Act for a multi-family development is not required to obtain a zoning or land use change, special exception, conditional use approval, variance, or comprehensive plan amendment for the building height, zoning, and densities authorized under F.S. § 166.04151(7).
- (c) *Definitions.*
- (1) *Qualifying development* shall mean a multiple-family mixed-use development proposed pursuant to F.S. § 166.04151(7), with sixty-five (65) percent of the total square footage used for residential purposes, at least forty (40) percent of which are affordable as defined in F.S. § 420.0004, for a period of at least thirty (30) years, with the remaining thirty-five (35) percentage of the total square footage dedicated to nonresidential uses, as provided in the applicable zoning district.
 - (2) *Unified control* means all land included for purpose of development within a planned unit development (PUD) district shall be under the control of the applicant (an individual, partnership, or corporation, or group of individuals, partnerships, or corporations). The applicant shall present satisfactory legal documents to constitute evidence of the unified control of the entire area, which shall be approved by the city attorney.
 - (3) *Affordable* means monthly rents or monthly mortgage payments including taxes and insurance do not exceed thirty (30) percent of that amount which represents the percentage of the median annual gross income for the households. However, it is not the intent to limit an individual household's ability to devote more than thirty (30) percent of its income for housing, and housing for which a household devotes more than thirty (30) percent of its income shall be deemed affordable if the first institutional mortgage lender is satisfied that the household can afford mortgage payments in excess of the thirty (30) percent benchmark.
 - (4) *Transit stop* means a designated location that provides passengers access to the transit system and/or a point of transfer between transit routes.
 - (5) *Planned unit development.* Planned unit development, or PUD, is a community of single-family homes, and sometimes condos or townhomes, where every homeowner belongs to a homeowner's association (HOA).
 - (6) *Affordable housing trust fund (AHTF).* The affordable housing trust fund will serve as a permanent, renewable, source of revenue to meet, in part, the housing needs of the residents of a municipality. The objective of the AHTF is to foster a housing supply accessible to a range of family incomes in developments assisted by the trust fund and to disperse affordable housing units throughout the city, in accordance with objectives, goals, and policies set within the housing elements of the Community Development Master Plan.
 - (7) *Development review committee.* The city commission hereby establishes a development review committee, which shall be an advisory

body to the department of planning and community development. Members of the committee shall include director of planning and community development their designee, director of public works or their designee, director of parks and recreation or their designee, police chief or their designee, director of building or their designee, code compliance personnel/designee, any intergovernmental agency representatives deemed necessary by the director, and any other staff as deemed necessary.

(d) *Zoning districts permitting qualifying developments.*

TABLE OF REGULATIONS

	<i>General District Type</i>	<i>Specific Zoning District</i>
1	Commercial Zoning Districts	B-O - Business Office B-1 - Commercial Neighborhood B-2 - Commercial Liberal B-3 - Commercial Intensive
2	Industrial Zoning Districts	I-1 - Light Industrial IT - Innovation and Technology Overlay District
3	Mixed-Use Zoning Districts	MXUOD - Corridor Mixed Use Overlay District HDOD - Historic Downtown Opa-locka District

II. *Applicable development regulations.*

- (a) Unified lot. All land included for the purposes of a qualifying development, including residential and nonresidential components shall be under unified control.
- (b) Unified development.
- (c) Any proposed development authorized under this subsection which consists of contiguous parcels, parcels under common ownership, or control shall have all development rights established under this section including higher available density and height.
- (d) Upon application for rezoning, the applicant shall agree to the following:
 - (1) To proceed with the qualifying development according to the provisions of this

section and the affordability requirement as established by state law and a developer agreement.

- (2) To provide agreements, contracts, covenants, deed restrictions, and sureties acceptable to the city for completion of the development according to the plan approved at the time of site plan approval and for continuing operations and maintenance of such areas, functions, and facilities, which are not proposed to be provided, operated or maintained at public expense; and
- (3) To bind their successors in title to any commitments made under the above. All agreements and evidence of unified control shall be reviewed by the city attorney and no site plan for a qualifying development shall be approved without verification by the city manager and the city attorney that such agreements and evidence of unified control meet the requirements of this section.

(e) *Required residential use.*

- (1) Sixty-five (65) percent of the total square footage of a qualifying development shall be used for residential purposes.
- (2) Equivalency of affordable dwelling units.
 - a. Affordable dwelling units and market rate units within a qualifying development shall be located within the same structure or shall be proportionately distributed between multiple structure, if such are proposed, such that every qualifying development structure contains both affordable and market rate units in equal proportions; in no event shall a qualifying development structure consist entirely of market rate units.
 - b. All common areas and amenities within a qualifying development shall be accessible and available to all residents (both affordable and market rate units).

- c. Access to the required affordable dwelling units in a qualifying development shall be provided through the same principal entrance(s) utilized by all other dwelling units in the development, provided that for townhouse-style affordable dwelling units, each unit shall have its own entrance.
- d. The sizes and number of bedrooms in the affordable dwelling units shall be proportional to the sizes and number of bedrooms in the market rate units (e.g., for number of bedrooms, if twenty-five (25) percent of the market rate units consist of two (2) bedrooms, then twenty-five (25) percent of the affordable units shall also have two (2) bedrooms, etc., maintaining a proportional distribution across unit types and within each structure within the qualifying development.
- e. Affordable dwelling units shall be developed simultaneously with or prior to the development of the market rate units.
- f. If the development is phased, the phasing plan shall provide for the construction of affordable units proportionately and concurrently with the market rate units.
- g. The exterior appearance of affordable units shall be the same as the market rate units and shall provide exterior building materials and finishings of the same type and quality.
- h. The interior building materials and finishes of the affordable units shall be the same type and quality as the market rate units, including but not limited to all electrical and plumbing fixtures, flooring, cabinetry, counter tops, and decorative finishes.

(f) *Affordability requirement.*

- (a) Pursuant to F.S. § 166.04151(7), at least forty (40) percent of the multi-family

residential units shall remain affordable, as defined in F.S. § 420.0004, for a period of at least thirty (30) years. The property owner shall execute and deliver to the city for recordation in the public records, on a form approved by the city attorney, a covenant, declaration of restriction, or other deed restriction in favor of the city ensuring compliance with the affordability requirement.

- (b) The developer shall provide documentation as requested by the city on an annual basis (calendar year) to verify that the units approved for a qualified development are in compliance with the affordability criteria for all units rented to ensure that forty (40) percent of the units have been utilized and rented as affordable units every year. Confirmation shall be provided on or before January 31 of every year for the preceding calendar year. Said documentation shall include but not be limited to rental amounts paid by the tenants, percentage of affordable units rented for the year, and market rate data.
- (c) Any violation of the affordability requirement shall result in a monetary penalty to be deposited in an affordable housing trust fund. Such monetary penalty shall be assessed as a daily fine in the amount of one hundred fifty dollars (\$150.00) per day, per violation until proof of compliance has been provided to the city. The monetary penalty shall not be subject to mitigation or otherwise modified by any board, including but not limited to the code compliance special magistrate.
- (d) An approved qualifying development project which fails to maintain the required number of affordable dwelling units and does not comply with the affordable housing requirement of this section after notice and ninety (90) days to cure, shall be considered nonconforming as to all portions of the development

that do not comply with use and development regulations applicable based on the assigned zoning designation.

(g) *Required nonresidential use.*

- (1) Thirty-five (35) percent of the total square footage of the qualifying development shall be devoted to principal nonresidential uses that are not dedicated to, or exclusively accessible by the on-site residential uses. Residential community amenities, or nonresidential uses open only to residents of the qualifying development are not considered nonresidential uses.
- (2) Nonresidential uses shall be limited to those uses permitted in the zoning district or land use regulations applicable to the land on which the qualified project is located.

(h) *Standard for development.*

- (1) *Maximum density and height.* The maximum density for any qualified project authorized under the Act may be approved with a density of up to one hundred fifty (150) units per acre.

The maximum height for any qualified project authorized under the Act shall be the highest allowed height for a commercial or residential development located in the City of Opa-locka within one (1) mile of the proposed development or three (3) stories, whichever is higher. The maximum height for the city is eight (8) stories, or ninety-five (95) feet, per the maximum height allow for affordable housing or mixed-use development within the corridor mixed use district. All height limitations up to eight (8) stories shall be subject to approval by the Federal Aviation Authority as applicable.

- (2) *Parking requirements.* For a qualified development authorized under the Act, the director/advisor for the planning and community development department and the city manager may recommend a park-

ing reduction of up to 1.25 spaces. The city commission shall have the final approval for parking reduction.

Parking reductions shall be considered for a qualified development authorized under the Act for development located within one-half ($\frac{1}{2}$) mile of a major transit stop and the major transit stop is accessible from the development.

(3) *Setbacks.*

Front - Fifteen (15) feet for non-mixed use projects.

Front - Ten (10) feet for mixed use projects.

Side, interior lot - Ten (10) feet (mixed use and non-mixed use).

Side, street - Ten (10) feet (mixed use and non-mixed use).

Rear - Ten (10) feet (mixed use and non-mixed use).

(4) *Minimum air conditioned dwelling unit size.*

Efficiency - Five hundred (500) square feet.

One-bedroom - Six hundred twenty-five (625) square feet.

Two-bedroom - Seven hundred fifty (750) square feet.

Three-bedroom - One thousand (1000) square feet.

(5) *Regulatory compliance.*

- a. In addition to the provisions set forth herein, qualifying developments shall comply with all other applicable land development code development regulations.
- b. All aspects of the qualifying development shall be consistent with the city's comprehensive plan, with the exception of provisions establishing allowable use, height, and density.
- c. Qualifying developments shall comply with all other applicable state and local laws and regulations.

(i) *Site plan review procedures.*

- (1) *Pre-plan review.* Applications submitted pursuant to F.S. § 166.04151(7), shall be reviewed in a pre-plan review process with the director/advisor for the planning and community development department, or the designee to conform general compliance with the requirements of F.S. § 166.04151(7), under the Live Local Act, the land use designations, zoning and application provisions of the City Code and F.S. § 166.04151(7), as may be amended from time to time.
- (2) *Application.* The applicant shall submit the proposed site plan to the director/advisor for the planning and community development department, or the designee. The application shall include:
 - a. All information and in in a form as provided by the city for site plans.
 - b. Dwelling unit breakdown, including the number of bedrooms and unit sizes.
 - c. Color rendering of all building elevations.
 - d. An affidavit of commitment in a form approved by the city, to record a covenant detailing the affordable housing restrictions and ensuring compliance with the monitoring requirements. The covenant shall detail income mix and required affordability, with a release provision ensuring that the covenant is in place for thirty (30) years from the date of issuance for the certificate of occupancy (CO). The city commission may release the covenant at the end of the thirty-year affordability period if the developer has been in compliance with the affordability criteria during the thirty-year affordability restriction period.
 - e. Legal documents shall be provided demonstrating unified control of the proposed development site and

providing for maintenance and cross access easement as may be applicable.

- f. A specific purpose survey shall be provided demonstrating the one (1) mile distance for any proposed height determination. A statement of the comparative site evaluation being utilized for the height justification shall be provided.
- g. Notations shall be made on all submittals identifying the project as a Live Local Act project pursuant to F.S. § 166.04151(7).
- h. A table, or tables and graphics indicating the ratio of residential and nonresidential square footage and affordable and market rate residential units shall be provided.
- i. The director/advisor for the planning and community development department and the city manager shall amend the fee schedule to include fees for projects submitted as a Live Local Act project.
- j. The site plan review committee shall review the application and shall provide written recommendations to the director/advisor for the planning and community development department or designee, according to the review schedule established by the city manager, as said fee schedule may be amended from time to time.
- k. The applicant will be notified in writing of comments concerning the site plan submission. Revisions, additions, or corrections will be reviewed together by the director/advisor for the planning and community development department or designee, the site plan review committee and the applicant. Required revisions and any other information required shall be resubmitted by the applicant within thirty (30) days of the review. Failure of any

applicant to submit information or revised plans as required above shall result in cancellation of the application unless an extension is agreed to by the applicant and the director/advisor for the planning and community development department. Applicants may withdraw an application at any time.

1. The director/advisor for the planning and community development department or the development review committee shall review site plan, review committee comments, applicant responses, final proposed plans and façade rendering, and based on compliance with the city's land development regulations, comprehensive plan, and applicable state laws, shall approve, approve with conditions, or deny the final site plan and issue a written development order, including findings supporting the decision. A decision may be appealed to the city commission.
- m. The restrictive covenant shall be executed and recorded prior to issuance of vertical permits for construction. The developer shall pay for all recording costs.

(Ord. No. 2024-21, § 2, 11-13-2024)

Editor's note—Ord. No. 2024-21, § 2, adopted Nov. 13, 2024, set out provisions intended for use as § 2-659. For purposes of classification, and at the editor's discretion, said ordinance has been included herein as § 2-472.

ARTICLE XI. BOARDS, COMMISSIONS AND COMMITTEES

DIVISION 1. GENERALLY

Secs. 2-473—2-478. Reserved.

DIVISION 2. COMMUNITY RELATIONS, RECREATION AND ACTIVITIES BOARD

Sec. 2-479. Power and duties.

The community relations, recreation and activities board shall be advisory to the city commission in regard to the following matters:

- (1) Operation and maintenance of parks and recreation programs, facilities, and activities in the community.
- (2) All matters pertaining to community relations.
- (3) Special activities and programs for the benefit of the city.

(Code 1983, § 2-479; Ord. No. 13-27, § 2, 9-25-2013)

Sec. 2-480. Membership terms.

The community relations, recreation and activities board shall consist of seven (7) members, who shall be residents of the city, two (2) of whom shall be selected at-large by the city commission. As to the remaining five (5) members, one (1) shall be chosen by each member of the city commission, who shall serve a term which will coincide with that of the commissioner who selected them. The two (2) members chosen at-large shall each serve a two (2) year term. Any member may be removed at any time, with or without cause, by the commissioner who appointed them, and in the case of the at-large member, they may be removed at any time, with or without cause, by a vote of a majority of the members of the city commission. Members will not receive compensation for their services.

(Code 1983, § 2-480; Ord. No. 13-27, § 2, 9-25-2013)

Secs. 2-481—2-496. Reserved.

DIVISION 3. PLANNING AND ZONING BOARD

Sec. 2-497. Created; composition; term of office; qualifications; organization; meetings; records.

i. A planning and zoning board was created on January 11, 2017, which shall be an advisory body to the commission, consisting of five (5) members, with two (2) alternate members. One (1) regular member shall be appointed by each member of the city commission, for a term that shall coincide with that of the

commissioner who selected the member. Alternate members shall be appointed by the commission, following the recommendation of the city manager. Alternate members shall be appointed for a two-year term. An alternate member shall replace a regular member when a regular member is unavailable to attend a meeting. The terms of board members shall commence on October 1 and shall expire on September 30. Each member of the board shall serve until the expiration of his or her term.

ii. At least three (3) members of the planning and zoning board shall be residents of the City of Opa-locka. Two (2) members shall be representatives of the following professions: (i) an architect, (ii) a landscape architect, (iii) an engineer, (iv) a real estate professional, or (v) an owner of real property within the city. The professionals (with the exception of the property owner) may not be actively involved with a project in the city. Members of the planning and zoning board shall have diverse backgrounds, and whenever possible, prior experience in land use, planning, zoning, legal matters, environmental matters, or building and development. Members of the planning and zoning board shall hold no other public office or position in the city.

iii. Notwithstanding any provision of this division, and in addition to the seven (7) voting members, the county school board may appoint as nonvoting, uncompensated members of the planning and zoning board and representatives of the school board pursuant to F.S. § 163.3174, one or more officers or employees of the school board when the city considers comprehensive plan amendments and re-zonings that would, if approved, increase residential density on the property that is the subject of the application; provided, however, that only one representative so appointed shall attend any meeting of the planning and zoning board. The school board representative shall not be counted when determining the presence of a quorum. The term of such members shall be for the term specified by the school board or, if no term is specified, for the duration of the tenure or employment of the member with the school board, or until removed by the school board. The school board shall notify the city director of the department of planning and zoning in writing within ten days of the appointment or removal of any member.

iv. An organizational meeting of the planning and zoning board shall be held to elect a chair and vice-chair from among its appointed members. The mayor

and city manager shall serve as ex-officio members of the planning and zoning board. The city commission upon written charges and after public hearing may remove members and vacancies shall be filled for the unexpired term of any removed member.

v. At least one regular meeting of the board shall be held each month, and special meetings may be called by the chairman or by any three (3) regular four (4) members of the board. There must be a minimum of four (4) members present at any meeting to constitute a quorum. The planning and zoning board shall keep record of its proceedings, pursuant to state law, findings and determinations showing the vote on each matter and shall file the record and approved minutes of each meeting with the city clerk within 30 days of the date of the meeting, or as soon thereafter as practicable. Members of the planning and zoning board shall serve without compensation.

vi. The planning and zoning board may adopt reasonable rules of procedure to govern the conduct of its business and the holding of public hearings and workshops, consistent with any procedures established for it by the city commission.
(Code 1983, § 2-497; Ord. No. 17-01, § 2, 1-11-2017; Ord. No. 19-06, § 2, 6-12-2019; Ord. No. 2025-22, § 2, 7-23-2025)

Sec. 2-498. Duties and responsibilities.

The duties and responsibilities of the planning and zoning board shall include the following:

1. Hear applications and make recommendations on amendments, extensions and additions to the comprehensive plan for the physical development of the city.
2. Hear applications and make recommendations on the platting or subdividing of lands within the city.
3. Review and recommend approval or disapproval of proposed changes to the official zoning map of the city.
4. Maintain and enforce zoning district boundaries and their respective district regulations.
5. Hear applications and make recommendations for approval or disapproval on rezoning requests for individual properties, neighborhood or on an area-wide basis.

6. Hear applications and make recommendations for approval or disapproval on changes to the land development regulations.
7. Promote public interest in and understanding of the master plan and of planning and zoning.
8. Make recommendations as to strategies for the clearance of slum and blighted areas.
9. Make recommendations as to strategies for the redevelopment of former slum and blighted areas.
10. Review annually the city manager's list of recommended capital improvements, not less than ninety (90) days prior to the beginning of the budget year, which in the opinion of the planning and zoning board are necessary or desirable to be constructed during the forthcoming six (6) year period. Such list shall be detailed by year and level of importance.
11. Review and make recommendations on existing and proposed plans for the re-planning, improvement, and redevelopment of neighborhoods.
12. Make recommendations for special studies as may be required in the performance of its duties.
13. Recommend, under certain circumstances, that the city retain planning and zoning consultants and or receive technical assistance.
14. Make recommendations on conditional uses and special exceptions.
15. Make recommendations to the city commission when the city is contemplating disposing of city-owned property.
16. Hear and decide appeals where it is alleged there is an error in any order, requirement, decision or determination made by the director in the enforcement of the Code.
17. Grant, deny or hear appeals to variances to the development regulations of the applicable district subject to appropriate conditions and safeguards.
18. Annually grant temporary permits for nonconforming use of buildings or lands in the city for short periods of time. Said temporary permits shall expire on the next September 30 after issuance and must obtain renewal by October 31. See fee schedule for square footage cost.
19. To hear and to authorize, upon appeal, such variance from the terms of the Code.
20. Hear appeals of the decision of a director:
 - (i) Any appeal taken from the requirement, decision or determination made by the director charged with the enforcement of the Code shall be filed within thirty (30) days after it is imposed. The director shall bring said appeal before the planning and zoning board in a form prescribed by the city. Those appealing the director's decision shall specify the grounds on which the decision should be reversed.
 - (ii) All appeals shall be in writing along with the fee in accordance with the city's fee schedule. All decisions of the planning and zoning board shall be by resolution within thirty (30) days of the presentation of the written appeal. Any member of the planning and zoning board, who has a special interest, direct or indirect, in any matter, shall make that interest known and shall abstain from participating in that matter.
 - (iii) The director or his/her designee from whom the appeal is taken shall upon notification of the filing of the appeal, transmit to the planning and zoning board all documents, plans and papers constituting the record of the action form which the appeal was taken and may appear before the planning and zoning board.
 - (iv) The planning and zoning board, by a vote of four (4) concurring members, may reverse or affirm, wholly or in part, or modify the order, requirement, decision or determination appealed, to that end the planning and zoning board shall have all the powers of the official from whom the appeal is taken.

- (v) Any person or persons, aggrieved by any decision of the planning and zoning board, concerning a zoning issue, or any taxpayer, or any officer, department of the city may present to a court of record a petition, duly verified, setting forth that such decision is illegal, in whole or in part, specifying the grounds of the illegality. Such petition shall be presented to the court within thirty (30) days after the filing of the decision in the office of the planning and zoning board or other designated office. Otherwise, the decision of the planning and zoning board shall be final.

(Code 1983, § 2-498; Ord. No. 17-01, § 2, 1-11-2017; Ord. No. 19-06, § 2, 6-12-2019)

Secs. 2-499—2-510. Reserved.

DIVISION 4. EDUCATION COMMITTEE

Sec. 2-511. Created.

The city commission hereby creates the city education committee, to be composed of PTA presidents from each public, private, and charter school in the city, and one commission liaison. The committee will be organized for the purposes, and will operate in accordance with the guidelines, set forth below:

- (1) Reserved;
- (2) Reserved;
- (3) Officers shall be selected by the committee within sixty (60) days of its formation, except that there shall be no treasurer, since the committee will not handle any funds, but will instead handle all financial matters through the city;
- (4) The committee will adhere to guidelines approved by Miami Dade Public County Schools (MDCPS) for all education compacts within the county;
- (5) The committee shall develop an annual calendar of events in order to assist education compact within the city; and
- (6) A representative of MDCPS will act in an advisory capacity to the committee, only as to

matters concerning traditional public schools in the city feeder pattern and is not a voting member.

(Code 1983, § 2-511; Ord. No. 13-30, § 2, 9-25-2013)

Sec. 2-512. Composition.

The education committee, to be composed of one (1) parent from each public school in the city, along with a representative from each of two (2) identifiable businesses in the city with ten (10) or more employees (to be represented by the owner of the business and/or their designated representative), together with the commission liaison, who will act as a liaison for the city along with a public school representative, and community based organization representatives, serving in an advisory capacity only. The committee will be organized for the purposes, and will operate in accordance with the guidelines, set forth hereinabove.

(Code 1983, § 2-512; Ord. No. 14-03, § 2, 5-14-2014)

Secs. 2-513—2-525. Reserved.

DIVISION 5. CIVIL SERVICE BOARD

Sec. 2-526. Power and duties.

The board shall have power to:

- (1) Advise the city commission and the city manager on issues concerning personnel administration.
- (2) Advise and recommend to the city manager on matters fostering the interest of institutions of learning, civic, professional and employee organizations in the improvement of personnel standards in the municipal service.
- (3) Hear from any employee appearing in person during a properly noticed meeting of the civil service board who desires to express concerns regarding personnel matters or working conditions. If deemed valid by the board, make reasonable and appropriate inquiry to the city manager and allow no more than twenty-five (25) days for the city manager to respond before making a recommendation to the city manager that is approved by a majority the board's members. In the event the city manager does not respond, nothing herein shall prohibit the civil service board from making

recommendations to the city manager. The city manager shall provide a report of the matters brought forward by the employees.

- (4) Perform such other duties not otherwise inconsistent with the Charter or any city commission approved contracts with a recognized union, as the city commission may require by ordinance.

(Code 1983, § 2-526; Ord. No. 13-31, § 2, 10-23-2013; Ord. No. 2025-19, § 2, 6-23-2025)

Sec. 2-527. Membership terms.

The civil service board shall consist of five (5) members, one (1) chosen by each member of the city commission, who shall serve a term which will coincide with that of the commissioner who selected them. Any member may be removed at any time, with or without cause, by the commissioner who appointed them. Members will not receive compensation for their services. (Code 1983, § 2-527; Ord. No. 13-31, § 2, 10-23-2013)

Sec. 2-528. Rules of procedure.

The city commission shall adopt rules of procedure for the civil service board, which may be adopted by resolution or by ordinance. (Code 1983, § 2-528; Ord. No. 13-31, § 2, 10-23-2013)

Sec. 2-529. Competitive examination in administrative service.

That appointments and promotions in the administrative service of the city shall be made according to merit and fitness to be ascertained, so far as practicable, by competitive examination. (Code 1983, § 2-529; Ord. No. 18-06, § 2, 6-13-2018)

Sec. 2-530. Powers of director of human resources.

That the human resources director shall have power and shall be required to:

- (1) Hold competitive examinations for all appointments in the classified service, restricted to persons qualified to perform the duties of the position where practicable;
- (2) Give wide publicity through appropriate channels in each case to all announcements of competitive examinations to the end of encouraging qualified persons to take such examinations;

- (3) Prepare personnel rules that shall be reviewed by the civil service board prior to implementation where practicable;
 - (4) Prepare, install, and maintain a classification plan based on the duties, authority and responsibility of positions in the city service;
 - (5) Prepare and maintain a pay plan for all city employees which shall be reviewed by the civil service board prior to implementation;
 - (6) Establish and maintain a roster of all city employees in the municipal service in which there shall be set forth:
 - a. The class title of the position held,
 - b. Salary or pay,
 - c. Any changes in class title, pay or status,
 - d. Such other data as maybe deemed desirable or useful to produce significant facts pertaining to personnel administration;
 - (7) Periodically review all payrolls for persons in the classified service;
 - (8) Develop and establish training and educational programs for persons in the municipal service;
 - (9) Investigate periodically the operation and effect of the human resources department and the rules promulgated thereunder, and report annually his or her findings and recommendations to the city manager, with a copy to the civil service board;
 - (10) Perform such other and different lawful acts and functions as he or she may deem necessary or desirable to enforce the purposes and provisions of this article.
- (Code 1983, § 2-530; Ord. No. 18-06, § 2, 6-13-2018; Ord. No. 2023-20, § 2, 10-11-2023; Ord. No. 2025-19, § 2, 6-23-2025)

Sec. 2-531. Duties of director of human resources as director of civil service board.

(a) *Recommendations, rules, etc.* Within six (6) months after the appointment of the first director under this article, the director shall prepare and recommend to the board such rules as he or she may consider necessary, appropriate or desirable to carry out the provisions of this article. After a public hearing thereon,

the board shall approve or reject the rules wholly or in part, or may modify them, and approve them as so modified. Rules and any amendments thereto which are approved by the board or on which the board takes no action within sixty (60) days after they are recommended by the director, shall be transmitted to the city manager for filing with the city commission together with whatever recommendations he or she may desire to make. Rules and amendments thereto shall become effective when approved by the commission or on the 20th day after submission if, prior thereto, the commission shall not have rejected them by resolution. Thereafter, the board shall have power to amend, repeal or add to the rules on the recommendation of the director or on its own initiative, subject to the requirement of a public hearing and all the other subsequent steps of procedure required herein for adoption of the original set of rules.

(b) *Rules to have effect of law.* Rules adopted hereunder shall have the force and effect of law. They shall provide for the method of holding competitive examinations, the establishment, maintenance, consolidation and cancellation of eligible lists, administration of the classification plan and the pay plan, the application of service ratings, the hours of work attendance regulation and leaves of absence for employees in the classified service, the order and manner in which lay-offs shall be affected and similar matters of personnel administration.

(c) *Powers subject to provisions of article.* The powers herein conferred upon the director shall be subject only to the provisions of this article and of the rules adopted hereunder and may be exercised by regulation or by order as the director sees fit.

(Code 1983, § 2-531; Ord. No. 18-06, § 2, 6-13-2018)

Sec. 2-532. Civil service board qualifications.

Each member of the civil service board shall be a qualified elector of the city, shall be known to be in sympathy with the merit principle, as applied to the civil service, shall neither hold nor be a candidate for any elective public office, and shall not be a member of any local, state or national committee of a political party or an officer in any partisan political club or organization.

(Code 1983, § 2-532; Ord. No. 18-06, § 2, 6-13-2018)

Sec. 2-533. Quorum of civil service board; investigations; civil service board chairman.

(a) A majority of the members of the civil service board shall constitute a quorum to do business and the board shall act in all matters upon the affirmative vote of at least a majority of all of its members.

(b) The civil service board shall be required to make any investigation which it may consider desirable concerning the administration of personnel in the municipal service, and report to the commission at least once each year, its findings, conclusions and recommendations.

(c) Members shall select their chairman from the members of the civil service board, biannually.

(Code 1983, § 2-533; Ord. No. 18-06, § 2, 6-13-2018)

Sec. 2-534. Definitions for classified service and unclassified service.

(1) *Classified service (non-exempt).* The classified service shall comprise of paid hourly employees, governed by the Fair Labor Standards Act (FLSA) receiving a minimum hourly wage and overtime rate of one and one-half (1½) times the hourly rate if the employee works more than forty (40) hours per week.

(2) *Unclassified service (exempt).* The unclassified service shall comprise the following offices and positions and shall not have a right or appeal before the before the civil service board:

- a. Members of the city commission and other elective officers, and persons appointed to fill vacancies in elective offices;
- b. The city clerk;
- c. The city attorney;
- d. The city manager, and the assistant city manager, if any;
- e. The directors of departments;
- f. One (1) principal assistant or deputy and one (1) executive secretary to the city manager, if any, and to each of the directors of departments;
- g. Members of boards and commissions in the city's service;
- h. Persons employed to make or conduct a special inquiry, investigation, examination or in-

stallation, if the city commission or the city manager of the city certifies that such employment is temporary, and that work should not be performed by employees in the classified service;

- i. Employees subject to collective bargaining agreements;
- j. Supervisory and managerial positions;
- k. Human resources specialists;
- l. Risk manager;
- m. Building official;
- n. Any legislative aide;
- o. Any classification or position not specified in the above exemptions as may be designated as exempt by city commission resolution or by a determination of the Florida Public Employee Relations Commission.

(Code 1983, § 2-534; Ord. No. 18-06, § 2, 6-13-2018; Ord. No. 2025-19, § 3, 6-23-2025)

Sec. 2-535. Director of human resources to prepare and maintain record of service.

(a) That the human resources director shall prepare and maintain an up-to-date record of the authority, duties and responsibilities of each position in the classified service.

(b) *Changes in classification.* Changes in the classification plan which the director deems appropriate may be recommended to the city manager and approved by the city commission.

(c) *Allocation of positions to proper classification.* As promptly as practicable after the adoption of classified service employees plan and after any amendment thereof, the director shall, with the approval of the city manager, allocate each position in the classification service to the appropriate class therein on the basis of its authority, duties and responsibilities. Thereafter, as new positions are created or additional classes are established, or existing classes are divided, combined, altered or abolished, the director shall make such allocations or reallocations of positions to new or existing classes as are necessitated thereby.

(d) *Use of class titles.* Following the adoption of all classified service employees within the classification plan and the allocation to classes therein of positions in

the classified service, the class titles set forth therein shall be used to designate such positions in all official records, documents, vouchers and communications, and no person shall be appointed to or employed in a position in the classified service under any class title which has not been approved by the director as appropriate to the duties to be performed.

(e) *Request for hearing on allocation or reallocation.* Employees affected by the allocation or reallocation of a position to a class, or by any changes in the classification plan, shall be afforded an opportunity to be heard thereon provided that they shall file with the director within ten (10) days from any such allocation, reallocation or change a written request for a hearing. (Code 1983, § 2-535; Ord. No. 18-06, § 2, 6-13-2018; Ord. No. 2025-19, § 4, 6-23-2025)

Sec. 2-536. Filling of vacancies in higher positions.

Vacancies in higher positions in the classified service of the city shall, as far as practicable, be filled by promotion from lower classes following competitive tests, provided that, in case the city so directs, such positions shall be filled by competitive tests open not only to city employees serving in lower classes, but also to persons not in the service of the city. A change from a position in any class to a position in another class for which a higher maximum rate of pay is prescribed shall be considered a promotion. The director of personnel shall, to the extent he or she considers such action desirable, indicate the principal or normal lines of promotion from and to each class in the class specifications or in regulations.

(Code 1983, § 2-536; Ord. No. 18-06, § 2, 6-13-2018; Ord. No. 2025-19, § 5, 6-23-2025)

Sec. 2-537. Schedule of pay.

That the human resources director shall prepare for the city manager a standard schedule of pay for each position in the classified service. The city manager shall submit the pay plan to the civil board for review prior to submitting said plan to the city commission with such changes as he deems desirable and such plan shall take effect when adopted by the commission. The pay plan adopted by the commission shall include a minimum and maximum and such intermediate rates as may be deemed desirable for each class of position.

Any pay recommendations relevant to positions covered by a union contract shall be exempt from consideration.

Amendments to the pay schedule may be adopted by the commission from time to time, upon recommendation of the city manager. In increasing or decreasing items in the city budget, the commission shall not increase or decrease any individual salary items but shall act solely with respect to classes of positions as established in the classification and pay plans. In no event shall the commission reduce the salary of a class below the minimum or raise it above the maximum salary established by the pay plan except by amendment of the pay plan.

(Code 1983, § 2-537; Ord. No. 18-06, § 2, 6-13-2018; Ord. No. 2025-19, § 6, 6-23-2025)

Sec. 2-538. Members of civil service board authorized to administer oaths.

For the purpose of the administration of the personnel provisions of this division, any member of the civil service board shall have the power to administer oaths. (Code 1983, § 2-538; Ord. No. 18-06, § 2, 6-13-2018)

Sec. 2-539. Prohibited acts; penalty for violation.

That no person shall willfully or corruptly make any false statement, certificate, mark, rating or report in regard to any test, certification, or appointment held or made under the personnel provisions of this division or in any manner commit or attempt to commit any fraud preventing the impartial execution of such personnel provisions or of the rules and regulations made thereunder. No employee in the service of the city shall continue in such position after becoming a candidate for nomination or election to any public office. No person seeking appointment to or promotion in the classified service of the city shall either directly or indirectly give, render or pay any money, service or other valuable thing to any person for or on account of or in connection with his test, appointment, proposed appointment, promotion or proposed promotion. No person shall orally, by letter, or otherwise solicit or be in any manner concerned in soliciting any assessment, subscription or contribution for any political party or political purpose whatever from any person holding a position in the classified service of the city. No person holding a position in the classified service of the city shall make any contribution to the campaign funds of

any political party or any candidate for public office or take any part in the management, affairs or political campaign of any political party, further than in the exercise of his rights as a citizen to express his opinion and to cast his vote.

Any person who by himself or with others willfully or corruptly violates any of the provisions of this section shall be ineligible for appointment to or employment in a position in the city service for a period of three (3) years as determined by the city manager.

(Code 1983, § 2-539; Ord. No. 18-06, § 2, 6-13-2018; Ord. No. 2025-19, § 7, 6-23-2025)

Sec. 2-540. Suspension; reduction in payor class.

Any employee in the classified service of the city who has not completed his working test period or who is serving under provisional, temporary, or emergency appointment may be suspended, reduced in pay or class, or removed at any time by the officer having power to appoint a successor. A copy of the notice of such suspension, reduction, or removal shall be transmitted to the department of human resources.

Any employee in the classified service of the city who has been appointed following certification from a reemployment or employment list may be suspended, reduced in pay or class, or removed for cause at any time during the working test period by the officer having power to appoint a successor, by giving him written notice of such suspension, reduction, or removal together with a statement of the reasons therefor. A copy of such statement shall be transmitted to the department of human resources.

Any employee in the classified service of the city who has completed the working test period may be suspended, reduced in pay or class, or removed by the officer having authority to appoint a successor, in the manner prescribed in this section as supplemented by the rules of the department of human resources. A written notice of the suspension, reduction, or removal, stating the reasons therefor and when it is effective, shall be given to such officer or employee or mailed to his usual place of residence.

(Code 1983, § 2-540; Ord. No. 18-06, § 2, 6-13-2018; Ord. No. 2025-19, § 8, 6-23-2025)

Sec. 2-541. Persons exempt from working tests; probationary appointments.

Any person holding a position in the classified service of the city when this act takes effect who shall have

served in such position for a period of at least nine (9) months immediately preceding, shall be retained without preliminary or working tests and shall thereafter be subject in all respects to the provisions of this article. (Code 1983, § 2-541; Ord. No. 18-06, § 2, 6-13-2018; Ord. No. 2025-19, § 9, 6-23-2025)

Sec. 2-542. Conflict with collective bargaining agreements.

Nothing set forth herein shall conflict with an existing collective bargaining agreement that may otherwise apply.

(Ord. No. 2025-19, § 11, 6-23-2025)

Editor's note—Ord. No. 2025-19, §§ 10, 11, adopted June 23, 2025, repealed the former § 2-542 and enacted a new § 2-542 as set out herein. The former section pertained to acceptance of unclassified position by person in classified service and derived from Code 1983, § 2-542; and Ord. No. 18-06, § 2, adopted June 13, 2018.

Sec. 2-543. Reserved.

DIVISION 6. RESERVED

Secs. 2-544—2-549. Reserved.

**DIVISION 7. HOUSING AUTHORITY AND
NUISANCE ABATEMENT BOARD**

Sec. 2-549.1. Established.

The city commission establishes an entity known as the housing authority and nuisance abatement board, which will address nuisance abatement and fair housing issues within the city.

(Ord. No. 13-32, § 2, 10-23-2013)

Sec. 2-550. Power and duties.

(a) The housing authority and nuisance abatement board shall have all powers and duties specified in sections 2-552 through 2-556.1, the provisions of which are hereby incorporated by reference, except where inconsistent with this division.

(b) In addition, the housing authority and nuisance abatement board shall have the authority to address issues related to substandard housing in the city and to treat such matters in the same fashion as it treats nuisances, as set forth in Ordinance No. 08-08.

(Code 1983, § 2-550; Ord. No. 13-32, § 2, 10-23-2013)

Sec. 2-551. Membership terms.

The housing authority and nuisance abatement board shall consist of five (5) members, who shall be residents of the city, one (1) chosen by each member of the city commission, who shall serve a term which will coincide with that of the commissioner who selected them. Any member may be removed at any time, with or without cause, by the commissioner who appointed them. Members will not receive compensation for their services.

(Code 1983, § 2-551; Ord. No. 13-32, § 2, 10-23-2013)

Sec. 2-552. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(b) *Board* means the nuisance abatement board of the city.

(c) *City attorney* means the legal counselor for the city, or such assistant city attorney as may from time to time be designated.

(d) *Clerk of the board* means a person appointed by the city manager to perform the clerical duties necessary to carry out the activities of the nuisance abatement board.

(e) *Complaint* means a complaint and/or incident documented on local, state, or federal law enforcement report, police report, incident report, arrest report, uniform civil violation notice, warning notice, notice of violation, notarized affidavit, or oral or written sworn statement documenting an incident or reasonable belief (as substantiated by local, state, or federal law enforcement, judicial, or government officials) that a public nuisance is being maintained and/or created upon a premises within the city.

(f) *Operator* means a property owner, tenant, lessee or person having control or possession of the premises.

(g) *Premises* includes, but is not limited to, any residential property, commercial property, farmland, industrial land, land, vacant lot, parking area, vessel, motor vehicle, area controlled by a homeowner or condominium or other similar property owners' association, or other property that comes within the control of a business, or business enterprise, or other activity associated with a business.

(a) *Public nuisance* means any place or premises within the city which has been used:

- (1) On two (2) or more occasions within a six (6) month period, as the site of prostitution, or solicitation of prostitution, or any violation of F.S. ch. 796, as it may be renumbered or amended from time to time;
- (2) On two (2) or more occasions within a six (6) month period, as the site of the unlawful sale, delivery, manufacture, cultivation, or possession of controlled substances (including, but not limited to substances and pharmaceuticals defined and regulated under Federal controlled substance laws; F.S. chs. 499 and 893, as it may be renumbered or amended from time to time; any substance sold in lieu of a controlled substance in violation of F.S. § 817.563, as it may be renumbered or amended from time to time; or any imitation controlled substance defined in F.S. § 817.564, as it may be renumbered or amended from time to time;
- (3) By a youth and/or criminal street gang for the purpose of conducting a pattern of youth and/or criminal street gang activity as defined by F.S. § 874.03, as it may be renumbered or amended from time to time;
- (4) On two (2) or more occasions within a six (6) month period, as the site of illegal gambling;
- (5) On two (2) or more occasions within a six (6) month period, as the site of the illegal sale, consumption, or possession of alcoholic beverages, containers, or open containers;
- (6) On two (2) or more occasions within a six (6) month period, as the site of violations of F.S. § 812.09, as it may be renumbered or amended from time to time, relating to dealing in stolen property; or

- (7) Any premises or place that could be declared a nuisance by F.S. §§ 823.05 and 823.10, as they may be renumbered or amended from time to time.

Evidence of other federal, state, or local public nuisance laws, or other laws where a violation may create a danger to the public health, safety, and welfare, or the failure to comply with the requirements, terms, and agreements in conjunction with these laws may be used to supplement and/or provide evidence of a public nuisance against a premises in a nuisance abatement board hearing, pursuant to section 2-554 et seq. As used herein, the term "evidence" means any complaint or findings of fact and conclusions of law of any federal, state, or local court or administrative entity. (Ord. No. 08-08, § 1, 7-9-2008)

Sec. 2-553. Legislative findings and intent.

The city commission hereby finds and declares that any places or premises which are used as the site of the unlawful sale, delivery, or possession of controlled substances, prostitution, youth and street gang activity, gambling, illegal sale, possession, or consumption of alcoholic beverages, lewd or lascivious behavior, other criminal activity, as defined in federal laws and/or state statutes, or violations of this Code may be a public nuisance that adversely affects the public health, safety, morals and welfare. The city commission also finds that abating the public nuisance which results from said activity is necessary to improve the quality of life of the residents of the city and that said abatement will safeguard the public health, safety, and welfare.

The provisions herein are hereby declared to be remedial and essential to the public interest and it is intended that the provisions herein be liberally construed to affect the purposes as stated above. The provisions herein shall be cumulative and supplemental to and not in derogation of any provision of the state statutes or any other applicable law. (Ord. No. 08-08, § 2, 7-9-2008)

Sec. 2-554. Operating procedures.

(a) Complaints; reports.

- (1) Any employee, officer, resident, or visitor to the city may file a complaint and request for prosecution with the police department regarding the existence of a public nuisance located within the city. Notice of the complaint shall

be sent by certified mail with return receipt to the operator of the place or premises complained of, at the operator's address. Although any address reasonably likely to advise the operator may be used, using the address as shown in the county property tax collector's file, shall be deemed conclusively as proper. In lieu of the requirements of certified mail, the notice requirements may be fulfilled by personal service, hand delivery, or posting in a conspicuous place on the premises.

- (2) The complaint shall state facts that reasonably tend to establish the existence of a public nuisance located within the city.
- (3) Any police officer making an arrest or substantiating an incident or occurrence of any statutory violation or violations of section set forth in this Code of Ordinances or any public service aide or code enforcement officer substantiating an incident or occurrence of a breach of any section set for in chapter 14, and pursuant to information or independent observation, shall submit a copy of every such report and/or offense incident report to the chief of police or designee thereof who shall process all such reports and determine when the requisite number of occurrences or violations have taken place.

(b) Processing; review of case.

- (1) In each case where such determination has been made in accordance with subsection (a) of this section, the case shall be processed through the office of the chief of police and forwarded to the city attorney for his/her determination that such case is sufficient for presentation to the board for its consideration and disposition as provided herein.
- (2) The city attorney, or designee thereof, upon receipt of verification by the office of the chief of police that all administrative prerequisites have been satisfied shall promptly request a hearing before the housing authority and nuisance abatement board.

(c) Service; hearing notices.

- (1) The housing authority and nuisance abatement board, through the clerk of the board, shall schedule a hearing, and written notice of

said hearing shall be sent by certified mail or hand delivered to the owner and operator of the premises complained of at their last known addresses, at least fourteen (14) days prior to the scheduled hearing. If an attempt to reach the owner and operator by hand delivery or certified mail is unsuccessful, notice of the hearing may be by publication as provided in F.S. ch. 49.

(2) The notice of hearing shall include:

- a. A statement of the time, place and nature of the hearing;
- b. A statement of the legal authority and jurisdiction under which the hearing is to be held;
- c. A reference to the particular sections of the statutes and ordinances involved;
- d. A short and plain statement summarizing the incidents complained of.

(Ord. No. 08-08, § 3, 7-9-2008)

Sec. 2-555. Conduct of hearings.

(a) The chairman of the board may call hearings of the board. Hearings may also be called by written notice, signed by at least three (3) members of the board, or at the call of the city manager. The board, at a hearing, may set a future hearing date. The board shall adopt rules for the conduct of its hearings. Minutes shall be kept of all hearings and all hearings shall be open to the public. The city shall provide clerical and administrative personnel as may be reasonably required for the proper performance of the board's duties.

(b) The city attorney, or designee thereof, shall present evidence before the board on behalf of the city. If the alleged violator has been properly noticed in regard to the hearing before the board and fail to appear, the board may proceed with a hearing in absentia on the merits of the alleged violation. Any findings or orders resulting from such hearing are valid and binding upon the violator.

(c) All parties shall have an opportunity to present evidence and argument on all issues involved, to conduct cross-examination and submit rebuttal evidence, and to be represented by counsel. When appropriate, the general public may be given an opportunity to present oral or written communications. If the agency

proposes to consider such material, then all parties shall be given an opportunity to cross-examine or challenge or rebut it. The board may consider any evidence, including evidence of the general reputation of the place or premises. All testimony shall be under oath and shall be recorded. Formal rules of evidence shall not apply, but fundamental due process shall be observed and shall govern the proceedings. Orders of the board shall be based on competent and substantial evidence.

(d) After considering all evidence, the board may declare the place or premises to be a public nuisance and, if so, may immediately order any one (1) or all of the following:

- (1) The discontinuance of the nuisance;
- (2) The closing of the place or premises;
- (3) The prohibition of conduct, operation, or maintenance of any business or activity on the premises, and/or business or activity which is conducive to the maintenance of such nuisance;
- (4) The payment to the city by the operator of fines in increments of two hundred fifty (\$250.00) dollars or another appropriate higher or lesser amount as it deems appropriate and necessary, per incident and/or day of noncompliance. In addition to such fines, the board may impose additional fines and/or assessed costs to cover all costs incurred by the city in investigation, remediation, enforcement, and prosecution of violations enumerated herein, including attorney fees. Fines shall not exceed fifteen thousand dollars (\$15,000.00) (or a total amount as allowed by F.S. § 893.138, as amended) each time a premises is declared a public nuisance;
- (5) The board may order the operator to provide additional private security at the operator's sole expense, or such other reasonable remedial measures (including, but not limited to, lighting or fencing) as may be deemed effective to remedy or cure the public nuisance. If the operator fails to take such action within the time specified by the board in its order, the city may take the action itself and seek to recover

any expense incurred therein by any lawful means, including the imposition of additional fines as set forth herein;

- (6) The board may order any combination of subsection (d)(1) through (5) of this section.

(e) All orders of the board shall be by motion approved by a majority of those members present and voting, except that at least three (3) members of the board must vote in order for the action to be official.

(f) An order entered under subsection (d) of this section shall expire after one (1) year or at such earlier time as stated in the order. The board shall retain jurisdiction to modify its orders or to extend the time period of jurisdiction past the expiration date, upon the showing of cause that the operators have not taken reasonable and/or sufficient action to abate the public nuisance or there are additional public nuisance activities, or the operators have not adhered to the order of the board, prior to the expiration of said orders.

(g) The board may bring a complaint under F.S. § 60.05, seeking a temporary or permanent injunction against any public nuisance.
(Ord. No. 08-08, § 4, 7-9-2008)

Sec. 2-556. Recording of orders, fines and costs; enforcement of orders.

(a) A certified copy of an order declaring a premises a public nuisance and other orders to abate the nuisance and imposing fines and/or costs or penalties assessed under section 2-555(d), may be recorded in the public records and, thereafter, shall constitute a lien against the land on which the violation exists, or upon any other real or personal property owned by the violator operator; and it may be enforced in the same manner as a court judgment by the sheriffs of this state, including levy against personal property, but shall not be deemed a court judgment except for enforcement purposes. Whenever a notice of complaint has resulted in a fine being levied or a board order, a copy of such final order shall be filed in the office of the clerk of the circuit court of the county who shall cause the same to be recorded among the public records of the county. The recordation of such final order shall constitute constructive notice to any subsequent purchasers, transferees, grantees, mortgagors, mortgagees, lessees, lienors, and all persons having, claiming or acquiring any interest in the premises described therein, or affected thereby. When the nuisance specified in said final order has

been abated and all fines and costs for enforcement have been paid, a certificate certifying the nuisance has been abated shall be filed and the order cancelled. All such final orders shall include the proper legal description of the premises involved. The costs of recording the original final order and the certificate of cancellation shall also be recoverable as costs from the operator prior to recording the certificate of cancellation. The original final order may include an automatic date of cancellation/expiration, exclusive of the costs/fines liens, and shall be effective if the board has not filed a notice of extension as allowed under section 2-555(f). Any person acquiring any interest in or to property described in a final order after recordation thereof, shall take the property subject to the requirements set forth in the final order, and all other provisions of this article. After the filing of any such lien which remains unpaid, the city attorney's office may foreclose or otherwise execute on the lien. Interest shall accrue on the unpaid costs and/or fines at the annual interest rate of eighteen (18) percent. No lien created pursuant to the provisions herein may be foreclosed on real property, which is a homestead under section 4, article X of the state constitution.

(b) In addition to the enforcement remedies available to the city in subsection (a) of this section, the city attorney may initiate contempt proceedings in the circuit court of the county for willful disobedience or failure to comply with any order of the board. The city attorney is also further authorized to initiate proceedings in any county, state, or federal forum for the suspension or revocation of any permits, licenses, concessions, or contracts held or awarded to the violator operator, including contracts awarded under F.S. § 24.112, and including licenses for the sale of beverages issued under F.S. § 561.19, where the existence of such permits, licenses, concessions or contracts is conducive to the maintenance of such public nuisance.

(c) An order of the board issued pursuant to this article shall also be posted at the place, building, or premises where the public nuisance exists, existed or is occurring, in violation of the law and shall be sent by certified mail to the owner of record of such place, building, or premises within two (2) business days of the posting.

(d) City police officers shall be authorized to act upon and enforce such orders in accordance with section 2-555, five (5) business days after the posting of an order issued pursuant to the board.

(e) Any operator, or person who hinders, or obstructs, any state, county, or city official, in the discharge of his duties under this article, or in carrying out the orders of the board, or who fails to follow the orders of the board, shall be cited by the police department, and upon conviction thereof in the county court, shall be punished by a fine not to exceed five hundred dollars (\$500.00) or by imprisonment in the county jail for not more than sixty (60) days, or by both such fine and imprisonment.

(f) In the event the board orders the operator to close the premises and/or secure it, and the operator fails to do so, as determined by city officials, or other county or state agencies, the city shall be authorized to secure the premises as necessary to safeguard the public health, safety, and welfare. The operator will automatically be assessed the costs and be subject to lien and foreclosure action as in subsection (a) of this section.

(g) When any nuisance, as defined in F.S. § 823.05, exists, the city attorney, or any resident or visitor to the city, may sue in the name of the state on his relation to enjoin the public nuisance, the person maintaining it, and the owner or agent of the premises on which the public nuisance exists.

(Ord. No. 08-08, § 5, 7-9-2008)

Sec. 2-556.1. Appeals.

An aggrieved party, including the city administration, may appeal a final administrative order of the housing authority and nuisance abatement board to the Circuit Court of the Eleventh Judicial Circuit. Such an appeal shall not be a hearing de novo but shall be limited to appellate review of the record created before the board. An appeal shall be filed within thirty (30) days of the date of rendition of the written order appealed from.

(Ord. No. 08-08, § 6, 7-9-2008)

DIVISION 8. RESERVED

DIVISION 9. RESERVED

Secs. 2-560—2-570. Reserved.

DIVISION 10. CODE ENFORCEMENT BOARD*

Subdivision 1. Reserved

Secs. 2-570.1—2-570.24. Reserved.

*State law reference—Code enforcement, F.S. ch. 162.

Subdivision 2. Code Enforcement: Special Magistrate Dispute Resolution

Sec. 2-570.25. Purpose.

It is the intent of this chapter to promote, protect and improve the health, safety and welfare of the citizens of the city by providing an equitable, expeditious, effective and inexpensive method of enforcing the various technical laws and codes in force in the city. This chapter has been enacted pursuant to the authority of F.S. chs. 162 and 70.

(Code 1983, § 2-570.25; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.26. Jurisdiction.

(a) The city code enforcement special magistrates appointed by the city commission shall have jurisdiction to hear and decide cases in which violations are alleged of any provisions of technical codes enacted by the city, including, but not limited to, property standards, business tax, fire, building, zoning and sign code, as well as the Florida Building Code, Miami-Dade County Edition.

(b) Where there is more than one (1) special magistrate, cases will be assigned by lot.

(c) Any alleged violation of the aforesaid codes and ordinances may also be enforced in any court of competent jurisdiction.

(Code 1983, § 2-570.26; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.27. General provisions for code enforcement violations and dispute resolution procedures.

(a) *Standards of conduct for parties, participants and special magistrates.* Standards of conduct for parties, participants and special magistrates shall be adopted in a Special Magistrate Dispute Resolution Manual and shall govern the proceedings unless waived or altered in the special magistrate contract.

(b) *Special magistrate dispute resolution manual.* The city shall develop a special magistrate dispute resolution manual, which shall specify the conduct of the parties, participants, and special magistrates, rules of procedures for the conduct of any hearing or meeting

relevant to the dispute, standardized forms for use by the special magistrate and participants as provided for under this chapter.

- (1) In all cases, the requirements of this division shall prevail over the provisions of the special magistrate dispute resolution manual.
- (2) The special magistrate dispute resolution manual and any amendments or revisions shall be approved by the city manager.
- (3) Until such time as the Special Magistrate Dispute Resolution Manual is prepared and approved, it shall be duty of the special magistrate to specify the conduct of the parties and participants, rules and procedures for the conduct of any hearing or meeting relevant to the dispute, and forms for use in the resolution of the dispute.

(Code 1983, § 2-570.27; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.28. Special magistrate selection.

The city commission shall appoint no more than three (3) preapproved special magistrates and an alternate. The preapproved list of special magistrates shall consist of members of the Florida Bar in good standing who have been chosen by the special magistrate selection committee. The special magistrate selection committee shall consist of three (3) members including the chief of police, city manager or his/her designee, and the city attorney.

(Code 1983, § 2-570.28; Ord. No. 97-1, § 1, 1-22-1997; Ord. No. 17-21, § 2, 12-13-2017)

Sec. 2-570.29. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means a property owner, tenant or someone who is substantially affected by an enforcement action or developmental order.

City means the City of Opa-locka, Florida.

Clerk or clerk of code enforcement means the administrative staff person in the city's code enforcement division responsible for the preparation, development

and coordination of all administrative and case management services necessary for the proper administration of the special magistrate proceedings.

Code means any of the several chapters of the Code of Ordinances or zoning and development regulations of the city or the Florida Building Code, Miami-Dade County Edition, as described in section 2-570.26.

Code enforcement officer or code inspector means any designated employee or agent of the city whose duty it is to enforce codes and ordinances enacted by the city. There are hereby designated certain employees and agents of the city as code enforcement officers for the purposes of this article. Employees or agents hereby designated as code enforcement officers include, but are not limited to, building inspectors, building official, code enforcement officers, and police officers of the city. Code enforcement officers, as defined herein, shall have the authority to issue a citation to a person when, based upon investigation, the officer has reasonable cause to believe that the person has committed a civil infraction in violation of a duly enacted code or ordinance and that the special magistrate will hear the charge.

Final order means an order issued by the special magistrate. Such orders shall have the force of law to command whatever steps are necessary to bring a violation into compliance.

Participant means:

- (a) A person holding title to land contiguous to the owner's property, who has been accepted by the special magistrate as a participant in the proceeding; or
- (b) A substantially affected person who submitted oral or written testimony, sworn or unsworn, on a substantive nature which stated with particular support for or objections to the code enforcement action or order in a prior proceeding, including a public hearing, and who has been accepted by the special magistrate as a participant in the proceeding.

Party includes the owner, the city, and any governmental entity made a party to the proceeding by the special magistrate upon application of the owner, the city or any other governmental activity.

Probable cause means a reasonable belief that code provisions has been violated and that the violator committed or is the person responsible for maintaining the violation.

Quasi-judicial proceeding means a nonlegislative proceeding wherein the mayor, commissioners and/or board or agency members are required to ascertain the existence of facts and draw conclusions from them as a basis for their respective official action. Quasi-judicial proceedings refer only to variances, special exceptions, development approvals that require subsequent court approval and certain permit and license decisions, including extended hours licenses and distance waivers under the city's zoning and land development regulations to be made by the city commission, as well as those quasi-judicial decisions made by city administrative boards and agencies, including the special magistrates, planning and zoning board, personnel board and housing authority. Ex parte communications on quasi-judicial proceedings are prohibited.

Recommended order means an order issued by the special magistrate after notice and an opportunity to be heard at a public hearing has been afforded to the complaining property owner who believes that his/her private property rights have been inordinately burdened, restricted, or limited due to laws, regulations and ordinances. The recommended order shall be submitted to the city commission for its acceptance, rejection or modifications and shall become final upon approval, in accordance with F.S. ch. 70.

Repeat violation means a violation of a provision of a code or ordinance by a person whom the special magistrate previously found to have violated the same provision within five (5) years prior to the current violation.

Special magistrate means any person who is a member in good standing of the Florida Bar and who is appointed by the city commission to serve as a special magistrate under this chapter.

Violator means any property owner, tenant or business entity on the premises, or any combination thereof, and each notice shall so state.

Written notice means the mailing of notice by certified mail, return receipt requested, or by hand delivery, to the person required to be notified for an alleged code violation thereby advising the alleged violator of the date, time and location for any hearing on the alleged

violation. Any other notice provided in this chapter may be given by regular mail service, or the posting of a notice at the site of the violation or the site of the last known address of a violator, property owner, or both. (Code 1983, § 2-570.29; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.30. Citation and enforcement procedures; supplemental.

(a) It shall be the duty of the code enforcement officer to initiate enforcement proceedings of the various codes or ordinances; however, no member of a board shall have the power to initiate such enforcement proceedings.

(b) A citation issued by a code enforcement officer shall be as provided by state law. Prior to issuing a citation, a code enforcement officer shall provide a courtesy notice to the person that the person has committed a violation of a code or applicable law and shall have (5) days within which said violation is to be corrected. If the violation has not been corrected within five (5) days, the code enforcement officer shall issue a citation to the person who has committed the violation.

(c) A person who receives a citation from a code enforcement officer for the violation of a city ordinance has committed a civil infraction and shall be subject to a fine in accordance with the schedule of civil penalties under section 2-570.33.

(d) After issuing a citation to an alleged violator, a code enforcement officer shall deposit the original citation and one (1) copy of the citation with the special magistrate.

(e) Nothing contained in this chapter shall prohibit the city from enforcing its ordinances by any other means. (Code 1983, § 2-570.30; Ord. No. 97-1, § 1, 1-22-1997; Ord. No. 03-26, § 2, 10-8-2003)

Sec. 2-570.31. Hearing procedures before special magistrate.

(a) *Date of hearing.*

(1) A time and date for the special magistrate hearing shall be set and noticed in accordance with the provisions below. The violator may file a written reply to the charges contained in the notice of violations which shall be known as "the response." The response must contain

the address of the violation and the alleged violator's relationship to the property (for example: owner, tenant, and the like).

- (2) At the time and place set for the hearing, the special magistrate shall hear and consider all testimony allowable and shall examine and consider all the relevant evidence presented. After the conclusion of the hearing, the special magistrate shall issue findings of fact and conclusions of law in a written final order affording the proper relief consistent with the powers granted herein. Such order may command a violator to take whatever steps necessary to bring a violation into compliance by the time announced at the hearing and subsequently placed in the order. The findings, conclusions and final order of the special magistrate shall be announced orally at the special magistrate hearing and shall be reduced to writing and mailed to the violator.

(b) *Enforcement and notice requirements.*

- (1) If a violation of a code is alleged to exist, the code enforcement officer shall, unless subsection (b)(2) of this section applies, provide written notice to the alleged violator of the violation and afford that person a reasonable time, in light of the nature of the violation, to correct it. Should the violation continue beyond the time specified for correction, the code enforcement officer shall notify the clerk, who shall schedule a hearing before a special magistrate; and the officer, clerk, law enforcement officer, or other person designated by the city shall provide written notice by hand delivery or certified mail, return receipt requested, to the alleged violator of the hearing. At the option of the special magistrate, notice may additionally be served by publication or posting.
- (2) If a repeat violation is found, the code enforcement officer shall notify the violator but is not required to give the violator a reasonable time to correct the violation. The code enforcement officer, upon notifying the violator of a repeat violation, shall notify the clerk of code enforcement and request a hearing. The code enforcement division, through its clerical staff, shall schedule a hearing and shall provide notice

pursuant to subsection (b)(1) of this section. The case may be presented to the special magistrate even if the repeat violation has been corrected prior the hearing, and the notice shall so state.

- (3) If the code enforcement officer has reason to believe a violation or the condition causing the violation presents a serious threat to the public health, safety, and welfare or if the violation is irreparable or irreversible in nature, the code enforcement officer shall make a reasonable effort to notify the violator and may immediately notify the code enforcement division and request a hearing.

(c) *Hearing procedures.*

- (1) No special magistrate shall act in any case in which that special magistrate has a conflict of interest. If the special magistrate has a conflict of interest with any case, s/he shall orally announce such at the scheduled hearing, unless s/he is aware of such conflict prior to the hearing and shall notify the clerk of code enforcement, whereby that case shall be rescheduled for a hearing before another special magistrate.
- (2) All hearings of the special magistrate shall be open to the public, and any person whose interests may be affected by the matter before the special magistrate shall be given the opportunity to be heard. The record of all hearings, agendas, findings, determinations and final orders shall be maintained by the clerk of code enforcement.
- (3) Hearings shall be informal and need not be conducted according to technical rules relating to evidence and witnesses. They shall, however, be conducted in accordance with accepted parliamentary procedures relative to motions, votes and decisions. Fundamental due process shall be observed and shall govern all hearings.
- (4) All relevant evidence shall be admitted if, in the opinion of the special magistrate, it is the type of evidence upon which reasonable and responsible persons would normally rely in the conduct of business affairs, regardless of the existence of any common law or statutory rule

which might make such evidence inadmissible over objections in civil action. The special magistrate may exclude irrelevant or unduly repetitious evidence.

- (5) Hearsay evidence may be accepted for the purpose of supplementing or explaining any direct evidence, but such hearsay evidence shall not in and of itself be considered sufficient to support a finding or decision unless the evidence would be admissible over objections in a civil action.
- (6) Each party to the hearing shall have the right to call and examine witnesses, introduce exhibits, cross-examine opposing witnesses, impeach witnesses and rebut evidence.
- (7) The alleged violator has the right, at his own expense, to be represented by an attorney at any special magistrate hearing.
- (8) All testimony before the special magistrate shall be under oath and shall be recorded. The alleged violator or the city may cause the proceedings to be recorded by a certified court reporter or by a certified recording instrument.
- (9) The burden of proof shall be with the code inspector or code enforcement officer to show by the greater weight of evidence that a code violation exists and that the alleged violator committed, or was responsible for maintaining, the violation.
- (10) If written notice has been provided to an alleged violator of the hearing, a hearing may be conducted, and a final order rendered in the absence of the violator.
- (11) The special magistrate may, for good cause shown, postpone or continue a hearing.

(d) *City's option.* Any alleged violation of the aforesaid codes and ordinances may also be enforced in any court of competent jurisdiction pursuant to the applicable notice provisions.

(e) *Appeal process.* An aggrieved party under these provisions may appeal a final order entered by the special magistrate to the circuit court within thirty (30) days of its rendition. Failure to timely appeal a final order shall result in a waiver of all appeal rights. (Code 1983, § 2-570.31; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.32. Conduct of hearing.

(a) The special magistrate may call hearings. At any hearing, the special magistrate may set a future hearing date. Minutes shall be kept of all hearings by the special magistrate and all hearings and proceedings shall be open to the public. The city commission, by and through the city manager, shall provide necessary clerical and administrative personnel as may be reasonably required by the special magistrate for the proper performance of his duties.

(b) Each case before the special magistrate shall be presented by either the city attorney, or an assistant to the city attorney, or an assistant city attorney, or by a member of the administrative staff of the city.

(c) The special magistrate shall proceed to hear the cases on the agenda for that day. All testimony shall be under oath and shall be recorded. The special magistrate shall take testimony from the code inspector/officer and alleged violator. Formal rules of evidence shall not apply but fundamental due process shall be observed and govern said proceedings.

(d) At the conclusion of the hearing, the special magistrate shall issue findings of fact, based upon the evidence and conclusions of law and shall issue an order affording the proper relief consistent with the powers granted herein.

(Code 1983, § 2-570.32; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.33. Schedule of civil penalties.

The following table shows the sections of this Code, as they may be amended from time to time, which may be enforced pursuant to the provisions of this chapter and the dollar amount of civil penalty for the violation of these sections as they may be amended.

The descriptions of violations in the table below are for informational purposes only and are not meant to limit or define the nature of the violations or the subject matter of the listed Code sections, except to the extent that different types of violations of the same Code section may carry different civil penalties. For each Code section listed in the schedule of civil penalties, the entirety of that section may be enforced by the mechanism provided in this chapter, regardless of whether all activities proscribed or required within that particular section are described in the description of

violation column. To determine the exact nature of any activity proscribed or required by this Code, the relevant Code section must be examined.

<i>Code Section</i>	<i>Description of Violation</i>	<i>Civil Penalty</i>
3-1	Erecting, constructing, posting, etc., of a sign without a permit	\$200.00
3-2	Failure to obtain required sign inspection approval	\$200.00
5-2	Cruelty and fighting: Prohibited generally	
	Tormenting, torturing or inflicting cruelty on an animal, or human being	\$500.00
5-18	Keeping vicious and howling dogs	\$500.00
7-3	Permit prerequisite to doing work:	
	Failure of homeowner to get permit	\$200.00
	Failure of contractor to get permit	\$500.00
7-9	Duty to clean site:	
	Failure to remove debris, equipment, materials or sheds	\$200.00
Ch. 9	Excavations and fillings:	
	Illegal excavation	\$500.00
10-5	Permit required for intentional burning:	
	Setting fire without permit	\$200.00
	Failure to obtain required permit or violation of conditions of permit	\$200.00
Ch. 11	Garbage and trash: Only city or licensed collectors to collect and dispose	
11-5	Utilizing the waste collection services of an unauthorized waste collection agency by a commercial establishment	\$500.00
11-7	Offensive or dangerous accumulations:	
	Creating or maintaining fire hazard	\$200.00
11-10	Removal prohibited except from approved containers:	
	Uncontainerized refuse, rubbish, or solid waste	\$100.00
11-14	Curbside placement; emergency; improvement of collection procedure; conditions: (b) Domestic garbage	
	Hanging waste container at curbside, right-of-way or street edge before or after specific hours of normal collection;	\$100.00 per day
	(d) Garbage to be differentiated from garden trash and rubbish when placed in receptacles or containers for collection purposes	
	Placement of commingled yard trash at the curbside or other designated trash collection area, by residents for collection and disposal	\$50.00
	Placement of commingled yard trash at the curbside or other designated trash collection area by commercial multifamily residential establishments, for collection and disposal	\$100.00
13	Licenses and Business Regulations Tax levied and business tax receipt required:	
13-2	Failure to obtain a city business tax receipt	\$100.00
14	Nuisances	
14-1	Creation or maintenance of public nuisance prohibited	
14-1	Duties of owners and tenants:	
	Trash, debris, refuse, or garbage on premises	\$100.00

<i>Code Section</i>	<i>Description of Violation</i>	<i>Civil Penalty</i>
	Excessive growth of weeds, grass, other flowers	\$100.00
	Failure to exterminate insects, rodents, termites, vermin or other pests	\$100.00
	Allowing public nuisance to exist	\$100.00
	Causing a sanitary nuisance	\$500.00
	Maintaining a sanitary nuisance	\$500.00
Ch. 15, art. IV	Noise: Prohibited generally	
	Excessive noise violation	\$100.00
15-137	Adherence to red light traffic control signals:	
	First offense	\$125.00
	Second offense	\$250.00
	Each additional offense	\$500.00
20	Trailers	
20-2	Parking prohibited except in trailer park:	
	Illegal placement, storage, or use of mobile home or trailer outside of an approved mobile home and non-registration of boats and watercraft	\$500.00

(Code 1983, § 2-570.33; Ord. No. 97-1, § 1, 1-22-1997; Ord. No. 08-07, § 3, 6-25-2008; Ord. No. 2022-12, § 4, 6-22-2022)

Secs. 2-570.34—2.570.43. Reserved.

Subdivision 3. Private Property Rights and Dispute Resolution Procedures

Sec. 2-570.44. General provisions.

(a) *Legislative intent.* The proceeding under this section was established by the Florida Legislature in 1995 (F.S. § 70.51) to provide a speedy, inexpensive, simple, solution-oriented, nonjudicial method for settlement of private property disputes. It is strictly voluntary for the private property owner; however, a governmental entity must participate if the private property owner files a request for relief. As much as possible, a landowner and governmental entity should meet face-to-face and seek a negotiated settlement of the issue without the need for advocacy by a lawyer. If a settlement is not reached, the special magistrate conducts an independent and impartial assessment of the dispute and prepares a nonbinding determination of whether the action by the government entity or entities is unreasonable or unfairly burdens the real property. If there is a determination of an unfair burden, the special magistrate with the owner's consent may recommend one (1) or more alternatives that protect the public interest and reduce restrictions on the use of the property.

(b) *Preinitiation meeting.* Prior to filing a formal special magistrate proceeding under this subdivision, the owner may by letter request an informal meeting with the city manager or his/her designee to discuss alternatives to the filing of the special magistrate proceeding under this division. The city manager or his/her designee shall conduct such a meeting as expeditiously as possible and shall include technical staff familiar with the regulation/code section at issue.

(c) *Request for relief.*

- (1) Any property owner who believes that a development order or enforcement action issued by the city is unreasonable or unfairly burdens the use of his or her real property may file a request for relief with the city manager or his/her designee.
- (2) In order to initiate a special magistrate proceeding, an owner must file two (2) copies of a request for relief in the office of the city manager. The request for relief must be filed within thirty (30) days after receipt of the order or notice of the city's action.
- (3) The request for relief shall contain the following:
 - a. A brief statement of the owner's proposed use of the property.

- b. A summary of the development order or description of the enforcement action. A copy of the development order or documentation enforcement action at issue must be attached to the request.
- (4) Within ten (10) days of receipt of the request for relief, the city manager or his/her designee shall forward the request to a special magistrate selected from the preapproved list of special magistrates. This time period may be extended by agreement of the parties.
- (5) The city shall include in the request for relief form provided to the property owner a list of preapproved special magistrates and instructions for objecting to any person named on the list. Unless a property owner objects to a special magistrate in the property owner's request for relief, the city will presume that all of the listed special magistrates are mutually acceptable to the property owner, and the city will select one (1) of them as the special magistrate to consider the request for relief.
- (6) If the property owner objects to all of the persons on the preapproved special magistrate list, the city shall be allowed additional time to secure a mutually acceptable special magistrate.
- (7) The cost of preparing and filing the initial two (2) copies of the request for relief shall be borne by the property owner or tenant and, the cost of preparing and serving copies of the request for relief on qualifying participants, shall be borne equally by the parties.
- (d) *Notice of filing.* Concurrently with the forwarding of the request for relief to the special magistrate, the city shall serve, U.S. mail or hand-delivery, a copy of the request to: (a) owners of real property contiguous to the applicant's property at the address shown on the latest county tax roll; and (b) any substantially affected person who submitted oral or written testimony of a substantive nature which stated with particularity an objection to or support for any development order or enforcement action at issue. Notice to a substantially affected person is required only if that person indicated to the city a desire to receive notice of any subsequent special magistrate proceedings occurring on the development order or enforcement action.
- (e) *Filing of response.* Within fifteen (15) days following the filing of a request for relief with the city, the city manager or his/her designee shall file a response to the request for relief with the special magistrate, together with a copy to the applicant, setting forth in reasonable detail the position of the city regarding the matters alleged by the applicant and including a brief statement explaining the public purpose of the regulations on which the development order or enforcement action is based. Any other government entity that is added by the special magistrate as a party must file a response prior to the hearing, but not later than fifteen (15) days following its admission as a party.

The city's response shall also include a sufficiency report which indicates whether the claim for relief contains the following information:
 - (1) A brief statement of the owner's proposed use of the property.
 - (2) A summary of the development order or description of the enforcement action. A copy of the development order or the documentation of an enforcement action at issue must be attached to the request.
 - (3) A brief statement of the impact of the development order or enforcement action on the ability of the owner to achieve the proposed use of the property.
 - (4) A certificate of service showing the parties, including the governmental entity, served.
 The cost of preparing and filing of the response to the request for relief shall be borne by the city.
- (f) *Sufficiency hearing.* Prior to any hearing on the merits of the request for relief, the special magistrate may conduct a hearing on whether the request for relief should be dismissed for failing to include the information required above. If the special magistrate dismisses the case, he or she shall allow the owner to amend the request and refile. The applicant and all parties in the matter shall receive a fifteen (15) day notice by U.S. mail or hand delivery regarding the date, time and location of the sufficiency hearing. The applicant's failure to submit an adequate amended request within the time specified by the special magistrate shall result in a dismissal with prejudice of the proceeding.
(Code 1983, § 2-570.44; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.45. Special magistrate selection.

(a) See section 2-570.28 for the appointment of preapproved special magistrates.

(b) The city shall include the request for relief form provided to the owner a preapproved list of magistrates and instructions for objection to any person named on the list. The parties may mutually agree on a special magistrate.

(c) Selection from the preapproved listing (applicable only for matters brought pursuant to the provisions under section 2-570.44 et al, i.e., Private Property Rights Act).

- (1) The special magistrate may be selected from the list of preapproved special magistrates provided with the request for relief form. Unless a property owner or tenant objects to a special magistrate in the property owner's or tenant's request for relief, those special magistrates not objected to are deemed to be acceptable to the property owner or tenant. The city will select one (1) of them, at random, as the special magistrate to consider the request for relief.
- (2) If the property owner or tenant objects to all of the persons on the preapproved special magistrate list, the city shall assign the matter to a special magistrate on its list unless the objections reasonably show a conflict of interest.

(Code 1983, § 2-570.45; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.46. Conduct of hearing.

(a) In all respects, the hearing shall be informal and open to the public. The hearing shall operate at the direction and under the supervision of the special magistrate. The object of the hearing is to focus attention on the impact of the governmental action giving rise to the request and to explore alternatives for relief.

(b) The special magistrate shall act as a facilitator or mediator between the parties in an effort to effect a mutually acceptable solution. If an acceptable solution is not reached through the special magistrate's attempt at mediation, the special magistrate shall consider the facts and circumstances set forth in the request and any responses and any other information produced at the hearing in order to determine whether the action by the government entities is unreasonable or unfairly burdens the real property.

(Code 1983, § 2-570.46; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.47. Hearing procedures.

(a) Hearings before the special magistrate shall be held as necessary to comply with state law. To the maximum extent practicable, the hearings shall be informal. Questioning shall be confined as closely as possible to the scope of direct testimony. The special magistrate may call and question witnesses as s/he deems necessary and appropriate. The special magistrate shall decide all questions of procedure. The special magistrate's recommendation is a public record under F.S. ch. 119.

(b) The participants before the special magistrate shall be: (a) the applicant and witnesses; (b) city and other governmental representatives and witnesses; and (c) public and witnesses as provided by state law. Each participant shall be limited to a total of one (1) hour to present its case, provided that for good cause shown, the special magistrate may grant additional time.

(c) The order of presentation at the hearing shall be as follows:

- (1) Applicant and witnesses;
- (2) The city manager's response to the application, including staff and other appropriate witnesses, as necessary;
- (3) Other governmental participants and witnesses;
- (4) Amended response of city manager, if any; and
- (5) Rebuttal and summation of applicant.

(d) Any part of the evidence may be received in written form, and all testimony shall be under oath. The hearing shall be recorded, and minutes shall be kept. Hearsay evidence may be used for the purpose of supplementing or explaining other evidence, but it shall not be sufficient, in itself, to support a finding by the special magistrate unless it would be admissible over objections in a civil action.

(e) At the discretion of the special magistrate, reasonable cross-examination of witnesses shall be permitted, but questioning shall be confined as closely as possible to the scope of direct testimony.

(f) It shall be the duty of the special magistrate to inquire fully into the facts of each case. In addition to the power described above, the special magistrate shall have the following powers and duties with respect to such cases:

- (1) To receive stipulations of fact, agreed to in writing, by the participants. Such stipulations, if filed, shall be regarded and used as evidence at such public hearing. A special magistrate may, nevertheless, require such additional evidence as he may deem necessary. However, a special magistrate shall not become an advocate for any participant in any zoning case, nor shall a special magistrate impose his/her theory of the case upon any participant during the hearing.
- (2) To accept, in lieu of originals, true copies of such documentary evidence as may be offered.
- (3) To request printed or written briefs to be filed on behalf of any of the participants in such hearings. Such briefs shall contain an abstract of the evidence, and also the arguments relied on by the participant filing the same. Briefs, when requested, shall be prepared and filed with the special magistrate within such time or times, and under such regulations, as to service of copies thereof upon the other participants, as the special magistrate may prescribe. The above-described request shall be filed on forms available from the code enforcement office or the city manager's office.
- (4) To dispose of procedural requests or similar matters including motions to modify and motions to consolidate applications.
- (5) To call, examine and cross-examine witnesses and to introduce into the record all relevant evidence.
- (6) To keep a record of all persons requesting notice of the decision in each case.
- (7) To receive oral testimony presented by all interested individuals.
- (8) To exclude all irrelevant, immaterial and repetitive testimony and evidence.
- (9) To subpoena any nonparty witness in the city or state whom the special magistrate believes will aid in the disposition of the request for relief.
- (10) To visit the property which is the subject matter of the application.
 - (g) The special magistrate may call and question witnesses as s/he deems necessary and appropriate.
 - (h) The special magistrate shall decide all questions of procedure.
 - (i) In conducting the hearing, the special magistrate may hear from all parties and witnesses that are necessary to an understanding of the matter and shall weigh all information offered at the hearing.
 - (j) The special magistrate's expenses in providing notice shall be borne equally by the parties or as otherwise established in the special magistrate's agreement.
 - (k) At any time during the special magistrate proceeding a party may submit an offer to compromise.
 - (l) At any time during the special magistrate proceeding, the owner and the city may enter into a settlement agreement or other agreement as to the permissible use of the owner's land.
 - (m) A settlement agreement or other agreement as to the permissible use of the owner's land may be executed by the parties involved. Any settlement agreement requiring the expenditure of funds, or the acquisition of funds, a variance or special exemption or other public hearing shall not be binding on any party until approved by all parties and the city commission.
 - (n) The following forms of relief are available:
 - (1) Without limitation, relief may be in the form of exemptions or variances from the applicable ordinances, including the city's comprehensive plan and other land development regulations;
 - (2) Relief may be conditional in nature. Such conditional relief must be analyzed to determine if the conditions under which it is granted are consistent with the purpose and intent of the subject regulations and the city's comprehensive plan;

- (3) Conditions may be initial, after satisfaction of which the settlement is implemented; or
- (4) Conditions may be ongoing, the failure of which serve to vacate the settlement and divest the owner or his/her successors in interest of any right thereunder.

(o) Any relief granted shall address the appropriateness of relief, allowing the city to fashion that form of relief necessary to equitably address the legitimate concerns of the property owner while at the same time protecting the legitimate interests of the citizens of the city. Such decisions shall be guided by the criteria established in the Florida Land Use and Environmental Dispute Resolution Act under F.S. ch. 70.

(p) Where such settlement or other agreement has been entered into, the special magistrate shall not thereafter render a recommendation on those matters covered by the agreement.
(Code 1983, § 2-570.47; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.48. Special magistrate recommendation.

The special magistrate shall prepare a recommendation within fourteen (14) days of concluding hearings. The special magistrate shall send a copy of the recommendation in each case to all parties involved in the dispute. The special magistrate may recommend one (1) or more of the following alternatives, but shall not be limited to these alternatives:

- (1) An adjustment of land development or permit standards or other provisions controlling the development or use of land.
- (2) Increases or modifications in the density, intensity, or use of areas of development.
- (3) The transfer of development rights.
- (4) Land swaps or exchanges.
- (5) Mitigation, including payments in lieu of on-site mitigation.
- (6) Location on the least sensitive portion of the property.
- (7) Conditioning the amount of development or use permitted.
- (8) A requirement that issues be addressed on a more comprehensive basis than a single proposed use or development.

- (9) Issuance of the development order, a variance, special exception, or other extraordinary relief, including withdrawal of the enforcement action.
- (10) Purchase of the real property, or an interest therein, by the city or other appropriate governmental entity.
- (11) That the city or other governmental entity involved in the dispute maintain its position as valid.
- (12) Assess fines, penalties and late fees for Code violations.
- (13) Order cleanup or removal of Code violations.
- (14) Issue stop orders on work done to property in violation of Code.
- (15) Order any other legal method of compliance with city Code.
(Code 1983, § 2-570.48; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.49. Response to special magistrate's recommendation.

The city, in consultation with other governmental entities participating in the proceeding, must respond to the special magistrate's recommendation within forty-five (45) days by taking one (1) of the following actions:

- (a) Accept the recommendation of the special magistrate as submitted and proceed to implement it by development agreement, when appropriate, or by other method, in the ordinary course and consistent with the rules and procedures of the city. The city commission may, at a public hearing, grant the necessary variances, special exceptions to the application or statutes, rules, regulations, or ordinances without the need for such items going to any other board or committee of the city based on the recommendation of the special magistrate. However, an owner is not required to duplicate previous processes in which the owner has participated in order to effectuate the granting of the modification, variance, or special exception;
- (b) Modify the recommendation of the special magistrate as submitted and proceed to implement it by development agreement, when ap-

appropriate, or by other method, in the ordinary course and consistent with the rules and procedures of the city; or

- (c) Reject the recommendation as submitted by the special magistrate. Failure to act within forty-five (45) days is a rejection unless the period is extended by agreement of the owner and the city.

(Code 1983, § 2-570.49; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.50. Available use or ripeness decision.

If the city commission accepts the special magistrate's recommendation or modifies it and the owner rejects the acceptance of modification, or if the city commission rejects the special magistrate's recommendation, the city must issue a ripeness decision within thirty (30) days.

(Code 1983, § 2-570.50; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.51. Delivery of notice.

All notices required by this division shall be certified mail, return receipt requested, or where mail would not be effective, by hand-delivery, or by facsimile transmission.

(Code 1983, § 2-570.51; Ord. No. 97-1, § 1, 1-22-1997)

Sec. 2-570.52. Time limit.

The procedure established by this division shall not continue for more than one hundred sixty-five (165) days, unless the period is extended by agreement of the parties.

(Code 1983, § 2-570.52; Ord. No. 97-1, § 1, 1-22-1997)

Secs. 2-570.53—2-570.60. Reserved.

DIVISION 11. RESERVED

DIVISION 12. ACCOUNTABILITY BOARD

Sec. 2-570.66. Purpose.

The purpose of this division is to establish an accountability board for the city to oversee the manner in which the city responds to allegations of sexual harassment and other misconduct which may contribute to an offensive, hostile or intimidating work environment. (Code 1983, § 2-570.66; Ord. No. 01-2, § 1, 2-14-2001)

Sec. 2-570.67. Policy.

It is the policy of the city that no employee or any person doing business with the city shall:

- (1) Commit sexual harassment or engage in misconduct which may contribute to an offensive, hostile or intimidating work environment.
- (2) Retaliate against any person who provides information concerning an incident or allegation of sexual harassment or misconduct which may contribute to an offensive, hostile or intimidating work environment.
- (3) Knowingly make a false accusation of sexual harassment or misconduct which may contribute to an offensive, hostile or intimidating work environment.
- (4) While in a supervisory position, condone or ignore sexual harassment or other misconduct which may contribute to an offensive, hostile or intimidating work environment.

(Code 1983, § 2-570.67; Ord. No. 01-2, § 2, 2-14-2001)

Sec. 2-570.68. Scope.

The accountability board shall review all allegations of sexual harassment and other misconduct which may contribute to an offensive, hostile or intimidating work environment. These allegations may include unwelcome sexual advances, requests for sexual favors, other verbal or physical conduct of a sexual nature or other misconduct, when:

- (1) Submission to or rejection of such advances or requests is explicitly or implicitly made a term of employment;
- (2) Submission to or rejection of such conduct forms the basis for employment decisions; or
- (3) Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive working environment.

(Code 1983, § 2-570.68; Ord. No. 01-2, § 3, 2-14-2001)

Sec. 2-570.69. Objectives.

The accountability board will provide standardized procedures for the city to ensure the uniform and effective handling of allegations of sexual harassment and other misconduct which may contribute to an offensive, hostile or intimidating work environment. The

accountability board will oversee the processing of allegations of sexual harassment and other misconduct to ensure that they are responded to in a manner that is fair to all parties, timely, and consistent. The accountability board's oversight will provide the city with an assessment of the processing of allegations covered by this division, independent of the officials responsible for such processing. The accountability board will review actions taken for timeliness, consistency, and appropriateness. The accountability board will not recommend or take disciplinary action. Benefits resulting from a process emphasizing accountability, timeliness, consistency, and appropriateness include:

- (1) Ensuring that allegations of sexual harassment and other misconduct which may contribute to an offensive, hostile or intimidating work environment are handled properly.
- (2) Ensuring a uniform and consistent approach to address and track allegations.
- (3) Creating and maintaining a model work environment to enhance mission accomplishment.
- (4) Demonstrating the city's commitment to eliminate sexual harassment from the workplace.
- (5) Potentially reducing the expenditure of resources required by more formal procedures, such as equal employment opportunity (EEO) and reducing financial liability.

(Code 1983, § 2-570.69; Ord. No. 01-2, § 4, 2-14-2001)

Sec. 2-570.70. Timeliness standards.

Each allegation of sexual harassment and other misconduct which may contribute to an offensive, hostile or intimidating work environment should be reported as soon as possible after the incident occurs. There is no specific time requirement for employees to report instances of sexual harassment under the accountability board process. However, the city's ability to deal with such issues appropriately and effectively, particularly when disciplinary action is warranted, is greatly diminished if the allegations are not reported timely. Accordingly, employees are encouraged to report such incidents promptly. The goal is that such allegations will be reported to the accountability board and, if appropriate, investigated and appropriate action initiated within a total of fifty (50) workdays from the date the allegation was reported. Specific timeframes for various stages of the process are provided for in this

division. Extensions of timeframes prescribed by this division shall be within the discretion of the accountability board chairperson.

(Code 1983, § 2-570.70; Ord. No. 01-2, § 5, 2-14-2001)

Sec. 2-570.71. Board membership.

The city commission shall appoint five (5) members to serve on the accountability board with the mayor and commissioners each having one (1) appointee. Each member shall serve for a period of two (2) years. A chairperson shall be chosen from amongst the members duly appointed and shall serve for a period of one (1) year. The city attorney shall serve as legal representative providing legal advice and guidance.

(Code 1983, § 2-570.71; Ord. No. 01-2, § 6, 2-14-2001)

Sec. 2-570.72. Definitions/responsibilities.

(a) Accountability board. The accountability board oversees the processing of all allegations of sexual harassment and other misconduct which may contribute to an offensive, hostile or intimidating work environment to ensure that city officials are accountable for properly responding to such allegations. The accountability board will ensure that allegations are resolved timely, handled consistently throughout the agency, and appropriately resolved. The accountability board tracks and monitors all allegations and their outcomes and seeks to identify trends in such allegations and the manner in which they are resolved. Based on analyses of data collected, the accountability board recommends policies and procedures to correct identified systemic problems in city policies and practices. The accountability board will continually evaluate the procedures set forth in this division and their effectiveness.

(b) Accountability board chairperson. The accountability board chairperson directs the proceedings of the accountability board and provides the city commission and city manager with a report of the accountability board's activities on a quarterly basis. The accountability board chairperson resolves any conflicts of interests involving members of the accountability board and makes decisions concerning issues of scope and timeliness raised during the processing of allegations. The accountability board chairperson may alter these procedures as needed to ensure the best interests of the agency are satisfied.

(c) Accountability board coordinator. The accountability board coordinator organizes the administrative activities of the accountability board. The coordinator tracks the progress of individual cases, schedules accountability board meetings, and docket reports cases for review by the accountability board. The coordinator notifies affected personnel to ensure their attendance at accountability board meetings. The coordinator consults with managers and supervisors involved in the process. The accountability board coordinator shall be a designated person from the city's department of human resources.

(d) Complaining party. The complaining party is any individual alleging sexual harassment, misconduct of a sexual nature, or reprisal or retaliation for reporting allegations or cooperating in the inquiry or investigation of such allegations, whether as the person against whom such conduct is directed or as a witness to such conduct.

(e) Respondent. The respondent is an individual against whom an allegation is made.

(f) Accountable official. The accountable official shall be the city manager, or his designee, is responsible for ensuring appropriate and timely processing of allegations within the city in accordance with these procedures. The accountable official may designate subordinate manager to interview the complaining party, advise the respondent, and perform supervisory duties relative to any appropriate action required. Depending on the position of the respondent, there may be instances in which the accountable official himself or herself must perform the supervisory duties relative to appropriate action.

(g) Human resources specialist. The human resource (HR) specialist designated for accountability board matters advises supervisors and management officials on policies and procedures applicable to allegations covered by this division.

(h) Investigator. The investigator conducts a formal investigation to determine facts relevant to allegations of sexual harassment or misconduct which may contribute to an offensive, hostile or intimidating work environment and, on completion, provides a written report of investigation (ROI).

(i) The term "day" refers to administrative workdays.
(Code 1983, § 2-570.72; Ord. No. 01-2, § 7, 2-14-2001)

Sec. 2-570.73. Procedures.

(a) Introduction.

- (1) The procedures prescribed below apply to all allegations of sexual harassment and misconduct which may contribute to an offensive, hostile or intimidating work environment, regardless of where they originate within the city. In some cases, allegations may be reported by the complaining party to a supervisor within the city. While employees are encouraged to report sexual harassment or other sexual misconduct to their managers or supervisors, this may not always be feasible. Accordingly, allegations may come to light through the department of human resources or an EEO officer. Allegations that become known through these sources will be reported to the accountability board.
- (2) Allegations of sexual harassment and misconduct or reprisal for reporting such allegations or for cooperating in an inquiry or investigation related to such allegations, regardless of where they originate, must be reported to the accountability board coordinator within two (2) workdays of the date the allegation is first made.

(b) Phase I—Report of allegation.

- (1) Whenever sexual harassment, or other misconduct, is alleged by a city employee to a supervisory or managerial official, the accountable official must report the allegation to the accountability board coordinator within two (2) workdays of the date the allegation is first made. When the allegation is reported to a supervisor or manager other than the accountable official, that manager or supervisor must immediately notify the appropriate accountable official to ensure the two (2) day time requirement is met. When reporting to the accountability board coordinator, the accountable official shall provide as much pertinent information as is known at that time, without additional inquiry. At a minimum, the identities of the respondent and the complaining party should be provided. Reporting is done verbally by telephone or facsimile.

- (2) When an allegation or complaint of sexual harassment or other misconduct is made to the EEO officer, the EEO officer is responsible for reporting the allegation to the accountability board coordinator within two (2) work-days. If anonymity is requested by the complainant during the informal counseling period, the facts of the allegation will be referred to the accountability board in a manner that does not reveal the complaining party's identity.
- (3) If an allegation brought to the accountability board's attention by means of the EEO is specific enough to allow management action, the accountability board coordinator shall notify the accountable official. If an allegation received from an anonymous or confidential source is too vague to support continued inquiry, the accountability board shall document the allegation, but will take no further action. The accountability board will not initiate investigation for vague or undefined allegations. In addition, the ability of the accountability board to investigate and take appropriate action may be limited when allegations are anonymous and/or confidential.
- (4) Allegations reported to the department of human resources must be reported to the accountability board coordinator within two (2) work-days of the date the allegation is first made.
- (5) If a manager or supervisor receives an allegation of sexual harassment that involves a contractor, he or she should immediately contact the accountability board coordinator, who will notify the appropriate contracting officer.
- (6) Upon receipt of an allegation, the accountability board coordinator shall ensure the allegation and all pertinent facts are brought to the accountability board's attention. In those cases, reported by sources other than the accountable official, the coordinator will also ensure that the accountable official is notified of the allegation. Based on the information provided, and in consultation with the accountable official, an initial determination will be made by the accountability board as to the appropriate manner in which to handle the allegation.
- (7) Reporting the allegation to the accountability board in no way impacts the processing of an EEO complaint concerning the same matter. The accountability board process does not extend or limit the timeframes in the EEO or grievance processes. Allegations of sexual harassment pursued through the EEO process will be handled in accordance with the laws governing the filing and handling of claims as provided for by the equal employment opportunity commission.
 - (c) *Phase II—Initial steps.* After reporting the allegation to the board, or receiving the allegation from the board coordinator, the accountable official has several responsibilities that must be accomplished virtually simultaneously or in rapid sequence.
 - (1) *Initial interview.* The accountable official shall consult with the designated HR point of contact in determining the appropriate person in the city to conduct the initial interview of the complaining party. Normally, this will be a manager or supervisor who has not been alleged, in any way, to be personally involved in the allegation of sexual harassment or misconduct. Under unusual circumstances, such as a case of particular sensitivity, or a complaining party who requires special assistance, the accountable official may determine that someone from outside the city should conduct the interview.
 - a. The purpose of the initial interview is to determine, to the extent possible, the nature of the conduct leading to the allegation and to identify the parties involved.
 - b. The person designated to conduct the interview shall consult with the designated HR point of contact for guidance on how to conduct the interview. Responding to the person designated to conduct the initial interview shall be a priority for the HR specialist and shall be accomplished within one (1) workday of contact.
 - c. The person conducting the initial interview shall request that the complaining party provide a written statement that describes in his or her own words as many details of the alleged behavior/

- incident as possible. Whenever possible, this statement should be obtained at the time the initial interview is conducted. If that is not possible, the individual conducting the interview should ask the complaining party to submit a statement not later than the following day.
- d. The complaining party shall be advised by the individual designated to conduct the initial interview that the city commission will conduct an inquiry and/or investigate any allegation of sexual harassment or misconduct of a sexual nature. Information concerning such allegations may be disseminated only as permitted by applicable law.
 - e. The complaining party shall also be advised in writing of available avenues of redress (e.g., EEO complaint or grievance processes) and appropriate timeframes and/or procedures for each process. In addition, the complaining party shall be informed that contact with a management official or the accountability board does not extend or otherwise affect any statutory or regulatory timeframes for pursuing such avenues.
- (2) *Notifying the respondent.* The accountable official shall ensure that the respondent is advised of the nature of the allegation against him or her and that at an appropriate time he or she will be given an opportunity to respond to the allegation. The HR specialist assigned shall provide guidance as to how meetings with the respondent should be conducted and what information can be disclosed to the respondent.
 - a. It is essential that managers and supervisors maintain neutrality in all contacts with the respondent before a decision is made as to what action, if any, needs to be taken. Supervisors must avoid making statements that imply judgment or culpability or that an assessment of the merits of the allegation has been made. No determination will be made about an employee's conduct until the conclusion of the appropriate inquiry or investigation.
 - b. The management official designated by the accountable official to notify the respondent shall counsel him or her on appropriate policy and behavior, without reference to the merits of the allegations. It is generally advisable to direct the respondent to limit contact, to the maximum extent possible, with the complaining party, pending resolution of the allegation. Depending on the nature of the allegation, it may be necessary to direct the respondent to avoid all contact with the complaining party.
- (d) *Phase III—Managerial options: Internal handling or referral for security investigation.*
 - (1) Based on the preliminary assessment of the allegation, the accountable official may either:
 - a. Address the matter internally without requesting a formal investigation; or
 - b. Refer the matter to the accountability board coordinator for a formal investigation.
 - (e) *Phase IIIa—Internal handling.*
 - (1) If the accountable official determines that a formal investigation is not necessary, he or she has ten (10) workdays from the date the allegation was first reported in which to address the allegation (i.e., determine the facts and decide what, if any, action is appropriate and, where action is appropriate, initiate that action). In most cases, such action will be accomplished by the subordinate supervisor who normally would have responsibility for dealing with any issue of misconduct pertaining to the respondent.
 - (2) If, within ten (10) workdays of the date the allegation was first reported, it is determined that the facts of the case are sufficiently known to make a determination on the appropriate course of action (including a determination that no further action is needed), the management official may initiate action, after coordination with the designated HR specialist. The accountable official shall notify the account-

ability board coordinator within two (2) workdays after the action has been initiated, with the following exceptions:

- a. If a case is particularly sensitive, the accountability board, in its discretion, may direct that the accountable official advise the accountability board of the proposed action prior to initiating that action. In these instances, the accountable official will be notified of the accountability board's intent to review the proposed action as soon as possible, but no later than five (5) workdays of having first reported the allegation to the accountability board; or
 - b. If the accountable official and the cognizant HR office do not agree as to what action is appropriate, the accountability board shall be consulted prior to initiating any action. However, even in this instance, the cognizant organization, after consultation with the accountability board, will be responsible for ultimately determining the appropriate disposition.
- (3) If the accountable official and the designated HR specialist agree on the proposed action, the accountable official or his or her designee may initiate such action and report that action to the accountability board, stating the allegation and the facts relevant to determine the appropriateness of the action taken, if any. The accountability board will review such actions to ensure consistency with city policy and practice in similar cases.
 - (4) In cases where a notice of proposed disciplinary action is issued before a final decision is made (e.g., proposed suspensions, reductions-in-grade, or removals), the board shall also be notified of the final decision within two (2) workdays after issuing that decision. Similarly, in cases where an action is subsequently appealed or grieved, the board shall be notified of the final disposition of the appeal or grievance, including any modification to the initial action taken.
- (f) *Phase IV—Disposition after formal investigation.*
- (1) The accountable official shall determine the appropriate disposition of the case. The HR

specialist designated as point of contact for matters relating to the accountability board shall provide assistance to the accountable official in determining the appropriate action and preparing any correspondence related to that action. The accountability board will be notified of the action initiated within two (2) workdays after initiating that action, with the following exceptions:

- a. If a case is particularly sensitive, the accountability board, in its discretion, may direct that the accountable official advise the accountability board before initiating any action. The accountable official will be notified of the accountability board's intent to review the proposed action not later than five (5) workdays of the report of the allegation to the accountability board; or
 - b. If the accountable official and the cognizant HR office do not agree as to what action is appropriate, the accountability board shall be consulted before initiating any action. However, even in this instance, the cognizant organization, after consultation with the accountability board, will be responsible for ultimately determining the appropriate disposition.
- (2) Preparation of any action shall be a priority for the supervisor and the cognizant HR specialist, and related correspondence shall be issued not later than ten (10) workdays from receipt of the ROI. The accountability board will review such actions to ensure consistency with city policy and practice in similar cases.
 - (3) In cases where a notice of proposed disciplinary action is issued before a final decision is made (e.g., proposed suspensions, reductions-in-grade, or removals), the board shall also be notified of the final decision within two (2) workdays after issuing that decision. Similarly, in cases where an action is subsequently appealed or grieved, the board shall be notified of the final disposition of that appeal or grievance, including any modification to the initial action taken.
 - (4) All notes and reports of pertinent facts and decisions relating to each case should be ap-

appropriately preserved by the designated HR specialist ROI's will be maintained in the appropriate security division.

(g) *Phase V—Providing feedback.*

- (1) The accountable official or his designee shall inform the complaining party of the status of the allegation throughout the process. Substantive information concerning the facts developed, merits of the allegation, or disposition generally cannot be given to the complaining party.
- (2) Similarly, the accountable official shall ensure that the respondent is informed of the status of the allegation throughout the process. Feedback should be provided as timely as possible.
- (3) To ensure appropriate information is provided, the accountable official involved shall consult with the HR specialist assigned to prior providing any feedback to the complaining party or the respondent.

(Code 1983, § 2-570.73; Ord. No. 01-2, § 8, 2-14-2001)

Sec. 2-570.74. Cases involving noncity personnel.

Allegations of sexual harassment, or other misconduct of a sexual nature, by or against persons who are not city employees will also be reviewed by the accountability board. If the respondent is a city employee, the procedures described in section 2-570.73 of this division apply in their entirety. In cases in which the individual against whom the allegation is made is not a city employee, the allegation will be reported to the cognizant contracting officer for referral to the contractor or to the individual's parent organization, as appropriate, for coordination in conducting any inquiry or investigation or in resolving the allegation. The accountability board will track and monitor these allegations to ensure timely and appropriate action.

(Code 1983, § 2-570.74; Ord. No. 01-2, § 9, 2-14-2001)

Sec. 2-570.75. Evaluation.

(a) The accountability board will evaluate these procedures and their effectiveness on a continuing basis, as well as track and monitor all allegations and their outcomes. The accountability board will analyze trends in allegations and the manner in which they are resolved to identify areas within the city that need attention. Based on its analysis of pertinent data, the ac-

countability board will recommend policies and procedures to correct identified systemic problems in city policies and practices.

(b) The overall effectiveness of the accountability board and of these procedures will be evaluated one (1) year after the date of adoption of this division. The outcomes of allegations considered by the accountability board, and the role of the accountability board, in general, will be evaluated to determine their consistency with the objectives stated herein. Appropriate modification to these procedures may include other forms of harassment and discriminatory behavior. (Code 1983, § 2-570.75; Ord. No. 01-2, § 10, 2-14-2001)

Secs. 2-570.76—2-570.80. Reserved.

DIVISION 13. HISTORIC ENVIRONMENTAL PRESERVATION BOARD

Sec. 2-570.81. Created; composition; term of office; qualifications; organization; meetings; records.

A historic environmental preservation board ("board") is hereby created, which shall be an advisory body to the commission, consisting of five (5) members, each of whom shall be appointed by the city commission, for a term of four (4) years. The board shall also consist of two (2) alternate members appointed by the city commission. Alternate members shall serve a term of two (2) years. An alternate member shall replace a regular member when a regular member is unavailable to attend a meeting. Each member of the board shall serve until the expiration of his or her term. Members shall be eligible for reappointment. The city commission shall attempt to appoint architects, realtors, historians, art historians, lawyers, engineers, archaeologists or other individuals from the business, financial, or other segments of the community who, by virtue of their profession or business, have demonstrated concern for historic preservation. The historic environmental preservation board shall include not less than one (1) architect; one (1) real estate agent or attorney at law; and one (1) historian or architectural historian. The city manager shall provide qualified professional staff for the board.

- (a) At least three (3) members of the historic environmental board shall be residents of the city. The city commission, within its discre-

tion, may appoint up to a maximum of two (2) members of the board who are not residents of the city. These two (2) appointments shall be made on the basis of civic pride, integrity, experience and interest in the field of historic preservation and city beautification. Members of the historic environmental preservation board shall hold no other public office or position in the city.

- (b) The members of the historic environmental preservation board shall elect a chair and vice chair from among its appointed members. The city commission may remove members and vacancies shall be filled for the unexpired term of any removed member.
- (c) Meetings of the historic environmental preservation board shall meet not less than six (6) times in any calendar year. Records shall be maintained pursuant to state law, findings and determinations showing the vote on each matter and shall file the record and approved minutes of each meeting with the city clerk within thirty (30) days of the date of the meeting, or as soon thereafter as practicable. Members of the historic environmental board shall serve without compensation.
- (d) The historic environmental preservation board may adopt reasonable rules of procedure to govern the conduct of its business and the holding of public hearings and workshops, consistent with procedures established for it by the city commission.

(Code 1983, § 2-570.81; Ord. No. 16-13, § 2, 10-12-2016; Ord. No. 2022-02, § 2(2-570.81), 1-12-2022; Ord. No. 2025-23, § 2, 7-23-2025)

Sec. 2-570.82. Duties and responsibilities.

The historical preservation board shall have the following enumerated powers and duties:

- (1) Adopt or amend rules of procedure for its meetings.
- (2) Advise the city commission as to designated individual sites, districts and archeological zones.
- (3) Recommend the issuance or denial of certificates of appropriateness and certificates to dig.
- (4) Recommend the approval of historical markers and recommend the issuance of certificates of recognition for individual sites and designated properties in a district.
- (5) Recommend zoning and building code amendments to the proper authorities.
- (6) Recommend to the city commission guidelines for preservation and criteria for issuance by staff of regular certificates of appropriateness.
- (7) Promote the awareness of historic preservation and its community benefits.
- (8) No actions of this board will supersede or be construed as superseding the authority of the city commission.
- (9) Review and recommend update the historic survey as it applies to the city and conduct such local research as is considered appropriate.
- (10) Implement the authority of this division and fulfill the tasks set forth for this board by the city commissioners.
- (11) Record and maintain records of the board's actions and decisions.
- (12) Follow and abide by the laws of the United States of America, the state, county, and the city.
- (13) Provide an annual report to the city commission.
- (14) Make recommendations regarding planting and care of shade and ornamental trees and shrubbery now located or which may hereafter be planted in any public highway, park or pathway, except such as are excluded pursuant to applicable law, including the planting, trimming, spraying care and protection thereof.
- (15) Make recommendations to regulate and control the use of the ground as may be necessary for proper growth, care and protection of trees and shrubbery.
- (16) Recommend the removal of any tree or part thereof dangerous to public safety.
- (17) Propose regulations, subject to approval by the city commission.

- (18) Recommend the treatment or removal of any tree situated upon private property which is believed to harbor a disease or insects readily communicable to neighboring healthy trees in the care of the city.
 - (19) Comply with all other minimum standards as set forth in Miami-Dade County Ordinance 81-13, chapter 16-A pertaining to historic preservation.
- (Code 1983, § 2-570.82; Ord. No. 14-05, § 2, 6-11-2014; Ord. No. 16-13, § 2, 10-12-2016; Ord. No. 2022-02, § 2(2-570.82), 1-12-2022)

Sec. 2-570.83. Scope of regulations.

This division is intended to and shall govern and be applicable to all property located in the city. Nothing contained herein shall be deemed to supersede or conflict with applicable building and zoning codes. Provisions contained herein shall be cumulative and read in conjunction with other laws, rules and regulations. It is the legislative intent of the city commission that this division shall meet the requirements of chapter 16A, section 16A-3.1 of Miami-Dade County Code of Ordinances as a qualified municipal historic preservation ordinance, and that this division shall be filed with the clerk of Miami-Dade County board of county commissioners and with the national register of historical places for certification to be eligible under the relevant Tax Act.

(Ord. No. 2022-02, § 2(2-570.83), 1-12-2022)

Sec. 2-570.84. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Archeological zone* means an area designated by this ordinance which likely to yield information on the history and pre-history of the city based on prehistoric settlement patterns in the city as determined by the results of the Dade County historic survey and local research. These zones will tend to conform to natural physiographic features which were the focal points for prehistoric and historic activities.

(2) *Certificates of appropriateness* means a certificate issued by the city commission after rec-

ommendation by the board permitting certain alterations or improvements to a designated property.

(A) *Regular certificate of appropriateness.* A regular certificate of appropriateness shall be issued and approved by the city manager through the administrative review process based on the guidelines of minor repair and renovation projects.

(B) *Special certificate of appropriateness.* For all applications for a special certificate of appropriateness involving the demolition, removal, reconstruction or new construction at an individual site or in a district a special certificate of appropriateness is required that is issued directly by the board.

(3) *Certificate to dig* means a certificate that gives the board's permission for certain digging projects that may involve the discovery of as yet unknown or known archeological sites in an archeological zone. This certificate is issued by staff of the board based on the guidelines for preservation approved by the board.

(4) *Certificate of recognition* means a certificate issued by the board recognizing properties designated pursuant to this division.

(5) *City commission* means the City of Opa-locka Commission.

(6) *Demolition* means the complete constructive removal of a building of any site.

(7) *Districts* means a collection of archeological sites, buildings, structures, landscape features or other improvements that are concentrated in the same area and have been designated as a district pursuant to this ordinance.

(8) *Exterior* means all outside surfaces of a building or structure.

(9) *Guidelines for preservation* means criteria used by staff in determining the validity of applications for a regular certificate of appropriateness and any certificate to dig and to establish a set of guidelines for the preservation of buildings in the city. Minimum guidelines for preservation shall be that of the Secretary of Interior's Standards for the treatment of historic properties, as may be amended from time to time. The city commission may establish additional standards.

(10) *Historical preservation board* means the board created and established by this ordinance as described in section 2-570.81.

(11) *Historic survey* means a comprehensive survey compiled by the historic preservation division of the Miami-Dade County Office of Community and Economic Development involving the identification, research and documentation of buildings, sites and structures of any historical, cultural, archeological or architectural importance in Miami-Dade County, Florida.

(12) *Individual site* means an archeological site, building, structure, place or other improvement that has been designated as an individual site pursuant to this division. Under the provisions of this division, interior spaces may be regulated only where a building or structure is designated individual site.

(13) *National register of historic places* means a federal listing maintained by the U.S. Department of the Interior of buildings, sites, structures and districts that have attained a quality of significance as determined by the Historic Preservation Act of 1966 as amended.

(14) *Ordinary repairs or maintenance* means work done to prevent deterioration of a building or structure or decay of or damage to a building or structure or any part thereof by re-storing the building or structure as nearly as practicable to its condition prior to such deterioration, decay or damage.

(15) *Owner of a designated property* means as reflected on the current Metropolitan Dade County tax rolls or current title holder.

(16) *Qualified staff* may be considered outside contractors of the city and shall be a person who has a bachelor's degree in historic preservation, architecture, architectural history, history, or other closely related field, and who has at least three (3) years of professional experience in the field of historic preservation or as a historic preservation planner; or who has a master's degree in the above mentioned fields and who has at least one (1) year of professional experience in the field of historic preservation or as a historic preservation planner.

(17) *Landscape feature* means any improvement or vegetation,, including, but not limited to outbuildings, walls, courtyards, fences, shrubbery, trees sidewalks, planters, plantings, gates, street furniture and exterior lighting.

(18) *Historic designated property* means any property listed on the City of Opa-locka Historic Register or contributing property within the designated historic district.

(19) *Minor repair or renovation project* means any alteration to an exterior of historic designated property that is considered to be of minimal impact on the property's historic character, such as routine maintenance, replacement of like-for-like materials, minor paint color changes, or minor repairs to windows and doors, as further defined in the COA Matrix.

The definitions set forth in the Miami-Dade County Ordinance No. 81-13, chapter 16-A pertaining to historic preservation shall be adopted and also apply to this section in the event of conflict and as may otherwise be amended from time to time.

(Ord. No. 2022-02, § 2(2-570.84), 1-12-2022; Ord. No. 2025-08, § 2, 4-9-2025)

Sec. 2-570.85. Vested power, authority and jurisdiction.

The board is hereby vested with the power, authority and jurisdiction to recommend the designation, regulation and administration of historical, cultural, archeological and architectural resources in the city, as prescribed by this division under the direct jurisdiction and legislative control of the city commission.

(Ord. No. 2022-02, § 2(2-570.85), 1-12-2022)

Sec. 2-570.86. Rules and regulations.

Administrative approval process for minor repair and renovation projects:

- (a) *Application.* An owner of a historic designated property seeking to undertake a minor repair or renovation project shall submit a completed application to the zoning, planning and community development, including detailed plans, photographs, and a description of the proposed work.
- (b) *Review by zoning, planning and community development.* The director and the designated staff shall review the application to determine

if the project qualifies as a minor repair or renovation project. If approved, the zoning, planning and community development shall issue a certificate of appropriateness without further review by the HEPB.

- (c) *Notification.* The applicant shall be required to notify any adjacent property owners of the administrative approval of a minor repair or renovation project.
- (d) *Conditions for administrative approval.* All minor repair or renovation projects must comply with the established City of Opa-locka Historic Preservation Design Guidelines.

(Ord. No. 2022-02, § 2(2-570.86), 1-12-2022; Ord. No. 2025-08, § 2, 4-9-2025)

Sec. 2-570.87. Designation process and procedure.

I. The city commission shall have the authority to designate areas, places, buildings, structures, landscape features, archeological sites and other improvements or physical features, as individual sites, districts, or archeological zones that are significant in the city's history, architecture, archeology, or culture and possesses an integrity of location, design, setting, materials, workmanship or association, or:

- (A) Are associated with distinctive elements of the cultural, social political, economic, scientific, religious, prehistoric and architectural history that have contributed to the pattern of history in the community, Miami-Dade County, South Florida, the state or the nation;
- (B) Are associated with the lives of persons significant in our past;
- (C) Embody the distinctive characteristics of a type, period, style or method of construction or work of a master; or that possess high artistic value, or that represent a distinguishable entity whose components may lack individual distinction;

- (D) Have yielded, or are likely to yield information in history or prehistory; or
- (E) Are listed in the national register of historic places. The city commission shall conduct a separate public hearing to consider for designation each property within its jurisdiction listed in the national register of historic places;

II. Certain properties which include cemeteries, birthplaces, properties owned by religious institutions, or used for religious purposes, structures that have been moved from their original locations, properties commemorative in nature and properties that have achieved significance within the last twenty-five years, will not normally be considered for designation. However, such properties will qualify if they are integral parts of districts that do meet the criteria, or if they fall within the following categories:

- (A) A religious property deriving primary significance from architectural or artistic distinction of historical importance.
- (B) A building or structure removed from its location but which is primarily significant for architectural value, or is the surviving structure most importantly associated with an historic event or person.
- (C) A birthplace or grave of an historical figure of outstanding importance if there is no other appropriate site or building directly associated with his/her productive life.
- (D) A cemetery which derives its primary significance from graves of persons of transcendent importance, from age, distinctive design features, or from association with historic events.
- (E) A property primarily commemorative in intent if design, age, tradition, or symbolic value has invested it with its own historical significance.
- (F) A property or district achieving significance within the past twenty-five (25) years if it is of exceptional importance.

III. Prior to the designation of an individual site, a district, or an archeological zone, an investigation and designation report must be filed with city. The format of these reports may vary according to the type of designation, however all reports must address the following: The historical, cultural, architectural, and ar-

cheological significance of the property of properties being recommended for designation; a recommendation of boundaries for districts and archeological zones and identification of boundaries of individual sites being designated; a recommendation of standards to be adopted by the city commission in carrying out its regulatory function under this ordinance with respect to certificates of appropriateness and certificates to dig. Where a report is filed recommending designation of a district, the report must identify those properties, if any, within the district which are not historically or architecturally compatible with structures in the district. The standards for regulating such nonconforming properties shall provide that a certificate of appropriateness may be required only for new construction on such properties. All reports shall take into consideration projected, proposed or existing public improvements and developmental or renewal plans. The board must produce at least one designation report per calendar year, and present it to the municipal historic preservation board for consideration, until all properties in its jurisdiction listed as historically significant on the municipality's or the county's previous surveys have been considered for designation.

IV. Procedure.

- (A) Petition of the owner. The owner of any property in the city may petition the board for recommendation of designation of their property as an individual site, district or archeological zone provided that they appear before the board with sufficient information to warrant the investigation of the property for future designation and the board finds that the property may be worthy of designation. The Miami-Dade County historic preservation chief may also recommend the initiation of designations. the board shall, based on its findings, either direct the staff to transfer its recommendation to the city commission so that the city commission can then direct city staff to begin the designation process or deny the petition.
- (B) Directive of the board. Upon recommendations from staff and the acceptance of petitions pursuant to this section, staff shall transmit the boards recommendations to the city commission along with any other recommendations the board may deem necessary, and submit its report to the city commission.

- (C) Notification of owner. For each proposed designation of an individual site, district, or archeological zone, the board is encouraged to obtain the permission of the property owner within the designated area, and is responsible for mailing a copy of the designation report to the owner as notification of the intent of the board to consider designation of the property at least fifteen (15) days prior to a public hearing held pursuant to this section.
- (D) Notification of government agencies. Upon filing of a designation report, the community development director shall immediately notify the clerk of the board of county commissioners, the city clerk, the city building official, the city attorney and any other county or municipal agency, including agencies with demolition powers, that may be affected by said filing.
- (E) Notification of a public hearing. For each individual site, district or archeological zone proposed for designation a public hearing must be held as required by the chapter 16A-3.1 of the Miami-Dade County Code of Ordinances.
- (F) Requirement of notification. The board shall reduce to writing its recommendation to approve, deny, or amend the proposed designation and direct the community development director to notify the city commission following of its actions with a copy of the official minutes of the meeting, and a recommendation of the board providing a summary statement of the effects of this action:
 - 1) The city building official;
 - 2) The city clerk;
 - 3) Owner of the affected property and other parties having an interest in the property, if known;
 - 4) The city public works department; and
 - 5) Any other county or municipal agency, including agencies with demolition powers, that may be affected by this action.
- (G) Moratorium. Upon the filing of a designation report by the staff, the owner of the real property which is the object matter of the designation report shall not:
 - 1) Erect any structure on the subject property.

- 2) Alter, restore, renovate, move or demolish any structure on the subject property, until such time as final action, as provided by this chapter, is completed.

V. Demolition.

- A. Demolition of a designated building, structure, improvement or site may occur pursuant to an order of a government agency or a court of competent jurisdiction or pursuant to an application by the owner for a special certificate of appropriateness.
- B. Government agencies having the authority to demolish unsafe structures shall receive notice of designation of individual sites, districts or archeological zones pursuant to this division. The city commission shall be deemed an interested party and shall be entitled to receive notice of any public hearings conducted by said government agency regarding demolition of any designated property. The board may make recommendations and suggestions to the city commission and the owner relative to the feasibility of and the public interest in preserving the designated property.
- C. No permit for voluntary demolition of a designated building, structure, improvement or site shall be issued to the owner thereof until an application for a special certificate of appropriateness has been submitted and approved pursuant to the procedures in this section. Refusal by the board to grant a special certificate of appropriateness shall be evidenced by written order detailing the public interest which is sought to be preserved. The board shall be guided by the criteria contained in subsection V,D of this section. The board may grant a special certificate of appropriateness which may provide for a delayed effective date of up to two (2) years. The effective date shall be determined by the board based upon the relative significance of the structure and the probable time required to arrange a possible alternative to demolition. During the demolition delay period, the board may take such steps as it deems necessary to preserve the structure concerned, in accordance with the purposes of this division. Such steps may include, but shall not be limited to, consultation

with civic groups public agencies and interested citizens, recommendations for acquisition of property by public or private bodies or agencies, and exploration of the possibility of moving one or more structures or other features.

- D. In addition to all other provisions of this division, the board shall consider for recommendation to the city commission the following criteria in evaluating applications for a special certificate of appropriateness for demolition of designated properties:
- (a) Is the structure of such interest or quality that it would reasonably meet national, state, or local criteria for designation as an historic or architectural landmark?
 - (b) Is the structure of such design, craftsmanship, or material that it could be reproduced only with great difficulty and/or expense?
 - (c) Is the structure one of the last remaining examples of its kind in the neighborhood, the county, or the region?
 - (d) Does the structure contribute significantly to the historic character of designated district?
 - (e) Would retention of the structure promote the general welfare of the county by providing an opportunity for study of local history, architecture, and design or by developing an understanding of the importance and value of a particular culture and heritage?
 - (f) Are there definite plans for reuse of the property if the proposed demolition is carried out, and what will be the effect of those plans on the character of the surrounding area?

VI. Where, by reason of particular site conditions and restraints, or because of unusual circumstances applicable solely to the particular applicant, strict enforcement of the provisions of this division would result in serious undue economic hardship to the applicant, the matter shall be officially referred to the zoning board of appeals which shall have the power to vary or modify adherence to this division, provided always that

its requirements ensure harmony with the general purposes hereof and will not adversely affect the city, Dade County, nor the South Florida metropolitan region.

VII. No building permit shall be issued by the city building official which affects any designated property in the county without a certificate of appropriateness.

VIII. All work performed pursuant to the issuance of any certificate of appropriateness shall conform to the requirements of the certificate. The city manager shall designate an appropriate official to assist the board by making necessary inspections in connection with enforcement of this division and shall be empowered to issue a stop work order if performance is not in accordance with the issued certificate. No work shall proceed as long as a stop work order continues in effect. Copies of inspection reports shall be furnished to the board and copies of any stop work orders both to the board and the applicant. The building official or appropriate official and staff for the board shall be responsible for ensuring that any work not in accordance with an issued certificate of appropriateness shall be corrected to comply with the certificate of appropriateness prior to withdrawing the stop work order.

IX. For the purpose of remedying emergency conditions determined to be dangerous to life, health or property, nothing contained herein shall prevent the making of any temporary construction, reconstruction or other repairs to a building or site in the city, pursuant to an order of a government agency or a court of competent jurisdiction. The owner of a building damaged by fire or natural calamity shall be permitted to stabilize the building immediately without board approval, and to rehabilitate it later under the normal review procedures of this division.

X. The board shall have the authority to review applications for certificate of appropriateness for all property in the city, however owned, by either private or public parties. The purposes of this division shall apply equally to plans, projects or work executed or assisted by any private party, governmental body or agency, department, authority or board of the city, county or state.

XI. Demolition procedures and requirements shall otherwise comply with chapter 16A-3.1 of the Miami-Dade County Code of Ordinances as may be amended from time to time.
(Ord. No. 2022-02, § 1, 1-12-2022)

Sec. 2-570.88. Maintenance of designated properties.

Nothing in this division shall be construed to prevent the ordinary maintenance or repair of any elements of any building or structure which does not involve a change of design, appearance or material, and which does not require a building permit. (Ord. No. 2022-02, § 2, 1-12-2022)

Sec. 2-570.89. Certificates to dig.

I. Within an archeological zone, new construction, filling, digging, the removal of trees, or any other activity that may alter or reveal an interred archeological site shall be prohibited without a certificate to dig. All applications to all appropriate municipal or county agencies involving new construction, large scale digging, the removal of trees or any other activity that may reveal or disturb an interred archeological site, in an archeological zone shall require a certificate to dig before approval. Based on the designation report for the archeological zone, a complete application for a certificate to dig and any additional guidelines the board may deem necessary, the staff of the board shall approve or deny the application for a certificate to dig by the owners of a property in a designated archeological zone. The certificate to dig may be made subject to specified conditions, including, but not limited to, conditions regarding site excavation.

In order to comply with the site excavation requirements of the certificate to dig, the applicant may agree to permit a city or county sanctioned archeologist to conduct excavation from the time of the approval of the certificate to dig until the effective date thereof. The findings of the staff shall be mailed to the applicant promptly. Applicant shall have the opportunity to challenge the staff decision or any conditions attached to the certificate to dig by requesting a meeting of the board. The board shall convene within a reasonable time and shall make every effort to review and reconsider the original staff decision to arrive at an equitable decision. The decision of the board shall be reduced to writing.

II. Approved certificates to dig. Approved certificates to dig shall contain an effective date at which time the proposed activity may begin, unless the board decides to designate the site in question as an individual site or district pursuant to Section 2-570.87 in which

case all the rules and regulations pertaining to the designation process shall apply from the date the designation report has been filed.

III. All work performed pursuant to the issuance of a certificate to dig shall conform to the requirements of such certificate. It shall be the duty of the city, in particular, its public works department, to inspect from time to time any work pursuant to such certificate to assure compliance. In the event work is performed not in accordance with such certificate, the official designated by the city manager pursuant to section 2-570.87(VIII) shall be empowered to issue a stop work order and all work shall cease. No person, firm or corporation shall undertake any work on such projects as long as such stop work order shall continue in effect. (Ord. No. 2022-02, § 3, 1-12-2022)

Sec. 2-570.90. Appeals.

Upon written decision of the city commission, an aggrieved party may appeal the decision by filing a written notice of appeal with the city clerk. The notice of appeal shall state the decision which is being appealed, the grounds for the appeal, and a brief summary of the relief which is sought. Subsequently, the city commission shall conduct a public hearing at which time they may affirm, modify or reverse the decision of the board or of the city commission. Nothing contained herein shall preclude the city commission from seeking additional information prior to rendering a final decision. The decision of the city commission shall be reflected in the minutes and a copy of the minutes shall be forwarded to the board and the appealing party.

Within the time prescribed by the appropriate Florida Rules of Appellate Procedure, a party aggrieved by a decision of the city commission may appeal an adverse decision to the circuit court in and for the county. The party taking the appeal shall be required to pay to the city the sum of one hundred dollars (\$100.00) to defray the costs of preparing the record on appeal. (Ord. No. 2022-02, § 4, 1-12-2022)

Sec. 2-570.91. Penalties.

Failure by an owner of record to comply with any provision of this ordinance shall constitute a violation hereof and shall be punishable by the city commission by civil or criminal penalties including a fine of not more than five hundred dollars (\$500.00) per day for

each day the violation continues. In addition, the board may require that any work performed contrary to this division must be removed and the property returned to its condition prior to commencement of said action. (Ord. No. 2022-02, § 5, 1-12-2022)

Sec. 2-570.92. Incentives.

All properties designated as individual sites or as designated properties within a district shall be eligible, upon application by the owner, for any available financial assistance set aside for historic preservation by Metropolitan Dade County contingent on the availability of funds and the scope of the project as described in the application. (Ord. No. 2022-02, § 6, 1-12-2022)

ARTICLE XII. IMPROVEMENTS

DIVISION 1. IN GENERAL

Secs. 2-571—2-590. Reserved.

DIVISION 2. SAFE NEIGHBORHOOD IMPROVEMENT DISTRICTS

Sec. 2-591. Districts authorized.

Safe neighborhood improvement districts, as provided in the Safe Neighborhoods Act (F.S. § 163.501 et seq.) may be established within the city. (Code 1983, § 2-591; Ord. No. 88-3, § 1, 4-6-1988)

Sec. 2-592. Method of establishment.

The method of establishing such safe neighborhood improvement districts in the city shall be as described in F.S. § 163.506, relating to local government improvement districts. (Code 1983, § 2-592; Ord. No. 88-3, § 2, 4-6-1988)

Secs. 2-593—2-600. Reserved.

DIVISION 3. EAST-WEST NEIGHBORHOOD IMPROVEMENT DISTRICT

Sec. 2-601. Created.

A local government neighborhood improvement district is hereby created pursuant to F.S. § 163.506 to

include approximately one hundred (100) acres, bounded on the east by N.W. 17th Avenue, on the west by N.W. 22nd Avenue, on the north by N.W. 141st Street, and on the south by N.W. 135th Street. (Code 1983, § 2-601; Ord. No. 88-11, § 1, 9-28-1988)

Sec. 2-602. Title.

The local government neighborhood improvement district created hereby shall be known as the East-West Neighborhood Improvement District. (Code 1983, § 2-602; Ord. No. 88-11, § 2, 9-28-1988)

Sec. 2-603. Authority to apply for and receive grants.

The local government neighborhood improvement district created hereby is hereby authorized to apply for and receive from the state department of community affairs up to two hundred fifty thousand dollars (\$250,000.00) for a planning grant and up to an additional thirty thousand dollars (\$30,000.00) to employ the services of technical experts. (Code 1983, § 2-603; Ord. No. 88-11, § 3, 9-28-1988)

Sec. 2-604. Utilization of tax or special assessment.

The purpose is hereby stated that the district may utilize a maximum of two (2) mills ad valorem taxes or special assessments on real property within the district. (Code 1983, § 2-604; Ord. No. 88-11, § 4, 9-28-1988)

Sec. 2-605. Designation of board of directors.

The city commission is hereby designated as the board of directors of the district. (Code 1983, § 2-605; Ord. No. 88-11, § 5, 9-28-1988)

Sec. 2-606. Establishment of advisory board.

An advisory board is hereby established for the local government neighborhood improvement district created hereby. The advisory board shall be composed of no fewer than five (5) members who shall be owners of real property located in the district or residents of the district. The members of the advisory board shall be appointed by the board of directors and serve at the pleasure of the board of directors. The advisory board shall perform such duties as may be prescribed by the board of directors and shall submit within the time period specified by the board of directors, a report on the district's proposed activities and a proposed budget to accomplish the district's objectives. In formulating a

plan for services or improvements, the advisory board shall consult in public session with the appropriate staff of consultants of the city responsible for preparation of the district's plan.

(Code 1983, § 2-606; Ord. No. 88-11, § 6, 9-28-1988)

Secs. 2-607—2-639. Reserved.

ARTICLE XIII. FINANCE

DIVISION 1. IN GENERAL

Secs. 2-640—2-649. Reserved.

DIVISION 2. FINANCIAL INTEGRITY

Sec. 2-650. Financial integrity principles.

Financial integrity principles and policies to ensure and maintain financial integrity in the city are hereby established and shall be implemented immediately upon adoption of this article.

The financial integrity principles as set forth herein shall be reviewed and updated as necessary, at least every three (3) years.

(Code 1983, § 2-650; Ord. No. 03-05, § 2, 2-26-2003)

Sec. 2-651. Financial integrity principles; adopted.

The following financial integrity principles are hereby adopted:

- (1) *Structurally balanced budget.* The city shall maintain a structurally balanced budget. Recurring revenues will fund recurring expenditures. Nonrecurring revenues and budget surpluses shall replenish reserve levels, support outstanding liabilities and pay for nonrecurring expenditures, in the order set forth herein.
- (2) *Professional estimating process.* The city shall adopt budgets and develop its long- and short-term financial and capital improvement plans containing estimates developed utilizing a professional estimating process. Estimates shall be prepared based on historical trends and shall be well substantiated.
- (3) *Interfund borrowing.* The city shall not borrow or use internal fund transfers to obtain cash

from one (1) fund type or reserve to fund activities of another fund type or reserve unless such use is deemed lawful, and unless the director of finance has determined that: (a) the funds to be borrowed will not be needed during the lending period; and (b) the funds for repayment will be available within a two (2) year period. Any actions taken to borrow funds under these conditions must be separately presented to and approved by the city commission and the term of such borrowing shall not extend beyond the last day of the subsequent fiscal year. Recognizing that some programs are funded by grants or other entities on a reimbursement basis, the city shall apply for such reimbursements on a timely basis to minimize the period that city funds are used as float. In the event loans/float for these reimbursements extend beyond the end of a fiscal year, such reimbursements shall be reflected as receivables and noted as part of the annual budget process.

- (4) *Reserve policies.* The city shall retain an annual end-of-year general fund reserve of approximately two hundred thousand dollars (\$200,000.00). Further, upon resolving the deficits in the water and sewer and solid waste funds, the city shall retain at least a two (2) to five (5) percent reserve in these funds.

- a. *Current fiscal year general fund contingency.* A "contingency" reserve level of five hundred thousand dollars (\$500,000.00) shall be budgeted annually. Three hundred thousand dollars (\$300,000.00) of such contingency reserve shall be available for use, with city commission approval, during the fiscal year, to fund unanticipated budget issues, emergencies/natural disasters which may arise or potential expenditure overruns which cannot be offset through other sources or actions. This reserve level shall be replenished at the beginning of each fiscal year so it is available on an ongoing basis. Two hundred thousand dollars (\$200,000.00) shall remain unspent to provide for the year-end reserve.

- b. *Reserve for uncompensated absences and other employee benefit liabilities.* The city

shall budget sixty-five thousand dollars (\$65,000.00) annually in the general fund, seventeen thousand five hundred dollars (\$17,500.00) in the water and sewer fund and seventeen thousand five hundred dollars (\$17,500.00) in the solid waste fund to build the reserves sufficient to cover these liabilities for each fund.

- (5) *Multiyear financial and capital plan (CIP).* The city commission shall annually adopt a financial plan by September 30 of each year, in concert with the annual budget, which contains five (5) years of financial forecast. Such plan will include cost estimates of all current city operations and proposed capital outlay expenditures, anticipated increases in operations, debt services payment, reserves to maintain the city's officially adopted levels and estimated recurring and nonrecurring revenues. The plan will be prepared by fund with a financial summary table to reflect forecasted surpluses or deficits and potential budget balancing initiatives, where appropriate.

The capital improvement component of the plan shall cover cost estimates for all necessary infrastructure improvements needed to support city services, including information technology, with an adequate repair and replacement (R&R) component. To the extent feasible, department heads shall be required to submit independent needs assessments for their departments for use in preparing the CIP. The plan will be detailed by fund, include recommended project prioritization rankings, identified revenue sources, planned financing options and unfunded projects. The CIP shall include a component reflecting all on-going approved capital projects of the city, the date funded, amount budgeted, amount spent since the start date, remaining budget, fiscal impact of known changes to financial assumptions underlying the project and estimated completion date. Approved projects, with circumstances that arise which change the funding requirements of the project, shall be addressed in the CIP annually.

- (6) *Financial oversight and reporting.* The city shall provide for the ongoing generation and utilization of financial reports on all funds com-

paring budgeted revenue and expenditure information to actual on a monthly and year-to-date basis. The department of finance shall be responsible for issuing the monthly reports to departments, the mayor and city commission, and provide any information regarding any potentially adverse trends or conditions. These reports should be issued within thirty (30) days after the close of each month.

The annual external audit of the city shall be prepared and presented to the mayor and city commission within one hundred ninety-five (195) days of the close of each fiscal year and within one hundred eighty (180) days of the close of each subsequent financial year.

- (7) *Basic financial policies.* The city shall endeavor to maintain formal policies, which reflect best practices in the areas of:

- i. *Debt.* Such policy shall address affordability, capacity, strategies for re-entering the bond market in the future, debt issuance and management.
- ii. *Cash management and investments.* Such policy shall require twenty-four (24) month gross and net cash-flow projections by fund and address adequacy, risk, liquidity and asset allocation issues.
- iii. *Budget development and adjustments.* Such policy shall establish proper budgetary preparation procedures and guidelines, calendar of events, planning models by fund, budget adjustment procedures, establishment of rates and fees, indirect costs/interest income and the estimating conference process. The proposed budget should be scheduled to allow for sufficient review by the mayor and city commission while allowing for sufficient citizen input. The city budget document reflecting all final actions, as adopted by the city commission on or before September 30 of each year, shall be printed and made available within thirty (30) days of such adoption.
- iv. *Revenue collection.* Such policy shall provide for maximum collection and enforce-

ment of existing revenues, monitoring procedures, and the adequacy level of subsidy for user fees.

- v. *Purchasing policy.* Such policy shall establish departmental policies and procedures and provide appropriate checks and balances to ensure the city departments adhere to the city's purchasing policies.

(Code 1983, § 2-651; Ord. No. 03-05, § 2, 2-26-2003)

Sec. 2-652. Promoting operating efficiencies.

The city shall develop programs and incentives to encourage operating efficiencies through the use of technology, outsourcing, or any other curriculum.

(Code 1983, § 2-652; Ord. No. 03-05, § 2, 2-26-2003)

ARTICLE XIV. SCHEDULE OF FEES

Sec. 2-653. Permit fees.

(a) *General information on special fees, refunds, extensions and cancellations.*

(1) Double fees.

- a. When work for which a permit is required is commenced prior to obtaining a permit, the permit applicant will be required to pay the penalty fee of one hundred dollars (\$100.00) plus a double permit fee in addition to the required permit fee established herein. The payment of the required fee shall not relieve any person, firm, or corporation from fully complying with all of the applicable regulations and codes, nor shall it relieve them from being subject to any of the penalties. The double fee requirement shall be applicable to all sections of the department of buildings and licensing noted herein.
- b. For the second offense of doing work without a permit, the permit applicant shall be required to pay twice the penalty fee, two hundred dollars (\$200.00) plus a double permit fee. For each subsequent offense, the permit applicant shall be re-

quired to pay twice the penalty fee, five hundred dollars (\$500.00) plus a double permit fee.

- (2) Additional inspection fee. The building permit fee entitles the permit holder to an initial and follow-up inspection for each type of mandatory inspection. All work shall be inspected, and deficiencies shall be noted by the building inspector. When the work to be inspected is only partially complete, the inspection shall be performed on those portions of the work completed, provided that compliance with the applicable building code may be determined with respect to those portions. A permit holder shall pay a fee of fifty-three dollars and fifty cents (\$53.50) for each additional inspection required to ensure compliance with the applicable building code beyond the initial and one (1) follow-up inspection. All additional inspection fees shall be paid by any method acceptable to the city.

- (3) Lost plans fee. When a permitted set of plans for new buildings, additions, or all other types of projects are lost by the applicants, owners, contractors, or any other representatives of the projects, a recertification fee will be required to review, stamp and approve a new set of plans as a field copy. Such fee shall be based on thirty (30) percent of the original permit fee with a minimum fee of fifty dollars (\$50.00).

- (4) Lost permit card fee. After a permit has been issued, if the permit inspection card has been lost, the applicant will be required to pay a charge of forty-five dollars (\$45.00).

- (5) Refunds, time limitations and cancellations. The fees charged pursuant to this schedule may be refunded by the municipality subject to the following:

Time limitations.

- a. No refund shall be made on requests involving:
 - 1. Permit fees on one hundred dollars (\$100.00) or less;
 - 2. Permits revoked by the building official or director of the department of buildings and

- licensing under authority granted by the Florida Building Code;
3. Permits cancelled by court order;
 4. Conditional permits that are cancelled;
 5. Permits which have expired;
 6. Permits under which work has commenced as evidenced by any recorded inspection having been made by the department of buildings and licensing; or
 7. When there is a change of contractor.
- b. A full refund shall be granted to a permit holder who takes out a permit covering work outside the jurisdictional inspection area.
 - c. A full refund less than one hundred dollars (\$100.00) or fifty (50) percent of the permit fee, whichever amount is greater, rounded down to the nearest dollar, shall be granted to a permit holder who requests a refund, provided:
 1. That the permit holder makes a written request prior to permit expiration date;
 2. That the applicant's validated copy of the permit be submitted with such a request; and
 3. That no work as evidenced by any recorded inspection has commenced under such a permit.

Change of contractor, architect or engineer. Where there is a change of contractor or qualifier involving a permit, the second permit holder shall pay a fee of one hundred fifty-four dollars and fifty-seven cents (\$154.57) to cover the cost of transferring the data from the original permit to the second permit. If the original permit has expired, the original permit fee must be paid, at a minimum fee of one hundred fifty-four dollars and fifty-seven cents (\$154.57).

Permit extensions. A fee of one hundred seven dollars and five cents (\$107.05) shall be paid by the permit holder who submits a written request for a permit extension as authorized under the Florida Building Code.

Permit renewal. If work has commenced and where a permit has become null and void pursuant to the applicable building code, a credit of fifty (50) percent of the permit fee shall be applied to any re-application fee for a permit covering the same project and involving the same plans, provided that the complete re-application is made within six (6) months of the expiration date of the original permit, and provided that no refund had been made as provided in this section.

Where a permit has become null and void or expires pursuant to the Florida Building Code, and no work, as evidenced by one (1) recorded inspection, has been made by the department, a credit of fifty (50) percent of the original permit fee covering the same project and involving the same plans shall be given, provided that a complete reapplication is submitted within six (6) months of the expiration date of the original permit and provided that no refund has been made according to this section.

Impact fees are assessed on certain buildings, including re-application on expired permits.

Other agencies, including, but not limited to, the department of environmental resources management, Miami-Dade Fire Rescue Department, building code compliance and the state department of health assess fees on building permits, including reapplication of expired permits. Contact the applicable agency for details.

- (6) Special projects. A fee equal to actual staff time and related costs shall be assessed for special projects requiring research by the department in order to answer questions proposed by developers, attorneys, realtors, or municipalities, etc., in connection with the use, re-subdivision, and development of properties, or to determine if any existing violations are on the property through a review of depart-

mental work. A minimum fee of one hundred dollars (\$100.00) shall be charged. A fee equal to two dollars (\$2.00) per page shall be assessed for pre-programmed computer reports of department records. The minimum fee shall be ninety dollars (\$90.00).

- (7) Plan review/inspections after regular hours. Charges for construction inspections, plan review, or any technical team member, which are requested in advance and require overtime, will be at a rate of eighty-one dollars (\$81.00) per hour, or fraction thereof. Fees are over and above the original permit fee.
- (8) General information.
 - a. A one cent (\$0.01) per square foot fee will be added to building permits for the state to study building code requirements for radon gas, and certification and regulation of building code administrators, plans examiners, and inspectors.
 - b. A fee of six (6) percent of the total permit fee will be added to the original fees where a concurrency review was performed.
 - c. Impact fees are assessed on certain building permits, including reapplication on expired permits.
 - d. The department of buildings and licensing may request the permit applicant to submit appropriate documentation as proof of construction to compute fees, where fees are based on estimated cost.
 - e. The department of buildings and licensing will assess a fee on all county department projects based upon direct costs for service provided in accordance with Federal Aviation Administration Authorization Act of 1994 (Public Law 103-105, dated August 23, 1994).
- (9) Enforcement (applicable to all trades). F.S. § 553.80.

Plan rework fee, each review, per trade (see explanation below): one hundred fifty-four dollars and sixty-six cents (\$154.66).

"Subsection (2)(b)—With respect to evaluation of design professionals' documents, if a local government finds it necessary, in order to enforce compliance with the state building code and issue a permit, to reject design documents required by the code three (3) or more times for failure to correct a code violation specifically and continuously noted in each rejection, including, but not limited to, egress fire protection, structural stability, energy accessibility, lighting, ventilation, electrical, mechanical, plumbing and gas systems, or other requirements identified by rule of the Florida Building Commission adopted pursuant to chapter 120, the local government shall impose, each time after the third such review the plans are rejected for that code violation, a fee of four (4) times the amount of the proportion of the permit fee attributed to plans review."

Re-inspection fee (see explanation below): fifty-three dollars and fifty cents (\$53.50).

"Subsection (2)(c)—With respect to inspections, if a local government finds it necessary, in order to enforce compliance with the Florida Building Code, to conduct any inspection after an initial inspection and one (1) subsequent re-inspection of any project or activity for the same code violation specifically and continuously noted in each rejection, including, but not limited to, egress, fire protection, structural stability, energy, accessibility, lighting, ventilation, electrical, mechanical, plumbing and gas systems, or other requirements identified by rule of the state building commission adopted pursuant to chapter 120, the local government shall impose a fee of four (4) times the amount of the fee imposed for the initial inspection or first re-inspection, whichever is greater for each such subsequent re-inspection."

Contractor enforcement:

Case processing fee, each: seven hundred and twenty-one dollars and thirty cents (\$721.30).

Field inspection: two hundred six dollars and eight cents (\$206.08).

Re-inspection fee: one hundred twenty-three dollars and sixty-six cents (\$123.66).

Photographs, each: four dollars and twelve cents (\$4.12).

Lien settlement fee: one hundred and three dollars and five cents (\$103.05).

Criminal processing recovery cost:

Case processing fee, each: seven hundred and twenty-one dollars and thirty cents (\$721.30).

Inspection, each: one hundred twenty-three dollars and sixty-six cents (\$123.66).

Pictures, each: four dollars and twelve cents (\$4.12).

Corporate information: forty-one dollars and twenty-two cents (\$41.22).

Court appearance, each: one hundred twenty-three dollars and sixty-six cents (\$123.66).

Posting of notices, each: sixty-one dollars and eighty-three cents (\$61.83).

Lien recording/cancellation of notices, each: seventy-two dollars and fourteen cents (\$72.14).

State building code:

Case processing fee: seven hundred twenty-one dollars and thirty cents (\$721.30).

Pictures, each: four dollars and twelve cents (\$4.12).

Inspection fee: two hundred twenty-six dollars and sixty-nine cents (\$226.69).

Re-inspection fee: one hundred fifty-four dollars and fifty-seven cents (\$154.57).

Posting of notices: seventy-two dollars and fourteen cents (\$72.14).

Unsafe structures board processing fee: two hundred fifty-seven dollars and sixty-two cents (\$257.62).

Title search: Actual cost.

Court reporting transcription: Actual cost.

Legal advertisement: Actual cost.

Permit fees: Actual cost.

Lien recording/cancellation of notices, each: seventy-two dollars and fourteen cents (\$72.14).

Bid processing fee: two hundred six dollars and eight cents (\$206.08).

Demolition/secure services: Actual cost.

Asbestos sampling abatement: Actual cost.

Corporate information: forty-one dollars and twenty-two cents (\$41.22).

- (10) Expedite plan review services. Permit applicants who request an alternate plan review service for an expedited review, to be completed after normal working hours, will be assessed a fee. This fee shall be as follows:

Residential:

First four (4) hours: two hundred six dollars (\$206.00).

Each additional hour: fifty-one dollars (\$51.00).

Commercial:

First four (4) hours: four hundred forty dollars (\$440.00).

Each additional hour: one hundred ten dollars (\$110.00).

- (12) Interest charges on unpaid amounts due to the city department of buildings and licenses. The city department of buildings and licenses is authorized to impose an interest charge on any and all unpaid amounts which are due to the department. This includes, without limitation, items such as past due boiler fees, forty (40) year recertification fees, civil violation fines and demolition costs. The city department of buildings and licenses shall also have the authority to charge interest as part of any settlement agreement of installment payment plan to recover fees, fines or costs as well as outstanding liens.

The interest charged shall be assessed as provided for in applicable county code provisions or administrative orders. In all other cases, interest shall be charged from the date the amount was due and payable to the department.

ment computed at the rate of ten (10) percent per annum. The department director or designee shall have the right to waive all or any portion of the interest charged in order to ensure public safety concerns are met.

- (13) Actual cost for projects requiring services not contemplated in current fee structure. The director, or designee, has the authority to invoice for reimbursement of actual costs on projects requiring services not contemplated in the current fee structure.

The invoice will consist of actual labor cost, including any and all fringe benefit costs the department is legally obligated to pay. Additionally, the invoice will include any other indirect cost associated with the actual labor cost, as determined by the city department of buildings and licensing's finance section on a yearly basis.

All of these projects will have a mutually agreed on contract, which will be maintained in the finance section. The director will also have the ability to request a deposit amount that is mutually acceptable to the department and company or individual that is legally responsible for the project. The deposit amount shall be used to offset the final invoiced project cost; if any amount is remaining, it shall be returned to the party that executed the agreement with the department. The life span of the project shall be included in the agreement.

- (14) Building permits cancellation: seventy-five dollars and sixty cents (\$75.60).
- (15) Training and technology fee. A technology and training fee shall be assessed to each permit to enhance the city's ability to provide state-of-the-art technology to its land use (i.e., building, zoning, code enforcement) customers. This fee will not be included in calculation of city payment for contracted building review and permit services. One hundred (100) percent of this fee will be set aside for training for city employees and technology for the department.

Three dollars (\$3.00) per permit minimum.

Permits based on job value:

Zero dollars (\$0.00) to five hundred dollars (\$500.00) valuation = five dollars (\$5.00).

Five hundred dollars (\$500.00) to two thousand dollars (\$2,000.00) valuation = seven dollars (\$7.00).

Over two thousand dollars (\$2,000.00) valuation = seven dollars (\$7.00) plus fifty cents (\$0.50)/one thousand dollars (\$1,000.00) of job value over two thousand dollars (\$2,000.00).

- (16) Revisions and shop drawings.
- a. Major revision after a permit is issued shall be subject to a fee of fifty (50) percent of the original permit fee up to a maximum of two thousand six dollars and eighty-two cents (\$2,006.82).
 - b. Minor plan revisions shall be subject to a fee at the rate of one dollar and eighty cents (\$1.80) per minute of the time for each review for no longer than five (5) minutes.
- (17) Certificate of completion.
- Residential: ten dollars (\$10.00).
- Commercial: twenty-five dollars (\$25.00).
- (18) Certificate of occupancy.
- a. Single-family residence, townhouse, duplex (each unit), residential attached: sixty-nine dollars and thirty cents (\$69.30).
 - b. Apartments, hotels, multiple-family uses:
 1. Two (2) to fifty (50) units: one hundred fifteen dollars and fifty cents (\$115.50).
 2. Fifty-one (51) to one hundred (100) units: one hundred seventy-six dollars and forty cents (\$176.40).
 3. One hundred one (101) and up units: two hundred thirty-one dollars (\$231.00).
 - c. Commercial/industrial:
 1. Per square feet of business area: seven cents (\$0.07).

2. Minimum fee: one hundred ninety-two dollars and fifteen cents (\$192.15).
 3. Maximum fee: two thousand two hundred five dollars (\$2,205.00).
 - d. Building shell commercial (new construction):
 1. Building and unit shell: one hundred twenty-six dollars (\$126.00).
 2. Occupancy without CO (in violation), fee plus double CO fee: five hundred fifty-one dollars and twenty-five cents (\$551.25).
 3. Temporary certificate of occupancy. Fifty (50) percent of final CO fee for 90-day extension per period. One hundred (100) percent final CO fee.
 4. A fee shall be paid by the certificate holder who submits a written request for a TCO extension: seventy-two dollars and forty-five cents (\$72.45).
- (19) Contractor registration. No permits will be issued to those contractors who have not registered with the city unless all required documentation is required for a building permit or a related permit. To obtain a permit, all documents must be up to date.
- State and/or county contractors:
- Legible color copy of qualifier's driver license;
 - Current state license;
 - Current business tax receipt;
 - Current certificate of liability insurance (certificate holder made out to: City of Opa-locka, 780 Fisher-man Street 4th Floor, Opa-locka, FL 33054;
 - Current workers compensation insurance or exemption certificate (if exempt, provide certificates for all officers that are exempt);
 - County contractors: Current county municipal contractor license;
 - County contractors: Current county certificate of competency;
 - County contractors: Current registration with state department of business and professional regulation;
 - An initial twenty-five-dollar (\$25.00) fee, then five dollars (\$5.00) annually to maintain and update records.
- (20) Effective date. This fee schedule shall be effective May 1, 2013.
- (21) Amendments to permit fee schedule. Each permit fee shall be increased annually based on the CPI effective October 1 of each year.
- (b) *Building permit fees.*
- (1) "Up-front" processing fee (nonrefundable):
- Residential permit: twenty-five (25) percent of permit fee.
- Commercial permit: twenty-five (25) percent of permit fee.
- Fee collected at the time of permit application. Said up-front fee is credited to the permit fee at the time of permit issuance.
- (2) Minimum fee for building permits.
- a. Residential minimum fee: fifty-three dollars and eighty cents (\$53.80).
 - b. Commercial minimum fee: fifty-three dollars and eighty cents (\$53.80).
- (With the exception of fees associated with windows, trusses, door, skylights, and all required shop drawings, which are already included in the basic building permit, this minimum fee does not apply to add on building permits issued as supplementary to current outstanding permits for the same job.)
- (3) New buildings and/or additions; residential.
- New construction single family and duplexes above one thousand (1,000) square feet Group R3 per square feet: twenty-eight cents (\$0.28).

Single-family and duplex (Group R3) detached structures:

Zero (0) to one hundred (100) square feet in area: forty-five dollars and eighty cents (\$45.80).

One hundred one (101) to five hundred (500) square feet in area: seventy-six dollars and seventy-one cents (\$76.71).

Five hundred one (501) to one thousand (1,000) square feet in area: two hundred dollars and eighty cents (\$200.80).

Over one thousand (1,000) square feet in area: three hundred sixty-six dollars and eighty-four cents (\$366.84).

- (4) Alterations/repairs; residential (per one dollar (\$1.00) of estimated cost):
 - a. Single-family residence and duplex: five cents (\$0.05).
 - b. Minimum fee: one hundred thirteen dollars and twenty-five cents (\$113.25).
 - c. Maximum fee: five hundred forty-two dollars and sixty-nine cents (\$542.69).
 - d. Shade houses per one hundred (100) square feet or fractional part of floor area: fifty-eight cents (\$0.58).
 - e. Greenhouses and buildings for agricultural use (nonresidential) when located on the premises so used per one hundred (100) square feet or fractional part of floor area: nine dollars and thirty-eight cents (\$9.38).
 - f. Repairs due to fire damage per one dollar (\$1.00) of estimated cost or fractional part (copy of construction contract required): five and seven-tenths cents (\$0.057).

Minimum fee: two hundred three dollars and ninety cents (\$203.90).

Maximum fee: five hundred forty-two dollars and forty-nine cents (\$542.49).
- (5) Tents; electrical and plumbing separate.

Zero (0) to five thousand (5,000) square feet: eighty-two dollars and forty-four cents (\$82.44).

Over five thousand (5,000) square feet: two hundred forty-five dollars and fifty-five cents (\$245.55).

- (6) New construction/additions; commercial.

Storage, industrial and mercantile use of Group S, F and M (commercial) occupancies one hundred (100) square feet or fractional part of floor area and all others except R3: fifteen dollars and eight cents (\$15.08).

Structures of unusual size or nature (such as a sewer plant, water towers, pylons, bulk storage, tank foundations, unusual limited use buildings, marquees and similar construction) shall be based on the estimated cost of construction, for each one thousand dollars (\$1,000.00) of estimated cost or fractional part: thirteen dollars and eighty-eight cents (\$13.88).

- (7) Alteration and/or repairs; commercial, for all structures except R3.

For each one hundred dollars (\$100.00) of estimated cost or fractional part: two dollars and three cents (\$2.03).

- a. Minimum fee: three hundred twenty-five dollars and sixty-six cents (\$325.66).

- (8) Slab/paving/stripping.

Per one dollar (\$1.00) of estimated cost: eight and one-tenths cents (\$0.081).

Minimum fee: sixty-two dollars and ninety-seven cents (\$62.97).

- (9) Roofing/re-roofing.

Residential (Group R3):

- a. Minimum fee: sixty-eight dollars and sixty-nine cents (\$68.69).
- b. Roofing flat/shingle per square foot: eight cents (\$0.08).
- c. Roofing tile and metal roof per square foot: ten and three-tenths cents (\$0.103).

Commercial (all except Group R3):

- d. Roofing shingles and other types not listed per square feet up to thirty thousand (30,000) square feet: fourteen cents (\$0.14).

- e. Each square foot thereafter: ten cents (\$0.10).
 - f. Roofing tile and metal roof per square foot up to thirty thousand (30,000) square feet: nineteen cents (\$0.19).
 - g. Each square foot thereafter: ten cents (\$0.10).
- (10) Fences and/or walls, minimum fee: one hundred sixty-eight dollars (\$168.00).
- Chainlink:
- a. Zero (0) to five hundred (500) linear feet: fifty-three dollars and eighty-one cents (\$53.81).
 - b. Five hundred one (501) to one thousand (1,000) linear feet: seventy-two dollars and thirteen cents (\$72.13).
 - c. Each additional linear foot over one thousand (1,000): five cents (\$0.05).
- Wood, metal, alum, steel:
- d. Each linear foot: fifty-six cents (\$0.56).
- Concrete:
- e. Each linear foot: one dollar and four cents (\$1.04).
- (11) Swimming pools, spas, and hot tubs.
- Installation: one hundred eight dollars and seventy-seven cents (\$108.77).
- Repair: fifty-three dollars and eighty-one cents (\$53.81).
- (12) Temporary platforms and temporary bleachers to be used for public assembly.
- a. Per platform: sixty-three dollars and seventy-five cents (\$63.75).
 - b. Per bleacher: sixty-three dollars and seventy-five cents (\$63.75).
- (13) Shop drawing review (for other than R3).
- a. Trusses/steel structures—First six hundred (600) square feet or fractional part: twenty-six dollars and twenty-eight cents (\$26.28).
 - b. Trusses/steel structures—Each additional one hundred (100) square feet or fractional part: one dollar and thirty-three cents (\$1.33).
 - c. Precast/prestress (roof-floor-walls) each one thousand (1,000) square feet or fractional part: thirteen dollars and forty-one cents (\$13.41).
 - d. Overhead doors, each: thirteen dollars and forty-one cents (\$13.41).
 - e. Skylights, each: thirteen dollars and forty-one cents (\$13.41).
 - f. Handrails/stair rails, per linear foot: one dollar and eighty-five cents (\$1.85).
 - g. Walk-in coolers, each: one hundred twenty-three dollars and sixty-six cents (\$123.66).
 - h. Storefront/fixed glazing (under eight (8) feet high by four (4) feet wide), each one hundred (100) square feet or fractional part: fourteen dollars and ninety-six cents (\$14.96).
- (14) Demolition of buildings.
- For each structure: one hundred thirty-seven dollars and thirty-nine cents (\$137.39).
- (15) Installation or replacement of windows or doors, ornamental iron bars/safety bars.
- a. For the first installation, alteration or repair (except new construction for Group R3), per square foot: ten cents (\$0.10).
 - b. Minimum fee: seventy-two dollars and fourteen cents (\$72.14).
 - c. Replacement of windows and exterior doors in all buildings or installation of windows or doors in buildings exceeding two (2) stories in height or storefronts and fixed glass exceeding eight (8) feet in height or four (4) feet in vertical mullion spacing, or curtain walls including windows and doors, for each one hundred (100) square feet or fraction part therein: fourteen dollars and ninety-six cents (\$14.96).

- (16) Screen enclosures, canopies and awnings, shutters.
- Screen enclosures, each one hundred (100) square feet or fractional part: seven dollars and ninety-one cents (\$7.91).
 - Detached canopies, each one thousand dollars (\$1,000.00) of estimated cost or fractional part: seven dollars and twenty-three cents (\$7.23).
Minimum fee: forty-five dollars and eighty cents (\$45.80).
 - Awnings and attached canopies, horizontal projection.
Per square foot area covered: seven cents (\$0.07).
Minimum fee: forty-five dollars and eighty cents (\$45.80).
 - Storm shutter, per square feet area covered: seven cents (\$0.07).
Minimum fee: forty-five dollars and eighty cents (\$45.80).
- (17) Temporary trailer (for construction).
Tie down inspection fee (this does not include installation of meter mounts and service equipment. Separate mechanical, plumbing and related electrical permits are required): one hundred twenty-one dollars and sixty-six cents (\$121.66).
Tie down re-inspection fee: one hundred three dollars and five cents (\$103.05).
- (18) Sign permit fees.
- Minimum fee: thirty-eight dollars and eight cents (\$38.08).
 - Signs—Non-illuminated, per square foot: nineteen cents (\$0.19).
 - Illuminated signs under electrical permit, per square foot: two dollars and five cents (\$2.05).
 - Annual renewal of Class C signs on or before October 1 of each year, per sign: forty-nine dollars and forty-six cents (\$49.46).
- (19) Agricultural "u-pick" permits, each permit per field: two hundred sixteen dollars and forty cents (\$216.40).
- (20) Satellite dish, all trades: one hundred thirty-five dollars and eighty cents (\$135.80).
- (21) Ornamental iron:
Per square foot of coverage: five cents (\$0.05).
Minimum fee: forty-five dollars and eighty cents (\$45.80).
- (22) Building postcard permit.
Chainlink fence installation, repair, replacement: thirty dollars and ninety-two cents (\$30.92).
- (23) Moving buildings or other structures.
For each one hundred (100) square feet or fractional part thereof (does not include cost of new foundation or repairs to building or structure): fourteen dollars and forty-four cents (\$14.44).
- (c) *Plumbing permits.*
- Minimum plumbing or gas fee per permit.
 - Except as otherwise specified: ninety-two dollars and seventy cents (\$92.70). (This minimum does not apply to supplemental plumbing permits issued as supplementary to current outstanding permits for the same job.)
 - Alterations/repairs/additions; residential (Group R3).
 - New/addition single-family residence or duplex, per square foot: ten cents (\$0.10).
 - Alteration/repairs single-family residence or duplex, per square foot: five cents (\$0.05).
 - Minimum fee: one hundred twenty-three dollars and sixty-six cents (\$123.66).
 - Commercial (all groups except Group R3) roughing-in or plugged outlets for bathtubs, closets, doctors, dentists, hospital sterilizers, autoclaves, autopsy tables and other fixtures, appurtenances or other appliances having water supply or waste outlet, or both, drinking fountains, fixtures discharging into traps or

- safe waste, pipes, floor drains, laundry tubs, lavatories, showers, sinks, slop sinks, and water heaters.
- a. Minimum fee: one hundred twenty-three dollars and sixty-six cents (\$123.66).
 - b. For each rough in or plugged outlet: twelve dollars and thirty-six cents (\$12.36).
 - c. Each fixture: twelve dollars and thirty-six cents (\$12.36).
- (4) Settling tanks, gas and oil interceptors, and grease traps.
(Including drain tile and relay for same residential and commercial): thirty-six dollars and seven cents (\$36.07).
- (5) Sewer.
- a. Each building storm sewer and each building sewer where connection is made to a septic tank, or a collector line or to an existing sewer or to a city sewer or soakage pit or to a building drain outside a building: sixty-one dollars (\$61.00).
 - b. Sewer capping/demolition: sixty-one dollars (\$61.00).
- (6) Condensate drain (air conditioning).
- a. Per outlet: six dollars and fifty-two cents (\$6.52).
 - b. Except single not manifold A/V outlet not exceeding five (5) tons: no charge.
- (7) Water piping.
- a. Irrigation system and underground sprinkler system for each zone: nineteen dollars and twenty-four cents (\$19.24).
Water service connection to a municipal or private water supply system, (for each meter on each lot): sixteen dollars and forty-eight cents (\$16.48).
 - b. Water connection or outlets for appliance or installations not covered by fixture set above: twelve dollars and sixty-six cents (\$12.66).
 - c. Solar water heater installation, equipment replacement or repair: one hundred three dollars and five cents (\$103.05).
 - d. Swimming pool piping new installation, not including well.
Residential: sixty-eight dollars and seventy cents (\$68.70).
Commercial: one hundred ninety-five dollars and seventy-nine cents (\$195.79).
Sump pump: sixteen dollars and forty-nine cents (\$16.49).
 - e. Swimming pool heater replacement or new installation: fifty-seven dollars and twenty-five cents (\$57.25).
 - f. Swimming pool repair: sixty-eight dollars and seventy cents (\$68.70).
 - g. Two (2) inches or less water service backflow assembly: forty dollars and eight cents (\$40.08).
 - h. Two and one-half (2 ½) inches or larger water service backflow assembly: one hundred thirteen dollars and thirty-five cents (\$113.35).
 - i. Repairs to water piping:
Each one thousand dollars (\$1,000.00) of estimated cost or fractional part: eleven dollars and eighty-eight cents (\$11.88).
Plan review: fifty dollars (\$50.00).
- (8) Wells.
- a. Residential per well: sixty dollars and twelve cents (\$60.12).
 - b. Commercial per well: one hundred sixty-four dollars and eighty-eight cents (\$164.88).
- (9) Natural gas or a liquefied petroleum.
Minimum fee: seventy-eight dollars and seventy-five cents (\$78.75).
- a. For each outlet Group R3 (includes meters and regulators): twelve dollars and thirty-seven cents (\$12.37).
 - b. For each appliance (does not include warm air heating units but does include unvented space heaters and vented wall heaters and vented wall heaters no duct work): twelve dollars and thirty-seven cents (\$12.37).

- c. For groups other than R3, each meter (new or replacement): twenty dollars and sixty-one cents (\$20.61).
 - d. For groups other than R3, each appliance (commercial) (does not include warm air heating units but does include un-vented space): twenty dollars and sixty-one cents (\$20.61).
 - e. Heaters and vented wall heaters; no duct work: twenty dollars and sixty-one cents (\$20.61).
 - f. Each meter; new or replacement: twenty dollars and sixty-one cents (\$20.61).
 - g. For major repairs to gas pipe where no fixture or appliance installation is involved per repair: seventy-two dollars and fourteen and fourteen cents (\$72.14).
 - h. Underground L.P. gas tanks per group of tanks at a single location: one hundred twenty-three dollars and sixty-six cents (\$123.66).
 - i. Aboveground L.P. gas tanks per group of tanks at a single location: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (10) Water treatment plants, pumping stations, sewer treatments and lift stations.
- a. Water treatment plant (interior plant piping): four hundred thirty-two dollars and seventy-seven cents (\$432.77).
 - b. Sewage treatment plant (interior plant piping): three hundred nine dollars and thirteen cents (\$309.13).
 - c. Lift station (interior station piping): four hundred ninety-four dollars and four cents (\$494.04).
 - d. Sewage ejector: one hundred forty-four dollars and twenty-seven cents (\$144.27).
- (11) Water and gas mains (all groups).
- a. Each fifty (50) feet or part thereof: fourteen dollars and forty-four cents (\$14.44).
 - b. Minimum permit fee: one hundred sixty-four dollars and eighty-eight cents (\$164.88).
- (12) Storm/sanitary utility/collector lines for building drain lines (on private property other than public easements).
- a. Cost of over two thousand dollars (\$2,000.00): eight and three-tenths (8.3) percent.
 - b. Each fifty (50) feet or part thereof: fourteen dollars and forty-four cents (\$14.44).
- (13) Manhole or catch basin.
- a. Each manhole or catch basin: twenty dollars and sixty-one cents (\$20.61).
 - b. Minimum permit fee: one hundred sixty-four dollars and eighty-eight cents (\$164.88).
- (14) Temporary toilets—Waterborne or chemical.
- a. First temporary toilet: ninety-two dollars and seventy-five cents (\$92.75).
 - b. For each additional toilet: seventeen dollars and one cent (\$17.01).
 - c. Renewal of temporary toilet same as original permit.
- (15) Dental vacuum lines.
- Each system: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (16) Mobile home connections.
- Each system: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (17) Medical gas.
- a. Per gas: one hundred four dollars (\$104.00).
 - b. Installation, per one thousand dollars (\$1,000.00) of construction value: fifteen dollars (\$15.00).
- (18) Postcard plumbing and LPGX permits.
- Each card (includes sewer capping, water service, fixture replacement/resetting, water service back flow, sewage line repair, chemical toilet, and septic tank, pool equipment, potable water line irrigation, replacement of solar mobile home connection, water heater replacement and gas meter): one hundred twenty-three dollars and sixty-six cents (\$123.66).

- (19) Plumbing new construction. All general plumbing permit fees are included under the master permit, the following are the exceptions:
- Backflow preventers.
 - Interceptors (grease, oil, sand, etc.).
 - Irrigation.
 - Lift stations.
 - Medical gas (compressed air, nitrous oxide, vacuum lines, etc.).
 - Natural/LP gas.
 - Septic tank and drain-field.
 - Site work (sanitary manholes, catch basins, sewer lines and/or water lines).
 - Wells for potable or irrigation.
- (d) *Electrical permit fees.*
- Minimum electrical permit fee including repair work per permit.
 - Residential minimum fee: fifty-one dollars and fifty cents (\$51.50).
 - Commercial minimum fee: ninety-two dollars and seventy cents (\$92.70).
Except as otherwise specified.
 - Alterations/repairs/additions; residential. Applies to new construction or Group R3 and living units of Group R1, R2, and R4. Applies to all electrical installations except common areas, parking lot areas and/or buildings and house service of Group R.
 - New construction and additions, per square foot of floor area: eight cents (\$0.08).
 - Minimum fee: sixty-eight dollars and seventy cents (\$68.70).
 - Alterations or repairs per one dollar (\$1.00) estimated cost or fractional part: five cents (\$0.05).
 - Minimum fee: sixty-eight dollars and seventy cents (\$68.70).
 - Alterations/repairs/additions; commercial.
 - New construction and additions, per square foot of floor area: fourteen cents (\$0.14).
 - Minimum fee: one hundred twenty-three dollars and sixty-six cents (\$123.66).
 - Alterations or repairs per one dollar (\$1.00) estimated cost or fractional part: ten cents (\$0.10).
 - Minimum fee: one hundred twenty-three dollars and sixty-six cents (\$123.66).
 - All other wiring and outlets. Common areas of Group R1, R2, and R4 include corridors, public lounges, elevators, pumps, A/C (public area), lights, outlets and house and emergency service, etc. These areas and all commercial wiring shall be subject to the fees below:
 - Boxes, receptacle, switches, sign fraction motor fans, low voltage outlets, empty outlets for telephone, CATV, each outlet, and one hundred ten (110) volt smoke detectors each outlet box: three dollars and thirty-one cents (\$3.31).
 - Special outlets: fourteen dollars and forty-four cents (\$14.44).
 - Commercial equipment (KWA rated) x-ray outlets, commercial cooking equipment, presses, generators, transformers (permanently connected), for each KW or fractional part: fourteen dollars and forty-four cents (\$14.44).
 - Motors installed, repaired or replaced, each: eighteen dollars and fifty-six cents (\$18.56).
 - Air conditioning and refrigeration system (new work). Applies to commercial, residential, agricultural and industrial. Covers related work, except wall or window units which are covered under special outlets, per ton or fractional part thereof: twelve dollars and thirty-seven cents (\$12.37).
 - Replacement or relocation of existing A/C and refrigeration (same size), per kW or ton: four dollars and twelve cents (\$4.12).
 - Electrical equipment; replacement (existing facilities): forty-one dollars and twenty-two cents (\$41.22).

- h. Switchboards, M.C.C. panels, control boards (for each board): forty-one dollars and twenty-two cents (\$41.22).
- (5) Lighting fixtures. Common areas of Group R1, R2, and R4 include corridors, public lounges, elevators, pumps, A/C (public area), lights, outlets and house and emergency service, etc. These areas and all commercial wiring shall be subject to the fees below:
Floodlights, spotlights, parking lights, tennis courts lights, fluorescent and incandescent fixtures, etc.
 - a. Per fixture: three dollars and thirty-one cents (\$3.31).
 - b. Plugmold, light track, and neon strips, each five (5) feet or fractional part: six dollars and forty-one cents (\$6.41).
 - c. Light pole: twenty dollars and sixty-one cents (\$20.61).
 - d. Light pole: thirty dollars and ninety-two cents (\$30.92).
- (6) Signs and architectural features (indoor neon).
 - a. Per square foot of sign: two dollars and three cents (\$2.03).
 - b. Minimum fee: one hundred thirty-eight dollars and eight cents (\$138.08).
 - c. Repairs and reconnection, each: one hundred twenty-one dollars and fifty-nine cents (\$121.59).
 - d. Neon strips each five (5) feet or fractional part: four dollars and twelve cents (\$4.12).
- (7) Permanent service to building; new work only.
For each 100-amp or fractional part:
Residential: five dollars and sixty-one cents (\$5.16).
Commercial: nine dollars and twenty-nine cents (\$9.29).
- (8) Temporary service for construction.
Per service; residential: fifty-seven dollars and twenty-five cents (\$57.25).
Per service; commercial: one hundred three dollars and five cents (\$103.05).
- (9) Construction field office service.
 - a. Per service: two hundred forty-seven dollars and thirty cents (\$247.30).
- (10) Mobile home or RV service.
 - a. Per service: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (11) Agricultural service.
 - a. Per service: one hundred three dollars and five cents (\$103.05).
- (12) Feeders.
(Include feeders to panels, M.C.C. switchboards, elevators, etc.) each feeder: twenty-four dollars and seventy-three cents (\$24.73).
- (13) Temporary service test.
 - a. Equipment and service (30-day limit), per service: one hundred eighty-five dollars and forty-nine cents (\$185.49).
 - b. Elevator (180-day limit), per elevator: one hundred eighty-five dollars and forty-nine cents (\$185.49).
- (14) Fire detection system. Includes fire alarm system, halon, etc. Does not include single one hundred ten (110) volt residential detectors.
 - a. Per system; residential (new/upgrades): one hundred forty-three dollars and twelve cents (\$143.12).
 - b. Repairs and additions to existing system; residential: sixty-eight dollars and seventy cents (\$68.70).
 - c. Per system; commercial (new/upgrades): two hundred fifty-seven dollars and sixty-two cents (\$257.62).
 - d. Repairs and additions to existing system; residential: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (15) Master control antenna and radio system. Does not include CATV and telephone empty conduit system and does not include free wiring of the same.
 - a. Master control; residential: twenty-two dollars and ninety cents (\$22.90).
 - b. Each device; residential: one dollar and sixty-seven cents (\$1.67).

- c. Master control; commercial: forty-one dollars and twenty-two cents (\$41.22).
 - d. Each device; residential: two dollars and forty-seven cents (\$2.47).
- (16) Burglar alarm system.
 - Residential.
 - a. Installation wiring: fifty-one dollars and fifty-three cents (\$51.53).
 - b. Installation devices: fifty-one dollars and fifty-three cents (\$51.53).
 - c. Complete system: one hundred three dollars and eight cents (\$103.08).
 - d. Repair per system: fifty-one dollars and fifty cents (\$51.50).
 - Commercial.
 - e. Installation wiring: ninety-two dollars and seventy-five cents (\$92.75).
 - f. Installation devices: ninety-two dollars and seventy-five cents (\$92.75).
 - g. Complete system: one hundred eighty-five dollars and forty-nine cents (\$185.49).
 - h. Repair per system: ninety-two dollars and seventy-five cents (\$92.75).
- (17) Intercom system.
 - a. Each new system Group R3: one hundred twenty-three dollars and sixty-six cents (\$123.66).
 - b. Other groups: one hundred eighty-five dollars and forty-nine cents (\$185.49).
 - c. Repair each system; residential: sixty-eight dollars and seventy cents (\$68.70).
 - d. Repair each system; commercial: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (18) Swimming pools, electrical. Fees based on cumulative cost of the following components:
 - Residential.
 - a. Pool or spa (includes motors and pool lights): sixty-eight dollars and seventy cents (\$68.70).
 - Commercial.
 - b. Combination pool/spa (includes motors and pool lights): one hundred three dollars and five cents (\$103.05).
 - c. Pool repair: sixty-eight dollars and seventy cents (\$68.70).
 - d. Pool or spa (includes motors and pool lights): two hundred eighty-eight dollars and fifty-two cents (\$288.52).
 - e. Combination pool/spa (includes motors and pool lights): three hundred ninety-one dollars and fifty-seven cents (\$391.57).
 - f. Pool repair: two hundred eighty-eight dollars and fifty-two cents (\$288.52).
- (19) Energy management system.
 - a. Per floor: two hundred sixteen dollars and forty cents (\$216.40).
 - b. Repair, per floor: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (20) Freestanding service.

New meter and service (requires processing)—Per service. Includes lift stations, sprinkler systems, street lighting, parking lots, etc., that require new service with separate meter: one hundred eighty-five dollars and fifty-two cents (\$185.52).
- (21) Temporary work on circuses, carnivals, fairs, Christmas tree lots, fireworks, tents, etc.

Per ride or structure: one hundred three dollars and five cents (\$103.05).
- (22) Ground wire for screen bonding.

Residential, per installation: sixty-eight dollars and seventy cents (\$68.70).

Commercial, per installation: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (23) Conduit.

Duct bank; per linear foot (residential/commercial): three dollars and seventy-three cents (\$3.73).

- (24) Electrical postcard permit. Includes the following items: intercom system, burglar alarm, pre-wiring burglar alarm, master control devices installation or repair, smoke detector, FPL load management, irrigation pump, pool timer, electrical appliance and ceiling fan installation, data communication cables, television and telephone wiring installation and central vacuum: thirty dollars and ninety-two cents (\$30.92).
- (25) FPL load management.
Per bid: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (26) Underground manholes.
Each: two hundred six dollars and eight cents (\$206.08).
- (27) Electrical new construction. All general electrical permit fees are included under the master permit, the following are the exceptions:
- Burglar alarms.
 - Fire alarms.
 - Freestanding services.
 - Temporary for construction.
- (28) Additional inspection. Electrical: one hundred three dollars and five cents (\$103.05).
- (e) *Mechanical permit fees.*
- Minimum mechanical permit fee.
 - Residential minimum fee: sixty-seven dollars (\$67.00).
 - Commercial minimum fee: one hundred eighty-seven dollars (\$187.00).
 Except as otherwise specified.
 - New construction/repairs/additions; residential.
Per square foot: eight cents (\$0.08).
 - Alterations/repairs/additions; commercial.
Per one dollar (\$1.00) of construction value if square footage is provided, the construction value will be based on a cost of one dollar and twenty-five cents (\$1.25) per square foot or the value provided by the permit applicant, whichever is higher. If no square footage is provided, the construction value will be based on the value provided by the permit applicant: two and five-tenths cents (\$0.025).
 - Minimum fee: two hundred twenty dollars and fifty cents (\$220.50).
 - A/C and refrigeration including replacement, relocation of equipment and new installation (without master permit).
 - Tons each, residential: seventeen dollars and eighteen cents (\$17.18).
 - Tons each, commercial: thirty dollars and ninety-three cents (\$30.93).
 - Minimum fee, residential: sixty-eight dollars and seventy cents (\$68.70).
 - Minimum fee, commercial: one hundred twenty-three dollars and sixty-six cents (\$123.66).
 - Room A/V wall unit: forty dollars and eight cents (\$40.08).
 - Storage tanks for flammable liquids.
Per tank: three hundred nine dollars and thirteen cents (\$309.13).
 - Furnace and heating equipment, including commercial dryers, ovens and other fired objects not elsewhere classified (without master permit).
kW each: six dollars and nineteen cents (\$6.19).
Minimum fee: ninety-two dollars and seventy-five cents (\$92.75).
 - Internal combustion engines.
Stationary, each: one hundred fifty-four dollars and fifty-seven cents (\$154.57).
 - Commercial kitchen hoods, each: two hundred fifty-seven dollars and fifty-seven cents (\$257.57).
 - Other fees.
 - Fire chemical halon and spray booths for each system: two hundred sixteen dollars and forty cents (\$216.40).

- b. Insulation, pneumatic tube, conveyor systems, pressure and process piping, sheet metal or fiberglass air conditioning ducts, cooling towers, mechanical ventilation.
For each one thousand dollars (\$1,000.00) or fractional part of contract cost: twenty-one dollars and sixty-five cents (\$21.65).
Minimum fee: one hundred twenty-three dollars and sixty-six cents (\$123.66).
- (10) Boilers and pressure vessels.
 - a. Steam boilers (annual), each: two hundred fifty-seven dollars and sixty-two cents (\$257.62).
 - b. Hot water boilers (annual), each: one hundred seven dollars and seventeen cents (\$107.17).
 - c. Unfired pressure vessels (annual), each: ninety-four dollars and eighty-one cents (\$94.81).
 - d. Miniature boilers (annual), each: ninety-four dollars and eighty-one cents (\$94.81).
 - e. Certificate of inspection (inspected by insurance company), each: one hundred fifty-four dollars and fifty-seven cents (\$154.57).
 - f. Shop inspection of boiler or pressure vessels per completed vessels: one hundred fifty-four dollars and fifty-seven cents (\$154.57).
- (11) Fire sprinkler system.
 - a. Per standpipe: forty-one dollars and twenty-two cents (\$41.22).
 - b. Per sprinkler head: two dollars and five cents (\$2.05).
 - c. Per hose rack or hose bib: twenty dollars and sixty-one cents (\$20.61).
 - d. Fire pump: one hundred fifty-four dollars and fifty-seven cents (\$154.57).
 - e. Each fifty (50) feet of underground piping or part thereof: forty-one dollars and twenty-two cents (\$41.22).
 - f. Minimum fee: one hundred forty-four dollars and twenty-seven cents (\$144.27).
- (12) Additional inspections, mechanical: one hundred three dollars and five cents (\$103.05).
- (13) Elevators, escalators and other lifting apparatus. Fees for original installation or major alterations and remodeling include initial inspection and certificate.
- (14) Passenger freight elevators.
 - a. New elevator traction, each: one thousand two hundred thirty-six dollars and forty-nine cents (\$1,236.49).
 - b. New elevator hydraulic, each: nine hundred twenty-seven dollars and thirty-eight cents (\$927.38).
 - c. Freight elevator, each: one thousand two hundred thirty-six dollars and forty-nine cents (\$1,236.49).
 - d. Residential elevator, each: seven hundred forty-two dollars (\$742.00).
 - e. Escalator: four hundred ninety-four dollars and sixty cents (\$494.60).
 - f. Dumbwaiters, each: three hundred nine dollars and thirteen cents (\$309.13).
 - g. Wheelchair lift, each: three hundred seventy dollars and ninety-six cents (\$370.96).
 - h. Man lift, each: six hundred eighteen dollars and twenty-five cents (\$618.25).
 - i. Conveyors and all other lifting and transporting apparatus (except as otherwise provided): two hundred six dollars and eight cents (\$206.08).
 - j. Monitoring alterations and remodeling for an elevator.
First two landings: two hundred six dollars and eight cents (\$206.08).
Each additional landing thereafter, per floor: twenty dollars and sixty-one cents (\$20.61).
 - k. Refinish cab interior (no electrical work): three hundred nine dollars and thirteen cents (\$309.13).
 - l. Vertical conveyor: three hundred seventy dollars and ninety-six cents (\$370.96).

- m. Elevator for construction use only, thirty (30) day limit: three hundred nine dollars and thirteen cents (\$309.13).
 - n. Key box, each: one hundred three dollars and five cents (\$103.05).
- (15) Fees for periodic re-inspection.
- a. Passenger elevator (annual inspection per code): three hundred nine dollars and thirteen cents (\$309.13).
 - b. Freight elevators (annual inspection per code): three hundred nine dollars and thirteen cents (\$309.13).
 - c. Escalators: one hundred fifty-four dollars and fifty-seven cents (\$154.57).
 - d. Dumbwaiters, wheelchair lifts and all other lifting and transporting apparatus vertical conveyors (annual inspection per code): one hundred fifty-four dollars and fifty-seven cents (\$154.57).
- (16) Amusement rides and devices.
- a. Per ride: one hundred ninety-five dollars and seventy-nine cents (\$195.79).
 - b. For each permanent installed or altered: one hundred fifty-four dollars and fifty-seven cents (\$154.57).
 - c. Annual inspection of each ride or device at any one (1) location (permanent installation only): one hundred fifty-four dollars and fifty-seven cents (\$154.57).
- (17) Mechanical postcard permit. Each permit includes air conditioning condenser unit or fan/coil replacement, room air conditioning installation, heating equipment, repairs or replacement: thirty dollars and eighty-three cents (\$30.83).
- (18) Mechanical new construction.
- (f) *Copies of departmental records.*
- (1) Plan reproductions from microfilm; per sheet: nine dollars (\$9.00).
 - (2) Reproduced records; per page: twenty-seven cents (\$0.27).
 - (3) Double sided copies; per page: thirty-six cents (\$0.36).
 - (4) Certified copies; per page: one dollar eighty cents (\$1.80).
 - (5) Notary public service; per document: one dollar eighty cents (\$1.80).
 - (6) Research and ordering plans: nine dollars (\$9.00).
- (g) *Forty-year re-certification program fees.*
- (1) There shall be a fee of five hundred fifteen dollars and twenty-one cents (\$515.21) per building, for every forty (40) year building re-certification program application and each preceding ten (10) year re-certification application as required under the Code of Miami-Dade County, Florida, chapter 8.
 - (2) There shall be a fee of five hundred fifteen dollars and twenty-one cents (\$515.21) extension fee for every application for subsequent ten (10) year re-certification program applications.
- (h) *Structural glazing system re-certification fees.* There shall be a fee of five hundred fifteen dollars and twenty-one cents (\$515.21) for the initial application for structural glazing re-certification and each subsequent application under the Code of Miami-Dade County, Florida, chapter 8.
- (i) *Annual facility permits fees.* In accordance with provisions of the Florida Building Code and the Code of Miami-Dade County, Florida, chapter 10, each firm or organization in the city which performs its own maintenance work with certified maintenance personnel in factory-industrial (Group F) facilities, as well as helpers thereunder, may pay to city an annual master and subsidiary facility permit (premises permit) fee in lieu of other fees for maintenance work. Such fee shall be paid to the department of buildings and licensing and such permit shall be renewed annually at a fee which is calculated in accordance with the provisions of this subsection.
- Each firm or organization which obtains an annual master premises permit shall include in their application for such permit the total number of maintenance personnel, including helpers and trainees thereby assigned to building, electrical, plumbing or mechanical work. The master premises permit fee shall be computed by multiplying the total number of such employees, times fifty-seven dollars

and twenty-five cents (\$57.25). The minimum master premises permit fee shall be one thousand nine hundred forty-seven dollars and forty-nine cents (\$1,947.49).

Each firm or organization which utilizes decentralized locations in addition to the main location described under the master premises permit may additionally apply for a subsidiary premises permit and shall include the same information required above. The subsidiary premises permit fee shall be computed by multiplying the total number of such employees, times one hundred three dollars and five cents (\$103.05). The minimum subsidiary premises permit fee shall be five hundred forty-six dollars and twelve cents (\$546.12).

Prior to each facility permit's expiration, the holder will be sent a renewal notice to continue the premises permit for the next renewal period. The fee will be the same as the original facility permit fee. No allowance shall be made for late renewal fees or part year renewal fees.

(j) *Soil improvement/land clearing permit fees.* Soil improvement permits are used to clear, de-muck and fill undeveloped land.

(1) Residential; per lot: one hundred forty-one dollars (\$141.00).

(2) Commercial; per acre: nine hundred thirty-seven dollars (\$937.00).

(Code 1983, § 2-653; Ord. No. 13-08, § 2, 4-10-2013; Ord. No. 15-13, § 2, 7-8-2015)

Sec. 2-654. Business tax receipts—Schedule of fees.

License tax fees for the following businesses, occupations, or professions are hereby levied and imposed as follows. Classification fees:

(1) Abstract title companies: one hundred seventy-five dollars (\$175.00).

(2) Accountants (see professional Class 173).

(3) Accounts and claims; collecting (see credit associations Class 68).

(4) Advertising.

a. Agents or agencies writing advertising for profit: one hundred dollars (\$100.00).

b. Outdoor advertising, painted walls, bulletins, bill posting, electric display, etc.: one hundred dollars (\$100.00).

c. Advertising on streets with banners, floats, cartoons, or exhibitions, but not using sound effects or music and when operated so as not to constitute a nuisance or breach of the peace, for each unit or vehicle: fifty dollars (\$50.00).

(5) Advertising promotion schemes, etc.

Coupon or stamp redemption or display places, each plan or location: one hundred seventy-five dollars (\$175.00).

(6) Advertising; public carriers, trucks, vehicles.

a. Contracting for advertising in or on buses, taxicabs, or other public carriers only: fifty dollars (\$50.00).

b. Persons allowing painted or printed advertisements of others to be displayed upon their trucks or vehicles for profit when such advertisements are not related to the business or privilege for which the trucks or vehicles are operated: fifty dollars (\$50.00).

c. Advertising, public relations, each: fifty dollars (\$50.00).

(7) Advertising schemes, coupon sales, membership sales, others.

Advertising schemes and devices; coupon sales and membership sales for discounted merchandise and services not otherwise provided for: one hundred fifty dollars (\$150.00).

(8) Agencies or agents and salesmen.

a. Distributor, meaning any salesman or agent who sells or takes orders for any product within the city limits, each person or vehicle: one hundred dollars (\$100.00).

b. Collection agencies (see collection agency Class 63).

c. Order houses representing mail order companies: one hundred dollars (\$100.00).

d. Automobile agencies (see automobile or motor vehicle Class 23).

- e. Insurance agencies (see insurance companies Class 124).
 - f. Real estate agents (see professional Class 173).
- (9) Aircraft—Fixed or rotary wing.
- a. Operated for hire, up to three (3) planes (charter): one hundred dollars (\$100.00).
 - b. Each additional plane, per passenger capacity: six dollars and twenty-five cents (\$6.25).
 - c. Sales, new and used: one hundred fifty dollars (\$150.00).
 - d. Repair, service, etc. (see repair and service Class 178).
 - e. Parking, storage, etc. (see auto parking Class 23).
 - f. Gasoline, oil, accessories, etc.: one hundred dollars (\$100.00).
 - g. Flight school or charter service (separate license): one hundred fifty dollars (\$150.00).
- (10) Aircraft—Transportation (intrastate).
- a. Air freight or express operations: two hundred dollars (\$200.00).
 - b. Air passenger lines: two hundred dollars (\$200.00).
- (11) Alarm systems; fire and burglary: one hundred dollars (\$100.00).
- (12) Alcoholic beverages. The only license required for manufacturing, distribution, wholesale or retail sales of alcoholic beverages is the license issued by the state (see F.S. ch. 561). However, other sales made, or businesses operated in conjunction with, the sale of such beverages are required to be licensed as outlined in this chapter.
- (13) Amusements.
- a. Amusement arcade (video game room) having games and other amusement devices: seventy dollars (\$70.00).
(Each game or device, see vending/amusement machines.)
 - b. Bathing or swimming pool where a charge is made; no proration: fifty dollars (\$50.00).
 - c. Bowling alleys, each lane: twenty-five dollars (\$25.00).
 - d. Carnivals. Riding devices for amusement at carnivals shall be subject to the following requirements prior to issuance of a business tax receipt for a carnival:
 1. File with the city a certificate of insurance, as evidence of an insurance policy in the minimum amount of one hundred thousand dollars (\$100,000.00) personal injury insurance for one (1) person and three hundred thousand dollars (\$300,000.00) personal injury insurance for two (2) or more persons for liability as the result of one (1) accident or occurrence and property damage limit of ten thousand dollars (\$10,000.00). Such certificate shall name the city as coinsured, holding the city harmless in the event of an accident or occurrence and shall be approved by the city manager.
 2. File with the city satisfactory evidence of a surety bond, to be approved by the city manager, in the amount of five thousand dollars (\$5,000.00) indemnifying the city for any damage to city property.
 3. Inspection and approval by the county fire inspector, city electrical inspector and city mechanical inspector.
All establishments or booths at carnivals preparing food to be served at the carnival shall be inspected and approved by the county health department prior to the issuance of a business tax receipt for a carnival.
A permit from the city commission is required prior to the issuance of a business tax receipt for a carnival. No business tax receipt

- shall be issued for a period of more than seven (7) days in one (1) location.
- License fee per day: three hundred seventy-five dollars (\$375.00).
- Business tax per week: one thousand five hundred dollars (\$1,500.00).
- e. Circuses: Requires city commission approval, insurance, and inspection requirements same as carnival.
- Business tax per day: three hundred seventy-five dollars (\$375.00).
- Business tax per week: one thousand five hundred dollars (\$1,500.00).
- f. Coin-operated radios or television sets (rental agencies) as placed in hotels, motels, and other public buildings. Per year, each location, each machine: six dollars and twenty-five cents (\$6.25).
 - g. Golf, miniature, each course: one hundred dollars (\$100.00).
- Regulation nine (9) or eighteen (18) holes: two hundred twenty-five dollars (\$225.00).
- Driving range: one hundred dollars (\$100.00).
- h. Kiddie rides used exclusively for the entertainment of children and not as a part of a carnival or circus; each machine: twenty-five dollars (\$25.00).
 - i. Rinks; skating, bicycle, motorbike, midget cars and such: two hundred dollars (\$200.00).
 - j. Rodeo, per day; requires city commission approval (insurance requirements same as carnivals): three hundred dollars (\$300.00).
 - k. Scales; persons operating in the city any scale or other device for the purpose of ascertaining the weights of people charging therefor (not meaning automatic machines), also age estimators, each: fifty dollars (\$50.00).
- l. Shooting galleries, each place of business or location: one hundred fifty dollars (\$150.00).
 - m. Shows of all kinds (except previously mentioned) or any other exhibitions giving performances under tents or temporary structures of any kind, whether such tents or temporary structures are covered or not (must be approved by city commission).
 - 1. Admission charge of one dollar (\$1.00) or less, business tax per day: one hundred dollars (\$100.00).
 - 2. Admission charge of more than one dollar (\$1.00) but less than two dollars (\$2.00), license tax per day: two hundred dollars (\$200.00).
 - 3. Admission charge exceeding two dollars (\$2.00), business tax per day: two hundred twenty-five dollars (\$225.00).
 - 4. Annual fee (no proration): nine hundred twenty-five dollars (\$925.00).
- (14) Apartments (see hotels and motels Class 115).
 - (15) Appraisers other than real estate: fifty dollars (\$50.00).
 - (16) Armored car service; individuals or firms operating armored car or truck service for banks, stores, insurance companies, or other customers, each vehicle: thirty-one dollars and twenty-five cents (\$31.25).
 - (17) Arms.
 - a. Dealer in arms and weapons along with other goods such as department stores, etc. (see basic schedule Class 29).
 - b. Arms and weapons only; gun shop sales and repair and service: two hundred dollars (\$200.00).
 - c. Arms and weapons repair only (see repair and service Class 178).
 - (18) Artist, commercial, painting or other art for profit, small sizes, no building plans: fifty dollars (\$50.00).

- (19) Associations. Associations representing businesses or professional groups not otherwise classified (see business office Class 46).
- (20) Astrologers (see spiritualist mediums Class 193).
- (21) Auctioneers.
- a. Auctioneer, per day: one hundred dollars (\$100.00).
 - b. Auctioneer, per year: two hundred eighty-one dollars and twenty-five cents (\$281.25).
 - c. Auction house, auctioning from an established place of business, per year (see basic schedule Class 29).
(Note: Auctions at auction houses must be conducted by licensed auctioneer.)
- (22) Authors: fifty dollars (\$50.00).
- (23) Automobiles or motor vehicles, auto brokers, trucks, farm tractors and farm implements, motor scooters, motorcycles, etc.
- a. Dealers in new or used cars, motor vehicles, motorcycles, and implements, etc. (two thousand (2,000) square feet or less): two hundred fifty dollars (\$250.00).
 1. Each additional one thousand (1,000) square feet (not to exceed a maximum of two thousand five hundred dollars (\$2,500.00): fifty dollars (\$50.00).
 2. Each additional adjacent display lot or location, (not to exceed a maximum of two (2) adjacent lots), per one thousand (1,000) square feet: one hundred fifty dollars (\$150.00).
 - a-1. Auto brokers in new or used cars, motor vehicles, motorcycles, and implements, etc.
 1. When located within warehouse/bays (first bay): three hundred dollars (\$300.00).
Each additional bay, per bay: two hundred fifty dollars (\$250.00).
 2. When located within standalone building/structure other than warehouse/bay (two thousand (2,000) square feet or less): three hundred dollars (\$300.00).
Two thousand one (2,001) square feet or more, three hundred dollars (\$300.00) per each additional one thousand two hundred (1,200) square feet (not to exceed a maximum of two thousand five hundred dollars (\$2,500.00)).
 - b. Dealers in new or used trucks, boats, etc. (four thousand (4,000) square feet or less): five hundred dollars (\$500.00).
 1. Each additional two thousand (2,000) square feet: one hundred dollars (\$100.00).
(Not to exceed a maximum of two thousand five hundred dollars (\$2,500.00).)
 2. Each additional adjacent display lot or location, per one thousand (1,000) square feet (not to exceed a maximum of one (1) adjacent lot): three hundred dollars (\$300.00).
 - c. Parking/auto/truck/trailers/boats/and aircraft storage garages or parking lots (see storage classification).
 - d. Sale of gasoline (see service stations Class 186).
 - e. Repair shop in connection with business other than automobile (same as repair shop) (see repair and service Class 178).
 1. Automobile repair shop and services:
 - i. One (1) to five (5) employees: three hundred fifty dollars (\$350.00).

- ii. Six (6) and more employees, per employee: ten dollars (\$10.00).
- 2. Body shop/paint shop and services:
 - i. One (1) to five (5) employees: four hundred fifty dollars (\$450.00).
 - ii. Six (6) and more employees, per employee: ten dollars (\$10.00).
- 3. Stationary vehicle car/truck wash, per operation: one hundred fifty dollars (\$150.00).
Minimum twelve (12) feet by eighteen (18) feet impervious berm/curb area (not to exceed a maximum of two (2) operation stationary areas).
- 4. Mobile vehicle car/truck wash: two hundred fifty dollars (\$250.00).
- f. Used car parts, dealers in, used for purposes other than junk. (No license certificate shall be issued unless the stock-in-trade is kept within an enclosed building or is satisfactorily screened from public view and the license certificate shall be revoked unless such condition is maintained): two hundred twenty-five dollars (\$225.00).
- g. Sale of accessories (see basic schedule Class 29).
- h. Vehicle rental operations, which shall include the furnishing, hiring or providing of automobiles, trucks, jeeps, motorcycles, motor scooters, trailers, "haul away" boat services, "haul away" trailer (house) services, and all types of drive or use yourself "U-drive-it" motor vehicles (but not including taxi or airport shuttles) at fixed rental or service charges either for short- or long-term use or service.
"U-drive-it" vehicles must meet the following requirements prior to the issuance of a business tax receipt:
 - 1. File with the city a certificate of insurance, as evidence of an insurance policy in the minimum amount of one hundred thousand dollars (\$100,000.00) for any one (1) person injured by reason of the negligent operation of such "U-drive-it" vehicle and three hundred thousand dollars (\$300,000.00) for more than one (1) person so injured in any one (1) accident, and twenty-five thousand dollars (\$25,000.00) for all property damage in any one (1) accident.
One (1) to five (5) units: sixty-two dollars and fifty cents (\$62.50).
Plus each unit over five (5) up to one thousand two hundred (1,200): six dollars and twenty-five cents (\$6.25).
Plus each unit over one thousand two hundred (1,200) up to two thousand (2,000): five dollars and ninety cents (\$5.90).
Plus each unit over two thousand (2,000) up to two thousand eight hundred (2,800): five dollars and sixty cents (\$5.60).
Plus each unit over two thousand eight hundred (2,800): five dollars (\$5.00).
- (24) Awning agency, dealer (see basic schedule Class 29).
Installation requires contractor's license.
- (25) Bail bondsman; each agency engaged in the business of providing bail bonds must be registered with the police department and have a background check: two hundred fifty dollars (\$250.00).
- (26) Bakery products.
 - a. Retail from established place of business (see basic schedule Class 29).
 - b. Manufacturer of bakery products (see manufacturer Class 149).

- (27) Bankrupt sales and other distress sales: one hundred dollars (\$100.00).
- (28) Barber or beauty schools (see schools Class 183).
- (29) Basic schedule for retail and wholesale merchants. Every person whose primary business is retail or wholesale and who is not otherwise classified in the business tax code.
- Number of employees:
- One (1) to four (4): one hundred twenty-five dollars (\$125.00).
- Five (5) to nine (9): two hundred sixty-five dollars (\$265.00).
- Ten (10) to nineteen (19): four hundred five dollars (\$405.00).
- Twenty (20) or more: five hundred forty-five dollars (\$545.00).
- (30) Baths (see health spa and/or swimming pool Class 110).
- (31) Beauty parlors and barbershops.
- First chair: twenty-five dollars (\$25.00).
- Each additional chair: twenty dollars (\$20.00).
- (32) Bicycles.
- a. Bicycle dealers; sale and rental (see basic schedule Class 29).
- b. Bicycle repairs (see repair and service Class 178).
- (33) Blacksmith or horseshoer (see repair shops Class 178).
- (34) Blueprinting or similar reproduction service (see repair and service Class 178).
- (35) Boats (see repair and service Class 178 or automobile sales Class 23).
- (36) Booking agent or agency: one hundred fifty dollars (\$150.00).
- (37) Bootblack (shoeshine).
- First chair: twelve dollars and fifty cents (\$12.50).
- Each additional chair: two dollars and fifty cents (\$2.50).
- Applicants under eighteen (18) years of age operating without a place of business must obtain city commission approval of location.
- (38) Bottled water (see basic schedule Class 29).
- (39) Bottling works or plant; same as manufacturers (see manufacturers Class 149).
- (40) Boxing and wrestling.
- Promoter of: two hundred twenty-five dollars (\$225.00).
- (41) Brick, concrete or asphalt block manufacturers (see manufacturers Class 149).
- (42) Brokers (see professional Class 173).
- (43) Building and loan associations (see finance Class 91).
- (44) Building material supply dealers (see basic schedule Class 29).
- (45) Bureau of registry, nurses, teachers, etc. (see employment agency Class 84).
- (46) Business office.
- Persons utilizing or renting office or desk space for a business not otherwise licensed:
- a. When operated solely by owner: fifty dollars (\$50.00).
- b. Not more than three (3) employees: seventy-five dollars (\$75.00).
- c. Four (4) and not more than five (5) employees: one hundred twenty dollars (\$120.00).
- d. Six (6) and not more than fifteen (15) employees: one hundred fifty dollars (\$150.00).
- e. Sixteen (16) and not more than twenty-five (25) employees: one hundred eighty-seven dollars and fifty cents (\$187.50).
- f. Twenty-six (26) and not more than fifty (50) employees: two hundred twenty-five dollars (\$225.00).
- g. For each additional fifty (50) or part thereof fifty (50): sixty-two dollars and fifty cents (\$62.50).

- (47) Bus lines, office and station.
(Additional license required for restaurants, concessions, etc.), each: two hundred twenty-five dollars (\$225.00).
- (48) Cabinet maker or carpenter shop (see manufacturer Class 149).
- (49) Candy or confectionery shop.
- a. Fixed location (see basic schedule Class 29).
 - b. Portable (see peddlers Class 167).
- (50) Canvasser: one hundred dollars (\$100.00).
- (51) Carnival (see amusement Class 13).
- (52) Carpet and rug cleaning (see repair and service Class 178).
- (53) Caterer or catering service.
- a. Each company: one hundred eighty-seven dollars and fifty cents (\$187.50).
Restaurants require separate license.
 - b. Mobile vendors, lunch stand, portable or movable, each vehicle or stand (see peddlers Class 167).
- (54) Cattle—Dealer in livestock.
Per year or any fraction thereof: one hundred dollars (\$100.00).
Itinerant: two hundred dollars (\$200.00).
- (55) Cemetery salesman.
Each: \$30.00.
- (56) Clairvoyant (see spiritualist mediums Class 193).
- (57) Cleaners and drying agencies (see laundries Class 136).
- (58) Clipping bureau (see business office Class 46).
- (59) Clubs: two hundred fifty dollars (\$250.00)
- a. *Social*. Licensee and principals shall be subject to a satisfactory police investigation to include fingerprints, photograph and FBI check. Separate business tax required for dancing where an admission charge is required and for dancing lessons for which a fee is charged and other categories listed in this chapter in which the club may engage. State-chartered nonprofit organizations are exempt from this subsection.
 - b. *Other*. A license is required for each category in which the club engages, i.e., restaurant, dancing, golf course, etc. There shall be no license fee in those instances wherein the club does not engage in any commercial endeavor or where the membership dues/fees are not used for profit or gain.
- (60) Coffee roaster, processor, or spice mills (see manufacturer Class 149).
- (61) Coffee wagons (see peddlers Class 167).
- (62) Cold storage warehouse (see storage and warehouse Class 194).
- (63) Collection agency: one hundred twenty-five dollars (\$125.00).
- (64) Collection service.
Industrial waste, refuse, rubbish (all applicants must be approved by the director of the department of public works and utilities).
- a. Industrial waste collectors: one hundred dollars (\$100.00).
A five-thousand-dollar (\$5,000.00) surety bond is required.
 - b. Refuse and rubbish gatherer, each vehicle: fifty dollars (\$50.00).
- (65) Computer service (see electronic data processing Class 82).
- (66) Contractors. A municipal contractor's license is required as well as all county license requirements.
- (67) Convenience stores (see basic schedule Class 29).
Where petroleum products are dispensed from pumps, a separate license is required.
- (68) Credit associations; firms or corporations, or agents thereof, operating within the city supplying information for members and others: two hundred twenty-five dollars (\$225.00).
(Separate license for collection agency.)

- (69) Credit union.
(No business tax receipt is required when issued a state or federal charter.)
- (70) Dairy, milk distributor, or producer.
Headquartered in city, distributor: one hundred dollars (\$100.00).
First delivery vehicle: thirty-one dollars and twenty-five cents (\$31.25).
Each additional vehicle: eighteen dollars and seventy-five cents (\$18.75).
- (71) Dance hall or ballroom.
- a. For profit (no food—dancing only): one hundred dollars (\$100.00).
 - b. In connection with the sale of food or beverages (in addition to licenses for sale of food and beverages):
Seating capacity of thirty (30) or less: one hundred dollars (\$100.00).
Seating capacity of thirty-one (31) to sixty (60): one hundred twenty dollars (\$120.00).
Seating capacity of sixty-one (61) to one hundred (100): one hundred seventy dollars (\$170.00).
Seating capacity of over one hundred (100): two hundred twenty dollars (\$220.00).
(Note: Must have a health certificate) same as club requirements for approval of business tax receipt.
- (72) Day nursery, day care center for children (kindergarten): fifty dollars (\$50.00).
- (73) Decorators.
- a. Interior: one hundred dollars (\$100.00).
 - b. Itinerant: two hundred dollars (\$200.00).
- (74) Demonstrating, selling, or taking orders for any goods, wares, or merchandise from booths, exhibits or other similar devices.
- a. Exhibition facility. The operation of a facility such as, but not limited to, convention centers, hotels, or shopping malls: one thousand two hundred fifty dollars (\$1,250.00).
 - b. Open air markets, or flea markets in which exhibitions/trade shows are regularly held. (See section 13-213).
- (75) Department stores (see basic schedule Class 29).
Separate license required for sale of petroleum products by pump; vehicle repair shops; restaurants and leased or concession departments.
- (76) Detectives, investigators, patrol and guard services and polygraph operators (under contract or other).
- a. Detectives and investigators, when not connected with an agency (except that a detective or investigator holding a Class C license issued under F.S. ch. 493 shall pay no fee), each: one hundred dollars (\$100.00).
 - b. Detectives and investigators, agency: one hundred fifty dollars (\$150.00).
 - c. Patrol and guard services.
First five (5) patrolmen: sixty-two dollars and fifty cents (\$62.50).
Each additional patrolman: six dollars and twenty-five cents (\$6.25).
 - d. Polygraph operator (deception examiner), each: one hundred dollars (\$100.00).
- (77) Distributor not otherwise specified: one hundred dollars (\$100.00).
Does not stock merchandise but orders for customers only. (Otherwise, classified retail or wholesale merchant Class 152.)
- (78) Divine healers (see spiritualists Class 193).
- (79) Dressmakers; seamstresses.
- a. Shop: forty dollars (\$40.00).
 - b. Each additional employee over one (1): ten dollars (\$10.00).
- (80) Drive-in theaters: two hundred dollars (\$200.00).
- (81) Dry cleaners (see laundries Class 136).
- (82) Electronic data processing and service company (computer programming, software—See

- repair and service Class 178), including all types of accounting, printing, computing and other services done by electronic equipment, each location: one hundred seventy-five dollars (\$175.00).
- (83) Embalmer (see funeral home Class 99).
- (84) Employment agency.
- a. General employment agency, model agency, nurses registry, convalescent sitters agency, domestic help agency, theatrical employment agency, baby-sitter agency, etc.: one hundred fifty dollars (\$150.00).
- (85) Engraver (see manufacturer Class 149).
- (86) Equipment, machinery, etc.
- Leasing or rental other than licensed vehicles and including TV, radios, other than coin-operated, other than earth machine equipment. Including data processing computers, stamping, fabricating, office equipment, tools, machinery, furniture, etc. (see basic schedule Class 29).
- a. Earth machine equipment parking/storage sales, lease or rental.
 1. One (1) to twenty (20) units/machines/equipment: four hundred seventy-five dollars (\$475.00).
 2. Twenty-one (21) or more units/machines/equipment: six hundred thirty-five dollars (\$635.00).
- (87) Express companies.
- Railway, freight, or air express companies: two hundred fifty dollars (\$250.00).
- (88) Exterminator (see pest exterminator Class 88).
- (89) Feed dealers (see basic schedule Class 29).
- (90) Fertilizer, agency (plant or dealership) (see basic schedule Class 29).
- (91) Finance, small loan companies, money lenders, salary purchasers, etc.
- One (1) to four (4) employees: twenty dollars (\$20.00).
- Five (5) to nine (9) employees: forty dollars (\$40.00).
- Ten (10) to nineteen (19) employees: sixty dollars (\$60.00).
- Twenty (20) or more employees: eighty dollars (\$80.00).
- (92) Fire protection service companies (see basic schedule Class 29).
- (93) Fish, oysters, or other seafoods or poultry.
- a. Retail (see basic schedule Class 29).
 - b. Wholesale (see basic schedule Class 29).
- (94) Florists (see basic schedule Class 29).
- (95) Foundry machine shop, boiler works, metal or iron works, armature winding and motor repairing and other like business (see repair and service Class 178).
- (96) Franchise dealers: two hundred dollars (\$200.00).
- (97) Fruit and vegetable stands (including truck sales when permitted (see peddlers Class 167)).
- (98) Fund raising events; no license required. (Includes nonprofit organizations and/or persons sponsoring fund raising activities, or events, i.e., police officers' and firefighters' ball, carnivals, auctions, sale of Christmas trees or other tangibles, talent or other shows, etc., as approved by the city commission. In those instances, wherein a professional group is engaged to assist in the fund raising and the professional group is paid more than ten (10) percent of the amount raised or to be raised; the professional group shall be required to obtain a license in the amount of fifty (50) percent of the appropriate classification listed in this chapter. No amount of the license fee shall be deducted from the share of monies due the nonprofit organization or person.)
- (99) Funeral homes: one hundred dollars (\$100.00).
- (100) Furniture, packer or shipper: one hundred dollars (\$100.00).
- (Not manufacturing.)
- (101) Garment industry (manufacturing/selling/cutting/etc.).
- Number of employees:
- One (1) to four (4): one hundred dollars (\$100.00).

- Five (5) to nine (9): one hundred fifty dollars (\$150.00).
- Ten (10) to nineteen (19): two hundred dollars (\$200.00).
- Twenty (20) or more: two hundred fifty dollars (\$250.00).
- (102) Gas distributor, manufactured or natural.
- Natural, pipeline, manufactured: six hundred twenty-five dollars (\$625.00).
 - Bottled—L.P.G.: two hundred seventy-five dollars (\$275.00).
 - L.P.G. peddler (see peddler Class 167).
- (103) Gasoline and oil dealers; insurance required.
- Gas and oil wholesale bulk dealers: three hundred dollars (\$300.00).
 - Gasoline only, bulk: two hundred seventy-five dollars (\$275.00).
 - Gasoline, oil and fuel oil, bulk: four hundred fifty dollars (\$450.00).
 - Fuel oil only, bulk: two hundred seventy-five dollars (\$275.00).
 - Gasoline or fuel oil, peddlers (see peddlers Class 167).
- (104) Gasoline service stations (see service station Class 187).
- (105) Glass sales and service, to include mirror reworking and repairing (see basic schedule Class 29).
- (106) Groceries (see basic schedule Class 29).
- (107) Guns, dealers in arms, firearms (see arms Class 17).
- (108) Halls for hire, each, per year: one hundred dollars (\$100.00).
- (109) Health lectures (no proration): one hundred dollars (\$100.00).
- (110) Health spas; includes gymnasiums, physical culture and slenderizing salons: two hundred twenty-five dollars (\$225.00).
- (Masseur/masseuse requires separate license unless salaried—See masseur Class 151).
- (111) Hearing aids (not otherwise licensed) (see basic schedule Class 29).
- (112) Holding company: two hundred twenty-five dollars (\$225.00).
- (113) Hospitals, animal (see kennels Class 132).
- (114) Hospitals, sanitariums, nursing homes, convalescent homes operated for profit.
- Ten (10) rooms or less: sixty-two dollars and fifty cents (\$62.50).
- Each additional room: six dollars and twenty-five cents (\$6.25).
- (115) Hotels, motels, motor courts, apartments, rooming houses, or similar establishments held out for rent; annual license tax for apartments, hotels and motels and rooming houses shall be ten dollars (\$10.00) for each living unit containing one (1) bedroom and five dollars (\$5.00) for each additional bedroom.
- Exemptions:
 - One (1), two (2) or three (3) family dwelling houses, or dwelling units and places renting three (3) bedrooms or less unless regularly rented or held out to persons not legal residents of the city, and who rent for less than six (6) months.
 - Hotels or motels having convention rooms, halls, or facilities for hire not otherwise licensed shall be licensed as halls for hire. No additional license shall be required for booked entertainment, trade shows, etc., with the exception of those instances wherein a lessee engages in sales/service and money or goods/services are exchanged on the premises.
- (116) House cleaning, washing (see janitorial services Class 129).
- (117) House moving: two hundred dollars (\$200.00). (Seven thousand five hundred dollars (\$7,500.00) surety bond and certificate of competency required.)
- (118) Hypnotists: fifty dollars (\$50.00).
- (119) Ice cream manufacturing (see manufacturing Class 149).
- (120) Ice cream vendors (see peddlers Class 167).

- (121) Ice manufacturing or producing (see manufacturing Class 149).
- a. Icing of refrigerated trucks, rail cars (see repair and service Class 178).
- (122) Industrial waste collectors (see collection service Class 64).
- (123) Instructors, tutors, teachers of music, piano, dancing, tutoring, etc. (other than schools), each: forty dollars (\$40.00).
- (124) Insurance companies.
- a. Each office of an agent, a general agent, or an independent agency which represents a life, disability, property, casualty, surety, marine or title insurance company, the agent or agency shall pay the license fee indicated for each company represented: fifty dollars (\$50.00).
 - b. Each insurance vending machine; each location: fifty dollars (\$50.00).
 - c. Insurance agents, solicitors, adjusters; each person: thirty dollars (\$30.00).
(Includes general lines agents, life agents, disability agents, solicitors, adjusters, service representatives, or managing general agents as defined in F.S. ch. 626. Each must hold a valid license or permit issued by the state.)
 - d. Insurance agents; limited (each person): thirty dollars (\$30.00).
(Includes those persons authorized to execute bail bonds as limited surety agents or professional bondsmen and includes those persons authorized to transact a limited class of business in motor vehicle physical damage insurance; personal accident insurance; baggage insurance; credit life or disability insurance; and credit insurance as defined in F.S. ch. 626. Each must hold a valid license issued by the state.)

Note: Each person, as defined in subsections (124)c and d of this section will need only one (1) license regardless of number of lines represented.
 - e. Any insurance company, district or sales office or any insurance company engaging in, transacting or doing business within the city without maintaining a local office, or otherwise not provided for herein: two hundred dollars (\$200.00).
 - f. Insurance premium finance company excluding credit unions, banks and other lending institutions: one hundred dollars (\$100.00).
 - g. Fire and casualty, home or regional office headquartered in city, each: three hundred dollars (\$300.00).
 - h. Life, accident and health, hospitalization, home, or regional office headquartered in city, each: three hundred dollars (\$300.00).
 - i. Surety, guarantee, etc., home or regional office headquartered in city, each: three hundred dollars (\$300.00).
 - j. Title insurance companies, when not licensed as abstractors: two hundred twenty-five dollars (\$225.00).
- (125) Interior decorators (see decorators, interior Class 73).
- (126) Introductory service; unmarried opposite sex only, not to include escort service, lonely hearts club or marriage bureau or other business of a like nature. For six (6) month periods, renewal contingent upon the lack of substantial complaints. License and all personnel shall be subject to a satisfactory police investigation to include fingerprints, photograph, and FBI check. Prior conviction of a crime involving moral turpitude shall be grounds for the refusal of a license. Conviction of a licensee or any personnel of a crime involving moral turpitude shall be grounds for revocation of a license. Applicants of licenses shall have the right of appeal to the city commission in the event of a refusal to issue or in the event of revocation of a license.

For the initial six (6) month period or fraction thereof: three hundred twenty-five dollars (\$325.00).

For each additional six (6) month period or fraction thereof: one hundred twenty-five dollars (\$125.00).

- (127) Investment counselor or advisor (See finance Class 91).
- (128) Itinerants.
- a. Merchant or vendor, any person either principal of agent, temporarily engaged in the sale of goods, wares, or merchandise, occupying any building or structure for the sale thereof: three hundred ninety dollars (\$390.00).
 - b. Sign painters (bond and certificate of competency required): one hundred fifty dollars (\$150.00).
- (129) Janitorial services, including contract, individual, window cleaning, house and office cleaning, commercial, industrial, etc.
- a. Firm or individual: fifty dollars (\$50.00).
 - b. Plus each employee over one (1) (one thousand dollars (\$1,000.00) surety bond required): six dollars and twenty-five cents (\$6.25).
- (130) Jewelry.
- a. Merchants (see basic schedule Class 29).
 - b. From stand or concession to include gold wire workers, no license certificate issued for less than a year: one hundred dollars (\$100.00).
 - c. Repair shop (see repair shop Class 178).
 - d. Auctioneer (see auctioneer Class 21).
 - e. Junk (see junk dealers Class 131).
- (131) Junk dealers, gatherer (see salvage/junk dealers Class 182).
- (132) Kennels, animal: one hundred dollars (\$100.00).
- (Keeping and caring for five (5) or more animals on premises for profit shall constitute a kennel.) Professional license required for each veterinarian.
- a. Pets and related supplies; sales (see basic schedule Class 29).
 - b. Pet care, washing and grooming (see repair and service Class 178).
- (133) Laboratories; blood and plasma laboratories must comply with regulation issued by the Federal Food and Drug Administration.
- a. Chemical or other testing laboratories: one hundred fifty dollars (\$150.00).
 - b. Those laboratories not otherwise classified where work is done, parts made or assembled, or analyses made for the medical, dental, or optical professions: one hundred fifty dollars (\$150.00).
- (134) Land and development companies, housing agency in city; each location: one hundred fifty dollars (\$150.00).
- (135) Landscaping, except contractors, architects, engineers.
- a. One (1) to four (4) employees: fifty dollars (\$50.00).
 - b. Five (5) to nine (9) employees: one hundred dollars (\$100.00).
 - c. Ten (10) and over: one hundred fifty dollars (\$150.00).
- (136) Laundries and dry cleaners.
- a. Laundries and dry cleaners operated within city; to include linen, uniform and towel supply and service (see repair and service Class 178).
 - b. Laundry agency or branch office where laundry or dry cleaning is left or work solicited; each location or pick up station: one hundred dollars (\$100.00).
 - c. Laundry; self-serve or coin-operated: one hundred dollars (\$100.00).
- Plus each machine (all types): three dollars and seventy-five cents (\$3.75).
- (137) Leasing (see automobile Class 23 or equipment Class 86).
- (138) Lecturers (no proration): one hundred dollars (\$100.00).
- (139) Lettershop (see repair and service Class 178).
- (140) Linen, towel supply and uniform service (see repair and service Class 178).
- (141) Liquefied petroleum gas (see gas Class 102).
- (142) Liquor (see alcoholic beverages Class 12).

- (143) Loan companies (see finance Class 91).
- (144) Locksmith, keysmith (see basic schedule Class 29).
- (145) Lumber and building materials, dealer (see basic schedule Class 29).
 Note: Manufacturer's license also required when concrete, concrete blocks, etc., are manufactured.
- (146) Lunchstands, movable or portable: one hundred dollars (\$100.00).
 (No proration) (see also, peddlers Class 167).
- (147) Machine and repair shops (see repair shops Class 178).
- (148) Manicurist, each: twenty dollars (\$20.00).
- (149) Manufacturer, fabricator, processing, assembling, shipping:
 When operated solely by owner: fifty dollars (\$50.00).
 One (1) to four (4) employees: seventy-five dollars (\$75.00).
 Five (5) to nine (9) employees: one hundred twenty-five dollars (\$125.00).
 Ten (10) to nineteen (19) employees: one hundred seventy-five dollars (\$175.00).
 Twenty (20) or more employees: two hundred twenty-five dollars (\$225.00).
 Manufacturer may wholesale the products that he manufactures from his place of business without purchasing a wholesale license.
- (150) Manufacturer's agent (see agencies Class 8).
- (151) Masseur or masseuse, each: fifty dollars (\$50.00).
 (Certificate from state required before license certificate is issued.)
- (152) Merchants, retail and wholesale (see basic schedule Class 29).
 - a. *Sale or delivery of merchandise by use of vehicle.* Persons using a vehicle for the sale or delivery of merchandise at wholesale and not having an established place of business licensed to do such wholesale business, shall for the purpose of this article be classified as wholesale merchants and each vehicle used shall be considered a separate place of business and required to be licensed as such (also see itinerant), each vehicle: one hundred dollars (\$100.00).
 - b. *Merchandise brokers.* Every commission merchant, merchandise or manufacturer's broker or firm doing business on a commission basis or for other compensation as a broker, commission merchant or manufacturer's wholesaler's or broker's agent, who participates in the benefits ensuing from or accruing out of such sales and collects money therefor, in an amount in excess of one hundred dollars (\$100.00) gross commissions annually shall pay thereon a license fee of: one hundred dollars (\$100.00).
- (153) Messenger service or package delivery service; other than licensed telegraph companies and not to be confused with transfer or pick-up and delivery service (ten (10) pound maximum).
 Each vehicle: thirty-one dollars and twenty-five cents (\$31.25).
- (154) Milk distributors (see dairies Class 70).
- (155) Mobile homes (see trailer parks Class 200).
- (156) Mortgages.
 - a. Broker (see professional Class 173).
 - b. Mortgage solicitor: thirty dollars (\$30.00).
 (Includes those persons not licensed as a mortgage broker and who are qualified under provisions of F.S. ch. 494, and hold a state certificate.)
- (157) Motels (see hotel, motel Class 115).
- (158) Music instructor or teacher (see instructors Class 123).
- (159) Newsstands, including magazines, books, tobacco, etc.; each (see basic schedule Class 29).
- (160) Novelty works, wood, plastic, metal and synthetics (see manufacturers Class 149).
- (161) Opticians (see professional Class 173).

(162) Packer and shipper (see manufacturers Class 149).

(163) Packing houses, canning plants and such (see manufacturers Class 149).

(164) Painters or paper hangers (see contractors Class 66).

(165) Parking (see parking/auto and aircraft Class 23).

(166) Pawnbroker (no proration): two hundred fifty dollars (\$250.00).

(Selling goods other than those pledged must pay additional license as other merchants.)

(167) Peddlers (no proration license available).

a. Each vehicle: one hundred dollars (\$100.00).

(168) Pest exterminators and lawn sprayers: one hundred dollars (\$100.00).

Plus each vehicle: thirty dollars (\$30.00).

(169) Photo finishing.

a. In connection with other licensed business (no additional license required).

b. Pick-up station separate from other licensed business: fifty dollars (\$50.00).

(170) Photography.

a. Photographer, freelance: one hundred dollars (\$100.00).

b. Photographic studio: fifty dollars (\$50.00).

(171) Plating, copper, nickel, silver, etc. (see repair and service Class 178).

(172) Printing, engraving, lithography or silkscreening—Not connected with newspaper plant (see manufacturer Class 149).

(173) Professional. The following practitioners are classed as professional and each person engaged in the practice of any profession listed below shall pay according to the following schedule:

One (1) to four (4) employees: forty dollars (\$40.00).

Five (5) to nine (9) employees: sixty dollars (\$60.00).

Ten (10) to nineteen (19) employees: eighty dollars (\$80.00).

Twenty (20) or more employees: one hundred dollars (\$100.00).

a. Accountant, certified public.

b. Architect.

c. Attorney.

d. Broker, real estate and other.

e. Engineers.

1. Architectural.

2. Chemical.

3. Drainage.

4. Electrical or electronic.

5. Industrial.

6. Management.

7. Safety.

8. Civil.

9. Mechanical.

10. Consulting.

11. Designing.

12. Others.

f. Medical.

1. Chiropractic physicians (D.C.).

2. Chiropractors.

3. Dentists, including orthodontic surgeons, etc. (D.D.S.).

4. Naturopathic surgeons (N.D.).

5. Optometrists.

6. Opticians and oculists.

7. Physicians and surgeons (M.D.), (D.S.C.).

8. Podiatrists.

9. Veterinarians.

10. Pathologists.

11. Others.

g. Psychological services.

1. Clinical social worker.

2. Marriage and family therapist.

3. Mental health counselor.

4. Psychologist.

5. School psychologist.

(174) Professional bondsman (see bail bondsman Class 25).

(175) Public stenographer, typing; service including notary public: forty dollars (\$40.00).

(No license is required for a notary public when the notary is employed by an existing business or governmental agency.)

(176) Real estate.

a. Broker (see professional Class 173).

b. Salesman (see professional Class 173).

c. Appraiser (see professional Class 173).

(177) Reducing machines or salons, including use of machines, electronics, etc. (see health spa Class 110).

(178) Repair and service shops:

One (1) to four (4) employees: seventy-five dollars (\$75.00).

Five (5) to nine (9) employees: one hundred twenty-five dollars (\$125.00).

Ten (10) to nineteen (19) employees: one hundred seventy-five dollars (\$175.00).

Twenty (20) or more employees: two hundred twenty-five dollars (\$225.00).

(179) Restaurants, cafeterias, lunchrooms.

One (1) to ten (10) seats: eighty-five dollars (\$85.00).

Eleven (11) and more seats (each additional seat): ninety-five cents (\$0.95).

a. Drive-in and take-out service; additional: eighty-five dollars (\$85.00).

b. Catering service (see catering Class 53).

c. Bars, lounges, package stores, taverns, etc., where no food is prepared or served (see basic schedule Class 29).

(180) Rug and carpet cleaners (see repair and service Class 178).

(181) Sales, rummage; permits for rummage sales shall be issued by the city manager, subject to the following requirements:

a. A permit application needs to be filed with the city manager's office ten (10) working days prior to the date of the sale in order to obtain the required approval by necessary city departments.

b. The sale shall be conducted in such a manner as to neither block nor impede the free flow of pedestrian traffic or vehicular traffic on public sidewalks, parkways, or streets.

(182) Salvage/junk dealers; two hundred fifty dollars (\$250.00) first twenty thousand (20,000) square feet, and twenty dollars (\$20.00) per additional two thousand (2,000) square feet.

(183) Schools, private, operating for profit; dancing, business or commercial, beauty or barber, music, physical ed., etc.:

One (1) to twenty-five (25) students: fifty dollars (\$50.00).

Twenty-six (26) to fifty (50) students: one hundred dollars (\$100.00).

Fifty-one (51) to seventy-five (75) students: one hundred fifty dollars (\$150.00).

Seventy-six (76) students and over: two hundred dollars (\$200.00).

(Annual certificate of use required.)

(184) Metals.

a. Scrap metal processing/recycling: three hundred dollars (\$300.00).

b. Precious metal processing/recycling: six hundred dollars (\$600.00).

(185) Septic tanks.

a. Manufacture and installation, including connection to soil pipe, three (3) feet from building (see manufacturer Class 149).

b. Service and repair: one hundred dollars (\$100.00).

(One-thousand-dollar (\$1,000.00) surety bond required.)

(186) Service stations.

Gasoline sales, base fee: one hundred twenty-five dollars (\$125.00) and five dollars (\$5.00) per nozzle.

Auto and truck towing (per unit); additional: seventy-five dollars (\$75.00).

Minor repair; additional: seventy-five dollars (\$75.00).

Vehicles for hire; additional: fifty dollars (\$50.00).

(187) Sewing machine dealer (see basic schedule Class 29).

(188) Sign shop (see repair and service Class 178).

(189) Small loan companies (see finance Class 91).

(190) Social clubs (see clubs Class 59).

(191) Solicitors and canvassers: one hundred dollars (\$100.00).

(192) Spiritualist mediums : one thousand five hundred dollars (\$1,500.00).

(193) Stenographer, public (see public stenographer Class 175).

(194) Storage and warehouse or public storage.

a. Five thousand (5,000) square feet or less: fifty dollars (\$50.00).

Each additional one thousand (1,000) square feet: three dollars and seventy-five cents (\$3.75).

b. Boats, auto, truck, trailer, etc., parking, lot/garage (private/commercial/industrial) five thousand (5,000) square feet or less: two hundred dollars (\$200.00).

Four dollars (\$4.00) per each additional one thousand (1,000) square feet.

Note: Separate storage warehouses operated from one (1) headquarters shall be required to obtain only one (1) certificate which shall be kept at the headquarters, and which shall show all locations, but the aggregate number of square feet of floor space in all such separate warehouses shall be considered as one (1) total area of square feet of floor space for the purpose of determining the amount of the license tax imposed.

(195) Swimming pools.

a. Construction (see contractors Class 66).

b. Maintenance and repair other than automobile (see repair and service Class 178).

(196) Tailor, including rentals (see basic schedule Class 29).

(197) Telephone answering service: two hundred twenty-five dollars (\$225.00).

(198) Telephone solicitation.

a. Any person, firm or corporation soliciting business by telephone for others, each: six hundred twenty-five dollars (\$625.00).

b. Solicitation by telephone for business or customers, each: three hundred seventy-five dollars (\$375.00).

(In addition to other licenses. Does not apply to telephone or telegraph companies, or to business establishments who, through their regular employees, supply business information to their regular customers or patrons.)

(199) Trailer parks, mobile homes.

Prior express approval of city commission required.

One (1) to one hundred (100) spaces, each: three dollars and seventy-five cents (\$3.75).

Each additional: two dollars and fifty cents (\$2.50).

a. Trailers, rental; each: thirty-one dollars and twenty-five cents (\$31.25).

(200) Transfer company, trucks for hire, pickup and delivery service, movers (see unclassified Class 203).

(201) Travel agency: one hundred dollars (\$100.00).

(202) Tree trimmers, tree surgeons and service: one hundred dollars (\$100.00).

(One thousand dollars (\$1,000.00) bond required.)

(203) Unclassified, not otherwise set out herein.

Number of employees:

One (1) to four (4): one hundred dollars (\$100.00).

Five (5) to nine (9): one hundred fifty dollars (\$150.00).

Ten (10) to nineteen (19): one hundred seventy-five dollars (\$175.00).

Twenty (20) or more: two hundred twenty-five dollars (\$225.00).

(204) Upholstering or furniture repair and refinishing (see repair shops Class 178).

(205) Reserved.

(206) Wrecker service/towing.

Each vehicle: thirty dollars (\$30.00).

(Code 1983, § 2-654; Ord. No. 13-08, § 2, 4-10-2013; Ord. No. 15-13, § 2, 7-8-2015; Ord. No. 15-15, § 2, 7-8-2015)

Sec. 2-655. Community development fees.

(a) Abandoned building/vacant property list: five dollars (\$5.00).

(b) Administrative fee, letters, copies, mail outs, etc.: fifty dollars (\$50.00).

(c) Administrative variances.

(1) Initial request: two hundred twelve dollars and fifty cents (\$212.50).

(2) Additional requests, each: one hundred two dollars (\$102.00).

(d) Advertisement newspaper and preparation: seven hundred dollars (\$700.00).

(e) Alcohol beverage application.

(1) One (1) or two (2) administrative per se (APS): one hundred dollars (\$100.00).

(2) Three (3) APS: five hundred dollars (\$500.00).

(3) One (1) or two (2) consumption on premises (COP): two hundred fifty dollars (\$250.00).

(f) Annexation request.

(1) Less than ten (10) acres: five hundred dollars (\$500.00).

(2) Ten (10) acres or more: five hundred dollars (\$500.00).

(g) Applicant appeal.

(1) Appeal by applicant: one hundred two dollars (\$102.00).

(2) Appeal by aggrieved party: two hundred twelve dollars and fifty cents (\$212.50).

(h) Certificate of use.

(1) Residential: one hundred dollars (\$100.00).

(i) Comprehensive plan amendment.

(1) FLUM, future land use map: six thousand dollars (\$6,000.00).

(2) Text: two thousand eight hundred five dollars (\$2,805.00).

Advertising and notice, comprehensive plan: seven hundred dollars (\$700.00).

(j) Conditional use permit.

(1) No plans: one hundred dollars (\$100.00).

(2) With plans: one hundred fifty dollars (\$150.00).

(k) Copies of documents.

(1) Copies of aerial maps, black/white: twenty-five dollars (\$25.00).

(2) Copies of aerial maps, color: forty dollars (\$40.00).

(3) Copy of city Code of Ordinances/zoning book: forty dollars (\$40.00).

(4) Copy of city comprehensive plan book: seventy-five dollars (\$75.00).

(5) Copy of plan; full size, cost to city plus twenty-five-dollar (\$25.00) administration fee.

(6) Large print report maps, thirty-six (36) inches by forty-eight (48) inches: fifty dollars (\$50.00).

(7) Photo copies, per page, black and white—Specialties: one dollar (\$1.00).

(8) Photo copies, per page, color—Specialties: two dollars (\$2.00).

(l) Copies of meeting minutes.

(1) Summary copies of minutes, fee per page: one dollar (\$1.00).

Non-certified copy: twenty-five dollars (\$25.00).

(m) Developer's agreement.

(1) Initial submission: three thousand five hundred dollars (\$3,500.00).

(2) Modification: five hundred dollars (\$500.00).

- (3) Restrictive covenant: one thousand five hundred dollars (\$1,500.00).
- (n) Drainage plan review.
 - (1) Preliminary review: one hundred fifty dollars (\$150.00).
 - (2) Final review: seventy-five dollars (\$75.00).
Seventy-five-dollar (\$75.00) fee per additional percentage of community.
- (o) Education compact, development revenue up to five thousand dollars (\$5,000.00) annually: five (5) percent.
- (p) Environmental review analysis: three hundred dollars (\$300.00).
- (q) Fill permit request application.
 - (1) Initial application: one hundred dollars (\$100.00).
 - (2) Supplemental review: seventy-five dollars (\$75.00).
Seventy-five-dollar (\$75.00) fee per additional half-hour.
- (r) Housing authority board application: two hundred fifty dollars (\$250.00).
- (s) Landlord tenant permit.
 - (1) Permit fee, per dwelling unit: fifty-five dollars (\$55.00).
 - (2) Permit renewal, annually: forty-five dollars (\$45.00).
 - (3) Re-inspection fee, per dwelling unit: twenty-five dollars (\$25.00).
- (t) Minutes.
 - (1) Report of transcribed minutes, certified copy: fifty dollars (\$50.00).
 - (2) Summary copies of minutes, fee per page: one dollar (\$1.00).
- (u) Planning and zoning board.
 - (1) Application—Non-profits/residential/property homeowner: four hundred dollars (\$400.00).
 - (2) Application—Business/commercial: five hundred dollars (\$500.00).
- (v) Plat.
 - (1) Subdivision of plat (recorded or unrecorded): one thousand dollars (\$1,000.00).
 - (2) Tentative plat: one thousand dollars (\$1,000.00).
 - (3) Final plat: one thousand fifty dollars (\$1,050.00).
 - (4) Waiver of plat: two thousand two hundred eighty-five dollars (\$2,285.00).
- (w) Property list, city-owned: five dollars (\$5.00).
- (x) Records search of property owner.
 - (1) Initial search, record search one (1) hour: one hundred fifty dollars (\$150.00).
 - (2) Supplemental property search, seventy-five dollars (\$75.00) per additional half-hour: seventy-five dollars (\$75.00).
- (y) Reproduction of graphic arts rendering: one hundred dollars (\$100.00).
- (z) Sign plan review: two hundred twelve dollars and fifty cents (\$212.50).
- (aa) Site plan review.
 - (1) Administrative site plan review: five hundred dollars (\$500.00).
 - (2) Administrative site plan review; revisions: one hundred dollars (\$100.00).
 - (3) Preliminary site plan review: one hundred fifty dollars (\$150.00).
 - (4) Final site plan review; DRC.
 - a. Existing structures (re-use/new use): four hundred dollars (\$400.00) plus twenty-five dollars (\$25.00)/unit.
 - b. Mixed-use development: four hundred dollars (\$400.00) plus twenty-five dollars (\$25.00)/unit.
 - c. New development: four hundred dollars (\$400.00) plus twenty-five dollars (\$25.00)/unit.
 - d. Triplex or multifamily residential: four hundred dollars (\$400.00) plus twenty-five dollars (\$25.00)/unit.

(bb) Special exception; no plans: one hundred dollars (\$100.00).

(cc) Staff plans review.

(1) Preliminary staff plans review, first hour: one hundred fifty dollars (\$150.00).

(2) Supplemental staff plans review, fifty dollars (\$50.00) per additional half-hour: fifty dollars (\$50.00).

(3) Final staff review: one hundred dollars (\$100.00).

(dd) Staff time per hour, ancillary users: twenty-five dollars (\$25.00).

(ee) Telecommunications permit, new towers, antennas, or upgrades: one thousand two hundred seventy-five dollars (\$1,275.00).

(ff) Tree removal permit: seventy-five dollars (\$75.00) plus twenty-five dollars (\$25.00) per tree.

First tree, each additional tree thereafter.

(gg) Unity of title: five hundred dollars (\$500.00).

(hh) Vacate street request: two thousand seven hundred fifty dollars (\$2,750.00).

(ii) Variances: one thousand three hundred sixty dollars (\$1,360.00).

(jj) Planning and zoning board application, commercial apartment application, industrial/PUDs residential building: five hundred dollars (\$500.00).

(kk) Zoning certification letter.

(1) Zoning certification letter: one hundred dollars (\$100.00).

(2) Zoning certification letter with analysis and research: two hundred dollars (\$200.00) plus seventy-five dollars (\$75.00) per hour.

(ll) Zoning maps.

(1) Twenty-two (22) by seventeen (17) black/white: twenty-five dollars (\$25.00).

(2) Twenty-two (22) by seventeen (17) color: thirty dollars (\$30.00).

(3) Eleven (11) by seventeen (17) black/white: ten dollars (\$10.00).

(4) Eleven (11) by seventeen (17) color: fifteen dollars (\$15.00).

(5) Eight and one-half (8 ½) by eleven (11) black/white: two dollars (\$2.00).

(6) Eight and one-half (8 ½) by seventeen (17) color: five dollars (\$5.00).

(mm) Zoning and land development ordinance text amendment.

(1) General standards: one thousand seven hundred dollars (\$1,700.00).

(2) Permitted uses: three thousand four hundred dollars (\$3,400.00).

(nn) Zoning designation change (rezoning): seven thousand dollars (\$7,000.00).

(Code 1983, § 2-655; Ord. No. 13-08, § 2, 4-10-2013; Ord. No. 15-13, § 2, 7-8-2015; Ord. No. 2020-02, § 2, 1-8-2020)

Sec. 2-656. Public works fees.

(a) Plan review.

(1) Paving and drainage plan review zero (0) to thirty (30) square yards: two hundred dollars (\$200.00).

Each additional one hundred (100) square yards: forty dollars (\$40.00).

(2) Water and sanitary sewer plan review: two hundred dollars (\$200.00).

(3) Shop drawing review: one hundred dollars (\$100.00).

(4) Expedited plan review.

Residential: two hundred dollars (\$200.00).

Commercial: four hundred dollars (\$400.00).

(b) Re-inspection by city staff.

(1) During regular business hours: fifty dollars (\$50.00).

(2) Outside of regular business hours: two hundred fifty-five dollars (\$255.00).

(c) Driveway construction.

(1) Driveway widths less than twenty (20) feet: fifty dollars (\$50.00).

(2) Driveway widths twenty (20) feet and over: one hundred dollars (\$100.00).

(d) Parking lots.

(1) Per lot or repaving: one hundred fifty dollars (\$150.00).

(2) Re-stripping existing lot: one hundred dollars (\$100.00).

(e) Private sidewalk, curb, gutter.

Per one hundred (100) feet or fraction: fifty dollars (\$50.00).

(f) Private sanitary sewer lift station, annually: one hundred dollars (\$100.00).

(Code 1983, § 2-656; Ord. No. 13-08, § 2, 4-10-2013; Ord. No. 15-13, § 2, 7-8-2015)

Sec. 2-657. Parks and recreation fees.

	<i>Resident/Hourly</i>	<i>Non-Resident/ Hourly</i>	<i>Deposit</i>
1. Sherbondy Park			
a. Pavilion/4-hour minimum	\$30.00	\$35.00	\$50.00
b. Sherbondy Village			
Theater—11:00 a.m.—6:00 p.m.	\$95.00	\$140.00	\$100.00
Evenings	\$155.00	\$205.00	
Saturday	\$155.00	\$205.00	
c. Sherbondy Village			
Multi-purpose room	\$40.00	\$50.00	\$100.00
Multiple days	\$35.00	\$45.00	
Kitchen	\$15.00	\$20.00	
Usage fee—per rental	\$25.00	\$25.00	
d. Sherbondy Village—Gymnasium	\$75.00	\$105.00	\$200.00
2. Segal Park—4-hour minimum			
a. Pavilion (each)	\$25.00	\$30.00	\$50.00
b. Helen Miller Center			
Multi-purpose room	\$40.00	\$50.00	\$100.00
Usage fee—per rental	\$25.00	\$25.00	
3. Ingram Park—4-hour minimum			
a. Outside	\$25.00	\$30.00	\$50.00
4. Historic City Hall Garden—4-hour minimum	\$50.00	\$75.00	\$200.00
5. Deposit is refunded if rental is cancelled no more than two days prior to rental. If cancelled less than two days prior to event, fifty percent of the deposit will be refunded.			
6. Fifty percent of deposit will be refunded if the facility is returned clean.			
7. Only credit cards accepted for rental payments.			
8. Reservations are on a first come first served basis, must be completed and paid, and granted ten days prior to the event. Any reservation requests submitted less than ten days prior to the event will be subject to a \$50.00 expedited fee.			
9. Proof of residency is required. All rentals, excluding residents, must show proof of certificate of liability insurance.			
10. The following are prohibited on the park: water slides, trains, kiddy rides.			

	<i>Resident/Hourly</i>	<i>Non-Resident/ Hourly</i>	<i>Deposit</i>
11. The city reserves the right to call for additional police if needed and the renter will be charged a fee which will be paid before the event is completed.			
12. All rentals must be taken between 11:00 a.m. to 5:00 p.m. daily, Monday through Sunday, unless otherwise written.			
13. All rentals are four hours plus one hour for set up and one hour for cleanup.			

(Code 1983, § 2-657; Ord. No. 13-08, § 2, 4-10-2013; Ord. No. 15-13, § 2, 7-8-2015)

Sec. 2-658. Miscellaneous fees.

(a) *Police department.*

- (1) One (1) sided document, per page: fifteen cents (\$0.15).
- (2) Two (2) sided document, per page: twenty cents (\$0.20).
- (3) Police report, per page: fifteen cents (\$0.15).
- (4) Certified copies, per page: one dollar (\$1.00).
- (5) Fingerprinting (residents only), per page: five dollars (\$5.00).
- (6) Off-duty fees, per hour:**

<i>Classification</i>	<i>Regular Rates</i>	<i>Holiday Rates</i>
Officer	\$45.00	\$90.00
Sergeant	\$48.00	\$96.00
Lieutenant	\$50.00	\$100.00
Captain	\$53.00	\$106.00

Off-duty employment performed on the following days will be charged at the holiday rate:

New Year's Eve	New Year's Day
Martin Luther King's Birthday	Christmas Day
Labor Day	Christmas Eve
Thanksgiving Day	President's Day
Day after Thanksgiving	Independence Day
Memorial Day	Veteran's Day

**Off-duty rate includes officer's vehicle.

(7) False alarm fees:

<i>Total False Alarms/Year</i>	<i>Fine</i>	<i>Additional Civil Penalty—Unregistered Alarm</i>
1st	\$0.00	\$50.00
2nd	\$0.00	\$100.00
3rd and 4th	\$50.00	\$250.00
5th and 6th	\$100.00	\$500.00
7th to 10th	\$200.00	\$500.00
10 (each)	\$500.00	\$500.00

(b) *City clerk.*

- (1) One (1) sided document, per page: fifteen cents (\$0.15).
- (2) Two (2) sided document, per page: twenty cents (\$0.20).
- (3) Over one hundred (100) pages: Time and materials.
- (4) E-mail agenda package: No charge.
- (5) Regular (summary) agenda: No charge.
- (6) Copy of full agenda package.
One (1) sided, per page: fifteen cents (\$0.15).
Two (2) sided, per page: twenty cents (\$0.20).
- (7) CD/DVD of minutes/meeting/etc.: ten dollars (\$10.00).
- (8) Major research (time in excess of one-half (½) hour), overhead per hour: twenty dollars (\$20.00).
- (9) Notary public service, per document: five dollars (\$5.00).
- (10) Certified copies, per page: one dollar (\$1.00).

(c) *Film permit.*

- (1) Film permit, per day: one hundred fifty dollars (\$150.00).
- (2) Police officers:
(Separate police off-duty permit required.)

(d) *Other fees.*

- (1) Lien search fee; per folio:
Per property within five (5) to seven (7) days:
sixty-five dollars (\$65.00).
Per property within twenty-four (24) hours:
one hundred dollars (\$100.00).
 - (2) Open permit search:
Per property within five (5) days: fifty dollars (\$50.00).
Per property within twenty-four (24) hours:
one hundred dollars (\$100.00).
 - (3) On-line credit card convenience fee: three dollars (\$3.00).
 - (4) Phone convenience fee: three dollars (\$3.00).
 - (5) Water verification fee: twenty-five dollars (\$25.00).
 - (6) New service fee: fifty dollars (\$50.00).
 - (7) Lien interest fee, based on F.S. § 55.03: four and seventy-five hundredths (4.75) percent.
- (Code 1983, § 2-658; Ord. No. 13-08, § 2, 4-10-2013; Ord. No. 15-13, § 2, 7-8-2015)

Chapter 3

ADVERTISING*

Article I. In General

- Sec. 3-1. Using street, sidewalk, or other public property and property of public utilities prohibited.
- Sec. 3-2. Prohibited on rights-of-way of federal aid projects.
- Sec. 3-3. Marking on street, sidewalk, or other public property and property of public utilities.
- Sec. 3-4. Using property of another.
- Sec. 3-5. Posting on unoccupied or temporary structures.
- Sec. 3-6. Pasting or glueing to vehicle of another.
- Sec. 3-7. Causing obstruction of street or sidewalk.
- Secs. 3-8—3-18. Reserved.

Article II. Signs

- Secs. 3-19-3-34. Reserved.

Article III. Benches

- Sec. 3-35. Reserved.
- Sec. 3-36. Permit required.
- Sec. 3-37. Permit issuance, fee.
- Sec. 3-38. Insurance required.
- Sec. 3-39. Location sketch required.
- Sec. 3-40. Permit expiration if bench not installed.
- Sec. 3-41. Maintenance.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

ARTICLE I. IN GENERAL**Sec. 3-1. Using street, sidewalk, or other public property and property of public utilities prohibited.**

Except as otherwise specifically provided, it shall be unlawful to use any portion of a street, sidewalk, or other public property and property of public utilities in the city for advertising or display purposes.
(Code 1955, § 16-3; Code 1983, § 3-1)

Sec. 3-2. Prohibited on rights-of-way of federal aid projects.

Anything herein to the contrary notwithstanding, it shall be unlawful for any advertising structures, including bus benches, to be installed, constructed, maintained, located or operated within the rights-of-way of any streets, roads or highways within the city, which shall have been constructed with federal aid funds or which shall be designated as federal aid projects, as determined by the state department of transportation.
(Code 1955, § 16-2.1; Code 1983, § 3-2)

County code reference—Similar provisions, § 3-12.

Sec. 3-3. Marking on street, sidewalk, or other public property and property of public utilities.

It shall be unlawful to stencil, write, paint, erect or place advertising signs or notes upon the surface of any street or sidewalk or upon any other public property and property of public utilities, except signs or decorations placed by the city.
(Code 1955, § 16-3; Code 1983, § 3-3)

Sec. 3-4. Using property of another.

It shall be unlawful to use the property of another, including the property of the city, for advertising or display purposes without the consent of the owner or person lawfully entitled to the possession of such property, or his duly authorized agent. For the purpose of this section, the city manager shall be considered the duly authorized agent of the city.
(Code 1983, § 3-4)

Sec. 3-5. Posting on unoccupied or temporary structures.

It shall be unlawful to post advertising matter on any unoccupied building or on any temporary struc-

ture in this city. This section shall not apply to any owner or to any person acting under authority of the owner of such building.

(Code 1955, § 16-3; Code 1983, § 3-5)

Sec. 3-6. Pasting or glueing to vehicle of another.

It shall be unlawful to paste or glue to any vehicle, parked upon any street or public place in this city any handbill, dodger or notice without the consent of the owner of such vehicle.

(Code 1955, § 16-3; Code 1983, § 3-6)

Sec. 3-7. Causing obstruction of street or sidewalk.

It shall be unlawful to conduct any activity in a manner so as to produce an assemblage of spectators and listeners and thereby obstruct or cause the obstruction of any street, highway or sidewalk of this city. This restriction shall not apply to parades or advertising under the authority of a permit obtained from the police department.

(Code 1955, § 16-3; Code 1983, § 3-7)

Secs. 3-8—3-18. Reserved.**ARTICLE II. SIGNS*****Secs. 3-19—3-34. Reserved.****ARTICLE III. BENCHES****Sec. 3-35. Reserved.****Sec. 3-36. Permit required.**

It shall be unlawful for any person, firm, corporation or legal entity to install, place or maintain any benches containing advertising within the right-of-way limits of any street, road, highway or other public property within the city without having first obtained a permit for each such bench.

(Code 1955, § 16-2.1; Code 1983, § 3-36)

***Cross reference**—See Land Development Regulations, article X.

Sec. 3-37. Permit issuance, fee.

The city manager is authorized and directed to issue permits hereunder upon the payment, annually, of a permit fee in an amount as presently established or as hereafter adopted by resolution of the commission.
(Code 1955, § 16-2.1; Code 1983, § 3-37)

Sec. 3-38. Insurance required.

Each permittee hereunder shall secure public liability insurance in the minimum amount of one hundred thousand dollars (\$100,000.00) on the benches and submit evidence of such insurance coverage to the city manager; and no permit shall be issued until this condition has been complied with.
(Code 1955, § 16-2.1; Code 1983, § 3-38)

Sec. 3-39. Location sketch required.

A location sketch shall be submitted to the city manager for approval, when making application for a permit or permits hereunder.
(Code 1955, § 16-2.1; Code 1983, § 3-39)

Sec. 3-40. Permit expiration if bench not installed.

Any bench for which a permit has been issued must be placed on location within thirty (30) days from the date of the issuance of the permit, otherwise the permit shall be void.
(Code 1955, § 16-2.1; Code 1983, § 3-40)

Sec. 3-41. Maintenance.

Benches shall be maintained in a good state of repair and appearance, and the area surrounding benches shall be kept free of debris, high grass, weeds, etc. Failure to properly maintain the bench or the surrounding area shall constitute cause for its removal and cancellation of the permit concerned.
(Code 1955, § 16-2.1; Code 1983, § 3-41)

Chapter 4

ALCOHOLIC BEVERAGES*

Article I. In General

- Sec. 4-1. Definitions.
- Sec. 4-2. Duty to permit police inspections.
- Sec. 4-3. Hours of sale generally.
- Sec. 4-4. Hours for on-premises consumption at certain hotels, restaurants.
- Sec. 4-5. Hours for nightclubs.
- Sec. 4-6. Hours for private clubs.
- Sec. 4-7. Hours for package sales by nightclubs, restaurants, hotels.
- Sec. 4-8. Proximity to churches, parks and schools.
- Sec. 4-9. Proximity of package stores to one another.
- Sec. 4-10. Entertainment prohibited during specified hours; exceptions.
- Sec. 4-11. Vaudeville, theatricals prohibited after 10:00 p.m.; exceptions.
- Sec. 4-12. Curb and car service prohibited.
- Sec. 4-13. Sale of liquor and wine from trucks.
- Sec. 4-14. Setups prohibited on premises not licensed for liquor.
- Sec. 4-15. Public consumption of alcoholic beverages prohibited; exceptions.

Article II. Total or Partial Nudity and Sexual Conduct in Alcoholic Beverage Establishments

- Sec. 4-16. Definitions.
- Sec. 4-17. Total or partial nudity and sexual conduct prohibited.
- Sec. 4-18. Enforcement and penalties.

*State law references—State beverage law, F.S. chs. 561—568; Municipal Home Rule Powers Act, F.S. ch. 166.

ARTICLE I. IN GENERAL**Sec. 4-1. Definitions.**

Words and terms used in this chapter shall have the meanings ascribed to them by F.S. §§ 561.01, 563.01, 564.01 and 565.01.
(Code 1955, § 3-1; Code 1983, § 4-1)

Sec. 4-2. Duty to permit police inspections.

It is unlawful for any person to refuse or prevent or attempt to prevent reasonable inspection of any portion of premises at which alcoholic beverages are dispensed by the police officers of the city during any hour in which the premises are open for business.
(Code 1955, § 3-13; Code 1983, § 4-2)

Sec. 4-3. Hours of sale generally.

Except as otherwise provided herein, a distributor or vendor of alcoholic or intoxicating beverages shall only sell, serve, offer to sell, allow to be consumed, or deliver any alcoholic or intoxicating beverages to any person over the age of twenty-one (21) years:

- (1) Vendors operating stores primarily for the sale of products other than alcoholic beverages (excepting such stores as are nonconforming under the zoning regulations) may make sales of beer and wine in sealed containers for consumption off the premises during such hours as their stores legally remain open for the sale of other goods.

(Code 1955, § 3-34; Code 1983, § 4-3; Ord. No. 86-17, § 1, 1-14-1987; Ord. No. 03-10, § 2, 3-26-2003; Ord. No. 06-07, § 1, 9-13-2006; Ord. No. 06-13, § 1, 10-25-2006; Ord. No. 16-15, § 2, 10-26-2016)

State law reference—Municipal authority to regulate hours of sale, F.S. § 562.45(2).

Sec. 4-4. Hours for on-premises consumption at certain hotels, restaurants.

The above restrictions upon hours of closing shall not apply to sales to patrons by licensed hotels with not less than fifty (50) guestrooms, and by licensed restaurants, having and maintaining accommodations for the service of two hundred (200) or more patrons at tables and occupying more than four thousand (4,000) square feet of space occupied and exclusively devoted to the use of seated customers at tables, provided that such patrons are being served food seated at tables within the

restaurant or hotel dining room enclosures and provided, further, that such sale of alcoholic or intoxicating beverages is strictly incidental to the main business of operating a hotel or restaurant. Such sales must be made within the hotel or restaurant premises, in a room or enclosure where there is no visible bar or other counter set up for the purpose of dispensing alcoholic or intoxicating beverages over the bar or counter to the public, and where no such bar or counter is visible to any person seated within the room or enclosure, and such beverages must be prepared for service within a kitchen or at a fixed service bar, and not otherwise. There shall be no illuminated signs of any kind exhibited or displayed to the outside at hours when other licensees are prohibited from selling beverages, denoting that alcoholic or intoxicating beverages are obtainable in such hotel or restaurant. Provided, however, that nothing in this chapter shall prevent the sales of alcoholic or intoxicating beverages to guests in hotels, as defined herein, within their respective rooms at any hour for consumption on the premises, and provided further, that such hotels and restaurants do not advertise in any way that alcoholic or intoxicating beverages are obtainable in such hotels and restaurants on Sunday.

(Code 1955, § 3-35; Code 1983, § 4-4)

Sec. 4-5. Hours for nightclubs.

Nightclubs shall be governed by the restrictions hereinabove set forth, except that no nightclub or owner, operator or employee thereof shall admit customers to its premises, nor sell, serve, offer to sell, allow to be consumed or delivered any alcoholic or intoxicating beverages to any persons between the hours of 5:00 a.m. and 11:00 a.m. on weekdays and between the hours of 5:00 a.m. and 5:00 p.m. on Sundays. Nightclubs may remain open one-half hour after the sale and consumption of alcoholic or intoxicating beverages is prohibited herein.

(Code 1955, § 3-36; Code 1983, § 4-5)

Sec. 4-6. Hours for private clubs.

Clubs licensed under the provisions of F.S. § 565.02(4), or licensed or defined under any other provisions of the State Beverage Law (F.S. chs. 562, 563, 564, 565, 567, and 568), shall be governed by the restrictions hereinabove set forth, except that no club, officer or employee thereof shall admit customers to its premises, nor sell, serve, offer to sell, allow to be consumed, or deliver any

alcoholic or intoxicating beverages to any persons between the hours of 2:00 a.m. and 7:00 a.m. on weekdays, and between the hours of 2:30 a.m. and 1:00 p.m. on Sundays. The sale of alcoholic or intoxicating beverages by clubs, by either package or sealed container, is prohibited during the hours that the sale is prohibited to other licensees.

The hours of closing set forth in this section shall not apply to New Year's Eve.
(Code 1955, § 3-37; Code 1983, § 4-6)

Sec. 4-7. Hours for package sales by nightclubs, restaurants, hotels.

The sale of alcoholic or intoxicating beverages by nightclubs, restaurants and hotels, by either the package or sealed container, is prohibited during the hours in which the sale is prohibited to other vendors.
(Code 1955, § 3-38; Code 1983, § 4-7)

Sec. 4-8. Proximity to churches, parks and schools.

(a) *Generally.* Hereafter, no intoxicating beverages to be consumed either upon the premises or off the premises shall be sold from a place of business located within one thousand (1,000) feet of a church, park or public school, except within the I-2 and I-3 zoning districts which shall be no less than five hundred (500) feet. Beer and wine to be consumed off the premises may be sold from a place of business located five hundred (500) feet or more from a church, park or public school. The method of measurement that shall be applied to determine whether or not a place of business is within or without the required distance from a church or public school, shall be by measurement from the main front entrance of said church or school to the main front entrance of said place of business, along the route of ordinary pedestrian traffic.

(b) *Hotels, restaurants.* Hotels containing not less than fifty (50) guestrooms shall be exempt from the provisions of this section forbidding the sale of liquor to be consumed on the premises within one thousand (1,000) feet of a church or school, as aforesaid. Dining rooms and restaurants where the sale and service of liquor is strictly incidental to the serving of food, which dining rooms and restaurants do not exhibit any sign or display on the outside denoting that liquor is sold or obtainable therein, are likewise exempted from the provisions of this section forbidding the sale of liquor to be consumed upon the premises at a place of business

within one thousand (1,000) feet of a church, parks or public school, it being intended hereby that such hotel and restaurant and dining room shall not be prohibited from the sale of liquor for consumption upon the premises by reason of their location within one thousand (1,000) feet of a church, parks or public school. This requirement shall be reduced to five hundred (500) feet within the I-2 and I-3 zoning districts.

(c) *Locations otherwise prohibited.* Nothing in this section shall be interpreted to permit the sale of alcoholic beverages in or adjacent to districts where such sale is now prohibited by other ordinances of the city.

(d) *Grandfather clause.* The limitation provisions of this section shall not apply to establishments lawfully in operation and dispensing alcoholic beverages during the year beginning October 1, 1960, provided that such establishment remains in continuous operation.

(e) *Incidental sale of beer and wine for off-premises consumption.* Businesses, such as grocery stores, and other commercial establishments, whose principal business is not the sale of alcoholic beverages, but includes, as incidental thereto, the sale of beer and wine to be consumed off the premises, shall be exempt from the provisions of this section. It is intended hereby that such a business shall not be prohibited from the sale of beer and wine for consumption off the premises by reason of its location or proximity to a church, parks or public school.

(f) *Restaurants selling beer and wine.* Restaurants, as defined in section 13-47, whose principal business is not the sale of alcoholic beverages but includes as incidental thereto the sale of beer and wine to be consumed on the premises only, shall be exempted from the provisions of this section.

(Code 1955, § 3-40; Code 1983, § 4-8; Ord. No. 15-30, § 2, 9-29-2015; Ord. No. 2021-06, § 2, 4-14-2021)

State law reference—Municipal authority to regulate location of establishments, F.S. § 562.45(2).

Sec. 4-9. Proximity of package stores to one another.

No package store shall be located within one thousand five hundred (1,500) feet of any other package store located within the city limits. The method of measurement that shall be applied to determine whether a package store is within or without the required distance from any other package store shall be by measurement made or taken from the main front entrance of one (1) package store to the main front entrance of

the other along the route of ordinary pedestrian traffic. The limitation provisions of this section shall not apply to establishments which were in operation during the year beginning October 1, 1950, and which remain in continuous operation.

(Code 1955, § 3-47; Code 1983, § 4-9)

Sec. 4-10. Entertainment prohibited during specified hours; exceptions.

No vendor shall allow or permit, between the hours of 11:00 p.m. and 7:00 a.m. of the following morning, instrumental music, singing or other forms of entertainment, in any room where alcoholic beverages are sold or offered for sale, indoors or outdoors, unless such room is soundproofed, in order that the noise therefrom may not disrupt the peace and quiet of the neighborhood, it being intended hereby that in soundproofed rooms music, singing and other forms of entertainment may be conducted during the hours that alcoholic beverages may be sold, but at no other hours.

(Code 1955, § 3-7; Code 1983, § 4-10)

Sec. 4-11. Vaudeville, theatricals prohibited after 10:00 p.m.; exceptions.

It shall be unlawful for any person to have, permit or allow, after 10:00 p.m. on any night, any vaudeville, theatrical or similar entertainment upon any premises in the city where alcoholic or intoxicating beverages are sold, served or consumed.

(Code 1955, §§ 3-5, 3-6; Code 1983, § 4-11)

Sec. 4-12. Curb and car service prohibited.

No alcoholic beverages shall be sold or served to persons for consumption in automobiles and all curb service of alcoholic beverages for consumption in automobiles is hereby prohibited.

(Code 1955, § 3-43; Code 1983, § 4-12)

Sec. 4-13. Sale of liquor and wine from trucks.

All sales of liquor and wine at wholesale shall be made by orders taken at the place of business of the distributor, or of a vendor, or received at such place of business, and no sales of liquor and wine shall be made from any truck or conveyance operating within the city, it being intended hereby to prohibit the sale of liquor and wine from trucks and other conveyances.

(Code 1955, § 3-41; Code 1983, § 4-13)

Sec. 4-14. Setups prohibited on premises not licensed for liquor.

No vendor who is not licensed by the state to sell liquor to be consumed upon the premises shall knowingly furnish or provide any setups, glasses or other service to any person for the purpose of consuming liquor in, at or upon the licensed premises.

(Code 1955, § 3-12; Code 1983, § 4-14)

Sec. 4-15. Public consumption of alcoholic beverages prohibited; exceptions.

(a) It shall be unlawful for any person to consume or to carry in any cup, glass, can, bottle, or other open or uncovered container any alcoholic beverage in any park or recreational area open to the public or on any public street, sidewalk, trail, alley, or contiguous city property within the city. This section shall not apply to any premises duly licensed pursuant to state law on which is permitted on-premises consumption of alcoholic beverages, or on any privately owned property not within the public right-of-way.

(b) Exceptions.

(1) Any person, organization or corporation who or which wishes to be excluded from the prohibition of the subsection (a) of this section, for a period of time not to exceed fourteen (14) days, may apply to the city commission for an exception. The criteria to be used by the city commission shall include:

- a. The purpose for which the exception is requested.
- b. The dates, times and locations of such purpose.
- c. Provisions for security and crowd control.
- d. Proximity to residential areas.

(2) The exception may be granted if the above criteria tend to lessen the impact of such public consumption on any neighboring residential property, and tend not to disturb the health, safety, welfare, peace and comfort of the citizens of the town. The less likely the exception to create a nuisance based upon the above criteria, the more likely the exception is to be granted.

- (3) This section shall not apply to events to be held on city property with the city administration's knowledge and consent that alcoholic beverages will be consumed on the premises.
(Code 1983, § 4-15; Ord. No. 12-04, § 2, 2-22-2012)

ARTICLE II. TOTAL OR PARTIAL NUDITY AND SEXUAL CONDUCT IN ALCOHOLIC BEVERAGE ESTABLISHMENTS

Sec. 4-16. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- (1) *Alcoholic beverage, beer and wine* shall have the meanings set forth in F.S. §§ 561.01(4), 563.01, and 564.01 respectively.
- (2) *Alcoholic beverage establishment* means any establishment located in the city at which alcoholic beverages, beer or wine are offered for sale for consumption on the premises.
- (3) *Nudity, partial*, means the exhibition by any female person to any other person of any portion of her breasts falling below the areola, or any simulation thereof (which definition shall include the entire lower portion of the human female breast, but shall not include any portion of the cleavage of the human female breast exhibited by a dress, blouse, shirt, leotard, bathing suit, or other wearing apparel, provided the areola is not so exposed).
- (4) *Nudity, total*, means the showing of all or any portion of the cleft of the human male or female buttocks with less than a full opaque covering; the showing of all or any portion of the female areola; the depiction of covered male genitals in a discernible turgid state; the exhibition by any person to any other person, of his or her genitals, public area, vulva, anus, anal cleft or cleavage, or any portion of the foregoing specified anatomical areas, or any simulation thereof.
- (5) *Person* means an individual, corporation, firm, partnership, limited partnership, association, joint stock association, estate, trust or business entity.
- (6) *Sexual conduct* means any sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation, any sexual act which is prohibited by law, touching, caressing or fondling of the breasts, buttocks or any portion thereof, anus or genitals or the simulation thereof.
(Code 1983, § 4-16; Ord. No. 90-6, § 2, 3-28-1990)

Sec. 4-17. Total or partial nudity and sexual conduct prohibited.

(a) It shall be unlawful for any person maintaining, owning, managing or operating an alcoholic beverage establishment to knowingly, or with reason to know, suffer or permit total or partial nudity or sexual conduct to occur on the premises of that alcoholic beverage establishment.

(b) It shall be unlawful for any person, while on the premises of an alcoholic beverage establishment, to expose to public view those portions of his or her anatomy, defined herein as total or partial nudity, or engage in any sexual conduct.

(c) It shall be unlawful for any person maintaining, owning, managing or operating an alcoholic beverage establishment to knowingly, or with reason to know, suffer or permit the exposition of any graphic representation to public view, including photographs, videotapes or film projection, which depicts total or partial nudity or sexual conduct.
(Code 1983, § 4-17; Ord. No. 90-6, § 2, 3-28-1990)

Sec. 4-18. Enforcement and penalties.

Section 4-17 shall be enforced, as provided in section 18-5, and violations of section 4-17 shall be punished as provided in section 1-7.
(Code 1983, § 4-18; Ord. No. 90-6, § 2, 3-28-1990)

Chapter 5

ANIMALS AND FOWL*

Article I. In General

- Sec. 5-1. Reserved.
- Sec. 5-2. Protection of wild birds.
- Sec. 5-3. Trapping, catching, injuring animals.
- Sec. 5-4. Diseased animals.
- Secs. 5-5—5-15. Reserved.

Article II. Dogs

Division 1. Generally

- Sec. 5-16. Definitions.
- Sec. 5-17. Maximum number permitted.
- Sec. 5-18. Keeping vicious and howling dogs.
- Sec. 5-19. Abandoning dogs.
- Secs. 5-20—5-34. Reserved.

Division 2. Keeping for Commercial Purposes

- Sec. 5-35. Prohibited generally.
- Sec. 5-36. Veterinarians.
- Sec. 5-37. Pet beauty salons.
- Sec. 5-38. Kennels.
- Sec. 5-39. Training schools.
- Secs. 5-40—5-49. Reserved.

Article III. Domestic Fowl

- Sec. 5-50. Defined.
- Sec. 5-51. Running at large.
- Sec. 5-52. Possession, breeding and maintenance of domestic fowl on or about residential premises prohibited.
- Secs. 5-53—5-64. Reserved.

Article IV. Livestock

- Sec. 5-65. Running at large prohibited; penalty.
- Sec. 5-66. Possession, breeding and maintenance of livestock on or about residential premises prohibited.

*County code reference—Animals and fowl generally, ch. 5.

State law references—Municipal Home Rule Powers Act, F.S. ch. 166; animal control generally, F.S. ch. 828.

ARTICLE I. IN GENERAL**Sec. 5-1. Reserved.****Sec. 5-2. Protection of wild birds.**

(a) *City designated sanctuary.* The entire area embraced within the corporate limits of the city is hereby designated as a bird sanctuary.

(b) *Molesting prohibited.* It shall be unlawful to trap, shoot, poison or attempt to shoot, trap or poison any bird or wild fowl or to disturb, carry away or convert the nest or nesting area of any bird or wild fowl, provided that this subsection shall not apply to duly authorized agents of the state, the county or the city who have first secured the express permission of the city manager in writing.

(c) *Procedure when birds become nuisance.* In the event starlings or similar birds or wild fowl are to be found congregating in such numbers in a particular locality that they constitute a nuisance or menace to health or property as may be determined by the city manager, then the city manager after consulting with representatives of the Audubon Society, Garden Club, Humane Society or other such organizations of similar nature or character, shall, after three (3) days' public notice posted on the bulletin board of the city, take such steps as may be necessary to abate said nuisance. In the event it is necessary to destroy said birds or wild fowl, the number and manner of extinction shall be in such manner as may be deemed advisable by the city manager, and the city manager shall so indicate in his public notice.
(Code 1955, §§ 4-1, 4-41—4-43; Code 1983, § 5-2)

Sec. 5-3. Trapping, catching, injuring animals.

(a) *Prohibited.* The trapping, catching, capturing, injuring or killing of animals through the use of any pitfall, deadfall, scaffold, cage, snare, net, salt-lick, blind pen, baited hook or baited field, or any other similar device, or of any drugs, poison, chemical or explosive within, is hereby expressly prohibited.

(b) *Exceptions.* The provisions of this section shall not apply to duly authorized agents of the state, the county or the city who have first secured the permission of the city manager in writing.
(Code 1955, § 4-2; Code 1983, § 5-3)

Sec. 5-4. Diseased animals.

It shall be unlawful to knowingly bring into the city any animal having any contagious disease, or to allow any such animal to remain after being notified to remove it. If the owner or person in charge of any such animal shall fail or refuse to remove the same beyond the city upon being notified so to do, it shall be the duty of the police to take charge of such animal and see that it is removed beyond the city without delay.
(Code 1955, § 4-3; Code 1983, § 5-4)

Secs. 5-5—5-15. Reserved.**ARTICLE II. DOGS*****DIVISION 1. GENERALLY****Sec. 5-16. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Owner includes any person owning, harboring or keeping a dog within the city.
(Code 1955, § 4-6; Code 1983, § 5-16)

Sec. 5-17. Maximum number permitted.

Except as otherwise provided by division 2 of this article, no person shall own or keep more than four (4) dogs over the age of three (3) months within the city.
(Code 1955, § 4-23; Code 1983, § 5-17)

Sec. 5-18. Keeping vicious and howling dogs.

It shall be unlawful to keep, harbor or own any dog in the city which indulges or engages in frequent or habitual barking, yelping or howling, or which is mean or vicious, thereby creating annoyance to reasonable persons of ordinary sensibilities.
(Code 1955, § 4-21; Code 1983, § 5-18)

County code reference—Nuisance dogs, § 5-6(c).

***County code references**—Dog regulations generally, § 5-3 et seq.; additional municipal regulations authorized, § 5-16.

Sec. 5-19. Abandoning dogs.

It shall be unlawful to abandon any aged, sick, disabled or otherwise unwanted dog in the city.
(Code 1955, § 4-21; Code 1983, § 5-19)

Secs. 5-20—5-34. Reserved.

DIVISION 2. KEEPING FOR COMMERCIAL PURPOSES

Sec. 5-35. Prohibited generally.

Except as otherwise provided in this division, it shall be unlawful for any person to house, kennel or keep dogs for any commercial purpose within the city.
(Code 1955, § 4-22; Code 1983, § 5-35)

Sec. 5-36. Veterinarians.

This division shall not prohibit the keeping of dogs by a licensed veterinary doctor where such doctor has dogs in his custody and control solely for the purpose of providing them with veterinary care.
(Code 1955, § 4-22; Code 1983, § 5-36)

Sec. 5-37. Pet beauty salons.

This division shall not prohibit the keeping of dogs by persons or corporations licensed as pet beauty salons, provided that all dogs and pets handled by such persons or corporations shall be kept on the premises only between the hours of 7:30 a.m. and 8:30 p.m., each day, for the sole purpose of cleaning and beautifying said animals.
(Code 1955, § 4-22; Code 1983, § 5-37)

Sec. 5-38. Kennels.

This division shall not prohibit the keeping of dogs by licensed kennels which shall meet or exceed the following minimum conditions:

- (a) They shall be located within districts zoned for industrial use only as provided for by the zoning ordinance.

- (b) Each dog shall be boarded in a separate cage with concrete or wood floors. Minimum cage sizes shall be as follows:

- (1) For dogs up to eight (8) pounds: sixteen (16) inches in width, twenty-five (25) inches in length, twenty-five (25) inches in height;
- (2) For dogs from nine (9) to twelve (12) pounds: eighteen (18) inches in width, thirty-one (31) inches in length, and twenty-seven (27) inches in height;
- (3) For dogs thirteen (13) pounds and over: twenty-four (24) inches in width, thirty-eight (38) inches in length, and twenty-seven (27) inches in height.

- (c) There shall be established and maintained on the premises, an exercise area or yard containing one thousand two hundred fifty (1,250) square feet, completely enclosed by a fence constructed of chainlink, wood or masonry.

- (d) The cages and exercise area shall be cleaned of all offal or other obnoxious, unsanitary material at least once each day.

- (e) The licensee shall agree that as a condition of licensing, no noise or odor shall be permitted to emanate from the premises.

- (f) That the licensee shall have on the premises at least one (1) person in charge thereof twenty-four (24) hours each day and shall permit an inspection by the city, or by persons designated by the city, of the premises at any and all times.

- (g) Each kennel or cage shall have an adequate supply of water at all times.

- (h) The licensee shall not permit any dog to leave the premises unattended or to wander or escape from the premises.

(Code 1955, § 4-22; Code 1983, § 5-38)

Sec. 5-39. Training schools.

This division shall not prohibit the keeping of dogs by licensed dog training schools which shall meet or exceed the following minimum conditions:

- (a) Located within districts zoned for industrial use only as provided for by the zoning ordinance.

- (b) Dogs shall not be permitted to be boarded at such training schools.
- (c) Cages, if any, shall comply with the provisions of section 5-38.
- (d) The cages, if any, exercise and training areas shall be cleaned of all offal or other obnoxious unsanitary material at least once each day.
- (e) The licensee shall agree as a condition of licensing that no noise or odor be permitted to emanate from the premises.
- (f) That the licensee shall have on the premises at least one (1) person in charge thereof at all times, that the premises is being used by or for the purpose of training dogs, or dogs are on the premises, and shall permit an inspection by the city or by persons designated by the city of the premises at any and all times.
- (g) The licensee shall not permit any dog to leave the premises unattended or to wander or escape from the premises.

(Code 1955, § 4-22; Code 1983, § 5-39)

Secs. 5-40—5-49. Reserved.

ARTICLE III. DOMESTIC FOWL

Sec. 5-50. Defined.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Domestic fowl means and includes any chicken, goose, turkey, guinea, duck, peafowl or other domestic or domesticated fowl.
(Code 1955, § 4-25)

Sec. 5-51. Running at large.

It shall be unlawful for domestic fowl to run or roam at large within the city.
(Code 1955, § 4-26; Code 1983, § 5-51)

Sec. 5-52. Possession, breeding and maintenance of domestic fowl on or about residential premises prohibited.

It shall be unlawful for any person to possess, breed or maintain domestic fowl or livestock on or about any residential premises within the city.
(Code 1983, § 5-52; Ord. No. 03-27, § 1, 10-22-2003)

Secs. 5-53—5-64. Reserved.

ARTICLE IV. LIVESTOCK

Sec. 5-65. Running at large prohibited; penalty.

No horse, mule, jackass, bull, steer, cow or other cattle, sheep, hog or goat shall be allowed to run at large at any time within the city, whether the owner lives within or without the same.
(Code 1955, § 4-30; Code 1983, § 5-65)

Sec. 5-66. Possession, breeding and maintenance of livestock on or about residential premises prohibited.

It shall be unlawful for any person to possess, breed or maintain livestock on or about any residential premises within the city.
(Code 1983, § 5-66; Ord. No. 03-27, § 1, 10-22-2003)

Chapter 6

RESERVED

Chapter 7

BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS*

Article I. In General

- Sec. 7-1. Florida Building Code applicable.
- Sec. 7-2. Enforcement of building code.
- Sec. 7-3. Permit prerequisite to doing work.
- Sec. 7-4. Duty to issue permits, make inspections.
- Sec. 7-5. Compliance prerequisite to certificate of occupancy.
- Sec. 7-6. Reserved.
- Sec. 7-7. Building, planning and zoning board designated.
- Sec. 7-8. Procedure for building, planning and zoning board.
- Sec. 7-9. Duty to clean site.
- Sec. 7-10. Duty to repair parkways, sidewalks, curbs, etc.
- Sec. 7-11. Portable toilets for workers.
- Sec. 7-12. Suitability for habitation certificate.
- Secs. 7-13—7-22. Reserved.

Article II. Housing

- Sec. 7-23. County ordinance applicable.
- Sec. 7-24. Enforcement of county ordinance.
- Sec. 7-25. Minimum housing enforcement officer; office created; appointment; appointment of subordinates.
- Sec. 7-26. Minimum housing enforcement officer powers.
- Sec. 7-27. Identification of minimum housing officer; conflict of interest.
- Sec. 7-28. Authorized inspections.
- Sec. 7-29. Notice of violations.
- Sec. 7-30. Remedies for enforcement; consent agreements; hindering or obstructing minimum housing enforcement officer.
- Sec. 7-31. Power of minimum housing enforcement officer to act in emergencies.
- Sec. 7-32. Appeals from actions or decisions of minimum housing enforcement officer.
- Sec. 7-33. Recovery of enforcement costs.
- Sec. 7-34. Reserved.

Article III. Contractors

- Sec. 7-35. Definition, classification.
- Sec. 7-36. Licenses required.
- Sec. 7-37. License prerequisite to permit.
- Sec. 7-38. Registration required.
- Sec. 7-39. Exceptions to license requirements.
- Sec. 7-40. Contractors to post bond for removal of trash following completion of construction.
- Secs. 7-41—7-49. Reserved.

Article IV. Work Affecting Utility Property

- Sec. 7-50. Damaging prohibited generally.
- Sec. 7-51. Special authorization required to temporarily cut, disconnect or discontinue service.
- Sec. 7-52. Denial of authorization.
- Sec. 7-53. Demonstration of ability to repair; bond required.

*State law references—Building construction standards, F.S. ch. 553; contractors, F.S. ch. 468; Municipal Home Rule Powers Act, F.S. ch. 166.

OPA-LOCKA CODE

- Sec. 7-54. Responsibility for cost of repairs.
Secs. 7-55—7-64. Reserved.

Article V. Dangerous or Substandard Structures

- Sec. 7-65. Defined.
Sec. 7-66. Declared public nuisance.
Sec. 7-67. Standards for repair, vacation or demolition.
Sec. 7-68. Duties of building official.
Sec. 7-69. Notice to persons interested in building.
Sec. 7-70. Appeal to building, planning and zoning board.
Sec. 7-71. Duties of building, planning and zoning board.
Sec. 7-72. Duties of city attorney.
Sec. 7-73. Emergency cases.
Sec. 7-73.1. Designation of buildings as unfit for human habitation; placarding of unfit buildings; condemnation of unfit buildings.
Sec. 7-73.2. Duty of owner of building unfit for human habitation to relocate residents.
Sec. 7-73.3. Tenants' rights to present grievances.
Sec. 7-74. Service of notices to persons outside city.

Article VI. Flood Damage Protection

Division 1. In General

- Sec. 7-75. General provisions.
Sec. 7-76. Applicability.
Sec. 7-77. Duties and powers of the floodplain administrator.
Sec. 7-78. Permits.
Sec. 7-79. Site plans and construction documents.
Sec. 7-80. Inspections.
Sec. 7-81. Variances and appeals.
Sec. 7-82. Violations.
Sec. 7-83. Definitions.

Division 2. Flood-Resistant Development

- Sec. 7-84. Buildings and structures.
Sec. 7-85. Subdivisions.
Sec. 7-86. Site improvements, utilities and limitations.
Sec. 7-87. Manufactured homes, recreational vehicles and park trailers.
Sec. 7-88. Tanks.
Sec. 7-89. General requirements for other development.

Article VII. Wireless Communications Systems

- Sec. 7-90. Purpose.
Sec. 7-91. Definitions.
Sec. 7-92. Reserved.
Sec. 7-93. Telecommunications site development permit.
Sec. 7-94. Business tax receipt required; fee.
Sec. 7-95. Construction permits.
Sec. 7-96. Permit application.
Sec. 7-97. Appeal.
Sec. 7-98. Owner's and operator's obligations.
Sec. 7-99. Development plan, conditions of approval, fees and costs.
Sec. 7-100. Approval of plans, layout and facilities.
Sec. 7-101. Antennas.
Sec. 7-102. Minimum standards for communication towers.

BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS

- Sec. 7-103. Special exception.
- Sec. 7-104. Exemption.
- Sec. 7-105. Location of facilities.
- Sec. 7-106. Shared use of antenna towers.
- Sec. 7-107. Lease agreements and rights.
- Sec. 7-108. Renewal applications.
- Sec. 7-109. Obligation to cure as a condition of renewal.
- Sec. 7-110. Enforcement of article provisions; cease and desist order.

ARTICLE I. IN GENERAL**Sec. 7-1. Florida Building Code applicable.**

Pursuant to F.S. § 553.73, and the provisions of the Miami-Dade County Municipal Code, chapter 8, the Florida Building Code, as amended from time to time, is hereby adopted as the building code of the city. The Florida Building Code includes the following four (4) volumes: building, plumbing, mechanical, and fuel gas, and all appendices thereto, with the National Electrical Code adopted by reference. The Florida Building Code addresses container use as building structures for commercial, industrial and mixed-uses which was adopted by Miami-Dade County in Code of Ordinances section 33-32. In the City of Opa-locka, this is applicable in commercial, industrial, civic and mixed-use zoning districts.
(Code 1955, § 8-8; Code 1983, § 7-1; Ord. No. 18-07, § 2, 7-11-2018; Ord. No. 2025-07, § 2, 4-9-2025)

Sec. 7-2. Enforcement of building code.

The enforcement of the building code shall be the responsibility and duty of the building official. References in the building code to the "building official" shall mean the building official of the city or his duly authorized subordinates or assistants.
(Code 1955, § 8-11; Code 1983, § 7-2)

County code references—Local enforcement of building code, § 8-4(b); construction of term building official § 8-2.

Sec. 7-3. Permit prerequisite to doing work.

No building whatsoever shall be erected, altered, added to or destroyed or moved within the city limits of the city nor shall any work be performed for which a permit is required by the building code until a permit shall have been applied for and issued by the building official.
(Code 1955, § 8-14; Code 1983, § 7-3)

Sec. 7-4. Duty to issue permits, make inspections.

It shall be the duty of the building official to take charge of the issuance of building permits and the inspection of all buildings during the course of construction, alteration or moving as provided for in the building code of the city.
(Code 1955, § 8-12; Code 1983, § 7-4)

County code reference—Local responsibility for permits and inspections, § 8-4(b).

Sec. 7-5. Compliance prerequisite to certificate of occupancy.

The building official is hereby authorized and directed to withhold the issuance of a certificate of occupancy issued under the provisions of the building code for noncompliance with the provisions of this Code.
(Code 1955, § 8-21; Code 1983, § 7-5)

Sec. 7-6. Reserved.**Sec. 7-7. Building, planning and zoning board designated.**

The planning and zoning board shall be and constitute the building, planning and zoning board of the city.
(Code 1955, § 8-27; Code 1983, § 7-7)

Sec. 7-8. Procedure for building, planning and zoning board.

Procedures before the building, planning and zoning board shall be governed by the rules of procedure applicable to all boards and agencies of the city.
(Code 1955, § 8-28; Code 1983, § 7-8)

Sec. 7-9. Duty to clean site.

Owners or contractors and other holders of permits hereunder shall clear all rubbish, construction sheds or other materials which accumulate during and by reason of construction from the building or repair site.
(Code 1983, § 7-9)

Sec. 7-10. Duty to repair parkways, sidewalks, curbs, etc.

The owner or contractor shall repair or rebuild all parkways, sidewalks, curbs and gutters which have been damaged as a result of construction.
(Code 1955, § 8-19; Code 1983, § 7-10)

Sec. 7-11. Portable toilets for workers.

Portable toilets for the use of workers during construction will only be allowed by permission of the building official. Such permits shall only be good for thirty (30) days but may be renewed by the building official on application.
(Code 1955, § 8-20; Code 1983, § 7-11)

Sec. 7-12. Suitability for habitation certificate.

(a) No structure, other than a single-family residence or duplex shall be used, or any existing use enlarged, or any new use made of any land, body of water, or structure, without first obtaining a suitability for habitation certificate from the city of buildings and licensing. Said certificate shall also be required for each multifamily building located within the city.

(b) In the event that there is a question as to the legality of a use, the city's building official may require inspections, affidavits and such other information as he/she may deem appropriate or necessary to establish the legality of the use, before a suitability for habitation certificate will be issued. Additionally, the city's department of buildings and licensing shall have the right to periodically inspect premises at any reasonable time to ensure the existence of a current and valid suitability for habitation certificate and to ensure compliance with the terms and conditions under which a suitability for habitation certificate was issued.

(c) The person or entity listed upon a certificate of title issued pursuant to F.S. ch. 45 as the purchaser of a single-family residence, condominium unit, townhouse or duplex shall obtain a suitability for habitation certificate from the city's department of buildings and licensing prior to offering said residence for sale, transfer or other alienation. The suitability for habitation certificate required by this subsection (c) shall be for the purpose of determining whether or not the residence in question complies with all building codes and zoning and land development ordinance applicable to the residence and to provide a disclosure of those findings. The city's building official shall require disclosure of said findings by requiring an inspection of the property by personnel authorized by the city's building official to make such inspection. The inspection report and its finding therein shall be subsequently recorded in the public records of the county and shall include a good faith estimate of the cost to repair or remedy all code violations disclosed by the inspection. The city's building official shall prescribe the form of the inspection report and disclosure to ensure compliance with the intent of this section. Upon the recording of the inspection report and estimate in the public records of the county, the city's building official is authorized to issue the suitability for habitation certificate required by this subsection provided there are not outstanding violations. The city's building official shall refer any

city code violations disclosed in the report to the city's code enforcement department for enforcement action. City departments are authorized to collect fees for inspections and other administrative costs and/or for the issuance of the suitability for habitation certificate as may be applicable, and as established in the department of buildings and licensing's approved schedule of fees.

No suitability for habitation certificate shall be utilized in a manner contrary to the regulations contained in this chapter. This section shall apply only to the sale of properties after the passage of this section.

(d) The fees for inspections and other administrative costs and/or for the issuance of the suitability for habitation certificate shall be as follows:

- (1) For initial registration, as the owner of a property obtained in accordance with F.S. ch. 45 and to obtain the disclosure and findings report, the amount shall be two hundred fifty dollars (\$250.00).
- (2) Upon approval of the disclosure and findings report by the city's building official, the disclosure and findings report must be recorded with the county clerk of courts/public records division before issuance of the suitability for habitation certificate by the city's building official. The fees for recording are paid by the property owner in accordance with the fee schedule established by the county.
- (3) Upon approval of the disclosure and findings report by the city's building official, for issuance of the suitability for habitation certificate by the city's building official, the amount shall be one hundred dollars (\$100.00).
- (4) Upon rejection of the disclosure and findings report by the city's building official, the fee for re-submittal shall be fifty dollars (\$50.00).

(Code 1983, § 7-12; Ord. No. 09-21, § 2, 11-12-2009)

Secs. 7-13—7-22. Reserved.

ARTICLE II. HOUSING

Sec. 7-23. County ordinance applicable.

The county minimum housing standards ordinance, being Ordinance No. 18-18, codified as chapter 17,

article II of the Code of Miami-Dade County, Florida, as from time to time amended, shall be the minimum standard for housing in the city.

(Code 1983, § 7-23; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-24. Enforcement of county ordinance.

The minimum housing enforcement officer of the city shall enforce the minimum standards prescribed by the provisions of the minimum housing standards ordinance within the territorial limits of the city.

(Code 1983, § 7-24; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-25. Minimum housing enforcement officer; office created; appointment; appointment of subordinates.

There is hereby created and established the position of minimum housing enforcement officer. Such officer shall be designated by the city manager on the basis of qualifications and experience. The minimum housing enforcement officer may appoint such subordinate enforcement officers as may be necessary in order that the duties may be properly performed, subject to budget limitations.

(Code 1983, § 7-25; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-26. Minimum housing enforcement officer powers.

The powers of the minimum housing enforcement officer shall include the following:

- (1) The enforcement of the provisions of this article and rules and regulations promulgated hereunder, and all municipal ordinances, codes, rules and regulations as applicable pertaining to housing and the use and occupancy of dwellings, and all rules and regulations of the state board of health and the state hotel and restaurant commission, in cooperation with such state agencies, except where preempted, in the city.
- (2) Investigation of complaints and institution of enforcement actions necessary to abate all violations of municipal regulations, as applicable, governing the use and occupancy of housing premises of four (4) units or less. In addition to inspections resulting from complaints, inspections may be made at the request of the owner of the subject property provided such requested inspections are for the purpose of

qualifying for participation in a governmental program. The minimum housing enforcement officer shall have the power and authority to charge and collect fees for making inspections. The fees charged shall be as set forth in the applicable duly adopted municipal fee schedule.

- (3) Publication and dissemination of information to the public concerning all matters relating to minimum housing standards and the advantages of adequate housing facilities.
- (4) Rendering of all possible assistance and cooperation to federal, state and local agencies and officials in the accomplishment of effective minimum housing standards and controls.
- (5) Any municipal minimum housing enforcement officer may seek assistance from the county regarding an individual enforcement action. Such request shall be made in writing expressing the purpose therefor and submitted to the county enforcement agency.
- (6) The minimum housing enforcement officer shall have the power and authority to charge and collect fees, as described in subsection (2) of this section, for rendering inspection assistance and to recover the costs of enforcement as provided for in this chapter.
- (7) Make periodic reports as may be necessary, concerning the status of minimum housing standards and the enforcement of the provisions of this article, and recommendations concerning the improvement of minimum housing standards and controls.
- (8) Perform such other administrative duties as may be assigned by the city.

(Code 1983, § 7-26; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-27. Identification of minimum housing officer; conflict of interest.

The minimum housing enforcement officer and all subordinate enforcement officers shall be furnished with official identification cards issued by the city which identification cards shall contain the name of the officer, the officer's photograph, and pertinent descriptive identifying information, and such other matters designed to facilitate recognition by the public of the status of such official. Upon request, the minimum

housing enforcement officer and enforcement officers shall exhibit such identification when entering any dwelling, dwelling unit, roominghouse, rooming unit or premises. The requirements of this section shall not in any wise be construed as relieving the minimum housing enforcement officer or enforcement officers from compliance with the procedures prescribed in this article for making inspections.

No official, board member or employee charged with the enforcement of this law shall have any financial interest, directly or indirectly, in any repairs, corrections, construction or demolition which may be required.

(Code 1983, § 7-27; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-28. Authorized inspections.

The minimum housing enforcement officer and enforcement officers shall be authorized to make inspections to determine the condition of dwellings, dwelling units, roominghouses, rooming units and premises in order to safeguard the health, safety, morals and welfare of the public. The minimum housing enforcement officer and enforcement officers shall be authorized to enter any dwelling, dwelling unit, roominghouse, rooming unit, or premises at any reasonable time, or at such other time as may be necessary in an emergency, for the purpose of performing the duties of such office under this article, in accordance with the procedures herein prescribed. Except in emergencies endangering the public health, safety and welfare, the minimum housing enforcement officer and enforcement officers shall enter a dwelling, dwelling unit, roominghouse, rooming unit or premises only upon the prior or contemporaneous consent of the person lawfully in occupancy thereof or the person having legal right of possession thereof, or with a court order or inspection warrant, or in accordance with the provisions of this section. When the minimum housing enforcement officer or any enforcement officer has reason to believe that any dwelling, dwelling unit, rooming house, rooming or premises is in violation of the provisions of this article, or when such officer deems it necessary to make an inspection to determine whether a facility is in violation of the minimum housing standards established by this article, such officer shall request permission to make an inspection from the person lawfully in occupancy thereof or from the person having the legal right to possession thereof. In the event that such person refuses to consent to the inspection, the minimum housing enforcement

officer or enforcement officer may apply to the county court or circuit court for the issuance of an inspection warrant to be served by an officer duly authorized by law to serve inspection warrants and make arrests for violations of this article. The inspection warrant shall issue in accordance with the requirements of the United States Supreme Court case of *Camara v. Municipal Court of the City and County of San Francisco*, 18 L. Ed. 2d 930, 87 S. Ct. 1727 (1967) and F.S. §§ 933.20—933.30 and shall authorize entry into and inspection of the premises described therein. Refusal to permit an inspection pursuant to an inspection warrant authorized by this section shall constitute a violation of this article and shall subject the violator to the penalties prescribed herein and any penalties deemed appropriate by the issuing court, as allowed by law.

(Code 1983, § 7-28; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-29. Notice of violations.

Whenever the minimum housing enforcement officer or an enforcement officer finds and determines that there has been a violation of the minimum housing standards established by this article, the enforcement officer shall give notice of such violation to the owner. Such notice shall be in writing, shall specify the violation and shall specify the time for compliance. Such notice shall specify that the violation must be corrected or a building permit for the work required to correct the violation must be obtained from the city within the time specified in the notice and that final compliance must conform to the requirements of the state building code, as applicable. Such notice shall contain an outline of the remedial action which, if taken, will constitute compliance with the requirements of this article. Such notice shall inform the owner of the right to apply to the hearing officer for a hearing and review of matters within the notice as provided in section 7-32. Such notice shall also inform the owner that failure to comply will result in enforcement action as provided in section 7-30. Such notice shall be served upon the owner. Such notice shall be deemed to be properly served and binding upon the property involved if a copy is served by certified mail return receipt requested, addressed to the owner's last known address. If the owner cannot be served by certified mail, a copy of the notice shall be posted in a conspicuous place on the facilities or premises involved. Such notice shall state the date of posting.

(Code 1983, § 7-29; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-30. Remedies for enforcement; consent agreements; hindering or obstructing minimum housing enforcement officer.

(a) It shall be unlawful for any person to fail to comply with the minimum housing standards established by this article, or to fail or refuse to comply with the requirements of any final order issued in accordance with the provisions of this article. Each day of continued violation shall be considered as a separate offense.

(b) If any person shall knowingly fail or refuse to obey or comply with, or willfully violates, any of the provisions of this article, or any lawful final order issued hereunder, such person, upon conviction of such offense, shall be punished by a fine not to exceed five hundred dollars (\$500.00) or by imprisonment not to exceed sixty (60) days in the county jail, or both, in the discretion of the court.

(c) The provisions of this article and final orders issued in accordance with the provisions of this article may be enforced by mandatory injunction, or other appropriate civil action. The minimum housing enforcement officer may institute a civil action in a court of competent jurisdiction to impose and recover a civil penalty for each violation of any provisions of this article, or any lawful final order issued, in an amount of not more than five thousand dollars (\$5,000.00) per offense. Each day during any portion of which such violation occurs constitutes a separate offense.

(d) The minimum housing enforcement officer or a subordinate enforcement officer, may, in the minimum housing enforcement officers or subordinate enforcement officer's discretion, terminate an investigation or an action commenced under the provisions of this article upon execution of a written consent agreement between the minimum housing enforcement officer or a subordinate enforcement officer and the record owner of the land which is the subject of the investigation or action. The consent agreement shall provide written assurance of voluntary compliance with all the applicable provisions of this article by the record owner. The consent agreement shall provide the following: Repayment of costs to the city for investigation, enforcement, and litigation, including attorney fees; and remedial or corrective action. The consent agreement may, in the discretion of the minimum housing enforcement officer upon agreement of the owner, provide for compensatory damages, punitive damages and civil penalties.

An executed written consent agreement shall neither be evidence of a violation of this article nor shall such agreement be deemed to impose limitations upon any investigation or action by the minimum housing enforcement officer or any subordinate enforcement officer, in the enforcement of this article. The consent agreement shall not constitute a waiver of or limitation upon the enforcement of any federal, state or local laws and ordinances. Executed written consent agreements are hereby deemed to be lawful orders of the minimum housing enforcement officer or any subordinate enforcement officer. Each violation of any of the terms and conditions of an executed written consent agreement shall constitute a separate offense under this article by the owner who executed the consent agreement, his respective officers, directors, agents, servants, employees and attorneys; and by those persons in active concert or participation with any of the foregoing persons and who receive actual notice of the consent agreement punishable in accordance with the provisions of this section. Each day during any portion of which each such violation occurs constitutes a separate offense under this article. Decisions and actions of the minimum housing enforcement officer or any subordinate enforcement officer pursuant to subsection (c) of this section and written consent agreements executed thereunder, shall not be subject to appeal to or review by the hearing officer pursuant to section 7-32.

(e) Any person who hinders, obstructs or resists the minimum housing enforcement officer or any subordinate enforcement officer in the discharge of his duty, as provided in this article, upon conviction thereof in the county court, shall be punished by a fine not to exceed five hundred dollars (\$500.00) or by imprisonment in the county jail for not more than sixty (60) days, or by both such fine and imprisonment.

(Code 1983, § 7-30; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-31. Power of minimum housing enforcement officer to act in emergencies.

Whenever the minimum housing enforcement officer finds that a violation of the provisions of this article exists which requires immediate action to abate a direct and continuing hazard, or immediate danger to the health, safety or welfare of the occupants or the public, such officer may, without prior notice, issue an order or civil violation notice pursuant to section 7-29, citing the violation and directing that such action be taken as may be necessary to remove or abate the hazard or

danger. Notwithstanding any other provision of this article, such emergency order shall be effective immediately upon service and shall be complied with immediately, or as otherwise provided.

(Code 1983, § 7-31; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-32. Appeals from actions or decisions of minimum housing enforcement officer.

(a) Any person aggrieved by any action or decision of the minimum housing enforcement officer may appeal to the clerk of the courts by filing with the clerk of the courts within twenty (20) days after the date of the action or decision complained of a written notice of appeals which shall set forth concisely the action or decision appealed from and the reasons or grounds for the appeal. This appeal provision shall not apply to any citation issued in accordance with chapter 2, article XI, division 10. The clerk shall set such appeal for hearing at the earliest possible date, and cause notice thereof to be given to the appellant and the minimum housing enforcement officer.

(b) The administrative hearing shall be open to the public. The proceedings at the hearing shall be recorded and may be transcribed at the expense of the person requesting the transcript.

(c) Any person who has been served with notice of violation shall elect either to pay the enforcement costs in the manner indicated on the notice and correct the violation within the time specified on the notice (if applicable).

(d) Request an administrative hearing before a hearing officer to appeal the decision of the minimum housing enforcement officer which resulted in the issuance of the notice of violation.

(e) Appeal by administrative hearing of the notice of violation shall be accomplished by filing a request in writing to the address indicated on the notice, no later than twenty (20) calendar days after the service of the notice.

(f) Upon receipt of a named property owner's timely request for an administrative hearing, the clerk of the court shall set the matter down for hearing on the next regularly scheduled hearing date or as soon thereafter as possible or as mandated in the specified code section which is enforced pursuant to this chapter.

(g) The clerk of the court shall send a notice of hearing by first class mail to the property owner at his last known address. The notice of hearing shall include, but not be limited to, the following:

- (1) Name of the minimum housing enforcement officer or enforcement officer who issued the notice.
- (2) Factual description of alleged violation.
- (3) Date of alleged violation.
- (4) Section of the code allegedly violated.
- (5) Place, date and time of the hearing.
- (6) Right of the property owner to be represented by a lawyer.
- (7) Right of property owner to present witnesses and evidence.
- (8) Notice that failure of property owner to attend hearing shall result in enforcement costs and administrative costs being assessed against him or her.
- (9) Notice that requests for continuances will not be considered if not received by the hearing officer at least fifteen (15) calendar days prior to the date set for hearing.

(h) The clerk of the court shall schedule hearings upon the request of the appellant. No hearing shall be set sooner than twenty (20) calendar days from the date of service of the notice of violation.

(i) All testimony shall be under oath. Assuming proper notice, a hearing may proceed in the absence of the property owner.

(j) The clerk of the court shall provide clerical and administrative personnel as may be reasonably required by each hearing officer for the proper performance of his duties.

(k) Each case before a hearing officer shall be presented by minimum housing enforcement officer or designee.

(l) The hearing need not be conducted in accordance with the formal rules relating to evidence and witnesses. Any relevant evidence shall be admitted if the hearing officer finds it competent and reliable, regardless of the existence of any common law or statutory rule to the contrary.

(m) Each party shall have the right to call and examine witnesses; to introduce exhibits; to cross-examine opposing witnesses on any matter relevant to the issues even though that matter was not covered in the direct examination; to impeach any witness regardless of which party first called the witness to testify; and to rebut the evidence against him.

(n) The hearing officer shall make findings of fact based on evidence of record. The hearing officer shall make findings of fact immediately upon conclusion of the hearing. Once commenced, no hearing shall be deferred; however, the property owner shall have the option to request a reschedule of the hearing. A request to reschedule the hearing shall only be considered prior to the commencement of the testimony and presentation of evidence and shall be granted only upon good cause shown. In order to make a finding upholding the minimum housing enforcement officer's decision, the hearing officer must find that a preponderance of the evidence indicates that the property owner was responsible for the violation of the relevant section of the code as charged.

(o) If the property owner is found guilty of the violation, he shall pay the reasonable costs of the administrative hearing and the costs and expenses of the enforcement agency for investigation, enforcement, testing, or monitoring. The costs and expenses of the enforcement agency for investigation, enforcement, testing, or monitoring shall be calculated and submitted to the hearing officer, to be attached to the final order for amount owed, in standard format as prescribed by departmental administrative orders approved and amended from time to time by the board of county commissioners or the local municipal governing board. All costs of enforcement shall be paid within thirty (30) days of the date of the administrative hearing unless an alternate timeframe is established by the enforcing agency.

(p) The fact-finding determination of the hearing officer shall be limited to whether the violation alleged did occur and, if so, whether the person named in the civil violation notice can be held responsible for that violation. Based upon this fact-finding determination, the hearing officer shall either affirm or reverse the decision of the minimum housing enforcement officer as to the responsibility of the named property owner for the code violation. If the hearing officer affirms the decision of the minimum housing enforcement officer,

the hearing officer shall determine a reasonable time period within which correction of the violation must be made; provided, however, that such time period shall be no more than thirty (30) days. If the hearing officer reverses the decision of the minimum housing enforcement officer and finds the named property owner not responsible for the code violation alleged in the civil violation notice, the named property owner shall not be liable for the payment of any administrative costs, absent reversal of the hearing officer's findings. If the decision of the hearing officer is to affirm, then the following elements shall be included:

- (1) Amount of the enforcement costs of the enforcement agency.
- (2) Administrative costs of hearing.
- (3) Date by which the violation must be corrected to prevent imposition of continuing violation penalties (if applicable).

(Code 1983, § 7-32; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-33. Recovery of enforcement costs.

(a) The entire costs incurred by the enforcement agency in enforcing the provisions of this article shall be paid by the owner, including, but not limited to, the cost of enforcement inspections, preparation of enforcement reports, photographs, title searches, postage and other administrative costs for enforcement and collection.

(b) The enforcement agency shall file among its records a fair and accurate statement of each item of expense with the date of execution of any action authorized by this article.

(c) The city may institute a civil suit to recover such expenses against the property or may cause such expenses to be charged against the real property as a lien, upon recordation of an enforcement lien in the public records of the county. A lien will remain on the real property after recordation, as provided herein, until such costs are fully paid and discharged or barred by law.

(d) Liens created pursuant to subsection (c) of this section may be discharged and satisfied by paying to the city the amount specified in the notice of lien, together with interest thereon from the date of the filing of the lien computed at the rate of eighteen (18) percent per annum, together with the administrative costs, filing and recording fees and fees paid to file a

satisfaction of the lien in the public records. When any such lien has been discharged, the city shall promptly cause evidence of the satisfaction and discharge of such lien to be recorded in the public records. Any person, firm, corporation or legal entity, other than the present owner of the property involved, who pays any such unsatisfied lien shall be entitled to receive an assignment of the lien held by the city and shall be subrogated to the rights of the city in respect to the enforcement of such lien, as permitted by law.

(Code 1983, § 7-33; Ord. No. 18-17, § 2, 11-14-2018)

Sec. 7-34. Reserved.

ARTICLE III. CONTRACTORS*

Sec. 7-35. Definition, classification.

For the purposes of this Code, contractors shall be defined and classified as is provided in the Code of Miami-Dade County.

(Code 1955, § 8-1; Code 1983, § 7-35)

County code references—Contractor defined, § 10-1; classifications and scope of work of contractors, § 10-2.

Sec. 7-36. Licenses required.

Every contractor shall procure and maintain at all times while so engaged, a license therefor as is provided for in the Code of Miami-Dade County. The city hereby elects to participate in the county-wide single license program of the county for contractors.

(Code 1955, § 8-2; Code 1983, § 7-36)

County code reference—County single-license program, § 10-24 et seq.

Sec. 7-37. License prerequisite to permit.

No permit shall be issued to any contractor in the city unless and until such contractor shall have a valid business tax receipt as provided for herein.

(Code 1955, § 8-3; Code 1983, § 7-37)

Sec. 7-38. Registration required.

Each contractor doing business in the city shall register with the building official prior to doing work on any individual contract or under any individual permit. Such registration shall include the respective

*County code reference—Certification and regulation of contractors, ch. 10.

State law reference—Contractors, F.S. ch. 489.

certificate of competency number, the location of the work, and the persons, firms or corporations employing the contractor. From such registration the building official shall maintain a contractors register which shall include the names of all contractors who do business in the city during the license year of October 1 to September 30. At the conclusion of each license year, the building official shall cause to be delivered to the county manager the register for the purpose of providing for the pro-rata distribution of fees due to the city pursuant to section 10-30 of the Miami-Dade County Code. Failure to register prior to commencement of work shall constitute a violation of this Code.

(Code 1955, § 8-4; Code 1983, § 7-38)

Sec. 7-39. Exceptions to license requirements.

Contractors' licenses shall not be required of:

- (a) Authorized representatives of the United States of America; the state; the county; or the city.
- (b) Uncertified persons to whom permits are authorized to be issued by the Code of Miami-Dade County.

(Code 1955, § 8-5; Code 1983, § 7-39)

County code reference—Persons to whom permits may be issued without certification, § 10-5.

Sec. 7-40. Contractors to post bond for removal of trash following completion of construction.

(a) A cash bond in the amount of two hundred dollars (\$200.00) shall be posted with the office of the building inspector of the city by all builders wishing to construct within the city either a single family unit, or a commercial unit of less than five thousand (5,000) square feet to ensure the removal of all trash within a period of five (5) days after construction has been completed and before a certificate of occupancy is issued, and to cover any damage done to public or private property which was caused by the construction.

(b) For those builders constructing multiple units, dwelling or commercial, there will be a cash bond required in the amount of two hundred dollars (\$200.00), plus ten dollars (\$10.00) for every additional dwelling unit within the structure, or in instances of commercial units, ten dollars (\$10.00) for each additional one thousand (1,000) square feet.

(c) In no event, however, shall the city pursuant to the authority provided in subsections (a) and (b) of this section, *supra*, collect trash deposits in excess of one thousand dollars (\$1,000.00) from any one person, natural or corporate.

(d) In the event that monies posted pursuant to this section are not utilized for trash cleanup and are therefore refundable to the individual and/or corporation posting said bond, and further in the event that said individual or corporation does not request a refund of said monies, the city shall:

- (1) Make diligent inquiry as to the location of the individual and/or corporation so as to effect a proper refund; and
- (2) Retain said monies for a period of twelve (12) months from the date that a certificate of occupancy is issued on the structure for which the bond was posted.

In the event, however, that no one (1) individual or corporation requests a refund of a trash bond so deposited and further in the event that diligent inquiry by the city fails to discover the location and/or address of the individual so entitled to said refund, then upon the expiration of twelve (12) months from the date of the issuance of the certificate of occupancy for which the trash bond was posted by an individual or corporation, the city shall remit all monies to the state pursuant to F.S. ch. 717, and any other applicable statutes.
(Code 1983, § 7-40; Ord. No. 10-03, § 3, 2-24-2010)

Secs. 7-41—7-49. Reserved.

ARTICLE IV. WORK AFFECTING UTILITY PROPERTY

Sec. 7-50. Damaging prohibited generally.

No person, in the course of performing work permitted and licensed by the city pursuant to the terms of this Code, shall cause damage to any utility property, including water pipes, sewer pipes, gas pipes, or telephone and electric lines.
(Code 1955, § 8-6; Code 1983, § 7-50)

Sec. 7-51. Special authorization required to temporarily cut, disconnect or discontinue service.

Where it is necessary to cut, disconnect or otherwise temporarily separate any said utility property, the person proposing to do the work shall, prior thereto, obtain from the city manager authorization in writing, setting forth the nature of the alteration, cutting or repair; authorization from the owner of the utility in question; and shall specify the time involved in discontinuing the service of the utility to the community.
(Code 1955, § 8-6; Code 1983, § 7-51)

Sec. 7-52. Denial of authorization.

The building official may, in his discretion, refuse to permit the repair, cutting or alteration of any utility where the utility service will be discontinued for such time as to create a hazard to the health or public safety.
(Code 1955, § 8-6; Code 1983, § 7-52)

Sec. 7-53. Demonstration of ability to repair; bond required.

All persons doing work which might cause damage prohibited by this article shall prior to commencing work:

- (a) Demonstrate to the building official that the contractor shall be able to affect the repair of any public utility cut, destroyed or separated by him in the course of the work permitted within one (1) hour after said damage.
- (b) In the event the building official finds that the person cannot effect the repair of a damaged utility within one (1) hour, the person shall file with the city his penal bond in the sum of five thousand dollars (\$5,000.00), including all costs, expenses, damages and reasonable attorney fees, payable to the city, conditioned upon the repair of any damaged utility as aforesaid within one (1) hour of said damage, and upon the failure thereof, permitting the city to contract for the repair of said damage on behalf of said person with such persons or corporations as may be necessary and proper to immediately restore utility service.

(Code 1955, § 8-6; Code 1983, § 7-53)

Sec. 7-54. Responsibility for cost of repairs.

All persons damaging utility property shall be liable for the total expense incurred in effecting repair of such utility.
(Code 1955, § 8-6; Code 1983, § 7-54)

Secs. 7-55—7-64. Reserved.

ARTICLE V. DANGEROUS OR SUBSTANDARD STRUCTURES

Sec. 7-65. Defined.

(a) Buildings or structures shall be deemed dangerous by the building official in compliance with the provisions of the Florida Building Code, Miami-Dade County Edition.

(b) Blighted structures. A structure shall be deemed blighted and subject to demolition when:

- (1) It is visited by persons for the purpose of unlawfully procuring or using any controlled substance, as defined under F.S. ch. 893, or any drugs, as defined in F.S. ch. 499; or
- (2) It is used for the illegal keeping, selling or delivering of such controlled substances or drugs; and
- (3) The structure is found to have one (1) or more of the following characteristics:
 - a. It is vacant, unguarded and open at doors or windows;
 - b. There is an unwarranted accumulation of debris or other combustible material therein;
 - c. The structure's condition creates hazards with respect to means of egress and fire protection as provided for the particular occupancy;
 - d. There is a falling away, hanging loose or loosening of any siding, block, brick, or other building material;
 - e. There is deterioration of the structure or structural parts;
 - f. The structure is partially destroyed;
 - g. There is an unusual sagging or leaning out of plumb of the structure or any

parts of the structure and such effect is caused by deterioration or overstressing;

- h. The electrical or mechanical installations or systems create a hazardous condition; or
- i. An unsanitary condition exists by reason of inadequate or malfunctioning sanitary facilities or waste disposal systems.

A structure shall be presumed to be utilized for the purpose set forth in subsection (b)(1) or (2) of this section when there are one (1) or more arrests or police reports of incidents which involve the keeping, consumption, or delivery of controlled substances or drugs on the premises of the subject structure during the period, of controlled substances or drugs on the premises of the subject structure during the period of six (6) months preceding the posting of notice by the minimum housing enforcement officer. In the administration of the demolition activity outlined herein and when the code above does not meet the required standard for demolition, the city will use section 8-5 of the Code of Miami-Dade County, Florida for unsafe structures and it is as follows:

- (2) Buildings or structures that are, or hereafter shall become, unsafe, unsanitary or deficient, facilities with inadequate means of egress, or which constitute a fire or windstorm hazard, or are otherwise dangerous to human life or public welfare by reason of illegal or improper use, occupancy or maintenance, or which have been substantially damaged by the elements, acts of God, fire, explosion or otherwise, shall be deemed unsafe structures and a permit shall be obtained to demolish the structure or, where specifically allowed by this section, to bring the building into compliance with the applicable codes as provided herein.
- (3) Incomplete buildings commenced without a permit or for which the permit has expired, or completed buildings commenced without a permit or for which the permit has expired, prior to completion and no certificate of occupancy has been issued, shall be presumed and deemed unsafe and a permit shall be obtained to demolish the structure or bring the building into compliance with the applicable codes as provided herein.

- (4) Buildings which meet the physical criteria of unsafe structures set forth in this section, and are ordered to be repaired by the building official, an unsafe structures appeal panel or the unsafe structures board, in the manner more particularly set forth below, which are not completed or repaired and brought into full compliance with the building code within the reasonable time allowed by the building official or the unsafe structures board, will be demolished.
 - (5) Swimming pools that contain stagnant water are deemed unsanitary and dangerous to human life and public welfare. If the stagnant water is not removed and all repairs made and brought into full compliance with the building code within the reasonable time allowed by the building official, then these swimming pools will be demolished.
 - (6) Physical criteria.
 - (a) A building shall be deemed a fire hazard and/or unsafe when:
 - (i) It is vacant, unguarded and open at doors or windows.
 - (ii) There is an accumulation of debris or other material therein representing a hazard of combustion.
 - (iii) The building condition creates hazards with respect to means of egress and fire protection as provided herein for the particular occupancy.
 - (b) A building, or part thereof, shall be presumed to be unsafe if:
 - (i) There is a falling away, hanging loose or loosening of any siding, block, brick, or other building material.
 - (ii) There is a deterioration of the structure or structural parts.
 - (iii) The building is partially destroyed.
 - (iv) There is an unusual sagging or leaning out of plumb of the building or any parts of the building and such effect is caused by deterioration or over-stressing.
 - (c) A building, or part thereof, shall be presumed to be unsafe if:
 - (i) The construction, installation of electrical, plumbing or other equipment therein or hereon, or the partial construction or installation of electrical, plumbing or other equipment has been commenced or completed without a permit therefor having been obtained or where the permit has expired prior to completion and the issuance of a certificate of occupancy or certificate of completion.
 - (ii) The construction, installation of electrical, plumbing or other equipment therein or thereon, or the partial construction or installation of electrical, plumbing or other equipment has not been completed.
 - (iii) The building or structure is vacant and abandoned and covered at doors or windows with materials not previously approved by the building official or for a period exceeding the maximum limitations set forth in this section.
 - (iv) By reason of illegal or improper use, occupancy or maintenance, does not comply with the building code, or the code in effect at the time of construction.
 - (v) The building or part thereof meets the physical criteria of an unsafe structure set forth above and has not been repaired and brought into compliance with the building code following the expiration of the reasonable periods allowed by the building official, and unsafe structures appeal panel or the unsafe structures board for such repairs.
 - (v) The electrical or mechanical installations or systems create a hazardous condition contrary to the standards of the building code.
 - (vi) An unsanitary condition exists by reason of inadequate or malfunctioning sanitary facilities or waste disposal systems.
 - (vii) By reasons of use or occupancy, the area, height, type of construction, fire resistance, means of egress, electrical equipment, plumbing, air conditioning or other features regulated by this Code do not comply with this Code for the use and group of occupancy.
- (Code 1955, § 8-22; Code 1983, § 7-65; Ord. No. 09-13, § 2, 6-10-2009)

Sec. 7-66. Declared public nuisance.

Any dangerous building within the terms of section 7-65 is hereby declared to be a public nuisance, and shall be repaired, vacated or demolished as herein provided.

(Code 1955, § 8-23; Code 1983, § 7-66)

Sec. 7-67. Standards for repair, vacation or demolition.

The standards in the Florida Building Code, Miami-Dade County Edition shall be followed in substance by the building official and the building, planning and zoning board in ordering repair, vacation or demolition of a building.

(Code 1955, § 8-24; Code 1983, § 7-67)

Sec. 7-68. Duties of building official.

The building official or his authorized representative shall:

- (a) Inspect or cause to be inspected semiannually, all public buildings, schools, halls, churches, theaters, hotels, tenements, commercial, manufacturing or loft buildings for the purpose of determining whether any conditions exist which render such places dangerous buildings within the terms of section 7-65.
- (b) Inspect any building, wall or structure about which complaints are filed by any person to the effect that a building, wall or structure is, or may be, existing in violation of this article.
- (c) Inspect any building, wall or structure reported, as hereinafter provided for, by the fire or police department of this city as probably existing in violation of the terms of this article.
- (d) Inspect annually buildings in all sections of this city to determine whether they are dangerous buildings within the terms of section 7-65.
- (e) Place a notice on all dangerous buildings reading as follows:

"This building has been found to be a dangerous building by the building official. This notice is to remain on this building until it is repaired, vacated or demolished in accordance with the notice dated _____ which has been given the owner, occupant, lessee, mortgagee, or agent of this building, and all

other persons having an interest in such building as shown by the land records of the city, recorded by the clerk of the Circuit Court of Miami-Dade County. It is unlawful for anyone to remove this notice until such notice is complied with."

- (f) Appear at all hearings conducted by the building, planning and zoning board and testify as to the condition of the dangerous building.
- (g) Report to the building, planning and zoning board any noncompliance with the notice provided for in section 7-69.

(Code 1955, § 8-25; Code 1983, § 7-68)

Sec. 7-69. Notice to persons interested in building.

Notice by the building official or building, planning and zoning board must be in writing and shall be sent via registered mail to the owner, occupant, lessee, mortgagee, agent and all other persons having an interest in the building as shown by the land records of the city which are kept by the clerk of the circuit court of the county, hereinafter referred to as the land records, on any building found by the director or the building, planning and zoning board to be a dangerous building within the standard set forth in section 7-65, and the notice shall cover the following information:

- (a) Name of owner or other persons interested, as provided hereinabove.
- (b) Street address and legal description of the property on which the building is located.
- (c) General description of type of building, wall or structure deemed unsafe.
- (d) A complete, itemized statement or list of particulars which caused the building, wall or structure to be a dangerous building as defined in section 7-65.
- (e) Whether or not the building should be vacated by its occupants and the date of such vacation.
- (f) Whether or not the statement or list of particulars, as provided for in subsection (d) of this section, can be removed or repaired.
- (g) Whether or not the building constitutes a fire menace.

- (h) Whether or not it is unreasonable to repair the building and whether or not the building should be demolished.
- (i) A statement of the reasonable time for the party receiving notice to commence to vacate or make repairs, or demolish the building, as provided in the notice. A reasonable time shall not exceed thirty (30) days, except in cases of an unusually large building. The time to commence may be extended by the building official or the building, planning and zoning board for an additional period of sixty (60) days; provided, however, the extension is applied for by the owner, or other persons interested in the property as hereinabove defined, at least five (5) days before the expiration of the time to commence vacation, repair or demolition under the notice.
- (j) A reasonable time to complete the vacation, repair or demolition as provided in the notice, and such reasonable time for completion shall not exceed sixty (60) days, unless the time is extended by resolution of the city commission.

(Code 1955, § 8-26; Code 1983, § 7-69)

Sec. 7-70. Appeal to building, planning and zoning board.

The building, planning and zoning board shall have the power, and it is hereby authorized, to hear any person which may appeal the decision of the director of the department of planning and zoning with respect to the vacation, repair or demolition of any building, wall or structure, which may have been found by the building official to be a dangerous building under the provisions of section 7-65. Such appeal shall be made by written statement to the board within five (5) days after the final written decision from the building official as provided in this article. After notice of hearing, as provided herein, the decision of the building, planning and zoning board shall be final. The board may incur reasonable expenses when approved by the city manager, related to the conduct of hearings, expert advice and special exhibits.

(Code 1955, § 8-29; Code 1983, § 7-70)

Sec. 7-71. Duties of building, planning and zoning board.

The building, planning and zoning board shall:

- (a) Upon receipt of a report of the building official, as provided for in section 7-68(a), give a

written notice, sent via registered mail, to the owner, occupant, mortgagee, lessee, agent and all other persons having an interest in such building as shown by the land records, as hereinabove defined, to appear before it on the date specified in the notice to show cause why the building or structure reported to be a dangerous building should not be repaired, vacated or demolished in accordance with the statement of particulars set forth in the building official's notice provided for in section 7-69.

- (b) Hold a hearing to hear such testimony as may be presented by any department of the city, the building official or the owner, occupant, mortgagee, lessee or any other person having an interest in the building, as shown by the land records with relation to the dangerous building.
- (c) Make written findings of fact from the testimony offered pursuant to subsection (b) of this section as to whether or not the building in question is a dangerous building within the terms of section 7-65 by a vote of not less than three (3) members of the board.
- (d) After a personal inspection of the dangerous building, issue an order based upon finding of fact made pursuant to subsection (c) of this section and signed by the chairman of the board, commanding the owner, occupant, mortgagee, lessee, agent and all other persons having an interest in such building, as shown by the land record description, to repair or to vacate or to demolish any building found to be a dangerous building.
- (e) If the owner, occupant, mortgagee, lessee or other person having an interest in the building fails to comply with the order provided for in subsection (d) of this section, within ten (10) days, or any reasonable time ordered by the board, then the board shall cause such building or structure to be repaired, vacated or demolished as the facts may warrant under the standards provided in section 7-67, and the costs of such repair, vacation or demolition shall be a lien charged against the land, on which the building or structure exists, in favor of the city, or such costs shall be attached to the tax statement as an assessment lien against

the land on which the building or structure stands, or did stand, or shall be recovered in a suit at law or equity against the owner; provided, however, that in cases where such procedure is desirable, and any delay thereby caused will not be dangerous to the health, morals, safety or general welfare of the people of this city, the board shall notify the city attorney to take legal action to force the owner to make all necessary repairs, vacate or demolish the building or structure.

- (f) Report to the city attorney the names of all persons not complying with the order provided for in subsection (d) of this section.

(Code 1955, § 8-30; Code 1983, § 7-71)

Sec. 7-72. Duties of city attorney.

The city attorney shall:

- (a) Prosecute all persons failing to comply with the terms of the notices provided for herein in section 7-69 and the order provided for in section 7-71(d).
- (b) Appear at all hearings before the building, planning and zoning board in regard to dangerous buildings.
- (c) Bring suit to collect costs incurred by the board in repairing or causing to be vacated or demolished such dangerous buildings.
- (d) Take such other legal action as is necessary to carry out the terms and provisions of this article.

(Code 1955, § 8-31; Code 1983, § 7-72)

Sec. 7-73. Emergency cases.

In cases where it reasonably appears that there is immediate danger to the life or safety of any person, unless a dangerous building, as defined herein, is immediately repaired, vacated or demolished, the director shall report such facts to the board and the board shall cause the immediate repair, vacation or demolition of such dangerous building. The costs of such emergency repair, vacation or demolition of such dangerous building shall be collected in the same manner as provided in this article.

(Code 1955, § 8-34; Code 1983, § 7-73)

Sec. 7-73.1. Designation of buildings as unfit for human habitation; placarding of unfit buildings; condemnation of unfit buildings.

(a) The designation of buildings as unfit for human habitation and the procedure for condemnation and placarding, as unfit for human habitation, of such unfit buildings shall be carried out in compliance with the requirements of subsections (b) through (g) of this section.

(b) Any building found to have any of the following defects shall be designated by the building official as unfit for human habitation in response to a city code compliance officer's inspection and recommendation and the building shall be so placarded:

- (1) One (1) which is so damaged, decayed, dilapidated, unsanitary, unsafe or vermin-infested that it creates a serious hazard to the health or safety of the occupants or of the public.
- (2) One (1) which lacks illumination, ventilation or sanitation facilities adequate to protect the health or safety of the occupants or of the public.
- (3) One (1) which, because of its general condition or location, is unsanitary, or otherwise dangerous to the health or safety of the occupants or of the public.

(c) Any building declared unfit for human habitation by the enforcing agency shall be so designated by posting a placard in a conspicuous place on the structure.

(d) A building condemned and placarded as unfit for human habitation shall be vacated within thirty (30) days, as ordered by the enforcing agency, and shall not be used for occupancy again until written approval is secured from, and the placard removed by, the enforcing agency. The enforcing agency shall order the removal of the placard whenever the defect upon which the condemnation and placarding actions were based, have been eliminated.

(e) No person shall deface or remove the placard from any building condemned as unfit for human habitation and placarded as such, except as provided in subsection (d) of this section.

(f) Any person whose property has been placarded as unfit for human habitation may request and shall be granted a hearing on the matter before the special

magistrate of the city in accordance with the procedures set forth in subdivision 2, division 10, article XI of chapter 2.

(g) Where the code compliance officer determines that a building is an unsafe building within the provisions of the Florida Building Code, Miami-Dade County Edition, he shall immediately report the matter to the city director of the department of planning and zoning.

(Code 1955, § 8-34; Code 1983, § 7-73.1; Ord. No. 15-12, § 2, 6-24-2015)

Sec. 7-73.2. Duty of owner of building unfit for human habitation to relocate residents.

(a) Within twenty-four (24) hours from the time an occupied building is declared unfit for human habitation and placarded, the owner shall make all necessary arrangements to relocate the residents in the building into comparable housing that is safe, sanitary and secure and pay the expenses involved in such relocation.

(b) If the owner shall fail to take the necessary steps to provide for the relocation of displaced residents, and city personnel will be empowered to assist in the relocation, the owner shall pay all expenses incurred by the city, payment to occur within seven (7) days from receiving an itemization of expenses incurred in the relocation.

(c) If the owner shall fail to pay city-incurred expenses, a lien against the realty and personality of the owner shall be filed in the public records of the county and shall be of a dignity equal to liens filed for ad valorem taxation. This lien shall carry an interest rate at the maximum rate provided by F.S. § 687.03. Upon foreclosure of the lien, the city shall be entitled to attorney fees and costs.

(Code 1955, § 8-34; Code 1983, § 7-73.2; Ord. No. 15-12, § 2, 6-24-2015)

Sec. 7-73.3. Tenants' rights to present grievances.

(a) Any tenant or group of tenants may at any time submit, in oral or written form, a list of grievances to the landlord, his agents, or to any proper governmental agency concerning the management, the physical conditions, or operation of the rental unit.

(b) The management of any rental unit complained against or criticized shall not coerce, retaliate or discriminate in any manner against a tenant or tenant group because of participation in the presentation of a grievance or complaint.

(c) It shall be unlawful for any person to willfully and knowingly initiate any complaint under the provisions of this section without probable cause and for the purpose of harassment.

(Code 1955, § 8-34; Code 1983, § 7-73.3; Ord. No. 15-12, § 2, 6-24-2015)

Sec. 7-74. Service of notices to persons outside city.

In cases except emergency cases where the owner, occupant, lessee or mortgagee, or other interested party is absent from the city, all notices or orders provided for herein shall be sent via registered mail to the owner, occupant, mortgagee, lessee and all other persons having an interest in said building, as described by the land records, to the last known address of each and a copy of such notices shall be posted in a conspicuous place on the dangerous building to which it relates. Such mailing and posting shall be deemed adequate service. (Code 1955, § 8-35; Code 1983, § 7-74)

ARTICLE VI. FLOOD DAMAGE PROTECTION

DIVISION 1. IN GENERAL

Sec. 7-75. General provisions.

(a) *Title.* These regulations shall be known as the floodplain management ordinance of the city, hereinafter referred to as "this article."

(b) *Scope.* The provisions of this article shall apply to all development that is wholly within or partially within any flood hazard area, including, but not limited to, the subdivision of land; filling, grading, and other site improvements and utility installations; construction, alteration, remodeling, enlargement, improvement, replacement, repair, relocation or demolition of buildings, structures, and facilities that are exempt from the state building code; placement, installation, or replacement of manufactured homes and manufactured buildings; installation or replacement of tanks; placement of recreational vehicles; installation of swimming pools; and any other development.

(c) *Intent.* The purposes of this article and the flood load and flood-resistant construction requirements of the state building code are to establish minimum requirements to safeguard the public health, safety, and general welfare and to minimize public and private losses due to flooding through regulation of development in flood hazard areas to:

- (1) Minimize unnecessary disruption of commerce, access and public service during times of flooding;
- (2) Require the use of appropriate construction practices in order to prevent or minimize future flood damage;
- (3) Manage filling, grading, dredging, mining, paving, excavation, drilling operations, storage of equipment or materials, and other development which may increase flood damage or erosion potential;
- (4) Manage the alteration of flood hazard areas, watercourses, and shorelines to minimize the impact of development on the natural and beneficial functions of the floodplain;
- (5) Minimize damage to public and private facilities and utilities;
- (6) Help maintain a stable tax base by providing for the sound use and development of flood hazard areas;
- (7) Minimize the need for future expenditure of public funds for flood control projects and response to and recovery from flood events; and
- (8) Meet the requirements of the National Flood Insurance Program for community participation as set forth in title 44 CFR 59.22.

(d) *Coordination with the state building code.* This article is intended to be administered and enforced in conjunction with the state building code. Where cited, ASCE 24 refers to the edition of the standard that is referenced by the state building code.

(e) *Warning.* The degree of flood protection required by this article and the state building code, as amended by this community, is considered the minimum reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur. Flood heights may be increased by manmade or natural causes. This article

does not imply that land outside of mapped special flood hazard areas, or that uses permitted within such flood hazard areas, will be free from flooding or flood damage. The flood hazard areas and base flood elevations contained in the flood insurance study and shown on flood insurance rate maps and the requirements of title 44 CFR 59 and 60 may be revised by the Federal Emergency Management Agency, requiring this community to revise these regulations to remain eligible for participation in the National Flood Insurance Program. No guaranty of vested use, existing use, or future use is implied or expressed by compliance with this article.

(f) *Disclaimer of liability.* This article shall not create liability on the part of the city commission of the city or by any officer or employee thereof for any flood damage that results from reliance on this article or any administrative decision lawfully made thereunder. (Code 1983, § 7-75; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-76. Applicability.

(a) *General.* Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable.

(b) *Areas to which this article applies.* This article shall apply to all flood hazard areas within the city, as established in subsection (c) of this section.

(c) *Basis for establishing flood hazard areas.* The flood insurance study for Miami-Dade County, Florida and Incorporated Areas dated September 11, 2009, and all subsequent amendments and revisions, and the accompanying flood insurance rate maps (FIRM), and all subsequent amendments and revisions to such maps, are adopted by reference as a part of this article and shall serve as the minimum basis for establishing flood hazard areas. Studies and maps that establish flood hazard areas are on file at the department of buildings and licensing, 780 Fisherman Street.

(d) *Submission of additional data to establish flood hazard areas.* To establish flood hazard areas and base flood elevations, pursuant to section 7-79, the floodplain administrator may require submission of additional data. Where field surveyed topography prepared by a state-licensed professional surveyor or digital topography accepted by the community indicates that ground elevations:

- (1) Are below the closest applicable base flood elevation, even in areas not delineated as a

special flood hazard area on a FIRM, the area shall be considered as flood hazard area and subject to the requirements of this article and, as applicable, the requirements of the state building code.

- (2) Are above the closest applicable base flood elevation, the area shall be regulated as special flood hazard area unless the applicant obtains a letter of map change that removes the area from the special flood hazard area.

(e) *Other laws.* The provisions of this article shall not be deemed to nullify any provisions of local, state or federal law.

(f) *Abrogation and greater restrictions.* The ordinance from which this article is derived supersedes any ordinance in effect for management of development in flood hazard areas. However, it is not intended to repeal or abrogate any existing ordinances, including, but not limited to, land development regulations, zoning ordinances, stormwater management regulations, or the state building code. In the event of a conflict between this article and any other ordinance, the more restrictive shall govern. This article shall not impair any deed restriction, covenant or easement, but any land that is subject to such interests shall also be governed by this article.

(g) *Interpretation.* In the interpretation and application of this article, all provisions shall be:

- (1) Considered as minimum requirements;
- (2) Liberally construed in favor of the governing body; and
- (3) Deemed neither to limit nor repeal any other powers granted under state statutes.

(Code 1983, § 7-76; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-77. Duties and powers of the floodplain administrator.

(a) *Designation.* The building official is designated as the floodplain administrator. The floodplain administrator may delegate performance of certain duties to other employees who are certified floodplain managers (CFM).

(b) *General.* The floodplain administrator is authorized and directed to administer and enforce the provisions of this article. The floodplain administrator shall have the authority to render interpretations of this

article consistent with the intent and purpose of this article and may establish policies and procedures in order to clarify the application of its provisions. Such interpretations, policies, and procedures shall not have the effect of waiving requirements specifically provided in this article without the granting of a variance pursuant to section 7-81.

(c) *Applications and permits.* The floodplain administrator, in coordination with other pertinent offices of the community, shall:

- (1) Review applications and plans to determine whether proposed new development will be located in flood hazard areas;
- (2) Review applications for modification of any existing development in flood hazard areas for compliance with the requirements of this article;
- (3) Interpret flood hazard area boundaries where such interpretation is necessary to determine the exact location of boundaries; a person contesting the determination shall have the opportunity to appeal the interpretation;
- (4) Provide available flood elevation and flood hazard information;
- (5) Determine whether additional flood hazard data shall be obtained from other sources or shall be developed by an applicant;
- (6) Review applications to determine whether proposed development will be reasonably safe from flooding;
- (7) Issue floodplain development permits or approvals for development other than buildings and structures that are subject to the state building code, including buildings, structures and facilities exempt from the state building code, when compliance with this article is demonstrated, or disapprove the same in the event of noncompliance; and
- (8) Coordinate with and provide comments to the building official to ensure that applications, plan reviews, and inspections for buildings and structures in flood hazard areas comply with the applicable provisions of this article.

(d) *Substantial improvement and substantial damage determinations.* For applications for building permits to improve buildings and structures, including altera-

tions, movement, enlargement, replacement, repair, change of occupancy, additions, rehabilitations, renovations, substantial improvements, repairs of substantial damage, and any other improvement of or work on such buildings and structures, the floodplain administrator, in coordination with the building official, shall:

- (1) Estimate the market value, or require the applicant to obtain an appraisal of the market value prepared by a qualified independent appraiser, of the building or structure before the start of construction of the proposed work; in the case of repair, the market value of the building or structure shall be the market value before the damage occurred and before any repairs are made;
- (2) Compare the cost to perform the improvement, the cost to repair a damaged building to its pre-damaged condition, or the combined costs of improvements and repairs, if applicable, to the market value of the building or structure;
- (3) Determine and document whether the proposed work constitutes substantial improvement or repair of substantial damage; and
- (4) Notify the applicant if it is determined that the work constitutes substantial improvement or repair of substantial damage and that compliance with the flood resistant construction requirements of the Florida Building Code and this article is required.

(e) *Modifications of the strict application of the requirements of the Florida Building Code.* The floodplain administrator shall review requests submitted to the building official that seek approval to modify the strict application of the flood load and flood-resistant construction requirements of the Florida Building Code to determine whether such requests require the granting of a variance pursuant to section 7-81.

(f) *Notices and orders.* The floodplain administrator shall coordinate with appropriate local agencies for the issuance of all necessary notices or orders to ensure compliance with this article.

(g) *Inspections.* The floodplain administrator shall make the required inspections as specified in section 7-80 for development that is not subject to the Florida Building Code, including buildings, structures and facilities exempt from the Florida Building Code. The

floodplain administrator shall inspect flood hazard areas to determine if development is undertaken without issuance of a permit.

(h) *Other duties of the floodplain administrator.* The floodplain administrator shall have other duties, including, but not limited to:

- (1) Establish, in coordination with the building official, procedures for administering and documenting determinations of substantial improvement and substantial damage made pursuant to section 7-77(d);
- (2) Require that applicants proposing alteration of a watercourse notify adjacent communities and the state division of emergency management, state floodplain management office, and submit copies of such notifications to the Federal Emergency Management Agency (FEMA);
- (3) Require applicants who submit hydrologic and hydraulic engineering analyses to support permit applications to submit to FEMA the data and information necessary to maintain the flood insurance rate maps if the analyses propose to change base flood elevations, or flood hazard area boundaries; such submissions shall be made within six (6) months of such data becoming available;
- (4) Review required design certifications and documentation of elevations specified by this article and the Florida Building Code to determine that such certifications and documentations are complete; and
- (5) Notify the Federal Emergency Management Agency when the corporate boundaries of the city are modified.

(i) *Floodplain management records.* Regardless of any limitation on the period required for retention of public records, the floodplain administrator shall maintain and permanently keep and make available for public inspection all records that are necessary for the administration of this article and the flood resistant construction requirements of the Florida Building Code, including flood insurance rate maps; letters of map change; records of issuance of permits and denial of permits; determinations of whether proposed work constitutes substantial improvement or repair of substantial damage; required design certifications and documentation of elevations specified by the Florida Build-

ing Code and this article; notifications to adjacent communities, FEMA, and the state related to alterations of watercourses; assurances that the flood carrying capacity of altered watercourses will be maintained; documentation related to appeals and variances, including justification for issuance or denial; and records of enforcement actions taken pursuant to this article and the flood resistant construction requirements of the Florida Building Code. These records shall be available for public inspection at the department of buildings and licensing, 780 Fisherman Street. (Code 1983, § 7-77; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-78. Permits.

(a) *Permits required.* Any owner or owner's authorized agent (hereinafter, "applicant") who intends to undertake any development activity within the scope of this article, including buildings, structures and facilities exempt from the Florida Building Code, which is wholly within or partially within any flood hazard area shall first make application to the floodplain administrator, and the building official if applicable, and shall obtain the required permit and approval. No such permit or approval shall be issued until compliance with the requirements of this article and all other applicable codes and regulations has been satisfied.

(b) *Floodplain development permits or approvals.* Floodplain development permits or approvals shall be issued pursuant to this article for any development activities not subject to the requirements of the Florida Building Code, including buildings, structures and facilities exempt from the Florida Building Code. Depending on the nature and extent of proposed development that includes a building or structure, the floodplain administrator may determine that a floodplain development permit or approval is required in addition to a building permit.

(c) *Buildings, structures and facilities exempt from the Florida Building Code.* Pursuant to the requirements of federal regulation for participation in the National Flood Insurance Program (44 CFR 59 and 60), floodplain development permits or approvals shall be required for the following buildings, structures and facilities that are exempt from the Florida Building Code and any further exemptions provided by law, which are subject to the requirements of this article:

- (1) Railroads and ancillary facilities associated with the railroad.

- (2) Nonresidential farm buildings on farms, as provided in F.S. § 604.50.
- (3) Temporary buildings or sheds used exclusively for construction purposes.
- (4) Mobile or modular structures used as temporary offices.
- (5) Those structures or facilities of electric utilities, as defined in F.S. § 366.02, which are directly involved in the generation, transmission, or distribution of electricity.
- (6) Chickees constructed by the Miccosukee Tribe of Indians of Florida or the Seminole Tribe of Florida. As used in this section, the term "chickee" means an open-sided wooden hut that has a thatched roof of palm or palmetto or other traditional materials, and that does not incorporate any electrical, plumbing, or other non-wood features.
- (7) Family mausoleums not exceeding two hundred fifty (250) square feet in area which are prefabricated and assembled on site or preassembled and delivered on site and have walls, roofs, and a floor constructed of granite, marble, or reinforced concrete.
- (8) Temporary housing provided by the department of corrections to any prisoner in the state correctional system.
- (9) Structures identified in F.S. § 553.73(10)(k) are not exempt from the Florida Building Code if such structures are located in flood hazard areas established on flood insurance rate maps.

(d) *Application for a permit or approval.* To obtain a floodplain development permit or approval, the applicant shall first file an application in writing on a form furnished by the community. The information provided shall:

- (1) Identify and describe the development to be covered by the permit or approval.
- (2) Describe the land on which the proposed development is to be conducted by legal description, street address or similar description that will readily identify and definitively locate the site.
- (3) Indicate the use and occupancy for which the proposed development is intended.

- (4) Be accompanied by a site plan or construction documents as specified in section 7-79.
- (5) State the valuation of the proposed work.
- (6) Be signed by the applicant or the applicant's authorized agent.
- (7) Give such other data and information as required by the floodplain administrator.

(e) *Validity of permit or approval.* The issuance of a floodplain development permit or approval pursuant to the ordinance from which this article is derived shall not be construed to be a permit for, or approval of, any violation of this article, the Florida Building Code, or any other ordinance of this community. The issuance of permits based on submitted applications, construction documents, and information shall not prevent the floodplain administrator from requiring the correction of errors and omissions.

(f) *Expiration.* A floodplain development permit or approval shall become invalid unless the work authorized by such permit is commenced within one hundred eighty (180) days after its issuance, or if the work authorized is suspended or abandoned for a period of one hundred eighty (180) days after the work commences. Extensions for periods of not more than one hundred eighty (180) days each shall be requested in writing and justifiable cause shall be demonstrated.

(g) *Suspension or revocation.* The floodplain administrator is authorized to suspend or revoke a floodplain development permit or approval if the permit was issued in error, on the basis of incorrect, inaccurate or incomplete information, or in violation of the ordinance from which this article is derived or any other ordinance, regulation or requirement of this community.

(h) *Other permits required.* Floodplain development permits and building permits shall include a condition that all other applicable state or federal permits be obtained before commencement of the permitted development, including, but not limited to, the following:

- (1) The South Florida Water Management District; F.S. § 373.036.
- (2) State department of health for on-site sewage treatment and disposal systems, F.S. § 381.0065 and FAC ch. 64E-6.

- (3) State department of environmental protection for activities subject to the joint coastal permit; F.S. § 161.055.
- (4) State department of environmental protection for activities that affect wetlands and alter surface water flows, in conjunction with the U.S. Army Corps of Engineers; section 404 of the Clean Water Act.
- (5) Federal permits and approvals.
(Code 1983, § 7-78; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-79. Site plans and construction documents.

(a) *Information for development in flood hazard areas.* The site plan or construction documents for any development subject to the requirements of this article shall be drawn to scale and shall include, as applicable to the proposed development:

- (1) Delineation of flood hazard areas and flood zone, base flood elevation, and ground elevations if necessary for review of the proposed development.
- (2) Where base flood elevations are not included on the FIRM or in the flood insurance study, they shall be established in accordance with subsection (b)(2) or (3) of this section.
- (3) Where the parcel on which the proposed development will take place will have more than fifty (50) lots or is larger than five (5) acres and the base flood elevations are not included on the FIRM or in the flood insurance study, such elevations shall be established in accordance with subsection (b)(1) of this section.
- (4) Location of the proposed activity and proposed structures, and locations of existing buildings and structures.
- (5) Location, extent, amount, and proposed final grades of any filling, grading, or excavation.
- (6) Where the placement of fill is proposed, the amount, type, and source of fill material; compaction specifications; a description of the intended purpose of the fill areas; and evidence that the proposed fill areas are the minimum necessary to achieve the intended purpose.
- (7) Existing and proposed alignment of any proposed alteration of a watercourse.

The floodplain administrator is authorized to waive the submission of site plans, construction documents, and other data that are required by this article but that are not required to be prepared by a registered design professional if it is found that the nature of the proposed development is such that the review of such submissions is not necessary to ascertain compliance with this article.

(b) *Information in flood hazard areas without base flood elevations (approximate zone A).* Where flood hazard areas are delineated on the FIRM and base flood elevation data have not been provided, the floodplain administrator shall:

- (1) Require the applicant to include base flood elevation data prepared in accordance with currently accepted engineering practices.
- (2) Obtain, review, and provide to applicants, base flood elevation data available from a federal or state agency or other source or require the applicant to obtain and use base flood elevation data available from a federal or state agency or other source.
- (3) Where base flood elevation data are not available from another source, where the available data are deemed by the floodplain administrator to not reasonably reflect flooding conditions, or where the available data are known to be scientifically or technically incorrect or otherwise inadequate:
 - a. Require the applicant to include base flood elevation data prepared in accordance with currently accepted engineering practices; or
 - b. Specify that the base flood elevation is two (2) feet above the highest adjacent grade at the location of the development, provided there is no evidence indicating flood depths have been or may be greater than two (2) feet.
- (4) Where the base flood elevation data are to be used to support a letter of map change from FEMA, advise the applicant that the analyses shall be prepared by a state-licensed engineer in a format required by FEMA, and that it shall be the responsibility of the applicant to satisfy the submittal requirements and pay the processing fees.

(c) *Additional analyses and certifications.* As applicable to the location and nature of the proposed development activity, and in addition to the requirements of this section, the applicant shall have the following analyses signed and sealed by a state-licensed engineer for submission with the site plan and construction documents:

- (1) For alteration of a watercourse, an engineering analysis prepared in accordance with standard engineering practices which demonstrates that the flood-carrying capacity of the altered or relocated portion of the watercourse will not be decreased, and certification that the altered watercourse shall be maintained in a manner which preserves the channel's flood-carrying capacity; the applicant shall submit the analysis to FEMA as specified in subsection (d) of this section.

(d) *Submission of additional data.* When additional hydrologic, hydraulic or other engineering data, studies, and additional analyses are submitted to support an application, the applicant has the right to seek a letter of map change from FEMA to change the base flood elevations or change boundaries of flood hazard areas shown on FIRMs, and to submit such data to FEMA for such purposes. The analyses shall be prepared by a state-licensed engineer in a format required by FEMA. Submittal requirements and processing fees shall be the responsibility of the applicant.
(Code 1983, § 7-79; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-80. Inspections.

(a) *General.* Development for which a floodplain development permit or approval is required shall be subject to inspection.

(b) *Development other than buildings and structures.* The floodplain administrator shall inspect all development to determine compliance with the requirements of this article and the conditions of issued floodplain development permits or approvals.

(c) *Buildings, structures and facilities exempt from the Florida Building Code.* The floodplain administrator shall inspect buildings, structures and facilities exempt from the Florida Building Code to determine compliance with the requirements of this article and the conditions of issued floodplain development permits or approvals.

(d) *Buildings, structures and facilities exempt from the Florida Building Code, lowest floor inspection.* Upon placement of the lowest floor, including basement, and prior to further vertical construction, the owner of a building, structure or facility exempt from the Florida Building Code, or the owner's authorized agent, shall submit to the floodplain administrator:

- (1) If a design flood elevation was used to determine the required elevation of the lowest floor, the certification of elevation of the lowest floor prepared and sealed by a state-licensed professional surveyor; or
- (2) If the elevation used to determine the required elevation of the lowest floor was determined in accordance with section 7-79(b)(3)(b), the documentation of height of the lowest floor above highest adjacent grade, prepared by the owner or the owner's authorized agent.

(e) *Buildings, structures and facilities exempt from the Florida Building Code, final inspection.* As part of the final inspection, the owner or owner's authorized agent shall submit to the floodplain administrator a final certification of elevation of the lowest floor or final documentation of the height of the lowest floor above the highest adjacent grade; such certifications and documentations shall be prepared as specified in subsection (d) of this section.

(f) *Manufactured homes.* The floodplain administrator shall inspect manufactured homes that are installed or replaced in flood hazard areas to determine compliance with the requirements of this article and the conditions of the issued permit. Upon placement of a manufactured home, certification of the elevation of the lowest floor shall be submitted to the floodplain administrator.

(Code 1983, § 7-80; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-81. Variances and appeals.

(a) *General.* The planning and zoning board shall hear and decide on requests for appeals and requests for variances from the strict application of this article. Pursuant to F.S. § 553.73(5), the planning, zoning and appeals board shall hear and decide on requests for appeals and requests for variances from the strict application of the flood resistant construction requirements of the Florida Building Code.

(b) *Appeals.* The planning, zoning and appeals board shall hear and decide appeals when it is alleged there is an error in any requirement, decision, or determination made by the floodplain administrator in the administration and enforcement of this article. Any person aggrieved by the decision may appeal such decision to the circuit court, as provided by state statutes.

(c) *Limitations on authority to grant variances.* The planning, zoning and appeals board shall base its decisions on variances on technical justifications submitted by applicants, the considerations for issuance in subsection (f) of this section, the conditions of issuance set forth in subsection (g) of this section, and the comments and recommendations of the floodplain administrator and the building official. The planning and zoning board has the right to attach such conditions as it deems necessary to further the purposes and objectives of this article.

(d) *Historic buildings.* A variance is authorized to be issued for the repair, improvement, or rehabilitation of a historic building that is determined eligible for the exception to the flood resistant construction requirements of the Florida Building Code, existing building, chapter 12 historic buildings, upon a determination that the proposed repair, improvement, or rehabilitation will not preclude the building's continued designation as a historic building and the variance is the minimum necessary to preserve the historic character and design of the building. If the proposed work precludes the building's continued designation as a historic building, a variance shall not be granted and the building and any repair, improvement, and rehabilitation shall be subject to the requirements of the Florida Building Code.

(e) *Functionally dependent uses.* A variance is authorized to be issued for the construction or substantial improvement necessary for the conduct of a functionally dependent use, as defined in this article, provided the variance is the minimum necessary considering the flood hazard, and all due consideration has been given to use of methods and materials that minimize flood damage during occurrence of the base flood.

(f) *Considerations for issuance of variances.* In reviewing requests for variances, the planning, zoning and appeals board shall consider all technical evalua-

tions, all relevant factors, all other applicable provisions of the Florida Building Code, this article, and the following:

- (1) The danger that materials and debris may be swept onto other lands resulting in further injury or damage;
- (2) The danger to life and property due to flooding or erosion damage;
- (3) The susceptibility of the proposed development, including contents, to flood damage and the effect of such damage on current and future owners;
- (4) The importance of the services provided by the proposed development to the community;
- (5) The availability of alternate locations for the proposed development that are subject to lower risk of flooding or erosion;
- (6) The compatibility of the proposed development with existing and anticipated development;
- (7) The relationship of the proposed development to the comprehensive plan and floodplain management program for the area;
- (8) The safety of access to the property in times of flooding for ordinary and emergency vehicles;
- (9) The expected heights, velocity, duration, rate of rise and debris and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site; and
- (10) The costs of providing governmental services during and after flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical and water systems, streets and bridges.

(g) *Conditions for issuance of variances.* Variances shall be issued only upon:

- (1) Submission by the applicant, of a showing of good and sufficient cause that the unique characteristics of the size, configuration, or topography of the site limit compliance with any provision of this article or the required elevation standards;

- (2) Determination by the planning, zoning and appeals board that:

- a. Failure to grant the variance would result in exceptional hardship due to the physical characteristics of the land that render the lot undevelopable; increased costs to satisfy the requirements or inconvenience do not constitute hardship;
- b. The granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, nor create nuisances, cause fraud on or victimization of the public or conflict with existing local laws and ordinances; and
- c. The variance is the minimum necessary, considering the flood hazard, to afford relief;

- (3) Receipt of a signed statement by the applicant that the variance, if granted, shall be recorded in the office of the clerk of the court in such a manner that it appears in the chain of title of the affected parcel of land; and

- (4) If the request is for a variance to allow construction of the lowest floor of a new building, or substantial improvement of a building, below the required elevation, a copy in the record of a written notice from the floodplain administrator to the applicant for the variance, specifying the difference between the base flood elevation and the proposed elevation of the lowest floor, stating that the cost of federal flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation (up to amounts as high as twenty-five dollars (\$25.00) for one hundred dollars (\$100.00) of insurance coverage), and stating that construction below the base flood elevation increases risks to life and property.

(Code 1983, § 7-81; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-82. Violations.

(a) *Generally.* Any development that is not within the scope of the Florida Building Code but that is regulated by this article that is performed without an issued permit, that is in conflict with an issued permit, or that does not fully comply with this article, shall be deemed a violation of this article. A building or struc-

ture without the documentation of elevation of the lowest floor, other required design certifications, or other evidence of compliance required by this article or the Florida Building Code is presumed to be a violation until such time as that documentation is provided.

(b) *Authority.* For development that is not within the scope of the Florida Building Code but that is regulated by this article and that is determined to be a violation, the floodplain administrator is authorized to serve notices of violation or stop work orders to owners of the property involved, to the owner's agent, or to the person performing the work.

(c) *Unlawful continuance.* Any person who shall continue any work after having been served with a notice of violation or a stop-work order, except such work as that person is directed to perform to remove or remedy a violation or unsafe condition, shall be subject to penalties as prescribed by law.
(Code 1983, § 7-82; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-83. Definitions.

(a) *Generally.* Unless otherwise expressly stated, the following words and terms shall, for the purposes of this article, have the meanings shown in this section. Where terms are not defined in this article and are defined in the Florida Building Code, such terms shall have the meanings ascribed to them in that code. Where terms are not defined in this article or the Florida Building Code, such terms shall have ordinarily accepted meanings such as the context implies.

(b) *Definitions.* The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration of a watercourse means a dam, impoundment, channel relocation, change in channel alignment, channelization, or change in cross-sectional area of the channel or the channel capacity, or any other form of modification which may alter, impede, retard or change the direction and/or velocity of the riverine flow of water during conditions of the base flood.

Appeal means a request for a review of the floodplain administrator's interpretation of any provision of this article.

ASCE 24 means a standard titled Flood-Resistant Design and Construction that is referenced by the Flor-

ida Building Code. ASCE 24 is developed and published by the American Society of Civil Engineers, Reston, VA.

Base flood means a flood having a one (1) percent chance of being equaled or exceeded in any given year (also defined in FBC, B, section 202). The base flood is commonly referred to as the one hundred (100) year flood or the one (1) percent annual chance flood.

Base flood elevation means the elevation of the base flood, including wave height, relative to the National Geodetic Vertical Datum (NGVD), North American Vertical Datum (NAVD) or other datum specified on the flood insurance rate map (FIRM). (Also defined in FBC, B, section 202.)

Basement means the portion of a building having its floor subgrade (below ground level) on all sides. (Also defined in FBC, B, section 202; see Basement (for flood loads).)

Design flood means the flood associated with the greater of the following two (2) areas: (Also defined in FBC, B, section 202.)

- (1) Area with a floodplain subject to a one (1) percent or greater chance of flooding in any year; or
- (2) Area designated as a flood hazard area on the community's flood hazard map, or otherwise legally designated.

Design flood elevation means the elevation of the design flood, including wave height, relative to the datum specified on the community's legally designated flood hazard map. In areas designated as zone AO, the design flood elevation shall be the elevation of the highest existing grade of the building's perimeter plus the depth number (in feet) specified on the flood hazard map. In areas designated as zone AO where the depth number is not specified on the map, the depth number shall be taken as being equal to two (2) feet. (Also defined in FBC, B, section 202.)

Development means any manmade change to improved or unimproved real estate, including, but not limited to, buildings or other structures, tanks, temporary structures, temporary or permanent storage of equipment or materials, mining, dredging, filling, grading, paving, excavations, drilling operations or any other land disturbing activities.

Encroachment means the placement of fill, excavation, buildings, permanent structures or other development into a flood hazard area which may impede or alter the flow capacity of riverine flood hazard areas.

Existing building and existing structure means any buildings and structures for which the start of construction commenced before September 29, 1972. (Also defined in FBC, B, section 202.)

Existing manufactured home park or subdivision means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before September 29, 1972.

Expansion to an existing manufactured home park or subdivision means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

Federal Emergency Management Agency (FEMA) means the federal agency that, in addition to carrying out other functions, administers the National Flood Insurance Program.

Flood or flooding means a general and temporary condition of partial or complete inundation of normally dry land from: (Also defined in FBC, B, section 202.)

- (1) The overflow of inland or tidal waters.
- (2) The unusual and rapid accumulation or runoff of surface waters from any source.

Flood damage-resistant materials means any construction material capable of withstanding direct and prolonged contact with floodwaters without sustaining any damage that requires more than cosmetic repair. (Also defined in FBC, B, section 202.)

Flood hazard area means the greater of the following two (2) areas: (Also defined in FBC, B, section 202.)

- (1) The area within a floodplain subject to a one (1) percent or greater chance of flooding in any year.

- (2) The area designated as a flood hazard area on the community's flood hazard map, or otherwise legally designated.

Flood insurance rate map (FIRM) means the official map of the community on which the Federal Emergency Management Agency has delineated both special flood hazard areas and the risk premium zones applicable to the community. (Also defined in FBC, B, section 202.)

Flood insurance study (FIS) means the official report provided by the Federal Emergency Management Agency that contains the flood insurance rate map, the flood boundary and floodway map (if applicable), the water surface elevations of the base flood, and supporting technical data. (Also defined in FBC, B, section 202.)

Floodplain administrator means the office or position designated and charged with the administration and enforcement of this article (may be referred to as the floodplain manager).

Floodplain development permit or approval means an official document or certificate issued by the community, or other evidence of approval or concurrence, which authorizes performance of specific development activities that are located in flood hazard areas and that are determined to be compliant with this article.

Florida Building Code means the family of codes adopted by the Florida Building Commission, including: Florida Building Code, Building; Florida Building Code, Residential; Florida Building Code, Existing Building; Florida Building Code, Mechanical; Florida Building Code, Plumbing; Florida Building Code, Fuel Gas.

Functionally dependent use means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water, including only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities; the term "functionally dependent use" does not include long-term storage or related manufacturing facilities.

Highest adjacent grade means the highest natural elevation of the ground surface prior to construction next to the proposed walls or foundation of a structure.

Historic structure means any structure that is determined eligible for the exception to the flood hazard area requirements of the Florida Building Code, existing building, chapter 12, historic buildings.

Letter of map change (LOMC) means an official determination issued by FEMA that amends or revises an effective flood insurance rate map or flood insurance study. Letters of map change include:

Conditional letter of map revision (CLOMR) means a formal review and comment as to whether a proposed flood protection project or other project complies with the minimum NFIP requirements for such projects with respect to delineation of special flood hazard areas. A CLOMR does not revise the effective flood insurance rate map or flood insurance study; upon submission and approval of certified as-built documentation, a letter of map revision may be issued by FEMA to revise the effective FIRM.

Letter of map amendment (LOMA) means an amendment based on technical data showing that a property was incorrectly included in a designated special flood hazard area. A LOMA amends the current effective flood insurance rate map and establishes that a specific property, portion of a property, or structure is not located in a special flood hazard area.

Letter of map revision (LOMR) means a revision based on technical data that may show changes to flood zones, flood elevations, special flood hazard area boundaries and floodway delineations, and other planimetric features.

Letter of map revision based on fill (LOMR-F) means a determination that a structure or parcel of land has been elevated by fill above the base flood elevation and is, therefore, no longer located within the special flood hazard area. In order to qualify for this determination, the fill must have been permitted and placed in accordance with the community's floodplain management regulations.

Light-duty truck means the same as that term is defined in 40 CFR 86.082-2, any motor vehicle rated at eight thousand five hundred (8,500) pounds gross vehicular weight rating or less which has a vehicular curb weight of six thousand (6,000) pounds or less and which has a basic vehicle frontal area of forty-five (45) square feet or less, which is:

- (1) Designed primarily for purposes of transportation of property or is a derivation of such a vehicle;

- (2) Designed primarily for transportation of persons and has a capacity of more than twelve (12) persons; or
- (3) Available with special features enabling off-street or off-highway operation and use.

Lowest floor means the lowest floor of the lowest enclosed area of a building or structure, including basement, but excluding any unfinished or flood-resistant enclosure, other than a basement, usable solely for vehicle parking, building access or limited storage, provided that such enclosure is not built so as to render the structure in violation of the non-elevation requirements of the Florida Building Code or ASCE 24. (Also defined in FBC, B, section 202.)

Manufactured home means a structure, transportable in one (1) or more sections, which is eight (8) feet or more in width and greater than four hundred (400) square feet, and which is built on a permanent, integral chassis and is designed for use with or without a permanent foundation when attached to the required utilities. The term "manufactured home" does not include a recreational vehicle or park trailer. (Also defined in 15C-1.0101, FAC)

Manufactured home park or subdivision means a parcel (or contiguous parcels) of land divided into two (2) or more manufactured home lots for rent or sale.

Market value means the price at which a property will change hands between a willing buyer and a willing seller, neither party being under compulsion to buy or sell and both having reasonable knowledge of relevant facts. As used in this article, the term "market value" refers to the market value of buildings and structures, excluding the land and other improvements on the parcel. Market value may be established by a qualified independent appraiser, actual cash value (replacement cost depreciated for age and quality of construction), or tax assessment value adjusted to approximate market value by a factor provided by the property appraiser.

New construction means for the purposes of administration of this article and the flood resistant construction requirements of the Florida Building Code, structures for which the start of construction commenced on or after September 29, 1972 and includes any subsequent improvements to such structures.

New manufactured home park or subdivision means a manufactured home park or subdivision for which the

construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after September 29, 1972.

Park trailer means a transportable unit which has a body width not exceeding fourteen (14) feet and which is built on a single chassis and is designed to provide seasonal or temporary living quarters when connected to utilities necessary for operation of installed fixtures and appliances. (Defined in F.S. § 320.01).

Recreational vehicle means a vehicle, including a park trailer, which is: (See in F.S. § 320.01).

- (1) Built on a single chassis;
- (2) Four hundred (400) square feet or less when measured at the largest horizontal projection;
- (3) Designed to be self-propelled or permanently towable by a light-duty truck; and
- (4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Special flood hazard area means an area in the floodplain subject to a one (1) percent or greater chance of flooding in any given year. Special flood hazard areas are shown on FIRMs as zone A, AO, A1-A30, AE, A99, AH, V1-V30, VE or V. (Also defined in FBC, B section 202.)

Start of construction means the date of issuance of permits for new construction and substantial improvements, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement is within one hundred eighty (180) days of the date of the issuance. The actual start of construction means either the first placement of permanent construction of a building (including a manufactured home) on a site, such as the pouring of slab or footings, the installation of piles, or the construction of columns. Permanent construction does not include land preparation (such as clearing, grading, or filling), the installation of streets or walkways, excavation for a basement, footings, piers, or foundations, the erection of temporary forms or the installation of accessory buildings such as garages or sheds not occupied as dwelling units or not part of the main buildings. For a substantial improvement, the actual start of construc-

tion means the first alteration of any wall, ceiling, floor or other structural part of a building, whether or not that alteration affects the external dimensions of the building. (Also defined in FBC, B section 202.)

Substantial damage means damage of any origin sustained by a building or structure whereby the cost of restoring the building or structure to its before-damaged condition would equal or exceed fifty (50) percent of the market value of the building or structure before the damage occurred. (Also defined in FBC, B section 202.)

Substantial improvement means any repair, reconstruction, rehabilitation, alteration, addition, or other improvement of a building or structure, the cost of which equals or exceeds fifty (50) percent of the market value of the building or structure before the improvement or repair is started. If the structure has incurred substantial damage, any repairs are considered substantial improvement regardless of the actual repair work performed. The term "substantial improvement" does not, however, include either: (Also defined in FBC, B, section 202.)

- (1) Any project for improvement of a building required to correct existing health, sanitary, or safety code violations identified by the building official and that are the minimum necessary to ensure safe living conditions.
- (2) Any alteration of a historic structure provided the alteration will not preclude the structure's continued designation as a historic structure.

Variance means a grant of relief from the requirements of this article, or the flood-resistant construction requirements of the Florida Building Code, which permits construction in a manner that would not otherwise be permitted by this article or the Florida Building Code.

Watercourse means a river, creek, stream, channel or other topographic feature in, on, through or over which water flows at least periodically.

(Code 1983, § 7-83; Ord. No. 19-02, § 2, 4-24-2019)

DIVISION 2. FLOOD-RESISTANT DEVELOPMENT

Sec. 7-84. Buildings and structures.

Pursuant to section 7-78(c), buildings, structures, and facilities that are exempt from the Florida Building

Code, including substantial improvement or repair of substantial damage of such buildings, structures and facilities, shall be designed and constructed in accordance with the flood load and flood resistant construction requirements of ASCE 24. Structures exempt from the Florida Building Code that are not walled and roofed buildings shall comply with the requirements of section 7-89.

(Code 1983, § 7-84; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-85. Subdivisions.

(a) *Minimum requirements.* Subdivision proposals, including proposals for manufactured home parks and subdivisions, shall be reviewed to determine that:

- (1) Such proposals are consistent with the need to minimize flood damage and will be reasonably safe from flooding;
- (2) All public utilities and facilities such as sewer, gas, electric, communications, and water systems are located and constructed to minimize or eliminate flood damage; and
- (3) Adequate drainage is provided to reduce exposure to flood hazards; in zones AH and AO, adequate drainage paths shall be provided to guide floodwaters around and away from proposed structures.

(b) *Subdivision plats.* Where any portion of proposed subdivisions, including manufactured home parks and subdivisions, lies within a flood hazard area, the following shall be required:

- (1) Delineation of flood hazard areas and flood zones, and design flood elevations, as appropriate, shall be shown on preliminary plats;
- (2) Where the subdivision has more than fifty (50) lots or is larger than five (5) acres and base flood elevations are not included on the FIRM, the base flood elevations are determined in accordance with section 7-79(b)(1); and
- (3) Compliance with the site improvement and utilities requirements of section 7-86.

(Code 1983, § 7-85; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-86. Site improvements, utilities and limitations.

(a) *Minimum requirements.* All proposed new development shall be reviewed to determine that:

- (1) Such proposals are consistent with the need to minimize flood damage and will be reasonably safe from flooding;

- (2) All public utilities and facilities such as sewer, gas, electric, communications, and water systems are located and constructed to minimize or eliminate flood damage; and
- (3) Adequate drainage is provided to reduce exposure to flood hazards; in zones AH and AO, adequate drainage paths shall be provided to guide floodwaters around and away from proposed structures.

(b) *Sanitary sewage facilities.* All new and replacement sanitary sewage facilities, private sewage treatment plants (including all pumping stations and collector systems), and on-site waste disposal systems shall be designed in accordance with the standards for onsite sewage treatment and disposal systems in FAC ch. 64E-6, FAC and ASCE 24 ch. 7 to minimize or eliminate infiltration of floodwaters into the facilities and discharge from the facilities into flood waters, and impairment of the facilities and systems.

(c) *Water supply facilities.* All new and replacement water supply facilities shall be designed in accordance with the water well construction standards in FAC ch. 62-532.500 and ASCE 24 ch. 7 to minimize or eliminate infiltration of floodwaters into the systems.

(d) *Limitations on placement of fill.* Subject to the limitations of this article, fill shall be designed to be stable under conditions of flooding including rapid rise and rapid drawdown of floodwaters, prolonged inundation, and protection against flood-related erosion and scour. In addition to these requirements, if intended to support buildings and structures (zone A only), fill shall comply with the requirements of the Florida Building Code.

(Code 1983, § 7-86; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-87. Manufactured homes, recreational vehicles and park trailers.

(a) *Generally.* All manufactured homes installed in flood hazard areas shall be installed by an installer that is licensed pursuant to F.S. § 320.8249 and shall comply with the requirements of FAC ch. 15C-1, FAC and the requirements of this article.

(b) *Foundations.* All new manufactured homes and replacement manufactured homes installed in flood hazard areas shall be installed on permanent, reinforced foundations that are designed in accordance with the foundation requirements of the Florida Build-

ing Code Residential section R322.2 and this article. Foundations for manufactured homes subject to subsection (f) of this section are permitted to be reinforced piers or other foundation elements of at least equivalent strength.

(c) *Anchoring.* All new manufactured homes and replacement manufactured homes shall be installed using methods and practices which minimize flood damage and shall be securely anchored to an adequately anchored foundation system to resist flotation, collapse or lateral movement. Methods of anchoring include, but are not limited to, use of over-the-top or frame ties to ground anchors. This anchoring requirement is in addition to applicable state and local anchoring requirements for wind resistance.

(d) *Elevation.* Manufactured homes that are placed, replaced, or substantially improved shall comply with subsection (e) or (f) of this section, as applicable.

(e) *General elevation requirement.* Unless subject to the requirements of subsection (f) of this section, all manufactured homes that are placed, replaced, or substantially improved on sites located: (a) outside of a manufactured home park or subdivision; (b) in a new manufactured home park or subdivision; (c) in an expansion to an existing manufactured home park or subdivision; or (d) in an existing manufactured home park or subdivision upon which a manufactured home has incurred substantial damage as the result of a flood, shall be elevated such that the bottom of the frame is at or above the elevation required, as applicable to the flood hazard area, in the Florida Building Code, Residential section R322.2 (zone A).

(f) *Elevation requirement for certain existing manufactured home parks and subdivisions.* Manufactured homes that are not subject to subsection (e) of this section, including manufactured homes that are placed, replaced, or substantially improved on sites located in an existing manufactured home park or subdivision, unless on a site where substantial damage as result of flooding has occurred, shall be elevated such that either the:

- (1) Bottom of the frame of the manufactured home is at or above the elevation required in the Florida Building Code, Residential section R322.2 (zone A); or

- (2) Bottom of the frame is supported by reinforced piers or other foundation elements of at least equivalent strength that are not less than thirty-six (36) inches in height above grade.

(g) *Enclosures.* Enclosed areas below elevated manufactured homes shall comply with the requirements of the Florida Building Code, residential section R322.2, for such enclosed areas.

(h) *Utility equipment.* Utility equipment that serves manufactured homes, including electric, heating, ventilation, plumbing, and air conditioning equipment and other service facilities, shall comply with the requirements of the Florida Building Code, residential section R322.

(i) *Temporary placement of recreational vehicles and park trailers.* Recreational vehicles and park trailers placed temporarily in flood hazard areas shall:

- (1) Be on the site for fewer than one hundred eighty (180) consecutive days; or
- (2) Be fully licensed and ready for highway use, which means the recreational vehicle or park model is on wheels or jacking system, is attached to the site only by quick-disconnect type utilities and security devices, and has no permanent attachments such as additions, rooms, stairs, decks and porches.

(j) *Permanent placement of recreational vehicles and park trailers.* Recreational vehicles and park trailers that do not meet the limitations in subsection (i) of this section for temporary placement shall meet the requirements of subsections (a) through (h) of this section for manufactured homes.

(Code 1983, § 7-87; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-88. Tanks.

(a) *Underground tanks.* Underground tanks in flood hazard areas shall be anchored to prevent flotation, collapse or lateral movement resulting from hydrodynamic and hydrostatic loads during conditions of the design flood, including the effects of buoyancy assuming the tank is empty.

(b) *Aboveground tanks, not elevated.* Aboveground tanks that do not meet the elevation requirements of subsection (c) of this section shall be permitted in flood hazard areas provided the tanks are anchored or otherwise designed and constructed to prevent flotation,

collapse or lateral movement resulting from hydrodynamic and hydrostatic loads during conditions of the design flood, including the effects of buoyancy assuming the tank is empty and the effects of flood-borne debris.

(c) *Aboveground tanks, elevated.* Aboveground tanks in flood hazard areas shall be elevated to or above the design flood elevation and attached to a supporting structure that is designed to prevent flotation, collapse or lateral movement during conditions of the design flood. Tank-supporting structures shall meet the foundation requirements of the applicable flood hazard area.

(d) *Tank inlets and vents.* Tank inlets, fill openings, outlets and vents shall be:

- (1) At or above the design flood elevation or fitted with covers designed to prevent the inflow of floodwater or outflow of the contents of the tanks during conditions of the design flood; and
- (2) Anchored to prevent lateral movement resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy, during conditions of the design flood.

(Code 1983, § 7-88; Ord. No. 19-02, § 2, 4-24-2019)

Sec. 7-89. General requirements for other development.

All development, including manmade changes to improved or unimproved real estate for which specific provisions are not specified in this article or the Florida Building Code, shall:

- (1) Be located and constructed to minimize flood damage;
- (2) Be anchored to prevent flotation, collapse or lateral movement resulting from hydrostatic loads, including the effects of buoyancy, during conditions of the design flood;
- (3) Be constructed of flood damage-resistant materials; and
- (4) Have mechanical, plumbing, and electrical systems above the design flood elevation or meet the requirements of ASCE 24, except that minimum electric service required to address life safety and electrical code requirements is permitted below the design flood elevation provided it conforms to the provisions of the electrical part of building code for wet locations.

vided it conforms to the provisions of the electrical part of building code for wet locations.

(Code 1983, § 7-89; Ord. No. 19-02, § 2, 4-24-2019)

ARTICLE VII. WIRELESS COMMUNICATIONS SYSTEMS*

Sec. 7-90. Purpose.

It is the intent of this article to establish appropriate locations, site development standards, and permit requirements to allow for communication towers and antennas within the city limits. This article shall be enforced to allow communication towers and antennas to be constructed on city-owned property or any other property in a manner which is consistent with the physical character of the city. It is the intent of this article to encourage collocation or multi-users, to reduce the number of communication towers needed within the city's limits. It is also the sincere intent of this article to minimize adverse visual effects of communication towers and antennas through careful designing, siting and landscape screening.

(Code 1983, § 7-90; Ord. No. 97-4, § 1(I)(A), 6-25-1997)

Sec. 7-91. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Antenna means a transmitting or receiving device, mounted on an antenna tower or any support thereto, used in communications that radiates or captures electromagnetic waves, digital signals, analog signals, radio frequencies (excluding radar signals), wireless telecommunications signals or other communication signals.

Antenna tower means a structure which is principally intended to support and facilitate communication equipment and/or antennas for radio, telephone, and similar communication purposes. The term "antenna tower" shall not include towers utilized by amateur radio operators not permitted by the Federal Communications Commission (FCC). Antenna towers are generally described as either monopole, lattice, or guyed.

*State law reference—Use of right-of-way by utilities, F.S. § 337.401 et seq.

City-owned property means any real or personal property owned by the city within and without the city's limits.

Collocation means the use of a single-support structure and/or site by more than one (1) wireless communication provider.

Guyed tower means a communication tower that is supported in whole, or in part, by guy wires and ground anchors.

Lattice tower means a self-supporting communication tower, that is constructed without guy wires and ground anchors.

Monopole means a freestanding communication tower consisting of a single-pole or spire supported by a permanent foundation, construction without anchored guy wires.

Right of first refusal means that an applicant, owner or operator of a proposed antenna or tower shall first consult with the city and shall make a reasonable determination whether city-owned property (real or personal) is available and feasible for the proposed antenna or tower. If the determination is made that city property is available and feasible for location of the antenna or tower, then the applicant, owner or operator, and the city shall use their best efforts to negotiate and agree upon reasonable terms and conditions pertaining to siting of the antenna or tower. If the determination is made that there is no city property available and feasible, then the applicant, owner or operator may consider locating its antenna or tower on privately owned property.

Telecommunication systems includes both antennas and towers.
(Code 1983, § 7-91; Ord. No. 97-4, § 1(I)(B), 6-25-1997)

Sec. 7-92. Reserved.

Sec. 7-93. Telecommunications site development permit.

A telecommunications site development permit shall be required of any telecommunications carrier who desires to occupy any property within the city's limits, for the purpose of providing telecommunications services.
(Code 1983, § 7-93; Ord. No. 97-4, § 1(I)(C), 6-25-1997)

Sec. 7-94. Business tax receipt required; fee.

(a) The owner of the antenna or tower communication system shall, prior to commencement of operations, obtain from the city business tax receipts and shall pay to the city a business tax to be known as a telecommunications system owner's or operator's business license taxes. This tax is applicable even where city-owned property is being used for the construction and maintaining of antennas and towers.

(b) The following is the schedule of business taxes payable:

Wireless telecommunications towers serving as a base for one or more antennas: one thousand dollars (\$1,000.00).

Each additional provider, per antenna: one thousand dollars (\$1,000.00).

(c) In order to permit the city to retain sufficient facilities and personnel to provide the government services commensurate with the cost of regulatory activity required by the City's Code of Ordinances, a telecommunications owner or operator shall pay to the city its (annual) business tax beginning October 1 of each fiscal year.

(d) Applicants for an antenna or tower communications system owner's or operator's business tax receipt desiring to begin business after April 1 of any fiscal year shall pay to the city a fee of one-half ($\frac{1}{2}$) of the annual fee. Upon payment of the fee for the succeeding fiscal year on or before October 1, the city shall give credit to the telecommunications system owner or operator of a sum representing one-twelfth ($\frac{1}{12}$) of the tax previously paid for each full month between April 1 and the date the telecommunications system owner's or operator's business tax receipt was issued. Thereafter, the telecommunications system owner or operator shall, prior to October 1 of each fiscal year, pay the license fee without further credit.

(e) All applicants for a telecommunications systems business tax receipt, prior to the issuance of the business tax, shall comply with all requirements herein proscribed.
(Code 1983, § 7-94; Ord. No. 97-4, § 1(I)(D), 6-25-1997)

Sec. 7-95. Construction permits.

All permittees are required to obtain construction permits for the installation of telecommunications fa-

cilities by application submitted to the department of buildings and licensing, as required in this Code; provided, however, that nothing in this section shall prohibit the city and a permittee from agreeing to alternative plan review, permit and/or construction procedures in a lease agreement, provided such alternative procedures provide substantially equivalent safeguards for responsible construction practices.

(Code 1983, § 7-95; Ord. No. 97-4, § 1(I)(E), 6-25-1997)

Sec. 7-96. Permit application.

(a) *General provisions.* Any person, firm or corporation that desires a telecommunications permit pursuant to this section shall file an application with the city which shall include the following information:

- (1) The identity of the applicant, including all affiliates of the applicant.
- (2) A description of the telecommunications services that are, will be offered or provided by permittee over its telecommunications facilities.
- (3) Preliminary engineering plans and specifications of the facilities to be located within the city, all in sufficient detail to identify:
 - a. The location and legal description of the lands proposed to be used. City-owned property shall be considered first under the city's right of first refusal provisions.
 - b. The specific trees, structures, improvements, facilities, and obstructions, if any, that proposes to temporarily or permanently remove or relocate.
- (4) A preliminary construction schedule and completion date.
- (5) Information in sufficient detail to establish the applicant's technical qualifications, experience and expertise regarding the telecommunications and services described in the application.
- (6) Information to establish that the applicant has obtained all other governmental approvals and permits to construct and operate the facilities and to offer or provide the telecommunications services.
- (7) Such other and further information as may be required by the city manager.

(b) *Municipal property.* If an applicant requests a permit to develop a site on city-owned property, the permit granted hereunder shall not become effective until the applicant and the city have executed a written agreement or lease setting forth the particular terms and provisions under which the permit to occupy and use the public lands of the city will be granted.

(Code 1983, § 7-96; Ord. No. 97-4, § 1(I)(F), 6-25-1997)

Sec. 7-97. Appeal.

(a) If a permit is denied by the building official for noncompliance with the zoning regulations provided in the city's land development regulations, then the applicant may appeal the decision to the planning and zoning board which shall then consider the permit application at a public meeting and recommend to the commission to uphold or overrule the denial of the permit. The commission shall make the final decision, by resolution.

(b) If a permit is denied, or conditions imposed, then the commission shall consider the action taken upon review of the following factors:

- (1) The technical and practical necessity for the installation of the communication antenna tower.
- (2) Alternative measures or modifications that could be made to preserve the character of the neighborhood and to prevent aesthetic blight if installation were permitted.

(c) If a permit is denied by the building official for reasons other than noncompliance with zoning regulations, excluding the Florida Building Code, Miami-Dade County Edition, then the applicant may appeal the decision directly to the commission, who shall make the final decision, by resolution.

(Code 1983, § 7-97; Ord. No. 97-4, § 1(I)(G), 6-25-1997)

Sec. 7-98. Owner's and operator's obligations.

It shall be the obligation and duty of the owner and/or operator of all towers and antennas constructed and maintained with the city to:

- (1) *Installation.*
 - a. The installation and modification of a communication tower and communication antenna shall be in accordance with the manufacturer's prescribed installa-

- tion and safety procedures and shall meet the requirements of the Florida Building Code, Miami-Dade County Edition, as amended.
- b. Foundations for communication towers and appurtenances thereto shall be constructed and installed so as to withstand the forces due to wind pressure as provided in the Florida Building Code, Miami-Dade County Edition, as amended.
 - c. All such installation shall conform to the Florida Building Code, Miami-Dade County Edition, as amended, National Electrical Code, as amended, FAA regulations, as amended, and FCC regulations, as amended.
 - d. Regardless of whether a permit is required for the installation of the communication tower, separate building permits for structural or electrical work, pouring concrete or other work may be required as provided in the Florida Building Code, Miami-Dade County Edition, as amended.
- (2) *Operation and management.* Operate and manage the communications towers and antennas in such manner as to maintain health and safety, minimize adverse visual effects of communication towers and antennas through careful landscaping and innovative techniques of camouflage consistent with the provisions herein.
 - (3) *Warning signs for high voltage and trespassing.* If high voltage is necessary for the operation of the communication tower or any accessory structures, "HIGH VOLTAGE—DANGER" warning signs shall be permanently attached to the fence or wall and spaced no more than forty (40) feet apart.
 - (4) *Warning signs for trespassing.* "NO TRESPASSING" warning signs shall be permanently attached and maintained to the fence or wall and spaced no more than forty (40) feet apart in the manner and size as required herein.
 - (5) *Inspection.* The department of buildings and licensing may require periodic inspections of communication towers to ensure structural and

electrical integrity and compliance with the Florida Building Code, Miami-Dade County Edition, as amended, the City's Code of Ordinances, as amended, and other applicable codes and regulations. Communication towers shall be inspected once every five (5) years by a state-licensed engineer and the results submitted to the department of buildings and licensing. Based upon the results of the inspection, the building official may require repair or removal of a communication tower.

(Code 1983, § 7-98; Ord. No. 97-4, § 1(I)(H), 6-25-1997)

Sec. 7-99. Development plan, conditions of approval, fees and costs.

(a) The preliminary development plan shall be certified by a registered engineer of the state as meeting all laws, the requirements of this Code and the requirements of all affected jurisdictions. The tower communications system developer, owner, or operator shall pay to the city with the preliminary plan a fee of five hundred dollars (\$500.00), together with an agreement to reimburse the city for use of the city planner, engineer, attorney, and other contractual personnel and services together with all statutory fees and costs and expenses of publication, notices, duplication, etc. The cost of the city classified and unclassified personnel shall be charged on an hourly basis in accordance with the current budget of the city. Additional fees shall be paid within ten (10) days after billing by the city and prior to the issuance of any permits or licenses.

(b) All tower communications systems shall be permitted in accordance with an approved development plan in appropriate zoning districts at a specific location at the recommendation of the planning and zoning board and approval of the commission after a public hearing where it is demonstrated that the development plan shows as to the specific location that the project shall not cause:

- (1) Traffic congestion or hazards from entry and exit from the premises;
- (2) Fire, sanitation or safety hazards within the premises on surrounding property or streets;
- (3) The development plan may be amended from time to time subject to the same costs, fees, and

procedures which relate to the preliminary development plan as set forth in subsection (b)(1) of this section.

(Code 1983, § 7-99; Ord. No. 97-4, § 1(I)(I), 6-25-1997)

Sec. 7-100. Approval of plans, layout and facilities.

Before submission of construction plans and drawings, the owners and operators of any tower telecommunications system shall submit a preliminary development plan to the city's planning and zoning board. The proposed development plan shall:

- (1) Describe the location and legal description of the lands proposed to be used. City-owned property shall be proposed first under the city's right of first refusal provisions.
- (2) Designate the current zoning of lands and whether or not an application will be made to the city for zoning change, waiver of plat, or variances of any nature from the existing zoning regulations or Code requirements.
- (3) Set forth the plan by which the tower telecommunications system will meet the requirements of the Code of Ordinances for zoning and other requirements.
- (4) Provide a copy of the survey of the property, plat and proposed layout of the tower communications system thereon.
- (5) Include in the site plan the location of access roads, entrances and exits, fire lanes within the premises, fences proposed uses thereof, landscaping and other improvements and requirements of the Code of Ordinances.
- (6) While it is the obligation of the owners and operators of the tower telecommunications system to construct the facilities in accordance with the ordinances of the city and applicable zoning, building, and other regulatory codes, the appropriate department of the city shall provide, as a courtesy, information and suggestions relating to the safety and compliance with procedures applicable to the development and construction of the facilities.
- (7) In the event of zoning changes, variances, or plat waivers shall be requested in relation to the project, said requests shall be submitted to the proper board and approved by the city in

accordance with the applicable ordinances prior to submission of construction plans and drawings.

(Code 1983, § 7-100; Ord. No. 97-4, § 1(I)(J), 6-25-1997)

Sec. 7-101. Antennas.

(a) *Minimum standards.* All building-mounted or rooftop antennas shall be subject to the following minimum standards:

- (1) Antennas, and related equipment buildings, shall be located or screened to minimize the visual impact of the antenna upon adjacent properties and shall be of a material or color which matches the exterior of the building or structure upon which it is situated.
- (2) No commercial advertising or logo shall be allowed on an antenna or tower.
- (3) No signals, light, or illumination shall be permitted on an antenna or tower, unless required by the Federal Communications Commission or the Federal Aviation Administration.

(b) *Dimensions.*

- (1) Whip (omni-directional) antennas and their supports must not exceed fifteen (15) feet in height and three (3) inches in diameter and must be constructed of a material or color which matches the exterior of the building.
- (2) Microwave dish antennas located below sixty-five (65) feet above the ground may not exceed six (6) feet in diameter. Microwave dish antennas located sixty-five (65) feet and higher above the ground may not exceed eight (8) feet in diameter. Ground-mounted dish antennas must be located or screened so as not to be visible from abutting public streets.

(c) *Limitations.* No more than four (4) dish antennas shall be installed on a monopole tower.

(Code 1983, § 7-101; Ord. No. 97-4, § 1(I)(K), 6-25-1997)

Sec. 7-102. Minimum standards for communication towers.

Communication towers shall be subject to the following minimum standards:

- (1) *Height.* The height of a communication tower shall not exceed one hundred fifty (150) feet. Tower height shall be measured from the crown of the road of the nearest public street.

- (2) *Type.* All communication towers shall be designed and constructed with the capacity of supporting a minimum of two (2) colocation connections.
 - (3) *Aircraft hazard.* Communication towers or antennas shall be approved by the Federal Aviation Administration (FAA), county aviation authority or other appropriate agency prior to issuance of a building permit by the city.
 - (4) *FCC emissions standards.* All proposed communication towers shall comply with current radio frequency emissions standards of the Federal Communications Commission.
 - (5) *Landscaping.* All communication tower sites must comply with the landscaping requirements of the county landscaping code and manuals, as amended.
 - a. Landscaping, consistent with the requirements of the county landscaping code and manuals, as amended, shall be installed around the entire perimeter of the fence or wall. Additional landscaping may be required around the perimeter of the fence or wall and around any or all anchors or supports if deemed necessary to buffer adjacent properties. The building official, upon site plan review, may require landscaping in excess of the above requirements as is deemed reasonably necessary in order to enhance compatibility with adjacent residential and nonresidential land uses. Landscaping shall be installed on the outside of the perimeter wall.
 - b. Landscaping, consistent with the requirements of the county landscaping code and manuals, as amended, shall be installed around any accessory buildings or structures.
 - c. A row of shade trees, at least eight (8) feet in height, at a maximum distance of ten (10) feet apart, shall be planted around the perimeter of the fence.
 - d. A continuous hedge at least thirty (30) inches in height at planting and capable of growing to a height of thirty-six (36) inches within eighteen (18) months shall be planted on the outside of the perimeter fence and tree line.
 - e. All landscaping shall be properly maintained to ensure good health and viability.
 - (6) *Equipment storage.* Mobile or immobile equipment not used in direct support of a tower facility shall not be stored or parked on the site of the communication tower unless repairs to the tower are being made.
- (Code 1983, § 7-102; Ord. No. 97-4, § 1(I)(L), 6-25-1997)

Sec. 7-103. Special exception.

The city, upon application, may permit the siting of an antenna on any park or recreational property less than eight (8) acres in size upon presentation of conclusive evidence and demonstration by the applicant that there are no other suitable locations which would physically accommodate the antenna tower without reasonably compromising the communication systems capability, and without significantly increasing any negative antenna tower secondary effects of aesthetics or likelihood of property damage in the event of antenna tower failure.

(Code 1983, § 7-103; Ord. No. 97-4, § 1(I)(M), 6-25-1997)

Sec. 7-104. Exemption.

Antennas/towers for which application for site plan approval was made or building permits were issued prior to October 23, 1996, may be exempted with the approval of the city manager from the requirements of location but shall abide by all other provisions on business tax receipt fees, maintenance, landscaping, minimum standards, FCC emissions standards, FAA standards, restrictions on storage, lease agreements for city-owned property, if applicable, and any other standard or restriction as provided herein.

(Code 1983, § 7-104; Ord. No. 97-4, § 1(I)(N), 6-25-1997)

Sec. 7-105. Location of facilities.

Unless otherwise specified in a permit or grant/lease agreement, all facilities shall be constructed, installed and located in accordance with this Code, the city's

land development regulations and applicable provisions of the Florida Building Code, Miami-Dade County Edition.

(Code 1983, § 7-105; Ord. No. 97-4, § 1(I)(O), 6-25-1997)

Sec. 7-106. Shared use of antenna towers.

(a) In order to minimize the adverse visual impacts associated with the rapid succession and clustering of antenna towers, collocation of communication antennas by more than one (1) carrier on a new antenna tower shall take precedence over the construction and erection of a new single-use antenna.

(b) Accordingly, each applicant for a new single-use antenna shall be required to demonstrate why collocation is not possible. Further, the city may deny an application if an available collocation is feasible, and the application is not for such collocation.

(Code 1983, § 7-106; Ord. No. 97-4, § 1(I)(P), 6-25-1997)

Sec. 7-107. Lease agreements and rights.

(a) *Generally.* No site development permit granted hereunder shall be effective until the applicant and the city have executed a written agreement setting forth the particular terms and provisions under which the permit to occupy and use the public land of the city will be granted.

(b) *Lease payment to the city.* Each permit granted under this section is subject to the city's right, which expressly reserved, to (annually, by resolution), fix a reasonable and fair lease payment to be paid for the property rights granted to the permittee; provided, nothing in this section shall prohibit the city and a permittee from agreeing to the lease payment to be paid.

(c) *Nonexclusive grant/lease agreement.* No permit granted under this section shall confer any exclusive right, privilege, permit or franchise to occupy or use the public lands of the city for delivery of telecommunication services or any other purposes.

(d) *Rights granted/leased.* No permit granted under this section shall convey any right, title or interest in the public lands, but shall be deemed a permit only to lease, use and occupy the public lands for the limited pur-

poses and term stated in the grant/lease agreement. Further, no permit shall be construed as any warranty of title.

(e) *Service to city users.* A permittee may be permitted to offer or provide telecommunication services to persons or areas within the city's limits upon submitting an application for approval of such services to the commission of the city.

(Code 1983, § 7-107; Ord. No. 97-4, § 1(I)(Q), 6-25-1997)

Sec. 7-108. Renewal applications.

(a) A lessee that wishes to renew its lease, under this section shall, not more than one hundred eighty (180) days nor less than ninety (90) days before expiration of the current lease, file an application with the city for renewal of its lease which shall include the following information:

(1) The information required pursuant to section 7-94.

(2) Any information required pursuant to the lease agreement between the city and the lessee.

(Code 1983, § 7-108; Ord. No. 97-4, § 1(I)(R), 6-25-1997)

Sec. 7-109. Obligation to cure as a condition of renewal.

No permit shall be renewed until any ongoing violations or defaults in the lessee's performance of the lease agreement, or of the requirements of this section, have been cured, or a plan detailing the corrective action to be taken by the lessee has been approved by the city.

(Code 1983, § 7-109; Ord. No. 97-4, § 1(I)(S), 6-25-1997)

Sec. 7-110. Enforcement of article provisions; cease and desist order.

The enforcement of this article shall be the responsibility of the department of buildings and licensing. The code enforcement officer shall at least once each month inspect the premises, obtain information required by this article and certify in writing to the chief of police, city clerk, building official and other departments of the city having responsibility for ensuring compliance with this Code. In the event the owner and operator of the tower communication system fails to

comply with the provisions of this Code, the code enforcement officer shall issue a cease and desist order, pursuant to section 2-88. In addition, the penalties provided herein shall be enforceable against any convicted violators of the provisions of this article.
(Code 1983, § 7-110; Ord. No. 97-4, § 1(I)(T), 6-25-1997)

Chapter 7.5

RESERVED

Chapter 8

CIVIL DEFENSE AND DISASTERS*

Article I. In General

- Sec. 8-1. County-wide mutual aid plan.
- Sec. 8-2—8-4. Reserved.
- Sec. 8-5. Declaration of disaster or state of emergency.
- Secs. 8-6—8-14. Reserved.

Article II. Continuity of Government

- Sec. 8-15. Definitions.
- Sec. 8-16. Procedures governing emergency succession to office.
- Sec. 8-17. Assumption of officer by emergency successor.
- Sec. 8-18. Recording and publication of successors.
- Sec. 8-19. Formalities of taking office.
- Sec. 8-20. Quorum and vote requirement.

*State law references—Disaster preparedness generally, F.S. ch. 252; Municipal Home Rule Powers Act, F.S. ch. 166.

ARTICLE I. IN GENERAL

Sec. 8-1. County-wide mutual aid plan.

The city manager, chief of police, and the directors of all departments in any way concerned with transportation, public works, rescue, utilities, medical and health are hereby directed to familiarize themselves with the conditions of the county-wide mutual aid plan and stand ready to cooperate and lend aid and assistance when called upon by the director of the county civil defense organization or by any other member of the county-wide mutual aid plan.

(Code 1955, § 2-7.2; Code 1983, § 8-1)

Sec. 8-2—8-4. Reserved.

Sec. 8-5. Declaration of disaster or state of emergency.

The mayor may declare a disaster or state of emergency pursuant to F.S. § 870.042 as a result of any manmade or natural disaster within the city.

(Code 1983, § 8-5; Ord. No. 80-17, § 3, 9-10-1980)

Secs. 8-6—8-14. Reserved.

ARTICLE II. CONTINUITY OF GOVERNMENT*

Sec. 8-15. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Attack means any attack or series of attacks by any enemy of the United States causing, or which may cause, substantial damage or injury to civilian property or persons in the United States in any manner, by sabotage or by the use of bombs, missiles, shellfire, or atomic, radiological, chemical, bacteriological or biological means or other weapons or processes.

Duly authorized means a person who is presently authorized to perform all of the functions, exercise all the powers and discharge all of the duties of an office in

*State law references—Emergency continuity of government generally, F.S. ch. 22; emergency interim successors for local officers, F.S. § 22.06.

the event the office is vacant or at such times as it lacks administration due to the death, absence or disability of the incumbent officer.

Emergency interim successor means a person designated pursuant to this article for possible temporary succession in the event that such officers or any duly authorized deputy is unavailable to exercise the powers and discharge the duties of the office.

Unavailable means either that a vacancy in office exists and there is no deputy authorized to exercise all of the powers and discharge the duties of the office, or that the lawful incumbent of the office and his duly authorized deputy are absent, or unable, for physical, mental or legal reasons, to exercise the powers and discharge the duties of the office.

(Code 1955, § 2-71; Code 1983, § 8-15)

Sec. 8-16. Procedures governing emergency succession to office.

In order to ensure legally constituted leadership, authority and responsibility in the executive offices of the city in the event of enemy attack, and to provide for the continuation of essential functions of civil government during such periods of emergency, the following procedures governing automatic interim emergency succession to office in the event of the unavailability of the duly elected or appointed officials are hereby established:

- (a) Each duly elected commissioner or other elected city official shall designate, by title, if feasible, or by named person, not less than three (3) nor more than seven (7) emergency interim successors to his office and specify their order of succession.
- (b) It shall be incumbent upon each commissioner and other elected city official to review and revise, as necessary, the designations of emergency interim successors made pursuant to this section.
- (c) The city clerk shall maintain in current status the list of designees for emergency interim succession to the elective offices of the city and the order of their succession.
- (d) The emergency interim successor (designee) shall exercise the powers and discharge the duties of the office to which designated until such time as the vacancy created by the un-

availability of the regularly elected official shall be filled in accordance with the Charter or until the elected official (or a preceding designated emergency interim successor) again becomes available to exercise the powers and discharge the duties of his office.

- (e) Designated emergency interim successors are empowered to exercise the powers and discharge the duties of the office to which designated, only after an attack on the United States has occurred and then only by reason of the unavailability of the regular incumbent or the immediately preceding designated successor. Designated emergency interim successors are retained on the official roster of successors and in the established order of their succession at the pleasure of the designating authority, who may amend or revise such roster with or without cause.
- (f) Designated emergency interim successors shall, upon designation, take the same oath of office as prescribed for the duly elected official with the further stipulation that the designee shall be empowered to exercise the powers and duties of such office only in the event of the unavailability of the duly elected incumbent, or the immediately preceding successor, following enemy attack upon the United States. No other oath of office shall be required for succession to the office under the conditions stated herein.

(Code 1955, § 2-72; Code 1983, § 8-16)

Sec. 8-17. Assumption of officer by emergency successor.

If, in the event of an attack, any officer named in section 8-16(a) and any duly authorized deputy is unavailable, his emergency interim successor highest in rank in order of succession who is not unavailable shall, except for the power and duty to appoint emergency interim successors, exercise the powers and discharge the duties of such office. An emergency interim successor shall exercise these powers and discharge these duties only until such time as the lawful incumbent officer or any duly authorized deputy or an emergency interim successor higher in rank in order of succession exercises or resumes the exercise of the powers and discharge of the duties of the office, or until,

where an actual vacancy exists, a successor is appointed to fill such vacancy or is elected and qualified as provided by law.

(Code 1955, § 2-73; Code 1983, § 8-17)

Sec. 8-18. Recording and publication of successors.

The name, address and rank in order of succession of each duly authorized deputy shall be filed with the city clerk and each designation, replacement or change in order of succession of an emergency interim successor shall become effective when the city commission files with the city clerk the successor's name, address and rank in order of succession. The city clerk shall keep on file all such data regarding duly authorized deputies and emergency interim successors and it shall be open to public inspection.

(Code 1955, § 2-74; Code 1983, § 8-18)

Sec. 8-19. Formalities of taking office.

At the time of their designation, emergency interim successors shall take such oath and do such things, if any, as may be required to qualify them to exercise the powers and discharge the duties of the office to which they may succeed.

(Code 1955, § 2-75; Code 1983, § 8-19)

Sec. 8-20. Quorum and vote requirement.

In the event of an attack, quorum requirements for the city commission shall be suspended, and where the affirmative vote of a specified proportion of members for an approval of an ordinance, resolution or other action would otherwise be required, the same proportion of those voting thereon shall be sufficient.

(Code 1955, § 2-76; Code 1983, § 8-20)

Chapter 8.1

RESERVED

Chapter 8.2

ENVIRONMENT*

Article I. In General

Secs. 8.2-1—8.2-20. Reserved.

Article II. Tree Protection and Conservation

Sec. 8.2-21.	Definitions.
Sec. 8.2-22.	Permit required.
Sec. 8.2-23.	Tree permit required as condition to tree removal pursuant to development or land clearing.
Sec. 8.2-24.	Tree permit review.
Sec. 8.2-25.	Criteria for tree permit review.
Sec. 8.2-26.	Tree removal and replacement.
Sec. 8.2-27.	Bond for tree relocation, replacement, or dripline encroachment.
Sec. 8.2-28.	Tree trust fund.
Sec. 8.2-29.	Standards for tree protection during development.
Sec. 8.2-30.	Exemptions.
Sec. 8.2-31.	Tree variance.
Sec. 8.2-32.	Enforcement.
Sec. 8.2-33.	Penalties.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

ARTICLE I. IN GENERAL

Secs. 8.2-1—8.2-20. Reserved.

ARTICLE II. TREE PROTECTION AND CONSERVATION

Sec. 8.2-21. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

ABH (area at breast height) means the area in square inches at breast height (four and one-half (4 ½) feet above ground level) of a tree according to the formula where r is the radius of the tree in inches at breast height diameter.

Bond means security in a form acceptable to and payable to the city in an amount equal to the fair market value of the replacement tree to be relocated or whose dripline may be encroached upon and given by the applicant as guarantee of replacement for a period of one (1) year. The fair market value shall be established each year and based upon published trade wholesale price lists with the appropriate multiplier representing maintenance, installation, warranty and other costs factored in, as determined an arborist or landscape architect retained by the applicant and approved by the department of planning and zoning.

Building footprint means the portion of the lot, parcel or plot upon which buildings are to be placed.

Building pad means the building footprint plus the five (5) foot distance from each of its sides.

Complete application means the application and supporting documents have addressed all applicable sections of the prescribed application and that those sections and supporting documents are sufficient in comprehensiveness of data or in quality of information provided.

DBH (diameter at breast height) means the measurement of a tree's trunk diameter in inches at breast height (four and one-half (4 ½) feet above ground level). For trees with less than four and one-half (4 ½) feet of clear trunk diameter shall be of the largest leader measured four and one-half (4 ½) feet above

ground level. For multi-trunk trees, it shall be the sum of the diameter of the individual trunks measured four and one-half (4 ½) feet above ground level.

Designated for conservation means trees which have been determined for conservation by the city as shown on an approved tree permit or areas within the city which have been determined by the county or the city as subject to conservation and as stated specifically within the tree permit as defined herein.

Dripline means the natural outside end of the branches of a tree projected vertically to the ground.

Dripline encroachment means any activity that has the effect of causing soil compaction, injury to lower limbs, grade change, contamination of soil, or damage to the root system. Specifically, the term "dripline encroachment" shall include acts such as parking of vehicles, use of heavy earth moving or grading equipment, placement of construction materials, excavation and filling, trenching, and the exposure of paints, oils, or chemicals within a tree's dripline. Specifically excluded from the term "dripline encroachment" are routine maintenance activities such as mowing or walking within the tree's dripline.

Dripline encroachment plan. This plan shall be presented as part of the tree permit and shall be required for all trees whose dripline is planned to be encroached upon by any construction, excavation, fill or other activities associated with the development of the site. It shall include:

- (i) Designation of each tree subject to any dripline encroachment;
- (ii) The reasons for the encroachment;
- (iii) Detailed description of the proposed efforts to protect the tree from damage due to the encroachment; and
- (iv) A plan to ensure it survivability per the Builder's Manual of the Department of Agriculture.

Equivalent replacement means the replacement of a removed or damaged tree to compensate for that tree's removal or its damage either with one (1) tree the same diameter or a combination of smaller trees that will equal that removed tree's DBH as defined herein. The minimums established in the landscape code of the city for tree planting may not count toward the equivalent replacement amount established here, except where re-

placement occurs on site. The replacement species shall be native trees as defined herein or trees of similar species to those removed as approved by the city manager or his designee.

Equivalent value means an amount of money, which reflects the fair market value of the required replacement trees. The current market price of replacement trees shall be established by the applicant's arborist or landscape architect in tabular form, reviewed and approved by the city manager or his designee.

Land clearing means the indiscriminate removal of trees, shrubs and/or undergrowth by stripping or any other process, with the intention of preparing real property for non-agricultural development purposes. The definition of the term "land clearing" shall not include means the selective removal of non-native tree and shrub species when the soil is left relatively undisturbed; removal of dead trees; or normal mowing operations.

Landscape manual means a document modified by the department of planning and zoning pursuant to article VII of the land development code, which provides landscape standards and a suggested guide for landscaping in accordance with this article.

Native tree means a tree of a species approved by the city manager or his designee or identified as native to this area by the Association of Florida Native Nurseries (FANN) as may be amended from time to time and incorporated herein by reference and those listed in article VII of the city land development code.

Nuisance trees means certain non-native trees, often termed exotic, specifically *Schinus terebinthifolius* (Brazilian Pepper), *Metopium toxiferum* (Poison Wood), *Melaleuca quinquenervia* (Punk Tree, Cajeput or Paper Bark), *Casuarina* spp. (Australian Pine, all species), *Brassaia actinophylla* (Schefflera), *Acacia auriculaeformis* (Earleaf Acacia), *Bischofia javanica* (Bishopwood), *Ficus benjamina* (Weeping Fig), *Ficus retusa* (Laurel Fig), *Dalbergia sissoo* (Indian Rosewood), *Ricinus communis* (Castor Bean) *Dioscorea bulbifera* (Air Potato), *Ficus benghalensis* (Banyan Fig), *Jasminum fluminense* (Brazilian Jasmine), *Neyraudia reynaudiana* (Burma Reed), *Cupaniopsis anacardioides* (Carrotwood), *Mimosa pigra* (Catclaw Mimosa), *Lygodium* spp. (Climbing Fern), *Cestrum diurnum* (Day Blooming Jessamine), *Jasminum dichotomum* (Gold Coast Jasmine), *Flacourtia indica* (Governor's Plum),

Colubrina asiatica (Lather Leaf), *Leucaena leucocephala* (Lead Tree), *Ficus altissima* (Lofty Fig), *Hibiscus tiliaceus* (Mahoe), *Pennisetum purpureum* (Napier Grass), *Tribulus cistoides* (Puncture Vine), *Adenanthera pavonina* (Red Sandalwood), *Thespesia populnea* (Seaside Mahoe), *Ardisia elliptica* (Shoebutton Ardisia), *Solanum viarum* (Tropical Soda Apple), *Albizia lebeck* (Woman's Tongue), *Merremia tuberosa* (Woodrose) and which are exempt from this section, except for permit requirement as set forth herein. There shall be no cost for this permit.

Optional cash payment means fee equal to the fair market value of the required replacement tree which may be paid by the applicant after recommendation from city staff that replacement of trees on-site or off-site pursuant to section 8.2-26, is not feasible.

Prune means the removal of dead, dying, diseased, weak or objectionable branches in a manner consistent with the standards established in the USDA Tree Owner's Manual.

Tree means any living, self-supporting woody perennial plant at maturity attains a trunk diameter of at least three (3) inches or more when measured at a point four and one-half (4 ½) feet above ground level and which normally attains an overall height of at least fifteen (15) feet, usually with one (1) main stem or trunk and many branches.

Tree credit means the utilization of native dicotyledons measured at inches DBH or native palm trees measured tree-for-tree as off-site replacement trees for sites being developed. These native trees must be planted after the date of this amendment. This credit only applies for a five (5) year period from date of planting of trees to be utilized for tree credit. This credit is for the inches at planting and is available only for off-site replacement.

Tree-for-tree replacement means replacing a removed tree with a tree or trees with a minimum of three (3) inches in cumulative trunk diameter at breast height.

Tree permit means consists of the application and all necessary information relating to existing trees on site and proposed relocation, removal, dripline encroachment and barricading. Except for nuisance species, this permit shall not be approved prior to city approval of the underlying project.

Tree relocation means to transplant a tree from one (1) location to another.

Tree removal means to permanently remove the trunk and/or root system of a tree.

Tree survey means a sealed survey prepared by a state-licensed land surveyor and shall show, in addition to all boundary information, the exact location, size, botanical and common name, and diameter of all trees at least three (3) inches in diameter measured four and one-half (4 ½) feet above ground level within the area affected by the development except that groups of nuisance trees, as defined herein, may be designated as "clumps," with the predominant type shown. The tree species noted on the tree survey shall be certified by a landscape architect. The expense of the survey shall be borne by the applicant.

Trim means to reduce, shorten or diminish gradually a plant or parts of a plant without altering the natural shape.

Undeveloped land means land which is unimproved, in that no principal building or structure has been constructed upon it.

Upholstery means the plant life existing under a tree canopy including ferns, bushes and groundcovers. (Code 1983, § 8.2-21; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-22. Permit required.

Except as provided in F.S. § 163.045, a tree permit shall be required prior to any person natural or corporate, encroaching upon a tree dripline, or cutting down, destroying, removing, relocating or destructively damaging any tree or causing any tree to be encroached upon (within the tree's dripline), cut down, destroyed, removed or relocated or destructively damage.

(1) *Application for tree permit.* The property owner or his authorized agent shall apply for a tree permit from the city manager or his designee, prior to any tree removal, relocation, or dripline encroachment.

a. This application shall be made on a form provided by the city manager or his designee, and approval shall result in the issuance of the tree permit.

1. The application shall include the following:

i. Name, address and telephone number of those persons or

entities who own the property and those persons or entities conducting the removal activities.

ii. A detailed written statement indicating the reasons for the clearing of land, dripline encroachment, removal, relocation or replacement of the trees and a proposal to replace or relocate removed or damaged trees and including the following:

- A. The amount of land to be disturbed.
- B. The method and equipment to be used.
- C. The dates the clearing of land, dripline encroachment, removal, relocation or replacement of trees will take place.
- D. Utilization of any tree credit. A tree planting credit agreement pursuant to this article, as prepared by the city shall be required as a condition of utilizing this option.

iii. Four (4) copies of a legible survey as defined herein drawn to one (1) inch equals to twenty (20) feet scale or to the largest practicable scale (as determined by the department of planning and zoning), indicating the following:

- A. Location of all existing structures including the building pad, as defined herein, improvements and site uses, properly dimensioned and referenced to property lines, setback and yard requirements.

- B. Existing site elevations.
 - C. Location of existing utility services and all easements.
 - D. The name, common and botanical, size and location of all trees on the site specifically designated by number. The trees shall be tagged and identified consistently with the numbering system utilized on the tree survey. Groups of nuisance trees in close proximity may be designated as "clumps" of trees with the predominate type shown.
 - E. Required tree information shall be summarized in legend or tabular form on the plan.
- iv. Four (4) copies of a legible site development plan drawn to one (1) inch equals twenty (20) feet scale or to the largest practicable scale indicating the following applicable items as determined by the department of planning and zoning:
- A. Location of all proposed structures, improvement and site uses, properly dimensioned and referenced to property lines, setback and yard requirements.
 - B. Proposed site elevations, where any fill or excavation around existing trees is required.
 - C. Location of proposed or existing utility services in relation to trees.
 - D. The name, common and botanical, size and location of all trees on the site specifically designating by number the trees to be retained, removed, relocated or replaced. The trees shall be identified consistently with the numbering system utilized on the tree survey. Groups of nuisance trees in close proximity which are to remain may be designated as "clumps" of trees with the predominate type shown.
 - E. Location of all individual or group barricades.
 - F. Landscaping plan.
 - G. Tree information required shall be summarized in tabular form on the plan and shall include the reason for the proposed clearing of land, removal, relocation or replacement.
- v. Dripline encroachment plan. A dripline encroachment plan shall be required if any construction, excavation, filling or other development activity will occur within the dripline of any trees designated for preservation.
- A. This plan shall include:
 - (i) Designation of each tree subject to any dripline encroachment.
 - (ii) A written statement of the reasons for the encroachment.
 - (iii) A detailed statement of the proposed efforts to protect the tree from damage due

- to the encroachment, and to ensure its survival.
- (iv) Should any tree die as a result of dripline encroachment, a plan and detailed reasons for any necessary removal or replacement of the tree shall be provided.
- B. Trees within this plan are subject to the standards for tree protection during development detailed in this section.
- vi. On-site representative required. The applicant for a tree removal permit on environmentally sensitive lands shall, at the time of application, designate an on-site representative who will be responsible for the installation and the maintenance of all vegetation protective barriers. The representative shall be responsible for supervising the removal of all existing vegetation permitted to be removed. The representative shall be on site at all times during the vegetation clearing operations.
- b. Applications involving developed properties or properties not shown on the map of environmentally sensitive lands, as defined herein, may be based on drawings showing only that portion of the site directly involved and adjacent structures and landscaping and native vegetation incidental thereto. In such cases, a tree survey is not required. A tree sketch showing the approximate location of all existing trees with common and botanical name shall be provided instead.
- (2) *Grant of permit by city manager or his designee.* The city manager or his designee shall grant a tree permit upon payment of a fee not to exceed the actual costs of processing the permit, the presentation of the application referenced above, and the presentation of a bond to the city as described in section 8.2-27. This permit shall not be effective until a site inspection has been requested and received by the property owner, or his authorized agent, and approved by the city.
 - a. Criteria for tree permit. A tree permit shall be issued only after the city manager or his designee determines that existing natural features are being preserved to the maximum extent possible in the design of the improvement as defined in this article, and any of the following conditions exists:
 - 1. For those trees within areas designated on the map of environmentally sensitive lands, over an acre in size, as defined herein, at least twenty-five (25) percent of the native trees are being preserved intact in contiguous land areas. This percentage shall be calculated from the number of native trees within the contiguous land area and shall be applicable to all site plans or plats approved after the effective date of the ordinance from which this section is derived.
 - 2. The tree is a nuisance tree as defined in this section. For such removal, no other provisions of this section shall apply and no cost shall be assessed for this permit.
 - 3. The tree is located in the building pad, street right-of-way, canal right-of-way, an area designated for line clearing, or a utility or drainage easement where a structure or improvement is to be placed, or where it unreasonably restricts the use of the property.
 - 4. The tree is diseased, injured, or irreparably damaged. For such removal, no other provisions of this

section will apply. No cost shall be assessed for this permit. However, minimum landscaping requirements established within the land development code, article VII, shall be met.

5. The tree is in danger of materially impairing the structural integrity of existing or proposed structures, interferes with utility service, or adversely affects sight distance triangles.
 6. The tree is required to be cut down, destroyed, removed or relocated or destructively damaged by a county, state or federal law, or by rules promulgated by a county, state or federal agency. For such removal, no other provisions of this section will apply. No cost shall be assessed for this permit.
- b. This permit, if approved, shall be granted for a maximum of six (6) months.
 - c. This permit shall be posted in a protected area and in a conspicuous place on the site.
 - d. A sign with the minimum dimension of two (2) feet by three (3) feet shall be posted along each roadway frontage of the site and shall be readable from the roadway and shall state:

Trees on This Site Being Removed
According to Permit No. _____
Pursuant to City of
Opa-locka Code.

For those permits not requiring tree removal, the sign may read:

Trees on This Site Being Protected
According to Permit No. _____
Pursuant to City of
Opa-locka Code.

(Code 1983, § 8.2-22; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-23. Tree permit required as condition to tree removal pursuant to development or land clearing.

Except as provided in F.S. § 163.045, no person, natural or corporate, shall proceed with tree removal

pursuant to development or land clearing on any improved, vacant or unimproved land, unless specifically exempted by this section, (including land designated for conservation by the county or the city without a tree permit pursuant to this article.

(Code 1983, § 8.2-23; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-24. Tree permit review.

Review of the tree permit plan shall be completed within fifteen (15) working days of receipt of that plan by the city department of planning and zoning.

(Code 1983, § 8.2-24; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-25. Criteria for tree permit review.

Approval of tree permits and replacement of trees or the payment of the optional cash payment, as defined herein, shall be permitted if the city manager or his designee, after examination of the tree permit, determines that existing natural features as defined in this article are being preserved to the maximum extent possible in the design of the improvement and that any of the following conditions exist:

- (1) For those trees within areas designated on the map of environmentally sensitive lands, over an acre in size, as defined herein, at least twenty-five (25) percent of the native trees are being preserved intact in contiguous land areas. This percentage shall be calculated from the number of native trees within the contiguous land area and shall be applicable to all site plans or plats approved after the effective date of the ordinance from which this section is derived.
- (2) The tree is a nuisance tree as defined in this section. For such removal, no other provisions of this section will apply and no cost shall be assessed for this permit.
- (3) The tree is located in the building pad, street right-of-way, canal right-of-way, an area designated for line clearing, or a utility or drainage easement where a structure or improvement is to be placed or where it unreasonably restricts the use of the property. If certain trees outside the above areas must be removed to allow the operation of equipment, the site plan shall indicate the exact operation area needed and provide for a replacement tree or trees.

- (4) The tree is diseased, injured, or destructively damaged as provided in section 8.2-30. However, no replacement is necessary unless the removal of the diseased, injured or damaged tree causes the property to contain less than the minimum landscaping requirements.
 - (5) The tree is in danger of materially impairing the structural integrity of existing or proposed structures, interferes with utility service, or adversely affects sight distance triangles.
 - (6) The tree is required to be cut down, destroyed, removed or relocated or destructively damaged by a county, state or federal law, or by rules promulgated by a county, state or federal agency.
- (Code 1983, § 8.2-25; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-26. Tree removal and replacement.

As a condition to this approval of a tree permit or for any tree removal pursuant to this section, the city shall require the applicant to relocate or replace a removed tree at his own expense. However, such relocation or replacement must be within the project site. In the event that relocation or replacement of the tree or trees within the site is not practical, as determined by the city manager or his designee, a tree may be removed to public lands, or private property approved by the city manager or his designee.

- (1) *Replacement trees.* A removed tree must be replaced with its equivalent replacement in trees. This replacement tree shall be a type of species having shade potential and other positive values, as further described in the landscape manual as defined herein, at least equal to that of the tree being removed, and shall be a minimum of six (6) feet in height when planted. The planted tree shall be of native species as defined herein or others as approved by the city manager or his designee.

However:

- a. On lots to be developed for single-family, duplex, townhouse or zero (0) lot line dwelling purposes, trees within the building pad defined herein, the individual driveway leading to that unit excluding circular drives shall be replaced on a tree-for-tree basis.

- b. Within multifamily development, trees within the building pad, as defined herein, shall be replaced on a tree-for-tree basis.
- c. Within nonresidential properties noted on the environmentally sensitive lands map, trees within the building pad as defined herein shall be replaced on a tree-for-tree basis.

- (2) *Maintenance of relocated and replacement trees.* Trees must be relocated or replaced, as specified by this section within sixty (60) days of the approval for tree removal; provided, however, if the trees are to be removed to facilitate construction or development activities, said relocation or replacement must be completed prior to the issuance of certificate of occupancy on the construction, development site or phase of development, as applicable. The trees to be relocated or replaced on-site or off-site private property must be maintained in a healthy growing condition and guaranteed for a period of at least one (1) year. Trees to be relocated or replaced on public property must be guaranteed. The guarantee period shall end one (1) year from the date of installation or at acceptance by city staff (whichever is earlier) of any relocated or replaced trees.

- (3) *Optional cash payment.* An optional cash payment equal to the fair market value of the required replacement tree paid by the applicant after recommendation from city staff that replacement of trees on-site pursuant to this subsection is not feasible.

- (4) *Tree credit.* Credit shall be given for the off-site planting of trees meeting the definition of equivalent, replacement at the time of planting against any off-site tree replacement required by this section in accordance with the following terms and conditions:

- a. Credit will be given for those trees planted after the adoption of this section, in excess of tree planting required by the land development code against any tree replacement requirements for tree removal on any property within the city.

- b. This credit only applies for a five (5) year period from the date of planting of trees to be utilized for the tree credit.
- c. A tree planting credit agreement must be executed by the person requesting such credit on a form approved by the city specifying the numbers and location of such trees for which credit is sought (tree planting agreement needed). This agreement will specify who may utilize the credit and for which properties. The city official responsible for issuing tree permits shall maintain the records of how much credit is currently available in the name of the person receiving such credit. This record shall include the name of the individual authorized to use such credit, the location where the credit is used, the amount of credit used, and the resulting balance of credit available.

(Code 1983, § 8.2-26; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-27. Bond for tree relocation, replacement, or dripline encroachment.

A bond shall be held by the city for one (1) year to ensure tree replacement in the event that tree relocation or dripline encroachment results in the death of any tree subject to a tree permit or for any tree damaged or destroyed in any pre-development or development activities such as surveying. Such bond amount shall be assessed at the fair market value of the required replacement tree or for tree replacement which cannot be affected prior to issuance of a certificate of occupancy for the underlying project. If the developer/builder desires, it may employ a landscape architect to supply revised bonding amounts for city review and approval if the landscape architect determines that the trees or palms subject to relocation or dripline encroachment are unlikely to die as a result of the pre-construction or construction activities. Tree bond amounts of under one thousand five hundred dollars (\$1,500.00) are to be guaranteed through a letter of guarantee rather than through a posting of a cash bond.

(Code 1983, § 8.2-27; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-28. Tree trust fund.

(a) *Establishment.* A tree trust fund (hereinafter referred to as the Opa-locka Tree Preservation Account or the "trust") is hereby established as a depository for

tree removal fees and penalty monies. Such monies shall be placed in an interest-bearing account solely for the purpose of funding tree replacement on public property within the city.

(b) *Term of existence.* The city tree preservation account shall be self-perpetuating from year to year unless specifically terminated by the city commission.

(c) *Trust assets.* All monies received pursuant to the provisions of this section from public or private concerns shall be placed in trust for an inure to the use and benefit of the city and its successors and assigns in interest.

(d) *Trust administration.*

- (1) Trust funds shall be expended, utilized and disbursed only for the purposes designated by the city commission of the city to administer its tree preservation program pursuant to this section.
- (2) The trust shall be a separate account established and maintained apart from the general revenue funds and accounts of the city.
- (3) Monies obtained pursuant to this section may be accepted on behalf of the city by the city manager or his designee, and upon receipt shall be delivered to the city department of finance, which shall cause the same to be credited to the trust.

(e) *Disbursal of assets.*

- (1) Expenditures of over five thousand dollars (\$5,000.00) shall require approval of the city commission.
- (2) The city commission shall make expenditures for planting of trees in accordance with land development code provisions pertaining to contracting and purchasing. The city commission shall have control over the disbursement of these monies provided; however, that any such disbursement shall be coordinated with the city manager.
- (3) Trust funds shall be used to obtain trees, landscaping, sprinkler systems and any other items or materials necessary and proper for the preservation, maintenance, relocation or restoration of tree ecosystems, on any public land in the city. With city commission approval, these

monies may also be utilized to engage support elements, such as landscape architects and additional personnel if deemed necessary in the opinion of the city manager. These monies may also be used to cover the expense of relocation of trees in the city.

(Code 1983, § 8.2-28; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-29. Standards for tree protection during development.

The following are minimum standards necessary to protect trees designated for preservation from damage during development activities after the tree permit has been approved:

- (1) *Protection of existing trees.* Prior to any clearing of improved, vacant or unimproved land unless specifically exempted from this section (including land designated for conservation by the county or the city), trees to be preserved (as designated in the tree permit approved by the city manager or his designee including any surveying or similar pre-development activity) shall have barriers constructed around them by the developer to prevent physical damage from heavy equipment and other activities incidental to development. Required barriers shall be subject to inspection by the city as a condition of permit approval and prior to any such clearing.
 - a. *Barriers or barricades.* The barriers or barricades shall be:
 1. Large enough to include the entire area inside the outer edge or dripline of the tree;
 2. Conspicuous enough and high enough to be seen easily by operators of trucks and other equipment;
 3. Constructed of sturdy scrap wood (four (4) by four (4) stock), or other sturdy material (not flagging or ribbons) as approved by the director of the department of planning and zoning based on professional judgment that the intent of this provision shall be met;
 4. Constructed as a condition of, the issuance of any land clearing, build-

ing or other development permit and prior to any construction or other development activities and required to remain in place throughout the construction period. Barriers or barricades shall be completely removed from the site at the end of the construction period, (immediately prior to the issuance of a certificate of occupancy by the city department of buildings and licensing) unless otherwise stipulated in the approved tree preservation plan.

- (2) *Clearing trees and vegetation.*
 - a. *Clearing by hand.* Within the dripline of trees designated for preservation, only clearing by hand is permissible, unless otherwise stipulated in the approved tree permit.
 - b. *Storage.* Trees and vegetation cleared during construction or other development activities shall be stored in an area designated by the city manager or his designee with the grant of a tree permit.
 - c. *Removal.* All trees and vegetation cleared and stored pursuant to this section shall be removed within two (2) weeks after completion of the clearing.
- (3) *Other required protection of trees and understory.* A developer shall protect the trees and understory plants designated for preservation in the approved tree permit from chemical poisoning, excavation and grade changes to at least the following minimum standards:
 - a. *Utility line trenches.* Utility line trenches shall be routed away from trees to an area outside the dripline to the maximum extent possible.
 - b. *Grade changes.* Retaining walls and dry wells shall be utilized where needed to protect trees from severe grade changes. For shallow fills, the fill material shall be gently sloped down to the level of the tree roots leaving the tree in a depression larger than the spread of its crown.

- c. *Parking on site during construction or development activities.* No parking, vehicle maintenance, storage of construction materials or debris, or cleaning of equipment shall take place within areas marked for preservation, specifically including, but not limited to, within the dripline of any individual trees.
 - 1. *Parking and storage areas.* The developer or contractor shall establish regular parking and storage areas under the supervision of the city to facilitate compliance with the above standard.
 - d. *Encroachment.* Encroachment into any barricaded area shall be forbidden with the exception of activities specifically permitted by the approved tree permit including the dripline encroachment plan as established herein.
- (4) *Pruning of trees and vegetation.* The developer shall be permitted to cut or prune branches and roots of trees designed for preservation, only under the supervision of the city manager or his designee (in accordance with the approved permit).
- a. *Standards where permitted.* The standards for pruning as established by the American National Standards Institute (ANSI A-300) and as outlined in the USDA landscape manual shall be utilized in the pruning of trees within the city.
- (5) *Root system protection.* The root systems of trees shall be protected as follows:
- a. *Excavation within the dripline.* The city manager or his designee may approve a dripline encroachment plan, upon an applicant's request to excavate within the dripline of a tree, as part of a tree permit.
 - b. *Standards for root protection.* The city manager or his designee may establish additional standards for root protection consistent with this section.
 - 1. *Root exposure standards.* If roots are exposed, the developer shall provide temporary earth cover mixed with peat moss and wrapped with burlap to prevent exposed roots from drying out before permanent backfill is placed.
 - 2. *Support of tree or root system.* The developer shall also water, maintain in moist condition, and otherwise temporarily support and protect the tree or root from damage until the tree or root is permanently covered with earth.
- c. *Protection of the tree root system.* The developer shall protect tree root systems from damage due to noxious materials in solution caused by runoff, or spillage during mixing and placement of construction materials, or drainage from stored materials. The developer shall also protect root systems from flooding, erosion or excessive wetting resulting from dewatering operations.
- (6) *Stormwater runoff.* Whenever possible, stormwater runoff shall be directed into any cypress area contained on site. Prior to entering in the cypress area, all runoff must be filtered through vegetated swales or vegetated berms.
- (7) *Trees damaged during construction.* The developer shall have trees damaged by construction repaired by a professional arborist in a manner acceptable to the city.
- a. *Immediate notification of city.* The city manager or his designee must be notified immediately after any damage to any tree damaged by construction operations.
 - b. *Prompt repair.* Such repairs as necessary shall be made promptly after damage occurs to prevent progressive deteriorations of damaged trees.
 - c. *Removal and replacement of damaged trees.* The developer shall remove trees which are determined by the city manager or his designee to be incapable of restoration to normal growth pattern.

Such trees shall be subject to replacement under the provisions of this section.

- d. Any tree designated for preservation which is damaged by development activities in violation of this section (not including bonded trees in a dripline encroachment plan) under this subsection and which dies as a result of this damage shall be subject to the tree replacement or removal requirements contained herein except that these requirements may use ABH instead of DBH, as defined herein, to calculate the equivalent value or equivalent replacement for the dead tree.

(Code 1983, § 8.2-29; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-30. Exemptions.

(a) *Damaged trees.* Trees destructively damaged or destroyed by an act of God or an act of war are exempt from this section.

(b) *Governmental entities.* Any fees or bonding requirements required by this section do not apply to agencies of the federal, state, county and local government including the school board.

(c) *Utilities.* Any fees or bonding requirements required by this section do not apply to utilities. Utilities are exempt from the inch-for-inch tree replacement requirements herein set forth and shall replace on a tree-for-tree basis.

(d) *Licensed plant and tree nurseries.* Licensed plant and/or tree nurseries shall be exempt from the terms and provisions of this article only in relation to those trees planted and growing on site for wholesale and/or retail sale purposes in the ordinary course of said licensee's business.

(e) *Governmental and private nurseries.* All governmental and private nurseries with respect to trees which have been planted and are growing for future relocation; are exempt from this section.

(f) *Developed single-family and duplex properties including townhouse and zero (0) lot line development.* Owner occupied developed single-family and duplex properties including townhouse and zero (0) lot line development not included in the map of environmentally sensitive lands as designated for conservation are exempt from the provisions of this section.

(g) *Emergency conditions.* During emergency conditions caused by a hurricane or other disaster, or to protect the public safety, the provisions of this section may be suspended by direction of the city manager.

(h) *Nuisance trees.* Nuisance trees as defined herein are exempt from the provisions of this section except for the requirement to obtain a permit prior to their removal. However, no fee shall be assessed for this permit.

(i) *County trafficways.* Planned roadway improvements (including all necessary accessory appurtenances to the roadway improvement such as traffic signals and lighting) authorized by appropriate federal, state or local agencies to regionally significant roadways as identified on the county trafficways plan are exempt from the replacement requirements established herein. However, this shall not exempt those roadways from receiving a tree permit. Regionally significant roadways as identified on the county trafficways plan shall include:

(FDOT trafficways plan):

NW 27th Avenue.

NW 135th Street.

NW 37th Avenue/Douglas Road.

NW 42nd Avenue/LeJeune Road.

NW 22nd Avenue.

(j) *City trafficways.* Planned roadway improvements (including all necessary accessory appurtenances to the roadway improvement such as traffic signals and lighting) authorized by appropriate federal, state and local agencies to city trafficways as specified in this Code are exempt from replacement requirements established herein. However, this shall not exempt those roadways from receiving a tree permit.

(k) *Small trees.* Trees less than three (3) inches in diameter as measured four and one-half (4 ½) feet from grade are exempt from the provisions of this section.

(l) *Planted trees.* Trees planted on vacant residential property may be relocated or subjected to dripline encroachment prior to the issuance of a certificate of occupancy for a principal building on the property without a permit. All tree removal shall require a permit pursuant to this section. However, for trees planted in designated buffer or landscape parcels or strips, any

relocation, replacement, or dripline encroachment occurring after one (1) year after planting shall require a permit pursuant to this section.

(Code 1983, § 8.2-30; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-31. Tree variance.

(a) *Generally.* The city recognizes that the regulations provided within this section may not address all situations relating to tree protection and conservation. The city, therefore, may grant variances upon the recommendation of the planning and zoning board, from the provisions of this article upon the filing of an application with the department of planning and zoning.

(b) *Standards.* A variance shall be granted by the planning and zoning board, after a public hearing, if it determines that all of the following facts and conditions exist:

- (1) That there are unique and special circumstances or conditions applying to the property in question that do not generally apply to other properties in the same zoning district.
- (2) That the applicant did not cause the unique and special circumstances or conditions above, nor are these circumstances or conditions the result of mere ignorance or disregard of the provisions from which relief is sought.
- (3) That the literal interpretation of the zoning and land development code section will result in an undue hardship to the applicant; and that such hardship is not self-created by any person having an interest in the property nor is a result of mere ignorance or disregard of the provisions from which relief is sought.
- (4) That the strict application of the zoning and land development code section will deprive the applicant of reasonable use of the property for which the variance is sought.
- (5) That the variance sought is the minimum variance which makes possible the reasonable use of the property.

(c) *Application; fees.*

- (1) Applications for tree variance shall:
 - (i) Be in writing on a form furnished by the city;

- (ii) Be accompanied by a fee in an amount sufficient to reimburse the city for all administrative expenses associated with each tree variance request; and

- (iii) State with specificity the grounds upon which the tree variance request is based and include all details (with exhibits when necessary) available to the petitioner to support petitioner's request.

If the application is complete as determined by the department of planning and zoning, it shall be placed on the agenda of the planning and zoning board at the next available meeting. The term "complete," as stated herein, means that the petition and supporting documents have addressed all applicable sections of the prescribed application and that those sections and supporting documents are sufficient in comprehensiveness of data or in quality of information provided.

- (2) The application shall be scheduled before the planning and zoning board as a public hearing item. The public shall be given notice of each hearing according to the procedure outlined in section 4.13D of the land development code. The decision of the planning and zoning board shall be final.

(d) *Procedure before the planning and zoning board.*

- (1) Upon public hearing, the planning and zoning board shall first hear the recommendation of the city administration as to the tree variance application. Next, the board shall receive the presentation of the petitioner, and finally, the board shall open the hearing to the public for comments from all interested citizens.
- (2) In making its presentation the applicant must assume the burden of demonstrating to the board, by substantial competent evidence, support for each position or finding required by subsection (b) of this section for tree variance approval.
- (3) At the conclusion of the public hearing, the board shall make a final decision on whatever action the board deems to be in the public interest, inclusive of recommending either approval or denial and, where appropriate, con-

ditions which may be imposed upon the tree variance granted. The findings and decision of the planning and zoning board shall be final. (Code 1983, § 8.2-31; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-32. Enforcement.

(a) *Generally.* The city manager or the city manager's designee shall enforce the provisions of this article.

(b) *Individual enforcement.* Each violation of this section or any of its subsections is deemed a separate and distinct infraction of the zoning and land development code. Each tree to be protected may be the subject of individual enforcement.

(c) *Strict liability of owner.* The owner of any property where a tree or trees have been cut down, destroyed, removed, relocated or destructively damaged shall be held strictly liable for a violation of this section unless it can be proven that the damage was caused by:

- (1) An act of God;
- (2) An act of war;
- (3) Development activities on the property pursuant to an approved tree permit;
- (4) The owner alleges that the damage was caused by vandals or trespassers and the owner of the property has filed a police report for the incident and had taken reasonable security measures to prevent unauthorized access to the property.

(d) *Stop-work order.* The enforcement agency shall immediately issue an order to cease and desist any work being carried out in violation of this section or any permit conditions promulgated under this section. Upon notice of such violation, no further work shall take place until appropriate remedial action is instituted, as determined by the enforcement agency.

(e) *Other enforcement.* Nothing in this section shall prohibit the city from enforcing this section by other means.

(Code 1983, § 8.2-32; Ord. No. 13-38, § 2, 12-11-2013)

Sec. 8.2-33. Penalties.

(a) *Fine and replacement.* Each violation of this section shall be punishable in a court of competent jurisdiction by a fine of no more than five hundred dollars (\$500.00) plus the cost of replacement of the

trees removed from the site, the costs associated with investigation and prosecution together with any equitable remedies deemed reasonable and proper by the court (cost of replacement tree in this context may be measured utilizing up to the removed tree's ABH to determine its value or other such measures as deemed appropriate by the court). The removal, relocation or destruction, including dripline encroachment, of each tree for which a tree permit is required in violation of this section shall constitute a separate offense under this section.

(b) *Withholding or revocation of city permits.* Failure of any party to follow the procedures, as required by this section, shall constitute grounds for withholding or revoking site plan approval, building permits, occupancy permits or any other appropriate approvals necessary to continue development. Such extraordinary sanctions, however, shall be instituted immediately upon the direction of the city manager and with the ratification of the city commission at its next regular or special meeting. This ratification shall be considered a public hearing at which all interested parties shall have notice and an opportunity to be heard and to be represented by legal counsel.

(c) *After-the-fact tree permit.* In cases where tree removal is carried out without the necessary permit under the terms and conditions of this section, the property owner shall be required to make application for an after-the-fact tree permit. Application fee shall be triple the regular application fee. The city manager or his designee may grant an after-the-fact tree permit only if he finds that the same application would have rightfully been approved prior to removal of the tree and that each tree destroyed is to be replaced by trees of equal or greater equivalent replacement value. Such replacement trees shall be located on the subject site wherever practical, or they may be required to be located on off-site private or public property. Such replacement shall be ensured by a cash bond. If the conditions for an after-the-fact tree permit are not fulfilled, the case shall be referred to the city attorney's office for appropriate action under this section.

(Code 1983, § 8.2-33; Ord. No. 13-38, § 2, 12-11-2013)

Chapter 8.5

ELECTIONS*

- Sec. 8.5-1. State election laws adopted.
- Sec. 8.5-2. Registration, qualifications of voters; violations and penalties.
- Sec. 8.5-3. Resolution calling election required; contents; publication.
- Sec. 8.5-4. Change of polling place.
- Sec. 8.5-5. Appointment of clerks and inspectors of election.
- Sec. 8.5-6. Delivery of registration records to election clerk.
- Secs. 8.5-7, 8.5-8. Reserved.
- Sec. 8.5-9. Canvassing board, composition and convening.
- Sec. 8.5-10. Electronic campaign finance reporting.

***State law references**—Elections generally, F.S. chs. 97—109; Municipal Home Rule Powers Act, F.S. ch. 166.

Sec. 8.5-1. State election laws adopted.

All general laws of the state relating to elections and to the registration of persons qualified to vote therein, which are not inconsistent or in conflict with the provisions of this Code, are hereby adopted as parts hereof. (Code 1955, § 9-19; Code 1983, § 8.5-1)

State law reference—State election code, F.S. chs. 97—104.

Sec. 8.5-2. Registration, qualifications of voters; violations and penalties.

See F.S. §§ 97.105, 101.002, 166.032 and 104.011.

Sec. 8.5-3. Resolution calling election required; contents; publication.

(a) *Required; contents; publication.* The commission shall, not less than thirty (30) days prior to the date of a municipal election, adopt a resolution setting forth:

- (1) The date upon which such election is to be held;
- (2) The purpose of such election;
- (3) The days and hours, prior to the date of such election, during which persons qualified to vote therein may register therefor;
- (4) The list of polling places in the several precincts;
- (5) The names of those persons designated and assigned to serve as clerks of election and as inspectors of elections, provided the commission shall have the right to omit this requirement from such resolution and to include the names of clerks of election and inspectors of election in a resolution to be adopted later;
- (6) The form of ballot to be used in such election, except absentee ballots, prepared in compliance with all statutory requirements relating to ballots.

(b) *Publication.* The commission shall further authorize and direct the city clerk to give notice of the adoption of such resolution and of the provisions thereof hereinbefore prescribed, by and through the publication of appropriate advertisements in accordance with

applicable Florida law, in the city at least fifteen (15) days before the day upon which such municipal election is to be held.

(Code 1955, § 9-16; Code 1983, § 8.5-3; Ord. No. 2025-05, § 5, 2-12-2025)

Sec. 8.5-4. Change of polling place.

If any polling place designated in the resolution shall become unavailable for use as such, the city clerk shall designate another polling place within the same precinct for holding such election and shall thereafter report his action to the city commission at its next regular meeting by filing a certificate with the commission setting forth the details of the change and the reason therefor.

(Code 1955, § 9-16; Code 1983, § 8.5-4)

Sec. 8.5-5. Appointment of clerks and inspectors of election.

Prior to each municipal election, the city commission shall designate a clerk of election for each precinct and also a sufficient number of inspectors of election for each precinct. All persons who shall serve as clerks of election or as inspectors of election at any municipal election held in the city have the status of casual and temporary employees not entitled to the status or to any of the rights or benefits of regular or permanent municipal employees.

(Code 1955, § 9-15; Code 1983, § 8.5-5)

Sec. 8.5-6. Delivery of registration records to election clerk.

At each municipal election, general or special, the city clerk shall deliver into the custody of the clerk of election for each election precinct the official registration records for such precinct, and the clerk of election shall be responsible for safeguarding such official registration records while they are in his custody.

(Code 1955, § 9-17; Code 1983, § 8.5-6)

Secs. 8.5-7, 8.5-8. Reserved.**Sec. 8.5-9. Canvassing board, composition and convening.**

(1) A city canvassing board is hereby established and shall be comprised of five (5) qualified electors of the city who are not active participants in the campaign or candidacy of any candidate in the election being

canvassed, appointed by the city commission. The appointed electors shall serve a term to run concurrently with the terms of the appointing city commissioners.

(2) The city canvassing board shall meet in a building accessible to the public in the city and so designated by the supervisor of elections to publicly ratify the canvass of election results certified by the county supervisor of elections. The city canvassing board shall convene at 12:00 noon on the day following the election to be canvassed.

(Code 1983, § 8.5-9; Ord. No. 04-12, § 1, 10-27-2004)

Sec. 8.5-10. Electronic campaign finance reporting.

The city commission hereby requires electronic campaign finance reporting for all candidates seeking to appear on the ballot in any city election. Candidates for the office of mayor and city commission shall file their campaign finance report electronically with the city clerk.

- A. *Format, method of filing and copies.* The city clerk shall determine the format required for the campaign finance reports and shall provide copies of any report upon request. For the purpose of this section, the term "campaign finance reports" shall mean the reports required of the campaign treasurers of candidates pursuant to F.S. § 106.07.
- B. *Electronic posting.* Campaign finance reports submitted by candidates for the office of mayor and city commission shall be posted on the city's website by the city clerk within three (3) business days of the date of the electronic filing by such candidate. The city reserves the right, prior to posting to review all filings and redact any material that would violate any copyright, trademark, patent or other proprietary rights of others, or any language, pictures or symbols that would be considered pornography, obscenity, nudity, libelous or in any way violates any federal, state or local law.
- C. *Penalties.* In addition to any other penalties which may be applicable, any individual who violates this section shall be subject to a fine of fifty dollars (\$50.00) per day for the first three (3) days late and, thereafter, five hundred dollars (\$500.00) per day for each day late, not to exceed twenty five (25) percent of the total receipts or expenditures, whichever is greater,

for the period covered by the late report. If it is determined by a court which has jurisdiction over an alleged violation of this section that unusual circumstances caused the campaign finance report to be filed late, no fine shall be imposed by the court. As used herein, "unusual circumstances" shall mean uncommon, rare or sudden events over which the actor has no control and which directly result in the failure to act according to the filing requirements. Unusual circumstances must occur within a time period that would clearly prevent the person legally responsible for filing the report from doing so in a timely manner.

- D. *Technical assistance.* The city clerk shall provide technical assistance to candidates regarding the electronic filing requirements herein. The city commission may, by resolution, establish a schedule of fees for such technical assistance.

(Ord. No. 2022-09, § 3, 2-23-2022)

Chapter 9

EXCAVATIONS AND FILLING*

- Sec. 9-1. Permit required on approval by commission.
- Sec. 9-2. Permit application required.
- Sec. 9-3. Application contents.
- Sec. 9-4. Application deposit required; use.
- Sec. 9-5. Recommendations of engineer, planning and zoning board on application.
- Sec. 9-6. Placing application on commission agenda.
- Sec. 9-7. Approval by commission; bond, title opinion required.
- Sec. 9-8. Permit issuance.
- Sec. 9-9. Permit fee.
- Sec. 9-10. Permit duration; renewal.
- Sec. 9-11. Permit nontransferable; reissuance to purchaser of property.
- Sec. 9-12. Permit revocation.
- Sec. 9-13. Special regulations for excavations or fills other than for purpose of removing material or raising elevation.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

Sec. 9-1. Permit required on approval by commission.

No person shall dig, excavate or cause or permit to be dug or excavated, except for the purpose of planting plants and trees, or for the foundations of a building, septic tank or swimming pool, or other similar personal use, and except for any excavation in a street or public way, any soil, rock, muck, marl, sand or fill from any property within the city; nor shall any person deposit or cause or permit the deposit of fill upon any property in the city without first having obtained from the city a permit as hereinafter provided. All permits shall be issued only after resolution approving the same has been passed by the commission, setting forth such additional terms and conditions as may be deemed by the commission necessary to protect the public safety, health and welfare.

(Code 1955, § 19-6; Code 1983, § 9-1)

Sec. 9-2. Permit application required.

No permit required by section 9-1 shall be issued except upon an application in writing complying with the requirements hereinafter stated and the approval of such application by the city commission.

(Code 1955, § 19-7; Code 1983, § 9-2)

Sec. 9-3. Application contents.

Application for a permit required by section 9-1 shall comply with the following requirements:

- (a) Each application shall set forth the name and address of the person, firm or corporation owning said property, the legal description and location of the property, the number of cubic yards of material to be excavated, removed or filled, the purpose of such removal or filling, and the length of time for which the permit is requested.
- (b) Each application shall contain a detailed sketch or plan showing the place of excavation or fill and the plan for restoring or rehabilitating the property; provided, however, that, as used in this section, the term "sketch or plan" means a sketch or plan prepared and certified by a civil engineer authorized to practice in the state, and the term "detailed sketch or plan" means a sketch or plan acceptable to and approved by the city engineer and the planning and zoning board as sufficiently detailed to enable them to

properly perform the duties assigned to them with respect to applications hereunder in section 9-5.

- (c) Each application shall be accompanied by an affidavit under oath signed by the applicant verifying the truth of all statements made by him in the application.
- (d) Each application shall be accompanied by a current abstract of title, evidencing the title held by the applicant to the real property described.

(Code 1955, § 19-8; Code 1983, § 9-3)

Sec. 9-4. Application deposit required; use.

Each application shall be accompanied by a cashier's check or a money order, acceptable to the building official, payable to the city, in the amount of five hundred dollars (\$500.00) to defray the city's costs of publication, printing, notices, engineering and legal fees incurred as a result of the application. In the event the application is solely for the purpose of moving topsoil, muck or marl of less than one thousand (1,000) cubic yards, then in that event only, the application shall be accompanied by a cashier's check or money order acceptable to the building official, payable to the city, in the amount of seventy-five dollars (\$75.00). The aforementioned monies shall be applied to defray the city's costs, as set forth above, and in the event the costs exceed the money tendered with the application, the applicant shall pay the amount in excess, prior to the issuance of any permit. Upon the issuance of denial of the permit, as hereinafter provided, the balance of any monies remaining, if any, after payment of the above enumerated costs and the permit fee as provided in section 9-9, shall be returned to the applicant.

(Code 1955, § 19-8; Code 1983, § 9-4)

Sec. 9-5. Recommendations of engineer, planning and zoning board on application.

Applications for permits hereunder shall be filed with the director of the department of buildings and licensing who, upon such filing, shall give notice thereof to the planning and zoning board. It shall become the duty of the building official and the planning and zoning board to file with the city commission, within a reasonable time, their opinions or recommendations as to whether approval of such application would be consistent with or contrary to the public interest, and said

opinions or recommendations shall be included with and become a part of such application; provided, however, that the building official and the planning and zoning board shall, in each instance where their opinion or recommendation is unfavorable to the application, include with such opinion or recommendation an explanatory statement setting forth the reasons for such opinion or recommendation. Upon the failure or refusal of the building official or the planning and zoning board to approve a sketch or plan, the applicant may appeal such action to the city commission and its decision on the sufficiency of the sketch or plan shall be final and binding on all parties.

(Code 1955, §§ 19-8, 19-9; Code 1983, § 9-5)

Sec. 9-6. Placing application on commission agenda.

The city manager, upon the filing of the opinions or recommendations of the city engineer and the planning and zoning board, shall list the application on the agenda of the city commission for the next regular meeting thereof which is not earlier than five (5) days after the date of such filing.

(Code 1955, § 19-10; Code 1983, § 9-6)

Sec. 9-7. Approval by commission; bond, title opinion required.

The city commission shall approve applications for permits hereunder for such periods of time and on such terms and conditions as it may deem to be fair, just and equitable within the terms of this article, unless it finds that such approval would be detrimental to the public peace, health, safety or property of the city or where contrary to the public interest; provided, however, that the commission shall not approve any such application without requiring the applicant to file:

- (a) A performance bond in a form and in an amount approved by the city commission and the city attorney as sufficient to protect the public interest and all persons who may suffer damage or injury as a result of the acts of the applicant, his agents or employees carrying out the excavation or filling permitted; and
- (b) An opinion of title from the city attorney, evidencing that the title to the real property described in the application is held in fee simple by the applicant and that the title is unencumbered, or if encumbered, that said lien or encumbrance is inferior and junior to the agree-

ment between the applicant and the city establishing the conditions of such performance bond.

(Code 1955, § 19-11; Code 1983, § 9-7)

Sec. 9-8. Permit issuance.

All permits under this article shall be issued by the building official; provided, however, that the building official shall not issue any such permit unless the applicant has complied with all of the terms and conditions of this article and such terms and conditions that have been set forth and required by the city commission in its resolution authorizing said permit.

(Code 1955, § 19-14; Code 1983, § 9-8)

Sec. 9-9. Permit fee.

Each applicant, prior to the issuance of any permit hereunder, shall pay to the city a fee as presently established or as hereafter adopted by resolution of the city commission, to defray the expenses of the city in ensuring that the applicant is carrying out the terms and conditions upon which his permit was approved and the provisions of this article.

(Code 1955, § 19-13; Code 1983, § 9-9)

Sec. 9-10. Permit duration; renewal.

All permits issued under this chapter shall be for no more than one (1) year and shall be renewable for additional periods of one (1) year upon filing a new application to the commission and complying with all of the provisions of sections 9-3 and 9-4, including a statement under oath setting forth the extent of compliance with the terms and conditions of the prior permit. Requests for renewals shall not be submitted to the planning and zoning board but shall be submitted directly to the commission by the city manager after receipt of the recommendation of the city engineer and city attorney. The commission may, in its sole discretion, change any of the terms and conditions contained in the original resolution if it should find that said change would be in the best interest of the public's safety, health and welfare. There shall be deposited with the city manager at the time of the application for renewal a cashier's check or money order acceptable to the city manager, payable to the city, in the amount as

presently established or as hereafter adopted by resolution of the city commission, to defray the city's costs as set out in section 9-4.

(Code 1955, § 19-12; Code 1983, § 9-10)

Sec. 9-11. Permit nontransferable; reissuance to purchaser of property.

(a) Permits issued under this article shall be non-transferable and the attempt to transfer or assign the same is hereby prohibited; provided, however, that upon the sale of any property with respect to which a permit hereunder has been issued, such permit shall be reissued to the new owner on the same terms and conditions as those under which the permit was held by the former owner at the time of sale, for the unexpired period thereof, upon compliance by the new owner with the provisions of this section.

(b) The city manager shall not reissue any permit under the provisions of subsection (a) of this section, except on the former owner's surrender for cancellation of the permit held by such owner, nor until an applicant for reissuance shall have first filed a performance bond in the name of the applicant, and the city attorney shall have submitted his opinion of title, as required by section 9-7, and the applicant shall have paid the fee required in section 9-9, together with a cashier's check or money order, acceptable to the city manager, payable to the city, in the amount as presently established or as hereafter adopted by resolution of the city commission, to defray the city's costs.
(Code 1955, § 19-16; Code 1983, § 9-11)

Sec. 9-12. Permit revocation.

In the event the permittee violates or permits the violation of any of the terms and conditions set forth by the commission in its resolution authorizing the issuance of the permit, or any of the provisions of this article, the permit shall be subject to revocation by the city manager according to the provision of section 9-8.
(Code 1955, § 19-17; Code 1983, § 9-12)

Sec. 9-13. Special regulations for excavations or fills other than for purpose of removing material or raising elevation.

Where excavation or fill is necessary in the course of effecting a repair or installation other than for the

removal of material or the general raising of elevation, the provisions of this chapter shall not apply, provided:

- (a) All such persons first make application disclosing the name of the parties performing the work, the purpose, location, the date to be commenced, the date to be terminated and the estimated value thereof.
- (b) Upon determination by the proper city officials that the excavation or filling shall not interfere with, or cause damage to, any public utility, create a public nuisance or a dangerous situation, a permit permitting said work shall be issued, subject to reasonable conditions relating to the safety of the public, the property involved and utilities affected.
- (c) At all times the proper city personnel shall cause an inspection of all excavations prior to filling and replacement for the purpose of determining whether or not any damage has been caused to utilities and no excavation may be covered until said inspection has been completed.
- (d) All filling and excavations shall be to the grade and resurfaced in the manner designated in the permit. Where settlement occurs within one (1) year after the closing of the excavation or completion of the filling, the contractor shall replace, refill and resurface as necessary.
- (e) Excavation or filling of an area larger than that designated in the permit shall constitute a violation of this Code.
- (f) Notice of the commencement of work, conditions relating thereto and date of termination shall be delivered to the building official.

(Code 1955, § 19-6; Code 1983, § 9-13)

Chapter 10

FIRE PREVENTION*

Article I. In General

- Sec. 10-1. County code adopted.
- Sec. 10-2. Violation of county code.
- Sec. 10-3. Authority to inspect for hazards, require abatement.
- Sec. 10-4. Compliance with notice to abate.
- Sec. 10-5. Permit required for intentional burning.
- Secs. 10-6—10-15. Reserved.

Article II. Liquefied Petroleum Gas

- Sec. 10-16. Permit required to store or install piping; maximum quantity stored.
- Sec. 10-17. Inspection required; notice of defects.
- Sec. 10-18. Transfer and transportation requirements.
- Sec. 10-19. Carelessness prohibited.

*County code reference—Fire prevention, ch. 14.

State law references—Fire prevention and control, F.S. ch. 633; Municipal Home Rule Powers Act, F.S. ch. 166.

ARTICLE I. IN GENERAL**Sec. 10-1. County code adopted.**

The provisions of the Code of Miami-Dade County, Florida, chapter 14, article II, is hereby adopted and enacted by the city, by reference as authorized by the provisions of said code and the Charter of Miami-Dade County, Florida, and the city clerk is hereby directed to keep on file not less than three (3) copies of said Code and make same available for public use, inspection and examination.

(Code 1955, § 10-18; Code 1983, § 10-1)

Sec. 10-2. Violation of county code.

Any person violating any of the provisions of the code adopted by this article shall, upon conviction, be punished as for a violation of this Code. Each day that a violation is permitted to exist shall constitute a separate offense.

(Code 1955, § 10-19; Code 1983, § 10-2)

Sec. 10-3. Authority to inspect for hazards, require abatement.

The chief code enforcement officer is hereby empowered to enter, subject to constitutional requirements, any and all buildings and premises at any reasonable hour for the purpose of making inspections, and to serve written notice upon the owner or occupant to abate, within a specified time, any and all fire hazards that may be found.

(Code 1955, § 10-13; Code 1983, § 10-3)

Sec. 10-4. Compliance with notice to abate.

Any person so served with a notice to abate any fire hazard shall comply therewith and promptly notify the chief code enforcement officer of the action taken.

(Code 1955, § 10-14; Code 1983, § 10-4)

Sec. 10-5. Permit required for intentional burning.

It shall be unlawful for any person in the city to burn or attempt to burn any building or other property without first having obtained a permit.

(Code 1955, § 10-15; Code 1983, § 10-5)

Secs. 10-6—10-15. Reserved.**ARTICLE II. LIQUEFIED PETROLEUM GAS*****Sec. 10-16. Permit required to store or install piping; maximum quantity stored.**

No person shall store liquefied petroleum gas or install, in the city, any gas piping for use in conjunction with tank gas, bottled gas or any containers used in dispensing any form of liquefied petroleum gas unless the person making such installation shall obtain a permit authorizing such installation or storage from the department of buildings and licensing. Such permit shall be issued as a matter of course, provided the application therefor shall comply with the provisions of this article and other ordinances of the city which pertain to such installations. Provided, however, that no permit may be issued for the use or construction of liquefied petroleum gas tanks with a capacity in excess of thirty thousand (30,000) gallons, and it shall be a violation of the provisions of this article to construct or use liquefied petroleum gas tanks with a capacity in excess of thirty thousand (30,000) gallons.

(Code 1955, § 10-20; Code 1983, § 10-16)

Sec. 10-17. Inspection required; notice of defects.

All installations of gas piping for use with tank gas, bottled gas or any containers for the dispensing of any form of liquefied petroleum gas which shall be installed in the city shall be subject to inspection by the department of buildings and licensing. In the event such inspection shall disclose that an installation has been made without obtaining a permit, as herein required, or such installation has not been made in conformity with such permit or in compliance with ordinances of the city, the department shall thereupon notify the person owning the installation and the individual or company making such installation to remove such installation forthwith, or to cause the same to conform with all requirements of the city pertaining to such installations.

(Code 1955, § 10-21; Code 1983, § 10-17)

Sec. 10-18. Transfer and transportation requirements.

No valve, faucet or other connection or vent in the city shall be left open when transferring any liquid petroleum gas from one (1) container to another on the consumer's premises, in such manner that the gas from

*State law reference—Sale of liquefied petroleum gas, F.S. ch. 527.

any volatilizing liquids shall be permitted to escape into the air, whether such transfer shall be made either within or without a building, except as specifically provided by law. No volatilizing liquids shall be transported on the streets or highways of the city in containers, tanks or systems when the pressure in such containers, tanks or systems has been increased above that normally exerted by the volatilization of the liquid contained therein, whether such increase is created by introducing air pressure or otherwise. No containers or systems whether for the transportation, handling, storage, distribution, use or consumption of any of the aforesaid liquids shall be repaired on the consumer's premises, or in any public place, or on any street or alley within the city, if such repair shall necessitate or cause the wasting or escaping of any such liquids or the volatile gases emanating therefrom.

(Code 1955, § 10-25; Code 1983, § 10-18)

Sec. 10-19. Carelessness prohibited.

Any carelessness or neglect on the part of any person transporting any liquids or volatilized gas in, on or about the premises of any consumer located within the city, whereby any such liquid or volatilized gas has been created and permitted to escape so as to create a fire hazard, or other risk to persons or property, shall be considered a violation of this article.

(Code 1955, § 10-27; Code 1983, § 10-19)

Chapter 11

GARBAGE AND TRASH*

Article I. In General

- Sec. 11-1. Definitions.
- Sec. 11-2. Administrative regulations authorized.
- Sec. 11-3. Prima facie evidence of accumulation of municipal solid waste.
- Sec. 11-4. Applicability to residential, commercial uses.
- Sec. 11-5. Only city or contractor to collect and dispose of municipal solid waste.
- Sec. 11-6. Storage, removal of waste for salvage or resale.
- Sec. 11-7. Offensive or dangerous accumulations.
- Sec. 11-8. Burning, burying, etc.; use as animal, fowl or fish food; transporting.
- Sec. 11-9. Regulation of containers; duty to provide.
- Sec. 11-10. Removal prohibited except from approved containers.
- Sec. 11-11. Containers to be kept covered.
- Sec. 11-12. Containers to be grouped, accessible.
- Sec. 11-13. Distance of residential containers from street.
- Sec. 11-14. Curbside placement; emergency; improvement of collection procedure; conditions.
- Sec. 11-15. Placing on right-of-way or private property prohibited generally.
- Sec. 11-16. Permit to place on private property.
- Sec. 11-17. Placement, removal of rubbish, bulky waste from residential units.
- Sec. 11-18. Responsibility for removal of industrial and noncombustible waste.
- Sec. 11-19. City not responsible for building debris, furniture, vegetation cut before occupancy.
- Sec. 11-20. Residential disposal of boxes, cartons.
- Sec. 11-21. Materials or liquids other than waste prohibited in containers.
- Sec. 11-22. Garbage to be drained and wrapped.
- Sec. 11-23. Deposit of feces.
- Sec. 11-24. Disposal of animal carcasses.
- Sec. 11-25. Deposit of dangerous substances.
- Sec. 11-26. Hazards in way of collectors.
- Sec. 11-27. Structure foundations must be demucked.
- Sec. 11-28. Disposal of tires; requirement for identification of tires with business tax receipt number.
- Secs. 11-29—11-36. Reserved.

Article II. Charges for Assessment of Residential Collection

- Sec. 11-37. When charges commence; continuation during temporary vacancy.
- Sec. 11-38. Responsibility for payment.
- Sec. 11-39. Separation of household and commercial accounts.
- Sec. 11-40. Schedule of residential charges.
- Sec. 11-41. Residential solid waste assessment.
- Sec. 11-42. Increases.
- Secs. 11-43—11-48. Reserved.
- Sec. 11-49. Lien for city charges.
- Secs. 11-50—11-52. Reserved.
- Sec. 11-53. Residential solid waste assessment.
- Secs. 11-54—11-62. Reserved.

Article III. Private Nonresidential Collection

- Sec. 11-63. Legislative intent.

*State law references—Resource recovery and management, F.S. § 403.702 et seq.; local government solid waste responsibilities, F.S. § 403.706; Florida Litter Law, F.S. § 403.413; Municipal Home Rule Powers Act, F.S. ch. 166.

OPA-LOCKA CODE

Sec. 11-64.	Definitions.
Sec. 11-65.	Franchise required; relative rights of franchisee and city.
Sec. 11-65.1.	Applications and forms.
Sec. 11-66.	Collection standards; dumpster location; dumpster size and frequency; noncompliance; grounds for revocation.
Sec. 11-67.	Waste vehicle permits.
Sec. 11-68.	Inspection of vehicles.
Sec. 11-69.	Marking of vehicles.
Sec. 11-70.	Application for franchise agreement; requirements and conditions.
Sec. 11-71.	Prerequisites to license issuance.
Sec. 11-72.	Franchise issuance.
Sec. 11-73.	Insurance required.
Sec. 11-74.	Power of city to regulate charges.
Sec. 11-75.	Reports and payment of fees.
Sec. 11-76.	Term and option to renew franchise.
Sec. 11-77.	Payment of fees; delinquencies; appeal.
Sec. 11-78.	Enforcement and administrative fees.
Sec. 11-79.	Reserved.

Article III-A. Waste Compacting Services

Sec. 11-79.1.	Short title.
Sec. 11-79.2.	Legislative intent.
Sec. 11-79.3.	Franchise required; relative rights of franchisee and city.
Sec. 11-79.4.	Effect on existing contracts and licenses.
Sec. 11-79.5.	Applications and forms.
Sec. 11-79.6.	Service standards; noncompliance; grounds for revocation; penalty assessment.
Secs. 11-79.7, 11-79.8.	Reserved.

Article III-B. Recycled Materials

Sec. 11-79.9.	Short title.
Sec. 11-79.10.	Legislative intent.
Sec. 11-79.11.	License required; relative rights of licensee and city.
Sec. 11-79.12.	Required state licensing.
Sec. 11-79.13.	Effect on existing contracts and licenses.
Sec. 11-79.14.	Applications and forms.
Sec. 11-79.15.	Service standards; noncompliance; grounds for revocation; penalty assessment.

Article IV. Dumpster Enclosures

Sec. 11-80.	Short title.
Sec. 11-81.	Purpose.
Sec. 11-82.	Dumpster enclosure required.
Sec. 11-83.	Dumpster enclosure specifications, materials, location.
Secs. 11-84—11-89.	Reserved.

Article V. Commercial Solid Waste Collection and Enforcement

Sec. 11-90.	Short title.
Sec. 11-91.	Legislative intent.
Sec. 11-92.	Enforcement process.
Sec. 11-93.	Schedule of civil penalties.

ARTICLE I. IN GENERAL**Sec. 11-1. Definitions.**

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Administrative surcharge means the administrative and operational costs associated with oversight and enforcement of this chapter. Said charge may be inclusive of civil penalties but are not appealable or waivable.

Biological waste means solid waste that causes or has the capability of causing disease or infection and includes, but is not limited to, biomedical waste, diseased or dead animals, and other wastes capable of transmitting pathogens to humans or animals. The term does not include human remains that are disposed of by persons licensed under F.S. ch. 497.

Biological waste collector means any private solid waste contractor who collects, transports or disposes of biological waste.

Biomedical waste means any solid waste or liquid waste which may present a threat of infection to humans. The term "biomedical waste" includes, but is not limited to, non-liquid human tissue and body parts; laboratory and veterinary waste which contain human-disease-causing agents; discarded disposable sharps; human blood, and human blood products and body fluids; and other materials which in the opinion of the department of health and rehabilitative services of the state represent a significant risk of infection to persons outside the generating facility.

Biomedical waste collector means any private solid waste contractor who collects, transports or disposes of biomedical waste.

Bulky waste means, but is not limited to, large items of household refuse such as appliances, furniture, accumulations from major tree cutbacks (exceeding ten (10) inches in diameter and four (4) feet in length and weighing more than fifty (50) pounds), large crates and like articles which shall be placed out for city collection quarterly per year by residential unit owners paying for city service.

Calendar year means the twelve (12) month period beginning January 1.

Cart-on-wheels means the ninety-six (96) gallon containers issued to residences by the city for waste collection and are required to be used.

Certified recovered materials dealer means a dealer certified under F.S. § 403.7046 who handles, purchases, receives, recovers, sells or is an end user of recovered materials as defined herein.

Commercial account means any hotel, motel, rooming house, tourist cabin, trailer park, bungalow court, apartment building with rental apartments, cooperative apartments, and/or multiple-story condominium buildings and any other commercial business or establishment of any nature or kind whatsoever other than residential units, as defined in this section, including the collection and disposal of construction and demolition debris.

Commercial business or establishment means and includes all retail, professional, wholesale and industrial facilities, governmental and quasi-governmental establishments and any other commercial enterprises, for profit or not for profit, offering goods or services to the public.

Commercial property means any hotel, motel, roominghouse, tourist cabin, trailer park, bungalow court, apartment building with rental apartments, cooperative apartments, and/or multiple-story condominium buildings and any other business or establishment of any nature or kind whatsoever other than a residential unit as defined in this section.

Commercial solid waste means every waste accumulation, including, but not limited to, dust, paper, paper cartons, cardboard cartons, excelsior, rags, garbage, plastics, metal containers, recyclable material, garden and yard clippings and cuttings, bulky waste and other waste which is usually attendant to the operations of commercial business or establishment or commercial property.

Commercial solid waste service means the collection and disposal of garbage, trash, recycling, construction and demolition debris, solid and process waste for all commercial accounts.

Compacting services means all equipment, processes or methods by which waste is reduced in size or volume for disposal, including any packaging thereof, and in-

cludes, without limitation, rental fees, maintenance fees, set-up fees or any other charges associated with such services.

Condominiums or condominium buildings means any building or structure that evidences that form of ownership of real property which is created pursuant to the State of Florida Condominium Act (F.S. ch. 718), which is comprised of units that may be owned by one (1) or more persons, and in which there is appurtenant to each unit an undivided share in common elements. Any condominiums with three (3) or more dwelling units therein shall be classified as commercial establishments for purposes of this chapter.

Construction and demolition debris means discarded materials generally considered to be not water-soluble and nonhazardous in nature, including, but not limited to, steel, glass, brick, concrete, asphalt roofing material, pipe, gypsum wallboard, and lumber, from the construction or destruction of a structure as part of a construction or demolition project or from the renovation of a structure, and includes rocks, soils, tree remains, trees, and other vegetative matter that normally results from land clearing or land development operations for a construction project, including such debris from construction of structures at a site remote from the construction or demolition project site. Mixing of construction and demolition debris with other types of solid waste will cause the resulting mixture to be classified as other than construction and demolition debris. The term "construction and demolition debris" also includes:

- (a) Clean cardboard, paper, plastic, wood, and metal scraps from a construction project;
- (b) Except as provided in F.S. § 403.707(9)(j), yard trash and unpainted, nontreated wood scraps and wood pallets from sources other than construction or demolition projects;
- (c) Scrap from manufacturing facilities which is the type of material generally used in construction projects and which would meet the definition of construction and demolition debris if it were generated as part of a construction or demolition project. This includes debris from the construction of manufactured homes and scrap shingles, wallboard, siding concrete, and similar materials from industrial or commercial facilities; and

- (d) De minimis amounts of other nonhazardous wastes that are generated at construction or destruction projects, provided such amounts are consistent with best management practices of the industry.

Construction and demolition debris collector means any exclusive commercial solid waste franchisee who collects, transports or disposes of construction and demolition debris and shall be subject to a registration fee as provided for in F.S. § 403.7046.

Construction dumpster or roll-off means an approved open metal container without wheels, with capacity up to forty (40) cubic yards, used at construction sites for the purpose of removing construction and demolition debris, which includes rock, metal and other materials which are heavy in weight or substantial in size, used in connection with a construction and/or demolition project.

Container means a durable plastic or other suitable material container of the type commonly sold as a garbage can, including wheeled containers, having a capacity of ninety-six (96) gallons, sufficiently strong for workmen to empty conveniently, or may be lifted, and a plastic top with handle, and so constructed as to permit the free discharge of its contents. The container must not have any inside structures such as inside bands and reinforcing angles or anything within the container to prevent the free discharge of the contents. The container shall be free of jagged or sharp edges. The term "container" collectively means a construction dumpster, dumpster, roll-off or cart-on-wheels used for commercial accounts.

Containerized waste means and include refuse, not to include garbage as defined herein, which is placed in cans, plastic bags, and/or bulk containers not exceeding three (3) feet in length or weighing more than fifty (50) pounds.

Contractor or franchisee means a private solid waste firm that is granted an exclusive right to remove and dispose of solid waste from commercial accounts and residential units pursuant to the provisions of this chapter.

Curbside means the area between the sidewalk and the street edge or, in areas without sidewalks, the area between the edge of the traveled portion of any public or private street and the property line.

Department means the city department of public works and utilities.

Director means the director of the department of public works and utilities.

Discarded building materials and fill shall be considered waste and come within the purview of this chapter.

Dumping means to throw, discard, place, deposit or bury any litter and/or refuse except where permitted.

Dumpster means an approved metal container on wheels with a tightfitting solid top and a minimum capacity of one (1) cubic yard.

Enforcement officer means designated agents of the city manager, or franchisee, acting by and through him/her, including, but not limited to, code enforcement inspectors, police officers, outside consultants and other third parties as may be chosen by the city manager or franchisee.

Franchise agreement means an exclusive agreement between the city and a qualified firm to provide commercial solid waste services, as defined in this chapter, within the city.

Franchise fees shall apply to commercial accounts and includes, but is not limited to, a percentage of gross revenue received, various one-time fees and temporary roll-off/container permit fee.

Fiscal year means the twelve (12) month period beginning October 1.

Franchisee or *contractor* means a private solid waste firm that is granted an exclusive right to remove and dispose of solid waste from commercial accounts and residential units pursuant to the provisions of this chapter.

Garbage means all kitchen refuse generated from a residential unit.

Gross revenue received means all monies resulting from all transactions and activities, within the city, in the franchisee's regular course of business and trade including garbage, industrial, solid waste, used cooking oil waste, environmental charges and fees, containerized waste, equipment rental and leasing, fuel surcharge, construction and demolition debris, roofing materials, trash, litter, maintenance, compactors, refuse and/or rubbish collection removal and disposal

services rendered, hand bag collection, recycling, or from any other source related directly or indirectly from waste collection services, including, but not limited to, all income derived from leasing and renting of real or tangible personal property, the use of dump trucks, grappling trucks, roll-off trucks, trailers, roll-offs, boxed in, framed, fenced in, or otherwise designated storage areas, etc., containers, bagsters, chutes, and any other vehicles and equipment used for collection and disposal of any debris by the franchisee, exclusive of taxes, as provided by law, whether wholly or partially collected within the city and less bad debts. The term "gross revenue received" shall not include income derived from the transportation, storage, treatment, collection, and removal of biomedical, biological, or hazardous waste as herein defined.

Hazardous waste means solid waste, or a combination of solid wastes, which, because of its quantity, concentration, or physical, chemical, or infectious characteristics, may cause, or significantly contribute to, an increase in mortality or an increase in serious irreversible or incapacitating reversible illness or may pose a substantial present or potential hazard to human health or the environment when improperly transported, disposed of, stored, treated, or otherwise managed. The term "hazardous waste" does not include human remains that are disposed of by persons licensed under F.S. ch. 497.

Health and safety concern means any inefficient and improper method of managing solid waste collection which creates a hazard to the public health, causes pollution of air and water resources, constitutes a waste of natural resources, has an adverse effect on land values and creates public nuisances.

Household means the whole or any part of a residential unit.

Householder means a single person or head of a family using a household for himself or his family.

Illegal dumping means the unauthorized placement of bulky waste or trash at the curbside or other public right-of-way by any person outside of the scheduled time. In certain circumstances, this may also apply to private property.

Industrial waste means the waste products of canneries, water houses or packing plants, condemned food particles, agricultural waste products, waste and debris from brick, concrete block, roofing, shingle or

tile plants, debris and waste accumulated from land clearing, excavation, building, rebuilding and all alteration of buildings, structures, roads, streets, sidewalks or parkways, and any waste materials which, because of their volume or nature, do not lend themselves to collection and incineration commingled with ordinary garbage and trash, or which, because of their nature or surrounding circumstances should be, for reasons of health or safety, disposed of more often than the city collection service schedule provides for other types of garbage or waste.

Municipal city service means a special assessment lawfully imposed by the city against assessed property to fund all or any portion of the cost of the provision of solid waste service and water and sewer service.

Municipal solid waste means sludge unregulated under the federal Clean Water Act or Clean Air Act, sludge from a waste treatment works, water supply treatment plant, or air pollution control facility, or garbage, trash, waste, bulky waste, special waste, or other discarded material, including solid, liquid, semi-solid, or contained gaseous material resulting from domestic, industrial, commercial, mining, agricultural, or governmental operations. Source separated recovered materials, as defined in this chapter, are not solid waste.

Municipal solid waste fee means a special assessment lawfully imposed by the city against assessed property to fund all or any portion of the cost of the provision of solid waste and recyclable materials collection and disposal services, facilities, or programs providing a special benefit to property as a consequence of possessing a logical relationship to the value, use, or characteristics of the assessed property.

Municipal solid waste service means the collection and disposal of solid waste from all residential units.

Noncombustible refuse means refuse materials that are unburnable at ordinary incinerator temperature (eight hundred (800) degrees through one thousand eight hundred (1,800) degrees Fahrenheit), such as metals, mineral matter, large quantities of glass or crockery, metal furniture, auto bodies or parts, and other similar materials or residues not usual to housekeeping or to the operation of stores or offices.

Public nuisance means a container which appears to be utilized for commercial solid waste collection without a city franchise agreement and poses a threat to the health and safety of the community.

Recovered materials means metal, paper, glass, plastic, textile, or rubber materials that have known recycling potential, can be feasibly recycled, and have been diverted and source separated or have been removed from the solid waste stream for sale, use, or reuse as raw materials, whether or not the materials require subsequent processing or separation from each other, but does not include materials destined for any use that constitutes disposal. Recovered materials, as described above, are not solid waste.

Recyclable material means those materials which are capable of being recycled and which would otherwise be processed or disposed of as solid waste.

Recycling means any process by which solid waste, or materials that would otherwise become solid waste, are collected, separated, or processed and reused or returned to use in the form of raw materials or intermediate or final products. Such raw materials or intermediate or final products include, but are not limited to, crude oil, fuels, and fuel substitutes.

Residential unit means any approved structure, with a certificate of occupancy, used or constructed or modified or adopted for use as a single-family dwelling, duplex, cluster housing, townhouse or multiple-family apartment building or other similar structure containing four (4) or fewer residential units, and which is located on a single lot, parcel or tract of land that is billed for municipal city service. Each dwelling unit of a duplex, cluster housing, townhouse, or multiple-family building or other similar structure shall be deemed a separate residence and billed separately for municipal city service.

Roll-off or construction dumpster means an approved open metal container without wheels, with capacity up to forty (40) cubic yards, used at construction sites for the purpose of removing construction and demolition debris, which includes rock, metal and other materials which are heavy in weight or substantial in size, used in connection with a construction and/or demolition project.

Rubbish means shrubbery, trees, palm fronds, and trimmings or limbs therefrom, and other combustible material too large to be deposited in trash cans for collection.

Salvage materials means recovered materials.

Sludge means the accumulated solids, residues, and precipitates generated as a result of waste treatment or processing, including wastewater treatment, water supply treatment, or operation of an air pollution control facility, and mixed liquids and solids pumped from septic tanks, grease traps, privies, or similar waste disposal appurtenances.

Solid waste means sludge unregulated under the federal Clean Water Act or Clean Air Act, sludge from a waste treatment works, water supply treatment plant, or air pollution control facility, or garbage, rubbish, refuse, special waste, or other discarded material, including solid, liquid, semisolid, or contained gaseous material resulting from domestic, industrial, commercial, mining, agricultural, or governmental operations. Recovered materials, as defined in F.S. § 403.703(28), and post-use polymers, as defined in F.S. § 403.703(24), are not solid waste.

Source separated means recovered materials that are separated from solid waste at the location where the recovered materials and solid waste are generated. The term "source separated" does not require that various types of recovered materials be separated from each other, and recognizes de minimis solid waste, in accordance with industry standards and practices, may be included in the recovered materials. Materials are not considered source separated when two (2) or more types of recovered materials are deposited in combination with each other in a commercial collection container located where the materials are generated and, when such materials contain more than ten (10) percent waste by volume or weight, said materials will be considered solid waste. For purposes of this chapter, the term "various types of recovered materials" means metals, paper, glass, plastic, textiles, and rubber.

Special waste means solid waste that can require special handling and management, including, but not limited to, white goods, waste tires, used oil, lead-acid batteries, construction and demolition debris, ash residue, yard trash, and biological wastes. For collection purposes, illegal dumping shall be considered special waste.

Special waste handling fee for trash and bulky waste means the cost for residential collection service outside the normal collection schedule. Effective January 1, 2016, the fee will be twenty-three dollars (\$23.00) per cubic yard with a minimum five (5) cubic yard charge of one hundred fifteen dollars (\$115.00). Said fee shall be reviewed annually by the city manager and subject to change with city commission approval.

Transfer station means a site the primary purpose of which is to store or hold solid waste for transport to a processing or disposal facility.

Trash means small, discarded materials from around the premises, such as cans, glass, paper, paper cartons and other materials which can be deposited in the approved trash cans for collection, and lawn clippings, grass cuttings, leaves and small trimmings that are limited to being placed in the approved ninety-six (96) gallon garbage cans without protruding therefrom.

Waste means trash and garbage.

(Code 1983, § 11-1; Ord. No. 15-16, § 2, 7-8-2015)

State law reference—Definitions, F.S. §§ 403.703, 403.7031.

Sec. 11-2. Administrative regulations authorized.

In order to implement the provisions of this chapter, the department of public works and utilities shall from time to time promulgate rules and regulations, as authorized by section 2-83, regarding municipal solid waste collection, whether by the city or by a private contractor. Departmental rules and regulations shall be distributed to all prospective contractors in accordance with the applicable procurement process.
(Code 1983, § 11-2; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-3. Prima facie evidence of accumulation of municipal solid waste.

Occupancy of any residential unit or any commercial property located in the city waste service area shall be prima facie evidence that garbage, waste, trash, bulky waste or other refuse is being produced or accumulated upon such premises.
(Code 1983, § 11-3; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-4. Applicability to residential, commercial uses.

The provisions of articles I and II of this chapter shall apply to both residential and commercial uses and premises in the city unless expressly limited to one (1) or the other; provided, however, that if the application

of any provision in said articles to commercial uses would conflict with any franchise for the collection of commercial waste or any regulation of the department of public works and utilities relating to the franchised collection of commercial waste, such franchise or regulation shall prevail.

(Code 1983, § 11-4; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-5. Only city or contractor to collect and dispose of municipal solid waste.

Except as otherwise provided herein, the department of public works and utilities, or contractor shall exclusively collect all municipal solid waste from residential units within the city and dispose of same as permitted by law. No municipal solid waste shall be collected or disposed of in the city by any other person. No owner or lessee of any property shall on behalf of any tenant or occupant collect or dispose of municipal solid waste produced or accumulated on said property. (Code 1983, § 11-5; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-6. Storage, removal of waste for salvage or resale.

Materials that are baled or otherwise tightly contained may be removed by the owner or a person under contract to the owner for salvage or resale if the owner is receiving substantial payment for the same, provided that the owner or contractor has a valid permit from the city for the collection and disposal of salvageable materials. All remaining materials shall be considered municipal solid waste and shall be removed by the department of public works and utilities or a contractor in a manner consistent with industry standards and regulations.

(Code 1983, § 11-6; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-7. Offensive or dangerous accumulations.

No municipal solid waste shall be permitted to accumulate so as to comprise a nuisance, fire hazard, breeding place for flies or other insects, harbor for rodents, or health and safety concern.

(Code 1983, § 11-7; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-8. Burning, burying, etc.; use as animal, fowl or fish food; transporting.

No municipal solid waste shall be burned, buried, placed around shrubbery or trees, or used as animal, fowl or fish food, or transported upon the streets or

public highways of the city. The burning, burying, placing around shrubbery or trees, using as animal, fowl or fish food, or transporting on the streets or public highways of the city of municipal solid waste, shall constitute prima facie evidence of violation of this chapter by the householder or manager of the premises on which the same shall have occurred or from which the same shall have been transported. The presence of ashes, charred wastes and like substances on the premises shall constitute prima facie evidence of burning. This section shall not prohibit transportation by a contractor.

(Code 1983, § 11-8; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-9. Regulation of containers; duty to provide.

The department of public works and utilities shall regulate the number, type, size and construction of all waste containers which are placed for collection, whether by the city or by a contractor. It shall be the duty of each occupant at a residential unit or commercial property, or from same, which waste is generated or accumulated, to properly maintain containers in accordance with applicable regulations.

(Code 1983, § 11-9; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-10. Removal prohibited except from approved containers.

Neither the department of public works and utilities or a contractor, shall remove waste that is not in an approved container.

(Code 1983, § 11-10; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-11. Containers to be kept covered.

Containers shall be kept tightly covered at all times except when actually placing waste in them or removing it therefrom.

(Code 1983, § 11-11; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-12. Containers to be grouped, accessible.

Containers for the use of the same building or structure, if more than one (1), shall be placed within five (5) feet of each other, and where easily accessible to waste collectors.

(Code 1983, § 11-12; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-13. Distance of residential containers from street.

In no event shall residential containers be kept in a place farther removed from the abutting public street or road than a distance established by the department of public works and utilities.

(Code 1983, § 11-13; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-14. Curbside placement; emergency; improvement of collection procedure; conditions.

(a) *Curbside placement.* Whenever, because of strike, natural calamity, or other emergency, or if the city manager determines that it is necessary to improve the collection of garbage and trash service or to provide for increased financial efficiency of the service, the city manager may order all or any designated garbage or trash customer within defined areas to place garbage and trash containers at the front property line or curb on the day of scheduled collection, by notice set forth in the preceding monthly billing. Notice shall state the effective date for curbside placement. The manager may establish all necessary rules to provide for safety, uniformity, sanitation and aesthetics relating to collection and placement of container. The manager's order shall remain in full force and effect unless modified or rejected by resolution of the city commission.

(b) *Domestic garbage.* Garbage and trash containers are hereby required to be placed on the front property line or curb on the day of scheduled collection. Such containers shall be returned to their normal place within twenty-four (24) hours after the scheduled collection date. Containers may be placed at locations other than stated above with the approval of the city manager. Those containers and locations not approved will not be picked up. Containers in approved locations will be emptied as determined by the city manager.

(c) *Conditions.* When ordered by the city manager receptacles and containers shall be provided by the customer being serviced, except in areas where service is affected by automated collection systems. In such areas, the initial automated system containers shall be specifically designated by the city and shall be used exclusively for collection purposes. The customer shall be responsible for the maintenance of all receptacles or containers in good condition and shall provide cleanliness and repair. All receptacles and containers shall be provided with covers sufficiently tight to prevent animals, flies or other insects from having access to the

contents of the receptacles. Receptacles or containers in which wet garbage or trash matter is placed shall be watertight. All receptacles and containers shall be subject to the approval, inspection or condemnation by the department of public works and utilities.

(d) *Separation of garbage, yard trash and rubbish.* The city manager may order garbage to be differentiated from garden trash and rubbish when placed in receptacles or containers for collection, otherwise, garbage, garden trash and rubbish may be commingled for placement in containers or receptacles for collection purposes.

(Code 1983, § 11-14; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-15. Placing on right-of-way or private property prohibited generally.

Except as otherwise provided herein, no rubbish, garbage, trash, bulky waste or waste of any type shall be placed or deposited within the right-of-way of any public road or upon any private property within the city limits except on those properties licensed and zoned specifically for said purpose. This section shall not apply to the deposit or placing of waste materials, rubbish, bulky waste or trash on any property by any governmental agency or utility, or by persons permitted to deposit building materials and fill in the course of construction or of the reclamation of any land within the city as may be permitted by the city manager pursuant to permits authorized by this Code.

(Code 1983, § 11-15; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-16. Permit to place on private property.

(a) *Required.* Notwithstanding the provisions of section 11-15, rubbish, garbage, trash, bulky waste or waste may be placed or deposited on private property upon obtaining a permit from the city manager or designee and utilizing the franchisee for collection.

(b) *Application.* No permit authorized by this section shall be issued by the city manager or designee until an application has been filed therefor, specifying the property to be used and accompanied by the following:

- (1) An affidavit designating the nature of the materials to be disposed of executed by the person disposing of the same.
- (2) The written authorization of the owner of the property permitting disposal.

- (3) Payment of a fee in the amount as presently established or as hereafter adopted by resolution of the city commission.

(c) *Duration, form, posting.* No permit shall be valid for more than ninety (90) days from the date of its issuance. All permits shall be on a form acceptable to the city manager and a true copy of the permit shall be affixed on a stake within five (5) feet of the materials deposited closest to a public road.

(d) *Denial.* The city manager or designee may refuse the issuance of any permit where it appears that the applicant has caused materials to be placed or deposited on any public or private lands within the city without having obtained a permit from the city manager or designee prior thereto. Appeals from the refusal of the city manager or designee to issue any permit shall be in accordance with the provisions of this Code. (Code 1983, § 11-16; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-17. Placement, removal of rubbish, bulky waste from residential units.

(a) Notice to the city of illegal dumping. In order to avoid being issued a citation for illegal or unpermitted dumping, a property owner must notify the city within twenty-four (24) hours of it becoming aware of debris, trash or other rubbish being dumped on its property or in the swale area adjacent to its property. The property owner shall be allowed to notify the city of such illegal or unpermitted dumping twice per calendar year of such illegal dumping to avoid being issued a citation or fine.

(b) Section 11-15 shall not apply to rubbish or bulky waste placed only within the right-of-way of a public road immediately abutting property owned, leased or under the control of a householder paying fees for the collection and removal of municipal solid waste to the city, provided that tree trunks or branches of trees shall be cut into lengths not exceeding five (5) feet; and that no single piece of rubbish or bulky waste shall exceed fifty (50) pounds of weight. Said placement and removal shall be limited to four (4) times per calendar year per residential unit effective January 1, 2016, and placed the weekend before the scheduled collection day. No rubbish shall be removed from the premises by the department of public works and utilities or contractor, unless it is the scheduled collection date for the area, or the householder shall first notify the department of public works and utilities or contractor and request a

special collection removal. The department of public works and utilities or contractor shall, in its discretion, designate the time of the special collection removal and a special handling fee shall be assessed. Effective January 1, 2016, the cost for this service will be twenty-three dollars (\$23.00) per cubic yard, and there will be a minimum five (5) cubic yard charge of one hundred and fifteen dollars (\$115.00). Said charge shall be reviewed annually by the city manager and shall be subject to change with city commission approval.

(Code 1983, § 11-17; Ord. No. 15-16, § 2, 7-8-2015; Ord. No. 16-01, § 2, 1-13-2016)

Sec. 11-18. Responsibility for removal of industrial and noncombustible waste.

Industrial waste and noncombustible waste shall be disposed of in the manner and in such locations as are prescribed by the director. Removal of industrial waste and noncombustible waste not subject to removal by the city, or any franchise of the city, shall be the responsibility of, and at the cost of, the owner, occupant, operator or contractor creating or causing the accumulation of such material. Upon approval of the director, collection and disposal of the aforementioned waste may be undertaken by the city, or franchisee, at the expense of the owner, occupant, operator or contractor, provided that such collection and disposal does not interfere with other waste collection operations. Said collection and disposal will incur a special handling fee, plus administrative costs, that may be assessed to the property owner.

(Code 1983, § 11-18; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-19. City not responsible for building debris, furniture, vegetation cut before occupancy.

The city shall not be responsible for collecting or hauling discarded building material, dirt, rock or discarded furniture from private property. It shall not be responsible for collecting or hauling trees, bushes or other vegetation cut on private property before a certificate of occupancy is issued and no more than quarterly per calendar year for residential units as described in this chapter.

(Code 1983, § 11-19; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-20. Residential disposal of boxes, cartons.

All boxes and paper cartons originating from households shall be torn apart, flattened out, and placed in a waste container in order to qualify for collection by the city.

(Code 1983, § 11-20; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-21. Materials or liquids other than waste prohibited in containers.

No materials or liquids other than wastes ready for removal shall be kept in waste containers.

(Code 1983, § 11-21; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-22. Garbage to be drained and wrapped.

All garbage must be thoroughly drained of liquid matter and shall be well wrapped in paper before being deposited in containers.

(Code 1983, § 11-22; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-23. Deposit of feces.

No human feces shall be placed in waste containers. Animal feces must be well wrapped in paper.

(Code 1983, § 11-23; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-24. Disposal of animal carcasses.

Carcasses of small animals shall be wrapped in paper and tied and placed in waste containers for removal. Disposal of larger carcasses shall be the responsibility of the householder or manager.

(Code 1983, § 11-24; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-25. Deposit of dangerous substances.

All glass, razor blades, and all other like materials shall be securely wrapped so as to prevent personal injury to collectors and shall be deposited in waste containers. No hot ashes, tar, grease, chemicals, poisons or other materials offering a hazard to the collectors shall be placed in waste containers.

(Code 1983, § 11-25; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-26. Hazards in way of collectors.

It shall be unlawful to permit hazards in the line of ingress or egress of waste collectors.

(Code 1983, § 11-26; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-27. Structure foundations must be demucked.

(a) All structure foundations must be demucked in accordance with the Florida Building Code, Miami-Dade County Edition. An engineer's soil compaction certificate is required before a building permit is issued.

(b) Only clean fill, limited to crushed limerock, sand, dirt, concrete debris and other environmentally acceptable materials which comply with the Florida Building Code, Miami-Dade County Edition will be permitted.

(c) The following materials are not acceptable: Petroleum products and by-products; roofing materials; lumber or wood; furniture; glass, aluminum, trees or parts of trees; cut vegetation; rubber; wire or cable; insulation materials; plastic materials; fabric materials; trash and garbage.

(d) Any person violating any of the provisions of this section shall be punished by a fine not exceeding five hundred dollars (\$500.00) or by imprisonment in the county jail for a period not to exceed sixty (60) days, or by both a fine and imprisonment at the discretion of the court.

(Code 1983, § 11-27; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-28. Disposal of tires; requirement for identification of tires with business tax receipt number.

All businesses disposing of tires shall, prior to disposal, imprint, emboss, or identify with indelible ink or paint on each tire the business tax receipt number of said business. The business tax receipt number shall be placed in a conspicuous place on the tire to be readily identifiable.

(Code 1983, § 11-28; Ord. No. 15-16, § 2, 7-8-2015)

Secs. 11-29—11-36. Reserved.**ARTICLE II. CHARGES FOR ASSESSMENT OF RESIDENTIAL COLLECTION****Sec. 11-37. When charges commence; continuation during temporary vacancy.**

Waste fees shall be chargeable upon occupancy or upon the initial connection of permanent electrical utility service or water service to the property or whenever the first waste pickup from the property is made by the city or by its contractor, whichever shall first occur.

Waste fees shall remain chargeable against any property during the period any of the foregoing services are supplied to the property, notwithstanding that a temporary vacancy may occur.

(Code 1983, § 11-37; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-38. Responsibility for payment.

The failure of any owner to make the payments as required by this chapter shall not relieve the householder or manager of a commercial account from the necessity of doing so; nor shall the failure of any such householder or manager to make such payments relieve the owner from the necessity of doing so. Compliance by the owner with the requirements hereof shall relieve the householder or manager of a commercial account and compliance by the householder or manager of a commercial account shall likewise relieve the owner. Noncompliance by either shall not excuse the other.

(Code 1983, § 11-38; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-39. Separation of household and commercial accounts.

No commercial account, within the meaning of this chapter, even though located in an apartment house, shall be considered a part of the apartment, but shall be treated as a separate commercial account. Neither shall a household within the meaning of this chapter, even though located in a commercial building, be considered as a part of the commercial account but shall be treated as a separate household and pay the rates prescribed for households.

(Code 1983, § 11-39; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-40. Schedule of residential charges.

A schedule of charges shall be prescribed by ordinance from time to time, which shall be kept on file in the city clerk's office.

(Code 1983, § 11-40; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-41. Residential solid waste assessment.

All residential units shall be billed for services provided herein through a non-ad valorem assessment on their tax bill and shall be subject to the provisions thereof.

The city manager shall review this assessment annually and determine whether to recommend a modification of the same for city commission approval.

(Code 1983, § 11-41; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-42. Increases.

The rates for residential solid waste collection shall continue to increase at a rate of six (6) percent per year; however, the rates will be evaluated biannually until the year 2022.

(Code 1983, § 11-42; Ord. No. 15-14, § 2, 7-8-2015)

Secs. 11-43—11-48. Reserved.

Sec. 11-49. Lien for city charges.

Each garbage, trash or waste fee charged pursuant to this Code for collection by the city is hereby made a lien on the premises benefited by the services of the city. Notice of lien shall be mailed by certified mail to the property benefited. The lien on the premises benefited shall be certified to and filed with the clerk of the Circuit Court of Dade County, Florida, in the manner provided for liens generally. The lien for said services with interest and penalties allowed by law shall be collected as other municipal taxes are collected and enforced and may be foreclosed in the manner provided by law.

(Code 1983, § 11-49; Ord. No. 15-16, § 2, 7-8-2015)

Secs. 11-50—11-52. Reserved.

Sec. 11-53. Residential solid waste assessment.

(a) The solid waste assessment for each residential unit in the city shall be approved by city commission.

(b) The city manager may annually review the residential solid waste assessment and recommend a modification to this assessment for city commission consideration and approval as necessary.

(c) Further, the enforcement officer is empowered with the authority to assess fees for illegal dumping that constitute a lien on the premises benefited by the services of the city or its contractor. Notice of the lien shall be mailed by certified mail to the property benefited. The lien on the premises benefited shall be certified to and filed with the clerk of the Circuit Court of Miami-Dade County, Florida, in the manner provided for liens generally. The lien for said services with inter-

est and penalties allowed by law shall be collected as other municipal taxes are collected and enforced and may be foreclosed in the manner provided by law. (Code 1983, § 11-53; Ord. No. 15-16, § 2, 7-8-2015)

Secs. 11-54—11-62. Reserved.

ARTICLE III. PRIVATE NONRESIDENTIAL COLLECTION

Sec. 11-63. Legislative intent.

It is the purpose and intent of this article to provide, by franchise agreement, for the collection of all garbage, trash, rubbish, construction and demolition materials, bulky waste, and industrial waste, collectively defined as "commercial solid waste," generated from commercial property, as may be designated by the city. No private waste collector heretofore not licensed by the city or hereafter not authorized by the city shall collect or haul discarded building material, dirt, rock, plaster, lumber or discarded furnishings and fixtures, equipment, construction debris, or to collect or haul trees, bushes or other vegetation cut on commercial property. Said material shall be removed and disposed of by the franchisee. All commercial solid waste services for all commercial accounts shall be provided by the franchisee.

(Code 1983, § 11-63; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-64. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Waste means garbage, rubbish, trash and industrial wastes as these terms are defined by section 11-1.

(Code 1983, § 11-64; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-65. Franchise required; relative rights of franchisee and city.

(a) The city may issue multiple franchise agreements to engage in commercial solid waste service, provided that applicants for said franchise agreements shall, in the judgment of the city commission, be qualified to serve in such capacity, and further provided that said applicants for said franchises shall meet the specifications set forth in this article as a condition for

the issuance of said franchise agreements, and such other specifications and requirements as the city commission may from time to time promulgate. The city retains all of the powers of a municipality of the state, for the exercise of its police power governing the health and welfare of its citizens for the purpose of reviewing the services rendered to the commercial, multifamily and nonresidential accounts, the maintenance of rate schedules, method employed for the accumulation and removal of waste, and the imposition of penalties for failure to render service to particular commercial accounts or the violation of the provisions of this Code.

(b) The city manager or designee shall, with the successful applicants, have the power to establish the type, frequency and amount of solid waste collection service needed and to be rendered to all areas of the city and to promulgate rules and regulations not inconsistent herewith. Further, the city manager or designee, along with the franchisee, is authorized to implement the terms of the franchise so that questions of use of public streets, problems of access to customers for service which might arise from time to time, complaints, if any, and other questions can be justly and expeditiously resolved. The city shall provide means of egress and ingress to points to be collected by the franchisee and require the cooperation of its citizenry and commercial establishments in implementing the services provided by this article.

(c) The franchisees shall not be authorized to assign their licenses or subcontract any portion thereof without the specific written consent of the city.

(d) The city shall determine the monthly rate schedule for service of all accounts in the city and said rates shall be binding, upon mutual consent, with the franchisees. The rate schedule shall be subject to review once a year at each anniversary date of the franchise agreements. The franchisees may petition the city commission for a change in the scheduled rates and shall submit proper proof and substantiation to the city commission which, in its discretion, may amend the schedule of the rates applicable to the franchisees.

(e) The city manager, or franchisees, shall be assigned the responsibility for enforcement of commercial solid waste collection procedures enumerated herein. (Code 1983, § 11-65; Ord. No. 15-16, § 2, 7-8-2015; Ord. No. 17-02, § 3, 2-1-2017; Ord. No. 18-15, § 2, 9-26-2018)

Sec. 11-65.1. Applications and forms.

The department of public works and utilities shall prepare all forms for applications and vehicle permits, review and approve applications for licenses for waste service by private waste contractors. It shall be the obligation of the private waste contractor to have all forms accurately completed and submit the same to the department of public works and utilities or its review and approval, and transmittal to the city manager. (Code 1983, § 11-65.1; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-66. Collection standards; dumpster location; dumpster size and frequency; noncompliance; grounds for revocation.

(a) All work relative to the collections contemplated in this article shall be performed as scheduled in a workmanlike manner. Upon completing each collection permitted hereunder, the franchisee shall properly replace all dumpsters and containers and leave the premises so serviced in a litter-free and sanitary condition.

(b) The director or director's designee is hereby required and granted full power and authority to designate the location of dumpsters and the number of dumpsters to be kept at each location. All dumpsters shall contain the identification of the franchisee and must be clean, kept closed, and free of graffiti. Any dumpster which does not conform to the provisions of this chapter or which contain other defects likely to hamper the collection of or injure the person collecting the contents or any dumpster other than the ones provided by franchisee thereof are illegal. Such dumpsters pose a health and safety concern and shall be promptly replaced by the owner or franchisee upon receipt of written notice. At no time will the department service any such illegal dumpsters. After notification, illegal dumpsters that pose a health and safety concern shall be removed at the discretion of the director or his/her designee in accordance with this chapter.

(c) For multifamily dwellings the contract must specify a minimum of a two (2) cubic yard (two (2) CY) dumpster of sufficient capacity so as to avoid overflowing conditions with a minimum twice per week collection; two (2) true and accurate copies of said contract shall be furnished to the director or his/her designee. The dumpster must be capable of holding a minimum

of one (1) week's collection of solid waste for the number of units or size and activity of business establishment being served.

The following standards for dumpster size and frequency of collection are presented merely as a guide:

<i># of Units</i>	<i>Dumpster Capacity</i>	<i>Minimum Frequency</i>
5—8	2 CY	2 × week
9—16	4 CY	2 × week
17—32	6 CY	3 × week
33—48	8 CY	3 × week
Over 48	8 CY	5 × week

Note: Frequency will increase depending on health and safety concerns and mutually agreed to terms and conditions of the franchisee and customer. All equipment utilized by a franchised private hauler shall comply with the requirements and provisions of this chapter. All dumpsters shall be screened from the direct view of the adjacent property owner. The department reserves exclusively the right to collect solid waste from any city governmental facility, or any facility constructed or erected on city-owned or -leased property, regardless of location.

(d) If the director of the department of public works and utilities shall determine that the franchisee has failed to comply with the provisions of this article or the rules and regulations established and authorized, he shall so notify the offending franchisee, in writing, by certified mail, and demand that such franchisee cause the violation to be remedied within five (5) days. If the violation is not remedied within the prescribed time, the director shall certify such noncompliance to the city manager, who shall thereupon, proceed, according to chapter 13, article II, to revoke the franchise agreement.

(Code 1983, § 11-66; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-67. Waste vehicle permits.

Franchisees shall be required to have valid vehicle permits for each collection vehicle. Each vehicle shall display said permit in a prominent and easily visible location.

(Code 1983, § 11-67; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-68. Inspection of vehicles.

All vehicles shall be properly inspected by the appropriate governmental agencies. As necessary, the department of public works and utilities may inspect all vehicles for safety, cleanliness and proper licensing, etc. (Code 1983, § 11-68; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-69. Marking of vehicles.

Each vehicle operated within the city under this article shall be conspicuously marked on both sides of the vehicle in stenciled letters in an area of not less than thirty (30) inches by fourteen (14) inches with the following information:

Top line: City of Opa-locka, license number _____.

Second line: The licensee's name.

All markings shall be approved by the department of public works and utilities of the city.
(Code 1983, § 11-69; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-70. Application for franchise agreement; requirements and conditions.

Every individual, firm, corporation, partnership, association, organization or any other group acting as a unit, interested in a franchise agreement shall submit an application for such agreement to the city manager or designee as part of a request for proposal (RFP) issued by the city. Such RFP shall include some of the following:

- (1) Be a written statement upon the form provided by the city. The form shall be sworn to by the applicant before a notary public of the state, as to the time of the statements contained therein.
- (2) Require the disclosure of all information necessary in compliance with this article.
- (3) Be accompanied by a certified check for the total amount of the fees chargeable for such application. All nonrefundable fees shall be held by the city manager until a final determination is made as to the issuance of a franchise agreement.
- (4) The successful applicant shall be able to post a performance bond in the amount of two hun-

dred thousand dollars (\$200,000.00), should the city decide that such bond is necessary to guarantee performance.

- (5) To demonstrate ability to perform by the franchisee, the applicant shall submit certification by letter or statement, to a current date, by a certified public accountant showing the applicant to have a net worth of at least five hundred thousand dollars (\$500,000.00). Said statement shall further reflect that the applicant or its principal officers have had at least a minimum of five (5) years of experience in commercial waste collection.
 - (6) The successful applicants must have, in order to maintain the franchise agreement, an office and/or place of business in the city for visits by city residents.
 - (7) The applicant must be an equal opportunity employer.
- (Code 1983, § 11-70; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-71. Prerequisites to license issuance.

(a) The applicant for a franchise agreement under this article, or if an individual, firm, corporation, partnership, association, organization or any other group acting as a unit, any person having any financial, controlling or managerial interest therein, shall be of good moral character. In making such determination, the following shall be submitted by the applicant:

- (1) *Name and business address.* If the applicant is a partnership or corporation, the names and business addresses of the principal officers and stockholders, and other persons having any financial or controlling interest in the partnership or corporation.
- (2) *Fingerprints.* All applications shall be accompanied by fingerprints of the applicant, if an individual, and if the applicant is other than an individual, then the fingerprints of the principal controlling officers of the applicant shall be furnished. Such service shall be provided to the applicant by the city police department.
- (3) *Penal history.* A record of all convictions, reasons therefor, sentence imposed for each such conviction, and the demeanor subsequent to the last such conviction shall be provided by the applicant. If the applicant is other than an

individual, then the principal controlling officers of the applicant shall provide the aforesaid information upon the forms approved by the city.

Each such applicant, as hereinbefore defined, shall execute written consent, upon forms provided by the city, to be sworn to by such applicant before a notary public of this state, authorizing any and all agencies, organizations and governmental bodies, federal, state and local, to release and disclose all records pertaining to the information requested in this section and in subsections (4) and (5) of this section to the city, and said written consent shall authorize the public disclosure of all such information and records. The police department of the city shall thereafter review such record and, if merited, issue a certificate of compliance indicating the satisfactory demeanor of such individuals and listing a record of conviction.

- (4) *Franchisee history.* A franchise history of the applicant, setting forth whether or not such applicant previously operated in this or another state under a franchise, and whether the applicant has had such agreement revoked or suspended, and if so, the reasons for said revocation or suspension shall be set forth.
- (5) *General personal history.* The applicant shall provide such other facts as are thought to be relevant to the general personal history of any applicant. If the applicant is other than an individual, then the applicant shall provide such other facts as are thought to be relevant to the general personal history of the principal controlling officers of the applicant.

(b) The application setting forth the penal history, license and general personal history of the applicant, individual or otherwise, shall be reviewed by the city for the purpose of determining the moral character of the applicant. Good moral character shall be determined by:

- (1) General traits, reputation as to sobriety, honesty, loyalty, trustworthiness, reliability and discretion of the applicant;

- (2) The associations, type of persons, groups, organizations or movements with which the applicant has been associated;
- (3) The nature of the offenses for which the applicant was convicted, if any, the sentences imposed thereon, the demeanor of the applicant following the conviction, and/or release from any incarceration imposed therefrom, and the rehabilitation of said applicant into society;
- (4) The previous franchise history of the applicant, if any, as attested to by the city manager or city clerk;
- (5) Investigation of the city may include, but not be limited to, neighborhood investigations, credit agencies, the records of law enforcement agencies, and other sources of recorded information.

(c) The application shall be accompanied by a certificate of approval furnished by the director to the effect that he is satisfied as to the following:

- (1) The adequacy of the equipment to be used in compliance with the requirements of this article.
- (2) The method of collection to be employed.
- (3) The refuse dump, incinerator plant or other place, means or location indicated, in writing, by the licensee to be used for final disposal.

(Code 1983, § 11-71; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-72. Franchise issuance.

The city manager shall issue the franchise agreement approved by the city commission.

(Code 1983, § 11-72; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-73. Insurance required.

Before actually commencing business, the franchisee shall obtain the following insurance from a firm with a minimum rating of "A3" from Moody's Investor Service and shall furnish the original liability policy to the city clerk with a certificate of insurance for all policies written in the franchisee's name. This certificate shall provide that the policies contain an endorsement requiring that the city shall be furnished, within ten (10) days, written notice by registered mail prior to cancellation or material change in any policy. The sufficiency of the insurance shall be certified by the city

manager prior to commencing business. Termination of insurance coverage shall automatically terminate the right of the franchisee to operate within the city.

- (1) *Workers' compensation.* The franchisee shall carry, with a company authorized under the laws of the state, a policy to protect against liability under the workers' compensation and occupational diseases statutes of the state.
- (2) *Automobile liability insurance.* The franchisee shall carry, in his own name, a comprehensive policy to insure the entire automobile liability of his operations with limits not less than one hundred thousand dollars (\$100,000.00) each person and three hundred thousand dollars (\$300,000.00) each accident bodily injury liability, and fifty thousand dollars (\$50,000.00) each accident for property damage liability per vehicle. In addition to the above insurance there must be excess coverage to at least one million dollars (\$1,000,000.00).
- (3) *General liability.* The franchisee shall carry, in his own name, a comprehensive liability policy for his operations other than automobile with limits of at least one hundred thousand dollars (\$100,000.00) for each person and three hundred thousand dollars (\$300,000.00) for each accident bodily injury liability, and fifty thousand dollars (\$50,000.00) each accident for property damage liability.
- (4) *Liability of the city.* The above insurance requirements shall not be construed as imposing upon the city, or any official or employee, any liability or responsibility for damages to any person injured or any property damaged by a franchisee.

(Code 1983, § 11-73; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-74. Power of city to regulate charges.

The city will regulate the prices to be charged by the successful applicant based on a monthly service charge for container and pickup fee per yard in the manner and in the amounts set forth in a resolution of the city commission kept on file in the city clerk's office.
(Code 1983, § 11-74; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-75. Reports and payment of fees.

(a) Commencing thirty (30) days after the date of the issuance of a franchise agreement hereunder and continuing monthly thereafter on the same day of each and every month, the franchisee shall file with the city manager, on forms approved by the city, a report under oath designating the names and addresses of the accounts serviced by said franchisee in the city for the preceding month together with the gross monthly service fee received from each said account, and shall pay to the city, monthly, and simultaneous with the filing of said report, a sum equal to twenty-eight (28) percent of the licensee's total gross monthly receipts as reflected on each such report.

(b) Commencing from city commission approval, the franchisee shall pay the city a seventy-five-dollar (\$75.00) permit fee for every ninety (90) days for any and all construction dumpster or roll-off accounts. The ninety (90) day permit fee will not be included in gross revenue and may be charged as a pass through to the customer; however, the gross monthly fee will be applied to revenues generated from servicing such accounts. Upon the expiration of the ninety (90) days, the franchisee will have to re-submit a permit.

(c) Commencing January 1, 2016, on an annual basis, the franchisee shall pay a permit per account fee of one hundred dollars (\$100.00) for each permanent account contracted for commercial solid waste services. Said permit per account fee may be charged as a pass through to the customer and not included in gross revenue received.

(d) As may be directed by the city manager, the franchisee may collect illegal dumping and separately charge the city for said solid waste service per contract as approved by the city commission. All tenants and/or owners of property receiving city collection service for illegal dumping shall receive written notification, with supporting documentation, for payment within five (5) days. This service of the city shall not exempt the property from imposition of lien for failure to pay for said services as provided by this chapter.

(e) Commencing thirty (30) days after date of the issuance of a franchise agreement hereunder, the franchisee shall commence to file monthly reports with the city manager, indicating every commercial account acquired by said franchisee for service hereunder and the contract amount for such service.

(f) In addition to twenty-eight (28) percent of the gross receipts from the contracts derived from the collecting of commercial accounts from customers within the corporate limits of the city hereunder, and the ninety (90) day permit fee, the city shall also be entitled to annual business tax receipt fees from the franchisee, inspection fees, and liquidated compensatory damages for such accounts as the city may have had to service or caused to be serviced by franchisee other than for its failure to perform as required by this article.

(Code 1983, § 11-75; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-76. Term and option to renew franchise.

The franchise agreement is granted for a period of two (2) years subject to the provisions of this article, unless earlier terminated as a result of the failure of the franchisee to comply with the provisions of this article and to provide effective and efficient service. The franchisee shall have an option to renew the franchise agreement on the same terms and conditions as may be modified and mutually agreed to, for a period of two (2) additional years, by exercising such option not less than one hundred twenty (120) days prior to termination of the contract franchise in writing to the city. Notwithstanding the aforementioned, the city commission and franchisee may agree to terms and conditions beyond the two (2) additional years.

(Code 1983, § 11-76; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-77. Payment of fees; delinquencies; appeal.

(a) Trash, illegal dumping and permit fees for private waste collection shall be paid as provided in this article. In the event charges for services shall not be paid within thirty (30) days after billing, notice of delinquent payment shall be mailed by certified mail to the property benefited by such service, to the attention of the owner or tenant thereof. All delinquent garbage, waste and trash fees shall bear interest from the date of delinquency at a rate of eighteen (18) percent per annum of the amount of the delinquency. Failure to receive payment in full within ten (10) days thereafter shall authorize the franchisee to discontinue service and pursue other legal remedies for collection.

(b) Any person who disputes the amount of imposition of any trash or illegal dumping fee shall have the right of appeal, in accordance with section 2-570.31 (hearing procedures before special magistrate and code enforcement board).

(c) All owners of property receiving collection service for discontinued service or illegal dumping abutting their property in the public right-of-way, may, upon written notification to the department of public works and utilities or designee, have billing forwarded directly to the tenant served thereby, provided the tenant has deposited with the city, the required waste collection deposit as provided by this Code. This service of the city shall not exempt the property from imposition of lien for failure to pay for said services as provided by this section. Delinquent notices of the tenants shall be sent to owners of property as well as tenants.

(d) Reserved.

(e) Payments of fees for discontinued service or illegal dumping shall be made in full within thirty (30) days from notification.

(f) No refunds or discounts shall be made.

(g) All payments pursuant to this chapter for discontinued service or illegal dumping shall be made to the city or designee.

(h) An official receipt shall be procured showing payment.

(i) A copy of such receipt shall be retained by the city or designee and shall be held available for inspection by authorized employees of the department of public works and utilities.

(j) The address on the receipt must be the same as the address where the discontinued service or illegal dumping was collected.

(k) Any person who disputes the discontinued service or illegal dumping fees imposed for collection by the city shall have the right of appeal in accordance with section 2-570.31 (hearing procedures before special magistrate and code enforcement board).

(l) In the event any charge for city collection of waste shall become delinquent, the city or designee shall give notice that they shall exercise all remedies permitted by law five (5) days thereafter.

(m) All delinquent discontinued service or illegal dumping fees shall bear interest from the date of delinquency at the rate of eighteen (18) percent per annum.

(n) Each discontinued service or illegal dumping fee charged pursuant to this Code for collection by the city or designee is hereby made a lien on the premises benefited by the services of the city. Notice of lien shall be mailed by certified mail to the property benefited. The lien on the premises benefited shall be certified to and filed with the clerk of the circuit court of the county, in the manner provided for liens generally. The lien for said services with interest and penalties allowed by law shall be collected as other municipal taxes are collected and enforced and may be foreclosed in the manner provided by law.

(Code 1983, § 11-77; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-78. Enforcement and administrative fees.

(a) The enforcement officer shall have the authority to initiate enforcement proceedings against any person, franchisee, licensee, firm, corporation or other legal entity who has not strictly complied with the provisions of this article.

- (1) If a violation of this article is determined, the enforcement officer shall issue a notice of violation to the violator, as provided in this Code. The notice shall inform the violator of the nature of the violation, the amount of fine for which the violator may be liable, instructions and due date for paying the fine, notice that the violation may be appealed by requesting an administrative hearing within five (5) days after service of the notice of violation, and that failure to do so shall constitute an admission of the violation and waiver of the right to a hearing.
- (2) A dumpster or roll-off/container from a non-franchisee or non-licensee shall be subject to seizure and impoundment. Written notice of the enforcement officer's intent to seize the roll-off/container shall be posted to the roll-off/container which is subject to seizure and impoundment. The enforcement officer shall not seize any roll-off/container within three (3) days from the posting of the written notice. In addition to posting notice, the enforcement officer shall also provide written notice of such seizure and impoundment to all persons, firms, corporations, or other legal entities, whom the enforcement officer knows, or with reasonable investigation should know, to have a legal interest in the subject roll-off/container by certi-

fied mail, return receipt requested, within twenty-four (24) hours of posting notice. The written notice shall include the following:

- a. The name of the enforcement officer issuing such notice.
- b. The date upon which the notice was issued.
- c. The date that the notice was posted to the roll-off/container.
- d. The section number of the city Code or ordinance that has been violated.
- e. Notice that the enforcement officer will seize and impound the roll-off/container in the event that the roll-off/container is not removed from the premises within three (3) days from the date of the posting of the written notice.
- f. Notice of the right to request a preliminary hearing, pursuant to this chapter, to contest the seizure and impoundment of the roll-off/container.
- g. Notice of the right to request a preliminary hearing, to contest the seizure and impoundment of the roll-off/container and immediately retrieve the roll-off/container from the enforcement officer upon posting with the enforcement officer a cash bond in the amount of five hundred dollars (\$500.00), plus the administrative surcharge incurred for enforcement.
- h. Notice of the right to waive the preliminary hearing and immediately retrieve the roll-off/container from the enforcement officer upon the payment of a five-hundred-dollar (\$500.00) penalty, plus administrative surcharge incurred for enforcement.
- i. Notice that the failure to request a preliminary hearing within five (5) days after the notice was mailed shall constitute a waiver of the right to a preliminary hearing pursuant to this chapter.
- j. A roll-off/container that has been seized and impounded, which has not been returned to the owner or interested party by virtue of a preliminary hearing, final

hearing, appeal, or payment of an administrative penalty, shall become the property of the city.

- (3) The enforcement officer shall immediately seize and impound a roll-off/container in the event the enforcement officer determines that said roll-off/container constitutes a public nuisance and poses a health and safety concern. Written notice of the enforcement officer's action shall be posted at the site where the roll-off/container was located. In addition to posting notice, the enforcement officer shall also provide written notice of such seizure and impoundment to all persons, firms, corporations, or other legal entities, whom the enforcement officer knows, or with reasonable investigation should know, to have a legal interest in the subject roll-off/container by certified mail, return receipt requested, within twenty-four (24) hours of posting notice. The written notice shall include the following:

- a. The name of the enforcement officer issuing such notice.
- b. The date upon which the notice was issued.
- c. The date that the notice was posted at the location where the roll-off/container was found.
- d. The section number of the city Code or ordinance that has been violated.
- e. Notice of the right to request a hearing, pursuant to this chapter, to contest the seizure and impoundment of the roll-off/container and immediately retrieve the roll-off/container from the enforcement officer upon the posting of a cash bond in the amount of five hundred dollars (\$500.00), plus administrative surcharge incurred by the enforcement officer.
- f. Notice of the right to waive the hearing and immediately retrieve the roll-off/container from the enforcement officer upon the payment of a five hundred dollar (\$500.00) fine, plus administrative surcharge incurred for enforcement.
- g. Notice that the failure to request a hearing within five (5) days after the notice

was mailed shall constitute a waiver of the right to a preliminary hearing pursuant to this chapter.

- h. A roll-off container that has been seized and impounded, which has not been returned to the owner or interested party by virtue of a preliminary hearing, final hearing, appeal, or payment of an administrative penalty, shall become the property of the city.

(Code 1983, § 11-78; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79. Reserved.

ARTICLE III-A. WASTE COMPACTING SERVICES

Sec. 11-79.1. Short title.

This article shall be known as the City of Opa-locka Waste Compacting Services Franchise Ordinance.
(Code 1983, § 11-79.1; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.2. Legislative intent.

It is the purpose and intent of this article to provide, at the discretion of the city manager, by franchise or agreement, for private companies to provide waste compacting services for all garbage, trash, rubbish and industrial waste generated by commercial establishments, manufacturing plants and nonresidential producers, as may be designated by the city. With city commission approval, the city manager shall have the ability to include the reference commercial solid waste service as an additional scope of service to the commercial solid waste franchise agreement.

(Code 1983, § 11-79.2; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.3. Franchise required; relative rights of franchisee and city.

(a) The city may issue a franchise to engage in waste compacting services for commercial establishments, manufacturing plants and nonresidential units within the city, provided that an applicant for said franchise shall meet the specifications set forth in this article as a condition for the issuance of said franchise, and such other specifications and requirements as the city commission may, from time to time, promulgate. The city retains all of the powers of a municipality of

the state, for the exercise of its police power governing the health and welfare of its citizens for the purpose of reviewing the services rendered to the commercial establishments, manufacturing plants, and nonresidential accounts and may limit the number of franchises to be granted (and the city manager, may, when necessary, choose which franchisee shall receive a license), the setting of franchise rates, annual registration fees, methods employed for providing compacting services, and the imposition of penalties for failure to render service to particular commercial accounts or the violation of the provisions of this Code.

(b) Franchisees for compacting services shall not engage in waste collection from commercial establishments, manufacturing plants and nonresidential units within the city or service these establishments, plants or units in collecting garbage, waste and trash unless the franchisee has been awarded by franchise or agreement with the city the right to perform such services.

(c) Franchisee shall be required to pay the city an annual registration fee of one thousand dollars (\$1,000.00). No person or entity may engage in compacting services until said registration fee is paid and all other required documentation is completed and approved. A compact franchise agreement shall be for a period of one (1) year.

(d) The franchise fee for compacting services shall be twenty-eight (28) percent of the gross monthly billings of a franchisee for compacting services performed within the city. The franchise fee rate shall be subject to review once a year on the anniversary of the passage of this article. Franchisees may petition the city commission at any time for a change in the franchise fee rate for all franchisees under this article.

(e) The city commission may grant an exclusive franchise in the discretion of the city commission as part of a commercial solid waste franchise agreement pursuant to article III of this chapter.

(f) A franchisee shall not be authorized to assign its license or subcontract any portion thereof without the specific written consent of the city.

(g) The city manager shall work with the successful franchisee to implement the terms of the franchise so that questions of use of public streets, problems or access to customers for service which might arise from time to time, complaints, if any, and other questions can be justly and expeditiously resolved. The city shall

provide means of egress and ingress to points for the equipment of the franchisee and require the cooperation of its citizenry and commercial establishments in implementing the services provided by this article. (Code 1983, § 11-79.3; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.4. Effect on existing contracts and licenses.

Provided all persons performing compacting services as of the effective date of the ordinance from which this article is derived shall be required to pay a registration fee and submit all other required documentation to become a franchisee under this article. Franchisees shall be required to pay franchise fees on existing contracts for compacting services rendered after the effective date of the ordinance from which this article is derived. All renewals or extensions of existing contracts or any new contracts shall be governed by the provisions of this article. (Code 1983, § 11-79.4; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.5. Applications and forms.

The department of public works and utilities shall prepare all forms for applications and permits, review and approve applications for licenses for compacting services, prepare the rules and procedures concerning compacting services operations, as well as the procedures for collection and reporting of all franchise fees due under this article. It shall be the obligation of the private contractor or franchisee to have all forms accurately completed and submit the same to the department of public works and utilities for its review and approval, and transmittal to the city manager. (Code 1983, § 11-79.5; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.6. Service standards; noncompliance; grounds for revocation; penalty assessment.

(a) All work relative to the compacting services contemplated in this article shall be performed as scheduled in a workmanlike manner. Upon completing any compacting services for a customer, the licensee shall properly replace all dumpsters and containers and leave the premises so serviced in a litter-free and sanitary condition.

(b) If the director of the department of public works and utilities shall determine that a licensee has failed to comply with the provisions of this article or the rules and regulations established and authorized, he shall so

notify the offending licensee, in writing, by certified mail, and demand that such licensee cause the violation to be remedied within five (5) days. If the violation is not remedied within the prescribed time, the director of the department of public works and utilities shall certify such noncompliance to the city manager, who shall thereupon, proceed, according to chapter 13, article II, to revoke the license of said licensee.

(c) Any business contracting service from an unlicensed entity shall be subject to a daily fine in the amount of five hundred dollars (\$500.00).
(Code 1983, § 11-79.6; Ord. No. 15-16, § 2, 7-8-2015)

Secs. 11-79.7, 11-79.8. Reserved.

ARTICLE III-B. RECYCLED MATERIALS

Sec. 11-79.9. Short title.

This article shall be known as the "City of Opa-locka Recycled Materials License Ordinance."
(Code 1983, § 11-79.9; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.10. Legislative intent.

It is the purpose and intent of this article to provide for the registration and regulation of private companies for the hauling and disposal of recovered materials for all commercial establishments, manufacturing plants and nonresidential producers, as may be designated by the city.
(Code 1983, § 11-79.10; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.11. License required; relative rights of licensee and city.

(a) The city may issue a license to engage in hauling and disposal of recovered materials for commercial establishments, manufacturing plants and nonresidential producers designated by the city within the city, provided that an applicant for said license shall meet the specifications set forth in this article as a condition for the issuance of said license, and such other specifications and requirements as the city commission may, from time to time, promulgate. All licensees shall be permitted to provide compactors and/or roll-off containers to engage in the hauling and disposal of recovered materials under this article. The city retains all of the powers of a municipality of the state, for the exercise of its police power governing the health and wel-

fare of its citizens for the purpose of reviewing the services rendered to the commercial establishments, manufacturing plants, and nonresidential accounts annual registration fees, methods employed for providing collection/hauling services, and the imposition of penalties for failure to render service to particular commercial accounts or the violation of the provisions of this Code.

(b) Licensees for recovered materials shall not engage in waste collection from commercial establishments, manufacturing plants and nonresidential units within the city or service these establishments, plants or units in collecting garbage, waste and trash unless the licensee has been awarded by franchise or agreement with the city the right to perform such services under article III of this chapter, or if applicable, under article III-A of this chapter as limited to compacting services.

(c) Licensees shall be required to pay the city an annual registration fee of one thousand dollars (\$1,000.00). No person or entity may engage in hauling and disposal of recovered materials until said licensee fee is paid and all other required documentation is completed and approved. A license shall be for a period of one (1) year.

(d) A licensee shall not be authorized to assign its license or subcontract any portion thereof without the specific written consent of the city.

(e) The city manager shall work with the successful licensees to implement the terms of the license so that questions of use of public streets, problems or access to customers for service which might arise from time to time, complaints, if any, and other questions can be justly and expeditiously resolved. The city shall provide means of egress and ingress to points for the equipment of the licensees and require the cooperation of its citizenry and commercial establishments in implementing the services provided by this article.
(Code 1983, § 11-79.11; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.12. Required state licensing.

As an ongoing condition of becoming a licensee under this article and thereafter performing services under this article within the city, all licensees shall be a recovered materials dealer certified by the department of environment protection pursuant to the provisions

of FAC rule 62-722. Licensees shall be required to submit a copy of its certification pursuant to F.S. § 403.7046, at the time of paying the fee.
(Code 1983, § 11-79.12; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.13. Effect on existing contracts and licenses.

The city recognizes all existing contracts in existence on the date which the ordinance from which this article is derived became effective, provided that all persons hauling and disposing of recovered materials as of the effective date to this article shall be required to pay the license fee and submit all other required documentation to become a licensee under this article.
(Code 1983, § 11-79.13; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.14. Applications and forms.

The department of public works and utilities shall prepare all forms for applications and permits, review and approve applications for licenses for recycling services, prepare the rules and procedures concerning compacting services operations, as well as the procedures for registration under this article. It shall be the obligation of the private contractor to have all forms accurately completed and submit the same to the department of public works and utilities for its review and approval, and transmittal to the city manager.
(Code 1983, § 11-79.14; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-79.15. Service standards; noncompliance; grounds for revocation; penalty assessment.

(a) All work relative to the services contemplated in this article shall be performed as scheduled in a workmanlike manner. Upon completing any services for a customer, the licensee shall properly replace all dumpsters and containers and leave the premises so serviced in a litter-free and sanitary condition.

(b) If the director determines that a licensee has failed to comply with the provisions of this article or the rules and regulations established and authorized, he shall so notify the offending licensee, in writing, by certified mail, and demand that such licensee cause the violation to be remedied within five (5) days. If the violation is not remedied within the prescribed time, the director shall certify such noncompliance to the city manager, who shall, thereupon, proceed, according to chapter 13, article II, to revoke the license of said licensee.

(c) Any business contracting service from an unlicensed recycled materials company shall be subject to a daily fine in the amount of five hundred dollars (\$500.00).
(Code 1983, § 11-79.15; Ord. No. 15-16, § 2, 7-8-2015)

ARTICLE IV. DUMPSTER ENCLOSURES

Sec. 11-80. Short title.

This article shall be known and may be cited as the "Dumpster Enclosure Ordinance of the City of Opa-locka, Florida."
(Code 1983, § 11-80; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-81. Purpose.

The purpose of this article is to provide a uniform system of requirements for utilization of dumpsters in commercial industrial and business districts within the city, thereby enhancing the aesthetics of the city and protecting its citizenry from potential health hazards.
(Code 1983, § 11-81; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-82. Dumpster enclosure required.

(a) Dumpsters shall be maintained in an enclosure with the service and access gate closed except when being serviced by a collector or when being used to access the dumpster.

(b) Dumpster lids shall be kept closed at all times when the dumpster is not being used or serviced.

(c) Garbage and trash shall be placed inside the dumpster and not on or around the dumpster or the enclosure. Loose garbage and trash in plain view is a violation of code, a health hazard, and aesthetically undesirable. The property owner shall be responsible for keeping the enclosure and surrounding area litter-, garbage- and trash-free at all times. It shall be a violation of this Code to allow the dumpster to be filled to over-capacity so that the dumpster lid is prevented from closing on top of the garbage bags.

(d) Dumpster enclosure shall be kept in good repair at all times.

(e) Location on site of a dumpster enclosure shall require the prior approval of the director and the building official.
(Code 1983, § 11-82; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-83. Dumpster enclosure specifications, materials, location.

(a) *Placement.* A dumpster shall be kept in a place easily accessible to authorized collection vehicles at all times and no service shall be given to those placing or permitting objects, ground level or overhead obstructions, or vehicles, to hinder in any way whatsoever the servicing of bulk container purposes of collection only, all dumpsters shall be placed within an approved enclosure.

It shall be unlawful for any person to place or store, or allow to be placed or stored, a dumpster upon or in any public street, alley or right-of-way; provided, however, that such container or receptacle may be placed in the public right-of-way during the collection/emptying process.

(b) *Dumpster space designation and enclosure requirement.* All real property in a commercial, industrial or business zoning classification utilizing dumpsters shall provide an enclosure of a size that would permit the moving in or out of the dumpster without damage to the enclosure and shall be a minimum of twelve (12) inches above the dumpster.

(c) *Approved enclosure.* All enclosures shall consist of walls; fencing shall be of wood, plastic lumber or chainlink. Wood or plastic lumber shall be a minimum of one and one-half (1 ½) inches thick. Enclosures shall have a gate for collection equipment access and may also have a gate for pedestrian access. All gates shall be totally opaque, and the enclosures shall be constructed of one (1) of the following materials:

- (1) *Masonry walls.* All exterior faces of the wall shall be finished and of professional quality such as stucco, prefinish blocks, stacked block and struck joints, shadow blocks, painted or similarly installed in a workmanlike manner and meeting with the approval of the building, department of planning and community development.
- (2) *Concrete walls.* Pre-cast concrete walls of quality deemed acceptable to the department of building, planning and zoning.
- (3) *Wood fencing.* Substantial wood fencing or durable species incorporated architectural design features to enhance appearance, of quality and design acceptable to the director of the

department of buildings and licenses or his/her designee. In making this determination, consideration shall be given to:

- a. The thickness of the wood, which must be a minimum of one and one-half (1 ½) inches;
- b. Whether the wood is pressure treated or has a finish that protects the wood from the elements; and
- c. Minimum six (6) inches by six (6) inches corner post and four (4) inches by four (4) inches intermediate posts of pressure treated materials.

(d) *Maintenance.* Approved enclosures shall be maintained in good condition, repair and appearance at all times so as to allow for collection of materials and to eliminate odors.

(e) *Gates.* Dumpster enclosure gates shall be constructed of a metal frame with wood or metal slats or other facing materials. Servicing gates, upon opening, may not swing into the right-of-way and shall incorporate gate stops that are functional in the full open and closed positions. Hinge assemblies shall be strong and durable such that access and servicing gates shall be no more than forty-eight (48) inches in width and no less than thirty-six (36) inches in width. Enclosure gates shall be closed at all times except for the time necessary to service the bulk container. Maze-style openings shall be permitted in place of a pedestrian access gate. A maze-style opening is an opaque wall or fence that can be located no more than forty-eight (48) inches and no less than thirty-six (36) inches from the enclosure opening and must be a minimum length of one and one-half (1 ½) times in length of the opening and shall be centered upon the opening. Enclosure openings shall be no more than forty-eight (48) inches in width and no less than thirty-six (36) inches in width.

(f) *Setback.*

- (1) All dumpster enclosure walls and/or fences shall be located a minimum of five (5) feet from adjoining commercial areas and ten (10) feet from adjoining residential uses unless not physically possible; and
- (2) A minimum of five (5) feet from public and private rights-of-way unless not physically possible.

(g) *Garbage containers.* All receptacles and bulk containers which receive garbage, liquid waste or food from food-handling operations, including, but not limited to, bakeries, meat-processing plants, restaurants, or any business establishment where it is determined that garbage, liquid waste of food will be accumulated, shall have a poured-to-grade-level concrete slab. If available, the dumpster site shall have facilities for washing containers and ability to drain to an acceptable sanitary disposal system. If the aforementioned facilities are available, or can be reasonably installed, then the dumpster shall have wash-out plugs. For purposes of this article, storm drains shall not be considered as an acceptable sanitary disposal system.

If no suitable drain, grease trap or sanitary disposal system is available, the dumpster containers shall be sealed so that no liquid gets on the pad or ground. Dumpster collection shall be frequent enough so as to keep odors to a minimum. Odors shall also be kept at a minimum through artificial means such as masking agents or whatever products are available to handle odors. Containers shall be constructed in accordance with the provisions of the Florida Building Code, Miami-Dade County Edition and must be approved by and meet the state department of health requirements.

(h) *Compliance with article.* All dumpsters and trash receptacles must comply with this article except for the following:

- (1) Dumpster/receptacles located in properly screened service yards. (Those screened from public ways with a minimum six (6) foot-high fence and/or suitable dense landscaping, as approved by one (1) building department.) The dumpsters/receptacles must not be visible from the public's view.
- (2) Dumpsters/receptacles located at permitted construction sites.
- (3) Dumpsters/receptacles properly screened with suitable dense landscaping or not visible from the public right-of-way, residential areas or the public's view.

(i) *Placing for curbside pickup and removal of receptacles.* Residential trash, trash and garbage receptacles may not be placed for curbside pickup more than

twenty-four (24) hours before pickup and all receptacles must be removed from the curbside within twenty-four (24) hours after pickup.

(Code 1983, § 11-83; Ord. No. 15-16, § 2, 7-8-2015)

Secs. 11-84—11-89. Reserved.

ARTICLE V. COMMERCIAL SOLID WASTE COLLECTION AND ENFORCEMENT

Sec. 11-90. Short title.

This article shall be known as the "City of Opa-locka Commercial Solid Waste Collection and Enforcement Ordinance."

(Code 1983, § 11-90; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-91. Legislative intent.

It is the purpose and intent of this article to provide for the regulation and enforcement of commercial solid waste collection, as may be designated by the city.

(Code 1983, § 11-91; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-92. Enforcement process.

(a) Civil penalties assessed pursuant to this article are due and payable to the city on the last day of the period allowed for the filing of a hearing, or, if proper appeal is made, when the appeal has been finally decided adversely to the named violator. The amount of such penalty assessed shall constitute and is hereby imposed as a lien against the subject property with equal rank and dignity of any other special assessment liens and, at a minimum, shall include an unappealable and un-waivable administrative surcharge. Penalties for violations of the provisions of this article shall be assessed in accordance with the schedule as set forth below.

(b) If the owner, agent, or occupant of any property within the city shall fail to comply with any determination of the enforcement officer, the enforcement officer shall cause such work to be done and shall keep an accurate accounting of the costs thereof, whereupon the amount of such costs and the interest thereon shall constitute and is hereby imposed as a lien against the subject property with equal rank and dignity of any other special assessment liens. An aggrieved party may

appeal both the fees and costs imposed under this section to a court of competent jurisdiction in accordance with the Florida Rules of Appellate Procedure.

(c) Failure by an occupant of any commercial property other than multifamily residential property to comply with the regulations set forth in this chapter shall cause the city to revoke the certificate of use and local business tax receipt for said business.

(d) In addition to any other remedies provided by this chapter or any other city ordinance, the enforcement officer shall have judicial remedies available to them for violations of this chapter or any other lawful rule or regulation promulgated hereunder as enumerated below, but not limited to:

- (1) They may institute a civil action in a court of competent jurisdiction to establish liability and to recover damage for any costs incurred by

the enforcement officer in conjunction with the abatement of any condition prohibited by the provisions of this chapter.

- (2) They may institute a civil action in a court of competent jurisdiction to seek injunctive relief to enforce compliance with the terms of this chapter or any rule or regulation promulgated hereunder, to enjoin and prohibit said violation or to compel the performance of actions which will result in compliance with the terms of this chapter.

(e) These remedies are cumulative, and the use of any appropriate remedy shall not constitute an election of remedies by the enforcement officer. The use of one (1) remedy shall not preclude the use of any others.

(f) All violations of this chapter may be prosecuted in the county court.
(Code 1983, § 11-92; Ord. No. 15-16, § 2, 7-8-2015)

Sec. 11-93. Schedule of civil penalties.

The following are a list of descriptions and fines for violations:

<i>Code Section</i>	<i>Description of Violations</i>	<i>Amount</i>
11-5	Only city or contractor to dispose of municipal solid waste (illegal hauling)	\$600.00
11-5, 11-63, 11-79.2, 11-79.11	Unauthorized use of commercial solid waste services by a commercial property (illegal hauler)	\$600.00
11-7	Offensive or dangerous accumulations which include litter or trash on premises	\$200.00
11-17	Unscheduled placement of waste, bulky waste or trash commingled yard trash at the curbside or other public right-of-way designated trash collection area, by residents for collection and disposal by city or contractor (illegal dumping)	\$200.00
11-17	Illegal placement of waste, bulky waste or trash commingled yard trash at the curbside or other public right-of-way designated trash collection area by commercial property/multifamily residential establishments, for collection and disposal by city or contractor is prohibited (illegal dumping)	\$200.00
11-63, 11-79.2, 11-79.11	Engaging in commercial solid waste collection without a city franchise or license	\$600.00
11-5, 11-63	Failure of property owner or tenant to have contract with a city franchisee or licensee	\$600.00
N/A	All other violations	\$100.00

(Code 1983, § 11-93; Ord. No. 15-16, § 2, 7-8-2015)

Chapter 11.1

RESERVED*

***Editor's note**—Ord. No. 16-13, § 2, adopted October 12, 2016, in effect repealed chapter 11.1, §§ 11.1-1—11.1-4 and 11.1-15—11.1-25, which pertained to historic preservation and derived from Ord. No. 81-13, adopted May 27, 1981; Ord. No. 85-9, adopted April 24, 1985 and Ord. No. 15-03, adopted February 11, 2015. See chapter 2, article XI, division 13 (historic environmental preservation board), for similar provisions.

Chapter 11.5

HEALTH AND SANITATION

Article I. In General

Secs. 11.5-1—11.5-15. Reserved.

Article II. Reserved

Secs. 11.5-16—11.5-37. Reserved.

ARTICLE I. IN GENERAL

Secs. 11.5-1—11.5-15. Reserved.

ARTICLE II. RESERVED

Secs. 11.5-16—11.5-37. Reserved.

Chapter 12

RESERVED

Chapter 13

LICENSES AND BUSINESS REGULATIONS*

Article I. In General

- Sec. 13-1. Definitions.
- Sec. 13-2. Tax levied and tax receipts required.
- Sec. 13-3. Business tax receipt term, expiration; part-year receipts; minimum charges.
- Sec. 13-4. Business tax receipt application required.
- Sec. 13-5. Application for business tax receipt renewal.
- Sec. 13-6. State, county licenses or business tax receipts prerequisite to city.
- Sec. 13-7. Payment of personal property tax prerequisite to business tax receipt.
- Sec. 13-8. Fraudulently obtained business tax receipts void ab initio.
- Sec. 13-9. Business tax receipt exemptions.
- Sec. 13-10. Bills or notices for business taxes unnecessary.
- Sec. 13-11. Reserved.
- Sec. 13-12. Transfer of business tax receipts to new owner.
- Sec. 13-13. Transfer of business tax receipt to new location.
- Sec. 13-14. Duplicate business tax receipts.
- Sec. 13-15. Posting of business tax receipt required.
- Sec. 13-16. Duty to exhibit business tax receipt on request.
- Sec. 13-17. Business tax receipt limited to one place of business.
- Sec. 13-18. Police and code enforcement to enforce business tax receipt provisions.
- Secs. 13-19—13-20. Reserved.
- Sec. 13-21. Tax when more than one occupation or service operated.
- Secs. 13-22—13-31. Reserved.

Article II. License and Permit Denial and Revocation

- Sec. 13-32. Authorized.
- Sec. 13-33. Grounds.
- Sec. 13-34. Notice; denial or revocation.
- Sec. 13-35. Findings after hearing on denial or revocation.
- Sec. 13-36. Appeal to commission.
- Secs. 13-37—13-46. Reserved.

Article III. Business Tax Receipts of Restaurants, Grocery Stores and Retailers

- Sec. 13-47. Definitions.
- Sec. 13-48. Special questionnaire required; temporary business tax receipt authorized.
- Sec. 13-49. Administrative determination of qualification of business.
- Sec. 13-50. Denial of business tax receipt.
- Secs. 13-51—13-60. Reserved.

Article IV. Reserved

- Secs. 13-61—13-91. Reserved.

Article V. Coin-Operated Devices

- Sec. 13-92. Machines exempted from taxation.
- Sec. 13-93. Definitions.
- Sec. 13-94. Responsibility for business tax receipt.

*County code reference—Business regulations generally, ch. 8A; county-wide business license taxes, § 8A-171 et seq.
State law references—Local business taxes, F.S. ch. 205; Municipal Home Rule Powers Act, F.S. ch. 166.

OPA-LOCKA CODE

- Sec. 13-95. Contents of business tax receipt application.
- Sec. 13-96. Display of business tax receipt.
- Sec. 13-97. Gambling.
- Sec. 13-98. Maximum number of amusement machines.
- Sec. 13-99. Use of amusement machines by minors.
- Sec. 13-100. Authority to seize delinquent machine; additional charge.
- Sec. 13-101. Notice, redemption of seized machine.
- Sec. 13-102. Sale of seized machine; disposition of monies.
- Sec. 13-103. Amusement centers and bingo parlors.
- Sec. 13-104. Alcoholic beverages; limitations.
- Sec. 13-105. Revocation of certificate of authorization.
- Sec. 13-106. Hours of operation in industrial-zoned properties.
- Sec. 13-107. Payment of certificate of authorization and per machine fee for Type II machines; payment and performance bond; criminal background check and proof of corporate good standing for machine operator hereunder of Type II amusement machines.
- Sec. 13-108. Additional penalty.
- Secs. 13-109—13-112. Reserved.

Article VI. Reserved

- Secs. 13-113—13-135. Reserved.

Article VII. Junk and Junk Dealers

- Sec. 13-136. Definitions.
- Sec. 13-137. Fire hazard, sanitary nuisance precludes permit issuance or renewal.
- Sec. 13-138. Authority of chief of police to prescribe regulations.
- Secs. 13-139—13-148. Reserved.

Article VIII. Street and Mobile Vendors

- Sec. 13-149. Definitions.
- Sec. 13-150. Permit required.
- Sec. 13-151. Application required.
- Sec. 13-152. Background investigation of application.
- Sec. 13-153. Disapproval of application; notice; right of appeal.
- Sec. 13-154. Reserved.
- Sec. 13-155. Approval and issuance of permit; records.
- Sec. 13-156. Permit fees.
- Sec. 13-157. Permit expiration, renewal.
- Sec. 13-158. Badges.
- Sec. 13-159. Non-transference of license.
- Sec. 13-160. Loud noises and speaking devices.
- Sec. 13-161. Use of streets.
- Sec. 13-162. Exhibition of permit.
- Sec. 13-163. Enforcement by police.
- Sec. 13-164. Report, record of convictions.
- Sec. 13-165. Mobile vendor requirements.
- Sec. 13-166. Mobile vendor special event.
- Sec. 13-167. Designation of sites, "stalls."
- Sec. 13-168. Prohibited acts.
- Sec. 13-169. Revocation of license.
- Sec. 13-170. Permit caps.
- Sec. 13-171. Exemptions.
- Secs. 13-172—13-174. Reserved.

LICENSES AND BUSINESS REGULATIONS

Article IX. Reserved

Secs. 13-175—13-199. Reserved.

Article X. Reserved

Secs. 13-200—13-210. Reserved.

Article XI. Flea Markets and Bazaars

- Sec. 13-211. Permitted in retail sales zoning districts.
- Sec. 13-212. Definitions.
- Sec. 13-213. Business tax receipt required; fee.
- Sec. 13-214. Safety, sanitation and conditions of use.
- Sec. 13-215. Approval of plans, layout and facilities.
- Sec. 13-216. Development plan, conditions of approval, fees and costs.
- Sec. 13-217. Posting of performance bond.
- Sec. 13-218. Promulgation and enforcement of rules and regulations.
- Sec. 13-219. Enforcement of article provisions; cease and desist order.
- Sec. 13-220. Building permit.
- Sec. 13-221. Flea market owner's and operator's obligations.
- Sec. 13-222. Non-issuance of business tax receipt.

Article XII. Reserved

Secs. 13-223—13-230. Reserved.

Article XIII. Towing Companies

- Sec. 13-231. Short title.
- Sec. 13-232. Purpose.
- Sec. 13-233. Definitions.
- Sec. 13-234. Permit required for towing services; prohibition.
- Sec. 13-235. Application for towing permit for towing services.
- Sec. 13-236. Issuance of permit; renewal.
- Sec. 13-237. Revocation or suspension of permit.
- Sec. 13-238. Service requirements for city towing services.
- Sec. 13-239. Fees and charges for towing privately owned vehicles.
- Sec. 13-240. Storage rates.
- Sec. 13-241. Wrecker classifications and requirements.
- Secs. 13-242—13-270. Reserved.

Article XIV. Landlord Permit

- Sec. 13-271. Title.
- Sec. 13-272. Definitions.
- Sec. 13-274. Landlord permit required.
- Sec. 13-275. Term of landlord permit and transfer.
- Sec. 13-276. Due date for payment of landlord permit fee.
- Sec. 13-277. Fees.
- Sec. 13-278. Application procedures.
- Sec. 13-279. Grounds for denial.
- Sec. 13-280. Renewal of landlord permit.
- Sec. 13-281. Duties of landlord.
- Sec. 13-282. Duties of city.
- Sec. 13-283. Obtaining landlord permit by false statement.
- Sec. 13-284. Revocation of landlord permits.
- Sec. 13-285. Right of inspection.
- Sec. 13-286. Penalties for violation.

OPA-LOCKA CODE

Secs. 13-287—13-310. Reserved.

Article XV. Massage Therapy Establishments

- Sec. 13-311. Legislative intent.
- Sec. 13-312. Definitions.
- Sec. 13-313. Unlicensed provision of massage unlawful.
- Sec. 13-314. Requirements for massage establishments.
- Sec. 13-315. Enforcement and penalties.

ARTICLE I. IN GENERAL

Sec. 13-1. Definitions.

All of the provisions of this chapter shall be construed liberally on behalf of the city. The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- (1) The singular includes the plural and vice versa.
- (2) *He* includes the feminine and neuter and vice versa.
- (3) *Persons* means the same as that term is defined in accordance with F.S. § 1.01(3) (1987).
- (4) *Business* means and includes every trade, occupation, profession or other manner of revenue-producing activity.

(Code 1955, § 14-1; Code 1983, § 13-1; Ord. No. 91-7, § 1, 6-26-1991)

Sec. 13-2. Tax levied and tax receipts required.

A business tax is hereby levied upon and on business tax receipts required of:

- (a) Any person who maintains a permanent business location or branch office within the city, for the privilege of engaging in or managing any business within its jurisdiction.
- (b) Any person who maintains a permanent business location or branch office within the city, for the privilege of engaging in or managing any profession or occupation within its jurisdiction.
- (c) Any person who does not qualify under the provisions of subsection (a) or (b) of this section and who transacts any business or engages in any occupation or profession in interstate commerce, if such tax is not prohibited by section 8 of article I of the United States Constitution.

(Code 1955, § 14-2; Code 1983, § 13-2)

State law reference—Similar provisions, F.S. § 205.042.

Sec. 13-3. Business tax receipt term, expiration; part-year receipts; minimum charges.

No business tax receipt shall be issued for more than one (1) year, and all business tax receipts shall expire on

October 1 of each year, and all business taxes shall be due and payable on or before October 2 of each year. No business tax receipt shall be issued for any fractional portion of a year except that a business tax receipt may be issued after the first day of April in any year, upon the payment by the applicant of one-half (½) of the amount fixed as the price of such business tax receipt for the year; provided, however, that the minimum amount to be paid shall be no less than one dollar (\$1.00).

(Code 1955, § 14-2; Code 1983, § 13-3)

State law reference—Similar provisions, F.S. §§ 205.043(1)(c), 205.053(1).

Sec. 13-4. Business tax receipt application required.

No business tax receipt shall be issued or granted to any applicant therefor to engage in any business, practice, pursuit, profession or occupation unless the applicant shall first complete and file with the city manager through the department a sworn statement, on a form to be provided by the city, giving the name, address and occupation of the applicant, and other relevant information called for by said form.

(Code 1955, § 14-2.1; Code 1983, § 13-4)

Sec. 13-5. Application for business tax receipt renewal.

The city manager or the department may waive the requirement of a written application in all cases of renewals of existing business tax receipts but shall require, before issuing any renewal business tax receipt, the furnishing of all necessary information pertinent to the establishment of the proper business tax for such business tax receipt.

(Code 1955, § 14-2.1; Code 1983, § 13-5)

Sec. 13-6. State, county licenses or business tax receipts prerequisite to city.

No business tax receipt shall be issued or granted to any applicant therefor, to engage in any business, practice, pursuit, profession or occupation, unless the applicant shall present the city manager or the department, with the application, evidence, or copies of the current, valid and proper county and state business tax receipts or licenses issued to the applicant by the county or the state, except where state statute or the Code of Miami-Dade County, Florida requires acquisition of a city business tax receipt prior to obtaining the state or county license or business tax receipt.

(Code 1955, § 14-2.1; Code 1983, § 13-6)

Sec. 13-7. Payment of personal property tax prerequisite to business tax receipt.

No business tax receipt shall be issued or granted to any applicant to engage in any business, practice, pursuit, profession or occupation unless the applicant shall first have paid all delinquent city personal property taxes for all preceding years which are lawfully due and unpaid.

(Code 1955, § 14-2.2; Code 1983, § 13-7)

Sec. 13-8. Fraudulently obtained business tax receipts void ab initio.

Any business tax receipt obtained under the provisions of this article upon a misrepresentation of a material fact shall be deemed null and void, and the receipt holder who has thereafter engaged in any business under such business tax receipt shall be subject to prosecution for doing business without a business tax receipt, to the same extent and degree as though no such business tax receipt had ever been issued.

(Code 1955, § 14-2.3; Code 1983, § 13-8)

Sec. 13-9. Business tax receipt exemptions.

Exemption from the payment of the business taxes required by this Code shall be permitted by the city manager as authorized by the F.S. ch. 205. Each person seeking exemption shall:

- (a) File under oath a request for exemption with the licensing clerk setting forth the basis for exemption and the facts or evidence in support thereof upon which the city manager is to rely when considering the request.
- (b) Each request for exemption shall be accompanied by a filing fee of five dollars (\$5.00).
- (c) Requests for exemption by charitable, religious, fraternal; youth, civic service or other such organization when the organization makes occasional sales or fundraising projects performed exclusively by the members and when the proceeds are used exclusively for the organization's purposes shall be accompanied by all information required by section 2-8.

Requests for exemption denied by the city manager may be appealed pursuant to section 2-66.

(Code 1955, § 14-2.4; Code 1983, § 13-9; Ord. No. 86-3, § 1, 3-26-1986)

Sec. 13-10. Bills or notices for business taxes unnecessary.

It is hereby declared to be unnecessary for the city to send out bills or notices to persons engaged in business in the city with respect to the payment or nonpayment of business taxes.

(Code 1955, § 14-2.5; Code 1983, § 13-10)

Sec. 13-11. Reserved.

Sec. 13-12. Transfer of business tax receipts to new owner.

All business tax receipts may be transferred to a new owner when there is a bona fide sale of the business upon the payment of a transfer fee of three dollars (\$3.00) and presentation of the original business tax receipt and evidence of the sale, provided that, where the receipt holder has been exempted from payment of all or any part of the business tax therefor, such business tax receipt shall not be transferable to a new owner under this section.

(Code 1955, § 14-7; Code 1983, § 13-12)

State law reference—Similar provisions, F.S. § 205.043(2).

Sec. 13-13. Transfer of business tax receipt to new location.

Upon written request and presentation of the original business tax receipt, any business tax receipt may be transferred from one (1) location in the city to another location in the city upon payment of a transfer fee of three dollars (\$3.00).

(Code 1955, § 14-7.1; Code 1983, § 13-13)

State law reference—Transfer on change of location, F.S. § 205.043(3).

Sec. 13-14. Duplicate business tax receipts.

Duplicate business tax receipts may be issued by the department to replace any business tax receipt previously issued which may have been lost, mutilated or destroyed, upon an applicant therefor filing certification attesting to such fact, and at the time of filing such certification paying to the department a fee of one dollar (\$1.00) therefor.

(Code 1955, § 14-7.2; Code 1983, § 13-14)

Sec. 13-15. Posting of business tax receipt required.

Every business tax receipt shall be posted in a conspicuous position in the office or place of business by

the holder of such business tax receipt and shall at all times during business hours be subject to inspection by any city officer.
(Code 1955, § 14-8; Code 1983, § 13-15)

Sec. 13-16. Duty to exhibit business tax receipt on request.

It shall be the duty of any party holding a business tax receipt under this chapter to exhibit the same to the chief of police, any police officer, or other city official on request.
(Code 1955, § 14-9; Code 1983, § 13-16)

Sec. 13-17. Business tax receipt limited to one place of business.

All business tax receipts provided for herein shall be issued for and apply to only one (1) place of business within the city.
(Code 1955, § 14-9.1; Code 1983, § 13-17)

Sec. 13-18. Police and code enforcement to enforce business tax receipt provisions.

It shall be the duty of the police and code enforcement to prevent any person commencing, carrying on, or conducting any business, trade, calling, amusement or entertainment or other thing for which a business tax receipt is required without first procuring from the city a business tax receipt therefor. It is hereby made the duty of the police to report to the proper authorities of the city all violations hereof, to make arrests and to cooperate with the department and other officials of the city in the strict enforcement of the provisions of all business tax receipt laws and ordinances.
(Code 1955, § 14-9.2; Code 1983, § 13-18)

Secs. 13-19—13-20. Reserved.

Sec. 13-21. Tax when more than one occupation or service operated.

In the event any business entity owns or operates one (1) or more occupations or services for which a business tax classification is described in this Code, the business entity shall pay only the business tax representing the larger amount. In the event any business entity shall sublease or permit any other business entity to operate any business or occupation required to be taxed under this Code, each business entity shall pay the prescribed annual business tax as set forth. The city

manager may require such evidence as he deems sufficient or necessary to establish the continuity of ownership of a business or occupation subject to this provision.
(Code 1955, § 14-49; Code 1983, § 13-21)

Secs. 13-22—13-31. Reserved.

ARTICLE II. LICENSE AND PERMIT DENIAL AND REVOCATION

Sec. 13-32. Authorized.

The city manager shall have the authority to refuse the issuance of or revoke any license or permit issued as authorized by this Code.
(Code 1955, § 14-6; Code 1983, § 13-32)

Sec. 13-33. Grounds.

The refusal to issue, or revocation of, a license or permit shall be based upon one (1) or more of the following grounds:

- (a) That the application for license or permit contains a fraudulent statement or misrepresentation.
- (b) That in the course of carrying on the activity licensed or permitted, fraud, misrepresentation or unethical business practices are carried on or permitted to occur by the holder of said permit or license.
- (c) That the holder of said permit or license has been convicted of any crime or misdemeanor involving moral turpitude.
- (d) That the activity licensed or permitted is conducted in an unlawful manner, or in a manner which constitutes a breach of the peace or a menace to the health, safety or general welfare of the city.
- (e) That the activity licensed or regulated fails to comply with this Code in respect to required parking spaces or has lost the right to use other lots or parcels of land in connection with the principal business use.
- (f) That the activity licensed or regulated fails to comply with the provisions of this Code relating thereto.

(g) That the activity licensed or regulated fails to deposit the necessary and proper monies required by the applicable ordinances for the extension of city utilities including water, sewage, trash and garbage collection, or fails to maintain said deposits, or fails to pay the applicable fees and charges for said services, or otherwise fails to comply with the provisions of this Code relating thereto.

(h) That apartments, motels, hotels and rooming houses licensed or sought to be licensed fails to meet the requirements of chapter 7, article II, known as the minimum housing standard ordinance, as well as all other regulatory ordinances applicable to said businesses.

(Code 1955, § 14-6; Code 1983, § 13-33)

Sec. 13-34. Notice; denial or revocation.

Notice of public hearing for denial or revocation of a license or permit shall be given in writing to the holder thereof, setting forth the grounds alleged for denial or revocation, and designating a time and place for a public hearing. Notice shall be mailed to the licensee or permittee at the last known address at least five (5) days prior to the date of hearing.

(Code 1955, § 14-6; Code 1983, § 13-34)

Sec. 13-35. Findings after hearing on denial or revocation.

Upon public hearing on a license or permit denial or revocation before the city manager, the city manager shall make his determination in writing and if adverse to the holder of the license or permit, the city manager shall state the grounds relied upon and the evidence in support thereof.

(Code 1955, § 14-6; Code 1983, § 13-35)

Sec. 13-36. Appeal to commission.

Any person aggrieved by the action of the city manager in the denial or revocation of any permit or license shall have the right of appeal to the city commission. Appeal shall be taken by filing with the commission within fourteen (14) days after written notice of denial or revocation, a written statement setting forth the grounds for appeal. The commission shall set a time and place for hearing the appeal and notice of hearing

shall be given to the appellant five (5) days prior to the hearing. The decision and order of the commission shall be final and conclusive.

(Code 1955, § 14-6; Code 1983, § 13-36)

Secs. 13-37—13-46. Reserved.

ARTICLE III. BUSINESS TAX RECEIPTS OF RESTAURANTS, GROCERY STORES AND RETAILERS

Sec. 13-47. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Drive-in restaurant means primarily engaged in the business of selling food and nonalcoholic beverages, prepared on the premises for consumption off the premises with the facilities for delivery to patrons in automobiles, and in order to qualify as a drive-in restaurant, fifty-one (51) percent of the gross receipts of the business must result from the sale of such prepared food and nonalcoholic beverages. This definition is in addition to the definition of the term "restaurant," under section 4-1.

General merchandise stores (retail) means any person whose principal business is the sale of general merchandise other than alcoholic beverages to the general public and, in order to qualify as such, fifty (50) percent of the gross receipts of any such business must result from the sale of such general merchandise, not including alcoholic beverages.

Grocery store means any person whose principal business is the retail sale of food and other general staples for preparation and consumption thereof off the premises and in order to qualify as a grocery store over fifty-one (51) percent of the gross receipts of any such business must result from the sale of such food and other staples, not including the sale of any alcoholic beverages.

Restaurant means any person primarily engaged in the business of selling food and nonalcoholic beverages for consumption on the premises of the place of business and in order to obtain a business tax receipt as a restaurant, at all times, at least fifty-one (51) percent of

the gross receipts of the business must result from the sale of food. This definition is in addition to the definition of the term "restaurant" under section 4-1. (Code 1955, § 14-16.1; Code 1983, § 13-47)

Sec. 13-48. Special questionnaire required; temporary business tax receipt authorized.

As a part of the business tax receipt application required by the city from those persons applying for business tax receipts for restaurants, grocery stores or general merchandise stores (retail), the department shall prepare a questionnaire to be answered by each applicant, in order to obtain information to determine what percentage of the gross receipts of the business constitutes food, groceries or general merchandise, excluding alcoholic beverages, and requiring the applicants for restaurant business tax receipts to describe the kitchen and other food preparation facilities, number of employees and their positions and dining equipment upon the premises. In the case of new businesses, a temporary business tax receipt may be issued for a period of ninety (90) days until such information can be furnished to the department.

(Code 1955, § 14-16.2; Code 1983, § 13-48)

Sec. 13-49. Administrative determination of qualification of business.

The department, based on the foregoing information received in the business tax receipt application, may make an administrative determination as to whether or not such business qualifies as a restaurant, grocery store or general merchandise (retail) store, and upon making such determination, the department shall notify the applicant and all other interested persons of its decision.

(Code 1955, § 14-16.3; Code 1983, § 13-49)

Sec. 13-50. Denial of business tax receipt.

(a) Any person applying for a business tax receipt or reapplying for a business tax receipt as a restaurant, grocery store or general merchandise (retail) store found by the department not to be within the definitions prescribed by this article shall be denied a business tax receipt to operate by the department, except those businesses and their successors which shall have received a business tax receipt prior to June 26, 1969, and which have or seek renewal thereof at the same location.

(b) Any person reapplying for a business tax receipt to operate a restaurant, grocery store or general merchandise (retail) store found by the department not to be within the definitions prescribed by this article and who has been convicted of a violation of this Code, the statutes of the state or the regulations of the division of alcoholic beverages and tobacco of the state department of business regulation shall be denied a business tax receipt to operate regardless of the exception provided in subsection (a) of this section.

(Code 1955, § 14-16.5; Code 1983, § 13-50)

Secs. 13-51—13-60. Reserved.

ARTICLE IV. RESERVED

Secs. 13-61—13-91. Reserved.

ARTICLE V. COIN-OPERATED DEVICES

Sec. 13-92. Machines exempted from taxation.

No business tax receipt shall be required under this chapter for coin-operated parcel checking lockers, machines vending cigarettes, or United States postage stamp vending machines.

(Code 1955, § 14-18; Code 1983, § 13-92)

Sec. 13-93. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Type I amusement machine means any machine, contrivance or device that provides for the bona fide entertainment or amusement of the public and that, as a result of the insertion of a coin, slug, or token, the machine or device is set in motion, permitted to function or operate and that by application of skill, may entitle the person playing or operating the machine to:

- (1) Receive points or coupons that may be exchanged for merchandise only, (limited to noncash prizes, toys, or novelties, excluding cash, gift cards or any other cash equivalents, alcoholic beverages, beer or wine), provided the cost value of the merchandise or prize

awarded in exchange for such points or coupons does not exceed one dollar (\$1.00) on any game played; or

- (2) Replay the game or device at no additional cost if the game or device can accumulate or react to no more fifteen (15) replays, can be discharged of accumulated free replays only by reactivating the game or device for one (1) additional play for such accumulated free replay, and can make no permanent record, directly or indirectly, of free replays.

The term "Type I amusement machine" shall not include any game or machine that may be construed as a gambling device under state law. The term "Type I amusement machine" excludes pinball machines, pool or billiard tables, vending machines, laundry machines, soda machines, kiddie rides, and automatic music machines.

Type II amusement machine means a type I machine whose graphics depict, exhibit, illustrate, describe or relate to casino-style games. The term "Type II amusement machine" shall not include any game or machine that may be construed as a gambling device under state law.

(Code 1955, § 14-18; Code 1983, § 13-93; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Sec. 13-94. Responsibility for business tax receipt.

It shall be the duty both of the owner of any coin-operated machine or device and of the owner, operator or manager of the premises where such device is located to see to it that such devices are properly taxed in accordance with the provisions of this chapter.

(Code 1955, § 14-17; Code 1983, § 13-94)

Sec. 13-95. Contents of business tax receipt application.

The application for a business tax receipt for a coin-operated machine or device shall set forth the name of the operator, the type and serial number of the machine, and the address where the machine is to be located.

(Code 1955, § 14-17; Code 1983, § 13-95)

Sec. 13-96. Display of business tax receipt.

The business tax receipt for a coin-operated machine or device shall be conspicuously displayed at the place of business where the machine is licensed to be operated.

(Code 1955, § 14-21; Code 1983, § 13-96)

Sec. 13-97. Gambling.

No operator authorized under this article, business owner, or any other person shall permit any type I amusement machine or type II amusement machine to be used for gambling or games of chance so as to be in violation of F.S. ch. 849.

(Code 1983, § 13-97; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

State law references—Gambling generally, F.S. ch. 849; slot machines, F.S. § 849.16 et seq.

Sec. 13-98. Maximum number of amusement machines.

(a) *Type I amusement machines, limitations.* Not more than four (4) amusement machines shall be taxed or operated at any one (1) place of business unless a permit is obtained for additional machines at a location which shall provide a certificate of compliance with the requirements of the Florida Fire Prevention Code and all applicable regulatory codes.

(b) *Type II amusement machines, limitations.* Operators of Type II amusement machines are subject to the following limitations in addition to those imposed by state law:

- (1) There shall be no more than four (4) Type II amusement machines in any permissible business location or site, except as provided for amusement centers, bingo parlors, or carnivals. The computation of the number of machines shall include counter amusement machines and standing amusement machines.
- (2) An operator shall not locate and operate a Type II amusement machine within a room or enclosed area not open to the general public. If a room where a Type II machine is being operated, is locked or barricaded, a rebuttable presumption is created that the area is not open to the general public in violation of this subsection.

(Code 1955, § 14-21; Code 1983, § 13-98; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Sec. 13-99. Use of amusement machines by minors.

(a) *Prohibited.* No Type I amusement machines deemed by city officials or designee, and Type II amusement machines, shall be patronized, operated nor used by children under the age of seventeen (17) years and it shall be unlawful to permit such use.

(b) *Responsibility.* The owner, proprietor or business tax receipt holder of any such machine, and the owner, proprietor or business tax receipt holder of any place of business where any such machine is located or operated, or any employee in charge thereof, shall each and severally be responsible for the enforcement of this section.

(c) *Sign required.* Every business tax receipt holder, owner, proprietor and person in charge of such machine shall cause to be placed and maintained at the end of the machine and attached thereto, facing any operator thereof, one (1) neatly painted or printed sign easily legible ten (10) feet away from the machine, and carrying the words: "Children Under 17 Not Allowed to Operate This Machine."

(d) *"Prohibited" sticker.* Type II amusement machines shall each bear a sticker, at least three (3) inches in diameter, which clearly and legibly says "play prohibited by minors."

(e) *Responsibility of machine operator to ensure minors prohibited.* It shall be the responsibility of the machine operator to ensure that minors (children under the age of seventeen (17) years) are prohibited from playing such machines at all times. Failure of the machine operator to monitor and prohibit play by minors of such designated machines shall be sufficient cause to subject the machine operator to revocation of the certificate of authorization under this article.
(Code 1955, §§ 14-23—14-25; Code 1983, § 13-99; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Sec. 13-100. Authority to seize delinquent machine; additional charge.

In the event of nonpayment of the business tax on any coin-operated machine or device, authority is hereby given and granted the chief of police to seize, or cause to be seized, the machine for the nonpayment of such tax. In the event any machine is seized for the nonpayment of any business tax, there shall be added, charged

for and collected, by the city, an additional sum in the amount of five dollars (\$5.00) for storage and hauling charges for each machine so seized.
(Code 1955, § 14-26; Code 1983, § 13-100)

Sec. 13-101. Notice, redemption of seized machine.

The chief of police of the city is hereby authorized and directed, in all cases where there has been a seizure of a coin-operated machine or device for the nonpayment of the business tax, to notify the owner of the machine, if known to him, that same is being retained under the provisions of the ordinances of the city, and shall, during the period of ninety (90) days from date of such seizure, permit the owner to regain possession thereof by proof of ownership and the payment of all business taxes and charges connected with the seizure and storage of the machine.
(Code 1955, § 14-26; Code 1983, § 13-101)

Sec. 13-102. Sale of seized machine; disposition of monies.

(a) After the expiration of the ninety-day period, the chief of police shall sell any unredeemed machine seized by him pursuant to section 13-100 at public sale after ten (10) days' notice, in writing, to the owner if he can be found, and by advertisement in accordance with applicable Florida law.

(b) Out of the proceeds of the sale of any such machine, all costs and storage shall be first paid, and any balance remaining shall be retained by the city in a fund in possession of the city, for a period of one (1) year, in order to enable the owner of such machine to prove ownership of the machine so sold, and when such ownership is proven, such surplus fund shall be paid to the owner.

(c) After the expiration of one (1) year, any sums arising from the sales of machines in accordance with the provisions of this section, if unclaimed by the owner of the machine, shall be transferred to the general funds of the city.
(Code 1955, § 14-27; Code 1983, § 13-102; Ord. No. 2025-05, § 6, 2-12-2025)

Sec. 13-103. Amusement centers and bingo parlors.

All amusement centers shall be located in B-2 commercial liberal zoning district locations (the entire shopping center) that have floor areas in excess of seventy-

five thousand (75,000) square feet. There shall be only one (1) amusement center in each shopping center meeting the area requirement. Amusement centers and bingo parlors are exempted from the limitation on the number of Type II amusement machines allowed at any one (1) location; provided, however, that the amusement center separates the location of Type II amusement machines from Type I amusement machines on the premises.

(Code 1983, § 13-103; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Sec. 13-104. Alcoholic beverages; limitations.

Type II amusement machines, as defined in section 13-93, shall not be located or operated on premises where alcoholic beverages, beer or wine are consumed or sold for consumption on the premises if the total ground or upper floor space of the service or seating area located on the premises is less than or equal to eight hundred fifty (850) square feet. Type II amusement machines, as defined in section 13-93, may be located or operated on premises where alcoholic beverages, beer or wine are consumed or sold for consumption on the premises if the total ground or upper floor space of the service or seating area located on the premises exceeds eight hundred fifty (850) square feet. (Code 1983, § 13-104; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Sec. 13-105. Revocation of certificate of authorization.

If the person to whom a certificate of authorization has previously been issued under this article shall thereafter be convicted or plead guilty or nolo contendere to any felony involving gambling, fraud, theft, controlled substances, or a violation of any criminal law, including misdemeanors, involving gambling or the sale, transportation, distribution or use of amusement machines or gambling machines, the certificate shall immediately thereafter be revoked by the city commission after a public hearing, notice of which shall be served in writing upon the certificate or business tax receipt holder at least fifteen (15) days before the date set for the hearing, if the public hearing establishes that the facts set forth in this section requiring a revocation of the certificate do indeed exist.

(Code 1983, § 13-105; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Sec. 13-106. Hours of operation in industrial-zoned properties.

Type I or Type II amusement machines shall operate only between the hours of 7:00 a.m. and 9:00 p.m. within properties that are zoned industrial. If a Type I or Type II amusement machine is found to operate on the premises of a business outside of the permitted hours of operation, then the business shall cease operations after 9:00 p.m. and before 7:00 a.m. The city shall enforce this limitation of the hours of operation through a cease-and-desist order issued by the license administrator or the police chief, acting on behalf of the license administrator, immediately after the order is posted on the premises.

(Code 1983, § 13-106; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Sec. 13-107. Payment of certificate of authorization and per machine fee for Type II machines; payment and performance bond; criminal background check and proof of corporate good standing for machine operator hereunder of Type II amusement machines.

A machine operator of a Type II amusement machine:

- (1) Shall obtain a certificate of authorization from the city as a nonexclusive franchise for one (1) year by submitting a payment of a nonrefundable fee of two thousand five hundred dollars (\$2,500.00);
- (2) Shall obtain a payment and performance bond, letter of credit, cash or other security acceptable to the city in the amount of ten thousand dollars (\$10,000.00) with the city as the obligee; and
- (3) Shall pay a fee of nonrefundable six hundred dollars (\$600.00) for each of the first four Type II amusement machines at each location.

An amusement center is excused from payment of the certificate of authorization fee under subsection (1) of this section and payment of or proof of the ten thousand dollars (\$10,000.00) security deposit under subsection (2) of this section, provided that the amusement center is a member in good standing of a state or regional arcade or amusement center association in the state that adopts and enforces bylaws, rules, regulations, and/or a code of ethics and standards that focus

on compliance with state law and foster good business practices and actively supervises the lawful operation of their member's amusement centers monitoring compliance with the requirements of state law and the association's bylaws, rules, regulations and/or code of ethics and standards and disciplining its members by imposing corresponding penalties for violations. Amusement center operators must provide proof of membership in good standing, a copy of the association's bylaws, rules, regulations, and/or code of ethics, and a copy of the association's disciplinary standards, procedures, and penalties. The amusement center must consent to the disclosure of any and all records relating to disciplinary actions taken by the association against it for violations of the association's bylaws, rules, regulations, and/or code of ethics and standards.

Certificates of authorization shall be issued only to corporations in good standing and registered to do business in the state, limited liability companies in good standing, partnerships in good standing, limited liability partnerships in good standing or limited liability limited partnerships in good standing or individuals. Certificates of authorization shall only be issued to a corporation or partnership where all corporate officers and directors, or partners, as the case may be, and by all stockholders who own, hold or control five (5) percent or more of issued and outstanding stock in the corporation or beneficial interest therein, or individual owners, upon a criminal background check paid by the certificate-holder reveal that such officers, directors or stockholders of a corporation or corporate general partner; or partners of a partnership within the last five (5) years preceding the application date or renewal date for a certificate of authorization hereunder have not committed a felony or pled guilty or no contest to a felony involving gambling, fraud, theft, or controlled substances; or violation of any criminal law, including misdemeanors, involving the sale, distribution or use of amusement machines or gambling machines. Each year, the machine operator shall provide proof of the renewal or new bond, a certificate of status from the Florida department of state, submission of a background check as described above, and payment of all fees. In addition to the submission of a criminal background check, amusement centers must provide a certificate of good status from the Florida department of state, a certificate of membership in good standing

from the industry association, and payment of the fee for each machine pursuant to subsection (3) of this section.

(Code 1983, § 13-107; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Sec. 13-108. Additional penalty.

(a) In addition to penalties provided in this Code, no Type I or Type II amusement machine shall operate at a particular business location or site for one (1) year from the date of the court order, order of the city council, code enforcement board or special magistrate that determines or upholds that a business owner at any location, or machine operator operates, allows to be operated or causes to be placed or operated, an amusement machine at that particular location or site in violation of sections 13-93, 13-98, 13-99, 13-103, 13-104, 13-105 and 13-106.

(b) In addition to penalties provided in this code, no business shall operate at a particular business location or site for one (1) year from the date of the court order, order of the city council, code enforcement board or special magistrate that determines or upholds that a business owner of the location, or machine operator operates, allows to be operated, or causes to be placed or operated, an amusement machine at that particular location or site in violation of section 13-97. Additional penalties are as follows:

- (1) Amusement Type I machines.
 - a. Pinball and the like, each: fifty dollars (\$50.00).
 - b. Juke organs, or phonographs, each: seventy dollars (\$70.00).
 - c. Shuffleboard, pool tables, skill machines, etc.: one hundred twenty dollars (\$120.00).
 - d. Weighing machine or device, each: twenty dollars (\$20.00).

(Note: Proprietors of places of business and/or owners of record of the premises in or on which the above-listed machines are placed shall be jointly responsible for the vending machine tax if not otherwise paid.)

(Code 1983, § 13-108; Ord. No. 15-15, § 2, 7-8-2015; Ord. No. 15-33, § 2, 12-9-2015)

Secs. 13-109—13-112. Reserved.

ARTICLE VI. RESERVED

Secs. 13-113—13-135. Reserved.

ARTICLE VII. JUNK AND JUNK DEALERS

Sec. 13-136. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Junk means old and dilapidated automobiles, trucks, tractors and other such vehicles and parts thereof, wagons and similar vehicles, scrap building material, scrap contractors' equipment, tanks, casks, cans, barrels, boxes, drums, etc., piping, old iron, machinery, rags, paper, excelsior, hair, mattresses, beds or bedding or any other kind of scrap or waste material which is stored, kept, handled or displayed within the city limits. (Code 1955, § 14-29; Code 1983, § 13-136)

Sec. 13-137. Fire hazard, sanitary nuisance precludes permit issuance or renewal.

No business tax receipt or renewal thereof shall be granted for the storing, placing, keeping, handling or displaying of junk until it is shown that the same is not creating a sanitary nuisance or fire hazard or otherwise jeopardizing the public health, safety, peace or welfare. (Code 1955, § 14-31; Code 1983, § 13-137)

Sec. 13-138. Authority of chief of police to prescribe regulations.

The chief of police is hereby authorized and empowered to prescribe such rules and regulations as are necessary to carry out and put into full force and effect all of the provisions of this article, and such rules and regulations as may be necessary to safeguard the health, peace, welfare and safety of the citizens of the city against any nuisance or damage to life or property which may arise in the storing, placing, keeping, handling or displaying of any kind of junk. (Code 1955, § 14-32; Code 1983, § 13-138)

Secs. 13-139—13-148. Reserved.

ARTICLE VIII. STREET AND MOBILE VENDORS

Sec. 13-149. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Center median means any area in the middle of any street or highway, designed to provide a barrier to keep traffic on one (1) side of the street from going to the other side of the street. A center median may be a raised concrete strip or a grass strip.

City-sponsored event means any event which the city has either financially sponsored or sponsored by way of in-kind donations.

Mobile food service operation means the preparation/cooking, serving and/or sale of food conducted from a portable stand, vehicle or trailer. Each such portable stand, vehicle, or trailer shall be considered a mobile food service operation.

Mobile vending vehicle means any vehicle, cart or apparatus used for the displaying, storing or transporting of articles offered for sale by a mobile vendor.

Mobile vendor means any person, firm, corporation or other entity engaged in the selling or offering for sale any and all goods, wares, beverages or merchandise including specifically food or food products outdoors from a mobile vending vehicle or from his person.

Mobile vendor special event means a special event consisting of a concentration of mobile vendors which have been properly licensed and permitted by the city.

Mobile vendor special event coordinator means the person designated to coordinate the placement/positioning of individual mobile vendor vehicles; maintaining the inspection of the mobile vendor special event site, including, but not limited to, proof of insurance and licensing; and ensure compliance with hours, clean-up and other city requirements during a mobile vendor special event.

Non-mobile vendor/non-mobile street vendor means any street vendor who operates at a set location or utilizing a semi-permanent structure, on the sidewalk, in a park, or other public right-of-way.

Street vendor means any person, whether a resident of the city or not, travelling by foot, wagon, automotive vehicle, or any other type of conveyance, from place to place, from house to house, or from street to street, carrying, conveying or transporting goods, wares, merchandise, meats, fish, vegetables, fruits, garden trucks, farm products or provisions, offering and exposing the same for sale, or making sales and delivering articles to purchasers, or who, without travelling from place to place, shall sell or offer the same for sale from a wagon, automotive vehicle, railroad car, street stand, or other vehicle or conveyance, and provided that anyone who solicits orders and as a separate transaction makes deliveries to purchasers as a part of a scheme or design to evade the provisions of this article shall be deemed a peddler street vendor subject to the provisions of this article. The term "street vendor" shall include the words "hawker," "peddler," and "huckster." A mobile vendor is also a street vendor.
(Code 1983, § 13-149; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-150. Permit required.

It shall be unlawful to sell, offer to sell, or exhibit for sale any good or merchandise, including, but not limited to, fruit, nuts, popcorn, ice cream or sandwiches, or otherwise operate or conduct business, from any parked vehicle, cart, stand, or other apparatus, or upon any street, sidewalk, or park, in the city, without first securing a permit by completing a permit application on a form provided by the city and paying the necessary permit application fee, as approved by the city commission and amended from time to time.

At the discretion of the city, vendors operating in a flea market or bazaar, as defined in article IX of this chapter, shall be subject to permitting requirements as outlined in this article.
(Code 1983, § 13-150; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-151. Application required.

(a) Applicants for permits under this article must file with the city manager or his designee a sworn application in writing (in duplicate) on a form to be furnished by the city manager or his designee, which shall give the following information: Name, home and business address of the applicant (legal and local); name and address of the owner of the business or vending vehicle if the owner is not the applicant.

(b) Any additional information deemed as necessary by the city to complete the required background check of applicants.

(c) A description of the type of food, beverage, merchandise, or service to be sold.

(d) A written and photographic description of any equipment or vending vehicle to be used in the operation of the business, including a photocopy of the license and registration of the motor vehicle. In cases where the equipment or vehicle has not been acquired, a rendering of these items will suffice for the application process, provided applicant provides the licensing and registration of the vehicle, if applicable, and photographic evidence to support the submitted renderings after any conditional approval.

(e) Proof of insurance, issued by an insurance company licensed to do business in the state, for all claims for damages to property and bodily injury, including death, which may arise from operations under or in connection with the license. Such insurance shall provide a minimum amount of coverage of three hundred thousand dollars (\$300,000.00) for injury for each occurrence and one hundred thousand dollars (\$100,000.00) per person. The city shall be named as an additional insured. All insurance must be in a form acceptable to the city's risk management division. No material change or cancellation of such insurance shall be effective without thirty (30) days' prior written notice to the city. The insurance shall include automobile insurance and comprehensive general liability.

(f) The length of time for which the right to do business is desired.

(g) Two (2) copies of a photograph of the applicant and every person to be employed by the business in the city, taken within sixty (60) days immediately prior to the date of the filing of the application, which picture shall be two (2) inches by two (2) inches showing the head and shoulders of the applicant in a clear and distinguishable manner.

(h) Where applicable, an affidavit or notarized statement from the property owner granting the mobile vendor the right to locate on their property. No statement is necessary if the city is the owner of the property or the location is on the public right-of-way, but the city shall retain the right to approve or deny the right of usage of said location.

(i) A health certificate, issued by the county health department, if vending food or beverage.

(j) Any additional licenses or documentation required by the city, state, or federal law.

(k) An accompanying application fee as denoted in the city's schedule of fees.

(l) Applications must be submitted at least fourteen (14) days before any special event.
(Code 1983, § 13-151; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-152. Background investigation of application.

Upon receipt of such application, the original shall be referred to the city police department, which shall provide a background investigation for all persons noted on the application and shall report the results of such investigation to the city manager or his/her designee. The background investigation shall include a national search of the list of registered sexual offenders and sexual predators. The provisions of this article shall apply to each person engaged in the activity of mobile vendors as well as the business, if any, by which the mobile vendor is employed.
(Code 1983, § 13-152; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-153. Disapproval of application; notice; right of appeal.

If, as a result of such investigation, the applicant's character or business responsibility is found to be unsatisfactory, the police department shall endorse on such application their disapproval, their reasons for the same, and return the application to the department of buildings and licensing, which shall notify the applicant that the application is not approved and that no permit will be issued. The city manager or his/her designee must review the reason for denial before the issuance of the notification, and such notification must include the reason for disapproval.

- (1) The denial of a street vendor permit is an administrative decision which may be appealed. Any person aggrieved by the action of the police department or the department of buildings and licensing in the denial of an application for a license as provided in this article, or in the decision which reference to the revocation of a license, as provided herein, shall have the right of appeal to the city commission. Such appeal shall be taken by filing

with the commission, within fourteen (14) days after notice of the action complained of has been mailed to such person's last known address, a written statement setting forth fully the grounds for the appeal, with any applicable fees as established in the city's schedule of fees.

- (2) The city commission shall set a time and place for a hearing on such appeal and notice of such hearing shall be given to the appellant via mail to the address listed on the application and postmarked at least five (5) days prior to the date set for hearing. The decision and order of the city commission on such appeal shall be final and conclusive.

(Code 1983, § 13-153; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-154. Reserved.

Sec. 13-155. Approval and issuance of permit; records.

If, as a result of such investigation, the character and business responsibility of the applicant are found to be satisfactory, the chief of police or his/her designee shall endorse on the application his approval and provide such notice to the city manager or his/her designee. Upon overall approval of the application, the department of buildings and licensing shall execute a permit addressed to the applicant for the carrying on of the business applied for. Such permit shall contain the signature and seal of the issuing officer and shall show the name, address and photograph of the permittee, the class of permit issued and the kind of goods to be sold thereunder, any special conditions of the permit, the amount of fee paid, the date of issuance and the length of time the same shall be operative, as well as the license number and other identifying description of any vehicle used in such vending. The department of buildings and licensing shall keep a permanent record of all permits issued hereunder.
(Code 1983, § 13-155; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-156. Permit fees.

The fees, as presently established or as hereafter adopted by resolution of the city commission, shall be charged for permits issued pursuant to this article. If the city establishes a separate fee for annual permits, such fee will be pro-rated on a monthly basis from October 1 for annual permits.
(Code 1983, § 13-156; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-157. Permit expiration, renewal.

Annual permits issued pursuant to this article shall expire on October 1 of each year. All other permits shall expire as provided by their own terms. Applications for renewal shall follow the same procedure as the original application.
(Code 1983, § 13-157; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-158. Badges.

The department of planning and zoning shall issue to each permittee at the time of delivery of the permittee's business tax receipt one (1) laminated copy of the license, and any necessary badges, which shall contain upon the badge the photographic image of the operators related to the license to be displayed, the business category of the license, the issue date and duration of the license, and the location approved for vending. The city shall incorporate the processing costs of these items into the schedule of fees.
(Code 1983, § 13-158; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-159. Non-transference of license.

Licenses shall only apply and be usable by the specific business and individuals listed on the application. If the license lists a specific location for the street vendor's operation, re-usage of that particular space is to remain at the sole discretion of the issuing authority. Badges shall serve as identification for authorized operators and cannot be transferred between individuals.
(Code 1983, § 13-159; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-160. Loud noises and speaking devices.

(a) No street vendor, nor any person on behalf of the vendor, with the exception of an ice cream vendor, shall shout, make any cryout, blow a horn, ring a bell or use any sound device, including any loudspeaker, radio or sound amplifying system, upon any of the streets, alleys, parks or other public places of the city or upon any private premises in the city where sound of sufficient volume is emitted or produced therefrom to be capable of being plainly heard upon the streets, avenues, alleys, parks or other public places, for the purpose of attracting attention to any goods, wares or merchandise which such licensee proposes to sell.

(b) A mobile vendor, including an ice cream vendor, is permitted to utilize music to alert potential customers that it is in the area for the purpose of selling its

product. The playing of music is only permitted during the hours of 10:00 a.m. and 8:00 p.m., and only in areas more than one thousand five hundred (1,500) feet away from any Pre-K or K—12 school during school hours. The music shall not be played at a level to constitute a nuisance. Mobile vendors, including ice cream vendors, shall be prohibited from vending, selling, serving or soliciting for sales of goods, wares or merchandise in residential zoning districts beyond 9:00 p.m.

(c) A mobile vendor special event coordinator is permitted to have live musical performances or pre-recorded music in conjunction with the mobile vendor special event. Intent to provide live or pre-recorded music must be stated in the application package for the special event permit and must comply with the city's noise ordinance set forth in article V of chapter 15.
(Code 1983, § 13-160; Ord. No. 14-15, § 2, 10-8-2014; Ord. No. 19-15, § 2, 11-13-2019)

Sec. 13-161. Use of streets.

No street vendor shall have any exclusive right to any location in the public streets, nor shall the vendor be permitted to operate in any congested area where the vendor's operations might impede or inconvenience the public. For the purpose of this section, the judgment of a police officer, exercised in good faith, shall be deemed conclusive as to whether the area is congested or the public impeded or inconvenienced. Exceptions to this provision apply in cases where the city has designated a registered "stall" in the public right-of-way.
(Code 1983, § 13-161; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-162. Exhibition of permit.

Street vendors are required to visibly exhibit their permit and badge on their person and/or cart at all times.
(Code 1983, § 13-162; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-163. Enforcement by police.

It shall be the duty of any police officer of the city to require any person seen vending and who does not display their permit or badge, to produce such permit, and to enforce the provisions of this article against any person found to be violating the same.

Special events vending. When requested by any police officer of the city, the mobile vendor special event coordinator can be required to produce the special event permit for the event.

(Code 1983, § 13-163; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-164. Report, record of convictions.

The police department shall report to the department of buildings and licensing all convictions for violation of this article, and the department of buildings and licensing shall maintain a record for each permit issued and record the reports of violation therein. (Code 1983, § 13-164; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-165. Mobile vendor requirements.

(a) Appearance.

(1) All items or services to be sold from a mobile cart must:

- a. Be vended from a regulation size vending cart, as determined by the city. Examples of such carts, with noted dimensions, shall be available for review in the department of planning and zoning.
- b. Be easily carried or conveyed.
- c. Not cause undue or offensive odors.
- d. Involve a short transaction period to complete the sale or render the service.
- e. Display merchandise in a reasonably organized manner. Carts shall not be overloaded or disheveled in appearance.

(2) Advertisements on any equipment utilized by a street vendor shall be subject to regulations found in the city's signs ordinance.

(3) The city may require a design review to ensure aesthetically pleasing carts or vehicle are utilized.

(4) No vendor shall operate while intoxicated and/or be in a state of unkempt appearance.

(b) No mobile vendor shall station itself upon any public street or right-of-way, or upon any private property, except with the express permission of the property owner and in a manner, which does not impede the flow of traffic on public streets or rights-of-way, nor block pedestrian access to public streets or rights-of-way,

unless participating in a city-approved and permitted mobile vendor special event or a city-sponsored event.

(c) Under no circumstances shall a mobile vendor be deliberately emplaced so as to hinder emergency services.

(d) No mobile vendor shall be permitted to operate in any congested area where the vendor's operations might impede or inconvenience the public; with the exception of those participating in a city approved and permitted mobile vendor special event or a city-sponsored event. For the purpose of this article, the judgment of a police officer, exercised in good faith, shall be deemed conclusive as to whether the area is congested or the public impeded or inconvenienced.

(e) No mobile vendor shall remain overnight in any one (1) site, except in the case of a special event exhibition, exposition, art show and/or festival, where they are permitted to remain on the site from the beginning to the end of the special event. In such instance, the mobile vendor shall secure a special event permit permitting overnight siting, even if the vendor has a regular vendor permit.

(f) All mobile vendors must provide for their own trash and garbage removal such that no trash or garbage remains on the premises upon which the sale or vending transaction was conducted. Vendors are prohibited from utilizing city-owned receptacles for disposal of packing containers or boxes.

(g) All disturbed areas must be cleaned following each stop at a minimum twenty (20) foot radius of the sales location.

(h) No mobile vendor shall wave, flag or motion to vehicles on the street.

(Code 1983, § 13-165; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-166. Mobile vendor special event.

A mobile vendor special event shall be permitted without a public hearing provided:

(1) The mobile vendor special event shall:

- a. Be limited to one (1) event per week per calendar year at the same location;
- b. Be permitted to operate as an accessory use to any culinary institute;
- c. Operate no later than 9:00 p.m., Sunday through Thursday, up to four (4) days

- per year, a mobile vendor special event may operate until midnight, Monday through Thursday, provided that these four (4) dates are included as part of the schedule of events provided in the application for the permit.
 - d. Operate no later than 12:00 midnight, Friday and Saturday.
 - e. Be permitted to operate for multiple consecutive days, provided that all dates are noted on the application. The number of consecutive days cannot exceed five (5) unless it is a city-sponsored event. The city may elect to permit all or part of the dates which are applied for.
- (2) A special event permit shall be obtained for each mobile vendor special event site on an as-needed basis. The special event permit package shall include all of the following:
- a. Notarized letter from property owner of record authorizing the mobile vendor special event and designating a mobile vendor special event coordinator;
 - b. Duration and schedule of event;
 - c. Notification and sign-off from the city police department;
 - d. A traffic safety and security plan;
 - e. Narrative describing the hours of operation, estimated public attendance; and description of other amenities provided;
 - f. Copies of state licenses and local vending tax receipt of each of the individual mobile vendors participating;
 - g. The maximum number of individual mobile vendors which may be present at the mobile vendor special event. This maximum number shall be indicated on the special event permit;
 - h. Site plan or survey indicating the general placement of the individual mobile vendors; location of refuse facilities, if not hauled away; location of sanitation facilities; location of on-site and off-site parking; lighting fixtures, if applicable; and rights-of-way, internal circulation and ingress/egress;
 - i. Whether live music or pre-recorded music will be provided during the special event;
 - j. Any other permits, such as street closure permits, which may be required by the city for the event;
 - k. Accompanied by a permit fee in an amount to be the schedule of fees. Proceeds from the permit fee shall be designated for economic redevelopment in the area where the mobile vendor special event occurs.
- (3) If the mobile vendor special event permit application is incomplete; or if the mobile vendor special event is operating in a manner not consistent with the representations made in the application for special event permit; or the mobile vendor special event coordinator fails to comply with any provisions of this section, the city has the authority to deny or revoke the special event permit.
- (4) The designated mobile vendor special event coordinator shall:
- a. Assist in the placement/positioning of individual mobile vendors during the special event;
 - b. Maintain for inspection at the special event all pertinent documentation provided by the individual mobile vendors such as proof of business tax receipt and insurance;
 - c. Ensure compliance with hours, clean-up and other permit requirements.
- (Code 1983, § 13-166; Ord. No. 14-15, § 2, 10-8-2014)
- Sec. 13-167. Designation of sites, "stalls."**
- The city may, at its discretion, specify specific areas where vendors are allowed to operate. These sites will be reviewed periodically, but at minimum, annually, at least sixty (60) days before October 1.
- The city may also, at its discretion, specify sites on a public right-of-way or publicly owned vacant lots, as a vending area stall. Such stalls will be clearly marked and numbered and reserved for specific vendors to which the stall is assigned, and the city shall levy a fee for rental use of such stalls. Monies derived from any

such program shall be earmarked for specific use in maintenance of the common area of the vacant lot or public right-of-way on which the stall is located, if applicable; city beautification; and redevelopment.

Such stalls shall be subject to the following additional guidelines:

- (1) If the vendor is to be absent from the stall for a period of fourteen (14) or more days, the vendor must notify the department of planning and zoning in advance of the date of any such absence. The department may then assign the space designated or reassigned during any such absence.
- (2) The vendor shall be responsible for the disposal of any garbage within twenty-five (25) feet from the area of the stall during operating hours.
- (3) Such stalls shall be designated by the city as permitting mobile or non-mobile street vendors, or either.
- (4) Cost recovery. The city is empowered to recover all costs associated with the space allocation process as a separate special fee in the schedule of fees.

(Code 1983, § 13-167; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-168. Prohibited acts.

(a) *Prohibition on vending in center median or vehicular right-of-way.* No person shall stand, sit or remain on a street or on or within six (6) feet of the traveled portion of a highway or upon any center median strip, for the purpose of selling, offering for sale or advertising any product, property or service to the driver or passenger of any motor vehicle using the street or highway, unless participating in a city-sponsored event and/or a city approved and permitted mobile vendor special event.

(b) *Schools and parks.* Vendors are prohibited from operating within five hundred (500) feet of schools between the hours of 7:00 a.m. and 3:00 p.m., except in cases where the city designates specific areas as permissible. Unless as a special condition granted by the city as part of the license, vendors shall be prohibited from operating in a park during that park's hours of closure.

(c) *Offsets.* No mobile vendor may vend or conduct business in such a manner as to restrict or interfere with the ingress or egress of the abutting property owner or tenant or create or become a public nuisance, increase traffic congestion or delay, or constitute a hazard to traffic, life or property or an obstruction to adequate access to fire, police or sanitation vehicles.

(d) Prohibition of sales around residential areas.

- (1) No mobile food vendor shall conduct business within any single-family residential zoning district, including townhouse districts, but may be located in such districts when serving and within one hundred (100) feet to a property with an active building permit. The zoning of the right-of-way shall be construed to be the same as that of the parcel which it abuts, up to the central median line of the overall right-of-way.
- (2) No mobile vending unit may operate within fifty (50) feet from a single-family or multifamily residential use. Single-family or multifamily residential use, as defined in this article, shall not include a residence that is part of a business or a mixed-use structure.
- (3) All mobile vending units between fifty (50) and one hundred (100) feet from a single-family or multifamily residential use must obtain the consent of seventy-five (75) percent of the owners of the single-family or multifamily residential property within a one hundred (100) foot radius around the mobile vending unit. Consent from the property owners must be original, signed, notarized, and dated within thirty (30) days from the date the vendor operates on said location.

(Code 1983, § 13-168; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-169. Revocation of license.

(a) Licenses issued under the provisions of this chapter may be revoked by the city commission, after notice and hearing, for any of the following causes:

- (1) Fraud, misrepresentation, or false statement contained in the application for license;
- (2) Fraud, misrepresentation or false statement made in the course of carrying on his business as street vendor;

- (3) Any violation of this article;
- (4) Conviction of any crime or misdemeanor involving moral turpitude;
- (5) Conducting the business of street vending in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety, or general welfare of the public;
- (6) Violations of established department of health or business regulations.

(b) Notice of the hearing for revocation of a license shall be given in writing, setting forth specifically the grounds of complaint and the time and place of hearing. Such notice shall be mailed to the licensee at his last known address with a postmark of at least five (5) days prior to the date set for hearing.

(c) The decision regarding the revocation of license by the city commission shall be conclusive and final.

(d) Any mobile vendor whose license has been revoked pursuant to the provisions of section shall be prohibited from participating in any mobile vendor special event until such time as the license has been reinstated.

(e) Vendors who have had their license revoked may apply for a new license no earlier than three (3) months after the revocation of license. The department of planning and zoning shall consider prior revocations of licensing in its determinations of whether to issue a new permit.
(Code 1983, § 13-169; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-170. Permit caps.

The city may elect to adopt a permit cap on the overall and/or categorical number of vendors in the city. Any such cap shall be reviewed annually by the department of planning and zoning and publicized at least thirty (30) days before the deadline for renewals of annual licenses.
(Code 1983, § 13-170; Ord. No. 14-15, § 2, 10-8-2014)

Sec. 13-171. Exemptions.

Exemption from setbacks on distance requirements from residential areas shall only be permitted if it listed

as a specific allowed use with the issuance of special events permits issued by the city. Such allowances shall be limited to the event in question.
(Code 1983, § 13-171; Ord. No. 14-15, § 2, 10-8-2014)

Secs. 13-172—13-174. Reserved.

ARTICLE IX. RESERVED

Secs. 13-175—13-199. Reserved.

ARTICLE X. RESERVED

Secs. 13-200—13-210. Reserved.

ARTICLE XI. FLEA MARKETS AND BAZAARS

Sec. 13-211. Permitted in retail sales zoning districts.

Flea markets and bazaars are permitted in the city within any zoning district permitting retail sales consisting of a minimum lot area of twenty-five (25) acres subject to compliance with all codes or ordinances of the city.
(Code 1983, § 13-211; Ord. No. 84-14, § 1(1), 6-10-1984; Ord. No. 00-1, § 1, 9-13-2000)

Sec. 13-212. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Approved development plan means the development plan approved by the planning and zoning board and the city commission designating the number of flea market or bazaar sales booths or facilities permitted to be constructed by an owner or operator at a specific location.

Flea market or bazaar means a marketing center where at a single location the owner or operator permits various persons, firms or corporations to use sales facilities such as booths, tables and small areas at designated locations within the premises for limited periods of time on a nonexclusive basis for the purpose of retail sale of all manner of goods and services to the public generally.

Owner or operator means an individual, firm, corporation or other entity who is engaged in the operation of a flea market or bazaar.

Owner's or operator's business tax means the business tax paid by the owners or operators of a flea market or bazaar in the city.

Preliminary development plan means a drawing of the proposed layout or design of the flea market or bazaar facility at the designated location thereof complying with the requirements of this Code.

Rules and regulations means conditions of sale by sellers established by the owners and operators of the flea market or bazaar as required by the Code of Ordinances of the city and shall govern all sales, barter or exchanges of goods, services or things of value on the premises.

Sales booths or facilities means designated locations on the premises of the flea market or bazaar with no inference in size where a single flea market "seller" or "user" is permitted to sell, barter or exchange goods, services or other things of value.

Seller or user means a peddler who sells, barter or exchanges goods, services or things of value at a flea market or bazaar. Such seller or user may be an individual, firm or corporation.

Selling area means that area of the flea market or bazaar with no inference in size prepared for, used or occupied by sellers within or without any building or structure on the premises.
(Code 1983, § 13-212; Ord. No. 84-14, § 1(2), 6-10-1984; Ord. No. 00-1, § 1, 9-13-2000)

Sec. 13-213. Business tax receipt required; fee.

(a) The owner and/or operator of the flea market or bazaar shall, prior to commencement of operations, obtain from the city a business tax receipt and shall pay to the city business tax to be known as a flea market owner's or operator's business tax.

(b) The annual business tax for an owner or operator of a flea market or bazaar shall be one hundred and forty dollars (\$140.00) per sales booth or facility permitted to be constructed by the approved development plan based upon the number of actual constructed sales booths or facilities occupied as of October 1 of said year, plus twenty-five hundred dollars (\$2,500.00)

annually, for the flea market or bazaar administrative offices. The business tax shall be known as the flea market owner's or operator's business tax.

(c) In order to permit the city to retain sufficient personnel and facilities to provide the governmental services commensurate with the cost of regulatory activity required by this article for all flea markets or bazaars, a flea market or bazaar owner or operator shall pay to the city its annual business tax beginning October 1 of each fiscal year. Payment of the business tax may be made quarterly as follows:

- (1) One-quarter of the annual tax as determined by the sales booths and facilities permitted to be constructed and operated under the approved development plan may be paid on or before October 1, of each tax year.
- (2) Thereafter the annual tax may be paid on a quarterly basis on the first day of January, April and July of the tax year.
- (3) In the event the approved development plan is amended to increase or decrease the number of sales booths or facilities, the business tax shall be adjusted to reflect the corrected amount for the balance of the tax year. The adjusted sum shall be paid in the same manner for the remaining period of the tax year.
- (4) The total amount due for the tax year shall be paid in full no later than July 1 of each year.

(d) Applicants for a flea market owner's or operator's business tax receipt desiring to begin business after April 1 of any fiscal year shall pay to the city a fee of one-half ($\frac{1}{2}$) of the annual fee. Upon payment of the fee for the succeeding fiscal year on or before October 1, the city shall give a credit to the flea market or bazaar owner or operator of a sum representing one-twelfth ($\frac{1}{12}$) of the fee previously paid for each full month between April 1 and the date the flea market or bazaar owners or operators business tax receipt was issued. Thereafter the flea market or bazaar owner or operator shall, prior to October 1 of each fiscal year, pay the business tax without further credit.

(e) All applicants for a flea market or bazaar business tax receipt, prior to the issuance of the occupational business tax receipt, shall comply with all requirements of this article.

(f) The flea market owner or operator shall provide the city department of planning and zoning and the department of finance with an updated sales booths or facilities plan of all sales booths or facilities occupied on October 1 of said year along with payment verified by the city director of the department of buildings and licensing. The flea market owners or operators shall provide the city department of buildings and licensing and department of finance with an updated sales booths or facilities plan, occupied after October 1, on or before April 1 of the same licensing year and pay an additional one hundred forty dollars (\$140.00) per sales booths or facilities verified by the city building official, only if the total amount of sales booths or facilities occupied changes.

(Code 1983, § 13-213; Ord. No. 84-14, § 1(3), 6-10-1984; Ord. No. 85-4, § 1, 2-13-1985; Ord. No. 86-16, § 1, 1-14-1987; Ord. No. 00-1, § 1, 9-13-2000)

Sec. 13-214. Safety, sanitation and conditions of use.

No owner or operator of any flea market shall permit any person, firm or corporation to use the facilities until there is obtained from the city a certificate of occupancy and compliance during the hours of operation with the following conditions:

- (a) *Parking.* Each flea market or bazaar shall provide one (1) parking space for each seller within the sales area or within an area designated for public parking set aside for use by sellers. In addition, the flea market or bazaar shall within its premises provide one (1) parking space for every three hundred (300) square feet of allocated area designated on the final approved construction plan containing sales facilities. Public parking areas shall be clearly designated, and spaces marked. Public parking areas shall be free of obstructions, hazards and shall comply with the provisions of the Code of Ordinances applicable to parking lots within the city. All public parking areas shall be located on the premises within the flea market or bazaar in such manner as to permit ingress and egress by the public from the sales area without requiring the public to cross moving lanes of vehicular traffic, in order that all access from public parking areas to the sales facilities shall be direct. Parking areas shall be paved. The base shall be no less than six (6) inches of compacted rock and the wearing

course shall be no less than one (1) inch of asphaltic concrete. All materials and construction methods shall conform to the specifications set forth in sections 9-9 through 9-3, 19-7, 19-13. Parking areas shall be maintained in accordance with the applicable provisions of this Code. It shall be the responsibility of the owners and operators of the flea market or bazaar within the premises to provide regulation and control of pedestrian and vehicular traffic during the hours of operation.

- (b) *Posting of guards and security personnel.* The owners and operators of the flea market or bazaar shall, during the hours of operation, provide guards or other security personnel within the premises to regulate traffic, provide for crowd control, safety, maintenance of sanitation, emergency medical services and orderly parking. Only off-duty city police officers may be utilized as exterior guards or security personnel in accordance with the rules and regulations of the police department of the city, the cost of which shall be paid by the owner/operator.
- (c) *Regulation of traffic outside premises.* The owners and operators of the flea market or bazaar shall retain and pay, in accordance with the rules and regulations of the city police department, off-duty city police officers in numbers designated by the chief of police to regulate and direct traffic entering and leaving the facilities on public roads and rights-of-way. An additional street traffic lane on the premises of the flea market or bazaar shall be constructed the length of frontage parallel and abutting any public street to permit vehicles to wait off of the existing street while entering or leaving the premises. Additional traffic lanes shall be constructed on the premises as may be necessary to prevent vehicles from blocking any public street while waiting to enter the flea market or bazaar. Construction and maintenance of traffic lanes shall be at the cost of the owners and operators.
- (d) *Fire protection.* The premises of the flea market or bazaar shall be maintained in accordance with the requirements of the fire codes of the county and the state. In addition thereto, all selling areas shall have and maintain, with-

out obstruction, fire lanes of fifteen (15) feet or more width located therein, so that no selling booth or area shall be further than one hundred fifty (150) feet from a fire lane. Fire stations containing firefighting equipment shall be maintained in accordance with the fire codes of the county and the state. All employees of the flea market or bazaar shall have received instruction on the use and operation of the equipment during each ninety (90) days of operation.

- (e) *Sanitation, first-aid station and food and drink facilities.* The owners and operators of the flea market and bazaar shall construct in accordance with the applicable building codes and regulations of the city accessory buildings within the selling area providing:

- (1) Bathroom and sanitary facilities for use by the public generally and for no other use or purpose. Facilities shall be located no further than four hundred (400) feet from any portion of the selling area. The owner/operator shall provide bathroom facilities as required by the Florida Building Code, Miami-Dade County Edition. All facilities shall be maintained in a clean and sanitary manner at all times.
- (2) One (1) First Aid station-containing facility, with a trained health service provider licensed as a paramedic and/or registered nurse, shall be maintained continuously at all times of operation. Also one (1) cot for each two hundred (200) selling spaces, medical supplies, desk, medical storage cabinet, wash basin, first-aid equipment and working telephone shall be provided.
- (3) Accessory buildings for dispensing food and drink and for no other purpose may be located on the premises. The food facility shall provide adequate means for disposition of trash and garbage which shall be shielded from view of the general public. There shall be a minimum area of twenty-five (25) square feet surrounding the food facilities on which there shall be provided benches and tables for use by the general public. Sales of food and drink shall be permitted from por-

table vendor carts which may circulate the premises. All garbage and trash shall be removed during the hours of operation. Food and drink facilities shall be maintained and made available for use by the general public at all times the flea market or bazaar is open for use.

- (f) *Fencing.* All sides of the flea market or bazaar premises shall be fenced. Fences shall be constructed of permanent materials so as to prevent ingress and egress except through gates and openings according to the approved development plan. All fences shall be six (6) feet in height.
- (g) *Trash and garbage removal.* All trash and garbage shall be removed from the premises on a daily basis. In no event shall trash and garbage be stored or permitted to accumulate on the premises for more than one (1) day. If the volume or accumulation of trash and garbage exceeds its designated storage area at any time, it shall be removed immediately.
- (h) *Landscaping.* All flea market and bazaar property shall be landscaped in accordance with article VII of the land development regulations. All parking facilities and selling areas shall be landscaped. The owners and operators of the flea market or bazaar shall be responsible for providing maintenance of all landscaping. Landscaping shall be maintained in good condition so as to present in perpetuity a healthy, neat and orderly appearance. Landscaping shall be shown or described upon the preliminary development plan and shall be approved by the city department of planning and zoning as part of the preliminary development plan. The height and size of trees, shrubs and hedges shall be specified. The location of ground cover, grasses and ornamental plants shall be designated. All landscaped areas shall be planted with grass or an acceptable ground cover material. Water for landscape maintenance shall be readily available within one hundred (100) feet of all landscaped areas. All parking surfaces, access aisles and driveways shall be separated from any wall, building, structure or fence by a minimum of twenty (20) inches or more of area landscaped with grass, ground cover or other suitable material.

A landscaped area that is five (5) feet in width shall border all peripheral parking areas when said parking is located along any street. The peripheral area shall be landscaped with trees no further apart than fifty (50) feet on center with a minimum of two (2) trees for the frontage area and a continuous hedge and planting area on all other peripheral areas. A landscaped area of at least five (5) feet in width shall be provided when parking is located along any side or rear lot line.

Selling areas shall be separated from parking areas, roads and other structures by landscaped areas and trees no further apart than fifty (50) feet on center. All front setback areas shall be planted with a hedge along the entire length of the required landscape strip between the fence and street.

- (i) *Drainage.* All parking areas and selling areas shall be drained in such manner as to remove all standing water within six (6) hours. Drainage shall be provided in accordance with the requirements of the city, the county and the Florida Building Code, Miami-Dade County Edition. All drainage shall be shown on the preliminary development plan and approved by the city department of planning and zoning.
- (j) *Alcoholic beverages and regulated substances.* The sale, distribution, bartering or dispensing of any alcoholic beverage as defined by F.S. § 561.01(4), except beer, as permitted herein, for consumption on or off the premises of any flea market or bazaar is prohibited. It shall be a violation of this article for any person, firm or corporation to bring upon the premises of any flea market or bazaar any intoxicating beverage or intoxicating liquor as defined by F.S. § 561.01(5). The sale, distribution, bartering, delivering or dispensing of cannabis or any controlled substance, as defined by F.S. § 893.02, at any flea market or bazaar authorized under this article is prohibited and it shall be a violation of this article for any person, firm or corporation to bring upon the premises or for the owners or operators of such flea market to permit such persons, firms or corporations to bring on such premises cannabis or a controlled substance without pre-

scription as defined by F.S. § 893.02. Beer may be sold and dispensed only in paper cups for consumption at or on the area of the accessory building dispensing food and drink as designated by the owners and operators.

(Code 1983, § 13-214; Ord. No. 84-14, § 1(4), 6-10-1984)

Sec. 13-215. Approval of plans, layout and facilities.

Before submission of construction plans and drawings, the owners and operators of any flea market or bazaar desiring to locate within the city shall submit a preliminary development plan to the city department of planning and zoning. The proposed development plan shall:

- (a) Describe the location and legal description of the lands proposed to be used.
- (b) Designate the current zoning of the lands and whether or not application will be made to the city for zoning change, waiver of plat, or variances of any nature from existing zoning regulations or Code requirements.
- (c) Set forth the plan by which the flea market or bazaar will meet the requirements of this Code for water, sewage, drainage, trash disposal and other requirements.
- (d) Provide a copy of the survey of the property, plat and proposed layout of the flea market or bazaar thereon.
- (e) Include in the site plan the location of access roads, entrances and exits, parking facilities, traffic lanes, fire lanes, and vehicular roads within the premises, sanitary facilities, food and drink facilities, First Aid stations, fences, other buildings and proposed uses thereof, lighting, landscaping and other improvements and requirements of this Code.
- (f) While it is an obligation of the owners and operators of the flea market or bazaar to construct the facilities in accordance with the ordinances of the city and applicable zoning, building, sanitation and other regulatory codes, the appropriate department of the city shall provide, as a courtesy, information and suggestions relating to safety, sanitation and compliance with procedures applicable to the development and construction of the facilities.

- (g) In the event zoning changes, variances or plat waivers shall be requested in relation to the project, said requests shall be submitted to the proper board and approved by the city in accordance with the applicable ordinances prior to submission of construction plans and drawings.

(Code 1983, § 13-215; Ord. No. 84-14, § 1(5), 6-10-1984)

Sec. 13-216. Development plan, conditions of approval, fees and costs.

(a) The preliminary development plan shall be certified by a registered engineer of the state as meeting all laws, this Code and requirements of all affected jurisdictions. The flea market developer, owner or operator shall pay to the city with the preliminary plan a filing fee of five hundred dollars (\$500.00), together with an agreement to reimburse the city for fees and costs incurred by the city for use of the city planner, engineer, attorney and other contractual personnel and services together with all statutory fees and costs and expenses of publication, notices, duplication, etc. The cost of city classified and unclassified personnel shall be charged on an hourly basis in accordance with the current budget of the city. Additional fees shall be paid within ten (10) days after billing by the city and prior to issuance of any permits or business tax receipts.

(b) All flea markets and bazaars shall be permitted in accordance with an approved development plan in appropriate zoning districts at a specific location consisting of a minimum lot area of twenty-five (25) acres after recommendation of the planning and zoning board and approval of the city commission designating the total number of sales booths or facilities only after public hearing where it is demonstrated that the development plan shows as to the specific location that the project shall not cause:

- (1) Traffic congestion or hazards from entry and exit from the premises;
- (2) Sanitation hazards or flooding within the premises on surrounding property or streets;
- (3) Accumulation of trash or garbage;
- (4) Fire and other safety hazards;
- (5) Persons on the premises to be subject to riotous activity or danger to their person or safety.

(c) The development plan may be amended from time to time subject to the same costs, fees and procedures which relate to the preliminary development plan, as set forth in subsection (a) of this section. Additional sales booths or facilities may be approved by the city department of planning and zoning, provided that said increased sales booths or facilities shall not require construction of additional parking, water, sewer, drainage, trash disposal or other improvements necessary to comply with the requirements of subsection (b) of this section. Upon approval of the amended development plan, the owners and operators of the flea market or bazaar shall pay the increased business tax receipts fees prior to utilization of said sales booths or facilities. In the event the flea market owner or operator desires to reduce the number of sales booths or facilities, said reduction shall entitle the owners or operators to a credit towards the business tax due and payable for the succeeding fiscal year in an amount represented by the number of sales booths or facilities reduced. In no event may sales booths or facilities be used without compliance with the requirements of this Code, approval of the city department of planning and zoning and payment of the appropriate business tax. Modifications or amendments to the development plan other than increasing of sales booths or facilities shall be submitted to the city commission of the city for approval or rejection.

(d) All flea markets or bazaars that exceed the number of four hundred (400) sales booths or facilities shall be exempt from section 13-213(c) but shall instead make monthly installment payments to the city department of finance in the amount equal to one-twelfth ($\frac{1}{12}$) of the total amount of cost for the business tax receipt for said year on the first Tuesday of every month. The balance on all accounts must be paid in full on the first Tuesday of September of the current business tax year or the reissuance of any business tax receipt shall be denied. The reissuance of business tax receipts shall be given only after all accounts have been paid in full. All flea markets or bazaars whose number of sales booths or facilities do not exceed four hundred (400) must comply with section 13-213(c).

(Code 1983, § 13-216; Ord. No. 84-14, § 1(6), 6-10-1984; Ord. No. 85-8, § 1, 3-13-1985; Ord. No. 00-1, § 1, 9-13-2000)

Sec. 13-217. Posting of performance bond.

No certificate of occupancy or business tax receipt shall be issued by the city until the owners and operators of the flea market or bazaar post annually a performance bond as required by section 2-98 as follows:

- (a) Performance bond. The performance bond shall be conditioned upon maintenance of sanitation and conditions of use, payment of all business taxes to the city, return of buyer's monies, and performance of all requirements of this Code of Ordinances applicable to the operation and/or maintenance of the flea market or bazaar. The amount of the performance bond shall be ten (10) percent of the total cost of the proposed improvements as certified by the owner/operator's architect or engineer. The performance bond shall be in addition to any other performance bond or security required to be provided by other applicable codes or ordinances including "waiver of plat" requirements. Failure to provide during the hours of operation, safety, sanitation and conditions of use shall be a breach of the obligations and duties secured by the performance bond.

- (b) Reserved.

(Code 1983, § 13-217; Ord. No. 84-14, § 1(7), 6-10-1984; Ord. No. 03-25, §§ 2, 3, 10-8-2003)

Sec. 13-218. Promulgation and enforcement of rules and regulations.

(a) Owners and operators of all flea markets and bazaars shall establish and publish rules and regulations governing conditions of sale by all sellers while on the premises of the flea market or bazaar. All sellers shall acknowledge receipt of the published rules and regulations and shall transact all sales, barter and exchanges subject thereto. Sellers shall acknowledge agreement to conduct all transactions in accordance therewith on the authorization form prior to selling. A copy of the rules and regulations shall be made available at all times to any buyer requesting the same.

(b) The rules and regulations shall be promulgated and filed with the chief of police of the city prior to the sale, barter or exchange of any goods, services or things of value on the premises of the flea market or bazaar. The rules and regulations shall be posted on a bulletin board protected from weather deterioration on each building and accessory building.

(c) The rules and regulations of each flea market or bazaar shall, in addition, include the following:

- (1) Prohibition of the sale of stolen property.
- (2) Requirement that each seller return the monies of any buyer whose goods, services or things of value are unfit for the purpose for which it was intended, violates any expressed or implied warranty or fails to perform according to any representation made in relation thereto.

(Code 1983, § 13-218; Ord. No. 84-14, § 1(8), 6-10-1984)

Sec. 13-219. Enforcement of article provisions; cease and desist order.

The enforcement of this article shall be the responsibility of the code enforcement officer. The code enforcement officer shall, at least once each week, inspect the premises, obtain information and documents required by this article and certify in writing to the chief of police, city clerk, building official and other departments of the city having responsibility for ensuring compliance with this Code within the flea market or bazaar that the facilities and owners or operators are in compliance at all times with the terms and conditions of this article and all applicable codes of the city and other agencies having jurisdiction thereof. In the event the owner and operator of the flea market or bazaar fails to comply with the provisions of this Code, including, but not limited to, payment and collection of business tax receipts, safety and sanitation requirements, the code enforcement officer shall issue a cease-and-desist order pursuant to section 2-88.

(Code 1983, § 13-219; Ord. No. 84-14, § 1(9), 6-10-1984)

Sec. 13-220. Building permit.

No building, structure, improvement, site, booth, bench or other facilities shall be erected, altered, added to, destroyed or moved, nor shall any work be performed for the development and construction of a flea market site until a construction permit shall have been applied for and issued by the building official of the city. It shall be the duty of the building official to inspect the site and facilities during the course of construction, alteration or improvement. The building of-

ficial is hereby authorized and directed to withhold the issuance of a certificate of occupancy upon noncompliance with the provisions of the building code. (Code 1983, § 13-220; Ord. No. 84-14, § 1(10), 6-10-1984)

Sec. 13-221. Flea market owner's and operator's obligations.

It shall be the obligation and duty of the owners and/or operators of all flea markets and bazaars within the city to:

- (a) Operate and manage the flea market or bazaar in such manner as to maintain safety, traffic control, and to prohibit hooliganism, riotous activity or assaults and battery upon visitors, business invitees, buyers or sellers during the hours of operation, and to employ and maintain a sufficient number of guards on the premises for such purposes.
- (b) Require all employees to obtain and display identification cards prior to working on the premises during the hours of operation.

(Code 1983, § 13-221; Ord. No. 84-14, § 1(11), 6-10-1984)

Sec. 13-222. Non-issuance of business tax receipt.

Failure of the owner/operator of a flea market to comply with the requirements of this Code or to establish and maintain during the hours of operation the safety, sanitation and conditions of use required by this Code shall constitute grounds for non-issuance of the business tax receipt, pursuant to article II of this chapter.

(Code 1983, § 13-222; Ord. No. 84-14, § 1(12), 6-10-1984)

ARTICLE XII. RESERVED

Secs. 13-223—13-230. Reserved.

ARTICLE XIII. TOWING COMPANIES

Sec. 13-231. Short title.

This article shall be known and may be cited as the "Towing Company Permitting Ordinance of the City of Opa-locka, Florida."

(Code 1983, § 13-231; Ord. No. 01-5, § 1, 3-28-2001)

Sec. 13-232. Purpose.

(a) It is hereby declared that in order to provide for and safeguard the life, health, safety, property and welfare of the people, the permitting of business enterprises engaged in the practice of recovering, towing, removing and storing of motor vehicles are matters affecting the public interest and any person desiring to conduct such a business shall be required to obtain a permit and conform to the regulations hereinafter provided.

(b) The purpose of this article is to provide for the permitting of business enterprises which are engaged in or which intend to engage in the practice of recovering, towing, removing, and storing of motor vehicles which are parked on private property without the permission of the owner of the private property.

(c) It is further the purpose of this article to establish rates for towing and storage services.

(Code 1983, § 13-232; Ord. No. 01-5, § 2, 3-28-2001)

Sec. 13-233. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abandoned vehicle means any motor vehicle without a legal or current tag that is parked on public or private property or is known as a junked motor vehicle.

Business enterprise means a unit of economic organization or activity in the form of an individual, natural person, sole proprietorship, corporation, partnership, organization, joint venture, trust, foundation, firm, group, society, association or any combination thereof, towing, removing and storing of parked vehicles from private real property at the express instruction of the owner of such real property.

Decal means an identifying sticker issued by the city and appropriate for display in the lower left corner of the front window of a towing vehicle or equipment or car carrier used by a person licensed hereunder.

Express instruction means a clear, definite and explicit request, made in writing by:

- (1) A police officer to recover, tow, remove or store a specific and individual vehicle that is

disabled or abandoned or parked without authorization, or whose operator is unable or unwilling to remove the vehicle;

- (2) A property owner or duly authorized agent of the property owner to recover, tow, remove or store a specific and individual vehicle parked without permission of the property owner; however, such property owner or agent shall not be the person requested to recover, tow, remove or store the vehicle or an employee or agent thereof; or
- (3) By telephone, in person or in writing by a vehicle owner or the authorized driver to recover, tow, remove or store a specific and individual vehicle that is in the lawful control of the vehicle owner or authorized driver requesting the towing service. Where the property owner is a government entity, the property owner or an employee or agent thereof, may be the same person requested to recover, tow, remove or store the vehicle.

Every request made in writing or in person must indicate the date and time of the instruction and must be signed by the police officer, the property owner or agent, or the vehicle owner or authorized driver in the presence of the person providing the requested service. Every request made by telephone must also be documented with the date and time of the call.

Industry means the business of recovering, towing or removing vehicles and providing such vehicle storage services as may be associated therewith.

Junked vehicle means a motor vehicle with major or severe damage that prevents such vehicle from being legally driven on a public roadway or a vehicle having no value or nominal salvage value.

Mechanically incapacitated vehicle means any wrecked, inoperative or partially dismantled motor vehicle or a motor vehicle temporarily undergoing major repairs.

OLPD means the City of Opa-locka Police Department.

Operate means to provide, for compensation, the services of recovering, towing, or removing vehicles and any vehicle storage services associated therewith.

Operator means any person who provides for compensation the services of recovering, towing or removing vehicles and any vehicle storage services associated herewith.

Permit means the certificate or document which allows a person to engage in the city in the activity of recovering, towing, removing and storing of vehicles for compensation.

Permittee or *permit holder* shall mean the person, company, or agency that is the holder or recipient of a towing permit from the city.

Personnel authorized by the OLPD means enforcement personnel authorized by the police chief and presenting valid identification.

Property owner means that person who exercises dominion and control over real property, including, but not limited to, the legal titleholder, lessee, designated representative of a condominium association or any person authorized to exercise dominion and control over real property; however, the term "property owner" shall not mean or include a person providing towing services within the purview of this article.

Recover means to take possession of a vehicle and its contents and to exercise control, supervision and responsibility over the vehicle.

Regulation means a rule set forth herein the violation of which is sufficient grounds for fines; suspension or revocation of a towing permit.

Remove means to change the location of a vehicle by towing.

Revoke means to annul and make void the license of a person engaged in the business of providing towing services.

Store means to place and leave a towed vehicle at a location or facility where the person providing the towing service exercises control, supervision and responsibility over the vehicle. The storage facility must be securely fenced, locked, or secured for the protection of vehicles and property.

Tow means to haul, draw or pull a vehicle by means of another vehicle equipped with booms, car carriers, winches or similar equipment.

Trade name means any name under which a person, corporation, partnership, association, firm or any other entity operates its business.

Vehicle means an automobile, truck, bus, trailer, semitrailer, truck, tractor, semitrailer combination, recreational unit primarily designed as temporary living quarters which either has its own motive power or is mounted on or drawn by another vehicle, or any other mobile item using wheels and being operated on the roads located within the city, which is used to transport persons or property and is propelled by power other than muscular power; provided, however, that the term "vehicle" does not include mopeds, traction engines, road rollers or vehicles which run only upon a track. (Code 1983, § 13-233; Ord. No. 01-5, § 3, 3-28-2001)

Sec. 13-234. Permit required for towing services; prohibition.

(a) The issuance of a permit pursuant to this article is separate and apart from and supplemental to any county or municipal business tax receipt.

(b) Nothing in this section shall be construed to mean that a natural person cannot work or a business enterprise cannot operate without the permit required for towing services. There is no requirement that employees or agents of such business enterprises apply for and obtain the license issued under this section. A business enterprise cannot claim employees or agents as independent contractors to avoid the requirement that the business enterprise itself apply for, obtain, and maintain a permit. (Code 1983, § 13-234; Ord. No. 01-5, § 4, 3-28-2001)

Sec. 13-235. Application for towing permit for towing services.

Every application for a towing permit shall be on a form prescribed by the city manager and shall contain all the information required by that form, including, but not limited to:

- (1) Sufficient information to identify the applicant, including, but not limited to, full legal name, date of birth or date of formation or incorporation of legal entity, business telephone numbers, and all business and residence addresses. If the applicant is a corporation, the foregoing information shall also be provided for each corporate officer, director, resident agent and shareholder. If the applicant is

a partnership, the foregoing information shall also be provided for each general and each limited partner. A post office box address will not be accepted.

- (2) Documentation demonstrating that all corporate or partnership applicants are qualified to do business under state law.
- (3) Photocopy of all city and county business tax receipts of the applicant.
- (4) A list of all persons with any ownership interest in the applicant who have previously been denied a business tax receipt.
- (5) Any trade name under which the applicant operates, intends to operate, or has previously operated, and a description of proposed, existing and previous towing vehicles' colors and markings.
- (6) A description of the applicant's management plan, which shall include, but is not limited to, the following:
 - a. Location and description of all places of business;
 - b. A description of all towing vehicles and equipment;
 - c. A description of the plan and facilities for maintaining towing vehicles and equipment;
 - d. A system for handling complaints and accidents, insurance coverage and a description of any communication system.
- (7) A description of services proposed to be provided, including, but not limited to, days and hours of operation and types of towing and storage services to be provided.
- (8) Sufficient information to identify the applicant and each employee, including, but not limited to, full legal name, and date of birth. For each employee, the wrecker company shall obtain documentation from the county police department regarding the employee's criminal and arrest history and submit such information to the city. Such documentation shall include a record of all outstanding arrest warrants, all misdemeanors within the preceding thirty-six (36) month period, felony convictions, plea of guilt or no contest within the

least five (5) years preceding the application date involving criminal homicide, violent crimes, robbery, burglary, arson, fraud, auto theft, theft if the offense was committed against a person with whom the applicant or employee came in contact with while engaged in towing services, illegal possession of a weapon, and violation of any law involving controlled substances. Wrecker companies shall submit current employee information every twelve (12) months.

- (9) Individual applicants shall obtain their fingerprints and photographs from the police department and provide them with the application and, where civil rights have been restored or periods of incarceration or probation have been completed, provide such information with the application. If the applicant is a corporation or partnership, all such information shall be provided by all corporate officers and directors, or partners, as the case may be, and by all stockholders who own, hold or control five (5) percent or more of issued and outstanding stock in the corporation or beneficial interest therein, and by all officers and directors of any corporate general partners of a partnership and by stockholders who own, hold or control five (5) percent or more of issued and outstanding stock in a corporate general partner, or beneficial interest therein.
- (10) Proof of insurance as required in this article.
- (11) The signature of each individual applicant or duly authorized agent, the signature of the president or vice-president of a corporate applicant, and the signature of all the general partners of a partnership applicant.
- (12) An affidavit signed by the applicant that the applicant shall abide by this article, city, county and state law.
- (13) It shall be a violation of this article to fail to report to the city any material change pertaining to the information supplied by the applicant or permittee for its permit, including, but not limited to, changing the location of the applicant's place of business prior to issuing the permit and during the time period for which the permit has been issued.

(14) Each applicant for a license shall provide a schedule of all proposed rates and charges on a form prepared by the department of buildings and licensing.

(15) Additional information about the applicant as the city may deem appropriate.
(Code 1983, § 13-235; Ord. No. 01-5, § 5, 3-28-2001)

Sec. 13-236. Issuance of permit; renewal.

(a) The city manager or his designee is authorized to issue permits to applicants who have met the standards and requirements for a towing license, and to promulgate rules, regulations and procedures for the application, issuance and revocation of such licenses.

(b) The city manager shall review and investigate each application for a towing permit and shall reject any application that is not properly filed or is incomplete or untrue in whole or in part, or which fails in any way to meet the requirements of subsection (c) of this section.

(c) No towing permit shall be issued to an applicant or renewed unless the applicant has completed the following:

- (1) Filed with the city manager a true, correct and complete application on the form prescribed by the department of buildings and licenses, including all proofs of required insurance.
- (2) Paid the initial, renewal or late application fee, as applicable.
- (3) Submitted to a background investigation resulting in a determination by the city manager that:
 - a. Neither the applicant, nor any officer, director or partner of the applicant, nor any stockholder owning, holding, controlling or having a beneficial interest in five (5) percent or more of the issued and outstanding stock of a corporate applicant or of a corporate general partner of a partnership applicant, has a currently suspended license, has had its license revoked by action of the licensing director within two (2) years of the date of application, or has outstanding and unsatisfied civil penalties imposed on account of violations of this article.

- b. Neither the applicant, nor any officer, director or partner of the applicant, nor any stockholder owning, holding, controlling or having a beneficial interest in five (5) percent or more of the issued and outstanding stock of a corporate general partner of a partnership applicant, has been convicted of one (1) or more of the felonies listed in section 13-236(8) within the preceding five (5) years; or that three (3) misdemeanors have been committed within the thirty-six (36) month period preceding the date of application, unless the civil rights of such individual or applicant have been restored or that such person has successfully completed all sentences of incarceration, probationary periods, required rehabilitation activities and payment of all fines and penalties imposed. For applicants requesting renewal, the licensing administrator may only consider crimes committed after the date the applicant obtained his license, unless such crimes were not previously disclosed in the original application.
- c. Each corporate or partnership applicant is qualified under the state law to do business under the trade name under which it has applied for a license.
- d. No fraud or willful or knowing misrepresentation or false statement was made in the application.
- e. No judgment against the applicant arising out of the activity of recovery, towing or removing a vehicle or providing storage in connection therewith remains unsatisfied, unless a stay or reversal of the judgment is procured through the courts.
- f. No outstanding warrants of arrest against the applicant nor any officer, director or partner of the applicant nor any stockholder owning, holding, controlling or having a beneficial interest in five (5) percent or more of the issued and outstanding stock of a corporate general partner of a partnership applicant.
- (4) Each towing permit shall be on a form prescribed by the city manager and shall be signed by the city manager. Each towing permit shall contain, at a minimum, the name and address of the applicant, the dates the permit remains in effect unless suspended or revoked, and a statement of such additional terms and conditions, restrictions and limitations as were authorized in the application and approval process.
- (5) The fee for the initial application shall be five hundred dollars (\$500.00).
- (6) Prior to the expiration of the initial towing permit or expiration of the annual permit, where applicable, an applicant may apply for an annual towing permit. As a part of the renewal process, the original application shall be updated and verified by the applicant on forms prescribed by the department of buildings and licensing. Renewal applications shall also include such financial information, as the department of buildings and licenses shall deem necessary to consider the continued appropriateness of maximum fees established by resolution. Each updated renewal application shall be submitted at least sixty (60) days prior to expiration of the current initial or annual permit and shall be accompanied by a renewal fee in an amount established by resolution. The amount of the renewal fee shall be reasonably related to the cost of the administrative services and regulation provided and shall be in addition to any other fees or charges required by this article. All annual towing permits that are renewed shall automatically expire on September 30 following the issuance date and all recovery; towing, removing and storage services permitted thereunder shall cease immediately. The towing permit administrator shall deny each renewal application which is not timely, not properly filed, incomplete, untrue in whole or in part, unaccompanied by the towing permit administrator that the applicant has failed to satisfy the requirements of this section.
- (7) A permit issued or renewed pursuant the provisions herein shall not be transferable, nor shall the ownership structure of the licensee be

so modified as to constitute a change in control or ownership of the permit, without city commission approval.

(Code 1983, § 13-236; Ord. No. 01-5, § 6, 3-28-2001)

Sec. 13-237. Revocation or suspension of permit.

On written complaint of any person or by its own initiation, OLPD or the city manager may investigate the activities or actions of a business permitted under this article to determine if there are grounds for revocation or suspension of a permit. The city commission, upon notice to the permittee and upon public hearing, shall determine if the permit should be revoked or suspended based on evidence and testimony presented at the hearing. Certiorari review of a permit revocation and suspension shall be according to the Florida Rules of Appellate Procedure.

(Code 1983, § 13-237; Ord. No. 01-5, § 7, 3-28-2001)

Sec. 13-238. Service requirements for city towing services.

(a) All wrecker companies shall maintain the following minimum number of vehicles:

- (1) Two (2) Class A wreckers comprised of at least two (2) Class A wreckers and/or two (2) Class A slide-back car carriers.
- (2) One Class B wrecker.
- (3) One Class B slide-back car carrier.
- (4) Two (2) Class C wreckers, at least one (1) of which shall be under-reach equipped or one (1) Class D wrecker.

(b) All operators are expected to be familiar and comply with the Florida Uniform Traffic Control Law (F.S. ch. 316) and federal and state department of transportation rules and regulations.

(c) The city shall inspect all wreckers before being placed on the city rotation schedule to be established by the city manager and, thereafter, shall be inspected annually.

(d) Each company shall maintain immediate twenty-four (24) hour wrecker and road service, three hundred sixty-five (365) days a year, seven (7) days a week.

(e) Each company shall be prohibited from charging rates in excess of those established herein.

(f) All wreckers shall be prohibited from chasing or running to wrecks without bona fide calls from police officers handling investigations.

(g) All wrecker companies must establish and show proof of public liability and property damage insurance in the amounts of five hundred thousand dollars (\$500,000.00), per occurrence. Proof of workers' compensation coverage shall be provided to the city. Wrecker companies shall maintain garage keeper's legal liability insurance acceptable to the risk manager.

(h) Soliciting at the scene is prohibited by the owner, operator or representative of any wrecker company.

(i) Amber lights shall be used only at the scene or when towing from the scene. Unless authorized by OLPD, amber lights shall not be used in proceeding to a call.

(j) The wrecker companies, as instructed by OLPD, shall honor hold orders placed by the OLPD on vehicles stored for any reason.

(k) A wrecker operator who fails to answer his call will lose the call. If the operator misses three (3) calls, OLPD shall make an investigation to determine if suspension or removal is warranted and report its findings to the licensing administrator.

(l) An operator who fails to respond promptly to calls may be removed from the city rotation schedule. The city reserves the right to call other wreckers if an operator is unable to respond to call promptly.

(m) An operator who refuses a call without just reason shall be removed from the city rotation schedule.

(n) All wrecker companies shall provide an outside storage lot in the city of at least sixty thousand (60,000) square feet enclosed by a wall or fence as required for compliance with the Code of Ordinances and/or land development regulations.

(o) All wrecker companies shall have inside storage facilities at their business location when weather or other conditions require inside storage for protection of at least four (4) vehicles and personal property.

(p) All employees operating wreckers shall be qualified and trained in handling equipment safely, on the scene, to the scene, and from the scene. Such employees shall conduct themselves in a courteous and professional manner.

(q) All vehicles must be radio dispatched.

(r) Wrecker companies shall provide towing services for abandoned or junked vehicles at no charge to the city. All abandoned, junked or mechanically incapacitated vehicles must be towed to a licensed wrecker company or automobile storage location that conducts business, as a permitted or granted use within the designated zoning district of the premises, inside a masonry wall.

(s) Prior to leaving the scene, the wrecker operator shall ensure that the accident scene is clean and clear of debris, broken glass and vehicular parts resulting from the accident.

(t) Vehicle release office operating hours are from 7:00 a.m. to 7:00 p.m., three hundred sixty-five (365) days a year, seven (7) days a week.

(u) The city may collect an administrative fee for every vehicle released from the wrecker company's storage facility on a monthly basis. The administrative fee shall defray the cost of ownership searches, record keeping and other administrative responsibilities.

(v) All wrecker companies shall accept cash, cashier's check, money order, major credit cards or debit cards for payment.

(w) Vehicle owners whose vehicles are stolen and recovered within the city shall not be charged for the first eight (8) hours of storage. Storage hours are only those hours when the vehicle release office is open for business. Residency shall be determined by the address on the valid, current vehicle registration certificate of the vehicle owner. All vehicle owners shall charge for storage only on days when the wrecker company operates its office for vehicle release for at least six (6) hours. No storage fee shall be charged for any vehicle if such vehicle is stored less than six (6) hours prior to release.

(x) All drivers must carry a tow truck identification card/badge on their shirts at all times.

(y) All drivers must wear company uniforms with their name and company name visible.

(z) Every driver must obtain and possess a current commercial driver's license (CDL) required for the vehicle classification that the driver is operating by federal and state department of transportation rules and regulations.

(aa) Towing rates will be posted in the OLPD records section and the department of buildings and licensing for public information and verification.

(bb) All wrecker companies shall post the towing service rates at their business locations.

(cc) Vehicles impounded and stored at the wrecker company's facility for processing as trial evidence or, for forfeiture, may be stored for a period of up to five (5) days (Saturdays, Sundays and holidays excluded) at five dollars (\$5.00) for each day of storage. The towing charge for each tow shall not exceed ten dollars (\$10.00). These rates shall apply only to vehicles that are not released or returned to the owner or lienholder within five (5) days. If the wrecker company stores an impounded vehicle in its storage facility for five (5) days, the wrecker company shall immediately notify the city in writing that the vehicle has not been released. A stolen recovered vehicle and/or parts in which an auto theft detective has placed a hold solely for VIN verification is not an investigative tow upon which a detective places a hold for processing for forfeiture or evidentiary purposes.

(Code 1983, § 13-238; Ord. No. 01-5, § 8, 3-28-2001)

Sec. 13-239. Fees and charges for towing privately owned vehicles.

(a) *Fees for towing privately owned vehicles.* Base rates shall include hookup, unlocking door if necessary, dropping of linkage, use of dolly and towing.

Class "A."

- (1) Base rate: eighty-eight dollars (\$88.00).
City administrative charge: twenty-five dollars (\$25.00).
- (2) Mileage rate after first five (5) miles: three dollars (\$3.00).

Class "B."

- (1) Base rate: one hundred thirty-five dollars (\$135.00).
City administrative charge: twenty-five dollars (\$25.00).
- (2) Mileage rate after first five (5) miles: three dollars and fifty cents (\$3.50).

Class "C."

- (1) Base rate: one hundred seventy-five dollars (\$175.00).
City administrative charge: twenty-five dollars (\$25.00).
- (2) Mileage rate after first five (5) miles: four dollars and fifty cents (\$4.50).

Class "D."

- (1) Base rate: two hundred dollars (\$200.00).
City administrative charge: twenty-five dollars (\$25.00).
- (2) Mileage rate after first five (5) miles: four dollars and fifty cents (\$4.50).

(b) *Towing of city-owned, leased, or rented vehicles.*
Towing of city vehicles and equipment shall be at no charge.

(c) *Miscellaneous other charges applicable to Classes "A," "B," "C," and "D."*

- (1) Lowboy services:
 - a. Tow rate (hook-up and first half-hour at scene): one hundred seventy-five dollars (\$175.00).
 - b. Per towed miles after first five (5) miles: four dollars and fifty cents (\$4.50).
 - c. Extra labor/waiting time at scene (after first half-hour) per quarter-hour thereafter: forty-three dollars and seventy-five cents (\$43.75).
- (2) Dollies. Class "A" (except private property tows), per job: thirty-five dollars (\$35.00).
- (3) Underwater recovery salvage divers:
 - a. For first hour, per diver: one hundred twenty-five dollars (\$125.00).
 - b. For each additional 15 minutes: thirty-one dollars and twenty-five cents (\$31.25).

Per quarter-hour or any fraction thereof over the first hour, per diver.

(d) *Administrative fees.*

- (1) After first six (6) hours, per vehicle: thirty dollars (\$30.00).

- (2) All actual fees imposed by a state for obtaining pertinent ownership information and actual postage fees will be in addition to above.
(Code 1983, § 13-239; Ord. No. 01-5, § 9, 3-28-2001)

Sec. 13-240. Storage rates.

Daily rates for all vehicle storage are based on a twenty-four (24) hour day. The daily rate shall apply according to the type of vehicle stored. Storage will only be assessed to owner of vehicle when notified, as provided by F.S. §§ 715.05 and 713.78. The storage facility shall be maintained within three (3) miles of city hall.

The following are the maximum allowable rates:

- (1) Motorcycles, daily rate: twelve dollars (\$12.00).
- (2) Passenger vehicles, daily rate (less than twenty (20) feet in length and eight (8) feet in width): twenty dollars (\$20.00).
- (3) Larger vehicles, daily rate: thirty-five dollars (\$35.00).
(Including trucks over three-quarter (³/₄) ton, boats, (one (1) charge, with or without trailers), trailers, etc.) Note: Vehicle must be over twenty (20) feet in length.
- (4) Inside storage. An additional five dollars (\$5.00) per day may be charged for inside storage upon the written direction of the city enforcement officer on the tow slip, or with the signed consent of the owner.

(Code 1983, § 13-240; Ord. No. 01-5, § 10, 3-28-2001)

Sec. 13-241. Wrecker classifications and requirements.

(a) *Wrecker classifications.* Wrecker companies operating within the city shall be comprised of the following classifications:

- (1) *Class A wrecker.* The requirements for a Class A wrecker shall be as follows:
 - a. Commercially manufactured unit, with a rated capacity of not less than ten thousand (10,000) pounds, gross vehicle weight (GVW), according to the manufacturer's identification plate. If there have been any modifications to the truck chassis that changes the GVW, documenta-

- tion from the dealer or manufacturer supporting the changes must be provided.
- b. Cab to axle dimension of not less than fifty-six (56) inches.
 - c. Dual rear wheels.
 - d. Commercially manufactured hydraulic boom with a minimum total winching capacity of eight thousand (8,000) pounds.
 - e. Hydraulically operated winch with a minimum total winching capacity of eight thousand (8,000) pounds.
 - f. One hundred (100) feet or three-eighths ($\frac{3}{8}$) inch steel core cable per winch.
 - g. Hydraulically operated wheel lift with retracted rating of not less than three thousand five hundred (3,500) pounds and an extended rating of not less than two thousand (2,000) pounds.
 - h. Tow-sling or tow bar with a safe lift rating of three thousand five hundred (3,500) pounds.
 - i. Two (2) three-eighths ($\frac{3}{8}$) inch high-test safety chains.
 - j. Dolly equipped.
 - k. One (1) motorcycle sling.
 - l. Four (4) way lug wrench.
 - m. One pair of jumper cables.
- (2) *Class A slide back car carrier.* The requirements for a Class A slide back car carrier shall be as follows:
- a. Commercially manufactured unit, with a rated capacity of not less than fourteen thousand five hundred pounds (14,500) pounds, GVW.
 - b. Cab to axle dimension of not less than one hundred two (102) inches.
 - c. Dual rear wheels.
 - d. Seventeen (17) feet or longer hydraulically operated slide back or tilt bed.
 - e. Hydraulically operated winch or winches with a minimum total winching capacity of eight thousand (8,000) pounds.
 - f. Sixty-five (65) feet of three-eighths ($\frac{3}{8}$) inch steel core cable per winch.
 - g. Two (2) tie-down chains, each ten (10) feet in length.
 - h. Four (4) way lug wrench.
 - i. One pair of jumper cables.
- (3) *Class B wrecker.* Requirements for a Class B wrecker shall be as follows:
- a. Commercially manufactured unit, with a rated capacity of not less than eighteen thousand (18,000) pounds, GVW, according to the manufacturer's identification plate. Any modifications to increase GVW must be documented by the dealer or manufacturer.
 - b. Cab to axle dimension of not less than eighty-four (84) inches.
 - c. Commercially manufactured boom with a minimum total capacity of twenty-four thousand (24,000) pounds.
 - d. Commercially manufactured hydraulic boom (winch) with a minimum total winching capacity of twenty-four thousand (24,000) pounds.
 - e. Two hundred (200) feet of one-half-inch ($\frac{1}{2}$) steel core cable for each winch.
 - f. Hydraulically operated under reach with a retracted rating of not less than ten thousand five hundred (10,500) pounds and an extended rating of not less than eight thousand five hundred (8,500) pounds.
 - g. Two (2) five-sixteenth ($\frac{5}{16}$) inch alloy safety chains.
 - h. Tow bar or two (2) sling equipped.
 - i. Two (2) snatch blocks, minimum of eight thousand (8,000) pound capacity for each.
 - j. Brake lock.
 - k. Six (6) to eight (8) feet of extra towing chain with hooks, minimum five thousand (5,000) pound capacity.
 - l. Four (4) way lug wrench.
 - m. One (1) pair of jumper cables.

- (4) *Class B slide back car carrier.* The requirements for a Class B slide back car carrier shall be as follows:
 - a. Commercially manufactured unit, with a rated capacity of not less than twenty thousand (20,000) pounds, GVW, according to the manufacturer's identification plate. Any modifications to increase the GVW must be documented by the dealer or manufacturer.
 - b. Cab to axle dimension of not less than one hundred thirty-eight (138) inches.
 - c. Dual rear wheels.
 - d. Twenty-one (21) feet or longer hydraulically operated slide back or tilt bed.
 - e. Hydraulically operated winch or winches with a minimum total winching capacity of eight thousand (8,000) pounds.
 - f. Sixty-five (65) feet of three-eighths ($\frac{3}{8}$) inch steel core cables.
 - g. Two (2) tie-down chains, each ten (10) feet in length.
 - h. One snatch block, minimum eight thousand (8,000) pound capacity.
 - i. Four (4) way lug wrench.
 - j. One (1) pair of jumper cables.
 - k. Commercial nonrestricted license plate.
- (5) *Class C wrecker.* The requirements of a Class C wrecker are as follows:
 - a. Commercially manufactured unit, with a rated capacity of not less than thirty thousand (30,000) pounds, GVW, according to the manufacturer's identification plate. Any modifications to increase GVW must be documented by the dealer or manufacturer.
 - b. Cab to bogey dimension of not less than one hundred forty-four (144) inches.
 - c. Commercially manufactured boom with a minimum total capacity of fifty thousand (50,000) pounds.
 - d. Hydraulically operated winch or winches with a minimum total winching capacity of fifty thousand (50,000) pounds.
 - e. Two hundred (200) feet of five-eighths ($\frac{5}{8}$) inch steel core cable per winch.
 - f. Hydraulically operated under reach with a retracted rating of not less than twenty-five thousand (25,000) pounds and an extended rating of not less than twelve thousand (12,000) pounds.
 - g. Rear support jacks or outriggers.
 - h. Two (2) one-half ($\frac{1}{2}$) inch alloy safety chains.
 - i. Tow bar or tow-sling equipped.
 - j. External air hookup and minimum hoses to supply air to disabled vehicles.
 - k. Two (2) snatch blocks, minimum twenty-four thousand (24,000) pound capacity for each.
 - l. Spring brake-air lock.
 - m. Six (6) to eight (8) feet of extra towing chain with hooks, minimum four thousand (4,000) pound capacity.
- (6) *Class D wrecker.* The requirements for a Class D wrecker are as follows:
 - a. Commercially manufactured unit, with a rated capacity of not less than fifty-two thousand (52,000) pounds, GVW, according to the manufacturer's identification plate. Any modification to increase GVW must be documented by the dealer or manufacturer.
 - b. Cab to bogey dimension of not less than one hundred eighty (180) inches.
 - c. Commercially manufactured boom with a minimum total capacity of seventy thousand (70,000) pounds.
 - d. Hydraulically operated winch with a minimum total winching capacity of seventy thousand (70,000) pounds.
 - e. Two hundred (200) feet of three-fourths ($\frac{3}{4}$) inch steel core cable per winch.
 - f. Hydraulically operated under reach with a retracted rating or not less than forty-five thousand (45,000) pounds and an extended rating of not less than twelve thousand (12,000) pounds.
 - g. Rear support jacks or outriggers.

- h. Two (2) one-half (½) inch alloy safety chains.
- i. Tow bar or tow-sling equipped.
- j. External air hookup and minimum hoses to supply air to disabled vehicles.
- k. Two (2) snatch blocks, minimum twenty-four thousand (24,000) pound capacity for each.
- l. Spring brake-air lock.
- m. Six (6) to eight (8) feet of extra towing chain with hoods, minimum four thousand (4,000) pound capacity.

(b) *Required equipment for each wrecker.* The required equipment for each wrecker is as follows:

- (1) At least one (1) heavy-duty push broom.
- (2) Floodlights on hoist to illuminate scene at night.
- (3) One (1) shovel.
- (4) One (1) ax.
- (5) One (1) pinch bar, prybar or crowbar.
- (6) Each Class A wrecker shall have dollies.
- (7) Minimum of one (1) four (4) pound CO₂ fire extinguisher or similar approved extinguisher.
- (8) Two (2) red flags at least twelve (12) inches square.
- (9) Six (6) flambeaux or six (6) thirty (30) minute road fuses.
- (10) Six (6) traffic cones (day-glow orange, twenty-four (24) inches high).
- (11) Cutting torch available, if requested by OLPD.
- (12) Amber lights installed on the front, rear and on each side and a revolving beacon light mounted on top of the wrecker.
- (13) Wreckers must be kept in a presentable condition and equipped with fenders.
- (14) All wreckers utilized by the towing company must be painted with the same color and the name of the company and must be printed with visible lettering and an identification number on both sides of the wreckers. Each wrecker

shall be identified by individual number. The city shall be provided with a current list of assigned numbers.

- (15) Suitable storage area for perishables and valuable items obtained or secured from wrecked or impounded vehicles.
 - (16) Minimum of fifty (50) pounds of sand.
 - (17) Two (2) way radio.
 - (18) Proper safety lights.
 - (19) One (1) set of three (3) reflectors.
 - (20) First aid kit, minimum sixteen (16) units.
 - (21) Such other equipment as deemed necessary by the city.
 - (22) City decal.
- (Code 1983, § 13-241; Ord. No. 01-5, § 11, 3-28-2001)

Secs. 13-242—13-270. Reserved.

ARTICLE XIV. LANDLORD PERMIT

Sec. 13-271. Title.

There is hereby created a "Landlord Permit Ordinance in the City of Opa-locka."
(Code 1983, § 13-271; Ord. No. 06-14, § 2, 10-25-2006)

Sec. 13-272. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Certificate of occupancy is a document issued by the building official certifying that he/she reasonably believes a building, or part thereof, and its occupancy to be in compliance with the minimum standards of safety, as set forth in the Florida Building Code, prior to the buildings occupancy and after its inspection and that said building is in conformity with all other applicable laws and regulations.

Dwelling means any building, including, to the extent not inconsistent with state of federal law, a manufactured a home or mobile home, which is wholly or partly used or intended to be used for living, sleeping, cooking and eating, provided that temporary housing

as hereafter defined shall not to be regarded as a dwelling. The term "dwelling" shall be used interchangeably with the term "dwelling unit."

Dwelling unit means any room or group of rooms located within a dwelling and forming a single habitable unit with facilities used or intended to be used for living, sleeping, cooking, and eating. The term "dwelling unit" shall be used interchangeably with the term "dwelling."

City means the City of Opa-locka and/or the city manager, or his/her designee.

Person means any individual, firm, partnership, joint venture, syndicate, or other group or combination acting as a unit, association, corporation, estate, trust, business, trust, trustee, executor, administrator, receiver or other fiduciary.

Tenancy means occupation of a dwelling unit by persons other than the owner and/or the owner's family members.

(Code 1983, § 13-272; Ord. No. 06-14, § 3, 10-25-2006)

Sec. 13-274. Landlord permit required.

Every owner of a dwelling or dwelling unit within the city, is required to apply for an annual landlord permit from the city manager or his/her designee prior to leasing, subleasing, renting or otherwise allowing the occupancy of any dwelling or dwelling unit for the purpose of tenancy of unit to another natural person or other natural persons, whether or not for consideration. In the case of multiple owners of any such dwelling or dwelling unit, it shall be sufficient for any one (1) of the owners to have obtained a permit on the dwelling or unit. The application shall be in writing and on a form provided by the city.

- (1) It is hereby deemed unlawful for any person to lease, sublease, rent or allow the occupancy of any dwelling or dwelling unit for the purpose of tenancy, whether or not for consideration, without first obtaining the required landlord permit.
- (2) No structure, single-family dwelling, two (2) family dwelling, three (3) family dwelling, four (4) family dwelling, multiple-family dwelling, rooming house, dormitory or other dwelling or dwelling unit used for the purpose of tenancy or leasing, subleasing, or rental shall be occupied by anyone other than an owner or

his/her family member, without first obtaining a landlord permit therefor, from the city as may be required herein.

- (3) All apartment buildings within the city with one hundred fifty (150) or more units shall be required to have an onsite property manager who shall live on the premises and be responsible to residents for addressing life, health and safety issues. In addition, armed off-duty police officer security shall be required to protect the life, health, and safety of tenants.

(Code 1983, § 13-274; Ord. No. 06-14, § 4, 10-25-2006; Ord. No. 19-14, § 2, 11-13-2019; Ord. No. 2020-20, § 2, 11-19-2020)

Sec. 13-275. Term of landlord permit and transfer.

(a) No landlord permit shall be issued for more than twelve (12) months, and all permits shall expire on March 31 of each year.

(b) When there is a change of ownership of a dwelling unit occupied for the purpose of tenancy, the application for landlord permit shall be treated as a new application. In such instances the new property owner shall apply for the appropriate permit within thirty (30) calendar days of the transfer of ownership.

(Code 1983, § 13-275; Ord. No. 06-14, § 5, 10-25-2006)

Sec. 13-276. Due date for payment of landlord permit fee.

(a) Permits shall be available for issuance by the city, commencing on March 1 of each year. Both the renewal and renewal fee shall be due on April 1 of each year. If April 1 falls on a weekend or holiday, the fee shall be due and payable on or before the first working day following April 1. Those permits not renewed by April 1 shall be considered delinquent and subject to a delinquency penalty of ten (10) percent for the month of April, plus an additional five (5) percent penalty for each month of delinquency thereafter until paid, provided that the total delinquency penalty shall not exceed twenty-five (25) percent of the fee determined to be due.

(b) Any person leasing, subleasing, renting or otherwise allowing the occupancy of any dwelling or dwelling unit for the purpose of tenancy without first obtaining a landlord permit, if required under this article, shall be subject to a penalty of twenty-five (25) percent

of the fee determined to be due, as well as the fee due, in addition to any other penalty provided by law or ordinance.

(Code 1983, § 13-276; Ord. No. 06-14, § 6, 10-25-2006)

Sec. 13-277. Fees.

Fees to be charged for the purpose of administering this article shall be established as set forth herein.

- (1) The department of buildings and licensing shall collect all fees due and owing to the city as follows:
 - (a) Permit fee per dwelling unit: seventy-five dollars (\$75.00).
 - (b) Renewal of permit: forty-five dollars (\$45.00).
 - (c) Reinspection: twenty-five dollars (\$25.00).

- (2) Inspections of the applicant's premises shall be scheduled at the convenience of the enforcement officer/inspector, landlord, and tenant. If the landlord and/or tenant fails to be present at the time of the scheduled inspection or if the enforcement officer/inspector is denied and/or unable to gain access to the dwelling or dwelling unit to conduct the requisite inspection, the landlord may be subject to being charged a re-inspection fee of twenty-five dollars (\$25.00) per re-inspection, at the discretion of the city. Additionally, after three (3) such attempts and/or denials of access to the premises the city may pursue the revocation of any existing permit of use issued to the subject premises.

(Code 1983, § 13-277; Ord. No. 06-14, § 7, 10-25-2006; Ord. No. 07-14, § 1, 9-12-2007; Ord. No. 11-03, § 2, 3-23-2011)

Sec. 13-278. Application procedures.

(a) No landlord permit shall be issued or granted to any person unless an application is filed with the city manager, or his/her designee, on forms provided for that purpose, disclosing the following:

- (1) The landlord's name, address and telephone number, and any other emergency contact information. Any changes in such information

during the period for which the landlord permit is issued shall be made to the city manager or his/her designee in writing.

- (2) If the applicant is a corporation or partnership, the full name and address of the corporation or partnership and the state of incorporation. Applicant must submit a copy of the articles of incorporation.
- (3) If the property is mortgaged, the name and address of the mortgagee.
- (4) The number of dwelling units and number of bathrooms and bedrooms in each unit.
- (5) Whether the applicant and/or its principals has ever been cited for, or found in violation of, any required housing standards and, if so, the date, jurisdiction, nature of violation and disposition of violation.

(b) All applicants and permits shall be assigned a number, which may be an individual's social security number, a corporation's federal tax number, or such other uniform method of numbering selected by the city manager or his designee. For all applications involving apartment buildings within the city with one hundred fifty (150) or more units, a separate form, to be created by the city, shall be completed by the applicant containing the name of the on-site property manager and an acknowledgment that a daily log will be kept containing the name of the on-site armed off-duty police officer before a permit shall issue.

(c) Statement of accuracy. The application form shall contain the following language:

"The undersigned has carefully reviewed this application and all facts, figures, statements contained in this application are true, correct, and complete. The applicant also acknowledges and understands that the issuance of the city landlord permit is contingent upon a compliance inspection and in conjunction with the issuance of a certificate of occupancy. The undersigned understands that failure to comply with the city's ordinances may result in revocation of said landlord permit."

(d) The applicant shall print and sign his or her name on the application immediately after the statement required in subsection (c) of this section. In the

case of a corporation, an officer shall be required to sign the application in his individual capacity and not solely as a corporate agent.

(e) Dwelling or dwelling units that are required to obtain a certificate of occupancy pursuant to section 110 of the Florida Building Code, must do so prior to the issuance of a landlord permit. The city shall honor any certificate of occupancy issued by the county, provided that the occupancy for which the certificate was issued remains the same.

(f) State license, certification, registration required. All premises regulated by the state must submit a copy of their current state license, certification, and/or registration prior to the issuance of their landlord permit and thereafter each year at time of renewal. Only the state license itself or receipt therefor shall constitute proof of current state license.

(g) Landlord permits shall not be issued unless:

- (1) There has been a site inspection of the dwelling or dwelling unit by the city.
- (2) The city has verified compliance with all applicable laws and regulations and has collected all applicable fees due to the city.

(Code 1983, § 13-278; Ord. No. 06-14, § 8, 10-25-2006; Ord. No. 19-14, § 3, 11-13-2019; Ord. No. 2020-20, § 3, 11-19-2020)

Sec. 13-279. Grounds for denial.

The city shall have the authority to deny an application for a landlord permit on the following grounds:

- (1) That the applicant has failed to disclose or has misrepresented a material fact or any information required by this article in the application.
- (2) That the applicant has failed to obtain a certificate of occupancy as required by section 110 of the Florida Building Code.
- (3) The certificate of occupancy for the location has been denied, suspended or revoked for any reason.
- (4) The issuance of a landlord permit is based on the applicant's compliance with specific provisions of federal, state, city, or county law and the applicant has violated such specific provisions.

- (5) The applicant has violated any provision of this article and has failed or refused to cease or correct the violation within thirty (30) calendar days after notification thereof.
- (6) The premises have been condemned by the local health authority for failure to meet sanitation standards or the local authority has condemned the premises because the premises are unsafe or unfit for human occupancy.
- (7) The applicant is delinquent in the payment of any permit fee imposed under this article, code enforcement lien, special assessment lien and/or any other debt or obligation due to the city under state or local law.
- (8) The applicant fails to allow inspection by the city as required and prescribed herein.
- (9) The applicant has failed to obtain any and all other required licenses, certifications, or permits required by the city.
- (10) Any person, whose application has been denied as provided herein in this article, shall have the right to request a public hearing. Such application shall be governed by the applicable provisions of the city code enforcement ordinance.

(Code 1983, § 13-279; Ord. No. 06-14, § 9, 10-25-2006)

Sec. 13-280. Renewal of landlord permit.

(a) Renewed permits will not be issued until all delinquent payments for any fee imposed under this article, code enforcement lien, special assessment lien and/or any other debt or obligation due to the city under state or local law has been paid in full.

(b) The city shall endeavor to notify all permit holders that their landlord permits are due for renewal. However, if such permit holder does not receive a renewal notification, it is the landlord's responsibility to apply for a renewal of permit prior to April 1, to avoid delinquent charges.

(c) Any current landlord permit may, at the discretion of the city, be renewed for each new permit year without the need for a new application, provided the applicant signs the following certification:

"I, the undersigned hereby, certify that the landlord permit for which I am now applying is one (1) for a renewal of a current landlord permit which is

now in full force and effect. I have not changed the authorized use of the premises, nor have I made any physical or structural changes to the premises and do not plan to make any physical or structural changes to the premises, and the information contained in the original application has not changed; or if there are such changes, the change is/are as follows:"

(d) Any renewal application in which the applicant changes the authorized use of the premises or makes or proposes any physical or structural changes in the premises, shall be reprocessed as if the permit were a new application.

(Code 1983, § 13-280; Ord. No. 06-14, § 10, 10-25-2006)

Sec. 13-281. Duties of landlord.

(a) The applicant for a landlord permit will be required to make the following certifications. Failure to comply with the provisions of either of these certifications shall be grounds for revocation of the permit for that unit.

- (1) Prior to executing a lease for the dwelling or dwelling unit covered by the permit, applicant will provide each tenant with a copy of:
 - a. F.S. ch. 83, pt. II (F.S. § 83.40 et seq.), entitled "Residential Tenancies";
 - b. A copy of this article, entitled "Landlord Permits"; and
 - c. Other informational literature as may be provided by the city.
- (2) In the event the city provides notice to the applicant (property owner or designated agent) of repeated violations of ordinances by a tenant or guests of a tenant of the dwelling or dwelling unit, as provided herein, the applicant will pursue all lawful remedies available under F.S. § 83.56, regarding termination of the rental agreement due to the tenant's failure to comply with F.S. ch. 83, the provisions of the lease or this Code.
- (3) The permit holder shall comply with all applicable laws, including the Americans with Disabilities Act (ADA).

- (4) The permit holder shall provide adequate parking for the tenants, which shall have adequate lighting after dark.

(Code 1983, § 13-281; Ord. No. 06-14, § 11, 10-25-2006)

Sec. 13-282. Duties of city.

The city, among other duties, shall collect all fees and shall issue landlord permits in the name of the city to all persons or businesses qualified under the provisions of this article and shall:

- (1) Determine the eligibility of any applicant for a permit and/or the current status of any permit as prescribed in this article.
- (2) Verify that the applicant is in compliance with all applicable laws and regulations of the city.
- (3) Accept applications for landlord permits and review for completeness.
- (4) Inspect or cause the inspection of the dwelling or dwelling unit for compliance with the applicable minimum housing and/or building codes, identifying any necessary building permits and/or any building code or minimum housing violations, as well as other applicable city regulations.
- (5) Notify any applicant of the acceptance or rejection of his application and shall, upon refusal of any permit, state in writing the reasons therefor and deliver them to the applicant to the applicant.

(Code 1983, § 13-282; Ord. No. 06-14, § 12, 10-25-2006)

Sec. 13-283. Obtaining landlord permit by false statement.

Any landlord permit obtained under the provisions of this article upon a misrepresentation of a material fact shall be deemed null and void and permit holder who thereafter rents or leases any dwelling or dwelling unit under such permit shall be subject to enforcement action for doing same without a landlord permit with the same effect and degree as though no such permit had ever been issued.

(Code 1983, § 13-283; Ord. No. 06-14, § 13, 10-25-2006)

Sec. 13-284. Revocation of landlord permits.

The city is granted the authority and charged with the duty to revoke, refuse to renew or suspend any landlord permit as follows:

- (1) A landlord permit issued under this article may be revoked, suspended, or renewal of said permit refused on the following grounds:
 - a. The permit holder has failed to disclose or has misrepresented a material fact or information required by this article in the application.
 - b. The permit holder does not engage in the rental activity as described in the application or has changed the use without authorization.
 - c. The permit holder allows the premises to be utilized for solicitation for prostitution, pandering, lewd and lascivious behavior, sale distribution or display of obscene materials or conduct, sale or possession of any controlled substances or narcotics, or for any other illegal purpose.
 - d. The certificate of occupancy for the location has been denied, suspended or revoked for any reason.
 - e. The issuance of a landlord permit is based on the applicant's compliance with specific provisions of federal, state, city or county law and the applicant has violated such specific provisions, including, but not limited to, violations of federal, state, or county criminal statutes, code enforcement and/or violations of county and/or city zoning, occupational licensing, and related ordinances.
 - f. The applicant has violated any provision of the ordinance and has failed or refused to cease or correct the violation after notification thereof.
 - g. The premises have been condemned by the local health authority for failure to meet sanitation standards or premises have been condemned by the local authority because the premises are unsafe or unfit for human occupancy.

- h. The applicant is delinquent in the payment of any certification fee imposed under this article code enforcement lien special assessment lien and/or any other debt or obligation due to the city under state or local law.
- i. The applicant has failed to obtain any and all other required licenses, certifications, or permits required by the city.

(2) Procedure.

- a. The city may revoke, refuse to renew or suspend any landlord permit on any grounds set forth herein above. The city shall issue a written notice of intent to revoke, not to renew and/or suspend that shall set forth the grounds upon which the notice is issued, the corrections necessary for compliance, and the permit holder's right to request an administrative hearing in front of the city special magistrate, and that said appeal must be taken within thirty (30) calendar days of the service of said notice.
- b. The thirty (30) calendar days shall be considered a warning period during which the noticed permit holder may come into compliance as required herein. If compliance is achieved within said warning period, and the permit holder notifies the city and requests an inspection, the city shall void the revocation and the permit holder shall dismiss any pending appeal.
- c. The notice of intent to revoke and/or suspend permit shall be sent certified mail, return receipt requested, to the address provided in the application or the last known address of the permit holder. If there is no appeal taken by the permit holder, as provided herein, the landlord permit shall be automatically revoked. Upon revocation of the landlord permit, the permit holder shall have ten (10) calendar days to provide notice to the tenant that same has the option to terminate the lease at any time during the remainder of these lease. The permit holder shall provide copies of all such

documents provided to the tenants concerning the process to the city manager or his/her designee.

- d. The request for hearing before the special magistrate to appeal the revocation notice shall stay any enforcement action and the landlord permit shall remain in effect unless, within the sole discretion of the city, it is determined that the grounds for denial represent an immediate threat to the health, safety, and/or welfare of the public.

(3) Scheduling and conduct of hearing.

- a. At any time prior to the expiration of thirty (30) days following the service of the notice of intent to revoke, not to renew, and/or suspend the landlord permit the permit holder may request in writing that the city schedule a hearing on the basis that he/she wishes to appeal the pending notice. The city in consultation with the city special magistrate shall set the matter down for hearing on the next regularly scheduled hearing date not more than forty-five (45) calendar days from the date of the, minimum of ten (10) days' written notice of the hearing which shall set forth the time and place for the administrative hearing. It shall be responsibility of the permit holder to provide timely written notice of the hearing to all remaining tenants and to provide the city manager or his/her designee with evidence of the notice to tenants.
- b. The hearing shall be conducted by the special magistrate.
- c. The proceedings at the hearing shall be recorded by the city clerk, or his/her designee, and may be transcribed at the expense of the party requesting the transcript.
- d. The hearing shall be conducted in an informal manner and the formal rules relating to evidence and witnesses shall not apply, but fundamental due process shall be observed and shall govern the proceedings. Any relevant evidence shall be admitted if the special magistrate finds

it competent and reliable, regardless of the existence of any common law or statutory rule to the contrary. Any tenants of the permit holder who reside in the affected premises shall have the right to be present at the hearing and to offer brief testimony and evidence, subject to cross-examination and rebuttal.

- e. Each party shall have the right to call and examine witnesses; to introduce exhibits; to cross-examine witnesses on any matter relevant to the issues even though that matter was not covered in the direct examination; to impeach any witnesses regardless of which party first called that witness to testify; and to offer rebuttal evidence.
- f. Requests for continuances will not be considered if not received by the special magistrate at least seven (7) calendar days prior to the date set for the hearing.
- g. The proceedings at the hearing shall be conducted as follows:
 1. The city shall present testimony and evidence.
 2. The permit holder shall then present testimony and evidence.
 3. Each side shall have the right of cross-examination at the conclusion of the other's presentation.
 4. The special magistrate shall have the right of inquiry.
 5. Each party shall have the right to present rebuttal evidence.
 6. Upon completion of the presentations, the hearing shall be closed, and the special magistrate shall analyze the testimony and evidence of record and shall render a decision either affirming or denying the determination of the city, unless the special magistrate deems it necessary to continue the matter for a period of no more than fourteen (14) days, to deliberate and/or for the parties to submit additional in-

formation or evidence if requested to do so, by the special magistrate.

- h. The decision of the special magistrate shall be reduced to writing and copies thereof shall be furnished to the city and permit holder within seven (7) business days of the hearing.

- 1. This decision may be appealed by writ of certiorari within thirty (30) days of such written order to the Circuit Court of the Eleventh Judicial Circuit of the State of Florida, or by such other remedy as may be provided by state law.

- 2. Upon the time period for such appeal having expired, and no such appeal having been filed, or upon the expiration of such appeal procedures resulting in affirmance of the decision of the special magistrate, the permit shall stand automatically and immediately revoked and no permit shall be issued. Upon revocation, the permit holder shall have ten (10) calendar days from the expiration of the time period for such appeal having expired, and no such appeal having been filed to provide notice to the tenant of intent not to renew the tenancy and to provide notice that the tenant has the option to terminate the lease at any time during the remainder of the lease. The permit holder shall provide copies of all documents provided to the tenants to the city manager or his/her designee.

- i. No new application for landlord permit shall be considered by the city until one (1) year after the date of any revocation or non-renewal of the permit holder.

- (4) In addition to other procedures, the city attorney is authorized to file for injunctive relief to abate the violations pursuant to law.

(Code 1983, § 13-284; Ord. No. 06-14, § 14, 10-25-2006)

Sec. 13-285. Right of inspection.

(a) Any person applying for or obtaining a landlord permit shall be subject to an annual inspection of the premises or, upon receipt of a complaint, an inspection shall be performed.

(b) For the purpose of enforcing the provisions of this Code city officials, inspectors, and enforcement officers shall have the right of inspection provided that said inspection shall be reasonable and scheduled at the convenience of the applicant or permit holder, tenant, and the enforcement officer or inspector. The office of the city attorney is hereby authorized to seek inspection warrants as necessary and as authorized by law.

(Code 1983, § 13-285; Ord. No. 06-14, § 15, 10-25-2006)

Sec. 13-286. Penalties for violation.

Any person who violates any section of this article shall be subject to the issuance of a civil citation with a civil penalty in the amount of two hundred fifty dollars (\$250.00) per day. Violations of this article may also be punished by a fine not to exceed five hundred dollars (\$500.00) or imprisonment for a definite term not to exceed sixty (60) days in a municipal detention facility or other facility as authorized by law, or both such fine and imprisonment. Each day any violation or any provision of this Code or of any ordinance shall continue, shall constitute a separate offense.

(Code 1983, § 13-286; Ord. No. 06-14, § 16, 10-25-2006)

Secs. 13-287—13-310. Reserved.

ARTICLE XV. MASSAGE THERAPY ESTABLISHMENTS

Sec. 13-311. Legislative intent.

It is the intent of the city commission to enact by ordinance, in accordance with F.S. ch. 480, local laws providing for regulations and standards for massage therapy establishments that cumulatively work to protect legitimate massage therapy establishments and to eliminate opportunities for illegitimate massage therapy establishments to serve as fronts and/or hosts for human trafficking activities, with the greater intention of preserving the dignity and human rights of all persons in the city.

(Code 1983, § 13-311; Ord. No. 15-26, § 2, 9-9-2015)

Sec. 13-312. Definitions.

The terms of this section shall have the same definitions as provided in F.S. § 480.033, as may be amended from time to time, unless specifically provided otherwise herein. The following words, terms and phrases,

when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Establishment means a site or premises, or portion thereof, wherein a massage therapist practices massage.

Massage means the manipulation of the soft tissues of the human body with the hand, foot, arm, or elbow, whether or not such manipulation is aided by hydrotherapy, including colonic irrigation, or thermal therapy; any electrical or mechanical device; or the application to the human body of a chemical or herbal preparation.

Massage therapist means a person licensed as required by this act, who administers massage for compensation.
(Code 1983, § 13-312; Ord. No. 15-26, § 2, 9-9-2015)

Sec. 13-313. Unlicensed provision of massage unlawful.

Unless expressly exempted, no person may provide massage as part of any business or for any consideration or remuneration in the city, unless the individual is duly licensed under F.S. ch. 480, the individual and/or establishment has obtained an appropriate business tax receipt from the city, and the individual and/or establishment has all other city and county approvals necessary to carry on such a business.
(Code 1983, § 13-313; Ord. No. 15-26, § 2, 9-9-2015)

Sec. 13-314. Requirements for massage establishments.

A permitted massage therapy business shall meet all of the following requirements:

- (1) The massage therapy business (or establishment) shall be licensed and meet all of the requirements set out in state law, including the requirements in F.S. ch. 480, and FAC chapters 64B7-26 and 64B7-30.
- (2) All persons in the massage therapy business or establishment who offer to provide or provide massage as defined in this article and in F.S. § 480.033, shall be licensed by the state and the license shall be in good standing. Each licensed massage therapist shall be in compliance with all requirements of state law, including those statutes and administrative rules referenced in this section.

- (3) The massage therapy business may only operate between the hours of 5:00 a.m. through 12:00 midnight, subject to the exceptions set forth in this article.
- (4) The hours of operation set forth in subsection (3) of this section do not apply to any of the following:
 - a. A massage therapy business located on the premises of a healthcare facility as defined in F.S. § 408.07;
 - b. A health care clinic as defined in F.S. § 400.9905(4);
 - c. A hotel, motel, or bed and breakfast inn, as those terms are defined in F.S. § 509.242;
 - d. A timeshare property as defined in F.S. § 721.05;
 - e. A massage performed by a massage therapist acting under the prescription of a physician or physician assistant licensed under F.S. ch. 458, a chiropractic physician and/or an osteopathic physician licensed under F.S. ch. 459, a podiatric physician licensed under F.S. ch. 461, an advanced registered nurse practitioner licensed under F.S. ch. 464, pt. I (F.S. § 464.001 et seq.), or a dentist licensed under F.S. ch. 466; and
 - f. A massage provided by a licensed massage therapist during a special event wherein the city has approved the operation during the special event.
- (5) No massage establishment or business may be used as a place of residence for any person. Facilities essential to a residence, such as, without limitation, a bedroom or a full kitchen, are prohibited in massage therapy business and/or establishment, except to the extent that bathroom and/or such other facilities are required to maintain state licensure under F.S. ch. 480, and FAC chapters 64B7-26 and 64B7-30. It shall not be a violation for a massage therapy business or establishment to have and to use appliances associated with prohibited facilities that are lawfully and regularly made a part of the regular, legitimate business of a mas-

sage establishment and which are not used in any manner that would violate city, county, and state laws.

(Code 1983, § 13-314; Ord. No. 15-26, § 2, 9-9-2015)

Sec. 13-315. Enforcement and penalties.

(a) It shall be unlawful to operate a massage therapy business or establishment in contravention of this article. A person violating the provisions of this article commits a violation of the city's municipal code and shall be punished as provided in section 1-7. The city shall report any violations of this article by a licensed massage therapist to the state department of professional and business regulation, or such other agency as may correspond to the situation, which may result in additional penalties.

(b) Any premises in which massage is offered or performed, by persons unlicensed by the state or otherwise in violation of the provisions of F.S. ch. 480, and FAC chapters 64B7-26 and 64B7-30, for which discipline may be imposed by the state, shall be in violation of the city Code, and such activity may be declared a nuisance and may be abated and enjoined, as provided in section F.S. § 823.05, and/or such other applicable laws, as a public nuisance.

(Code 1983, § 13-315; Ord. No. 15-26, § 2, 9-9-2015)

Chapter 14

NUISANCES*

Article I. In General

- Sec. 14-1. Authority.
- Sec. 14-2. Findings.
- Sec. 14-3. Establishment of public nuisance abatement program.
- Sec. 14-4. Establishment of public nuisance abatement program trust fund.
- Sec. 14-5. Definitions.
- Sec. 14-6. Nuisance abatement program: supplemental means of enforcement.
- Sec. 14-7. Powers and duties of the nuisance inspector.
- Sec. 14-8. Nuisance abatement procedure.
- Sec. 14-9. Nuisance abatement enforcement procedure.
- Sec. 14-10. Order of abatement.
- Sec. 14-11. Extension of time to comply.
- Sec. 14-12. Failure to comply.
- Sec. 14-13. Emergency order.
- Sec. 14-14. Appeals.
- Sec. 14-15. Attorney's fees.
- Sec. 14-16. Assessment of costs.
- Secs. 14-17, 14-18. Reserved.

Article II. Improperly Displayed Vehicles

- Sec. 14-19. Definitions.
- Sec. 14-20. Prohibition against curbstoning.
- Sec. 14-21. Prohibited display of vehicles for sale or as advertising devices.
- Sec. 14-22. Display of vehicles for sale.
- Sec. 14-23. Incorporations.
- Secs. 14-24—14-30. Reserved.

Article III. Abandoned and Inoperative Vehicles (Junk Cars)

- Sec. 14-31. Definitions.
- Sec. 14-32. Abandoned vehicles and inoperative vehicles declared to be a public nuisance; duty of owners of vehicle and premises.
- Sec. 14-33. Notice to owner of vehicle or land to remove vehicle; failure to comply.
- Sec. 14-34. Request for hearing.
- Sec. 14-35. Notice to owner of vehicle or land to remove vehicle; form.
- Sec. 14-36. Public notice when owners cannot be found.
- Sec. 14-37. Removal of vehicle by city or its agent or contractor; costs of removal.
- Sec. 14-38. Execution of release form by owner.
- Sec. 14-39. Authority of city manager to contract.
- Sec. 14-40. Enforcement authority.
- Secs. 14-41—14-50. Reserved.

Article IV. Registration of Abandoned, Vacant Foreclosure Properties

- Sec. 14-51. Purpose and intent.
- Sec. 14-52. Definitions.
- Sec. 14-53. Applicability and jurisdiction.
- Sec. 14-54. Establishment of a registry.

*County code references—Vessels constituting nuisances, § 7-45 et seq.; lot junk, garbage and trash clearing, ch. 19; sanitary nuisances, ch. 26A.

State law references—Public nuisances, F.S. ch. 833; Municipal Home Rule Powers Act, F.S. ch. 166.

OPA-LOCKA CODE

Sec. 14-55.	Inspection and registration of real property under foreclosure.
Sec. 14-56.	Inspection and registration of real property that is not subject to a mortgage in foreclosure.
Sec. 14-57.	Maintenance requirements.
Sec. 14-58.	Security requirements.
Sec. 14-59.	Provisions supplemental.
Sec. 14-60.	Public nuisance.
Sec. 14-61.	Additional authority.
Sec. 14-62.	Opposing, obstructing enforcement officer; penalty.
Sec. 14-63.	Immunity of enforcement officer.
Sec. 14-64.	Penalties.
Sec. 14-65.	Amendments.

ARTICLE I. IN GENERAL

Section 14-1. Authority.

The City of Opa-Locka ("City"), acting through the City Commission and/or its designee(s), shall have authority pursuant to home rule and police powers under Article VIII, Section 2, of the Florida Constitution to determine and declare the existence of a public nuisance and shall have the authority to provide for the abatement of same. Abatement of such nuisances constitutes a municipal service, which specifically benefits the property upon which the nuisance is abated and all costs incurred by the city in abating such nuisances shall be levied as a special assessment pursuant to Section 170.201, Florida Statutes, and all other applicable laws.

(Ord. No. 2022-21, § 14-1, 12-14-2022)

Section 14-2. Findings.

(a) The City Commission finds that conditions exist within the City of Opa-Locka, which violate public rights, subvert public order, decency, or morals, or cause inconvenience or damage to the public generally. Specifically, the accumulation of underbrush, weeds, rubbish, trash, and grass on improved property; the existence of unsafe dwellings and other structures on improved property; and the creation of pools, ponds, other bodies of water, or conditions which endanger the public health, welfare, property value, or safety of the community, has become an ever-increasing menace in the City and constitutes a nuisance. It shall be unlawful for any person or entity to create a nuisance, or suffer or permit a nuisance to exist, upon property, which is under his, her, or its care, custody or control.

(b) The City acting at the direction of the City Commission shall have the authority to and shall take steps to ensure the abatement of public nuisances in the most aggressive manner provided by the City of Opa-Locka Code of Ordinances or state law. The abatement of such nuisances protects the public health, safety and welfare, enhances the value of the property, involves the furnishing of vital municipal services, and specifically benefits the property on which the nuisance is abated. The cost of any abatement, including administrative fees and costs, shall constitute a special assessment upon the benefited property.

(c) The creation or maintenance of a nuisance is prohibited and the City further finds:

- (1) It shall be unlawful to create, maintain, or cause or permit to be maintained a nuisance in the City. Owners and tenants of lots, buildings, parcels and tracts of land within the city shall keep their property in a safe, clean, and sanitary condition, free from all surplus grass, weeds, rubbish, trash, parked or stored, junked, partially dismantled or abandoned motor or other vehicle or machinery, open storage, debris, dead trees, unsightly or unsanitary matter, all species of weeds or plant growth which are obnoxious or detrimental to the public health and all sources and breeding places of insects and vermin, rodents or other infestation; nor shall they permit or maintain unsanitary and unsightly conditions or nuisances relating to the housing, care and maintenance of domestic animals or pets. In addition, all exterior property shall be kept free from health, fire and accident hazards and shall be maintained and repaired, free from materials, objects, open storage and conditions which shall be unsightly, unsanitary or dangerous. It shall be the duty of all owners and tenants likewise, to fill in all excavations and depressions and remove all containers or objects from the exterior areas of their property which create a health, accident or fire hazard whether or not said areas are used for human habitation. Violation of the provision of this section shall constitute a misdemeanor and punishment therefor shall be in addition to and independent of remedies provided by this chapter. It shall be the duty of all owners and/or occupants of improved or unimproved property to maintain in good condition the nonpaved area abutting the street curb or edge of the paved road known as the swale area. Maintenance of the swale area shall include keeping the area free of holes, hidden dangers or other obstructions and the grass or weeds at a height of no more than twelve (12) inches.
- (2) In addition to the foregoing prohibition and duties, a nuisance shall include, but not be limited to, the following:
 - a. The existence of excessive or unattended growth of weeds, undergrowth or other

dead or living plant life and the accumulation, storage and maintenance of garbage, trash, debris, junk, rubbish, discardable materials and fill, refuse and industrial waste, any parked or stored, junked, partially dismantled or abandoned motor or other vehicle or machinery, or any debris on any lot, tract or parcel of land, improved or unimproved, within the city to the extent and in the manner that such lot, tract or parcel of land is or may reasonably become infested or inhabited by rodents, vermin or wild animals, or may furnish a breeding place for mosquitoes, or threatens or endangers the public health, safety or welfare, or may reasonably cause disease, or adversely affects and impairs the economic welfare of adjacent property, or persons who may be in close proximity thereto; and

- b. The accumulation of trash and garbage and the accumulation or storage and maintenance of junk or trash, except for compost piles, in violation of any provision of the Code of Ordinances of the City or of Miami-Dade County is prohibited and declared to be a nuisance.

(Ord. No. 2022-21, § 14-2, 12-14-2022)

Sec. 14-3. Establishment of public nuisance abatement program.

There is hereby established a City of Opa-Locka Nuisance Abatement Program for the purpose of abating the public nuisances as defined herein. The owner of any property located within the city who creates, suffers, or permits a nuisance to exist upon his or her property, shall be responsible for abating the nuisance and, if the owner fails to abate the nuisance in accordance with the notice given pursuant to this article, the city may abate the nuisance and the city shall be reimbursed for the costs associated with the abatement pursuant to the provisions of this Ordinance for the recovery of those costs.

(Ord. No. 2022-21, § 14-3, 12-14-2022)

Sec. 14-4. Establishment of public nuisance abatement program trust fund.

There is hereby established an interest-bearing public nuisance abatement program trust fund for the de-

posit, maintenance, and distribution of any assessment funds collected or expended as a result of the public nuisance abatement program. The assessment imposed on a benefited property and collected by the city shall include the actual cost of abating the nuisance, the cost of serving notice, the cost of obtaining title information, the cost of lien recordation, the cost of inspections, and all other specifically related costs. Any funds in the trust fund may be used to abate public nuisances on property to which title is not clear, abate nuisances on government property, which may not be assessed, or for other purposes directly related to the abatement of nuisances.

(Ord. No. 2022-21, § 14-4, 12-14-2022)

Sec. 14-5. Definitions.

As used in this Ordinance, the following terms shall have the meanings respectively ascribed to them in this section:

Nuisance means any of the following:

- (1) Any public nuisance known at common law or in equity jurisprudence or as provided by the statutes of the state and ordinances of the city, including this article.
- (2) Any accumulation of rubbish, trash, refuse, junk, and other abandoned materials, metals, lumber, parked or stored, junked, partially dismantled or abandoned motor or other vehicle or machinery, debris, unsightly or unsanitary matter, or other things, which based upon the facts and circumstances the accumulation has become a public nuisance, in fact.
- (3) The existence of excessive accumulation or untended growth of any and all species weeds, grass, undergrowth, brush, or other dead or living plant and/or tree life upon an improved lot, tract or parcel of land, within one hundred (100) feet of any improved property within the city to the extent and in the manner that such improved lot, tract or parcel of land is or may reasonably become infested or inhabited with rodents, vermin, wild animals, or snakes; or may become a breeding place for mosquitoes, insects and vermin, rodents or other infestation or other things; may pose a fire hazard; are obnoxious or detrimental to the public health, threaten or endanger the public health and welfare; pose an attractive nuisance for

children; may reasonably cause disease; or adversely affect and impair the economic welfare of any adjacent property.

- (4) Any "attractive nuisance" or condition which may prove detrimental to the health and safety of children, whether on an improved or unimproved lot, tract or parcel of land including, but not limited to, abandoned wells, shafts, excavations, abandoned appliances, abandoned or inoperable motor vehicles, and any structurally unsound fences or structure, lumber, trash, debris, or vegetation such as poison ivy, oak, or sumac, which may prove a hazard for inquisitive minors.
- (5) Any unfit, unsanitary, abandoned, or unsafe dwelling, structure, or improvement upon real property.
- (6) Any underbrush, weeds, or untended grass which exceeds two (2) feet in height located on improved property.
- (7) The carcasses of animals or fowl not disposed of within a reasonable time after death.
- (8) The pollution of any public well or cistern, stream, lake, canal or body of water by sewage, dead animals, industrial wastes, or other substances.
- (9) Any building, structure or other place or location where any activity in violation of local, state, or federal law is conducted, performed, or maintained, and which under the facts and circumstances surrounding the activity constitutes a public nuisance, in fact.
- (10) Any accumulation of stagnant water or sewage permitted or maintained on any improved lot, premises, or piece of ground.
- (11) Dense smoke, noxious fumes, gas, soot or cinders, in unreasonable quantities.
- (12) Unsheltered storage for a period of 30 days or more within the corporate limits of the city (except in licensed junkyards) of old and unused stripped junk and other automobiles not in good and safe operating condition; and of any other vehicles, machinery, implements, or equipment or personal property of any kind which is no longer safely usable for the pur-

poses for which it was manufactured, is hereby declared to be a nuisance and a danger to public health, safety and welfare.

- (13) For the purpose of this section, the term "nuisance" shall also include any condition or use of premises or of building exteriors which is detrimental to the property of others or which causes or tends to cause substantial diminution in the value of other property in the neighborhood in which the premises are located.
- (14) Such other acts or conditions which are determined and declared by other ordinances or by resolution of city commission to be or constitute public nuisances.

Nuisance inspector means the city administrator or the city administrator's designee.

Refuse means leavings, dregs, rubbish, trash or waste material.

Special magistrate means the special magistrate appointed as needed by the city commission, upon a procurement process or recommendation of the city attorney and city administrator. The special magistrate shall be an active or retired member of the Florida Bar with at least five (5) years of experience. The special magistrate shall not be a city employee but may be compensated at a rate to be determined by the city administrator, subject to approval by the city commission.

Underbrush means any undergrowth or brush conducive to the collection of insects and rodents, which may be or may become a fire hazard, or may negatively impact adjoining property.

Unfit or unsafe dwelling or structure means any dwellings or structure or portions thereof and accessory buildings which are structurally unsafe, unstable, or unsanitary; inadequately provided with exit facilities; constitute a fire hazard; unsuitable or improper for the use or occupancy to which they are put; constitute a hazard to health or safety because of inadequate maintenance, dilapidation, obsolescence or abandonment; dangerous to life or property of the occupant thereof or of the surrounding areas; unfit for human habitation if so intended or used; or otherwise in violation of the housing, building, electrical, plumbing, mechanical, sanitation and fire codes of the city.

Weeds means any plants that are useless, invasive, or injurious to crops, grasses, landscaping scrubs, trees, or flowers.

(Ord. No. 2022-21, § 14-5, 12-14-2022)

Sec. 14-6. Nuisance Abatement Program: Supplemental Means of Enforcement.

(a) Pursuant to Section F.S. §§ 162.13 and 166.0415(7), the nuisance abatement program is a supplemental means of enforcing city codes and ordinances. A public nuisance also constitutes a code violation and the City is not limited to a choice of remedy to ensure compliance with its codes. Code enforcement proceedings are punitive and involve fines levied against the subject property, which may be collected pursuant to F.S. § 162.09. In contrast, nuisance abatement pursuant to this Ordinance is remedial in nature and specifically designed to immediately, or as soon as practicable, bring the property into compliance, thereby protecting the public welfare and directly improving and benefiting the property upon which the nuisance is abated.

(b) In addition to nuisance abatement proceedings, the City may institute code enforcement proceedings against a property for an occurrence of a violation. However, once the subject violation/nuisance is abated, that occurrence of the code violation has ceased and no further code enforcement penalties may accrue for that specific occurrence.

(c) *Repeat nuisance violations.* Following the first notice under this Ordinance to abate a nuisance as described herein, any subsequent violation of the same nuisance classification(s) on the same property within a twelve (12) month period may be abated by the City without further notice so long as the initial notice and order of abatement specifically provides for such subsequent abatement therein. All costs of abating the repeat nuisance, including administrative fees and costs shall constitute a special assessment against said property.

(Ord. No. 2022-21, § 14-6, 12-14-2022)

Sec. 14-7. Powers and duties of the nuisance inspector.

(a) The nuisance inspector (i.e., code enforcement personnel) shall be charged with the duty of administering the applicable standards and reporting non-compliance therewith and in furtherance of this responsibility, the nuisance inspector shall make such

inspections, compile such facts and evidence, and prepare such reports as may be necessary to effectuate the purposes and intent of this article. The nuisance inspector's findings, evidence and reports shall be promptly forwarded to the city attorney's office for review.

(b) The nuisance inspector is hereby authorized to enter upon private property in order to enforce the provisions of this Ordinance and shall be immune from all civil and criminal liability while under the discharge of duties imposed herein. When necessary to obtain such entry, the nuisance inspector may institute appropriate proceedings to obtain a warrant.

(c) In the case of an obvious unfit and unsafe dwelling, structure, or other condition which after inspection is determined to be uninhabited, the nuisance inspector shall cause to be posted a "No Trespassing" sign in an attempt to warn third parties who might be exposed to the risk of danger created by the unsafe condition. However, the city does not assume any liability for harm to third parties caused by the unfit and unsafe dwelling, structure, or condition under any circumstances.

(Ord. No. 2022-21, § 14-7, 12-14-2022)

Sec. 14-8. Nuisance abatement procedure.

(a) *Publication of Annual Notice.* The city commission shall cause to be published in a newspaper regularly published and in general circulation within the city, once a week for two (2) consecutive weeks during the month of October each year hereafter, a notice reading substantially as follows:

"ATTENTION OWNERS, AGENTS, CUSTODIANS, LESSEES AND OCCUPANTS OF REAL PROPERTY WITHIN THE CITY LIMITS OF THE CITY OF OPA-LOCKA:

You are hereby notified that you are required by law to cut and prevent the excessive accumulation of weeds, underbrush, grass or other dead and living plant life upon your improved property; to remove any trash, debris, refuse, inoperable or abandoned vehicles or appliances, or other noxious matter located on any property owned, controlled or occupied by you in the City of Opa-Locka; and also to repair, restore or demolish any unfit or unsafe structure located upon such property; and that upon your failure to do so, the City of Opa-Locka will institute nuisance abatement

proceedings against your property and cause such nuisance to be abated. The cost of such abatement will constitute a special assessment lien against the property on which the nuisance is located. Such special assessment lien shall be coequal with the lien of all state, county, district, and municipal taxes and superior in dignity to mortgages and all other liens, irrespective of the date of the recording of the municipal lien or the date of the recording of any mortgage or any other lien on real property. A failure to pay said lien, even such lien upon homestead property, may result in a loss of title to your property."

(b) A failure to publish this notice as provided for herein shall not invalidate any nuisance abatement proceedings brought pursuant to this article.
(Ord. No. 2022-21, § 14-8, 12-14-2022)

Sec. 14-9. Nuisance abatement enforcement procedure.

(a) If the nuisance inspector determines that a nuisance as defined in this article exists on a parcel of property, the nuisance inspector shall notify the owner and give him or her a reasonable time to correct the nuisance. Should the nuisance continue beyond the time specified for correction, the nuisance inspector shall schedule a hearing before the special magistrate.

(b) Notice of the hearing before the special magistrate shall:

- (1) Identify the property at issue;
- (2) Identify the owner or owners of the property as ascertained by a reasonable search of the property appraiser's records or search of the public records;
- (3) Describe the condition or activity which may constitute a public nuisance;
- (4) Set the date, time, and place for the hearing before the special magistrate at which the owner(s) shall have the opportunity to present such evidence and or argument to the special magistrate as to why said building, structure or condition should not be considered a nuisance and its abatement, removal, or destruction required;
- (5) Include a statement providing that a failure to respond or appear at the hearing shall be

deemed an admission of the existence of a public nuisance on the property at issue which may result in abatement of the nuisance by the city and levy of an assessment against the property pursuant to this article.

(c) Notice of such hearing shall be made by serving a certified copy of said notice upon the owner if the owner is able to be located within the city by the chief law enforcement officer or his designee, or a process server in the manner as near as practicable to the manner in which a summons is served as provided by the laws of the state. In the event that it is determined that the owner is not available for service within the city, service shall be perfected by at least one of the following:

- (1) Mailing, via registered or certified mail, a certified copy of the notice at least ten (10) days prior to the date of the hearing, to the owner(s) and mortgagee(s) of record; or
- (2) Publication of the notice. Such notice shall be published once for four (4) consecutive weeks (four publications being sufficient) in a newspaper of general circulation in Miami-Dade County. The last date of publication shall be at least one day prior to the hearing. The newspaper shall meet such requirements as are prescribed under F.S. Ch. 50 for legal and official advertisements; or
- (3) If the property is in foreclosure proceedings and has been abandoned by the owner(s) as evidenced by the property being vacant and the owner has not provided a forwarding address nor is participating in the foreclosure proceedings by filing an answer or has otherwise been unable to be served; service by certified mail to the owner(s) last address of record and service upon the bank or mortgage company of record in the foreclosure proceedings by certified mail shall be deemed sufficient notice.

(Ord. No. 2022-21, § 14-9, 12-14-2022)

Sec. 14-10. Order of abatement.

(a) The hearing before the special magistrate shall be an evidentiary hearing. At or after such hearing, if no evidence is presented to the contrary, the special magistrate shall issue an order of abatement affirming the existence of the nuisance and requiring the owner

of the property to abate the nuisance condition(s) within a reasonable time to be determined by the special magistrate in the order and provide for abatement of the nuisance by city forces, if such conditions are not corrected as of the time determined by the special magistrate.

(b) The special magistrate may require any or all measures as are reasonably necessary to abate the nuisance. These measures may include, but are not necessarily limited to, the cutting of vegetation, removal of debris or abandoned materials, repair or maintenance of structures, and/or the demolition of unfit or unsafe structures.

(c) At minimum, the order of abatement shall:

- (1) Identify the property;
- (2) Identify the owner or owners of the property and any interested parties upon whom noticed was served;
- (3) Set forth the conditions supporting the finding of a public nuisance and/or specify the sections of this Ordinance upon which the finding of a public nuisance was based;
- (4) Require the abatement of the nuisance within such time as the special magistrate determines to be reasonable considering the nature of the nuisance, the danger to the public, and the amount of work involved to abate the nuisance.
- (5) Include a statement advising that upon the owner's failure to comply with the order of abatement by removing the nuisance, the city may vacate, demolish, or remove, or otherwise abate the nuisance in accordance with the order of abatement and the expense of such performance by the city or its independent contractor shall be charged against the real property as a special assessment and such special assessment lien shall be coequal with the lien of all state, county, district, and municipal taxes and superior in dignity to mortgages and all other liens, irrespective of the date of the recording of the municipal lien or the date of the recording of any mortgage or any other lien or real property. A failure to pay said lien, even such lien upon homestead property, may

be collected pursuant to any manner specified by law and may result in a loss of title to the property.

(d) The order may include notice that any reoccurrence of the nuisance within a twelve (12) month period may be abated by the city without the need for further proceedings and the cost to abate the repeat nuisance shall constitute a special assessment against the property.

(Ord. No. 2022-21, § 14-10, 12-14-2022)

Sec. 14-11. Extension of time to comply.

In the event of extenuating circumstances such that the property owner is unable to complete abatement within the time provided within the order, the owner may file a written request before the special magistrate for an extension of time to comply stating the reasons the owner has been unable to complete compliance. If reasonable grounds are shown, the special magistrate is authorized to extend the time in which to complete compliance with the original order.

(Ord. No. 2022-21, § 14-11, 12-14-2022)

Sec. 14-12. Failure to comply.

If the owner or other parties in interest fail to comply with an order made pursuant to the provisions of this Ordinance within the specified time, the city is authorized to vacate, demolish, remove, or otherwise abate the nuisance in accordance with such order, either with city forces or by an independent contractor and neither shall be held liable for trespass, conversion, or other damages while abating the nuisance in a reasonable manner.

(Ord. No. 2022-21, § 14-12, 12-14-2022)

Sec. 14-13. Emergency order.

Whenever the city commission determines that any nuisance in violation of this article is an immediate threat to life, limb, health, welfare, or property, the city commission may issue an emergency order and immediately terminate or abate the nuisance.

(Ord. No. 2022-21, § 14-13, 12-14-2022)

Sec. 14-14. Appeals.

Any person aggrieved by any order entered under this Ordinance may file an appeal to the Circuit Court of Miami-Dade County. Such appeal shall not be a

hearing *de novo* but shall be limited to appellate review of the record created before special magistrate. The appeal shall be filed within thirty (30) days of the rendition of the final order to be appealed.
(Ord. No. 2022-21, § 14-14, 12-14-2022)

Sec. 14-15. Attorney's fees.

The prevailing party in any legal action, appeal, or proceeding instituted to contest any city commission or nuisance abatement order or action pursuant to this Ordinance shall be entitled to reasonable attorneys' fees and costs.
(Ord. No. 2022-21, § 14-15, 12-14-2022)

Sec. 14-16. Assessment of costs.

(a) The city commission shall assess the entire cost of abatement action by the city upon the affected property as a special assessment, and such assessment, when made, shall constitute a lien upon such property by the city. The lien of the city shall encompass, in addition to the abatement cost for the vacation or removal of the facility, all administrative, legal, postal and publication expenses, as well as all other direct or indirect costs associated therewith. The lien upon the property shall be superior to all others except taxes as previously set forth herein.

(b) The city shall file such lien in the Official Records of Miami-Dade County showing the nature of such lien, the amount thereof, an accurate legal description of the property, including the street address, which lien shall date from the date of the filing and recite the owners of the property. Such municipal lien shall bear interest from such date at the rate of eight (8%) percent per annum. However, the assessment may be paid without interest at any time within thirty (30) days after the improvement is completed. The City may enforce the lien upon the real property of the owner, as provided for in F.S. Ch. 173, as amended from time to time.

(c) In the alternative, the city may collect all such liens assessed pursuant to Section 197.3632, Florida Statutes, as authorized pursuant to F.S. § 197.3632(9).
(Ord. No. 2022-21, § 14-16, 12-14-2022)

Secs. 14-17, 14-18. Reserved.

ARTICLE II. IMPROPERLY DISPLAYED VEHICLES

Sec. 14-19. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Person means any natural person, firm, partnership, association, corporation or other entity of any kind whatsoever.

Tow means to haul, draw or pull along a vehicle by means of another vehicle equipped with booms, car carriers, winches or similar equipment.

Vehicle means an automobile, truck, bus, trailer, semitrailer, truck tractor semitrailer combination, recreational unit primarily designed as temporary living quarters which either has its own motive power or is mounted on or drawn by another vehicle, or any other mobile item using wheels and being operated on the roads of the city, which is used to transport persons or property and is propelled by power other than muscular power; provided, however, that the term "vehicle" does not include bicycles, mopeds, traction engines, road rollers or vehicles which run only upon a track.
(Code 1983, § 14-19; Ord. No. 16-03, § 2, 4-13-2016)

Sec. 14-20. Prohibition against curbstoning.

(a) No person shall park a vehicle upon a public or private street, public right-of-way, parking lot, vacant lot, or private property, for the principal purpose of displaying such vehicle for sale or rental in violation of the zoning provisions of the city or the applicable licensing provisions of state law, unless said property is properly zoned for that type of business at that location and the vendor is duly licensed to transact such business at that location.

(b) Police officers, code enforcement officers, or such other persons designated by the city manager, shall be authorized to have the vehicle towed to a garage designated or maintained by the city or a city contracted towing company.

(c) All violations of this section shall be punishable by a fine of one hundred dollars (\$100.00) for the first vehicle on a first offense and five hundred dollars (\$500.00) per vehicle for each additional vehicle and

any repeat violation of this section. Any vehicle in violation of this section shall be towed if not removed immediately by the owner. (Vehicle owners will be responsible for all fines, towing fees, storage fees, and any administrative and enforcement fees that result from the enforcement of this section.) The city may lien the vehicle and any real property owned by the violator in the city until all fines, enforcement costs, and administrative costs are paid by the violator.

(d) The vehicle is to remain impounded until the fine is paid, and the towing agency has completed Form HSMV 84060 (authorization to release vehicle after curbstoning violation). The towing agency must require the person paying the fine to provide proof of ownership. If the person paying the fine is not the owner of the impounded vehicle, he/she must enter his/her name on the vehicle's title as the purchaser. (Code 1983, § 14-20; Ord. No. 16-03, § 2, 4-13-2016)

Sec. 14-21. Prohibited display of vehicles for sale or as advertising devices.

(a) No vehicle shall be displayed for sale in a business or commercial premises unless the parcel has a zoning certificate of use for the sale of new or used vehicles.

(b) No vehicle, trailer, or other mobile article shall be allowed to be used solely as an advertising device in a parking lot or nearby right-of-way. Any vehicle, trailer or other mobile article that remains in the same parked location for more than seventy-two (72) hours and that contains commercial advertising or that meets the junk criteria in this chapter shall be a prima facie violation of this subsection.

(c) All violations of this section shall be punishable by a civil violation notice in the amount of one hundred dollars (\$100.00) for the first vehicle on a first offense and five hundred dollars (\$500.00) per vehicle for each additional vehicle and any repeat violation of this section. The city may place a lien on the vehicle and any real property owned by the violator in the city until all fines, enforcement costs, and administrative costs are paid by the violator. Any vehicle in violation of this section shall be towed if not removed by the owner. Vehicle owners shall be responsible for all fines, towing fees, storage fees, and any administrative and enforcement fees that result from the enforcement of this section.

(Code 1983, § 14-21; Ord. No. 16-03, § 2, 4-13-2016)

Sec. 14-22. Display of vehicles for sale.

(a) No vehicle or boat shall be displayed for sale in a residential district unless affixed to the vehicle is a valid state license plate issued for the vehicle, except that a vehicle affixed with a lost tag may be displayed for a period not to exceed ten (10) days. A vehicle with a lost tag shall have the vehicle registration affixed to the rear window so as to be easily readable by law enforcement and code enforcement officials. As used in this section, the term "vehicle" shall include an automobile, motorcycle, truck, or recreational vehicle, a utility trailer, or a trailer for transporting off-highway vehicles or boats.

(b) In residential districts no more than one (1) vehicle may be displayed for sale at any one (1) time on any one (1) premises and no more than two (2) vehicles may be displayed for sale at any one (1) premises for any one (1) calendar year, and the display shall only be permitted at the current address of the registered owner of the vehicle offered for sale on the subject premises.

(c) No more than one (1) sign shall be placed on the vehicle offered for sale. Such sign shall not exceed eight (8) inches by twelve (12) inches.

(d) All violations of this section shall be punishable by a fine of one hundred dollars (\$100.00) for the first vehicle on a first offense and five hundred dollars (\$500.00) per vehicle for each additional vehicle and any repeat violation of this section. The city may lien the vehicle and any real property owned by the violator in the city until all fines, enforcement costs, and administrative costs are paid by the violator. Any vehicle in violation of this section shall be towed if not removed immediately by the owner. (Vehicle owners will be responsible for all fines, towing fees, storage fees, and any administrative and enforcement fees that result from the enforcement of this section.) (Code 1983, § 14-22; Ord. No. 16-03, § 2, 4-13-2016)

Sec. 14-23. Incorporations.

The provisions of F.S. § 316.1951 are hereby incorporated. (Code 1983, § 14-23; Ord. No. 16-03, § 2, 4-13-2016)

Secs. 14-24—14-30. Reserved.

ARTICLE III. ABANDONED AND INOPERATIVE VEHICLES (JUNK CARS)

Sec. 14-31. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them by this section, except where the context clearly indicates a different meaning:

Abandoned vehicle means a vehicle which is left exposed to the elements and whose owner cannot be located within reasonable inquiry.

In view of the general public means not within a completed enclosed building structure or designated storage area, which includes a wall to screen stored inoperative vehicles from public view, and also means viewable from any adjoining or neighboring property.

Inoperative vehicle means a vehicle which is incapable of operation by its own power, or which is incapable of lawful operation on the public highways or public waterways pursuant to state and local law.

Private property means any real property within the city which is privately owned.

Serious threat to the public health, safety, and welfare includes, but is not limited to, any abandoned or inoperative vehicle that has a window in a rolled-down position, a window broken out, a door missing, the hood or trunk lid in an up position or missing, the presence of any metal or sharp object protruding from the vehicle, or that is lifted up from the ground in an unstable manner.

Vehicle means any device by which any person or property is or may be transported or drawn upon a highway or upon water, including, but not limited to, a motor vehicle, mobile home, trailer, camper, boat and boat trailer.

(Code 1983, § 14-31; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-32. Abandoned vehicles and inoperative vehicles declared to be a public nuisance; duty of owners of vehicle and premises.

(a) The existence of an abandoned or inoperative vehicle on private property in view of the general public is hereby declared to be a public nuisance. The existence of an abandoned or inoperative vehicle in view of the general public is detrimental to the health, safety and welfare of the inhabitants of the city, and is a

violation of the aesthetic standards of the city. Furthermore, certain abandoned or inoperative vehicles may constitute a serious threat to the public health, safety and welfare.

(b) It shall be the duty of the registered owner of such vehicle, as well as the duty of the owner of the private property or lessee or other person in possession of the private property upon which such vehicle is located, to remove the vehicle from the view of the general public.

(c) This section shall not apply to a vehicle in an enclosed structure or private property under the control of a business which utilizes such vehicles in the ordinary course of its business and is authorized to do so by business tax receipt, certificate of use and zoning approval, if required, issued by the city. A vehicle covered with a car cover does not constitute enclosure of a vehicle.

(Code 1983, § 14-32; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-33. Notice to owner of vehicle or land to remove vehicle; failure to comply.

(a) It shall be the duty of the code enforcement officer or police officer to place a written notice of violation on the offending vehicle, make every reasonable effort to ascertain the registered owner of the vehicle and the owner of the property, and give written notice to the registered owner of the motor vehicle and the owner or lessee of private land upon which such motor vehicles or parts thereof is situated, giving notice that such vehicle or parts thereof violates this article, and requesting removal within ten (10) days from the date of service of the notice, or that, within ten (10) days of the date of service of the notice, application be made for a building permit for a completely enclosed building structure or designated storage area to screen stored inoperative vehicles from public view, unless a request for a hearing is filed within five (5) days from the date of service of such notice. Such notice may be given by personal service, or by regular and certified mail, with a return receipt requested.

(b) Written notice required by this section shall be deemed to have been given, i.e., constructive notice, upon evidence that written notice was posted on the motor vehicle and mailed via certified and regular mail to the owner of the motor vehicle and to the owner or lessee of the private property at the respective owner's

or lessee's current address as listed on the tax collector's records and/or as appearing on the certificate of title for the vehicle.

(c) Enforcement procedures and penalties for failure to comply with subsection (a) of this section are set forth in sections 2-554 through 2-556.
(Code 1983, § 14-33; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-34. Request for hearing.

(a) Within the five (5) days from the notice provided in section 14-33, the owner or lessee of the property, or the owner of the vehicle, may request a hearing to contest the notice of violation by filing, with the secretary to the code enforcement special magistrate, his request for a hearing before the code enforcement special magistrate.

(b) The procedures to be followed for such hearings shall be the same as those set forth under section 2-555 except that the hearing must be requested within five (5) days.
(Code 1983, § 14-34; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-35. Notice to owner of vehicle or land to remove vehicle; form.

The notice provided for in section 14-33 hereof shall be in substantially the following form:

**NOTICE TO THE OWNER AND ALL PERSONS
INTERESTED IN THE ATTACHED VEHICLE**

To: _____

Address: _____

Vehicle description/License plate #:

Location: (Property on which the vehicle is located)

As the owner of record according to the Miami-Dade County Tax Collector's office of the above-described property, your attention is called to the inoperative and/or abandoned vehicle described above, which is located on this property and which has been found to be in violation of chapter 14, article III of the Opa-locka City Code.

You must either: (1) remove or enclose the above-described vehicle within ten (10) days; or (2) obtain

a building permit to enclose the vehicle and provide the code enforcement officer with a copy of the permit within ten (10) days; or (3) request a hearing before the code enforcement special magistrate through the special magistrate secretary within five (5) days of the date of this notice. If you fail to act, the city may remove the vehicle and assess the costs of removal as a lien against this property.

Your prompt attention and cooperation would be appreciated. If there are any questions, please call Code Inspector _____ at phone number: _____.

Date: ____/____/____

Code Inspector _____
(Code 1983, § 14-35; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-36. Public notice when owners cannot be found.

(a) After diligent search and inquiry by the building official or his designee, no written notice as set forth in section 14-33 shall be required where the registered owner of such vehicle or parts thereof or the owner of the private property or parts thereof or the owner of the private property or lessee or other person in possession of private property upon which such vehicle or parts thereof is located cannot be found or determined; but instead a public notice shall be posted by the city clerk on the city hall bulletin board for five (5) consecutive days.

(b) Such public notice shall include among other information, "Public Notice; To Whom It May Concern," date, legal description of the situs, address of such location, a full description of the motor vehicle or parts thereof; when available, the last known owner of the vehicle or owner of the realty or both or the last known person in possession of the situs, and the date from or approximate period of time during which such nuisance has existed.

(Code 1983, § 14-36; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-37. Removal of vehicle by city or its agent or contractor; costs of removal.

If any of the persons described in section 14-32 fails, neglects or refuses to remove the abandoned or inoperative vehicle or parts thereof, or house the same in a building, as provided in such section, or abate such nuisance after the required notice and such nuisance

constitutes a serious threat to the public health, safety, and welfare, the city, its agent or contractor may remove the vehicle or parts thereof, and the costs thereof shall be charged and billed to the registered owner of such vehicle or parts thereof or the owner of the private property or lessee or other person in possession of private property upon which such vehicle or parts thereof is located. Unless payment is made within thirty (30) days of such billing, the city commission may, by the adoption of a resolution levying such charges, assess against the property a lien in the amount of the charges outstanding, or such lesser amount as the city commission shall decide is just and fair. Assessment liens levied in this manner shall be filed in the office of the city clerk and in the public records of the county as a lien against the property and shall be prior in dignity to all other liens against the property, save and except a lien for taxes. Such assessments shall bear interest at the legal rate, and such liens may be foreclosed in the same manner in which mortgage liens are foreclosed. Prior to removal of any vehicle, the administration shall consult with the city attorney's office.
(Code 1983, § 14-37; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-38. Execution of release form by owner.

Any person who has violated the provisions of section 14-32 may execute a release form provided by the city noting agreement and authorizing removal of the vehicle without objection.
(Code 1983, § 14-38; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-39. Authority of city manager to contract.

The city manager is authorized to enter into a written agreement with a duly licensed junk dealer for the removal of abandoned or inoperative vehicles or parts thereof under this article, wherein the consideration for the services of such junk dealer shall be the vehicle or parts thereof at no expense to the city. Such junk dealer, before entering into contract with the city or being appointed its agent or contractor in reference to sections 14-37 and 14-38, shall furnish evidence of public liability insurance in an amount determined by the city manager. If a qualified and suitable junk dealer is not available to contract with or act as the city's agent or contractor, as provided in this section, the city manager is authorized to contract with a bidder who offers the

best value to the city to provide for the removal from private property of abandoned or inoperative vehicles or parts thereof under section 14-37.
(Code 1983, § 14-39; Ord. No. 12-05, § 2, 3-14-2012)

Sec. 14-40. Enforcement authority.

Each police officer or code enforcement inspector of the city may issue a notice of violation to any person failing or refusing to comply with any section of this article, and may enter any building or upon any premises, private or public, for the purpose of making inspection, upon presentation of proper credentials in connection therewith.
(Code 1983, § 14-40; Ord. No. 12-05, § 2, 3-14-2012)

Secs. 14-41—14-50. Reserved.

**ARTICLE IV. REGISTRATION OF
ABANDONED, VACANT FORECLOSURE
PROPERTIES**

Sec. 14-51. Purpose and intent.

It is the purpose and intent of the city commission to establish a process to address the deterioration, crime, and decline in value of City of Opa-locka neighborhoods caused by property with foreclosing or foreclosed mortgages located within the city, and to identify, regulate, limit and reduce the number of these properties located within the city. It has been determined that owner-occupied structures are generally better maintained when compared to vacant structures, even with a diligent off-site property owner. Vacant structures or structures owned by individuals who are economically strained and unable to meet their mortgage obligations are often not properly or diligently maintained, which contribute to blight, declined property values, and have a negative impact on social perception of the residential areas where they are located. It is the city commission's further intent to establish a registration program as a mechanism to help protect neighborhoods from becoming blighted through the lack of adequate maintenance of properties that are in foreclosure or foreclosed, and to provide a mechanism to avert foreclosure actions through timely intervention, education, or counseling of property owners.
(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-52. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Abandoned personal property means wrecked or derelict property which has been left abandoned and unprotected from the elements and shall include wrecked, inoperative or partially machinery, dismantled motor vehicles, trailers, boats, refrigerators, washing machines, plumbing fixtures, furniture and any other similar article which has been left abandoned and unprotected from the elements.

Accessible property means a property that is accessible through a comprised/breached gate, fence, wall, etc.

Accessible structure means a structure/building that is unsecured and/or breached in such a way as to allow access to the interior space by unauthorized persons.

Default shall mean that the mortgagor has not complied with the terms of the mortgage on the property, or the promissory note, or other evidence of the debt, referred to in the mortgage or deed of trust.

Enforcement officer shall mean any law enforcement officer, building official, zoning inspector, code enforcement officer, fire inspector, building inspector, or other person authorized by the City of Opa-locka to enforce the applicable code(s).

Evidence of vacancy shall mean any condition that on its own, or combined with other conditions present, would lead a reasonable person to believe that the property is vacant. Such conditions may include, but are not limited to: overgrown and/or dead vegetation; past due utility notices and/or disconnected utilities; accumulation of trash junk or debris; abandoned vehicles, auto parts and/or materials; the absence of furnishings and/or personal items consistent with habitation or occupancy; the presence of an unsanitary, stagnant swimming pool; the accumulation of newspapers, circulars, flyers and/or mail; statements by neighbors, passers-by, delivery agents or government agents; and/or the presence of boards over doors, windows or other openings in violation of applicable code.

Foreclosure or foreclosure action shall mean the process by which a property, placed as security for a real estate loan, is sold at public sale to satisfy the debt if the

borrower defaults. A foreclosure or foreclosure action is deemed commenced upon a mortgagee's filing of a notice of lis pendens or similar evidence of default.

Law enforcement shall mean City of Opa-locka Police or other officially recognized county, state or federal law enforcement organization recognized by the city.

Mortgagee shall mean the creditor, including but not limited to, trustees; mortgage servicing companies; lenders in a mortgage agreement; any agent, servant, or employee of the creditor; any successor in interest; or any assignee of the creditor's rights, interests or obligations under the mortgage agreement; or any other person or entity with the legal right to foreclose on the real property, excluding governmental entities as the assignee or owner.

Nominal salvage value means the value of an article of abandoned or derelict property which a reasonably prudent person would believe the fair market value of the property would be nominally greater than the costs of salvage including the removal, transportation, storage, and sale of same. This definition shall take into consideration its useful life, earning capacity or replacement cost, less depreciation and items of general or special depreciation.

Owner shall mean every person, entity, or mortgagee, who alone or severally with others, has legal or equitable title to any real property as defined by this article; has legal care, charge, or control of any such property; is in possession or control of any such property; and/or is vested with possession or control of any such property. The property manager shall not be considered the owner.

Property manager shall mean any party designated by the owner as responsible for inspecting, maintaining and securing the property as required in this article.

Real property shall mean any residential or commercial land and/or buildings, leasehold improvements and anything affixed to the land, or portion thereof identified by a property parcel identification number, located in the City of Opa-locka limits.

Registrable property shall mean:

- (a) Any real property located in the city, whether vacant or occupied, that is (i) subject of a foreclosure action; (ii) has been the subject of a foreclosure action and a judgment has been

entered but the property has not yet been sold; (iii) has been the subject of a foreclosure sale and title was transferred to the mortgagee or an affiliate entity of the mortgagee; or (iv) transferred to the mortgagee or an affiliated entity of the mortgagee under a deed in lieu of foreclosure or foreclosure sale. The designation of a real property as a registrable property pursuant to this subsection shall remain in place until such time as the property is sold to a non-related bona fide purchaser in an arm's length transaction or the foreclosure action has been dismissed; or

- (b) Any property that is vacant for more than thirty (30) days or any cancellation of utility or service, whichever occurs first.

Registry shall mean a web-based electronic database of searchable real property records, used by the city to allow mortgagees and owners the opportunity to register properties and pay applicable fees as required in this article.

Semi-annual registration shall mean six (6) months from the date of the first action that requires registration, as determined by the city, or its designee, and every subsequent six (6) months. The date of the initial registration may be different than the date of the first action that required registration.

Utilities and services shall mean any utility and/or service that is essential for a building to be habitable and/or perform a service necessary to comply with all city codes. This includes, but is not limited to, electrical, gas, water, sewer, trash service, lawn maintenance, and pool maintenance.

Vacant shall mean any parcel of land in the city that contains any building or structure to be used as a residence or for commercial or industrial purposes that is not lawfully occupied or used for its accustomed and ordinary purpose, as evidenced by conditions set forth in the definition of "evidence of vacancy." In the case of the use of residential property, "used for its accustomed and ordinary purpose" means as a place of abode. (Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-53. Applicability and jurisdiction.

This article applies to all real property within the City of Opa-locka.

- (1) *Applicability.* This section shall be considered cumulative and not superseding or subject to

any other law or provision for same, but shall rather be an additional remedy available to the city above and beyond any other state, county and/or local provisions for same.

- (2) *Penalties.* Any person who shall violate the provisions of this article shall, upon conviction, be punished as provided in this section.

- (3) *Placement of abandoned personal property prohibited.*

- a. It shall be unlawful for any person to abandon personal property upon private property:

- 1. Without receiving the property owner's consent; or
- 2. In violation of this or any other applicable law, ordinance or regulation.

- b. Nothing in this section shall be deemed to apply to abandoned personal property authorized to be left on private business property properly operated, licensed and zoned in the city for the purpose of accepting abandoned property.

- (4) *Public nuisance.* All abandoned personal property and foreclosure real property is hereby declared to be a public nuisance, the abatement of which is hereby declared to be necessary for the health, welfare and safety of the residents of the city.

- (5) *Notification procedure.* When an enforcement officer ascertains that an article of personal property having nominal salvage value lies abandoned or derelict upon private property, that officer shall:

- a. Cause a notice to be placed upon such abandoned property in the substantially following form:

NOTICE TO THE OWNER AND ALL PERSONS INTERESTED IN THE ATTACHED PROPERTY THIS PROPERTY, TO WIT: (setting forth brief description)

LOCATED AT: (setting forth brief description of location) is:

IMPROPERLY STORED AND IS IN VIOLATION OF (setting forth ordinance or violation violated)

AND MUST BE REMOVED WITHIN TEN (10) DAYS FROM THE DATE OF THIS NOTICE; OTHERWISE IT SHALL BE PRESUMED TO BE ABANDONED PROPERTY AND WILL BE REMOVED AND SOLD OR DESTROYED BY ORDER OF THE GOVERNING BODY OF THE CITY OF OPA-LOCKA, FLORIDA

DATED THIS: (setting forth the date of posting of notice)

SIGNED: (setting forth name, title, address and telephone number of enforcement officer)

Such notice shall be not less than eight (8) inches by ten (10) inches and be sufficiently weatherproof to withstand normal exposure to the elements.

- b. The enforcement officer shall also make reasonable effort to ascertain the name and address of the owner of the abandoned property and, if such address is reasonably available, the officer shall mail by certified mail a copy of the notice to the owner on or before the date of posting the above-described notice on the abandoned personal property.
- c. The enforcement officer shall mail, by certified mail, a copy of the above-described notice to the owner of the real property upon which the abandoned personal property is located, as shown by the real estate tax records used by the county, on or before the date of posting such notice.

(6) *Removal of abandoned personal property.*

- a. If at the end of ten (10) days after posting notice under this article, the owner or any person interested in such abandoned personal property described in the notice has not removed same, the enforcement officer may cause the article of

abandoned personal property to be removed and destroyed or sold, and the salvage value, if any, of such article shall be retained by the local government to be applied against the cost of removal and destruction thereof.

- b. Before sale or destruction, as determined by the city, any owner or lienholder of the abandoned personal property shall be permitted to regain possession thereof upon proof of ownership or lien rights entitling the lienholder to possession, upon payment of storage charges and all expenses incurred by the enforcement officer and/or the city.

(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-54. Establishment of a registry.

The city, or its designee, shall establish a registry cataloging each registrable property within the city containing the information required by this article.

(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-55. Inspection and registration of real property under foreclosure.

(a) Any mortgagee who holds a mortgage on real property located within the city shall perform an inspection of the property that upon default by the mortgagor as evidenced by the filing of a foreclosure action, lis pendens, or notice of trustee's sale. Inspection means a careful examination of the property to determine occupancy and if it is in compliance with all applicable building, maintenance, and housing codes.

(b) Property inspected pursuant to subsection (a) above that remains in foreclosure shall be inspected every thirty (30) days by the mortgagee or mortgagee's designee. If an inspection shows a change in the property's occupancy status the mortgagee shall, within ten (10) days of that inspection, update the occupancy status of the property registration.

(c) Within ten (10) days of the date any mortgagee files a foreclosure action, the mortgagee shall register the real property with the city registry, and, at the time of registration, indicate whether the property is vacant, and if so shall designate in writing a property manager to inspect, maintain, and secure the real property subject to the mortgage under a foreclosure action. A

separate registration is required for each property under a foreclosure action, regardless of whether it is occupied or vacant.

- (1) Mortgagees who have existing registrable property on the effective date of the ordinance from which this article is derived have thirty (30) calendar days from the effective date to register the property as indicated in this section. A separate registration is required for each property, whether it is vacant or occupied.

(d) Registration pursuant to this section shall contain the name of the mortgagee and the mortgage servicer, the direct mailing address of both parties, a direct contact name and telephone number for both parties, a facsimile number and/or e-mail address for both parties, the folio or tax number, and the name and twenty-four-hour contact telephone number of the property management company responsible for the security and maintenance of the property.

(e) At the time of initial registration each registrant shall pay a non-refundable semi-annual registration fee of three hundred dollars (\$300.00) for each property. Subsequent non-refundable semi-annual renewal registrations of properties and fees in the amount of three hundred dollars (\$300.00) are due within ten (10) days of the expiration of the previous registration. Said fees shall be used to offset the costs of: (1) registration and registration enforcement, (2) code enforcement and mitigation related to defaulted properties, (3) post-closing counseling and foreclosure intervention limited to owner-occupied persons in default, which may not include cash and mortgage modification assistance, and (4) for any related purposes as may be adopted in the policy set forth in this article. Said fees shall be deposited to a special account in the city's department dedicated to the cost of implementation and enforcement of this article, and fulfilling the purpose and intent of this article. None of the funds provided for in this section shall be utilized for the legal defense of foreclosure actions.

(f) If the mortgage and/or servicing on a registrable property is sold or transferred, the new mortgagee/servicer is subject to all the terms of this article. Within ten (10) days of the transfer, the new mortgagee shall register the property, if not already registered, or update the existing registration. The previous mortgagee(s)/servicer(s) will not be released from the responsibility

of paying all previous unpaid fees, fines, and penalties accrued during their involvement with the registrable property.

(g) If the mortgagee sells or transfers the registrable property in a non-arm's length transaction to a related entity or person, the transferee is subject to all the terms of this article. Within ten (10) days of the transfer, the transferee shall register the property or update the existing registration. Any and all previous unpaid fees, fines, and penalties, regardless of who the mortgagee was at the time registration was required, including, but not limited to, unregistered periods during the foreclosure process, are the responsibility of the transferee and are due and payable with the updated registration. The previous mortgagee will not be released from the responsibility of paying all previous unpaid fees, fines, and penalties accrued during that mortgagee's involvement with the foreclosed property.

(h) If the foreclosing or foreclosed property is not registered, or the registration fee is not paid within thirty (30) days of when the registration or renewal is required pursuant to this section, a late fee equivalent to ten (10) percent of the semi-annual registration fee shall be charged for every thirty-day period, or portion thereof, the property is not registered and shall be due and payable with the registration.

(i) This section shall also apply to properties that have been the subject of a foreclosure sale where title is transferred to the mortgagee as well as any properties transferred to the mortgagee under a deed in lieu of foreclosure or by any other legal means.

(j) Properties subject to this section shall remain subject to the semi-annual registration requirement, and the inspection, security, and maintenance standards of this section as long as the property remains registrable property.

(k) Any person or corporation that has registered a property under this section must report any change of information contained in the registration within ten (10) days of the change to the city.

(l) Failure of the mortgagee and/or property owner of record to properly register or to modify the registration to reflect a change of circumstances as required by this article is a violation of this article and shall be subject to enforcement by any of the enforcement means available to the city.

(m) If any property is in violation of this article the city may take the necessary action to ensure compliance with and/or place a lien on the property for the cost of the outstanding obligation and any additional cost incurred to the property into compliance. (Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-56. Inspection and registration of real property that is not subject to a mortgage in foreclosure.

(a) Any owner of vacant property, as defined in this article, located within the city shall within ten (10) days after the property becomes vacant, register the real property with the city registry. Structures that are vacant property at the time of the adoption of the ordinance from which this article is derived must register within fifteen (15) days of the date the ordinance from which this article is derived takes effect.

(b) Initial registration pursuant to this section shall contain at a minimum the name of the owner, the mailing address of the owner, e-mail address, and telephone number of the owner, and if applicable, the name and telephone number of the property manager and said person's address, e-mail address, and telephone number.

(c) At the time of initial registration each registrant shall pay a non-refundable semi-annual registration fee of three hundred dollars (\$300.00) for each vacant property. Subsequent non-refundable semi-annual renewal registrations of vacant properties and fees in the amount of three hundred dollars (\$300.00) are due within ten (10) days of the expiration of the previous registration. Said fees shall be used to offset the costs of: (1) registration and registration enforcement, (2) code enforcement and mitigation related to vacant properties, and (3) for any related purposes as may be adopted in the policy set forth in this article. Said fees shall be deposited to a special account in the city's department dedicated to the cost of implementation and enforcement of this article, and fulfilling the purpose and intent of this article.

(d) If the property is sold or transferred, the new owner is subject to all the terms of this article. Within ten (10) days of the transfer, the new owner shall register the vacant property, if not already registered, or update the existing registration. The previous owner(s) will not be released from the responsibility of paying all

previous unpaid fees, fines, and penalties accrued during that owner's involvement with the vacant property.

(e) If the vacant property is not registered, or either the registration fee or the semi-annual registration fee is not paid within thirty (30) days of when the registration or semi-annual registration is required pursuant to this section, a late fee shall be equivalent to ten (10) percent of the semi-annual registration fee shall be charged for every thirty-day period, or portion thereof, the property is not registered and shall be due and payable with the registration. This section shall apply to the initial registration and registrations required by subsequent owners of the vacant property.

(f) Properties subject to this section shall remain subject to the semi-annual registration requirement, and the inspection, security, and maintenance standards of this section as long as the property is vacant.

(g) Failure of the owner to properly register or to modify the registration to reflect a change of circumstances as required by this article is a violation of this article and shall be subject to enforcement by any of the enforcement means available to the city.

(h) If any property is in violation of this article the city may take the necessary action to ensure compliance with and place a lien on the property for the cost of the outstanding obligation and any additional cost incurred to the property into compliance.

(i) Properties registered as a result of this section are not required to be registered again pursuant to the foreclosure mortgage property section. (Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-57. Maintenance requirements.

(a) Properties subject to this article shall be kept free of weeds, overgrown brush, dead vegetation, trash, junk, debris, building materials, any accumulation of newspaper circulars, flyers, notices, except those required by federal, state or local law, discarded personal items including, but not limited to, furniture, clothing, large and small appliances, printed material, or any other items that give the appearance that the property is abandoned.

(b) Registrable property shall be maintained free of graffiti or similar markings by removal or painting over with an exterior grade paint that matches the color of the exterior structure.

(c) Visible front, side, and rear yards, including landscaping, of registrable property shall be maintained in accordance with the applicable code(s) at the time registration is required.

(d) Registrable yard maintenance shall include, but not be limited to, grass, ground covers, bushes, shrubs, hedges or similar plantings, decorative rock or bark or artificial turf/sod. Acceptable maintenance of yards and/or landscape shall not include weeds, gravel, broken concrete, asphalt or similar material.

(e) Maintenance shall include, but not be limited to, watering, irrigation, cutting and mowing of required ground cover or landscape and removal of all trimmings.

(f) Pools and spas shall be maintained so the water remains free and clear of pollutants and debris and shall comply with the regulations set forth in the applicable code provisions.

(g) Failure of the mortgagee, owner, and transferees to properly maintain the property as required by this article may result in a violation of the applicable code(s) and issuance of a citation or notice of violation in accordance with the applicable code of the city. Pursuant to a finding and determination by the city, the special magistrate or a court of competent jurisdiction, the city may take the necessary action to ensure compliance with this section.

(h) In addition to the above, the property is required to be maintained in accordance with the applicable code(s) of the city.
(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-58. Security requirements.

(a) Properties subject to these sections shall be maintained in a secure manner so as not to be accessible to unauthorized persons.

(b) A "secure manner" shall include, but not be limited to, the closure and locking of windows, doors, gates and other openings of such size that may allow a child to access the interior of the property and/or structure. Broken windows, doors, gates, and other openings of such size that may allow a child to access the interior of the property or structure must be repaired. Broken windows shall be secured by re-glazing of the window.

(c) Failure of the mortgagee and/or property owner of record to properly maintain the property may result in a violation of the City Code and citation by the city's code compliance unit pursuant to a finding and determination by the special magistrate, the city may take the necessary action to ensure compliance with this section.

(d) If a property is registrable, and the property has become vacant or blighted, a property manager shall be designated by the mortgagee and/or owner to perform the work necessary to bring the property into compliance with the applicable code(s), and the property manager must perform regular inspections to verify compliance with the requirements of this article, and any other applicable laws.

(e) In addition to the above, the property is required to be secured in accordance with the applicable code(s) of the city.

(f) When a property subject to this article becomes vacant, it shall be posted with the name and twenty-four-hour contact telephone number of the property manager. The property manager shall be available to be contacted by the city Monday through Friday between 9:00 a.m. and 5:00 p.m., legal holidays excepted. The sign shall be placed in a window facing the street and shall be visible from the street. The posting shall be no less than eighteen (18) inches by twenty-four (24) inches and shall be of a font that is legible from a distance of forty-five (45) feet. The posting shall contain the following language with supporting information:

THIS PROPERTY IS MANAGED BY _____.

AND IS INSPECTED ON A REGULAR BASIS.

THE PROPERTY MANAGER CAN BE CONTACTED

BY TELEPHONE AT _____.

OR BY EMAIL AT _____.

(g) The posting required in subsection (f) above shall be placed on the interior of a window facing the street to the front of the property so that it is visible from the street, or secured to the exterior of the building/structure facing the street to the front of the property so that it is visible from the street or if no such area exists, on a stake of sufficient size to support the posting in a location that is at all times visible from the street to the front of the property but not readily

accessible to vandals. Exterior posting shall be constructed of and printed with weather-resistant materials.

(h) Failure of the mortgagee and/or property owner of record to properly inspect and secure a property subject to this article, and post and maintain the signage noted in this section, is a violation and shall be subject to enforcement by any of the enforcement means available to the city. The city may take the necessary action to ensure compliance with this section, and recover costs and expenses in support thereof.
(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-59. Provisions supplemental.

The provisions of this article are cumulative with and in addition to other available remedies. Nothing contained in this article shall prohibit the city from collecting on fees, fines, and penalties in any lawful manner; or enforcing its codes by any other means, including, but not limited to, injunction, abatement, or as otherwise provided by law or ordinance.
(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-60. Public nuisance.

All registrable property is at risk of being a public nuisance and if vacant or blighted can constitute a public nuisance, the abatement of which pursuant to the police power is hereby declared to be necessary for the health, welfare, and safety of the residents of the city.
(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-61. Additional authority.

(a) If the enforcement officer has reason to believe that a property subject to the provisions of this article is posing a serious threat to the public health, safety, and welfare, the code enforcement officer may temporarily secure the property at the expense of the mortgagee or owner, and may bring the violations before the code enforcement city commission or special magistrate as soon as possible to address the conditions of the property. Nothing herein shall limit the city from abating any nuisance or unsafe condition by any other legal means available to it.

(b) Law enforcement, code enforcement city commission or special magistrate shall have the authority to require the mortgagee or owner affected by this

section, to implement additional maintenance and/or security measures including, but not limited to, securing any and all doors, windows or other openings, employment of an on-site security guard or other measures as may be reasonably required to help prevent further decline of the property.

(c) If there is a finding that the condition of the property is posing a serious threat to the public health, safety, and welfare, then the law enforcement, code enforcement, city commission or special magistrate may direct the city to abate the violations and charge the mortgagee or owner with the cost of the abatement.

(d) If the mortgagee or owner does not reimburse the city for the cost of temporarily securing the property, or of any abatement directed by law enforcement, code enforcement officer, code enforcement, city commission or special magistrate, within thirty (30) days of the city sending the mortgagee or owner the invoice then the city may lien the property with such cost, along with an administrative fee as determined in the city's fee ordinance to recover the administrative personnel services. In addition to filing a lien the city may pursue financial penalties against the mortgagee or owner.

(e) The city may contract with an entity to implement this article, and, if so, any reference to the enforcement officer herein shall include the entity the city contracts with for that purpose.
(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-62. Opposing, obstructing enforcement officer; penalty.

Whoever opposes obstructs or resists any enforcement officer or any person authorized by the enforcement office in the discharge of duties as provided in this article shall be punishable as provided in the applicable code(s) or a court of competent jurisdiction.
(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-63. Immunity of enforcement officer.

Any enforcement officer or any person authorized by the city to enforce the sections here within shall be immune from prosecution, civil or criminal, for reasonable, good faith entry upon real property while in the discharge of duties imposed by this article.
(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-64. Penalties.

Unless otherwise provided for in this article, a violation of this article is declared unlawful.

(Ord. No. 2025-09, § 2, 4-9-2025)

Sec. 14-65. Amendments.

Registration fees and penalties outlined in this article may be modified by resolution, administrative order, or an amendment to this article, passed and adopted by the city commission.

(Ord. No. 2025-09, § 2, 4-9-2025)

Chapter 15

OFFENSES—MISCELLANEOUS*

Article I. In General

- Sec. 15-1. Adoption of state misdemeanors.
- Sec. 15-2. Adoption of Code of Miami-Dade County, Florida, offenses chapter.
- Sec. 15-3. Damaging public trees and shrubbery.
- Sec. 15-4. Obstructing drainage.
- Sec. 15-5. Racing vehicles.
- Sec. 15-6. Weapons; discharge.
- Sec. 15-7. Reserved.
- Sec. 15-8. Weapons and destructive devices in city buildings, audible beepers, use of cellular telephones, and eating and drinking in city commission chambers.
- Sec. 15-9. Selling, serving or vending in public rights-of-way within 1,500 feet of a public park, school or library.
- Secs. 15-10—15-25. Reserved.

Article II. Reserved

- Secs. 15-26—15-40. Reserved.

Article III. Littering

- Sec. 15-41. Declaration of intent.
- Sec. 15-42. Definitions.
- Sec. 15-43. Responsibility of city.
- Sec. 15-44. Dumping litter prohibited.
- Sec. 15-45. Dumping raw human waste prohibited.
- Sec. 15-46. Distributing commercial and non-commercial handbills at inhabited private premises.
- Sec. 15-47. Enforcement.
- Sec. 15-48. Penalties.
- Sec. 15-49. Presumption where motor vehicle is the source.
- Sec. 15-50. Nuisance declared.
- Secs. 15-51—15-56. Reserved.

Article IV. Reserved

- Secs. 15-57—15-72. Reserved.

Article V. Noise

- Sec. 15-73. Prohibited generally.
- Sec. 15-74. Near hospital or school.
- Sec. 15-75. Loud or unusual noises on streets.
- Sec. 15-76. At soft drink stands, restaurants.
- Sec. 15-77. Music prohibited if audible 300 feet from source.
- Sec. 15-78. Hours for jukeboxes.
- Sec. 15-79. Hours for use of noisy construction equipment.
- Sec. 15-80. Discharging fireworks, combustibles.
- Sec. 15-81. Noisy emission of steam, other gases.
- Sec. 15-82. Noisy blower, power fan, internal combustion engine.
- Sec. 15-83. Steam whistles.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

OPA-LOCKA CODE

Secs. 15-84—15-93. Reserved.

Article VI. Using Public Property for Habitation

- Sec. 15-94. Permit required; application; fee.
- Sec. 15-95. Exceptions.
- Sec. 15-96. Grounds for denying permit.
- Sec. 15-97. Permit issuance; bond; regulations.
- Sec. 15-98. Permit to be personal.
- Sec. 15-99. Violation of permit or regulations.
- Sec. 15-100. Return of bond.
- Secs. 15-101—15-110. Reserved.

Article VII. Graffiti

- Sec. 15-111. Prohibited conduct.
- Sec. 15-112. Definitions.
- Sec. 15-113. Violation of section 15-111; penalties therefor.
- Sec. 15-114. Order to remove graffiti.
- Sec. 15-115. Failure to remove or request city for assistance in removing graffiti.
- Sec. 15-116. Anti-graffiti trust fund.
- Sec. 15-116.1. Police office authorized to remove vehicle.

Article VIII. Sex Offenders

- Sec. 15-117. Sex offender residency prohibition.
- Secs. 15-118—15-130. Reserved.

Article IX. Prohibitions on the Use of Motorized Scooters, All-Terrain Vehicles, Dirt Bikes, and Go-Peds

- Sec. 15-131. Definitions; exemptions.
- Sec. 15-132. Motor scooters, all-terrain vehicles, dirt bikes and go-peds prohibited.
- Sec. 15-133. Penalties.

Article X. Signalized Intersection Safety

- Sec. 15-134. Reserved.
- Sec. 15-135. Use of traffic infraction detectors.
- Sec. 15-136. Implementation of general law and designation of local hearing officer.
- Sec. 15-137. Penalties.
- Secs. 15-138—15-140. Reserved.

Article XI. Synthetic Substances

- Sec. 15-141. Definition.
- Sec. 15-142. Sale of substances.
- Sec. 15-143. Enforcement.

ARTICLE I. IN GENERAL**Sec. 15-1. Adoption of state misdemeanors.**

It shall be unlawful to commit within the corporate limits any act which is or shall be recognized by the laws of the state as a misdemeanor, and the commission of such acts is hereby forbidden.

(Code 1955, § 16-62; Code 1983, § 15-1)

Annotations—Authority to adopt state misdemeanors as municipal ordinances, *MacFarland v. Roberts*, 74 So. 2d 88 (Fla. 1954); *Jaramillo v. City of Homestead*, 322 So. 2d 496 (Fla. 1975); adoption includes future enactments, *State v. Smith*, 189 So. 2d 846 (Fla. 4th DCA 1966).

Sec. 15-2. Adoption of Code of Miami-Dade County, Florida, offenses chapter.

Chapter 21 of the Code of Miami-Dade County, Florida, as from time to time amended, is hereby adopted as an ordinance of the city. The commission within the city of any act declared to be unlawful by said chapter 21 shall constitute a violation of this Code, punishable as provided in section 1-7.

(Code 1983, § 15-2)

Sec. 15-3. Damaging public trees and shrubbery.

It shall be unlawful for any person to cut down, dig up, mutilate, despoil or destroy any flowers, shrubbery, trees or other plants in any street or other public highway, parkway, park or other public place within this city unless permission to do so shall have been first obtained in writing from the city engineer.

(Code 1955, § 16-69; Code 1983, § 15-3)

State law reference—Criminal mischief, F.S. § 806.13.

Sec. 15-4. Obstructing drainage.

It shall be unlawful for any person to cast or throw or cause to be cast or thrown, into any of the gutters, drains or sewers within the city, any garbage, trash, tree or grass cuttings, or other substance calculated to cause any obstruction or nuisance to such gutters, drains or sewers.

(Code 1955, § 16-34; Code 1983, § 15-4)

Sec. 15-5. Racing vehicles.

(a) *Permitted.* The racing, testing or preparation for the purpose of racing of any vehicle propelled by an internal combustion engine shall be permitted within the city limits of the city as follows:

- (1) The city commission shall by ordinance authorize said activity for a specific location within the city limits for a period of one (1) year only.

- (2) The city commission may authorize the issuance of a permit for the specific location subject to such conditions as the city commission may deem necessary and proper to protect the citizens of the city from excessive noise as defined by sections 15-73 and 15-82, including the establishment of hours and dates wherein said activity may be permitted.

- (3) The permittee shall provide all necessary equipment, organization and guards for the safety of participants and spectators, and file with the city a surety bond in the amount of five thousand dollars (\$5,000.00) to indemnify the city from expense and damages resulting from acts or failure to furnish equipment required to protect the safety of participants and spectators from destruction of property or the violation of any of the terms and conditions aforementioned.

- (4) Permittee shall file a liability insurance policy with the city manager insuring spectators and participants in the minimum amount of one hundred thousand dollars (\$100,000.00).

(b) *Permit issuance; revocation.* Upon compliance with the aforesaid conditions and the passage of an ordinance by the commission permitting said activities for the specific location, the city manager may issue a permit. All permits issued are subject to revocation as provided by chapter 13, article II.

(Code 1955, § 16-54.1; Code 1983, § 15-5)

County Code reference—Regulation of automobile and motorcycles races, § 21-33.

State law reference—Automobile race meets, F.S. ch. 549.

Sec. 15-6. Weapons; discharge.

It shall be unlawful for any unauthorized person to discharge, fire or shoot, within the city, any weapons, including air-rifles, air-pistols, slingshots, or weapons of the kind usually called BB guns, from which weapon any bullet, shot or pellet of lead or other material is discharged or expelled; and it shall be unlawful for any person having the custody or control of any minor to knowingly permit or allow such minor to discharge, fire or shoot any weapon of the kind herein referred to, within the city. Nothing in this section shall prohibit the discharge of a firearm.

(Code 1955, § 16-74; Code 1983, § 15-6)

County Code reference—Discharging weapons over private property, § 21-18.1; supervision of children using weapons, § 21-7.1.

State law references—Discharging weapons generally, F.S. § 790.15 et seq.; supervision of children using weapons, F.S. § 790.22.

Sec. 15-7. Reserved.

Sec. 15-8. Weapons and destructive devices in city buildings, audible beepers, use of cellular telephones, and eating and drinking in city commission chambers.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Explosive means any chemical compound or mixture that has the property of yielding readily to combustion or oxidation upon application of heat, flame, or shock, including, but not limited to, dynamite, nitroglycerin, trinitrotoluene, or ammonium nitrate when combined with other ingredients to form an explosive mixture, blasting caps and detonators.

Weapon means:

(a) Any dirk, metallic knuckles, slingshot, billie, tear gas gun, chemical weapon or device, or other deadly weapon except a firearm or a common pocketknife.

(b) All other devices as defined in F.S. § 790.001.

(b) *Prohibitions.*

(1) It shall be unlawful for anyone to carry weapons (openly or concealed) into city buildings. For the purposes of this section, the term "concealed weapons" means an electronic weapon or device, tear gas gun, knife or billie. Licenses or permits to carry a concealed weapon is not exempted. The only exception to this subsection is law enforcement officers when acting within the scope or course of their official duties; provided, however, that this subsection does not apply to firearms.

(2) No audible beepers or using cellular phones during city commission meetings.

(3) No public eating and drinking in city commission chambers.

(c) *Enforceability.* Complaints must be submitted in writing to either a member of the city commission, or the city clerk, or the city manager. The city manager shall investigate all complaints involving violations of this section. The city manager may conduct a hearing, after notice, and issue an order determining probable

cause, findings of fact of violations, and making a recommendation for penalties in accordance with subsection (d) of this section. If the city manager fails to conduct a hearing on alleged violations of subsection (b)(1) of this section, or at any time after the filing of a complaint on said section, any member of the city commission may direct the city attorney or the city manager to petition any court of competent jurisdiction to enforce the provisions of this section.

(d) *Penalties.*

(1) Upon a finding by the city manager that a violation of subsection (b)(1) of this section has occurred, the city shall seize the property of the person who has violated said subsection and that person shall forfeit the dangerous or deadly weapon so concealed or displayed.

(2) Upon a finding by the city manager that a violation of subsections (b)(2) and (3) has occurred, the city manager shall issue an order sanctioning the person who committed the violation. Sanctions may include, and are not limited to, written or verbal reprimand or restrictions of attendance at city commission meetings.

(Code 1983, § 15-8; Ord. No. 96-12, §§ 1—4, 6-26-1996)

Sec. 15-9. Selling, serving or vending in public rights-of-way within 1,500 feet of a public park, school or library.

Vending, selling, serving any goods, wares or merchandise, including ice cream, peanuts, popcorn, soda water products, drinks, candy, and food products in public rights-of-way within one thousand five hundred (1,500) feet of a public park, public school serving children and/or public library, is prohibited; however, this prohibition shall not apply to vending, selling, serving of goods or food products conducted by, or on behalf of, the park, the public school or the public library.

(Code 1983, § 15-9; Ord. No. 08-05, § 2, 4-23-2008)

Secs. 15-10—15-25. Reserved.

ARTICLE II. RESERVED

Secs. 15-26—15-40. Reserved.

ARTICLE III. LITTERING***Sec. 15-41. Declaration of intent.**

It is the intent of the city commission to prevent, in whatever way possible, the abuse of the environment of the city through acts of any persons that are generally classified under the heading of "littering," which severely burden the taxpayers of the city, adversely affect property values and the attractiveness of the community for its citizens, residents and visitors.

(Code 1983, § 15-41; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-42. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Aircraft means a motor vehicle or other vehicle that is used or designed to fly but does not include a parachute or any other device used primarily as safety equipment.

Commercial handbill means any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter of literature:

- (1) Which advertises for sale any merchandise, product, commodity, services, thing;
- (2) Which directs attention to any business or mercantile or commercial establishment, or other activity, for the purpose of either directly or indirectly promoting the interest thereof by sales;
- (3) Which directs attention to or advertises any meeting, theatrical performance, exhibition, or event of any kind, for which an admission fee is charged for the purpose of private gain or profit; but the terms of this clause shall not apply where an admission fee is charged or a collection is taken up for the purpose of defraying the expenses incident to such meeting, theatrical performance, exhibition, or event of any kind, when either of the same is held, given or takes place in connection with the dissemination to information which is not re-

stricted; provided, that nothing contained in this clause shall be deemed to authorize the holding, giving or taking place of any meeting, theatrical performance, exhibition, or event of any kind, without a license or business tax receipt, where such license or receipt is or may be required by any law of this state or county, or under any ordinance of this city; or

- (4) Which, while containing reading matter other than advertising matter, is predominantly and essentially an advertisement, and is distributed or circulated for advertising purposes, or for the private benefit and gain of any person so engaged as advertiser or distributor.

Commercial purpose means for the purpose of economic gain.

Commercial vehicle means a vehicle that is owned or used by a business, corporation, association, partnership, or sole proprietorship or any other entity conducting business for a commercial purpose.

Dump means to dump, throw, sweep, discard, place, deposit, or dispose of.

Enforcement officer means any officer of the Florida Highway Patrol, a county sheriff's department, a municipal law enforcement department, a law enforcement department of any other political subdivision, or the fish and wildlife conservation commission. In addition, and solely for the purposes of this article, the term "enforcement officer" means any employee or contractor designated by the city manager as a litter enforcement officer. Designation of such employees or contractors shall not provide the employees or contractors with the authority to bear arms or to make arrests.

Litter means any garbage; rubbish; trash; refuse; can; bottle; box; container; paper; tobacco product; tire; appliance; mechanical equipment or part; building or construction material; tool; machinery; wood; motor vehicle or motor vehicle part; vessel; aircraft; farm machinery or equipment; sludge from a waste treatment facility, water supply treatment plant, or air pollution control facility; or substance in any form resulting from domestic, industrial, commercial, mining, agricultural, or governmental operations.

Motor vehicle means an automobile, motorcycle, truck, trailer, semitrailer, truck tractor, or semitrailer combination or any other vehicle that is powered by a motor.

*State law reference—Florida Litter Law. F.S. § 403.413.

Newspaper means any newspaper of general circulation as defined by general law, any newspaper duly entered with the United States Postal Service, in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law; and, in addition thereto, means and include any periodical or current magazine regularly published with not less than four (4) issues per year, and distributed.

Non-commercial handbill means any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter of literature not included in the aforesaid definitions of a commercial handbill or newspaper. This excludes legal documents such as tickets, summons, subpoenas, etc.

Person means any individual, firm, sole proprietorship, partnership, corporation, or unincorporated association.

Private premises means any dwelling, house, building, or other structure, designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building or other structure within the city.

Public place means any and all streets, sidewalks, boulevards, alleys or other public ways and any and all public parks, squares, spaces, grounds, and buildings.

Refuse means all putrescible and non-putrescible solid wastes (except body wastes), including garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles, and solid market and industrial wastes.

Rubbish means non-putrescible solid wastes consisting of both combustible wastes, such as paper, wrappings, cigarettes, cardboard, tin cans, yard clippings, leaves, all horticulture debris, wood, glass, bedding, crockery and similar materials.

Vessel means a boat, barge, or airboat or any other vehicle used for transportation on water.
(Code 1983, § 15-42; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-43. Responsibility of city.

The city manager shall determine the training and qualifications of any employee or any contractor designated to enforce the provisions of this section if the designated employee or contractor is not a regular law enforcement officer.

(Code 1983, § 15-43; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-44. Dumping litter prohibited.

Unless otherwise authorized by law or permit, it is unlawful for any person to dump litter in any manner or amount:

- (1) In or on any public highway, road, street, alley, or thoroughfare, including any portion of the right-of-way thereof, or any other public lands, except in public receptacles or authorized private receptacles provided therefor. When any litter is dumped from a motor vehicle, the operator or owner of the motor vehicle, or both, shall be deemed in violation of this article;
- (2) In or on any freshwater lake or canal, when any litter is dumped from a boat, the operator or owner of the boat, or both, shall be deemed in violation of this section;
- (3) In or on any private property, unless prior consent of the owner has been given and unless the dumping of such litter by such person will not cause a public nuisance or otherwise be in violation of any other state, county or city law, rule, or regulation;
- (4) In a manner that, when placed in public receptacles or authorized private receptacles, allows the litter to be carried or deposited by the elements upon the street, sidewalk or other public place or upon private property;
- (5) Sweep into any gutter, street or other public place within the city the accumulation of litter from any building or lot or from any public or private sidewalk or driveway;
- (6) To drive or move within the city any motor vehicle which is constructed or loaded in such a way as to allow the load, contents or litter to be blown or deposited upon any street, alley or other public place.

(Code 1983, § 15-44; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-45. Dumping raw human waste prohibited.

Unless otherwise authorized by law or permit, it is unlawful for any person to dump raw human waste from any train, aircraft, motor vehicle, or vessel upon the public or private lands or waters of the city.

(Code 1983, § 15-45; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-46. Distributing commercial and non-commercial handbills at inhabited private premises.

It is unlawful to throw, deposit or distribute any commercial or non-commercial handbill in or upon private premises which are inhabited, except by handing or transmitting any such handbill directly to the owner, occupant, or other person then present in or upon such private premises. However, in the case of inhabited private premises, such person, unless requested by anyone upon such premises to do so, may place or deposit any such handbill in or upon such inhabited private premises, if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or sidewalks, streets, or other public places, and except that mailboxes may not be so used when so prohibited by federal postal law or regulations.

- (1) *Exemption for mail and newspapers.* The provisions of this article shall not apply to the distribution of mail by the United States, nor to newspapers (as defined herein) except that newspapers shall be placed on private property in such a manner as to prevent their being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.

(Code 1983, § 15-46; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-47. Enforcement.

A law enforcement officer is authorized to issue a citation to a person, based upon personal investigation, in which the officer has reasonable cause to believe that the person has committed a civil infraction in violation of this article.

(Code 1983, § 15-47; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-48. Penalties.

(a) Any person who dumps litter in violation of section 15-44 in an amount not exceeding fifteen (15) pounds in weight or twenty-seven (27) cubic feet in volume and not for commercial purposes : commits a

noncriminal infraction, punishable by a civil penalty of one hundred fifty dollars (\$150.00). In addition, the court may require the violator to pick up litter or perform other labor commensurate with the offense committed.

(b) Reserved.

(c) Reserved.

(d) In addition to, and not in limitation of the provisions of this section, the provisions of F.S. § 403.413, also known as the Florida Litter Law, as amended from time to time, is hereby added to this Code of Ordinances and incorporated by reference herein. The city commission would also respectfully suggest to the judges of those courts trying persons for violations of the Florida Litter Law that the provisions of F.S. ch. 948, probation, be utilized liberally in order to require such persons to expend appropriate amounts of time and effort gathering up litter at places within the city designated by the court.

(Code 1983, § 15-48; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-49. Presumption where motor vehicle is the source.

In any prosecution charging a violation of this article by the throwing, discarding, placing or depositing of litter in any manner or amount whatsoever in or on any public highway, road, street, alley, thoroughfare or any other public lands, by, through or from a motor vehicle, proof that the particular vehicle described in the complaint was the source of the litter so discarded, together with proof that the defendant named in the complaint was at the time of such violation the registered owner of such a vehicle, shall constitute in evidence a presumption that the registered owner of such vehicle was the person who committed the violation of this article. Said presumption may be rebutted by substantial evidence on the part of said owner.

(Code 1983, § 15-49; Ord. No. 15-17, § 2, 7-8-2015)

Sec. 15-50. Nuisance declared.

In addition to, and not in limitation of any enforcement action for violation of this article, it is the intent of the city commission to declare the littering of the city, as hereinbefore described and prohibited, as a public nuisance and to subject violators of this section to the provisions of chapter 14 calling for removal of such a public nuisance through notice, hearing and a

lien enforcement procedure if the city so chooses to remedy the prohibited condition. Any action taken pursuant to this section utilizing the provisions of chapter 14 shall be considered cumulative and in addition to penalties and other remedies provided elsewhere in this Code.

(Code 1983, § 15-50; Ord. No. 15-17, § 2, 7-8-2015)

Secs. 15-51—15-56. Reserved.

ARTICLE IV. RESERVED

Secs. 15-57—15-72. Reserved.

ARTICLE V. NOISE*

Sec. 15-73. Prohibited generally.

It shall be unlawful to make any loud, unnecessary, excessive or unusual noise within the city.

(Code 1955, § 16-43; Code 1983, § 15-73)

Sec. 15-74. Near hospital or school.

It shall be unlawful for any person by himself or by the operation of any instrument, agency or vehicle, to make any unnecessary or unseemly noises within one hundred fifty (150) feet of any portion of the grounds and premises on which is located a hospital or other institution reserved for the sick, or any school during school hours. The chief of police shall place, or cause to be placed as many signs as he may deem proper within or near zones hereby created, calling attention to the prohibition against unnecessary noises within such zones.

(Code 1955, § 16-44; Code 1983, § 15-74)

County Code reference—Noise near school, court, church or hospital, § 21-28(g).

Sec. 15-75. Loud or unusual noises on streets.

(a) It shall be unlawful for any person to ring any hand bell, beat or strike any pan, pail or other like article, or sound any gong or blow any whistle or horn, or other musical instrument when used as part of a band of music or orchestra, except to give necessary signals upon a motor vehicle, motorcycle, bicycle or similar vehicle or to cry out the sale of goods, wares or

*County Code reference—Noise generally, § 21-28.

merchandise, or to make, aid, continue or encourage or assist in making any other loud or unusual noises on the streets of the city.

(b) It shall be unlawful and a violation of this section for any person, firm, partnership or corporation to play, broadcast or transmit music in such manner as would reasonably be calculated to attract a crowd or cause numbers of persons to congregate in or on any space, lot, yard, sidewalk or street, or to permit the same to occur on or from any property owned, leased or occupied by said person, firm, partnership, or corporation in the city without first having obtained a temporary special permit to do so from the city manager and the police chief.

(c) The use of any amplifier or loudspeaker to play, broadcast or transmit music shall constitute prima facie evidence that the music is being played, broadcasted or transmitted in such a manner as would reasonably be calculated to attract a crowd or cause numbers of persons to congregate. The use of any amplifier or loudspeaker to play, broadcast or transmit music shall be prohibited between the hours of 1:00 a.m. and 9:00 a.m. daily.

(Code 1955, § 16-9; Code 1983, § 15-75; Ord. No. 96-04, § 1, 2-28-1996; Ord. No. 2025-10, § 2, 4-9-2025)

Sec. 15-76. At soft drink stands, restaurants.

It shall be unlawful to blow, ring or sound any automobile horn, chime or bell on or about premises used in conjunction with the operation of any barbecue or soft drink stand or restaurant where such barbecue or soft drink stand or restaurant premises shall be located within a distance of three hundred (300) feet from improved residential property, unless such blowing, ringing or sounding shall be necessary for the protection of life or property.

(Code 1955, § 16-10; Code 1983, § 15-76)

Sec. 15-77. Music prohibited if audible 300 feet from source.

It shall be unlawful for any person owning, occupying or having charge of any building or premises or any part thereof, in the city, at any time to cause or suffer or allow any loud, unnecessary, excessive or unusual noises in the operation of any radio, phonograph or other mechanical sound-making device, or instrument, or reproducing device or instrument, or in the playing of any band, orchestra, musician or group of musicians,

or in the use of any device to amplify the music of any band, orchestra, musician or group of musicians, where the noise or music is plainly audible at a distance of three hundred (300) feet from the building, structure, vehicle or premises in which or from which it is produced. The fact that the noise or music is plainly audible at a distance of three hundred (300) feet from the vehicle or premises from which it originates constitutes prima facie evidence of a violation of this section. (Code 1955, § 16-55; Code 1983, § 15-77)

County Code reference—Noise from sound amplifying devices, § 21-28(b).

Sec. 15-78. Hours for jukeboxes.

It shall be unlawful to play or operate any juke organ or jukebox located in, on or about the premises of any barbecue or soft drink stand or restaurant between the hours of 11:00 p.m. and 7:00 a.m. of the following day, unless such barbecue or soft drink stand or restaurant premises shall be located more than three hundred (300) feet distant from improved residential property. (Code 1955, § 16-40; Code 1983, § 15-78)

Sec. 15-79. Hours for use of noisy construction equipment.

It shall be unlawful for any person in conducting any building operations between the hours of 10:00 p.m. and 7:00 a.m. the following day to operate or use any pile-driver, steam shovel, pneumatic hammer, derrick, steam or electric hoist or other apparatus, the use of which is attended by loud or unusual noise, except by written permission of the city manager, and then only in case of emergency. (Code 1955, § 16-13; Code 1983, § 15-79)

Sec. 15-80. Discharging fireworks, combustibles.

It shall be unlawful to fire or discharge squibs, firecrackers, gunpowder or other combustible substances in the streets or elsewhere for the purpose of making noise or disturbance, except on city observed holidays. In those cases, these activities shall be prohibited daily between the hours of 1:00 a.m. and 9:00 a.m.

Violators shall be issued a warning for a first offense and an fine of five hundred dollars (\$500.00) for every subsequent offense.

(Code 1955, § 16-45; Code 1983, § 15-80; Ord. No. 2025-10, § 2, 4-9-2025)

County Code reference—Fireworks in or near county parks, § 26-1, Rule 17.

State law reference—Fireworks, F.S. ch. 791.

Sec. 15-81. Noisy emission of steam, other gases.

It shall be unlawful to permit or cause the emission of steam or other gases if such emission cannot be done without the production of disturbing noises. (Code 1955, § 16-46; Code 1983, § 15-81)

Sec. 15-82. Noisy blower, power fan, internal combustion engine.

It shall be unlawful to operate or cause to be operated any noise-creating blower or power fan or any internal combustion engine, the operation of which causes noises due to the explosion of operating gases or fluids, unless the noise from such blower or fan is muffled and such engine is equipped with a muffler device sufficient to deaden such noises, so that the same shall not cause annoyance to the public or disturb the rest and quiet of persons residing or occupying property near enough thereto to be annoyed by the unmuffled blower, fan or exhaust of any such engine. (Code 1955, § 16-47; Code 1983, § 15-82)

County Code reference—Noisy exhausts, § 21-28(e); mufflers and prevention of vehicle noise, § 30-258.

State law reference—Exhaust systems for motor vehicles, F.S. § 316.272.

Sec. 15-83. Steam whistles.

It shall be unlawful to blow any steam whistles except as follows: for an alarm of fire; upon locomotive engines for the purpose only of giving necessary safety signals; upon stationary engines in factories or other industrial establishments at the time of beginning and quitting work in such establishments; upon vessels, crafts and floats for the purpose of giving only necessary marine signals. Air raid warning signals are hereby excepted.

(Code 1955, § 16-64; Code 1983, § 15-83)

County Code reference—Blowing of steam whistles, § 21-28(d).

Secs. 15-84—15-93. Reserved.

ARTICLE VI. USING PUBLIC PROPERTY FOR HABITATION

Sec. 15-94. Permit required; application; fee.

It shall be unlawful for any person within the city to sleep, camp or use for habitation any street, alley, easement, right-of-way, public building or other public property, unless prior thereto, the person has, in writing,

requested permission for such use and received from the city manager a permit authorizing said use subject to the following terms and conditions:

- (a) The request shall be made in writing ten (10) days prior to the contemplated use, unless otherwise permitted by the city commission at any special or regular meeting.
- (b) The applicant shall designate with particularity the area sought to be used, which shall not exceed an area of twenty-five (25) square feet and the method to be followed by the applicant for disposal of his personal waste, trash and garbage.
- (c) The applicant shall designate the type and license number of the vehicle to be used by him or to be parked in said area.
- (d) The applicant shall designate the date of use and the time and date of termination of the use which shall not exceed twelve (12) hours.
- (e) The applicant shall designate the method to be followed by him for cleaning and restoring said property to its condition prior to his use.
- (f) The applicant shall pay to the city the sum of one dollar (\$1.00) with the application, in order to defray the cost of issuing the permit and providing for the extension of city services to the area designated.

(Code 1955, § 16-61; Code 1983, § 15-94)

Sec. 15-95. Exceptions.

The use of public road rights-of-way, so as not to interfere with the flow of traffic, shall be permitted for the purpose of sleeping or resting by drivers of vehicles and their passengers who may have become temporarily ill, confused or who are under the influence of alcohol or drugs, for a period of time not to exceed four (4) hours. The use of any vehicle for sleeping or resting by a driver or passenger on any road right-of-way for more than four (4) hours is hereby declared to be a public nuisance and a violation of this Code.

(Code 1955, § 16-61; Code 1983, § 15-95)

Sec. 15-96. Grounds for denying permit.

The city manager may grant a permit to the applicant to use public property for sleeping, camping or habitation for a period not to exceed twelve (12) hours,

on public property which may, from time to time, be designated by the city commission, provided that the use thereof shall not create a hazardous or unsanitary condition affecting the health or safety of others within the city and that said use shall not create any one (1) or more of the following:

- (a) Traffic hazard or congestion within the area used or on roads leading thereto.
- (b) Destruction or disfigurement of any trees, shrubs, wildlife, roads or other public property within the designated area or on roads leading thereto.
- (c) Hazards to health or safety of others within the city by virtue of unsanitary conditions, accumulation of personal waste, trash and garbage.
- (d) Interference with police, fire and other governmental services provided by the city to all persons located therein.

(Code 1955, § 16-61; Code 1983, § 15-96)

Sec. 15-97. Permit issuance; bond; regulations.

In the event the area designated and the use thereof requested meet the above-designated criteria, the manager shall issue a permit for the use provided:

- (a) The applicant shall deposit with the city a cash bond in an amount not to exceed one hundred fifty dollars (\$150.00) conditioned on indemnifying the city for the cost and expense of restoring said property and providing for police, fire and other city services.
- (b) Use of designated area shall be subject to reasonable regulations relating to the use thereof by the applicant and others who may be similarly granted permits for said use.

(Code 1955, § 16-61; Code 1983, § 15-97)

Sec. 15-98. Permit to be personal.

Permits issued hereunder shall be granted only to persons making the application under oath and shall not inure to the benefit of any other person, nor shall the permit be assignable or transferable to any other person.

(Code 1955, § 16-61; Code 1983, § 15-98)

Sec. 15-99. Violation of permit or regulations.

In the event any person holding a permit granted by the city manager, as provided herein, shall utilize the city property contrary to the terms and conditions of the permit or utilize the property for a period of time longer than twelve (12) hours, or shall make any representation or provide any information in the application for permit which may be false, the person shall be deemed to be an unlawful user of the public property

and in violation of this Code, and the permit shall be deemed revoked and the cash bond forfeited to the city. (Code 1955, § 16-61; Code 1983, § 15-99)

Sec. 15-100. Return of bond.

In the event the use permitted shall be in compliance with the terms and conditions of this Code, the city manager shall, after inspection of the area, designated, return forthwith the cash bond to the permittee. (Code 1955, § 16-61; Code 1983, § 15-100)

Secs. 15-101—15-110. Reserved.

ARTICLE VII. GRAFFITI

Sec. 15-111. Prohibited conduct.

(a) *Graffiti prohibited.* No person shall write, paint, or draw any inscription, figure, or mark of any type on any public or private building or other real or personal property, owned, operated, or maintained by a governmental entity or any agency or instrumentality thereof or by any private person, firm, or corporation, unless the express permission of the owner or operator of the property has been obtained first.

(b) *Possession of spray paint and markers by minors on public property prohibited.* No person under the age of eighteen (18) years shall have in his or her possession any aerosol container of spray paint or broad-tipped indelible marker while on any public property, highway, street, alley or way except in the company of an adult.

(c) *Possession of spray paint and markers by minors on private property prohibited without consent of owner.* No person under the age of eighteen (18) years shall have in his or her possession any aerosol container of spray paint or broad-tipped indelible marker while on any private property unless the owner, agent or manager, or person in possession of the property knows of the minor's possession of the aerosol container or marker and has consented to the minor's possession while on his or her property.

(d) *Sale to minors prohibited.* No person or business shall sell or cause to be sold to any person under the age of eighteen (18) years, and no person under the age of eighteen (18) years shall buy any aerosol container of spray paint or broad-tipped indelible markers. Evidence that a person, an employee, or agent of a busi-

ness demanded and was shown bona fide evidence of majority and acted upon such evidence in a transaction or sale shall be a defense to any prosecution hereof.

(e) *Display of signs.* Every person who owns, conducts, operates or manages a retail or wholesale commercial establishment which sells aerosol containers of spray paint or broad-tipped indelible markers shall place a sign provided by the city in clear public view at or near the display of such products stating that graffiti is a crime.

(Code 1983, § 15-111; Ord. No. 13-07, § 2, 4-10-2013)

Sec. 15-112. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Broad-tipped indelible marker means any felt-tip marker, or similar implement, which contains a fluid which is not water soluble and which has a flat or angled writing surface one-half (½) inch or greater. Broad-tipped indelible markers shall not include the normal range of school or art supplies.

Graffiti means an inscription or drawing on a wall or other surface visible from the public right-of-way or from another parcel of land.

(Code 1983, § 15-112; Ord. No. 13-07, § 2, 4-10-2013)

Sec. 15-113. Violation of section 15-111; penalties therefor.

Any person convicted of a violation of section 15-111(a), (b), and (c) shall be punished by a fine of not less than two hundred fifty dollars (\$250.00) or more than five hundred dollars (\$500.00). Violations of subsection 15-111(d) or (e) shall result in a civil penalty of not more than one hundred dollars (\$100.00) for a first offense and not more than two hundred dollars (\$200.00) for subsequent offenses. Once three (3) violations of subsection 15-111(e) occur within any calendar year at a commercial establishment, that establishment shall be subject to an injunction from a court of competent jurisdiction forbidding the sale of aerosol containers of spray paints and broad-tipped indelible markers for a period of two (2) years. Violation of said injunction shall be punishable by a fine of one hundred dollars (\$100.00) per day in addition to any other penalties levied by the court. Where a minor is found to have

violated section 15-111, the fine imposed by this section shall be assessed against such minor's parents or legal guardian. Any aggrieved party may appeal any final order imposing a fine herein to the appropriate forum.

(Code 1983, § 15-113; Ord. No. 13-07, § 2, 4-10-2013)

Sec. 15-114. Order to remove graffiti.

When the city becomes aware of the existence of graffiti on any property, within the city, a code compliance officer or police officer is authorized to give or cause to be given to the owner of the property notice to remove the graffiti from the property.

(Code 1983, § 15-114; Ord. No. 13-07, § 2, 4-10-2013)

Sec. 15-115. Failure to remove or request city for assistance in removing graffiti.

It shall be unlawful for any person or firm owning property where graffiti has occurred to fail to remove or request the city for assistance to remove the graffiti from such property within fourteen (14) days from receipt of the notice described in section 15-114.

(Code 1983, § 15-115; Ord. No. 13-07, § 2, 4-10-2013)

Sec. 15-116. Anti-graffiti trust fund.

There is hereby created the City of Opa-locka Anti-Graffiti Trust Fund. Civil penalties assessed against violators of this article as set forth in section 15-113 ultimately received by the city shall be placed in the fund. The city commissioners shall direct the expenditure of monies in the fund. Such expenditures shall be limited to the payment of the cost of removal of graffiti, the costs of administering this article, and such other public purposes as may be approved by the city commission by resolution.

(Code 1983, § 15-116; Ord. No. 13-07, § 2, 4-10-2013)

Sec. 15-116.1. Police office authorized to remove vehicle.

A police officer is authorized to remove a vehicle to the request garage or other place of safety, or to a garage designated or maintained by the county or by the municipality when a vehicle is used by a person engaging in the commission a violation of section 15-111(a) through (c).

(Code 1983, § 15-116.1; Ord. No. 13-07, § 2, 4-10-2013)

ARTICLE VIII. SEX OFFENDERS

Sec. 15-117. Sex offender residency prohibition.

(a) It is unlawful for any person who has been convicted of a violation of F.S. § 794.011, 800.04, 827.071, or 847.0145, regardless of whether adjudication has been withheld, in which the victim of the offense was less than sixteen (16) years of age, to reside within two thousand five hundred (2,500) feet of any school, designated public school bus stop, day care center, park, playground, or other place where children regularly congregate.

(b) Reserved.

(c) This section applies to any person convicted of a violation of F.S. § 794.011, 800.04, 827.071, or 847.0145 for offenses that occur on or after October 1, 2004.

(Code 1983, § 15-117; Ord. No. 05-08, § 1, 6-8-2005)

Secs. 15-118—15-130. Reserved.

**ARTICLE IX. PROHIBITIONS ON THE USE OF
MOTORIZED SCOOTERS, ALL-TERRAIN
VEHICLES, DIRT BIKES, AND GO-PEDS**

Sec. 15-131. Definitions; exemptions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

All-terrain vehicles (ATV) means a vehicle having or not having a seat, designed to travel on three (3) or four (4) wheels that is designed to travel on various types of terrain.

Dirt bike means a lightweight motorcycle designed for operation on unpaved surfaces.

Go-ped means and includes a variety of motorized scooters.

Motorized scooter means and includes any vehicle or micromobility device that is powered by a motor with or without a seat or saddle for the use of the rider, which is designed to travel on not more than three wheels, and which is not capable of propelling the vehicle at a speed greater than twenty (20) miles per hour on level ground. The term "motorized scooter" does not include an electric bicycle.

Vehicle means and includes every device, in, upon, or by which any person or property is or may be transported or drawn upon a highway, excepting devices used exclusively upon stationary rails or tracks.

The provisions of this article shall not apply to the use of any self-propelled wheelchair, electric scooter, or other mobility device by an individual with mobility impairment.

(Code 1983, § 15-131; Ord. No. 05-13, § 2(15-117), 7-27-2005)

Sec. 15-132. Motor scooters, all-terrain vehicles, dirt bikes and go-peds prohibited.

It shall be unlawful for any person to operate or allow to be operated a motorized scooter, all-terrain vehicle, dirt bike or go-ped on any public property, including, but not limited to, sidewalks, swales, roads, streets, trails, parks, parking facilities or driveway aprons. (Code 1983, § 15-132; Ord. No. 05-13, § 2(15-118), 7-27-2005)

Sec. 15-133. Penalties.

(a) It shall be unlawful for any person to violate any regulation contained herein, and it shall be unlawful for the parent of any child or guardian of any ward to authorize or knowingly permit any such or guardian of any ward to authorize or knowingly permit any such child or ward to violate any regulation established hereby.

(b) Every person not a juvenile, as such, is defined by the laws of the state, found guilty of a violation of this article shall be punished by a fine of not more than one hundred dollars (\$100.00) and/or by the impounding of such person's motorized scooter, all-terrain vehicle, dirt bike or go-ped for a period not to exceed ninety (90) days. The penalties provided for in this article are in addition to any other penalties permitted by general law.

(Code 1983, § 15-133; Ord. No. 05-13, § 2(15-119), 7-27-2005)

ARTICLE X. SIGNALIZED INTERSECTION SAFETY

Sec. 15-134. Reserved.

Sec. 15-135. Use of traffic infraction detectors.

The city exercises its option under F.S. §§ 316.008 and 316.0083 use traffic infraction detectors within its jurisdiction to enforce F.S. § 316.074(1) or 316.075(1)(c) when a driver fails to stop at a traffic signal on streets and highways in the city's jurisdiction. The city may utilize traffic infraction detectors as a supplemental means of monitoring and assisting law enforcement personnel in the enforcement of compliance with laws related to traffic control signals as permitted and provided for by state law, which are designed to protect and improve the public health, safety, and welfare of the community and thereby reduce accidents, injuries and disruption of traffic associated with such violations. (Code 1983, § 15-135; Ord. No. 13-22, § 3, 7-10-2013)

Sec. 15-136. Implementation of general law and designation of local hearing officer.

The city authorizes the implementation within the city of the provisions and requirements of chapters 2010-80 and 2013-160, Laws of Florida. The city may utilize its code enforcement special magistrate as its local hearing officer, as defined by chapter 2013-160, Laws of Florida (CS/CS/HB 7125 (2013)), in accordance with the provisions of the Mark Wandall Traffic Safety Act.

(Code 1983, § 15-136; Ord. No. 13-22, § 3, 7-10-2013; Ord. No. 17-20, § 2, 12-13-2017)

Sec. 15-137. Penalties.

All penalties and cost shall be collected in accordance with the Mark Wandall Traffic Safety Act. The administrative cost for a hearing held before the special magistrate hearing officer shall not exceed the amount set forth in the Mark Wandall Traffic Safety Act.

(Code 1983, § 15-137; Ord. No. 15-32, § 2, 11-12-2015)

Secs. 15-138—15-140. Reserved.

ARTICLE XI. SYNTHETIC SUBSTANCES

Sec. 15-141. Definition.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Granular incense means incense that is packaged in a loose, leafy or granular manner or that is packaged in

small blocks which can be easily crushed or placed into drug paraphernalia for purposes of ingestion through smoking or other methods.

(Code 1983, § 15-141; Ord. No. 12-14, § 2, 7-25-2012)

Sec. 15-142. Sale of substances.

The sale, offer for sale, purchase with intent to sell, and public display for sale of granular incense within the city is hereby prohibited.

(Code 1983, § 15-142; Ord. No. 12-14, § 2, 7-25-2012)

Sec. 15-143. Enforcement.

This article may be enforced pursuant to this Code and chapter F.S. ch. 162 by any code enforcement officer or police officer of the city. All granular incense offered for sale in violation hereof is subject to seizure and impoundment as a public nuisance, or punishable by a fine not to exceed five hundred dollars (\$500.00).

(Code 1983, § 15-143; Ord. No. 12-14, § 2, 7-25-2012)

Chapter 16

PARKS AND RECREATION*

Article I. In General

- Sec. 16-1. Teen and young adult advisory board.
- Sec. 16-2. Recreational programs limited to residents; nonresident use of city facilities.
- Secs. 16-3—16-19. Reserved.

Article II. Use and Conduct Regulations

Division 1. Generally

- Sec. 16-20. Policy declared.
- Sec. 16-21. Definitions.
- Sec. 16-22. Reserved.
- Sec. 16-23. Rules authorized; ejection of violators.
- Sec. 16-24. Temporary closing and exclusion of public.
- Sec. 16-25. City's right to enter.
- Sec. 16-26. Designation of areas for specific use.
- Sec. 16-27. Activities confined to designated areas.
- Sec. 16-28. Permit required for group use.
- Sec. 16-29. Conditions to permit issuance.
- Sec. 16-30. Notice of permit denial.
- Sec. 16-31. Appeal of permit denial.
- Sec. 16-32. Permit revocation.
- Sec. 16-33. Reserved.
- Secs. 16-34—16-42. Reserved.

Division 2. Specific Regulations

- Sec. 16-43. Interfering with city personnel.
- Sec. 16-44. Entering, remaining during closing hours.
- Sec. 16-45. Duty to leave on request.
- Sec. 16-46. Damaging property.
- Sec. 16-47. Damaging vegetation.
- Sec. 16-48. Removing natural resources.
- Sec. 16-49. Polluting waters.
- Sec. 16-50. Disposal of rubbish.
- Sec. 16-51. Hunting, molesting wildlife.
- Sec. 16-52. Alcoholic beverages.
- Sec. 16-53. Reserved.
- Sec. 16-54. Fires.
- Sec. 16-55. Fireworks.
- Sec. 16-56. Reserved.
- Sec. 16-57. Conducting, participating in unpermitted meeting.
- Sec. 16-58. Sound amplifiers, musical instruments.
- Sec. 16-59. Sales.
- Sec. 16-60. Signs or posters.
- Sec. 16-61. Sleeping, camping, overnight parking.
- Sec. 16-62. Traffic.
- Sec. 16-63. Water activities.
- Sec. 16-64. Utilities.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

CODE CITE

- Sec. 16-65. Aircraft and parachuting.
- Sec. 16-66. Smoking prohibited in outdoor areas in the city parks.

ARTICLE I. IN GENERAL

Sec. 16-1. Teen and young adult advisory board.

(a) *Created; membership; terms; officers; procedures.* There is hereby created and established a teen and young adult advisory board for participation by residents of the city between the ages of 16 and 21 years. The advisory board shall consist of five (5) members, one (1) of whom shall be selected and appointed by each member of the city commission. Terms of office shall correspond to the term of office of the appointing city commissioner. The advisory board shall select and designate from its membership a chairman and vice-chairman. The board shall be governed by the rules of procedures applicable to all boards within the city.

(b) *Meetings; clerical help.* The advisory board shall meet once each month at a time to be selected by a majority of its membership. The city manager shall supply necessary clerical help in order to provide for the taking of minutes and reporting conclusions and recommendations to the city commission on a monthly basis.

(c) *Duties.* The advisory board shall advise the city commission in all matters involving the administration of the city government, commission policies, projects, activities and events wherein youth, teen and young adult participation is requested or desired. In addition, the board shall make recommendations on increasing youth, teen and young adult participation in local governments, seek ways to improve communication with students and young adults within the City, organize and perform services projects that benefit the City, recommend the creation of programs for youth, teens and young adults and assume and carry out such duties as may from time to time be directed by the city commission.

(d) *Filling vacancies.* Unexpired terms created by resignation, death or removal, shall be filled by the city commissioner or his successor originally making the appointment vacated.
(Code 1955, § 2-36; Code 1983, § 16-1; Ord. No. 2023-06, § 2(16-1), 3-22-2023)

Sec. 16-2. Recreational programs limited to residents; nonresident use of city facilities.

Only residents of the city may participate in any city-organized recreation program. Any outside orga-

nization wishing to use the city parks or facilities must meet the guidelines and have the approval of the city manager.

(Code 1955, § 2-35; Code 1983, § 16-2)

Secs. 16-3—16-19. Reserved.

ARTICLE II. USE AND CONDUCT REGULATIONS

DIVISION 1. GENERALLY

Sec. 16-20. Policy declared.

It is the general purpose and intent of this article to establish uniform procedures for the administration of parks and recreational facilities in the city, to establish a system of regulations and rules governing the activities within the parks and recreational facilities; to declare certain activities as violations of rules and regulations; to provide for criminal penalties for violation of the rules and regulations; to allow expulsion from a park or recreational facility for violation of a rule; and to provide a procedure for establishing permits for activities within designated areas and to set methods for the administration of parks and recreational facilities.

(Code 1955, § 16A-21; Code 1983, § 16-20)

Sec. 16-21. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alcoholic beverages means any beer, wine, fortified wine, liquor or other alcoholic beverage defined in F.S. ch. 561.

Closing hours means that time period which a park or recreational facility is closed to the general public.

Department means the department of parks and recreation of the city.

Designated area means that geographical area which has been designated by the department for a specific activity or activities within a park or recreation area.

Director means the manager or the person appointed by him to coordinate all park and recreation programs and facilities.

Governmental unit means any governmental body which exercises police jurisdiction over a park or recreational facility.

Gun means any instrument capable of firing a projectile or bullet at a high velocity, including, but not limited to, any air gun, sling or slingshot.

Motor vehicle means a vehicle which is self-propelled.

Park means a park, reservation, playground, beach, recreation center or other area owned, leased or used by the department and devoted to active or passive recreation.

Permit means a written document issued by the department granting permission for a specific activity.

Recreational facility means a facility for recreational purposes on property owned, leased or used by the department.

Regulation means a regulation approved by the commission which governs the use of parks and recreational facilities and the violation of which subjects the offender to criminal penalties.

Rule means a rule approved by the commission which governs the use of parks or recreational facilities and the violation of which subjects the offender to rejection or expulsion from park or recreational facilities.

Vehicle means any wheeled conveyance, whether motor powered, animal drawn or self-propelled. The term "vehicle" shall include any trailer in tow or any size, kind or description.
(Code 1955, § 16A-22; Code 1983, § 16-21)

Sec. 16-22. Reserved.

Sec. 16-23. Rules authorized; ejection of violators.

(a) The commission, by resolution, shall adopt rules governing the use of parks and recreational facilities owned, leased or operated by the city, which may include, but are not limited to, the use of supplies and equipment, the charge and payment of fees, the hours of operation, the use and parking of vehicles, the con-

duct and overall safety of persons within parks and the general use of parks and recreational facilities for each such park or recreational facility as may be necessary.

(b) Any person violating a rule may be expelled or ejected from any park or recreational facility.
(Code 1955, § 16A-23; Code 1983, § 16-23)

Sec. 16-24. Temporary closing and exclusion of public.

In an emergency, when the department shall determine that the public interest, health, morals and safety require such action, any park or recreational area or any part thereof may be closed and all persons may be excluded from such area.
(Code 1955, § 16A-25; Code 1983, § 16-24)

Sec. 16-25. City's right to enter.

The department and its employees shall have the right at all times to enter the premises of any building, structure or enclosure of any park or recreational facility, including such grounds, buildings, structures or enclosures as may be leased or set aside for private or exclusive use of any individual or group.
(Code 1955, § 16A-25; Code 1983, § 16-25)

Sec. 16-26. Designation of areas for specific use.

The director shall have the power to designate areas and facilities in parks and recreational facilities for specific activities, and to prohibit other activities within the designated area. The director shall be the official custodian of a list of all areas which have been designated for specific activities. Such list shall contain a description of the property which is designated for a specific activity and the nature of the activities which are permitted. The director is authorized to post designated areas when, in his discretion, such posting is appropriate.
(Code 1955, § 16A-27; Code 1983, § 16-26)

Sec. 16-27. Activities confined to designated areas.

No person shall play or participate in any game or organized activity, including, but not limited to, football, baseball, basketball or any such game, in any park or recreational facility, except in areas designated for such use.
(Code 1955, § 16A-25; Code 1983, § 16-27)

Sec. 16-28. Permit required for group use.

Any lodge, society, social organization, social club, group or other organization of ten (10) or more persons, desiring to use any park or recreational facility for a picnic or other recreational purpose shall obtain a permit from the department not less than seven (7) days prior to such use. Such permit shall be signed by the director or his duly authorized representative.
(Code 1955, §§ 16A-25, 16A-26; Code 1983, § 16-28)

Sec. 16-29. Conditions to permit issuance.

The department may issue a permit for group use when it has been established:

- (a) That the proposed activity will occur within an area in which it is proper for the activity to occur.
- (b) That the proposed activity or use will not unreasonably interfere or detract from the general public enjoyment of the park or recreational area.
- (c) That there are adequate facilities and personnel in the proposed areas so that the proposed activity will not impair the health, safety and welfare of the persons who will engage in the proposed activities, nor will the proposed activity impair the health, safety, welfare or recreation of the general public.
- (d) That the desired facility has not been reserved for other use at the time requested.
- (e) In the event any proposed activity may constitute a hazard to any person or property, the department, as a condition to the issuance of a permit, may require public liability insurance in an amount the department deems appropriate to protect such person or property.

(Code 1955, § 16A-26; Code 1983, § 16-29)

Sec. 16-30. Notice of permit denial.

In the event any applicant is refused a group use permit, the department shall notify the applicant within ten (10) days of the reason for refusing such permit.
(Code 1955, § 16A-26; Code 1983, § 16-30)

Sec. 16-31. Appeal of permit denial.

The applicant may appeal the refusal of a group use permit to the commission within ten (10) days after

notification of such refusal is sent, by filing a petition with the city clerk, stating why the applicant should receive a permit.

(Code 1955, § 16A-26; Code 1983, § 16-31)

Sec. 16-32. Permit revocation.

The department or its duly authorized representative shall have the authority to revoke a group use permit upon finding a violation of any rule or regulation.

(Code 1955, § 16A-26; Code 1983, § 16-32)

Sec. 16-33. Reserved.**Secs. 16-34—16-42. Reserved.****DIVISION 2. SPECIFIC REGULATIONS****Sec. 16-43. Interfering with city personnel.**

No person shall hinder or oppose any officer, agent or employee of the department in the discharge of his duties or with the enforcement of the park regulations and rules.

(Code 1955, § 16A-24; Code 1983, § 16-43)

Sec. 16-44. Entering, remaining during closing hours.

No person shall enter or remain in a park or recreational area without a permit during closing hours if the closing hours are posted at the entrance of the park or recreational facility. No person shall enter or remain in a park or recreational facility after such person receives notice of the closing hours from a department employee.

(Code 1955, § 16A-24; Code 1983, § 16-44)

Sec. 16-45. Duty to leave on request.

No person who has violated a rule shall remain in a park or recreational facility after a department employee, police officer, sheriff's deputy, or employee of a governmental unit requests such person to leave or vacate a park or recreational facility.

(Code 1955, § 16A-24; Code 1983, § 16-45)

Sec. 16-46. Damaging property.

No person in any park or recreational facility shall willfully mark, deface, disfigure, tamper with, displace or remove any building, bridges, tables, benches, fire-

places, railings, paving or paving material, water lines, or other public utilities or parts or appurtenances thereof, signs, notices, or placards whether temporary or permanent, monuments, stakes, posts or other structures or equipment or any part of any of the aforesaid facilities, park property or appurtenances whatsoever, either real or personal in any park or recreational facility.

(Code 1955, § 16A-24; Code 1983, § 16-46)

State law reference—Criminal mischief, F.S. § 806.13.

Sec. 16-47. Damaging vegetation.

No person in any park or recreational area shall remove, cut, carve or transplant, any tree, shrubbery, lawn, plant or injure the bark or pick the flowers. No person shall attach any rope, wire or other contrivance to any tree or plant in any park or recreational facility.

(Code 1955, § 16A-24; Code 1983, § 16-47)

State law reference—Criminal mischief, F.S. § 806.13.

Sec. 16-48. Removing natural resources.

No person in any park or recreational facility shall remove any beach sand, whether submerged or not, any soil, rock, stones, plants, wood or other materials, or make any excavation by tool, equipment, blasting or other means or agency.

(Code 1955, § 16A-24; Code 1983, § 16-48)

Sec. 16-49. Polluting waters.

No person in any park or recreational facility shall throw or place or cause to be thrown or placed, any dirt, filth or foreign matter into the waters of any lake, pond, pool, river, inlet, tank or reservoir in any park or recreational facility.

(Code 1955, § 16A-24; Code 1983, § 16-49)

Sec. 16-50. Disposal of rubbish.

No person in any park or recreational facility shall throw, place, cast, deposit, dump or cause to be thrown, any ashes, refuse, offal, vegetables, garbage, dross, cinders, shells, straw, shavings, paper, scraps, dirt or like matter, filth or rubbish of any kind in any park, square, avenue, grounds, or recreational area, except to place the same in cans or receptacles provided for such matter.

(Code 1955, § 16A-24; Code 1983, § 16-50)

Sec. 16-51. Hunting, molesting wildlife.

No person in any park or recreational area shall hunt, catch, harm, kill, trap, chase, tease, shoot or throw missiles at any animal, reptile or bird except poisonous snakes. No person in any park or recreational areas shall remove or have in his possession the young of any wild animal or eggs or nest or young of any reptile or bird.

(Code 1955, § 16A-24; Code 1983, § 16-51)

Sec. 16-52. Alcoholic beverages.

No alcoholic beverages shall be sold, stored or consumed within any park or city recreation area, except by approval of city manager for sales or consumption at special events.

(Code 1955, §§ 3-48, 16A-24; Code 1983, § 16-52)

Sec. 16-53. Reserved.

Sec. 16-54. Fires.

No person in any park or recreational area shall ignite, set or maintain any fire for cooking or any other purpose unless such fire is within a designated area for such purpose.

(Code 1955, § 16A-24; Code 1983, § 16-54)

Sec. 16-55. Fireworks.

No person in any park or recreational area shall carry, fire or discharge any rocket, torpedo or other fireworks of any description without a permit from the department to discharge in an area designated for such purpose.

(Code 1955, § 16A-24; Code 1983, § 16-55)

Sec. 16-56. Reserved.

Sec. 16-57. Conducting, participating in unpermitted meeting.

No person shall conduct or participate in any public meeting, assembly, entertainment, tournament, religious gathering, demonstration, parade, procession or meeting on any subject, religious, social, political or otherwise, in any park or recreational area, unless a permit from the department has been issued for such meeting, assembly, entertainment, tournament, reli-

gious gathering, demonstration, parade or procession. Such a permit shall be issued upon a showing that public safety will not be endangered.
(Code 1955, § 16A-24; Code 1983, § 16-57)

Sec. 16-58. Sound amplifiers, musical instruments.

No person shall use any loudspeaker or other amplifying equipment nor shall any person play upon any musical instrument in any park or recreational area without a permit from the department.
(Code 1955, § 16A-24; Code 1983, § 16-58)

Sec. 16-59. Sales.

No person shall sell, keep, or offer for sale any tangible or intangible object, merchandise or thing for any consideration within any park or recreational area without a permit from the department.
(Code 1955, § 16A-24; Code 1983, § 16-59)

Sec. 16-60. Signs or posters.

No person shall post or affix to any tree, shrub, plant, fence, building, structure, monument, wall, table, apparatus, bridge, post, bench, corral, gate or any other physical object, any sign, poster or other printed or written matter in any park or recreational facility.
(Code 1955, § 16A-24; Code 1983, § 16-60)

Sec. 16-61. Sleeping, camping, overnight parking.

No person shall sleep, camp, lodge or park a vehicle overnight in any park or recreational area except in such areas as are designated for such purposes or without a permit from the department.
(Code 1955, § 16A-24; Code 1983, § 16-61)

Sec. 16-62. Traffic.

- (a) Reserved.
- (b) Reserved.

(c) Park employees may direct traffic in public works only in the absence of a police officer and when required for protection of the public.

(d) No person shall operate, drive or park any motor vehicle or other vehicle upon any road, driveway, path, parking area or other area unless such road, driveway, path, parking area or other area has been designated by the department for such purpose. No

person shall cause any vehicle for hire to stand upon any part of a park or recreational area for the purpose of soliciting passengers.

(e) No person shall drive a vehicle at a rate of speed exceeding five (5) miles per hour in any city park, unless the department has designated, by posted sign, a greater speed limit.

(f) No person shall park any vehicle in other than the area which is designated for parking. No person shall leave any vehicle standing or parked at night without lights clearly visible at least two hundred (200) feet upon said vehicle except in legally established parking areas or designated campsite areas.

(g) No person shall enter or exit from any park or recreational facility in any vehicle except on entrances and exits established for such purpose by the department.
(Code 1955, § 16A-24; Code 1983, § 16-62; Ord. No. 85-25, § 1, 12-4-1985)

Sec. 16-63. Water activities.

No person shall swim, ski, dive, surf, scuba dive, fish or use boats in any area in any park or recreational area unless such area is specifically designated for such purpose.
(Code 1955, § 16A-24; Code 1983, § 16-63)

Sec. 16-64. Utilities.

No person shall locate any utility upon any park or recreational facility without receiving a permit from the department.
(Code 1955, § 16A-24; Code 1983, § 16-64)

Sec. 16-65. Aircraft and parachuting.

No person shall ascend or land any aircraft, glider or parachute over or into any park or recreational facility without a permit from the department.
(Code 1955, § 16A-24; Code 1983, § 16-65)

Sec. 16-66. Smoking prohibited in outdoor areas in the city parks.

(a) It shall be unlawful for any person to smoke cigarettes, cigars, pipes or any other smoking apparatus on playing fields and playgrounds, bleacher areas, dugouts, around team seating areas, concession areas, spectator areas, restrooms, or any other areas not spe-

cifically designated as a permitted smoking area within any park owned and operated by the city. All designated smoking areas will be specifically demarcated by signs stating that "Smoking is permitted in this area."

(b) Upon an individual's first violation of this section, a city official or law enforcement officer may issue a warning to any person in violation of the provisions of this section. Any refusal by an individual to comply with this section upon issuance of a warning may result in a notice to appear being issued by a law enforcement officer for the violation and/or removal from the park. Upon the first conviction of this violation, a court of competent jurisdiction may impose a fine of twenty-five dollars (\$25.00).

(c) Any subsequent conviction of a violation of this section may result in additional fines and penalties, including court costs imposed by a court of competent jurisdiction.

(d) This section shall not apply to any person smoking within a parking lot located in a city park.
(Code 1983, § 16-66; Ord. No. 12-03, § 2, 2-22-2012)

Chapter 17

PLANNING AND DEVELOPMENT*

Article I. In General

- Sec. 17-1. Procedure for submission of planning and zoning board action to city commission.
Secs. 17-2—17-15. Reserved.

Article II. Comprehensive Planning

- Sec. 17-16. Authority.
Sec. 17-17. Agency designated.
Sec. 17-18. Duties of agency.
Sec. 17-19. Organization, rules and procedures of agency.
Sec. 17-20. Agency meetings, records to be public; public participation.
Sec. 17-21. Funding of agency.
Secs. 17-22—17-31. Reserved.

Article III. Subdivisions and Platting

Division 1. In General

- Sec. 17-32. Ordinances saved from repeal and continued.
Secs. 17-33—17-40. Reserved.

Division 2. Vacating Streets and Alleys

- Sec. 17-41. Petition application for vacating streets and alleys—Generally.
Sec. 17-42. Petition application for vacating streets and alleys—Form; address.
Sec. 17-43. Petition application for vacating streets and alleys—Contents.
Sec. 17-44. Petition application for vacating streets and alleys—Filing; number of copies required.
Sec. 17-45. Petition application for vacating streets and alleys—Procedure on receipt; distribution to reviewing agencies.
Sec. 17-46. Petition application for vacating streets and alleys—Hearing date; signs.
Sec. 17-47. Application of chapter to city commission proceedings.
Sec. 17-48. Vacating streets and alleys; payment of costs, expenses.

Division 3. Unity of Title

- Sec. 17-49. Definition of unity of title.
Sec. 17-50. When required.
Sec. 17-51. Specific requirements.
Sec. 17-52. Approval, release and recording.

*State law references—Community Planning Act, F.S. § 163.211 et seq.; Municipal Home Rule Powers Act, F.S. ch. 166.

ARTICLE I. IN GENERAL**Sec. 17-1. Procedure for submission of planning and zoning board action to city commission.**

All actions, resolutions, findings of fact and recommendations of the planning and zoning board requiring action by the city commission, including appeals, rezonings, variances, consideration of capital programs and recommendations, approval of land purchase and all other matters required by the charter and ordinances of the city to be considered by the planning and zoning board shall be submitted to the city commission in accordance with the following procedure:

- (a) All applicants filing notice of appeal to the city commission shall pay to the city clerk the full cost of advertising the public notice.
- (b) All applicants for change or modification of zoning prior to consideration of said matter by the city commission shall pay to the city clerk the full cost of advertising the public hearing.
- (c) The city commission shall consider all appeals and applications for affirmative relief or changes or modifications in zoning as may have been acted upon or recommended by the planning and zoning board as follows:
 - (1) All matters shall be considered at any regular or special city commission meeting not more than thirty (30) days, nor less than seven (7) days thereafter.
 - (2) Where an ordinance is required, the city commission may consider a necessary ordinance at first reading, however, second reading and final passage shall not be considered until compliance with the requirements of public notice set forth in section 2-132 or F.S. § 166.041, whichever is appropriate. All notices shall be sent by certified mail.
- (d) All other matters requiring action by the city commission shall be placed on the agenda of the city commission for the next regular meeting or within twenty (20) days after the planning and zoning board action.
- (e) No city or other governmental officer or agency or committee on behalf of a governmental unit shall be required to pay an appeal fee or

fee for public notice in any proceeding originating before the planning and zoning board or prior to consideration by the city commission.

- (f) In the event any public hearing is continued by the city commission, notice thereof shall be given in accordance with the provisions of this Code.

(Code 1955, § 25-17.4; Code 1983, § 17-1; Ord. No. 98-8, § 1, 7-22-1998)

Secs. 17-2—17-15. Reserved.

ARTICLE II. COMPREHENSIVE PLANNING***Sec. 17-16. Authority.**

This article is enacted pursuant to and in accordance with the provisions of the Community Planning Act (F.S. § 163.211 et seq.).

(Code 1955, § 25-14.1; Code 1983, § 17-16)

Sec. 17-17. Agency designated.

Pursuant to and in accordance with F.S. § 163.34174, the city commission and the planning and zoning board as a joint agency is hereby designated and established as the local planning agency for the city.

(Code 1955, § 25-14.1; Code 1983, § 17-17)

Sec. 17-18. Duties of agency.

The local planning agency, in accordance with F.S. §§ 163.3161—163.3211, shall:

- (a) Conduct the comprehensive planning program and prepare the comprehensive plan or elements or portions thereof for the city;
- (b) Coordinate said comprehensive plan or elements or portions thereof with the comprehensive plans of other appropriate local governments and the state;
- (c) Recommend said comprehensive plan or elements or portions thereof to the city commission for adoption; and
- (d) Monitor and oversee the effectiveness and status of the comprehensive plan and recom-

*State law reference—Community Planning Act, F.S. § 163.211 et seq.

mend to the city commission such changes in the comprehensive plan as may be required from time to time.

(Code 1955, § 25-14.1; Code 1983, § 17-18)

Sec. 17-19. Organization, rules and procedures of agency.

The local planning agency shall continue to be appointed and follow such rules of procedure, methods of seeking advice, setting of public meetings, providing of financial support, and accomplishing its duties as provided by the Charter and this Code.

(Code 1955, § 25-14.1; Code 1983, § 17-19)

Sec. 17-20. Agency meetings, records to be public; public participation.

All meetings of the local planning agency shall be public meetings and all agency records shall be public records. The local planning agency shall encourage public participation.

(Code 1955, § 25-14.1; Code 1983, § 17-20)

State law reference—Meetings to be open to public, F.S. § 286.011.

Sec. 17-21. Funding of agency.

The city commission shall appropriate funds at its discretion to the local planning agency for expenses necessary in the conduct of its work. The local planning agency may, in order to accomplish the purposes and activities required by the Community Planning Act (F.S. § 163.211 et seq.), expend all sums so appropriated and other sums made available for use from fee, gifts, state or federal grants, state or federal loans, and other sources; provided acceptance of loans or grants must be approved by the city commission.

(Code 1955, § 25-14.1; Code 1983, § 17-21)

Secs. 17-22—17-31. Reserved.

ARTICLE III. SUBDIVISIONS AND PLATTING*

DIVISION 1. IN GENERAL

Sec. 17-32. Ordinances saved from repeal and continued.

Nothing contained in this Code, or in the ordinance adopting this Code, shall be construed to repeal or

*State law reference—Plats and platting generally, F.S. § 177.011.

otherwise affect sections 25-18, 25-18.1, 25-18.2, 25-18.3 or 25-18.4 of the Code of Ordinances, City of Opa-locka, Florida, adopted November 29, 1955, as from time to time amended and supplemented, and said sections are hereby continued in full force and effect to the same extent as though set out in this Code. (Code 1983, § 17-32)

Secs. 17-33—17-40. Reserved.

DIVISION 2. VACATING STREETS AND ALLEYS

Sec. 17-41. Petition application for vacating streets and alleys—Generally.

All applications for vacating of public right-of-way (public street, road, alleyway, place or highway dedicated or acquired for travel or any part or portion thereof) shall be submitted to the department of planning and zoning. Standard application forms shall be made available in the department of planning and zoning office. Every petition addressed to the city concerning any way place, highway, street, alley or any land acquired for travel or any part or portion thereof to be vacated, closed, discontinued or abandoned, and requesting the city to release any right of the city and the public in and to any land delineated, dedicated or shown on any recorded map or plat as a street, road, alleyway, place or highway within the corporate limits of the city shall be presented to the city commission in the form and following the procedures set forth in this article. The petitioner shall use the petition form available from the department of zoning office.

(Code 1983, § 17-41; Ord. No. 14-02, § 2, 5-14-2014)

Sec. 17-42. Petition application for vacating streets and alleys—Form; address.

Vacating petition applications filed pursuant to this article shall be typewritten and shall be sworn to by the petitioner/applicant and shall include the post office address of the petitioner/applicant.

(Code 1983, § 17-42; Ord. No. 14-02, § 2, 5-14-2014)

Sec. 17-43. Petition application for vacating streets and alleys—Contents.

(a) Vacating petitions-applications filed under this article shall give an accurate legal description of the public street, road, alleyway, place of highway or any

part or portion thereof petitioned applied to be vacated, closed, discontinued and abandoned. If the vacating, closing, discontinuing and abandoning of a part or portion of an alleyway desired by the petitioner applicant to be vacated, closed, discontinued and abandoned would result in the creation of a dead-end alleyway, then the petitioner applicant is required to petition apply to vacate, close, discontinue and abandon the entire alleyway or such part or portion thereof as will preclude the creation of a dead-end alleyway, unless the petitioner applicant provides an adequate turnaround or cul-de-sac.

(b) The petition/applicant shall list the property owners' names, addresses and the property legal description, as reflected in the latest ad valorem tax records, of all property touching or abutting on the public street, road, alley, alleyway, place or highway or other right-of-way or any part or portion thereof requested to be vacated, closed, discontinued and abandoned. The petition/applicant shall provide proof of ownership by the applicant of the property which abuts the alley to be vacated and closed.

(c) The petitioner/applicant shall state the reason why the petitioner/applicant desires the closing of the street, road, alleyway, place or highway or any part or portion thereof. The petitioner/applicant shall provide a statement as to whether the general public currently uses the alley, including public service vehicles, such as trash and garbage trucks, police, fire and/or other emergency vehicles, during the past twelve (12) months.

(d) The petition application shall contain a recital as follows: The petitioner applicant(s) or petitioners herein named hereby waive, renounce, relinquish, absolve and discharge the city from any claim for damages of any nature and kind whatsoever that such petitioner applicants or petitioners may have or claim or demand, now or in the future, by reason of the vacating, closing, discontinuing and abandoning of the public street, road, alleyway, place or highway or any part or portion thereof.

(e) The petition application shall have attached thereto a drawing or blueprint of the subdivision in which the public street, road, alleyway, place or highway or any part or portion thereof to be vacated, closed, discontinued and abandoned is located or, if located in an unplatted area, of the streets, highways, roads, alleys and public places in the immediate area

surrounding the public street, road, alleyway, place or highway or any part or portion thereof to be vacated, closed, discontinued and abandoned.

(f) The petition application shall include the releases from all utility companies for the public street, road, alleyway, place or highway or any part or portion thereof to be vacated, closed, discontinued and abandoned.

(Code 1983, § 17-43; Ord. No. 14-02, § 2, 5-14-2014)

Sec. 17-44. Petition application for vacating streets and alleys—Filing; number of copies required.

Four (4) copies of the vacating petition application required by this article shall be filed with the department of planning and zoning.

(Code 1983, § 17-44; Ord. No. 14-02, § 2, 5-14-2014)

Sec. 17-45. Petition application for vacating streets and alleys—Procedure on receipt; distribution to reviewing agencies.

Upon receipt of the vacating petition application, the department of planning and zoning shall review for completeness. If complete, the department of planning and zoning shall distribute a to the department of law and all reviewing agencies, including, but not limited, to all applicable city agencies, other governmental agencies, and private utilities.

(Code 1983, § 17-45; Ord. No. 14-02, § 2, 5-14-2014)

Sec. 17-46. Petition application for vacating streets and alleys—Hearing date; signs.

(a) The department of planning and zoning shall promptly verify the legal description contained in the vacating petition application and forward written notice of such approval to the legal department for preparation of a resolution setting a public hearing regarding the vacating. Once the public hearing date has been set by the planning and zoning board meeting, the petitioner applicant's request shall be noticed according to city code requirements.

(b) A sign shall be placed at or near either end of a public street, road, alleyway, place or highway or any part or portion thereof which is to be vacated, closed, discontinued and abandoned. The sign shall be posted a minimum of thirty (30) days prior to the public hearing and shall provide notice of the proposed vacating, including the date and place set for the public

hearing. The affidavit shall include a statement by the petitioner applicant that the sign required herein was posted not less than thirty (30) days prior to the date set for the public hearing.

(c) In addition to such published notice, the petitioner-applicant, at his expense, shall immediately, upon the adoption of the resolution fixing the date for a public hearing and not less than thirty (30) days prior to the date set for the public hearing, send a copy of the published notice to the owner of every parcel of land abutting on the public street, road, alleyway, place or highway or any part or portion thereof petitioned proposed to be vacated, closed, discontinued and abandoned. The copy of the published notice shall be mailed to such owners at their usual post office addresses, by registered "certificate of mailing" with return receipt requested. When the return receipts are delivered to the petitioner, the petitioner. The applicant shall then prepare an affidavit indicating the abutting parcels of land, the names of the owners of such land, and the date and post office address to which each copy of the published notice was mailed. The petitioner applicant shall attach to the affidavit the return receipts post-marked list of the notices which were mailed, and the names of all officially registered neighborhood associations that were sent notice. The affidavit with return-receipts shall be filed with the city commission not less than fifteen (15) days prior to the date of the public hearing. Should an error or omission occur in the sending of these notices which requires re-advertisement of the notice of public hearing, the petitioner applicant shall pay an additional charge of seven hundred dollars (\$700.00) to the department of planning and zoning to cover the costs and expenses as a result of the error or omission. This payment shall be made at the time the petitioner submits a written request addressed to the director of the department of planning and zoning and filed with the clerk of the department of planning and zoning requesting a new date for a public hearing and setting out the reasons for the request.

(d) When all or a majority of the alley rights-of-way within a platted subdivision or within an area of four (4) or more contiguous blocks are included in a single petition application, then the posting of signs, as referred to in subsection (a) of this section, shall not be required for those alleys within that subdivision or for those alleys within the four (4) or more contiguous blocks referred to above.

(e) The petitioner applicant shall also send written notice by certificate of mailing entitled "good neighbor notice for vacating" no less than thirty (30) days prior to the public hearing, to the officially registered neighborhood association, as registered with the city, in which the subject property is located, and to all other officially registered neighborhood associations that lie within a three hundred (300) foot radius, including roads and streets, in all directions from the subject property, from the boundaries of the subject property rights-of-way. If the subject parcel rights-of-way does not lie within the boundaries of an officially registered neighborhood association or if no officially registered neighborhood association exists within the distance measurements as required by this subsection, the applicant shall mail the notice required herein to the closest officially registered neighborhood association, as measured in a straight line, on the neighborhood association map.

(Code 1983, § 17-46; Ord. No. 14-02, § 2, 5-14-2014)

Sec. 17-47. Application of chapter to city commission proceedings.

Nothing contained in this chapter shall be deemed or construed as applying to any proceedings instituted by the city commission in their own discretion and on their own motion relating to the vacating, closing, discontinuing and abandoning of any public street, road, alleyway, place or highway or any part or portion thereof.

(Code 1983, § 17-47; Ord. No. 14-02, § 2, 5-14-2014)

Sec. 17-48. Vacating streets and alleys; payment of costs, expenses.

(a) The petitioner/applicant requesting that any public street, road, alleyway, place or highway or any part or portion thereof be vacated, closed, discontinued and abandoned shall pay all costs and expenses to be incurred by the city, as follows:

- (1) The petitioner/applicant shall pay an amount that is the average between the assessed value and the market value of the vacated area. The assessed value shall be obtained from the county appraisers office and the market value shall be obtained from private professional property appraisers;

- (2) For the handling and processing of the petition application, including the publishing of notice of the public hearing;
- (3) For the posting of signs;
- (4) For the publishing of the vacating ordinance if the petition application is to be granted;
- (5) For the recording of a certified copy of the ordinance in the office of the clerk of the circuit court of the county;
- (6) For the review of the petition application.

(b) A payment in the amount as established by resolution of the city commission shall be made by the petitioner applicant to the department of planning and zoning before/with the petition is filed with the department of planning and zoning submittal of the application. A receipt showing the payment to the department of planning and zoning shall be attached to the petition application. No portion of this fee shall be refunded to the petitioner. Should an error (by the applicant or his agent in the original petition application occur that requires the filing of an amended petition application and re-advertisement of notice of the public hearing, and the additional cost charge and subsequent payment in the amount as established by resolution of the city commission to defray additional costs and expenses shall be made by the petitioner applicant to the department of planning and zoning, before the filing of the amended application will be rescheduled for a public hearing. A receipt showing the payment to the city of this additional fee shall be attached to the amended petition application. No portion of this additional fee shall be refunded to the petitioner.
(Code 1983, § 17-48; Ord. No. 14-02, § 2, 5-14-2014)

DIVISION 3. UNITY OF TITLE

Sec. 17-49. Definition of unity of title.

The term "unity of title" means a written agreement executed by and between a property owner and the city, whereby the property owner for a specified consideration by the city agrees that the lots and/or parcels of land constituting the building site shall not be conveyed, mortgaged and/or leased separate and apart from each other and that they shall be held together as one (1) tract. The form shall be consistent with exhibit A attached to the ordinance from which this division is derived. Such unity of title shall be recorded in the

county public records and shall run with the land and shall be binding upon the property owners, their successors and assigns.
(Code 1983, § 17-49; Ord. No. 20-02, § 2, 1-8-2020)

Sec. 17-50. When required.

As a prerequisite to the issuance of a building permit, the owner in fee simple title shall submit a unity of title in recordable form to the department of planning and zoning providing that all of the property encompassing the building site upon which the building and appurtenances are to be located shall be held together as one (1) tract of land and providing that no part or parcel shall be conveyed or mortgaged separate and apart from the building site, as set forth under the site plan and the building permit in the following cases:

- (1) Whenever the required off-street parking is located on contiguous lots or parcels or is located off-site, as provided for under land development regulations, article VI, relating to off-site parking.
- (2) Whenever the building site consists of more than one (1) lot or parcel and the main building is located on one (1) lot or parcel and accessory use buildings or structures are located on the remaining lot or parcel comprising the building site.
- (3) Whenever the building site consists of more than one (1) lot or parcel and the main building is located on one (1) or more of the lots or parcels and the remaining lots or parcels encompassing the building site are required to meet the minimum zoning requirements.
- (4) Whenever a building is to be constructed or erected upon a lot or parcel which is larger in frontage, depth and/or area than the minimum required by the zoning ordinance and which lot or parcel would be susceptible to further re-subdivision in accordance with the zoning ordinance and subdivision provisions of this Code.
- (5) Whenever the city provides that a unity of title shall be executed as a condition for the granting of a variance or permit.
- (6) Whenever a unity of title is specifically required by an ordinance or resolution passed and adopted by the city commission.

(7) Whenever a site plan and/or building site consists of more than one (1) platted lot.
(Code 1983, § 17-50; Ord. No. 20-02, § 2, 1-8-2020)

Sec. 17-51. Specific requirements.

(a) The owner shall provide a certificate of ownership by way of an opinion of title from an attorney licensed to practice law in the state. Said opinion of title, which shall be from the point of beginning, shall be based upon an abstract brought up within ten (10) days of the requirement that such unity of title be recorded.

(b) The opinion of title shall include the names and addresses of all mortgagees and lien holders, the description of the mortgages and/or liens and the status of all real estate taxes due and payable.

(c) The unity of title shall be executed with the same formality and manner as a warranty deed under the laws of the state.
(Code 1983, § 17-51; Ord. No. 20-02, § 2, 1-8-2020)

Sec. 17-52. Approval, release and recording.

(a) The unity of title shall be subject to approval by the director of the department of planning and zoning and the city attorney as to form and content.

(b) Any unity of title required by this section shall not be released except as specified in the legal instrument used to record said unity of title; any unity of title agreement which does not contain a release clause or procedures for release, may be released by the director of the department of planning and zoning in a form acceptable to the city attorney, upon a determination by the director of the department of planning and zoning that the unity of title agreement is no longer necessary; in the absence of such a determination, the unity of title shall be released only by resolution passed and adopted by the city commission. Releases approved pursuant to this section shall be recorded in the county public records at the property owner's expense.
(Code 1983, § 17-52; Ord. No. 20-02, § 2, 1-8-2020)

Chapter 18

POLICE*

Article I. In General

- Sec. 18-1. Department created.
- Sec. 18-2. Appointment of chief of police; general duties; absence.
- Sec. 18-3. Commissioning of officers.
- Sec. 18-4. Oath of office.
- Sec. 18-5. Power and authority to enforce ordinances.
- Sec. 18-6. Departmental rules, regulations and policies.
- Sec. 18-7. Security; traffic control.
- Secs. 18-8—18-32. Reserved.

Article II. Alarm Systems

- Sec. 18-33. Definitions.
- Sec. 18-34. Alarm permit.
- Sec. 18-35. Duties of the alarm user.
- Sec. 18-36. Duties of the alarm company.
- Sec. 18-37. Prohibited acts.
- Sec. 18-38. Enforcement of provisions.
- Sec. 18-39. Appeals.
- Sec. 18-40. Government immunity.
- Sec. 18-41. Severability.
- Sec. 18-42. Fee schedule.
- Secs. 18-43—18-45. Reserved.

Article III. Gated Communities

- Sec. 18-46. Definitions.
- Sec. 18-47. Intent.
- Sec. 18-48. Requirements.
- Sec. 18-49. Maintenance.
- Sec. 18-50. Violations.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

ARTICLE I. IN GENERAL**Sec. 18-1. Department created.**

There is hereby created a department of the city to be known as the police department, vested with all of the authority and duties normally vested in municipal police departments or divisions.
(Code 1955, § 18-1; Code 1983, § 18-1)

Sec. 18-2. Appointment of chief of police; general duties; absence.

(a) The head of the city police department shall be known as the chief of police. He shall be appointed by and serve at the will of the city manager. He shall have the immediate direction and control of the city police department, herein created, subject only to the limitations and restrictions set forth in the Charter of the city. He shall devote his entire time to the discharge of his official duties and shall not be absent from the city except in the performance of his official duties, unless granted a written leave of absence by the city manager. He shall be on call at all hours, day and night, and in case of his disability by reason of sickness, absence from the city or other cause, the city manager may designate any competent person to act as chief of police during such disability, or absence.

(b) The city manager shall serve as the public safety director ex officio and shall directly supervise the chief of police regarding the enforcement of law and order in the city.

(c) The city manager is hereby authorized and directed to enter into interlocal mutual aid agreements with each participating law enforcement agency in the county and state at the earliest possible moment in order to be prepared to meet the needs of the citizens of the city in the prevention of crime.
(Code 1955, § 18-2; Code 1983, § 18-2; Ord. No. 89-7, § 1, 6-28-1989; Ord. No. 90-2, § 1, 1-10-1990)

Sec. 18-3. Commissioning of officers.

Each member of the city police department shall have issued to him a warrant of appointment, signed by the city manager and attested by a notary public in which the date of his appointment shall be stated, and such shall be his commission.
(Code 1955, § 18-5; Code 1983, § 18-3; Ord. No. 90-2, § 1, 1-10-1990)

Sec. 18-4. Oath of office.

The chief of police and each member of the city police department shall, before entering upon his duties, subscribe to an oath as prescribed by F.S. § 876.05.
(Code 1955, § 18-6; Code 1983, § 18-4; Ord. No. 90-2, § 1, 1-10-1990)

Sec. 18-5. Power and authority to enforce ordinances.

The chief of police and the other city employees commissioned by the city manager are hereby invested with all the power and authority necessary for enforcing the provisions of this Code and all ordinances of the city.
(Code 1955, § 18-7; Code 1983, § 18-5; Ord. No. 90-2, § 1, 1-10-1990)

Sec. 18-6. Departmental rules, regulations and policies.

(a) The Manual of General Orders and Policies, attached to Ordinance No. 79-5 and made a part thereof, is hereby adopted and designated as police rules of the city as follows:

Rule 1: Order 1, sections 1.1 through 1.16.

Rule 2: Order 2, sections 2.1 through 2.19.

Rule 3: Order 3, sections 3.1 through 3.13.

Rule 4: Order 4, sections 4.1 through 4.20.

Rule 5: Order 5, sections 5.1 through 5.14.

Rule 6: Order 6, sections 6.1 through 6.9.

Rule 7: Order 7, sections 7.1 through 7.17.

Rule 8: Order 8, sections 8.1 through 8.8.

Rule 9: Order 9, sections 9.1 through 9.3.

(b) The police trainee employees agreement attached to Ordinance No. 79-5 and made a part thereof is hereby adopted and designated as "Rules and Regulations of the Opa-locka Police Department," and all police trainees shall execute said agreement prior to receiving training through the city police department.

(c) The policies attached to Ordinance No. 79-5 and made a part thereof are hereby adopted as rules and regulations of the police department as follows:

Rule #11: Policy #11, sections 11.1 through 11.4.

Rule #12: Policy #12, sections 12.1 through 12.17.

Rule #13: Policy #13, sections 13.1 through 13.5.

Rule #14: Policy #14, sections 14.1 through 14.8.

Rule #15: Policy #15, sections 15.1 through 15.8.

Rule #16: Policy #16, sections 16.1 through 16.12.

Rule #17: Policy #17, sections 17.1 through 17.4.
(Code 1983, § 18-6; Ord. No. 79-5, § 4, 1-24-1979)

Sec. 18-7. Security; traffic control.

All contractors and vendors performing work in the city and in need of police services for security and/or traffic control shall utilize the services of the city police department.
(Code 1983, § 18-7; Ord. No. 07-18, § 2, 10-24-2007)

Secs. 18-8—18-32. Reserved.

ARTICLE II. ALARM SYSTEMS

Sec. 18-33. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alarm company means a person subject to the licensing requirements, and/or a company engaged in selling, leasing, installing, servicing or monitoring alarm systems.

Alarm permit means a permit issued by the city police department allowing the operation of an alarm system within the city.

Alarm signal means a detectable signal, audible or visual, generated by an alarm system, to which law enforcement is requested to respond.

Alarm system means any single device or assembly of equipment designed to signal the occurrence of an illegal or unauthorized entry or other activity requiring immediate attention and to which law enforcement is requested to respond, including non-monitored alarms, but does not include motor vehicle or boat alarms, fire alarms, domestic violence alarms, or alarms designed to elicit a medical response.

Alarm user means any person, corporation, partnership, proprietorship, governmental or educational en-

tity or any other entity owning, leasing, or operating an alarm system, or on whose premises an alarm system is maintained for the protection of such premises.

Automatic dial protection device means an automatic dialing device or an automatic telephone dialing alarm system and shall include any system which, upon being activated, automatically initiates to the city police department a recorded message or code signal indicating a need for law enforcement response.

Cancellation means the process where response is terminated when the alarm company (designated by the alarm user) notifies the city police department that there is not an existing situation at the alarm site requiring police response after an alarm dispatch request.

City means the City of Opa-locka or its agent.

False alarm means the activation of an alarm system through mechanical or electronic failure, malfunction, improper installation, or the negligence of the alarm user, his/her employees or agents, and signals activated to summon law enforcement personnel unless law enforcement response was canceled by the alarm company before law enforcement personnel arrive at the alarm location. An alarm is false within the meaning of this article when, upon inspection by the city police department, evidence indicates that no unauthorized entry, robbery, or other such crime was committed or attempted in or on the premises which would have activated a properly functioning alarm system. Notwithstanding the foregoing, a false alarm shall not include an alarm which can reasonably be determined to have been caused or activated by unusually violent conditions of nature, nor does it include other extraordinary circumstances not reasonably subject to control by the alarm user.

Permit year means a twelve (12) month period beginning on the day and month on which an alarm permit is issued.

SIA Control Panel Standard CP-OI means the American National Standard Institute (ANSI) approved Security Industry Association (SIA) CP-Old Control Panel Standard as may be updated time to time that details recommended design features for security system control panels and their associated arming and disarming devices to reduce false alarms.

Verify means an attempt by the monitoring company, or its representative to contact the alarm site

and/or alarm user by telephone and/or other electronic means, whether or not actual contact with a person is made to attempt to determine whether an alarm signal is valid before requesting law enforcement dispatch, in an attempt to avoid an unnecessary alarm dispatch request.

(Code 1983, § 18-33; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-34. Alarm permit.

(a) *Permit required.* No person shall use an alarm system monitored or non-monitored, without first obtaining a permit for such alarm system from the city police department. A fee of twenty-five dollars (\$25.00) is required for the initial registration and annual renewal. Alarm permit fee amounts may be amended from time to time by resolution of the city commission. Each alarm permit shall be assigned a unique permit number and the user shall provide the permit number to the alarm company to facilitate law enforcement dispatch.

(b) *Application.* The permit shall be requested on an application form provided by the city police department. An alarm user has the duty to obtain an application from the city police department.

Transfer of possession. When the possession of the premises at which an alarm system is maintained is transferred, the person (user) obtaining possession of the property shall file an application for an alarm permit within thirty (30) days of obtaining possession of the property. Alarm permits are not transferable.

Reporting updated information. Whenever the information provided on the alarm permit application changes, the alarm user shall provide correct information to the city police department within ten (10) days of the change. In addition, each year after the issuance of the permit, permit holders will receive from the city police department a form requesting updated information. The permit holder shall complete and return this form to the city police department when any of the requested information has changed; failure to comply will constitute a violation and may result in a civil penalty.

Multiple alarm systems. If an alarm user has one (1) or more alarm systems protecting two (2) or more

separate structures having different addresses and/or tenants, a separate permit shall be required for each structure and/or tenant.

(Code 1983, § 18-34; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-35. Duties of the alarm user.

An alarm user must do the following:

Maintain the premises and the alarm system in a method that will reduce or eliminate false alarms.

Provide the alarm company the permit number (the number must be provided to the communications center by the alarm company to ensure dispatch).

Respond or cause a representative to respond to the alarm system's location within one (1) hour when notified by the city police department.

Not manually activate an alarm for any reason other than an occurrence of an event that the alarm system was intended to report.

Obtain a new permit and pay any associated fees if there is a change in address or ownership of a business or residence.

It is the responsibility of each alarm user to monitor the occurrences of false alarms on its premises.

(Code 1983, § 18-35; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-36. Duties of the alarm company.

Any person engaged in the alarm business in the city, shall comply with the following:

- (1) F.S. ch. 489.

Obtain and maintain the required state, county and/or city licenses.

Be able to provide name, address, and telephone number of the alarm company license holder or a designee, who can be called in an emergency, twenty-four (24) hours a day; and be able to respond to an alarm call, when notified.

Be able to provide the most current contact information for the alarm user.

Ninety (90) days after enactment of this ordinance the alarm installation companies shall,

on all new and upgraded installations, use only alarm control panels which meet SIA Control Panel Standard CP-O1.

Prior to activation of the alarm system, the alarm company must provide instructions explaining the proper operation of the alarm system to the alarm user.

Provide written information of how to obtain service from the alarm company for the alarm system.

An alarm company performing monitoring services shall:

Attempt to verify, by calling the alarm site and/or alarm user by telephone, to determine whether an alarm signal is valid before requesting dispatch. Telephone verification shall require, as a minimum that a second call be made to a different number, if the first attempt fails to reach an alarm user who can properly identify themselves to attempt to determine whether an alarm signal is valid before requesting law enforcement dispatch, except in the case of a panic or robbery-in-progress alarm, or in cases where a crime-in-progress has been verified by video and/or audible means.

Provide alarm user registration number to the communications center to facilitate dispatch and/or cancellations.

Communicate any available information about the location of the alarm.

Communicate a cancellation to the law enforcement communications center as soon as possible following a determination that response is unnecessary.

(Code 1983, § 18-36; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-37. Prohibited acts.

It shall be unlawful to activate an alarm system for the purpose of summoning law enforcement when no burglary, robbery, or other crime dangerous to life or property is being committed or attempted on the premises, or otherwise to cause a false alarm.

It shall be unlawful to install, maintain, or use an audible alarm system which can sound continually for more than fifteen (15) minutes.

It shall be unlawful to install, maintain, or use an automatic dial protection device that reports, or causes to be reported, any recorded message to the city police department.

(Code 1983, § 18-37; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-38. Enforcement of provisions.

Excessive false alarms. It is hereby found and determined that three (3) or more false alarms within a permit year is excessive, constitutes a public nuisance, and shall be unlawful. Civil penalties for false alarms within a permit year shall be assessed against an alarm user as per current fee schedule.

Failure to register. It shall be unlawful to operate a burglar alarm system within the city without an alarm permit.

Other civil penalties. Violations will be enforced through the assessment of civil penalties.

Payment of civil penalties. Civil penalties shall be paid within thirty (30) days from the date of the invoice.

Civil non-criminal violation. A violation of any of the provisions of this ordinance shall be a civil violation and shall not constitute a misdemeanor or infraction.

Discontinuance of law enforcement response. Police are not required to respond:

To burglar alarms at locations where six (6) or more false alarms occurred in the user's registration period.

To burglar alarms at locations where a burglar alarm civil penalty was not paid within thirty (30) days of a civil violation penalty notice.

To locations where the required alarm permit has not been obtained.

Notice of discontinuance of law enforcement response. A notice that police response will be discontinued, for any of the above reasons, will accompany a civil violation notice, be posted at the affected locations, or be sent to the user by certified mail at least thirty (30) days prior to discontinuing service.

Restoring police response to terminated locations. To regain police response to burglar alarms at terminated locations, the alarm user must:

Submit a written report from a licensed burglar alarm company certifying that the system has been inspected, repaired if required, and that it is functioning properly.

Pay all outstanding burglar alarm civil penalties.

Apply for and obtain an alarm permit.
(Code 1983, § 18-38; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-39. Appeals.

All civil penalties for violations set forth in this section shall be issued and may be appealed, in accordance with, and shall be governed by the procedures set forth in sections 2-570.25 through 2-570.32 through the code enforcement special magistrate board.
(Code 1983, § 18-39; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-40. Government immunity.

Alarm registration is not intended to, nor will it, create a contract, duty or obligation, either expressed or implied, of response. Any and all liability and consequential damage resulting from the failure to respond to a notification is hereby disclaimed and governmental immunity as provided by law is retained. By applying for an alarm registration, the alarm user acknowledges that the city police department response may be influenced by factors such as: the availability of police units, priority of calls, weather conditions, traffic conditions, emergency conditions, staffing levels and prior response history.
(Code 1983, § 18-40; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-41. Severability.

If any section, subsection, sentence, clause or provision of this article is held invalid, the remainder of this article shall not be affected by such invalidity.
(Code 1983, § 18-41; Ord. No. 2021-03, § 1, 1-13-2021)

Sec. 18-42. Fee schedule.

The table contained herein prescribes the dollar amount of civil penalty for the violation of these sections. The fine amounts may be amended from time to time by resolution of the city commission:

	<i>Registered Alarm</i>	<i>Non-Registered Alarm</i>
First false alarm	No charge	\$50.00
Second false alarm	\$25.00	\$100.00
Third false alarm	\$50.00	\$150.00
Fourth false alarm	\$100.00	\$200.00
Fifth false alarm	\$150.00	\$250.00
Sixth & seventh false alarm	\$200.00	\$300.00
Eight & ninth false alarm	\$250.00	\$350.00
Tenth false alarm and over	\$500.00	\$500.00
Penalty for failure to register	\$100.00	\$100.00

Any violation of the burglar alarms ordinance that is not specified within this section, shall be assessed a civil penalty of one hundred dollars (\$100.00).

A registration fee of twenty-five dollars (\$25.00) is required for the initial registration and annual renewal.
(Code 1983, § 18-42; Ord. No. 2021-03, § 1, 1-13-2021)

Secs. 18-43—18-45. Reserved.

ARTICLE III. GATED COMMUNITIES

Sec. 18-46. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Fire inspector means the office or person designated as the fire inspector to provide services on behalf of the city, otherwise consistent with this Code.

Gate means a gate, crossbar, door, or other obstructive device which is utilized for the purpose of restricting, controlling, or obstructing entry or exit by motor vehicles or pedestrians to or from a private roadway.

Gates community/gated community means a development, whether single-family, multifamily, commercial, industrial, or accessory use, that is enclosed within a geographical area by restrictive gates.

Key pad means a secure, tamperproof device operable for the provision of police and fire services.
(Code 1983, § 18-46; Ord. No. 08-09, § 2, 9-10-2008)

Sec. 18-47. Intent.

The intent of this article is to require key pad access to gated communities for the provision of police and fire accessibility in emergency situations.
(Code 1983, § 18-47; Ord. No. 08-09, § 2, 9-10-2008)

Sec. 18-48. Requirements.

Access gate key boxes for gated communities shall be of the types approved by the city and shall:

- (1) Require a permit to be issued by the department of planning and zoning or a fire inspector showing approval. Permits shall be kept on file within said department.
- (2) Provide a key pad entry system that shall be installed in an accessible location and provide for a coded number designated by the police chief for police and fire service entry.
- (3) Access gates must be designed to provide automatic entry for fire apparatus in the form of siren activation, scanners or other approved methods.
- (4) All access gates shall be designated to unlock with a readily accessible manual releasing device.
- (5) During power failure, all access gates shall be designated to fail in the open position.
- (6) A key box shall be installed at the gate in all gated communities.

(Code 1983, § 18-48; Ord. No. 08-09, § 2, 9-10-2008)

Sec. 18-49. Maintenance.

The key pads shall be kept in working order and shall be repaired and replaced in the event they are damaged or disabled. Proper maintenance of the key pad shall solely be the responsibility of the property owner.

(Code 1983, § 18-49; Ord. No. 08-09, § 2, 9-10-2008)

Sec. 18-50. Violations.

The following are violations and penalties of this article:

- (1) If it is found that a gated community is in violation of this article, the property owners shall be contacted in writing by the city manager and required to remedy the violation immediately.
- (2) Any violations that have remained after seven (7) business days will be fined for everyday thereafter. Fines will be assessed at one hundred fifty dollars (\$150.00) per day until the violation has been corrected. After fifteen (15) days of noncompliance, the fine will increase incrementally fifty dollars (\$50.00) per day until the violation has been corrected up to the legal limit.
- (3) Violations involving key pad accessibility shall be heard before the city's special magistrate and considered a civil code enforcement violation.

(Code 1983, § 18-50; Ord. No. 08-09, § 2, 9-10-2008)

Chapter 19

STREETS AND SIDEWALKS*

Article I. In General

- Sec. 19-1. Official map.
- Sec. 19-2. Structures on mapped streets.
- Sec. 19-3. Work to comply with state standards and specifications.
- Sec. 19-4. Obstructions generally.
- Sec. 19-5. Obstructing view at intersections.
- Sec. 19-6. Street sales.
- Sec. 19-7. Permits to cut, excavate or otherwise disturb.
- Sec. 19-8. Adopt-a-road.
- Sec. 19-9. School zone speed limits.
- Secs. 19-10—19-17. Reserved.

Article II. Sidewalk Construction and Repair

- Sec. 19-18. Construction prerequisite to building permit or certificate of occupancy.
- Sec. 19-19. Establishment, marking of lines and grades.
- Sec. 19-20. Permit required.
- Sec. 19-21. Fees for permits.
- Sec. 19-22. Notice prior to beginning work.
- Sec. 19-23. Material and specifications.
- Sec. 19-24. Dangerous prohibited.
- Sec. 19-25. Duty to repair; notice.

Article III. Naming of Public Facilities and Streets

- Sec. 19-26. Naming and renaming procedure of facilities and streets.
- Sec. 19-27. Definitions.
- Sec. 19-28. Review and recommendation by commission.
- Sec. 19-29. Public hearing and naming by city commission; referendum.
- Secs. 19-30—19-34. Reserved.

Article IV. Requirement to Number All Buildings

- Sec. 19-35. General intent and applicability.
- Sec. 19-36. Numbers to comply with article; authority of department of building and licensing.
- Sec. 19-37. Building numbers specifications.
- Sec. 19-38. Duty of owners of buildings.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

ARTICLE I. IN GENERAL**Sec. 19-1. Official map.**

(a) *Adopted.* Pursuant to the provisions, restrictions and limitations of section 2.5(8) of the Charter of the city, the map, identified as Exhibit A, attached to Ordinance No. 320 and by reference thereto made a part hereof, is adopted and established as the official map of the city.

(b) *Intent; modifications.* Any construction of the commission's intent in the adoption of this section and the establishment of said official map shall be consistent with the provisions of said section 2.5(8). (Code 1955, §§ 2-7.3, 2-7.4; Code 1983, § 19-1)

Sec. 19-2. Structures on mapped streets.

(a) *Prohibited.* No permit shall be issued for any building or structure or any part thereof on any land located between the mapped lines of a street as shown on the official map.

(b) *Exceptions.* The planning and zoning board shall have and is hereby given the power, upon an appeal filed with it by the owner of land, to grant a permit, for a building or structure or part thereof in any mapped street location in any case in which said board finds, upon the evidence and arguments presented to it upon appeal:

- (a) That the entire property of the appellant of which a mapped street location forms a part, cannot yield a reasonable return to the owner unless such permit is granted; and
- (b) That, balancing the interest of the city in preserving the integrity of the official map and the interest of the owner of the property in the use and benefits of his property, the grant of such permit is required by considerations of reasonable justice and equity.

(Code 1955, §§ 19-18, 19-19; Code 1983, § 19-2)

Sec. 19-3. Work to comply with state standards and specifications.

All construction, repair or other work done upon any street, sidewalk or public way shall comply in all respects with the standards and specifications of the state department of transportation for similar work done on state roads.

(Code 1983, § 19-3)

Sec. 19-4. Obstructions generally.

No person shall place any trash, lumber, wood, glass or other obstruction in any public street, lane, alley or way, or on any sidewalk. Any person who shall place any obstruction as aforesaid in any sidewalk and fail to remove the same within six (6) hours after being notified by the chief of police or any police officer, or who, after having removed the obstruction, shall replace it or place similar obstructions, shall be guilty of a violation of this Code.

(Code 1955, § 19-31; Code 1983, § 19-4)

State law references—Obstructing highway, F.S. § 861.01; obstructing transportation facility F.S. § 861.011.

Sec. 19-5. Obstructing view at intersections.

It shall be unlawful to permit shrubbery or any growth to grow upon or to maintain the same upon any parcel of land at the intersection of any public ways in the city so that the same will obstruct the view of the driver or operator of any vehicle approaching such intersection.

(Code 1955, § 16-59; Code 1983, § 19-5)

Sec. 19-6. Street sales.

It shall be unlawful to sell, offer to sell or exhibit for sale, any goods, wares or merchandise from any parked vehicle or stand set up upon any street in the city; provided, however, that this prohibition shall not be applicable to public markets or to peddlers operating under a city permit when the rules and regulations governing the issuance of such permit shall have been complied with.

(Code 1955, § 16-67; Code 1983, § 19-6)

Sec. 19-7. Permits to cut, excavate or otherwise disturb.

(a) *Required.* No person shall cause any destruction or cutting, for any purpose whatsoever, in any public street, sidewalk, curb, alley, public way, easement or other public property without first having obtained a permit for such purpose from the city manager. No permit shall be issued by the city manager unless the applicant shall satisfactorily demonstrate or provide to the city manager the following:

- (1) The location and nature of the proposed project.

- (2) The necessity of the destruction or cutting of any public street, sidewalk, curb, alley, public way, easement or other public property.
- (3) The ability of the applicant to replace or repair any damage caused to the street, sidewalk, curb, alley, public way, easement or other public property or any of the utilities located therein as a result of any act by the applicant.
- (4) Payment of a fee, as presently established or as hereafter adopted by resolution of the city commission; provided, however, said fee may be waived by the city manager where the applicant is a governmental entity, public or private utility or performs work or services for or on behalf of any governmental entity or utility.
- (5) A performance bond may be required by the city manager in an amount not to exceed twice the estimated cost of repair from the applicant.

(b) *Appeals.* Appeals from the refusal to grant a permit or from the acts of the city manager in revoking any permit shall be conducted in accordance with the provisions of this Code.

(c) *Restoration of road surface.* All road cuts shall be repaired to the grade of the road and resurfaced in the manner designated in the permit. Where settlement occurs within one year after the closing of the excavation, the contractor shall replace, refill and resurface as necessary.

(Code 1955, §§ 19-6, 19-35; Code 1983, § 19-7)

Sec. 19-8. Adopt-a-road.

(a) *Eligibility requirements and rules.* All participants in litter removal activities must attend a safety pre-task briefing prior to taking part in cleanups. The following recommendations have been developed by the state department of transportation for groups participating in litter control programs.

- (1) In order to participate:
 - a. All participants must wear high visibility safety vests at all times during the litter removal activity.
 - b. Remove litter when the weather is good, during the daylight hours only.

- c. Do not bring persons to observe the activity if they are under the age of sixteen (16) years.
- d. No horseplay of any type will be tolerated.
- e. No intoxicating liquid, beverage or illegal drugs will be allowed.
- f. Persons participating should wear gloves, a good quality shoe (no open toe shoes, sandals or flip flops) and light or bright colored protective clothing. No clothing will be allowed that hinders sight of the participant or may distract passing motorists.
- g. An adequate supply of drinking water should be readily available.
- h. A good pair of sunglasses, gloves, hat and sun block should be considered.
- i. Do not pick up litter at construction or maintenance sites, on bridges, or overpasses.
- j. Carpool to the adopted roadway section to keep the number of cars on the roadside to a minimum.
- k. Park off the roadway as far away from the pavement as possible. Keep vehicles on the same side of the highway as participants. Return to and use your vehicles to transfer to the other side of the roadway.
- l. Participants should work facing oncoming traffic whenever possible and work one (1) side of the roadway at a time. Do not enter the roadway or its shoulder areas at any time.
- m. Avoid suspected toxic/hazardous substances, poison ivy, poison oak, noxious weeds; areas where herbicides were applied recently; places where snake, fire ants or other insects may be located. Do not pick up unknown or hazardous materials; Note their location on your cleanup report.
- n. Bring along a cellular phone if one (1) is available.

(2) In case of emergency:

- a. Every crew should possess an adequate first aid kit. Treat all injuries no matter how minor appearing.
- b. Know the route from work site to the nearest emergency center or hospital in case of serious injury. Have transportation immediately available.

(b) *Benefits.* Benefits include:

- (1) Roadway signage announcing your company's name partnership.
- (2) Kick-off event to recognize your investment in the community.
- (3) Review of landscape plan.

(c) *Sponsorship levels.* Sponsorship levels shall be as follows:

- (1) *Green sponsor.* Twenty-five thousand dollars (\$25,000.00) for two (2) years, with first rights to renew.
- (2) *Silver sponsor.* Fifteen thousand dollars (\$15,000.00) for two (2) years.
- (3) *Bronze sponsor.* Seven thousand five hundred dollars (\$7,500.00) for one (1) year.

(Code 1983, § 19-8; Ord. No. 18-05, § 3, 6-13-2018)

Sec. 19-9. School zone speed limits.

A. *Purpose.* The implementation of speed detection systems affixed on select roads that are maintained as school zones within the city promotes the safety of the city residents, Miami-Dade County School District employees, and grade school children seeking an education within the city. The automated system will capture evidence of drivers in violation of this article and F.S. § 316.1896, thus, promoting adherence and safe driving practices within proper designated school zones.

B. *Intent.* This article authorizes the city, in accordance with chapter 2023-174 Laws of Florida and F.S. § 316.008, as amended, to exercise its authority in placing and installing speed detection systems in various school zones with the boundaries of the city's jurisdiction. The placement and installation of speed detection systems on roads maintained as school zone will allow the city to identify violations of this article

and F.S. § 316.1896, enforce the provisions of this ordinance, and promote the safety of student and parent welfare.

C. *Use of speed detection systems.* This article shall not supersede, infringe, curtail or impinge upon state or county laws related to school zone speed limit violations or conflict with such laws. This article shall serve to enable the city to provide enhanced enforcement within school zones pursuant to Florida Statutes. The city shall utilize speed detection systems to deter school zone speed limit infractions and to thereby reduce accidents and injuries authorized to employ the services of a third party vendor for purposes of implementing this article.

D. *Speed detection system enforcement; signage; violation.*

- (a) Pursuant to F.S. § 316.0776, as amended, the city shall post signage indicating that the subject school zone is subject to photographic and video enforcement of the school zone speed limit and notify the public of the specific times of enforcement.
- (b) Pursuant to F.S. § 316.1896, as amended, the owner of a motor vehicle violates this article and state law when the operator of such vehicle:
 - 1. Operates a motor vehicle in excess of ten (10) miles per hour over the school zone speed limit which occurs within thirty (30) minutes before through thirty (30) minutes after the start of a regularly scheduled breakfast program;
 - 2. Operates a motor vehicle in excess of ten (10) miles per hour over the school zone speed limit which occurs within thirty (30) minutes before through thirty (30) minutes after the start of a regularly scheduled school session;
 - 3. Operates a motor vehicle in excess of ten (10) miles per hour over the posted speed limit during the entirety of a regularly scheduled school session; or
 - 4. Operates a motor vehicle in excess of ten (10) miles per hour over the school zone speed limit which occurs within thirty

(30) minutes before through thirty (30) minutes after the end of a regularly scheduled school session.

- (c) A violation of this article occurs when the operator of a motor vehicle fails to comply with requirements of subsection D(b) of this section. Violations shall be enforced pursuant to F.S. § 316.1896.

E. Review of recorded photographic and video evidence.

- (a) The owner of the vehicle which is observed by recorded images operating a motor vehicle in violation of applicable city law) and F.S. § 316.1896, shall be issued a notice of violation in accordance with state law.
- (b) A law enforcement officer and/or designated a traffic infraction enforcement officer shall review recorded images prior to the issuance of a notice of violation/infraction to ensure accuracy and the integrity of the recorded images. Once the officer has verified the accuracy of the recorded images a notice of violation/infraction shall be sent to the vehicle owner at the address on record with the state department of highway safety and motor vehicles or the address on record with the appropriate agency having such information in another state.
- (c) A speed detection system in a school zone may not be used for remote surveillance. The collection of evidence by a speed detection system to enforce violations of this article and F.S. § 316.1895 and 316.183, or user-controlled pan or tilt adjustments of speed detection system components, do not constitute remote surveillance.
1. Any recorded video or photograph obtained through the use of a speed detection system must be destroyed within ninety (90) days after the final disposition of the recorded event. The vendor of a speed detection system must provide the county or municipality with written notice by December 31 of each year that such records have been destroyed in accordance with this subsection.

2. Registered motor vehicle owner information obtained as a result of the operation of a speed detection system in a school zone is not the property of the manufacturer or vendor of the speed detection system and may be used only for the purposes of this article.

F. Notice of violation and affidavits.

- (a) Within thirty (30) days after a violation, notice must be sent to the registered owner of the motor vehicle involved in the violation specifying the remedies available and that the violator must pay the penalty to the city or furnish an affidavit within thirty (30) days after the date of the notice of violation in order to avoid court fees, costs, and the issuance of a uniform traffic citation. The notice of violation must:
1. Be sent by first class mail.
 2. Include a photograph or other recorded image showing the license plate of the motor vehicle; the date, time, and location of the violation; the maximum speed at which the motor vehicle was traveling within the school zone; and the speed limit within the school zone at the time of the violation.
 3. Include a notice that the owner has the right to review, in person or remotely, the photograph or video captured by the speed detection system and the evidence of the speed of the motor vehicle detected by the speed detection system which constitute a rebuttable presumption that the motor vehicle was used in violation of this article and F.S. § 316.1895 or 316.183.
 4. State the time when, and the place or website at which, the photograph or video captured, and evidence of speed detected may be examined and observed.
- (b) A person who receives a notice of violation under this section may request a hearing within thirty (30) days after the notice of violation or may pay the penalty pursuant to the notice of violation, but a payment or fee may not be required before the hearing requested by the

person. The notice of violation must be accompanied by, or direct the person to a website that provides, information on the person's right to request a hearing and on all costs related thereto and a form used for requesting a hearing. As used in this subsection, the term "person" includes a natural person, the registered owner or co-owner of a motor vehicle, or the person identified in an affidavit as having actual care, custody, or control of the motor vehicle at the time of the violation.

- (c) If the registered owner or co-owner of the motor vehicle; the person identified as having care, custody, or control of the motor vehicle at the time of the violation; or an authorized representative of the owner, co-owner, or identified person initiates a proceeding to challenge the violation, such person waives any challenge or dispute as to the delivery of the notice of violation.
- (d) A uniform traffic citation must be issued by mailing the uniform traffic citation by certified mail to the address of the registered owner of the motor vehicle involved in the violation if payment has not been made within thirty (30) days after notification if the registered owner has not requested a hearing and if the registered owner has not submitted an affidavit.
 - 1. Delivery of the uniform traffic citation constitutes notification of a violation. If the registered owner or co-owner of the motor vehicle; the person identified as having care, custody, or control of the motor vehicle at the time of the violation; or a duly authorized representative of the owner, co-owner, or identified person initiates a proceeding to challenge the citation such person waives any challenge or dispute as to the delivery of the uniform traffic citation.
 - 2. In the case of joint ownership of a motor vehicle, the uniform traffic citation must be mailed to the first name appearing on the motor vehicle registration, unless the first name appearing on the registration

is a business organization, in which case the second name appearing on the registration may be used.

- 3. The uniform traffic citation mailed to the registered owner of the motor vehicle involved in the infraction must be accompanied by the information described in subsection (a) of this section.
- (e) The registered owner of the motor vehicle involved in the violation is responsible and liable for paying the uniform traffic citation issued for a violation of this article and F.S. § 316.1895 or 316.183 unless the owner can establish that:
 - 1. The motor vehicle was, at the time of the violation, in the care, custody, or control of another person;
 - 2. A uniform traffic citation was issued by law enforcement to the driver of the motor vehicle at the time of the alleged violation; or
 - 3. The motor vehicle's owner was deceased on or before the date of the alleged violation, as established by an affidavit submitted by the representative of the motor vehicle owner's estate or other identified person or family member.
- (f) To establish facts under subsection F(e) of this section, the registered owner of the motor vehicle must, within thirty (30) days after the date of issuance of the notice of violation or the uniform traffic citation, submit an affidavit to the city setting forth information supporting such fact.
 - 1. An affidavit transferring liability of the violation to the operator of the motor vehicle at the time that the alleged violation occurred must include the:
 - i. Name;
 - ii. Address;
 - iii. Date of birth; and
 - iv. If known, the driver license number of the person who leased, rented, or otherwise had care, cus-

tody, or control of the motor vehicle at the time of the alleged violation.

2. If the motor vehicle was stolen at the time of the alleged violation, the affidavit must include the police report indicating that the motor vehicle was stolen.
 3. If a uniform traffic citation was issued at the location of the violation by a law enforcement officer, the affidavit must include the serial number of the uniform traffic citation.
 4. If the motor vehicle's owner to whom a notice of violation or a uniform traffic citation has been issued is deceased, the affidavit must include a certified copy of the owner's death certificate showing that the date of death occurred on or before the date of the alleged violation and one of the following:
 - i. A bill of sale or other document showing that the deceased owner's motor vehicle was sold or transferred after his or her death but on or before the date of the alleged violation.
 - ii. Documented proof that the registered license plate belonging to the deceased owner's motor vehicle was returned to the state department of highway safety and motor vehicles or any branch office or authorized agent of the state department of highway safety and motor vehicles after his or her death but on or before the date of the alleged violation.
 - iii. A copy of the police report showing that the deceased owner's registered license plate or motor vehicle was stolen after his or her death but on or before the date of the alleged violation.
- (g) Upon receipt of an affidavit and other required documentation under subsection (F)(f) of this section, the city shall dismiss the notice or citation and provide proof of such dismissal to the person who submitted the affida-

vit. The city is authorized to reissue a notice of violation or citation to the person identified as having care, custody, or control of the motor vehicle. If the person identified in the affidavit as having care, custody, or control of the motor vehicle at the time of the violation denies such control, then the city must notify the registered that the action will not be dismissed for failure to establish another person liable for the violation.

- (h) This section supplements the enforcement of F.S. §§ 316.1895 and 316.183 and does not prohibit a law enforcement officer from issuing a uniform traffic citation for violation of this article or state law.

G. Section 24-176, hearings.

- (a) A hearing pursuant to this article shall be conducted in accordance with all other city or Code of Ordinances code enforcement violations and F.S. §§ 316.1896(14) and 316.0083(5).
1. The petitioner, or person who elects to request a hearing, must be scheduled for a hearing by the clerk to the local hearing officer. The clerk must furnish the petitioner with notice sent by first-class mail. Upon receipt of the notice, the petitioner may reschedule the hearing up to two times by submitting a written request to reschedule to the clerk at least five (5) calendar days before the day of the scheduled hearing. The petitioner may cancel his or her appearance before the local hearing officer by paying the penalty assessed, plus the administrative cost, before the start of the hearing.
 2. All testimony at the hearing must be under oath and must be recorded. The local hearing officer must take testimony from a traffic infraction enforcement officer and the petitioner and may take testimony from others. The local hearing officer must review the photograph or video captured by the speed detection system and the evidence of the speed of the motor vehicle detected by the speed detection system made available under

this article. Formal rules of evidence do not apply, but due process must be observed and govern the proceedings.

3. The local hearing officer must determine whether a violation occurred and must uphold or dismiss the violation. The local hearing officer must issue a final administrative order including the determination and, if the notice of violation is upheld, must require the petitioner to pay the penalty previously assessed and an administrative cost not to exceed two hundred fifty dollars (\$250.00). The final administrative order must be mailed to the petitioner by first class.
 4. An aggrieved party may appeal a final administrative order to the Eleventh Judicial Circuit Court of Florida.
- (b) The presiding hearing officer shall be appointed in accordance with section 24-27(2).
 - (c) The city clerk, or his or her designee, shall be designated to serve as the clerk to the local hearing officer.

H. *Annual reporting.*

- (a) The city manager, or his/her designee, shall annually report the results of all systems within its jurisdiction by placing the report required under subsection H(b) of this section, and F.S. § 316.0776, on the agenda of a regular or special city council meeting.
- (b) The report must include a written summary, which must be read aloud at the regular or special city council meeting, and must contain:
 1. The number of notices of violation issued;
 2. The number that were contested;
 3. The number that were upheld;
 4. The number that were dismissed;
 5. The number that were issued as uniform traffic citations; and
 6. The number that were paid, how collected funds were distributed, and in what amounts.

- (c) The city manager, or his/her designee, shall report to the department of highway safety and motor vehicles that the annual report required under this section, and F.S. § 316.0776, was considered in accordance with state law, including the date of the regular or special meeting at which the annual report was considered.
- (d) On October 1, 2024, and annually thereafter, the city manager, or his/her designee, shall submit a report to the department of highway safety and motor vehicles identifying the public safety objectives used to identify a school zone for enforcement under this article, reports compliance with F.S. § 316.0776(3)(c), and details the results of the speed detection system in the school zone and the procedures for enforcement. The report must include:
 1. Information related to the location of each speed detection system, including the geocoordinates of the school zone, the directional approach of the speed detection system, the school name, the school level, the times the speed detection system was active, the restricted school zone speed limit enforced pursuant to this article and F.S. § 316.1895(5), the posted speed limit enforced at times other than those authorized by this article and F.S. § 316.1895(5), the date the systems were activated to enforce violations of this article and F.S. §§ 316.1895 and 316.183, and, if applicable, the date the systems were deactivated.
 2. The number of notices of violation issued, the number that were contested, the number that were upheld, the number that were dismissed, the number that were issued as uniform traffic citations, and the number that were paid.
 3. Any other statistical data and information related to the procedures for enforcement which is required by the department of highway safety and motor vehicles.
- (e) The city is responsible for and shall maintain its data for reporting purposes at least two (2) years after such data is reported pursuant to this section.

- (f) Compliance or sufficiency of compliance with this paragraph may not be raised in a proceeding challenging a violation under this article or F.S. §§ 316.1895 or 316.183.

I. Penalties and costs. Violators of this article must pay a fine of one hundred dollars (\$100.00). Penalties assessed and collected by the city, less the amount retained by the city pursuant to subsections I(b) and I(e) of this section, must be paid to the department of revenue weekly. Such payment must be made by means of electronic funds transfer. In addition, the city manager, or his/her designee, shall remit a detailed summary of the penalties to the department of revenue. Penalties to be assessed and collected by the city must be remitted as follows:

- (a) Twenty dollars (\$20.00) must be remitted to the department of revenue for deposit into the general revenue fund.
- (b) Sixty dollars (\$60.00) shall be retained by the city and must be used to administer speed detection systems in school zones and other public safety initiatives.
- (c) Three dollars (\$3.00) must be remitted to the department of revenue for deposit into the department of law enforcement criminal justice standards and training trust fund.
- (d) Twelve dollars (\$12.00) must be remitted to the Miami Dade County School District and must be used for school security initiatives, for student transportation, or to improve the safety of student walking conditions.
- (e) Five dollars (\$5.00) shall be retained by the city for school crossing guard recruitment and retention program pursuant to F.S. § 316.1894.

If a person who is mailed a notice of violation or a uniform traffic citation presents documentation that the notice of violation or uniform traffic citation was in error, clerk to the local hearing officer may dismiss the case. Clerk to the local hearing officer may not charge for this service.
(Ord. No. 2024-10, § 2(19-9), 4-10-2024)

Secs. 19-10—19-17. Reserved.

ARTICLE II. SIDEWALK CONSTRUCTION AND REPAIR*

Sec. 19-18. Construction prerequisite to building permit or certificate of occupancy.

No permit for the construction of any building on any lot or parcel of land within the city, whether platted or unplatted, except within industrially zoned districts, shall be issued unless the plans and specifications shall include as part of the entire construction sidewalks in accordance with standard specifications prepared by the department of public works and utilities. No certificate of occupancy shall be issued until completion and approval of the construction of sidewalks required hereunder. The city manager may waive construction of sidewalks on the grounds set forth for waiver of plats, subject to confirmation by the city commission. (Code 1955, § 19-26; Code 1983, § 19-18)

Sec. 19-19. Establishment, marking of lines and grades.

Requirements for lines and grades for the building of sidewalks shall be furnished by the city. The contractor shall furnish all stakes or pins and such ordinary labor as may be necessary for setting grades. He shall also take necessary steps to protect and care for the stakes after grade is set, and if any one (1) of the stakes is disturbed the grade shall be reset at the contractor's expense.
(Code 1955, § 19-27; Code 1983, § 19-19)

Sec. 19-20. Permit required.

It shall be unlawful to construct or install any sidewalk upon or along any public way in the city without having first obtained a permit therefor from the director of public works.
(Code 1983, § 19-20)

Sec. 19-21. Fees for permits.

The fees for sidewalk permits within the city are as presently established or as hereafter adopted by resolution of the city commission.
(Code 1955, § 19-28; Code 1983, § 19-21)

*State law reference—Supplemental and alternative method for making local improvements, including sidewalks, F.S. ch. 170.

Sec. 19-22. Notice prior to beginning work.

After grades are finished, at least twenty-four (24) hours' notice shall be given the city by the contractor before actual construction of a sidewalk is begun, the contractor specifying as nearly as practicable, the hour at which he expects to start work. The fact that a permit has been secured or grades given shall not constitute legal notice.

(Code 1955, § 19-27; Code 1983, § 19-22)

Sec. 19-23. Material and specifications.

All sidewalks constructed within the official base building and street lines in the city shall be constructed only of natural uncolored Portland cement concrete, in accordance with the city standards and specification.

(Code 1955, § 19-29; Code 1983, § 19-23)

Sec. 19-24. Dangerous prohibited.

It shall be unlawful for any owner or occupant, or agent thereof, of any property to which a sidewalk is contiguous to allow such walk or sidewalk to remain in such a condition as to be dangerous or detrimental to the public.

(Code 1955, § 19-30; Code 1983, § 19-24)

Sec. 19-25. Duty to repair; notice.

In case the surface of any walk or sidewalk in the city shall become so uneven as to make walking over it dangerous or detrimental, or if the curbing shall become decayed, worn out or broken, it shall become the duty, upon notice to the owner, and if the owner cannot be served, to the occupant, and if there is no occupant, then the agent of the owner of the property, to which the sidewalk is contiguous, to repair such walk or sidewalk. Such notice shall be in writing and allow such owner, agent or occupant thirty (30) days in which to repair such walk or sidewalk; shall describe the walk, sidewalk or curb to be repaired and shall set forth that such walk, sidewalk or curb is to be repaired, if surface work is to be done, with the same material as such walk, sidewalk or curb was originally constructed; and if curbing is to be put in, shall state that it will be concrete.

(Code 1955, § 19-30; Code 1983, § 19-25)

ARTICLE III. NAMING OF PUBLIC FACILITIES AND STREETS**Sec. 19-26. Naming and renaming procedure of facilities and streets.**

After the effective date of the ordinance from which this article is derived, no public facility or street located in or owned by the city shall be named or renamed except in accordance with the procedures set forth in this article.

(Code 1983, § 19-26; Ord. No. 91-8, § 1, 6-26-1991)

Sec. 19-27. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- (a) *Reserved.*
- (b) *Committee* means the street naming committee and shall also mean the city commission or any other such committee designated by the city commission to review and recommend names for public facilities and streets located within or owned by the city.
- (c) *Main street* means one (1) of the following roadways located in the city: Sharazad Boulevard, Opa-locka Boulevard, Ali-Baba Avenue, Perviz Avenue, Oriental Boulevard, Aswan Road and Alexandria Drive.
- (d) *Plaza* means an open public square.
- (e) *Public facility* means any public building, plaza or park owned by the city.

(Code 1983, § 19-27; Ord. No. 91-8, § 1, 6-26-1991; Ord. No. 08-20, § 1, 11-12-2008)

Sec. 19-28. Review and recommendation by commission.

The commission shall consider the selection criteria set forth in subsection (c) of this section which, when approved by the city commission, shall govern its name selection process and/or dual designation process.

Whenever a name is needed for a new public facility or street or whenever there is a proposal to rename an existing public facility or street within or owned by the

city, said naming or renaming shall first be considered and reviewed by the city commission according to the following procedures:

- (a) Any person, organization, association, corporation or other entity including a member of the city commission or the administration of the city may propose a name for a new public facility owned by the city or city street or may propose renaming an existing public facility or city street at any time by submitting a proposal in the form of an ordinance.
- (b) Prior to a final vote on the item and after presentation of the ordinance of said proposal the commission shall meet to consider and review proposals for the naming or renaming of said public facility or street. Notice of the meeting shall be given to all persons or entities which have proposed names for the public facility or street under consideration.
- (c) The commission shall consider the cost that changing the name of any street will have on existing property owners that may be impacted.

The commission shall also consider whether any outstanding liens are owned by the person under consideration for the name change.

There shall also be a discussion that one (1) or more of the following minimum criteria can be established prior to passage of any proposal for the renaming of a public facility or street:

- (1) Whether the name presented for renaming or the event represents a person or event of national recognition, significance and importance; or
 - (2) Whether the name presented for renaming has contributed in a significant way to development and progress of the city and its residents.
- (Code 1983, § 19-28; Ord. No. 91-8, § 1, 6-26-1991; Ord. No. 08-20, § 1, 11-12-2008)

Sec. 19-29. Public hearing and naming by city commission; referendum.

(a) Within a reasonable time after receiving the recommendation for a naming or renaming from the commission, the commission shall call a public hearing before final passage of the item.

(b) Notice of a public hearing regarding the naming of a public facility or street shall be published at least ten (10) days prior to the hearing in accordance with applicable Florida law.

(c) At the close of the public hearing the city commission may select a name for dual designation or rename the subject public facility or street. In selecting the name, the commission shall be governed by its established selection criteria: however, the name selected need not be one (1) recommended by the commission.

(d) Where a public facility other than a plaza or any interior portion of a public facility or main street is to be named, the city commission may only consider a name which has been approved by a majority of the members of the commission. Additionally, any name so selected by the city commission must be approved by a three-fifths ($\frac{3}{5}$) vote.

(Code 1983, § 19-29; Ord. No. 91-8, § 1, 6-26-1991; Ord. No. 92-4, § 1, 4-8-1992; Ord. No. 08-20, § 1, 11-12-2008; Ord. No. 2025-05, § 7, 2-12-2025)

Secs. 19-30—19-34. Reserved.

ARTICLE IV. REQUIREMENT TO NUMBER ALL BUILDINGS

Sec. 19-35. General intent and applicability.

It is the intent of this article to promote, protect and improve the safety, services and welfare of the citizens of the city by providing a requirement that all buildings be affixed with numbers in conformity with these provisions. Such a requirement will:

- (1) Ensure greater public safety;
- (2) Promote efficiency in the postal and other delivery services; and
- (3) Improve the emergency call-response system for medical, fire and police services.

The requirements of this article shall apply to all buildings within the city.

(Code 1983, § 19-35; Ord. No. 96-21, § 4, 11-13-1996)

Sec. 19-36. Numbers to comply with article; authority of department of building and licensing.

The numbering of all buildings within the city's limits shall be in conformity with the following system:

- (a) All numbering of number units shall begin from the base thoroughfare; the north and east sides of the streets having the odd numbers and the south and west having the even numbers.
- (b) The numbers of each number unit in a square shall increase in arithmetical progression of two (2) as the number units recede from the base thoroughfare.
- (c) The director of the department of building and licensing and the director of the department of planning and zoning are hereby directed to designate the building numbers, including single-family houses, apartment buildings and other multi-unit buildings, and commercial buildings, as herein provided, if necessary.
- (d) All buildings, houses, portions of land and lots adjacent to or abutting (joining end to end) upon streets, avenues, places, terraces, courts, lanes and roads of the city shall be known and designated by the numbers indicated on the appropriate plats as retained by the city's department of buildings and licensing and the department of planning and community development.

(Code 1983, § 19-36; Ord. No. 96-21, § 4, 11-13-1996)

Sec. 19-37. Building numbers specifications.

Numbers on buildings shall conform to the following specifications:

- (a) The numbers shall have a minimum height of four (4) inches. It is recommended that the height of the numbers exceed four (4) inches. Examples of numbers measuring four (4) inches, five (5) inches and six (6) inches in height are attached to the ordinance from which this section is derived.
- (b) All numbers shall be securely mounted on the building front, or any fixed accessory located in front of the building within five (5) feet of the main entry way or main path of travel

which leads to the main entrance of the building from a public or private road. Such numbers shall otherwise be separately mounted in the same manner upon the face of a wall or fence or upon a post in the front yard of the property.

- (c) Numbers shall be sufficiently legible as to contrasting background, arrangement, size, spacing, and uniformity of numerals, so that the numbers may be read with ease during daylight hours by a person possessing at least 20/40 vision upon viewing said numbers from the center line of the adjacent road. The numbers shall be placed such that trees, shrubs, and other obstructions do not block the line of sight of the numbers from the centerline of the adjacent road.
- (d) Wherever practicable and in accordance with this article, the building numbers shall be placed as close as possible to a light source, in order to make it more visible at night. If no light source is close in proximity, the numbers shall be made of a reflective material.

(Code 1983, § 19-37; Ord. No. 96-21, § 4, 11-13-1996)

Sec. 19-38. Duty of owners of buildings.

(a) It shall be the duty of the owner of any building facing, abutting, opening or having its main entrance from any right-of-way in the city to have affixed to such building suitable numbers composed of figures no less than four (4) inches in height, and/or upon panel glass or some metallic substance, in accordance with the plats of the city.

(b) It shall be the duty of the owner to maintain numbers of his building as herein required in good condition and in a conspicuous place where same can be seen and read from the street, in accordance with the requirements of this article.

(c) It shall be the duty of the owner to check with the department of buildings and licensing to ascertain his correct address if he is uncertain of it.

(d) The word "owner," as used in this article, shall include owners of the real property, a lessee and agent in charge.

(Code 1983, § 19-38; Ord. No. 96-21, § 4, 11-13-1996)

Chapter 19.5

TAXATION*

Article I. In General

- Sec. 19.5-1. Additional homestead tax exemption for certain persons 65 years of age and older.
- Sec. 19.5-2. Additional tax exemption for certain senior citizens.
- Secs. 19.5-3—19.5-19. Reserved.

Article II. Utility Tax

- Sec. 19.5-21. Short title.
- Sec. 19.5-22. Definitions.
- Sec. 19.5-23. Determination of amount.
- Sec. 19.5-24. Exemptions.
- Sec. 19.5-24.1. Enterprise zone; partial utility tax exemption.
- Sec. 19.5-25. Remittance to the city by seller.
- Sec. 19.5-26. Records to be kept.
- Sec. 19.5-27. Reports of deliveries for resale.

Article III. Local Communications Services Tax

- Sec. 19.5-28. Preamble adopted by reference
- Sec. 19.5-29. Election regarding permit fees.
- Secs. 19.5-30—19.5-33. Reserved.
- Sec. 19.5-34. Adoption of tax rate commencing October 1, 2002.

*State law references—Municipal finance and taxation, F.S. ch. 166; taxation, F.S. ch. 192 et seq.

ARTICLE I. IN GENERAL

Sec. 19.5-1. Additional homestead tax exemption for certain persons 65 years of age and older.

For purposes of this section, the terms "household" and "household income" shall have the same meanings as ascribed to them in F.S. § 196.075, as may be amended from time to time.

In accordance with section 6(d), article VII of the Florida Constitution and F.S. § 196.075, any person sixty-five (65) years or over who has legal or equitable title to real estate located within the city and maintains thereon his/her permanent residence which qualifies for and receives a homestead exemption pursuant to section 6(a), article VII of the Florida Constitution, and whose household income does not exceed the greater of twenty thousand dollars (\$20,000.00) or the income limitation amount adjusted in 2007 pursuant to F.S. § 196.075(3), shall be entitled to make application for an additional homestead exemption of up to fifty thousand dollars (\$50,000.00).

Every person claiming the additional exemption pursuant to this section must file annually an application ("application") and supporting documentation ("documentation") with the county property appraiser ("property appraiser"), not later than March 1 of each year for which the additional exemption is claimed. The application shall include a sworn statement of household income for all members of the household and shall be filed on a form prescribed by the state department of revenue. The documentation shall include copies of all federal income tax returns, wage and earnings statements, any requests for extension of time to file a return, and any other documentation as required by the property appraiser, including documentation necessary to verify the income received by all of the members of the household for the prior year.

Failure to file the application, documentation and sworn statement by March 1 of any given year shall constitute a waiver of the additional exemption privilege for that year.

The additional exemption shall be available commencing with the year 2007 tax roll, and the property appraiser may begin accepting applications and sworn statements for the year 2007 tax roll as soon as the appropriate forms are available from the department of revenue.

Commencing January 1, 2007, and each January 1 thereafter, the twenty thousand dollar (\$20,000.00) annual income limitation in this section shall be adjusted by the percentage of change in the average cost-of-living index for the calendar year immediately prior to that year. The term "index" shall be the average of the monthly consumer-price index figures for the stated period, for the United States as a whole, issued by the United States Department of Labor. (Code 1983, § 19.5-1; Ord. No. 07-10, §§ 2—8, 5-9-2007)

Sec. 19.5-2. Additional tax exemption for certain senior citizens.

(a) Pursuant to Fla. Const. art. VII, § 6(d)m, a homestead exemption from municipal taxes levied by the city equal to the assessed value of the property is hereby granted if:

- (1) The fair market value of the property is less than two hundred fifty thousand dollars (\$250,000.00);
- (2) The owner has been a permanent resident on the property for at least 25 years; and
- (3) The property owner is at least 65 years of age and has a household income that does not exceed the maximum amount established for this exemption.

(b) A taxpayer claiming the exemption for the first time submit to the county property appraiser, not later than March 1, a sworn statement of household income on a form prescribed by the state department of revenue.

(Ord. No. 13-02, § 2, 2-13-2013)

Secs. 19.5-3—19.5-19. Reserved.

ARTICLE II. UTILITY TAX*

Sec. 19.5-21. Short title.

This article shall be known as the "City of Opa-locka Public Service Tax Ordinance."

(Code 1983, § 19.5-21; Ord. No. 84-17, § 1, 9-12-1984)

*State law reference—Public service tax, F.S. §§ 166.231, 166.232.

Sec. 19.5-22. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bottled gas means all types and kinds of natural, liquefied petroleum and manufactured gas for lighting, heating, cooking, power, or any other purpose delivered to any purchaser thereof within the city.

Coal or other fossil fuels means all combustible fossil fuels not otherwise exempt by law from taxation.

Electricity means all electric current or energy for lighting, heating, cooking, power, or any other purpose delivered to any purchaser thereof within the city.

Fuel adjustment charge means all increases in the cost of utility services to the ultimate customer resulting from increase in the cost of fuel to the utility subsequent to October 1, 1973.

Fuel oil means all petroleum fuels including bunker C oil, Number 1 and Number 2 fuel oil, and kerosene or any combination thereof for lighting, heating, cooking, power, or any other purpose delivered to any purchaser thereof within the city.

Metered gas means all types and kinds of natural and manufactured gas for lighting, heating, cooking, power, or any other purpose delivered to any purchaser thereof within the city.

Purchase means every act or transaction whereby possession of, utilization of, control over or title to electricity, water, metered gas, bottled gas, and fuel oil, and the duty and obligation to pay therefor, become vested in the purchaser within the city, but such term shall not pertain to nor include any such act or transaction when undertaken or performed by an agency or instrumentality of the United States government, the state, the county, or a municipality.

Purchaser means every person legally liable for the payment of electricity, metered gas, bottled gas, or fuel oil delivery rendered to him, by a seller, unless such person is an agency or instrumentality of the United States government, the state, the county, a municipality, or a house of public worship, which qualified for exemption from the state sales tax under F.S. § 212.08.

Seller means every person delivering electricity, metered gas, bottled gas, or fuel oil, to any purchaser thereof.

Taxable services means services subject to public service tax are electricity, metered or bottled gas (natural liquefied petroleum gas or manufactured), coal or fossil fuels and competitive services. (Code 1983, § 19.5-22; Ord. No. 84-17, § 1, 9-12-1984)

Sec. 19.5-23. Determination of amount.

There is hereby levied and imposed by the city upon every purchase in the city of electricity, metered or bottled gas (natural liquefied petroleum gas or manufactured), coal or fossil fuels and competitive services known as "taxable services" included in or reflected by any bill rendered by the seller to the purchaser a public service tax which shall be determined as follows:

- (1) The tax shall be levied only upon purchases within the city. The tax shall not exceed ten (10) percent of the payments received by the seller of the taxable item from the purchaser for the purchase of such service. Services competitive with those enumerated above shall be taxed on a comparable base at the same rates. However, fuel oil shall be taxed at a rate not to exceed four cents (\$0.04) per gallon.
- (2) When the seller in accordance with its rules and regulations renders a bill to the purchaser to cover purchases made during the period of time to which the bill is applicable, the amount of public service tax shall be exclusive of governmental charges and taxes, shown on any such bill due and payable on account of such purchases, for the total amount; provided, however, that the portion of the utility bill that represents a surcharge or adjustment caused by increased cost of energy-producing fuels shall be exempt from taxation and no tax shall be levied or imposed thereon.
- (3) Purchases of taxable services shall be considered and treated as constituting and being distinct and unrelated classes of purchases, and in the event that more than one (1) such class shall be shown upon the same bill, the amount of public utility tax payable pursuant hereto shall be determined and computed for each such class separately.

- (4) The seller is required and it shall be his duty to render to each purchaser bills covering all such purchases made, and the amount of such public utility tax shall be entered and shown by the seller as a separate item on each such bill and shall become due and payable to the city whenever such bill becomes due and payable under the rules and regulations of the seller. Each such bill shall include purchases applicable to but one (1) location, or to but one (1) family or business where more than one (1) family or business uses separate metered services at one (1) location in the city.
- (5) The purchaser is required and it shall be his duty to pay such public utility tax to the seller, as agent for the city, at the time of the payment of each such bill, and in the event that the purchaser shall fail, neglect or refuse to pay such public utility tax to the seller when such bill becomes due and payable, the seller is hereby empowered to discontinue forthwith to make any further sales or to render any further service to the purchaser until the total amount, including such public utility tax, shown upon such bill has been paid in full. The seller is hereby authorized and required and it shall be his duty to collect such public utility tax from such purchaser at the time of the payment of each such bill and to remit the same to the department of finance in accordance with the provisions hereinafter stated, provided that the seller shall have the right and privilege of assuming and paying such excise tax himself in lieu of collecting the same from the purchaser; and that whenever the seller shall fail or neglect to collect such public utility tax from the purchaser within one (1) year from the date of the bill on which such tax was or should have been imposed, the seller shall be deemed to have assumed such public utility tax himself and shall thereupon become liable for the payment of the amount thereof to the city to the same extent as if such public utility tax has been collected from the purchaser, without further recourse to the purchaser therefor.
- (6) This section shall be applicable to all bills for taxable services, except that any bills for the purchase of sixteen (16) ounces or less of bot-

tled gas in a container or less than one (1) gallon of fuel oil shall be exempt from taxation.

(Code 1983, § 19.5-23; Ord. No. 84-17, § 2, 9-12-1984)

Sec. 19.5-24. Exemptions.

Exempt from taxation are the following:

- (1) The first five hundred (500) kilowatt hours of electricity purchased per month for residential use. This exemption shall apply to each separate residential unit regardless of whether such unit is on a separate or a central meter and shall be passed on to each individual tenant by the seller. In addition, the exemption shall include customer service charges, franchise fees, and all other costs, fees, or charges insofar as the same relate to the first five hundred (500) kilowatt hours.
- (2) Natural gas or fuel oil purchased by a public or private utility, either for resale or for use as fuel in the generation of electricity, or the purchase of fuel oil or kerosene for the use as an aircraft engine fuel or propellant or for use in internal combustion engines shall be exempt from taxation hereunder.
- (3) Purchases by any recognized church in this state for use exclusively for church purposes.
- (4) Services competitive with those enumerated above shall be taxed on a comparable base at the same rates. However, fuel oil shall be taxed at a rate not to exceed four cents (\$0.04) per gallon.

(Code 1983, § 19.5-24; Ord. No. 84-17, § 3, 9-12-1984; Ord. No. 84-22, § 1, 11-14-1984)

Sec. 19.5-24.1. Enterprise zone; partial utility tax exemption.

(a) Pursuant to F.S. § 166.231(8), the city grants an exemption of fifty (50) percent of the municipal tax imposed for purchases of electrical energy on purchasers of electrical energy who are determined by the state department of revenue, pursuant to F.S. § 212.08(15), to be a qualified business at a fixed location in an enterprise zone.

(b) The exemption provided in subsection (a) of this section shall be available to any business which is new or substantially expanded.

(c) The exemption provided in subsection (a) of this section shall be available for all businesses determined qualified as provided in subsection (a) of this section for five (5) years from the date of such determination, provided that no business shall be deemed qualified for the exemption after December 31, 1994.

(d) This section shall expire and be void on December 31, 1984, except that any qualified business which has satisfied the requirements of this section prior to December 31, 1994, shall be allowed the full benefit of the exemption allowed under this section as if this section had not yet expired on December 31, 1994. (Code 1983, § 19.5-24.1; Ord. No. 90-3, § 1, 3-14-1990)

Sec. 19.5-25. Remittance to the city by seller.

Every seller is hereby required to execute and file not later than the twentieth day of each month at the office of the department of finance a certified statement on a form prescribed by such department, setting forth the amount of such public utility tax to which the city became entitled under the provisions hereof on account of bills paid by purchasers during the preceding fiscal month, and contemporaneously with the filing of such statements, shall pay the amount of such public utility tax to the department of finance. Failure to timely remit the tax shall obligate the seller to pay to the city a penalty of one (1) percent thereof per month or fraction thereof during the period of delinquency. All collected tax and penalties shall be deposited to credit of the general fund of the city to be expended for city purposes. (Code 1983, § 19.5-25; Ord. No. 84-17, § 3, 9-12-1984)

Sec. 19.5-26. Records to be kept.

Every seller is hereby required to establish and maintain appropriate accounts and records showing in such detail as the director of the finance department may prescribe the amount of such public utility tax payable to the city under the provisions hereof and such accounts and records shall be open to inspection by the finance director or his duly authorized agent at all reasonable times. The director of the finance department is hereby authorized and empowered to promulgate from time to time such rules and regulations with respect to the establishment and maintenance of such

accounts and records as he may deem necessary to carry into effect the purpose and intent of the provisions hereof.

(Code 1983, § 19.5-26; Ord. No. 84-17, § 3, 9-12-1984)

Sec. 19.5-27. Reports of deliveries for resale.

Every manufacturer, distributor, wholesaler or seller who shall deliver taxable services to any seller or other person having a place of business in the city, or licensed to do business therein, to be sold or resold to ultimate purchasers, shall report to the department of finance semiannually, as of June 30 and December 31, the names and addresses of such sellers or other persons, and the quantities received by each of them during the preceding six (6) months, such reports to be filed not later than one (1) month after the close of each semi-annual period.

(Code 1983, § 19.5-27; Ord. No. 84-17, § 3, 9-12-1984)

ARTICLE III. LOCAL COMMUNICATIONS SERVICES TAX

Sec. 19.5-28. Preamble adopted by reference

The recitals and findings contained in the preamble to Ordinance No. 01-8 are incorporated by reference and included as if fully set forth in this section.

(Code 1983, § 19.5-28; Ord. No. 01-8, § 1, 6-27-2001)

Sec. 19.5-29. Election regarding permit fees.

The city hereby elects not to require permit fees on communications providers authorized by F.S. § 337.401. (Code 1983, § 19.5-29; Ord. No. 01-8, § 2, 6-27-2001)

Secs. 19.5-30—19.5-33. Reserved.

Sec. 19.5-34. Adoption of tax rate commencing October 1, 2002.

The local communications services tax conversion rate effective October 1, 2002, established under F.S. § 202.20(1)(b), as amended by the Act, for the city of three and seven-tenths (3.7) percent is less than the maximum rate of five and one-tenth (5.1) percent as established in F.S. § 202.19(2)(a). The city hereby adopts the local communications services tax rate of five and twenty-two hundredths (5.22) percent, effective October 1, 2002.

(Code 1983, § 19.5-34; Ord. No. 01-8, § 7, 6-27-2001)

Chapter 19.6

BUDGET RESERVE*

- Sec. 19.6-1. General fund reserves.
- Sec. 19.6-2. Purposes for which fund may be used.
- Sec. 19.6-3. Replenishment of reserves.

*State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

Sec. 19.6-1. General fund reserves.

(a) The city shall maintain during each fiscal year a reserve fund of one million dollars (\$1,000,000.00).

(b) The reserve fund shall be in addition to all other contingency funds, reserves or designations of fund balances.

(Code 1983, § 19.6-1; Ord. No. 15-10, § 2, 5-13-2015)

Sec. 19.6-2. Purposes for which fund may be used.

(a) The reserve may be utilized and the fund balance may be decreased for any of the following purposes:

- (1) Natural disasters or emergencies;
- (2) Unanticipated capital improvements or infrastructure needs;
- (3) Unforeseen contingent liabilities;
- (4) Acts of God;
- (5) For the emergency health, safety and welfare needs of the city.

(Code 1983, § 19.6-2; Ord. No. 15-10, § 2, 5-13-2015)

Sec. 19.6-3. Replenishment of reserves.

(a) If, in any fiscal year, the city is unable to maintain the one million dollars (\$1,000,000.00) in reserves, the city in the next fiscal year shall not be entitled to appropriate any portion of the remaining reserve funds until the reserve fund is replenished to reach the one million dollar (\$1,000,000.00) goal without city commission approval.

(b) If, during any fiscal year, the million dollar (\$1,000,000.00) reserve fund is not met, all unallocated funds are to be placed into the reserve fund until this goal is reached.

(Code 1983, § 19.6-3; Ord. No. 15-10, § 2, 5-13-2015)

Chapter 20

TRAILERS*

Sec. 20-1.	Defined.
Sec. 20-2.	Parking prohibited except in trailer park.
Sec. 20-3.	Emergency parking on public ways.
Sec. 20-4.	Parking in private garage.
Sec. 20-5.	Parking, use as construction shack.
Sec. 20-6.	Parking for repairs.
Sec. 20-7.	Parking for sale or repair by authorized businesses.
Sec. 20-8.	Truck routes.

County Code references—Mobile homes generally, ch. 19A; enforcement thereof in incorporated areas, § 19A-1(b)(1).

***State law reference**—Municipal Home Rule Powers Act, F.S. ch. 166.

Sec. 20-1. Defined.

Whenever used herein, the term "trailer" means a highway vehicle, self-propelled or designated to be hauled by a tractor, motor truck or a passenger automobile, and designed to be used as living quarters. (Code 1955, § 21-1; Code 1983, § 20-1)

Sec. 20-2. Parking prohibited except in trailer park.

Except as otherwise provided herein, it shall be unlawful to park any trailer on any street, alley or highway, or other public place, or on any tract of land owned by any person, occupied or unoccupied, within the city, except in an approved trailer or mobile home park, or as otherwise permitted by the zoning ordinance. (Code 1955, § 21-2; Code 1983, § 20-2)

Sec. 20-3. Emergency parking on public ways.

Emergency or temporary stopping or parking is permitted on any street, alley or highway for not longer than six (6) hours subject to any other further prohibitions, regulations or ordinances for that street, alley or highway. (Code 1955, § 21-2; Code 1983, § 20-3)

Sec. 20-4. Parking in private garage.

The parking of only one (1) unoccupied trailer in an accessory private garage building is permitted, provided no living quarters shall be maintained or any business practiced in said trailer while such trailer is so parked or stored. (Code 1955, § 21-2; Code 1983, § 20-4)

Sec. 20-5. Parking, use as construction shack.

The provisions of this chapter shall not be construed to prohibit or prevent the parking and use of a trailer designed and used in lieu of a construction shack by a licensed contractor in conjunction with and during the construction of a building in a location or area not zoned solely for residential use. (Code 1955, § 21-2; Code 1983, § 20-5)

Sec. 20-6. Parking for repairs.

The provisions of this chapter shall not be construed to prohibit or prevent the off-street parking of a trailer in a commercial or industrial zone for the purpose of repairs of such a nature and extent as to require off-

street parking. In the event that such repairs shall be extensive enough to require overnight parking, a written permit from the city manager must first be secured. In no event shall such a permit be valid for a period of more than seven (7) consecutive days, and no more than one (1) permit per trailer may be granted in any six (6) month period. (Code 1955, § 21-2; Code 1983, § 20-6)

Sec. 20-7. Parking for sale or repair by authorized businesses.

The provisions of this chapter shall not be construed to prohibit or prevent the off-street parking of a trailer for the purpose of sales display, repairs or servicing, by a business licensed to sell or repair trailers. (Code 1955, § 21-2; Code 1983, § 20-7)

Sec. 20-8. Truck routes.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Destination point is a location where merchandise or material is loaded or unloaded during the normal course of business.

Deviating truck means a truck which leaves and departs from a truck route while traveling inside the city.

Truck means any vehicle designed or operated for the transportation of property, and whose body weight or whose combined body and load weight or whose rated capacity exceeds one (1) ton.

Truck route means a way over certain streets, as designated in this section, over and along which trucks coming into and going out of the city must operate.

(b) *Application of regulations.* All trucks within the city shall be operated only over and along the truck routes established in this section and on the other designated streets over which truck travel is permitted. Overnight parking of trucks in residential areas is not permitted.

(c) *Exceptions.* This section shall not prohibit:

- (1) *Operation on street of destination.* The operation of any trucks upon any street where necessary to the conduct of business at a destina-

tion point, provided streets upon which such traffic is permitted are used until reaching the intersection nearest the designation point.

- (2) *Emergency vehicles.* The operation of emergency vehicles upon any street in the city.
- (3) *Public utilities.* The operation of trucks owned or operated by the city, public utilities, or any contractor while engaged in the repair, maintenance or construction of streets, street improvements or utilities within the city.
- (4) *Detoured trucks.* The operation of trucks upon any officially established detour in any case where such truck could lawfully be operated on the street for which such detour was established.
- (d) *Truck routes established.*
 - (1) NW 27 Avenue west on Veterans Way towards Douglas Road (NW 37 Avenue) including the reverse route from Douglas Road to NW 27 Avenue (Douglas-Service Road is not included in this route).
 - (2) NW 27 Avenue going east on Veterans Way towards NW 22 Avenue, including the reverse route going west from NW 22 Avenue to NW 27 Avenue.
 - (3) All the connecting streets within the commercial and industrial boundaries of NW 27 Avenue, NW 22 Avenue, NW 151 Street and Veterans Way, to include NW 147 Street, NW 149 Street, NW 150 Street, NW 22 Place, NW 24 Court, NW 25 Court, NW 25 Avenue, and NW 26 Avenue.
 - (4) NW 27 Avenue going west onto NW 127 Street and NW 30 Avenue turning west on NW 129 Street traveling north on NW 31 Avenue onto west to NW 131 Street towards NW 32 Avenue.
 - (5) Veterans Way going south on Dunad Avenue and Superior Street turning right on Sesame Street to NW 135 Street, including the reverse route from NW 135 Street to Veterans Way.
 - (6) NW 135 Street going south on NW 32 Avenue, including the reverse route from NW 32 Avenue to NW 135 Street.

- (7) All the connecting streets within the commercial and industrial boundaries of NW 22 Avenue, NW 141 Street, NW 19 Avenue, and Opa-locka Boulevard, to include NW 20 Avenue, and NW 20 Court.
- (8) The commercial boundaries of NW 27 Avenue, first block going east on NW 143 up to NW 26 Avenue turning west to NW 27 Avenue.
- (9) Portion of Service Road along State Road 9 onto to NW 24 Avenue going south towards NW 143 Street connecting back to Service Road.
- (10) All roadways within the commercial and the industrial area of the subdivisions of Le Jeune Industrial Park and North Dade Industrial Park.
- (11) All roadways in the salvage yard area in the subdivision of Nile Gardens to include Port Said Road, Cairo Lane, and NW 127 Street.
- (12) All of Opa-locka Boulevard up to Sharazad Boulevard. (Trucks are not allowed to travel on Sharazad Boulevard.)
- (13) All county and state roadways: NW 135 Street, NW 37 Avenue (Douglas Road), NW 27 Avenue, NW 22 Avenue, NW 42 Avenue (Le Jeune Road), State Road 9, Opa-locka Boulevard, NW 151 Street.

(e) *Truck traffic in the city—Outside origin.*

- (1) *One inside destination point.* All trucks entering the city for a destination point in the city shall proceed only over an established truck route and shall deviate only at the intersection with the street nearest to the destination point. Upon leaving the destination point, a deviating truck shall return to the truck route by the shortest permissible route.
- (2) *Multiple inside destination points.* All trucks entering the city for multiple destination points shall proceed only over established truck routes and shall deviate only at the intersection with the street nearest to the first destination point. Upon leaving the first destination point, a deviating truck shall proceed to other destination points by the shortest direction. Upon

leaving the last destination point, a deviating truck shall return to the truck route by the shortest permissible route.

(f) *Truck traffic in the city—Inside origin.*

- (1) *Outside destination point.* All trucks on a trip originating in the city and traveling in the city for a destination point outside the city, shall proceed by the shortest direction over streets on which such traffic is permitted to a truck route as established in this section.
- (2) *Inside destination points.* All trucks on a trip originating in the city and traveling in the city for destination points in the city shall proceed as provided in subsection (e) of this section.

(g) *Maps.* The city clerk shall keep and maintain accurate maps setting out truck routes and streets upon which truck traffic is permitted; the maps shall be kept on file in the office of the city clerk and shall be available to the public.

(h) *Signs.* The director of public works or his designee shall cause all truck routes to be clearly sign posted to give notice that this section is in effect.

(i) *Weigh-ins.* Any duly authorized police officer of the city having probable cause to believe that a vehicle is violating this section shall have the authority to require any person driving or in control of any commercial vehicle, not proceeding over a truck route or street over which truck traffic is permitted, to proceed to any private or public scale available for the purpose of weighing and determining whether this section has been complied with.

(j) *Penalty.* Any person who violates this section shall be punishable by a fine not less than one hundred dollars (\$100.00) and not to exceed five hundred dollars (\$500.00).

(Code 1983, § 20-8; Ord. No. 09-06, § 2, 4-8-2009)

Chapter 21

WATER, SEWER, AND STORMWATER UTILITIES*

Article I. In General

- Sec. 21-1. Department of public works and utilities established.
- Sec. 21-2. Director and personnel of department.
- Sec. 21-3. Departmental responsibilities.
- Sec. 21-4. Surcharge for customers outside city limits.
- Secs. 21-5—21-13. Reserved.

Article II. Water

Division 1. Generally

- Sec. 21-14. Definitions.
- Sec. 21-15. Connection to city system required.
- Sec. 21-16. Extensions to be at expense of person requesting; title in city.
- Sec. 21-17. Deposit to cover extension costs.
- Sec. 21-18. Approval of privately constructed extensions.
- Sec. 21-19. Right to enter consumer's premises.
- Sec. 21-20. Consumer to reimburse department expenses.
- Sec. 21-21. City not liable for interruption of service.
- Sec. 21-22. Quality and pressure not guaranteed.
- Sec. 21-23. Application for service required; nature of contract.
- Sec. 21-24. Applications by agents.
- Sec. 21-25. Right to deny service until debts paid.
- Sec. 21-26. Expiration, renewal of contracts for service.
- Sec. 21-27. Responsibility for service to multiple premises.
- Sec. 21-28. Termination of multiple service when one premises sold.
- Sec. 21-29. Charge for multiple meters for single building.
- Sec. 21-30. Cost and deposit for temporary service.
- Sec. 21-31. Scope of short-term service.
- Sec. 21-32. Resale or redistribution of water.
- Sec. 21-33. Service to abnormally large users.
- Sec. 21-34. Change of occupancy.
- Sec. 21-35. Application for private fire protection service; charge.
- Sec. 21-36. Right to refuse private fire protection service.
- Sec. 21-37. Fire protection to be unmetered.
- Sec. 21-38. Grounds for discontinuing service.
- Sec. 21-39. Restrictions on sprinkling.
- Secs. 21-40—21-49. Reserved.

Division 2. Service Lines and Connections

- Sec. 21-50. City to determine service size.
- Sec. 21-51. Department to install service line.
- Sec. 21-52. Enlargement of service.
- Sec. 21-53. City to make connections.
- Sec. 21-54. Tapping charge required.
- Sec. 21-55. Extension of plumbing to service point.
- Sec. 21-56. Plumbing to comply with applicable regulations.
- Sec. 21-57. Changes in consumer's plumbing.
- Sec. 21-58. Department's right to inspect.

*County Code reference—Water and sewer regulations generally, including regulation of municipal systems, Ch. 32.
State law reference—Municipal Home Rule Powers Act, F.S. ch. 166.

OPA-LOCKA CODE

- Sec. 21-59. Consumer to hold city harmless.
- Sec. 21-60. Consumer to protect city property.
- Sec. 21-61. Responsibility for damages to city property.
- Sec. 21-62. Consumer to grant easements, rights, etc.
- Sec. 21-63. Cross-connecting domestic and fire protection service prohibited.
- Sec. 21-64. Cross-connecting city water with another liquid.
- Sec. 21-65. Bypassing meter.
- Sec. 21-66. Unauthorized connections.
- Secs. 21-67—21-76. Reserved.

Division 3. Service Rates and Charges

- Sec. 21-77. Schedule of rates generally.
- Sec. 21-78. Scope of minimum.
- Sec. 21-79. Excess not charged against minimum for other months.
- Sec. 21-80. Deposits.
- Sec. 21-81. Rates for private fire protection service.
- Sec. 21-82. Temporary discontinuance of service.
- Sec. 21-83. Billing procedure; penalty for late payment; lien.
- Sec. 21-84. Nonreceipt of bill not to excuse payment.
- Sec. 21-85. When bills due and payable; discontinuing service for nonpayment.
- Sec. 21-86. Discontinuing service for bill at prior location.
- Sec. 21-87. To whom payment made.
- Sec. 21-88. City to install, maintain meters.
- Sec. 21-89. Title to meters, metering equipment.
- Sec. 21-90. Meter reading prima facie correct.
- Sec. 21-91. Testing of meters; adjustment of bill.
- Sec. 21-92. Obscuring, damaging meters.
- Sec. 21-93. Estimate of bill when meter defective.
- Sec. 21-94. Repair of meter or service on consumer's premises.

Division 4. Cross-Connection Control Program

- Sec. 21-95. Definitions.
- Sec. 21-95.1. Cross-connections prohibited.
- Sec. 21-95.2. Installation of backflow prevention devices required.
- Sec. 21-95.3. Protective device approval.
- Sec. 21-95.4. Types of backflow prevention devices to be installed.
- Sec. 21-95.5. Location to be accessible.
- Sec. 21-95.6. Installation at customer's expense.
- Sec. 21-95.7. User responsible for inspections.
- Sec. 21-95.8. Enforcement.
- Sec. 21-95.9. Discontinuance of public water service.

Division 5. Water Shortage Emergency Restrictions

- Sec. 21-96. General provisions.
- Sec. 21-97. Regulations governing Miami-Dade Billing for the City of Opa-locka.
- Secs. 21-98—21-104. Reserved.

Article III. Sewers and Sewage Disposal

Division 1. Generally

- Sec. 21-105. Definitions.
- Sec. 21-106. Discharging to well or open stream.
- Sec. 21-107. Connection required.
- Sec. 21-108. Exemption from connection for existing septic tanks.
- Sec. 21-109. Temporary use of septic tank.

WATER, SEWER AND STORMWATER UTILITIES

- Sec. 21-110. Exception for interim package treatment facilities.
- Sec. 21-111. Responsibility for costs of connection and maintenance.
- Sec. 21-112. Connection charge outside city.
- Sec. 21-113. Connection by city contractor.
- Sec. 21-114. Creation of sewer modification districts to increase capacity.
- Sec. 21-115. Financing of sewer modification districts.
- Sec. 21-116. Notice, correction of defective side sewers or drainage.
- Sec. 21-117. Use of existing side sewer.
- Sec. 21-118. Correction of inadequate gravity flow.
- Sec. 21-119. Discharge of non-city water prohibited.
- Sec. 21-120. Obstructing, breaking, injuring sewer facilities.
- Sec. 21-121. Damaging system or public area.
- Sec. 21-122. Trees and shrubs interfering with sewers.
- Sec. 21-123. Additional regulations governing side sewers and connections.
- Sec. 21-124. County standards adopted; enforcement, violation.
- Secs. 21-125—21-133. Reserved.

Division 2. Work on or Affecting Sewers

- Sec. 21-134. License required to do work affecting sewer.
- Sec. 21-135. Contractor not to tamper with public sewer.
- Sec. 21-136. Manner of making connection generally.
- Sec. 21-137. Connection permit required.
- Sec. 21-138. Permits for work done inside property lines.
- Sec. 21-139. Application for permit.
- Sec. 21-140. Easement prerequisite to permit.
- Sec. 21-141. Permit fee.
- Sec. 21-142. Permit records.
- Sec. 21-143. Additional work not covered by permit.
- Sec. 21-144. Permit for temporary connection.
- Sec. 21-145. Expiration of permit.
- Sec. 21-146. Posting and display of permit.
- Sec. 21-147. Police, manager to enforce permit requirement.
- Sec. 21-148. Call for inspection.
- Sec. 21-149. Representative to be present for inspection.
- Sec. 21-150. Work to be left uncovered until inspected and approved.
- Sec. 21-151. Notice of disapproval of work.
- Sec. 21-152. Contractor's duty to guard excavations.
- Sec. 21-153. Unguarded excavations on private property.
- Sec. 21-154. Improper work; completion by city, costs.
- Sec. 21-155. Restoration of public areas.
- Secs. 21-156—21-165. Reserved.

Division 3. Service Charges

- Sec. 21-166. Establishment; basis.
- Sec. 21-167. Computation.
- Sec. 21-168. Credit for water not entering sewer system.
- Sec. 21-169. Interceptors and preliminary treatment required.
- Sec. 21-170. Charges for special treatment or disposal.
- Sec. 21-171. Billing and payment.
- Sec. 21-172. Discontinuing water service for nonpayment.
- Sec. 21-173. Lien for sewer charge.
- Sec. 21-174. Deposit, use of revenues generally.
- Secs. 21-175—21-184. Reserved.

Division 4. Septic Tanks

- Sec. 21-185. Permit required.
- Sec. 21-186. Application for permit.

OPA-LOCKA CODE

- Sec. 21-187. Permit issuance.
- Sec. 21-188. Discontinuance.
- Sec. 21-189. Disposal of septic tank contents.

Article IV. Stormwater Utility

- Sec. 21-190. Short title.
- Sec. 21-191. Legislative intent.
- Sec. 21-192. Construction.
- Sec. 21-193. Definitions.
- Sec. 21-194. Utility established.
- Sec. 21-195. Customer base.
- Sec. 21-196. Utility fee categories.
- Sec. 21-197. Fee schedule and payment.
- Sec. 21-198. Exemptions.
- Sec. 21-199. Stormwater utility enterprise funds.
- Sec. 21-200. Request for adjustment.
- Sec. 21-201. Prohibitions, generally.
- Sec. 21-202. Permits, plan reviews, inspections, and administrative fees.

ARTICLE I. IN GENERAL**Sec. 21-1. Department of public works and utilities established.**

There is hereby created and established a department of the city to be known as the department of public works and utilities.
(Code 1955, § 2-130; Code 1983, § 21-1; Ord. No. 83-7, §§ 1, 2, 5-11-1983)

Sec. 21-2. Director and personnel of department.

The city manager is hereby authorized and directed to appoint a director of the department of public works and utilities.
(Code 1955, § 2-131; Code 1983, § 21-2; Ord. No. 83-7, § 1, 5-11-1983)

Sec. 21-3. Departmental responsibilities.

The department of public works and utilities shall be charged with the responsibility for all matters concerning the administration of water, sewer, and stormwater systems within the city, including the construction, improvement, repair, maintenance and operation of water, sewer and stormwater systems and facilities, and the enforcement of all obligations of privately owned and operated water, sewer and stormwater systems and facilities, if any, within the city.
(Code 1955, § 2-132; Code 1983, § 21-3; Ord. No. 83-7, § 1, 5-11-1983; Ord. No. 93-6, § 2, 6-9-1993)

Sec. 21-4. Surcharge for customers outside city limits.

The city commission hereby authorizes the establishment of a twenty-five (25) percent surcharge assessed to water and sewer utility consumers outside the boundaries of the city, as allowed by F.S. § 180.191.
(Code 1983, § 21-4; Ord. No. 08-02, § 2, 1-23-2008)

Secs. 21-5—21-13. Reserved.**ARTICLE II. WATER*****DIVISION 1. GENERALLY****Sec. 21-14. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Consumer means party or person using in any premises water supplied by the city.

Consumer's installation means all pipes, shut-offs, valves, fixtures and appliances or apparatus of every kind and nature used in connection with or forming a part of an installation for utilizing water for any purpose, ordinarily located on the consumer's side of the delivery point, whether such installation is owned outright by the consumer or is used by the consumer under lease or otherwise.

Customer. Each residence accommodating one (1) family shall constitute a customer for water service. Any store, place of business, or room used for an office shall constitute a customer. Each apartment in an apartment building shall constitute a customer. Each apartment or residence in the rear of another apartment or residence shall constitute a customer. In places where there are more than one (1) unit and it is impracticable to separate existing water pipes from separate metering, the owner or owners shall be responsible for all charges for service, which charges shall be in accordance with the size of the meter used and the amount of water metered.

Department means the department of public works and utilities of the city, or its duly authorized personnel.

Extension means a two (2) inch or larger pipeline added to an existing water main of the department for the purpose of serving one (1) or more consumers.

Fire lines means the pipes of the department which extend from the main to the fire line pipes of the consumer and which are used for supplying water exclusively for fire protection purposes.

*County Code references—Potable water standards, § 24-12; water connections required, § 32-76 et seq.

Month means the interval between successive meter reading dates when service is rendered upon a monthly basis, which interval shall be approximately thirty (30) days.

Owner means the person having an interest, whether legal or equitable, sole or only partial, in any premises which is, or is about to be, supplied with water by the city, and the term "owners" means all interested persons, including occupants and tenants.

Point of delivery means the point where the department's pipes or meters are connected with the pipes of the consumer.

Quarter means the interval between successive meter reading dates when service is rendered upon a quarterly basis, which interval shall be approximately three (3) months.

Service includes, in addition to all water delivered to the consumer, the readiness and ability on the part of the department of public works and utilities to furnish water to the consumer. Thus, the maintenance of pressure at the point of delivery by the department of public works and utilities shall constitute the rendering of service, irrespective of whether the consumer makes any use thereof.

Service connection means the physical connection made between each water meter furnished by the department and the consumer's pipe.

Service lines means the pipes of the department which extend from the main to the meter.

Territory means the corporate limits of the city.
(Code 1955, § 23-7; Code 1983, § 21-14)

Sec. 21-15. Connection to city system required.

Premises shall be required to be connected to the city water distribution system when and as required by the Code of Miami-Dade County, Florida.
(Code 1983, § 21-15)

County Code reference—Water connections required, § 32-76 et seq.

Sec. 21-16. Extensions to be at expense of person requesting; title in city.

Extensions to the water distribution system upon the request of any person shall be constructed at the expense of such person and upon their completion, title thereto shall be vested in the city.
(Code 1955, § 23-2; Code 1983, § 21-16)

Sec. 21-17. Deposit to cover extension costs.

Before any extension or extensions shall be undertaken or permitted by the city upon the request of any person, the person requesting such extension shall deposit with the city a sum of money equal to the cost of such extension as estimated by the city engineer.
(Code 1955, § 23-3; Code 1983, § 21-17)

Sec. 21-18. Approval of privately constructed extensions.

In the event such person shall choose in the alternative to construct or cause to be constructed such extension or extensions for its own account, the plans and specifications for such construction must first be approved by the city engineer, and no connection with the city water distribution system shall be made unless and until such extension has first been inspected and approved by the city engineers.
(Code 1955, § 23-4; Code 1983, § 21-18)

Sec. 21-19. Right to enter consumer's premises.

The duly authorized agents of the department shall have access at all reasonable hours to the premises of the consumer for the purpose of installing, maintaining and inspecting or removing the department's property, reading meters and other purposes incident to performance under or termination of the department of public works and utilities' contract with the consumer, and in such performance shall not be liable for trespass.
(Code 1955, § 23-15; Code 1983, § 21-19)

Sec. 21-20. Consumer to reimburse department expenses.

The consumer shall reimburse the department for all extra expenses (such as for special trips, inspections, disconnecting and reconnecting service, additional clerical expenses, etc.), incurred by the department on account of any delinquent bill, or on account of the consumer's violations of the contract for service or the provisions of this article. The minimum charge to cover such extra expenses is two dollars (\$2.00).
(Code 1955, § 23-17; Code 1983, § 21-20)

Sec. 21-21. City not liable for interruption of service.

In case of accidents, breakdown, shortage of water supply or any cause beyond its control or because of

any act or omission on the part of the city, or its agents, or any of them, or in case of the making of repairs, renewals or replacements, the city reserves the right to shut off the water supply from any one or any number of premises, without notice, and shall in no manner be held responsible for any consequences of such shut-off. Such shut-offs shall not entitle the owner to any abatement or deduction in or from the water service charges nor to any refund of any charges paid in advance. (Code 1955, § 23-17; Code 1983, § 21-21)

Sec. 21-22. Quality and pressure not guaranteed.

The city shall not make any guarantee as to a certain quality or pressure, nor be responsible for any loss or damage to the owner for the efficiency or failure to the supply of water, whether the occasion is for shutting off water in the case of accident or alteration, extension, connections or for any cause whatsoever. (Code 1955, § 23-17; Code 1983, § 21-22)

Sec. 21-23. Application for service required; nature of contract.

Service is to be furnished only upon signed application accepted by the department, and the conditions of such application and the resulting contract for service are binding upon the consumer as well as upon the department. Applications are accepted by the department with the understanding that there is no obligation on the part of the department to render service other than that which is then available from its existing equipment. (Code 1955, § 23-10; Code 1983, § 21-23)

Sec. 21-24. Applications by agents.

Applications for service requested by firms, partnerships, associations, corporations, etc., shall be submitted to the department only by duly authorized agents. When service is rendered under a contract entered into between the department and an agent of the applicant for service, the use of such service by the applicant shall constitute full and complete ratification by him of such contract. (Code 1955, § 23-10; Code 1983, § 21-24)

Sec. 21-25. Right to deny service until debts paid.

The department may withhold or discontinue service rendered under an application made by any member or agent of a family, household, organization or

business until all prior indebtedness to the department of such family, household, organization or business has been paid in full. (Code 1955, § 23-10; Code 1983, § 21-25)

Sec. 21-26. Expiration, renewal of contracts for service.

All contracts for water supply service shall expire at the end of the next succeeding calendar month from date of application, but shall be automatically renewed from month to month unless ten (10) days' notice is given in writing from either party to the other of the desire to terminate the contract at the expiration of the then calendar month. (Code 1955, § 23-10; Code 1983, § 21-26)

Sec. 21-27. Responsibility for service to multiple premises.

When two (2) or more premises are served through the same meter, the owner of such premises must sign the contract or contracts for water service and be responsible for the payment for all service rendered. (Code 1955, § 23-10; Code 1983, § 21-27)

Sec. 21-28. Termination of multiple service when one premises sold.

In those cases where a number of premises are supplied through one (1) meter and one (1) service, and subsequently, one (1) or more of said houses or premises are sold, transferred, or otherwise pass under separate ownership, thereafter each such house or houses or premises must have a separate meter installed. (Code 1955, § 23-10; Code 1983, § 21-28)

Sec. 21-29. Charge for multiple meters for single building.

Where the owner of a building containing more than one (1) store, dwelling or other premises desires that separate meters be installed to each separate store, dwelling or other premises, such additional meters shall be installed upon the payment in advance of the regular tapping charge for a new service for each meter installed. (Code 1955, § 23-10; Code 1983, § 21-29)

Sec. 21-30. Cost and deposit for temporary service.

Applicants for temporary service, such as contractors, etc., shall pay to the department in advance the cost of installing and removing any facilities necessary to furnish the service, and shall deposit with the department a guarantee of not less than the estimated amount of the department's bill for such service.

(Code 1955, § 23-10; Code 1983, § 21-30)

Sec. 21-31. Scope of short-term service.

Short-term service will be rendered only to the location and only within the period of time specified in the contract providing therefor and shall be utilized only by the contracting party.

(Code 1955, § 23-10; Code 1983, § 21-31)

Sec. 21-32. Resale or redistribution of water.

Water service purchased from the department shall be used by the consumer only for the purposes specified in the application for service, and the consumer shall not sell or otherwise dispose of such service. Except for service furnished to other municipalities, water service furnished to the consumer will be rendered directly to the consumer through the department's meter and shall be for consumer's own use and shall not be re-metered by the consumer for the purpose of selling or otherwise disposing of water service to lessees, tenants or others, and under no circumstances shall the consumer or the consumer's agent or any other individual, association or corporation install a meter for the purpose of so re-metering said service. In no case shall a consumer, except with the written consent of the department of public works and utilities, extend his lines across a street, alley, lane, court, avenue or other highway in order to furnish service for adjacent property through one (1) meter, even though such adjacent property is owned by him. In case of such unauthorized re-metering, sale or disposition of service, the consumer's service shall be subject to discontinuance until such unauthorized re-metering, sale or disposition has been discontinued and full payment has been made of all bills for service, calculated under proper classifications and rate schedules, and until reimbursement in full has been made to the department for all extra expenses incurred for clerical work, testing and inspections.

(Code 1955, § 23-11; Code 1983, § 21-32)

Sec. 21-33. Service to abnormally large users.

(a) Customers requiring water service in excess of seven thousand five hundred (7,500) gallons per day per acre, or in excess of three one-thousandths (0.003) of one (1) percent of the total average daily production capacity of the city water system, shall file with the city manager an application specifying the following:

- (1) Total amount of water gallonage anticipated per day per acre;
- (2) Purpose of said water usage;
- (3) Special requirements, if any;
- (4) Maximum and minimum anticipated water usage for each month during the period October 1 through September 30 for a period of three (3) years.

(b) In the event the total maximum gallonage demanded for the proposed usage exceeds seven thousand five hundred (7,500) gallons per day per acre or three one-thousandths (0.003) of one (1) percent of the total average daily production capacity of the city water system, water service to the applicant shall be refused and the application for water service shall be held in abeyance until such time as the city water production system shall have been expanded to provide the desired water service in excess of seven thousand five hundred (7,500) gallons per day per acre, or three one-thousandths (0.003) of one (1) percent of the total average daily production capacity of the city water system. Applications shall be considered in numerical order of filing with the city manager.

(c) Customers whose applications for service are refused pending expansion of the city water facilities shall be permitted to conditionally connect to and use the city water services to the extent of seven thousand five hundred (7,500) gallons per day, per acre or three one-thousandths (0.003) of one (1) percent of the total average daily production capacity as may proportionately become available by the expansion of the production capacity of the city water system.

(d) Applications deferred hereunder for water service shall remain valid for a period of three (3) years from the date received. In the event the city water production capacity has not been expanded during the time period in order to accommodate the demands of the customer, the application shall be denied without prejudice to refile for additional water service.

(e) In determining the availability of water service for each parcel of land or property the proper officers of the city shall serve all customers requiring less than seven thousand five hundred (7,500) gallons per day per acre or three one-thousandths (0.003) of one (1) percent of the total average daily production capacity. Water for customers whose parcels are less than one (1) acre shall be apportioned in order to determine availability of water for said parcels.

(Code 1955, § 23-11; Code 1983, § 21-33)

Sec. 21-34. Change of occupancy.

(a) When change of occupancy takes place on any premises supplied by the department with water service, written notice thereof shall be given at the office of the department not less than two (2) days prior to the date of change by the outgoing party, who will be held responsible for all water service rendered to such premises until such written notice has been received and the department has had a reasonable time to discontinue service.

(b) Provided, if such written notice has not been received by the department, the application of a succeeding occupant for water service will automatically terminate the prior account without, however, discharging the obligation of the former occupant.

(Code 1955, § 23-12; Code 1983, § 21-34)

Sec. 21-35. Application for private fire protection service; charge.

To obtain private fire protection water service, an application shall be made to the department and a contract, in the form prescribed by the department, entered into. In addition, prepayment shall be made by such applicant of the estimated cost of the installation plus ten (10) percent, including labor, materials, street repair, sidewalk repair and such other costs as may be incurred in rendering such service, plus the cost of the extension of the proper size main.

(Code 1955, § 23-13; Code 1983, § 21-35)

Sec. 21-36. Right to refuse private fire protection service.

The department reserves the right to refuse to contract for private fire protection water service in any case where no adequate water mains for such purpose are adjacent to applicant's property.

(Code 1955, § 23-13; Code 1983, § 21-36)

Sec. 21-37. Fire protection to be unmetered.

There will be no meter on any portion of the consumer's installation utilized for fire protection purposes.

(Code 1955, § 23-15; Code 1983, § 21-37)

Sec. 21-38. Grounds for discontinuing service.

Contracts for water service shall be subject to cancellation, and service thereunder discontinued by the city, for any of the following reasons, to wit:

- (a) For misrepresentations or concealment in the application.
- (b) For waste or excessive use of water through improper or imperfect pipes and fixtures, or appliances, or in any other manner.
- (c) For refusal or neglect to make any advance payment required by the department, or for refusal or neglect to comply with any requirements of the department as to meter or service connection maintenance, alteration or renewal.
- (d) For the use of water supply service for or in connection with or for the benefit of any other premises or purposes other than that specified in the application.
- (e) For any interference or tampering, whether by act of commission or omission, with the meter measuring the water supply or with seals of any meter, or with any meter box or vault, or service pipes, or valves or any seals thereon, or with the curb stop cock, or with any appliances of the department or with any appliance of the owner which was or is required by the department to control or regulate the water supply service. For the purpose of this section, any interference or tampering with any appliance used in connection with or for the control or regulation of the water supply service to any premises shall be construed and taken to be the act of the owner and consumers using the water service at the premises.
- (f) In case of continued vacancy of the premises.
- (g) For violation of any of the provisions of this article.

- (h) Where there has been a change in ownership of the premises, but no application from the new owner or owners has been made for approval by the department.
- (i) Where there has been discontinuance of the use of water or the service of the department.
- (j) Where the contract has been in any way terminated by the owner.
- (k) Where any owner or consumer refuses or neglects payment of any bill, account or charge, or where the department is being defrauded in any way.

(Code 1955, § 23-14; Code 1983, § 21-38)

Sec. 21-39. Restrictions on sprinkling.

(a) All sprinkling during a fire in the vicinity of any owner's premises of which said owner, his agent or tenant, has or may reasonably be presumed to have knowledge or notice of, is prohibited, unless such sprinkling is for protection against such fire.

(b) Sprinkling may be further restricted or prohibited by a resolution of the city commission during any period when a shortage of water exists.

(Code 1955, § 23-18; Code 1983, § 21-39)

Secs. 21-40—21-49. Reserved.

DIVISION 2. SERVICE LINES AND CONNECTIONS

Sec. 21-50. City to determine service size.

The city in every instance, reserves the right to designate and prescribe the size of service connection.

(Code 1955, § 23-15; Code 1983, § 21-50)

Sec. 21-51. Department to install service line.

Where water mains exist, the department will provide one (1) or more service lines to each lot of a recorded subdivision plat upon proper application.

(Code 1955, § 23-15; Code 1983, § 21-51)

Sec. 21-52. Enlargement of service.

In the event that a service line supplying a house or building is found not to be large enough due to additions to building or an increase or change in the number of fixtures, the department will install any adequate

service line upon application of the consumer and advance payment by him of the total cost of such larger service line.

(Code 1955, § 23-15; Code 1983, § 21-52)

Sec. 21-53. City to make connections.

Connections to the department's system for any purpose whatsoever are to be made only by its employees.

(Code 1955, § 23-15; Code 1983, § 21-53)

Sec. 21-54. Tapping charge required.

On application of the owner or prospective consumer of water service on premises within the territory, requiring the installation of meters, valves or other facilities, and where water mains exist adjacent to said premises, the following charges, to all properties, shall be made and collected to cover the cost of the tap and installation of the service to the point of delivery, to wit:

- (a) Single-family residential single meter connection, two hundred fifty dollars (\$250.00).
- (b) Commercial/industrial single-meter connection costs of meter, valve, pipe, and installation, but no less than a minimum charge of four hundred fifty dollars (\$450.00).

(Code 1955, § 23-9; Code 1983, § 21-54; Ord. No. 82-13, § 1, 11-22-1982)

Sec. 21-55. Extension of plumbing to service point.

Each consumer's installation shall be extended by the consumer at his expense to a point outside the structure designated by the department, provided that such designated point is on the boundary of the premises adjacent to a public street, avenue, court, lane, etc. The consumer's installation shall be extended to the department's meter and curb cock, ordinarily located at the curb or curblane. A gate or shutoff valve of a type approved by the department shall be installed by the consumer at his expense on the consumer's installation at the point designated by the water department. Neglect or refusal of the consumer to comply with these requirements shall render the consumer liable for any damage to the meter, other fixtures or equipment on the department's side of the point of delivery.

(Code 1955, § 23-15; Code 1983, § 21-55)

Sec. 21-56. Plumbing to comply with applicable regulations.

The consumer's water pipes, apparatus and equipment shall be selected, installed, used and maintained in accordance with standard practice, conformable to the requirements of the department, and in full compliance with all laws and governmental regulations applicable thereto. The consumer expressly agrees to abstain from utilizing any appliance or device which is not properly constructed, controlled and protected, or which may adversely affect the service, and the department reserves the right to withhold or to discontinue service whenever any such apparatus or device is used. (Code 1955, § 23-15; Code 1983, § 21-56)

Sec. 21-57. Changes in consumer's plumbing.

No changes or increases in the consumer's installation, which will materially affect the proper operation of the pipes, mains or stations of the department, shall be made without the written consent of the department. The consumer will be liable for any damage resulting from a violation of this section. (Code 1955, § 23-15; Code 1983, § 21-57)

Sec. 21-58. Department's right to inspect.

The department reserves the right to inspect the consumer's installation prior to rendering service and from time to time thereafter but assumes no responsibility whatsoever for any portion thereof. (Code 1955, § 23-15; Code 1983, § 21-58)

Sec. 21-59. Consumer to hold city harmless.

The consumer shall indemnify, hold harmless and defend the department and the city from and against any and all liability, proceedings, suits, costs or expenses for loss, damage or injury to persons or property, in any manner directly or indirectly connected with or growing out of the transmission and use of water by the consumer at or on the consumer's side of the point of delivery. (Code 1955, § 23-15; Code 1983, § 21-59)

Sec. 21-60. Consumer to protect city property.

The consumer shall properly protect the department's property on the consumer's premises and shall permit no one to have access thereto except the department's agents or persons authorized by law. (Code 1955, § 23-15; Code 1983, § 21-60)

Sec. 21-61. Responsibility for damages to city property.

In the event of any loss or damage to property of the department caused by or arising out of carelessness, neglect or misuse by the consumer, or by unauthorized parties with the consumer's sanction, the cost of making good such loss or repairing such damage shall be paid by the consumer. (Code 1955, § 23-15; Code 1983, § 21-61)

Sec. 21-62. Consumer to grant easements, rights, etc.

The consumer shall grant or cause to be granted to the department and without cost of the department all rights, easements, permits and privileges which in its opinion are necessary for the rendering of service. (Code 1955, § 23-15; Code 1983, § 21-62)

Sec. 21-63. Cross-connecting domestic and fire protection service prohibited.

No connection of any description, temporary or otherwise, is permitted on the consumer's installation between that portion of the consumer's installation for domestic water service and that portion of the consumer's installation for fire protection purposes. (Code 1955, § 23-15; Code 1983, § 21-63)

Sec. 21-64. Cross-connecting city water with another liquid.

Any and all physical connections or arrangement of pipes are prohibited between two (2) separate piping systems, one (1) of which contains potable water from the city water mains, and the other containing a liquid from any other source. (Code 1955, § 23-15; Code 1983, § 21-64)

Sec. 21-65. Bypassing meter.

That portion of the consumer's installation for domestic water service shall be so arranged that all domestic water service shall pass through the meter. No temporary pipes, nipples or spacers are permitted and under no circumstances are connections allowed which may permit water to bypass the meter or metering equipment. (Code 1955, § 23-15; Code 1983, § 21-65)

Sec. 21-66. Unauthorized connections.

Any unauthorized connections shall render the service subject to immediate discontinuance without notice and service will not be restored until such unauthorized connections have been removed and unless

settlement is made in full for all water service estimated by the department to have been used by reason of such unauthorized connections.

(Code 1955, § 23-15; Code 1983, § 21-66)

Secs. 21-67—21-76. Reserved.

DIVISION 3. SERVICE RATES AND CHARGES*

Sec. 21-77. Schedule of rates generally.

<i>Meter Size</i>	<i>1/1/2015</i>	<i>10/1/2015</i>	<i>10/1/2016</i>	<i>10/1/2017</i>	<i>10/1/2018</i>
¾"	\$4.15	\$4.48	\$4.84	\$5.23	\$5.65
1"	\$23.78	\$25.68	\$27.73	\$29.95	\$32.35
1.5"	\$26.90	\$29.05	\$31.37	\$33.88	\$36.59
2"	\$55.06	\$59.46	\$64.22	\$69.36	\$74.91
3"	\$64.43	\$69.58	\$75.15	\$81.16	\$87.65
4"	\$81.95	\$88.51	\$95.59	\$103.24	\$111.50
6"	\$99.46	\$107.42	\$116.01	\$125.29	\$135.31
8"	\$116.86	\$126.21	\$136.31	\$147.21	\$158.99

Water usage rates per one thousand (1,000) gallons:

	<i>Gallons</i>	<i>1/1/15</i>	<i>10/1/15</i>	<i>10/1/16</i>	<i>10/1/17</i>	<i>10/1/18</i>
<i>Residential</i>						
Block 1	1—5,000	\$2.74	\$2.96	\$3.20	\$3.46	\$3.74
Block 2	5,001—10,000	\$3.43	\$3.70	\$4.00	\$4.32	\$4.67
Block 3	10,001—15,000	\$11.15	\$12.04	\$13.00	\$14.04	\$15.16
Block 4	All Use 15,000	\$16.72	\$18.06	\$19.50	\$21.06	\$22.74
<i>Commercial</i>						
Block 1	All Use	\$7.37	\$7.96	\$8.60	\$9.29	\$10.03

Sewer monthly service charge (residential and commercial):

<i>Meter Size</i>	<i>1/1/2015</i>	<i>10/1/2015</i>	<i>10/1/2016</i>	<i>10/1/2017</i>	<i>10/1/2018</i>
¾"	\$4.15	\$4.48	\$4.84	\$5.23	\$5.65
1"	\$23.78	\$25.68	\$27.73	\$29.95	\$32.35
1.5"	\$26.90	\$29.05	\$31.37	\$33.88	\$36.59
2"	\$55.06	\$59.46	\$64.22	\$69.36	\$74.91
3"	\$64.43	\$69.58	\$75.15	\$81.16	\$87.65
4"	\$81.95	\$88.51	\$95.59	\$103.24	\$111.50
6"	\$99.46	\$107.42	\$116.01	\$125.29	\$135.31
8"	\$116.86	\$126.21	\$136.31	\$147.21	\$158.99

*County Code reference—Jurisdiction of county over municipal water rates, § 32-66.

Sewer usage rate per one thousand (1,000) gallons:

	<i>Gallons</i>	<i>1/1/2015</i>	<i>10/1/2015</i>	<i>10/1/2016</i>	<i>10/1/2017</i>	<i>10/1/2018</i>
<i>Residential</i>						
Block 1	1—5,000	\$4.47	\$4.83	\$5.22	\$5.64	\$6.09
Block 2	5,001-10,000	\$6.38	\$6.89	\$7.44	\$8.04	\$8.68
Block 3	All Use 10,000	\$14.39	\$15.54	\$16.78	\$18.12	\$19.57
<i>Commercial</i>						
Block 1	All Use	\$10.53	\$11.37	\$12.28	\$13.26	\$14.32

Stormwater utility rate:

	<i>1/1/2015</i>	<i>10/1/2015</i>	<i>10/1/2016</i>	<i>10/1/2017</i>	<i>10/1/2018</i>
<i>Rate</i>	\$4.00	\$6.00	\$9.00	\$12.00	\$15.50

Fire hydrant service charges. A fire hydrant service charge as specified in the city schedule of rates, fees and charges for water and sewer service, shall apply for all customers within the city's service area. This charge covers the cost of installation, replacement, repair and maintenance of fire hydrants, in addition to the cost of upgrading water mains to provide required fire flows. The charges are as follows:

<i>Water Meter Size (inches)</i>	<i>Charge Per Month</i>
¾	\$1.00
1"	\$5.00
1.5"	\$7.00
2"	\$10.00
3"	\$12.00
4"	\$15.00
6"	\$20.00
8"	\$25.00

(Code 1955, § 23-8; Code 1983, § 21-77; Ord. No. 80-2, § 1, 1-30-1980; Ord. No. 83-12, § 1, 12-14-1983; Ord. No. 84-12, § 1, 6-27-1984; Ord. No. 85-1, § 1, 1-9-1985; Ord. No. 85-15, § 1, 7-10-1985; Ord. No. 85-24, § 1, 10-9-1985; Ord. No. 87-8, § 1, 9-23-1987; Ord. No. 90-11, § 1, 9-26-1990; Ord. No. 91-18, § 1, 9-26-1991; Ord. No. 92-14, § 1, 9-23-1992; Ord. No. 01-1, § 1, 2-14-2001; Ord. No. 02-5, § 1, 3-13-2002; Ord. No. 08-03, §§ 2, 3, 4-9-2008; Ord. No. 09-16, § 2, 9-9-2009; Ord. No. 09-17, § 2, 9-21-2009; Ord. No. 09-20, § 2, 10-28-2009; Ord. No. 10-20, § 2, 7-28-2010; Ord. No. 14-17, § 2, 10-9-2014; Ord. No. 18-13, § 2, 9-26-2018)

Sec. 21-78. Scope of minimum.

Every water supply service shall have a monthly minimum service charge on each service installed. This minimum monthly service charge shall be in accordance with the schedule in section 21-77, and shall entitle the consumer, without additional charge, to have supplied through the water meter the number of gallons of water set forth in the table in section 21-77. (Code 1955, § 23-8; Code 1983, § 21-78; Ord. No. 85-17, § 1, 7-10-1985)

Sec. 21-79. Excess not charged against minimum for other months.

No excess consumption of water during one (1) month may be charged against the minimum allowance for any other month or months. (Code 1955, § 23-8; Code 1983, § 21-79)

Sec. 21-80. Deposits.

There shall be deposited with the city, by each consumer of:

- (a) Water and sewer service, water only service, or sewer only service:

<i>Water Meter Size (inches)</i>	<i>Residential Customers</i>	<i>Commercial Customers</i>
¾	\$170.00	\$250.00
1	\$1,000.00	\$1,000.00
1 ½	\$1,500.00	\$1,500.00
2	\$2,000.00	\$2,000.00
3	\$3,000.00	\$3,000.00
4	\$4,000.00	\$4,000.00

<i>Water Meter Size (inches)</i>	<i>Residential Customers</i>	<i>Commercial Customers</i>
6	\$6,000.00	\$6,000.00
8	\$8,000.00	\$8,000.00

- (b) Water and sewer service, water only service, or sewer only service for customers discovered using water and sewer services without a deposit. The deposit and all unbilled water and sewer charges must be paid to reconnect services.

<i>Water Meter Size (inches)</i>	<i>Residential Customers</i>	<i>Commercial Customers</i>
$\frac{3}{4}$	\$340.00	\$500.00
1	\$2,000.00	\$2,000.00
1 $\frac{1}{2}$	\$3,000.00	\$3,000.00
2	\$4,000.00	\$4,000.00
3	\$6,000.00	\$6,000.00
4	\$8,000.00	\$8,000.00
6	\$12,000.00	\$12,000.00
8	\$16,000.00	\$16,000.00

- (c) Other miscellaneous fees:

Tampering fee	\$450.00
Disconnection fee	\$25.00
Lock meter fee	\$40.00
Meter removal fee	\$50.00

Thereafter, the minimum deposit shall be increased or decreased to reflect changes in water, and sewer charges as approved by the city commission, but in no event shall the minimum deposit be less than the deposits as established above. Upon the request of the owner or consumer making such deposit or their assigns, for discontinuation of service and upon payment of all charges arising out of any service on said premises, the deposit shall be refunded. Existing consumers who prior to the effective date of the ordinance from which this section is derived have deposited minimum deposits with the city in accordance with the provisions of this Code shall be permitted to maintain said minimum deposit unless the account is in default, delinquent, or a lien is filed by the city against the property served. (Code 1955, § 23-9; Code 1983, § 21-80; Ord. No. 82-12, § 1, 9-22-1982; Ord. No. 86-15, § 1, 11-12-1986; Ord. No. 12-01, § 2, 1-11-2012)

Sec. 21-81. Rates for private fire protection service.

The following schedule of monthly rates or charges for private fire service connections is hereby established and assessed, to wit:

<i>Size of Connection</i>	<i>Monthly Rate or Charge</i>
2 $\frac{1}{2}$ " or 3"	\$3.00
4"	\$4.00
6"	\$6.00
8"	\$8.00

(Code 1955, § 23-13; Code 1983, § 21-81)

Sec. 21-82. Temporary discontinuance of service.

Water service may be temporarily discontinued upon proper application to the department. There shall be no minimum or other charge for service to a premises to which the service has been discontinued for an entire billing period. A minimum turn-on charge of two dollars (\$2.00) will be made when service is restored. (Code 1955, § 23-8; Code 1983, § 21-82)

Sec. 21-83. Billing procedure; penalty for late payment; lien.

(a) Utility charges levied at the rates established by ordinance shall be billed each month of the calendar year and payable upon billing. Bills shall be considered as having been received when delivered or mailed to the service address or to some other place mutually agreed upon. In case of failure to pay any bill for charges when due, a penalty of ten (10) percent of such charge shall be added to such bill. In the event that services are discontinued for nonpayment of outstanding balances, a re-establishment fee of twenty-five dollars (\$25.00) per account will be paid along with all outstanding balances prior to re-establishing the supply of services.

(b) Each charge levied pursuant to this article, including any additions for equipment or special services, is hereby made a lien on the premises served thereby and, if same is not paid within sixty (60) days after it shall be due and payable, it shall be certified to and filed with the clerk of the circuit court of the county. The charges with interest, reasonable attorney's fee and penalties shall be collected as other municipal taxes are collected and enforced.

(Code 1955, §§ 23-17, 23-19; Code 1983, § 21-83; Ord. No. 86-15, § 2, 11-12-1986)

Sec. 21-84. Nonreceipt of bill not to excuse payment.

Nonreceipt of bills by the consumer shall not release or diminish the obligation of the consumer with respect to the payment thereof.

(Code 1955, § 23-17; Code 1983, § 21-84)

Sec. 21-85. When bills due and payable; discontinuing service for nonpayment.

Bills are due when rendered, and if not paid within twenty-one (21) days thereafter, they shall become delinquent, and service may be discontinued and the prepayment, deposit or guarantee applied toward settlement of the bill. Mailing of the next month's bill showing a previous balance shall constitute due notice. Discontinuance shall be in accordance with the county water and sewer department, as well as provisions set forth in sections 32-91 through 32-101 of the Code of Miami-Dade County, Florida. In such cases service will not be restored until the bill has been paid and the department has been reimbursed for extra expense incurred on account of the delinquent bill.

(Code 1955, § 23-17; Code 1983, § 21-85; Ord. No. 18-18, § 2, 12-12-2018; Ord. No. 19-18, § 2, 12-11-2019)

County Code reference—Miami-Dade County Water and Sewer Board generally, § 32-11 et seq.

Sec. 21-86. Discontinuing service for bill at prior location.

A consumer's water service may be discontinued for nonpayment of a bill for water service rendered to him at a previous location served by the department, provided that said bill is not paid within thirty (30) days after presentation.

(Code 1955, § 23-17; Code 1983, § 21-86)

Sec. 21-87. To whom payment made.

Payment of all water bills and accounts of the city must be made at the office of the water clerk in the city hall, or to an agent of the city duly designated and bonded for such purpose.

(Code 1955, § 23-17; Code 1983, § 21-87)

Sec. 21-88. City to install, maintain meters.

Upon application and payment of the tapping charge, the department will install and properly maintain at its

own expense a meter or meters and metering equipment as may be necessary to measure the water delivered to the consumer.

(Code 1955, § 23-16; Code 1983, § 21-88)

Sec. 21-89. Title to meters, metering equipment.

Title to meters and metering equipment shall be and remain in the department except only such meters and other metering equipment sold to the consumer under special written agreement.

(Code 1955, § 23-16; Code 1983, § 21-89)

Sec. 21-90. Meter reading prima facie correct.

When the service rendered by the department is measured by meters, the department's accounts thereof shall be accepted and received at all times, places and courts as prima facie evidence of the quantity of water delivered to the consumer.

(Code 1955, § 23-17; Code 1983, § 21-90)

Sec. 21-91. Testing of meters; adjustment of bill.

Upon request and due notice from the consumer, the department will test the consumer's meter or meters. If a meter is found to be not more than two (2) percent fast or slow, the expense of the test shall be borne by the consumer, the minimum charge therefor to be one dollar (\$1.00). If the meter exceeds these limits, the expense of the test shall be borne by the department of public works and utilities and billing adjustment for a period of not to exceed three (3) months will be made.

(Code 1955, § 23-16; Code 1983, § 21-91)

Sec. 21-92. Obscuring, damaging meters.

It shall be unlawful to cover, obscure, deface or destroy any water meter of the city, with any material, including shrubbery, debris, waste or other materials.

(Code 1955, § 23-16; Code 1983, § 21-92)

Sec. 21-93. Estimate of bill when meter defective.

In the event any meter has been damaged, destroyed or required repair, or in the event any meter is found to be defective or has ceased to register, said meter will be adjusted, repaired or changed and the department will estimate the bill for the period, either by adopting and using the registration of a correct meter or by compar-

ison with the amount charged during the corresponding period of the previous year, taking into account the capacity of the installation.

(Code 1955, § 23-16; Code 1983, § 21-93)

Sec. 21-94. Repair of meter or service on consumer's premises.

In the case of damage or injury to the meter or service on the consumer's premises, the supply of water may be discontinued by the department until the necessary repairs have been made and the costs thereof reimbursed to the department by the consumer. The consumer may request that the cost of repair, adjustment or replacement be pro-rated and included in the monthly water bill, provided payment in full shall be completed within six (6) months from the date of first billing.

(Code 1955, § 23-16; Code 1983, § 21-94)

DIVISION 4. CROSS-CONNECTION CONTROL PROGRAM

Sec. 21-95. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- (1) *Public water supply* means any system of water supply intended or used for human consumption or other domestic uses, including source, treatment, storage, transmission and distribution facilities where water is furnished to any community, collection or number of individuals, or is made available to the public for human consumption or domestic use, but excluding water supplies serving one (1) single-family residence.
- (2) *Cross-connection* means any physical arrangement whereby a public water supply is connected, directly or indirectly, with any other water supply system, sewer, drain, conduit, pool, storage, reservoir, plumbing fixture, or other device which contains, or may contain, contaminated water, sewage, or other waste or liquid of unknown or unsafe quality which may be capable of imparting contamination to the public water supply as a result of backflow. Bypass arrangements, jumper connections, re-

movable sections, swivel or change-over devices, and other temporary or permanent devices through which, or because of which, backflow could occur are considered to be cross-connections.

- (3) *Air gap separation* means the unobstructed vertical distance through the free atmosphere between the lowest opening from any pipe or faucet supplying water to a tank, plumbing fixture, or other device and the flood-level rim of the receptacle, and shall be at least double the diameter of the supply pipe measured vertically above the flood-level rim of the vessel. In no case shall the gap be less than one (1) inch.
- (4) *Auxiliary supply* means any water source or system, other than the public water supply, that may be available in the building or premises.
- (5) *Backflow* means the flow other than the intended direction of flow, or any foreign liquids, gases or substances into the distribution system of a public water supply.
- (6) *Back pressure* means backflow caused by a pump, elevated tank, boiler or other means that could create pressure within the system greater than the supply pressure.
- (7) *Back siphonage* means a form of backflow due to a negative or subatmospheric pressure within a water system.
- (8) *Backflow prevention device* means a device to counteract back pressures or prevent back siphonage.
- (9) *Double check valve assembly* means an assembly composed of two (2) single, independently acting check valves, including tightly closing shutoff valves located at each end of the assembly and suitable connections for testing the watertightness of each check valve.
- (10) *Reduced pressure principle backflow prevention device* means a device incorporating two (2) or more check valves and an automatically operating differential relief valve located between the two (2) checks, two (2) shutoff valves, and equipped with necessary appurtenances for testing. The device shall operate to maintain the pressure on the public water supply side of the

device. At cessation of normal flow, the pressure between the check valves shall be less than the supply pressure. In case of leakage of either check valve the differential relief valve shall operate to maintain this reduced pressure by discharging to the atmosphere. When the inlet pressure is two (2) pounds per square inch or less the relief valve shall open to the atmosphere thereby providing an air-gap in the device.

(Code 1983, § 21-95; Ord. No. 85-7, § 1, 3-13-1985)

Sec. 21-95.1. Cross-connections prohibited.

All cross-connections, whether or not such cross-connections are controlled by automatic devices, such as check valves or by hand-operated mechanisms such as gate valves or stop cocks, are hereby prohibited.

(Code 1983, § 21-95.1; Ord. No. 85-7, § 2, 3-13-1985)

Sec. 21-95.2. Installation of backflow prevention devices required.

Backflow prevention devices shall be installed at the service connection or within any premises where the nature and extent of the activities on the premises, or the materials used in connection with the activities or materials stored in the premises would present an immediate and dangerous hazard to health, should a cross-connection occur, even though such cross-connection does not exist at the time the backflow prevention device is required to be installed. This shall include, but not be limited to, the following situations:

- (1) Premises having an auxiliary water supply, unless the quality of the auxiliary supply is in compliance with applicable federal laws, safety of public water systems, and is acceptable to the department.
- (2) Premises having internal cross-connections that are not correctable, or intricate plumbing arrangements which make it impracticable to ascertain whether or not cross-connections exist.
- (3) Premises where entry is restricted so that inspections for cross-connections cannot be made with sufficient frequency or at sufficiently short notice to ensure that cross-connections do not exist.
- (4) Premises having a repeated history of cross-connections being established or re-established.
- (5) Premises on which any substance is handled under pressure so as to permit entry into the public water supply, or where cross-connection could reasonably be expected to occur. This shall include the handling of process waters and cooling waters.
- (6) Premises where materials of a toxic or hazardous nature are handled such that if back siphonage should occur, a serious health hazard may result.
- (7) The following types of facilities will fall into one (1) of the above categories where a backflow prevention device is required to protect the public water supply. A backflow prevention device shall be installed at these facilities unless the department determines no hazard exists:
 - Hospitals, mortuaries, clinics.
 - Laboratories.
 - Piers and docks.
 - Sewage treatment plants.
 - Food or beverage processing plants.
 - Chemical plants using a water process.
 - Metal plating industries.
 - Petroleum processing or storage plants.
 - Radioactive material processing plants or nuclear reactors.
 - Others specified by the department.

(Code 1983, § 21-95.2; Ord. No. 85-7, § 3, 3-13-1985)

Sec. 21-95.3. Protective device approval.

Any protective device required in this section shall be approved by the department of public works and utilities prior to installation.

(Code 1983, § 21-95.3; Ord. No. 85-7, § 4, 3-13-1985; Ord. No. 98-7, § 1, 7-22-1998)

Sec. 21-95.4. Types of backflow prevention devices to be installed.

(a) An air gap separation or a reduced pressure principal backflow prevention device shall be installed where the water supply may be contaminated with sewage, industrial waste of a toxic nature or other contaminant which would cause a health or system hazard.

(b) In the case of a substance which may be objectionable but not hazardous to health, a double check valve assembly, air gap separation or a reduced pressure principal backflow prevention device shall be installed and may be approved if the device has successfully passed performance tests of the University of Southern California Engineering Center or other testing laboratory satisfactory to the department of public works and utilities.

(Code 1983, § 21-95.4; Ord. No. 85-7, §§ 5, 6, 3-13-1985; Ord. No. 98-7, § 1, 7-22-1998)

Sec. 21-95.5. Location to be accessible.

Backflow prevention devices shall be installed at the outlet side of the meter, or at another location designated by the department of public works and utilities. The device shall be located so as to be readily accessible for maintenance, testing and inspection and where no part of the device will be submerged.

(Code 1983, § 21-95.5; Ord. No. 85-7, § 7, 3-13-1985; Ord. No. 98-7, § 1, 7-22-1998)

Sec. 21-95.6. Installation at customer's expense.

Backflow prevention devices shall be installed by the customer at the customer's expense or by the department at the customer's request and expense, should this arrangement be made by the customer and the department.

(Code 1983, § 21-95.6; Ord. No. 85-7, § 8, 3-13-1985; Ord. No. 98-7, § 1, 7-22-1998)

Sec. 21-95.7. User responsible for inspections.

The user of a backflow prevention device shall be responsible to have said device annually inspected and tested by the department of public works and utilities. The device shall be tested more often where successive inspection indicates repeated failure. The charge for each inspection shall be fifty dollars (\$50.00). If required, the device shall be repaired, overhauled, or

replaced by the department of public works and utilities or ordered to be repaired at the customer's expense whenever it is found that the device is defective. Inspections, tests and repairs, and records thereof performed by the department shall be charged to the customer at rates established by the department.

(Code 1983, § 21-95.7; Ord. No. 85-7, § 9, 3-13-1985; Ord. No. 98-7, § 1, 7-22-1998)

Sec. 21-95.8. Enforcement.

(a) It shall be the duty of the director of the department of public works and utilities of the city or his authorized designee to enforce the provisions of this division.

(b) In case any consumer uses a water system in violation of this division, any proper official of the department of public works and utilities or their duly authorized representatives, in addition to other remedies, may request the city manager to institute an appropriate action or proceedings necessary to prevent such unlawful use, or other violations, to restrain, correct or abate such violation, to prevent the occupancy of the building wherein the water system is being utilized or to prevent any illegal act, conduct, business or use in or about the premises. Each day such violation continues shall constitute a separate violation. The director of the department of public works and utilities may call upon the chief of police to furnish him with the necessary police personnel to carry out his orders with regards to the enforcement of any of the provisions of this division.

(c) The owner or occupant of a building or premises where a violation of this ordinance has been committed or exists, or the lessee or tenant of a premises where such violation has been committed or exists, or any other person who commits, takes part in, or assists in any such violation, shall be guilty of an offense and punished as provided in section 1-7.

(d) The provisions of this section shall apply to all existing installations. For those owners, occupants or persons not in compliance, compliance shall be required within thirty (30) days of notification from the department of public works and utilities, unless the time is extended in writing by the department.

(Code 1983, § 21-95.8; Ord. No. 85-7, § 10, 3-13-1985; Ord. No. 98-7, § 1, 7-22-1998)

Sec. 21-95.9. Discontinuance of public water service.

Failure on the part of persons, firms or corporations to comply with the requirements of this division or discontinue the use of any and all cross-connections shall be grounds for the discontinuance of public water service to the premises on which the cross-connection exists. Discontinuance shall not occur unless the person has been given notice of the violation by the department. The department shall, upon discovery of a cross-connection, discontinue water service to the property served forthwith. Upon giving notice, no water service shall be restored until the cross-connection is removed and the city is reimbursed for all costs and expenses. The property owner may appeal the discontinuance of water service in the manner provided by section 2-66.

(Code 1983, § 21-95.9; Ord. No. 85-7, § 11, 3-13-1985; Ord. No. 98-7, § 1, 7-22-1998)

DIVISION 5. WATER SHORTAGE EMERGENCY RESTRICTIONS

Sec. 21-96. General provisions.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

- (1) *District* means the South Florida Water Management District.
- (2) *Reserved.*
- (3) *Water resource* means any and all water on or beneath the surface of the ground, including natural or artificial watercourses, lakes, ponds, or diffused surface water, and water percolating, standing, or flowing beneath the surface of the ground.
- (4) *Water shortage condition* means that situation when sufficient water is not available to meet the present or anticipated needs of persons using the water resource, or when conditions are such as to require temporary reduction in total water usage within a particular area to protect the water resource from serious harm. A water shortage usually occurs due to drought.
- (5) *Water shortage emergency* means that situation when the powers which can be exercised

under part II of chapter 40E-21, Florida Administrative Code, are not sufficient to protect the public health, safety, or welfare, or the health of animals, fish or aquatic life, or a public water supply, or commercial, industrial, agricultural, recreational, or other reasonable uses.

(b) *Application of section.* The provisions of this section shall apply to all persons using the water resource within the geographical areas subject to the water shortage condition or water shortage emergency, as determined by the district, whether from publicly or privately owned water utility systems, private wells, or private connections with surface water bodies. This section shall not apply to persons using treated effluent or saltwater.

(c) *Adoption of water shortage plan.* Chapter 40E-21, Florida Administrative Code, as same may be amended from time to time, is incorporated herein by reference as part of this Code.

(d) *Declaration of water shortage condition; water shortage emergency.* The declaration of a water shortage condition or water shortage emergency within the county by the governing board of the district or the executive director of the district shall invoke the provisions of this section. During such water shortage emergency or water shortage condition, all water use restrictions or other measures adopted by the district applicable to the county, or any portion thereof, shall be subject to enforcement action pursuant to this section. Any violation of chapter 40E-21, Florida Administrative Code, or any order issued pursuant thereto, shall be a violation of this section.

Notwithstanding any provision of this Code, the following shall be prohibited in the city upon declaration of a water shortage condition or water shortage emergency by the governing board of the district or the executive director of the district:

- (1) Serving of water from any public or private well, water supply or distribution system to any customer of a restaurant unless specifically requested by the customer.
- (2) Operation of outdoor fountains or outside aesthetic facilities whose purpose is strictly ornamental or decorative.

- (3) Pressure cleaning of impervious surfaces, except for the preparation of surfaces for painting, sealing or waterproofing, or for safety, sanitation, health or medical purposes.

These restrictions shall remain in effect for the duration of the declared water shortage condition or water shortage emergency.

(e) *Enforcement.* Every police officer or code officer in the city shall, in connection with all other duties imposed by law, diligently enforce the provisions of this section.

(f) *Penalties.* Violation of any provision of this section shall be subject to the following penalties:

First violation: fifty dollar (\$50.00) fine.

Second and subsequent violations: fine not to exceed two hundred fifty dollars (\$250.00) and/or imprisonment in the county jail not to exceed sixty (60) days.

Each day in violation of this section shall constitute a separate offense. In the initial stages of a water shortage condition or water shortage emergency, law enforcement officials may provide violators with no more than one (1) written warning. The county, in addition to the criminal sanctions contained herein, may take any other appropriate legal action, including, but not limited to, emergency prohibitory and mandatory injunctive action, to enforce the provisions of this section.

(g) *Water users to accept provisions of section.* No water service shall be furnished to any customers served by the city unless such customers agree to accept all the provisions of this section. The acceptance of water service shall be in itself acceptance of the provisions thereof.

(Code 1983, § 21-96; Ord. No. 07-11, § 2, 5-23-2007)

Sec. 21-97. Regulations governing Miami-Dade Billing for the City of Opa-locka.

(a) *Billing procedure; penalty for late payment; lien.*

- (1) Water and sewer charges for service rendered by the city shall be billed to customers as set forth in sections 32-91 through section 32-101 of the Code of Miami-Dade County, Florida. If such charges are not fully paid by said customers on or before the past due dates set forth on customers' bills, a ten (10) percent late charge

may be added to the water and sewer bill and imposed upon the customer in accordance with regulations prescribed by the county on behalf of the city. Unpaid balances of said customers for such charges and late charges shall be subject to an interest charge at the rate of eight (8) percent per annum. Imposition of said interest charge shall commence sixty (60) days after the final bill date for water and sewer charges.

- (2) Water and sewer charges and late charges, together with any interest charges, shall be debts due and owing the city and all of same shall be recoverable by the city in any court of competent jurisdiction.
- (3) The city shall utilize the county's rules and regulations for notification of property owners and/or managers of delinquent accounts.
- (4) Subscribers to this service shall pay in advance an annual fee of three dollars (\$3.00) per monthly account and two dollars and fifty cents (\$2.50) per quarterly account.
- (5) Tenants who reside in multi-unit property served by one (1) meter may establish a bridge account with the city for water and sewer service for a period not to exceed one (1) year where the property owner's account is terminated for nonpayment. The city shall utilize the county's rules and regulations for the administration of bridge accounts with tenants that meet specified conditions.
- (6) Except as otherwise provided by this article, all charges, late charges and interest accruing thereupon, for water and sewer service rendered by the city to any real property which remain unpaid sixty (60) days after the final bill date for water and sewer charges shall become a lien against and upon the real property to which such water and sewer service has been furnished to the same extent and character as a lien for a special assessment. Until fully paid and discharged, said charges, late charges, and interest accrued thereupon shall be, remain, and constitute a special assessment lien equal in rank and dignity with the liens of city ad valorem taxes and superior in rank and dignity to all other liens, encumbrances, titles and claims in, to or against the real property involved for the period of twenty (20) years

from the date said charges become a lien as set forth in this section. Said liens may be enforced and satisfied by the city, pursuant to F.S. ch. 173, as it may be amended from time to time, or by any other method permitted by law. The lien provided for herein shall not be deemed to be in lieu of any other legal remedies for payment available to the city, including, but not limited to, suspension and termination of water service.

- (7) Liens may be discharged and satisfied by payment to the city of the aggregate amounts specified in the notice of lien, together with interest accrued thereon, and all filing and recording fees. When any such lien has been fully paid and/or discharged, the city shall cause evidence of the satisfaction and discharge of such lien to be filed with the office of the clerk of the circuit court of the county. Any person, firm, or corporation or legal entity, other than the present owner of the property involved, who fully pays any such lien shall be entitled to receive an assignment of the lien and shall be subrogated to the rights of the city in respect of the enforcement of such lien.

(b) *When bills are due and payable; discontinuing service for nonpayment.* Bills are due when rendered, and if not paid within twenty-one (21) days thereafter, they shall become delinquent, and service may be discontinued and the prepayment, deposit or guarantee applied toward settlement of the bill. Mailing of the next month's bill showing a previous balance shall constitute due notice. Discontinuance shall be in accordance with the regulations of the Code of Miami-Dade County, Florida, chapter 32, water and sewer regulations. In such cases service will not be restored until the bill has been paid and the department has been reimbursed for extra expense incurred on account of the delinquent bill.

(c) *Deposits.* There shall be deposited with the city, by each consumer of:

- (1) Water and sewer service, water only service, or sewer only service:

<i>Water Meter Size (inches)</i>	<i>Residential Customers</i>	<i>Commercial Customers</i>
$\frac{3}{4}$	\$170.00	\$250.00

<i>Water Meter Size (inches)</i>	<i>Residential Customers</i>	<i>Commercial Customers</i>
1	\$1,000.00	\$1,000.00
1 ½	\$1,500.00	\$1,500.00
2	\$2,000.00	\$2,000.00
3	\$3,000.00	\$3,000.00
4	\$4,000.00	\$4,000.00
6	\$6,000.00	\$6,000.00
8	\$8,000.00	\$8,000.00

- (2) Water and sewer service, water only service, or sewer only service for customers discovered using water and sewer services without a deposit. The deposit and all unbilled water and sewer charges must be paid to reconnection of services.

<i>Water Meter Size (inches)</i>	<i>Residential Customers</i>	<i>Commercial Customers</i>
$\frac{3}{4}$	\$340.00	\$500.00
1	\$2,000.00	\$2,000.00
1 ½	\$3,000.00	\$3,000.00
2	\$4,000.00	\$4,000.00
3	\$6,000.00	\$6,000.00
4	\$8,000.00	\$8,000.00
6	\$12,000.00	\$12,000.00
8	\$16,000.00	\$16,000.00

- (3) Other miscellaneous fees:

Tampering fees	\$450.00
Disconnection fee	\$25.00
Meter removal fee	\$50.00

(Code 1983, § 21-97; Ord. No. 18-18, § 2, 12-12-2018; Ord. No. 19-18, § 2, 12-11-2019)

Secs. 21-98—21-104. Reserved.

ARTICLE III. SEWERS AND SEWAGE DISPOSAL*

DIVISION 1. GENERALLY

Sec. 21-105. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Air conditioning means the cooling or dehumidification, or both, of space.

Department means the department of public works and utilities of the city, or its duly authorized personnel.

Drain means any conductor of liquids.

Industrial wastes means the wastes from industrial processes as distinguished from sanitary sewage.

Licensed sewer contractor means a bonded and licensed person approved by the city as qualified and competent to do work incidental to the construction, installation or repair of side sewers under a permit issued under this article.

Natural outlet means any outlet into a watercourse, pool, ditch, lake or other body of fresh, salt, surface or groundwater.

Permit card means a card issued in conjunction with any permit and such card shall be posted on the premises and shall be readily and safely accessible.

Public place or *public area* means any space dedicated to or acquired by the city for the use of the general public.

Refrigeration means the artificial production of cold for the purpose of preservation of food products, process work or maintenance of storage temperature.

Sewage means a combination of the water-carried wastes from residences, business buildings, institution, industrial establishments, etc., together with such ground, surface waters and stormwaters as may be present.

*County Code references—Pollution control generally, ch. 24; prohibitions against water pollution, § 24-11.

Sewer lateral means a pipe running from the public sewer to a point near the right-of-way line or edge of its easement and terminating in a fitting suitable for connection to the sewer. The fitting shall be plugged, if for future use.

Sewer, public, means a sewer in which all owners of abutting properties have equal access and which is controlled by public authority.

Sewer, sanitary, means a sewer which carries sewage and to which stormwaters, surface waters and groundwaters are not intentionally admitted.

Sewer, side, means the extension from the house drain to the public sewer or the branch from any private drainage installation to the public sewer.

Sidewalk means the walkway in the public area lying parallel or generally parallel to the roadway. If the walk is not yet paved, all measurements shall be based on location and elevation established by the city. (Code 1955, § 18A-12; Code 1983, § 21-105)

Sec. 21-106. Discharging to well or open stream.

It shall be unlawful for any person to empty any sewer, sewer system or sewage into any well, septic tank or open stream in the city. (Code 1955, § 18B-13; Code 1983, § 21-106)

County Code reference—Prohibitions against water pollution, § 24-11.

Sec. 21-107. Connection required.

Sewer connections shall be required in accordance with sections 32-76 through 32-81 of the Code of Miami-Dade County, Florida. (Code 1955, § 18B-13; Code 1983, § 21-107)

Sec. 21-108. Exemption from connection for existing septic tanks.

Notwithstanding the provisions of section 21-107, if there exists upon lands a septic tank or private disposal system heretofore licensed and constructed under a permit issued by the city and the septic tank or private disposal system has been constructed and maintained in accordance with the provisions of this article, the owner or occupant shall not be required to connect to the city sewage system until the septic tank or private disposal system requires emptying, repairs, expansion of capacity, relocation, constitutes a health hazard, becomes a public nuisance, or violates any provision of

this Code, the ordinances of the county or the laws and administrative regulations of the state pertaining thereto. (Code 1955, § 18B-13; Code 1983, § 21-108)

Sec. 21-109. Temporary use of septic tank.

If, prior to the installation and completion of a sanitary sewer trunk line or lateral line sewer, any person desires to construct a new dwelling or building which requires a method of disposing of sewage, the owner of the premises, upon application and compliance with the provisions of division 4 of this article relating thereto, may obtain a permit for a temporary septic tank system.

(Code 1955, § 18B-13; Code 1983, § 21-109)

Sec. 21-110. Exception for interim package treatment facilities.

If the city commission determines that conditions exist whereby connection to the city sewage disposal system should be prohibited, or where federal, state, county or other proper governmental authority prohibits the induction into the city sewage collection system of additional effluent, the proper officers and employees of the city may issue such necessary permits and authorities as may be required for the construction, operation, maintenance and discontinuance of interim sewage package treatment facilities, subject to the conditions and requirements set forth herein or promulgated as a rule or regulation under the authority of this Code. All representations and agreements required to be entered into between the applicant for a permit to construct an interim sewage package treatment plant and the city shall be subject to the approval of the city commission by ordinance and shall include such special exceptions, conditions and requirements as may be deemed necessary and proper for the specific location in which the interim sewage package treatment plant is to be constructed. The following conditions and requirements shall be met by the applicant and the issuance of any and all authorities, permissions and permits authorized herein are conditioned upon the faithful compliance and performance of said conditions and requirements as follows, to wit:

- (A) *State and county permits.* That a permit to construct an interim sewage treatment facility shall have been issued or authorized by the state department of environmental protec-

tion, the county director of environmental resources management, and such other governmental agencies as are required by law.

- (B) *Concealment.* That the sewage treatment facility shall be concealed from the public view with landscaping and such other methods as the department of buildings and licensing may require prior to approval of the final plans and drawings for such facility.
- (C) *Assurances.* That the interim package sewage treatment plant, when completed and operating, shall be, and it is a condition of the granting of the authorities contained herein, odor-free and noise-free, and will provide tertiary treatment, i.e., at least ninety-five (95) percent removal of B.O.D. and suspended solids and such other standards of sewage treatment and removal as the highest state of the art will permit. Further, that the applicant shall agree and represent to the commission and by the acceptance of any permits issued as permitted herein, that the treatment plant operator shall provide continuous maintenance and operation of the interim package sewage treatment plant in such manner as to insure the representations.
- (D) *Operators.* That the applicant will provide competent, trained and licensed operators for such a plant, and in addition, will deposit the sum of ten thousand dollars (\$10,000.00) as a cash guarantee with the city, which sum shall be retained by the city until the dismantling and removal thereof and which sum may be utilized by the city to provide or to contract for the supplying of necessary services for the operation and maintenance of the plant in the event any of the conditions and requirements are not met in the sole and discretionary judgment of the city manager. The posting and deposit of such sum shall not relieve the applicant or successors or assigns of the full compliance with the requirements of this Code and the conditions and requirements of the rules and regulations relating thereto.
- (E) *Compliance with law; inspections; log book.* That the operation of the interim plant shall be in accordance with applicable law. The applicant or its successors shall permit any agent

or employee of the city to enter upon the premises at any time to inspect, examine or to complete the operation and maintenance of the facility. The operator shall maintain a daily log book or record of the construction and operation of the plant which may be inspected or copied at any time by the city and shall include:

- (1) Date construction started and concluded.
- (2) Date operation started.
- (3) Report of the daily operation, including:
 - (a) Time and duration of operation of the rakes.
 - (b) Operator's name, class of license, number and expiration date of license, and hours on duty.
 - (c) Date the operators were hired and discharged.
 - (d) Operator's signature and daily remarks.
 - (e) Improvements made to the plant and date concluded.
 - (f) Daily tabulation of quantities of sewage handled, removed and destination of sludge.

The operators of the interim package sewage treatment plant shall install at their sole expense all meters and instruments required by the city manager for the purpose of obtaining necessary data to permit the city engineer to monitor the operation of the plant.

- (F) *Service of notices, process.* That any person who has apparent authority or control, actual or constructive, of the premises, shall be constituted and construed to be the agent of the applicant or its successors and assigns for the purposes of any notices served by the city or for service or process of the enforcement of conditions, representations and agreements contained herein, and such notices shall be deemed also to have been properly served if delivered to the premises of the applicant or his assigns, or if mailed to the owner of the property or directed to, left or delivered to his address as shown on the records of the city. All notices relating to the operation and maintenance of such facilities affecting or likely to

affect more than one (1) owner, user or tenant shall be deemed to have been properly given or served on all such parties if advertised at least once in accordance with applicable Florida law.

- (G) *Agreement to dismantle.* That the application is conditioned upon the agreement that the sewage treatment plant permitted herein is an interim facility, and at such time as sewer service to the city sewer system becomes available for hookup as may be permitted by law, the applicant forthwith upon fifteen (15) days' notice shall dismantle and remove the interim package sewage treatment plant as may be permitted herein, and in addition, pave, surface and landscape the area upon which said plant is located and further will perform and pay for all required installation, engineering and other charges, including hook-up service and connection charges, etc., necessary to connect to the public sewer main as soon as reasonably practical after compliance with the foregoing.
- (H) *Subsequent construction of city facility.* That the applicant recognizes and agrees that the city may construct and build a collection and holding facility and/or treatment facility for the benefit of users of the sewage collection system. In the event the city shall build and complete said system the applicant agrees to discontinue the use and remove the facilities as provided above and in addition thereto forthwith pay to the city a sum of money representing the proportional value that the applicant's interim sewage facility bears to the city's sewage, storage and/or treatment facility, it being the intent of the parties that the granting of the permit to the applicant to construct the interim sewage treatment and storage facility as provided herein is given solely for the purpose of enabling the applicant to begin construction of the facilities to be served by the interim sewage treatment plant without further delay. The applicant, in accepting the permit, does so and represents to the city that it is accepting said permit in recognition and in agreement with the terms and conditions set forth herein.

- (I) *Plans, drawings, estimates.* That in connection with the agreements contained herein, the applicant shall, before submitting the final plans and drawings necessary for the construction of the facility, submit to the city said plans and drawings as certified by a professional engineer indicating the necessary engineering data, drawings and specifications necessary to tie to the sewer main of the city together with an estimate of the cost thereof certified by the engineer, including all fees for title examination, survey, etc., anticipated to provide for the removal of the interim package plant and the substitution of the necessary connection of the facilities served by said plant to the city sewer collection system. In addition, the applicant shall have the engineer estimate the cost and value of the applicant's interim plant which value shall be subject to the approval of the city manager.
- (J) *Bond.* That the applicant, as a condition to the issuance of the permits and authorities provided for in this Code, shall submit to the city its surety bond or letter of credit in the sum of one hundred ten (110) percent of the value of the applicant's interim sewage package plant and the cost of connecting the applicant's facilities to the city sewer collection system upon dismantlement, it being the condition of said bond that it shall be conditioned upon compensating the city in the event of the breach of any of the terms and conditions of the agreements of the applicant or the conditions of this Code or the rules and regulations propounded hereunder.
- (K) *Parking spaces.* That the applicant shall provide three (3) additional parking spaces for the use of employees operating said package plant, said parking spaces to be in addition to any and all other parking spaces required by the ordinances of the city.
- (L) *Other regulations applicable.* That the facility to be constructed in accordance with the terms of this resolution shall be governed by and subject to all applicable statutes, ordinances, rules and regulations of the city, the county and the state, and it is neither the intent of this

section or the agreements contained herein to waive or eliminate by inference or otherwise any of the foregoing.

- (M) *To hold city harmless, reimburse city expenses.* That the applicant agrees to hold the city harmless from any and all liability as a result of the authorities granted hereunder. In the event that the city is required to assume the maintenance and operation of said facility, the applicant or its assigns shall pay to the city all costs and expenses incurred by the city in said operation, maintenance, dismantlement and connection of the facilities to the city sewer system, which costs and expenses shall be deemed to be a lien against the property of the applicant and shall be subject to collection and/or foreclosure in such manner as may be provided by law for said liens.

(Code 1955, § 18B-13; Code 1983, § 21-110; Ord. No. 2025-05, § 8, 2-12-2025)

Sec. 21-111. Responsibility for costs of connection and maintenance.

All costs of connection and expense incidental to the installation, connection and maintenance of a side sewer shall be borne by the owner or occupant of the premises served by the side sewer.

(Code 1955, § 18B-17; Code 1983, § 21-111)

Sec. 21-112. Connection charge outside city.

The owner, lessee or occupant of a dwelling or building outside of the city limits desiring to connect for sewer service from his premises to any sewer constructed by or belonging to the city by direct connection at a city sewer main, trunk or lateral, shall, in addition to obtaining the permit required by section 21-137, pay to the city the sum of two hundred fifty dollars (\$250.00) as a charge for connection and shall comply with all the requirements of the code of ordinances applicable thereto. No person shall permit any portion of his sewer, trunk or lateral to be used to connect any other person so as to avoid the connection charge for properties lying outside of the city limits. However, upon approval by the department, the city manager may contract with any developer, contractor or cooperative association in order to establish reasonable connection charges where more than one (1) prop-

erty lying outside the city limits desires to be connected for sewer service from the premises through any sewer connected to a city sewer main, trunk or lateral.
(Code 1955, § 18B-17; Code 1983, § 21-112)

Sec. 21-113. Connection by city contractor.

(a) Any person desiring to connect for sewer service from his premises through any sewer constructed by or belonging to the city, by direct connection at a city sewer main, trunk or lateral, may make application to the department to be connected by a contractor employed by the city, under such terms, conditions and costs as shall be established in accordance with plans and specifications prepared by the city.

(b) The costs of connection and installation applicable to the dwelling or building served shall be payable, at the option of the owner of the premises, over a period of ten (10) years at six (6) percent interest, in equal annual installments. All connection costs incurred under this section, payable in installments shall constitute a lien on the premises connected and said lien shall be recorded in the office of the clerk of the circuit court in and for the county. In the event of default in the payment of any installment said cost of connection shall be collected in the manner provided by law.

(Code 1955, § 18B-18; Code 1983, § 21-113)

Sec. 21-114. Creation of sewer modification districts to increase capacity.

(a) Where it is determined by the city manager that a segment of the city sewer system is over-utilized or utilized in excess of its original design capacity, rendering such segment of the city's sewer system inadequate and a menace or a potential menace to health or potential pollution hazard to the public or property, or that the city has been required to increase the capacity over the designed capacity for any portion of the sewer system, the city manager shall give written notice to the owners, agents or occupants of all properties in the area in which such condition exists, specifying the inadequate, hazardous or detrimental conditions. Said notice shall establish and set forth a time certain for a public hearing before the city commission to consider the establishment of a sanitary sewer modification district encompassing lots, parcels and portions of the city's sewer system involved as delineated by the city manager.

(b) At such public hearing, the city commission may, by majority vote, establish a sanitary sewer modification district within the sanitary sewer system of the city and establish an assessment or surcharge for sewer services to be imposed upon users in such district and be supplemental to the sewer service charge provided in this article to defray the total costs and expenses incurred by the city to increase the capacity.

(c) Where a sewer modification district is established because of use in excess of peak flow of the design capacity at time of issuance of permit and/or certificate of occupancy, the surcharge or assessment to be imposed upon such users shall apply only to such amounts of sewer use in excess of said peak flow design capacity.

(Code 1955, § 18B-32; Code 1983, § 21-114)

Sec. 21-115. Financing of sewer modification districts.

(a) Upon the establishment of a sanitary sewer modification district the city manager shall establish a special fund and account for the purpose of maintaining deposits and making disbursements pertinent solely to said sewer modification district. Said account shall be designated (number) sewer modification district fund. The city manager shall determine the total project cost which shall include, but not be limited to, the engineering, construction, surveying, legal, audit, accounting, administrative and debt service expenses incurred prior to the establishment of the sewer district modification and related solely thereto, and such costs as may be reasonably anticipated in relation to the district. After such determination, the city manager shall petition the city commission for authority to fund said project requirements by the transfer of funds from the general fund or other legally available funds of the water and sewer account or from other city accounts, or, in the alternative, to issue certificates of indebtedness or to cause to be issued as may otherwise legally be authorized revenue bonds or general obligation bonds of the city sufficient to fund all project requirements.

(b) All funds so transferred or realized including funds from certificates of indebtedness, bond issues and like sources shall be deposited into the sewer modification district fund account and utilized for construction and all cost and fees solely related to such project. All monies received from the sewer modification district surcharge imposed upon users within the sewer modification district, shall be deposited to the sewer

modification district fund account. All monies necessary to construct, administer, pay debt service, and those expenses related solely to the sewer modification district project shall be disbursed from the sewer modification district fund account only. The city manager shall prepare or cause to be prepared annual and such other period accountings as may be necessary and render same to the city commission.

(c) Upon completion of the construction and the availability of the sewer modification district project the city manager shall issue notice to all users in the sewer modification district to reconnect to the facility as constructed. As provided in this Code, the city manager shall cause each individual user in the sewer modification district to be billed for the surcharge for the sewer modification district project as rendered on the water bill.

(d) At such time as the total of all costs and debt services and administrative services related to the sewer modification district project have been realized from the surcharge imposed upon users of such sewer modification district, the city manager shall prepare and forward a final accounting as well as a notice of termination of the sewer modification district.

(e) As provided in section 21-123, the city manager shall promulgate the rules, regulations and requirements pertinent to respective sewer modification improvement districts within the city's sanitary sewer system and such rules and requirements shall govern the materials, workmanship and facilities used in such projects.

(Code 1955, § 18B-42; Code 1983, § 21-115)

Sec. 21-116. Notice, correction of defective side sewers or drainage.

When any side sewer is constructed, laid, connected or repaired, and does not comply with the provisions of this article, or where it is determined by the city manager or the department that a side sewer, drain, ditch or natural watercourse is obstructed, broken or inadequate and is a menace to health, or is liable to cause damage to public or private property, the city manager shall give notice to the owner, agent or occupant of the property in which such condition exists, and if he shall refuse to reconstruct, replace, reconnect, repair or remove the obstruction of said side sewer, drain, ditch or natural watercourse within the time specified in such notice, the city manager shall so notify the department,

and the department may perform such work as may be necessary to comply with this article, and cost of such work so done shall be charged to the property owner or occupant and shall become immediately payable to the city upon written notice of such amount being given to the property owner or occupant or posted upon said premises.

(Code 1955, § 18B-32; Code 1983, § 21-116)

Sec. 21-117. Use of existing side sewer.

The use of an existing side sewer may be permitted when approved by the department as conforming to all the requirements of this article where a new or converted building or new installation replaces an old one. (Code 1955, § 18B-33; Code 1983, § 21-117)

Sec. 21-118. Correction of inadequate gravity flow.

(a) In any building, structure or premises in which the house drain or other drainage is too low to permit gravity flow to the public sewer, the same shall be lifted by artificial means and discharged into the public sewer.

(b) Whenever a situation exists involving an unusual danger of back-ups, the department may prescribe a minimum elevation at which the house drain may be discharged to the public sewer. Drains or sewers below such minimum elevation shall be lifted by artificial means; or if approved by the department, a backwater sewage valve shall be installed. The effective operation of the backwater sewage valve, or artificial lifting means, shall be the responsibility of the owner of the sewer or drain, who shall hold the city harmless from liability or damage as a result of the operation or failure of such device.

(c) Where under subsection (b) of this section a situation exists involving danger of back-ups or other hazards and the department has prescribed minimum elevations, pumping stations or other artificial means of lifting effluent, or like devices, the cost of acquisition and installation of such devices shall be charged ratably to the users benefited thereby.

(Code 1955, §§ 18B-32, 18B-34; Code 1983, § 21-118)

Sec. 21-119. Discharge of non-city water prohibited.

It shall be unlawful for any person to discharge or cause to be discharged into the sanitary sewers of the city any water from any other source than the water system of the city.

(Code 1955, § 18B-43; Code 1983, § 21-119)

Sec. 21-120. Obstructing, breaking, injuring sewer facilities.

It shall be unlawful for any person to obstruct, break or injure in any manner any public sewer, or to obstruct, break or injure in any manner any manhole, or to place any earth, trash or any other material of any kind in any manhole.

(Code 1955, § 18B-44; Code 1983, § 21-120)

Sec. 21-121. Damaging system or public area.

It is unlawful to break, damage, destroy, deface, alter or tamper with any structure, appurtenance or equipment which is a part of the sewer system of the city, or without proper permit from the city to break, damage, destroy or deface any public walk, curb or pavement, or to make openings or excavations in, a public or private area for the purpose of connecting to any public or private sewer.

(Code 1955, § 18B-45; Code 1983, § 21-121)

Sec. 21-122. Trees and shrubs interfering with sewers.

(a) *Department's authority.* The department is authorized to remove any trees or shrubs from any public street or the roots of any trees or shrubs which extend into any public street when such trees or shrubs or the roots thereof are obstructing or are liable to obstruct any public or private sewer or drain.

(b) *Notice to owner.* Before making any such removal, the department shall give ten (10) days' notice in writing to the owner or occupant of the abutting property or the property on which such trees or shrubs are growing, requiring such owner or occupant to remove the same. If the written notice cannot be given to such owner or occupant, the notice may be posted on the premises or in the street at the location of the trees or shrubs requiring removal.

(c) *Costs.* If such owner or occupant fails or refuses to remove such trees or shrubs or roots within the time specified, the department is authorized to do so and the cost thereof shall be charged to the owner or occupant and upon giving such written notice of the amount thereof to the owner or occupant or by posting such notice at the location of the trees or shrubs, the cost thereof shall be immediately payable to the city by such owner or occupant.

(Code 1955, § 18B-48; Code 1983, § 21-122)

Sec. 21-123. Additional regulations governing side sewers and connections.

(a) The city manager shall establish and cause to be published a comprehensive set of rules, regulations and requirements relating to the use of the sewer system and the installation, materials, size, grade and mechanical requirements of all connections and side sewers permitted to be connected to the city sewer system. Upon approval by the city commission, and upon like approval of amendments thereto, said rules, regulations and requirements shall govern all use, materials and workmanship used in connection with the installation of any side sewer and connection with a public sewer.

(b) Those rules and regulations set out in section 18B-49(b) of the former Code of Ordinances are hereby ratified and confirmed as administrative regulations of the city pursuant to this section, rather than ordinances of the city, and shall be subject to amendment, repeal or modification in accordance with the provisions of this section.

(Code 1983, § 21-123)

Sec. 21-124. County standards adopted; enforcement, violation.

(a) *Adopted.*

(1) *Discharges to city sanitary sewer system.* Discharges to the city's sanitary sewer system shall comply with the standards set forth in section 24-42.4 of the Code of Miami-Dade County, Florida, as amended from time to time, by Metropolitan Dade County.

(2) *Private sewage disposal systems.* Private sewage disposal systems shall comply with the requirements of the state and county.

(b) *Enforcement.* The powers and authority of city inspectors in enforcing the requirements subsections (a) and (b) of this section shall include, but not be limited to, the following:

(1) Duly authorized employees of the city bearing proper credentials and identification shall be admitted, with permission from authorities, to all properties for the purposes of inspection, observation, measurement, sampling and testing pertinent to discharge to the city's sanitary sewer system in accordance with the provisions of this section.

- (2) While performing the necessary work on private properties referred to herein, the authorized employees of the city shall observe all safety rules applicable to the premises established by the company and/or the occupational safety and health administration, and the company shall be held harmless for injury or death to the employees, and the city shall indemnify the company against loss or damage to its property by city employees and against liability claims and demands for personal injury or property damage asserted against the company, except as such may be caused by negligence or failure of the company to maintain safe conditions as required by this section or otherwise required by law.
 - (3) Duly authorized employees of the city bearing proper credentials and identification shall be permitted to enter all private properties through which the city holds an easement for the purpose of, but not limited to, inspection, observation, measurement, sampling, repair, and maintenance of any portion of the sanitary sewer system within said easement. All entry and subsequent work, if any, shall be done in full accordance with the terms of the duly negotiated easement pertaining to the private property involved.
- (c) *Violations.* Violations of this section shall be subject to the following:
- (1) Violation of this section shall be punishable under section 1-7.
 - (2) The city may suspend a user's sanitary sewer service when such suspension is necessary, in the opinion of the city, in order to stop an actual or threatened discharge which presents or may present an imminent or substantial endangerment to the health or welfare of persons, to the environment, or causes interference to the operation and maintenance of the city's sanitary sewer system.
 - (3) Any person notified of a suspension of service shall immediately stop or eliminate discharges to the sewer system. In the event of a failure of the person to comply voluntarily with the suspension order, the city shall take such steps as deemed necessary, including initiation of legal action by the city attorney and immediate severance of the sewer connection, to prevent or minimize damage to the sanitary sewer system or endangerment to any individuals. The city shall reinstate the sanitary sewer service upon proof of the elimination of the noncomplying discharge. A detailed written statement submitted by the user describing the causes of the harmful contribution and the measures taken to prevent any future occurrence shall be submitted to the city within fifteen (15) calendar days of the date of occurrence.
 - (4) Any user who violates the following conditions of this section or applicable county, state or federal regulations, is subject to having his service suspended in accordance with the procedures set forth in this section:
 - a. Failure of a user to report factually the wastewater constituents and characteristics of his discharge.
 - b. Failure of the user to report significant changes in operations, or wastewater constituents and characteristics.
 - c. Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring.
 - (5) Whenever the city finds that any user has violated or is violating this section, or any prohibition, limitation or requirements contained herein, the city may serve upon such person a written notice stating the nature of the violation. Within thirty (30) days of the date of the notice, a plan for the satisfactory correction thereof shall be submitted to the city by the user.
 - (6) In the event of violation of this section, the city or authorized employees, may verbally instruct the owner as to the necessary corrective action. If the owner fails to carry out verbal instructions in a timely manner or if a serious violation or hazard to public health exists, the city may issue to the user a written notice or order stating the nature of the violation, the corrective action and the time limit for completing the corrective action. This time limit will be not less than twenty-four (24) hours and not more than six (6) months depending upon the type and severity of the violation. The offender shall within the period

of time stated in such notice or order, permanently cease all violations. The record of the mailing of said notice or order shall be prima facie evidence thereof, and failure of said user to receive same shall in no way affect the validity of any proceedings conducted pursuant to this section.

- (7) If any person discharges sewage, industrial wastes or other wastes into the city's sanitary sewer system contrary to the provisions of this section or other city ordinances, or federal, state, or county pretreatment requirements, or any order of the city, the city's attorney may commence an action for appropriate legal and/or equitable relief in the appropriate court.
- (8) Any user who is found to have violated an order of the city or who willfully or negligently fails to comply with any provision of this section, and the orders, rules and regulations set forth hereunder, shall be fined not less than one hundred dollars (\$100.00) nor more than five hundred dollars (\$500.00) for each offense. Each day on which a violation shall occur or continue, shall be deemed a separate and distinct offense. In addition to the penalties provided herein, the city may recover reasonable attorney's fees, court costs, court reporters' fees and other expenses of litigation by appropriate suit at law against the person found to have violated this section or the orders, rules and regulations set forth hereunder.
- (9) Any person who knowingly makes any false statements, representations, or certification in any application, record, plan or other document filed or required to be maintained pursuant to this section, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method under this section, shall, upon conviction, be punished as provided in section 1-7.
- (10) A person violating any provision of this section, thus authorizing the aforementioned action by the city, shall be charged the normal and usual charges for discontinuance and disconnection of said water and sewer services and the usual charges for re-commencing said water and sewer services.

(Code 1983, § 21-124; Ord. No. 88-6, §§ 1—4, 7-13-1988)

Secs. 21-125—21-133. Reserved.

DIVISION 2. WORK ON OR AFFECTING SEWERS

Sec. 21-134. License required to do work affecting sewer.

It shall be unlawful to make any connection to any public sewer or to lay, repair, alter or connect any private drain, septic tank or sewer, in any public or private area, except by the holder of a license to do such work issued under the Code of Miami-Dade County, Florida.

(Code 1955, § 18B-19; Code 1983, § 21-134)

Sec. 21-135. Contractor not to tamper with public sewer.

No contractor licensed to install sewer connections shall break, alter or tamper with any public sewer, except that he may connect to a wye which exists for the purpose of installing and connecting the side sewer.

(Code 1955, § 18B-19; Code 1983, § 21-135)

Sec. 21-136. Manner of making connection generally.

It shall be unlawful to make any connection with any public or private sewer, drain or natural outlet without complying with all of the provisions of this article, the rules, regulations and requirements of the water and sewer department in relation thereto and having a valid permit issued by the department.

(Code 1955, § 18B-20; Code 1983, § 21-136)

Sec. 21-137. Connection permit required.

It shall be unlawful for any person to make any sewer service connection to the public sewer system, either directly, or indirectly through any other sewer, without first having obtained a permit from the department and paid to the city the amount required.

(Code 1955, § 18B-16; Code 1983, § 21-137)

Sec. 21-138. Permits for work done inside property lines.

It is unlawful to construct, extend, replace, repair or to make any connection to any sewer or drain inside the property line without obtaining a permit from the department as provided in this division. The department may issue such permit to the owner or occupant of any property to construct, extend, replace, repair or make connection to any private sewer, septic tank or drain inside the property lines; provided such owner or occu-

pant shall comply with the applicable provisions of this article, except that he need not employ a licensed contractor to do the work. Should the owner or occupant employ a licensed contractor to do the work, such contractor shall take the permit in his own name and the owner, occupant or any other person shall lay no pipe on the contractor's permit.

(Code 1955, § 18B-23; Code 1983, § 21-138)

Sec. 21-139. Application for permit.

(a) *Contents.* Application for a permit required by this division shall be filed with the department, stating the name of the owner, the correct address and the legal description of the property to be served, the number, purpose, dimensions and location of all buildings on the property and the whole course of the drain from the public sewer or other outlet to its connection with the building or property to be served.

(b) *Approval by department.* The application shall be submitted to the department for approval, who may change or modify the same and designate the manner and place in which such sewers shall be connected with the public sewer, may also specify the material, size and grade of such sewer, and shall endorse his approval upon the application of the same if acceptable to him. The department may require the permittee to furnish him plans pertaining to the application and issuance of the permit.

(Code 1955, §§ 18B-17, 18B-21; Code 1983, § 21-139)

Sec. 21-140. Easement prerequisite to permit.

Before the department shall issue a permit authorizing and laying of a side sewer on any building site other than the one served by it, the owner of the sewer shall secure from the building site owner and record with the city clerk a sewer easement and shall exhibit same to the department.

(Code 1955, § 18B-47; Code 1983, § 21-140)

Sec. 21-141. Permit fee.

The fee for a permit required by this division shall be as presently established or as hereafter adopted by resolution of the city commission.

(Code 1955, § 18B-17; Code 1983, § 21-141)

Sec. 21-142. Permit records.

Upon approval of said application, the department shall place in its records a drawing, showing the size and location of the public sewer, the point of connection, the location of any buildings on the lot, and such other information as may be available and required. The department shall prepare and keep on file in its office all cards and records of sewer connections, showing the information obtained in the course of inspection of completed work done under the permit.

(Code 1955, § 18B-21; Code 1983, § 21-142)

Sec. 21-143. Additional work not covered by permit.

When a permit has been issued for a side sewer or drain as herein provided no work not covered by the permit shall be done without approval of the department; and it may, if it deems the additional work of sufficient consequence, require a new permit to cover same.

(Code 1955, §§ 18B-21, 18B-24; Code 1983, § 21-143)

Sec. 21-144. Permit for temporary connection.

The department may upon application containing such information as is required by it issue a permit for a temporary connection to a public sewer, side sewer, drain or natural outlet. Said permit may be revoked by the department at any time upon sixty (60) days' notice posted upon the premises and directed to the owner or occupant of the premises; and in the event the side sewer or drains are not disconnected at the expiration of said sixty (60) days, the department may disconnect the same and charge the cost thereof to the owner or occupant and such costs shall be immediately payable to the city following a written notice of the amount thereof given to such owner or occupant or posted on said premises. Such temporary permit shall be issued only upon the applicant recording with the city an acceptable instrument agreeing to save the city harmless from all damage resulting to the city by reason of such temporary connection or disconnection.

(Code 1955, § 18B-25; Code 1983, § 21-144)

Sec. 21-145. Expiration of permit.

No permit issued under this division shall be valid for a longer period than ninety (90) days unless extended or renewed by the department upon application therefor prior to the expiration.

(Code 1955, § 18B-26; Code 1983, § 21-145)

Sec. 21-146. Posting and display of permit.

The permit required by this division must at all times during the performance of the work, and until the completion thereof and approval by the department, be posted in some conspicuous place at or near the work and must be readily and safely accessible to the department.

(Code 1955, § 18B-27; Code 1983, § 21-146)

Sec. 21-147. Police, manager to enforce permit requirement.

It shall be the duty of any police officer and of the city manager, finding any person breaking ground for the purpose of making connection with a public or private sewer, septic tank or drain, to ascertain if such person has a permit therefor and, if not, to immediately report the fact to the department.

(Code 1955, § 18B-22; Code 1983, § 21-147)

Sec. 21-148. Call for inspection.

Any person performing work under permit pursuant to the provisions of this division shall notify the department when the work will be ready for inspection and shall specify in such notification the location of the premises by address and the file number of the permit. On any call for inspection forty-eight (48) hours' notice, plus Saturday, Sunday and holidays may be required by the department.

(Code 1955, § 18B-28; Code 1983, § 21-148)

Sec. 21-149. Representative to be present for inspection.

In the case of a licensed contractor, either the contractor or a competent representative shall be on the premises, whenever so directed, to meet the inspector.

(Code 1955, § 18B-28; Code 1983, § 21-149)

Sec. 21-150. Work to be left uncovered until inspected and approved.

No trench shall be filled nor any sewer covered until the work shall have been inspected and approved by the department.

(Code 1955, § 18B-29; Code 1983, § 21-150)

Sec. 21-151. Notice of disapproval of work.

If the department finds the work or material used is not in accordance with this article, it shall notify the

person doing the work, and also the owner of the premises, by posting a written notice on the permit card, and such posted notice shall be all the notice that is required to be given of the defects in the work or material found in such inspection.

(Code 1955, § 18B-28; Code 1983, § 21-151)

Sec. 21-152. Contractor's duty to guard excavations.

Any excavation made by any licensed sewer contractor in any public place or immediately adjacent thereto shall be protected and guarded by fencing or covering and by proper lights. The protection of the public from danger of such excavation shall be the responsibility of the sewer contractor; and said contractor shall be liable on his bond for any damage caused by his failure to properly protect and guard such excavation as herein required. If the contractor fails to properly protect and guard such excavation as herein required, the city may properly protect and guard such excavation and charge the cost thereof to the sewer contractor, who shall, upon receiving written notice of the amount of such charge or by the posting of a notice of the amount of such charge at the location of the excavation, immediately pay the same to the city.

(Code 1955, § 18B-46; Code 1983, § 21-152)

Sec. 21-153. Unguarded excavations on private property.

It shall be unlawful to leave unguarded any excavation made in connection with the construction or repair of any side sewer or private drain within four (4) feet of any public place or to fail to maintain the lateral support of any public place in connection with the construction, alteration or repair of any side sewer or drain.

(Code 1955, § 18B-23; Code 1983, § 21-153)

Sec. 21-154. Improper work; completion by city, costs.

If any work done under a permit granted is not done in accordance with the provisions of this article and the plans and specifications as approved by the department, and if the contractor or person doing the work shall refuse to properly construct and complete such work, notice of such failure or refusal shall be given to the owner or occupant of the property for whom said work is being done, and the department may cause said work to be completed and said sewer connected in the proper manner, and the cost of such work and any

materials necessary therefor shall be charged to the owner or contractor and be payable by the owner or contractor immediately upon the department giving written notice of the amount thereof or posting a notice thereof on the premises.

(Code 1955, § 18B-31; Code 1983, § 21-154)

Sec. 21-155. Restoration of public areas.

All work within the limits of any public area shall be prosecuted to completion with due diligence, and if any excavation is left open beyond a time reasonably necessary to fill the same, the department may cause the same to be backfilled and the public area restored forthwith, and any cost incurred in such work shall be charged to the contractor in charge of such work and shall be immediately payable to the city by the contractor upon written notification of the amount thereof given to the contractor or posted at the location.

(Code 1955, § 18B-30; Code 1983, § 21-155)

Secs. 21-156—21-165. Reserved.

DIVISION 3. SERVICE CHARGES*

Sec. 21-166. Establishment; basis.

(a) It is determined and declared to be necessary and conducive to the protection of the public health, safety, welfare, and convenience of the city, to collect charges from all users who contribute wastewater to the city's sanitary sewer system. The proceeds of such charges so derived will be used for the purpose of operating and maintaining the public sanitary sewer system.

(b) Each user shall pay for the sanitary sewage disposal services provided by the city based on his use of the public sanitary sewer system as determined by gauging or metering the amounts of water received from the city water system.

(Code 1955, § 18B-35; Code 1983, § 21-166; Ord. No. 88-7, §§ 1, 2, 7-13-1988)

Sec. 21-167. Computation.

(a) The sewer charges to be paid by the owner, tenant or occupant of each such lot or parcel to whom a bill shall be rendered for water furnished by the water

works system of the city and used on or about such lot or parcel shall consist of a minimum monthly charge of three dollars and ninety-four cents (\$3.94) per equivalent residential connection and a volume charge of one dollar and one cent (\$1.01) per one thousand (1,000) gallons or prorated portions, thereof, furnished monthly within or without the city, whether such water bill shall be rendered on a monthly or on a quarterly basis.

Each user shall pay a user charge rate for operation and maintenance, including a replacement fee, in accordance with the following:

Calculation of rates for sewer service.

For a rate system based on fixed cost and volume charge, use:

$$R = R_{\min} \times \# \text{ of ERC} + R_{\text{vol}} \times V_u$$

and

$$R_{\min} = \frac{C_f}{U \times 12}$$

$$R_{\text{vol}} = \frac{C_v}{V_t} + C_r$$

Where:

R	=	Monthly rate charged for use of city's sanitary sewer system (\$).
R _{min}	=	Minimum monthly charge for use of city's sanitary sewer system per ERC (\$).
R _{vol}	=	Rate charged for volume of wastewater discharged to city's sanitary sewer system (\$/1,000 gal.).
V _u	=	Volume of wastewater discharged to city's sanitary sewer system by a user (1,000 gal. from meter reading).
C _f	=	Total estimated annual "fixed cost" of operation and maintenance, including replacement of city's sanitary sewer system (\$) and any revolving loan payments.

*County Code reference—Jurisdiction of county over municipal sewer rates, § 32-66.

ERC	=	Equivalent residential connections, based on 1 ERC being equal to water usage of 350 gallons per day. Based on user's average yearly consumption, with a user receiving a minimum of one-half ERC.
U	=	Total number of equivalent residential connections (ERCs) using the city's sanitary sewer system.
Cv	=	Total estimated annual "variable cost" of operation and maintenance, including replacement of city's sanitary sewer system (\$) and all capital improvements.
Vt	=	Total estimated annual volume of billable water sold to users of the city's sanitary sewer system (1,000 gal.).
Cr	=	Rate at which Dade County charges the city for disposal of metered wastewater (\$/1,000 gal.).

(b) Any user which discharges any toxic pollutants or wastewaters having a greater strength than normal domestic sewage, which cause an increase in the cost of managing the wastewater collected by the city's sanitary sewer system or which singly or by interaction with other substances causes identifiable increases in the cost of operation, maintenance or replacement of the system shall pay such increased costs. The charge each such user shall pay shall be as determined by the appropriate financial personnel and approved by the city commission.

(c) The city will review the use charges at least annually and revise the rates as necessary to ensure that adequate revenues are generated to pay the cost of operation and maintenance including simple replacement, and that the system continues to provide for the proportional distribution of operation and maintenance including replacement costs among users of the city's sanitary sewer system.

(d) The city will notify each user at least annually of the rate being charged for operation, and maintenance including replacement of the city's sanitary sewer system.

(Code 1955, § 18B-36; Code 1983, § 21-167; Ord. No. 79-27, § 1, 10-17-1979; Ord. No. 80-2, § 1, 1-30-1980; Ord. No. 83-12, § 2, 12-14-1983; Ord. No. 84-12, § 2, 6-27-1984; Ord. No. 85-1, § 2, 1-9-1985; Ord. No. 85-15, § 2, 7-10-1985; Ord. No. 85-24, § 2, 10-9-1985; Ord. No. 87-8, § 2, 9-23-1987; Ord. No. 88-7, §§ 3—6, 7-13-1988; Ord. No. 90-11, § 1, 9-26-1990; Ord. No. 91-18, § 1, 9-26-1991; Ord. No. 92-10, § 1, 9-9-1992; Ord. No. 92-14, § 1, 9-23-1992)

Sec. 21-168. Credit for water not entering sewer system.

In the event that water shall be used regularly on any lot or parcel of land for sprinkling lawns or gardens or for any use for which the water does not enter the existing sewer system, the owner, tenant or occupant of such lot or parcel may secure a reduction in the amount of the sewer service charges to be paid by him as follows:

He may install, at his own expense and subject to such regulations as may be prescribed by the department, a separate connection with the water main or the lateral serving such lot or parcel and a meter for measuring the water so used, and thereafter the sewer service charges to be paid by the owner, tenant or occupant of such lot or parcel shall be computed on the basis of what the monthly or the quarterly water bill would be, after excluding the quantity of water so used.

(Code 1955, § 18B-37; Code 1983, § 21-168; Ord. No. 79-27, § 2, 10-17-1979)

Sec. 21-169. Interceptors and preliminary treatment required.

(a) *Interceptors.* No harmful ingredients shall be discharged into any public sewer without the installation of interceptors which shall be of a type and capacity approved by the department and shall be so located as to be readily accessible for cleaning and inspection.

(b) *Preliminary treatment.* All harmful ingredients shall be subject to such preliminary treatment as shall be necessary to reduce the objectionable characteristics or constituents within the maximum limits prescribed by the rules, regulations and requirements established

from time to time by the department under the provisions of section 21-123. Preliminary treatment shall be at the sole expense of the owner of the premises and shall be installed when the department determines that same is necessary to comply with the standards so prescribed. All plans, specifications and any other pertinent information relating to proposed preliminary treatment facilities shall be submitted for approval of the department; and no construction of such facilities shall be commenced until such approval is noted on the plan. Where such facilities are installed and used, they shall be maintained continuously in satisfactory and efficient operation by the owner at his own expense. (Code 1955, § 18B-39; Code 1983, § 21-169)

Sec. 21-170. Charges for special treatment or disposal.

Over and above the rates and charges established by section 21-167, there may be established in special instances and by special agreement between the city and the owner of any premises served by the system, such additional charges for commercial or industrial wastes of unusual strength or composition that are accepted by the city for treatment or disposal as may be determined to be fair and equitable. Each such special agreement and the charges established therefor shall not become effective until ratified by ordinance duly passed by the city commission. (Code 1955, § 18B-39; Code 1983, § 21-170)

Sec. 21-171. Billing and payment.

(a) The sewer charges levied, at the rates established by section 21-167, shall thereafter be billed each month of the calendar year and be due and payable with the bills for water service of the month of the billing. Any premises making connection with the system on or after the tenth day of the month shall be charged a per diem pro rata amount based on the charge from the time such connection is made until the commencement of the next following billing period applicable to said premises.

(b) Each such bill shall separate the amount of the sewer service charges, sewer modification district surcharges and water charges, and any partial payment on any such bill shall be applied first to the charges for water, unless otherwise designated by the user as payment of the surcharge.

(c) In case of failure to pay any bill for sewer charges when due, a penalty of ten (10) percent of such charge shall be added to such bill. Payment of bills shall be subject to the provision of sections 21-83 through 21-87 where applicable. (Code 1955, §§ 18B-38, 18B-40; Code 1983, § 21-171)

Sec. 21-172. Discontinuing water service for nonpayment.

If the amount of such sewer service charges or sewer modification district charges or surcharges shall not be paid within thirty (30) days from the rendition of such bill, the department shall discontinue furnishing water to such premises and shall disconnect the same from the waterworks system of the city, and shall proceed forthwith to recover the amount of such sewer service and sewer modification charges in such lawful manner as it may deem advisable. (Code 1955, § 18B-38; Code 1983, § 21-172)

Sec. 21-173. Lien for sewer charge.

Each sewer charge levied pursuant to this article, including any sewer modification district surcharge, is hereby made a lien on the premises charged therewith, and if the same is not paid within sixty (60) days after it shall be due and payable, it shall be certified to and filed with the clerk of the circuit court of the county. The sewer charge and/or sewer modification district surcharge, with the interest and penalties allowed by law, shall be collected as other municipal taxes are collected and enforced. (Code 1955, § 18B-41; Code 1983, § 21-173)

Sec. 21-174. Deposit, use of revenues generally.

Except as otherwise provided for sewer modification districts, the funds received from the collection of the charges herein provided shall be deposited as received with the city, which shall keep the same in a separate fund designated sewer revenue fund. Monies in said fund shall be used for the payment of the cost and expenses of the operation, maintenance, repair and management of the system, and any surplus in said fund over and above the requirements hereinbefore mentioned may be used for enlargements of and replacements to the system and part thereof or such other related or nonrelated general governmental use as may be determined by the city commission. (Code 1955, § 18B-42; Code 1983, § 21-174)

Secs. 21-175—21-184. Reserved.**DIVISION 4. SEPTIC TANKS*****Sec. 21-185. Permit required.**

It shall be unlawful for any person to install or repair any septic tank system in the city, except upon a permit as provided in this division.

(Code 1955, § 18B-14; Code 1983, § 21-185)

Sec. 21-186. Application for permit.

It shall be unlawful for any person to install or repair, have installed or repaired, allow to be installed or repaired, or contract to install or repair a septic tank system for another person without first making application to the city manager for a septic tank permit on application forms furnished by the city. The application form shall contain clearly a description, location and dimensions of the land or lot on which the septic tank, distribution box and sewer piping are to be installed, the dimensions of the subsurface disposal field, the type of land, such as loam, sandy loam, clay, gravel, etc., the direction in which the land drains in relation to reservoirs, springs and wells, and be accompanied by a plat of the land when required, showing the location of dwelling houses and all other buildings, and the plans and specifications of the whole septic tank system intended to be installed or repaired.

(Code 1955, § 18B-14; Code 1983, § 21-186)

Sec. 21-187. Permit issuance.

In the event no connection to a public sewer is required by section 21-107, the city manager may issue a permit to the applicant for the installation of such septic tank system in accordance with the plans and specifications furnished. If the plans are not approved, but the size and location of the lot and type of soil are suitable for a septic tank system, properly planned, the city manager shall clearly outline proper plans for the same and grant the permit only according to the plans as outlined by him.

(Code 1955, § 18B-14; Code 1983, § 21-187)

Sec. 21-188. Discontinuance.

Notwithstanding approval and issuance of a permit, all septic tanks permitted to be installed hereunder

*County Code reference—Regulation of septic tanks, § 24-13.

shall be disconnected and the dwelling house or building served thereby shall be connected to a public sewer if the septic tank system becomes subject to any of the conditions requiring connection as is set forth, subject to the exception contained in section 21-107.

(Code 1955, § 18B-14; Code 1983, § 21-188)

Sec. 21-189. Disposal of septic tank contents.

(a) In the event it becomes necessary to empty any septic tank which is permitted under this article, application for a permit shall first be made to the department.

(b) No person shall be permitted to dispose of the contents of septic tanks or deliver the contents thereof for disposal in the city's sewer facilities. No disposal of septic tank contents shall be permitted until authorized by the department, in accordance with such rules and regulations designated or promulgated by the city manager and approved by the city commission.

(Code 1955, § 18B-15; Code 1983, § 21-189)

ARTICLE IV. STORMWATER UTILITY**Sec. 21-190. Short title.**

This article shall be known as the "City of Opa-Locka Stormwater Utility Ordinance."

(Code 1983, § 21-190; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-191. Legislative intent.

It is the purpose and intent of the city to create a municipal stormwater utility pursuant to F.S. § 403.0893(1), as amended from time to time, and to establish stormwater utility fees to be levied against all developed property in the city in amounts sufficient to plan, control, operate and maintain the city's stormwater management system pursuant to F.S. 403.0891(3).

(Code 1983, § 21-191; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-192. Construction.

This article shall be liberally construed to protect the public health, safety, and welfare, and to effectuate the purposes set forth herein.

(Code 1983, § 21-192; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-193. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Developed property means real property within the city on which improvements have been made to foster commercial, residential or civic use, and/ or any property on which impervious structures have been placed. For new construction, a property shall be considered developed for purposes of this article:

- (1) Upon issuance of a certificate of occupancy or upon completion of construction or final inspection if no such certificate is issued; or
- (2) Where construction is at least fifty (50) percent complete and construction is halted for a period of three (3) months.

Dwelling unit means any room or group of rooms located within a dwelling and forming a single habitable unit with facilities used or intended to be used for living, sleeping, cooking and eating.

Equivalent residential unit (ERU) means the representative average impervious area of single-family residential property located in the city.

Impervious area means any part of any parcel of land that has been modified by the action of persons to reduce the land's natural ability to absorb and hold rainfall. This includes areas that have been cleared, graded, paved, graveled, or compacted, or covered with structures. Excluded are all lawns, landscape areas, and gardens or farming areas.

Manager means the city manager or his/her designee.

Multifamily property means all residential development not classified as single-family residential.

Nonresidential property means all property not zoned or used as single-family or multifamily residential property as defined in this article.

Property means land, with or without structures, having a unique folio number assigned by the county property appraiser.

Residential property means any parcel developed exclusively for residential purposes, including, but not

limited to, single-family homes, manufactured homes, multifamily apartment buildings and condominiums, and transient rentals such as hotels and motels.

Single-family property means all single-family detached residential dwelling structures. All other residential development shall be classified as multifamily.

Stormwater means that part of precipitation that travels over natural, altered, or improved surfaces to the nearest stream, canal, or channel or impoundment and may appear in surface waters.

Stormwater management plan means an approved plan for receiving, handling, and transporting storm and surface waters within the city stormwater management system.

Stormwater management system means all natural and manmade elements used to convey stormwater from the first point of impact with the surface of the earth to a suitable outlet location internal or external to the boundaries of the city. The stormwater management system includes all pipes, channels, streams, canals, ditches, wetlands, sinkholes, detention/retention basins, ponds, secondary canals and their rights-of-way, and other stormwater conveyance and treatment facilities, whether public or private.

Stormwater management utility director means the designee of the city manager responsible for implementing the stormwater management utility function.

Undeveloped property means all real property within the city which does not meet the definition of developed property.
(Code 1983, § 21-193; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-194. Utility established.

(a) There is hereby created and established a stormwater management utility program, which shall provide the operational means of implementing and carrying out the functional requirements of the stormwater management system. The stormwater management utility program shall be part of the overall utility systems of the city.

(b) The governing body of the stormwater utility program shall be the city commission.
(Code 1983, § 21-194; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-195. Customer base.

All real property within the jurisdictional boundaries of the city shall be subject to stormwater management utility fees unless specifically exempted. The fees shall apply to all tax-exempt properties, including properties of federal, state, city, and county agencies and nonprofit organizations.
(Code 1983, § 21-195; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-196. Utility fee categories.

(a) Stormwater management utility fees are established and amended as necessary to be sufficient to plan, construct, operate, and maintain the stormwater management system, as required by F.S. § 403.0891(3). All lots and parcels subject to stormwater management utility fees in the city are divided into three (3) classes as follows:

- (1) *Single-family property.* Each single-family property shall be considered one (1.0) ERU for billing purposes.
- (2) *Multifamily.* Each multifamily unit shall be considered as one (1.0) ERU for billing purposes.
- (3) *Houses of worship.* Houses of worship classified by the county property appraiser as land use type 71 shall be assessed a monthly utility fee which is fifty (50) percent of the fee for nonresidential developed property calculated pursuant to subsection (a)(4) of this section.
- (4) *Nonresidential property.* The monthly utility fee for all nonresidential properties shall be billed and calculated in accordance with the following formula:

The value of one (1) ERU for nonresidential property is hereby determined to be one thousand five hundred forty-eight (1,548) square feet of impervious area (one thousand five hundred forty-eight (1,548) square feet of impervious area equals one (1.0) ERU).

The utility fee shall equal (number of nonresidential ERUs) times (rate per ERU).

A minimum value of one (1.0) ERU shall be assigned to each nonresidential property.

(b) For the purposes of calculating stormwater management utility fees, the calculation of ERUs is based upon property usage, as determined by the city and

based on, but not limited by, state and county land use codes, local business licenses, city land development regulations, and site inspections.

(c) The number of ERUs calculated for each property shall be rounded to the nearest one one-hundredth (1/100) of a whole number.
(Code 1983, § 21-196; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-197. Fee schedule and payment.

(a) The fee schedule shall be adopted by separate resolution to be amended by the city commission from time to time.

(b) Stormwater management utility fees shall be billed and collected in the tax roll as a non-ad valorem fee. The city is authorized to utilize the county appraiser's office as an acceptable third party to perform billing services.

(c) Bills for stormwater management utility fees shall be payable at the same time and in the same manner as all other charges on a property tax bill.

(d) The owner of the property is responsible for all stormwater management utility fees imposed under this article.
(Code 1983, § 21-197; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-198. Exemptions.

The following real property located in the city shall be exempt from the imposition of stormwater management utility fees:

- (1) Undeveloped property;
- (2) Paved or improved public rights-of-way;
- (3) Agriculture-classified properties under agriculture uses.

(Code 1983, § 21-198; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-199. Stormwater utility enterprise funds.

(a) A stormwater management utility enterprise fund (the fund) account, into which all revenues from stormwater management utility fees, grants, or other funding sources shall be deposited and from which all expenditures related to the stormwater management utility shall be paid, is hereby established.

(b) Accounting and reporting procedures shall be consistent with state general law. Expenditures from the fund for activities that are not related to the city

stormwater management utility shall not be permitted, except for a prorated charge for general government services as is in effect for other city utility operations.

(c) The monies within the fund shall be used for the exclusive use of the city's stormwater management utility, including, but not limited to, the following:

- (1) Stormwater management services, such as studies, design, permit review, planned preparation, and development review;
- (2) Operation, maintenance, repair, and replacement of the stormwater collection, storage, treatment, and conveyance infrastructure;
- (3) Project cost related to constructing major or minor structural improvements to the stormwater-related infrastructure as provided in any city stormwater management plan;
- (4) Administrative costs associated with the management of the stormwater management utility fee;
- (5) Debt service financing of stormwater-related capital improvements defined in any city stormwater management plan;
- (6) Funding of any studies, including water quantity and quality monitoring, aerial photography and geotechnical work associated with the planning of stormwater-related infrastructure.

(Code 1983, § 21-199; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-200. Request for adjustment.

All requests for adjustment of the stormwater management utility fee shall be submitted to the stormwater management utility director and shall be reviewed as follows:

- (1) All requests shall be in writing and set forth in detail the grounds upon which an adjustment is sought. All requests shall be judged on the basis of the amount of impervious area on the lot or parcel, and/or additional or enhanced stormwater facilities on or serving the lot or parcel. No credit shall be given for the installation of facilities required by county or city development codes or state stormwater regulations.
 - (a) The city shall reimburse the stormwater management utility fees by up to forty-

two (42) percent for nonresidential properties in excess of ten (10) acres with privately maintained stormwater facilities. However, the property must maintain a valid National Pollutant Discharge Elimination System (NPDES) stormwater discharge permit which drains to waters of the United States, as defined by the U.S. Environmental Protection Agency. The property owner must send the stormwater management utility director a copy of said NPDES permit and subsequent renewals.

- (2) Adjustment requests made during the first calendar year that the fee is imposed shall be reviewed by the stormwater management utility director within a six (6) month period from the date of submission. Adjustments resulting from such requests shall be retroactive to the effective date of the ordinance from which this article is derived.
- (3) All adjustment requests received after the first calendar year that the fee is imposed shall be reviewed by the stormwater management utility director within a two (2) month period from the date of submission. Adjustments resulting from such requests shall be retroactive to the date of submission of the adjustment request, but shall not exceed three (3) years.
- (4) The customer or property-owner requesting the adjustment may be required, at his/her own cost, to provide supplemental information to the stormwater management utility director, including, but not limited to, facts, opinions, survey data, and signed and sealed engineering reports and calculations to substantiate customer's case. Property owners must demonstrate that their existing stormwater or new stormwater control measure controls the volume and quality of stormwater generated from their immediate developed property (on-site).

Maintenance of stormwater systems. The owner or operator of the permanent stormwater management program shall ensure that said program is administered in accordance with the law to ensure they are oper-

ated and maintained to achieve the goals of this law. Proper operation and maintenance also includes, as a minimum, the following:

- (a) A preventive/corrective maintenance program for all critical facilities and systems of treatment and control (or related appurtenances) which are installed or used by the owner or operator to achieve the goals of this law. Property owner must document all operation and maintenance activities and provide the city with a report annually by April 30. Failure to provide such information may result in a denial of the adjustment request.
 - (b) Failure to maintain the stormwater facilities on-site or provide information of maintenance or other pertinence information may result in a denial of the cost adjustment request.
 - (5) The stormwater management utility director shall provide the person requesting the adjustment with a written determination of the request within the time provided herein. Any adjustments shall be prorated monthly.
- (Code 1983, § 21-200; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-201. Prohibitions, generally.

(a) *Prohibited acts.* The following shall constitute a violation of this Code:

- (1) Any discharge into the stormwater system of the city or drainage district without written permission from the stormwater management utility director and the appropriate drainage district.
- (2) Any discharge into the stormwater system of the city or drainage district in violation of any city, federal, state, county, municipal or other governmental law, regulation or permit is prohibited, except those discharges authorized by a valid NPDES permit.
- (3) Any discharge to the stormwater system that is not composed entirely of stormwater is prohibited, except as authorized by a valid NPDES permit.
- (4) Blocking, filling, altering or obstructing any drainage course, swale, canal, ditch or any type of stormwater management facility in a

manner which alters the intended use of the facility, whether the facility is located on public right-of-way, dedicated easement, or private property is strictly prohibited unless specifically authorized by the city and the appropriate drainage districts.

- (5) Litter, littering material. The accumulation, placing, sweeping, scattering, throwing, or dumping of litter, or littering material such as dead plants, yard clippings, stagnant water, rubbish, debris, trash, refuse, including any wrecked derelict or partially dismantled motor vehicle, trailer, boats, machinery, appliances, furniture or similar article, or any unsanitary, hazardous or significant material or other noxious matter upon any surface area, stormwater management system or waterbody within the city is hereby prohibited.
- (6) Development of a parcel of land shall be prohibited from non-permitted discharges onto adjacent parcels of land.
- (7) Failure to properly maintain a stormwater management facility so that it operates as originally designed or permitted is strictly prohibited. If a stormwater system ceases to fully function as intended, the property owner may be required to replace or rebuild said system.
- (8) A violation of any other mandatory provision of this chapter.

(b) *Authority to issue cease and desist orders for prohibited activities.* Whenever the stormwater management utility director or building official determines that conditions or activities exist which require immediate action to protect the public health, safety, or welfare, the stormwater management utility director, building official or his or her designee are hereby authorized to take all actions reasonably necessary to preserve the public health, safety and general welfare, including to enter upon any property within the city at such reasonable times as the stormwater management utility director or building official deems necessary for the purposes of testing, inspecting, investigating, measuring, and sampling the property where prohibited activities may exist. The stormwater management utility director or building official may issue cease and desist orders to effectuate the immediate discontinuance of any activity that the stormwater management utility director or building official determines causes or

tends to cause a prohibited activity or condition. Failure to comply with such order shall constitute a separate violation of this article for each day the activity continues. This order may be made orally provided written notice of such order is subsequently issued in a prompt fashion.

(c) *Liability for pollution abatement.* Any person, entity or property owner who discharges pollutants into any waters of the state or stormwater systems or who fails to correct any prohibited condition or discontinue any prohibited activity at the stormwater management utility director or building official's request, shall be responsible to pay the necessary expenses incurred by the city in carrying out any pollution abatement activities undertaken by the city to preserve the public's health, safety and general welfare, including any expenses incurred in testing, measuring, sampling, collecting, removing, containing, treating, and disposing of the pollutant materials in addition to assessed fines and legal fees.

(Code 1983, § 21-201; Ord. No. 2021-01, § 2, 1-13-2021)

Sec. 21-202. Permits, plan reviews, inspections, and administrative fees.

(a) It shall be unlawful for any person or organization to construct, enlarge, alter, repair, relocate, or demolish a storm sewer, natural watercourse or other drainage facility, without first filing an application and obtaining a proper permit from the city, DERM or any required county/state agency. The city shall require the payment of administrative fees to defray certain administrative costs incurred by the city's department of buildings and licensing and department of engineering, including, but not limited to, permit application and plan review, inspection and engineering review for each project. Payment shall be due upon submission of the permit application.

(b) Stormwater inspections and monitoring procedures. The city may enter, perform inspections, surveillance and monitoring procedures, within reasonable hours, on and of all structures and premises, and shall have free access to copying or reviewing pertinent records of a facility, system or premises, to ascertain the state of compliance with the laws, rules and regulations of the city, state and federal government regarding compliance as outlined in this chapter.

(1) The compliance personnel of the enforcing agency shall be provided with official identification and shall exhibit such identification when performing inspections.

(2) The owner, operator, lessees, occupant or person in charge of the structure or premises shall give the inspecting officer free access for the purpose of making such inspections without hampering, obstructing, or interfering with such obstruction.

(Code 1983, § 21-202; Ord. No. 2021-01, § 2, 1-13-2021)

Chapter 22

ZONING

Sec. 22-1. Land development regulations saved from repeal and continued in effect.

**Sec. 22-1. Land development regulations saved from
repeal and continued in effect.**

Nothing contained in this Code, or in the ordinance adopting this Code, shall be construed to repeal or otherwise affect the land development regulations.

Chapter 23

EMPLOYEE PROTECTION WHISTLEBLOWER ACT

Sec. 23-1.	Legislative findings and purpose.
Sec. 23-2.	Definitions.
Sec. 23-3.	Actions prohibited.
Sec. 23-4.	Nature of information disclosed.
Sec. 23-5.	To whom the information must be disclosed.
Sec. 23-6.	Employees and persons protected.
Sec. 23-7.	Remedies.
Sec. 23-8.	Relief.
Sec. 23-9.	Existing rights.
Sec. 23-10.	Retroactive application.
Sec. 23-11.	Confidentiality of individuals disclosing information.
Sec. 23-12.	Outreach to employees and mandatory training.

Sec. 23-1. Legislative findings and purpose.

The city commission finds that it is in the best interests of the city to ensure that employees who have knowledge of unlawful activity, misfeasance or malfeasance by the county or independent contractors report such knowledge to the appropriate authorities for investigation and corrective action. In order to encourage employees to report such information without fear of reprisal, it shall be the policy of the city to prohibit adverse action against an employee for disclosing such information to an appropriate official or agency and to award such employees when the information they disclose leads to the city's recovery of public funds.

Recognizing that the state has adopted its own Whistleblower Act, F.S. § 112.3187 et seq. and that the state act provides for the adoption of local procedures for administrative enforcement, the commission intends that this chapter be interpreted consistently with the state act, as it may from time to time be amended. (Code 1983, § 23-1; Ord. No. 16-14, § 2, 10-26-2016)

Sec. 23-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adverse personnel action means the discharge, suspension, transfer or demotion of any employee or the withholding of bonuses, the reduction in salary or benefits, or any other adverse action taken against an employee within the terms and conditions of employment by the city.

City means and includes all City of Opa-locka, Florida, departments under the city commission's legislative authority.

Employee means a person who performs services for, and under the control and direction of, the city for wages or other remuneration.

Independent contractor means a person, other than a federal, state or local government entity, engaged in any business and who enters into a contract with the city.

Manager means the city manager.

All other words or terms used in this chapter shall have the same meaning as such words and terms have under the state Whistleblower Act (F.S. § 112.3187 et seq.).

(Code 1983, § 23-2; Ord. No. 16-14, § 2, 10-26-2016)

Sec. 23-3. Actions prohibited.

(a) The city shall not dismiss, discipline, or take any other adverse personnel action against an employee for disclosing information pursuant to the provisions of this chapter.

(b) The city shall not take any adverse action that affects the rights or interests of an employee in retaliation for the employee's disclosure of information under this chapter.

(c) The provisions of this chapter shall not be applicable when an employee discloses information known by the employee to be false.

(Code 1983, § 23-3; Ord. No. 16-14, § 2, 10-26-2016)

Sec. 23-4. Nature of information disclosed.

The information disclosed under this chapter must include:

- (1) Any violation or suspected violation of any federal, state or local law, rule or regulation committed by an employee or agent of the city or independent contractor which creates and presents a substantial and specific danger to the public's health, safety or welfare; or
- (2) Any act or suspected act of gross mismanagement, malfeasance, misfeasance, gross waste of public funds, or gross neglect of duty committed by an employee or agent of the city or an independent contractor.

(Code 1983, § 23-4; Ord. No. 16-14, § 2, 10-26-2016)

Sec. 23-5. To whom the information must be disclosed.

(a) As a part of the city's administrative process, the information disclosed under this chapter must be disclosed to the city manager, or in the case where the city manager is the person being complained of, to the city's risk manager.

(b) Within a reasonable time after receiving a complaint, not to exceed thirty (30) days, the city manager or the city's risk manager, in the case where the city manager is the subject of the complaint, shall acknowl-

edge receipt of the complaint and thereafter, the city attorney may conduct an informal fact finding regarding any allegations under this section, only to the extent necessary to determine whether there are reasonable grounds to believe that a prohibited personnel action under F.S. § 112.3187, has occurred, is occurring, or is to be taken. No finding by the city attorney shall be binding on the city manager or a subsequent impartial review board. The city attorney shall have the discretion to the release any informal findings.

(c) Within forty-five days (45) days, unless extended by the city manager or the city's risk manager (where the city manager is the subject of the complaint), for good cause, a three (3) person impartial committee shall be assembled by the city manager or the city's risk manager (when the city manager is the subject of the complaint) consisting of:

- a) A resident of the city;
- b) A city department head that is not a part of the department that is the subject of the complaint; and
- c) A city employee that is not a part of the department that is the subject of the complaint.

Neither the city manager, city attorney or city clerk may serve on the impartial panel that is authorized to handle whistleblower complaints only. The three (3) person impartial personnel panel shall be authorized to investigate allegations, to determine that an investigation is not necessary and/or to make a final determination regarding whether any violation has occurred. The impartial panel may also review rendered actions of management. The impartial panel shall advise the city manager of all necessary resources, including professional expertise, necessary to perform its work.

(d) The city will consider the administrative process that is set forth herein to be exhausted at such time that the recommendations of the impartial panel are reported to the city manager. However, nothing herein shall prevent matters from being reported to the Miami-Dade County Commission on Ethics and Public Trust or any other authorized agency when otherwise required by law. The city shall comply with any and all requests for information from the Miami-Dade County Commission on Ethics and Public Trust.

(e) To facilitate the disclosure of information, the city shall establish a whistleblower process, including a form, for receiving confidential whistleblower complaints.

(Code 1983, § 23-5; Ord. No. 16-14, § 2, 10-26-2016; Ord. No. 2020-08, § 2, 6-18-2020)

Sec. 23-6. Employees and persons protected.

(a) This chapter protects employees who disclose information on their own initiative in a written and signed complaint; who are requested to participate in an investigation, hearing, or other inquiry conducted by the city, any state agency or federal government entity having the authority to investigate, police, manage, or otherwise remedy the violation or act; who refuse to participate in any adverse action prohibited by this chapter; who disclose information to the city or the Miami-Dade Commission on Ethics and Public Trust, as applicable, in accordance with the provisions of section 23-5; or who are otherwise protected by the state Whistleblower's Act (F.S. § 112.3187 et seq.). The provisions of this chapter may not be used by employees while they are under the care, custody, or control of the state or county correctional system, or after their release from the care, custody or control of the state or county correctional system, with respect to circumstances that occurred during any period of incarceration.

(b) No remedy or other protection under this chapter applies to any person who has committed or intentionally participated in committing a violation or suspected violation for which protection under this chapter is being sought.

(c) An employee who provides false information pursuant to this section may be investigated and prosecuted pursuant to state statutes, including, but not limited to, F.S. §§ 837.06, false official statements; F.S. § 838.022, official misconduct; and F.S. § 837.05, false reports.

(d) It shall be an affirmative defense to any complaint brought pursuant to this chapter that the adverse action was predicated upon grounds other than, and would have been taken absent, the employee's exercise of rights protected by this chapter.

(e) The impartial panel set forth in section 23-5 may consider any pattern of conduct by persons making the whistleblower complaint.

(f) The impartial panel shall conduct a hearing only after notice to the complainant.

(g) The three (3) person panel may call witnesses, produce records, make findings of fact and conclusions of law and make recommendations for a final decision by the city manager or the city risk manager, in such case where the city manager is the subject of the complaint.

(Code 1983, § 23-6; Ord. No. 16-14, § 2, 10-26-2016; Ord. No. 2020-08, § 3, 6-18-2020)

Sec. 23-7. Remedies.

If a complaint is made within sixty (60) days after an alleged prohibited action pursuant to F.S. § 112.3187, a complainant shall have not more than sixty (60) days after receipt of a notice of termination of the investigation by the three (3) person impartial personnel panel set forth in section 23-5, to file a complaint in an appropriate court with jurisdiction over the matter.

(Code 1983, § 23-7; Ord. No. 16-14, § 2, 10-26-2016; Ord. No. 2020-08, § 4, 6-18-2020)

Sec. 23-8. Relief.

In any case brought under this chapter in which the three (3) person impartial panel set forth in section 23-5 finds that the employee has been discharged, disciplined, or subjected to other adverse personnel action in violation of this chapter, the city manager or city manager's designee may:

- (1) Reinstatement of the employee to the same position held before the adverse action was commenced or to an equivalent position, or award reasonable front pay as alternative relief.
- (2) Reinstatement of the employee's fringe benefits and seniority rights, as appropriate.
- (3) Compensation of the employee, if appropriate, for lost wages, benefits or other lost remuneration caused by the adverse action.

(Code 1983, § 23-8; Ord. No. 16-14, § 2, 10-26-2016; Ord. No. 2020-08, § 5, 6-18-2020)

Sec. 23-9. Existing rights.

This chapter shall not be construed to diminish the rights, privileges or remedies of any employee under any other law or rule or under any collective bargaining agreement that may exist.

(Code 1983, § 23-9; Ord. No. 16-14, § 2, 10-26-2016; Ord. No. 2020-08, § 6, 6-18-2020)

Sec. 23-10. Retroactive application.

Any complaints pending with the city at the time of enactment of this legislation shall have retroactive application as to the process to be followed herein.

(Code 1983, § 23-10; Ord. No. 16-14, § 2, 10-26-2016; Ord. No. 2020-08, § 7, 6-18-2020)

Sec. 23-11. Confidentiality of individuals disclosing information.

The city commission intends for the protections of state law to be afforded to any individual who discloses information in compliance with this chapter to the local officials set forth in this chapter. The identity of such individuals shall be confidential and exempt from the provisions of the public records laws to the fullest extent permitted by, and in accordance with the law, including, but not limited to, the confidentiality requirements and exemptions set forth in F.S. §§ 119.0713 and 112.3188. This section is not intended to prevent the dissemination of information, if requested, by the Miami-Dade Commission on Ethics and Public Trust.

(Code 1983, § 23-11; Ord. No. 16-14, § 2, 10-26-2016; Ord. No. 2020-08, § 8, 6-18-2020)

Sec. 23-12. Outreach to employees and mandatory training.

The manager or designee shall, and the Miami-Dade Commission on Ethics and Public Trust or their designees may, provide training regarding this chapter to all new city employees hired after the effective date of the ordinance from which this chapter is derived as part of the initial city orientation. The manager or designee shall also provide training regarding this chapter to all city employees from time to time.

(Code 1983, § 23-12; Ord. No. 16-14, § 2, 10-26-2016; Ord. No. 2020-08, § 9, 6-18-2020)

CODE COMPARATIVE TABLE

1955 CODE TO 2022 CODE

This table gives the location within the 2022 Code of those sections of the 1955 Code, as supplemented through 1978.

1955 Code Section	Section this Code	1955 Code Section	Section this Code
1-1	1-1	—	2-59
1-2	1-2	—	2-60
1-3	1-3	—	2-61
1-4	1-4	—	2-62
1-5	1-5	—	2-63
1-6	1-7	—	2-64
—	1-8	—	2-65
2-1	2-5	—	2-66
2-2	2-6	2-10	2-26
2-3	2-7	2-11	2-27
2-4	8-2	2-11.1	2-30
2-5	8-3	2-11.2	2-32
2-6	8-4	2-11.3	2-8
2-7.2	8-1	2-12	2-392
2-7.3	19-1	2-13	2-393
2-7.4	19-1	2-14	2-394
2-7.5	2-298	2-17	2-406
2-7.6	2-299	2-18	2-408
2-7.7	2-300	2-19	2-317
2-7.8	2-301	—	2-318
2-7.9	2-302	—	2-319
2-7.11	2-303	2-20	2-320
2-7.12	2-304	2-21	2-321
2-8	2-28	2-22	2-322
—	2-29	2-22.01	2-323
—	2-41	2-22.1	2-335
—	2-42	—	2-336
—	2-43	—	2-337
—	2-44	—	2-338
—	2-45	2-23	2-434
—	2-46	—	2-441
—	2-47	2-24	2-435
—	2-48	2-24	2-436
—	2-49	2-24	2-437
—	2-50	2-24	2-438
—	2-51	—	2-440
—	2-52	2-25	2-443
—	2-53	—	2-450
—	2-54	2-26	2-442
—	2-55	—	2-445
—	2-56	2-27	2-439
—	2-57	2-28	2-446
—	2-58	—	2-461

OPA-LOCKA CODE

1955 Code Section	Section this Code	1955 Code Section	Section this Code
2-29	2-437	—	2-1145
—	2-444	2-88	2-132
—	2-447	2-89	2-88
—	2-448	2-90	2-97
—	2-449	2-91	2-89
—	2-462	2-93	2-86
—	2-463	—	2-87
—	2-464	2-94	2-109
2-30	2-465	—	2-110
2-30.1	2-466	—	2-111
2-30.2	2-467	—	2-112
2-30.3	2-468	—	2-113
2-35	16-2	—	2-114
2-36	16-1	—	2-115
2-51	2-479	—	2-116
2-52	2-480	—	2-117
—	2-482	—	2-118
2-53	2-483	—	2-119
—	2-484	—	2-1120
2-54	2-485	2-95	2-84
2-71	8-15	2-96	2-85
2-72	8-16	2-99	12-4
2-73	8-17	2-100	12-5
2-74	8-18	2-101	12-6
2-75	8-19	2-102	12-1
2-76	8-20	2-103	12-2
2-81	2-82	2-104	12-3
—	2-83	2-130	21-1
2-82	2-90	2-131	21-2
—	2-91	2-132	21-3
—	2-92	3-1	4-1
2-83	2-96	3-5	4-11
2-84	2-98	3-6	4-11
2-85	2-93	3-7	4-10
2-86	2-94	3-12	4-14
—	2-95	3-13	4-2
2-87	2-3	3-35	4-4
—	2-131	3-36	4-5
—	2-133	3-37	4-6
—	2-134	3-38	4-7
—	2-135	3-40	4-8
—	2-136	3-41	4-13
—	2-137	3-43	4-12
—	2-138	—	4-15
—	2-139	3-47	4-9
—	2-140	4-1	5-2
—	2-141	4-2	5-3
—	2-142	4-3	5-4
—	2-143	4-6	5-16
—	2-144	4-21	5-18

CODE COMPARATIVE TABLE

1955 Code Section	Section this Code	1955 Code Section	Section this Code
—	5-19	8-6	7-50
4-22	5-35	—	7-51
—	5-36	—	7-52
—	5-37	—	7-53
—	5-38	—	7-54
—	5-39	8-8	7-1
4-23	5-17	8-11	7-2
4-25	5-50	8-12	7-4
4-26	5-51	8-14	7-3
4-30	5-65	8-15	7-6
4-41	5-2	8-19	7-10
4-42	5-2	8-20	7-11
4-43	5-2	8-21	7-5
4-45	5-1	8-22	7-65
4-46	5-1	8-23	7-66
4-47	5-1	8-24	7-67
5-1	13-61	8-25	7-68
5-2	13-63	8-26	7-69
5-3	13-64	8-27	7-7
5-4	13-65	8-28	7-8
—	13-66	8-29	7-70
—	13-67	8-30	7-71
5-5	13-68	8-31	7-72
—	13-72	8-34	7-73
5-6	13-69	8-35	7-74
5-7	13-70	8A-1	2-222
5-8	13-71	—	2-223
5-11	13-73	—	2-224
5-13	13-74	—	2-225
5-14	13-75	—	2-226
5-15	13-76	—	2-227
5-16	13-77	—	2-228
—	13-78	—	2-229
5-17	13-79	—	2-230
5-18	13-80	—	2-231
5-19	13-62	—	2-232
7-1	6-1	—	2-233
7-2	6-2	—	2-234
7-3	6-3	—	2-235
7-4	6-4	8A-2	2-260
7-5	6-5	—	2-261
7-7	6-6	—	2-262
7-8	6-7	—	2-263
7-9	6-8	—	2-264
7-15	6-9	—	2-265
8-1	7-35	—	2-266
8-2	7-36	—	2-267
8-3	7-37	—	2-268
8-4	7-38	8A-3	2-246
8-5	7-39	—	2-247

OPA-LOCKA CODE

1955 Code Section	Section this Code	1955 Code Section	Section this Code
—	2-248	12-18	11-40
—	2-249	—	11-41
9-15	8.5-5	—	11-42
9-16	8.5-3	—	11-43
—	8.5-4	—	11-44
9-17	8.5-6	12-19	11-51
9-19	8.5-1	12-20	11-10
9-20	8.5-7	12-21	11-21
9-21	8.5-8	12-22	11-11
9-22	8.5-2	—	11-22
10-13	10-3	12-23	11-23
10-14	10-4	12-24	11-24
10-15	10-5	12-25	11-25
10-18	10-1	12-26	11-7
10-19	10-2	—	11-8
10-20	10-16	12-27	11-6
10-21	10-17	12-28	11-14
10-25	10-18	12-40	11-63
10-27	10-19	12-41	11-64
12-1	11-1	12-42	11-65
12-2	11-5	12-43	11-66
12-4	11-12	12-44	11-2
12-5	11-13	—	11-67
—	11-20	12-45	11-68
12-6	11-26	12-46	11-69
12-7	11-15	12-47	11-70
—	11-16	12-48	11-71
—	11-17	12-49	11-72
12-8	14-2	12-50	11-73
12-8.1	14-19	12-51	11-74
—	14-20	12-52	11-75
—	14-21	12-54	11-77
—	14-22	12-55	11-78
—	14-23	12-56	11-48
12-9	14-3	—	11-49
—	14-5	—	11-50
12-10	14-4	—	11-79
12-11	14-6	13A-1	7-23
—	14-7	13A-2	7-24
12-12	14-8	14-1	13-1
12-13	11-3	14-2	13-2
—	11-18	—	13-3
—	11-19	14-2.1	13-4
—	11-37	—	13-5
—	14-2	—	13-6
12-14	11-38	14-2.2	13-7
—	11-39	14-2.3	13-8
12-15	11-45	14-2.4	13-9
12-16	11-46	14-2.5	13-10
12-17	11-52	14-3	13-11

CODE COMPARATIVE TABLE

1955 Code Section	Section this Code	1955 Code Section	Section this Code
14-6	13-32	—	3-35
—	13-33	—	3-36
—	13-34	—	3-37
—	13-35	—	3-38
—	13-36	—	3-39
14-7	13-12	—	3-40
14-7.1	13-13	—	3-41
14-7.2	13-14	16-3	3-1
14-8	13-15	—	3-3
14-9	13-16	—	3-5
14-9.1	13-17	—	3-6
14-9.2	13-18	—	3-7
14-16.1	13-47	—	3-19
14-16.2	13-48	—	3-20
14-16.3	13-49	—	3-21
14-16.5	13-50	—	3-22
14-17	13-94	—	3-23
—	13-95	—	3-24
14-18	13-92	16-9	15-75
—	13-93	16-10	15-76
14-21	13-96	16-13	15-79
—	13-98	16-21	15-27
14-22	13-97	16-22	15-28
14-23	13-99	16-34	15-4
14-24	13-99	16-40	15-78
14-25	13-99	16-43	15-73
14-26	13-100	16-44	15-74
—	13-101	16-45	15-80
14-27	13-102	16-46	15-81
14-29	13-136	16-47	15-82
14-31	13-137	16-49	14-1
14-32	13-138	16-54.1	15-5
14-33	13-149	16-55	15-77
14-34	13-150	16-59	19-5
14-35	13-151	16-61	15-94
14-36	13-153	—	15-95
—	13-154	—	15-96
—	13-155	—	15-97
14-37	13-158	—	15-98
14-38	13-159	—	15-99
14-39	13-160	—	15-100
14-40	13-161	16-62	15-1
14-41	13-162	16-64	15-83
14-42	13-163	16-67	19-6
14-43	13-164	16-69	15-3
14-47	13-19	16-74	15-6
—	13-20	16-75	15-57
14-49	13-21	—	15-58
15-10	13-76	—	15-59
16-2.1	3-2	—	15-60

OPA-LOCKA CODE

1955 Code Section	Section this Code	1955 Code Section	Section this Code
—	15-61	18-5	18-3
—	15-62	18-6	18-4
16A-21	16-20	18-7	18-5
16A-22	16-21	18-21	18-33
16A-23	16-22	18-22	18-34
—	16-23	18-23	18-35
16A-24	16-43	18-24	18-36
—	16-44	18A-1	13-175
—	16-45	—	13-176
—	16-46	18A-2	13-177
—	16-47	18A-3	13-180
—	16-48	—	13-181
—	16-49	—	13-185
—	16-50	—	13-186
—	16-51	—	13-187
—	16-52	18A-6	13-178
—	16-53	—	13-179
—	16-54	—	13-182
—	16-55	—	13-183
—	16-56	—	13-184
—	16-57	—	13-188
—	16-58	18A-12	21-105
—	16-59	18B-13	21-106
—	16-60	—	21-107
—	16-61	—	21-108
—	16-62	—	21-109
—	16-63	—	21-110
—	16-64	18B-14	21-185
—	16-65	—	21-186
16A-25	16-24	—	21-187
—	16-25	—	21-188
—	16-27	18B-15	21-189
—	16-28	18B-16	21-137
16A-26	16-28	18B-17	21-111
—	16-29	—	21-112
—	16-30	—	21-139
—	16-31	—	21-141
—	16-32	18B-18	21-113
16A-27	16-26	18B-19	21-134
17-1	2-279	—	21-135
17-2	2-280	18B-20	21-136
17-3	2-281	18B-21	21-139
17-4	2-282	—	21-142
17-5	2-283	—	21-143
17-6	2-284	18B-22	21-147
17-7	2-285	18B-23	21-138
17-8	2-286	—	21-153
17-9	2-287	18B-24	21-143
18-1	18-1	18B-25	21-144
18-2	18-2	18B-26	21-145

CODE COMPARATIVE TABLE

1955 Code Section	Section this Code	1955 Code Section	Section this Code
18B-27	21-146	19-28	19-21
18B-28	21-148	19-29	19-23
—	21-149	19-30	19-24
—	21-151	—	19-25
18B-29	21-150	19-31	19-4
18B-30	21-155	19-35	19-7
18B-31	21-154	20-14	2-378
18B-32	21-114	20-15	2-379
—	21-116	20-16	2-380
—	21-118	20-17	2-381
18B-33	21-117	21-1	20-1
18B-34	21-118	21-2	20-2
18B-35	21-166	—	20-3
18B-36	21-167	—	20-4
18B-37	21-168	—	20-5
18B-38	21-171	—	20-6
—	21-172	—	20-7
18B-39	21-169	23-2	21-16
—	21-170	23-3	21-17
18B-40	21-171	23-4	21-18
18B-41	21-173	23-7	21-14
18B-42	21-115	23-8	21-77
—	21-174	—	21-78
18B-43	21-119	—	21-79
18B-44	21-120	—	21-82
18B-45	21-121	23-9	21-54
18B-46	21-152	—	21-80
18B-47	21-140	23-10	21-23
18B-48	21-122	—	21-24
18B-49(b)	21-123(b)	—	21-25
19-6	9-1	—	21-26
—	19-7	—	21-27
—	9-13	—	21-28
19-7	9-2	—	21-29
19-8	9-3	—	21-30
—	9-4	—	21-31
—	9-5	23-11	21-32
19-9	9-5	—	21-33
19-10	9-6	23-12	21-34
19-11	9-7	23-13	21-35
19-12	9-10	—	21-36
19-13	9-9	—	21-81
19-14	9-8	23-14	21-38
19-16	9-11	23-15	21-19
19-17	9-12	—	21-37
19-18	19-2	—	21-50
19-19	19-2	—	21-51
19-26	19-18	—	21-52
19-27	19-19	—	21-53
—	19-22	—	21-55

OPA-LOCKA CODE

1955 Code Section	Section this Code
—	21-56
—	21-57
—	21-58
—	21-59
—	21-60
—	21-61
—	21-62
—	21-63
—	21-64
—	21-65
—	21-66
23-16	21-88
—	21-89
—	21-91
—	21-92
—	21-93
—	21-94
23-17	21-20
—	21-21
—	21-22
—	21-83
—	21-84
—	21-85
—	21-86
—	21-887
—	21-90
23-18	21-39
23-19	21-83
25-14.1	17-16
—	17-17
—	17-18
—	17-19
—	17-20
—	17-21
25-17.4	17-1
25-18	17-32
25-18.1	17-32
25-18.2	17-32
25-18.3	17-32
25-18.4	17-32

CODE COMPARATIVE TABLE

1983 CODE TO 2022 CODE

This table gives the location within the Code of those sections of the 1983 Code, as supplemented through June 18, 2020, which are included herein.

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
1-1	1-1	2-46	2-45
1-2	1-2	2-46	2-46
1-3	1-3	2-47	2-47
1-4	1-4	2-48	2-48
1-5	1-5	2-49	2-49
1-6	1-6	2-50	2-50
1-7	1-7	2-51	2-51
1-8	1-8	2-52	2-52
2-1	2-1	2-53	2-53
2-2	2-2	2-54	2-54
2-3	2-3	2-55	2-55
2-3.1	2-3.1	2-56	2-56
2-4	2-4	2-57	2-57
2-5	2-5	2-58	2-58
2-6	2-6	2-59	2-59
2-7	2-7	2-60	2-60
2-8	2-8	2-61	2-61
2-8.1	2-8.1	2-62	2-62
2-8.2	2-8.2	2-63	2-63
2-8.3	2-8.3	2-64	2-64
2-8.4	2-8.4	2-65	2-65
2-8.5	2-8.5	2-66	2-66
2-9	2-9	2-67	2-67
2-10	2-10	2-82	2-82
2-11	2-11	2-83	2-83
2-12	2-12	2-84	2-84
2-13	2-13	2-85	2-85
2-14	2-14	2-86	2-86
2-15	2-15	2-87	2-87
2-16	2-16	2-88	2-88
2-17	2-17	2-89	2-89
2-18	2-18	2-90	2-90
2-26	2-26	2-91	2-91
2-27	2-27	2-92	2-92
2-28	2-28	2-93	2-93
2-29	2-29	2-94	2-94
2-30	2-30	2-95	2-95
2-31	2-31	2-96	2-96
2-32	2-32	2-97	2-97
2-41	2-41	2-98	2-98
2-42	2-42	2-109	2-109
2-43	2-43	2-110	2-110
2-44	2-44	2-111	2-111

OPA-LOCKA CODE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
2-112	2-112	2-297.9	2-297.9
2-113	2-113	2-298	2-298
2-114	2-114	2-314	2-314
2-115	2-115	2-315	2-315
2-116	2-116	2-316	2-316
2-117	2-117	2-320.2	2-320
2-118	2-118	2-321	2-321
2-119	2-119	2-324	2-323
2-120	2-120	2-325	2-324
2-131	2-131	2-335	2-335
2-132	2-132	2-336	2-336
2-133	2-133	2-337	2-337
2-134	2-134	2-338	2-338
2-135	2-135	2-346	2-346
2-136	2-136	2-347	2-347
2-137	2-137	2-348	2-348
2-138	2-138	2-349	2-349
2-139	2-139	2-350	2-350
2-140	2-140	2-351	2-351
2-141	2-141	2-378	2-378
2-142	2-142	2-379	2-379
2-143	2-143	2-380	2-380
2-144	2-144	2-381	2-381
2-145	2-145	2-392	2-392
2-191	2-191	2-393	2-393
2-192	2-192	2-394	2-394
2-246	2-246	2-401	2-401
2-247	2-247	2-402	2-402
2-248	2-248	2-406	2-406
2-249	2-249	2-407	2-407
2-250	2-250	2-408	2-408
2-279	2-279	2-421	2-421
2-280	2-280	2-422	2-422
2-281	2-281	2-423	2-423
2-282	2-282	2-428	2-428
2-283	2-283	2-434	2-434
2-284	2-284	2-435	2-435
2-285	2-285	2-436	2-436
2-286	2-286	2-437	2-437
2-288	2-288	2-438	2-438
2-289	2-289	2-439	2-439
2-290	2-290	2-440	2-440
2-291	2-291	2-441	2-441
2-293	2-293	2-442	2-442
2-294	2-294	2-443	2-443
2-296	2-296	2-444	2-444
2-297.5	2-297.5	2-445	2-445
2-297.6	2-297.6	2-446	2-446
2-297.7	2-297.7	2-447	2-447
2-297.8	2-297.8	2-448	2-448

CODE COMPARATIVE TABLE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
2-449	2-449	2-570.50	2-570.50
2-450	2-450	2-570.51	2-570.51
2-461	2-461	2-570.52	2-570.52
2-462	2-462	2-570.66	2-570.66
2-463	2-463	2-570.67	2-570.67
2-464	2-464	2-570.68	2-570.68
2-465	2-465	2-570.69	2-570.69
2-466	2-466	2-570.70	2-570.70
2-467	2-467	2-570.71	2-570.71
2-468	2-468	2-570.72	2-570.72
2-479	2-479	2-570.73	2-570.73
2-480	2-480	2-570.74	2-570.74
2-497	2-497	2-570.75	2-570.75
2-498	2-498	2-570.81	2-570.81
2-511	2-511	2-570.82	2-570.82
2-512	2-512	2-591	2-591
2-526	2-526	2-592	2-592
2-527	2-527	2-601	2-601
2-528	2-528	2-602	2-602
2-529	2-529	2-603	2-603
2-530	2-530	2-604	2-604
2-531	2-531	2-605	2-605
2-532	2-532	2-606	2-606
2-533	2-533	2-650	2-650
2-534	2-534	2-651	2-651
2-535	2-535	2-652	2-652
2-536	2-536	2-653	2-653
2-537	2-537	2-654	2-654
2-538	2-538	2-655	2-655
2-539	2-539	2-656	2-656
2-540	2-540	2-657	2-657
2-541	2-541	2-658	2-658
2-542	2-542	3-1	3-1
2-550	2-550	3-2	3-2
2-551	2-551	3-3	3-3
2-570.25	2-570.25	3-4	3-4
2-570.26	2-570.26	3-5	3-5
2-570.27	2-570.27	3-6	3-6
2-570.28	2-570.28	3-7	3-7
2-570.29	2-570.29	3-36	3-36
2-570.30	2-570.30	3-37	3-37
2-570.31	2-570.31	3-38	3-38
2-570.32	2-570.32	3-39	3-39
2-570.33	2-570.33	3-40	3-40
2-570.44	2-570.44	3-41	3-41
2-570.45	2-570.45	4-1	4-1
2-570.46	2-570.46	4-2	4-2
2-570.47	2-570.47	4-3	4-3
2-570.48	2-570.48	4-4	4-4
2-570.49	2-570.49	4-5	4-5

OPA-LOCKA CODE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
4-6	4-6	7-33	7-33
4-7	4-7	7-35	7-35
4-8	4-8	7-36	7-36
4-9	4-9	7-37	7-37
4-10	4-10	7-38	7-38
4-11	4-11	7-39	7-39
4-12	4-12	7-40	7-40
4-13	4-13	7-50	7-50
4-14	4-14	7-51	7-51
4-15	4-15	7-52	7-52
4-16	4-16	7-53	7-53
4-17	4-17	7-54	7-54
4-18	4-18	7-65	7-65
5-2	5-2	7-66	7-66
5-3	5-3	7-67	7-67
5-4	5-4	7-68	7-68
5-16	5-16	7-69	7-69
5-17	5-17	7-70	7-70
5-18	5-18	7-71	7-71
5-19	5-19	7-72	7-72
5-35	5-35	7-73	7-73
5-36	5-36	7-73.1	7-73.1
5-37	5-37	7-73.2	7-73.2
5-38	5-38	7-73.3	7-73.3
5-39	5-39	7-74	7-74
5-51	5-51	7-75	7-75
5-52	5-52	7-76	7-76
5-65	5-65	7-77	7-77
5-66	5-66	7-78	7-78
7-1	7-1	7-79	7-79
7-2	7-2	7-80	7-80
7-3	7-3	7-81	7-81
7-4	7-4	7-82	7-82
7-5	7-5	7-83	7-83
7-7	7-7	7-84	7-84
7-8	7-8	7-85	7-85
7-9	7-9	7-86	7-86
7-10	7-10	7-87	7-87
7-11	7-11	7-88	7-88
7-12	7-12	7-89	7-89
7-23	7-23	7-90	7-90
7-24	7-24	7-91	7-91
7-25	7-25	7-93	7-93
7-26	7-26	7-94	7-94
7-27	7-27	7-95	7-95
7-28	7-28	7-96	7-96
7-29	7-29	7-97	7-97
7-30	7-30	7-98	7-98
7-31	7-31	7-99	7-99
7-32	7-32	7-100	7-100

CODE COMPARATIVE TABLE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
7-101	7-101	10-1	10-1
7-102	7-102	10-2	10-2
7-103	7-103	10-3	10-3
7-104	7-104	10-4	10-4
7-105	7-105	10-5	10-5
7-106	7-106	10-16	10-16
7-107	7-107	10-17	10-17
7-108	7-108	10-18	10-18
7-109	7-109	10-19	10-19
7-110	7-110	11-1	11-1
8-1	8-1	11-2	11-2
8-5	8-5	11-3	11-3
8-15	8-15	11-4	11-4
8-16	8-16	11-5	11-5
8-17	8-17	11-6	11-6
8-18	8-18	11-7	11-7
8-19	8-19	11-8	11-8
8-20	8-20	11-9	11-9
8.2-21	8.2-21	11-10	11-10
8.2-22	8.2-22	11-11	11-11
8.2-23	8.2-23	11-12	11-12
8.2-24	8.2-24	11-13	11-13
8.2-25	8.2-25	11-14	11-14
8.2-26	8.2-26	11-15	11-15
8.2-27	8.2-27	11-16	11-16
8.2-28	8.2-28	11-17	11-17
8.2-29	8.2-29	11-18	11-18
8.2-30	8.2-30	11-19	11-19
8.2-31	8.2-31	11-20	11-20
8.2-32	8.2-32	11-21	11-21
8.2-33	8.2-33	11-22	11-22
8.5-1	8.5-1	11-23	11-23
8.5-3	8.5-3	11-24	11-24
8.5-4	8.5-4	11-25	11-25
8.5-5	8.5-5	11-26	11-26
8.5-6	8.5-6	11-27	11-27
8.5-9	8.5-9	11-28	11-28
9-1	9-1	11-37	11-37
9-2	9-2	11-38	11-38
9-3	9-3	11-39	11-39
9-4	9-4	11-40	11-40
9-5	9-5	11-41	11-41
9-6	9-6	11-42	11-42
9-7	9-7	11-49	11-49
9-8	9-8	11-53	11-53
9-9	9-9	11-63	11-63
9-10	9-10	11-64	11-64
9-11	9-11	11-65	11-65
9-12	9-12	11-65.1	11-65.1
9-13	9-13	11-66	11-66

OPA-LOCKA CODE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
11-67	11-67	13-21	13-21
11-68	11-68	13-32	13-32
11-69	11-69	13-33	13-33
11-70	11-70	13-34	13-34
11-71	11-71	13-35	13-35
11-72	11-72	13-36	13-36
11-73	11-73	13-47	13-47
11-74	11-74	13-48	13-48
11-75	11-75	13-49	13-49
11-76	11-76	13-50	13-50
11-77	11-77	13-92	13-92
11-78	11-78	13-93	13-93
11-79.1	11-79.1	13-94	13-94
11-79.2	11-79.2	13-95	13-95
11-79.3	11-79.3	13-96	13-96
11-79.4	11-79.4	13-97	13-97
11-79.5	11-79.5	13-98	13-98
11-79.6	11-79.6	13-99	13-99
11-79.9	11-79.9	13-100	13-100
11-79.10	11-79.10	13-101	13-101
11-79.11	11-79.11	13-102	13-102
11-79.12	11-79.12	13-103	13-103
11-79.13	11-79.13	13-104	13-104
11-79.14	11-79.14	13-105	13-105
11-79.15	11-79.15	13-106	13-106
11-80	11-80	13-107	13-107
11-81	11-81	13-108	13-108
11-82	11-82	13-136	13-136
11-83	11-83	13-137	13-137
11-90	11-90	13-138	13-138
11-91	11-91	13-149	13-149
11-92	11-92	13-150	13-150
11-93	11-93	13-151	13-151
13-1	13-1	13-152	13-152
13-2	13-2	13-153	13-153
13-3	13-3	13-155	13-155
13-4	13-4	13-156	13-156
13-5	13-5	13-157	13-157
13-6	13-6	13-158	13-158
13-7	13-7	13-159	13-159
13-8	13-8	13-160	13-160
13-9	13-9	13-161	13-161
13-10	13-10	13-162	13-162
13-12	13-12	13-163	13-163
13-13	13-13	13-164	13-164
13-14	13-14	13-165	13-165
13-15	13-15	13-166	13-166
13-16	13-16	13-167	13-167
13-17	13-17	13-168	13-168
13-18	13-18	13-169	13-169

CODE COMPARATIVE TABLE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
13-170	13-170	14-31	14-31
13-171	13-171	14-32	14-32
13-211	13-211	14-33	14-33
13-212	13-212	14-34	14-34
13-213	13-213	14-35	14-35
13-214	13-214	14-36	14-36
13-215	13-215	14-37	14-37
13-216	13-216	14-38	14-38
13-217	13-217	14-39	14-39
13-218	13-218	14-40	14-40
13-219	13-219	15-1	15-1
13-220	13-220	15-2	15-2
13-221	13-221	15-3	15-3
13-222	13-222	15-4	15-4
13-231	13-231	15-5	15-5
13-232	13-232	15-6	15-6
13-233	13-233	15-8	15-8
13-234	13-234	15-9	15-9
13-235	13-235	15-41	15-41
13-236	13-236	15-42	15-42
13-237	13-237	15-43	15-43
13-238	13-238	15-44	15-44
13-239	13-239	15-45	15-45
13-240	13-240	15-46	15-46
13-241	13-241	15-47	15-47
13-271	13-271	15-48	15-48
13-272	13-272	15-49	15-49
13-274	13-274	15-50	15-50
13-275	13-275	15-73	15-73
13-276	13-276	15-74	15-74
13-277	13-277	15-75	15-75
13-278	13-278	15-76	15-76
13-279	13-279	15-77	15-77
13-280	13-280	15-78	15-78
13-281	13-281	15-79	15-79
13-282	13-282	15-80	15-80
13-283	13-283	15-81	15-81
13-284	13-284	15-82	15-82
13-285	13-285	15-83	15-83
13-286	13-286	15-94	15-94
13-311	13-311	15-95	15-95
13-312	13-312	15-96	15-96
13-313	13-313	15-97	15-97
13-314	13-314	15-98	15-98
13-315	13-315	15-99	15-99
14-19	14-19	15-100	15-100
14-20	14-20	15-111	15-111
14-21	14-21	15-112	15-112
14-22	14-22	15-113	15-113
14-23	14-23	15-114	15-114

OPA-LOCKA CODE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
15-115	15-115	17-16	17-16
15-116	15-116	17-17	17-17
15-116.1	15-116.1	17-18	17-18
15-117	15-117	17-19	17-19
15-131	15-131	17-20	17-20
15-132	15-132	17-21	17-21
15-133	15-133	17-32	17-32
15-135	15-135	17-41	17-41
15-136	15-136	17-42	17-42
15-137	15-137	17-43	17-43
15-141	15-141	17-44	17-44
15-142	15-142	17-45	17-45
15-143	15-143	17-46	17-46
16-1	16-1	17-47	17-47
16-2	16-2	17-48	17-48
16-20	16-20	17-49	17-49
16-21	16-21	17-50	17-50
16-23	16-23	17-51	17-51
16-24	16-24	17-52	17-52
16-25	16-25	18-1	18-1
16-26	16-26	18-2	18-2
16-27	16-27	18-3	18-3
16-28	16-28	18-4	18-4
16-29	16-29	18-5	18-5
16-30	16-30	18-6	18-6
16-31	16-31	18-7	18-7
16-32	16-32	18-33	18-33
16-43	16-43	18-34	18-34
16-44	16-44	18-35	18-35
16-45	16-45	18-36	18-36
16-46	16-46	18-37	18-37
16-47	16-47	18-38	18-38
16-48	16-48	18-39	18-39
16-49	16-49	18-40	18-40
16-50	16-50	18-41	18-41
16-51	16-51	18-42	18-42
16-52	16-52	18-46	18-46
16-54	16-54	18-47	18-47
16-55	16-55	18-48	18-48
16-57	16-57	18-49	18-49
16-58	16-58	18-50	18-50
16-59	16-59	19-1	19-1
16-60	16-60	19-2	19-2
16-61	16-61	19-3	19-3
16-62	16-62	19-4	19-4
16-63	16-63	19-5	19-5
16-64	16-64	19-6	19-6
16-65	16-65	19-7	19-7
16-66	16-66	19-8	19-8
17-1	17-1	19-18	19-18

CODE COMPARATIVE TABLE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
19-19	19-19	21-22	21-22
19-20	19-20	21-23	21-23
19-21	19-21	21-24	21-24
19-22	19-22	21-25	21-25
19-23	19-23	21-26	21-26
19-24	19-24	21-27	21-27
19-25	19-25	21-28	21-28
19-26	19-26	21-29	21-29
19-27	19-27	21-30	21-30
19-28	19-28	21-31	21-31
19-29	19-29	21-32	21-32
19-35	19-35	21-33	21-33
19-36	19-36	21-34	21-34
19-37	19-37	21-35	21-35
19-38	19-38	21-36	21-36
19.5-1	19.5-1	21-37	21-37
19.5-21	19.5-21	21-38	21-38
19.5-22	19.5-22	21-39	21-39
19.5-23	19.5-23	21-50	21-50
19.5-24	19.5-24	21-51	21-51
19.5-24.1	19.5-24.1	21-52	21-52
19.5-25	19.5-25	21-53	21-53
19.5-26	19.5-26	21-54	21-54
19.5-27	19.5-27	21-55	21-55
19.5-28	19.5-28	21-56	21-56
19.5-29	19.5-29	21-57	21-57
19.5-34	19.5-34	21-58	21-58
19.6-1	19.6-1	21-59	21-59
19.6-2	19.6-2	21-60	21-60
19.6-3	19.6-3	21-61	21-61
20-1	20-1	21-62	21-62
20-2	20-2	21-63	21-63
20-3	20-3	21-64	21-64
20-4	20-4	21-65	21-65
20-5	20-5	21-66	21-66
20-6	20-6	21-77	21-77
20-7	20-7	21-78	21-78
20-8	20-8	21-79	21-79
21-1	21-1	21-80	21-80
21-2	21-2	21-81	21-81
21-3	21-3	21-82	21-82
21-4	21-4	21-83	21-83
21-14	21-14	21-84	21-84
21-15	21-15	21-85	21-85
21-16	21-16	21-86	21-86
21-17	21-17	21-87	21-87
21-18	21-18	21-88	21-88
21-19	21-19	21-89	21-89
21-20	21-20	21-90	21-90
21-21	21-21	21-91	21-91

OPA-LOCKA CODE

1983 Code Section	Section 2022 Code	1983 Code Section	Section 2022 Code
21-92	21-92	21-149	21-149
21-93	21-93	21-150	21-150
21-94	21-94	21-151	21-151
21-95	21-95	21-152	21-152
21-95.1	21-95.1	21-153	21-153
21-95.2	21-95.2	21-154	21-154
21-95.3	21-95.3	21-155	21-155
21-95.4	21-95.4	21-166	21-166
21-95.5	21-95.5	21-167	21-167
21-95.6	21-95.6	21-168	21-168
21-95.7	21-95.7	21-169	21-169
21-95.8	21-95.8	21-170	21-170
21-95.9	21-95.9	21-171	21-171
21-96	21-96	21-172	21-172
21-97	21-97	21-173	21-173
21-105	21-105	21-174	21-174
21-106	21-106	21-185	21-185
21-107	21-107	21-186	21-186
21-108	21-108	21-187	21-187
21-109	21-109	21-188	21-188
21-110	21-110	21-189	21-189
21-111	21-111	21-190	21-190
21-112	21-112	21-191	21-191
21-113	21-113	21-192	21-192
21-114	21-114	21-193	21-193
21-115	21-115	21-194	21-194
21-116	21-116	21-195	21-195
21-117	21-117	21-196	21-196
21-118	21-118	21-197	21-197
21-119	21-119	21-198	21-198
21-120	21-120	21-199	21-199
21-121	21-121	21-200	21-200
21-122	21-122	21-201	21-201
21-123	21-123	21-202	21-202
21-124	21-124	23-1	23-1
21-134	21-134	23-2	23-2
21-135	21-135	23-3	23-3
21-136	21-136	23-4	23-4
21-137	21-137	23-5	23-5
21-138	21-138	23-6	23-6
21-139	21-139	23-7	23-7
21-140	21-140	23-8	23-8
21-141	21-141	23-9	23-9
21-142	21-142	23-10	23-10
21-143	21-143	23-11	23-11
21-144	21-144	23-12	23-12
21-145	21-145		
21-146	21-146		
21-147	21-147		
21-148	21-148		

CODE COMPARATIVE TABLE

LEGISLATION

This table gives the location of ordinances and other legislation within the Code.

Legislation	Date	Section	Code Section
Ord. No. 79-5	1-24-1979	4	18-6
Ord. No. 79-27	10-17-1979	1	21-167
		2	21-168
Ord. No. 80-2	1-30-1980	1	21-77
		—	21-167
Ord. No. 80-15	9-10-1980	1	2-5
		2	2-6
		3	2-7
Ord. No. 80-16	9-10-1980	1	1-2
		2	1-7, 1-8
Ord. No. 80-17	9-10-1980	3	8-5
Ord. No. 81-3	1-14-1981	1	2-41—2-66
Ord. No. 81-12	5-13-1981	1	2-26
Ord. No. 82-12	9-22-1982	1	21-80
Ord. No. 82-13	11-22-1982	1	21-54
Ord. No. 82-20	12-8-1982	1	2-26
Ord. No. 83-1	1-12-1983	1	2-401
		2	2-402
Ord. No. 83-2	1-12-1983	1	2-421
		2	2-422
Ord. No. 83-6	4-27-1983	1	2-346
		2	2-347
		3	2-348
		4	2-349
		5	2-350
		10	2-323
		11	2-351
Ord. No. 83-7	5-11-1983	1	21-1—21-3
		2	21-1
Ord. No. 83-12	12-14-1983	1	21-77
		2	21-167
Ord. No. 84-8	5-24-1984	1	2-29
Ord. No. 84-14	6-10-1984	1(1)	13-211
		1(2)	13-212
		1(3)	13-213
		1(4)	13-214
		1(5)	13-215
		1(6)	13-216
		1(7)	13-217
		1(8)	13-218
		1(9)	13-219
		1(10)	13-220
		1(11)	13-221
		1(12)	13-222

OPA-LOCKA CODE

Legislation	Date	Section	Code Section
Ord. No. 84-12	6-27-1984	1	21-77
		2	21-167
Ord. No. 84-15	8-8-1984	1	2-28
Ord. No. 84-17	9-12-1984	1	19.5-21, 19.5-22
		2	19.5-23
		3	19.5-24
		—	19.5-25—19.5-27
Ord. No. 84-22	11-14-1984	1	19.5-24
Ord. No. 85-1	1-9-1985	1	21-77
		2	21-167
Ord. No. 85-4	2-13-1985	1	13-213
Ord. No. 85-7	3-13-1985	1	21-95
		2	21-95.1
		3	21-95.2
		4	21-95.3
		5	21-95.4
		6	21-95.4
		7	21-95.5
		8	21-95.6
		9	21-95.7
		10	21-95.8
		11	21-95.9
Ord. No. 85-8	3-13-1985	1	13-216
Ord. No. 85-14	6-12-1985	1	2-66
Ord. No. 85-15	7-10-1985	1	21-77
		2	21-167
Ord. No. 85-17	7-10-1985	1	21-78
Ord. No. 85-24	10-9-1985	1	21-77
		2	21-167
Ord. No. 85-25	12-4-1985	1	16-62
Ord. No. 86-3	3-26-1986	1	13-9
Ord. No. 86-15	11-12-1986	1	21-80
		2	21-83
Ord. No. 86-16	1-14-1987	1	13-213
Ord. No. 86-17	1-14-1987	1	4-3
Ord. No. 87-8	9-23-1987	1	21-77
		2	21-167
Ord. No. 88-3	4-6-1988	1	2-591
		2	2-592
Ord. No. 88-6	7-13-1988	1	21-124
		2	21-124
		3	21-124
		4	21-124
Ord. No. 88-7	7-13-1988	1	21-166
		2	21-166
		3	21-167
		4	21-167
		5	21-167
		6	21-167
Ord. No. 88-11	9-28-1988	1	2-601

CODE COMPARATIVE TABLE

Legislation	Date	Section	Code Section
		2	2-602
		3	2-603
		4	2-604
		5	2-605
		6	2-606
Ord. No. 89-7	6-28-1989	1	18-2
Ord. No. 90-2	1-10-1990	1	18-2—18-5
Ord. No. 90-3	3-14-1990	1	19.5-24.1
Ord. No. 90-6	3-28-1990	2	4-16—4-18
Ord. No. 90-7	7-25-1990	1	2-314—2-316
		—	2-321
		2	2-314—2-316
		—	2-321
Ord. No. 90-11	9-26-1990	1	21-77
		—	21-167
Ord. No. 90-21	11-14-1990	1	2-8.1
		2	2-8.2
		3	2-8.3
Ord. No. 91-1	1-9-1991	1	2-288
Ord. No. 91-7	6-26-1991	1	13-1
Ord. No. 91-8	6-26-1991	1	19-26—19-29
Ord. No. 91-18	9-26-1991	1	21-77
		—	21-167
Ord. No. 92-4	4-8-1992	1	19-29
Ord. No. 92-10	9-9-1992	1	21-167
Ord. No. 92-14	9-23-1992	1	21-77
		—	21-167
Ord. No. 93-3	2-24-1993	1	2-289
		2	2-290
		3	2-291
		5	2-293
		6	2-294
Ord. No. 93-5	3-10-1993	1	2-434—2-450
		—	2-461—2-468
Ord. No. 93-6	6-9-1993	2	21-3
Ord. No. 95-6	6-14-1995	2	2-246
		3	2-247
		4	2-248
		5	2-249
		6	2-250
Ord. No. 96-02	2-14-1996	1	2-296
		2	2-296
		3	2-296
		4	2-296
		5	2-296
Ord. No. 96-04	2-28-1996	1	15-75
Ord. No. 96-08	3-13-1996	1	2-316
Ord. No. 96-10	4-24-1996	1	2-438
Ord. No. 96-12	6-26-1996	1	15-8
		2	15-8

OPA-LOCKA CODE

Legislation	Date	Section	Code Section
Ord. No. 96-14	9-25-1996	3	15-8
		4	15-8
		1	2-97
		2	2-97
Ord. No. 96-21	11-13-1996	3	2-97
		4	19-35—19-38
Ord. No. 97-1	1-22-1997	1	2-570.25—2-570.33
Ord. No. 97-4	6-25-1997	—	2-570.44—2-570.52
		1(I)(A)	7-90
		1(I)(B)	7-91
		1(I)(C)	7-93
		1(I)(D)	7-94
		1(I)(E)	7-95
		1(I)(F)	7-96
		1(I)(G)	7-97
		1(I)(H)	7-98
		1(I)(I)	7-99
		1(I)(J)	7-100
		1(I)(K)	7-101
		1(I)(L)	7-102
		1(I)(M)	7-103
		1(I)(N)	7-104
		1(I)(O)	7-105
		1(I)(P)	7-106
		1(I)(Q)	7-107
		1(I)(R)	7-108
		1(I)(S)	7-109
		1(I)(T)	7-110
Ord. No. 98-5	7-22-1998	1	2-434—2-436
		—	2-438, 2-439
		—	2-444
Ord. No. 98-6	7-22-1998	1	2-248, 2-249
Ord. No. 98-7	7-22-1998	1	21-95.3—21-95.7
		—	21-95.9
Ord. No. 98-7	7-22-1998	1	21-95.8
Ord. No. 98-8	7-22-1998	1	17-1
Ord. No. 98-12	12-9-1998	1	2-45
Ord. No. 98-13	12-9-1998	1	2-56
Ord. No. 00-1	9-13-2000	1	13-211—13-213
		—	13-216
Ord. No. 01-1	2-14-2001	1	21-77
Ord. No. 01-2	2-14-2001	1	2-570.66
		2	2-570.67
		3	2-570.68
		4	2-570.69
		5	2-570.70
		6	2-570.71
		7	2-570.72
		8	2-570.73
		9	2-570.74

CODE COMPARATIVE TABLE

Legislation	Date	Section	Code Section
		10	2-570.75
Ord. No. 01-4	3-28-2001	2	2-27
Ord. No. 01-5	3-28-2001	1	13-231
		2	13-232
		3	13-233
		4	13-234
		5	13-235
		6	13-236
		7	13-237
		8	13-238
		9	13-239
		10	13-240
		11	13-241
Ord. No. 01-6	4-25-2001	1	2-435
Ord. No. 01-8	6-27-2001	1	19.5-28
		2	19.5-29
		7	19.5-34
Ord. No. 02-5	3-13-2002	1	21-77
Ord. No. 02-6	4-10-2002	2	2-8.4
		3	2-8.4
		4	2-8.4
		5	2-8.4
		6	2-8.4
		7	2-8.4
Ord. No. 02-16	12-11-2002	1	2-57
Ord. No. 03-05	2-26-2003	2	2-650—2-652
Ord. No. 03-10	3-26-2003	2	4-3
Ord. No. 03-11	4-30-2003	2	2-423
Ord. No. 03-25	10-8-2003	2	13-217
		3	13-217
Ord. No. 03-26	10-8-2003	2	2-570.30
Ord. No. 03-27	10-22-2003	1	5-52
		—	5-66
Ord. No. 04-12	10-27-2004	1	8.5-9
Ord. No. 05-01	1-26-2005	1	2-45
Ord. No. 05-08	6-8-2005	1	15-117
Ord. No. 05-09	6-8-2005	2	2-435
Ord. No. 05-12	7-13-2005	2	2-45
Ord. No. 05-13	7-27-2005	2(15-117)	15-131
		2(15-118)	15-132
		2(15-119)	15-133
Ord. No. 05-19	11-16-2005	2	2-31
Ord. No. 06-07	9-13-2006	1	4-3
Ord. No. 06-13	10-25-2006	1	4-3
Ord. No. 06-14	10-25-2006	2	13-271
		3	13-272
		4	13-274
		5	13-275
		6	13-276
		7	13-277

OPA-LOCKA CODE

Legislation	Date	Section	Code Section
		8	13-278
		9	13-279
		10	13-280
		11	13-281
		12	13-282
		13	13-283
		14	13-284
		15	13-285
		16	13-286
Ord. No. 07-10	5-9-2007	2	19.5-1
		3	19.5-1
		4	19.5-1
		5	19.5-1
		6	19.5-1
		7	19.5-1
		8	19.5-1
Ord. No. 07-11	5-23-2007	2	21-96
Ord. No. 07-14	9-12-2007	1	13-277
Ord. No. 07-18	10-24-2007	2	18-7
Ord. No. 07-20	11-14-2007	1	2-45
Ord. No. 07-21	11-28-2007	1	2-428
Ord. No. 08-01	1-9-2008	2	2-8.5
Ord. No. 08-02	1-23-2008	2	21-4
Ord. No. 08-03	4-9-2008	2	21-77
		3	21-77
Ord. No. 08-05	4-23-2008	2	15-9
Ord. No. 08-07	6-25-2008	3	2-570.33
Ord. No. 08-08	7-9-2008	1	2-552
		2	2-553
		3	2-554
		4	2-555
		5	2-556
		6	2-556.1
Ord. No. 08-09	9-10-2008	2	18-46—18-50
Ord. No. 08-20	11-12-2008	1	19-27—19-29
Ord. No. 08-21	11-12-2008	2	2-61
Ord. No. 08-22	11-12-2008	2	2-58
Ord. No. 09-01	1-14-2009	2	2-9—2-18
Ord. No. 09-06	4-8-2009	2	20-8
Ord. No. 09-09	5-13-2009	2	2-44
Ord. No. 09-13	6-10-2009	2	7-65
Ord. No. 09-15	9-9-2009	2	2-8.4
Ord. No. 09-16	9-9-2009	2	21-77
Ord. No. 09-17	9-21-2009	2	21-77
Ord. No. 09-20	10-28-2009	2	21-77
Ord. No. 09-21	11-12-2009	2	7-12
Ord. No. 10-03	2-24-2010	3	7-40
Ord. No. 10-04	3-10-2010	2	2-45
Ord. No. 10-06	3-10-2010	2	2-297.5—2-297.9
Ord. No. 10-11	4-14-2010	2	2-316

CODE COMPARATIVE TABLE

Legislation	Date	Section	Code Section
Ord. No. 10-20	7-28-2010	2	21-77
Ord. No. 11-03	3-23-2011	2	13-277
Ord. No. 11-07	5-11-2011	2	2-45
Ord. No. 12-01	1-11-2012	2	21-80
Ord. No. 12-03	2-22-2012	2	16-66
Ord. No. 12-04	2-22-2012	2	4-15
Ord. No. 12-05	3-14-2012	2	14-31—14-40
Ord. No. 12-14	7-25-2012	2	15-141—15-143
Ord. No. 12-25	10-24-2012	2	2-45
Ord. No. 12-26	10-24-2012	2	2-45
Ord. No. 13-02	2-13-2013	2	19.5-2
Ord. No. 13-04	3-13-2013	2	2-192
Ord. No. 13-07	4-10-2013	2	15-111—15-116
		—	15-116.1
Ord. No. 13-08	4-10-2013	2	2-653—2-658
Ord. No. 13-22	7-10-2013	3	15-135, 15-136
Ord. No. 13-27	9-25-2013	2	2-479, 2-480
Ord. No. 13-30	9-25-2013	2	2-511
Ord. No. 13-31	10-23-2013	2	2-526—2-528
Ord. No. 13-32	10-23-2013	2	2-549.1
		—	2-550, 2-551
Ord. No. 13-38	12-11-2013	2	8.2-21—8.2-33
Ord. No. 14-02	5-14-2014	2	17-41—17-48
Ord. No. 14-03	5-14-2014	2	2-512
Ord. No. 14-05	6-11-2014	2	2-570.82
Res. No. 14-8826	7-23-2014	2	Char. § 2.1.1
Ord. No. 14-15	10-8-2014	2	13-149—13-153
		—	13-155—13-171
Ord. No. 14-17	10-9-2014	2	21-77
Ord. No. 15-01	1-14-2015	2	2-45
Ord. No. 15-02	1-14-2015	2	2-316
Ord. No. 15-05	5-13-2015	2	2-316
Ord. No. 15-10	5-13-2015	2	19.6-1—19.6-3
Ord. No. 15-12	6-24-2015	2	7-73.1—7-73.3
Ord. No. 15-13	7-8-2015	2	2-653—2-658
Ord. No. 15-14	7-8-2015	2	11-42
Ord. No. 15-15	7-8-2015	2	2-654
		—	13-93
		—	13-97—13-99
		—	13-103—13-108
Ord. No. 15-16	7-8-2015	2	11-1—11-28
		—	11-37—11-41
		—	11-49
		—	11-53
		—	11-63—11-65
		—	11-65.1
		—	11-66—11-78
		—	11-79.1—11-79.6
		—	11-79.9—11-79.15
		—	11-80—11-83

OPA-LOCKA CODE

Legislation	Date	Section	Code Section
		—	11-90—11-93
Ord. No. 15-17	7-8-2015	2	15-41—15-50
Ord. No. 15-25	9-9-2015	2	2-45
Ord. No. 15-26	9-9-2015	2	13-311—13-315
Ord. No. 15-30	9-29-2015	2	4-8
Ord. No. 15-32	11-12-2015	2	15-137
Ord. No. 15-33	12-9-2015	2	13-93
		—	13-97—13-99
		—	13-103—13-108
Ord. No. 16-01	1-13-2016	2	11-17
Ord. No. 16-02	1-13-2016	2	2-45
Ord. No. 16-03	4-13-2016	2	14-19—14-23
Ord. No. 16-08	9-14-2016	2	2-320
Ord. No. 16-09	9-14-2016	2	2-324
Ord. No. 16-13	10-12-2016	2	2-570.81, 2-570.82
Ord. No. 16-14	10-26-2016	2	23-1—23-12
Ord. No. 16-15	10-26-2016	2	4-3
Ord. No. 17-01	1-11-2017	2	2-497, 2-498
Ord. No. 17-02	2-1-2017	3	11-65
Ord. No. 17-10	8-2-2017	2	2-3.1
		3	2-3.1
Ord. No. 17-16	10-25-2017	1	2-67
Ord. No. 17-20	12-13-2017	2	15-136
Ord. No. 17-21	12-13-2017	2	2-570.28
Ord. No. 18-01	3-28-2018	3	LDR § 22-94
Ord. No. 18-02	4-25-2018	3	2-45
Ord. No. 18-05	6-13-2018	3	19-8
Ord. No. 18-06	6-13-2018	2	2-529—2-542
Ord. No. 18-07	7-11-2018	2	7-1
Ord. No. 18-13	9-26-2018	2	21-77
Ord. No. 18-15	9-26-2018	2	11-65
Ord. No. 18-16	9-26-2018	2	2-322
Ord. No. 18-17	11-14-2018	2	7-23—7-33
Ord. No. 18-18	12-12-2018	2	21-85
		—	21-97
Ord. No. 19-02	4-24-2019	2	7-75—7-83
		—	7-84—7-89
Ord. No. 19-06	6-12-2019	2	2-497, 2-498
Ord. No. 19-14	11-13-2019	2	13-274
		3	13-278
Ord. No. 19-15	11-13-2019	2	13-160
Ord. No. 19-18	12-11-2019	2	21-85
		—	21-97
Ord. No. 20-02	1-8-2020	2	17-49—17-52
Ord. No. 2020-02	1-8-2020	2	2-655
Ord. No. 20-07	4-8-2020	2(2-314)	2-314
		2(2-315)	2-315
		2(2-316)	2-316
		2(2-317)	2-317
		2(2-318)	2-318

CODE COMPARATIVE TABLE

Legislation	Date	Section	Code Section
		2(2-319)	2-319
		2(2-320)	2-320
		2(2-321)	2-321
		2(2-322)	2-322
		2(2-323)	2-322.1
		—	2-323
		2(2-324)	2-324
Ord. No. 2020-08	6-18-2020	2	23-5
		3	23-6
		4	23-7
		5	23-8
		6	23-9
		7	23-10
		8	23-11
		9	23-12
Ord. No. 2020-12	9-9-2020	2	2-45
Ord. No. 2020-20	11-19-2020	2	13-274
		3	13-278
Ord. No. 2021-01	1-13-2021	2	21-190—21-202
Ord. No. 2021-03	1-13-2021	1	18-33—18-42
Ord. No. 2021-06	4-14-2021	2	4-8
Ord. No. 2021-08	6-9-2021	2	2-260
Ord. No. 2021-14	11-10-2021	2	2-299
		3	2-300
Ord. No. 2022-02	1-12-2022	1	2-570.87
		2	2-570.88
		2(2-570.81)	2-570.81
		2(2-570.82)	2-570.82
		2(2-570.83)	2-570.83
		2(2-570.84)	2-570.84
		2(2-570.85)	2-570.85
		2(2-570.86)	2-570.86
		3	2-570.89
		4	2-570.90
		5	2-570.91
		6	2-570.92
Ord. No. 2022-09	2-23-2022	3	8.5-10
Ord. No. 2022-12	6-22-2022	4	2-570.33
Ord. No. 2022-21	12-14-2022	14-1	14-1
		14-2	14-2
		14-3	14-3
		14-4	14-4
		14-5	14-5
		14-6	14-6
		14-7	14-7
		14-8	14-8
		14-9	14-9
		14-10	14-10
		14-11	14-11
		14-12	14-12

OPA-LOCKA CODE

Legislation	Date	Section	Code Section
		14-13	14-13
		14-14	15
		14-15	16
		14-16	14-14
Ord. No. 2023-03	2-8-2023	2(2-45)	2-45
Ord. No. 2023-06	3-22-2023	2(16-1)	16-1
Ord. No. 2023-09	5-24-2023	2(2-31)	2-31
Ord. No. 2023-19	10-11-2023	2(2-27)	2-27
Ord. No. 2023-20	10-11-2023	2	2-530
Ord. No. 2024-06	3-27-2024	2(2-471)	2-471
Ord. No. 2024-07	3-27-2024	2(2-45)	2-45
Ord. No. 2024-09	4-10-2024	2(2-45)	2-45
Ord. No. 2024-10	4-10-2024	2(19-9)	19-9
Ord. No. 2024-21	11-13-2024	2	Added 2-472
Ord. No. 2024-22	11-13-2024	2	2-45
Ord. No. 2025-05	2-12-2025	2	2-132(a)
		3	2-316(3)(b)
		4	2-320(d)(1)
		5	8.5-3(b)
		6	13-102(a)
		7	19-29(b)
		8	21-110(F)
Ord. No. 2025-07	4- 9-2025	2	7-1
Ord. No. 2025-08	4- 9-2025	2	2-570.84
			2-570.86
Ord. No. 2025-09	4- 9-2025	2	Added 14-51—14-65
Ord. No. 2025-10	4- 9-2025	2	15-75(c)
			15-80
Ord. No. 2025-14	5-14-2025		Adopting ord.
Ord. No. 2025-15	5-14-2025	2	2-28
Ord. No. 2025-16	6-23-2025	2	Added 2-222
Ord. No. 2025-17	6-23-2025	2	Added 2-325
Ord. No. 2025-18	6-23-2025	2	2-8.4
Ord. No. 2025-19	6-23-2025	2	2-526
		2	2-530
		3	2-534
		4	2-535
		5	2-536
		6	2-537
		7	2-539
		8	2-540
		9	2-541
		10	Rpld 2-542
		11	Added 2-542
Ord. No. 2025-22	7-23-2025	2	2-497(i), (ii)
Ord. No. 2025-23	7-23-2025	2	2-570.81

STATE LAW REFERENCE TABLE

This table shows the location within the Charter and Code, either in the text or notes following the text, of references to the Florida Statutes (F.S.).

F.S. Section	Section this Code	F.S. Section	Section this Code
1.01(1)	1-2	112.215(6)(b)	2-288
1.01(2)	1-2	112.311 et seq.	Ch. 2, Art. I.5
1.01(3)	1-2	—	2-11
—	13-1	112.312(2)	2-15
1.01(6)	1-2	112.312(5)	2-9
2.04	1-4	112.312(6)	2-9
ch. 22	Ch. 8, Art. II	112.312(8)	2-9
22.06	Ch. 8, Art. II	112.312(12)	2-9
24.112	2-556	112.312(21)	2-9
ch. 45	7-12	112.313(1)	2-9
ch. 49	2-554	112.3148	2-13
ch. 50	14-9	112.3187	23-5
55.03	2-658	—	23-7
60.05	2-555	112.3187 et seq.	23-1, 23-2
ch. 70	2-570.25	—	23-6
—	2-570.29	112.3188	23-11
—	2-570.47	ch. 119	2-321
70.51	2-570.44	—	2-570.47
ch. 83	13-281	119.07(1)	2-293
ch. 83, pt. II	13-281	—	2-297.9
83.40 et seq.	2-445	119.0713	23-11
—	2-461	161.055	7-78
—	13-281	ch. 162	Ch. 2, Art. XI,
83.49	2-465	—	Div. 10
83.51	2-461, 2-462	—	2-570.25
—	2-466	—	15-143
83.52	2-461, 2-462	162.09	14-6
—	2-466	162.13	14-6
83.56	13-281	163.045	8.2-22, 8.2-23
chs. 97—104	8.5-1	163.211 et seq.	Ch. 17 (note)
chs. 97—109	Ch. 8.5 (note)	—	Ch. 17, Art. II
97.105	8.5-2	—	17-16
101.002	8.5-2	—	17-21
104.011	8.5-2	163.3161—163.3211	17-18
ch. 106	2-13	163.3174	2-497
106.07	8.5-10	163.34174	17-17
111.07	2-8.2, 2-8.3	163.501 et seq.	2-591
ch. 112	2-297.9	163.506	2-592
ch. 112, pt. III	2-11	—	2-601
112.061	2-27	ch. 166	Ch. 2 (note)
—	2-31	—	Ch. 3 (note)
—	2-321	—	Ch. 4 (note)
112.061(6)(b)	2-31	—	Ch. 5 (note)

OPA-LOCKA CODE

F.S. Section	Section this Code	F.S. Section	Section this Code
—	Ch. 7 (note)	212.08	19.5-22
—	Ch. 8 (note)	212.08(15)	19.5-24.1
—	Ch. 8.2 (note)	ch. 252	Ch. 8 (note)
—	Ch. 8.5 (note)	286.011	2-449
—	Ch. 9 (note)	—	17-20
—	Ch. 10 (note)	287.055	Ch. 2, Art. VI
—	Ch. 11 (note)	—	2-319
—	Ch. 13 (note)	ch. 316	13-238
—	Ch. 14 (note)	316.008	15-135
—	Ch. 15 (note)	—	19-9
—	Ch. 16 (note)	316.0083	15-135
—	Ch. 17 (note)	316.0083(5)	19-9
—	Ch. 18 (note)	316.074(1)	15-135
—	Ch. 19 (note)	316.0776	19-9
—	Ch. 19.5 (note)	316.0776(3)(c)	19-9
—	Ch. 19.6 (note)	316.183	19-9
—	Ch. 20 (note)	316.1894	19-9
—	Ch. 21 (note)	316.1895	19-9
166.031	Char. (note)	316.1895(5)	19-9
166.032	8.5-2	316.1896	19-9
166.041	17-1	316.1896(14)	19-9
166.041(3)(c)	2-132	316.1951	14-23
166.0415(7)	14-6	316.272	15-82
166.0442	2-3.1	320.01	7-83
166.231	Ch. 19.5, Art. II	320.8249	7-87
166.231(8)	19.5-24.1	337.401	19.5-29
166.232	Ch. 19.5, Art. II	337.401 et seq.	Ch. 7, Art. VII
ch. 170	2-378	366.02	7-78
—	Ch. 19, Art. II	373.036	7-78
170.11	2-378	381.0065	7-78
170.201	14-1	386.201 et seq.	2-32
ch. 173	14-14	400.9905(4)	13-314
—	21-97	403.0891(3)	21-191
177.011	Ch. 17, Art. III	—	21-196
180.191	21-4	403.0893(1)	21-191
ch. 192 et seq.	Ch. 19.5 (note)	403.413	Ch. 11 (note)
196.075	19.5-1	—	Ch. 15, Art. III
196.075(3)	19.5-1	—	15-48
197.3632	14-14	403.702 et seq.	Ch. 11 (note)
197.3632(9)	14-14	403.703	11-1
202.19(2)(a)	19.5-34	403.703(24)	11-1
202.20(1)(b)	19.5-34	403.703(28)	11-1
ch. 205	Ch. 13 (note)	403.7031	11-1
—	13-9	403.7046	11-1
205.042	13-2	—	11-79.12
205.043(1)(c)	13-3	403.706	Ch. 11 (note)
205.043(2)	13-12	403.707(9)(j)	11-1
205.043(3)	13-13	408.07	13-314
205.053	2-97	412.05	2-435
205.053(1)	13-3	413.032—413.037	2-192

STATE LAW REFERENCE TABLE

F.S. Section	Section this Code	F.S. Section	Section this Code
413.08	2-7	ch. 565	4-6
ch. 421	2-444	565.01	4-1
421.001 et seq.	Ch. 2, Art. X	565.02(4)	4-6
421.05	2-435	ch. 567	4-6
—	2-438	ch. 568	4-6
421.07	2-436	604.50	7-78
421.08	2-442	ch. 626	2-654
ch. 458	13-314	ch. 633	Ch. 10 (note)
ch. 459	13-314	ch. 650	2-279
ch. 461	13-314	650.02	2-279
ch. 464, pt. I	13-314	687.03	7-73.2
464.001 et seq.	13-314	713.78	13-240
ch. 466	13-314	715.05	13-240
ch. 468	Ch. 7 (note)	ch. 717	7-40
ch. 480	13-311	ch. 718	11-1
—	13-313—13-315	721.05	13-314
480.033	13-312	768.28	2-8.2
—	13-314	790.001	15-8
ch. 489	Ch. 7, Art. III	790.15 et seq.	15-6
—	18-36	790.22	15-6
ch. 493	2-654	ch. 791	15-80
ch. 494	2-654	794.011	15-117
ch. 497	11-1	ch. 796	2-552
ch. 499	2-552	800.04	15-117
—	7-65	806.13	15-3
509.242	13-314	—	16-46, 16-47
ch. 527	Ch. 10, Art. II	812.09	2-552
ch. 549	15-5	817.563	2-552
ch. 553	Ch. 7 (note)	817.564	2-552
553.73	7-1	823.05	2-552
553.73(5)	7-81	—	2-556
553.73(10)(k)	7-78	—	13-315
553.80	2-653	823.10	2-552
ch. 561	2-654	827.071	15-117
—	16-21	ch. 828	Ch. 5 (note)
chs. 561—568	Ch. 4 (note)	ch. 833	Ch. 14 (note)
561.01	4-1	837.05	23-6
561.01(4)	4-16	837.06	23-6
—	13-214	838.022	23-6
561.01(5)	13-214	847.0145	15-117
561.19	2-556	ch. 849	13-97
ch. 562	4-6	849.16 et seq.	13-97
562.45(2)	4-3	861.01	19-4
—	4-8	861.011	19-4
ch. 563	4-6	870.042	8-5
563.01	4-1	874.03	2-552
—	4-16	876.05	18-4
ch. 564	4-6	ch. 893	2-552
564.01	4-1	—	7-65
—	4-16	893.02	13-214

OPA-LOCKA CODE

F.S. Section	Section this Code
893.138	2-555
933.20—933.30	7-28
938.15	1-8
ch. 948	15-48

CHARTER INDEX

A	Section	C	Section
ADMINISTRATIVE		CHARTER	
Acting city manager	3.4	Administrative.....	3.1 et seq.
Bond of city manager	3.5	See: ADMINISTRATIVE	
City attorney	3.7	Charter amendments	6.1 et seq.
City boards and agencies	3.9	See: CHARTER AMENDMENTS	
City clerk	3.6	City commission.....	2.1 et seq.
City manager; appointment, removal	3.2	See: CITY COMMISSION	
City manager	3.1	Elections.....	5.1 et seq.
Competitive bid requirements/pur-		See: ELECTIONS	
chasing	3.10	Incorporation, form of government,	
Expenditure of city funds	3.8	boundary and powers	1.1 et seq.
Powers and duties of the city manager	3.3	See: INCORPORATION, FORM	
		OF GOVERNMENT,	
		BOUNDARY AND POWERS	
ATTORNEYS		Legislative	4.1 et seq.
Administrative		See: LEGISLATIVE	
City attorney.....	3.7	Transition provisions	8.1 et seq.
		See: TRANSITION PROVISIONS	
AUDITS		CHARTER AMENDMENTS	
Legislative		City personnel system	7.3
Independent audit	4.10	Conflicts of interest; ethical standards	7.2
		Legislative	
		Authentication, recording and dis-	
		position of ordinances; resolu-	
		tions and Charter amendments	4.8
		No discrimination	7.5
		Precedence over related laws	7.6
		Procedure to amend	6.1
		Severability	7.1
		Variation of pronouns.....	7.4
B		CITY ATTORNEY	
BANKS. See: FINANCE		Administrative.....	3.7
BIDS, BIDDING		CITY CLERK	
Administrative		Administrative.....	3.6
Competitive bid requirements/pur-		CITY COMMISSION	
chasing.....	3.10	Election and term of office.....	2.1
		Induction of commission into office;	
		meetings of commission.....	2.6
		Mayor and commission compensa-	
		tion	2.3
		Powers.....	2.5
		Presiding officer, mayor; commission-	
		ers; vice-mayor	2.4
		Qualifications	2.2
		Recall.....	2.8
		Term limits	2.1.1
BOARDS, COMMISSIONS AND COMMITTEES			
City commission.....	2.1 et seq.		
See: CITY COMMISSION			
Legislative			
Commission meeting procedure ...	4.1		
BONDS, SURETY OR PERFORMANCE			
Administrative			
Bond of city manager.....	3.5		
BOUNDARIES			
Incorporation, form of government,			
boundary and powers	1.1 et seq.		
See: INCORPORATION, FORM			
OF GOVERNMENT,			
BOUNDARY AND POWERS			
BUDGET. See: FINANCE			

OPA-LOCKA CODE

	Section		Section
CITY COMMISSION (Cont'd.)		FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES	
Vacancies; forfeiture of office; filling of vacancies	2.7		
CITY MANAGER		G	
Administrative.....	3.1 et seq.	GUARANTEES. See: BONDS, SURETY OR PERFORMANCE	
See: ADMINISTRATIVE			
CIVIL EMERGENCIES		I	
Legislative		INCORPORATION, FORM OF GOVERNMENT, BOUNDARY AND POWERS	
Emergency ordinances	4.4	Administrative	
		Powers and duties of the city manager	3.3
CLERK. See: CITY CLERK		City commission	
CONFLICTS OF INTEREST		Powers	2.5
Charter amendments		Corporate boundary	1.2
Conflicts of interest; ethical standards	7.2	Form of government	1.3
E		Incorporation	1.1
ELECTIONS		Powers.....	1.4
City commission		L	
Election and term of office	2.1	LEGISLATIVE	
Initiative and referendum	5.2	Annual budget adoption	4.5
Municipal elections.....	5.1	Appropriation amendments during the fiscal year.....	4.7
EMERGENCIES		Authentication, recording and disposition of ordinances; resolutions and Charter amendments	4.8
Legislative		Borrowing	4.11
Emergency ordinances	4.4	Commission meeting procedure.....	4.1
EMPLOYEES. See: OFFICERS AND EMPLOYEES		Emergency ordinances	4.4
ETHICS		Fiscal year	4.6
Charter amendments		Independent audit	4.10
Conflicts of interest; ethical standards	7.2	Ordinances	4.3
F		Prohibitions	4.2
FEES, CHARGES AND RATES		Tax levy, assessments and fees.....	4.9
Legislative		M	
Tax levy, assessments and fees	4.9	MANAGER. See: CITY MANAGER	
FINANCE		MAYOR	
Legislative		City commission	
Annual budget adoption.....	4.5	Mayor and commission compensation.....	2.3
FINES, FORFEITURES AND OTHER PENALTIES		Presiding officer, mayor; commissioners; vice-mayor	2.4
City commission			
Vacancies; forfeiture of office; filling of vacancies.....	2.7		

CHARTER INDEX

	Section		Section
MEETINGS		RECORDS AND REPORTS	
City commission		Legislative	
Induction of commission into office; meetings of commission .	2.6	Authentication, recording and disposition of ordinances; resolutions and Charter amendments	4.8
Legislative		REPORTS. See: RECORDS AND REPORTS	
Commission meeting procedure ...	4.1	RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC.	
O		S	
OFFICERS AND EMPLOYEES		SECURITIES. See: BONDS, SURETY OR PERFORMANCE	
City commission		SURETY BONDS. See: BONDS, SURETY OR PERFORMANCE	
Presiding officer, mayor; commissioners; vice-mayor	2.4	T	
ORDINANCES, RESOLUTIONS, ETC.		TAXATION	
Legislative	4.3 et seq.	Legislative	
See: LEGISLATIVE		Tax levy, assessments and fees	4.9
Transition provisions		TRANSITION PROVISIONS	
Interim adoption of codes, ordinances and resolutions; pending matters	8.1	Effective date; terms of office	8.2
P		Interim adoption of codes, ordinances and resolutions; pending matters	8.1
PENALTIES. See: FINES, FORFEITURES AND OTHER PENALTIES		V	
PERFORMANCE BONDS. See: BONDS, SURETY OR PERFORMANCE		VOTING. See: ELECTIONS	
POWERS. See: INCORPORATION, FORM OF GOVERNMENT, BOUNDARY AND POWERS			
PURCHASES AND PURCHASING			
Administrative			
Competitive bid requirements/purchasing	3.10		
Q			
QUALIFICATIONS			
City commission	2.2		
R			
RATES. See: FEES, CHARGES AND RATES			

CODE INDEX

	Section		Section
A		ADMINISTRATION (Cont'd.)	
ABANDONMENT		Copies of official documents.....	2-3
Animals and fowl		Defense of civil actions against public officers, employees or agents	2-8.1
Dogs		Department of buildings and licensing	2-392 et seq.
Abandoning dogs	5-19	See: DEPARTMENT OF BUILDINGS AND LICENSING	
Nuisances	14-31 et seq.	Department of information technology	2-428 et seq.
See: NUISANCES		See: DEPARTMENT OF INFORMATION TECHNOLOGY	
ABATEMENT		Department of planning and zoning .	2-421 et seq.
Fire prevention		See: DEPARTMENT OF PLANNING AND ZONING	
Authority to inspect for hazards, require abatement.....	10-3	Department of public affairs.....	2-401 et seq.
Compliance with notice to abate...	10-4	See: DEPARTMENT OF PUBLIC AFFAIRS	
Housing authority and nuisance abatement board	2-549.1 et seq.	Department of public works and utilities	2-406 et seq.
See: HOUSING AUTHORITY AND NUISANCE ABATEMENT BOARD		See: DEPARTMENT OF PUBLIC WORKS AND UTILITIES	
Nuisances	14-3 et seq.	Finance.....	2-650 et seq.
See: NUISANCES		See: FINANCE	
ACCOUNTABILITY BOARD		Housing and social services department	2-471 et seq.
Board membership	2-570.71	See: HOUSING AND SOCIAL SERVICES DEPARTMENT	
Cases involving noncity personnel ...	2-570.74	Housing authority.....	2-434 et seq.
Definitions/responsibilities	2-570.72	See: HOUSING AUTHORITY	
Evaluation.....	2-570.75	Improvements	2-591 et seq.
Objectives	2-570.69	See: IMPROVEMENTS	
Policy.....	2-570.67	Manager to appoint boards and commissions secretaries.....	2-2
Procedures.....	2-570.73	National criminal history screening for city manager.....	2-3.1
Purpose.....	2-570.66	Notary fee	2-4
Scope	2-570.68	Notification of funding sources by community-based organizations	2-8.5
Timeliness standards	2-570.70	Officers to turn receipts over to finance director	2-1
ADMINISTRATION		Payment of judgments or settlements against certain public officers or employees	2-8.2
Administrative rules and procedures .	2-82 et seq.	Personnel	2-191 et seq.
See: ADMINISTRATIVE RULES AND PROCEDURES		See: PERSONNEL	
Approval required to use community buildings, facilities; application..	2-5	Procedures for organizations, agencies requesting assistance from city	2-8
Boards, commissions and committees	2-479 et seq.		
See: BOARDS, COMMISSIONS AND COMMITTEES			
Charter revisions and amendments ..	2-298 et seq.		
See: CHARTER REVISIONS AND AMENDMENTS			
City commission.....	2-26 et seq.		
See: CITY COMMISSION			
Code of ethics; conflict of interest ...	2-9 et seq.		
See: CODE OF ETHICS; CONFLICT OF INTEREST			

OPA-LOCKA CODE

	Section		Section
ADMINISTRATION (Cont'd.)		ADMINISTRATIVE RULES AND PROCEDURES (Cont'd.)	
Provision of insurance in anticipation of judgments or settlements against officers, employees or agents of the city	2-8.3	Calling and notice	2-132
Purchasing.....	2-314 et seq.	Certification of applications.....	2-135
See: PURCHASING		City commission procedures applicable	2-134
Regulations governing use of community buildings and facilities.....	2-7	Comment by officers.....	2-139
Responsibility for damages arising from use of community buildings or facilities.....	2-6	Final action by agency.....	2-143
Schedule of fees	2-653 et seq.	Presentation by applicant.....	2-138
See: SCHEDULE OF FEES		Proceedings to be recorded; transcripts	2-145
Search committee established as option	2-8.4	Public participation.....	2-140
Special assessments.....	2-378 et seq.	Questioning permitted.....	2-142
See: SPECIAL ASSESSMENTS		Quorum.....	2-133
ADMINISTRATIVE RULES AND PROCEDURES		Reading of applications; display of exhibits.....	2-136
Activities requiring approval by other governmental jurisdictions	2-95	Rebuttal by applicant	2-141
Applicability generally	2-82	Refund of fees upon application withdrawal	2-96
Board, agency members to be residents.....	2-84	Removal of board or agency members	
Business tax receipts, permits or certificates; due dates and delinquency; penalties	2-97	Action of commission on affidavit	2-112
Certification of application examination and form.....	2-93	Affidavit of charges required	2-110
Certification of conformity with agency action, zoning, compliance.....	2-94	Applicability	2-109
Change of address or personnel by applicant	2-92	Automatic removal for absences ...	2-120
Complaints by city officers of violations	2-89	Calling, notice of hearing.....	2-113
Family members not to serve on same board or agency	2-85	Commissioner bringing charges to abstain	2-117
Form, contents of applications generally.....	2-91	Conclusion of testimony.....	2-115
Licenses, permits nontransferable	2-90	Conduct of hearing.....	2-114
Meetings of boards, agencies.....	2-86	Failure to appear at hearing	2-118
Notice of violation permitted	2-88	Final determination of commission	2-116
Procedures for public hearings and personal appearances		Referral of affidavit to city commission	2-111
Action to be recorded; resolution..	2-144	Requests for testimony of city employees	2-119
Amendments to application	2-137	Special rules or procedures for specific agencies.....	2-83
Applicability	2-131	Surety bonds	2-98
		Vote required for board or agency action	2-87
		ADVERTISING	
		Benches	
		Insurance required	3-38
		Location sketch required	3-39
		Maintenance	3-41
		Permit expiration if bench not installed	3-40
		Permit issuance, fee	3-37
		Permit required	3-36

CODE INDEX

	Section		Section
ADVERTISING (Cont'd.)		ALCOHOLIC BEVERAGES (Cont'd.)	
Causing obstruction of street or sidewalk	3-7	Licenses and business regulations	
Marking on street, sidewalk, or other public property and property of public utilities	3-3	Coin-operated devices	
Nuisances		Alcoholic beverages; limitations.	13-104
Improperly displayed vehicles		Parks and recreation	
Prohibited display of vehicles for sale or as advertising devices	14-21	Use and conduct regulations	
Pasting or glueing to vehicle of another	3-6	Specific regulations	16-52
Posting on unoccupied or temporary structures	3-5	Proximity of package stores to one another	4-9
Prohibited on rights-of-way of federal aid projects	3-2	Proximity to churches, parks and schools	4-8
Using property of another	3-4	Public consumption of alcoholic beverages prohibited; exceptions	4-15
Using street, sidewalk, or other public property and property of public utilities prohibited	3-1	Sale of liquor and wine from trucks ..	4-13
		Setups prohibited on premises not licensed for liquor	4-14
		Total or partial nudity and sexual conduct in alcoholic beverage establishments	
		Definitions	4-16
		Enforcement and penalties	4-18
		Total or partial nudity and sexual conduct prohibited	4-17
		Vaudeville, theatricals prohibited after 10:00 p.m.; exceptions	4-11
AFFIDAVITS		AMUSEMENTS AND ENTERTAINMENTS	
Administrative rules and procedures .	2-110 et seq.	Alcoholic beverages	
See: ADMINISTRATIVE RULES AND PROCEDURES		Entertainment prohibited during specified hours; exceptions	4-10
AGREEMENTS. See: CONTRACTS AND AGREEMENTS		Licenses and business regulations	13-98 et seq.
AIRPORTS AND AIRCRAFT		See: LICENSES AND BUSINESS REGULATIONS	
Parks and recreation		ANIMALS AND FOWL	
Use and conduct regulations		Diseased animals	5-4
Specific regulations		Dogs	
Aircraft and parachuting	16-65	Abandoning dogs	5-19
ALARM SYSTEMS		Definitions	5-16
Police	18-33 et seq.	Keeping for commercial purposes	
See: POLICE		Kennels	5-38
ALCOHOLIC BEVERAGES		Pet beauty salons	5-37
Curb and car service prohibited	4-12	Prohibited generally	5-35
Definitions	4-1	Training schools	5-39
Duty to permit police inspections	4-2	Veterinarians	5-36
Entertainment prohibited during specified hours; exceptions	4-10	Keeping vicious and howling dogs.	5-18
Hours for nightclubs	4-5	Maximum number permitted	5-17
Hours for on-premises consumption at certain hotels, restaurants	4-4	Domestic fowl	
Hours for package sales by nightclubs, restaurants, hotels	4-7	Defined	5-50
Hours for private clubs	4-6		
Hours of sale generally	4-3		

OPA-LOCKA CODE

	Section		Section
ANIMALS AND FOWL (Cont'd.)		APPEALS (Cont'd.)	
Possession, breeding and maintenance of domestic fowl on or about residential premises prohibited	5-52	Nuisances	
Running at large	5-51	Appeals	14-14
Garbage and trash.....	11-8 et seq.	Parks and recreation	
See: GARBAGE AND TRASH		Use and conduct regulations	
Livestock		Appeal of permit denial	16-31
Possession, breeding and maintenance of livestock on or about residential premises prohibited	5-66	Police	
Running at large prohibited; penalty	5-65	Alarm systems	18-39
Protection of wild birds	5-2	Residency requirement in employment	
Trapping, catching, injuring animals.	5-3	Enforcement and appeal	2-249
ANTENNAS. See: TOWERS AND ANTENNAS		ATTORNEYS	
APPEALS		Buildings, housing and structural regulations	
Buildings, housing and structural regulations	7-32 et seq.	Dangerous or substandard structures	
See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS		Duties of city attorney	7-72
City commission		City commission	
Rules of procedure		Rules of procedure	
Appeal procedure before commission	2-66	Attorney.....	2-48
Garbage and trash		Nuisances	
Private nonresidential collection		Attorney's Fees	14-15
Payment of fees; delinquencies; appeal	11-77	AVIATION. See: AIRPORTS AND AIRCRAFT	
Historic environmental preservation board			
Appeals	2-570.90		
Housing authority and nuisance abatement board			
Appeals	2-556.1		
Housing authority			
Safety and sanitation violations			
Appeal.....	2-468		
Licenses and business regulations			
License and permit denial and revocation			
Appeal to commission.....	13-36		
Street and mobile vendors			
Disapproval of application; notice; right of appeal.....	13-153		

B

BANKS. See: FINANCE	
BEER. See: ALCOHOLIC BEVERAGES	
BICYCLES	
Offenses—miscellaneous	15-131 et seq.
See: OFFENSES—MISCELLANEOUS	
BILLBOARDS. See: SIGNS AND BILLBOARDS	
BOARDINGHOUSES. See: HOTELS AND MOTELS	
BOARDS, COMMISSIONS AND COMMITTEES	
Accountability board.....	2-570.66 et seq.
See: ACCOUNTABILITY BOARD	
Administration	
Manager to appoint boards and commissions secretaries.....	2-2

CODE INDEX

	Section		Section
BOARDS, COMMISSIONS AND COMMITTEES (Cont'd.)		BOARDS, COMMISSIONS AND COMMITTEES (Cont'd.)	
Search committee established as option.....	2-8.4	Licenses and business regulations	
Administrative rules and procedures .	2-85 et seq.	License and permit denial and revocation	
See: ADMINISTRATIVE RULES AND PROCEDURES		Appeal to commission.....	13-36
Buildings, housing and structural regulations		Offenses—miscellaneous	
Building, planning and zoning board designated.....	7-7	Weapons and destructive devices in city buildings, audible beepers, use of cellular telephones, and eating and drinking in city commission chambers	15-8
City commission.....	2-26 et seq.	Planning and development	17-1 et seq.
See: CITY COMMISSION		See: PLANNING AND DEVELOPMENT	
Civil service board.....	2-526 et seq.	Planning and zoning board	2-497 et seq.
See: CIVIL SERVICE BOARD		See: PLANNING AND ZONING BOARD	
Code enforcement board	2-570.25 et seq.	Police	
See: CODE ENFORCEMENT BOARD		Commissioning of officers.....	18-3
Code of ethics; conflict of interest		Special assessments	
Transacting business with city; appearing before city commission, agencies and/or boards..	2-10	Authority of city commission.....	2-381
Community relations, recreation and activities board	2-479 et seq.	Streets and sidewalks	
See: COMMUNITY RELATIONS, RECREATION AND ACTIVITIES BOARD		Naming of public facilities and streets	
Education committee.....	2-511 et seq.	Public hearing and naming by city commission; referendum ...	19-29
See: EDUCATION COMMITTEE		Review and recommendation by commission.....	19-28
Excavations and filling	9-5 et seq.	BONDS, SURETY OR PERFORMANCE	
See: EXCAVATIONS AND FILLING		Administrative rules and procedures	
Historic environmental preservation board	2-570.81 et seq.	Surety bonds.....	2-98
See: HISTORIC ENVIRONMENTAL PRESERVATION BOARD		Buildings, housing and structural regulations	
Housing authority and nuisance abatement board	2-549.1 et seq.	Contractors	
See: HOUSING AUTHORITY AND NUISANCE ABATEMENT BOARD		Contractors to post bond for removal of trash following completion of construction	7-40
Improvements		Work affecting utility property	
East-west neighborhood improvement district		Demonstration of ability to repair; bond required.....	7-53
Designation of board of directors	2-605	Environment	
		Tree protection and conservation	
		Bond for tree relocation, replacement, or dripline encroachment	8.2-27

OPA-LOCKA CODE

	Section		Section
BONDS, SURETY OR PERFORMANCE (Cont'd.)		BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS (Cont'd.)	
Excavations and filling		Duties of city attorney	7-72
Approval by commission; bond, title opinion required	9-7	Duty of owner of building unfit for human habitation to relocate residents	7-73.2
Licenses and business regulations	13-107 et seq.	Emergency cases	7-73
See: LICENSES AND BUSINESS REGULATIONS		Notice to persons interested in building	7-69
Offenses—miscellaneous		Service of notices to persons outside city	7-74
Using public property for habitation		Standards for repair, vacation or demolition	7-67
Permit issuance; bond; regulations	15-97	Tenants' rights to present grievances	7-73.3
Return of bond	15-100	Department of buildings and licensing	2-392 et seq.
BUDGET RESERVE		See: DEPARTMENT OF BUILDINGS AND LICENSING	
General fund reserves	19.6-1	Duty to clean site	7-9
Purposes for which fund may be used	19.6-2	Duty to issue permits, make inspections	7-4
Replenishment of reserves	19.6-3	Duty to repair parkways, sidewalks, curbs, etc.	7-10
BUDGET. See: FINANCE		Enforcement of building code	7-2
BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS		Flood damage protection	
Administration	2-5 et seq.	Applicability	7-76
See: ADMINISTRATION		Definitions	7-83
Building, planning and zoning board designated	7-7	Duties and powers of the floodplain administrator	7-77
Compliance prerequisite to certificate of occupancy	7-5	Flood-resistant development	
Contractors		Buildings and structures	7-84
Contractors to post bond for removal of trash following completion of construction	7-40	General requirements for other development	7-89
Definition, classification	7-35	Manufactured homes, recreational vehicles and park trailers	7-87
Exceptions to license requirements	7-39	Site improvements, utilities and limitations	7-86
License prerequisite to permit	7-37	Subdivisions	7-85
Licenses required	7-36	Tanks	7-88
Registration required	7-38	General provisions	7-75
Dangerous or substandard structures		Inspections	7-80
Appeal to building, planning and zoning board	7-70	Permits	7-78
Declared public nuisance	7-66	Site plans and construction documents	7-79
Defined	7-65	Variances and appeals	7-81
Designation of buildings as unfit for human habitation; placarding of unfit buildings; condemnation of unfit buildings	7-73.1	Violations	7-82
Duties of building official	7-68	Florida Building Code applicable	7-1
Duties of building, planning and zoning board	7-71		

CODE INDEX

	Section		Section
BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS (Cont'd.)		BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS (Cont'd.)	
Garbage and trash		Streets and sidewalks.....	19-18 et seq.
City not responsible for building debris, furniture, vegetation cut before occupancy	11-19	See: STREETS AND SIDEWALKS	
Housing authority		Suitability for habitation certificate ..	7-12
Safety and sanitation violations		Water, sewer, and stormwater utilities	
Duties of building official	2-467	Water	
Investigation, report of building official	2-462	Charge for multiple meters for single building	21-29
Housing		Wireless communications systems	
Appeals from actions or decisions of minimum housing enforcement officer	7-32	Antennas.....	7-101
Authorized inspections	7-28	Appeal	7-97
County ordinance applicable	7-23	Approval of plans, layout and facilities.....	7-100
Enforcement of county ordinance ..	7-24	Business tax receipt required; fee ..	7-94
Identification of minimum housing officer; conflict of interest	7-27	Construction permits	7-95
Minimum housing enforcement officer; office created; appointment; appointment of subordinates	7-25	Definitions	7-91
Minimum housing enforcement officer powers	7-26	Development plan, conditions of approval, fees and costs.....	7-99
Notice of violations.....	7-29	Enforcement of article provisions; cease and desist order.....	7-110
Power of minimum housing enforcement officer to act in emergencies	7-31	Exemption	7-104
Recovery of enforcement costs	7-33	Lease agreements and rights	7-107
Remedies for enforcement; consent agreements; hindering or obstructing minimum housing enforcement officer	7-30	Location of facilities.....	7-105
Licenses and business regulations		Minimum standards for communication towers.....	7-102
Flea markets and bazaars		Obligation to cure as a condition of renewal.....	7-109
Building permit.....	13-220	Owner's and operator's obligations	7-98
Offenses—miscellaneous		Permit application	7-96
Weapons and destructive devices in city buildings, audible beepers, use of cellular telephones, and eating and drinking in city commission chambers	15-8	Purpose	7-90
Permit prerequisite to doing work....	7-3	Renewal applications	7-108
Portable toilets for workers.....	7-11	Shared use of antenna towers.....	7-106
Procedure for building, planning and zoning board	7-8	Special exception.....	7-103
		Telecommunications site development permit	7-93
		Work affecting utility property	
		Damaging prohibited generally	7-50
		Demonstration of ability to repair; bond required	7-53
		Denial of authorization.....	7-52
		Responsibility for cost of repairs ..	7-54
		Special authorization required to temporarily cut, disconnect or discontinue service	7-51

OPA-LOCKA CODE

	Section		Section
BURNING. See: FIRE PREVENTION		CITY COMMISSION	
BUSINESSES. See: LICENSES AND BUSINESS REGULATIONS		Administrative rules and procedures	
		Procedures for public hearings and personal appearances	
		City commission procedures applicable	2-134
		Removal of board or agency members	
		Referral of affidavit to city commission	2-111
		Calling special meetings	2-29
		Code of ethics; conflict of interest	
		Transacting business with city; appearing before city commission, agencies and/or boards..	2-10
		Compensation	2-26
		Date, time for regular meetings	2-28
		Expense account for mayor and each city commissioner	2-27
		Offenses—miscellaneous	
		Weapons and destructive devices in city buildings, audible beepers, use of cellular telephones, and eating and drinking in city commission chambers	15-8
		Per diem	2-31
		Planning and development	
		Procedure for submission of planning and zoning board action to city commission	17-1
		Subdivisions and platting	
		Vacating streets and alleys	
		Application of chapter to city commission proceedings .	17-47
		Reserved	2-33
		Rules of procedure	
		Addressing commission, manner, time	2-57
		Addressing the commission	2-56
		Adjournment	2-62
		Agenda	2-45
		Appeal procedure before commission	2-66
		Applicability	2-41
		Attorney	2-48
		Call to order	2-49
		Clerk, minutes, agenda	2-63
		Committees	2-60
		Decorum	2-58
		Governing rules	2-42
C			
CATS. See: ANIMALS AND FOWL			
CERTIFICATES, CERTIFICATION			
Administrative rules and procedures .	2-97 et seq.		
See: ADMINISTRATIVE RULES AND PROCEDURES			
Buildings, housing and structural regulations	7-5 et seq.		
See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS			
Historic environmental preservation board			
Certificates to dig	2-570.89		
Licenses and business regulations	13-105 et seq.		
See: LICENSES AND BUSINESS REGULATIONS			
Streets and sidewalks			
Sidewalk construction and repair			
Construction prerequisite to building permit or certificate of occupancy	19-18		
CESSPOOLS. See: SEPTIC SYSTEMS			
CHARTER REVISIONS AND AMENDMENTS			
Creation of a Charter review board ..	2-299		
Membership, term, duties and responsibilities	2-300		
Methods for drafting	2-298		
CHURCHES			
Alcoholic beverages			
Proximity to churches, parks and schools	4-8		
CITY ATTORNEY			
Buildings, housing and structural regulations			
Dangerous or substandard structures			
Duties of city attorney	7-72		

CODE INDEX

	Section		Section
CITY COMMISSION (Cont'd.)		CIVIL DEFENSE AND DISASTERS	
Mayor presiding officer, duties.....	2-46	(Cont'd.)	
Method of voting.....	2-55	Definitions.....	8-15
Order of business.....	2-52	Formalities of taking office.....	8-19
Ordinances, resolutions, motions, contracts.....	2-61	Procedures governing emergency succession to office.....	8-16
Parliamentarian.....	2-47	Quorum and vote requirement.....	8-20
Quorum.....	2-51	Recording and publication of suc- cessors.....	8-18
Reading minutes.....	2-54	County-wide mutual aid plan.....	8-1
Regular meetings.....	2-43	Declaration of disaster or state of emergency.....	8-5
Residents' right to know.....	2-67		
Roll call.....	2-50	CIVIL EMERGENCIES	
Rules of debate.....	2-53	Buildings, housing and structural reg- ulations	
Sergeant-at-arms.....	2-59	Dangerous or substandard struc- tures	
Special meetings.....	2-44	Emergency cases.....	7-73
State of the city.....	2-65	Housing	
Suspension of the rules.....	2-64	Power of minimum housing en- forcement officer to act in emergencies.....	7-31
Smoking during meetings.....	2-32	City commission	
Special assessments		Special emergency meetings on call of manager.....	2-30
Authority of city commission.....	2-381	Civil defense and disasters.....	8-5 et seq.
Special emergency meetings on call of manager.....	2-30	See: CIVIL DEFENSE AND DI- SASTERS	
Streets and sidewalks		Garbage and trash	
Naming of public facilities and streets		Curbside placement; emergency; im- provement of collection proce- dure; conditions.....	11-14
Public hearing and naming by city commission; referendum ...	19-29	Nuisances	
CITY HOLIDAYS		Emergency Order.....	14-13
Established.....	2-260	Trailers	
CITY MANAGER		Emergency parking on public ways	20-3
Administration		Water, sewer, and stormwater utilities	
National criminal history screening for city manager.....	2-3.1	Water	
Nuisances		Water shortage emergency restric- tions	
Abandoned and inoperative vehi- cles (junk cars)		General provisions.....	21-96
Authority of city manager to con- tract.....	14-39	Regulations governing Miami- Dade Billing for the City of Opa-locka.....	21-97
Purchasing		CIVIL SERVICE BOARD	
Administrative policies; powers, du- ties and functions of city man- ager.....	2-316	Civil service board qualifications.....	2-532
Execution of contracts by city man- ager.....	2-322.1	Competitive examination in adminis- trative service.....	2-529
CIVIL DEFENSE AND DISASTERS			
Continuity of government			
Assumption of officer by emergency successor.....	8-17		

OPA-LOCKA CODE

	Section		Section
CIVIL SERVICE BOARD (Cont'd.)		CODE ENFORCEMENT BOARD	
Conflict with collective bargaining agreements	2-542	(Cont'd.)	
Definitions for classified service and unclassified service	2-534	Schedule of civil penalties	2-570.33
Director of human resources to prepare and maintain record of service	2-535	Special magistrate selection	2-570.28
Duties of director of human resources as director of civil service board	2-531	CODE OF ETHICS; CONFLICT OF INTEREST	
Filling of vacancies in higher positions	2-536	Applicability and definitions	2-9
Members of civil service board authorized to administer oaths	2-538	Applicability of F.S. ch.112	2-11
Membership terms	2-527	Financial disclosure	2-16
Persons exempt from working tests; probationary appointments	2-541	Lobbying	2-18
Power and duties	2-526	Orientation of elected officials	2-14
Powers of director of human resources	2-530	Penalties	2-17
Prohibited acts; penalty for violation	2-539	Prohibited from benefiting from the sale, purchase or donation of real property	2-12
Quorum; investigations; chairman ...	2-533	Standards of conduct	2-13
Rules of procedure	2-528	Transacting business with city; appearing before city commission, agencies and/or boards	2-10
Schedule of pay	2-537	Voting conflicts	2-15
Suspension; reduction in payor class ..	2-540	CODE OF ORDINANCES*	
CODE ENFORCEMENT BOARD		Catchlines of sections; history and other notes; references	1-3
Private property rights and dispute resolution procedures		Certain ordinances not affected by Code	1-6
Available use or ripeness decision ..	2-570.50	Court costs for law enforcement education	1-8
Conduct of hearing	2-570.46	Effect of repeal of ordinances	1-4
Delivery of notice	2-570.51	General penalty; continuing violations	1-7
General provisions	2-570.44	How Code designated and cited	1-1
Hearing procedures	2-570.47	Prior offenses, penalties, contracts or rights not affected by adoption of Code	1-9
Response to special magistrate's recommendation	2-570.49	Provisions considered as continuation of existing ordinances	1-10
Special magistrate recommendation ..	2-570.48	Rules of construction	1-2
Special magistrate selection	2-570.45	Severability of parts of Code	1-5
Time limit	2-570.52	COMMERCIAL. See: LICENSES AND BUSINESS REGULATIONS	
Special magistrate dispute resolution		COMMUNITY DEVELOPMENT. See: PLANNING AND DEVELOPMENT	
Citation and enforcement procedures; supplemental	2-570.30		
Conduct of hearing	2-570.32		
Definitions	2-570.29		
General provisions for code enforcement violations and dispute resolution procedures	2-570.27		
Hearing procedures before special magistrate	2-570.31		
Jurisdiction	2-570.26		
Purpose	2-570.25		

***Note**—The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

CODE INDEX

	Section		Section
COMMUNITY RELATIONS, RECREATION AND ACTIVITIES BOARD		CURBS AND GUTTERS (Cont'd.)	
Membership terms	2-480	Buildings, housing and structural regulations	
Power and duties	2-479	Duty to repair parkways, sidewalks, curbs, etc.	7-10
CONSTRUCTION. See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS		Garbage and trash	
CONTRACTS AND AGREEMENTS		Curbside placement; emergency; improvement of collection procedure; conditions.....	11-14
Buildings, housing and structural regulations.....	7-35 et seq.	Nuisances	
See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS		Improperly displayed vehicles	
City commission		Prohibition against curbstoning.	14-20
Rules of procedure			
Ordinances, resolutions, motions, contracts.....	2-61	D	
Code of ordinances		DAMAGE, DEFACEMENT, DESTRUCTION, INJURY, ETC.	
Prior offenses, penalties, contracts or rights not affected by adoption of Code	1-9	Administration	
Garbage and trash.....	11-5 et seq.	Responsibility for damages arising from use of community buildings or facilities	2-6
See: GARBAGE AND TRASH		Buildings, housing and structural regulations.....	7-75 et seq.
Nuisances		See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS	
Abandoned and inoperative vehicles (junk cars)		Water, sewer, and stormwater utilities	
Authority of city manager to contract	14-39	Water	
Removal of vehicle by city or its agent or contractor; costs of removal.....	14-37	Service lines and connections	
Pensions and retirement		Responsibility for damages to city property	21-61
Manager to execute Social Security agreements	2-280	DANGEROUS DOGS. See: ANIMALS AND FOWL	
Purchasing.....	2-319 et seq.	DEFACEMENT. See: DAMAGE, DEFACEMENT, DESTRUCTION, INJURY, ETC.	
See: PURCHASING		DEFERRED COMPENSATION PROGRAM	
Water, sewer, and stormwater utilities	21-23 et seq.	Employees deferred compensation plan act	
See: WATER, SEWER, AND STORMWATER UTILITIES		Adoption	2-294
COURTS		Compensation programs.....	2-293
Code of ordinances		Contributions; vested ownership rights; notification; options, enforceability	2-296
Court costs for law enforcement education	1-8	Definition.....	2-290
CURBS AND GUTTERS		Segregation of funds.....	2-291
Alcoholic beverages		Short title	2-289
Curb and car service prohibited ...	4-12	Established	2-288

OPA-LOCKA CODE

	Section		Section
DEMOLITION		DISTRIBUTION (Cont'd.)	
Buildings, housing and structural regulations		Littering	
Dangerous or substandard structures		Distributing commercial and non-commercial handbills at inhabited private premises....	15-46
Standards for repair, vacation or demolition.....	7-67	Planning and development	
DEPARTMENT OF BUILDINGS AND LICENSING		Subdivisions and platting	
Created.....	2-392	Vacating streets and alleys	
Director, other personnel; appointment, compensation.....	2-393	Petition application for vacating streets and alleys	
Jurisdiction of department.....	2-394	Procedure on receipt; distribution to reviewing agencies.....	17-45
DEPARTMENT OF INFORMATION TECHNOLOGY		DISTRICTS	
Created; functions and duties.....	2-428	Improvements.....	2-591 et seq.
DEPARTMENT OF PLANNING AND ZONING		See: IMPROVEMENTS	
Appointment of director; provision for salaries and costs.....	2-422	Licenses and business regulations	
Created; functions and duties.....	2-421	Flea markets and bazaars	
Schedule of fees.....	2-423	Permitted in retail sales zoning districts.....	13-211
DEPARTMENT OF PUBLIC AFFAIRS		Water, sewer, and stormwater utilities	
Appointment of director; provision for salaries and costs.....	2-402	Sewers and sewage disposal	
Established; responsibilities.....	2-401	Creation of sewer modification districts to increase capacity	21-114
DEPARTMENT OF PUBLIC WORKS AND UTILITIES		Financing of sewer modification districts.....	21-115
Appointment, term of director; salaries; additional employees.....	2-407	DITCHES. See: DRAINAGE	
Created.....	2-406	DOGS. See: ANIMALS AND FOWL	
Functions and duties.....	2-408	DONATIONS	
Water, sewer, and stormwater utilities		Code of ethics; conflict of interest	
Department of public works and utilities established.....	21-1	Prohibited from benefiting from the sale, purchase or donation of real property.....	2-12
DESTRUCTION. See: DAMAGE, DE-FACEMENT, DESTRUCTION, INJURY, ETC.		DRAINAGE	
DEVELOPMENT. See: PLANNING AND DEVELOPMENT		Garbage and trash	
DISEASE CONTROL. See: HEALTH AND SANITATION		Garbage to be drained and wrapped	11-22
DISTRIBUTION		Offenses—miscellaneous	15-4
Offenses—miscellaneous		Obstructing drainage.....	
		Water, sewer, and stormwater utilities	
		Sewers and sewage disposal	
		Notice, correction of defective side sewers or drainage.....	21-116
		DRUG FREE WORKPLACE	
		Confidentiality.....	2-297.9
		Definitions.....	2-297.6
		Establishment of rules.....	2-297.8
		Intent.....	2-297.5

CODE INDEX

	Section		Section
DRUG FREE WORKPLACE (Cont'd.)		ELECTIONS (Cont'd.)	
Testing.....	2-297.7	Taxation	
E		Local communications services tax	
EASEMENTS		Election regarding permit fees ..	19.5-29
Water, sewer, and stormwater utilities		EMERGENCIES	
Sewers and sewage disposal		Buildings, housing and structural reg-	
Work on or affecting sewers		ulations	
Easement prerequisite to per-		Dangerous or substandard struc-	
mit	21-140	tures	
Water		Emergency cases.....	7-73
Service lines and connections		Housing	
Consumer to grant easements,		Power of minimum housing en-	
rights, etc.	21-62	forcement officer to act in	
EDUCATION COMMITTEE		emergencies.....	7-31
Composition	2-512	City commission	
Created	2-511	Special emergency meetings on call	
ELDERLY PERSONS		of manager.....	2-30
Taxation		Civil defense and disasters	8-5 et seq.
Additional tax exemption for cer-		See: CIVIL DEFENSE AND DI-	
tain senior citizens	19.5-2	SASTERS	
ELECTIONS		Garbage and trash	
Administrative rules and procedures		Curbside placement; emergency; im-	
Vote required for board or agency		provement of collection proce-	
action	2-87	dure; conditions.....	11-14
Appointment of clerks and inspectors		Nuisances	
of election	8.5-5	Emergency Order	14-13
Canvassing board, composition and		Trailers	
convening.....	8.5-9	Emergency parking on public ways	20-3
Change of polling place	8.5-4	Water, sewer, and stormwater utilities	
City commission		Water	
Rules of procedure		Water shortage emergency restric-	
Method of voting	2-55	tions	
Civil defense and disasters		General provisions	21-96
Continuity of government		Regulations governing Miami-	
Quorum and vote requirement ..	8-20	Dade Billing for the City	
Code of ethics; conflict of interest		of Opa-locka.....	21-97
Voting conflicts	2-15	EMPLOYEE PROTECTION	
Delivery of registration records to elec-		WHISTLEBLOWER ACT	
tion clerk	8.5-6	Actions prohibited	23-3
Electronic campaign finance report-		Confidentiality of individuals disclos-	
ing	8.5-10	ing information.....	23-11
Registration, qualifications of voters;		Definitions	23-2
violations and penalties	8.5-2	Employees and persons protected	23-6
Resolution calling election required;		Existing rights	23-9
contents; publication	8.5-3	Legislative findings and purpose	23-1
State election laws adopted.....	8.5-1	Nature of information disclosed	23-4
		Outreach to employees and manda-	
		tory training.....	23-12
		Relief	23-8

OPA-LOCKA CODE

	Section		Section
EMPLOYEE PROTECTION WHISTLEBLOWER ACT (Cont'd.)		EXCAVATIONS AND FILLING (Cont'd.)	
Remedies	23-7	Approval by commission; bond, title opinion required.....	9-7
Retroactive application.....	23-10	Permit application required	9-2
To whom the information must be dis- closed.....	23-5	Permit duration; renewal	9-10
EMPLOYEES. See: OFFICERS AND EMPLOYEES		Permit fee.....	9-9
ENCLOSURES. See: FENCES, WALLS, HEDGES AND ENCLO- SURES		Permit issuance.....	9-8
ENGINEERING		Permit nontransferable; reissuance to purchaser of property	9-11
Excavations and filling		Permit required on approval by com- mission	9-1
Recommendations of engineer, planning and zoning board on application	9-5	Permit revocation	9-12
ENVIRONMENT		Placing application on commission agenda.....	9-6
Historic environmental preservation board	2-570.81 et seq.	Recommendations of engineer, plan- ning and zoning board on appli- cation.....	9-5
See: HISTORIC ENVIRONMEN- TAL PRESERVATION BOARD		Special regulations for excavations or fills other than for purpose of re- moving material or raising eleva- tion	9-13
Tree protection and conservation		Streets and sidewalks	
Bond for tree relocation, replace- ment, or dripline encroachment	8.2-27	Permits to cut, excavate or other- wise disturb	19-7
Criteria for tree permit review	8.2-25	Water, sewer, and stormwater utilities	
Definitions	8.2-21	Sewers and sewage disposal	
Enforcement	8.2-32	Work on or affecting sewers	
Exemptions	8.2-30	Contractor's duty to guard ex- cavations	21-152
Penalties	8.2-33	Unguarded excavations on pri- vate property.....	21-153
Permit required	8.2-22		
Standards for tree protection dur- ing development	8.2-29	F	
Tree permit required as condition to tree removal pursuant to de- velopment or land clearing ...	8.2-23	FALSE REPRESENTATION. See: MISREPRESENTATION	
Tree permit review	8.2-24	FALSE STATEMENTS	
Tree removal and replacement	8.2-26	Licenses and business regulations	
Tree trust fund	8.2-28	Landlord permit	
Tree variance.....	8.2-31	Obtaining landlord permit by false statement.....	13-283
ETHICS. See: CODE OF ETHICS; CONFLICT OF INTEREST		FEES, CHARGES AND RATES	
EXCAVATIONS AND FILLING		Administrative rules and procedures .	2-96 et seq.
Application contents	9-3	See: ADMINISTRATIVE RULES AND PROCEDURES	
Application deposit required; use	9-4		

CODE INDEX

	Section		Section
FEES, CHARGES AND RATES (Cont'd.)		FINANCE (Cont'd.)	
Buildings, housing and structural regulations		Pensions and retirement	
Wireless communications systems		Finance director designated custodian of Social Security funds .	2-286
Development plan, conditions of approval, fees and costs	7-99	FINES, FORFEITURES AND OTHER PENALTIES	
Department of planning and zoning		Administrative rules and procedures	
Schedule of fees.....	2-423	Business tax receipts, permits or certificates; due dates and delinquency; penalties.....	2-97
Garbage and trash.....	11-75 et seq.	Alcoholic beverages	
See: GARBAGE AND TRASH		Total or partial nudity and sexual conduct in alcoholic beverage establishments	
Licenses and business regulations	13-156 et seq.	Enforcement and penalties	4-18
See: LICENSES AND BUSINESS REGULATIONS		Animals and fowl	
Nuisances		Livestock	
Attorney's Fees	14-15	Running at large prohibited; penalty	5-65
Schedule of fees	2-653 et seq.	Civil service board	
See: SCHEDULE OF FEES		Prohibited acts; penalty for violation.....	2-539
Streets and sidewalks		Code enforcement board	
Sidewalk construction and repair		Special magistrate dispute resolution	
Fees for permits	19-21	Schedule of civil penalties.....	2-570.33
Taxation		Code of ethics; conflict of interest	
Local communications services tax		Penalties	2-17
Adoption of tax rate commencing October 1, 2002.....	19.5-34	Code of ordinances	
Election regarding permit fees ..	19.5-29	General penalty; continuing violations.....	1-7
Water, sewer, and stormwater utilities	21-202 et seq.	Prior offenses, penalties, contracts or rights not affected by adoption of Code	1-9
See: WATER, SEWER, AND STORMWATER UTILITIES		Elections	
FENCES, WALLS, HEDGES AND ENCLOSURES		Registration, qualifications of voters; violations and penalties...	8.5-2
Garbage and trash.....	11-80 et seq.	Environment	
See: GARBAGE AND TRASH		Tree protection and conservation	
FINANCE		Penalties	8.2-33
Administration		Garbage and trash.....	11-79.6 et seq.
Officers to turn receipts over to finance director.....	2-1	See: GARBAGE AND TRASH	
Budget reserve.....	19.6-1 et seq.	Historic environmental preservation board	
See: BUDGET RESERVE		Penalties	2-570.91
Elections		Housing authority and nuisance abatement board	
Electronic campaign finance reporting.....	8.5-10	Recording of orders, fines and costs; enforcement of orders	2-556
Financial integrity			
Financial integrity principles; adopted.....	2-651		
Financial integrity principles	2-650		
Promoting operating efficiencies...	2-652		

OPA-LOCKA CODE

	Section		Section
FINES, FORFEITURES AND OTHER PENALTIES (Cont'd.)		FIREARMS AND WEAPONS (Cont'd.)	
Licenses and business regulations . . .	13-108 et seq.	Weapons; discharge	15-6
See: LICENSES AND BUSINESS REGULATIONS		FIREWORKS	
Offenses—miscellaneous	15-48 et seq.	Offenses—miscellaneous	
See: OFFENSES—MISCELLANEOUS		Noise	
Water, sewer, and stormwater utilities		Discharging fireworks, combustibles	15-80
Water		Parks and recreation	
Service rates and charges		Use and conduct regulations	
Billing procedure; penalty for late payment; lien	21-83	Specific regulations	16-55
FIRE PREVENTION		FLOODS AND FLOODING	
Authority to inspect for hazards, require abatement	10-3	Buildings, housing and structural regulations	7-75 et seq.
Compliance with notice to abate	10-4	See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS	
County code adopted	10-1	FOOD AND FOOD SERVICES	
Garbage and trash		Garbage and trash	
Burning, burying, etc.; use as animal, fowl or fish food; transporting	11-8	Burning, burying, etc.; use as animal, fowl or fish food; transporting	11-8
Licenses and business regulations		FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES	
Junk and junk dealers		FOWL. See: ANIMALS AND FOWL	
Fire hazard, sanitary nuisance precludes permit issuance or renewal	13-137	FRANCHISES	
Liquefied petroleum gas		Garbage and trash	11-65 et seq.
Carelessness prohibited	10-19	See: GARBAGE AND TRASH	
Inspection required; notice of defects	10-17	FRAUD	
Permit required to store or install piping; maximum quantity stored	10-16	Licenses and business regulations	
Transfer and transportation requirements	10-18	Fraudulently obtained business tax receipts void ab initio	13-8
Permit required for intentional burning	10-5		
Violation of county code	10-2	G	
Water, sewer, and stormwater utilities	21-35 et seq.	GARBAGE AND TRASH	
See: WATER, SEWER, AND STORMWATER UTILITIES		Administrative regulations authorized	11-2
FIREARMS AND WEAPONS		Applicability to residential, commercial uses	11-4
Offenses—miscellaneous		Buildings, housing and structural regulations	
Weapons and destructive devices in city buildings, audible beepers, use of cellular telephones, and eating and drinking in city commission chambers	15-8	Contractors	
		Contractors to post bond for removal of trash following completion of construction	7-40

CODE INDEX

	Section		Section
GARBAGE AND TRASH (Cont'd.)		GARBAGE AND TRASH (Cont'd.)	
Burning, burying, etc.; use as animal, fowl or fish food; transporting ..	11-8	Offenses—miscellaneous	
Charges for assessment of residential collection		Littering	
Increases	11-42	Dumping raw human waste prohibited	15-45
Lien for city charges	11-49	Offensive or dangerous accumulations	11-7
Residential solid waste assessment.	11-41	Only city or contractor to collect and dispose of municipal solid waste	11-5
Residential solid waste assessment.	11-53	Parks and recreation	
Responsibility for payment	11-38	Use and conduct regulations	
Schedule of residential charges	11-40	Specific regulations	
Separation of household and commercial accounts	11-39	Disposal of rubbish	16-50
When charges commence; continuation during temporary vacancy	11-37	Permit to place on private property ..	11-16
City not responsible for building debris, furniture, vegetation cut before occupancy	11-19	Placement, removal of rubbish, bulky waste from residential units	11-17
Commercial solid waste collection and enforcement		Placing on right-of-way or private property prohibited generally ...	11-15
Enforcement process	11-92	Prima facie evidence of accumulation of municipal solid waste	11-3
Legislative intent	11-91	Private nonresidential collection	
Schedule of civil penalties	11-93	Application for franchise agreement; requirements and conditions ..	11-70
Short title	11-90	Applications and forms	11-65.1
Containers to be grouped, accessible.	11-12	Collection standards; dumpster location; dumpster size and frequency; noncompliance; grounds for revocation	11-66
Containers to be kept covered	11-11	Definitions	11-64
Curbside placement; emergency; improvement of collection procedure; conditions	11-14	Enforcement and administrative fees	11-78
Definitions	11-1	Franchise issuance	11-72
Deposit of dangerous substances	11-25	Franchise required; relative rights of franchisee and city	11-65
Deposit of feces	11-23	Inspection of vehicles	11-68
Disposal of animal carcasses	11-24	Insurance required	11-73
Disposal of tires; requirement for identification of tires with business tax receipt number	11-28	Legislative intent	11-63
Distance of residential containers from street	11-13	Marking of vehicles	11-69
Dumpster enclosures		Payment of fees; delinquencies; appeal	11-77
Dumpster enclosure required	11-82	Power of city to regulate charges ..	11-74
Dumpster enclosure specifications, materials, location	11-83	Prerequisites to license issuance ...	11-71
Purpose	11-81	Reports and payment of fees	11-75
Short title	11-80	Term and option to renew franchise	11-76
Garbage to be drained and wrapped .	11-22	Waste vehicle permits	11-67
Hazards in way of collectors	11-26	Recycled materials	
Materials or liquids other than waste prohibited in containers	11-21	Applications and forms	11-79.14
		Effect on existing contracts and licenses	11-79.13
		Legislative intent	11-79.10
		License required; relative rights of licensee and city	11-79.11

OPA-LOCKA CODE

	Section		Section
GARBAGE AND TRASH (Cont'd.)		HEALTH AND SANITATION	
Required state licensing.....	11-79.12	Housing authority.....	2-461 et seq.
Service standards; noncompliance; grounds for revocation; pen- alty assessment.....	11-79.15	See: HOUSING AUTHORITY	
Short title	11-79.9	Licenses and business regulations	
Regulation of containers; duty to pro- vide.....	11-9	Flea markets and bazaars	
Removal prohibited except from ap- proved containers	11-10	Safety, sanitation and conditions of use.....	13-214
Residential disposal of boxes, cartons	11-20	HEARINGS	
Responsibility for removal of indus- trial and noncombustible waste .	11-18	Administrative rules and procedures .	2-113 et seq.
Storage, removal of waste for salvage or resale	11-6	See: ADMINISTRATIVE RULES AND PROCEDURES	
Structure foundations must be demucked.....	11-27	Code enforcement board	2-570.31 et seq.
Waste compacting services		See: CODE ENFORCEMENT BOARD	
Applications and forms.....	11-79.5	Housing authority and nuisance abate- ment board	
Effect on existing contracts and li- censes	11-79.4	Conduct of hearings.....	2-555
Franchise required; relative rights of franchisee and city	11-79.3	Housing authority	
Legislative intent.....	11-79.2	Safety and sanitation violations	
Service standards; noncompliance; grounds for revocation; pen- alty assessment.....	11-79.6	Hearing.....	2-464
Short title	11-79.1	Licenses and business regulations	
GRADES, GRADING		License and permit denial and revo- cation	
Streets and sidewalks		Findings after hearing on denial or revocation	13-35
Sidewalk construction and repair		Nuisances	
Establishment, marking of lines and grades.....	19-19	Abandoned and inoperative vehi- cles (junk cars)	
GUARANTEES. See: BONDS, SURETY OR PERFORMANCE		Request for hearing	14-34
GUNS. See: FIREARMS AND WEAP- ONS		Offenses—miscellaneous	
GUTTERS. See: CURBS AND GUT- TERS		Signalized intersection safety	
		Implementation of general law and designation of local hearing officer	15-136
		Planning and development	
		Subdivisions and platting	
		Vacating streets and alleys	
		Petition application for vacat- ing streets and alleys	
		Hearing date; signs	17-46
		Streets and sidewalks	
		Naming of public facilities and streets	
		Public hearing and naming by city commission; referendum ...	19-29
		HEDGES. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
H			
HANDBILLS			
Offenses—miscellaneous			
Littering			
Distributing commercial and non- commercial handbills at in- habited private premises....	15-46		

CODE INDEX

	Section		Section
HISTORIC ENVIRONMENTAL PRESERVATION BOARD		HOUSING	
Appeals.....	2-570.90	Animals and fowl	
Certificates to dig.....	2-570.89	Domestic fowl	
Created; composition; term of office; qualifications; organization; meetings; records.....	2-570.81	Possession, breeding and maintenance of domestic fowl on or about residential premises prohibited.....	5-52
Definitions.....	2-570.84	Livestock	
Designation process and procedure..	2-570.87	Possession, breeding and maintenance of livestock on or about residential premises prohibited.....	5-66
Duties and responsibilities.....	2-570.82	Buildings, housing and structural regulations.....	7-1 et seq.
Incentives.....	2-570.92	See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS	
Maintenance of designated properties	2-570.88	Garbage and trash.....	11-4 et seq.
Penalties.....	2-570.91	See: GARBAGE AND TRASH	
Rules and regulations.....	2-570.86	Housing and social services department.....	2-471 et seq.
Scope of regulations.....	2-570.83	See: HOUSING AND SOCIAL SERVICES DEPARTMENT	
Vested power, authority and jurisdiction.....	2-570.85	Housing authority and nuisance abatement board.....	2-549.1 et seq.
HISTORICAL PRESERVATION		See: HOUSING AUTHORITY AND NUISANCE ABATEMENT BOARD	
Historic environmental preservation board.....	2-570.81 et seq.	Housing authority.....	2-434 et seq.
See: HISTORIC ENVIRONMENTAL PRESERVATION BOARD		See: HOUSING AUTHORITY	
HOTELS AND MOTELS		HOUSING AND SOCIAL SERVICES DEPARTMENT	
Alcoholic beverages		Established.....	2-471
Hours for on-premises consumption at certain hotels, restaurants.....	4-4	Qualifying developments pursuant to F.S. § 166.04151(7), under the Live Local Act.....	2-472
Hours for package sales by nightclubs, restaurants, hotels.....	4-7	HOUSING AUTHORITY	
HOURS		Amendments authorized.....	2-450
Alcoholic beverages.....	4-3 et seq.	Applicability of general rules and procedures.....	2-444
See: ALCOHOLIC BEVERAGES		Approval of rules and regulations....	2-443
Licenses and business regulations		Authority to receive assignments.....	2-446
Coin-operated devices		Authority to take evidence; legal services.....	2-447
Hours of operation in industrial-zoned properties.....	13-106	Compensation.....	2-437
Offenses—miscellaneous		Creation of vacancies.....	2-436
Noise		Established.....	2-434
Hours for jukeboxes.....	15-78	Executive director designated; duties.	2-439
Hours for use of noisy construction equipment.....	15-79		
Parks and recreation			
Use and conduct regulations			
Specific regulations			
Entering, remaining during closing hours.....	16-44		

OPA-LOCKA CODE

	Section	I	Section
HOUSING AUTHORITY (Cont'd.)			
Funding	2-440	IDENTIFICATION	
General functions	2-441	Buildings, housing and structural regulations	
Housing authority and nuisance abatement board	2-549.1 et seq.	Housing	
See: HOUSING AUTHORITY AND NUISANCE ABATEMENT BOARD		Identification of minimum housing officer; conflict of interest	7-27
Meetings to be open; notice required.	2-449	Garbage and trash	
Membership; terms; appointments...	2-435	Disposal of tires; requirement for identification of tires with business tax receipt number	11-28
Officers; clerical assistance	2-438	IMPROVEMENTS	
Powers; limitations; rules and regulations authorized	2-442	Buildings, housing and structural regulations	
Safety and sanitation violations		Flood damage protection	
Appeal	2-468	Flood-resistant development	
Assignment of security deposits ...	2-465	Site improvements, utilities and limitations	7-86
Duties of building official	2-467	East-west neighborhood improvement district	
Findings of fact; recommendations; orders	2-466	Authority to apply for and receive grants	2-603
Hearing	2-464	Created.....	2-601
Investigation, report of building official.....	2-462	Designation of board of directors .	2-605
Jurisdiction of authority.....	2-461	Establishment of advisory board ..	2-606
Rule to show cause.....	2-463	Title	2-602
State Landlord-Tenant Act adopted .	2-445	Utilization of tax or special assessment	2-604
When meetings held	2-448	Safe neighborhood improvement districts	
HOUSING AUTHORITY AND NUISANCE ABATEMENT BOARD		Districts authorized.....	2-591
Appeals.....	2-556.1	Method of establishment	2-592
Conduct of hearings	2-555	INCORPORATION AND POWERS	
Definitions	2-552	Buildings, housing and structural regulations	
Established	2-549.1	Flood damage protection	
Legislative findings and intent	2-553	Duties and powers of the floodplain administrator.....	7-77
Membership terms	2-551	Housing	
Operating procedures	2-554	Minimum housing enforcement officer powers	7-26
Power and duties	2-550	Civil service board	
Recording of orders, fines and costs; enforcement of orders.....	2-556	Powers of director of human resources	2-530
HUNTING		Housing authority	
Parks and recreation		Powers; limitations; rules and regulations authorized.....	2-442
Use and conduct regulations			
Specific regulations			
Hunting, molesting wildlife...	16-51		

CODE INDEX

	Section	Section
INCORPORATION AND POWERS		
(Cont'd.)		
Nuisances		
Improperly displayed vehicles		
Incorporations	14-23	
Powers and Duties of the Nuisance		
Inspector	14-7	

CODE INDEX

	Section		Section
INCORPORATION AND POWERS (Cont'd.)		ees or agents of the city	2-8.3
Purchasing		Advertising	
Administrative policies; powers, du-		Benches	
ties and functions of city man-		Insurance required	3-38
ager	2-316	Garbage and trash	
		Private nonresidential collection	
		Insurance required	11-73
INDUSTRIES		INTERFERENCE	
Garbage and trash		Parks and recreation	
Responsibility for removal of indus-	11-18	Use and conduct regulations	
trial and noncombustible waste		Specific regulations	
Licenses and business regulations		Interfering with city personnel	16-43
Coin-operated devices		Water, sewer, and stormwater utilities	
Hours of operation in industrial-	13-106	Sewers and sewage disposal	
zoned properties		Trees and shrubs interfering with	
		sewers	21-122
INSPECTIONS		INTOXICATION BEVERAGES. See:	
Alcoholic beverages		ALCOHOLIC BEVERAGES	
Duty to permit police inspections .	4-2	INVENTORY	
Buildings, housing and structural reg-	7-4 et seq.	Purchasing	
ulations		Department of purchasing	
See: BUILDINGS, HOUSING		Duties of purchasing officer	2-349
AND STRUCTURAL REG-			
ULATIONS		INVESTIGATIONS	
Elections		Housing authority	
Appointment of clerks and inspec-	8.5-5	Safety and sanitation violations	
tors of election		Investigation, report of building	
Fire prevention		official	2-462
Authority to inspect for hazards, re-	10-3	Licenses and business regulations	
quire abatement		Street and mobile vendors	
Liquefied petroleum gas		Background investigation of ap-	
Inspection required; notice of de-	10-17	plication	13-152
fects			
Garbage and trash		L	
Private nonresidential collection		LAND DEVELOPMENT	
Inspection of vehicles	11-68	Zoning	
Licenses and business regulations		Land development regulations saved	
Landlord permit		from repeal and continued in	
Right of inspection	13-285	effect	22-1
Nuisances			
Powers and Duties of the Nuisance		LAW ENFORCEMENT	
Inspector	14-7	Alcoholic beverages	
Water, sewer, and stormwater utilities	21-58 et seq.	Duty to permit police inspections .	4-2
See: WATER, SEWER, AND		Code of ordinances	
STORMWATER UTILITIES		Court costs for law enforcement ed-	
		ucation	1-8
INSURANCE		Licenses and business regulations . . .	13-18 et seq.
Administration		See: LICENSES AND BUSINESS	
Provision of insurance in anticipa-		REGULATIONS	
tion of judgments or settle-			
ments against officers, employ-			

OPA-LOCKA CODE

	Section		Section
LAW ENFORCEMENT (Cont'd.)		LICENSES AND BUSINESS REGULATIONS (Cont'd.)	
Offenses—miscellaneous		Buildings, housing and structural regulations.....	7-36 et seq.
Graffiti		See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS	
Police office authorized to remove vehicle.....	15-116.1	Business tax receipt application required	13-4
Police	18-1 et seq.	Business tax receipt exemptions.....	13-9
See: POLICE		Business tax receipt limited to one place of business.....	13-17
Water, sewer, and stormwater utilities		Business tax receipt term, expiration; part-year receipts; minimum charges	13-3
Sewers and sewage disposal		Business tax receipts of restaurants, grocery stores and retailers	
Work on or affecting sewers		Administrative determination of qualification of business.....	13-49
Police, manager to enforce permit requirement.....	21-147	Definitions.....	13-47
LEASES, LEASING		Denial of business tax receipt.....	13-50
Buildings, housing and structural regulations		Special questionnaire required; temporary business tax receipt authorized	13-48
Wireless communications systems		City commission	
Lease agreements and rights	7-107	Rules of procedure	
LIABILITY		Order of business.....	2-52
Water, sewer, and stormwater utilities		Code of ethics; conflict of interest	
Water		Transacting business with city; appearing before city commission, agencies and/or boards..	2-10
City not liable for interruption of service	21-21	Coin-operated devices	
LIBRARIES		Additional penalty.....	13-108
Offenses—miscellaneous		Alcoholic beverages; limitations ...	13-104
Selling, serving or vending in public rights-of-way within 1,500 feet of a public park, school or library	15-9	Amusement centers and bingo parlors.....	13-103
LICENSES AND BUSINESS REGULATIONS		Authority to seize delinquent machine; additional charge	13-100
Administrative rules and procedures .	2-90 et seq.	Contents of business tax receipt application.....	13-95
See: ADMINISTRATIVE RULES AND PROCEDURES		Definitions.....	13-93
Advertising	3-36 et seq.	Display of business tax receipt.....	13-96
See: ADVERTISING		Gambling	13-97
Alcoholic beverages		Hours of operation in industrial-zoned properties	13-106
Duty to permit police inspections .	4-2	Machines exempted from taxation.	13-92
Setups prohibited on premises not licensed for liquor.....	4-14	Maximum number of amusement machines.....	13-98
Animals and fowl		Notice, redemption of seized machine	13-101
Dogs			
Maximum number permitted ...	5-17		
Application for business tax receipt renewal	13-5		
Bills or notices for business taxes unnecessary	13-10		

CODE INDEX

	Section		Section
LICENSES AND BUSINESS REGULATIONS (Cont'd.)		LICENSES AND BUSINESS REGULATIONS (Cont'd.)	
Payment of certificate of authorization and per machine fee for Type II machines; payment and performance bond; criminal background check and proof of corporate good standing for machine operator hereunder of Type II amusement machines .	13-107	Non-issuance of business tax receipt.....	13-222
Responsibility for business tax receipt.....	13-94	Permitted in retail sales zoning districts	13-211
Revocation of certificate of authorization.....	13-105	Posting of performance bond.....	13-217
Sale of seized machine; disposition of monies	13-102	Promulgation and enforcement of rules and regulations.....	13-218
Use of amusement machines by minors	13-99	Safety, sanitation and conditions of use	13-214
Definitions	13-1	Fraudulently obtained business tax receipts void ab initio.....	13-8
Department of buildings and licensing	2-392 et seq.	Garbage and trash.....	11-71 et seq.
See: DEPARTMENT OF BUILDINGS AND LICENSING		See: GARBAGE AND TRASH	
Duplicate business tax receipts.....	13-14	Junk and junk dealers	
Duty to exhibit business tax receipt on request.....	13-16	Authority of chief of police to prescribe regulations	13-138
Environment	8.2-22 et seq.	Definitions	13-136
See: ENVIRONMENT		Fire hazard, sanitary nuisance precludes permit issuance or renewal.....	13-137
Excavations and filling	9-1 et seq.	Landlord permit	
See: EXCAVATIONS AND FILLING		Application procedures	13-278
Fire prevention		Definitions	13-272
Liquefied petroleum gas		Due date for payment of landlord permit fee	13-276
Permit required to store or install piping; maximum quantity stored.....	10-16	Duties of city	13-282
Permit required for intentional burning.....	10-5	Duties of landlord	13-281
Flea markets and bazaars		Fees	13-277
Approval of plans, layout and facilities.....	13-215	Grounds for denial.....	13-279
Building permit	13-220	Landlord permit required.....	13-274
Business tax receipt required; fee ..	13-213	Obtaining landlord permit by false statement.....	13-283
Definitions	13-212	Penalties for violation.....	13-286
Development plan, conditions of approval, fees and costs.....	13-216	Renewal of landlord permit	13-280
Enforcement of article provisions; cease and desist order.....	13-219	Revocation of landlord permits ...	13-284
Flea market owner's and operator's obligations	13-221	Right of inspection	13-285
		Term of landlord permit and transfer	13-275
		Title.....	13-271
		License and permit denial and revocation	
		Appeal to commission	13-36
		Authorized	13-32
		Findings after hearing on denial or revocation.....	13-35
		Grounds	13-33
		Notice; denial or revocation	13-34

OPA-LOCKA CODE

	Section		Section
LICENSES AND BUSINESS REGULATIONS (Cont'd.)		LICENSES AND BUSINESS REGULATIONS (Cont'd.)	
Licenses and business regulations . . .	13-1 et seq.	Mobile vendor special event	13-166
See: LICENSES AND BUSINESS REGULATIONS		Non-transference of license	13-159
Massage therapy establishments		Permit caps	13-170
Definitions	13-312	Permit expiration, renewal	13-157
Enforcement and penalties	13-315	Permit fees	13-156
Legislative intent	13-311	Permit required	13-150
Requirements for massage establishments	13-314	Prohibited acts	13-168
Unlicensed provision of massage unlawful	13-313	Report, record of convictions	13-164
Offenses—miscellaneous	15-94 et seq.	Revocation of license	13-169
See: OFFENSES—MISCELLANEOUS		Use of streets	13-161
Parks and recreation	16-28 et seq.	Streets and sidewalks	19-36 et seq.
See: PARKS AND RECREATION		See: STREETS AND SIDEWALKS	
Payment of personal property tax prerequisite to business tax receipt	13-7	Tax levied and tax receipts required	13-2
Police and code enforcement to enforce business tax receipt provisions	13-18	Tax when more than one occupation or service operated	13-21
Police		Taxation	
Alarm systems		Local communications services tax	
Alarm permit	18-34	Election regarding permit fees	19.5-29
Posting of business tax receipt required	13-15	Towing companies	
Schedule of fees		Application for towing permit for towing services	13-235
Business tax receipts—Schedule of fees	2-654	Definitions	13-233
Permit fees	2-653	Fees and charges for towing privately owned vehicles	13-239
State, county licenses or business tax receipts prerequisite to city	13-6	Issuance of permit; renewal	13-236
Street and mobile vendors		Permit required for towing services; prohibition	13-234
Application required	13-151	Purpose	13-232
Approval and issuance of permit; records	13-155	Revocation or suspension of permit	13-237
Background investigation of application	13-152	Service requirements for city towing services	13-238
Badges	13-158	Short title	13-231
Definitions	13-149	Storage rates	13-240
Designation of sites, "stalls."	13-167	Wrecker classifications and requirements	13-241
Disapproval of application; notice; right of appeal	13-153	Trailers	
Enforcement by police	13-163	Parking for sale or repair by authorized businesses	20-7
Exemptions	13-171	Transfer of business tax receipt to new location	13-13
Exhibition of permit	13-162	Transfer of business tax receipts to new owner	13-12
Loud noises and speaking devices	13-160	Water, sewer, and stormwater utilities	21-134 et seq.
Mobile vendor requirements	13-165	See: WATER, SEWER, AND STORMWATER UTILITIES	

CODE INDEX

	Section		Section
LIENS		MANUFACTURED HOMES AND MANUFACTURED HOME PARKS	
Garbage and trash		Buildings, housing and structural reg- ulations	
Charges for assessment of residen- tial collection		Flood damage protection	
Lien for city charges	11-49	Flood-resistant development	
Special assessments		Manufactured homes, recre- ational vehicles and park trailers	7-87
Improvement lien book required ..	2-379	Trailers	20-1 et seq.
Water, sewer, and stormwater utilities		See: TRAILERS	
Sewers and sewage disposal		MASSAGE	
Service charges		Licenses and business regulations	13-311 et seq.
Lien for sewer charge	21-173	See: LICENSES AND BUSINESS REGULATIONS	
Water		MAYOR	
Service rates and charges		City commission	
Billing procedure; penalty for late payment; lien	21-83	Expense account for mayor and each city commissioner	2-27
LIQUOR. See: ALCOHOLIC BEVER- AGES		Rules of procedure	
		Mayor presiding officer, duties ..	2-46
M		MEETINGS	
MAINTENANCE		Administrative rules and procedures	
Advertising		Meetings of boards, agencies	2-86
Benches	3-41	City commission	2-28 et seq.
Animals and fowl		See: CITY COMMISSION	
Domestic fowl		Historic environmental preservation board	
Possession, breeding and mainte- nance of domestic fowl on or about residential prem- ises prohibited	5-52	Created; composition; term of of- fice; qualifications; organiza- tion; meetings; records	2-570.81
Livestock		Housing authority	
Possession, breeding and mainte- nance of livestock on or about residential premises prohibited	5-66	Meetings to be open; notice re- quired	2-449
Historic environmental preservation board		When meetings held	2-448
Maintenance of designated proper- ties	2-570.88	Parks and recreation	
Police		Use and conduct regulations	
Gated communities	18-49	Specific regulations	
Water, sewer, and stormwater utilities		Conducting, participating in unpermitted meeting	16-57
Sewers and sewage disposal		Planning and development	
Responsibility for costs of con- nection and maintenance...	21-111	Comprehensive planning	
MANAGER. See: CITY MANAGER		Agency meetings, records to be public; public participation.	17-20

OPA-LOCKA CODE

	Section			Section
MEETINGS (Cont'd.)			NOTICES, NOTIFICATION (Cont'd.)	
Planning and zoning board			Buildings, housing and structural reg-	
Created; composition; term of of-			ulations.....	7-29 et seq.
fice; qualifications; organiza-			See: BUILDINGS, HOUSING	
tion; meetings; records.....	2-497		AND STRUCTURAL REG-	
			ULATIONS	
MISDEMEANORS			Code enforcement board	
Offenses—miscellaneous			Private property rights and dispute	
Adoption of state misdemeanors ..	15-1		resolution procedures	
			Delivery of notice	2-570.51
MISREPRESENTATION			Deferred compensation program	
Licenses and business regulations			Employees deferred compensation	
Fraudulently obtained business tax			plan act	
receipts void ab initio	13-8		Contributions; vested ownership	
			rights; notification; options,	
MOBILE HOMES AND MOBILE			enforceability	2-296
HOME PARKS			Fire prevention	
Buildings, housing and structural reg-			Compliance with notice to abate...	10-4
ulations			Liquefied petroleum gas	
Flood damage protection			Inspection required; notice of de-	
Flood-resistant development			fects.....	10-17
Manufactured homes, recre-			Housing authority	
ational vehicles and park			Meetings to be open; notice re-	
trailers	7-87		quired	2-449
Trailers	20-1 et seq.		Licenses and business regulations	13-10 et seq.
See: TRAILERS			See: LICENSES AND BUSINESS	
			REGULATIONS	
MOTELS. See: HOTELS AND MO-			Nuisances	14-33 et seq.
TELS			See: NUISANCES	
			Parks and recreation	
MOTOR VEHICLES. See: TRAFFIC			Use and conduct regulations	
AND VEHICLES			Notice of permit denial	16-30
			Streets and sidewalks	
			Sidewalk construction and repair	
			Duty to repair; notice	19-25
			Notice prior to beginning work .	19-22
			Water, sewer, and stormwater utilities	
			Sewers and sewage disposal	
			Notice, correction of defective	
			side sewers or drainage	21-116
			Work on or affecting sewers	
			Notice of disapproval of work	21-151
			NUDITY	
			Alcoholic beverages	4-16 et seq.
			See: ALCOHOLIC BEVERAGES	
			NUISANCES	
			Abandoned and inoperative vehicles	
			(junk cars)	
			Abandoned vehicles and inopera-	
			tive vehicles declared to be a	
			public nuisance; duty of own-	

CODE INDEX

	Section		Section
ers of vehicle and premises ...	14-32	NUISANCES (Cont'd.)	
Authority of city manager to contract	14-39	Licenses and business regulations	
Definitions	14-31	Junk and junk dealers	
Enforcement authority	14-40	Fire hazard, sanitary nuisance precludes permit issuance or renewal	13-137
Execution of release form by owner	14-38	Nuisance Abatement Enforcement Procedure	14-9
Notice to owner of vehicle or land to remove vehicle; failure to comply	14-33	Nuisance abatement procedure	14-8
Notice to owner of vehicle or land to remove vehicle; form	14-35	Nuisance Abatement Program: Supplemental Means of Enforcement	14-6
Public notice when owners cannot be found	14-36	Offenses—miscellaneous	
Removal of vehicle by city or its agent or contractor; costs of removal	14-37	Littering	
Request for hearing	14-34	Nuisance declared	15-50
Appeals	14-14	Order of Abatement	14-10
Assessment of Costs	14-16	Powers and Duties of the Nuisance Inspector	14-7
Attorney's Fees	14-15	Registration of abandoned, vacant foreclosure properties	
Authority	14-1	Additional authority	14-61
Buildings, housing and structural regulations		Amendments	14-65
Dangerous or substandard structures		Applicability and jurisdiction	14-53
Declared public nuisance	7-66	Definitions	14-52
Definitions	14-5	Establishment of a registry	14-54
Emergency Order	14-13	Immunity of enforcement officer ..	14-63
Establishment of Public Nuisance Abatement Program Trust Fund	14-4	Inspection and registration of real property	
Establishment of Public Nuisance Abatement Program	14-3	That is not subject to a mortgage in foreclosure	14-56
Extension of Time to Comply	14-11	Under foreclosure	14-55
Findings	14-2	Maintenance requirements	14-57
Housing authority and nuisance abatement board	2-549.1 et seq.	Opposing, obstructing enforcement officer; penalty	14-62
See: HOUSING AUTHORITY AND NUISANCE ABATEMENT BOARD		Penalties	14-64
Improperly displayed vehicles		Provisions supplemental	14-59
Definitions	14-19	Public nuisance	14-60
Display of vehicles for sale	14-22	Purpose and intent	14-51
Incorporations	14-23	Security requirements	14-58
Prohibited display of vehicles for sale or as advertising devices ..	14-21		
Prohibition against curbstoning ...	14-20		
		O	
		OATH, AFFIRMATION, SWEAR OR SWORN	
		Civil service board	
		Members of civil service board authorized to administer oaths ..	2-538
		Police	
		Oath of office	18-4

OPA-LOCKA CODE

	Section		Section
OBSTRUCTIONS		OFFENSES—MISCELLANEOUS	
Advertising		(Cont'd.)	
Causing obstruction of street or sidewalk.....	3-7	Presumption where motor vehicle is the source	15-49
Buildings, housing and structural regulations		Responsibility of city	15-43
Housing		Noise	
Remedies for enforcement; consent agreements; hindering or obstructing minimum housing enforcement officer	7-30	At soft drink stands, restaurants...	15-76
Offenses—miscellaneous		Discharging fireworks, combustibles.....	15-80
Obstructing drainage	15-4	Hours for jukeboxes	15-78
Streets and sidewalks		Hours for use of noisy construction equipment.....	15-79
Obstructing view at intersections ..	19-5	Loud or unusual noises on streets .	15-75
Obstructions generally	19-4	Music prohibited if audible 300 feet from source	15-77
Water, sewer, and stormwater utilities		Near hospital or school.....	15-74
Sewers and sewage disposal		Noisy blower, power fan, internal combustion engine.....	15-82
Obstructing, breaking, injuring sewer facilities	21-120	Noisy emission of steam, other gases	15-81
		Prohibited generally	15-73
		Steam whistles	15-83
OFFENSES—MISCELLANEOUS		Obstructing drainage.....	15-4
Adoption of Code of Miami-Dade County, Florida, offenses chapter	15-2	Prohibitions on the use of motorized scooters, all-terrain vehicles, dirt bikes, and go-peds	
Adoption of state misdemeanors.....	15-1	Definitions; exemptions.....	15-131
Damaging public trees and shrubbery	15-3	Motor scooters, all-terrain vehicles, dirt bikes and go-peds prohibited.....	15-132
Graffiti		Penalties	15-133
Anti-graffiti trust fund.....	15-116	Racing vehicles	15-5
Definitions.....	15-112	Selling, serving or vending in public rights-of-way within 1,500 feet of a public park, school or library .	15-9
Failure to remove or request city for assistance in removing graffiti	15-115	Sex offenders	
Order to remove graffiti.....	15-114	Sex offender residency prohibition	15-117
Police office authorized to remove vehicle.....	15-116.1	Signalized intersection safety	
Prohibited conduct	15-111	Implementation of general law and designation of local hearing officer	15-136
Violation of section 15-111; penalties therefor	15-113	Penalties	15-137
Littering		Use of traffic infraction detectors .	15-135
Declaration of intent	15-41	Synthetic substances	
Definitions.....	15-42	Definition	15-141
Distributing commercial and non-commercial handbills at inhabited private premises	15-46	Enforcement	15-143
Dumping litter prohibited	15-44	Sale of substances	15-142
Dumping raw human waste prohibited.....	15-45	Using public property for habitation	
Enforcement	15-47	Exceptions	15-95
Nuisance declared	15-50	Grounds for denying permit	15-96
Penalties	15-48	Permit issuance; bond; regulations	15-97

CODE INDEX

	Section		Section
OFFENSES—MISCELLANEOUS		OFFICERS AND EMPLOYEES	
(Cont'd.)		(Cont'd.)	
Permit required; application; fee...	15-94	Pensions and retirement	
Permit to be personal	15-98	Employees under prior retirement	
Return of bond	15-100	systems exempt from Social Se-	
Violation of permit or regulations.	15-99	curity.....	2-284
Weapons and destructive devices in		Police	
city buildings, audible beepers, use		Commissioning of officers.....	18-3
of cellular telephones, and eating		Purchasing.....	2-347 et seq.
and drinking in city commission		See: PURCHASING	
chambers	15-8	OPEN BURNING. See: FIRE PRE-	
Weapons; discharge	15-6	VENTION	
OFFICERS AND EMPLOYEES		ORDINANCES, RESOLUTIONS,	
Administration	2-1 et seq.	ETC.	
See: ADMINISTRATION		Administrative rules and procedures	
Administrative rules and procedures .	2-89 et seq.	Procedures for public hearings and	
See: ADMINISTRATIVE RULES		personal appearances	
AND PROCEDURES		Action to be recorded; resolution	2-144
Buildings, housing and structural reg-		Buildings, housing and structural reg-	
ulations	7-25 et seq.	ulations	
See: BUILDINGS, HOUSING		Housing	
AND STRUCTURAL REG-		County ordinance applicable	7-23
ULATIONS		Enforcement of county ordinance	7-24
City commission		City commission	
Rules of procedure		Rules of procedure	
Mayor presiding officer, duties ..	2-46	Ordinances, resolutions, motions,	
Civil defense and disasters		contracts.....	2-61
Continuity of government		Code enforcement board	2-570.25
Assumption of officer by emer-		et seq.	
gency successor.....	8-17	See: CODE ENFORCEMENT	
Deferred compensation program.....	2-289 et seq.	BOARD	
See: DEFERRED COMPENSA-		Code of ordinances	1-1 et seq.
TION PROGRAM		See: CODE OF ORDINANCES	
Department of public works and util-		Elections	
ities		Resolution calling election required;	
Appointment, term of director; sal-		contents; publication.....	8.5-3
aries; additional employees ...	2-407	Planning and development	
Employee protection whistleblower act	23-1 et seq.	Subdivisions and platting	
See: EMPLOYEE PROTECTION		Ordinances saved from repeal and	
WHISTLEBLOWER ACT		continued	17-32
Housing authority		Police	
Officers; clerical assistance.....	2-438	Power and authority to enforce or-	
Offenses—miscellaneous		dinances.....	18-5
Signalized intersection safety			
Implementation of general law		P	
and designation of local		PARKING	
hearing officer	15-136	Parks and recreation	
		Use and conduct regulations	

OPA-LOCKA CODE

	Section		Section
PARKING (Cont'd.)		PARKS AND RECREATION (Cont'd.)	
Specific regulations		Damaging vegetation.....	16-47
Sleeping, camping, overnight parking.....	16-61	Disposal of rubbish	16-50
Trailers	20-2 et seq.	Duty to leave on request.....	16-45
See: TRAILERS		Entering, remaining during closing hours	16-44
PARKS AND RECREATION		Fires	16-54
Alcoholic beverages		Fireworks.....	16-55
Proximity to churches, parks and schools	4-8	Hunting, molesting wildlife	16-51
Buildings, housing and structural regulations		Interfering with city personnel ..	16-43
Flood damage protection		Polluting waters	16-49
Flood-resistant development		Removing natural resources.....	16-48
Manufactured homes, recreational vehicles and park trailers	7-87	Sales	16-59
Community relations, recreation and activities board	2-479 et seq.	Signs or posters.....	16-60
See: COMMUNITY RELATIONS, RECREATION AND ACTIVITIES BOARD		Sleeping, camping, overnight parking	16-61
Recreational programs limited to residents; nonresident use of city facilities.....	16-2	Smoking prohibited in outdoor areas in the city parks	16-66
Schedule of fees		Sound amplifiers, musical instruments	16-58
Parks and recreation fees	2-657	Traffic	16-62
Teen and young adult advisory board	16-1	Utilities	16-64
Use and conduct regulations		Water activities	16-63
Activities confined to designated areas.....	16-27	Temporary closing and exclusion of public	16-24
Appeal of permit denial	16-31	PENALTIES. See: FINES, FORFEITURES AND OTHER PENALTIES	
City's right to enter	16-25	PENSIONS AND RETIREMENT	
Conditions to permit issuance	16-29	Appropriations for Social Security ...	2-282
Definitions	16-21	Employees under prior retirement systems exempt from Social Security.....	2-284
Designation of areas for specific use	16-26	Finance director designated custodian of Social Security funds....	2-286
Notice of permit denial.....	16-30	Manager to execute Social Security agreements	2-280
Permit required for group use.....	16-28	Records and reports for Social Security.....	2-283
Permit revocation	16-32	Social Security Act adopted.....	2-285
Policy declared	16-20	Social Security system established....	2-279
Reserved	16-33	Withholdings for Social Security	2-281
Rules authorized; ejection of violators.....	16-23	PERFORMANCE BONDS. See: BONDS, SURETY OR PERFORMANCE	
Specific regulations		PERMITS. See: LICENSES AND BUSINESS REGULATIONS	
Aircraft and parachuting	16-65		
Alcoholic beverages	16-52		
Conducting, participating in unpermitted meeting	16-57		
Damaging property	16-46		

CODE INDEX

	Section		Section
PERSONNEL		PLANNING AND DEVELOPMENT	
Accountability board		(Cont'd.)	
Cases involving noncity personnel .	2-570.74	Comprehensive planning	
Administrative rules and procedures		Agency designated	17-17
Change of address or personnel by		Agency meetings, records to be pub-	
applicant	2-92	lic; public participation	17-20
Appointment of director; subordinate		Authority	17-16
personnel	2-191	Duties of agency	17-18
City holidays	2-260 et seq.	Funding of agency	17-21
See: CITY HOLIDAYS		Organization, rules and procedures	
Deferred compensation program	2-288 et seq.	of agency	17-19
See: DEFERRED COMPENSA-		Department of planning and zoning .	2-421 et seq.
TION PROGRAM		See: DEPARTMENT OF PLAN-	
Department of buildings and licens-		NING AND ZONING	
ing		Environment	
Director, other personnel; appoint-		Tree protection and conservation	
ment, compensation	2-393	Standards for tree protection dur-	
Drug free workplace	2-297.5	ing development	8.2-29
	et seq.	Tree permit required as condi-	
See: DRUG FREE WORKPLACE		tion to tree removal pursu-	
First source hiring referral program .	2-192	ant to development or land	
Parks and recreation		clearing	8.2-23
Use and conduct regulations		Excavations and filling	
Specific regulations		Recommendations of engineer,	
Interfering with city personnel	16-43	planning and zoning board on	
Pensions and retirement	2-279 et seq.	application	9-5
See: PENSIONS AND RETIRE-		Licenses and business regulations	
MENT		Flea markets and bazaars	
Residency requirement in employment	2-246 et seq.	Development plan, conditions of	
See: RESIDENCY REQUIRE-		approval, fees and costs . . .	13-216
MENT IN EMPLOYMENT		Planning and zoning board	2-497 et seq.
Severance pay; extra compensation		See: PLANNING AND ZONING	
Prohibiting severance pay and extra		BOARD	
compensation beyond state		Procedure for submission of planning	
statutory limits	2-222	and zoning board action to city	
Water, sewer, and stormwater utilities		commission	17-1
Director and personnel of depart-		Schedule of fees	
ment	21-2	Community development fees	2-655
PETITIONS		Subdivisions and platting	
Planning and development	17-41 et seq.	Ordinances saved from repeal and	
See: PLANNING AND DEVEL-		continued	17-32
OPMENT		Unity of title	
PLANNING AND DEVELOPMENT		Approval, release and recording.	17-52
Buildings, housing and structural reg-		Definition of unity of title	17-49
ulations	7-7 et seq.	Specific requirements	17-51
See: BUILDINGS, HOUSING		When required	17-50
AND STRUCTURAL REG-		Vacating streets and alleys	
ULATIONS		Application of chapter to city	
		commission proceedings . . .	17-47

OPA-LOCKA CODE

	Section		Section
PLANNING AND DEVELOPMENT (Cont'd.)		POLICE	
Petition application for vacating streets and alleys		Alarm systems	
Contents	17-43	Alarm permit	18-34
Filing; number of copies required	17-44	Appeals	18-39
Form; address.....	17-42	Definitions.....	18-33
Generally	17-41	Duties of the alarm company.....	18-36
Hearing date; signs.....	17-46	Duties of the alarm user	18-35
Procedure on receipt; distribution to reviewing agencies	17-45	Enforcement of provisions.....	18-38
Vacating streets and alleys; payment of costs, expenses.....	17-48	Fee schedule	18-42
Zoning		Government immunity.....	18-40
Land development regulations saved from repeal and continued in effect	22-1	Prohibited acts.....	18-37
PLANNING AND ZONING BOARD		Severability	18-41
Buildings, housing and structural regulations	7-7 et seq.	Alcoholic beverages	
See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS		Duty to permit police inspections .	4-2
Created; composition; term of office; qualifications; organization; meetings; records	2-497	Appointment of chief of police; general duties; absence	18-2
Duties and responsibilities	2-498	Commissioning of officers	18-3
Excavations and filling		Department created	18-1
Recommendations of engineer, planning and zoning board on application	9-5	Departmental rules, regulations and policies	18-6
Planning and development		Gated communities	
Procedure for submission of planning and zoning board action to city commission.....	17-1	Definitions.....	18-46
PLUMBING		Intent	18-47
Water, sewer, and stormwater utilities	21-55 et seq.	Maintenance	18-49
See: WATER, SEWER, AND STORMWATER UTILITIES		Requirements	18-48
POLES AND WIRES		Violations	18-50
Buildings, housing and structural regulations	7-90 et seq.	Licenses and business regulations	13-18 et seq.
See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS		See: LICENSES AND BUSINESS REGULATIONS	
		Oath of office	18-4
		Offenses—miscellaneous	
		Graffiti	
		Police office authorized to remove vehicle.....	15-116.1
		Power and authority to enforce ordinances	18-5
		Security; traffic control.....	18-7
		Water, sewer, and stormwater utilities	
		Sewers and sewage disposal	
		Work on or affecting sewers	
		Police, manager to enforce permit requirement	21-147
		POLLUTION	
		Parks and recreation	
		Use and conduct regulations	
		Specific regulations	
		Polluting waters.....	16-49

CODE INDEX

	Section		Section
PROPERTY		PUBLIC WORKS AND IMPROVE-	
Advertising	3-1 et seq.	MENTS (Cont'd.)	
See: ADVERTISING		Schedule of fees	
Buildings, housing and structural reg-		Public works fees.....	2-656
ulations	7-50 et seq.	Water, sewer, and stormwater utilities	
See: BUILDINGS, HOUSING		Department of public works and	
AND STRUCTURAL REG-		utilities established	21-1
ULATIONS			
Code enforcement board	2-570.44	PURCHASING	
	et seq.	Administrative policies; powers, du-	
See: CODE ENFORCEMENT		ties and functions of city man-	
BOARD		ager	2-316
Code of ethics; conflict of interest		Code of ethics; conflict of interest	
Prohibited from benefiting from the		Prohibited from benefiting from the	
sale, purchase or donation of		sale, purchase or donation of	
real property	2-12	real property	2-12
Excavations and filling		Cone of silence	2-320
Permit nontransferable; reissuance		Contract document.....	2-321
to purchaser of property.....	9-11	Contracts for professional services...	2-319
Garbage and trash		Definitions	2-315
Permit to place on private property	11-16	Department of purchasing	
Placing on right-of-way or private		Created.....	2-346
property prohibited generally.	11-15	Duties of purchasing officer	
Licenses and business regulations		Inventory	2-349
Payment of personal property tax		Minority vendor procurement	
prerequisite to business tax re-		program	2-351
ceipt.....	13-7	Procedures manual	2-350
Offenses—miscellaneous	15-94 et seq.	Uniform manner of purchasing.	2-348
See: OFFENSES—MISCELLA-		Purchasing officer.....	2-347
NEOUS		Excavations and filling	
Parks and recreation		Permit nontransferable; reissuance	
Use and conduct regulations		to purchaser of property.....	9-11
Specific regulations		Exceptions to competitive procure-	
Damaging property	16-46	ment requirement	2-318
Purchasing		Execution of contracts by city man-	
Sale of city property worth \$250.00		ager.....	2-322.1
or less	2-322	Formal competitive procurement re-	
Water, sewer, and stormwater utilities	21-60 et seq.	quired	2-317
See: WATER, SEWER, AND		Legislative intent	2-314
STORMWATER UTILITIES		Minority vendor procurement pro-	
		gram.....	2-323
PUBLIC PLACES. See: STREETS		Protest procedures.....	2-324
AND SIDEWALKS		Sale of city property worth \$250.00 or	
		less.....	2-322
PUBLIC WORKS AND IMPROVE-		Wages for laborers and mechanics	
MENTS		Computation of overtime.....	2-338
Department of public works and util-		Definitions	2-337
ities	2-406 et seq.	Provisions required in contract	2-336
See: DEPARTMENT OF PUBLIC		Specifications to stipulate minimum	2-335
WORKS AND UTILITIES			

OPA-LOCKA CODE

	Section		Section
PURCHASING (Cont'd.)		RECORDS AND REPORTS (Cont'd.)	
Verification of services required prior to payment	2-325	Licenses and business regulations	13-155 et seq.
		See: LICENSES AND BUSINESS REGULATIONS	
R		Pensions and retirement	
RATES. See: FEES, CHARGES AND RATES		Records and reports for Social Security.....	2-283
REAL ESTATE, REAL PROPERTY		Planning and development	
Code of ethics; conflict of interest		Comprehensive planning	
Prohibited from benefiting from the sale, purchase or donation of real property	2-12	Agency meetings, records to be public; public participation.	17-20
		Subdivisions and platting	
		Unity of title	
		Approval, release and recording.....	17-52
RECORDS AND REPORTS		Planning and zoning board	
Administrative rules and procedures		Created; composition; term of office; qualifications; organization; meetings; records	2-497
Procedures for public hearings and personal appearances	2-144	Special assessments	
Action to be recorded; resolution	2-145	Separation of improvement accounts; reports	2-380
Proceedings to be recorded; transcripts		Taxation	
Civil defense and disasters		Utility tax	
Continuity of government		Records to be kept.....	19.5-26
Recording and publication of successors	8-18	Reports of deliveries for resale ..	19.5-27
Civil service board		Water, sewer, and stormwater utilities	
Director of human resources to prepare and maintain record of service.....	2-535	Sewers and sewage disposal	
Elections		Work on or affecting sewers	
Delivery of registration records to election clerk	8.5-6	Permit records	21-142
Electronic campaign finance reporting.....	8.5-10	RECREATION. See: PARKS AND RECREATION	
Garbage and trash		RECREATIONAL VEHICLES	
Private nonresidential collection		Buildings, housing and structural regulations	
Reports and payment of fees....	11-75	Flood damage protection	
Historic environmental preservation board		Flood-resistant development	
Created; composition; term of office; qualifications; organization; meetings; records	2-570.81	Manufactured homes, recreational vehicles and park trailers	7-87
Housing authority and nuisance abatement board		RECYCLING	
Recording of orders, fines and costs; enforcement of orders	2-556	Garbage and trash.....	11-79.9 et seq.
Housing authority		See: GARBAGE AND TRASH	
Safety and sanitation violations		REGISTRATION	
Investigation, report of building official	2-462	Buildings, housing and structural regulations	
		Contractors	
		Registration required	7-38

CODE INDEX

	Section	Section
REGISTRATION (Cont'd.)		
Elections		
Delivery of registration records to election clerk.....	8.5-6	
Registration, qualifications of vot- ers; violations and penalties...	8.5-2	
REMOVAL. See: ABATEMENT		
REPORTS. See: RECORDS AND RE- PORTS		
RESIDENCES, RESIDENTIAL. See: HOUSING		
RESIDENCY REQUIREMENT IN EMPLOYMENT		
Definitions	2-247	
Enforcement and appeal	2-249	
Purpose.....	2-246	
Residency requirements and proce- dures.....	2-248	
Waiver	2-250	
RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC.		

CODE INDEX

	Section		Section
RESTAURANTS		SALES (Cont'd.)	
Alcoholic beverages		Flea markets and bazaars	
Hours for on-premises consumption at certain hotels, restaurants	4-4	Permitted in retail sales zoning districts	13-211
Hours for package sales by night-clubs, restaurants, hotels	4-7	Nuisances	
Licenses and business regulations	13-47 et seq.	Improperly displayed vehicles	
See: LICENSES AND BUSINESS REGULATIONS		Display of vehicles for sale	14-22
Offenses—miscellaneous		Prohibited display of vehicles for sale or as advertising devices	14-21
Noise		Offenses—miscellaneous	
At soft drink stands, restaurants	15-76	Synthetic substances	
		Sale of substances	15-142
RETAIL. See: SALES		Parks and recreation	
RETIREMENT. See: PENSIONS AND RETIREMENT		Use and conduct regulations	
RIGHT-OF-WAYS		Specific regulations	16-59
Garbage and trash		Purchasing	
Placing on right-of-way or private property prohibited generally .	11-15	Sale of city property worth \$250.00 or less	2-322
RUBBISH. See: GARBAGE AND TRASH		Streets and sidewalks	
		Street sales	19-6
		Trailers	
		Parking for sale or repair by authorized businesses	20-7
		SANITATION. See: HEALTH AND SANITATION	
		SCHEDULE OF FEES	
		Business tax receipts—Schedule of fees	2-654
		Community development fees	2-655
		Department of planning and zoning .	2-423
		Miscellaneous fees	2-658
		Parks and recreation fees	2-657
		Permit fees	2-653
		Public works fees	2-656
		SCHOOLS	
		Alcoholic beverages	
		Proximity to churches, parks and schools	4-8
		Animals and fowl	
		Dogs	
		Keeping for commercial purposes	
		Training schools	5-39
		Offenses—miscellaneous	
		Noise	
		Near hospital or school	15-74
		Selling, serving or vending in public rights-of-way within 1,500 feet of a public park, school or library	15-9
SALES			
Alcoholic beverages	4-3 et seq.		
See: ALCOHOLIC BEVERAGES			
Code of ethics; conflict of interest			
Prohibited from benefiting from the sale, purchase or donation of real property	2-12		
Licenses and business regulations			
Coin-operated devices			
Sale of seized machine; disposition of monies	13-102		

OPA-LOCKA CODE

	Section		Section
SCHOOLS (Cont'd.)		SPECIAL ASSESSMENTS	
Streets and sidewalks		Authority of city commission	2-381
School zone speed limits	19-9	Fund created	2-378
SECURITIES. See: BONDS, SURETY OR PERFORMANCE		Improvement lien book required	2-379
SECURITY		Separation of improvement accounts; reports	2-380
Housing authority		STORAGE	
Safety and sanitation violations		Garbage and trash	
Assignment of security deposits.	2-465	Storage, removal of waste for sal- vage or resale	11-6
Pensions and retirement	2-279 et seq.	Licenses and business regulations	
See: PENSIONS AND RETIRE- MENT		Towing companies	
Police		Storage rates	13-240
Security; traffic control	18-7	STREETS AND SIDEWALKS	
SEPTIC SYSTEMS		Adopt-a-road	19-8
Water, sewer, and stormwater utilities	21-108 et seq.	Advertising	3-1 et seq.
See: WATER, SEWER, AND STORMWATER UTILITIES		See: ADVERTISING	
SEWERS. See: WATER, SEWER, AND STORMWATER UTILITIES		Buildings, housing and structural reg- ulations	
SHRUBBERY. See: TREES AND SHRUBBERY		Duty to repair parkways, sidewalks, curbs, etc.	7-10
SIDEWALKS. See: STREETS AND SIDEWALKS		Garbage and trash	
SIGNS AND BILLBOARDS		Distance of residential containers from street	11-13
Parks and recreation		Licenses and business regulations . . .	13-149 et seq.
Use and conduct regulations		See: LICENSES AND BUSINESS REGULATIONS	
Specific regulations		Naming of public facilities and streets	
Signs or posters	16-60	Definitions	19-27
SMOKING		Naming and renaming procedure of facilities and streets	19-26
City commission		Public hearing and naming by city commission; referendum	19-29
Smoking during meetings	2-32	Review and recommendation by commission	19-28
Parks and recreation		Obstructing view at intersections . . .	19-5
Use and conduct regulations		Obstructions generally	19-4
Specific regulations		Offenses—miscellaneous	
Smoking prohibited in outdoor areas in the city parks	16-66	Noise	
SOCIAL SECURITY		Loud or unusual noises on streets	15-75
Pensions and retirement	2-279 et seq.	Official map	19-1
See: PENSIONS AND RETIRE- MENT		Permits to cut, excavate or otherwise disturb	19-7
SOLID WASTE. See: GARBAGE AND TRASH		Planning and development	17-41 et seq.
SOUND. See: NOISE		See: PLANNING AND DEVEL- OPMENT	
		Requirement to number all buildings	
		Building numbers specifications . . .	19-37
		Duty of owners of buildings	19-38

CODE INDEX

	Section		Section
STREETS AND SIDEWALKS (Cont'd.)		TAXATION (Cont'd.)	
General intent and applicability ...	19-35	Administrative rules and procedures	
Numbers to comply with article; au- thority of department of build- ing and licensing	19-36	Business tax receipts, permits or cer- tificates; due dates and delin- quency; penalties.....	2-97
School zone speed limits	19-9	Buildings, housing and structural reg- ulations	
Sidewalk construction and repair		Wireless communications systems	
Construction prerequisite to build- ing permit or certificate of oc- cupancy	19-18	Business tax receipt required; fee	7-94
Dangerous prohibited.....	19-24	Garbage and trash	
Duty to repair; notice.....	19-25	Disposal of tires; requirement for identification of tires with busi- ness tax receipt number	11-28
Establishment, marking of lines and grades	19-19	Improvements	
Fees for permits.....	19-21	East-west neighborhood improve- ment district	
Material and specifications	19-23	Utilization of tax or special as- sessment	2-604
Notice prior to beginning work....	19-22	Licenses and business regulations	13-2 et seq.
Permit required	19-20	See: LICENSES AND BUSINESS REGULATIONS	
Street sales.....	19-6	Local communications services tax	
Structures on mapped streets.....	19-2	Adoption of tax rate commencing October 1, 2002	19.5-34
Work to comply with state standards and specifications	19-3	Election regarding permit fees	19.5-29
		Preamble adopted by reference	19.5-28
STRUCTURES. See: BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS		Schedule of fees	
SUBDIVISIONS		Business tax receipts—Schedule of fees.....	2-654
Buildings, housing and structural reg- ulations		Utility tax	
Flood damage protection		Definitions	19.5-22
Flood-resistant development	7-85	Determination of amount	19.5-23
Planning and development	17-32 et seq.	Enterprise zone; partial utility tax exemption.....	19.5-24.1
See: PLANNING AND DEVEL- OPMENT		Exemptions	19.5-24
SURETY BONDS. See: BONDS, SURETY OR PERFORMANCE		Records to be kept	19.5-26
SWEAR OR SWORN. See: OATH, AF- FIRMATION, SWEAR OR SWORN		Remittance to the city by seller	19.5-25
		Reports of deliveries for resale.....	19.5-27
		Short title	19.5-21
T		TELECOMMUNICATIONS	
TAXATION		Buildings, housing and structural reg- ulations	
Additional homestead tax exemption for certain persons 65 years of age and older	19.5-1	Wireless communications systems	
Additional tax exemption for certain senior citizens	19.5-2	Telecommunications site develop- ment permit	7-93
		TOWERS AND ANTENNAS	
		Buildings, housing and structural reg- ulations.....	7-102 et seq.
		See: BUILDINGS, HOUSING AND STRUCTURAL REG- ULATIONS	

OPA-LOCKA CODE

	Section		Section
TRAFFIC AND VEHICLES		TRANSPORTATION. See: TRAFFIC AND VEHICLES	
Advertising		TRASH. See: GARBAGE AND TRASH	
Pasting or glueing to vehicle of another	3-6	TREES AND SHRUBBERY	
Alcoholic beverages		Offenses—miscellaneous	
Curb and car service prohibited ...	4-12	Damaging public trees and shrubbery	15-3
Buildings, housing and structural regulations		Water, sewer, and stormwater utilities	
Flood damage protection		Sewers and sewage disposal	
Flood-resistant development		Trees and shrubs interfering with sewers.....	21-122
Manufactured homes, recreational vehicles and park trailers	7-87	TRUCKS AND TRAILERS	
Garbage and trash.....	11-67 et seq.	Alcoholic beverages	
See: GARBAGE AND TRASH		Sale of liquor and wine from trucks	4-13
Licenses and business regulations		Buildings, housing and structural regulations	
Towing companies		Flood damage protection	
Fees and charges for towing privately owned vehicles.....	13-239	Flood-resistant development	
Nuisances	14-19 et seq.	Manufactured homes, recreational vehicles and park trailers	7-87
See: NUISANCES		Trailers	20-8 et seq.
Offenses—miscellaneous	15-135 et seq.	See: TRAILERS	
See: OFFENSES—MISCELLANEOUS			
Parks and recreation			
Use and conduct regulations			
Specific regulations			
Traffic.....	16-62		
Police			
Security; traffic control	18-7		
TRAILERS			
Buildings, housing and structural regulations			
Flood damage protection			
Flood-resistant development			
Manufactured homes, recreational vehicles and park trailers	7-87		
Defined	20-1		
Emergency parking on public ways ..	20-3		
Parking for repairs	20-6		
Parking for sale or repair by authorized businesses.....	20-7		
Parking in private garage.....	20-4		
Parking prohibited except in trailer park	20-2		
Parking, use as construction shack...	20-5		
Truck routes	20-8		

CODE INDEX

	Section		Section
UTILITIES (Cont'd.)		W	
Water, sewer, and stormwater utilities	21-1 et seq.	WALLS. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
See: WATER, SEWER, AND STORMWATER UTILITIES		WATER, SEWER, AND STORMWATER UTILITIES	
V		Department of public works and util- ities established	21-1
VARIANCES		Departmental responsibilities	21-3
Buildings, housing and structural reg- ulations		Director and personnel of depart- ment	21-2
Flood damage protection		Parks and recreation	
Variances and appeals	7-81	Use and conduct regulations	
Environment		Specific regulations	
Tree protection and conservation		Polluting waters	16-49
Tree variance	8.2-31	Water activities	16-63
VEGETATION		Sewers and sewage disposal	
Garbage and trash		Additional regulations governing side sewers and connections ..	21-123
City not responsible for building de- bris, furniture, vegetation cut before occupancy	11-19	Connection by city contractor	21-113
Offenses—miscellaneous		Connection charge outside city	21-112
Damaging public trees and shrub- bery	15-3	Connection required	21-107
Parks and recreation		Correction of inadequate gravity flow	21-118
Use and conduct regulations		County standards adopted; enforce- ment, violation	21-124
Specific regulations		Creation of sewer modification dis- tricts to increase capacity	21-114
Damaging vegetation	16-47	Damaging system or public area...	21-121
Water, sewer, and stormwater utilities		Definitions	21-105
Sewers and sewage disposal		Discharge of non-city water prohib- ited	21-119
Trees and shrubs interfering with sewers	21-122	Discharging to well or open stream	21-106
VEHICLES. See: TRAFFIC AND VE- HICLES		Exception for interim package treat- ment facilities	21-110
VENDORS		Exemption from connection for ex- isting septic tanks	21-108
Licenses and business regulations	13-149 et seq.	Financing of sewer modification dis- tricts	21-115
See: LICENSES AND BUSINESS REGULATIONS		Notice, correction of defective side sewers or drainage	21-116
Purchasing		Obstructing, breaking, injuring sewer facilities	21-120
Department of purchasing		Responsibility for costs of connec- tion and maintenance	21-111
Duties of purchasing officer		Septic tanks	
Minority vendor procurement program	2-351	Application for permit	21-186
Minority vendor procurement pro- gram	2-323	Discontinuance	21-188
VOTING. See: ELECTIONS		Disposal of septic tank contents	21-189
		Permit issuance	21-187

OPA-LOCKA CODE

WATER, SEWER, AND STORMWATER UTILITIES (Cont'd.)	Section	WATER, SEWER, AND STORMWATER UTILITIES (Cont'd.)	Section
Permit required.....	21-185	Representative to be present for inspection	21-149
Service charges		Restoration of public areas.....	21-155
Billing and payment	21-171	Unguarded excavations on pri- vate property	21-153
Charges for special treatment or disposal.....	21-170	Work to be left uncovered until inspected and approved	21-150
Computation	21-167	Stormwater utility	
Credit for water not entering sewer system	21-168	Construction.....	21-192
Deposit, use of revenues gener- ally.....	21-174	Customer base	21-195
Discontinuing water service for nonpayment	21-172	Definitions	21-193
Establishment; basis.....	21-166	Exemptions	21-198
Interceptors and preliminary treatment required.....	21-169	Fee schedule and payment	21-197
Lien for sewer charge.....	21-173	Legislative intent.....	21-191
Temporary use of septic tank.....	21-109	Permits, plan reviews, inspections, and administrative fees	21-202
Trees and shrubs interfering with sewers	21-122	Prohibitions, generally	21-201
Use of existing side sewer.....	21-117	Request for adjustment	21-200
Work on or affecting sewers		Short title	21-190
Additional work not covered by permit	21-143	Stormwater utility enterprise funds	21-199
Application for permit	21-139	Utility established.....	21-194
Call for inspection.....	21-148	Utility fee categories	21-196
Connection permit required.....	21-137	Surcharge for customers outside city limits	21-4
Contractor not to tamper with public sewer	21-135	Water	
Contractor's duty to guard exca- vations.....	21-152	Application for private fire protec- tion service; charge.....	21-35
Easement prerequisite to permit	21-140	Application for service required; na- ture of contract	21-23
Expiration of permit	21-145	Applications by agents.....	21-24
Improper work; completion by city, costs	21-154	Approval of privately constructed extensions.....	21-18
License required to do work af- fecting sewer.....	21-134	Change of occupancy.....	21-34
Manner of making connection generally	21-136	Charge for multiple meters for sin- gle building	21-29
Notice of disapproval of work ..	21-151	City not liable for interruption of service.....	21-21
Permit fee.....	21-141	Connection to city system required	21-15
Permit for temporary connection	21-144	Consumer to reimburse department expenses.....	21-20
Permit records.....	21-142	Cost and deposit for temporary ser- vice.....	21-30
Permits for work done inside property lines.....	21-138	Cross-connection control program	
Police, manager to enforce per- mit requirement	21-147	Cross-connections prohibited ...	21-95.1
Posting and display of permit ...	21-146	Definitions	21-95
		Discontinuance of public water service	21-95.9

CODE INDEX

Section	Section
WATER, SEWER, AND STORMWATER UTILITIES (Cont'd.)	WATER, SEWER, AND STORMWATER UTILITIES (Cont'd.)
Enforcement.....	21-95.8
Installation at customer's expense	21-95.6
Installation of backflow prevention devices required	21-95.2
Location to be accessible	21-95.5
Protective device approval.....	21-95.3
Types of backflow prevention devices to be installed.....	21-95.4
User responsible for inspections.	21-95.7
Definitions	21-14
Deposit to cover extension costs...	21-17
Expiration, renewal of contracts for service.....	21-26
Extensions to be at expense of person requesting; title in city	21-16
Fire protection to be unmetered ...	21-37
Grounds for discontinuing service .	21-38
Quality and pressure not guaranteed	21-22
Resale or redistribution of water ..	21-32
Responsibility for service to multiple premises	21-27
Restrictions on sprinkling	21-39
Right to deny service until debts paid	21-25
Right to enter consumer's premises	21-19
Right to refuse private fire protection service.....	21-36
Scope of short-term service.....	21-31
Service lines and connections	
Bypassing meter.....	21-65
Changes in consumer's plumbing	21-57
City to determine service size ...	21-50
City to make connections	21-53
Consumer to grant easements, rights, etc.	21-62
Consumer to hold city harmless.	21-59
Consumer to protect city property	21-60
Cross-connecting city water with another liquid	21-64
Cross-connecting domestic and fire protection service prohibited	21-63
Department to install service line	21-51
Department's right to inspect ...	21-58
Enlargement of service	21-52
	Extension of plumbing to service point.....
	21-55
	Plumbing to comply with applicable regulations.....
	21-56
	Responsibility for damages to city property
	21-61
	Tapping charge required
	21-54
	Unauthorized connections
	21-66
	Service rates and charges
	Billing procedure; penalty for late payment; lien
	21-83
	City to install, maintain meters .
	21-88
	Deposits
	21-80
	Discontinuing service for bill at prior location.....
	21-86
	Estimate of bill when meter defective.....
	21-93
	Excess not charged against minimum for other months
	21-79
	Meter reading prima facie correct
	21-90
	Nonreceipt of bill not to excuse payment
	21-84
	Obscuring, damaging meters
	21-92
	Rates for private fire protection service
	21-81
	Repair of meter or service on consumer's premises.....
	21-94
	Schedule of rates generally
	21-77
	Scope of minimum
	21-78
	Temporary discontinuance of service
	21-82
	Testing of meters; adjustment of bill.....
	21-91
	Title to meters, metering equipment
	21-89
	To whom payment made
	21-87
	When bills due and payable; discontinuing service for non-payment
	21-85
	Service to abnormally large users ..
	21-33
	Termination of multiple service when one premises sold
	21-28
	Water shortage emergency restrictions
	General provisions
	21-96

OPA-LOCKA CODE

	Section	Section
WATER, SEWER, AND STORMWATER UTILITIES (Cont'd.)		
Regulations governing Miami- Dade Billing for the City of Opa-locka	21-97	
WEAPONS. See: FIREARMS AND WEAPONS		
WIRES. See: POLES AND WIRES		

Z

ZONING

Administrative rules and procedures	
Certification of conformity with agency action, zoning, compli- ance	2-94
Buildings, housing and structural reg- ulations	7-7 et seq.
See: BUILDINGS, HOUSING AND STRUCTURAL REG- ULATIONS	
Department of planning and zoning .	2-421 et seq.
See: DEPARTMENT OF PLAN- NING AND ZONING	
Excavations and filling	
Recommendations of engineer, planning and zoning board on application	9-5
Land development regulations saved from repeal and continued in ef- fect	22-1
Licenses and business regulations	
Coin-operated devices	
Hours of operation in industrial- zoned properties	13-106
Flea markets and bazaars	
Permitted in retail sales zoning districts	13-211
Planning and development	
Procedure for submission of plan- ning and zoning board action to city commission	17-1
Planning and zoning board	2-497 et seq.
See: PLANNING AND ZONING BOARD	

CITY OF OPA-LOCKA, FLORIDA

LAND DEVELOPMENT REGULATIONS

Published in 2025 by Order of the City Commission



info@municode.com | 800.262.2633 | www.municode.com

P.O. Box 2235 Tallahassee, FL 32316

PREFACE

This Code constitutes a recodification of the land development regulations of the City of Opa-locka, Florida.

Source materials used in the preparation of the regulations were the ordinances adopted by the city commission. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any ordinance included herein.

Notes which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of land development regulations, which may or may not appear in this publication at this time, and their corresponding prefixes:

LAND DEVELOPMENT REGULATIONS	LDR:1
LAND DEVELOPMENT REGULATIONS APPENDIX	LDRA:1
LAND DEVELOPMENT REGULATIONS COMPARATIVE TABLES	LDRCT:1
LAND DEVELOPMENT REGULATIONS STATE LAW REF- ERENCE TABLE	LDRSLT:1
LAND DEVELOPMENT REGULATIONS INDEX	LDRi:1

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page

or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgements

This publication was under the direct supervision of Roger D. Merriam, Senior Code Attorney, and Howard George, Editor, of CivicPlus, LLC, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to John Pate, City Manager, Burnadette Norris-Weeks, City Attorney, Candice Cobb, Assistant City Attorney, Joanna Flores, CMC, City Clerk, Gregory Gay, Director of Planning and Community Development, Corion DeLaine, Interim CRA Manager/City Planner, Gerald Lee, Planner/Zoning Official, Robert Anathan, Budget Administrator, Airia Austin, Public Works Director/Director of Capital Improvement Projects, Steven Barreira, Chief of Police, Nikeya Hill, Assistant Chief of Police, Geraldine Lazzarre, Financial Consultant, and Nelson Rodriguez, Director of Information Technology, for cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

Copyright

All editorial enhancements of this Code are copyrighted by CivicPlus, LLC, and the City of Opa-locka, Florida. Editorial enhancements include, but are not limited to: organization; table of contents; section catchlines; prechapter section analyses; editor's notes; cross references; state law references; numbering system; code comparative table; state law reference table; and index. Such material may not be used or reproduced for commercial purposes without the express written consent of CivicPlus, LLC, and the City of Opa-locka, Florida.

© Copyrighted material.

CivicPlus, LLC, and the City of Opa-locka, Florida. 2025.

TABLE OF CONTENTS

	Page
Preface.	LDR:iii
Adopting Ordinance (Reserved)	

LAND DEVELOPMENT REGULATIONS

Chapter

22. Land Development Regulations	LDR:1
Art. I. General Provisions.	LDR:7
Art. II. Administrative Provisions	LDR:13
Art. III. Application Review and Approval Requirements . . .	LDR:15
Art. IV. Districts, Permitted Uses, and Development Stan-	
dards	LDR:34
Art. V. Supplemental Standards.	LDR:110
Art. VI. Off-Street Parking and Loading Requirements	LDR:146.2
Art. VII. Landscaping and Tree Preservation.	LDR:154
Art. VIII. Green Standards	LDR:175
Art. IX. Concurrency	LDR:180
Art. X. Sign Regulations.	LDR:189
Art. XI. Definitions.	LDR:228
Art. XII. Impact Fees	LDR:259
Div. 1. Generally	LDR:259
Div. 2. Road Drainage Impact Fee	LDR:259
Div. 3. Public Safety Impact Fee	LDR:266
Div. 4. Park Impact Fee	LDR:271
Div. 5. Water and Sewer Impact Fee	LDR:277
Land Development Regulations Comparative Table—Legislation	LDRCT:1
State Law Reference Table—Land Development Regulations.	LDRSLT:1
Land Development Regulations Index.	LDRi:1



SUSTAINABLE OPA-LOCKA

2015 LAND DEVELOPMENT REGULATIONS (ADOPTED)

The work that provided the basis for this publication was supported by funding under an award with the U.S. Department of Housing and Urban Development. The substance and findings of the work are dedicated to the public. The author and publisher are solely responsible for the accuracy of the statements and interpretations contained in this publication. Such interpretations do not necessarily reflect the views of the federal government.

Chapter 22

LAND DEVELOPMENT REGULATIONS*

Article I. General Provisions

Sec. 22-1.	Title.
Sec. 22-2.	Authority.
Sec. 22-3.	Purpose.
Sec. 22-4.	Intent of land development regulations.
Sec. 22-5.	Applicability to development.
Sec. 22-6.	Rules of interpretation.
Sec. 22-7.	Private deed restrictions.
Sec. 22-8.	Form of ownership.
Sec. 22-9.	Official zoning district map.
Sec. 22-10.	Changes, amendments, or supplements.
Sec. 22-11.	Nonconforming development.
Sec. 22-12.	Substandard single-family lots.
Sec. 22-13.	Commercial principal use.
Sec. 22-14.	Violation of permit condition of time limitation.
Sec. 22-15.	Vested rights.
Sec. 22-16.	Enforcement.
Sec. 22-17.	Permits and licenses.
Sec. 22-18.	Severability.

*State law references—Municipal Home Rule Powers Act, F.S. ch. 166; Community Planning Act, F.S. § 163.2511 et seq.; land development code required, F.S. § 163.3202(3).

OPA-LOCKA LAND DEVELOPMENT CODE

- Sec. 22-19. Right to judicial review.
Secs. 22-20—22-30. Reserved.

Article II. Administrative Provisions

- Sec. 22-31. Purpose and authority.
Sec. 22-32. City commission.
Sec. 22-33. Local planning agency.
Sec. 22-34. Planning and zoning board.
Sec. 22-35. Reserved.
Sec. 22-36. Development review committee.
Sec. 22-37. Department of planning and zoning.
Secs. 22-38—22-48. Reserved.

Article III. Application Review and Approval Requirements

- Sec. 22-49. General requirements for applications.
Sec. 22-50. Appeal of administrative decision.
Sec. 22-51. Comprehensive plan amendments.
Sec. 22-53. Land development regulations text amendments.
Sec. 22-54. Rezoning.
Sec. 22-55. Site plan application.
Sec. 22-56. Site plan modification.
Sec. 22-57. Temporary use permit.
Sec. 22-58. Variance.
Sec. 22-59. Administrative adjustment procedure.
Sec. 22-60. Conditional use and special exception applications.
Sec. 22-61. Certificates of occupancy and re-occupancy.
Sec. 22-62. Violations, penalties and other remedies.
Sec. 22-63. Vested rights determinations.
Secs. 22-64—22-74. Reserved.

Article IV. Districts, Permitted Uses, and Development Standards

- Sec. 22-75. Purpose.
Sec. 22-76. Use definitions.
Sec. 22-77. Schedule of districts and official zoning map.
Sec. 22-78. Prohibited uses and structures.
Sec. 22-79. Permitted uses table—Residential districts.
Sec. 22-80. Permitted uses table—Commercial districts.
Sec. 22-81. Permitted uses table—Industrial districts.
Sec. 22-82. Permitted uses table—Mixed use and civic districts.
Sec. 22-83. R-1 Single-Family Residential District.
Sec. 22-84. R-2 Two-Family Residential District.
Sec. 22-85. R-3 Moderate Density Residential District.
Sec. 22-86. R-TH Residential Townhouse District.
Sec. 22-87. R-4 High Density Residential District.
Sec. 22-88. B-O Business Office District.
Sec. 22-89. B-1 Commercial Neighborhood Business District.
Sec. 22-90. B-2 Commercial Liberal Business District.
Sec. 22-91. B-3 Commercial Intensive Business District.
Sec. 22-92. I-1 Light Industrial District.
Sec. 22-95. I-2 Industrial Planned District.
Sec. 22-93. I-3 Liberal Industrial District.
Sec. 22-94. I-4. Liberal Industrial District, storage and salvage.
Sec. 22-96. C Civic District.
Sec. 22-97. Downtown Mixed Use Future Land Use District.
Sec. 22-98. Magnolia North Mixed Use Future Land Use District.
Sec. 22-99. MXUOD Corridor Mixed Use Overlay District.

OPA-LOCKA LAND DEVELOPMENT CODE

- Sec. 22-100. Other development standards for vertical mixed use buildings.
- Sec. 22-101. Historic downtown Opa-locka district.
- Sec. 22-102. Opa-locka Innovation District.
- Secs. 22-103—22-110. Reserved.

Article V. Supplemental Standards

- Sec. 22-111. Exclusion from height limits.
- Sec. 22-112. Developer agreement and restrictive covenants.
- Sec. 22-113. Exterior lighting standards/light pollution reduction.
- Sec. 22-114. Boat and watercraft storage and registration for zoned single-family residential.
- Sec. 22-115. Parking of trucks.
- Sec. 22-116. Recreational vehicles.
- Sec. 22-117. Sales within public right-of-way.
- Sec. 22-118. Property maintenance.
- Sec. 22-119. Temporary use.
- Sec. 22-120. Temporary outdoor sale of trees and fireworks.
- Sec. 22-121. Sheds.
- Sec. 22-122. Structures and uses limited in yards.
- Sec. 22-123. Group homes.
- Sec. 22-124. Day care and other nursery facilities.
- Sec. 22-125. Places of religious worship.
- Sec. 22-126. Swimming pools.
- Sec. 22-127. Flea markets and bazaars.
- Sec. 22-128. Yard sales.
- Sec. 22-129. Lot frontage and yard requirements.
- Sec. 22-130. Impervious area.
- Sec. 22-131. Stormwater management.
- Sec. 22-132. Underground utilities.
- Sec. 22-133. Utilities.
- Sec. 22-134. Walls, fences and hedges.
- Sec. 22-135. Events.
- Sec. 22-136. Regulations of adult entertainment establishments.
- Sec. 22-137. Alcoholic beverages.
- Sec. 22-138. Reserved.
- Sec. 22-139. Art in public places.
- Sec. 22-140. Auto service stations to service vehicles for a licensed business.
- Sec. 22-141. Home occupation.
- Sec. 22-142. Operating standards for community gardens.
- Sec. 22-142.1. Moorish revival style design standards.
- Sec. 22-143. Operating standards for farmers' markets.
- Sec. 22-144. Operating standards for urban gardens.
- Sec. 22-145. Indoor shooting range/gun club.
- Secs. 22-146—22-150. Reserved.

Article VI. Off-Street Parking and Loading Requirements

- Sec. 22-151. Purpose and intent.
- Sec. 22-152. General principles.
- Sec. 22-153. Parking specifications.
- Sec. 22-154. Parking structures.
- Sec. 22-155. Minimum parking ratios.
- Sec. 22-156. Shared parking.
- Sec. 22-157. Pavement markings.
- Sec. 22-158. Off-street loading requirements.
- Sec. 22-159. Stacking spaces.
- Sec. 22-160. Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks.

OPA-LOCKA LAND DEVELOPMENT CODE

Secs. 22-161—22-170. Reserved.

Article VII. Landscaping and Tree Preservation

- Sec. 22-171. Purpose.
- Sec. 22-172. Applicability.
- Sec. 22-172. Definitions.
- Sec. 22-173. Compliance with city standards.
- Sec. 22-174. Compliance with county standards.
- Sec. 22-175. General provisions.
- Sec. 22-176. Landscape plan required.
- Sec. 22-177. Administration.
- Sec. 22-178. Irrigation plan required.
- Sec. 22-179. Annual inspections.
- Sec. 22-180. Maintenance responsibilities.
- Sec. 22-181. Environmental survey.
- Sec. 22-182. Types of landscaping.
- Sec. 22-183. Plant material and installation.
- Sec. 22-184. Tree/vegetation protection and conservation.
- Sec. 22-185. Removal, replacement, relocation of significant vegetation.
- Sec. 22-186. Tree preservation and removal.
- Sec. 22-187. Plant lists.
- Secs. 22-188—22-198. Reserved.

Article VIII. Green Standards

- Sec. 22-199. Purpose.
- Sec. 22-200. Public facilities.
- Sec. 22-201. Standards.
- Sec. 22-202. Recycling and diversion of construction and demolition waste.
- Sec. 22-203. Green building program designation.
- Sec. 22-204. Green building fund.
- Sec. 22-205. Exemptions.
- Secs. 22-206—22-216. Reserved.

Article IX. Concurrency

- Sec. 22-217. Application for concurrency.
- Sec. 22-218. Applicability and exemptions.
- Sec. 22-219. Concurrency level of service standards.
- Sec. 22-220. Concurrency management system (CMS) criteria for review.
- Sec. 22-221. Concurrency administration.
- Sec. 22-222. Concurrency review.
- Sec. 22-223. Capacity reservation certificate.
- Sec. 22-224. Recreation and open space exception and credits.
- Sec. 22-225. Capital improvements schedule review.

Article X. Sign Regulations

- Sec. 22-226. Purpose and intent.
- Sec. 22-227. General principles.
- Sec. 22-228. Definitions.
- Sec. 22-229. Sign plan required.
- Sec. 22-230. Sign permit.
- Sec. 22-231. General requirements.
- Sec. 22-232. Signs permitted without sign permit.
- Sec. 22-233. Nonconforming signs/amortization.
- Sec. 22-234. Signage design standards.
- Sec. 22-234.1. Certain county code provisions inapplicable.

OPA-LOCKA LAND DEVELOPMENT CODE

- Sec. 22-235. Signage along principal arterial and minor arterial corridors (PAMA).
- Sec. 22-236. Signage along collector roads.
- Sec. 22-237. Signage in historical districts and/or for historical buildings.
- Sec. 22-238. Signage in the TOD Transit Oriented Development District.
- Sec. 22-239. Signage in the Magnolia North Redevelopment Overlay Zone.
- Sec. 22-240. Mixed-Use Overlay District.
- Sec. 22-241. Reserved.
- Sec. 22-242. Temporary signs.
- Sec. 22-242. Prohibited signs.
- Sec. 22-243. Violations and penalties.

Article XI. Definitions

- Sec. 22-237[22-244]. Purpose.
- Sec. 22-238[22-245]. Terms defined.
- Secs. 22-239[22-246]—22-250. Reserved.

Article XII. Impact Fees

Division 1. Generally

- Secs. 22-251—22-270. Reserved.

Division 2. Road Drainage Impact Fee

- Sec. 22-271. Legislative findings.
- Sec. 22-272. Short title, authority and applicability.
- Sec. 22-273. Intents and purposes.
- Sec. 22-274. Rules of construction.
- Sec. 22-275. Definitions.
- Sec. 22-276. Imposition of road drainage impact fee.
- Sec. 22-277. Computation of the amount of road drainage impact fee.
- Sec. 22-278. Payment of fee.
- Sec. 22-279. Road drainage impact fee districts.
- Sec. 22-280. Road drainage impact fee trust fund established.
- Sec. 22-281. Use of funds.
- Sec. 22-282. Refund of fees paid.
- Sec. 22-283. Exemptions and credits.
- Sec. 22-284. Appeals.
- Sec. 22-285. Review.
- Sec. 22-286. Penalty provision.
- Secs. 22-287—22-309. Reserved.

Division 3. Public Safety Impact Fee

- Sec. 22-310. Legislative findings.
- Sec. 22-311. Short title, authority and applicability.
- Sec. 22-312. Intents and purposes.
- Sec. 22-313. Rules of construction.
- Sec. 22-314. Definitions.
- Sec. 22-315. Imposition of public safety impact fee.
- Sec. 22-316. Computation of the amount of public safety impact fee.
- Sec. 22-317. Payment of fee.
- Sec. 22-318. Public safety impact fee trust fund established.
- Sec. 22-319. Use of funds.
- Sec. 22-320. Refund of fees paid.
- Sec. 22-321. Exemptions and credits.
- Sec. 22-322. Review.
- Sec. 22-323. Penalty provision.

OPA-LOCKA LAND DEVELOPMENT CODE

Secs. 22-324—22-343. Reserved.

Division 4. Park Impact Fee

- Sec. 22-344. Legislative findings.
- Sec. 22-345. Short title, authority and applicability.
- Sec. 22-346. Intents and purposes.
- Sec. 22-347. Rules of construction.
- Sec. 22-348. Definitions.
- Sec. 22-349. Imposition of park impact fee.
- Sec. 22-350. Computation of the amount of park impact fee.
- Sec. 22-351. Payment of fee.
- Sec. 22-352. Park impact fee districts.
- Sec. 22-353. Park impact fee trust funds established.
- Sec. 22-354. Use of funds.
- Sec. 22-355. Refund of fees paid.
- Sec. 22-356. Exemptions and credits.
- Sec. 22-357. Review.
- Sec. 22-358. Penalty provision.
- Secs. 22-359—22-378. Reserved.

Division 5. Water and Sewer Impact Fee

- Sec. 22-379. Legislative findings.
- Sec. 22-380. Short title and authority.
- Sec. 22-381. Intents and purposes.
- Sec. 22-382. Rules of construction.
- Sec. 22-383. Definitions.
- Sec. 22-384. Imposition of water and sewer impact fee.
- Sec. 22-385. Computation of the amount of water and sewer impact fee.
- Sec. 22-386. Payment of fee.
- Sec. 22-387. Water and sewer impact fee districts.
- Sec. 22-388. Water and sewer impact fee trust fund established.
- Sec. 22-389. Use of funds.
- Sec. 22-390. Refund of fees paid.
- Sec. 22-391. Exemptions and credits.
- Sec. 22-392. Appeals.
- Sec. 22-393. Review.
- Sec. 22-394. Penalty provision.

ARTICLE I. GENERAL PROVISIONS**Sec. 22-1. Title.**

The ordinances embraced in this and the following articles shall constitute and be designated the "City of Opa-locka Zoning and land development code," and may be so cited. It may also be cited as the "land development regulations" or as the "land development code."

(Ord. No. 16-07, exh. A(22-1), 9-14-2016)

Sec. 22-2. Authority.

These land development regulations are enacted pursuant to the requirements and authority of F.S. § 163.3202, part of the Community Planning Act, and the city Charter.

(Ord. No. 16-07, exh. A(22-2), 9-14-2016)

Sec. 22-3. Purpose.

The regulations set forth herein shall apply to all of the land, water improvements, structures and uses located or conducted within the municipal boundaries of the city. The purpose of these regulations is not merely to provide the minimum regulations necessary to facilitate safe and orderly growth, but to also ensure that growth forms an integral part of a community of functional neighborhoods, retail and commercial centers; increases collective security and community identity; and enhances the quality of life for the entire city to ensure the greatest possible economic and social benefits for all residents.

(Ord. No. 16-07, exh. A(22-3), 9-14-2016)

Sec. 22-4. Intent of land development regulations.

The provisions of this chapter are intended to:

1. Implement and promote consistency with goals, objectives and policies of the city's comprehensive plan.
2. Promote and preserve the public health, safety, morals and welfare:
 - Specify the duties and responsibilities of the city in administering this chapter.
 - Adopt a development review process that is efficient, effective, and equitable.
 - Establish clear and certain regulations, procedures and development standards for obtaining development order and permitting approvals for all proposed development in the city.
 - Provide specific procedures to ensure that development orders and permits are conditioned on the availability of public facilities and services that meet level of service requirements (concurrency).

(Ord. No. 16-07, exh. A(22-4), 9-14-2016)

Sec. 22-5. Applicability to development.

The provisions of this chapter shall apply to all development in the city, unless otherwise provided for in the city Charter. The provisions of this chapter are not applicable to the city. No development, except as specifically provided in this chapter, shall be undertaken without prior authorization pursuant to this chapter.

(Ord. No. 16-07, exh. A(22-5), 9-14-2016)

Sec. 22-6. Rules of interpretation.

All provisions shall be considered as minimum requirements; liberally construed in favor of the objectives and purposes of the city; and deemed neither to limit nor repeal any other powers granted under state statutes or city

Charter. If any question arises concerning the application of regulations, performance standards, definitions, development criteria, or any other provision of this chapter, the director of the department of planning and zoning shall be responsible for interpretation and shall look to the comprehensive plan for guidance.

The interpretation and application of the regulations and provisions within this chapter shall be responsibly and uniformly applied to all property within the jurisdiction of the city.

Whenever the regulations within this chapter vary from the regulations of any other lawfully enacted and adopted rules, regulations, ordinances or laws, the most restrictive shall apply, except if noted herein.

If, because of error or omission on the zoning map, property within the city is not shown as being in a zoning district, the classification shall be R-1 single-family until changed by rezoning. The language used in this chapter shall be interpreted according to the following rules:

Computation of time. The time within which an act is to be done shall be computed by consecutive calendar days excluding Saturdays, Sundays or legal holidays (business day), unless stated otherwise.

Delegation of authority. The city manager has the authority to delegate to professional level subordinates to perform the required acts or duties unless the terms of the provision or section specify otherwise.

Number. Words in the singular shall include the plural and words in the plural shall include the singular.

Shall, may. The term "shall" is mandatory; the term "may" is permissive.

Tense. Words used in the past or present tense include the future as well as the past or present.

Written, in writing. The term "written" or "in writing" shall be construed to include any representation of words, letters or figures, whether by printing, electronic or otherwise.

Year. The term "year" means a calendar year, unless otherwise indicated.

Day. The term "day" means a calendar day unless a business day is indicated.

Boundaries. Interpretations regarding boundaries of zoning districts shall be made in accordance with the following:

- Boundaries shown following or approximately following any street shall be construed as following the centerline of the street.
- Boundaries shown following or approximately following any platted lot line or other property line shall be construed as following such line.
- Boundaries shown following or approximately following section lines, half-section lines, or quarter-section lines shall be construed as following such lines.

Person. The term "person" includes a firm, association, organization, partnership, corporation, trust and company as well as an individual.

Lot. The term "lot" includes the term "plot," "parcel" or "tract."

Structure. The term "structure" includes the term "building."

District map or zoning map. The term "district map" or "zoning map" means the official zoning district map.

City commission. The term "city commission" means the city commission of the city.

Department. The term "department" means the department of planning and zoning.

The terms "ordinance," "code" and "land development code" are synonymous and refer to the city's land development regulations.

(Ord. No. 16-07, exh. A(22-6), 9-14-2016)

Sec. 22-7. Private deed restrictions.

No public agency shall be responsible for enforcing any private deed restriction or restrictive covenants. This does not impact public deed restrictions or covenants.

(Ord. No. 16-07, exh. A(22-7), 9-14-2016)

Sec. 22-8. Form of ownership.

These regulations shall be construed and applied with reference to the nature of the use of such property and without regard to the form of ownership.

(Ord. No. 16-07, exh. A(22-8), 9-14-2016)

Sec. 22-9. Official zoning district map.

The city's official zoning district map (Exhibit 1), as amended from time to time, is established and incorporated as part of these regulations. The official zoning district map delineates the boundaries of all zoning districts as adopted by the city commission, as amended from time to time, and shall be kept on file with the director of the department of planning and zoning.

(Ord. No. 16-07, exh. A(22-9), 9-14-2016)

Sec. 22-10. Changes, amendments, or supplements.

All changes, amendments, or supplements to this chapter and to the zoning district map shall be adopted in accordance with the provisions of this chapter, the city's comprehensive plan, and applicable state law.

(Ord. No. 16-07, exh. A(22-10), 9-14-2016)

Sec. 22-11. Nonconforming development.

It is the purpose and intent of this section to provide procedures whereby lawful nonconforming structures and uses may be maintained when not creating a detrimental effect upon other persons or property within the vicinity, and in so doing to bring such uses and structures up to present standards to the maximum possible extent.

- A. *Abandonment/discontinuation.* For purposes of this section, a nonconforming use shall be considered abandoned or having ceased when discontinued for a period of one hundred eighty (180) calendar days or more as indicated by any of the following:
 - Allowing business tax receipt or certificate of use to lapse;
 - Removing meters;
 - Not maintaining structure in a compliant condition;
 - Not making unit available for occupancy;
 - Failure to perform actions pursuant to the terms of an active building permit; or
 - Failure to occupy the site.
- B. *Nonconforming use of a conforming building.* The lawful nonconforming use of a building may be continued, although such use does not conform to the regulations of an applicable zoning district within which the building is located. Any such use shall only be changed to a permitted use. A nonconforming use shall not be expanded. If the nonconforming use is discontinued, any further use of said building shall conform to the regulations of the applicable zoning district.
- C. *Conforming use of a nonconforming building.* A lawful nonconforming building may be utilized for any use that conforms to the regulations of the applicable zoning district within which the building is located. Structural alterations may only be made when they do not increase the degree of nonconformity of the building but are discouraged.

- D. *Nonconforming use of a nonconforming building.* The lawful nonconforming use of a lawful nonconforming building may be continued although such use and building do not conform to the regulations of the applicable zoning district within which the building is located. However, neither the use nor the building shall be expanded. If the nonconforming use is abandoned, any further use of said building shall conform to the regulations of the applicable zoning district.
- E. *Nonconforming use of land.* The nonconforming use of land shall be discontinued. If any building incident and subordinate to such use of land is constructed as to permit the issuance of a permit for a use not excluded from the zoning district, such building may remain as a conforming structure; thereafter, both land and building shall become conforming.
- F. *Nonconforming accessory use or accessory building.* A nonconforming accessory use or accessory building may be expanded only if the nonconforming features of that use or structure are not expanded so as to increase the degree of nonconformity. No nonconforming accessory use or accessory building shall continue after the principal use or building is terminated by abandonment, damage, or destruction, unless such accessory use or accessory building thereafter is made to conform to the standards for the zoning district in which it is located. No nonconforming accessory use or building shall become or replace any terminated principal nonconforming use or building.
- G. *Maintenance, repairs and renovations.* Normal structural repairs, maintenance and renovations may be performed to allow the continuation of a nonconforming building. However, such cumulative work in any twelve (12) month period shall not exceed fifty (50) percent of the assessed value of such building. Assessed value for purposes of this section shall be determined by using the current assessed value as provided by the property appraiser's office.
- H. *Compliance with regulations.* Nothing in this section shall diminish the responsibility of an owner to maintain his use or structure in full compliance with all other town, county, state or federal regulations or licensing procedures.
- I. *Establishment of nonconformity.* For the purpose of this section, the mere possession of a valid approval to use land or buildings or valid license to do so without actual demonstrable use of such land or structure is an insufficient basis to establish lawful nonconformity.
- J. *Special provisions for specific nonconformities.*
 - 1. *Nonconformity with stormwater management requirements.* An existing development that does not currently comply must be brought into full compliance with the stormwater management requirements of the city when the use is changed, intensified or the density or intensity of the development is increased, resulting in a potential increase in stormwater runoff or potential added concentration of pollutants in the runoff.
 - 2. *Nonconformity with parking and loading requirements.* Full compliance with this chapter shall be required where the seating capacity or other factors controlling the number of parking or loading spaces required is increased by ten (10) percent or more.
 - 3. *Nonconforming signs.* Signs or sign structures that are nonconforming shall be removed in accordance with article X of this code. No permits for additional signs shall be issued for any premises on which there are any nonconforming signs.

(Ord. No. 16-07, exh. A(22-11), 9-14-2016)

Sec. 22-12. Substandard single-family lots.

Any lot in a single-family residential district that is not smaller than four thousand eight hundred (4,800) square feet and that was platted prior to the adoption of these regulations shall not be deemed a nonconforming lot for purposes of minimum lot size, and shall be permitted to be developed in accordance with the applicable zoning district regulations where the lot is located.

(Ord. No. 16-07, exh. A(22-12), 9-14-2016)

Sec. 22-13. Commercial principal use.

Only one (1) principal use and up to four (4) subsidiary uses shall be permitted per establishment.
(Ord. No. 16-07, exh. A(22-13), 9-14-2016)

Sec. 22-14. Violation of permit condition of time limitation.

A violation of any condition or time limitation of any resolution, development permit or approval shall be considered a violation of this chapter. The violation shall be corrected prior to any public hearing or meeting on the issuance of any subsequent development permit or approval for that project unless a subsequent application seeks to amend the condition or time limitation that has been violated. Unless otherwise specified in the resolution, development permit, or approval, an approved use must comply with conditions and time limitations before implementation of the approval, or before receipt of a certificate of occupancy or certificate of completion.
(Ord. No. 16-07, exh. A(22-14), 9-14-2016)

Sec. 22-15. Vested rights.

Unless otherwise permitted as an exception under subsection A of this section or allowed to continue as a nonconforming use under section 22-11, all existing, proposed and new development or redevelopment and uses of land in the city shall conform strictly to the provisions of these land development regulations. Except as expressly provided in these land development regulations, no development and use of land shall be undertaken without prior approval and issuance of a development order pursuant to these land development regulations. The fact that a development order, permit or decision has been issued shall not stop or otherwise prevent the city from strict enforcement of the provisions of these land development regulations.

- A. *Exceptions, vested rights.* The provisions of these land development regulations, and any amendments hereto, shall not affect development that has a valid approval before adoption of these regulations, or is otherwise exempted in accordance with this section or section 22-11, nonconforming development.
1. Nothing in these zoning regulations shall be construed or applied to abrogate the vested right of a property owner to complete development where the property owner demonstrates each of the following:
 - (a) A governmental act of development approval was obtained prior to the effective date of the ordinance from which these land development regulations are derived or prior to the effective date of an amendment to these land development regulations;
 - (b) The property owner has detrimentally relied, in good faith, by making substantial expenditures based upon the governmental act of development approval; and
 - (c) It would be highly inequitable to deny the property owner the right to complete the development.
 2. Except as provided in subsection A.3 of this section, any property owner claiming to have vested rights under this section must file an application with the city manager or his/her designee for a vested rights determination within one hundred twenty (120) calendar days after the initial effective date of this section (as to any claim of vested rights prior to initial adoption) or within one hundred twenty (120) calendar days after an amendment of these land development regulations (as to any claim of vested rights arising after the initial adoption of these land development regulations and prior to the amendment). The application shall contain a sworn statement as to the basis upon which the vested rights are asserted, together with documentation required by the city and other documentary evidence supporting the claim. The city commission shall review the application and, based upon the evidence submitted, shall make a written determination as to whether the property owner has established vested rights.

3. Any property owner claiming to have vested rights under this section, by virtue of:
 - (a) A court judgment rendered by a court of competent jurisdiction;
 - (b) Vested rights determination by the county; or
 - (c) State department of economic opportunity, division of community development vested rights determination may follow a simplified procedure authorized by this subsection in lieu of the procedure provided above.

The simplified procedure under this subsection shall be as follows: The property owner claiming vested rights shall file an application with the city manager or his/her designee for a vested rights determination within one hundred twenty (120) calendar days after the effective date of this section. The application shall contain a sworn statement as to the basis upon which the vested rights are asserted, together with documentation of the applicable qualifying items above. The city manager shall review the application and based upon the evidence submitted shall make a written determination as to whether the property owner has established vested rights. Vested rights pursuant to the criteria of this section shall be presumed to exist, upon submittal of the qualifying items, unless clear and convincing evidence shows that vested rights have been waived, have expired or are not applicable, in whole or in part.

4. The provisions of these land development regulations shall not affect development for which a building permit has been issued on or before the effective date of the initial adoption of this section, provided that such building permit was lawfully issued and remains in full force and effect and the approval has not expired. Upon completion of such development, the development thenceforth will be subject to the provisions of these land development regulations.

(Ord. No. 16-07, exh. A(22-15), 9-14-2016)

Sec. 22-16. Enforcement.

A. It shall be the duty of the city manager, or manager's designee, to enforcement the provisions of this chapter. The building official shall not approve any permit for any building or use which would violate any of the provisions of this chapter. It shall also be the duty of all employees of the city to report any seeming violations.

B. Authorized representatives of the city as per the city Charter shall have access to materials and work sites at all times and shall have the power to stop work pending investigation as to materials, work, trades, use, under these regulations.

C. When a building is erected, constructed, or reconstructed, altered, repaired, or converted, or any building or land is used in violation of this chapter, the city may take any appropriate action to end the violation.

D. When deemed necessary by an authorized representative of the city, a recorded agreement may be required in order to enforce this chapter.

E. No zoning district boundary or regulation change, modification of requirements, special exception, variance, building permit, certificates of occupancy and use, or other permit shall be granted by the city commission, city departments, or planning and zoning board except in compliance with the provisions of this chapter, planning and zoning board, or any court decision.

(Ord. No. 16-07, exh. A(22-16), 9-14-2016)

Sec. 22-17. Permits and licenses.

A. A building permit is authorized and may only be issued for a building or structure to be erected, constructed, altered, moved, converted, extended, enlarged or used, or any land or water to be used, in conformity with the provisions of this chapter.

B. A license or permit shall not be issued by any department, agency or official of the city for the use of any premises or the operation of any business, enterprise, occupation, trade, profession, or activity which would be in violation of any of the provisions of this chapter.
(Ord. No. 16-07, exh. A(22-17), 9-14-2016)

Sec. 22-18. Severability.

If any section, subsection, paragraph, sentence, clause, or phrase of this chapter is for any reason held by any court of competent jurisdiction to be unconstitutional or otherwise invalid, the validity of the remaining portions of this chapter shall continue in full force and effect.
(Ord. No. 16-07, exh. A(22-18), 9-14-2016)

Sec. 22-19. Right to judicial review.

Any persons, jointly or severally, aggrieved by any decision of the city commission, or any officer, department, board, or commission of the city, may apply to the circuit court in the judicial circuit where the city commission is located for judicial relief within thirty (30) days after rendition of the decision by the city commission. The proceedings of the circuit court shall consist either of a trial de novo, which shall be governed by the Florida Rules of Civil Procedure, or by petition for writ of certiorari, which shall be governed by the state appellate rules. The election of remedies shall lie with the appellate.
(Ord. No. 16-07, exh. A(22-19), 9-14-2016)

Secs. 22-20—22-30. Reserved.

ARTICLE II. ADMINISTRATIVE PROVISIONS

Sec. 22-31. Purpose and authority.

This article sets forth the duties and responsibilities of the agencies described herein.
(Ord. No. 16-07, exh. A(22-31), 9-14-2016)

Sec. 22-32. City commission.

Pursuant to the authority granted to the city commission by state law or by provisions of the city Charter (article II), the city commission shall have the duties and responsibilities listed therein concerning these land development regulations. The city commission's authority shall include, but not be limited to, approval, approval with conditions or modifications or denial and hearing appeals from any board or administrative body of the city.
(Ord. No. 16-07, exh. A(22-32), 9-14-2016)

Sec. 22-33. Local planning agency.

A. The city commission is designated the local planning agency (LPA) for the city.

B. The LPA shall have all the powers authorized under F.S. § 163.3174.

C. A representative of the school board of the county shall be entitled to sit as a non-voting member of the LPA when the agency considers comprehensive plan amendments and rezoning that would, if approved, increase residential density on the property that is the subject of the application. The school board representative shall not be counted when determining the presence of a quorum.
(Ord. No. 16-07, exh. A(22-33), 9-14-2016)

Sec. 22-34. Planning and zoning board.

A. *Established.* The city commission hereby establishes a planning and zoning board, which shall be an advisory body to the commission, consisting of five (5) members, with two (2) alternates, appointed by the city commission as prescribed by the Code who shall be residents of the city, and none of whom shall hold any other public office or position in the city. Regular members shall serve a term which will coincide with that of the commissioner who selected them. Alternate members shall serve a term of two (2) years. An alternate member shall replace a regular member when a regular member is unavailable to attend a meeting. The planning and zoning board shall elect a chair and vice chair from among its appointed members. The mayor and city manager shall serve as ex-officio members of the council. Members may be removed by the city commission upon written charges and after public hearing, and vacancies shall be filled for the unexpired term of any member. Meetings shall be held once a month, at a minimum, as needed and determined by the chair. The council shall keep a record of its proceedings, findings and determinations showing the vote on each matter. The record shall be filed with the city clerk's office. Members of this council shall serve without compensation.

B. *Duties and responsibilities.* The duties and responsibilities of the planning and zoning board shall include the following:

1. Hear applications and make recommendations on amendments, extensions and additions to the comprehensive plan for the physical development of the city.
2. Hear applications and make recommendations on the platting or subdividing of lands within the city.
3. Review and recommend approval or disapproval of proposed changes to the official zoning map of the city.
4. Maintain and enforce zoning district boundaries and their respective district regulations.
5. Hear applications and make recommendations for approval or disapproval on rezoning for individual properties, neighborhood or on an area-wide basis.
6. Hear applications and make recommendations for approval or disapproval on changes to the land development regulations.
7. Promote public interest in and understanding of the master plan and of planning and zoning.
8. Make recommendations as to strategies for the clearance of slum and blighted areas.
9. Make recommendations as to strategies for the redevelopment of former slum and blighted areas.
10. Review annually the city manager's list of recommended capital improvements, not less than ninety (90) days prior to the beginning of the budget year, which in the opinion of the council are necessary or desirable to be constructed during the forthcoming six (6) year period. Such list shall be detailed by year and level of importance.
11. Review and make recommendations on existing and proposed plans for the re-planning, improvement, and redevelopment of neighborhoods.
12. Make recommendations for special studies as may be required in the performance of its duties.
13. Recommend, under certain circumstances, that the city retain planning and zoning consultants and/or receive technical assistance.
14. Make recommendations on conditional uses and special exceptions.

15. Make recommendations to the city commission when the city is contemplating disposing of city-owned property.
16. Other duties as may be requested by the city commission.
(Ord. No. 16-07, exh. A(22-34), 9-14-2016; Ord. No. 2025-22, § 3, 7-23-2025)

Sec. 22-35. Reserved.

Sec. 22-36. Development review committee.

The city commission hereby establishes a development review committee, which shall be an advisory body to the department of planning and zoning. Members of the committee shall include the director of the department of planning and zoning or their designee, director of public works and utilities or their designee, director of parks and recreation or their designee, police chief or their designee, director of the department of buildings and licensing or their designee, code compliance personnel/designee, any intergovernmental agency representatives deemed necessary by the director, and any other staff as deemed necessary.

The development review committee shall have the power to review applications for development orders or permits relative to the requirements, regulations and standards of this chapter, including site plans; plats; vacations or dedications of rights-of-way; or any other type of development or projects that the director of the department of planning and zoning determines requires DRC review. DRC review and comments shall be made on the basis of the criteria set forth herein this Code. In the case of applications for which the DRC acts in an advisory capacity, it shall make recommendations for approval, approval with conditions or modifications, or disapproval. Proper notice shall be given by the city to the residents or businesses prior to conducting any development review committee (DRC) meeting.

(Ord. No. 16-07, exh. A(22-36), 9-14-2016)

Sec. 22-37. Department of planning and zoning.

The department of planning and zoning shall have the duty and responsibility to determine, interpret and enforce all sections of the land development regulations. The department shall promote, protect, and improve the health, safety, and welfare of the citizens of the city by providing an equitable, expeditious and effective method of enforcing this chapter.

(Ord. No. 16-07, exh. A(22-37), 9-14-2016)

Secs. 22-38—22-48. Reserved.**ARTICLE III. APPLICATION REVIEW AND APPROVAL REQUIREMENTS****Sec. 22-49. General requirements for applications.**

Applications required under this article must be submitted in a form as specified below and in such numbers as determined by the director. Application forms and checklists of required submittal information are available from the department of planning and zoning.

All properties within a single application must be contiguous and immediately adjacent to one another or be the subject of separate petitions and filing fees unless separated by a street.

- A. *Pre-application conference.* A pre-application conference may be required, at the discretion of the department director or granted at the request of the applicant. Applicants are encouraged to schedule and attend a pre-application meeting with the appropriate department of planning and zoning staff prior to submitting an application for review under this article. The purpose of a pre-application conference is to inform the applicant of review procedures, submittal requirements, development standards, and other pertinent matters before the applicant finalizes the development proposal. Staff opinions presented during a pre-application meeting are informational only and do not represent a commitment on behalf of the city regarding the acceptability of the development proposal.
- B. *Application filing fee.* Applications must be accompanied by the fee that has been established by the city commission. Fees are not required with applications initiated by the city commission or an advisory board of the city. Unless otherwise expressly stated in this article, application fees are nonrefundable.

- C. *Application completeness and accuracy.* An application will be considered complete by the department if it is submitted in the required number and form, includes all mandatory information, is accompanied by the applicable fee, and all information material to the application is accurate. This provision does not preclude the identification and correction of information submitted by the applicant after an application is accepted.
- D. *Acceptance for processing.* Determination of application completeness shall be made by the department within forty-five (45) business days of application filing. If an application is determined to be incomplete, the department shall provide written notice to the applicant along with an explanation of the application's deficiencies. No further processing of the application shall occur until the deficiencies are corrected. The deficiencies must be addressed by the applicant in writing within forty-five (45) business days of the date of the deficiency notice provided by the city. If all of the deficiencies are not addressed, the application shall be considered withdrawn. The director shall provide in writing to the applicant that the application is either complete or withdrawn.
- E. *Burden of proof or persuasion.* In all cases, the applicant shall have the burden of establishing that an application complies with applicable approval criteria. An application shall not create any nonconforming circumstances.
- F. *Official review.* In conducting required reviews, the department shall be authorized to distribute the application and other submittals to other departments and agencies for the purpose of soliciting comments and ensuring that the proposal complies with all applicable standards and requirements.

Prior to holding a public hearing on any item requiring planning and zoning board review, the city commission shall not act until such time as it has received the findings of the council.
- G. *Procedures on matters considered by the city commission from acts of the planning and zoning board.* All planning and zoning board decisions, actions, resolutions, findings of fact, recommendations on appeals, rezoning, variances, consideration of capital programs, approval of land purchase or sale, and all other matters required by the Charter or Code of the city are subject to review by the city commission.

All recommendations and findings of fact by the planning and zoning board shall be placed on the next available regular city commission meeting agenda in compliance with the notice requirements.
- H. *Development order modification.* After a final development order has been issued, it shall be unlawful to change, modify, alter, or otherwise deviate from the terms or conditions of the permit without first obtaining a modification to the development order. A written record of the modification shall be made a part of the original final development order and maintained in the files of the city.
- I. *Cost recovery.* To the extent that any application for review by the city under the city's land development regulations or, except as otherwise specified below, other city provisions which require review by city staff, city contractors, agents or consultants, the actual full costs for such review shall be passed on to the applicant. Costs for the city attorney and/or any outside contractors, agents or consultants of the city shall be charged to the applicant in an amount equal to the actual cost charged to the city, plus administrative fees.

Fees charged to process building permits and other development applications on behalf of the city shall not be affected by this section.

Unless prohibited by law, in circumstances in which the city prepares closing papers, deeds, or other documents in conjunction with city programs such as in-fill lot housing or other housing measures, or for other matters in which the city holds a lien and is requested to subordinate its position; and, in cases where the city prepares loan documents, liens, mortgage papers, subordination documents and other such documents in conjunction with or resulting from city loan and economic development programs, the city shall charge the applicant a reasonable fee as determined by the city manager in an amount equal to the actual full costs to the city for the preparation of such documents.

- J. *Commencement of development.* Site improvements shall be developed prior to or concurrently with the commencement of construction. Such improvements include, but are not limited to, road and drainage improvements, excavation, grading and leveling, installation of utilities, and other infrastructure.

A site plan shall be valid only if a building permit for a principal building has been issued within one (1) year of the administrative or city commission approval of said site plan, whichever is applicable. For good cause shown, an applicant may apply for an extension of time prior to the expiration of the twelve (12) month period. Such extension of time shall be granted administratively and shall not exceed six (6) months with a maximum of two (2) extensions.

If development is permitted in phases, a phasing plan shall be required, and subsequent phases shall commence within twelve (12) months after the completion of the previous phase.

After two (2) years, if subsequent phases are not commenced within the twelve (12) month period, the approval shall be null and void and reapplication to the city shall be required for the remaining phases. Phases may be developed out of sequence if good cause is shown and not be to the detriment of the preceding phase(s). If not commenced within twelve (12) months, the applicant may apply for an extension (six (6) months) for one thousand dollars (\$1,000.00). A second extension may be permitted for a fee of one thousand dollars (\$1,000.00).

- K. *Advertising and notice requirements.* Upon determination of a complete application, the city shall fix a date, time, and place for a public hearing and publish notice of such hearing in the following manner. Each notice shall adequately describe the property along with the intent and purpose for the application and where additional information on the matter may be obtained.

Advertising requirements. The city shall advertise in accordance with the provisions set forth below:

<i>Development Application and Type of Meeting</i>	<i>Type of Advertisement Required</i>
Comprehensive plan amendments	As required by state law for the city commission meeting
Rezoning	As required by state law for the city commission meeting
Development of regional impact	As required by state law for the city commission meeting
Any other development application not mentioned above which requires a public hearing	An advertisement shall be published in the non-legal section of a local newspaper selected by the city at least seven calendar days before the city commission public hearing
Local planning agency (LPA)	As required by state law for the LPA meeting
Administrative variance	An advertisement shall be published in the non-legal section of a local newspaper selected by the city at least ten calendar days after the director's decision

Posted notice. A sign shall be prepared and posted on the subject property by the city setting forth a notice of public hearing at least five (5) business days before the city commission meeting in which the item is scheduled to be heard. This notice shall remain posted on the subject property through the date of the public hearing and shall be removed within ten (10) business days following the city commission's approval or denial of the application, or upon the application's withdrawal.

Courtesy mailed notice. Mailed notice shall be sent to all property owners of record within the notification area defined below:

<i>Courtesy Mail Noticing Distance by Application Type</i>	
<i>Type of Application</i>	<i>Mail Noticing Radius</i>
Variances and waivers: single-family, duplex, individual townhouse uses	Abutting property owners
Variances and waivers: all other uses	250-foot radius
Special exception uses	250-foot radius
Site specific rezonings	500-foot radius
Site specific land use plan amendments	1,000-foot radius
All other applications	500-foot radius

Advertising and notice costs. All costs of advertising, noticing, and posting shall be borne by the applicant.

- L. *Withdrawal of development applications and refund of fees.* An application for development review may be withdrawn at any time. For applications filed in accordance with this chapter and subsequently withdrawn, the applicant may request a fee refund in writing. The amount of refund will be based on the point in time of the review process when the application withdrawal is initiated by the applicant. The refund schedule is as follows:

Seventy-five (75) percent prior to staff review or legal advertisement (whichever comes first).

Twenty-five (25) percent prior to drafting of the staff report.

Fifteen (15) percent ten (10) business days prior to the commission hearing on the application.

No refund shall be granted if an applicant withdraws the application at the city commission meeting in which the application is scheduled to be heard.

- M. *Appeal.*

1. *Administrative appeal.* Any person aggrieved by an action of the department in granting, denying or revoking an administrative decision may appeal the decision to the city commission within ten (10) days of the decision. Such appeal shall be filed on a form provided by the department, and which shall include the applicable fee.

In the case of an appeal from the revocation of a temporary use permit, the aggrieved party may first request a meeting with the department. Within five (5) business days of the meeting, the department shall inform the aggrieved person, in writing, of the decision to affirm, modify, or rescind revocation of the permit.

2. *Appeal of planning and zoning board decision.* Any person aggrieved by a recommendation of the planning and zoning board may appeal said decision to the city commission. Notice of appeal shall be filed with the city clerk along with the required fees within ten (10) days or the recommendations and findings of the council shall be conclusive.
3. *Appeal of city commission decision.* Any person aggrieved by a decision of the city commission may appeal said decision to a court of competent jurisdiction.

- N. *Withdrawal of appeal.* An appeal to the city commission may be withdrawn by the applicant at any time prior to the deadline of cancellation of the newspaper advertisement for the public hearing on the application; after this deadline an appeal may be withdrawn only with the permission of the city commission.

- O. *Request for waivers/modifications of submittal requirements.* Any submittal requirements may be waived by the department director. The applicant must clearly indicate by section and paragraph in the application and in a letter attached to the application, which waiver or modification is requested. To grant a waiver or

modification the department must determine that a requirement is not necessary for the full and adequate consideration of the application. The department shall set forth in writing the reasons for such determination.

- P. *Re-application.* If a development application is denied by the city commission on its merits, no application substantially requesting the same relief with respect to all or part of the same property shall be considered by the city within twelve (12) months after the date of such denial. This re-application requirement may be waived by a majority vote of the city commission. The director shall determine whether the re-application is substantially requesting the same relief.

(Ord. No. 16-07, exh. A(22-49), 9-14-2016)

Sec. 22-50. Appeal of administrative decision.

Any person claiming to be aggrieved on account of any ruling by the director or board charged with enforcing the land development regulations may appeal to the city commission.

Application filing. The filing of a complete application for appeal from the director's or board's ruling shall stay all proceedings and all work on the premises involved unless such stay shall be deemed to imperil life or property. In such cases, proceedings or work shall not be stayed except by an order granted by the city commission or by a court of competent jurisdiction if the same shall have been refused by the city commission.

Approval criteria. An appeal shall be sustained only if the city commission finds that the director or board erred. The decision of the city commission shall be by resolution. The director shall serve a copy of the decision on the applicant and upon each other person who was a party of record at the hearing.

Public hearing by the city commission. The city commission shall hold a public hearing, and may reverse or affirm, wholly or partly, or may modify the director's or board's decision regarding the application.

Record of administrative decision. Upon acceptance of a complete application the director shall transmit to the city commission all papers or other records upon which the action or decision appealed was taken.

(Ord. No. 16-07, exh. A(22-50), 9-14-2016)

Sec. 22-51. Comprehensive plan amendments.

Comprehensive plan amendments may be considered two (2) times a year, unless otherwise exempted by the state statutes, in accordance with the following procedural calendar and regulations.

- A. *Initiation of application.* Amendments to the city's comprehensive plan may be initiated by the majority vote of the city commission, motion of the majority vote of the LPA, motion to recommend to the city commission by the planning and zoning board, city administration, petition of the property owner or owner's agent, or contract purchaser with the owner's written consent, which is the subject of a proposed amendment.
- B. *Application filing.* Amendment applications shall be filed with the department of planning and zoning. The required application form must be completed and signed by the owner or owner's agent, or contract purchaser with the owner's written consent. Upon acceptance of a completed application, the application shall be forwarded to all appropriate reviewing agencies for comment.
- C. *Submittal requirements.* All amendment applications shall be accompanied by the following items:

An application, on a form provided by the city, completed and signed by the applicant, the owner or owner's agent, or contract purchaser with the owner's written consent.

When the proposal is an amendment to the comprehensive plan text or map series the applicant shall submit data in support of the request. A text amendment shall be submitted in a strikethrough and underline format.

A disclosure statement by the parties with at least five (5) percent interest in the project signed by the applicant and notarized. The applicant shall keep this information current at all times during the processing of the application.

A survey, signed and sealed by a certified surveyor and mapper, completed not longer than six (6) months in advance of the date of the application, that contains the following information:

- Boundaries of the entire property, with bearings and distances of the perimeter property lines and of each existing and proposed land use classifications.
- Total area of the property and of each existing and proposed district classification presented in square feet and acres. Scale and north arrow, with north, to the extent feasible, oriented to the top of the plat.
- Location of all existing buildings and structures.
- Names of all boundary roads or streets, and the width of existing rights-of-way.

D. Procedure.

1. Applications shall be received by the city in a form set by the city and made available to the applicants.
2. The department shall review all submitted applications for comprehensive plan amendments and shall prepare a comprehensive written recommendation.
3. The planning and zoning board shall hold a public hearing to consider the application and the department's recommendation. The council shall make a recommendation to the city commission.
4. The LPA shall hold a public hearing to consider applications for amendments to the comprehensive plan and shall, upon conclusion of the public hearing, make a recommendation to the city commission with respect to each application.
5. The city commission shall hold public hearings to consider the recommendations of the LPA with respect to applications for amendments to the comprehensive plan and shall, upon conclusion of the public hearings, adopt an ordinance expressing intent to adopt those proposed amendments to the comprehensive plan.

(Ord. No. 16-07, exh. A(22-51), 9-14-2016)

Sec. 22-53. Land development regulations text amendments.

Text amendments to this chapter may be considered, following the procedural regulations below:

- A. *Initiation of application.* Amendments to the land development regulations may be initiated by the majority vote of the city commission, motion of the majority vote of the LPA, motion to recommend to the city commission by the planning and zoning board or planning and zoning board, or city administration.
- B. *Application filing.* Amendment applications shall be processed by the department of planning and zoning. The required application form shall be completed and signed by the city manager or designee; the application shall be forwarded to all appropriate reviewing agencies for comment.
- C. *Submittal requirements.* All amendment applications shall be accompanied by the following items:
 - An application, as determined by the city.
 - A text amendment shall be submitted in a strikethrough and underline format.
 - A statement explaining the reason for the text amendment.
- D. *Procedure.*
 - Applications shall be received by the department.
 - The department shall review applications for text amendments and shall prepare a comprehensive written recommendation.

- The planning and zoning board shall hold a public hearing to consider the application and the department's recommendation. The council and/or board shall make a recommendation to the city commission.
- The LPA shall hold a public hearing to consider applications for text amendments to the land development regulations and shall, upon conclusion of the public hearing, make a recommendation to the city commission with respect to each application.
- The city commission shall hold public hearings to consider the recommendations of the LPA with respect to applications for amendments to the comprehensive plan and shall, upon conclusion of the public hearings, adopt an ordinance expressing an intent to adopt or deny those proposed amendments to the land development regulations.

(Ord. No. 16-07, exh. A(22-53), 9-14-2016)

Sec. 22-54. Rezoning.

The city commission may rezone property, in conformity with the provisions of this section. Rezones may be initiated by the city, petition of the owner or owner's agent, or contract purchaser with the owner's written consent, which is the subject of the proposed map amendment.

- A. *Application filing.* All rezoning applications shall be filed with the department of planning and community development. The required application form must be completed and signed by the applicant and owner of the property or their designated agent. Upon acceptance of a completed application, the application shall be forwarded to all appropriate reviewing agencies for comment.
- B. *Submittal requirements.* All rezoning applications shall be accompanied by the following items:

An application, on a form provided by the city, completed and signed by the applicant and owner of the property or their designated agent.

A disclosure statement by the parties with at least five (5) percent interest in the project signed by the applicant and notarized. The applicant shall keep this information current at all times during the processing of the application.

An as-built survey, signed and sealed by a certified surveyor and mapper, completed not longer than six (6) months in advance of the date of the application, that contains the following information:

 - Boundaries of the entire property, with bearings and distances of the perimeter property lines and of each existing and proposed land use classifications.
 - Total area of the property and of each existing and proposed district classification presented in square feet and acres.
 - Scale and north arrow, with north, to the extent feasible, oriented to the top of the plat.
 - Location of all existing buildings and structures.
 - Names of all boundary roads or streets, and the width of existing rights-of-way.
- C. *Public hearing.* The city commission shall hold a public hearing, after receipt of the planning and zoning board recommendation, as required by law. If the rezoning is denied the commission shall not consider any further requests for rezoning on any part same property for a period of one (1) year unless said requirement is waived by a majority vote by the city commission.
- D. *Planning and zoning board approval criteria.* As part of its recommendation the planning and zoning board shall study and consider, where applicable, whether:
 1. The proposed change is contrary to the established land use pattern.
 2. The proposed change would create spot zoning.

3. The proposed change would alter the population or traffic patterns and thereby negatively impact public facilities such as schools, utilities, streets, etc.
 4. The proposed zoning district boundaries would become more illogically drawn.
 5. The proposed change would be in conflict with all or portions of the city's comprehensive plan.
 6. There is an additional need for uses permitted within the proposed zoning district.
 7. The proposed change will adversely affect living conditions in the neighborhood, if applicable.
 8. The proposed change will create or excessively increase traffic congestion or otherwise affect public safety.
 9. The proposed change will create a drainage problem.
 10. The proposed change will reduce light and air to adjacent areas.
 11. The proposed change will adversely affect property values.
 12. The proposed change will be a deterrent to the improvement or development of adjacent property.
 13. The proposed change will constitute a grant of special privilege.
 14. There are no substantial reasons why the property cannot be used in accordance with the existing zoning.
 15. Whether the change suggested is out of scale with the surrounding neighborhood.
 16. It is possible to find other sites already zoned permitting the uses requested.
 17. The proposed rezoning would meet all other regulations.
- E. *City commission approval criteria.* The city commission shall use the following criteria in making their decision regarding approval or disapproval of a rezoning application:
- The proposed rezoning is consistent with goals, objectives and policies of the city's comprehensive plan.
- The proposed zoning district is compatible with the surrounding area's zoning designations and existing uses.
- The subject property is physically suitable for the uses permitted in the proposed district.
- F. *Expiration of rezoning approvals.* The grant of a rezoning shall be null and void twelve (12) months from the date of city commission approval unless construction of the development has commenced.
- (Ord. No. 16-07, exh. A(22-54), 9-14-2016)

Sec. 22-55. Site plan application.

Applications for site plan review shall require the submission of a site plan package in accordance with the provisions of this article. Site plans shall be required for all development within the city. Prior to any action by the city commission at public hearing a review by and recommendation from the planning and zoning board shall be required. Notwithstanding the above, the development and the construction of ten (10) detached single-family or five (5) duplex residences shall be subject to administrative site plan review and approval. In addition, existing development on which no site plan was previously submitted and/or is on file shall also be subject to administrative site plan review and approval. No certificate of occupancy shall be issued for any building unless all facilities included in the approved site plan have been provided. The director may, in his opinion it is deemed necessary, retain consultants to assist in the review of an application for site plan approval.

- A. *Procedure.* An application for site plan review shall be made to the director prior to an application for a building permit and will only be accepted if all other ordinances and provisions of the city have been complied with. Except as may otherwise be required by law or administrative procedures, all required county, regional, state, or federal agency approvals shall be obtained prior to site plan approval.

- B. *Approval criteria.* The planning and zoning board and city commission shall use the following criteria in making their decision regarding approval or disapproval of a site plan application:
- The development permitted by the application, if granted, conforms to the comprehensive plan; is consistent with applicable area or neighborhood studies or plans, and would serve a public benefit warranting the granting of the application at the time it is considered.
 - The development permitted by the application, if granted, will have a favorable or unfavorable impact on the economy of the city.
 - The development permitted by the application, if granted, will efficiently use or not unduly burden water, sewer, solid waste disposal, recreation, education or other necessary public facilities which have been constructed or planned and budgeted for construction.
 - The development permitted by the application, if granted, will efficiently use or not unduly burden or affect public transportation facilities, including mass transit, roads, streets and highways which have been constructed or planned and budgeted for construction, and if the development is or will be accessible by public or private roads, streets or highways.
- C. *Plan submission and review.* Any application for site plan approval shall include the following information:
1. The location and size of the site, including its legal description and a current certified survey (less than six (6) months old).
 2. The recorded ownership interests including liens and encumbrances and the nature of the developer's interest if the developer is not the owner.
 3. The relationship of the site to existing development in the area including streets, utilities, residential and commercial development, and physical features of the land including pertinent ecological structures within one hundred (100) feet.
 4. The density or intensity of land use to be allocated, all parts of the site to be developed, together with tabulations by acreage and percentage thereof.
 5. The location, size, and character of any common open space and the form of organization proposed to own and maintain any common open space.
 6. The use and the number of stories, height, bulk, and location of all buildings and other structures.
 7. The requirements as set forth in this chapter and other chapters, including the necessary documentation for providing required improvements such as streets, water supply, storm drainage, parking, landscaping, and sewage collection as well as the provisions for all other appropriate public and private services such as police or security protection, fire protection, and refuse collection.
 8. The substance of covenants, grants of easements, or other restrictions proposed to be imposed upon the use of the land, buildings, and structures including proposed easements or grants for public utilities.
 9. In the case of plans which call for development over a period of years, a phasing schedule showing the approximate times within which applications for building permits are intended to be filed.
 10. Any additional data, plans, or specifications which the applicant believes is pertinent and will assist in clarifying his application.
 11. A demonstration that the proposed development does not degrade adopted levels of service in the city.
 12. Architectural elevations for buildings in the development; exact number of dwelling units, sizes and types and total number of bedrooms, if residential. For nonresidential development, the floor area ratio and gross square footage shall be required.
 13. Plans for signs, if any.

14. Traffic study stating current average daily and peak hour traffic volume counts, a description of existing traffic conditions, programmed and planned roadway improvements, and future traffic conditions. All roadway improvements and associated costs shall be provided.
15. Landscaping plan, including types, sizes and locations of vegetation and decorative shrubbery, and showing provisions for irrigation and maintenance. Certification of compliance with city landscape and the Code of Miami-Dade County, Florida, chapter 18A requirements.
16. Color renderings and elevations.
17. Photometrics.
18. Flood criteria data and finished floor elevations.
19. Additional data, maps, plans, surveys or statements, as may be required for the particular use or activity involved.

D. *Development review committee.* Upon acceptance of a site plan application, one (1) which is deemed non-administrative, the director shall forward a copy of the application and accompanying material to each of the following departments for review, as applicable:

- a. Public works and utilities.
- b. Parks and recreation.
- c. Police.
- d. Buildings and licensing.
- e. Reserved.
- f. Any other agency (whether municipal, county or state), as deemed applicable by the director.

If requested by the director, each reviewing discipline shall prepare a staff report with written comments and shall forward such staff report to the director. The director shall make a written finding that the site plan has or has not met the standards of this code. The applicant shall obtain applicable county and state approval prior to scheduling of public hearing.

A final site plan approved, either by the city commission or administrative action shall only be valid for a period of two (2) years. If a final plan has been allowed to expire without application for a building permit or commencement of construction the applicant will be required to submit a new site plan application.

(Ord. No. 16-07, exh. A(22-55), 9-14-2016)

Sec. 22-56. Site plan modification.

The director is authorized to consider and approve minor modifications to previously approved site plans which do not exceed the thresholds established below. A letter of intent shall be submitted as part of the minor modification application. A minor site plan modification does not require city commission action or hearing. Site plan modifications that are deemed not minor shall require rehearing before the planning and zoning board and city commission.

A. *Minor modification determination.* A minor modification must demonstrate the following, as applicable:

The number of buildings, number of stories, height, and number of units is the same or fewer.

Lot coverage and/or floor area ratio have not increased or decreased by more than five (5) percent.

The number of parking spaces may increase or decrease by as much as five (5) percent, provided the plan complies with all other requirements of this subsection and of this chapter.

Density or intensity (floor area ratio) may be transferred from one (1) stage of development to another, provided that the total floor area ratio is not changed and the floor area ratio for each stage is not increased or decreased by more than five (5) percent.

Roadway patterns, including ingress-egress points, are in the same general location as shown on the original plans, and are no closer to the rear or interior side property lines than shown on the original plans.

Parking is in the same general location and configuration.

The building setbacks are the same or greater distance from perimeter property lines.

The landscaped open space is in the same general location, is of the same or greater amount, and is configured in a manner that does not diminish a previously intended buffering effect.

The proposed perimeter walls and/or fences are in the same general location and of a comparable type and design as previously approved.

Elevations and renderings of buildings have substantially similar architectural expressions as those shown on the approved plans.

Recreational facilities, if shown on plans approved by a prior action, either remain the same or are converted from one (1) recreational use to another.

If recreational facilities were not shown in the approved plans, they may be added, provided there is no net increase in lot coverage or net decrease in required non-recreational open space and such facilities are located internally within the proposed development.

The proposed changes do not have the effect of creating any noncompliance or nonconformity with the strict application of the land development regulations that were not previously approved at public hearing, or of expanding the scope of existing variances, or other approvals such that they would differ to a greater degree from the strict application of the land development regulations.

Additional out parcels may be added where there is no net increase in the project's total floor area ratio or lot coverage, there is no net reduction in the total amount of landscaped open space, and addition of the out parcel does not result in noncompliance with any other provision of this subsection on any other portion of the subject property.

Reductions in the number of parking spaces on the site are permitted if sufficient parking spaces are provided to satisfy the requirements of this code. An approved parking management plan is required for the city to consider reduction in the number of parking spaces.

May not be contrary or modify a condition of approval or any previously approved amendment.

The proposed changes do not result in an increase in stormwater runoff.
(Ord. No. 16-07, exh. A(22-56), 9-14-2016)

Sec. 22-57. Temporary use permit.

Any person desiring to establish a temporary use, as further described in article V of this chapter, shall submit an application for a temporary use to the department on an application provided by the city. The applicant must submit proof of ownership of the property or present evidence to show approval of the property owner for the use requested.

- A. *Issuance or denial of permit.* If the department finds that the application complies with the standards set forth in this code and other applicable provisions of law, the department shall issue a temporary use permit, setting forth the duration of the permit and such conditions as will protect the health, safety, and welfare of the public and nearby property owners. Otherwise, the department shall deny the application.
- B. *Termination.* At the end of the time period for which the temporary use was permitted, including any renewal or extension periods, the use shall be discontinued, and all temporary structures and signs shall be removed within five (5) business days.

- C. *Renewals, extensions.* Requests for the renewal or extension of a temporary use permit shall be made to the department. The procedure for the renewal of a temporary use permit shall be the same as specified in this article for the approval of the original temporary use permit.
- D. *Revocation of permit.* The department may revoke a temporary use permit at any time upon the failure of the owner or operator to observe all requirements of the permit, this article, and other relevant provisions of law, including failure to obtain appropriate business licenses. Notice of such revocation shall be given in writing by the director to the owner or operator of the use, by hand-delivery or certified mail, setting forth the reasons for the revocation, the date and time upon which the revocation is effective, and the appeals procedure. This provision shall not preclude the use of any other remedy prescribed by law with respect to violations of the provisions of this chapter.

(Ord. No. 16-07, exh. A(22-57), 9-14-2016)

Sec. 22-58. Variance.

Owners of lands or structures may apply to the city for a variance from the requirements or restrictions of the land development regulations; except that no variance for use or density issues shall be considered. Variances shall be submitted in writing through the department, stating the specific variance requested. Each variance of a code requirement necessitates a separate variance application and process. The city commission, after a public hearing, and recommendation from the planning and zoning board, may approve, approve with conditions, or deny the application.

- A. *Application.* An application for a variance shall include a written statement by the applicant with supporting explanation and evidence regarding the following requirements:

The particular provision of the code which prevents the proposed construction on or use of the property.

The existing zoning of the property, including any previously approved conditions, or modifications.

The special circumstances, conditions or characteristics of the land, building or structure that prevent the use of the land in compliance with the terms of this ordinance.

The particular hardship that would result if the specified provisions of the ordinance were to be applied to the subject property.

The extent to which it would be necessary to vary the provisions of this ordinance in order to permit the proposed construction on or use of the property.

A disclosure statement by the parties with at least five (5) percent interest in the project shall be signed by the applicant and notarized.

- B. *Approval standards.* The applicant shall have the burden of proof and provide a written statement describing the manner and degree of compliance with the following standards:

That strict application of the regulations of this ordinance would produce undue hardship.

That such demonstrated hardship is not shared generally by other properties in the same zoning district and in the same vicinity.

That the authorization of such variance will not be of substantial detriment to adjacent properties and that the character of the district will not be changed by the granting of the variance.

Such variance is not contrary to the public interest or to the stated purpose of this ordinance.

That the hardship is not self-imposed.

That the hardship is not financial in nature.

- C. *Conditions of granting of a variance.* If granted conditions may be required. Violations of the approval, including conditions, shall be deemed a violation of the code. A variance granted under the provisions of

the code shall be resubmitted if building construction associated with the plans has not commenced within six (6) months from the date of the granting of the variance. Under no circumstances shall a variance be granted to permit a use generally not permitted in the zoning district involved.
(Ord. No. 16-07, exh. A(22-58), 9-14-2016)

Sec. 22-59. Administrative adjustment procedure.

The purpose of this section is to provide a procedure by administrative decision for certain residential property to obtain minor administrative variances to the setback, lot coverage and building spacing requirements specified in the underlying zoning district regulations. This section shall only apply to owners in single-family, duplex and townhouse residences and accessory residential uses.

A. Administrative adjustment limitations and exclusions.

1. Administrative adjustment approvals shall be limited to those lots within an area where at least seventy-five (75) percent of the lots within approximately three hundred (300) feet, have already been developed or platted.
2. A setback shall not be adjusted below fifty (50) percent of that required by the underlying district regulations.
3. Lot coverage for a principal and/or accessory structure shall not be increased by more than ten (10) percent of that required by the underlying district regulations.
4. Spacing between structures on the same lot may be reduced; provided, however, in no event shall such spacing be less than five (5) feet.
5. Unless specifically permitted by the underlying zoning regulations, no accessory building shall be placed in front of the front building line of the principal building.
6. Under this section, no application shall be made for, nor shall approval be granted for, an adjustment to canopy carport regulations.

B. Consent and notice. Except as otherwise provided in this subsection, the application shall be accompanied by the signed consent of all contiguous property owners, including those located across the street from the subject site, shall be submitted by the applicant on a form prescribed by the director, and on the site plan submitted for consideration. Said consent shall not be required when a separating public right-of-way measures seventy (70) feet or greater, nor shall consent be required when a body of water completely separates the subject parcel from another parcel.

If the applicant for an administrative adjustment is unable to obtain either the signed consent or objection of a neighboring property owner, the signed consent of that owner shall not be required when the following conditions have been met:

1. Written notice of the request for administrative adjustment is provided to the neighboring property owner; and
2. The applicant for the administrative adjustment presents proof acceptable to the department that a notice has been sent.

C. Inspection. Upon receipt of the application for an administrative adjustment, the director, prior to making a decision, may have a staff member inspect the site of the subject property and the surrounding properties to determine what impact, if any, the proposed administrative adjustment will have on the adjoining lots.

D. Review standards. The following standards shall be applied in considering an administrative adjustment:

1. No more than two (2) sides of the encroaching construction shall be considered for a setback adjustment (all prior setback variances, administrative adjustments and alternative site development options shall count toward this limitation);

2. No prior setback, lot coverage or building spacing variance, administrative adjustment or alternative site development option shall be further changed by administrative adjustment;
3. The architectural design, scale, mass, and building materials of any proposed structure or addition shall be aesthetically harmonious with that of other existing or proposed structures or buildings on the property;
4. The plan shall clearly illustrate water runoff solution for the encroaching construction area;
5. The property owner shall certify in writing that any and all easement areas as shown on the recorded plat remain unencumbered by the encroaching construction, unless a release of interest by the easement holder is obtained and submitted prior to permit issuance;
6. The applicant provide written certification from a registered architect or engineer that the existing encroaching construction complies, or can be made to comply with all applicable construction codes, including but not limited to the Florida Building Code, the applicable fire prevention code and other zoning regulations;
7. Any reduction in the spacing requirement between a principal building and an accessory building or structure on the same lot shall not result in a situation that causes maintenance difficulty or an unsightly appearance;
8. The proposed accessory building or structure is a normal and customary accessory residential use; and
9. The property owner certifies in writing that the type and placement of any proposed outdoor lighting fixtures shall comply with the city Code and the Florida Building Code.
10. Notwithstanding the foregoing, no proposed administrative adjustment shall be approved where the director determines that the proposed construction or addition:
 - a. Will not be in harmony with the general appearance and character of the subject block face or the block face across the street from the subject property or will result in a significant diminution of value of the adjacent property;
 - b. Will be detrimental to the public welfare in that it will have substantial negative impact on public safety due to unsafe traffic movements, heightened pedestrian-vehicular conflicts, or heightened risk of fire; or
 - c. Creates materially greater adverse privacy impacts on adjacent residences than that permitted by the underlying district regulations.

(E) *Conditions and safeguards.* In granting an administrative adjustment, the director may prescribe conditions and safeguards deemed necessary to protect the interests served by the underlying zoning district regulations, including, but not limited to:

1. Landscape materials, walls, and fences as required buffering.
2. Modification of the orientation or deletion of any openings.
3. Modification of site arrangements.
4. Modification of plans.

(F) *Advertising.* After the director's decision, an advertisement shall be published pursuant to section 22-49(k). (Ord. No. 16-07, exh. A(22-59), 9-14-2016)

Sec. 22-60. Conditional use and special exception applications.

The purpose of a conditional use is to allow uses not permitted by right but which may provide for an individual or community-serving need and which, subject to conditions, would not negatively impact the integrity of the zoning

district. Special exceptions are uses permitted in a zoning district but only after public hearing. Conditional uses and special exceptions may be approved by the city commission after recommendation from the planning and zoning board as further provided for in this article.

- A. *General criteria.* Applications for a conditional use or special exception may require the submission of a site plan in accordance with the provisions of this chapter. No certificate of occupancy shall be issued for any use unless said use has been approved by the department. An application for a conditional use or special exception shall be made to the department prior to an application for a building permit and will only be accepted if all other ordinances and provisions of the city have been complied with. Except as may otherwise be required by law or administrative procedures, all required county, regional, state, or federal agency approvals shall be obtained prior to the approval of an application.
- B. *Approval criteria.* The planning and zoning board and city commission shall use the following criteria in making their decision regarding approval or disapproval of a conditional use or special exception application:
 1. Compliance with the city's comprehensive plan.
 2. Consistent with the character and purpose of the zoning district.
 3. The size, shape and character of the property are suited for the proposed use.
 4. Compatibility with the existing uses near the property.
 5. Will not adversely affect the development of the general neighborhood or district.
 6. Will not generate vehicular traffic or create vehicular circulation or ingress/egress problems or parking demands that have an unfavorable impact on surrounding properties when compared with uses permitted by right in the same district.
 7. Potential for fire and/or other equally or greater dangerous hazards.
 8. Create an unfavorable environment impacts on surrounding uses (e.g., noise, glare, smoke, dust, odor, fumes, water pollution, or general nuisance).
 9. Consistent with existing and planned pedestrian and vehicular circulation adjacent to and near the property.
 10. Site is adequately served by essential public services and facilities not requiring additional public expense in infrastructure improvements.
 11. Will not adversely affect any site or feature of historical, cultural, natural or scenic importance.
 12. Will not be contrary to the public health, safety, and welfare, provided that a denial based exclusively on this language shall include explicitly findings regarding the way in which granting the special exception would be contrary to the public health, safety and welfare.
- C. *Application.* Any application for a conditional use or special exception shall include the following information, if determined by the director to be applicable:

The location and size of the site, including its legal description and a current certified survey.

The recorded ownership interests including liens and encumbrances and the nature of the developer's interest if the developer is not the owner.

The relationship of the site to existing development in the area including streets, utilities, residential and commercial development, and physical features of the land including pertinent ecological structures.

The density or intensity of land use to be allocated, all parts of the site to be developed, together with tabulations by acreage and percentage thereof.

The location, size, and character of any open space, common or otherwise.

The use and the number of stories and height, bulk, and location of all buildings and other structures.

The requirements as set forth in this chapter and other chapters, including the necessary documentation for providing required improvements such as streets, water supply, storm drainage, parking, landscaping, and sewage collection as well as the provisions for all other appropriate public and private services such as police or security protection, fire protection, and refuse collection.

The substance of covenants, grants of easements, or other restrictions proposed to be imposed upon the use of the land, buildings, and structures including proposed easements or grants for public utilities.

Any additional data, plans, or specifications which the applicant believes is pertinent and will assist in clarifying his application.

A demonstration that the proposed conditional use does not degrade adopted levels of service in the city.

- D. *Planning and zoning board recommendation.* The department's written recommendations shall be transmitted to the planning and zoning board and a public hearing shall be conducted. The planning and zoning board shall make a recommendation to the city commission for approval, denial or approval subject to conditions.
- E. *City commission approval.* The department's written recommendations along with the recommendations of the planning and zoning board shall be transmitted to the city commission and a public hearing shall be conducted before the commission, who shall deny; approve; or approve the use subject to conditions. Violation of the conditions and safeguards, when made a part of the terms under which the conditional use is granted, shall be deemed a violation of this chapter.

(Ord. No. 16-07, exh. A(22-60), 9-14-2016)

Sec. 22-61. Certificates of occupancy and re-occupancy.

1. Certificates of occupancy.

- A. No building or structure, or part thereof, or premises, which are hereafter erected or altered, or land upon which a new or rehabilitated use is established, shall be occupied or used until a certificate of occupancy shall have been applied for and issued.
- B. Certificates of occupancy shall not be issued until the premises have been inspected and found to comply with all requirements of the Code and of this chapter, and with all other agencies when required, such as the county health department, etc.
- C. A record of all certificates of occupancy issued hereunder shall be kept on file in the city.
- D. All applications for certificates of occupancy shall be approved or disapproved within seven (7) days following application.

2. Certificates of re-occupancy.

Section 1. Purpose. The purpose of this section is to ensure that prior to a residential property being conveyed to a new ownership, that the city can confirm that the property meets the current city zoning requirements and other city codes, including, but not limited to, the building code and life safety requirements, that the premises is being used solely for residential purposes; and that the premises has not been unlawfully altered, in violation of the city's zoning and other city codes.

Section 2 Certificate of re-occupancy required. Prior to the purchase, sale, conveyance, and transfer of title to any single-family, condominium, duplex, triplex townhouse dwelling unit, or apartment complex consisting of four (4) or more units, a certificate of re-occupancy must be obtained. This section shall not apply in instances where property has been transferred by virtue of a certificate of title issued after a foreclosure sale. However, prior to any re-occupancy of such foreclosed property, a certificate of re-occupancy shall be obtained. The certificate of re-occupancy, if issued, shall state that the city has inspected the dwelling and

determined that the dwelling complies with the residential occupancy regulations of the zoning district and other city codes wherein the dwelling unit is located and does not contain any uncorrected building violations.

Section 3. Application.

1. It shall be unlawful for any person, firm or corporation to sell, convey, or transfer any single-family, condominium, duplex, triplex or townhouse dwelling unit, or apartment complex consisting of four (4) or more units owned by such person, firm or corporation, unless a certificate of re-occupancy has been issued by the director of the building and licensing department or his/her designee. The certificate of re-occupancy, if issued, shall state that a city inspector has inspected the dwelling and has determined that the dwelling meets the residential occupancy regulations of the zoning district and other city codes in which the dwelling unit is located.
2. It shall be unlawful for any person, firm or corporation to transfer or convey a single-family, condominium, duplex, triplex, or townhouse dwelling unit, or apartment complex consisting of four (4) or more units owned by such person, firm or corporation, without first disclosing by written notice to the buyer, grantee, or transferee the fact that a certificate of re-occupancy is required in accordance with this Section. Such notice shall be issued on a form to be provided by the city.
3. Application for a certificate of re-occupancy shall be made by the seller or owner or the designated agent, upon a form provided by the city and the payment of an inspection fee. Said fees shall be paid by the applicant. If the dwelling must be inspected within fifteen (15) business days of receipt of the application, an expedited inspection may be requested. There shall also be a fee for expedited inspections.
4. Upon receipt of the application and fee, a city inspector shall inspect the dwelling within thirty (30) days and, if such dwelling is found to be in conformance with the provisions of subsection 1 of this section 3, a certificate of re-occupancy shall be issued. If the dwelling is not in conformance with such provisions, the director or the director's designee shall indicate by itemized list corrective action required and the certificate of re-occupancy shall be withheld until such provisions are complied with to the reasonable satisfaction of the director or the director's designee.
5. In the event of acts of God, terrorism or other force majeure acts, the dates outlined herein shall be extended, and the city shall be relieved of any responsibility as a result thereof.

Section 4. Restriction on inspection. Information gained or conditions observed during any inspection conducted pursuant to the authority of this section shall not be utilized by the code enforcement officers of the city as the basis for bringing code enforcement violation proceedings other than as to the residential occupancy regulations of the zoning district in which the dwelling unit is located, and the safety violations directly addressed by the inspection made under this section, as applicable. This shall not preclude other enforcement actions brought upon the basis of information gained or violations observed by other lawful means.

Section 5. Exemption. A certificate of re-occupancy shall not be required for the original transfer or conveyance of a newly constructed single family, duplex, triplex dwelling unit, or apartment complex to any firm, corporation, or individual, or to any transfer that represents the first transaction since the issuance of the original certificate of occupancy.

Section 6. Limitation of liability. The issuance of a certificate of re-occupancy does not constitute any representation or warranty as to the condition of the dwelling or other structures on said premises described herein (or any aspect of such condition), and interested persons are advised and encouraged to make their own inspection of the premises to determine the condition thereof. The issuance of a certificate of re-occupancy does not prevent the city from making future findings that violations exist that were not found in any previous inspection.

Section 7. Payment of outstanding lien amounts. No re-occupancy certificate shall be issued for any property unless the property is in compliance with any outstanding warning notices or notices of violation issued by the city and until the owner of the property has satisfied city liens against the property.

Section 8. City manager authority. In the event of a pending real estate transaction, the city manager shall enter into a stipulated settlement agreement, subject to the review and approval of the city attorney, for the issuance of conditional certificates of re- occupancy. Such conditional certificates shall provide for a reasonable time for compliance with any outstanding zoning or building code issues and for a fine in the event of noncompliance. Conditional certificates of re-occupancy shall not be issued where life-safety violations exist on the property. There shall be a fee for a conditional certificate of re-occupancy. The property owner to whom the property is transferred must agree to be bound by the terms of this section and in the event the requisite remedial action does not occur within the timeframe stipulated in the conditional certificate, agrees to be subject to the penalties outlined in section 10 of this subsection (2).

Section 9. Warning notices. Prior to the imposition of any lien or penalty for the failure to obtain a re-occupancy certificate, a warning notice shall be issued to the violator requiring compliance within a reasonable period. In the event the requisite inspection does not occur within the time set by the city, a notice of violation shall be issued.

Section 10. Penalties. Any person convicted of a violation of this section shall be punished by a fine not to exceed five hundred dollars (\$500.00), or by imprisonment not to exceed sixty (60) days, or both, in the discretion of the county court. In addition, any property for which an application for a re-occupancy inspection and certificate is not filed prior to the sale of said property shall be subject to a fine equivalent to the expedited application fee, payable at the time the late application is filed.

(Ord. No. 16-07, exh. A(22-61), 9-14-2016; Ord. No. 2023-21, § 2, 10-25-2023)

Sec. 22-62. Violations, penalties and other remedies.

A. *Violations and penalties.* For any and every violation of the provisions of this code, and for each and every day that such violation continues, said violation shall be punishable by a fine not to exceed five hundred dollars (\$500.00), by imprisonment for not more than sixty (60) days, or by both. Persons charged with such violation may include:

1. The owner, agent, lessee, tenant, contractor, or any other person using the land, building, or premises where such violation has been committed or shall exist.
2. Any person who knowingly commits, takes part in, or assists in such violation.
3. Any person who maintains any land, building, or premises in which such violation shall exist.

B. *Other legal remedies.* In addition to the criminal penalties and enforcement procedures provided in subsection A of this section, the city may institute any lawful civil action or proceeding to prevent, restrain or abate:

1. The unlawful construction, erection, reconstruction, alteration, rehabilitation, maintenance or use of any building or structures;
2. The occupancy of such building, structure, land or water;
3. Any person who maintains any land, building, or premises in which such violation shall exist; or
4. The illegal act, conduct, business, or use of, in or about such premises.

C. *Other administrative remedies.*

1. *Cease and desist orders.* The department of buildings and licensing shall have the authority to issue cease and desist orders in the form of written official notices given to the owner of the subject building, property, or premises, or to his agent, lessee, tenant, contractor, or to any person using the land, building, or premises where such violations have been committed or shall exist.

2. *Building permits and certificates of occupancy and use.*

- a. *Issuance.* No building permit or certificate of occupancy and use shall be issued by the department of buildings and licensing for any purpose except in compliance with the provisions of this code and other applicable ordinances and laws, a decision of the planning and zoning board, or court decision.
- b. *Revocation.* The department of buildings and licensing may revoke a building permit or certificate of occupancy and use in those cases where an administrative determination has been duly made that false statements or misrepresentations existed as to material facts in the application of plans upon which the permit or approval was based.
- c. *Suspension.* The department of buildings and licensing may suspend a building permit or certificate of occupancy and use where an administrative determination has been duly made that an error or omission on either the part of the permit applicant or government agency existed in the issuance of the permit or certificate of approval.
- d. *Notice and appeal.* All department of buildings and licensing decisions concerning the issuance, revocation, or suspension of building permits and certificates of occupancy and use shall be stated in official written notice to the permit applicant. Any decision of the building official, relative to the building code, may be appealed to the appropriate county agency (as per the Florida Building Code).

(Ord. No. 16-07, exh. A(22-62), 9-14-2016)

Sec. 22-63. Vested rights determinations.

Any property owner who believes that he or she has a vested right may submit an application for a determination of vested rights to the department as provided for in section 22-15.

- A. *Review procedures for vested rights.* The department shall review the application and attachments as to form and sufficiency and shall within thirty (30) business days of receipt thereof determine and notify the applicant whether the application information is in compliance with this section. Within thirty (30) business days after acknowledging receipt of a sufficient application, the department shall place the application on the agenda of the next available city commission meeting, unless otherwise requested by the applicant. The city commission shall review the application and any other information which it deems necessary and advisable, and shall issue a final determination as to the vested rights claim.
- B. *Application.* Any property owner filing for a determination of vested rights with the department shall do so on a form approved by the city hereby known as "Application for Vested Rights." The application shall be accompanied by a fee as set by resolution of the city commission and contain a sworn statement as to the basis upon which the vested rights are asserted, together with documentation required by the city and other documentary evidence supporting the claim. The city commission shall review the application and, based upon the evidence submitted, shall make a written determination as to whether the property owner has established vested rights.
- C. *Effect of vested rights determination.* A determination by the city commission that a property owner is entitled to a vested right shall entitle development or use in accordance with such determination. However, a vested right determination shall not limit the applicability of other provisions of this chapter, nor shall it entitle the applicant to the issuance of any development permit not specified in the final vested rights determination.

(Ord. No. 16-07, exh. A(22-63), 9-14-2016)

Secs. 22-64—22-74. Reserved.

ARTICLE IV. DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS**Sec. 22-75. Purpose.**

The creation of districts and standards allows for classifying and regulating the use and development of lands and waters in the city. These districts are established for the purpose of protecting, promoting, and improving the public health, safety, and welfare. These districts regulate the location of uses and the types and forms of development and buildings that may occur within their boundaries.

(Ord. No. 16-07, exh. A(22-75), 9-14-2016)

Sec. 22-76. Use definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accessory use, building or structure, means a use or structure subordinate to the principal use of a building or parcel of land, on the same or contiguous to that parcel of land and serving a purpose customarily incidental to the use of the principal building or parcel of land.

Adult business means any premises within the city where members of the public, or any person for consideration, are offered any live or recorded performance, or any visual image tangibly fixed in any medium, which performance, image, or recording has as its primary or dominant theme subject matter depicting, describing, or relating to specified sexual activities or specified anatomical areas, and which performance, recording, or visual image requires the exclusion of minors from the premises pursuant to F.S. ch. 847.

Adult congregate living facility means any building or buildings, section or distinct part of a building, private home, boarding home, home for the aged, or other residential facility, whether operated for profit or not, which undertakes through its ownership or management to provide housing, meals, and one (1) or more personal services for a period exceeding twenty-four (24) hours to one (1) or more adults who are not relatives of the owner or administrator, not including substance abuse facilities.

Adult day care means any building, or other place, whether operated for profit or not, which undertakes through its ownership or management to provide, for a part of the twenty-four (24) hour day, basic services to three (3) or more adults, not related to the owner/operator by blood or marriage, who require such services.

Animal boarding facility means any place of business where dogs and/or cats are maintained for overnight boarding for a fee. The term "animal boarding facility" may include grooming but shall not include any animal control center or any veterinary hospital, or any animal facility operated by any subdivision of local, state or federal government. The term "animal boarding facility" shall not include any research facility subject to inspections under any provision of any state and/or federal law.

Animal grooming means all stores, shops or other business wherein animals are accepted for personal treatment not overnight such as, but not limited to, hair trimming, fur cutting, bathing, washing, pedicuring, combing or brushing, shampooing, or any and all other measures and treatments designed or performed for the purpose of improving the cleanliness or appearance of animals.

Appliance, furniture and electronic rental and repair means any place of business which provides for the repair and rental of small appliances, electronics and furniture.

Artist workspace means a space for the production of art works, which includes, but is not limited to, galleries, studios, etc.

Automobile service station means any building, structure, or lot used for the following: dispensing, selling or offering for retail sale gasoline, kerosene, lubricating oil, biofuels, electric charging stations or grease for the operation and maintenance of vehicles. The term "automobile service station" may include buildings or structures

that are used for the retail sale and direct delivery to motor vehicles of candy, soft drinks and other related items for the convenience of the motoring public, and may include facilities for hand car washing, lubricating, minor repairs or vehicle service. Such establishments shall not include facilities for major vehicle service.

Banquet hall means a facility or hall available for lease by private parties for the purpose of dining and social events.

Bar, lounge or tavern means any place of business where alcoholic beverages are sold or offered for sale for consumption on the premises and where the sale of food is incidental to the sale of such beverages or where no food is sold and includes any establishment in receipt of a valid alcoholic beverage license from the state which permits the sale for consumption on the premises of alcoholic beverages as a principal use. Establishments where alcoholic beverages are permitted for consumption on the premises as an incidental or accessory use are not considered a bar.

Cafeteria means a place where food is obtained by self-service and eaten on or off the premises.

Catering kitchen means a facility for the preparation of food items to be served at events and/or at venues off-premises.

Car wash, automatic, means a structure containing facilities for the automatic or semi-automatic washing, waxing and drying of automobiles. The term "automatic car wash" includes self-service mechanical hose car washes, drive in car washing facilities, or other means of mechanical car washing operations.

Car wash, manual, means a for-profit service involving the washing and/or waxing, and/or buffing of vehicles by hand labor. This definition shall not include self-service mechanical hose car washes, or car washing operations serving as an incidental use to businesses which are primarily involved in the selling, renting or leasing of vehicles.

Car washing means the operation performed on a vehicle in order to clean it; it may include both exterior and interior washing and cleaning functions.

Child care center means and includes any child care arrangement which provides child care for more than five (5) children unrelated to the operator and which receives a payment, fee, or grant for any of the children receiving care, wherever operated, and whether or not operated for profit. The following are not included:

- (a) Public schools and nonpublic schools and their integral programs, except as provided in F.S. § 402.3025;
- (b) Summer camps having children in full-time residence;
- (c) Summer day camps;
- (d) Bible schools normally conducted during vacation periods; and
- (e) Operators of transient establishments, as defined in F.S. ch. 509, which provide child care services solely for the guests of their establishment or resort, provided that all child care personnel of the establishment are screened according to the level 2 screening requirements of F.S. ch. 435.

Community facility means a building or facility owned and operated by a governmental, civic, fraternal or veterans organization or association or nonprofit entity which is open to the public or a designated part of the public for recreational, social and educational activities, which primarily serve the immediate community in which the facility is located.

Community residential home means a dwelling unit licensed to serve residents, who are clients of the department of elderly affairs, the agency for persons with disabilities, the department of juvenile justice, or the department of children and family services or a dwelling unit licensed by the agency for health care administration which provides a living environment for unrelated residents who operate as the functional equivalent of a family, including such supervision and care by supportive staff as may be necessary to meet the physical, emotional, and social needs of the residents.

Consignment shop means an establishment wherein goods limited to clothing, shoes and/or accessories for adults and/or children are sold by the operator of the shop, acting as the agent for the owner of such goods, in return for a percentage of the profits, or other consideration. Such goods may be comprised of a combination of used goods and new goods, or of used goods only.

Convenience retail use means a retail use, not exceeding one thousand (1,000) square feet, that is an accessory use in and serves residents and visitors in residential buildings with two hundred (200) or more units.

Crematory means a building containing a furnace for cremation.

Day care means an enterprise involving the care of no more than five (5) preschool and elementary school children from more than one (1) unrelated family including preschool children living in the home and preschool children received for day care who are related to the resident care giver.

Day spa means an establishment that provides at least three (3) services for personal wellness or grooming (including massage and body care treatments, facials, and other aesthetic treatments) and no more than one (1) chair for makeup or hair treatments.

Design excellence means architectural designs which rise above the ordinary because of design, treatments and materials which provide character and diversity and contribute to establishing an address and a sense of place. In judging the design excellence of a particular design, the city shall consider the extent to which the use of at least five (5) of the following elements creates the character and diversity of excellence:

- Incorporation of Moorish revival architectural themes and accents for renovations and new development.
- Cornice lines on buildings facades fronting on public streets at a height between eighteen (18) and forty-two (42) feet to define the vertical element of the streetscape.
- Facade articulations to animate buildings and to mitigate the mass of the building.
- Decorative building tops to give the building a visible identity and signature quality and character.
- Arcades fronting on sidewalks along major streets.
- Architectural windows and doors.
- Street level grand entrance.
- Natural materials and high-quality finishes.
- Sidewalks, plazas, lobbies of stone or pavers.
- Balconies and loggias to break up the mass of building walls.
- Decorative ground level lighting, including street lights.
- Disguised parking structures with an integrated architectural scheme.
- Integrated public art program.
- Comprehensive sign program with integrated architectural scheme.

Drive-through means a driveway or roadway that is designed and intended to provide access for vehicles whereby occupants of vehicles receive and/or obtain a product or service.

Dry cleaning means any fully equipped steam laundry or dry cleaning and dyeing establishment wherein the actual processing of garments is done. A dry cleaning establishment shall also engage in collecting clothes from customers over the counter, processing them, and returning them to the customers.

Dry cleaning plant means a facility in business to provide dry cleaning services, on a large scale, for off-site customers. A dry cleaning plant is an industrial operation, is not open to serve the general public, and is regulated by environmental laws that require the safe disposal of contaminated solvents and wash water used in the cleaning process.

Educational facility means a building or group of buildings used primarily as an institution of higher learning established and operated for profit or not-for-profit, or recognized by the state as an institution offering post high school curriculum, including college/university dormitories.

Fine arts studio means a facility for the instruction and/or rehearsal of fine arts, including but not limited to music, dance, and painting.

Flea markets and bazaars mean markets, often outdoors, consisting of a number of individual stalls selling old or used articles, curios and antiques, cut-rate merchandise, etc.

Fleet operations means a single corporation that operates and maintains its own fleet of vehicles for transportation related services.

Funeral home means an establishment with facilities for the preparation of the dead for burial, for viewing of the deceased and for funerals.

Green building principles means principles consistent with those established by the United States Green Building Council (USGBC) or the Florida Green Building Coalition from time to time.

Gun shop means an establishment engaged in the business of selling firearms, regardless of whether said business is solely engaged in the sale of firearms or sells firearms and additional merchandise.

Home occupation means an occupation, craft or profession conducted entirely within a dwelling unit such that the use is incidental to the residential use of the dwelling unit and does not change the residential character of the dwelling unit.

Hospital means a building or group of buildings having room facilities for overnight patients, used for providing services for the inpatient medical or surgical care of sick or injured humans, and which may include related facilities, central service facilities, and staff offices.

Hotell/motell/lodging means a building in which lodging or boarding and lodging are provided and offered to the transient public, emphasizing tourist and business travelers for compensation in which ingress and egress to and from all rooms is made through an inside lobby or office which is supervised normally by a person at all hours. As such it is open to the transient public in contrast to a condo hotel, boarding, lodging house/lodging or an apartment building.

Impervious means a surface which has been compacted or covered with a layer of material so that it is highly resistant to infiltration by water, including surfaces such as compacted sand, lime rock, shell or clay, as well as most conventionally surfaced streets, roofs, sidewalks, parking lots and other similar structures.

Industrial means manufacturing, assembly and processing of materials, including outdoor storage of materials, transmission of TV and radio, including tire vulcanizing, retreading or sale of used tires and the sale of building materials.

Industrial and office flex space means a building providing a flexible configuration of office and/or showroom space combined with light industrial/light manufacturing.

Industrial kitchen means a facility for the preparation of food items off-premises.

Industrial, light, means a use involving limited showrooms, accessory offices, fabrication, or processing of materials that are already in processed form, warehousing, wholesaling, distribution, communication, scientific and research facilities, but not including outdoor storage.

Institutional means a use that serves the educational or cultural needs of the community, including museums and other similar uses.

LEED (Leadership in Energy and Environmental Design) certification means the rating system established by the United States Green Building Council (USGBC) or in the case of bonuses described in article VIII of this code, the Florida Green Building Coalition.

Liquor package store means a state-licensed vendor selling alcoholic beverages in sealed containers only for consumption off the premises subject to the limitations provided in chapter 4 (alcoholic beverages) of the city's Code of Ordinances.

Live-work space means a space that combines a workspace and living quarters.

Manufacturing means the transformation of materials or substances into new products, including the assembly of component parts, and the production or refining of goods, materials, or substances into new products, including the assembly of component parts, a bottling plant, brewery or food product processing, packaging and storage, but not including research and technology production uses.

Manufacturing, light, means manufacturing activities as defined above, that can take place in a single enclosed building, with no outdoor storage.

Marina means a recreational boating establishment located on a waterway, which may provide covered or uncovered boat slips, or dock space, dry boat storage, marine fuel and lubricants, marine supplies, restaurants or refreshment facilities, boat and boat motor sales or rentals. Repairs which are incidental to the principal marine use are permitted as an accessory use; however, no dredge, barge or other work dockage or service is permitted, and no boat construction or reconstruction is permitted.

Medical clinic means an office, health care facility, or clinic, licensed by the state or operated by two (2) or more physicians or medical practitioners licensed by the state, that is not part of a hospital and that provides elective care for patients on-site who remain less than twenty-four (24) hours. The term "medical clinic" does not include sanitariums, convalescent homes, or nursing homes but may include, but is not limited to, outpatient surgical clinics and sleep disorder centers.

Mixed-use development means a development that encompasses two (2) or more uses (example: multifamily residential and office; multifamily residential and commercial/retail; office/retail; or any other combination of two (2) or more uses).

Moorish revival architecture means the articulated Islamic architecture of North Africa and parts of Spain and Portugal. Characteristic elements of Moorish architecture include muqarnas, horseshoe arches, voussoirs, domes, crenellated arches, lancet arches, ogee arches, courtyards, and decorative tile work known as Zellij in Arabic or azulejo in Spanish and Portuguese.

Nightclub means a restaurant, dining room or other establishment, which operates after 11:00 p.m., where food and/or alcoholic beverages are licensed to be sold and consumed on the premises, and where music, dance, floor shows or other forms of entertainment are provided for guests and patrons with or without an admission fee.

Nonconforming structure means a building or structure lawfully established which does not conform to the requirements of these land development regulations for location or other dimensional requirement for such building or structure in the zoning district assigned to the property, i.e., the minimum setback, maximum height, maximum building coverage, parking or landscaping.

Nonconforming use means a use which exists lawfully prior to the effective date of these land development regulations and is maintained at the time of and after the effective date of these land development regulations, although it does not conform to the use restrictions of these land development regulations.

Nursing or convalescent home means a home, institution, building or residence, public or private, whether operated for profit or not which provides maintenance, personal care or nursing for a period exceeding twenty-four (24) hours to three (3) or more ill, physically infirm or aged persons, who are not related by blood or marriage or adoption to the operator.

Office means a use involving a business, profession, service, including banks and financial institutions, or government activity which does not involve retail activities on-site and not including veterinary offices and problematic uses.

Open space means ground level areas on a lot which are landscaped or designed for pedestrian or recreational use, including covered arcades and plazas under buildings which are accessible to the public.

Overlay district constitutes a set of regulations which are superimposed upon and supplement, but do not replace, the underlying zoning district and regulations otherwise applicable to the designated areas.

Passenger terminal means a facility where passengers board and disembark from mass transportation modes (i.e., buses, trains, airplanes).

Plaza means an area that is open to the public for passive recreational purposes, limited public assembly and social interaction which is designed and intended for common use and employment of the public.

Private club means a property owned or leased and operated by an individual, group, or an association of persons and maintained and operated solely by and for the members of such a group or association and their guests and which is not available for unrestricted public access or use.

Public art means the creative application of skill and taste by artists to the production of permanent tangible objects according to aesthetic principles, including, but not limited to, paintings, sculptures, engravings, carvings, frescos, mobiles, murals, collages, mosaics, statues, and bas-reliefs. The following shall not be considered public art:

- a) Art objects which are mass produced;
- b) Works that are decorative, ornamental or functional elements of the architecture or landscape design, except when commissioned from an artist as an integral aspect of a structure or site;
- c) Architectural rehabilitation or historical preservation;
- d) Signs or business logos.

Public facilities and services mean facilities relating to comprehensive plan elements required by F.S. § 163.3177. The term "public facilities and services" means roads, sanitary sewer, solid waste, drainage, potable water, recreation and mass transit.

Public park means a park, playground, swimming pool, community center, reservoir, golf course, or athletic field, within the city, which is under the control, operation, or management of the city or any other governmental agency.

Public utility means any state-regulated facility for rendering electrical, gas, communications, transportation, water supply, sewage disposal, drainage, garbage or refuse disposal or fire protection service or the like, to the general public.

Recording and TV/radio/film means a station or facility for the production of radio and television broadcasts, videos or films and/or the recording of film or sound.

Recreation/entertainment, indoor, means a business which is open to the public where customers pay the proprietor for the use or enjoyment of recreational facilities or equipment within an enclosed building. This category of use includes auditoria, virtual/augmented reality gaming, bowling alleys, movie theaters, racquetball facilities, skating, fitness centers, gymnastic facilities, and billiard facilities.

Recreation/entertainment, outdoor, means a business which is open to the public where customers pay for the use of recreational facilities or equipment on-site, but not within an enclosed building.

Recycling center means a site where recyclable waste is collected, sorted and/or processed.

Research and technology use means a use such as medical, optical and scientific research facilities, laboratories, pharmaceutical compounding and photographic processing facilities and facilities for the assembly of electronic components, optical equipment and precision instruments or laboratories or buildings the primary use of which is the research, testing and development of goods, materials, food stuffs or products.

Residential means a single-family or multifamily dwelling unit which contains a sleeping area, bathroom, kitchen and eating area.

Restaurant means a facility with the following characteristics: a varied, non-standardized menu; preparation of food by cooks or chefs; primary orientation to eat-in service; utilization of non-disposable eating utensils, plates, glasses, and cups; waiter or waitress service at tables. Restaurant also means a restaurant facility with the following characteristics: standardized limited menu; fast food preparation; orientation to take-out or eat-in service; utilization of disposable eating utensils and packaging; no waiter or waitress service at the tables.

Retail, sales, and service means a use, the principle use or purpose of which is the sale of primarily new goods, products, materials, or services directly to the consumer from within an enclosed building, including grocery stores, bakeries, hardware stores, antique and collectible stores, dry cleaning drop-off and pick-up station, dry cleaning establishments, pet shops, personal services, indoor recreation, personal instruction, art galleries, and including the sale of alcoholic beverages for off-premises consumption provided that the sale of alcoholic beverages is subordinate to the principal use, and the display of alcoholic beverages occupies less than twenty-five (25) percent of the floor area of the use, sale of principally new automobiles involving the outdoor display of a maximum of twenty (20) automobiles of which no more than thirty (30) percent shall be pre-owned, not including street vendors, farmers' markets, consignment shops, automobile services stations, thrift stores, self-service laundries, the on-premises consumption of alcoholic beverages or problematic uses.

School means an educational institution, public or private, within the city, offering a curriculum acceptable by local and state educational officials to fulfill legal requirements of education for nursery, elementary through high school levels, or any part thereof.

Shipping container architecture means the use of steel intermodal containers as a structural element.

Single-family attached means two (2) single-family units with a common wall, common land ownership, separate unit ownership, and an established homeowner association.

Storage and wholesaling facility means any premises where the principal use is the storage of goods and materials, or the sale of goods and materials in bulk quantities primarily for purposes of resale.

Storage, outdoor, means any outdoor lot that is primarily uses for the storage of goods and materials.

Storage warehouse means a structure which is designed and used for the containment of bulk products or materials of either dry, liquid, or cold storage nature and where goods are received and/or stored for delivery to an ultimate customer at remote locations primarily for the purpose of resale.

Townhouse means a building or structure designed for or occupied by no more than one (1) family or household and attached to other similar buildings or structures by not more than two (2) party walls extending from the foundation to the roof, providing two (2) direct means of access from the outside, and cooking, sleeping and sanitary facilities for the use of each family or household of the townhouse. A townhouse may include a building or structure in fee simple, condominium, cooperative or leasehold ownership or any combination thereof.

Urban agriculture means the practice of cultivating, processing and distributing of edible or ornamental crops to be sold or donated that includes, but is not limited to, outdoor growing operations, indoor growing operations, vertical farms, aquaponics, aquaculture, agroforestry, urban beekeeping, horticulture, hydroponics and rooftop farms in or around urban areas. Also called urban farming or urban gardening.

Used vehicle parts sales means the offering of used detached automobile parts for sale without on-site dismantling or storage of inoperable or salvage vehicles. On-site dismantling and storage of inoperable vehicles or chassis for parks is prohibited. All parts storage shall be within a wholly enclosed building.

Vehicle rental means the leasing or rental of new or low mileage automobiles, small trucks (one (1) ton and under) and vans (less than one (1) ton) on a single parcel of land in the B-1 district, not including an out parcel, independent of any other uses on the same parcel of land and specifically not including vehicle service or car washing.

Vehicle sales/displays means a business or commercial activity involving the display and/or sale of principally new automobiles, small trucks and vans and other small vehicular or transport mechanisms and including vehicle service. The sale of previously owned vehicles shall only be permitted as subordinate to the principal use.

Vehicle sales/displays, major, means a business or commercial activity involving the display and/or sale or rental of boat and marine vessels, recreational vehicles, heavy equipment, mobile homes, and other vehicular or transport mechanisms and including vehicle service.

Vehicle sales/displays, used, means a business or commercial activity involving the display, rental and/or sale of used and/or retitled automobiles, small trucks and vans on a single parcel of land, not including an out parcel, independent of any other uses on the same parcel of land and specifically not including vehicle service or car washing of boat and marine vessels, recreational vehicles, heavy equipment, mobile homes, and other vehicular or transport mechanisms and including vehicle service.

Vehicle service, major, means vehicle and boat repairs conducted entirely inside a building which include engine repairs where the cylinder head, pan or exhaust manifold is removed; steam cleaning of engines; undercoating; vehicle spray painting; auto glass repair and replacement; repair and replacement of transmission, differential, transaxles, shaft and universal joints, wheel and steering linkages and assemblies; rebuilding and upholstering the interior of vehicles; customizing, restoration or rebuilding of vehicles; chassis, frame, body, fender and bumper molding, straightening, replacement and finishing; and repairs involving extensive welding, racing of engines or lengthy or overnight idling of engines.

Vehicle service, minor, means an activity conducted entirely within an enclosed structure primarily involved in servicing or repairing of automobiles, motorcycles, trucks, recreational vehicles and other similarly sized vehicular or transport mechanisms or heavy machinery. Vehicle services include washing, waxing, changing oil, tuning, installing mufflers or detailing, window tinting, shock absorbers, and painting.

Veterinary clinic means an establishment providing for the short-term care of domestic animals by a veterinarian when such is conducted wholly within a building having no provision for outside storage and for which the keeping of animals is limited to short-term medical care.

(Ord. No. 16-07, exh. A(22-76), 9-14-2016)

Sec. 22-77. Schedule of districts and official zoning map.

In accordance with these land development regulations, the city is hereby divided into the following zoning districts. See the Official Zoning Map. The districts are consistent with, and implement, the city's adopted future land use map and comprehensive plan.

<i>Zoning Districts</i>			
<i>Residential</i>	<i>Commercial & Industrial</i>	<i>Mixed Use</i>	<i>Civic and Recreational</i>
R-1	B-O	R-1*	C
R-2	B-1	R-2	
R-3	B-2	R-3	
R-TH	B-3	R-TH	
R-4	I-1	R-4	

<i>Zoning Districts</i>			
<i>Residential</i>	<i>Commercial & Industrial</i>	<i>Mixed Use</i>	<i>Civic and Recreational</i>
	I-2	B-O	
	I-3	B-1	
		B-2	
		B-3	
		I-1	

*Denotes conditional use

<i>Map Code</i>	<i>Zoning District</i>	<i>Future Land Use District</i>
R-1	R-1 Single-Family Residential District	• Low-density residential • Downtown mixed use • Magnolia Gardens mixed use • Magnolia North mixed use • Corridor mixed use
R-2	R-2 Duplex Residential District	• Low-medium density residential • Downtown mixed use • Magnolia North mixed use residential
R-3	Multiple-Family Residential (Moderate Density) District	• Moderate density residential • Downtown mixed use • Corridor mixed use
R-TH	Residential Townhouse District	• Moderate density residential • Downtown mixed use • Magnolia Gardens mixed use • Corridor mixed use
R-4	Multiple-Family Residential (Medium Density) District	• High density residential • Downtown mixed use • Corridor mixed use
B-O	Business Office District	• Commercial • Downtown mixed use • Magnolia North mixed use • Corridor mixed use
B-1	Commercial Neighborhood Business District	• Commercial • Downtown mixed use • Magnolia North mixed use • Corridor mixed use
B-2	Liberal Commercial District	• Commercial • Downtown mixed use • Magnolia Gardens mixed use • Corridor mixed use
B-3	Intensive Commercial District	• Commercial • Corridor mixed use
I-1	Limited Industrial District	• Industrial • Corridor mixed use • Downtown mixed use
I-2	Liberal Industrial District	• Industrial • Corridor mixed use

<i>Map Code</i>	<i>Zoning District</i>	<i>Future Land Use District</i>
I-3	Liberal Industrial District, Automobile Salvage and Storage	• Industrial
C	Civic	• Public • Downtown mixed use • Magnolia Gardens mixed use • Corridor mixed use
HDD 1-2	Historic Downtown Opa-locka District	• Moderate density residential • Downtown mixed use • Corridor mixed use • High density residential • Commercial

(Ord. No. 16-07, exh. A(22-77), 9-14-2016)

Sec. 22-78. Prohibited uses and structures.

- A. Any use that is specifically listed as a prohibited use shall be prohibited.
- B. Unless a use is specifically listed as a permitted or conditional use, or is deemed by the director or his designee to be by the application similar to a listed permitted or conditional use, it shall be prohibited.
- C. No building shall exceed the height limit established for the district in which it is located unless the height limit can be exceeded through application of a development bonus.
- D. Buildings shall conform to the yard, setback, open space, lot area, building location, and bulk regulations established for the district in which they are located.
- (Ord. No. 16-07, exh. A(22-78), 9-14-2016)

Sec. 22-79. Permitted uses table—Residential districts.

P=Permitted

SE=Special exception

A=Accessory

AR=Administrative review

Blank = not permitted

<i>Use</i>	<i>R-1</i>	<i>R-2</i>	<i>R-3</i>	<i>R-TH</i>	<i>R-4</i>
Awnings, canopies, carports, roof overhangs, balconies, architectural structures	A	A	A	A	A
Home sharing (i.e., Airbnb, HomeAway, etc.)	AR	AR	AR	SE	SE
Child care center		SE	SE	SE	SE
Community Garden	A	A	A	A	A
Community residential (group), 6 and under		SE	SE	SE	SE
Construction trailer, temporary	A	A	A	A	A
Day care centers		P	P	P	P
Dumpster enclosures			A	A	A
Duplex residential		P			
Eco-friendly accessory structures and features (i.e., solar panels, wind turbines, rain barrels, etc.)	A	A	A	A	A

<i>Use</i>	<i>R-1</i>	<i>R-2</i>	<i>R-3</i>	<i>R-TH</i>	<i>R-4</i>
Enclosed recreation areas, common			A	A	A
Gatehouses/guardhouse			A	A	A
Generators, permanent	A	A	A	A	A
Home occupations	P	P	SE	SE	SE
Maintenance building, common			A	A	A
Management office/sales office			A		A
Multi-family recyclable material storage area			A		A
Multifamily residential, high density					P
Multifamily residential moderate density			P		P
News racks			A		A
Nursing homes/adult congregate living facilities			SE		SE
Off-street parking structures			A		A
Outdoor recreation areas, common			A	A	A
Portable storage units	A	A	A	A	A
Public schools and charter schools	P	P	P	P	P
Religious institutions	SE	SE	SE	SE	SE
Screen enclosures	A	A			
Single-family residential detached	P	P			
Single-family residential attached	SE	P	P	P	P
Swimming pools, spas, tennis courts, ball courts	A	A	A	A	A
Townhouses		P	P	P	P
Unattached garages/carports	A	A		A	
Utility sheds, storage buildings, fallout shelters	A	A	A	A	A
Watchmen, manger or caretakers quarters, permanent, temporary			A		A
Wireless antenna support structures, amateur radio antennas	A	A	A	A	A

(Ord. No. 16-07, exh. A(22-79), 9-14-2016)

Sec. 22-80. Permitted uses table—Commercial districts.

<i>Use</i>	<i>B-O</i>	<i>B-1</i>	<i>B-2</i>	<i>B-3</i>
Awnings, canopies, carports, roof overhangs, balconies, architectural structures	A	A	A	A
Adult bookstore				SE
Adult daycare	SE	SE	SE	
Animal boarding			SE	P
Artist studio	P	P	P	
Animal grooming		SE	P	P
Appliance, furniture, electronic repair and rental		P	P	
Auto service station			SE	SE
Banquet hall		SE	P	
B-1 first uses		P	P	P
B-2 first uses			P	P
Bar, lounge or tavern			SE	SE
Cafeteria	P (off-premises only)	P	P	P

OPA-LOCKA LAND DEVELOPMENT CODE

§ 22-80

<i>Use</i>	<i>B-O</i>	<i>B-1</i>	<i>B-2</i>	<i>B-3</i>
Catering kitchen			P	P
Child care centers		SE	P	
Community facilities		SE	SE	SE
Community gardens				SE
Commercial recycling storage areas	A	A	A	A
Consignment shop		P	P	
Construction trades				P
Construction trailer, temporary	A	A	A	A
Convenience retail	A			
Convention centers		SE	P	
Crematory				SE
Day spa			P	P
Donation bins	A	A	A	A
Drive through		SE	P	P
Dry cleaning		SE	P	
Dumpster enclosures	A, required	A	A	A
Eco-friendly accessory structures and features (i.e., solar panels, wind turbines)	A	A	A	A
Educational facilities		SE	P	
Farmers' market			TUP	TUP
Fine arts studio	P	P	P	
Flea markets and bazaars		SE	SE	P
Funeral homes		SE	SE	P
Generators, permanent	A	A	A	A
Gun shops				SE (sales only)
Hospitals		SE	P	
Hotel/motel/lodging		SE	P	
Industrial, light (within an enclosed building)				P
Industrial kitchen				P
Institutional		SE	P	
Liquor package store			SE	SE
Live/work spaces	P		SE	SE
Maintenance building, common	A	A	A	A
Manufacturing, light (within an enclosed building)				P
Mechanical car washing (enclosed building)			SE	SE
Medical		P	P	
Microbrewery (must comply with federal, state and county regulations)				SE
Nursing and convalescent home		SE	SE	SE
Motion picture studios				P
Nursing and convalescent homes	SE	SE	SE	
Offices	P	P	P	P
Outside hand car wash, accessory to auto service station			AR	AR
Parking lots, public		P	P	P
Passenger terminals			P	P
Pawn shops (no gun sales)				P
Private clubs			P	P

<i>Use</i>	<i>B-O</i>	<i>B-1</i>	<i>B-2</i>	<i>B-3</i>
Private schools	SE	SE	SE	SE
Public facilities		P	P	P
Public and charter schools	SE	SE	SE	SE
Public parks	P	P	P	P
Recording and TV/radio studio				P
Recreation/entertainment indoors			P	P
Recreation/entertainment outdoors			P	P
Religious institutions	SE	SE	SE	SE
Research and technology uses				P
Retail, sales and services		P	P	P
Restaurants without drive through windows		SE	P	P
Self-service laundries		P	P	P
Self-storage				P
Shipping container architecture retail and/or office (stacking no more than three)	AR	AR	AR	AR
Shipping containers as building structures or commercial office (prohibited for residential uses)	P/AR	P/AR	P/AR	P/AR
Urban garden				SE
Vehicle rental		P	P	P
Vehicle sales/displays			SE	SE
Vehicle sales/displays major				SE
Vehicle sales/displays used				SE
Vehicle service/minor			P	P
Vending machines, video arcade games	A	A	A	A
Veterinary clinic		SE	P	P
Watchman, manager or caretakers quarters — permanent, temporary	A	A	A	A
Wireless antenna support structures, amateur radio antennas	A	A	A	A

(Ord. No. 16-07, exh. A(22-80), 9-14-2016; Ord. No. 17-18, § 1(22-80), 12-13-2017; Ord. No. 2025-07, § 2, 4-9-2025)

Sec. 22-81. Permitted uses table—Industrial districts.

<i>Use</i>	<i>I-1</i>	<i>I-2</i>	<i>I-3</i>	<i>I-4</i>
Adult businesses		SE	P	
Automobile or auto parts junkyards				P
Auto broker as per Ordinance No. 11-05	P	P	P	
Auto service station (filling station for service vehicles for a licensed business, not visible from street)	P	P	P	
Automotive wrecking yards				P
Awnings, canopies, carports, roof overhangs, balconies, architectural structures	A	A	A	
B-1 first uses	P (adjacent to residential)			
B-3 first uses	P	P	P	
Biomedical research	P	P	P	
Cement and clay products		SE		P
Commercial recyclable material storage area	A	A	A	
Construction trades	P	P	P	P-Site Plan Review

OPA-LOCKA LAND DEVELOPMENT CODE

§ 22-81

<i>Use</i>	<i>I-1</i>	<i>I-2</i>	<i>I-3</i>	<i>I-4</i>
Construction trailer - temporary	A	A	A	
Crematory/embalming	P	P	P	
Donation bins	A	A	A	
Dry cleaning plant		P	P	
Eco-friendly accessory structures and features (i.e., solar panels, wind turbines)	A	A	A	
Enclosed recreation area - common	A	A	A	
Farmers' market	P			
Fleet operations		P	P	
Gatehouse, guardhouse	A	A	A	
Generators, permanent	A	A	A	
Gun shops	SE (sales only)		SE	
I-1 first uses	P	P	P	
I-2 first uses		P		
I-3 first uses			P	
Industrial kitchen	P		P	
Industrial, light	P	P	P	
Industrial		P		
Industrial and office flex space	P		P	
Live/work spaces	SE			
Maintenance building, common	A	A	A	
Manufacturing		P		
Manufacturing, light	P	P	P	
Microbrewery (must comply with federal, state and county regulations)	SE	P	P	
Motion picture studios	P	P	P	
Nightclub			P	
Outdoor storage		P		
Passenger terminals	P	P	P	
Petroleum storage tank not exceeding 30,000 gallons		P		
Public utility structures	P	P	P	P
Recording and TV/radio/film	P		P	
Recycling center inside a wholly enclosed building		P		
Outside recycling center				P
Religious facilities	SE		SE	
Retail (of products manufactured in district, not to exceed 20% of the floor area)	P	P	P	
Rock and sand yards		P		P
Saw mills		P		P
Scrap metal yards				P
Shipping container storage yard (lease/sale) (no more than three)				P-Site Plan Review
Shipping container architecture/as building structure for retail and/or office (stacking no more than three)	P/AR	P/AR	P/AR	P/AR
Shipping container architecture - for storage use (no stacking)	P/AR	P/AR	P/AR	P/AR
Storage and wholesaling facility	P	P	P	
Storage of attached or unattached used auto parts and tires				P
Storage, warehouse	P	P	P	

<i>Use</i>	<i>I-1</i>	<i>I-2</i>	<i>I-3</i>	<i>I-4</i>
Tractor trailer truck and/or major vehicle (10,000 lbs. or greater) parking		P	P	P
Tow truck and tow vehicle storage				P-Site Plan Review
Used vehicle parts sales, other than automobile or auto parts junkyards		P		
Utility vehicles, and equipment parking and storage				P-Site Plan Review
Utility sheds, storage buildings, fallout shelters	A	A	A	A
Vehicle sales in an enclosed area	P	P	P	
Vehicle service/major	P	P	P	
Wireless antenna support structures, amateur radio antennas	A	A	A	A

(Ord. No. 16-07, exh. A(22-81), 9-14-2016; Ord. No. 2021-05, § 2, 4-14-2021; Ord. No. 2023-02, § 2(exh. A), 1-11-2023; Ord. No. 2025-03, § 2(Exh. A), 2-12-2025; Ord. No. 2025-07, § 2, 4-9-2025)

Sec. 22-82. Permitted uses table—Mixed use and civic districts.

<i>Use</i>	<i>DMU</i>	<i>MXUOD</i>	<i>MNMU</i>	<i>C</i>
Artist workspace	P	P	P	
Auto service station		SE		
Awnings, canopies, carports, roof overhangs, balconies, architectural structures	A	A	A	A
Bar, lounge or tavern	SE	SE		
Catering kitchen	P	P		
Child care center	P	P	P	
Commercial recyclable material storage area	A	A	A	
Community facilities	P	P	P	P (public)
Community gardens	SE			
Consignment shops	P	P		
Construction trailer, temporary	A	A	A	A
Convention centers	P			
Day care centers	P	P	P	
Day spa	P	P		
Donation bins	A	A	A	A
Eco-friendly accessory structures and features (i.e., solar panels, wind turbines)	A	A	A	A
Educational facilities	SE	SE		SE
Enclosed recreation areas, common	A	A	A	A
Farmer's markets	SE			
Fine arts studio	P	P		
Gatehouses, guardhouses	A	A	A	A
Generators, permanent	A	A	A	A
Home occupations	P	P	P	
Hospitals				P (public)
Hotel/motel/lodging	P	P		
Institutional	P	P	P	P
Laundry and dry cleaning drop-off, pick up	P	P		
Live/work spaces	P	P	P	

<i>Use</i>	<i>DMU</i>	<i>MXUOD</i>	<i>MNMU</i>	<i>C</i>
Maintenance building, common	A	A	A	A
Medical	P	P		
Municipal and other government buildings, facilities	P	P	P	P
Office	P	P	P	
Parks and recreation facilities	P	P	P	P (public)
Passenger terminals	SE	SE		
Private parking facilities	P	P	P	
Private schools	P	P	P	
Public and charter schools	P	P	P	P
Public facilities	P	P	P	P
Public parks	P	P	P	P
Public parking facilities	P	P	P	P
Public utility				P
R-3 uses	P	P		
R-4 uses	P	P		
R-TH uses		P		
Recreation/entertainment, indoor	P	P	P	
Religious facilities	SE	SE	SE	
Restaurants without drive through windows	P	P	P	
Retail, sales and services	P	P	P	
Shipping containers as building structures or commercial office (prohibited for residential uses)	P/AR	P/AR	P/AR	P/AR
Travel facility for trucks		SE		
Urban garden	SE			
Uses allowed in underlying zoning district	P	P	P	
Vending machines, video arcade games	A	A		
Vertical mixed use buildings	P	P	P	
Wireless antenna support, amateur radio antennas	A	A	A	A

(Ord. No. 16-07, exh. A(22-82), 9-14-2016; Ord. No. 17-18, § 1(22-82), 12-13-2017; Ord. No. 2025-07, § 2, 4-9-2025)

Sec. 22-83. R-1 Single-Family Residential District.

The R-1 Single-Family Residential District provides for single-family detached dwelling units, and other listed permitted uses.

Table of Standards

<i>Standard</i>	<i>R-1</i>
Density	Maximum of nine units per acre; higher densities may be permitted only if the site is located in a mixed use overlay district and meets associated development standards, and is located in a future land use district that permits the requested density.
Minimum lot area	4,800 square feet (smaller lots for new housing products)
Minimum lot width	40 feet
Minimum lot depth	75 feet

<i>Standard</i>	<i>R-1</i>
Minimum setbacks	Front: 25 feet Side: 5 feet Side, street: 15 feet Rear: 15 feet
Maximum height	2 stories, 25 feet
Minimum unit size	900 square feet (s.f.)
Maximum impervious area	60 percent of lot area
Accessory structure height	14 feet
Accessory structure setbacks	Front: 25 feet Side: 5 feet Side, street: 15 feet Rear: 2.5 feet

R-1 Single Family Residential District

1.5
Parking Spaces
Required

min. side setback
accessory bldg

min. rear setback
accessory bldg

2.5'

15' min. rear
setback to
residence

min. side setback
to residence

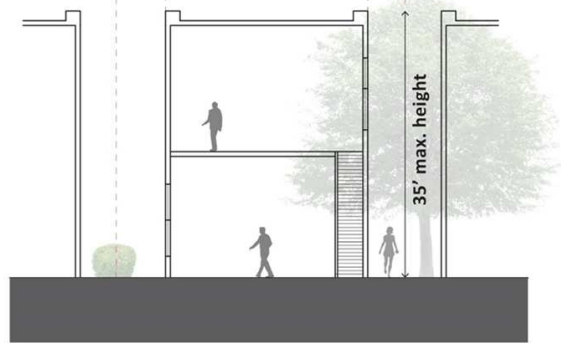
5'

5'

25' min. front
setback to
residence

75' min. lot depth

40' min. lot width



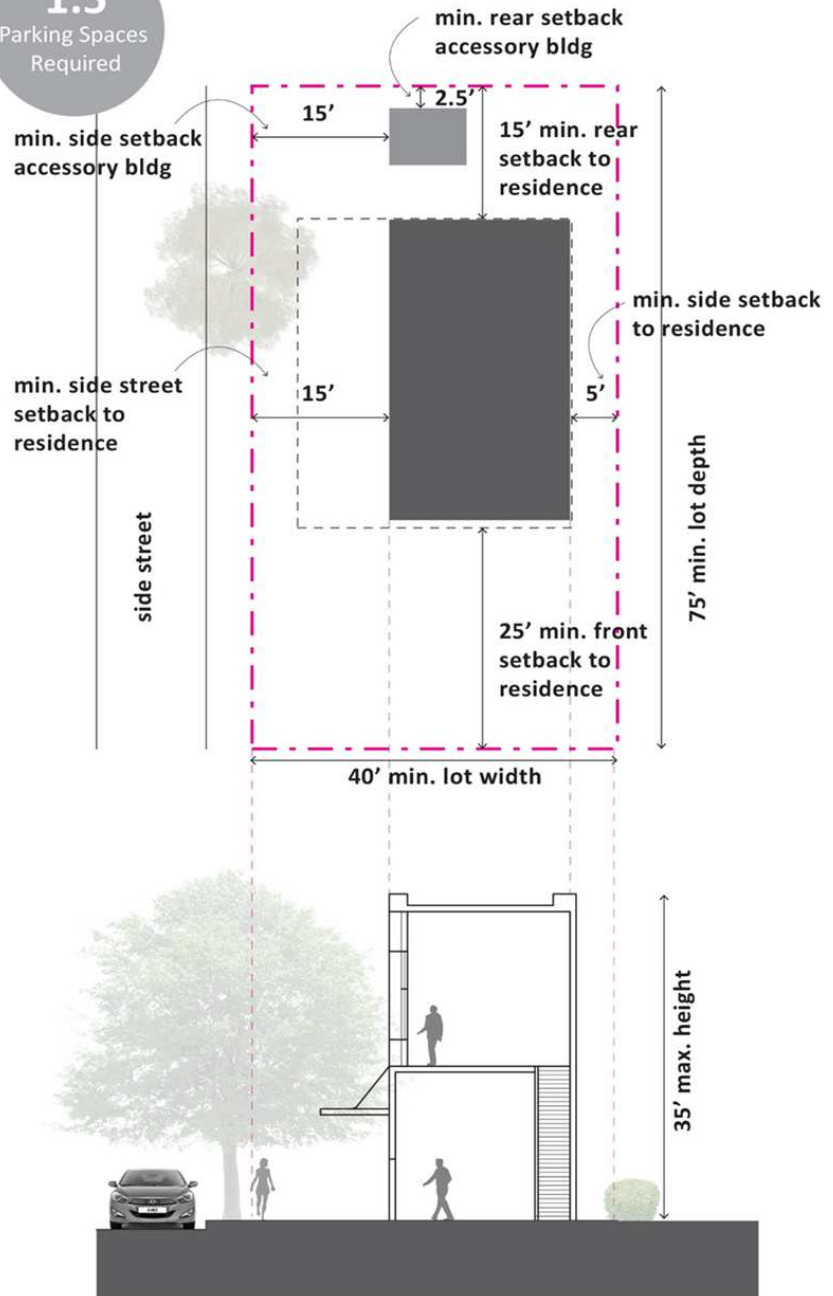
R-1

R-1

R-1 Single Family Residential District

with Side Street

1.5
Parking Spaces
Required



R-1 visual plan

R-1



(Ord. No. 16-07, exh. A(22-83), 9-14-2016)

Sec. 22-84. R-2 Two-Family Residential District.

The R-2 Two-Family Residential District provides for duplex residential uses, and other listed permitted uses.

Table of Standards

<i>Standard</i>	<i>R-2</i>
Density	18 units per acre. Higher densities may be permitted only if the site is located in a mixed use overlay district and meets associated development standards, and is located in a future land use district that permits the requested density.
Minimum lot area	4,800 s.f.
Minimum lot width	50 feet
Minimum lot depth	75 feet
Minimum setbacks	Front: 25 feet Side: 5 feet Side, street: 15 feet Rear: 15 feet If detached, spacing between structures shall be 10 feet
Maximum height	2 stories, 35 feet
Minimum unit size	750 s.f. for two bedroom unit, 600 s.f. for one bedroom unit
Maximum impervious area	60 percent of lot area
Accessory structure height	14 feet
Accessory structure setbacks	Front: 25 feet Side: 5 feet Side, street: 15 feet Rear: 2.5 feet

(Ord. No. 16-07, exh. A(22-84), 9-14-2016)

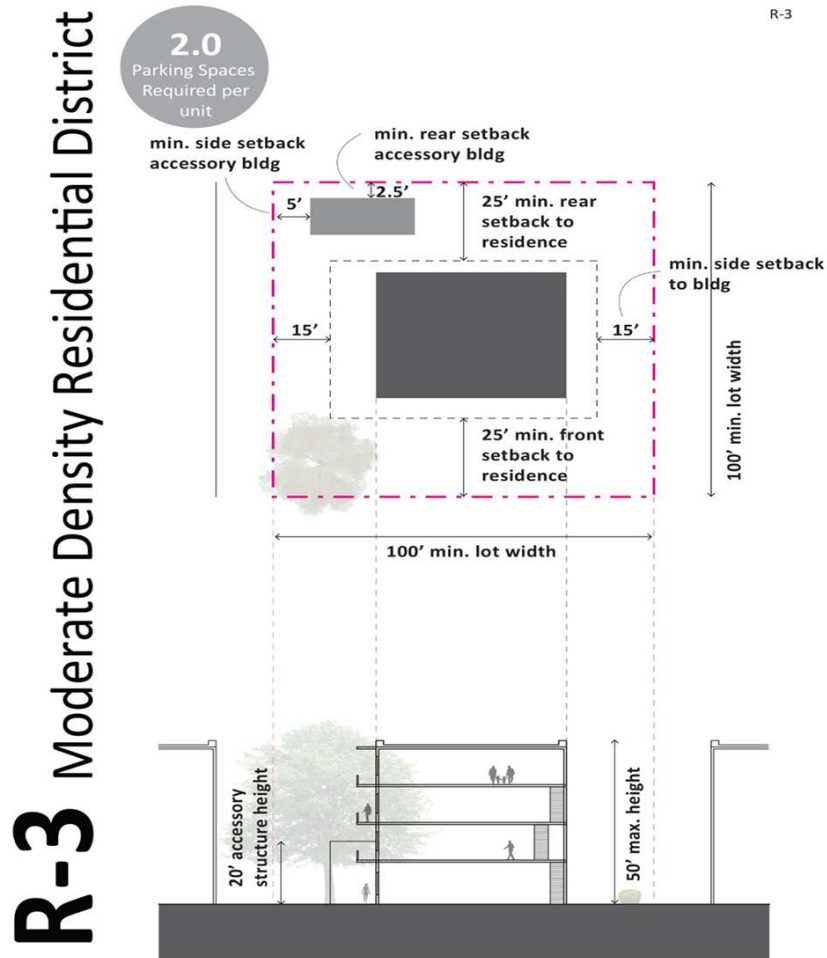
Sec. 22-85. R-3 Moderate Density Residential District.

The R-3 Moderate Density Residential District provides for moderate density multifamily uses that serve as a transition between duplex residential uses, and other listed permitted uses.

Table of Standards

<i>Standard</i>	<i>R-3</i>
Density	Garden apartment, two stories, 8—12 units per building, 30—36 units per acre. Higher densities may be permitted only if the site is located in a mixed use overlay district and meets associated development standards, and is located in a future land use district that permits the requested density. Apartment building, live-work development, three to four stories, 15—30 units per building 40—70 units per acre
Minimum site area	9,600 s.f.; apt bldg., live-work MU district, minimum site area: 17,500 square feet
Minimum lot width	100 feet
Minimum lot depth	100 feet
Minimum setbacks	Front: 25 feet Side, interior lot: 15 feet Side, street: 20 feet Rear: 25 feet
Maximum height	4 stories or 50 feet

<i>Standard</i>	<i>R-3</i>
Minimum unit size	500 s.f. for efficiency units; 625 s.f. for one-bedroom units; 750 s.f. for two-bedroom units; 1,000 s.f. for three-bedroom units, exclusive of garages, carports, terraces, breezeways and porches
Maximum impervious area	80 percent of site
Accessory structure height	20 feet
Accessory structure setbacks	Front: 25 feet Side: 5 feet Side, street: 15 feet Rear: 2.5 feet



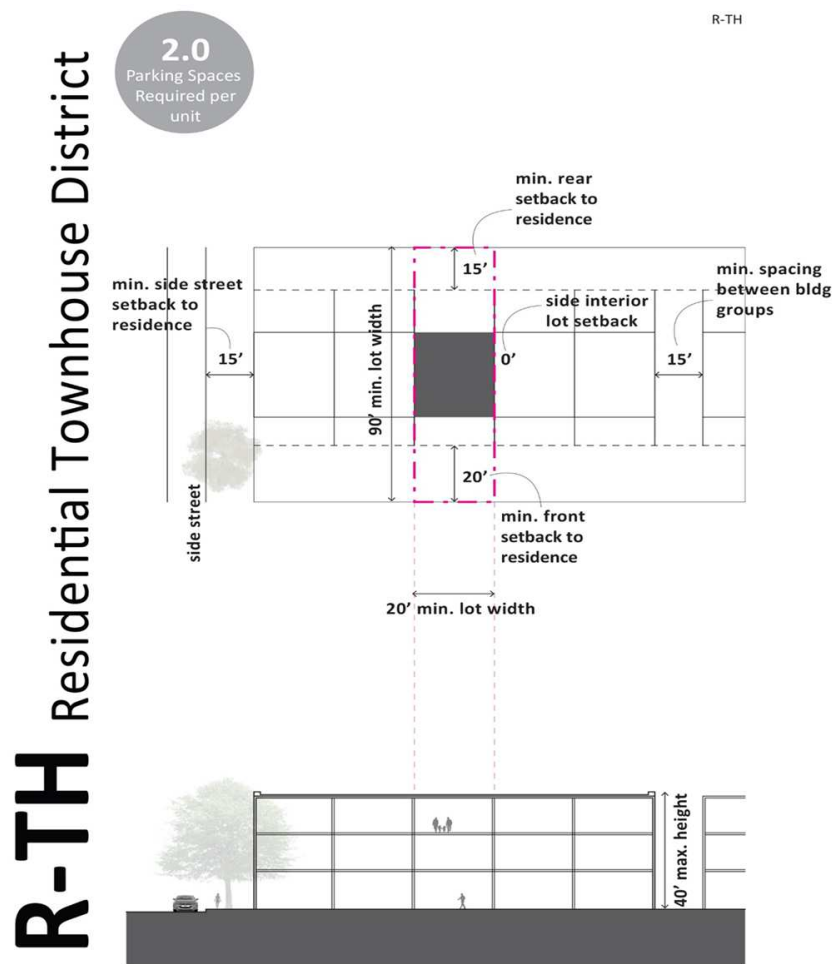
(Ord. No. 16-07, exh. A(22-85), 9-14-2016)

Sec. 22-86. R-TH Residential Townhouse District.

The residential townhouse district provides for moderate density townhouse residential neighborhoods. Townhouses are two (2) or more attached dwelling units, usually two (2) stories, served by separate utility services. Innovative design is encouraged.

Table of Standards

<i>Standard</i>	<i>R-TH</i>
Density	Townhouse/quads 4—6 units per building 24—28 units per acre. Higher densities may be permitted only if the site is located in a mixed use overlay district and meets associated development standards, and is located in a future land use district that permits the requested density.
Minimum site area	7,500 s.f. individual unit lots must have a minimum of 1,500 s.f.
Setbacks	Front: 20 feet Side, interior lot: 0 feet Side, street: 15 feet Space between buildings: 15 feet Rear: 15 feet
Maximum height	3 stories or 35 feet
Minimum unit size	750 s.f. for two-bedroom units, 625 s.f. for one-bedroom units, exclusive of garages, carports, terraces, breezeways and porches
Maximum impervious area	80 percent of site
Accessory structure height	14 feet
Accessory structure setbacks	Rear: 2.5 feet



(Ord. No. 16-07, exh. A(22-86), 9-14-2016)

Sec. 22-87. R-4 High Density Residential District.

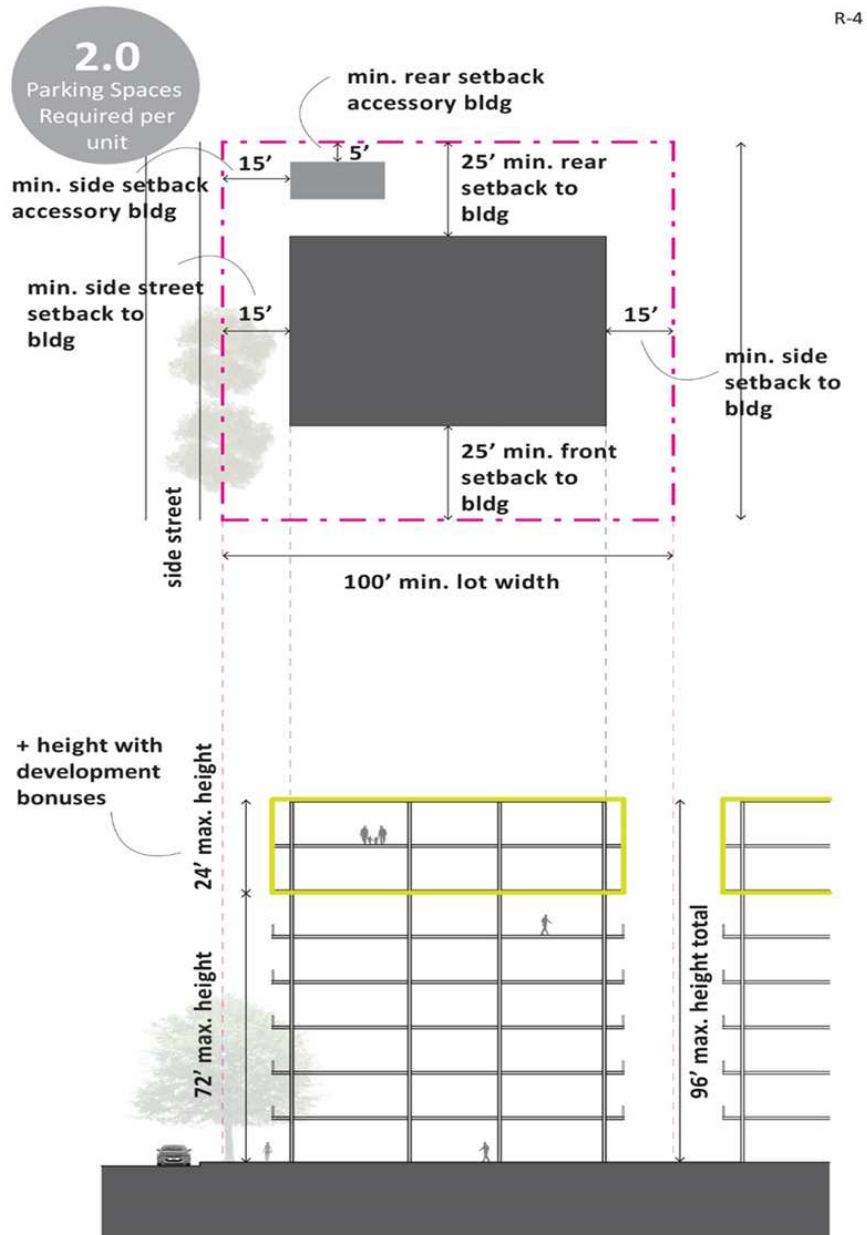
The R-4 High Density Residential District provides for multifamily uses that serve as a transition between less intensive residential uses and more intensive mixed use and nonresidential areas.

Table of Standards

<i>Standard</i>	<i>R-4</i>
Density	Tower five stories or more, 75+ units per building, 75—120 units per acre. Higher densities may be permitted only with affordable housing bonus provisions, and/or if the site is located in a mixed use overlay district and meets associated development standards, and is located in a future land use district that permits the requested density.

<i>Standard</i>	<i>R-4</i>
Minimum site area	22,500 s.f.
Minimum lot width	100 feet
Setbacks	Front: 25 feet Side, interior lot: 15 feet Side, street: 15 feet Side, between structures: 20 feet Rear: 25 feet
Maximum height	6 stories, or 8 stories with development bonuses
Minimum unit size	500 s.f. for efficiency units, 625 s.f. for one-bedroom units; 750 s.f. for two-bedroom units; 1,000 s.f. for three-bedroom units, exclusive of garages, carports, terraces, breezeways and porches
Maximum impervious area	70 percent of site. Lot coverage for all buildings on-site shall not exceed 40 percent of lot area
Accessory structure height	20 feet
Accessory structure setbacks	Front: 75 feet Side, interior: 7.5 feet Side, street: 15 feet Between buildings: 10 feet Rear: 5 feet

R-4 High Density Residential District



R-4

R-4 visual plan

R-4



(Ord. No. 16-07, exh. A(22-87), 9-14-2016)

Sec. 22-88. B-O Business Office District.

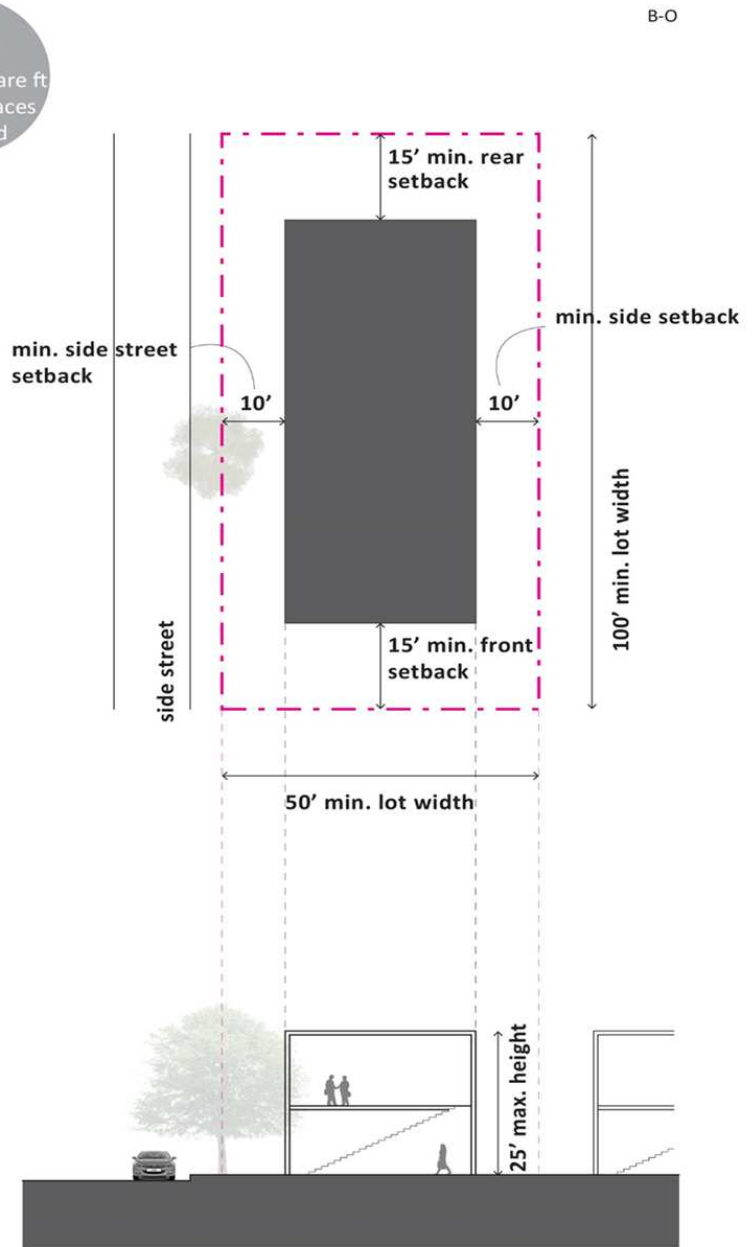
The B-O Business Office District provides for low intensity office and specific retail uses that are conveniently located in relation to, and compatible with, proximate residential areas.

Table of Standards

<i>Standard</i>	<i>B-O</i>
Intensity	0.5
Minimum site area	5,000 s.f.
Setbacks	Front: 15 feet Side, interior lot: 10 feet Side, street: 10 feet Side, between structures or corner: 10 feet, or 0 feet when abutting a canal right-of-way Rear: 15 feet, or 0 feet when backing onto a canal right-of-way or alley
Maximum height	2 stories or 25 feet, whichever is less
Maximum impervious area	80 percent of site
Accessory structure height	14 feet
Accessory structure setbacks	Front: 25 feet Side: 5 feet Side, street: 15 feet Rear: 2.5 feet

B-O Business Office District

1.0
Per 400 square ft
Parking Spaces
Required



(Ord. No. 16-07, exh. A(22-88), 9-14-2016)

Sec. 22-89. B-1 Commercial Neighborhood Business District.

The B-1 Commercial Neighborhood Business District provides for low intensity retail and/or service oriented convenience commercial centers which serve the everyday needs of local residents and are compatible with surrounding residential uses.

Table of Standards

<i>Standard</i>	<i>B-1</i>
Intensity	0.9 floor area ratio
Minimum site area	5,000 s.f.
Setbacks	Front: 10 feet Side, interior lot: 0 feet Side, street: 10 feet Rear: 15 feet, or 0 feet when backing onto a canal right-of-way or alley
Maximum height	3 stories or 45 feet, whichever is less
Maximum impervious area	80 percent of site.
Accessory structure height	20 feet
Accessory structure setbacks	Front: Not permitted in front Side: 10 feet Side, street: 10 feet Rear: 10 feet, 25 feet when abutting or adjacent to residential
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area. Projects which substantially contribute architecturally to the city's Moorish architecture goals, as outlined in the "Arabian Motif Architectural Style Guide," as it may be updated from time to time, are eligible for a 20% increase in floor area. Projects that demonstrate design excellence, as defined in this article, are eligible for up to a 20% increase in floor area. The maximum floor area increase that can be achieved through a combination of development bonuses shall not exceed 20%.

(Ord. No. 16-07, exh. A(22-89), 9-14-2016)

Sec. 22-90. B-2 Commercial Liberal Business District.

The B-2 Commercial Liberal Business District provides for commercial centers that offer a wide range of retail or service facilities.

Table of Standards

<i>Standard</i>	<i>B-2</i>
Intensity	2.4 floor area ratio
Minimum site area	5,000 s.f. for existing subdivisions, 10,000 s.f. for re-plat or new plat
Setbacks	Front: 10 feet Side, interior lot: 0 feet, or 10 feet if abutting residential Side, corner: 15 feet, or 0 feet when abutting a canal right-of-way Rear: 15 feet, or 0 feet when backing onto a canal right-of-way or alley
Maximum height	4 stories or 55 feet, whichever is less

<i>Standard</i>	<i>B-2</i>
Maximum impervious area	80 percent of site.
Accessory structure height	20 feet
Accessory structure setbacks	Front: Not permitted in front Side: 10 feet Side, street: 10 feet Rear: 10 feet, 25 feet when abutting or adjacent to residential
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area. Projects which substantially contribute architecturally to the city's Moorish architecture goals, as outlined in the "Arabian Motif Architectural Style Guide," as it may be updated from time to time, are eligible for a 20% increase in floor area. Projects that demonstrate design excellence, as defined in this article, are eligible for up to a 20% increase in floor area. The maximum floor area increase that can be achieved through a combination of development bonuses shall not exceed 20%.

(Ord. No. 16-07, exh. A(22-90), 9-14-2016)

Sec. 22-91. B-3 Commercial Intensive Business District.

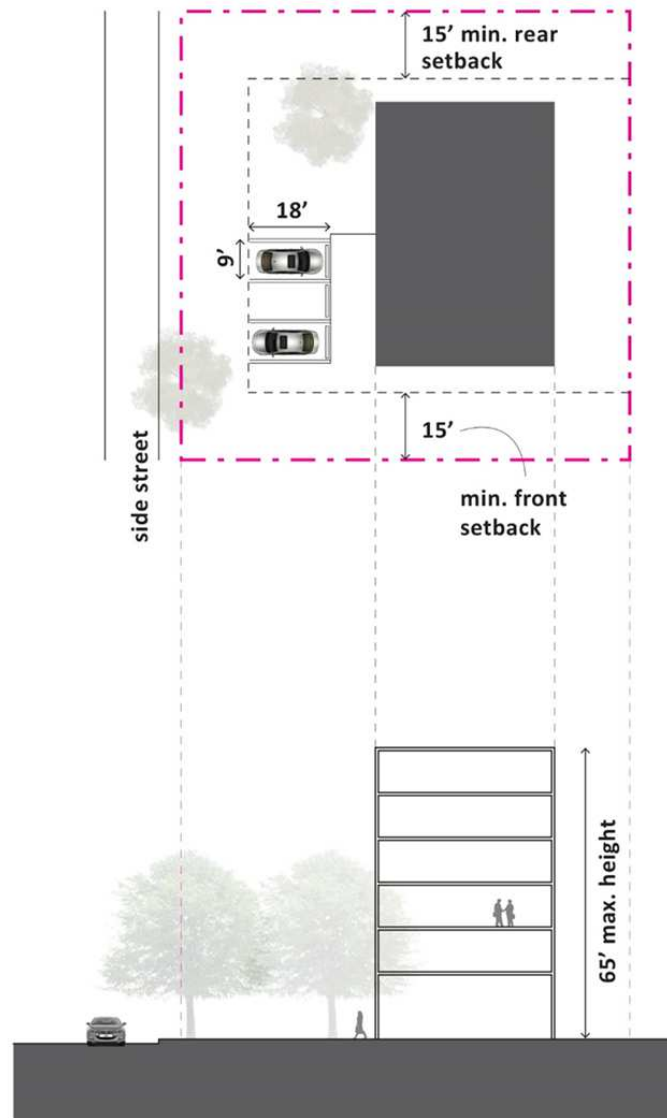
The B-3 Commercial Intensive Business District provides for intensive commercial developments.

Table of Standards

<i>Standard</i>	<i>B-3</i>
Intensity	3.0 floor area ratio
Minimum site area	10,000 s.f.
Setbacks	Front: 15 feet, or 25 feet when adjacent to a residential district Side, interior lot: 0 feet, or 10 feet if abutting residential Side, corner: 15 feet Side, interior: 15 feet Rear: 15 feet, or 0 feet when backing onto an alley, or 25 feet when adjacent to a residential district
Maximum height	6 stories or 65 feet, whichever is less
Maximum impervious area	80 percent
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area.

B-3 Commercial Intensive Business

1.0
Per 500 square ft
Parking Spaces
Required



(Ord. No. 16-07, exh. A(22-91), 9-14-2016)

Sec. 22-92. I-1 Light Industrial District.

The I-1 Light Industrial District provides for intensive commercial developments, light industrial, and industrial and office flex space at appropriate locations.

Table of Standards

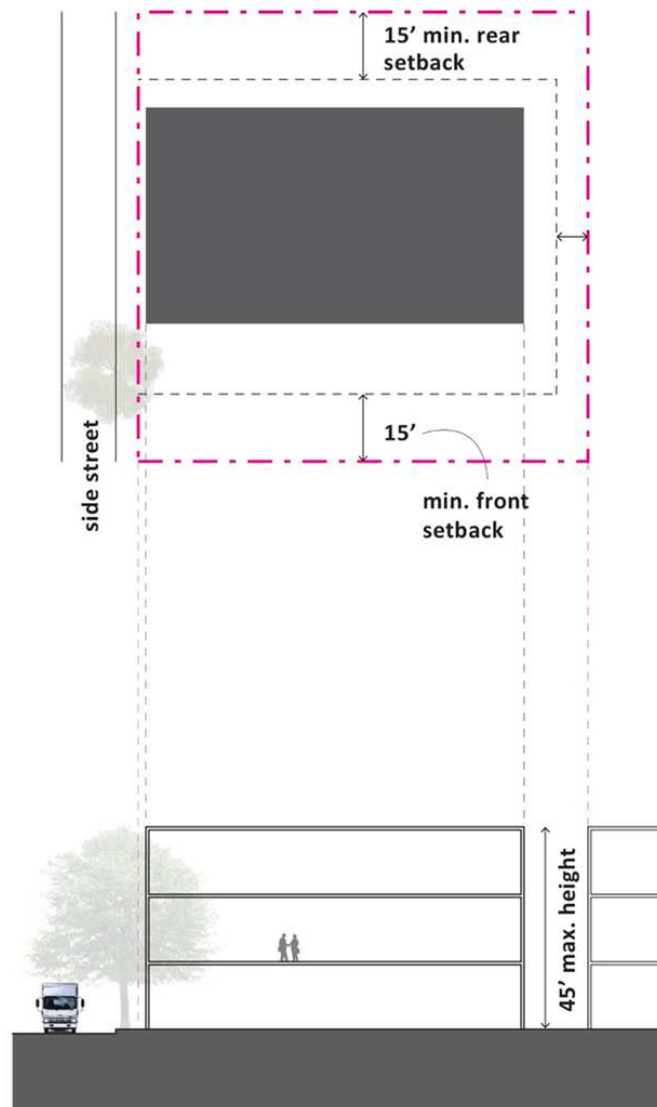
<i>Standard</i>	<i>I-1</i>
Intensity	3.0 floor area ratio
Minimum site area	10,000 s.f. for new industrial office flex space, a minimum project size of two acres.
Setbacks	Front: 15 feet Side with a public alley: 7 feet Side: 0 feet Rear: 15 feet 50 feet from any residential district, with at least a 30-foot landscaped buffer
Maximum height	3 stories or 45 feet, whichever is less
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area.

I-1 Light Industrial District

1.0
Per 2,500 sq ft
Parking Spaces
Required +

1 per 400 sq ft
of Office

I-1



(Ord. No. 16-07, exh. A(22-92), 9-14-2016)

Sec. 22-95. I-2 Industrial Planned District.

The I-2 Industrial Planned District is intended to provide for light industrial uses in a well-planned area.

Table of Standards

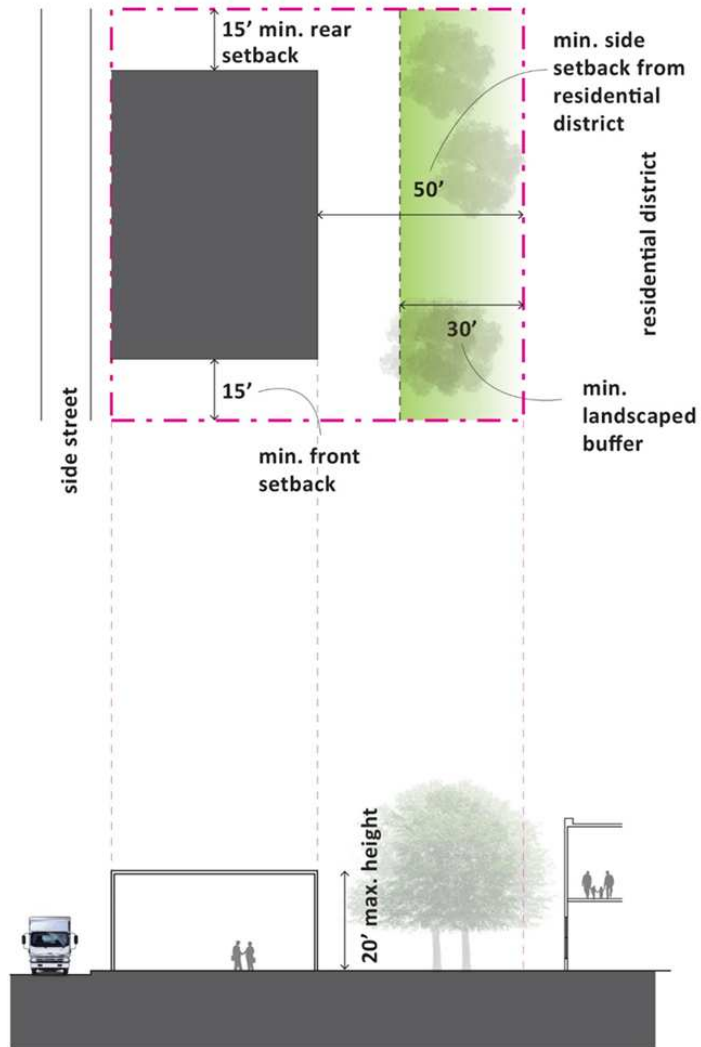
<i>Standard</i>	<i>I-2</i>
Intensity	1.0 floor area ratio
Minimum site area	A minimum project size of two acres, which can be subdivided and sold/leased in lot sizes not less than 20,000 s.f.
Setbacks	Front and rear: 25 feet Side, street: 15 feet 50 feet from any residential district, with at least a 30-foot landscaped buffer
Maximum height	3 stories or 45 feet, whichever is less
Maximum impervious area	75 percent
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area. An additional 3% of impervious area coverage may be permitted for excellence in building design and landscaping beyond what is permitted in the land development regulations. Excellence is measured by the applicant's quantitative and qualitative use of landscape and design elements such as vegetation, berms, graphic identification features, grounds, artwork, site illumination and sidewalks.

I-2 Liberal Industrial District

1.0
Per 2,500 sq ft
Parking Spaces
Required +

1 per 400 sq ft
of Office

I-2



(Ord. No. 16-07, exh. A(22-95), 9-14-2016)

Sec. 22-93. I-3 Liberal Industrial District.

The I-3 Liberal Industrial District provides for more intensive industrial operations at appropriate locations.

A. *Prohibited uses.*

- Animal slaughterhouse or abattoir.
- Arsenal.
- Asphalt manufacturing or refining.
- Asphalt paving plant.
- Asphalt storage, liquid or solid.
- Corrosive acid manufacture.
- Bag cleaning.
- Bone distillation.
- Blast furnace.
- Boiler works.
- Bulk storage of petroleum and petroleum products.
- Butane and propane manufacture and storage.
- Canning or compressing.
- Cement, lime, gypsum or plaster of Paris manufacture or grinding.
- Concrete batching or transit mix plant.
- Cotton baling or compressing.
- Cotton gin or cotton oil mill.
- Creosote manufacture or treatment.
- Coke oven.
- Distillation of coal tar, petroleum, refuse, grain or wood.
- Drilling, production or refining of petroleum or inflammable liquids.
- Drop forge plant.
- Electric power plant.
- Enameling plant.
- Extraction of animal or fish fats and oils.
- Fat rendering.
- Fertilizer manufacture, except cold compounding of non-odorous materials.
- Flour mill.
- Food grinding or processing.
- Foundry.
- Galvanizing plant.
- Gas holder.
- Gunpowder, fireworks or other explosives, manufacture or storage except as incidental to a permitted use.
- Garbage, offal, dead animal refuse, rancid fats, incineration, reduction or storage.

- Glue or gelatin manufacture, where the processes used include the refining or recovery of products from fish, animal refuse or offal.
- Grain elevator and storage.
- Grain mill.
- Hair factory.
- House-wrecking yards, used building material yards.
- Livestock auction sales.
- Metal stamping and pressing.
- Oil compounding or barreling.
- Oil reclamation plant.
- Oil well equipment, storage, supplies.
- Paper and pulp mills.
- Paving plant.
- Potash works.
- Pyroxylin and pyroxylin product manufacture.
- Quarry or stone mill.
- Railroad roundhouse.
- Radium extraction.
- Rubber manufacture from raw materials.
- Salvage store and yard.
- Sandblasting.
- Septic tank service.
- Sewage disposal plants.
- Shipbuilding or shipyard.
- Slag crushing or dump.
- Stone cutting, monument works.
- Storage of poisonous gases and insecticides.
- Smelting or refining of metals or ores.
- Steel manufacture.
- Stockyards or feeding pens.
- Sugar refining.
- Tire or rubber products manufacture.
- Vegetable oil manufacture, refining, storage.
- Wool pulling or scouring.
- Yeast plant.

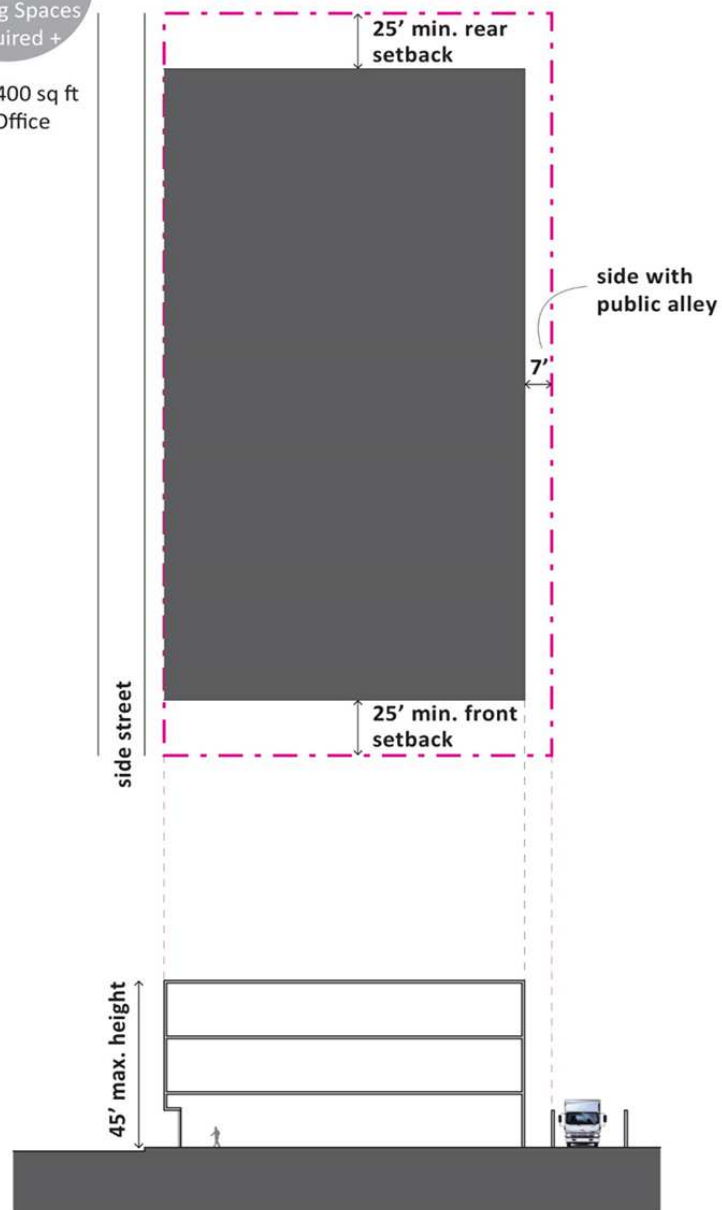
Table of Standards

<i>Standard</i>	<i>I-3</i>
Intensity	3.0 floor area ratio
Minimum site area	10,000 s.f.
Setbacks	Front: 15 feet Side with a public alley: 7 feet Side: 0 feet Rear: 15 feet 50 feet from any residential district, with at least a 30-foot landscaped buffer
Maximum height	3 stories or 45 feet, whichever is less
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area.

I-3 Industrial Planned District

1.0
Per 2,500 sq ft
Parking Spaces
Required +
1 per 400 sq ft
of Office

I-3



(Ord. No. 16-07, exh. A(22-93), 9-14-2016)

Sec. 22-94. I-4. Liberal Industrial District, storage and salvage.

The I-4 Liberal Industrial District provides for the below stated uses at appropriate locations.

1. *Table of standards.*

<i>Standard</i>	<i>I-4</i>
Intensity	0.75 floor area ratio
Minimum site area	One acre
Setbacks	Front: 15 feet Side with a public alley: 7 feet Side: 0 feet Rear: 15 feet 50 feet from any residential district, with at least a 30-foot landscaped buffer
Maximum height	1 story or 20 feet, whichever is less. The stacked height of automobiles or automobile parts shall be allowed beyond the minimum wall height of six feet but shall not be visible to a person standing in the right-of-way, adjacent to the property (on the sidewalk). The wall height reduction, to a minimum height of six feet, is only permitted in the I-4 zoning district and not in any other zoning district where similar uses allowing the stacking of vehicles or vehicle parts above the height of the wall have been grandfathered in.

(Ord. No. 16-07, exh. A(22-94), 9-14-2016; Ord. No. 18-01, § 3, 3-28-2018)

Sec. 22-96. C Civic District.

The C Civic District is intended to provide for well-planned public buildings, civic centers and institutional uses.

Table of Standards

<i>Standard</i>	<i>C</i>
Intensity	3.0 floor area ratio
Minimum site area	N/A
Setbacks	N/A
Maximum height	6 stories or 65 feet, whichever is less
Maximum impervious area	80 percent of site

<i>Standard</i>	<i>C</i>
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area. Projects which substantially contribute architecturally to the city's Moorish Architecture goals, as outlined in the "Arabian Motif Architectural Style Guide," as it may be updated from time to time, are eligible for a 20% increase in floor area. Projects that demonstrate design excellence, as defined in this Article, are eligible for up to a 20% increase in floor area. The maximum floor area increase that can be achieved through a combination of development bonuses shall not exceed 20%.

(Ord. No. 16-07, exh. A(22-96), 9-14-2016)

Sec. 22-97. Downtown Mixed Use Future Land Use District.

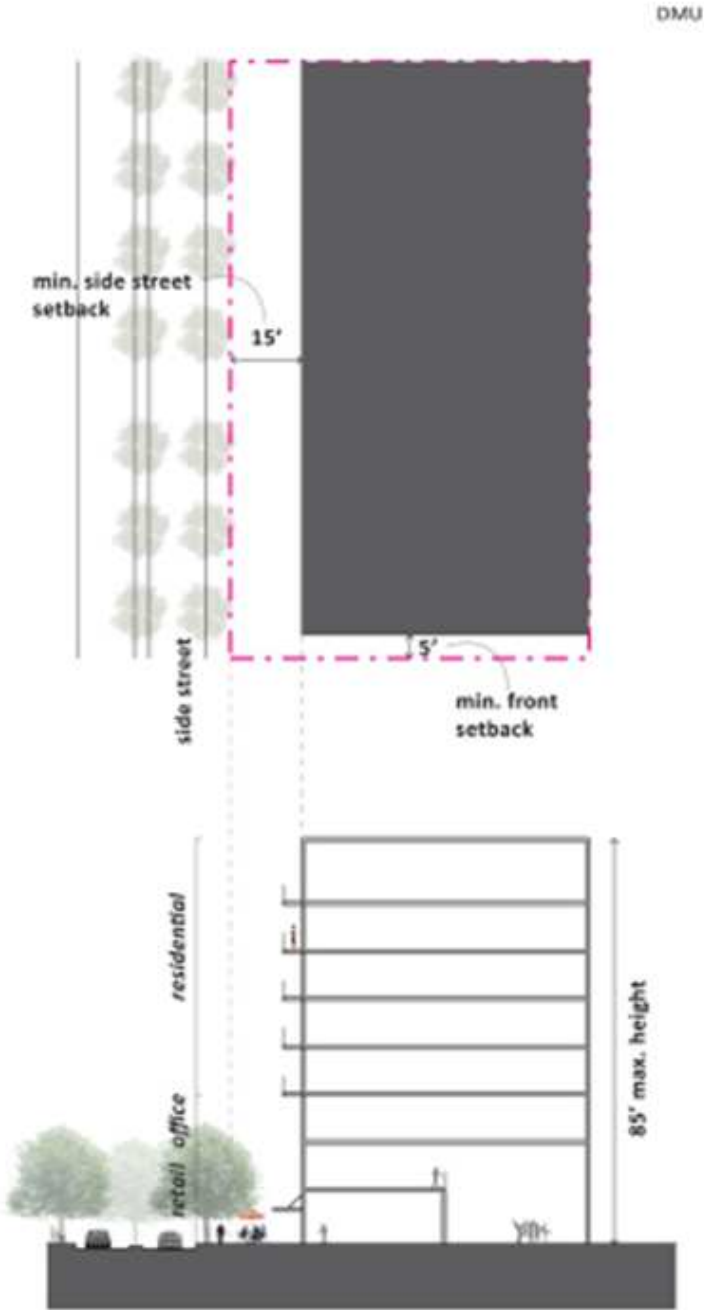
Parcels located in the Downtown Mixed Use Future Land Use District may be developed in accordance with the underlying zoning district, or may be developed as follows:

Table of Standards

<i>Standard</i>	<i>DMU</i>
Density and intensity	150 units per acre and a maximum 3.5 floor area ratio for all uses
Minimum site area	10,000 s.f.
Setbacks	Front: 5 feet Side: 0 feet Side street: 15 feet Rear: 0 feet The city may require additional setbacks on the ground floor for landscaping needs, recessed plazas and eating establishments with outdoor seating. Setbacks for such development shall be between ten feet and 15 feet. This setback cannot be used for parking. In cases where the city requests such setbacks for the ground floor, the developer may elect to have upper stories follow standard building minimum setbacks. A zero floor setback may be permitted. The city may, at its discretion, require setbacks for each story above the ground floor, based on road width, privacy of surrounding residential properties, and enhancement of the pedestrian realm. Additional setback may be required depending on existing street frontage.
Maximum height	8 stories or 85 feet, whichever is less, subject to FAA regulations. Stories are limited to 15 feet in height.
Maximum impervious area	90 percent of site.
Accessory structure height	In accordance with underlying zoning district.
Accessory structure setbacks	In accordance with underlying zoning district.

<i>Standard</i>	<i>DMU</i>
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area. Projects which substantially contribute architecturally to the city's Moorish architecture goals, as outlined in the "Arabian Motif Architectural Style Guide," as it may be updated from time to time, are eligible for a 20% increase in floor area. Projects that demonstrate design excellence, as defined in this article, are eligible for up to a 20% increase in floor area, and or a reduction in setback to down to 0 feet. The maximum floor area increase that can be achieved through a combination of development bonuses shall not exceed 20%. Increased density of up to 100 units per acre is permitted for affordable housing developments as defined by F.S. § 420.0004.

DMU Downtown Mixed-Use District



DMU visual plan

DMU



(Ord. No. 16-07, exh. A(22-97), 9-14-2016)

Sec. 22-98. Magnolia North Mixed Use Future Land Use District.

Parcels located in the Magnolia Gardens and Magnolia North Mixed Use Future Land Use District may be developed in accordance with the underlying zoning district, or may be developed as follows:

Table of Standards for Mixed Use Developments

<i>Standard</i>	<i>MGMU and MNMU</i>
Density and intensity	15.1 to 50 units per acre and a maximum 3.0 floor area ratio for all uses
Minimum site area	10,000 s.f.
Setbacks	Front: 5 feet Side: 0 feet Side street: 15 feet Rear: 0 feet The city may require additional setbacks on the ground floor for landscaping needs, recessed plazas and eating establishments with outdoor seating. Setbacks for such development shall be between ten feet and 15 feet. This setback cannot be used for parking. In cases where the city requests such setbacks for the ground floor, the developer may elect to have upper stories follow standard building minimum setbacks. The city may, at its discretion, require setbacks for each story above the ground floor, based on road width, privacy of surrounding residential properties, and enhancement of the pedestrian realm. Additional setback may be required depending on existing street frontage.
Maximum height	6 stories or 65 feet (whichever is less), or 8 stories or 85 feet (whichever is less) with development bonuses, subject to FAA regulations. Stories are limited to 15 feet in height.
Maximum impervious area	90 percent of site.
Accessory structure height	In accordance with underlying zoning district.
Accessory structure setbacks	In accordance with underlying zoning district.
Bonus provisions	Projects which achieve a minimum LEED Silver or other equivalent third party certification are eligible for up to a 10% increase in floor area; projects which achieve a minimum LEED Gold or other equivalent third party certification are eligible for up to a 15% increase in floor area; projects which achieve a minimum LEED Platinum or other equivalent third party certification are eligible for up to a 20% increase in floor area. Projects which substantially contribute architecturally to the city's Moorish architecture goals, as outlined in the "Arabian Motif Architectural Style Guide," as it may be updated from time to time, are eligible for a 20% increase in floor area. Projects that demonstrate design excellence, as defined in this article, are eligible for up to a 20% increase in floor area. The maximum floor area increase that can be achieved through a combination of development bonuses shall not exceed 20%. Increased density of up to 100 units per acre is permitted for affordable housing developments as defined by F.S. § 420.0004.

(Ord. No. 16-07, exh. A(22-98), 9-14-2016)

Sec. 22-99. MXUOD Corridor Mixed Use Overlay District.

A. District purpose. The MXUOD district provides the opportunity for service-oriented retail, commercial and mixed-income housing within a pedestrian-friendly neighborhood with sustainable and environmentally responsive buildings and infrastructure. The district's close proximity to public transportation will support a variety of

commercial, retail, moderate- and high-density multifamily housing types for a broad range of incomes and provides an opportunity to support existing industrial uses via retail outlets for their products. The combination of accessibility to public transit and housing will shape this district as an active mixed use neighborhood. By bringing compatible land uses closer together, this district can encourage pedestrian-friendly environments which will promote the health and well-being of residents by encouraging physical activity, alternative transportation, and greater social interaction. Proposed developments should promote a variety of uses by providing ground floor active uses and open space through reduced parking capacities.

B. Development characteristics. Buildings and infrastructure should be sustainable and responsive to the environment to support the district as a sustainable neighborhood. Service-oriented retail, commercial, office and mixed-income housing are encouraged to support the district as a sustainable neighborhood. Retail uses may include small neighborhood retailers such as, small service retail, and destination retail such as specialty retailers, restaurants and grocery stores. Transportation corridors should be used to enhance connectivity to regional and local transit hubs. Urban design of the district, including landscaping, open space, and pedestrian oriented right-of-way improvements, will encourage the area to be a pedestrian friendly environment.

C. Definitions. The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Habitable liner means residential and/or commercial units providing a facade on the right-of-way, thereby screening parking garages located away from the right-of-way.

Horizontal mixed use means development where the different types of uses (Industrial, residential, commercial) are horizontally integrated. For site plans with multiple buildings, each building may be a separate use.

Vertical mixed use means development where the different types of uses (industrial, residential, commercial) are vertically integrated.

Vocational services means job training and placement services, inclusive of establishments termed "employment centers."

D. Eligibility and application. The MXUOD district shall only be applied to properties:

1. Designated R-1, R-3, R-3A, R-4, B-1, B-2, B-3, B-0, I-1, 1-2, 1-3, and P; and
2. Along the major transportation corridors which includes State Road 9, within the boundaries of the city; NW 42nd Avenue, between NW 135th Street and East 65th Street; NW 135th Street, between NW 47th Avenue and NW 27th Avenue; Ali-Baba Avenue, between NW 37th Avenue and NW 151st Street; Opa-locka Boulevard, between Ali-Baba Avenue and NW 27th Avenue; NW 27th Avenue, between NW 127th Street and NW 151st Street; NW 22nd Avenue from NW 151st Street to NW 135th Street, and; Opa-locka Blvd. between NW 19th Avenue and NW 22nd Avenue; and/or As defined in the Opa-locka Mixed Use Overlay District Zoning Map; and
3. That can be served by public water and sewer.

The boundary of the mixed use overlay district shall be shown on the official zoning map of the city and all parcels contained within the zone, which meet the eligibility section below, are able to utilize the provisions set forth in this ordinance, provided that in utilizing this standard, all aspects of the overlay are adhered to. All land uses and development, including, but not limited to, buildings, driveways, parking areas, streets, buffers, landscaping, and pedestrian/bicycle ways, shall be located and/or provided in accordance with the provisions of the city land development code and Code of Ordinances, and the county subdivision regulations, except as modified by this chapter.

Where there are overlaps with other overlay zones, only one (1) overlay zone shall apply. The standards of the overlay zone must be selected at the beginning of the site approval process, and all of the standards of only the selected overlay zone shall be applied in evaluation of the master site plan.

Within the boundary area defined on the exhibit map:

1. *Application.* Application of the overlay shall be residential/commercial or industrial/commercial mixed use only. Determination shall be based on the underlying zoning.

2. *Subareas.*

Residential/commercial mixed use: for properties within the mixed use overlay district which are normally zoned R-1, R-3, R-3A, R-4, B-1, B-2, B-0, or P.

Industrial/commercial mixed use: for properties within the mixed use overlay district which are normally zoned normally zoned B-3, I-1, I-2, or I-3.

In cases where the master site plan involves parcels with different zoning: if the master site plan contains multiple parcels which allows it to qualify for different mixed use subareas, the applicant shall be required to request a rezoning of the parcels to ensure that any vertical mixed use structure conforms solely to either a residential/commercial or industrial/commercial designation. In all other cases, the zoning of the largest parcel shall apply.

E. *Uses permitted; residential/commercial mixed use.* This section is for properties within the mixed use overlay district which are normally zoned R-1, R-3, R-3A, R-4, B-1, B-2, B-0, or P. The following uses shall be permitted in the residential/commercial mixed use subarea:

1. *On first floor.*

- a. Retail sales and services.
- b. Restaurants and other food service establishments.
- c. Child care centers.
- d. Home occupations.
- e. Multiple dwellings (including townhomes), and uses accessory to multiple dwellings, including:
Recreation facilities such as cabana units, sauna units, recreation buildings, swimming pools, tennis courts, putting greens and shuffleboard courts.
Lobby and access points for upper level residential units.
- f. Parking lots and parking garages (commercial, public, and/or private).
- g. Museums, libraries, parks, open space and recreational areas.
- h. Places of public assembly.
- i. Live-work units.
 1. Artist studio.
 2. Home occupations (barber/beautician-cosmetology services—by appointment only).
 3. Internet sales and services (product stored or provided off-site).
 4. Business, professional, and service uses (CPA-accounting, insurance services).
Legal services-attorney at law, financial planning services, real estate agent.
Computer graphics/GIS designer, architecture services, consultant services—by appointment only.
 5. Medical, psychiatry-therapy, and dental clinics (by appointment only).
(Dental services would include cleaning, counseling and instruction for prosthetics, implants, dentures, braces, etc.; however, no actual dental work will be performed at this location.)
No commercial retail sales or food preparation services of any type will be permitted on live-work unit/site.
- j. Business, professional, and medical offices.

- k. Service uses.
 - l. Laundry and dry cleaning drop-off/pickup shops and minor repair only, toxic chemicals or pollutants are prohibited.
 - m. Day care facilities.
 - n. Health spas.
 - o. Medical and dental clinics.
 - p. Movie theaters.
 - q. Playhouse or stage theaters.
 - r. Hotels.
 - s. Educational facilities (public and private).
 - t. Vocational services.
 - u. Municipal buildings and uses.
 - v. Special conditional use:
 - Gas stations, provided that no other service station is closer than one-thousand (1,000) feet.
 - Passenger terminals.
 - Religious facilities.
2. *Second level and above.*
- a. Business, professional, administrative, and medical offices.
 - b. Home occupations.
 - c. Multiple dwellings and uses accessory to multiple dwellings, including recreation facilities, including, but not limited to, cabana units, sauna units, recreation buildings, swimming pools, tennis courts, and basketball courts.
 - d. Parking garages (commercial, public, and/or private).
 - f. Grocery, retail, and service uses.
 - g. Hotels.
 - h. Day care facilities.
 - i. Live-work units.
 - j. Educational facilities (public and private).
 - k. Vocational services.
 - l. Rooftop open space and recreational areas.
 - m. Municipal buildings and uses.
 - Uses with a drive-through window or which provides a drive-up service shall be permitted as a special conditional use in the mixed use development overlay district, even if the underlying zone permits such usage by right. A circulation plan shall be required for developments with a drive-through window or a drive-up service and shall be subject to approval by the site plan's reviewing body.
 - Temporary outdoor retail sales (e.g., farmers' markets, festivals) not to exceed sixty (60) days per calendar year per property. For the purposes of this section, a property shall be defined by its master site plan, regardless of the number of parcels which compose the property. No temporary use shall last for more than fourteen (14) consecutive days. Time between temporary activities shall be at least two (2) times as long as the duration of the prior temporary use.

At a minimum, ten (10) percent of the aggregate floor area used for retail sales and services shall be of a character that serves the daily needs of the mixed use overlay district residents and/or MXUOD employees. Such retail uses include, but are not limited to, shoe repair shops, ice cream shops, restaurants, drycleaners, beauty salons, barbershops, coffee shops, bakeries, nail salons, opticians, drug stores, tailors, and news shops.

Industrial/commercial mixed use. This section is specifically for sites normally zoned B-3, I-1, I-2, or I-3. The following uses shall be permitted in the industrial/commercial mixed use subarea:

First floor:

- a) Retail. Retail must be specific to the products produced on site and any accessory uses.
- b) Industrial uses as specifically allowed by right in the underlying district.
- c) Special conditional uses as provided for in the underlying district.
- d) Special conditional use: travel center facilities for trucks.
- e) Gas stations, provided that no other service station is closer than one-thousand (1,000) feet.

Due to the potentially hazardous nature of the materials on the site, mixed use development in industrial/commercial subareas shall be horizontal mixed use only in cases where the hazardous nature of the industrial use is deemed by the city to require spatial separation from retail.

Second floor and above.

- a) Industrial uses as specifically allowed by right in the underlying district.
- b) Parking garages (commercial, public, and/or private).
- c) Special conditional uses as provided for in the underlying district.

F. Maximum allowable density and intensity.

Residential density shall not exceed one hundred fifty (150) units per gross acre for developments within the entire MXUOD area currently eligible for residential/commercial mixed use development.

Nonresidential intensity of residential/commercial mixed use development shall be not less than a floor area ratio of 0.75 and shall not exceed a floor area ratio of 3.0.

G. Site development standards.

1. *Development to be consistent with comprehensive plan.* The proposed development is consistent with the comprehensive plan, any applicable specific plans, the intent, purpose, and development characteristics of this mixed use overlay district, and, as conditioned, will not have substantial adverse effects on the surrounding property or uses.
2. *Development to be appropriate for site and location.* The proposed development is appropriate for the site and location by fostering a mixture and variety of land uses within the district and the general vicinity, and harmoniously contributes to a synergistic relationship between uses.
3. *Building heights.* Mixed-use buildings in the MXUOD may be built to a maximum height of six (6) stories, except to allow for architectural features, parapet, elevator overrides, machine room, etc. with the approval of FAA. All other buildings shall be limited to a maximum of four (4) stories in height, except to allow for architectural features. Stories are limited to fifteen (15) feet in height. The city may allow up to eight (8) stories, subject to FAA considerations for Opa-locka Airport, if the building conforms to one (1) or more of the following:

Affordable/elderly housing provisions (thirty (30) years):

- At least ten (10) percent of total units are reserved for very low-income households, defined as those making less than eighty (80) percent AMI.

- Twenty (20) percent of total units are reserved for low-income households, defined as those making up to one hundred fifty (150) percent of AMI.
 - Fifty (50) percent of total units are reserved for qualifying senior citizens.
 - Provides public open space with superior landscaping, including, but not limited to, plazas, parks, and/or payments dedicated towards the provision of general public space in the city.
 - Substantially contributes architecturally to the city's Moorish architecture goals.
4. *Residential/commercial.*
- A. *Ground floor commercial.*
- a. *Ground floor height.* All commercial floor space provided on the ground floor of a mixed use building must have a minimum floor-to-ceiling height of eleven (11) feet.
 - b. *Facade.*
 - The entire building facade must abut the rights-of-way listed in subsection B of this section, except when additional building setbacks are applied to allow for courtyards, outdoor seating areas, or other publicly accessible open space as part of the Master Site Plan.
 - For any ground level retail use, a minimum of sixty (60) percent of the street-facing facade, between two (2) feet and eight (8) feet in height must be comprised of clear windows that allow views of indoor space or product display areas.
 - Blank walls shall not compose more than forty (40) percent of the building's ground level facade. The width limit of a blank wall on the wall plane is two and one-half (2.5) times the height plane of the ground floor.
 - c. *Entrances.* Buildings must have a primary entrance door facing a public sidewalk or open space, and which is clearly visible from the street. Entrances at building corners may be used to satisfy this requirement. Building entrances may include doors to individual shops or businesses, lobby, entrances, entrances to pedestrian-oriented plazas, or courtyard entrances to a cluster of shops or businesses. Primary entrances must allow ingress and egress to one (1) of the major corridors noted in this section.
 - d. *Other site development standards.* All other site development standards for commercial elements not expressively covered within this overlay district shall defer to the strictest standards of the underlying zoned parcels of the master site plan.
- B. *Residential.*
- a. *Minimum dwelling unit size.*
 - One (1) bedroom: five hundred fifty (550) square feet minimum.
 - Two (two) bedroom: seven hundred twenty-five (725) square feet minimum.
 - Studio units (seniors only): four hundred forty (440) square feet minimum, capped at thirty (30) percent of the development.
 - Above two (2) bedrooms: seven hundred twenty-five (725) square feet plus one hundred seventy-five (175) square feet per bedroom minimum.
 - b. *Density.* Maximum one hundred ten (110) du/ac, except as provided for below:
 - Twenty-five (25) percent increase in the number of housing units with the requirement, provided for by developer's agreement, that for the next thirty (30) years.
 - At least ten (10) percent of total units are reserved for very low-income households, defined as those making less than eighty (80) percent AMI.
 - Twenty (20) percent of total units are reserved for low-income households, defined as those making up to one hundred fifty (150) percent of AMI.

- Fifty (50) percent of total units are reserved for qualifying senior citizens.
- Up to a fifteen (15) percent bonus, at the discretion of the city, for projects which provides public open space or which substantially contributes architecturally to the city's Moorish Architecture goals.
- Multiple bonuses may be applied. Density bonuses as provided herein are individually calculated from the base maximum density rate and independently added to the maximum density for the development. Bonus credits shall not be utilized to calculate other bonuses.
- Pedestrian ways. Pedestrian ways or sidewalks, constructed of concrete, tile, paving, blocks, brick or other acceptable material, shall provide access from all multifamily structures to required off-street parking areas and recreational areas. Curbing shall be Type D as defined by FDOT standards.
- The city manager or his/her designee may request the inclusion of recreational amenities.

A maintenance building/space and office management space shall be provided.

5. *Industrial/commercial.*

Commercial.

- In a vertical mixed use structure, up to thirty-five (35) percent of the gross square feet of a building, instead of twenty (20) percent, shall be permitted for retail sales, provided that the site plan:
 - Provides public open space with superior landscaping, including, but not limited to, plazas, parks, and/or payments dedicated towards the provision of general public space in the city.
 - Substantially contributes architecturally to the city's Moorish architecture goals.
- In a horizontal mixed use development, where the retail use is in a separate structure from the associated industrial use, one hundred (100) percent of the gross square feet may be utilized for retail services.
- For master site plans abutting a R-1, R-2, R-3, R-3A, R-4, B-0, B-1, or B-2 district, retail uses shall be developed so as to create the frontage of the development facing these districts, with the exception of travel facilities for trucks.

Industrial.

- For master site plans abutting a R-1, R-2, R-3, R-3A, R-4, B-0, B-1, or B-2 district, industrial uses shall be developed so as to orient the industrial use of the development away from these as much as permissible within the master site plan.
- All other site development standards for industrial elements not covered within this overlay district shall defer to the strictest standards of the underlying zoned parcels of the master site plan.
- Travel facilities for trucks.
 - For master site plans within five hundred (500) feet of a R-1, R-2, R-3, R-3A, R-4, B-0, B-1, or B-2 district, or where they face such districts across a right-of-way, travel facilities for trucks shall be prohibited.
 - The city may waive the five hundred (500) feet restriction if that appropriate mitigation of negative factors on surrounding parcels, including, but not limited to, visual, environmental, noise, and smell are provided.

6. *Off-street parking.* Parking shall be provided pursuant to article VI of this code, subject to the following conditions:

- a. *Parking requirements.* Developments that provide affordable housing may be reduced as stated below. In no event shall parking be reduced by more than sixty-five (65) percent of the spaces required. The planning commission may provide a reduction of up to the limit of sixty-five (65) percent based on special conditions, such as, but not limited to, shared parking and likely ridership for transit riders.

- b. The facade of a parking garage that is not concealed behind a residential or commercial habitable liner shall be screened to conceal from view all internal elements in accordance with article VI of this code, including, but not limited to, vehicles, plumbing pipes, fans, ducts and all lighting. The size, location, and materials for such screening elements shall be reviewed as part of the site plan review process.
 - c. Applicants may request a minimum parking stall area of eight and one-half (8 ½) feet by eighteen (18) feet, instead of ten (10) feet by twenty (20) feet, for ninety (90) degree angled parking as mandated by article VI of this code; Access aisles shall be a minimum of twenty-two (22) feet for ninety (90) degree angled parking.
 - d. A traffic study and a parking study by a traffic engineer shall be required. The traffic and parking studies shall be subject to review and approval by the reviewing body. A circulation plan shall also be required.
 - e. Off-street parking in commercial retail areas shall either be behind or to the side of development with ground-floor retail along the street frontage.
 - f. Structured parking and/or shared or joint parking is encouraged to maximize development potential in the mixed use district.
7. *Lot coverage.* The maximum building footprint within the MXUOD, per lot area, shall be as follows:

<i>Lot Area</i>		
Less than 50,000 s.f.	50,000 s.f.—80,000 s.f.	Greater than 80,000 s.f.
90%	87%	85%

8. *Building setbacks.*

- a. Yard setbacks shall be in compliance with the following minimum requirements:

	<i>Minimum</i>
Front	15 feet
Side interior	0 feet
Rear	15 feet

- b. The city may require additional setbacks on the ground floor for landscaping needs, recessed plazas and eating establishments with outdoor seating. Setbacks for such development shall be between ten (10) feet and fifteen (15) feet. This setback cannot be used for parking. In cases where the city requests such setbacks for the ground floor, the developer may elect to have upper stories follow standard building minimum setbacks.
- c. The city may, at its discretion, require setbacks for each story above the ground floor, based on road width, privacy of surrounding residential properties, and enhancement of the pedestrian realm.
Exceptions. Additional setback may be required depending on existing street frontage.

9. *Landscaping and open space.*

- a. Landscaping shall be provided as per article VII of this code.
- b. Exterior lighting. Pedestrian areas need to be well-marked and well-lit. Exterior lighting shall be an integral part of the architecture and landscape design. Street lighting shall relate in scale to the pedestrian character of the area. Pedestrian lighting shall be provided at a pedestrian scale of three (3) to twelve (12) feet, with the source light being shielded to reduce glare, thereby encouraging safe access to these areas twenty-four (24) hours per day. Overall, lighting and pedestrian zone lighting is needed but shall not create glare or light spillage off-site or beyond parking lots and streets.

- c. Open space. Open space shall be planted and maintained in accordance with the landscape plan that is approved by the planning and zoning board and city commission, utilizing standards criteria from this article.
 - d. Knee walls associated with landscaping shall be required.
 - e. One (1) two (2) inch caliper or higher tree shall be required for each twenty (20) linear feet of the lot line. Such trees along sidewalks shall be shade trees.
 - f. Residential/commercial developments shall have a minimum of one thousand (1,000) square feet of common open space and fifty (50) square feet per tenant, or five (5) percent of the lot area as common open space, whichever is greater.
10. *Tree protection.* Trees must be adhered to in accordance with Ordinance No. 10-03 entitled "Tree Protection Program."
 11. *Street frontage.* In cases where the master site plan creates a development abutting streets not listed in this article, requirements regarding landscaping, facade, lighting, and other provisions of this overlay district along right-of-way is expressly required for these rights-of-way.
 12. *Site plan review.* Site plan review shall be required for projects exceeding twenty-five (25) percent of the value of the existing development and shall follow the procedures listed in this article. Redevelopment projects costing more than twenty-five (25) percent of the value of the existing development are required to conform to the entire code.
 13. *Administrative approval.* Projects with costs at or below twenty-five (25) percent of the value of the existing development and/or where the change is tenant-initiated and consists of one (1) or two (2) units may be approved administratively.
 14. *Agreement required.* A developer's agreement shall be required.
(Ord. No. 16-07, exh. A(22-99), 9-14-2016)

Sec. 22-100. Other development standards for vertical mixed use buildings.

1. *Mix of uses.* Residential uses should not make up more than eighty (80) percent of the floor area in any vertical mixed use building. Where feasible residential uses should be located above street level office retail or public uses.
2. *First floor height.* All commercial floor space provided on the ground floor of a mixed use building must have a minimum floor-to-ceiling height of eleven (11) feet.
 - a. *Facade.* The entire building facade must abut rights-of-way except when additional building setbacks are applied to allow for courtyards, outdoor seating areas, or other publicly accessible open space as part of the master site plan. For any first floor retail use, a minimum of seventy-five (75) percent of the street-facing facade, between two (2) feet and eight (8) feet in height must be comprised of clear windows that allow views of indoor space or product display areas. Blank walls shall not compose more than twenty-five (25) percent in total of the building's first floor facade. The width limit of a blank wall on the first floor shall not exceed ten (10) percent of the width of the building.
 - b. *Entrances.* Buildings must have a primary entrance door facing a public sidewalk or open space, and which is clearly visible from the street. Entrances at building corners may be used to satisfy this requirement. Building entrances may include doors to individual shops or businesses, lobbies, entrances, entrances to pedestrian-oriented plazas, or courtyard entrances to a cluster of shops or businesses.
 - c. *Minimum dwelling unit size.*
 - i. One (1) bedroom: five hundred fifty (550) square feet minimum.
 - ii. Two (2) bedrooms: seven hundred twenty-five (725) square feet minimum.

- iii. Studio units (seniors only): four hundred forty (440) square feet minimum, capped at thirty (30) percent of the development.
 - iv. Above two (2) bedrooms: seven hundred twenty-five (725) square feet, plus one hundred seventy-five (175) square feet per bedroom minimum.
 - d. *Pedestrian ways.* Pedestrian ways or sidewalks, constructed of concrete, tile, paving, blocks, brick or other acceptable material, shall provide access from all multifamily structures to required off-street parking areas and recreational areas.
- (Ord. No. 16-07, exh. A(22-100), 9-14-2016)

Sec. 22-101. Historic downtown Opa-locka district.

(A) *Purpose and intent.* The Historic Downtown Opa-locka District (HDOD) district designation seeks to provide consistent zoning regulations that will redefine the historic center of the city to create a unique urban district that will provide a physical place where daily life activities such as shopping, trading, working, governing, faith, the arts and entertainment and dwelling will interact and complement each other into a cohesive whole pattern and network. The zoning district will provide goals and objectives to provide guidance for historic, present, and future development with the view toward creating a town center neighborhood that will be a symbol of the community and a reflection of the city's values and aspirations. The intention of this section is to develop the Historic Downtown Opa-locka District ("district") as defined, recognizable area that is community-oriented, surrounded by historic-natural settings and functional buildings where people can reside, work and entertain. The intent of the city in adopting the Historic Downtown Opa-Locka District ordinance is to:

- (1) Define the boundaries of the historic downtown district.
- (2) Expand the economic base of the city, by providing additional employment opportunities and additional revenues to the city and the region by making the area of the district more attractive in ways that can increase commerce and tourism which will assist in the development of specific plans that will allow for large scale social events and activities within the district to consider the city when choosing their sites.
- (3) Provide the basis for the continued and expanded support for initiatives that will cause the district to be considered as a destination for large scale events and activities in conformance with the goals and objectives of other city policies.
- (4) Enhance the area encompassed by the district through programs that will attract workers, residents and visitors to active public spaces and gathering places and create a pedestrian-friendly environment.
- (5) Develop programs to further enhance the pedestrian environment through the establishment of unique streetscape design guidelines providing additional signage opportunities.

(B) *Establishment of the district.* The Historic Downtown Opa-locka District shall be established as an area of the city where it has been found that programs which will contribute to economic development through the development of a more active streetscape should be undertaken. The district shall have the following territorial boundaries: Starting from a point in the centerline of Northwest 27th Avenue and Ali Baba Avenue, proceeding west along Ali Baba Avenue/the CRX Railroad ROW including the northern portion of Burlington Street to NW 37th Avenue, North towards Sabur Lane and west to Sharazad Boulevard, Historic City Hall—Sherbondy Village Community Center Complex on the north side and curve East to back to NW 27th Avenue.

(C) *Definitions.* The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Block means a combination of building lots, the perimeter of which abuts a public right-of-way or public space.

Block face means the right-of-way line that delineates a block edge.

Building height means a limit to the vertical extent of a building measured in feet above grade. Building height shall be measured in feet from the average elevation of the affronting curb to the eave line.

Civic uses mean premises used primarily for public education, cultural performances, gatherings and displays administered by not-for-profit cultural, educational, governmental and religious organizations.

Carmenes means secluded inner gardens or courtyards with private-public features such as fountains, benches, and ornamental architecture.

Colonnade means a roofed structure, extending over the sidewalk, open to the street except for supporting columns or piers.

Courtyard garden means a grade level garden enclosed on at least three sides, at least two sides by building walls and on its remaining sides by fences or garden walls, with a minimum thirty (30) percent of its area landscaped. The street opening to the courtyard garden shall not exceed the width of the street or square that it fronts.

Curb radius means the curved edge of street paving at an intersection, measured to the inside travel edge of the travel lane.

Easement means an area of private property legally dedicated for public use.

Frontage means the property line or lines of a lot that coincide with a right-of-way or other public space.

Paseo means an easement that allows public pedestrian access traversing private property from one public right-of-way to another.

Public open space means an open space that is accessible to the public all or some of the time, including public rights-of-way, parks, plazas, squares, canal-walks, alleys, colonnades, carmenes, courtyard gardens, paseos, and other easements.

Square means a public space surrounded on four sides by streets or other vehicular passage. Every corner of a square shall have a street intersection.

Street means a thoroughfare for the movement of pedestrians and vehicles, which may be public open space or private property allowing public passage.

Street wall means the vertical surface of a building or structure that faces public space.

Traffic calming device means a structure or device that is intended to slow the speed of the traffic on a roadway. It is usually constructed at an intersection. Examples of traffic calming devices are traffic circles and roundabouts. Traffic calming devices may include a change of pavement height, texture, and materials to identify an area where speed is to be reduced.

(D) *Uses.*

(A) *Allowed uses.*

Accounting, bookkeeping, law and other professional offices.

Agency (for employment, travel and/or services to be performed elsewhere).

Art or photographic studio (commercial).

Automobile rental agency, office use only.

Bank or other financial institution.

Business or commercial school.

Catering and delicatessen (including butcher shop) business.

Civic clubs, lodges and fraternal organization facilities.

Conference, meeting facilities or areas of public assemblage for less than twenty (20) people.

Day care center, nursery school or preschool facility.

Dental care and doctor's offices.

Dog grooming only prohibiting a "pet shop" type business or the boarding, maintaining or keeping of dogs on-premises anytime between 7:00 p.m. and 7:00 a.m.

Dry cleaning and laundry, drop-off/pick-up only.

Family restaurant/arcade; so long as the arcade use does not exceed forty (40) percent of the available business space, alcoholic beverages are permitted on the premises pending administrative review, no gambling games/machines are permitted, the arcade area is continually supervised, and the family nature of the operation is maintained. No more than two family restaurant/arcades shall be permitted in the downtown district.

Gymnasium, health club, dance studio or other center where "physical activity" lessons are conducted.

Insurance agency.

Laundry—No more than two allowed in the downtown district.

Lodging (hotels, motels, peer to peer home sharing services)

Museum.

Mixed-use development of residential uses on upper floors above retail, office and related uses.

Office supply or support (office supplies, copying, printing shop).

Personal services (i.e., barbershops, beauty parlors, physical therapy clinics, etc. No physical therapy clinic shall be open for business between the hours of 10:00 p.m. and 6:00 a.m.).

Pharmacy.

Post office.

Restaurant (and lounge), cafe, cafeteria, bar and grill.

Retail use.

Small appliance sales and/or service.

Sporting goods store: excluding the sale of weapons and related products used for sporting and hunting activities, no outdoor store displays or merchandising activities; no more than one store allowed in the district that sell the described merchandise.

Stereo/video/electronics rental, sales and/or service.

Theater (live) or motion picture house.

Veterinary clinic (excluding short-term boarding, for medical purposes only).

Other enterprises or businesses which are similar in character and impact to enterprises or businesses enumerated herein, and which are consistent with the comprehensive plan adopted pursuant to F.S. ch. 163. A final determination of similarity with listed uses and consistency with the comprehensive plan shall be made by the city commission, after obtaining a recommendation by the planning and zoning board.

(B) *Prohibited uses.*

Adult bookstore.

Adult-related business.

Gaming, gambling and casino machines, billiard and pool parlors.

Automotive auctions, repair, sales and service facilities.

Bar; package store

Clinical laboratory.

Funeral home.

Gun range.

Gun shop.

Pawn shop, thrift store.

Tattoo parlor.

Large-scale administrative offices, big box retail/wholesale sales operations and service and professional facilities.

Any large or medium-scale aviation or marine-related repair or service facilities.

Open air, tented, or booth-operated flea markets or any retail/wholesale sales operation not contained within a business building, except as otherwise permitted by F.S. §§ 110-01 through 110-03 and permitted temporary uses in LDR section 22-119.

Any industrial or manufacturing operation or facilities.

(E) *Goals and objectives.* The overall goal and objective of the district is to provide regulation and development guidelines to contribute to the long-term sustainability and quality of life for the community. Specific goals and objectives include, but are not limited to, the following:

- (1) Promote pedestrian-friendly rights-of-way.
- (2) Protect public open spaces.
- (3) Promote mixed-income housing strategies.
- (4) Foster historic preservation.
- (5) Improve code compliance and enforcement.
- (6) Encourage meaningful development boundaries.
- (7) Promote local and regional public transportation.
- (8) Pursue public education on redevelopment.

(F) *Implementation concepts.* The concepts of the district shall be as follows:

- (1) *Make pedestrians a high priority.* Enhance the open network of smaller blocks and provide increased access through new sidewalks, paseos, and public alleys. Provide a tree canopy planted along sidewalks or medians to create shade from the sun and more attractive streets or sidewalks.
- (2) *Slow down vehicular traffic.* Reduce lanes or lane widths, expand the median and add on-street parking and trees as traffic calming devices. Use swale areas facing streets and sidewalks for trees and shrubs and encourage property owners to enhance landscaping. Provide parking in the rear areas, hidden from the front view. Reconstruct curbs with smaller radii at intersections. Encourage property owners to provide cross access between their parking lots and that of their neighbors.
- (3) *Improve pedestrian corridors.* Improve commercial facades to increase pedestrian comfort and safety through enhanced lighting and landscaping. Improve the network of secondary pedestrian corridors to extend existing patterns of pedestrian travel. Create a sense of enclosure and urban character through street facade.
- (4) *Aggregate open space for squares, plazas, passive parks and other public open spaces.* Promote activity and natural surveillance by providing plazas and squares, open to the public and level with the grade of the sidewalk. Create a legible network of open spaces by waiving minimum open space requirements on specific lots or parcels in exchange for a credit to develop larger open public spaces.

- (5) *Extend transit, at a variety of scales and modes of travel.* Implement a circulator system, such as a local bus system, to be used for local service and to connect to the regional system. Increase transit ridership to facilitate growth and mobility without unmanageable traffic congestion.
- (6) *Attack visual blight.* Promote infill development along the edges of blocks to define street space. Inventory vacant or underutilized lots and provide incentives for development. Utilize code enforcement procedures to compel compliance from property owners who have neglected the appearance of their property. Enforce building codes to ensure applicable minimum standards for older buildings.
- (7) *Provide for water retention areas to improve drainage and flooding protection in low-lying areas.* Promote the procurement of vacant or underutilized land that may be reservoirs for additional storage and storm water retention within the district. Provide for a hydric park network to reduce flooding and restore the community's connection to water resources.
- (8) *Promote civic uses.* Encourage public access and participation by providing cultural performances, gatherings and displays for education and enlightenment.

(G) *Precedence over other zoning and land use regulations.* In addition to the criteria previously provided in the Downtown Mixed-Use Overlay (DMU) land use classification and the Historic Downtown Opa-locka District (HDOD), commercial liberal (B-2), multifamily (R-3), light industrial (I-1), Liberal Industrial (I-3) and civic (C) zoning districts, the requirements provided in this division must also be followed as the requirements of the HDOD shall prevail.

(H) *Road classifications in the HDOD district.* To further define the functions of the roads and streets within the district, roads are classified as follows:

- (1) *Major roadways* means those roads that are designed for the efficient movement of people and vehicles to and through the district. The roads enable traffic to easily traverse the area as well as provide access to other areas within and outside the City of Opa-locka. NW 27th Avenue, NW 37th Avenue, State Road 9, Ali Baba Avenue, Opa-locka Boulevard are classified as major roadways within this district.
- (2) *Minor roadways* means those roads that are designed for ease of access for the movement of people and vehicles through the district. Minor roadways generally provide short distance access to individual properties within the district and to adjoining areas. Ali Baba Avenue, from 17th Avenue to LeJeune-Douglass Connector; Sharazad Boulevard from NW 27th Avenue to Ali Baba Avenue, and Opa-locka Boulevard from NW 27th Avenue to Sharazad Boulevard.
- (3) *Local streets* means those roads in the district that provide access to individual properties that are not designated major or minor roadways.

(I) *Zoning regulations.*

- (a) Mixed use residential densities in downtown multifamily R-3, R-4, B-2, I-1 and I-4 zoning districts shall not exceed one hundred fifty (150) units per net acre, unless the property owner provides public open space as provided in subsection (J) of this section, but in no event shall the units per net acre exceed 200 units for affordable/live-work or assisted living. Residential densities outside of the HDOD shall not exceed one hundred fifty (150) units.
- (b) Landscaping for all property zoned residential or that includes residential uses within the zoning district shall conform to an urban design plan that will be adopted by the city within eight months of the effective date of the ordinance from which this section is derived.
- (c) The dimensions of squares, plazas, paseos and other open public spaces shall conform to an urban design plan that will be adopted by the city within four months of the effective date of the ordinance from which this section is derived.

- (d) The facade and architecture requirements shall conform to a Moorish design plan. The goal of the architectural parameters is to promote creative architectural solutions within an ensemble of basic urban forms that will ensure harmony and continuity without mandating a particular style. Building design shall promote pedestrian safety, comfort and interest for adjoining public spaces. Building design shall promote energy conservation by including self-shading, natural lighting, natural ventilation, outdoor circulation and reduced dependence on artificial lighting and air conditioning.
- (e) Street walls shall have pedestrian entrances at maximum intervals of one hundred fifty (150) feet. The principal pedestrian entrance of all buildings shall be from the street, courtyard garden or from a paseo.
- (f) Street walls, landscape buffers or a building shall be constructed to screen parking from view.

(J) Incorporation of TOD District.

A transit oriented development district is generally characterized as a developed environment within a quarter mile of a public transit system, with building characteristics and public amenities that promote the safe movement of pedestrians.

The city's transit oriented development district is in the HDOD which boundaries stated in subsection (B) of this section.

The city's Transit Oriented Development District (TODD) is specifically created to facilitate mixed-use development, with access to transit stations or stops along existing and planned high performance transit service corridors.

The TODD Code also encourages commercial functions that include shopfronts at street level, with residential units and office space above, wide pedestrian-friendly and multimodal sidewalks, rear on-site parking, and possibly public parking facilities.

The TODD incorporates the goals of the HDOD efforts with elements from the previous Commercial Liberal (B-2) and downtown mixed-use overlay district standards to produce development standards for the TODD. The TODD facilitates mixed-use development, pedestrian-oriented streets, public mobility options, Moorish style architecture, and opportunities for location of work, play, services, and entertainment within walking distance.

General. This designation shall be known as the TODD for the city. The TODD shall promote the goals, objectives and policies contained of the previous downtown mixed use district designation within the future land use element of the comprehensive plan. Specifically, objective LU-2 of the Sustainable Opa-locka 20/30 Comprehensive Plan Future Land Use Element are designed to maximize the development potential of historic downtown Opa-locka.

The TODD designation supplements the land development regulations (LDR) provisions within the city for the area known as the HDOD. The TODD is generally described as the area bound to the north by Dunand Avenue, to the east by NW 27th Avenue, to the south by NW 135th Street, and to the west by Sesame Street.

The city's TODD designation is specifically created to encourage compact first-rate projects based upon smart growth principles; to preserve the existing character of neighborhoods surrounding the historic downtown Opa-locka core; to regulate for high-quality infill development, and to create a predictable process for developers and the community to meet these goals.

(J) Incentives. Incentives to encourage land development to achieve goals and objectives within the district are as follows:

- (1) Land dedication for sidewalks outside of public right-of-way, passive parks, paseos, public use and open spaces, a natural drainage parkway or land for additional storage and stormwater retention in lieu of payment of a monetary park, recreation and open space fee will be subjected to administrative review or at the recommendation of the city manager and or the city commission.

- (2) Increased density for residential or mixed-use development for additional units per net acre up to a maximum of thirty-two (32) units per net acre as provided in the multifamily R-3, R-4 zoning designations in the HDOD zoning districts. Additional units per net acre will be permitted in exchange for land located within the HDOD district, or a monetary contribution equal to the fair market value of the land not to exceed forty (40) percent of the total donation, donated to the city as a passive park, paseo, public and/or open space or a natural drainage parkway as follows: one thousand five hundred (1,500) square feet for each of the first two additional units, one thousand (1,000) square feet for each of the third (3rd), fourth (4th) and fifth (5th) additional units, and eight hundred fifty (850) square feet for each additional unit after the fifth (5th) additional unit. If land located anywhere within the HDOD district is donated to the city, then the city shall waive the city park, recreation, and open space impact fee for each additional unit.
- (3) Financial assistance from the city community redevelopment agency to eligible properties for renovation of commercial properties fronting major and minor roadways within the district.
- (4) Provide a perpetual easement to the city on private property for construction of an architectural feature at or near the boundaries of the district as a credit toward satisfaction of minimum open space requirements.
- (5) Provide a perpetual easement to the city on private property for sidewalks, paths and paseos or natural drainage parkways as a credit toward satisfaction of minimum landscaping and open space requirements.
- (6) Contests and prizes offered by a not-for-profit organization or public-private partnership to promote good urban design and innovation for the enhancement and sustainability of the district.
- (7) Five thousand dollars (\$5,000.00) to be paid to the city for each parking space below the minimum parking requirements for on-site parking, but in no event shall the deficiency in on-site parking exceed thirty (30) percent of the minimum parking requirements. These funds shall be placed in a designated account and accumulated by the city to finance a parking system within the HDOD that will include a parking garage within a one thousand five hundred (1,500) foot radius of boundary lines of the property where city hall is located. Affordable housing properties developed and owned by the city are exempt from the provisions in this section.
- (8) Provide a minimum twenty (20) percent total combination of affordable/elderly housing.
- (9) The grant of incentives identified in subsections (1), (4), (5), (7) and (8) of this subsection (J), shall require approval of the city commission by ordinance.

(K) *Special permit.*

To be granted a permit for such establishments within this district, the property owners/applicant shall obtain a special permit as specified in the city LDR/zoning code ordinance, as amended, the zoning ordinance of the city. In reviewing an application for establishments serving alcoholic beverages, the director of planning and community development shall apply the following review guidelines criteria in addition to the standard criteria of a special permit.

In reviewing an application for the district permit for a supper club, nightclub, restaurant, coffee shop, or bar, the following additional criteria shall apply:

- a. Use requirements and restrictions: To qualify to operate a supper club, nightclub, restaurant or bar and grill, the establishment must have a minimum of forty (40) seats. To qualify or coffee shop, the establishment must have a max of twenty (20) seats.
- b. Operational plan: an operational/business plan that address the hours of operation, number of employees, menu items, goals of the business, and other operational characteristic pertinent to the application.
- c. Parking: Irrespective of parking requirements specified in the LDR/zoning code as amended, the zoning ordinance of the city, adaptive reuse of existing buildings for this function shall be required to provide additional parking via on street parking or parking agreement with established shared parking arrange-

ment; however, new buildings or facilities shall be required to provide a parking plan which fully describes where and how the parking is to be provided and used, e.g., valet, self-parking, shared parking, after-hour metered spaces, and the manner in which the parking is to be managed. By a special permit, one hundred (100) percent of the required parking may be located offsite within five hundred (500) feet from the subject establishment if the proposed parking is to be self-park, and one thousand (1,000) feet from the subject establishment if the proposed parking is to be by valet. For restaurants and other dining establishments, as adaptive re-use of an existing structure, any square footage used of the kitchen and/or storage areas will not be counted towards the parking requirements.

- d. For establishment proposing capacities of more than two hundred (200) persons, an indoor/outdoor crowd control plan that addresses how large groups of people waiting to enter the establishment or already on the premises, will be controlled.
- e. A security plan for the establishment and any parking facility.
- f. For establishment proposing capacities of more than two hundred (200) persons, a traffic circulation analysis and plan that details the impact of projected traffic on the immediate neighborhood and how to mitigate the impact.
- g. A sanitation plan, which addresses on-site facilities and off-premises issues resulting from the operation of the establishment.
- h. A plan depicting proximity of proposed establishments of residential use.
- i. If the proposed establishment is within five hundred (500) feet of the residential uses, noise attenuation plan is required.

(L) *Alcoholic beverage sales within the district.*

- (a) *Minimum distance requirements.* There shall be no minimum distance required between any places of business within the entertainment overlay district licensed by the state to sell alcoholic beverages for consumption on the premises and any other place of business similarly licensed within the district.
- (b) *Hours of operation.* The hours and days of sale and consumption of alcoholic beverages are set forth in section 4-3 of the Code.
- (c) *Hours for music and entertainment.* Music, singing and other forms of entertainment whether amplified or not, shall be permitted indoors at any time during business hours of any facility or business enterprise within the district, and in addition music, singing and entertainment shall be permitted outdoors within the district, however, such outdoor music, singing and entertainment shall comply with special events and entertainment regulations as set forth in section 4-10 of the city Code of Ordinances.
- (d) *Outdoor sales of alcoholic beverages.* Those persons or entities within the district licensed under the state beverage license laws, may sell and serve beers, wines and alcoholic beverages of any type regardless of alcohol content at any location within the district licensed for such sale and under the control of such licensee, including, but not limited to, sidewalk cafes, outdoor areas designed for food or beverage consumption on both adjacent to and operated in concert with a business operated within enclosed premises. Alcoholic beverages can only be consumed on premises of purchase.

(M) *Signs.* See LDR section 22-229.

(N) *Parking standards and requirements.*

- 1. In the HDOD contingent on use, shall be required to provide any off-street parking more than the off-street parking that is currently in existence in this "built-out" area of the city and subjected to administrative review or planning and zoning board and approval from city commission.

2. All existing buildings in the HDOD are subjected to administrative review for any use currently allowed in this district to provide any additional off-street parking despite any change of use that might intensify the use of any building and normally require a corresponding increase in the amount of off-street parking.
3. However as a consequence of this provision, any existing building in the HDOD occupied for any currently allowed use providing any additional off-street parking due to an increase in any intensity of use shall be subjected to administrative review.
4. Nothing contained herein shall be construed to authorize or permit the physical expansion or addition to any existing building in the HDOD over or in any area of established and existing off-street parking prior to administrative review and approval.
5. That the aforesaid provisions shall not be applicable to any of the following:
 - (a) When an existing building in the HDOD is demolished and subsequently replaced by the construction of a new building on the property.
 - (b) When an existing building in this district is "effectively demolished" by the razing of more than fifty-one (51) percent of the square footage of the existing structure and the subsequent reconstruction of that portion of the building previously demolished.
 - (c) When any additional area of occupancy and use is physically constructed and added onto, or attached to, any existing building in this district.
 - (d) When a new building is constructed on a previously vacant lot or parcel of property. If any of the foregoing instances occur, all off-street parking requirements and provisions contained in the Code of Ordinances shall remain applicable thereto.

Parking and density calculations.

- (a) All parking allocations must be approved by the DRC.
- (b) All development in the HDOD may be eligible receive a maximum of thirty-five (35) percent reduction from the parking standards listed in section 22-153 of the LDC pending administrative review and approval or planning, zoning and appeals board and the city commission review and approval.

Payment-in-lieu of parking fund. A payment-in-lieu of parking fund shall be established by the city to provide funding specifically for parking and related improvements within the HDOD. Payment-in-lieu of parking fees will be collected from all applicants for development and uses within the HDOD that do not provide sufficient on-site parking spaces or shared parking spaces to meet the minimum parking requirements of the Code. The payment-in-lieu of parking fee option for compliance with this subsection shall become effective upon adoption by the city commission of a resolution which specifies the amount of the payment-in-lieu of parking fund fee.

- (a) *Payment-in-lieu of parking fund fee calculation.* The amount of a payment to the payment-in-lieu of parking fund shall be calculated per parking space which is required but not provided via on-site parking spaces or shared parking spaces. The amount per parking space shall be determined by the average cost to the city for the construction of a parking space in a parking structure on a program wide basis within the HDOD, which shall be determined by the building director in coordination with the planning and community development director. The average cost shall include actual costs and fees for land acquisition, design and planning, legal fees, engineering, actual construction, and permit review and inspection.
- (b) *Payment in full of payment-in-lieu of parking fee.* For property owners opting to pay in full, or applicants not eligible to provide payment through a payment in lieu of parking agreement as provided in subsection (D) of this section, payment of the full amount of the in-lieu fee shall be due prior to the issuance of a building permit for the development, or prior to issuance of a certificate of use for the use for which the payment is required, whichever occurs sooner.

- (c) *Payment in lieu of parking agreement.* In-lieu of parking fee agreements shall only be made between the city and the owner of the subject property. Applicants for an in-lieu fee which is not paid in full prior to issuance of a building permit, must enter into an in-lieu of parking fee agreement with the city prior to the issuance of a building permit for the development, or prior to issuance of a certificate of use for the use for which the payment is required, whichever occurs sooner. Such agreement shall be approved by the planning and community development director and shall be recorded at the property owner's expense in the public records of Broward County, Florida. The in-lieu of parking fee agreement shall provide that the obligations imposed by the agreement constitute a restrictive covenant upon the property, and shall bind successors, heirs and assigns, and shall be released by the city upon payment in full of the amount due under the agreement.
- (d) *Payment in lieu of parking agreement term.* An in-lieu of parking fee agreement executed by a property owner applicant in accordance with this subsection shall provide that installment payments shall be made over no longer than a thirty-six (36) month time period in three (3) installments. The first installment shall be at least fifty (50) percent of the total fee due, and shall be paid upon signing the agreement, prior to the issuance of a building permit for the development or a certificate of use, whichever occurs sooner. The second installment shall be in the amount of at least twenty-five (25) percent of the total fee amount due and shall be paid no later than the second anniversary date of the execution of the agreement. A third (3rd) and final payment of twenty-five (25) percent of the total fee may be authorized by the agreement and shall be due no later than the third anniversary date of the execution of the agreement. A property owner subject to an in-lieu of parking fee agreement may make a redemption payment of the remainder of the amount due pursuant to the agreement, at any time prior to the final required payment.

On-site parking.

- (a) All parking lots, garages, and parking structures shall be located at the rear of all buildings.
- (b) Parking areas shall be accessed from side and back streets and from adjacent properties.
- (c) Large surface parking lots shall be visually and functionally segmented into several smaller lots using structures and landscaping. Designs that reduce visibility, especially between parking areas and business entrances, shall be discouraged.
- (d) Surface parking areas shall be obscured from frontages by a building or street screen.
- (e) Existing surface parking lots are intended to be reduced, over time, through redevelopment and/or construction of structured parking facilities.
- (f) Parking areas shall not abut street intersections or terminate a street vista. On-street parking shall not be closer than twenty-five (25) feet to a street intersection, measured from the extended right-of-way lines.

On-street parking (parallel parking).

- (a) On-street parking will be allowed on Opa-locka Boulevard.
- (b) On-street parking located adjacent to a building or lot shall not count toward fulfilling the parking requirements for that building or function.

Off-street parking.

- a) Dwelling, multiple-family: One space per bedroom with maximum two spaces per dwelling unit for residents. An additional five percent of the total residents' spaces shall be provided for visitors.
- b) Hotels and motels, including clubs: One parking space for each sleeping room. If, in addition to sleeping rooms, there are other uses operated in conjunction with and/or as part of the hotel/motel, additional off-street parking spaces shall be provided for such other uses as would be required by this section if such

uses were separate from the hotel/motel to the extent of thirty-five (35) percent of the off-street parking specified in this article for retail stores, offices, services, establishments, bars, restaurants, dining rooms, night clubs, cabarets, ballrooms, banquet halls meeting rooms, auditoriums.

- c) Commercial uses: See LDR section 22-155.
- d) Developments that provide affordable/elderly housing may be reduced as stated below. In no event shall parking be reduced by more than thirty-five (35) percent of the spaces required.
- e) A maximum thirty-five (35) percent reduction in required parking may be permitted within the HDOD pending administrative review.

Shared parking.

- (a) The parking requirements for buildings containing more than one function shall be the total of the amount of parking required for each function.
- (b) Shared parking areas shall be located no further than one-quarter mile of the building or function utilizing the shared parking capacity.
- (c) Cross-access easements or similar mechanisms approved by the city attorney shall be used to provide joint access between shared parking areas.
- (d) In a parking structure or garage, each above-ground level counts as a single story regardless of its relationship to habitable stories.
- (e) Parking structures shall have liner buildings along primary frontages and landscape buffer yards adjacent to residential properties.
- (f) Vehicular entrances to parking lots, parking garages, and parking structures shall be no wider than twenty-four (24) feet at the build-to line.
- (g) Pedestrian walkways shall be integrated, to the extent possible, into the interior and/or perimeter landscaping of parking lots; constructed with brick pavers, stamped concrete or a paved or similarly firm surface, at least six (6) feet in width; and separated from vehicular and parking areas by grade, curbing and/or vegetation, except for necessary ramps.
- (h) Pedestrian exits from all parking lots, garages, and parking structures shall be directly to a build-to line except underground levels which may be exited by pedestrians directly into a building.
- (i) Parking facilities and appurtenant driveways shall be designed to maximize the safety and convenience of pedestrians walking between parked cars and business entrances as well as between external points and locations on-site.

Loading and service areas.

- (a) Loading docks, solid waste facilities, recycling facilities and other service areas shall be located to the rear or side of a building in visually unobtrusive locations.
- (b) All trash and recycling service areas shall be enclosed so as not to be visible.
- (c) Loading docks and service areas shall be permitted on frontages only by administrative approval.

Amenities. A minimum of one bicycle rack place shall be provided within a pedestrian zone for every ten (10) vehicular parking spaces required by this Code within the mixed-use high and mixed-use low districts.

Street requirements.

- a) Streets in the HDOD are intended to be inviting public spaces and integral components of community design. HDOD streets shall be organized according to a hierarchy based on function, size, capacity, and

Design Speed. In descending order of importance, the hierarchy shall consider pedestrians as the most important, followed by cyclists, mass transit, and automobiles. All design elements must consistently be applied to calm automobile traffic and to facilitate pedestrian activity.

- b) The hierarchy of streets for the HDOD should adhere to Tables 2A. Public Frontages, 2B. Vehicular Thoroughfares, and 2C—2F, Thoroughfare Assemblies. The proposed hierarchy of streets shall be indicated on the submitted site plan with each street type being separately detailed.
- c) Specialty paving required for pedestrian areas and the HDOD entrance is detailed in Tables 2C—2F, Thoroughfare Assemblies.
- d) Streets may be comprised of segments. Each segment shall have the characteristic of one street type.
- e) The elements that comprise a street within the HDOD are listed below and are depicted in detail in Tables 2C—2F, Thoroughfare Assemblies.
 - A. Pedestrian zone:
 - 1. Curb and gutter.
 - 2. Planting area.
 - (a) Street trees.
 - (b) Shrubs.
 - (c) Ground cover.
 - 3. Sidewalk.
 - (a) Optional planting area.
 - (b) Pedestrian accessways, paths or passages.
 - 4. Street furniture.
 - 5. Lighting.
 - B. Public utility equipment or public easement (required if determined to be necessary by the planning and community development director).
 - C. On-street parking.
 - D. Bicycle lanes.
 - E. Travel lanes.
 - F. Landscaped medians.
- f) In the HDOD, Sidewalks in addition to street trees, planting areas and furnishings occur within the pedestrian zone, which is comprised of the build-to line and the right-of-way.
- g) Sidewalks are required on both sides the street except for a street on the undeveloped edge of a HDOD. Sidewalk requirements are listed in Tables 2C-2F, Thoroughfare Assemblies.
- h) The primary facades of all buildings shall contain the primary pedestrian entry and face a public street.
- i) The requirements for placement and types of street trees are specified in Table 4, Public Planting.
- j) Street trees shall be planted on both sides of the street except for a street on the undeveloped edge of the HDOD district.
- k) Depending on the street type, the planting area may contain the required landscaping, the required street trees, or a combination of both.
- l) The required planting area width may be combined with the required sidewalk to expand the sidewalk beyond the required width. In this scenario, the street trees must be placed in tree grates.
- m) Utilities shall be placed underground and should be located along rights-of-way (ROWs).

- n) Curbs and gutters shall conform to the city's engineering design standards.
- o) Parallel on-street parking areas (including area of adjacent paved gutter) shall be at least seven (7) feet wide for residential streets and at least seven (7) to eight (8) feet wide for primary and secondary streets, and at least twenty-two (22) feet long for all streets.
- p) Angled on-street parking may be provided as long as wheel stops, or curbed sidewalks are provided.
- q) On-street parking width shall include the adjacent paved gutter area. Curbed bulb-outs containing streets trees and/or other plantings are encouraged to be built at regular intervals and at all intersections within a dedicated on-street parking area.
- r) Where provided, bicycle lanes shall be at least four (4) feet in width and shall be placed between on-street parking areas and travel lanes, or between the curb and gutter and the travel lanes in the absence of on-street parking areas.
- s) City approved bus shelters shall be provided by the property owners or the city on all primary streets within the HDOD.

(O) *Building height limit.*

- (1) The maximum building height shall be no higher than one hundred five (105) feet, no more than ten (10) stories and shall comply with Federal Aviation Administration Regulations, part 77 and to ensure safety and livability.

(P) *Building site area required.*

Commercial or office use only, all floors:

The minimum building site area required shall be a lot or parcel of land 10,000 square feet in area.

Mixed use:

Mixed-use building site area will be determined by FAR as specified under subsection (Q) of this section.

(Q) *Floor area limitations.* All buildings within this category shall be limited to a floor area ratio (FAR) as listed:

<i>Height of Building</i>	<i>Floor Area Ratio</i>
1 story	0.4
2 story	0.6
3 story	0.8
4 story	1
5 story	1.2
6 story	1.4
7 story	1.6
8 story	1.8
9 story or over	2

(R) *Maximum allowable density and square footage requirements.* Parcels located in the HDOD may be developed as follows:

- 1. Residential density shall not exceed one hundred and fifty (150) units per acre.
- 2. Nonresidential developments shall be not less than a floor area ratio of fifteen tenths (0.15) and shall not exceed a floor area ration of three (3.0).

Commercial or office use only, all floors. The minimum first floor area of a commercial building in this district shall be one thousand five hundred (1,500) square feet.

Mixed use. In addition to the floor area required for the first floor of commercial or office use, the minimum square footage requirement for the upper-floor residential dwellings shall be as follows:

- a) One bedroom: five hundred fifty (550) square feet minimum.
- b) Two bedroom: seven hundred twenty-five (725) square feet minimum.
- c) Studio units: four hundred fifty (450) square feet minimum (seniors only) capped at thirty (30) percent.

Also, the following maximum percentage allocation of total residential area to ground floor business area, per development, shall apply:

Residential: sixty-seven (67) percent (i.e., a two to one (2:1) ratio between residential and business, respectively.)

Front yard, front yard required for a building designed for commercial or mixed use. All buildings shall be built to the front property line except as follows:

1. A landscaped setback of fifteen (15) feet may be permitted for beautification purposes only, at the option of the property owner.
2. Projections beyond the face of the building (such as upper floors that cantilever beyond the footprint of the lower level) cannot extend beyond the front property line.

Side yard required. No side yard is required for a building designed for either commercial or mixed use, except where required for protective screening, as required in subsection (S) of this section.

Projections beyond the face of the building (such as upper floors that cantilever beyond the footprint of the lower level) cannot extend beyond the side property lines.

Rear yard required for a building designed for commercial or mixed use. There shall be a rear yard consisting of an area which is not less than thirty (30) percent of the lot or building site to be improved. To provide space for drains and other uses, except in those cases where the lot or building site abuts upon a dedicated alley which has a width of not less than forty (40) feet, in which case the rear yard may be twenty (20) percent of the lot or building site area.

(S) *Protective screening.* Where any lot in this district adjoins a residential district, a five (5) foot strip of land adjoining the boundary of the residential district shall be set aside and used for planting or walls by the owner of the commercial or mixed-use lot at his expense, to form an effective screen for the protection of the residential area. No structure, except the screen or wall, or utilities or drainage facilities, shall be placed or permitted in the area. No vehicular access shall be permitted over the area, except for the installation or maintenance of screening, utilities, and drainage facilities.

(T) *Open space and landscaping requirements.*

- (a) Notwithstanding any provision of this Code to the contrary, each site shall provide a minimum of twelve (12) percent of its net lot area as landscaped open space, except where this requirement is modified per subsection (b) and/or subsection (c) of this subsection (T).
- (b) In-lieu of providing all or a portion of the landscaped open space required by subsection (a) of this subsection (T), a property owner may choose to aggregate all or a portion of required landscaped open space together on one site within the HDOD. To utilize this option, said aggregated space must be readily accessible to the public, must be a minimum of one-quarter acre, and must be approved through the site plan review process. Additionally, where this option is utilized, in whole or in part, to meet the required landscaped open space for residential uses in the HDOD, said space may be counted toward any land dedication otherwise needed to meet the requirements of parks concurrency. When this option is utilized, a covenant running with the land encumbering all properties involved, and in a form acceptable to the city manager and the city attorney, shall be recorded among the public records. The burden shall be on the property owner and/or applicant to demonstrate compliance with landscaped open space requirements, and to produce any documentation as necessary. However, notwithstanding the provisions of this subsection,

sufficient landscaping shall be provided on-site to appropriately complement building architecture and other functions on each site, as determined through the site plan review process, and to meet other explicit requirements of this Code.

- (c) Where a building includes a habitable rooftop, including but not limited to a recreation area or outdoor dining space, said habitable rooftop area shall be counted toward the amount of land required for landscaped open space per subsection (a) of this subsection (T).
- (d) Except as provided in subsection (e) of this subsection (T), each site shall provide the number of trees, shrubs and other landscape materials as provided in article VII of this LDR. However, placement of trees, shrubs and other landscape materials shall be determined through the site plan review process, consistent with the site plan review standards in section 22-56 of this LDR.
- (e) Where all required trees and shrubs cannot be provided on-site, the property owner may choose a cash in-lieu payment to the city instead of providing that portion of trees or shrubs that cannot be provided on-site, subject to approval by the city commission. To utilize this provision, the property owner shall provide to the city a good faith estimate, at the prevailing market rate as approved by the city manager, of the cost to purchase and install that portion of trees and shrubs that cannot be provided on-site, which shall constitute the amount of the required payment. The city may only use these funds in furtherance of projects identified in the adopted beautification master plan that are within the HDOD. If there are no projects in the HDOD for which these funds may be utilized, the city shall not accept the cash in-lieu, and the property owner/developer shall either modify the proposed project to accommodate the required trees and shrubs or apply for a variance. However, notwithstanding the provisions of this subsection, sufficient landscaping shall be provided on-site to appropriately complement building architecture and other functions on each site, as determined through the site plan review process, and to meet other explicit requirements of this Code.
- (f) If a plaza or courtyard is placed in the front or side street setback between any street type and a building, as provided for in subsection (R)1 of this section, said plaza/courtyard shall remain open to the public except in the case of emergencies or in the case of special events, as approved by the city in accordance with section 22-135 of this LDR. Said plaza/courtyard may be counted as open space, including as aggregated open space per subsection (b) of this subsection (T).

(U) *Off hours security devices.* The use of shutters, awnings, gates, panels or sheets or any other device meant to provide off hours premises security is prohibited. Notwithstanding the foregoing, the provisions contained in section 22-118 of the LDR relating to storm protection, shall remain applicable to all district properties. Exterior mounted security gates or solid roll down metal windows shall not be permitted. Link or grill type security devices shall be permitted only if installed from the inside, within the window or doorframe. Other types of security devices fastened to the exterior walls are not permitted.

(Ord. No. 2022-07, § 2(22-101), 1-12-2022; Ord. No. 2025-06, § 2, 2-12-2025)

Sec. 22-102. Opa-locka Innovation District.

A) *Intent and purpose.* The Opa-locka Innovation District (OLID) is established in accordance with the 2015 Sustainable Opa-locka 2030 Comprehensive Development Master Plan to encourage and accommodate the creation and development of technology retail and service, medical technology development, and manufacturing businesses that shall serve as economic drivers for the city and the surrounding region. Together with the adjacent Magnolia North (MN) District, the OLID provides a unique area for a mix of employment, housing, and commerce that taps into an existing industrial area for the potential for new commercial, technology, and manufacturing businesses, as well as local institutions of higher learning. The OLID shall support its workforce through access to open space and amenities that encourage walking, biking, and transit, as it becomes available. The district will feature a multi-use pathway system that connects uses within the OLID, the adjacent MN district, and other destinations in the city and the region. To create a sense of place that attracts young adults educated in knowledge economy and high-tech jobs,

high-quality architectural design and natural materials that visually and physically connect to the natural environment are intended. Landscaping elements should be integrated into site design to provide walkable connectivity with the adjoining MN district.

High-quality site design and improvements will integrate energy efficient and environmentally sound (green) principles and practices. Development within this district shall include the following additional components:

- a. *Innovation district uses.* The district will provide an open, campus-like setting for commercial, manufacturing, scientific research, and high-tech industrial development. The OLID will be an incubator for high-tech businesses and educational institutions. Production will be limited to research, development, or evaluation of the merits of products, plans, or designs. The district is intended to accommodate research facilities, pilot plants, prototype production and other manufacturing operations that require the continual or recurrent application of research knowledge and activity as an integral part of the manufacturing process. The district will also accommodate a broad range of compatible business uses that can appropriately share infrastructure, parking, and other amenities with technology and research campus developments.
- b. *Housing.* The adjacent Magnolia North district shall be developed to provide high quality, unique housing in the form of townhomes or other attached or clustered single-family residential units. Live-work units are also encouraged. A variety of housing sizes to accommodate residents of all ages and abilities are desired, from two (2) to three (3) bedroom units in the central portion of the district to larger one (1) bedroom units at the edges.
- c. *Transportation.* This district will include a transportation network that supports motorized and non-motorized travel in and around the district, between the OLID and the MN district, and to the surrounding community; accommodations will be made for electric vehicles, autonomous vehicles, bicycle and pedestrian facilities, and integration with mass transit.
- d. *Parking.* Compact development where parking is shared between uses is envisioned, minimizing the amount of land devoted to pavement. Bicycle parking should also be accommodated in safe, convenient, and accessible areas. Car and bicycle sharing are also encouraged. Electric vehicle charging stations are encouraged.
- e. *Placemaking.* The OLID district will be unique due to its integration with the natural environment. Building design and materials will be harmonious with the south Florida environment and the Moorish architecture found in this area. Pathways and multimodal trails will provide opportunities for the workforce and visitors to appreciate the city's unique architecture in a vibrant setting. The public realm will be framed not only by buildings, streets, and sidewalks, but also by the surrounding environment. The resulting spaces will be safe, comfortable, and attractive to pedestrians. Civic spaces such as concert lawns, pavilions, or open space may also be incorporated into the district.
- f. *Sustainability.* Development in the OLID will rely on mitigating stormwater runoff through bioretention systems such as rain gardens and bioswales, and alleviating concentration of runoff using permeable pavement. Landscaping with native plants, green roofs, living walls, and the incorporation of alternative energy systems, such as solar collectors or geothermal heat pumps into building and site designs, will reinforce the unique natural character of this district. Pursuit of Leadership in Energy and Environmental Design (LEED) certification for individual buildings, and potentially of LEED-ND (LEED-Neighborhood Development) certification for coordinated development, is strongly encouraged.
- g. *Technology.* Given the nature of the district, technology is expected to be both visible as well as invisible and should be incorporated into all aspects of building and site design; educational, experiential, and experimental activities relating to technology are encouraged. Sustainable Opa-locka 2030 Comprehensive Development Master Plan (2015) shall be a guiding document for development in this district.

B) *Goals and objectives.* The overall goal and objective of the district is to provide regulation and development guidelines to contribute to the long-term sustainability and quality of life for the community. Specific goals and objectives include, but are not limited to, the following:

- Provide appropriate transitions between commercial/industrial, and mixed-use districts through its land development regulations and other appropriate mechanisms.
- Dilapidated properties and vacant land in industrially zoned areas shall be developed with public facilities and services to attract compatible industries.
- Redevelopment shall provide for pedestrian friendly street design, an interconnected street network and hierarchy to reduce congestion and improve traffic flow, design that promotes the use of non-motorized transportation modes, connectivity to transit, and a range of uses in a compact area to reduce the need for external trips.
- Promote high quality urban design for development and redevelopment by encouraging developers to incorporate the concepts outlined in Miami-Dade County's Urban Design Manual, or other design guidelines that might be developed for the city, into their developments.

C) *Geographic area.* The Opa-locka Innovation District is in an area where manufacturing, development, institutional and other complementary high-activity land uses draw patrons from the surrounding region. The OLID shall have the territorial boundaries having the following description: situated between NW 22nd avenue to the east, NW 27th avenue to the west, NW 151st street to the north and Ali Baba Avenue to the south.

D) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

- A. *Community* means the surrounding land area, inclusive of rights-of-way and other public spaces within one-quarter (0.25) miles from the outer boundaries of the proposed development.
- B. *Development plan* means the site plan, design plan and any and all conditions approved by ordinance rezoning to OLID.
- C. *Innovative* means that the character of the development is such that it utilizes a creative approach that could not otherwise be accomplished under the current LDR regulations to meet the OLID intent, including specific elements.
- D. *ID (innovative development)* means a development on land under unified control as established by a recorded document that meets the criteria for an ID as described in this section. Upon adoption of an ordinance approving the site plan and design characteristics that become the specific zoning regulations and standards for the land to which the ID is applicable.

E) *Permitted uses.* The OLID is intended to provide a healthful operating environment for light industry and compatible uses, for the protection of light industry and compatible uses. New businesses to be established in existing structures shall be subjected to administration review. The following uses are permitted:

- Administration of educational programs.
- Artificial intelligence.
- Aviation technology.
- Computer manufacturing and computer software stores.
- Computer programming and data processing services.
- Craft breweries, bakeries, distilleries, and wineries pending administrative review.
- Electronic and electrical equipment, systems, components, instruments, and peripherals.
- Engineering, architectural, and surveying services.

- Indoor theatres.
- Interior design studios.
- Manufacture of motor vehicle parts and accessories including mechanical, electrical, and electronic parts, components and subassemblies, such as braking systems, safety devices, pollution control mechanisms, and electronically controlled fuel systems.
- Medical equipment and supplies.
- Museums and art galleries.
- Research, development, experimental, or testing laboratories.
- Restaurants and drinking places including outdoor dining.
- Retail: Retail must be specific to the products produced on site and any accessory uses.
- Recreation establishments (i.e., indoor rec spec, VR arcade, etc.).
- Robotics.
- Studios for photography, music, art, dance, drama, and voice.
- E-Commerce warehousing and distribution center.
- Wholesale trade.
- Other innovation, assembly, or limited manufacturing uses, of a similar nature, when located and arranged according to a plan providing for aesthetic or other conditions in harmony with the neighborhood and approved by the planning and zoning board and city commission.

F) *Implementation concepts.* The concepts of the district shall be as follows:

- (1) *Make pedestrians a high priority.* Enhance the open network of smaller blocks and provide increased access through new sidewalks, paseos, and public alleys. Provide a tree canopy planted along sidewalks or medians to create shade from the sun and more attractive streets or sidewalks.
- (2) *Decrease high intensity vehicular traffic.* Reduce lanes or lane widths, expand the median and add on-street parking and trees as traffic calming devices. Encourage small scale shipping operations for less heavy vehicle traffic. Provide parking in the rear areas, hidden from the front view. Reconstruct curbs with smaller radii at intersections. Encourage property owners to provide cross access between their parking lots and that of their neighbors.
- (3) *Improve pedestrian corridors.* Improve commercial facades to increase pedestrian comfort and safety through enhanced lighting and landscaping. Improve the network of secondary pedestrian corridors to extend existing patterns of pedestrian travel. Create a sense of enclosure and urban character through street facade.
- (4) *Aggregate open space for squares, plazas, passive parks, and other public open spaces.* Promote activity and natural surveillance by providing plazas and squares, open to the public and level with the grade of the sidewalk. Create a legible network of open spaces by waiving minimum open space requirements on specific lots or parcels in exchange for a credit to develop larger open public spaces.
- (5) *Extend transit, at a variety of scales and modes of travel.* Implement a circulator system, such as a local bus system, to be used for local service and to connect to the regional system. Increase transit ridership to facilitate growth and mobility without unmanageable traffic congestion.
- (6) *Attack visual blight.* Promote infill development along the edges of blocks to define street space. Inventory vacant or underutilized lots and provide incentives for development. Utilize code enforcement procedures to compel compliance from property owners who have neglected the appearance of their property. Enforce building codes to ensure applicable minimum standards for older buildings.

- (7) *Provide for water retention areas to improve drainage and flooding protection in low-lying areas.* Promote the procurement of vacant or underutilized land that may be reservoirs for additional storage and storm water retention within the district. Provide for a hydric park network to reduce flooding and restore the community's connection to water resources.
- (8) *Promote civic uses.* Encourage public access and participation by providing cultural performances, gatherings and displays for education and enlightenment. Potential for reuse of city-owned properties.
- (9) *Introduction of green/sustainable infrastructure.* Encourage the implementation of green, sustainable technology and processes for energy efficiency and a positive impact on the environment.

G) Prohibited uses. Dwelling units, including hotels and motels, except as provided under "uses permitted"; churches; yards or lots for scrap or salvage operations or for processing, storage, display or sales of any scrap, salvage, or secondhand building materials, storage of wrecked and or unregistered automobiles, secondhand automobile parts; salvage yards or junkyards; truck parking and facilities all uses or structures not of a nature specifically permitted herein, and any use not conforming to the performance standards set forth in subsection V of this article. The following use are also prohibited:

- Adult-related business.
- Automotive auctions, repair, sales, and service facilities.
- Bar (standalone); package store.
- Big box retail operations.
- Gun shop, range.
- Large surface parking lots.
- Motor freight terminals.
- Pawn shop, thrift store.
- Towing service.

H) Precedence over other zoning and land use regulations. In addition to the criteria provided in Opa-locka Innovation District (OLID) land use classification and the Commercial Liberal (B-2), Light Industrial (I-1), Industrial Planned (I-2) and Civic (C) zoning districts, the requirements provided in this division must also be followed. To the extent that any conflict may arise between the criteria of this district and the criteria of the OTBD land use classification and the OLID, B-2, I-1, I-2 and C zoning districts, the requirements of the MXUOD overlay zoning district shall prevail.

I) Road classifications in the OLID. To further define the functions of the roads and streets within the district, roads are classified as follows:

- (1) Major roadways shall mean those roads that are designed for the efficient movement of people and vehicles to and through the district. The roads enable traffic to easily traverse the area as well as provide access to other areas within and outside the City of Opa-locka. NW 27th Avenue, NW 22nd Avenue, State Road 9, and Ali Baba Avenue are classified as major roadways within this district.
- (2) Minor roadways shall mean those roads that are designed for ease of access for the movement of people and vehicles through the district. Minor roadways generally provide short distance access to individual properties within the district and to adjoining areas. 151st Street from LeJeune-Douglass Connector to NW 27th Avenue; NW 27th Avenue to Ali Baba Avenue, and 22nd Avenue to Ali Baba Avenue.
- (3) Local streets mean those roads in the district that provide access to individual properties that are not designated major or minor roadways.

J) *Zoning regulations.*

- (a) Commercial and industrial densities in B-2, I-1 and I-2 zoning districts shall not exceed the minimum site area as listed in each respective district, unless the property owner provides public open space as provided in subsection (c) of this subsection (J).
- (b) Landscaping for all property zoned commercial or industrial or that includes the aforementioned uses within the zoning district shall conform to an urban design plan that will be adopted by the city within eight (8) months of the effective date of the ordinance from which this section is derived.
- (c) The dimensions of open public spaces shall conform to an urban design plan that will be adopted by the city within four months of the effective date of the ordinance from which this section is derived.
- (d) The facade and architecture requirements shall conform to a Moorish architectural design plan that will be adopted by the city within four months of the effective date of the ordinance from which this section is derived. The goal of the architectural parameters is to promote creative architectural solutions within an ensemble of basic urban forms that will ensure harmony and continuity without mandating a particular style. Building design shall promote pedestrian safety, comfort, and interest for adjoining public spaces. Building design shall promote energy conservation by including self-shading, natural lighting, natural ventilation, outdoor circulation and reduced dependence on artificial lighting and air conditioning.
- (e) Street walls shall have pedestrian entrances at maximum intervals of one hundred fifty (150) feet. The principal pedestrian entrance of all buildings shall be from the street, courtyard garden or from a paseo.
- (f) Street walls, landscape buffers or a building shall be constructed to screen parking from view.

K) *Incentives.*

- 1. Accelerated administrative review.
- 2. Reduction of impact fees subjected to administrative review.
- 3. Relaxed setback requirements for properties which provide public open space areas.

L) *Signage.* See LDR section 22-229.

M) *Parking standards and requirements.*

- 1. In the OLID contingent on use, shall be required to provide any off-street parking more than the off-street parking that is currently in existence in this "built-out" area of the city and subjected to administrative review or planning and zoning board and approval from city commission.
- 2. All existing buildings in the OLID are subjected to administrative review for any use currently allowed in this district to provide any additional off-street parking despite any change of use that might intensify the use of any building and normally require a corresponding increase in the amount of off-street parking.
- 3. However, as a consequence of this provision, any existing building in the OLID occupied for any currently allowed use as listed under subsection (2) of this subsection (M) providing any additional off-street parking due to an increase in any intensity of use shall be subjected to administrative review.
- 4. Nothing contained herein shall be construed to authorize or permit the physical expansion or addition to any existing building in the OLID over or in any area of established and existing off-street parking.
- 5. That the aforesaid provisions shall not be applicable to any of the following:
 - (a) When an existing building in the OLID is demolished and subsequently replaced by the construction of a new building on the property.
 - (b) When an existing building in this district is "effectively demolished" by the razing of more than fifty-one (51) percent of the square footage of the existing structure and the subsequent reconstruction of that portion of the building previously demolished.

- (c) When any additional area of occupancy and use is physically constructed and added onto, or attached to, any existing building in this district.
- (d) When a new building is constructed on a previously vacant lot or parcel of property. If any of the foregoing instances occur, all off-street parking requirements and provisions contained in the Code of Ordinances shall remain applicable thereto.

N) *Building height limit.* Commercial properties shall have a maximum height of six (6) stories or sixty-five (65) feet. Industrial properties shall have a maximum height of three (3) stories or forty-five (45) feet.

O) *Building site area required.*

- i. Commercial and industrial properties shall be regulated by the regulations of each base zone with additional regulations provided by the MXUOD.

P) *Floor area limitations.* All buildings within this category shall be limited to a floor area ratio (FAR) as listed: Commercial properties listed as B-2 shall have a FAR of two and four-tenths (2.4).

Industrial properties listed as I-1 shall have an FAR of three (3) and I-2 shall have an FAR of one (1.0).

Q) *Square footage requirements.*

Commercial or office use only, all floors:

The minimum first floor area of a commercial building in this district shall be one thousand five hundred (1,500) square feet, five thousand (5,000) square feet for existing subdivisions, ten thousand (10,000) square feet for re-plat or new plat.

Industrial:

I-1 designation shall have a minimum of ten thousand (10,000) or a minimum project size of two (2) acres for new industrial flex space. I-2 designation shall have a minimum of two acres which can be divided and sold/leased in lot sizes no less than twenty thousand (20,000) square feet.

R) *Outdoor storage and protective screening.*

Outdoor storage of materials. Non-hazardous materials used in the operations of a tenant, prototypes, and similar items may be stored outdoors, provided that the following conditions are met:

- a. The size of an outdoor storage area shall not exceed twenty-five (25) percent of the footprint of the principal building.
- b. The outdoor storage area shall be screened with a minimum eight (8) foot, decorative obscuring fence or wall that is architecturally compatible with the principal building. Stored materials shall not exceed the height of the screen wall.
- c. The outdoor storage area shall be appropriately surfaced to prevent the infiltration of pollutants into the soil.
- d. In no instance shall a screening fence include barbed wire, razor wire, or other similar materials.
- e. Outdoor storage areas shall not be located in a front or side yard.
- f. Outdoor storage areas shall be set back a minimum of one hundred (100) feet from any residential district.

Storage of service vehicles. Vehicles owned by a tenant of a nonresidential building may store vehicles on site as follows:

- a. Vehicles may be stored indoors.
- b. Vehicles may be stored in an approved outdoor storage yard.

- c. Up to five vehicles not larger than a typical family car, truck, SUV, or van may be stored in the parking area for the use. If the parking area is part of a shared parking agreement, the usage of these spaces for vehicle storage shall be added to the shared parking agreement.

S) Open space and landscaping requirements.

- a. Landscaping shall be provided as per chapter 7 of the land development regulations;
- b. Exterior lighting. Pedestrian areas need to be well-marked and well-lit. Exterior lighting shall be an integral part of the architecture and landscape design. Street lighting shall relate in scale to the pedestrian character of the area. Pedestrian lighting shall be provided at a pedestrian scale of three to twelve (12) feet, with the source light being shielded to reduce glare, thereby encouraging safe access to these areas twenty-four (24) hours per day. Overall, lighting, and pedestrian zone lighting is needed but shall not create glare or light spillage off site or beyond parking lots and streets.
- c. Open space. Open space shall be planted and maintained in accordance with the landscape plan that is approved by the planning and zoning board and city commission, utilizing the following standards:
 - (1) Each plot shall provide not less than thirty (30) percent of its area in landscaped open space.
 - (2) A landscape strip at least twenty-five (25) feet in width located between the abutting right-of-way and the off-street parking and any other vehicular use area which is exposed to an abutting right-of-way.
 - (3) On the plot of a building or structure of open lot use providing an off-street parking area or other vehicular use area, a non-stabilized landscaped strip of at least twelve and one-half (12 ½) feet in width shall be provided to form a visual screen between the off-street parking area or other vehicular use area and any abutting property.
- d. Knee walls associated with landscaping shall be required.
- e. One two (2) inch caliper or higher tree shall be required for each twenty (20) lineal feet of the lot line. Such trees along sidewalks shall be shade trees.
- f. Residential/commercial developments shall have a minimum of one thousand (1,000) square feet of common open space and fifty (50) square feet per tenant, or five (5) percent of the lot area as common open space, whichever is greater.
- g. Tree protection. Trees must be adhered to in accordance with Ordinance No. 10-03 entitled Tree Protection Program.
- h. Street frontage. In cases where the master site plan creates a development abutting streets not listed in subsection (C) of this section, requirements regarding landscaping, facade, lighting, and other provisions of this overlay district along right-of-way is expressly required for these rights-of-way.

T) *Off hours security devices.* The use of shutters, awnings, gates, panels or sheets or any other device meant to provide off hours premises security is prohibited. Notwithstanding the foregoing, the provisions contained in Code of Ordinance 7-23 (C) relating to storm protection, shall remain applicable to all district properties. Exterior mounted security gates or solid roll down metal windows shall not be permitted. Link or grill type security devices shall be permitted only if installed from the inside, within the window or doorframes. Other types of security devices fastened to the exterior walls are not permitted.

U) Developmental standards.

All developed property shall be landscaped, improved, and maintained in full conformity with all applicable requirements of the land development regulations.

All improved land shall be well-graded and free from underbrush and objectionable plant growth. The fifty (50) feet closest to any public right-of-way shall be mowed periodically as necessary to control natural grass growth. The balance of the site shall be kept free of debris and shall not be used for storage or disposal of any objects or materials.

All property shall be kept clean and free from rubbish or debris.

All planted and landscaped areas shall be maintained in a neat, orderly, healthy, growing and properly trimmed condition.

All buildings and structures shall be kept properly painted and protected from deterioration and shall not be permitted to become dilapidated.

All driveways, walkways, parking areas, storage and loading areas of developed property shall be well-graded and surfaced with asphaltic concrete or other equivalent hard, dustless materials.

All electrical, telephone, gas or other utility connections shall be installed underground.

V) *Performance standards.*

- (1) No building or structure, or part thereof, shall be erected, in whole or in part, that is obnoxious, objectionable, a nuisance or a hazard to adjoining properties, as they relate to sound, vibrations, odors, glare, radioactive materials, smoke, chemical and particulate matters.
- (2) Building facades facing roadways shall be designed to appear to be the fronts of buildings. This provision shall apply to corner and double frontage lots.
- (3) Business related vehicles, equipment, paraphernalia, and accessory structures or uses are prohibited from the fronts and sides of buildings when facing major arterial roadways.

W) *Development standards for buildings designed to achieve LEED silver certification.* All newly developed and redeveloped properties that contain buildings designed to achieve LEED silver certification, as determined by the United States Green Building Council, shall be allowed reduced setback and landscaping standards. The qualification of LEED design elements to a LEED silver certification level shall be subject to the review and approval of a LEED professional as determined by the city manager or his/her designee. The cost associated with said review shall be paid for by the applicant. LEED silver developments shall be subject to all other development standards identified in this chapter except for the following:

(1) *Setbacks.*

- (a) No building or roofed structure shall be located less than fifty (50) feet from any street line that has frontage on a right-of-way greater than sixty (60) feet in width.
- (b) No building or roofed structure shall be located less than twenty-five (25) feet from any street line that has frontage on a right-of-way less than or equal to sixty (60) feet in width.

(2) *Landscaping.*

- (a) There shall be no minimum required percentage for overall landscaped open space.
- (b) Side and rear perimeter landscaping. All plots of land shall provide a minimum five (5) foot wide, non-stabilized landscape strip along the interior side and rear property lines, beyond the front facade of the building or structure facing a public right-of-way. The side and rear perimeter planters shall be planted with medium-size shade trees and/or approved palm trees, planted so as to create a continuous canopy along the side and rear perimeter of the property.
- (c) Landscape islands along perimeter parking rows shall be provided for every ten (10) parking spaces. These parking islands shall measure nine (9) feet in width by sixteen (16) feet in length and shall

include one (1) shade tree. In lieu of this requirement, developers may submit plans for approval by the city, showing aggregate clusters of tree planting equivalent to or greater than the total area of all required parking islands.

- (d) Landscape islands may be omitted along the perimeter parking areas provided that a minimum ten (10) foot wide landscape planter is provided along the perimeter of the site.
- (e) If a surplus of parking spaces is proposed within a development, any additional landscape islands required because of the surplus parking shall be a minimum of twenty-seven (27) feet in width by sixteen (16) feet in depth. Surplus parking is defined as any parking spaces that are in addition to the number of spaces required to be provided by Code based on the total square footage of the building.
- (f) Understory planting shall be provided in areas where there exists a substantial grouping of trees as determined by the director of community development.

(Ord. No. 2022-08, § 2(22-102), 1-12-2022)

Secs. 22-103—22-110. Reserved.

ARTICLE V. SUPPLEMENTAL STANDARDS

Sec. 22-111. Exclusion from height limits.

No building or structure shall have a greater number of stories, nor height greater than what is permitted in the district in which the building is located. These limitations do not apply to chimneys, cooling towers, elevators, steeples, water towers, fire towers, spires, belfries, cupolas or other appurtenances usually located above the roof level and not intended for human occupancy, provided such structures do not exceed the height limits by greater than twenty (20) percent and maximum of five (5) percent of the total roof area.

These limitations do not apply to telecommunications, radio or television towers, cellular phone towers which may be erected in accordance with applicable sections of this code. No sign, nameplate, display, or advertising device of any kind whatsoever shall be inscribed upon or attached to any chimney, tower, tank, or other structure which extends above the height limitations.

The city commission may grant a waiver to these limitations where the applicant can demonstrate to the satisfaction of the city commission that the proposed structure will not unreasonably restrict the free flow of light, sunlight, and air to neighboring properties nor otherwise be detrimental to the public health, safety and welfare. (Ord. No. 16-07, exh. A(22-111), 9-14-2016)

Sec. 22-112. Developer agreement and restrictive covenants.

In conjunction with an application for a development order or building permit (excluding one (1) single-family or one (1) duplex), the applicant shall submit a properly executed application for administrative review in a form set forth by the city, pay the required review fees and include a signed copy of the following statement:

An acceptable developer agreement pursuant to F.S. §§ 163.3220—163.3243 shall be signed by the applicant and adopted by the city commission prior to receiving a building permit. The agreement shall include provisions in addition to the requirements of state statutes to guarantee, but not be limited to, the following items:

1. All impacted public facilities shall be adequate to serve the site at an acceptable level of service (LOS) prior to receiving a certificate of occupancy.
2. All public improvements required by a government agency or voluntarily proposed by the applicant to be installed by the applicant (i.e., water and sewer, sidewalks, roads, turn lanes, etc.) shall either be constructed in accordance with applicable governmental regulations prior to a certificate of occupancy or the city shall receive an acceptable guarantee such as a cash bond or letter of credit.

3. The applicant agrees to abide by and not deviate from the terms of its graphic and verbal presentation submitted to the city commission in order to receive a development order. Such items include, but are not specifically limited to:
 - A. Design of all physical structures, water bodies, private and public improvements.
 - B. The color and dimensional characteristics of all building materials.
4. The applicant guarantees to preserve and maintain all buildings and structures consistent with the original development order for the entire period in which the applicant owns the land or controls fifty-one (51) percent ownership of the property.
5. The applicant shall submit annual reports and additional documentation as required by the city commission in its development order to verify "on-going" compliance with its development order. After approvals of any development, the city shall conduct inspections minimally twice a year to verify ongoing compliance.
6. Subsequent to receiving a development order the design of all structures, materials and colors included in the applicant's documentation shall not be physically altered or substituted. The burden shall be on the applicant to prove that the material or color is no longer available.
7. A schedule of construction phasing, if applicable.
8. Any service impact mitigation measures to which the applicant has committed.
9. A requirement that the applicant, his successors or assigns, shall comply with the requirements of the final development order.
10. An agreement to provide necessary public improvement bonds, legal agreements, etc.
11. An agreement to allow the city to enter the property and inspect said property for compliance with the other pertinent provisions of the developer agreement.
12. Compliance with Resolution No. 5058, the Fair Share Agreement Resolution.

The developer agreement which the applicant has submitted as a condition of receiving final development order shall be recorded by the city in the public records of the county at the expense of the applicant and by declaration of restrictions executed by all parties having an interest in, or lien on the land, and running with the land prior to receiving the first building permit.

In the event that a development meets the site plan minor modification criteria contained in section 22-56, the city may choose to enter into a restrictive covenant with the developer in lieu of a developer agreement. The director shall determine administratively whether a restrictive covenant is required when certain uses are proposed within an existing structure.

(Ord. No. 16-07, exh. A(22-112), 9-14-2016)

Sec. 22-113. Exterior lighting standards/light pollution reduction.

Exterior lighting intensities shall be controlled to ensure that light spillage and glare are not directed onto adjacent properties or streets and all direct illumination is kept within property boundaries. Exterior lighting shall be controlled to not adversely affect adjacent properties, neighboring areas, and motorists.

- (A) *Fixtures.* Exterior lighting shall be architecturally integrated with the character of the building. Full cut-off type lighting fixtures shall be used to illuminate all site areas, including pedestrian, parking, and circulation.

Type and shielding standards. Exterior lighting shall be fully-shielded to prevent glare. Any bright light shining onto adjacent property or streets which results in nuisance glare or disabling glare shall not be permitted. Light trespass beyond property boundaries or above the horizontal plane beyond the levels

noted above shall be considered noncompliant. The shield or hood must mask the direct horizontal surface of the light source. The light must be aimed to ensure the illumination is only pointing downward onto the ground surface, without any upward escaping light permitted to contribute to sky glow.

Height. Exterior lighting not attached to structures shall be designed, located and mounted at heights no greater than twenty-five (25) feet above grade.

Illumination levels, nonresidential. Maximum illumination at the property line shall not exceed three-tenths (0.3) footcandle and one one-hundredth (0.01) footcandle ten (10) feet beyond the property line. The intensity of illumination for exterior lighting across the site shall not exceed six (6) footcandles measured at grade. Fixtures shall be placed to provide uniform distribution of light and to avoid excessive glare. Lighting fixtures in scale with pedestrian activities shall provide for uniform distribution of lighting to produce minimal shadows.

Flood or spot lamps. Flood or spot lamps shall be aimed no higher than forty-five (45) degrees from nadir when the source is visible from any off-site residential property or public roadway. Depending upon the fixture selected, these flood or spot lamps shall be required to include a glare shield to prevent glare. Any lamp installed on a residential property must be fully shielded such that the lamp itself is not directly visible from any other residential property.

Security lighting. Exterior lighting for nonresidential areas shall be reduced to a maximum of one (1) footcandle from dusk until dawn. This level may be reduced to one-half (0.5) footcandle on non-business days.

Landscape and accent lighting. Uplighting may be utilized for landscape lighting so long as direct light emissions shall not be visible above the roofline or beyond the building edge. Accent lighting shall be directed downward onto the building or object and not toward the sky or onto adjacent properties.

Parking lots, pedestrian areas, and street lights. Due to their high energy efficiency, long life and spectral characteristics, pulse-start metal halide or LED lamp sources shall be the illumination sources for outdoor lighting throughout the city.

Exemptions. Outdoor lighting fixtures on, in or in connection with the following facilities and land use types are exempt from the standards of this section, but voluntary compliance with the intent and provisions is encouraged.

1. Land owned or operated by the government of the United States of America, the state, the county or the city.
2. Lights used by police, firefighting, or medical personnel.
3. Residential and commercial seasonal decorations using typical unshielded low-wattage incandescent lamps shall be permitted from Thanksgiving through January 15.
4. Flag poles.
5. Underwater lighting used for the illumination of swimming pools, fountains and other water features.
6. Lighting of radio, communication and navigation towers; provided that the owner or occupant demonstrates that the Federal Aviation Administration (FAA) regulations can only be met through the use of lighting that does not comply with this chapter 22.
7. Publicly owned sports field lighting.

(Ord. No. 16-07, exh. A(22-113), 9-14-2016)

Sec. 22-114. Boat and watercraft storage and registration for zoned single-family residential.

1. *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

- (1) The term "boat" means a "vessel" as defined by F.S. § 327.02(47), as amended, including a boat trailer thereof, excluding a vessel less than 12 feet in length and less than two feet in height.
- (2) The term "screened" means significantly hidden from view from grade level by a structure or other means including but not limited to buildings, fences, walls, hedges, and other landscaping material, or any combination thereof.
- (3) *Single-family residential district.* Any zoning use district bearing the prefix R-1.
- (4) *Trailer.* A vehicular structure mounted on wheels designed to be pulled by another vehicle.
- (5) *Utility trailer.* A trailer designed to transport materials, goods or equipment. This includes boat trailers.
- (6) *Personal water craft.* Any motorized water craft for use by one or more persons such as a jet ski.
- (7) *Watercraft.* Any motorized watercraft for use by one or more persons such as a jet ski.
- (8) *Yacht.* Any vessel which is propelled by sail or machinery in the water which exceeds 32 feet in length, and which weighs less than 300 gross tons. Yachts shall not be permitted in single family residential zoning districts.

2. *Boats and watercraft storage.* Boats and boat trailers when stored, parked or kept must be less than twenty-five (25.0) feet in length and eight (8.0) feet in width and may be stored or parked in the R-1 zoning district only, subject to the following conditions:

1. Only one (1) boat on boat trailer may be parked, stored or kept, is permitted on a single family residential parcel, providing the owner of the residential property, his spouse, or a member of his household, actually has legal title to same or a valid lease on the same.
2. The place of storage shall be to the rear of the front building line and does not encroach upon any portion of the front yard commencing at the front building line. Where the boat storage area is located between the residence and a side street property line, the boat shall be visually buffered by a six-foot wood privacy fence, masonry wall, trees or shrubs maintained to a height of six feet.
3. Boats and place of storage or temporary parking shall be kept in a clean, neat and presentable condition.
4. At no time shall any repairs be made to said boat and/or boat trailer except for so-called minor and noiseless repairs and no overhaul work shall be made or performed on the premises.
5. The boats and/or boat trailer shall not be used at any time for living or sleeping quarters while so parked, stored or kept.
6. For the purposes of loading and unloading equipment and supplies shall be permitted, but under no circumstances shall a boat be parked in the public right-of-way, including the swale area of a right-of-way.
7. For purposes of this section, the height of a boat shall be measured from the ground to the highest point of the boat including all extruding equipment.
8. For purposes of the section the following shall be exempt from the term "boat":
 - (a) Non-motor-powered vessels;
 - (b) Non-motor-powered vessels used exclusively on private lakes and ponds;
 - (c) Vessels owned by the United States Government; and
 - (d) Vessels used exclusively as a ship's lifeboat;

9. Upon the application of a resident, any requirement in this subsection may be waived by a majority vote of the city commission. The application shall include a survey or site plan showing the dimensions of the property and proposed location of the boat, the type and location of the visual buffering from the front and rear of the property as well as the neighboring property, and evidence of title and registration or in the event the boat has not been acquired a description of the boat to be stored, including dimensions.
10. The city commission may grant such a waiver upon a showing by the applicant that the waiver maintains the basic intent and purpose of the zoning and other land use regulations, which is to protect the general welfare of the public, particularly as it affects the stability and appearance of the community. In the event that a waiver is granted, such waiver shall not run with the land and shall not be transferrable to any other boat.

3. *Registration of boats and personal watercraft.*

- (a) *Application.* This section shall apply to all property owners or occupants who owned a boat or personal watercraft or lease to same, as of the passage of the ordinance from which this section is derived and henceforth. Application shall meet the conditions of this section.
- (b) *Boat registration period.* A boat or personal watercraft shall be registered no later than January 1, 2023 (the "boat registration period").
- (c) *Conditions for approval of boat registration/application process.*
 - (1) An applicant's storage of a boat or personal watercraft shall meet all of the following conditions in order to be approved for a boat registration:
 - a. One boat or personal watercraft per property; repair, except as provided herein, on the boat is not permitted;
 - b. Living or sleeping on the boat is prohibited;
 - c. Boat maximum of twenty-five (25) feet in length; watercraft maximum of twelve (12) feet in length;
 - d. Boat maximum of ninety-six (96) inches in width; watercraft maximum forty-eight and four tenths (48.4") inches in width;
 - e. Boat maximum thirteen (13) feet six (6) inches in height; watercraft maximum forty-eight and four tenths (48.4") inches of height;
 - f. Covered and completely screened from public view;
 - g. Stored or parked rear of the front building line and behind the side street setback, and setback a minimum of two feet from the interior side property line and five feet from the rear property line;
 - h. The specific location shall be in compliance with the fire and life safety and building code provisions;
 - i. Maintain boat storage area in a clean presentable manner; and
 - j. Located in the R-1, R-2 zoning districts.
 - (2) Immediately following the passage of the ordinance from which this section is derived, the city shall use best efforts to engage in a public information campaign to educate residents on the requirements of this section. The public information campaign shall take place until December 31, 2022.
 - (3) The boat registration period shall begin immediately following the passage of the ordinance from which this section is derived and shall continue until January 1, 2023. Any person owning a boat or personal watercraft or occupying real property within the city as of the passage of the ordinance from which this section is derived, may apply to the building and licensing department for a boat registration approval on a form provided by the city. The applicant shall submit an affidavit, in a form approved by the building and licensing department, attesting to the permanent storage of the boat on

the subject property on or before January 1, 2023. In the event that the boat or personal watercraft owner and real property occupant is not also the real property owner, the owner shall be required to join in the application. The applicant shall provide proof of ownership and occupancy of the real property and of the boat or watercraft (or a predecessor boat or watercraft) on, or prior to, January 1, 2023. Upon a determination by the building and licensing department that the ownership requirements, the criteria determined by the building and licensing department and all other applicable provisions of the city code are met, the building and licensing department shall issue and log the registration for the specific boat or personal watercraft.

- (4) Any prior registration or variance denial shall not prohibit the owner of a boat or personal watercraft from applying.
 - (5) Once the property is sold the boat registration shall be deemed expired and no further boats or personal watercraft may be kept on the property unless the boat or personal watercraft complies with the city code.
 - (6) Once registered, all conditions and requirements of the city code apply, including all provisions of this section.
 - (7) The applicant shall comply with the City's Land Development Code. If a code compliance warning for violation for failure to meet these requirements, including those of this section is issued, the failure of the applicant to comply with the warning within the timeframe set forth in the warning notice shall render any registration issued under this section null and void.
 - (8) A registered boat or personal watercraft may be replaced with a boat or personal watercraft of equal or smaller length provided that the new boat or personal watercraft is registered with the city within 180 days of the date of purchase of the replacement boat or personal watercraft.
 - (d) *Fee.* There shall be an annual administrative registration fee of one hundred dollars (\$100.00) to cover research, site inspection, and registration, which shall be payable at the time of application for a boat or personal watercraft registration or replacement boat or watercraft registration.
 - (e) *Enforcement of the Code.* Notwithstanding the provisions of this section, the city may at all times continue enforcement of the city code through any authorized code compliance methods specified in the land development regulations or any provision of the city Code or other authorized means, including, but not limited to, issuance of and prosecution of a notice of violation or the issuance of a citation. This section shall not be construed or interpreted to serve as a defense against any enforcement action brought by the city based on noncompliance with the current requirements of the city Code.
- (Ord. No. 16-07, exh. A(22-114), 9-14-2016; Ord. No. 2022-12, § 2(22-114), 6-22-2022)

Sec. 22-115. Parking of trucks.

Within any residential district, no commercial trucks, earthmoving equipment, construction trucks, landscaping trailer, trailers, wagons, or recreation vehicles shall be parked (including overnight) within the front yard, or on any public right-of-way. Within any nonresidential district, commercial trucks, trailers, wagons, or recreation vehicles shall be parked (including overnight) out of sight to the extent possible from roads, so as not to act like a sign.

(Ord. No. 16-07, exh. A(22-115), 9-14-2016)

Sec. 22-116. Recreational vehicles.

(a) Definitions.

- (1) "Travel trailer," which is a vehicular portable unit, mounted on wheels, of such a size or weight as not to require special highway movement permits when drawn by a motorized vehicle. It is primarily designed and

constructed to provide temporary living quarters for recreational, camping, or travel use. It has a body width of no more than eight and one-half (8½) feet and an overall body length of no more than forty (40) feet when factory-equipped for the road.

- (2) "Camping trailer," which is a vehicular portable unit mounted on wheels and constructed with collapsible partial sidewalls which fold for towing by another vehicle and unfold at the campsite to provide temporary living quarters for recreational, camping, or travel use.
- (3) "Truck camper," which is a truck equipped with a portable unit designed to be loaded onto, or affixed to, the bed or chassis of the truck and constructed to provide temporary living quarters for recreational, camping, or travel use.
- (4) "Motor home," which is a vehicular unit which does not exceed the length, height, and width limitations provided in F.S. § 316.515, is a self-propelled motor vehicle, and is primarily designed to provide temporary living quarters for recreational, camping, or travel use.
- (5) "Van conversion," which is a vehicular unit which does not exceed the length and width limitations provided in F.S. § 316.515, is built on a self-propelled motor vehicle chassis, and is designed for recreation, camping, and travel use.
- (6) "Fifth-wheel trailer," which is a vehicular unit mounted on wheels, designed to provide temporary living quarters for recreational, camping, or travel use, of such size or weight as not to require a special highway movement permit, of gross trailer area not to exceed four hundred (400) square feet in the setup mode, and designed to be towed by a motorized vehicle that contains a towing mechanism that is mounted above or forward of the tow vehicle's rear axle.
- (7) The term "screened" means significantly hidden from view from grade level by a structure or other means including but not limited to buildings, fences, walls, hedges, and other landscaping material, or any combination thereof.
- (8) Residential zoned property includes any of the following:
 - Single-Family Residential district: Any zoning use district bearing the prefix R-1.
 - Two-Family Residential district: Any zoning use district bearing the prefix R-2.
 - Residential Townhouse district: Any zoning use district bearing the prefix R-TH
 - Moderate Density Residential district: Any zoning use district bearing the prefix R-3.
 - High Density Residential district: Any zoning use district bearing the prefix R-4.
 - Any residential mixed use bearing the prefix HDOD; CMU; MNMU.

(b) *Recreational vehicle storage.*

- (1) Recreational vehicle parking and storage is prohibited on property zoned residential. Use of recreational vehicles as dwelling units is prohibited. To park or store a recreational vehicle on property zoned residential will be a violation the Land Development Regulations, Ordinance No. 15-31, section 22-116, as amended.
- (2) Immediately following the passage of the ordinance from which this section is derived, the city shall use best efforts to engage in a public information campaign to educate residents on the requirements of this section. The public information campaign shall take place up until one hundred eighty (180) days after passage of the ordinance from which this section is derived to address removal of recreational vehicles from properties zoned residential.

Any person owning a recreational vehicle that is occupying real property zoned residential within the city as of the passage of the ordinance from which this section is derived, will have up to one hundred eighty-one (181) days to remove the recreational vehicle from the city. After the one-hundred-eighty-day public information campaign all violations will be subject to code enforcement action including the assessment of

a civil penalty. After receiving a civil penalty, the property owner will have thirty (30) days to cure the violation, i.e., removal of the recreational vehicle from his property or be subject to additional citation and remedies permitted by City Code.

- (3) *Enforcement of the Code.* Notwithstanding the provisions of this section, the city may at all times continue enforcement of the City Code through any authorized code compliance methods specified in the Land Development Regulations or any provision of the City's Code of Ordinances or other authorized means, including but not limited to, issuance of and prosecution of a notice of violation or the issuance of a citation. This section shall not be construed or interpreted to serve as a defense against any enforcement action brought by the city based on noncompliance with the current requirements of the City Code.
(Ord. No. 16-07, exh. A(22-116), 9-14-2016; Ord. No. 2024-11, § 2, 4-10-2024; Ord. No. 2024-20, § 2, 10-23-2024)

Sec. 22-117. Sales within public right-of-way.

The sale of merchandise or goods within the right-of-way is prohibited except for fruits and/or plants grown on private residential property when the right-of-way is contiguous with the owner's property, or except as provided in chapter 13, article VIII.

(Ord. No. 16-07, exh. A(22-117), 9-14-2016)

Sec. 22-118. Property maintenance.

The property maintenance requirements shall become effective upon adoption of these land development regulations; however, no new enforcement proceedings shall commence under this section until one hundred twenty (120) days after adoption. However, notices regarding any violations can be posted for informational purposes during this period. This one hundred twenty (120) day period is to allow property owners time to make necessary improvements required under this section.

- (A) A structure shall have no more than twenty-five (25) percent of its exterior roofs, walls and other elements of the structure covered with disfigured, discolored, cracked, or peeling surface materials for a period of more than thirty (30) consecutive days.
- (B) A structure shall not have broken windows, holes in exterior surfaces including screens, roofs and walls, ripped awnings, loose materials, loose elements or other obvious exterior defects for a period of more than thirty (30) consecutive days. Exterior materials shall form a weathertight surface with no holes, excessive cracks or decayed surfaces that permit air to penetrate rooms where such rooms are designed, used, permitted or intended for human occupancy or use.
- (C) An accessory structure, such as a shed, shall not have weeds, trees, vines, or other vegetation growing upon it greater than twelve (12) inches in height in an untended manner for a period of more than thirty (30) consecutive days.
- (D) All site lighting, parking areas, fences, railings, driveways, curbs, wheel stops, sidewalks, gutters, stormwater management areas and systems and other improvements and appurtenances shall be maintained in working order and reasonably free of defects.
- (E) The owner or tenant shall maintain all required landscape areas, trees and shrubs in a neat and healthy condition free of diseased, dead, or bare areas and free of debris and weeds.
- (F) The owner or tenant shall maintain all landscaped areas in a manner consistent with the requirements of this code. Dead landscape shall be replaced as necessary to maintain compliance with the regulations contained herein.
- (G) The property owner shall maintain the property and the exterior portions of any structures thereupon free of accumulations of debris, junk, garbage, or trash.

(H) Hurricane shutters may remain up only during periods of weather emergencies issued by the National Weather Service for the area. During these weather emergency events shutters may be erected but shall not remain up for more than two (2) weeks after the proclaimed event has passed.

(I) Exterior color standards for all commercial, industrial, multifamily, duplex and single-family buildings, existing and current.

All commercial, industrial, multifamily, duplex and single-family buildings shall have a unified exterior color chosen from the city's color scheme chart. This general requirement and other requirements outlined in this ordinance shall apply to all buildings-and-structures, commercial, industrial, multifamily, duplex and single-family buildings within the corporate limits of the city (all commercial and industrial buildings, residential town homes, single-family residences and medium, moderate and high density multifamily residential districts such as apartment buildings).

A. When the areas involved forms an integral part of any established section of the city, the exterior color shall enhance rather than detract from the character of the surrounding commercial/industrial buildings or multifamily, duplex and single-family residences.

The color scheme is established, and all existing and current businesses and multifamily, duplex and single-family residences shall conform to the established color scheme chart, a copy of which is attached as exhibit A to the ordinance from which this chapter is derived.

(Ord. No. 16-06, § 2, 7-13-2016; Ord. No. 16-07, exh. A(22-118), 9-14-2016)

Sec. 22-119. Temporary use.

A. Temporary uses and occupancies.

(1) Intent.

A temporary permit system is hereby established to ensure special examination, review, and findings by appropriate agents, agencies, or bodies of the city related to proposed temporary uses and occupancies within the city.

A temporary permit system is hereby established, to be administered by the city manager or designee, in order to provide special examination and review of temporary uses and occupancies by the appropriate departments of the city or related agencies.

Enforcement of this code shall be by city police enforcement, code enforcement or any other remedies as provided by law.

(2) Temporary occupancies in general.

(a) Temporary occupancies are those uses and occupancies within the city of limited duration that occur on private property, public property, or in a combination of public and private properties, that would require special review by the city. Temporary occupancies are those that are not expected to remain on a property for more than two (2) years. Such uses are associated with land development or ongoing construction. They include, but are not limited to, temporary office use in connection with land development or construction activity (i.e., construction offices or watchman quarters); temporary parking for construction crews in connection to land development, storage facilities for construction equipment and materials; sales or leasing offices for newly constructed projects; construction trailers, fences, temporary encroachments, etc.

(i) A temporary permit would not be required for a use or occupancy required by the city.

(ii) Where a temporary permit use is associated with land development or construction activity, such temporary permits authorizing construction related activities may only be authorized in

conjunction with an active building permit for the approved project. No temporary permits shall be issued for construction activity that is not associated with a building permit for an approved development project.

- (b) The limitation of two (2) year duration may be waived by an affirmative vote of the city commission, to permit more time for an individual use.

- (3) *Permit application process, possible determinations and referrals.* Applications for temporary occupancies shall be submitted and reviewed pursuant to the criteria and guidelines established in this section.
 - (4) *Informal notice and hearing.* No formal public notice and hearing are required in connection with temporary permits. However, the following is required:
 - (1) *Notice required by applicant to adjacent property owners.* At the time of initial application, the applicant shall notify all abutting property owners, including those abutting across the street or alley, in an approved city form, by certified mail, and shall submit the application with certified receipts. In the case of adjacent condominiums, only one (1) notice to the condominium association will be sent.
 - (2) *Courtesy notice to registered neighborhood and/or homeowner associations.* All neighborhood and/or homeowner associations that wish to receive a courtesy notice of temporary permit applications in their areas, shall register with department of planning and zoning on a yearly basis. Such registration shall consist of a letter to the department of planning and zoning, in which the association shall request such notification and shall specify the name, address, telephone number and electronic mail (e-mail) address of the official representative of the association, designated to receive said notice and a list of all the officers of said association.
 - (3) *Notification required.* At the time of initial application, the applicant shall obtain the list of all registered neighborhood and/or homeowner associations from the department of planning and zoning and shall notify the official representatives of all such registered associations in writing, by certified mail, of the application. The applicant shall submit with the application with said certified receipts.
 - (5) *Withdrawal of application; effect of withdrawal.* An application for a temporary permit may be withdrawn by the applicant at any time prior to a decision without restrictions as to a resubmittal. But if withdrawn after the final decision has been issued, substantially the same application shall not be considered within twelve (12) months of the date of withdrawal. An applicant who withdraws an application shall not be entitled to any refund of the application fee.
 - (6) *Appeals.* Any persons, jointly or severally, aggrieved by the decision of the city manager or designee in granting, granting with conditions or safeguards, or denying a temporary permit, or any department or representative of the city, may seek review of decisions made by the planning and zoning board by filing such request with the director of the department of planning and zoning/city manager's office for an appeal review hearing within fifteen (15) calendar days of the decision.
 - (7) *Reserved.*
- B. *Temporary structures in conjunction with permanent outdoor recreational uses or recreational facilities.*
- (1) *Temporary structures.*
 - (a) *Intent.* It is the intent of the city commission that the use of temporary structures be permissible on vacant land for the purposes of housing accessory office and restroom uses in conjunction with recreational uses on such land.

Recreational uses include uses for playgrounds, sports fields, passive park uses, recreation centers, and any other recreational purposes. Recreational facilities are facilities that support recreational uses or sporting and community uses.
 - (b) *Permitted uses.* Temporary mobile structures shall only be allowed for use as accessory office and restroom facilities in conjunction with outdoor recreational uses on vacant lands or vacant portions of land that allow such uses pursuant to the zoning ordinance of the city. In no event shall the temporary mobile structures, alone or combination with other temporary structures on the subject property, exceed twenty-five (25) percent of the net lot area of the subject property.

- (c) Procedures. The procedures established in this legislation for temporary permits will be followed in order to obtain permits for uses under this section.
 - (d) Irrespective of the limitations set forth in the zoning ordinance of the city, approvals for certificates of use shall be granted by the zoning administrator upon approval by the building official that such temporary structures have met all necessary criteria and have paid all fees for the use being requested. These fees include, but are not limited to, payment of all applicable impact fees and solid waste fees in addition to all other applicable fees.
 - (e) The building official shall review all applications for temporary structures prior to their placement on any site. Such structures shall be certified as temporary mobile homes or manufactured homes structures by either the state department of motor vehicles (DMV) or the state department of economic opportunity.
 - (f) Renewals. The use of temporary structures shall require annual renewals by the department of buildings and licensing and department of planning and zoning and shall only be in effect for six (6) months at a time or until such time that the city commission repeals or sunsets these provisions. Failure to renew semi-annually will result in code enforcement action.
 - (g) Enforcement. Enforcement of this code shall be by the city Code of Ordinances, chapter 2, division 10, subdivision 2, code enforcement, or any other remedies as provided by law.
- (2) *Temporary uses on vacant land.*
- (a) As provided for in this legislation, temporary uses and occupancies are those uses and occupancies within the city of limited duration that occur on private property, public property, or in a combination of public and private properties, that would require special review by the city zoning administrator. Temporary uses and occupancies are those that are not expected to remain on a property for more than two (2) consecutive years. For purposes of this section, temporary uses and occupancies on vacant land shall be limited to those uses and occupancies which contemplate temporary type structures, such as tents, kiosks, mobile or manufactured offices, temporary exhibition areas, and other similar structures and provide such things as food, arts, entertainment, cultural, civic, scientific, horticultural, urban farms, (farmers' markets), and vocational or educational uses. Any intensive commercial or industrial use or occupancy is strictly prohibited, unless expressly allowed by these land development regulations. Notwithstanding the provisions of this legislation, uses and occupancies pursuant to this section shall have a limited duration of six (6) months and can be extended administratively by the zoning administrator/director of the department of planning and zoning in six (6) month increments for a maximum of two (2) years.
 - (b) A temporary permit must be obtained from the office of the department of planning and zoning with city manager approval for any property owner who wishes to have a temporary use on vacant land. Permit fees provided in this legislation shall apply to all such permits and any extensions that may be granted.
 Temporary use permits will be assessed as five hundred dollars (\$500.00), as provided in this legislation.
 Temporary use permit six (6) month extensions will be assessed two hundred fifty dollars (\$250.00).
 - (c) All uses shall be as set forth in the applicable transect zone as described in these land development regulations, as amended, and must comply with all local, state and federal laws. A temporary permit that is issued allowing a temporary use shall replace the necessity of a warrant or exception that may be required for a permanent use pursuant to these land development regulations.
 - (d) Any use that is allowed must provide sufficient parking on-site. Off-site parking shall be permitted if in addition to on-site parking. If a temporary use abuts any residential zone, the applicant shall demonstrate, as part of the temporary permit application, where additional parking will be provided. Parking in a residential district is strictly prohibited.

- (e) A landscape plan to be approved by the department of planning and zoning shall be provided as part of the submittal for a temporary permit. The landscape plan shall substantially comply with the requirements of these land development regulations and shall include street tree plantings.
 - (f) Property owner permission. Any uses or occupancies pursuant to this section, shall require the applicant to obtain owner's permission, via notarized affidavit, in a form acceptable to the director of the department of planning and zoning.
 - (g) The owner of any vacant land who wishes to avail himself or herself of this section must be/have no current violations of city Code.
 - (h) Review of applications shall be conducted in accordance with this article.
 - (i) All violations shall be subject to enforcement via city police enforcement, code enforcement and any other remedies as are provided by law, jointly and severally, including, but not limited to, the revocation of the permit, certificate of use, or business tax receipt.
- (3) *Considerations and standards.*

In order to mitigate any potentially adverse effects that unimproved interim parking lots may have on adjacent areas, all such facilities intended to be utilized as described, shall be required to maintain a park-like appearance to consist of fully sodded lots over an approved stabilized, below grade, pervious system or any other type of system which provides a honeycomb type stabilized base underneath the lot and therefore allows for parking on the sod while not impeding drainage.

In lieu of providing a park-like appearance as described above, a parking facility may be paved or consist of any combination of paving, gravel and grass upon approval by the city of a sufficient alternate drainage system. This requirement may also be met through the installation of porous asphalt, porous concrete, a plastic grid system or block pavers, only as approved by the zoning administrator/PCD director and building director. Except for temporary special event parking (as defined above) associated with a temporary permit, all other interim parking shall comply with applicable ADA requirements as set forth in the Florida Building Code, as amended from time to time.

Interim parking may also be used for the temporary staging of miscellaneous equipment and/or vehicles necessary for any of the functions associated with an approved special event or an activity taking place in a major public facility subject to all applicable regulations and permits listed above.

All interim parking and staging activities permissible under this section shall be limited in duration to a time specified in the permit obtained. The duration shall run concurrently with the event or activity requiring said parking or staging and may be expanded on a limited basis to allow for preparation, disassembly and activities related to that specific event or activity.

In addition to the considerations and standards listed generally in this code, temporary permits for interim parking facilities granted in conjunction with a temporary use shall also consider the following:

- (1) Use of traffic monitors to facilitate vehicular flow into and out of such facilities during major events.
- (2) Use of specialized lighting features to ensure safety when such facilities are proposed for evening use.
- (3) Use of perimeter fencing to assist in the control of access points and security of proposed lots while not in use.
- (4) Surface interim parking lots, which are located within the designated CRA areas will be required to comply with the conditions and criteria set forth in this article and the city zoning regulation as applicable as conditions to the permits required herein or as conditions of time extensions granted by the city manager.
- (5) All such interim parking lots may also be required to comply with any design standards and guidelines that may be in place for the specified area in which the parking lot is located (i.e., uniform signage, fencing and attendant kiosk standards).

- (4) *Enforcement.* Enforcement of this code shall be by city police enforcement, code enforcement or any other remedies as provided by law.

C. *Farmers' market program.*

(1) *Generally.*

- (a) *Intent.* In order to encourage economic and community development, promote the health of residents and provide access to nutritious substance, the following program is instituted.
- (b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Electronic benefits transfer (EBT) means an electronic system that allows a recipient to authorize transfer of their government benefits from a federal account to a retailer account to pay for products received, such as SNAP benefits.

Farmer means a person who grows or has direction over a person who grows at least seventy-five (75) percent of the products offered for sale at a farmers' market.

Farmers' market means an organized reoccurring operation at a designated location used by farmers of locally grown products primarily for the distribution and sale of locally-grown agricultural products or a limited amount of non-agricultural locally-grown products. The sale of other food products at such markets shall not disqualify it as a farmers' market, provided that such food products meet all applicable federal, state, and local health laws regulating the manufacture and sale of such food products. A farmers' market is not an event. The use of EBT/SNAP benefits at a farmers' market is encouraged.

Locally grown means a product that is grown, raised, or cultivated within one hundred (100) miles of South Florida.

Supplemental Nutrition Assistance Program (SNAP) means a federal-assistance program, formerly known as the Federal Food Stamp Program, which provides a means for low income individuals and families to buy nutritious food.

Temporary farmers' market permit means a permit as detailed by this section and in conjunction with this section and is valid for a period of six (6) months.

- (c) *Permitting process.* Notwithstanding any contradictory language in the zoning ordinance, property owners who wish to host a farmers' market must submit an application for a temporary farmers' market permit to be approved by the city manager or designee at least thirty (30) days prior to the date of the farmers' market pursuant to this article. An applicant must submit a site plan detailing the location of all tables, booths, stands, on-site parking, landscaping, and restroom facilities. Spillover parking into any residential areas is strictly prohibited. Any temporary farmers' market permit may be extended for an additional six (6) month period for an additional fee as detailed in this article. No temporary farmers' market permit shall be issued to a property that has any outstanding code enforcement violations or city liens. An applicant who obtains a temporary farmers' market permit shall not be required to obtain a certificate of use or business tax receipt in order to operate pursuant to this section.
- (d) *Location.* Farmers' markets shall only be authorized to operate on parcels of land with a minimum of five thousand (5,000) square feet.
- (e) *Operation.* Farmers' markets shall only be authorized to operate between sunrise and sunset and shall not operate for more than three (3) consecutive days in a week. Farmers' markets shall have to comply with all federal, state, and local regulations and requirements.
- (f) *Fees.* Each temporary farmers' market permit for a farmers' market shall cost five hundred dollars (\$500.00). If the farmers' market is hosted by a not-for-profit organization or an organization that

accepts EBT/SNAP benefits, the fee shall be two hundred fifty dollars (\$250.00) per six (6) month permit. The city shall request proof of status as a not-for-profit organization or acceptance of EBT/SNAP benefits. Any six (6) month extension or renewal of a temporary farmers' market permit for a not-for-profit organization shall cost the same as the original fee.

- (g) *Enforcement.* All violations shall be subject to code enforcement pursuant to this city Code, chapter 2, article XI division 10, code enforcement board, and any other remedies as are provided by law, jointly and severally, including, but not limited to, the revocation of the permit.

D. *Trailers.* The following uses require a temporary use permit issued per the requirements of article III of this code and the standards established below. At no time is a trailer to be considered a permanent structure for the operation of a business, except in I-4.

(A) *Uses authorized.*

1. Construction office trailers, construction equipment and/or materials storage, processing and fabrication for a development project with site plan approval.
2. Temporary sales offices and model homes established for the express purpose of marketing a real estate development project with the site plan approval. The offices and model homes shall be located on and limited to the property which is being marketed for sales. Attended modular trailers for the purpose of collecting, storing or distributing goods on private property. Unattended facilities are prohibited in any zoning district.
3. Modular trailers or portables for the purpose of temporary facilities for private educational purposes for student classrooms and administrative space, for a development project with final site plan approval. The temporary facilities shall be located on and limited to the property which is the subject of the final site plan approval. The maximum time limit for use of the temporary facilities shall be eighteen (18) months from the date of final site plan approval. A removal bond in the amount of five thousand dollars (\$5,000.00) for each structure, in a form approved by the city attorney, shall be required from the applicant prior to issuance of a permit for the temporary facilities.
4. Temporary storage units which are a transportable unit designed and used primarily for temporary storage of building materials, household goods, and other such materials for use on a limited basis on a property. Such units shall not be considered an accessory structure.
5. Freight cargo containers which are reusable enclosed or semi-enclosed vessel, cargo container or truck trailer shall not be considered an accessory structure.
6. The following requirements shall apply to the placement of temporary storage units and freight cargo containers in residential zones:
 - (a) A temporary storage unit or freight cargo container shall be located on a residential lot for a maximum of fourteen (14) consecutive days, including the days of delivery and removal. An extension may be granted to the user by the city manager, or designee, subject to conditions, for a reasonable additional time period in an amount not to exceed twenty-eight (28) days. In no case shall the storage unit or container be located on a residential property for more than four (4) months in a calendar year.
 - (b) The user as well as the supplier, shall be independently responsible for ensuring that the temporary storage unit or freight cargo container is maintained in good condition, free from deterioration, weathering, discoloration, graffiti, rust, ripping, tearing, holes or breaks at all times.
 - (c) No storage of solid waste, construction debris, demolition debris or any illegal or hazardous material is permitted at any time. Upon reasonable notice to the user, the city may inspect the contents of any temporary storage unit or freight cargo container at any reasonable time to ensure that it is not being used to store materials that are not permitted.

- (d) No temporary storage unit or freight cargo container may be used to house humans or animals of any kind.
 - (e) The date that the temporary storage unit or freight cargo container was dropped off must be clearly posted, in a weather resistant manner, on the temporary storage unit or freight cargo container.
 - (f) The city director of the department of planning and zoning may waive these guidelines that pertain to the duration that the temporary storage unit or freight cargo container may be kept on a property if the director determines that the entity seeking the waiver by necessity needs an extension due to an acute, non-self-imposed hardship.
7. Construction or demolition fencing whenever a site plan or a demolition is required as provided in this ordinance or other applicable city, county laws or requirements by the Florida Building Code. It shall be required by this ordinance for the applicant to obtain a temporary construction or demolition fence. No person or entity shall install or construct a temporary construction fence in this city without first obtaining a permit from the city's department of buildings and licensing. Each fence constructed or maintained shall be constructed and anchored in accordance with the Florida Building Code.

E. Permitted fences.

- (1) Except when located in the R-1 zoning district, the following temporary construction fences are permitted in all the zoning districts:
 - (a) Wrought iron or blackened aluminum.
 - (b) Stucco and stone match main structure.
 - (c) Masonry walls.
 - (d) Wood pickets.
 - (e) Concrete wall.
 - (f) Frame plywood panel.
 - (g) Chain-link fences with canvas (or similar material) are permitted if the property owner or agent has obtained a demolition permit from the department of buildings and licensing. The chain-link fence shall be permitted to be utilized as a demolition fence for a period of no longer than two (2) months or until expiration of the demolition permit, whichever occurs first. However, such demolition fence shall not be removed until the installation of a permitted construction fence, as defined in this ordinance. The permitted construction fence shall be installed immediately upon removal of the temporary demolition fence. At no time shall the parcel remain without a protective barrier. Any person or entity found to be in violation of this subsection shall be subject to a fine up to five hundred dollars (\$500.00) per day.
- (2) A temporary construction fence (as defined herein) shall be installed on the front, side, and rear property lines.
- (3) In the R-1 zoning district, no other material shall be used to construct a temporary construction fence on the front property line, except for the following:
 - (a) Masonry walls.
 - (b) Concrete walls.
 - (c) Frame plywood painted panel.
 - (d) Stucco and stone match main structure.

- (4) However, chain-link fences with canvas (or similar material) backing or meshing may be permitted on the side and rear property line, provided they are neatly designed and maintained as approved by the department of buildings and licensing and department of planning and community development.

F. *Prohibited fences.*

- (1) The following fences are not permitted, except as otherwise provided herein:
 - (a) Chain-link fences.
 - (b) Barbed-wire fences.
 - (c) Fences made of canvas material.
 - (d) Any fences that fail to meet the requirement of the Florida Building Code.
- (2) Chain-link fences with canvas (or similar material) backing or meshing may be permitted to be utilized as a temporary construction fence for a period of no longer than eighteen (18) months in the R-1 and R-TH zones, provided they are neatly designed and maintained as approved by the department of buildings and licensing and department of planning and zoning.
 - a. *Maximum and minimum height.* A fence is permitted a maximum height of twelve (12) feet and a minimum height of six (6) feet.
 - b. *Setbacks.* A temporary fence installed on the front of the property shall be situated six (6) feet from the property line in the R-1 zoning district, unless specifically waived by the city commission. The setback area between the temporary fence and the property line shall contain a continuous extensively landscaped buffer which must be maintained in a good healthy condition by the property owner. No temporary construction permit shall be issued unless a landscape plan is approved by the city for the buffer. Failure to maintain the landscaping will result in the city taking action to replace same and lien the property for the costs of landscaping.
 - c. *Expiration of permit.* A temporary construction fence permit issued under this chapter shall expire upon the issuance of a certificate of occupancy. The temporary fence shall remain on the property until the completion of construction, provided that it shall be removed in accordance with the terms of the Florida Building Code.
 - d. *Murals and graphics.* Graphics and murals on temporary construction fencing are prohibited unless approved by the city commission at site plan review pursuant to this ordinance. The city commission, in its discretion, may permit graphics and painted murals on temporary construction fences for aesthetic enhancement of the fence and advertisement of the project to be constructed at site plan review. A minor change as defined by the land development regulations (LDRs) may be approved administratively by the city manager without notice to the commission.
 - e. *Fees.* The city manager or designee may impose fees as he/she may determine appropriate for the use of construction fences for advertisement purposes in accordance with the city's fee schedule ordinance.
 - f. *Access gates.* All temporary construction fences shall contain access gates with a minimum clear opening width of twelve (12) feet. Access gates must be provided at the front and rear of the enclosure. Gates must be kept unlocked during inspection hours.
 - g. *Temporary construction signs.* Construction, erection, and maintenance of temporary construction signs shall be governed by article X of these land development regulations.
 - h. *Appeals.* Any decision made by the city manager or designee regarding graphics, advertisement, and murals on a temporary construction fence may be appealed to the city commission.

- i. *Enforcement and penalties.* The department of buildings and licensing shall be responsible for the enforcement of the provisions of this section. Any person or entity found to be in violation of this section shall be subject to a five hundred dollar (\$500.00) fine per day.
- (3) *Maximum time limit.* A maximum time limit shall be established for all temporary uses based on the minimum amount of time needed to conduct the permitted activity. Temporary uses and structures related to real estate development projects shall not be maintained longer than the time necessary to complete the construction of the project and shall be removed within thirty (30) days of the final certificate of occupancy.
- (4) *General criteria and limitations.* The temporary use shall be compatible with the surrounding land uses. A parking problem shall not be created. If off-site parking is to be utilized, permission must be in writing from the owner of the property utilized. An applicant may not receive a temporary use permit on the same property more than three (3) times within a calendar year, unless approved by the city commission. The temporary use must not endanger the public health or safety of the citizens or businesses of the city.

G. *Supplemental regulations.*

- (1) Exclusions from height limits, section 22-111.
- (2) Development agreement, section 22-112.
- (3) Exterior lighting, section 22-113.
- (4) Boat storage, section 22-114.
- (5) Parking of trucks, section 22-115.
- (6) Recreational vehicle storage, section 22-116.
- (7) Sales within right-of-way, section 22-117.
- (8) Property maintenance, section 22-118.
- (9) Temporary use, this section.
- (10) Temporary sales of trees and firework, section 22-120.
- (11) Sheds, section 22-121.
- (12) Structures and use limited in yards, section 22-122.
- (13) Group homes, section 22-123.
- (14) Day care and other nursery facilities, section 22-124.
- (15) Places of religious worship, section 22-125.
- (16) Swimming pools, section 22-126.
- (17) Flea markets and bazaars, section 22-127.
- (18) Yard sales, section 22-128.
- (19) Lot frontage and yard requirements, section 22-129.
- (20) Impervious areas, section 22-130.
- (21) Stormwater management, section 22-131.
- (22) Underground utilities, section 22-132.
- (23) Utilities, section 22-133.
- (24) Walls, hedges and fences, section 22-134.
- (25) Events, section 22-135.

- (26) Regulation of adult use establishments, section 22-136.
 - (27) Alcoholic beverages, section 22-137.
 - (28) Reserved.
 - (29) Art in public places, section 22-139.
 - (30) Auto service stations to service vehicles for a licensed business, section 22-140.
 - (31) Home occupation, section 22-141.
 - (32) Community gardens, section 22-142.
 - (33) Farmer's markets, section 22-143.
 - (34) Urban gardens, section 22-144.
- (Ord. No. 17-18, V, 12-13-2017; Ord. No. 17-19, exh. A(22-119A—22-119C), 12-13-2017)

Sec. 22-120. Temporary outdoor sale of trees and fireworks.

Temporary outdoor sale of trees and fireworks associated with holidays in December, New Year's Day, Independence Day, and pumpkins associated with Halloween, are permitted in nonresidential zoning districts. The siting and sale of fireworks and pumpkins is allowed for a maximum of thirty (30) days and trees associated with holidays in December for a maximum of forty-five (45) days. The permit shall not be issued or be effective for more than forty-five (45) days prior to the actual holiday. The permit shall expire, and the use shall be removed by the third day following the holiday. Trucks, trailers and flat beds are not permitted on the site except for short-term delivery of the products. A single recreational vehicle is permitted on-site for the duration of the use to monitor site activities and secure the property. In addition to the director, the permit application shall be reviewed by the city building official, the county RER, and the fire department to determine if any additional permits or conditions of the permit shall be required.

- (A) The applicant shall provide written authorization from the property owner along with evidence of adequate on-site parking which safely manages the parking needs of the temporary use in association with existing site activities. Any and all activity shall operate only between the hours of 10:00 a.m. and 10:00 p.m. and shall be of a non-permanent nature.
 - (B) The use is allowed one (1) twenty-four (24) square foot non-illuminated temporary sign. No application will be considered for a property or applicant that is the subject of a pending code enforcement action or lien.
- (Ord. No. 16-07, exh. A(22-120), 9-14-2016)

Sec. 22-121. Sheds.

Rear yard storage sheds are permitted as accessory structures in residential zoning districts. The maximum square footage may not exceed fifteen (15) percent of the total square footage of the rear yard and not including the side yards. Sheds are not permitted in nonresidential developments and may not be used as habitable structures.

(Ord. No. 16-07, exh. A(22-121), 9-14-2016)

Sec. 22-122. Structures and uses limited in yards.

No principal building or structure shall be located within any required setback or yard, within any setback or yard established by a recorded plat or recorded easement, nor in any required buffer or screen.

- (A) Notwithstanding other provisions of this section, architectural features such as, but not limited to, cornices, eaves, bays, awnings, steps, chimneys, fireplaces, gutters, porches, etc., may project up to three (3) feet into an established or required yard, provided that where the yard is less than five (5) feet in width such projection

shall not exceed one-half ($\frac{1}{2}$) the width of the yard. Stairways and balconies which are unroofed and unenclosed and balconies in side yards of multiple-family dwellings, hotels and motels, may project up to four (4) feet, provided they do not extend more than one-half ($\frac{1}{2}$) the width of the yard.

- (B) Aboveground backflow preventers are expressly prohibited in the established front yards of buildings where underground backflow preventers or a location outside of the established front yard is technically feasible. Where there is no reasonable alternative, the structure shall be covered in a non-reflective material and surrounded on all sides visible from public streets and abutting properties, by an opaque landscaped screen.
 - (C) Fences, walls and hedges are permitted in required yards, subject to the provisions of this article.
 - (D) Walks and yard lights are permitted within the setback, provided however, that no structure shall be allowed in a recorded easement without first having obtained the approval of the easement holder.
 - (E) Equipment for swimming pools, solar installations, air conditioning units and garbage receptacles with walls not exceeding four (4) feet in height above base flood elevation are permitted to encroach four (4) feet inside yards. Equipment for swimming pools, solar installations and air conditioning units are permitted to encroach four (4) feet in rear yards.
- (Ord. No. 16-07, exh. A(22-122), 9-14-2016)

Sec. 22-123. Group homes.

Group homes are limited to six (6) resident clients on the premises. The operation of the facility is licensed by the state and the director of the department of planning and zoning is notified of the licensure no later than the time of home occupancy. The structure used for the group home shall be located at least one thousand (1,000) feet from another existing, legally established group home. The one thousand (1,000) foot distance requirement shall be measured from the nearest portion of the structure of the proposed use to the nearest portion of the structure of the existing use.

(Ord. No. 16-07, exh. A(22-123), 9-14-2016)

Sec. 22-124. Day care and other nursery facilities.

(A) The purpose of this section is to provide places for day care for children upon approval of the planning and zoning board in R-2, R-3, R-4, B-O, B-1 B-2, MU, and are permitted in industrial districts where day care facilities are provided on premises by the employer for children of employees. The planning and zoning board shall take care to ensure day care facilities are adequately spaced and not clustered.

(B) A day care and/or nursery facility is a legally approved structure for use on a permanent and continuous basis and is used to provide day care for children six (6) years of age or under. Said care shall be other than that normally provided by parents or guardians.

(C) The more stringent of the requirements of this section, the county or the state shall apply.

(D) Other county and state approvals shall be required.

(E) Day care and/or other nursery facilities shall be permitted only upon approval by the city commission after considering the recommendation of the planning and zoning board. An annual license must be obtained from the city.

(F) Employee background investigations may be required. If performed the applicant shall be responsible for all associated fees.

(G) Accessory structures which support and are compatible with day care and/or nursery facilities may be permitted.

(H) Development regulations.

1. Minimum lot area shall be no less than five thousand (5,000) square feet.
2. Yard setbacks shall be in compliance with the minimum requirements or the more stringent requirements of the zoning district in which the use is located.
3. Accessory structures related to day care and/or nursery facilities are play equipment, sand boxes, swimming pools, or covered rest areas.
4. Height shall not exceed two (2) stories or twenty-five (25) feet.
5. Lot coverage for all structures shall not exceed forty (40) percent. At least twenty (20) percent of the lot shall be landscaped.
6. Parking, in a permanently maintained, paved and landscaped off-street parking area shall be provided at one (1) space per five hundred (500) gross feet of floor area.
7. The minimum floor area, including kitchen, office/storage and toilet facilities, shall be one thousand five hundred (1,500) square feet. Facilities with capacities exceeding forty (40) children shall provide twenty (20) square feet of additional floor area per child.
8. Outdoor play area shall be provided at a minimum of forty-five (45) square feet per child using the play area at any one (1) time. The minimum play area shall not be less than one-half (½) of the licensed capacity.

(I) Other development regulations.

1. Fencing and screening shall be provided at a minimum six (6) feet in height for outdoor play areas. Fencing shall be constructed of masonry, metal picket or wood. Fencing shall be designed so as not to create a safety hazard to any child.
2. Any water that may be hazardous to any child shall be adequately fenced so as to prevent unsupervised access.
3. Outdoor play areas shall be properly supervised at all times and be clean and free of debris.

(J) Day care and/or nursery facilities shall not be located closer than one thousand (1,000) feet to any establishment that sells liquor for on- or off-premises consumption as its principal purpose. Additionally, day care and/or nursery facilities shall not be located closer than five hundred (500) feet to any establishment that sells beer and/or wine for on- or off-premises consumption as its principal purpose. This subsection shall not apply to retail convenience food stores, grocery stores and restaurants whose principal business is not the sale of alcoholic beverages.

(Ord. No. 16-07, exh. A(22-124), 9-14-2016)

Sec. 22-125. Places of religious worship.

(A) The purpose this section is to provide places for places of worship as a special exception upon approval in designated zoning districts as per sections 22-79 through 22-82.

(B) A place of worship structure is a legally approved structure approved for use on a permanent and continuous basis for public worship.

(C) Places of worship shall comply with the requirements of this section, the Code of Miami-Dade County, Florida, and the state. In the event of conflict between these requirements, the more stringent requirements shall apply.

(D) A place of worship shall have a minimum gross floor area of one thousand (1,000) square feet and at least two (2) means of ingress/egress.

(E) Places of worship and accessory uses shall only be permitted upon approval of a special exception by the city commission. An annual license must be obtained from the city.

(F) Development regulations.

- (1) Minimum lot area shall be no less than ten thousand (10,000) square feet and have a minimum lot frontage of one hundred (100) feet.
- (2) Setbacks for the building and any accessory building shall be set back at a minimum twenty-five (25) feet from the front and rear property lines and at a minimum ten (10) percent of lot width for side setbacks, unless the lot is a corner lot then side shall be setback fifteen (15) feet front the side street. When abutting residentially zoned property, the setback shall be at least ten (10) feet from the side property line and thirty (30) feet from the rear property line.
- (3) The maximum exterior height shall not exceed thirty-five (35) feet; except that a steeple, cupola, tower, dome or other ornamental vertical projection that is unoccupied may be higher provided that such projection shall not be higher than the setback distance from each property line minus two (2) feet.
- (4) Lot coverage for all structures shall not exceed forty (40) percent. At least twenty-five (25) percent of the lot shall be landscaped.
- (5) Off-street parking shall be regulated by this chapter under article VI of this code.

(G) The more stringent of the requirements of this section or code shall apply.

(H) Religious buildings shall not be located closer than one thousand (1,000) feet to any establishment that sells liquor for on- or off-premises consumption as its principal purpose. Measurements shall be made or taken from the main front entrance of the place of business to the main front entrance of the place of worship.

(I) Accessory uses may be permitted after approval of a special exception.

(J) Landscaping shall be regulated by this chapter under article VII of this code.
(Ord. No. 16-07, exh. A(22-125), 9-14-2016)

Sec. 22-126. Swimming pools.

No swimming pool shall be permitted within the required front yard area, or within utility, drainage or access easements. Swimming pools shall be required to have a safety barrier. Above-ground pools and spas which exceed forty-eight (48) inches in height must meet all structural setback requirements.

- (A) *Safety barrier.* No swimming pool final inspection and approval shall be given by the city unless there has been erected a safety barrier. The safety barrier shall take the form of a screened-in patio, a wooden fence, a rock wall, a concrete block wall, or other materials so as to enable the owner to blend the same with the style of architecture planned or in existence on the property. The minimum height of the safety barrier shall be not less than four (4) feet. The safety barrier shall be erected either around the swimming pool or around the premises on which the swimming pool is erected. The barrier shall enclose the area entirely, prohibiting unrestrained admittance to the enclosed area. Gates shall be of the spring lock type, so that they shall automatically return to a closed position at all times. Gates shall also be equipped with a safe lock and shall be locked when the swimming pool is not in use.
- (B) *Permits.* Before any work is commenced, permits shall be secured for all swimming pools and for the safety barriers. Plans shall contain all details necessary to show compliance with the terms and conditions of these regulations. No swimming pool permit shall be issued unless simultaneously therewith a permit is secured for the erection of the required safety barrier; if the premises are already enclosed, as herein before provided, a permit for the safety barrier shall not be required, if, upon inspection of the premises, the existing barrier is proven to be satisfactory.

- (C) *Construction specifications of walls and fences.* For a wooden-type fence, the boards, pickets, louvers, or other such members, shall be spaced, constructed, and erected, so as to make the fence non-climbable and impenetrable. Walls, whether of the rock or block type, shall be so erected to make them non-climbable.
 - (D) *Authority to disapprove barriers.* It shall be within the discretion of the building inspector to refuse approval of any barrier which, in his opinion, does not meet the safety requirements of this regulation, i.e., that it is high enough and so constructed to keep the children of preschool age from getting over or through it.
 - (E) *Maintenance of safety barrier; duty of owner, occupant.* It shall be the responsibility of the owner and/or occupant of the premises containing the swimming pool to maintain and keep in proper and safe condition at all times the safety barrier required and erected in accordance with this section.
 - (F) *Maintenance of pool; duty of owner, occupant.* It shall be the responsibility of the owner and/or occupant of the premises containing a swimming pool to keep such pool from becoming a health hazard to the community. In the event any person owning or occupying the premises containing a swimming pool permits the safety barrier to become in an improper and unsafe condition, or permits the swimming pool to become a health hazard to the community, the city may direct a letter by certified mail to the owner or occupant of such premises, advising such owner or occupant that the city will have such safety barrier put in a proper and safe condition or correct the health hazard of the swimming pool within a period of ten (10) days from receipt of such letter. The city shall be authorized to place a lien on the property not in compliance with this section in order to recover the costs associated with enforcement of this section.
 - (G) *Temporary fence to enclose swimming pools while under construction.* No person shall construct or cause to be constructed any swimming pools unless such swimming pool is completely enclosed by a fence with a minimum height of not less than four (4) feet. Such fence may be of a temporary nature but must be erected either around the swimming pool or around the premises on which the swimming pool is under construction; in either event, it shall enclose the area entirely, prohibiting unrestrained admittance to the enclosed area. However, the swimming pool need not be completely enclosed during those periods when an adult person is present on the site and actual construction is in process. This section shall only affect those pools under construction within one hundred forty (140) feet of any residence upon which a certificate of occupancy has been issued. The one hundred forty (140) feet shall be measured from the edge of the swimming pool to the closest property line containing such residence by straight line measure.
- (Ord. No. 16-07, exh. A(22-126), 9-14-2016)

Sec. 22-127. Flea markets and bazaars.

- (A) The establishment and operation of flea markets and bazaars shall only be allowed by special exception within the B-3 and industrial zoning districts and after site plan approval.
 - (B) A flea market and/or bazaar shall be in a legally approved structure for use on a permanent and continuous basis and shall be used as a market for the sale of a variety of goods.
 - (C) All flea markets and bazaars shall comply with the regulations of this code; the applicable zoning district regulations; chapter 13, article XI of the city Code; and all other regulatory licensing, health and safety codes of the city, the county and the state.
 - (D) Design standards for flea markets and bazaars are set forth in chapter 13, article XI of the city Code.
- (Ord. No. 16-07, exh. A(22-127), 9-14-2016)

Sec. 22-128. Yard sales.

General sales open to the public conducted on residential premises in any district for the purpose of disposing of personal property, including, but not limited to, all sales entitled garage, lawn, yard, attic, porch, estate, and/or patio sale; but which in no way shall be construed to include flea markets which is specifically excluded here from.

- (A) A no-charge, two (2) day permit shall be obtained from the department of buildings and licensing. The maximum number of permits which may be issued per site, per year is four (4). In addition, the city commission may establish by resolution, two (2) days per year in which yard sales may be allowed community-wide. No permit will be required on the days established for community-wide yard sales.

- (B) Only personal property for the purposes of this article is that which is owned, utilized, maintained, and acquired during the course of living in and maintaining a residence by an individual or members of the household, and shall specifically exclude merchandise which was purchased for resale or obtained on consignment.
- (C) Yard sales to be located at multifamily residential buildings shall be accompanied by the written permission of the property owner, manager, and association.
- (D) It shall be unlawful for any person to conduct a yard or garage sale other than between the hours of 7:00 a.m. and 7:00 p.m. A yard or garage sale shall consist of a maximum of two (2) consecutive days and shall only take place on a Friday, Saturday, Sunday or a national holiday.
- (E) Merchandise to be sold at a yard or garage sale shall be displayed in a garage, carport, private driveway or yard. Merchandise shall not be displayed within the public right-of-way or swale area. All items shall be removed by the end of the last day of the sale. In the event that a yard or garage sale consists of two (2) days, all items kept overnight between the first and second day shall be covered in a waterproof material.
- (F) Signs advertising yard sales shall be displayed only during the times of the sale and be permitted as follows:
 1. One (1) sign may be located on the residential property on which the sale is occurring.
 2. Up to three (3) signs advertising a yard sale are permitted to be placed on private property, with the consent of the property owner, off-site from the location of the garage sale.
 3. Signs shall not be larger than twenty-two (22) inches by twenty-eight (28) inches.
 4. Yard sale signs shall not be permitted within the public right-of-way or swale. Signs advertising such sales must be removed within twelve (12) hours after the completion of the sale.

(Ord. No. 16-07, exh. A(22-128), 9-14-2016)

Sec. 22-129. Lot frontage and yard requirements.

A single-family structure may be constructed on any nonconforming lot in any single-family residential district if the nonconformity is that it does not meet the minimum lot size in the residential district in which it is located, and provided the following conditions exist or are met:

- (A) No structure shall be constructed on a nonconforming lot unless it has a minimum side yard of ten (10) percent of front yard lot width, or a minimum side yard of fifteen (15) feet where adjacent to any street.
- (B) No structure shall be constructed on a nonconforming lot unless it shall have front and rear yards conforming to the minimums required for the residential district in which the lot is located.
- (C) On lots which abut more than one (1) street, building and lot shall generally front upon the more pedestrian oriented street, given the arrangement of existing and proposed streets and drives, and the orientation of buildings on adjoining lots. Where multiple buildings are permitted on a single platted lot, each building shall generally front upon a pedestrian oriented street, either external or internal to the development; side and rear yard designations shall be determined on the basis of building orientation. On irregularly shaped lots, the location of required front, side, and rear yards will be determined by the director. The determination will be based on the project's ability to achieve an appropriate spacing of buildings and orientation to the street.

(Ord. No. 16-07, exh. A(22-129), 9-14-2016)

Sec. 22-130. Impervious area.

Impervious area coverage provides a control of the intensity of development of land, by controlling the amount of the land which may be covered by any type of impervious area. The impervious surface ratio is calculated by dividing the total impervious area by the gross site area.

- (A) *Alternative materials.* If porous paving materials (grasscrete, gravel or other like materials) are used in accordance with the Florida Building Code, then only twenty (20) percent of the area covered with porous paving materials shall be counted as impervious area unless manufacturer information indicates a higher percentage of pervious penetration.

- (B) *Pavers.* If pavers are used in accordance with the Florida Building Code, then only thirty-five (35) percent of the area covered with pavers shall be counted as impervious surface unless manufacturer information indicates a higher percentage of pervious penetration.
(Ord. No. 16-07, exh. A(22-130), 9-14-2016)

Sec. 22-131. Stormwater management.

All stormwater management systems shall comply with applicable city, county, state and federal regulations.
(Ord. No. 16-07, exh. A(22-131), 9-14-2016)

Sec. 22-132. Underground utilities.

It is a requirement that all new utility distribution and service lines in the community to be placed underground.

- (A) *Feeder, distribution and service line crossings.* All new feeder utility distribution line and service line crossings of public rights-of-way and property shall be placed underground. No new public utility distribution or service line shall cross any public right-of-way within the city without first obtaining a written permit from the city manager, or his designee, in compliance with the provisions of the city.
- (B) *Distribution systems.* All distribution systems, whether wire, pipeline, coaxial, fiber-optic cable or other, shall be underground unless unfeasibility of such installation has been documented and the documentation accepted as satisfactory by the director. In making this decision on the adequacy of the documentation and appropriateness of the request, the director shall consider the following factors:
1. Terrain.
 2. Impacts on other customers.
 3. Load characteristics.
 4. Reliability.
 5. Accessibility.
 6. System flexibility.
 7. Equipment availability.
 8. Safety.
 9. Timing.
 10. Excessive conflicts with other utilities.
- (C) *On-site service.* Within any new development, all utilities installed to serve the project shall be placed underground, without expense to the city, from the point they enter the site.
(Ord. No. 16-07, exh. A(22-132), 9-14-2016)

Sec. 22-133. Utilities.

The following basic utilities are required for all developments subject to the criteria set forth in this section.

- (A) *Electricity.* Every principal use and every lot within a subdivision shall have available to it a source of electric power adequate to accommodate the reasonable needs of such use and every lot within such subdivision.
- (B) *Water and sewer.* Every principal use and every lot within a subdivision shall have central potable water and wastewater hookups whenever required by the comprehensive plan.
- (C) *Telephone.* Every principal use and every lot within a subdivision shall have available to it a telephone service cable adequate to accommodate the reasonable needs of such use and every lot within such subdivision.

- (D) *Illumination.* All streets, driveways, sidewalks, bikeways, parking lots and other common areas and facilities in developments of three (3) lots or more shall provide illumination, except that the city commission may waive the requirements for streetlights if the benefits derived are not consistent with the costs thereof.
 - (E) *Fire hydrants.* All developments served by a central water system shall include a system of fire hydrants.
 - (F) *Cable TV.* Every principal use and every lot within a subdivision shall have available to it a television cable service adequate to accommodate the reasonable needs of such use and every lot within such subdivision.
 - (G) *Utility easements.* When a developer installs or causes the installation of water, sewer, storm drainage, electrical power, telephone, or cable television facilities and intends that such facilities shall be owned, operated, or maintained by a public utility or any entity other than the developer, the developer shall transfer to such utility or entity the necessary ownership or easement rights to enable the utility or entity to operate and maintain such facilities.
- (Ord. No. 16-07, exh. A(22-133), 9-14-2016)

Sec. 22-134. Walls, fences and hedges.

All walls, fences and hedges placed within required yard areas shall conform to the following regulations, except where special requirements are set forth for specific buffering or screening purpose elsewhere in this code.

- (A) In residential districts the maximum height for walls, fences and hedges shall not exceed four (4) feet in height, or six (6) feet in height in R-1 and R-2 zoning districts if of wrought iron or aluminum picket construction as per Ordinance No. 13-12, measured from the final grade in front yards and six (6) feet in height in side and rear yards.

Walls and fences shall be erected with the finished side outward.

The use of barbed wire, electric fencing, and/or similar is prohibited in all applications.

All fences within all residential districts are required to have additional landscape, i.e.: shrubs and trees alongside the fence not to extend beyond any existing property line or cause to encroach within any abutting right-of-way.

- (B) In commercial or mixed use districts the maximum height for walls, fences and hedges shall not exceed six (6) feet in height, measured from the final grade in front yards and ten (10) feet in height in side and rear yards.

- 1. Walls and fences shall be erected with the finished side outward.
- 2. The use of barbed wire, electric fencing, and/or similar is prohibited in all applications.

- (C) In industrial districts, the height for walls, fences and hedges shall be a minimum of eight (8) feet in height.

- 1. Walls and fences shall be erected with the finished side outward.
- 2. The use of chain-link and/or similar shall require conditional use approval. Green screen, mesh or other similar materials attached to fence is permitted conditionally on fences as a temporary device to be used to restrict views into a property for a period of twelve (12) months not to exceed a total of twenty-four (24) months, until a plant material can be properly installed and mature to a point of creating a visual barrier. Plants must be secured and installed at the same time as the green screens installation.
- 3. For sites abutting a public right-of-way, all fencing shall be recessed within said property at a minimum of six (6) inches from the property line for residential R-1 and R-2 zoned properties and six (6) feet from the property line for other residential, commercial or industrial zoned properties.
 - a) Recessed area shall be use for trees (minimum ten (10) feet at time of planting) and shrubs. Please see landscaping standards for additional requirements.

- b) Elements and landscaping within recessed area shall be protected by physical features (i.e., Type D curbing and/or any other physical barrier deemed appropriate or satisfactory by the director of planning and community development) in order to prevent any damage to the said elements by surrounding activities and/or conditions.
 - c) No soil disturbance or compaction, stock piling of soil or other construction materials, vehicular traffic, storage of heavy equipment are allowed in the recessed area.
- (D) The permitted elements/vegetation (landscape) may be placed on the property lines, but may not extend into the right-of-way or beyond property lines. No wall, fence or hedge shall be constructed or installed in such a manner as to interfere with drainage on the site. Any encroachment of a wall, fence or hedge into a utility easement shall be supported by a letter from the respective utility authorizing such encroachment, prior to obtaining the building permit.
- (Ord. No. 16-07, exh. A(22-134), 9-14-2016)

Sec. 22-135. Events.

An event includes any use of a public or private facility (park, meeting hall, gazebo, shelter, parking lot, street right-of-way, etc.) in a manner which could limit the normal access and use of such facility by the general public.

- (A) An event may include, but is not limited to, any of the following activities:
1. Use of a public or private facility where the activity is advertised to attract participants and/or spectators beyond normal daily use;
 2. Involves a planned contest with prizes or awards;
 3. Includes advertising, displays or sale of goods or services of any type;
 4. Includes the placement and use of tents, portable toilets, sales booths, temporary parking area, blocking of public rights-of-way, etc.;
 5. May impact city rights-of-way, or could affect public safety;
 6. Private gatherings where a group of individuals desire exclusive use of any public facility;
 7. Carnivals, fairs, concerts, circuses or similar community events;
 8. Other gatherings as determined by the city manager.

Whenever a group or individual seeks exclusive use of part or all of a public or private facility for any length of time, an event permit is required. If the event is held on private property, the application must be submitted with evidence of prior approval by the property owner or property manager. An event permit requires either administrative approval or city commission approval. The following criteria shall be used to establish whether an event requires administrative approval or city commission approval:

1. Administrative approval. Approval may be granted by the department if all the following criteria are met. If the event is held in a city park, the park rental fee shall apply.
 The event will draw two hundred (200) or less guests during the entire event.
 The event will last four (4) hours or less and not begin before 7:00 a.m. and end not later than 11:00 p.m.
 The event will not involve the sale or distribution of alcoholic beverages to the general public. This restriction does not apply to by invitation only private parties.
 The event will only occupy a small portion of a city park or other area and have minimal impact on a city right-of-way/property.
 The event does not require police security or fire department services.
 If tents or canopies are to be used, a building permit may be necessary.

City commission approval. This approval will be required when one (1) or more of the following is true about a particular event:

- a. The event may draw more than two hundred (200) people;
- b. The event is scheduled for more than four (4) hours and/or will span multiple days;
- c. The event will involve the sale or distribution of alcoholic beverages to the general public;
- d. The event will require police security or fire department service. Public safety personnel to be used shall be hired from the county police department or fire department staff. This shall not preclude an event organizer from having additional on-site security at their discretion. Any required police or fire service may be exempted by the police or fire at their discretion;
- e. The event will require organized and monitored parking;
- f. The event involves the barricading or closure of any public roadways;
- g. The event will occupy the majority of the land area in the subject park;
- h. The event is being held by a for-profit group or individual or a for-profit group is a major part of the event;
- i. The event includes a carnival, circus or exhibition;
- j. The event might place an extreme burden on city work crews because of its nature, size or timing;
- k. Off-premises directional signage is planned.

Time issues. Event organizers should include both set-up and clean-up time in their total time request for event approval. Event organizers shall contact the department at least ninety (90) days prior to their target date for the event in order to determine the feasibility and approval process required. Requests for approval shall be submitted at least sixty (60) days prior to the event. Events must receive approval at least ten (10) calendar days in advance of the first day of the event.

Permit conditions. The director and city commission may impose conditions on an event permit as is necessary to protect the public health, safety and welfare and minimize impact to adjacent uses.

1. Conditions which may be imposed may include, but are not limited to:
 - a. Yard, setback, open space and visibility triangle limitations;
 - b. Temporary fences, walls or other screening;
 - c. Signage;
 - d. Vehicular and pedestrian ingress and egress;
 - e. Property maintenance during and after the course of the activity;
 - f. Control of illumination, noise, odor, vibration or other nuisances;
 - g. Hours of operation;
 - h. Exterior lighting.

General criteria. The following criteria shall be used to review the application for a special event permit:

- a. The event must be compatible with the surrounding land uses;
- b. The event must have a plan to accommodate the expected number of vehicles in an efficient manner that will not result in a parking problem for the surrounding area. If off-site parking is to be utilized, permission must be in writing from the owner of the property utilized;
- c. The applicant has not requested a special event permit on the same property more than three (3) times within a calendar year, unless approved by the city commission;

- d. The event must not endanger the public health or safety of the citizens or businesses of the city.

Termination. At the end of the time period for which the event permit was issued, the event shall be discontinued, and all temporary structures and signs shall be removed within twenty-four (24) hours. Failure to comply with this requirement shall be a violation of this code.

Revocation of permit. The director may revoke an event permit at any time upon the failure of the owner or applicant of the use covered by the permit to observe all requirements of the permit, this section and other relevant provisions of law, including failure to obtain appropriate business licenses. Notice of such revocation shall be given in writing by the director to the owner or operator of the use, by hand delivery or certified mail, setting forth the reasons for the revocation, the date and time upon which the revocation is effective and the appeals procedure. This provision shall not preclude the use of any other remedy prescribed by law with respect to violations of the provisions of this code.

(Ord. No. 16-07, exh. A(22-135), 9-14-2016)

Sec. 22-136. Regulations of adult entertainment establishments.

(A) *Authority.* This article is enacted pursuant to the city's power to enact regulations to protect the public health, safety, and general welfare of the residents of the city under F.S. ch. 166.

(B) *Findings.* Based on the evidence and testimony presented before the city commission and on the findings incorporated in the "Survey of Texas Appraisers—Secondary Effects of Sexually-Oriented Businesses on Market Values" study by Connie B. Cooper, FAICP and Eric Damian Kelly, FAICP in association with David C. Keuhl, Ph.D. and Shawn Wilson, MAI (2008)(Texas); "Crime-Related Secondary Effects—Secondary Effects of "Off-Site" Sexually Oriented Businesses" study by Richard McCleary, Ph.D. in association with Alexi Alexander, J.D., Larry Bush, M.A., and Mark Vasquez, B.A. (2008) (Texas); "Crime-Related Secondary Effects of Sexually-Oriented Businesses: Report To The City Attorney" by Richard McCleary, Ph.D. (2007)(Los Angeles, California); "Survey of Findings and Recommendations of Sexually Oriented Businesses" by Eric Damian Kelly, PhD, FAICP and Connie B. Cooper, FAICP (August 2002) (Toledo, Ohio); "A Report on the Secondary Impacts of Adult Use Businesses in the City of Denver," by the Zoning Administration, Office of Planning and Development, Department of Public Safety, Department of Excise and Licenses, Assessor's Office, and in consultation with the City's Attorney's Office, Denver, Colorado (January 1998); "An Analysis of the Effects of SOBs on the Surrounding Neighborhoods in Dallas, Texas" by Peter Malin, MAI for Office of the City Attorney (April 1997); "Sexually Oriented Business Ordinance Revision Committee Legislative Report, Houston, Texas (January 7, 1997); "Adult Use Study," by the Newport News Department of Planning and Development, Newport News, Virginia (March 1996); "Report to American Center for Law and Justice on the Secondary Impacts of Sex Oriented Businesses," by Peter R. Hecht, Ph.D. of the Environmental Research Group (March 31, 1996); "Adult Entertainment Study" by Department of City Planning, City of New York (November 1994); "Adams County Nude Entertainment Study" by the Adam's County Sheriff's Department (1991)(Colorado); "Adult Entertainment Business Study for Manatee County, Florida," by Manatee County Planning and Development Department (June 1987); "Effects of Adult Entertainment Businesses on Residential Neighborhoods," by the Department of Planning, Research and Development, City of El Paso, TX (Sept. 26, 1986); "NLC Summaries of "SOB Land Use" Studies, Crime Impact Studies by Municipal and State Governments on Harmful Secondary Effects of Sexually-oriented Businesses," National Law Center for Children and Families, 1991, 1994, 1996, 1997, 1999, 2000, 2001, 2002, 2005; the city commission hereby finds as follows:

1. Establishments exist or may exist within the city where books, magazines, motion pictures, videos, prints, photographs, periodicals, records, novelties, and devices that depict, illustrate, describe, or relate to specified sexual activities are possessed, displayed, exhibited, distributed, and sold.
2. Establishments exist or may exist within the city where:
 - a. The superficial tissues of one (1) person are manipulated, rubbed, stroked, kneaded, or tapped by a second person, accompanied by the display or exposure of specified anatomical areas;

- b. Dancers, entertainers, performers, or other individuals, who, for forms of commercial gain, perform or are presented while displaying or exposing specified anatomical areas; or
 - c. Lap dancing occurs.
3. The activities described in subsections (B)(1) and (2) of this section occur at establishments for the purpose of making a profit, and, as such, are subject to regulation by the city in the interest of the health, safety, and general welfare of city residents.
 4. The competitive commercial exploitation of such nudity and semi-nudity is adverse to the public's interest, quality of life, tone of commerce, and total community environment.
 5. The commercial exploitation of nudity and semi-nudity consists of the use of nude and semi-nude entertainment in connection with or for the promotion of the sale of goods or services, and the receipt of money by the person engaging in nude or semi-nude entertainment in exchange for or as consideration for nude or semi-nude performance by such individuals.

(C) *Intent and purpose; regulated uses.* It is the intent and purpose of this section to regulate the location and separation of adult entertainment uses, referred to herein as "regulated uses," which, because of their very nature, are recognized as having serious objectionable operational characteristics, particularly when they are located near properties zoned, planned or developed with incompatible uses, thereby having a deleterious effect upon the adjacent areas. Further, it is recognized that the location of even one (1) regulated use near an incompatible use causes such deleterious effects on that area. Special regulation of these uses is necessary to ensure that these adverse effects will not contribute to the blighting or downgrading of the surrounding area. The regulations seek to prevent a concentration of regulated uses in any one (1) area. This article has neither the purpose nor the effect of limiting or restricting access by adults to sexually oriented, non-obscene materials protected by the First Amendment, or denying access by the distributors and exhibitors of sexually oriented entertainment to their intended market.

(D) *Exemptions.* This section shall not apply to accredited universities, colleges or other educational institutions; libraries, art galleries, museums, art exhibits and galleries open to the public; arts and cultural performance theaters and playhouses; or commercial professional photography and portrait studios which may use nude subjects for their photographs or portraits. Such uses shall not be considered regulated uses.

(E) *Location.* Shall be as set forth in sections 22-80 and 22-81 of these land development regulations.

1. No person shall cause or permit the operation of any proposed regulated use within the following minimum distances from any existing uses specified below:
 - a. Places of worship: one thousand (1,000) feet;
 - b. School: one thousand (1,000) feet;
 - c. Public park: one thousand (1,000) feet;
 - d. Residential: one thousand (1,000) feet; and
 - e. Another regulated use: three hundred (300) feet.

For purposes of this section, the term "school" means any premises or site upon which there is a day care center, nursery school, pre-kindergarten, elementary school, middle school, high school, or library.

2. The subsequent establishment of the uses listed in subsections (E)1.a through d of this section within these distances of an existing regulated use shall not change the status of the regulated use to that of a nonconforming use.
3. The distance provided for in this section shall be calculated by airline measurement from property line to property line, using the closest property lines of the parcels of land involved. Where the distance is measured to a roadway, it shall be calculated from the property line of the regulated use to the edge of the right-of-way for the roadway. For purposes of this subsection, the term "parcel of land" means any quantity of land

capable of being described with such definiteness that its location and boundaries may be established, which is designated by its owner or developer as land to be used or developed as a unit or which has been used or developed as a unit.

4. Variances to the location standards of this section shall not be allowed.
(Ord. No. 16-07, exh. A(22-136), 9-14-2016; Ord. No. 2020-03, § 2, 2-12-2020)

Sec. 22-137. Alcoholic beverages.

(A) No alcoholic beverage sales (package) shall be permitted upon premises closer than one thousand (1,000) feet from any religious facility, school, park, residential (R-1 or R-2 zoned property only) or like establishment without approval by the city commission. Other residentially zoned properties are exempt from this distance requirement.

(B) In reviewing an application for alcoholic beverage sales (package), the city commission shall consider, but not be limited to, the following criteria:

1. Location of building on the site.
2. Location of entrances and exits to the licensed establishment.
3. Proposed hours of operation.
4. Other uses of business adjacent to or between the licensed establishment and the religious facility or school.
5. Vehicular and pedestrian paths between the licensed establishment and the religious facility or school.
6. That the location is not detrimental to the public health, safety and welfare.

(C) The one thousand (1,000) foot distance requirement shall be property line to property line, except in the case of religious facilities, which shall be measured pedestrian pathway from front door to front door. In the case of religious facilities in industrial areas, the distance required shall not apply.

(Ord. No. 16-07, exh. A(22-137), 9-14-2016)

Sec. 22-138. Reserved.

Sec. 22-139. Art in public places.

The city hereby prescribes an art in public places program for the acquisition, management and maintenance of works of art in new public buildings, pursuant to county regulations.

- (A) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Construction cost includes architectural and engineering fees, consulting fees, site work, and contingency allowances. It does not include land acquisition or subsequent changes to the construction contract through change orders. All construction costs shall be calculated as of the date the contract is executed.

New public building means new construction of a public facility, or the substantial rehabilitation or improvement of an existing public facility if:

- a. The cost of the rehabilitation or improvement exceeds fifty (50) percent of the total value of the existing public facility; or
- b. The rehabilitation or improvement results in a fifty (50) percent or more increase in the existing public facility's square footage.

Works of art means the application of skill and taste to production of tangible objects, according to aesthetic principles, including, but not limited to, paintings, sculptures, engravings, carvings, frescoes, mobiles, murals, collages, mosaics, statues, bas-reliefs, tapestries, photographs, lighting designs and drawings.

- (B) *Appropriation for construction to include amount for works of art.* The city shall provide for the acquisition of works of art equivalent in value to not less than one and one-half (1.5) percent of the construction cost of new public buildings. Municipal, state, federal, private and other non-city funds for capital projects are subject to the one and one-half (1.5) percent public art requirement. In addition to acquisition, the appropriation may be used for:
 - 1. Program administrative costs, insurance costs, the repair and maintenance cost of any works of art acquired under this section; or
 - 2. To supplement other appropriations for the acquisition of works of art under this section or to place works of art in, on, or near government facilities which have already been constructed.
- (C) *Procurement process.* Works of art shall be chosen by a selection committee through a transparent, competitive, quality-based procurement process. Procurement decisions shall be based on those responses received from artists to the city's request for proposals or city's request for qualifications, pursuant to the city's procurement policies.
- (D) *Waiver of requirements.* The requirements of this section may be waived by resolution of the city commission when and if it appears to said commission that a construction project covered hereunder is not appropriate for the application of the above requirements.
- (E) *Art selection committee.* The city manager or designee shall establish the art selection committee to administer the program and facilitate the program's intent. The art selection committee shall screen artists' submissions and will select the acquisitions of works of art for each qualified project. In addition to selection, the committee's responsibility shall include planning, inventory and the provision of maintenance services of all works of art acquired by the program.
- (F) *Art selection committee membership, qualifications.* The committee shall be composed of five (5) members appointed by the city manager. Committee members must be knowledgeable in the field of art, architecture, art education, art history, or architectural history, and may not operate, own or be employed by any art dealer, art gallery or artists' representative. Committee members serve at the pleasure of the city manager.
- (G) *Selection criteria.* All selections of artists and acquisitions of works of art shall be in accordance with the city's procurement policies, as may be amended from time to time. In the selection process, the following principles shall be observed:
 - 1. Works of art shall be located in areas where residents and visitors live and congregate and shall be highly accessible and visible.
 - 2. Committee members should consider the inherently intrusive nature of public art on the lives of those frequenting public places. Artworks reflecting enduring artistic concepts, not transitory ones, should be sought.
 - 3. The committee's selections must reflect the cultural and ethnic diversity of the city without deviation from a standard of excellence.
 - 4. Consideration will be given to previous artistic accomplishments as demonstrated in images of previously completed artwork, public art experience, and/or initial approach the project as demonstrated in the artist's proposal.
 - 5. Final selection shall also take into account appropriateness to the site, permanence of the work in light of environmental conditions at the site, maintenance requirements, quality of the work,

likelihood that the artist can successfully complete the work within the available funding, diversity of works already acquired by the city, diversity of the artists whose work has been acquired by the city.

6. Art in public places funds will be used solely for commissioning works of art with professional artists contracted with to create the works of art.
 7. For building better communities, general obligation bonds program-funded projects, art in public places funds must be expended within the facility that generates the public art monies.
 8. Selections of artists and acquisitions of works of art pursuant to these guidelines shall be reflected on the city manager's report section of the city commission agenda, but shall not require commission approval.
- (H) *Ownership.* Ownership of all works of art acquired by the city under this division is vested in the city. The city manager is charged with the custody, supervision, maintenance and preservation of such works of art. In each instance, the city shall acquire title to each work of art acquired.
- (I) *Personnel.* The city manager shall provide adequate and competent clerical and administrative personnel as may be reasonably required by for the proper performance of the duties under this division, subject to budget limitations.

(Ord. No. 16-07, exh. A(22-139), 9-14-2016)

Sec. 22-140. Auto service stations to service vehicles for a licensed business.

(A) Auto service stations servicing vehicles for a licensed business are permitted as a special exception in industrial districts as per section 22-81, under the following conditions:

1. The gasoline pumps shall not be visible from the street.
2. The property must be four (4) or more acres in size, and the principal use must occupy the entire site.
3. The corporation that is licensed by the city to operate the principal business on the site must own the vehicles fueled on-site.
4. The property site must be one thousand (1,000) linear feet away from residentially zoned property and if requested in site plan review as a special exception, allow to five hundred (500) linear feet.

(Ord. No. 16-07, exh. A(22-140), 9-14-2016)

Sec. 22-141. Home occupation.

(A) Home occupations are permitted in certain residential zoning districts as per section 22-79. The city shall have the right to inspect the home occupation and determine if the occupation is adhering to the requirements thereof. The home occupation shall meet the following requirements:

1. All proposed home occupation uses, including the expansion or replacement of an existing use or structure, shall conform to the performance standards below, as well as all other applicable laws and regulations of the county, state and federal government.
2. The home occupation and its associated structures shall conform to all applicable standards for the zoning district.
3. Home occupations shall be conducted entirely within the residence or within an accessory structure. The area used for the home occupation shall not exceed twenty-five (25) percent of the gross floor area of the residence.
4. The home occupation shall in no way cause the residential appearance or character of the premises to differ from the surrounding residential area. Home occupations shall not be conducted in such a manner as to produce noise, dust, vibration, glare, smoke or smell, electrical interference, fire hazard, traffic or any other nuisance not typically experienced in the zoning district where the property is located.

5. No use shall require internal or external construction features or the use of electrical, mechanical or other equipment that would change the fire rating of the structure or in any way significantly increase the fire danger to neighboring structures or residences.
6. No outside storage of material, goods, supplies or equipment related to the operation of the home occupation shall be allowed.
7. Merchandise shall be limited only to products manufactured or substantially altered on the premises or to incidental supplies necessary for the conduct of the home occupation. Items shall not be purchased off-site for resale.
8. To the extent that there is any sale of any item related to a home occupation, delivery of that item to the buyer should occur off the premises.
9. The home occupation shall not employ more than one (1) nonresident employee.
10. Any need for parking generated by the home occupation shall be off-street and in the side or rear yard of the structure. The zoning officer shall determine the number of parking spaces required based on the parking provisions of this chapter.
11. No commercial vehicle shall be used in connection with the home occupation for delivery of goods to or from the premises, nor parked on the property. This provision does not preclude the delivery of mail or packages by the U.S. Postal Service or by private or public shipping and courier services. Home occupations shall not generate more than an average of one (1) truck delivery per day.
12. No more than one (1) home occupation per residence shall be allowed and it must be conducted by the occupant.
13. Home occupations that attract customers, clients or students to the premises shall not be allowed in multifamily dwelling units.
14. Home occupations shall not be allowed by right in multifamily dwelling units; however, it will be allowed in zoning districts where live-work uses are permitted after due process.

(B) The following uses are not appropriate as home occupations and are not permitted:

1. Vehicle or boat repair or painting.
2. Construction equipment or materials storage.
3. Equipment or vehicle rental.
4. Furniture sales.
5. Funeral director, mortuary or undertaker.
6. Glazier's or painter's shop.
7. Heating, plumbing or air-conditioning services.
8. Laboratory or taxidermy shop.
9. Medical or dental clinic.
10. Private club.
11. Restaurant.

(C) The following is a non-exhaustive list of uses which may be conducted as home occupations within the limits established in this section, however, uses not listed below require a specific letter of confirmation from the director. All uses can only operate on a by-appointment basis, and appointments cannot be scheduled simultaneously. Limit three (3) persons for an appointment.

1. Art, handicraft, music, writing, photography or similar studios.
2. Direct sale product distribution.
3. Dressmaker, seamstress, tailor.
4. Hair cutting and styling.
5. Home typing or computer services.
6. Mail order sales.
7. Non-principal offices of physician, dentist, veterinarian, insurance agent, real estate or similar professions which typically serves several clients on a daily basis.
8. Offices of accountant, architect, engineer, surveyor, land planner, lawyer, income tax preparer, minister, priest, rabbi, member of a religious order, psychotherapist, counselor, personal consultant, tradesman or similar professional which typically serves several clients on a daily basis.
9. Repair of small appliances, small engines and limited machining of small parts, office machines, cameras and similar small items.
10. Telephone sales and order-taking.
11. Tutor.

(Ord. No. 16-07, exh. A(22-141), 9-14-2016)

Sec. 22-142. Operating standards for community gardens.

Community garden. A use in which land managed by a group of individual is used to grow food or ornamental crops for donation or for use by those cultivating the land and their households. Community gardens may include separate plots for cultivation by one (1) or more individuals or may be farmed collectively by members of the group and may include common areas maintained and used by group members.

Community gardens are permitted by special exception as a principal use (per the tables pertaining to each district) on property zoned, B-3, or are permitted by special exception as a principal use on property in the downtown mixed use district, (with respect to residentially zoned property, as defined in the land development regulation, on communal property, school sites, and places of public assembly sites only), and shall be subject to the following operational standards:

- a. All community gardens and their users must comply with all federal, state, and local laws and regulations relating to the operation, use, and enjoyment of the garden premises.
- b. The primary use is for growing and harvesting of agricultural products.
- c. Prior to establishment, applicants shall inquire into the historical use of the property and undertake proper soil testing to measure nutrients, heavy metals, and any other harmful contaminants that may be present. The soil testing results and proposed remediation methodology (if needed) shall be provided to and kept on file with the department. All environmental testing must be conducted by an "environmental professional" as defined by 40 CFR 312.10(b), as amended from time to time. Any environmental testing shall be accomplished pursuant to the standards and requirements set forth in 40 CFR pt. 312, as amended from time to time.
- d. Site users must have an established set of operating rules addressing the governance structure of the garden, hours of operation, maintenance, and security requirements; must have a garden coordinator to perform

the coordinating role for the management of the community gardens and to liaise with the city; and must assign garden plots in a fair and impartial manner according to the operating rules established for that garden. The name and contact information of the garden coordinator and a copy of the operating rules shall be kept on file with the department and the lead community garden nonprofit organization, as appropriate.

- e. To the extent permitted under federal and state law, site users must use organic and sustainable growing practices.
- f. The irrigation source must be from a non-potable water supply.
- g. The site must be designed and maintained so that water and fertilizer will not drain onto adjacent property.
- h. Compost materials and garden supplies shall be located at least ten (10) feet away from adjacent property and screened from view by hedges and shrubs, using best practices to control odors, prevent infestation, and minimize runoff into waterways and onto adjacent properties.
- i. Structures to support urban agriculture, such as storage sheds, hoop-houses, and greenhouses, are permitted, subject to provisions from this chapter and appropriate permit approval from the city.
- j. Retail sales, including donation, of plants and produce grown on-site or products that are processed off-site but made from products grown on-site may occur between dawn and dusk every day of the week.
- k. The site shall comply with CPTED design standards.
- l. Keeping of animals is not permitted.
- m. A perimeter fence is encouraged (required).
- n. Accessory retail sales of edible or ornamental crops grown on-site or products that are made from produce grown on-site may occur with a city-issued business tax receipt and a city-issued certificate of use.

(Ord. No. 16-07, exh. A(22-142), 9-14-2016; Ord. No. 17-18, § 1(22-142), 12-13-2017)

Sec. 22-142.1. Moorish revival style design standards.

The Moorish Revival Style Design Handbook shall serve as guidelines to provide certain minimum standards, provisions and requirements for the appropriate and acceptable design and minimum required criteria for tenants or owners implementing renovations additions and or new construction within the city.

New building and structures hereafter erected within the city shall embrace the concepts and requirements of these guidelines.

Additions, alterations, repairs and changes of use in all buildings and structures within the city shall conform to the requirements of these guidelines.

(Ord. No. 2022-06, § 2, 1-12-2022)

Sec. 22-143. Operating standards for farmers' markets.

Farmers' markets. An open-air establishment that allows the selling of agricultural products such as fruits, vegetables, herbs, nuts, flowers, animal food products such as eggs, honey, meat, milk, cheese and fish. The predominant sales area is for food and associated farm products.

Open-air farmers' markets are a permitted temporary use in the following zoning districts: B-2 and B-3 (on communal property, school sites, and places of public assembly sites only), provided that the property owner has granted written permission and that the applicant has the proper business tax receipt and certificate of use issued by the city. A tent permit will also be required. Vendors shall be subject to the following operational standards:

- a. All farmers' markets and their vendors shall comply with all federal, state, and local laws and regulations relating to the operation, use, and enjoyment of the market premises;

- b. All farmers' markets and their vendors must obtain all required operating and health permits, licenses, and certificates of insurance, and copies of these documents shall be in the possession of the farmers' market manager or the vendor, as applicable, on site during all hours of operation;
 - c. The predominant sales area must be for agriculture-related products.
 - d. All farmers' markets and their vendors are encouraged to accept forms of payment for eligible goods or products sold, or shall allow a legitimate and duly authorized third party to occupy space within the farmers' market area to operate a redemption program, by participants of federal, state, or local food assistance programs, including, but not limited to the Supplemental Nutrition Assistance Program (SNAP) 7 USC 2011 et seq.; the Women, Infants, and Children (WIC) Farmers' Market Nutrition Program 42 USC 1786(m) and 7 CFR pt. 248; and the Senior Farmers' Market Nutrition Program 7 USC 3007 and 7 CFR pt. 249; all in a manner allowed by, and in conformance with, both federal and state laws and regulations as those laws and regulations may be amended from time to time.
 - e. All farmers' markets must have an established set of operating rules addressing the governance structure of the farmers' market, hours of operation, maintenance, insurance, and security requirements and responsibilities; and appointment of a market manager, including the following:
 - i. Refuse disposal and sufficient trash and recycling receptacles within the area of the approved farmers' market;
 - ii. Litter removal within the boundaries of the approved farmers' market; and
 - iii. Access to adequate sanitary facilities, including restrooms and/or portable sinks and toilets.
 - f. Compliance with city's noise ordinance must be observed.
 - g. All farmers' markets shall provide for a minimum of one vehicle parking space for each vendor stall; and three parking spaces for shoppers per number of vendor stalls. Where the farmers' market is located within one-half mile of any transit stop for a bus route, or a fixed rail or bus rapid transit system, the number of parking spaces required shall be reduced by twenty-five (25) percent. Farmers' markets must also provide secure bicycle storage for their patrons.
- (Ord. No. 17-18, § 1(22-143), 12-13-2017)

Sec. 22-144. Operating standards for urban gardens.

Urban garden. An establishment where edible or ornamental crops are grown as a primary or an accessory use on the ground, or a rooftop or inside a building, to be sold or donated.

Urban gardens are permitted as a special exception on property zoned B-3 commercial, and are permitted as a special exception in the downtown mixed use district, and shall be subject to the following operational standards:

- a. Parking requirements shall comply with article VI of this chapter.
- b. The irrigation source must be from a non-potable water supply.
- c. Compost materials shall be stored at least ten (10) feet from adjacent property and in a manner that is not visible from adjacent property (shielded from view by shrubbery or an enclosure), controls odor, prevents infestation, and minimizes runoff into waterways and onto adjacent properties.
- d. Mechanized equipment similar in scale to that designed for household use shall be permitted. Use of larger mechanized farm equipment is general prohibited.
- e. Accessory retail sales of edible or ornamental crops grown on-site or products that are made from produce grown on-site may occur with a city-issued business tax receipt and city-issued certificate of use.

- f. Shipment and delivery of products or supplies shall be limited to between 7:00 a.m. and 7:00 p.m. and shall occur only in single axle straight trucks or smaller vehicles normally used to serve residential neighborhoods.
 - g. Overhead lighting shall be prohibited.
- (Ord. No. 17-18, § 1(22-144), 12-13-2017)

Sec. 22-145. Indoor shooting range/gun club.

A. Purpose and intent.

- 1. The purpose of this section is to permit the establishment and operation of a shooting range within the City of Opa-locka.
- 2. The intent is to create a safe and controlled environment for firearm enthusiasts, law enforcement personnel, and responsible citizens.

B. Zoning and land use.

- 1. The proposed new shooting range use is defined as follows: "Shooting range" includes a controlled indoor facility for the recreational or educational discharge of firearms in a range-like setting by private members, law enforcement personnel, or the general public, consistent with all applicable state and federal laws. A shooting range may also include a private club component and other ancillary uses including but not limited to retail sales, common social areas, classrooms, conference areas, and multi-configurable training spaces. A shooting range may include a "gun shop."
- 2. The proposed shooting range shall comply with all applicable zoning regulations.
- 3. The location must be compatible with the surrounding land uses and minimize any adverse impact on neighboring properties.
- 4. The city is amending the Land Development Regulations to designate the I-3 Liberal Industrial District as a suitable zoning district where such facilities are allowed as a conditional use and permitted after application submission and site plan review as provided in Ordinance No. 15-31, section 22-60.

C. Site plan.

- 1. The site plan and structure shall incorporate, at minimum, the standards for indoor shooting range construction in accordance with the Florida Building Code prior to issuance of a certificate of occupancy by the city's building official.
- 2. The indoor shooting range shall be adequately air conditioned.
- 3. Shooting ranges shall not be allowed as accessory uses to gun stores unless shooting ranges are allowed in that district.
- 4. Parking for shooting range customers shall be provided on-site. The parking standards for shooting ranges shall be one (1) parking space per shooting lane, plus the requirements for retail use applied to the portions of the operation not dedicated to the shooting lanes.
- 5. The shooting range will be subject to applicable license and certificate of use fees which will be listed in the City Code of Ordinances.

D. Location and distance.

- 1. Indoor shooting range shall be located in a completely enclosed building and be at least one hundred fifty (150) feet from any adjoining residential district boundary line or another indoor or outdoor shooting range.

2. The location and distance requirements shall not apply to government owned and operated shooting ranges, restricted to use by law enforcement officers.
3. The applicant shall demonstrate that the location and operation of the shooting range will not pose a threat to the health and safety of the citizens in the surrounding area.

E. *Safety measures.*

1. The shooting range shall adhere to strict safety protocols.
2. Adequate safety barriers, backstops, and noise mitigation measures must be in place.
3. Regular safety inspections and training programs shall be conducted (by the building and license department and other state and federal required review agencies).
4. The facility shall be adequately soundproofed so that no noise from such range activity shall emanate outside the building in which it is located.
5. No weapon or firearm shall be permitted upon indoor range premises or discharged upon the range which weapon or firearm does not comply with the Florida Weapons Law, F.S. ch. 790, and the Federal Gun Control Act of 1968. Noncompliance with this section shall be grounds for revocation of the permit for such shooting range.

F. *Environmental considerations.*

1. The facility shall comply with all environmental regulations, including proper waste disposal and lead management.
2. Any potential environmental impact shall be assessed and mitigated.

G. *Hours of operation.*

1. The shooting range shall operate during reasonable hours to minimize disturbance to nearby residents.
2. Operating hours for other uses within the facility may vary based on security needs.

H. *Security and storage.*

1. The facility shall have secure storage facilities for firearms and ammunition.
2. Access to the facility shall be restricted to authorized personnel only.

I. *Community engagement.*

1. The facility shall actively engage with the community through educational programs, safety seminars, and outreach initiatives.
2. Collaboration with local law enforcement agencies is encouraged and required.

J. *Reporting and compliance.*

1. The facility shall submit regular reports on safety, environmental compliance, and community engagement.
2. Noncompliance may result in permit revocation.

K. *Nuisance.*

1. Shooting ranges shall not create a nuisance, including, but not limited to, high noise levels, pollution nor other detrimental effects on the environment.

L. *Effective date.* This section shall take effect immediately upon adoption of the ordinance from which this section is derived.

(Ord. No. 2024-16, 9-11-2024)

Secs. 22-146—22-150. Reserved.

ARTICLE VI. OFF-STREET PARKING AND LOADING REQUIREMENTS

Sec. 22-151. Purpose and intent.

The purpose of this article is to ensure the provision of adequate pedestrian circulation and off-street parking and loading areas, to protect the level of service and capacity of existing streets, to avoid unnecessary conflicts between pedestrians and vehicles and to promote the general health, safety, and public welfare. These regulations shall apply to all parking and loading areas, including driveways for single-family and two (2) family dwellings, within the city. (Ord. No. 16-07, exh. A(22-151), 9-14-2016)

Sec. 22-152. General principles.

Off-street parking and loading areas should be designed to minimize breaks in the pedestrian environment along the public street and create safe and comfortable passage for pedestrians. The following standards shall be met:

- (A) Unless it is shown not to be possible due to lot configuration, access issues, or health and safety issues, parking and loading areas shall be placed behind the front of the primary building facade except for single-family and two (2) family residential uses.
- (B) To the extent possible, adjoining parking and loading areas serving nonresidential buildings shall be interconnected.
- (C) Off-street parking and loading areas shall be designed to facilitate adequate movement and access by sanitation, emergency, and other public service vehicles without posing a danger to pedestrians or impeding the function of the parking area.
- (D) Off-street parking and loading areas shall be designed so that parked vehicles do not encroach upon or extend onto public rights-of-way, sidewalks or strike against or damage any wall, vegetation, utility, or other structure.
- (E) Ingress/Egress to and from corner lots shall be no closer than thirty (30) feet from any intersection and no closer than five (5) feet from any lot line.
- (F) Off-street parking and loading facilities shall be used solely for the parking of vehicles in operating condition by the patrons, occupants or employees of the use to which such facilities are accessory. No motor vehicle repair work, except emergency service, shall be permitted in association with off-street parking and loading facilities. The storage of commercial vehicles, except for those associated with the use, or merchandise or the sale of vehicles shall be prohibited in a required off-street parking or loading area, except as specifically authorized in this chapter.
- (G) In no event shall parking or loading areas be provided in a manner that requires vehicles to back out into the public rights-of-way, or that requires vehicles to enter or exit a site in a manner which would require them to make an unlawful maneuver within the public right-of-way. This requirement does not apply to areas consisting of driveways serving single-family detached or two (2) family dwellings, although direct access onto arterial roadways is discouraged.

- (H) Parking and loading facilities shall be maintained in a clean, orderly and dust-free condition so as not to create a hazard or nuisance, at the expense of the owner or lessee. Parking and loading areas shall be resealed or repaved and pavement markings periodically repainted and on-site traffic control signs replaced, as necessary, to maintain a clear identification of individual parking and loading spaces and to facilitate the safe movement of pedestrian and vehicular traffic.
 - (I) Any plans for re-striping or modifying the number of parking or loading spaces shall require submittal of a parking lot plan which complies with this ordinance.
 - (J) Access to each principal building shall be provided from rights-of-way and special parking spaces by means of a hard-surfaced pathway leading to at least one (1) entrance generally used by the public. The pathway shall be at least five (5) feet wide, unobstructed, and devoid of curbs, stairs or other abrupt changes in elevation. Ramps shall be designed in accordance with the ramp requirements of the Florida Building Code.
 - (K) Parking spaces required for persons with disabilities shall be counted as a parking space in determining compliance with the ratio of off-street parking requirements of this article. Disabled person spaces shall be a minimum of twelve (12) feet wide and shall meet all other requirements of the Code of Miami-Dade County, Florida, and state code.
 - (L) Within nonresidential development, parking and loading shall be permitted only in designated parking and loading spaces.
- (Ord. No. 16-07, exh. A(22-152), 9-14-2016)

Sec. 22-153. Parking specifications.

(A) No parking lot shall be closer than five (5) feet behind the front building line of an adjacent building. Off-street parking facilities shall be provided for all development within the city.

(B) Large surface parking lots shall be visually and functionally segmented into several smaller lots, containing no more than thirty-six (36) spaces each. Channelization and division of parking areas within the interior of the parking lot for pedestrian and vehicular traffic shall be accomplished by the use of landscaped areas with trees, berms, fences, other natural growth or artificial features.

(C) Parking spaces shall be located so that no spaces are greater than one hundred fifty (150) feet from the building or use to which they are assigned. This requirement shall not apply to parking spaces for auditoriums, stadiums, assembly halls, gymnasiums, and other similar places of assembly, industrial, wholesaling and manufacturing establishments, hospitals, and large scale retail, and wholesaling and manufacturing establishments. A unity of title satisfactory to the city shall be produced whenever parking is not provided on the same site as the principal structure.

(D) As part of a site plan submittal, which includes parking, said parking plan shall show the location and design of:

1. Ingress/egress.
2. Location and size of all buildings and structures.
3. Location and dimensions of parking spaces and aisles, direction markings, traffic control devices and signs, and the location of future parking areas, where applicable.
4. Walls, fences, landscaped areas, berms, changes in grades, and planting materials, including type and names of plant materials.
5. Other information that may be required by the director.

(E) When the parking facilities are housed in a multi-storied structure, or on the roofs of buildings, a site plan shall be submitted for approval of interior traffic circulation, slope of ramp, ease of access and utilization of ramps, parking stall and aisle dimensions, traffic control signage and pavement marking for safe and efficient vehicular and

pedestrian operation, location of entrances and exits on public roads, sight distances at entrances and exits and at corners of intersecting public roads, and of the effective screening of the cars located in or on the parking structures from adjoining properties and from public roads.

(F) For single-family and two (2) family duplex dwellings in residential districts, driveways on the lot shall be considered off-street parking spaces provided that sufficient spaces are available on such driveways to meet the requirements of this section.

(G) For all uses except single-family and two (2) family dwellings, standard curb and gutter, with a minimum width of one (1) foot six (6) inches, shall be provided along the periphery of all driveways, parking and loading areas.

(H) Off-street parking and loading areas and driveways shall be paved or contain a similar type material approved by the public works director. Gravel or other stabilization material without a permanent wearing surface is not permitted, unless approved by good cause by the director.

(I) The proposed grading and drainage for off-street parking facilities shall be approved by the city in accordance with the city's subdivision regulations in chapter 17, article III of the city Code.

(J) Low impact stormwater control systems shall be installed. Curb and gutter may be used where deemed necessary by the public works director, in order to manage storm drainage, channelize traffic, protect buildings and landscaping areas, and separate pedestrian and vehicular areas.

(K) Parking spaces shall be a minimum of twenty (20) feet long and ten (10) feet wide. Parallel parking spaces shall be a minimum of twenty-two (22) feet long and eight (8) feet wide.

(L) Fifty (50) percent of all required parking may be for compact cars if clearly marked "for compact car only," and approved as to location by the director. A minimum of eleven (11) parking spaces are needed before this allowance may be granted. Ninety (90) degree parking for compact cars shall be at least eight (8) feet by seventeen (17) feet; otherwise, the above sizes shall be met.

(M) Nonresidential driveways shall be a maximum of twelve (12) feet in width for one (1) way traffic and twenty-two (22) feet in width for two (2) way traffic. In no case shall a driveway width exceed twenty-two (22) feet, except as required by the state department of transportation.

(N) Nonresidential off-street parking areas which are provided in excess of the requirements established in this article shall be located on grassed or sodded surface. Alternative materials may be substituted for grass or sod with the approval of the director.

(O) Nothing in this section is intended to prohibit the installation of a fully automatic parking facility in which the placement and removal of automobiles are accomplished wholly by machinery.

(P) Required parking spaces for single-family and two (2) family dwellings may be permitted in any setback areas or yards, except for a three (3) foot landscape area required along the side property lines when adjacent to another single-family or two (2) family dwelling. Vehicles parked on-site shall not encroach into or over the public right-of-way.

(Q) Tandem parking:

1. Required parking in the single-family (R-1) through the multifamily (R-4) zoning districts, tandem parking is permitted and in multifamily residential and mixed-use development tandem and/or mechanical parking is permitted.

a. Tandem parking means two (2) or more parking spaces, one (1) behind the other, with a common or shared point of access to a maneuvering lane or street.

(1) Single family homes, duplexes and townhomes may have tandem spaces subject to following:

a) Tandem parking is permitted only on individual lots and in the driveways connecting such lots with the adjacent roads; provided, said driveways are for the exclusive use of each individual lot; however, tandem parking shall be limited to no more than one (1) such tandem parking space for each individual lot.

- b) Tandem parking (two cars maximum) as allowed when enclosed within a structure.
 - c) Each parking space shall be directly accessible from a street or alley, or from an adequate aisle or driveway leading to a street or alley.
 - d) No portion of an open parking facility shall be located within five (5) feet of any property line except for ingress and egress areas or when alleys are used for maneuvering.
- (2) Multi-unit residential and mixed-use development may have tandem spaces subject to following:
- a) No more than two (2) vehicles shall be placed one behind the other.
 - b) Both spaces shall be assigned to a single dwelling unit.
 - c) The tandem parking bay shall be a minimum forty (40) feet by ten (10) feet in dimension, for regular parking spaces. A minimum of thirty-four (34) feet by eight (8) feet in dimension for compact cars; a maximum of fifty (50) percent of total tandem spaces can be for compact cars and will be clearly marked "for compact car only".
 - d) Tandem parking to meet required parking for multiunit development and mix-use development shall be located within an enclosed structure and the number of tandem parking spaces shall not exceed one hundred (100) percent of the total number of spaces.
 - e) Tandem parking shall not be used to satisfy the parking requirement for guest parking.
2. Mechanical lift parking: The mechanical car lift parking for multi-unit residential development will be permitted subject to following:
- a. Detailed parking layout plan and report including design specifications prepared by a professional engineer to be submitted: The city will peer review the report at the cost of the developer.
 - b. A performance guarantee for the repair and maintenance of the mechanical lift to be required before the certificate of occupancy.

(R) Parking area aisle widths shall conform to the following table, which varies the width requirement according to the angle of parking:

	<i>Angle of parking (degrees)</i>				
	<i>0</i>	<i>30</i>	<i>45</i>	<i>60</i>	<i>90</i>
Aisle Width (feet)					
One-way traffic	12	12	22	22	22
Two-way traffic	20	20	22	22	22

(Ord. No. 16-07, exh. A(22-153), 9-14-2016; Ord. No. 2023-08, § 2(22-153), 5-24-2023)

Sec. 22-154. Parking structures.

When off-street parking is located within a separate parking structure, the following conditions and restrictions shall apply:

- (A) All nonstructural portions of the exterior elevations, except for vehicular ingress and egress areas, shall, in addition to any required safety provisions, be screened by a material providing at least seventy-five (75) percent opacity for the total area between deck levels.
- (B) When parking facilities are located on the roof of a structure, the vehicles accommodated shall be screened by a minimum four (4) foot parapet. The height of the structure shall be measured to the top of the screening (parapet).

- (C) If proposed with a mix of uses, parking structures shall have said permitted uses wrapping seventy (70) percent of the ground level along street edges. Access along other edges shall be screened with features such as grilles, trellises and vine-climbing frames.

(Ord. No. 16-07, exh. A(22-154), 9-14-2016)

Sec. 22-155. Minimum parking ratios.

<i>Use and Parking Spaces Required</i>
<i>Residential</i> One to four units on a single lot: 1.5 per unit Five or more units: —Studios, one- and two-bedrooms: 1.5 per unit —Three or more bedrooms: 2.0 per unit Exempt from the above are residential units built for elderly or under Federal Housing Administration financing: —Single-family units: 1.0 per unit —All others unit types: 0.8 per unit
<i>Public Assembly</i> Theaters, clubs, religious facilities, auditoriums, and other similar meeting places: With seats: 0.2 per seat Without seats: 1 per 50 square feet of assembly area
<i>Cultural, Social, Recreation, and Entertainment</i> Bowling alleys or karate/dance/health studios: 1 per 200 square feet Libraries, art museums and other cultural facilities: 1 per 250 square feet Open recreation: 1 per 250 square feet Swimming, golf or tennis clubs: 1 per 500 square feet of floor area plus 4 per court; 1 per 100 square feet pool area; 6 per hole of golf
<i>Education Facilities</i> Day care: 1 per faculty and staff, plus 1 per 10 students Kindergarten through grade 8: 2 per classroom Grades 9 through 12: 0.33 per student, plus 1 per staff
<i>Hospitals, Clinics, and Rehabilitation Centers</i> 2 per bed
<i>Homes for the Aged, Convalescent Centers</i> 1 per bed
<i>Restaurants, Including Take-Out and Nightclubs</i> 1 per 150 square feet
<i>Lodging Establishments</i> 1.1 per room, plus requirements for accessory and/or restaurant uses
<i>Office, Professional</i> 1 per 400 square feet
<i>Office, Professional Medical and Dental</i> 1 per 250 square feet
<i>Commercial, General</i> 1 per 500 square feet (minimum six spaces required)
<i>Commercial, Grocery and Drug Stores</i> 1 per 250 square feet
<i>Membership Warehouse, Home Improvement Centers</i> 1 per 250 square feet

<i>Use and Parking Spaces Required</i>
<i>Gas Stations and Mini Marts</i> 1 per 500 square feet (minimum 3 spaces), in addition to pump parking
<i>Plant Nursery</i> 8 for first acre, or fraction thereof, and 1 for each two acres thereafter
<i>Furniture Showrooms</i> 1 per 1,000 square feet (minimum 5 spaces)
<i>Open Lot Commercial Uses (Including Automotive)</i> 1 per 1,000 square feet of lot area, or fraction thereof, for first 5,000 square feet and 1 per 500 square feet thereafter and, 1 per 400 square feet of building
<i>Open Lot Junkyard and Recycling Centers</i> 1 per 5,000 square feet of lot area 1 per 400 square feet of building
<i>Warehouse and Industrial Uses</i> 1 per 2,500 square feet, plus 1 per 400 square feet of office (minimum 3 spaces) 2 per bay if multiple-occupancy warehouse
<i>Wholesale Showrooms</i> 1 per 800 square feet
<i>Self-Storage Facilities</i> 1 per 2,500 square feet
<i>Adult Use or Business</i> 1 parking space per booth, plus 1 parking space for each 4 fixed seats in the main auditorium for adult motion picture theaters. 1 parking space for each 40 square feet of customer service area, including waiting area, in conformance with the off-street parking requirements for adult dancing establishments. 1 parking space for each 200 square feet of gross floor area for encounter studio/modeling studios, and any other regulated use not covered by the off-street parking requirements of this article.

Notes:

- (A) Parking shall only be allowed in designated spots.
 - (B) Gross floor area is used in calculating square feet.
 - (C) For uses not referenced but similar to one (1) of the above categories the director shall determine the number of required parking spaces.
 - (D) If more than one (1) use is within one (1) building or development, parking for said uses shall be calculated separately.
 - (E) Loading areas in front of warehouse buildings will not be counted towards parking requirements.
 - (F) The maximum number of spaces for any development cannot exceed the minimum for that use by more than ten (10) percent. Reduction in the required parking may be considered based on the mix of uses and an approved shared parking management plan. Reductions in parking may not exceed ten (10) percent of the required number of spaces.
- (Ord. No. 16-07, exh. A(22-155), 9-14-2016)

Sec. 22-156. Shared parking.

A reduction in the total number of required parking spaces for two (2) or more uses jointly providing off-street parking may be approved by the director when the respective hours of need of maximum parking do not normally overlap. Reduction of parking requirements because of joint use shall be approved if the following conditions are met:

- (A) The developer submits sufficient data to demonstrate that hours of maximum demand for parking at the respective uses do not normally overlap.
 - (B) The developer submits a legal agreement approved by the city attorney guaranteeing the joint use of the off-street parking spaces as long as the uses requiring parking are in existence or until required parking is provided elsewhere in accordance with the provisions of this article.
 - (C) The city administration may approve the utilization of off-site parking areas for uses within nonresidential districts. The owner of a site utilizing an off-site parking area shall provide evidence of the owner's right to use the off-site parking area either by license, deed, easement, or by long-term lease. Pedestrian access shall be available within a walking distance of five hundred (500) feet, measured from the nearest point of the building lot to an entrance to the parking area. Such separated parking areas shall be usable without causing unreasonable traffic congestion, detriment to any residential neighborhood, or hazard to pedestrians.
- (Ord. No. 16-07, exh. A(22-156), 9-14-2016)

Sec. 22-157. Pavement markings.

Designated parking spaces shall be marked with double striping on the surface of the parking space with paint or permanent marking materials and maintained in clearly visible condition. Signs or signs combined with color-coded stall lines shall be used to distinguish handicapped spaces from standard size car spaces. In parking facilities, all aisles, approach lanes, and maneuvering areas shall be clearly marked with directional arrows and lines to expedite traffic movement.

(Ord. No. 16-07, exh. A(22-157), 9-14-2016)

Sec. 22-158. Off-street loading requirements.

Every building, building group, or part thereof, which is to be occupied by multifamily, business, commercial, industrial, institutional or other uses, receives materials or merchandise and contains more than five thousand (5,000) square feet or more of floor area will provide the following number of berths:

<i>Gross Floor Area</i>	<i>Number of Berths</i>
0 to 5,000 sq. ft.	0
5,001 to 20,000 sq. ft.	1
20,001 to 40,000 sq. ft.	2
40,001 to 60,000 sq. ft.	3
For each additional 50,000 sq. ft.	1

- (A) *More than one use in one building.* Where a building is used for more than one (1) use, or for different uses, and where the floor area for each use for which loading space is required is below the minimum for required loading spaces but the aggregate total floor area used is greater than such minimum, then the off-street loading space shall be provided as if the entire building were used for that use in the building for which the most parking spaces are required.
- (B) *Shared spaces.* Loading spaces may be provided cooperatively for two (2) or more uses, subject to the approval by the director of appropriate legal instruments to ensure the permanent availability of off-street loading for all such uses. The overall number of loading spaces provided may be reduced by the department

in those instances where it is demonstrated that adjacent land uses can be adequately served by a shared loading facility. The department is also authorized to require restrictions on the use and hours of operation of any uses that share loading spaces.

- (C) *Loading demand statements.* For commercial or industrial establishments with a total of sixty thousand (60,000) square feet or more of total floor area devoted to such uses, a statement outlining the projected normal demands for loading and unloading for the use, and a plan showing the location on the lot of the space to be provided shall be supplied by the applicant.
 - (D) *Administrative hardship waiver.* For uses which contain less than ten thousand (10,000) square feet of total floor area, the city may waive or reduce the loading requirements (variance required) whenever the character of the use is such as to make unnecessary the full provision of loading facilities or where such provision would impose an unreasonable hardship upon the use of the lot.
 - (E) *Size.* The loading berths required in each instance shall be at least twelve (12) feet in width, thirty (30) feet in length, and fourteen (14) feet in height. The length of one (1) or more of the loading spaces may be increased up to fifty-five (55) feet if a full-length tractor-trailer must be accommodated. Berths may not be within the required front yard setback. The maneuvering apron shall be a minimum twenty-eight (28) feet.
- (Ord. No. 16-07, exh. A(22-158), 9-14-2016)

Sec. 22-159. Stacking spaces.

Stacking spaces shall be a minimum of ten (10) feet in width exclusive of gutter pans and eighteen (18) feet in length. All stacking areas must be separate from other circulation aisles and parking spaces.

- (A) *Food restaurants.* A minimum of six (6) stacking spaces for fast food restaurants with drive-up windows. The distance shall be measured from the drive-up window.
 - (B) *Financial institution drive-up windows.* A minimum of four (4) stacking spaces per drive through lane.
 - (C) *Car wash.* A minimum of three (3) stacking spaces per automatic or self-service car wash bay.
 - (D) *Day care facilities.* A minimum of one (1) stacking space for each ten (10) persons accommodated.
 - (E) *Other uses.* For other uses not specifically provided for herein, the director shall make a determination regarding the number of stacking spaces required.
 - (F) *Conflicts.* Lanes shall be located and designed to minimize turning movements in relation to the driveway access to streets and intersections. The lanes shall be located and designed to minimize or avoid conflicts between vehicular traffic and pedestrian areas such as sidewalks, crosswalks, or other pedestrian access ways.
 - (G) *Bypass lane.* Where stacking lanes are used, a bypass lane shall be provided. Where turns are required in the exit lane, the minimum distance from any drive-up station to the beginning point of the curve shall be thirty-four (34) feet. The minimum inside turning radius shall be twenty-five (25) feet.
- (Ord. No. 16-07, exh. A(22-159), 9-14-2016)

Sec. 22-160. Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks.

- (A) *Motor vehicles prohibited or restricted in residential districts.*
 - 1. It shall be unlawful for any owner, agent, operator or person in charge of any bus, semi-trailer, house trailer, truck and/or truck tractor, to park, store, or keep such motor vehicle on any public right-of-way within any residential district for a period exceeding six (6) hours in any twenty-four (24) hour period, each period commencing at the time of first stopping or parking, unless a permit is first obtained from the police department, except as permitted herein.

2. It shall be unlawful for any owner of property in any residential district in the city to park on, or allow to be parked on, one's residential property or in the public right-of-way abutting one's property, any bus, semi-trailer, house trailer, truck, and/or truck tractor for a period exceeding six (6) hours in any twenty-four (24) hour period, each period commencing at the time of first stopping or parking, unless a permit is first obtained from the police department.

(B) Delivery and construction vehicles: emergency repairs.

1. The restrictions of subsection (A)1 of this section shall not apply to the temporary parking of such vehicles on private property in residential districts whereon construction is underway for which a current and valid building permit has been issued and said permit is properly displayed on the premises.
2. The restrictions of subsection (A)2 of this section of six (6) hours in residential districts shall not apply to routine deliveries by tradespeople or the use of trucks in making service calls providing that such time in excess of six (6) hours is actually in the course of business deliveries or servicing, as the case may be.
3. The restrictions of subsection (A) of this section shall not apply to a situation where such vehicle becomes disabled and, as a result of such emergency, is required to be parked within a residential district. However, any such vehicle shall be removed from the residential district within twenty-four (24) hours by wrecker towing, licensed by the city, if necessary, regardless of the nature of the emergency.

(C) Permitted off-street parking.

1. In R-1 zoned districts, private passenger vehicles without commercial license plates shall be permitted only in driveways. Nothing shall occupy the required side yard in R-1 zoned districts except the temporary parking of passenger vehicles and boats (not exceeding twenty-five (25) feet in length) on trailers that are capable of being rolled away.
2. In the R-1 and R-2 zoned districts, private passenger vehicles, recreational and commercial vehicles three-quarter ($\frac{3}{4}$) ton or less shall be permitted to park only in driveways.
3. No boat or vehicle parked in a residential district may be occupied or used for living, sleeping or housekeeping purposes.
4. No vehicle without a current license plate shall be permitted to park in a residential, commercial or industrial (except as provided herein), or public zoned area.

(Ord. No. 16-07, exh. A(22-160), 9-14-2016)

Secs. 22-161—22-170. Reserved.

ARTICLE VII. LANDSCAPING AND TREE PRESERVATION

Sec. 22-171. Purpose.

This article establishes minimum requirements for landscaping and tree preservation in the city. The purpose of this article is to enhance the beauty of the city and allow for natural plant growth on private and public property, and public right-of-way through an integrated set of landscaping and tree preservation requirements. These requirements are essential to ensure that proper industry standards and guidelines are applied to promote basic landscaping and tree preservation practices in the city. In addition, these requirements will further sustainability and green development principles, and improve the appearance, environment, character and value of the city.

(Ord. No. 16-07, exh. A(22-171), 9-14-2016)

Sec. 22-172. Applicability.

The provisions of this article shall be considered minimum standards and shall apply to all private new development, changes of use, additions and expansions when a permit is required (and when the replacement of plant material and irrigation is required (and/or proposed)) in accordance with this article.
(Ord. No. 16-07, exh. A(22-172), 9-14-2016)

Sec. 22-172. Definitions.

Terms used throughout this article shall take their commonly accepted meaning unless otherwise defined in the definitions section of this code or in the Code of Miami-Dade County, Florida, chapters 18A, 18B, 24 and 32.

Sec. 22-173. Compliance with city standards.

The minimum requirements and standards for landscaping of private property shall be referenced in this article.

The minimum requirements for street trees and their placement shall be found in the Miami-Dade County Street Tree Master Plan, as may be amended.
(Ord. No. 16-07, exh. A(22-173), 9-14-2016)

Sec. 22-174. Compliance with county standards.

Minimum standards or requirements for landscaping and irrigation within the city, if not addressed in this article, shall only then be governed by the following, as may be amended:

1. Chapter 18A, Code of Miami-Dade County, Florida, Landscaping Ordinance and Landscape Manual.
2. Chapter 18B, Miami-Dade County Right-Of-Way Landscape Ordinance.
3. Chapter 24, Code of Miami-Dade County, Florida, Environmental Protection Ordinance.
4. Chapter 32, Code of Miami-Dade County, Florida, Water and Sewer Regulations.
5. In instances where conflicts between articles or chapters occur, the director shall determine, upon review of a proposed application, which article sections shall apply.

(Ord. No. 16-07, exh. A(22-174), 9-14-2016)

Sec. 22-175. General provisions.

Landscaping, trees, and plant material shall be planted and maintained in a healthy growing condition according to accepted horticulture practices. Landscaping shall consist of any of the following, or combination thereof: grass, groundcover, shrubs, vines, hedges or trees. Mulch, rocks, pebbles, sand, and non-living pervious materials may be utilized in the required landscape area. Any landscaping, trees, and plant material in a condition that does not fulfill the intent of these regulations, shall be replaced by the owner.

1. Plant material shall conform to the standards for Florida No. 1 or better.
2. Adequate drainage and mulching shall be provided for planted areas. For adequate root growth, the base of the lot tree shall have a minimum pervious ground area of fifty (50) square feet for root growth and shall not be planted on slopes exceeding three to one (3:1) horizontal to vertical distance.
3. Nothing shall be planted, installed or placed within a utility easement, drainage easement or right-of-way without the consent of the city, county or state department of transportation and the easement holder, as applicable.
4. Sight distances for landscaping adjacent to public right-of-way and point of access.
 - a. When a point of ingress or egress intersects a public right-of-way, or when the subject property abuts the intersection of two (2) or more public rights-of-way, all landscaping within the area described in

subsection 4.b.2 of this section shall allow cross visibility at a level between thirty (30) inches and six (6) feet above the sidewalk grade. However, trees or palms shall be permitted provided they are trimmed so as to allow said cross visibility and provided they are located so as not to create a traffic hazard.

b. With reference to subsection 1 of this section, the areas are as follows:

1. The area of property on both sides of an ingress/egress and the public right-of-way line for a distance of fifteen (15) feet in length and five (5) feet in width along the public right-of-way.
2. The area of property located at a corner formed by the intersection of two (2) or more public rights-of way with two (2) sides of the triangular area being twenty (20) feet in length along the abutting public rights-of-way measured from their point of intersection and the third side being a line connecting the other two (2) lines.
5. Nonresidential fences shall be supplemented with plantings following the buffer requirements found in this chapter.
6. Berms shall not exceed a two to one (2:1) horizontal to vertical distance and shall be stabilized with a ground cover or other vegetation. Berms using turf as a ground cover shall not exceed a three to one (3:1) slope, horizontal to vertical distance.
7. No person may remove or modify any landscaping from a right-of-way without the consent of the city.
8. All required landscaped areas shall be protected by six (6) inch curbing when abutting surface parking pavement except to allow stormwater drainage. The width of all curbing shall be excluded from required landscaped areas.
9. Plants and trees shall only be pruned to promote healthy, safe, uniform, and natural growth of the vegetation and according to the National Arborists Association standards. Root pruning shall be kept to an absolute minimum. Severely pruned trees (pruning more than thirty (30) percent of the canopy) and shrubs shall be replaced by the owner in conformance with the plant material and landscape plan requirements of this article.
10. Prior to removal of any lot tree for the purposes of development, expansions to existing development in accordance with the environmental survey and/or approved development plans, or if the tree is deemed unsafe to the property owner or adjacent properties, the owner shall give the city first right of refusal to relocate the tree to public lands if the owner does not choose to relocate it.
11. Property owners shall maintain all landscaped areas in a healthy growing condition. Property owners shall remove all dead, diseased or dangerous trees, or broken or decayed limbs that may constitute a menace to the public.
12. It shall be the responsibility of all property owners to maintain grass and landscaping which exists in rights-of-way, swales and easements adjoining their properties. It shall also be their responsibility to maintain sidewalks and to keep them free and clear of grass, weeds and debris.

(Ord. No. 16-07, exh. A(22-175), 9-14-2016)

Sec. 22-176. Landscape plan required.

(A) Landscape plans in accordance with this article shall be approved by the city prior to issuance of a building permit except as exempted herein.

(B) The application submittal shall include the following, as applicable:

1. The landscape plan shall be drawn to a suitable scale sufficient in size to show all necessary detail and indicate property boundaries, north arrow, graphic scale and date.

2. Environmental survey, if applicable.
3. Delineate existing and proposed structures, parking spaces, access ways and other vehicular use areas, sidewalks, utilities, easements, height of power lines on the property or adjacent property.
4. Indicate the common and scientific name and quantity of plants to be installed, heights, spread and remarks providing information on the plant material to be installed.
5. Identify all landscape features and non-living landscape materials.
6. Illustrate geologic, historic, and archeological features to be preserved, if applicable.
7. Depict stormwater retention/detention areas.
8. Document zoning district, net lot area, and required open space.
9. Show future canopy coverage and identify impervious areas required by this article.
10. Show building coverage and locations.
11. The plan shall be prepared by and bear the seal of a landscape architect registered in the state for multifamily and nonresidential development.
12. A certification of landscape compliance shall be submitted for multifamily and nonresidential development.

For a new single-family, duplex residence on its own lot or applicable existing development, the owner or owner's agent may certify in writing that landscape and irrigation have been installed according to approved plans. (Ord. No. 16-07, exh. A(22-176), 9-14-2016)

Sec. 22-177. Administration.

(A) Landscaping and irrigation systems shall be completed in accordance with the approved landscape plans and installed prior to issuance of a certificate of occupancy for the site.

(B) The city may grant installation exceptions and extensions due to unusual environmental conditions, such as drought, or over-saturated soil. When exceptions and extensions are provided, the developer or property owner shall provide the city with a surety bond ensuring the installation of the uninstalled landscape materials and irrigation systems. In such cases, the city may authorize a temporary certificate of occupancy for a period of thirty (30) to sixty (60) days.

(C) Any bond posted as surety for exceptions and extensions shall be accompanied by documentation of the estimated cost of the uninstalled landscaping materials and irrigation systems. This documentation may be a landscaping contractor's bid or contract, a nurseryman's bill, or a similar document. The amount of the bond shall be one and one-half (1 ½) times the cost of the uninstalled plant material and irrigation system, based on the highest estimate received. The director is authorized to release part of any security posted as the improvements are completed and approved by the director. Such funds shall be released within ten (10) days after the corresponding improvements have been approved.

(D) A certificate of occupancy shall not be issued until installation of landscape materials and irrigation systems consistent with approved plans is completed and a final inspection is performed by the city. (Ord. No. 16-07, exh. A(22-177), 9-14-2016)

Sec. 22-178. Irrigation plan required.

Prior to installation of irrigation systems, the applicant shall submit an irrigation plan to the city. The plan shall be drawn at the same scale as the landscape plan and indicate, but not be limited to, main, valve, and pump locations,

pipe sizes and specifications, controller locations and specifications, backflow preventer and rain-sensing devices and include a typical sprinkler zone plan indicating type, specifications, spacing, and coverage. If drip irrigation or soaker hoses are proposed, their layout shall be shown.

During installation, irrigation systems shall be designed to avoid impacts with the root structures of existing vegetation. Field changes shall be made to avoid disturbances of such vegetation. These changes may include line routing, sprinkler head placement and spray direction adjustments.
(Ord. No. 16-07, exh. A(22-178), 9-14-2016)

Sec. 22-179. Annual inspections.

Code enforcement shall inspect the site on an annual basis to ensure compliance with the approved site plan and to ensure that the landscape is properly maintained. Corrective actions will be required to be commenced within thirty (30) days of the notice of non-compliance and completed within sixty (60) days.
(Ord. No. 16-07, exh. A(22-179), 9-14-2016)

Sec. 22-180. Maintenance responsibilities.

The owner shall be responsible for the installation, preservation, replacement and maintenance of all plantings and/or irrigation systems required by this article. Plant material shall be maintained according to accepted horticultural practices. Any dead, unhealthy, or missing vegetation, or vegetation disfigured by pruning, shall be replaced with locally adapted vegetation which conforms to the standards of this article and/or to the approved landscape plan. In the event that any vegetation and/or is severely damaged due to an unusual weather occurrence, disease and/or natural catastrophe, the owner shall inform the city of the extent of such damage and shall have one (1) growing season to replace or replant the vegetation and/or irrigation system.
(Ord. No. 16-07, exh. A(22-180), 9-14-2016)

Sec. 22-181. Environmental survey.

Prior to preparation of development plans, an environmental survey, by a landscape architect registered in the state, shall be provided by the applicant to identify existing trees (natives, non-natives, restricted and prohibited as outlined in the Miami-Dade Landscape Manual), under story vegetation, shrubs and groundcovers, known endangered plant species, wetlands, floodplains and topographical features of a site. This enables the planned preservation of existing vegetation and natural features and their integration, to the maximum extent possible, with landscaping proposed for new development. At a minimum, the environmental survey shall include the following:

- (A) Provide a written description of vegetation measuring four (4) inches in diameter at breast height or greater, including species, size, spacing between trees, and general health and vigor of the vegetation.
 - (B) A plan or survey graphically identifying vegetation measuring four (4) inches in DBH or greater located on the site. The plan or survey shall include a schedule identifying the botanical name/common name of plant species, their height and spread, and disposition which among other things, indicates whether the vegetation is relocated, removed, or remaining at its current location.
 - (C) The plan or survey shall identify natural features, such as, but not limited to, wetlands, natural drainage ways, lakes, other water bodies, rock and stone formations, and the like.
 - (D) All new development, including public and private utilities, shall be integrated, to the maximum extent possible with the vegetation and natural features identified in the environmental survey.
- (Ord. No. 16-07, exh. A(22-181), 9-14-2016)

Sec. 22-182. Types of landscaping.

The types of landscaping are enumerated below and shall meet the following performance requirements. The provisions of this section shall not apply to areas zoned MXUOD, where flexibility in landscape design are encouraged.

Surface parking. A landscaped area shall be provided along the perimeter of all parking, loading, drive, and parking storage areas. The landscape area shall have a minimum width of ten (10) feet and shall be planted with four (4) trees and thirty-five (35) shrubs per one hundred (100) linear feet or fraction thereof. Plants, at the time of planting, shall cover the entire width of the area.

1. *Landscaped ends of parking aisles.* Landscaped areas shall be provided at the ends of each parking aisle. These areas shall be a minimum of four hundred (400) square feet for double aisle parking stalls and two hundred (200) square feet for single aisle parking stalls, have a minimum width of ten (10) feet and be planted with a minimum of one (1) tree and ten (10) shrubs per two hundred (200) square feet of area.
2. *Maximum distance to base of tree.* Parking lots, loading areas, drives, and exterior storage areas shall be landscaped so that no parking lots, loading areas, drives, and exterior storage area is more than forty (40) feet from the base of a tree.
3. *Building perimeter.* All multifamily, planned development and nonresidential development shall provide building perimeter planting along the facade of buildings in the amount of two hundred (200) square feet per one thousand (1,000) square feet of building ground floor area. The building perimeter area shall be planted with a minimum of two (2) trees and twenty (20) shrubs per two hundred (200) square feet of area and have a minimum width of six (6) feet.
4. *Street tree canopy.* A tree canopy shall be required along streets serving multifamily, planned developments and nonresidential uses as a unifying element to soften the transition from the public street to the private lot. The minimum requirements for street trees and their placement shall be found in the Miami-Dade County Street Tree Master Plan as may be amended.
5. *Residential tree canopy.* Each lot shall provide trees in accordance with the schedule below. Required trees shall be planted within the front yard. Existing native and non-native (which are not restricted or prohibited) trees over one and one-half (1.5) inches in diameter breast height (DBH) and ten (10) to twelve (12) feet in height may be counted towards fulfilling this requirement.

Lot area requirements:

- a. Less than seven thousand five hundred ((7,500) square feet: two (2) trees.
 - b. More than seven thousand five hundred (7,500) square feet: three (3) trees plus one (1) tree for each one hundred (100) linear feet of frontage of the front yard.
6. *Site canopy coverage.* For multifamily, planned developments and nonresidential developments, incorporating surface parking areas, existing and/or selected trees meeting the provisions of this article shall cover a minimum of thirty (30) percent of the remaining development site.
 7. *Buffer area.* A buffer area shall be required along boundaries of multifamily, nonresidential and planned development lots abutting a less intensive use. Such lots shall comply with the following minimum standards.
 - a. The buffer area shall be located within the boundaries of the higher intensity use property. However, a maximum of fifty (50) percent of the buffer area may be located on abutting property, provided the owners of all abutting properties agree in writing to the proposal. Said agreement shall be created by the applicant, reviewed by the city; it must be recorded by the applicant and provide stipulations for perpetual maintenance and upkeep acceptable to the city.

- b. The area indicated in the matrix below shall consist of trees and shrubs of a type, height, spacing and arrangement that effectively buffers the less intensive use lot from the more intensive use lot. At a minimum, the planting shall consist of six (6) trees and twenty (20) shrubs per one hundred (100) linear feet for five (5) to ten (10) foot areas, ten (10) trees and thirty (30) shrubs per one hundred (100) linear feet for areas greater than ten (10) feet.
- c. An earthen berm (as provided herein) or fence or wall of a design approved by the department may be substituted to offset a portion of the required planting. Fences and walls shall be regulated as to height allowed in the applicable zoning district and constructed of materials congruous with the materials of the main building. Trees and shrubs shall supplement earthen berms, fences, or wall areas at a minimum of fifty (50) percent of the landscape material required for buffers. The landscaping shall be installed along the outside wall.
- d. Buffer areas shall follow the minimum width (in feet) matrix below:
- e. Adjacent use.

<i>Proposed Use</i>	<i>SF</i>	<i>MF</i>	<i>OF</i>	<i>CM</i>	<i>ND</i>
SF	0	0	0	0	0
TF	5'	0	0	0	0
MF	15'	10'	0	0	0
OF	25'	15'	15'	0	0
CM	25'	20'	20'	15'	0
IND	30'	25'	20'	15'	15'

- 8. *Existence of canal, water body, etc., no exemption.* The existence of a canal or water body, alley, right-of-way, or easement shall not exempt property from the buffer requirements of this article.
 - 9. *Screening of outdoor storage areas.* Outdoor storage areas shall be screened from the street, and from residentially zoned land using landscape materials to form a continuous screen which matches the height of the materials being stored and any structure within the enclosure. At a minimum, the landscape material planted shall be eight (8) feet in height at the time of planting.
 - 10. *Screening of mechanical equipment.* All nonresidential, multifamily and planned development shall screen from view all mechanical equipment, such as, but not limited to, ground or roof mounted air conditioning, backflow prevention devices, irrigation and similar pumps, through the use of features such as berms, fences, roof parapets, walls or landscaping. The height of the screening features shall match, or be greater than, the height of the mechanical equipment.
 - 11. *Screening of public utilities.* All public utility appurtenances such as lift stations, relay boxes, ground-mounted transformers, backflow prevention devices, and the like shall be screened from view.
 - 12. *Screening of central solid waste storage area.* Nonresidential multifamily and planned developments shall provide facilities for the central storage of solid waste and recyclables within the lot. Where such facilities are provided outside, they shall be screened by an enclosure constructed of materials congruous with the development's building materials. The enclosure shall exceed the height of any storage container, but not to exceed the tallest building height proposed for the development. The exterior wall shall be screened with trees eight (8) feet in height at the time of planting.
 - 13. *Unoccupied lot areas.* All areas reserved for open space for new and existing development shall be improved with ground cover, trees, shrubbery or mulch. No exposed soils shall be permitted.
- (Ord. No. 16-07, exh. A(22-182), 9-14-2016)

Sec. 22-183. Plant material and installation.

Plant material used to meet the requirements of this article shall meet the standards for Florida Number 1 or better, as set out in Grades and Standards for Nursery Plants, Part I and Part II, Department of Agriculture, State of Florida, as amended. At least seventy-five (75) percent of the trees and fifty (50) percent of the shrubs used to fulfill these requirements on a site shall be native Southern Florida species. In addition, at least seventy-five (75) percent of the trees and shrubs used to fulfill these requirements on a site shall be drought-tolerant species. Prohibited species of plants are governed by Prohibited Plant Species in Miami-Dade County, October 2014, as amended.

1. *Trees and shrubs.* All trees shall be at least ten (10) to twelve (12) feet in height and one and one-half (1.5) inches in DBH at the time of installation, except evergreen trees used for screening and buffering. Evergreen trees used in these instances shall be six (6) to seven (7) feet in height at the time of installation. All shrubs shall be at least three (3) gallons in container size and two (2) feet in height for an upright growth habit shrub and six (6) to twelve (12) inches in height (and two (2) foot wide spread) for a horizontal growth habit shrub.
2. *Tree species mix.* The minimum number of species to be planted shall vary according to the number of trees planted. The minimum number of species mix to be planted is indicated below:

<i>Required Number of Trees</i>	<i>Minimum Number of Species Mix</i>
Under 10	1
20—Nov	3
21—30	4
31—40	5
41+	6

3. *Existing tree credits.* Existing native and/or (not restricted or prohibited non-native) trees may be credited equally towards meeting the planting requirements of this article according to the matrix below:

<i>DBH</i>	<i>Number of Tree Credits</i>
26+ inches	Equal to 5 2.5-inch caliper trees
20 to 25 inches	Equal to 4 2.5-inch caliper trees
12 to 19 inches	Equal to 3 2.5-inch caliper trees
5 to 11 inches	Equal to 2 2.5-inch caliper trees

Note—No credit shall be given for prohibited and restricted trees as outlined in the landscape manual or other legislation and trees located in identified natural preservation areas, and required to be preserved by federal, state, or local laws.

(Ord. No. 16-07, exh. A(22-183), 9-14-2016)

Sec. 22-184. Tree/vegetation protection and conservation.

(A) A tree/vegetation and root protection plan prepared by a landscape architect registered in the state shall be submitted at the time of permit approval and be part of development plans/landscape plans where required by this article. The tree/vegetation and root protection plan shall include details and specifications showing in graphic form how planting will be protected during development of the property. At a minimum, the plan shall indicate the following:

1. Tree protection barriers shall be placed around all trees identified by the tree/vegetation and root protection plan approved by the city. These barriers shall be installed prior to grading, construction, or other land disturbing activity and cannot be removed until after final inspection by the city. The barriers shall be constructed from any material substantial enough to protect the roots, trunk, and crown of the tree, such as two (2) by four (4) standards and one (1) by four (4) rails, silt fencing or orange silt fencing, a minimum four

(4) feet in height on metal or wood posts. The barriers shall be placed at least one (1) foot from the tree trunk for each one (1) inch in tree diameter, with a minimum distance of ten (10) feet required from the edge of the trunk.

2. No soil disturbance or compaction, stock piling of soil or other construction materials, vehicular traffic, storage of heavy equipment are allowed in the tree/vegetation and root protection area or within the drip line of trees to be retained.
3. Dead trees and undesirable scrub growth shall be cut flush with adjacent grade and removed during construction. Tree stumps shall be ground with stump grinder or removed and filled.

(Ord. No. 16-07, exh. A(22-184), 9-14-2016)

Sec. 22-185. Removal, replacement, relocation of significant vegetation.

(A) Removal of specimen trees over eighteen (18) inches in diameter, significant shrubs over twelve (12) inches in diameter, and native tree and shrub species over four (4) inches in diameter is permitted after obtaining site plan approval and/or in the event of hazards posed by vegetation a tree removal permit from the county shall be obtained.

(B) The disturbance of any landscaped area or vegetation required by this article shall constitute a violation. All disturbed landscaped areas and vegetation shall be replanted so as to meet the standards of this article and/or the approved site plan for the development and/or property. Where the vegetation that has been disturbed or damaged existed on the site at the time the development was approved, all replacement vegetation shall meet the standards set forth in this article.

(C) Trees or landscape vegetation that die or are stressed shall be removed and replaced with new vegetation consisting of one (1) or a combination of any of the following measures:

1. Replant according to the requirements of this article and/or the approved landscape plan for the development. If no approved landscape plan for the development is on file with the city, a landscape plan denoting the proposed vegetation replacement shall be submitted to the city for approval. In addition, the following:
 - a. Replace damaged vegetation with an equal amount of new vegetation according to the size of vegetation removed. Any tree with a DBH of at least twelve (12) inches which is damaged or removed shall be replaced with one (1) or more trees which have a cumulative DBH equal to or greater than the original tree. A landscape plan denoting the proposed installation shall be submitted to the department for approval.

(D) Native and permitted non-native trees with a DBH of less than two and one-half (2 ½) inches and below eight (8) feet in height, shall not qualify as native or permitted non-native trees for the purpose of replacement.

(E) Replanting of damaged tree/vegetation shall be located within the general vicinity of the removed tree or in a location approved by the city.

(F) Stop work orders shall also apply for damaging and/or destroying significant vegetation, interior specimen or significant vegetation, landscaping, or tree preservation areas.

(Ord. No. 16-07, exh. A(22-185), 9-14-2016)

Sec. 22-186. Tree preservation and removal.

(A) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Area at breast height means the area in square inches at breast height (four and one-half (4 ½) feet above ground level) of a tree according to the formula where r is the radius of the tree in inches at breast height diameter.

Bond means security in a form acceptable to and payable to the city in an amount equal to the fair market value of the replacement trees to be relocated or whose dripline may be encroached upon, and given by the applicants

guarantee of replacement for a period of one (1) year. The fair market value shall be established each year and based upon published trade wholesale price lists with the appropriate multiplier representing maintenance, installation, warranty and other costs factored in, as determined an arborist or landscape architect retained by the applicant and approved by the department of planning and community development.

Building footprint means the portion of the lot, parcel or plot upon which buildings are to be placed.

Building pad means the building footprint plus the five (5) foot distance from each of its sides.

Complete application means the application and supporting documents have addressed all applicable sections of the prescribed application and that those sections and supporting documents are sufficient incomprehensiveness of data or in quality of information provided.

DBH (diameter at breast height) means the measurement of a tree's trunk diameter in inches at breast height (four and one-half (4 ½) feet above ground level). For trees with less than four and one-half (4 ½) feet of clear trunk, diameters must be of the largest leader measured four and one-half (4 ½) feet above ground level. For multi-trunk trees it shall be the sum of the diameter of the individual trunks measured four and one-half (4 ½) feet above ground level.

Designated for conservation means trees which have been determined for conservation by the as shown on an approved tree permit or areas within the city which have been determined by the county or the city as subject to conservation and as stated specifically within the tree permit as defined herein.

Dripline means the natural outside end of the branches of a tree projected vertically to the ground.

Dripline encroachment means any activity that has the effect of causing soil compaction, injury to lower limbs, grade change, contamination of soil, or damage to the root system. Specifically, this definition shall include acts such as parking of vehicles, use of heavy earth moving or grading equipment, placement of construction materials, excavation and filling, trenching, and the exposure of paints, oils, or chemicals within a tree's dripline. Specifically excluded from this definition are routine maintenance activities such as mowing or walking within the tree's dripline.

Dripline encroachment plan means a plan that shall be presented as part of the tree permit and shall be required for all trees whose dripline is planned to be encroached upon by any construction, excavation, fill or other activities associated with the development of the site. The plan shall include:

- a. Designation of each tree subject to any dripline encroachment;
- b. The reasons for the encroachment;
- c. Detailed description of the proposed efforts to protect the tree from damage due to the encroachment; and
- d. A plan to ensure its survivability per the builder's manual of the department of agriculture.

Equivalent replacement means the replacement of a removed or damaged tree to compensate for that tree's removal or its damage either with one (1) tree the same diameter or a combination of smaller trees that will equal that removed tree's DBH as defined herein. The minimums established in the landscape code of the city for tree planting may not count toward the equivalent replacement amount established here, except where replacement occurs on-site. The replacement species shall be native trees as defined herein or trees of similar species to those removed as approved by the director.

Equivalent value means an amount of money, which reflects the fair market value of the required replacement trees. The current market price of replacement trees shall be established by the applicant's arborist or landscape architect in tabular form, reviewed and approved by the director.

Land clearing means the indiscriminate removal of trees, shrubs and/or undergrowth by stripping or any other process, with the intention of preparing real property for non-agricultural development purposes. The term "land clearing" does not include the selective removal of non-native tree and shrub species when the soil is left relatively undisturbed; removal of dead trees; or normal mowing operations.

Landscape manual means chapter 18A, Landscaping Ordinance, Code of Miami-Dade County, Florida.

Native tree means a tree of a species identified as native to this area by the county or the Association of Florida Native Nurseries (FANN) as may be amended from time to time, and incorporated herein by reference.

Nuisance trees means certain non-native trees often termed exotic, as referenced in the Miami-Dade County Comprehensive Development Master Plan and incorporated herein by reference. There shall be no cost for this permit.

Optional cash payment means fee equal to the fair market value of the required replacement trees which may be paid by the applicant after recommendation from city staff that replacement of trees on-site or off-site is not feasible.

Prune means the removal of dead, dying, diseased, weak or objectionable branches in a manner consistent with the standards established in the USDA tree owner's manual.

Tree means any living, self-supporting woody perennial plant at maturity attains a trunk diameter of at least three (3) inches or more when measured at a point four and one-half (4 ½) feet above ground level and which normally attains an overall height of at least fifteen (15) feet, usually with one (1) main stem or trunk and many branches.

Tree credit means the utilization of native dicotyledons measured at inches DBH or native palm trees measured tree-for-tree as off-site replacement trees for sites being developed. These native trees must be planted after the date of this amendment. This credit only applies for a five (5) year period from date of planting of trees to be utilized for tree credit. This credit is for the inches at planting and is available only for off-site replacement.

Tree-for-tree replacement means replacing a removed tree with a tree or trees with a minimum of three (3) inches in cumulative trunk diameter at breast height.

Tree permit consists of the application and all necessary information relating to existing trees on-site and proposed relocation, removal, dripline encroachment and barricading. Except for nuisance species, this permit shall not be approved prior to city approval of the underlying project.

Tree relocation means to transplant a tree from one (1) location to another.

Tree removal means to permanently remove the trunk and/or root system of a tree.

Tree survey means a sealed survey prepared by a Florida-licensed land survey, and shall show, in addition to all boundary information, the exact location, size, botanical and common name, and diameter of all trees at least three (3) inches in diameter measured four and one-half (4 ½) feet above ground level within the area affected by the development except that groups of nuisance trees as defined herein may be designated as "clumps," with the predominant type shown. The tree species noted on the tree survey shall be certified by a landscape architect. The expense of the survey shall be borne by the applicant.

Trim means to reduce, shorten or diminish gradually a plant or parts of a plant without altering the natural shape.

Understory means the plant life existing under a tree canopy including ferns, bushes and groundcovers.

Undeveloped land means land which is unimproved, in that no principal building or structure has been constructed upon it.

(B) *Permit required.* Except as provided in F.S. § 163.045, a tree permit shall be required prior to any person, natural or corporate, encroaching upon a tree dripline, or cutting down, destroying, removing, relocating or destructively damaging any tree or causing any tree to be encroached upon (within the tree's dripline), cut down, destroyed, removed or relocated or destructively damage.

(1) *Application for tree permit.* The property owner or his authorized agent shall apply for a tree permit from the city manager or his designee, prior to any tree removal, relocation, or drip line encroachment.

(a) This application shall be made on a form provided by the city manager or his designee, and approval shall result in the issuance of the tree permit. The application shall include the following:

1. Name, address and telephone number of those persons or entities who own the property and those persons or entities conducting the removal activities.

2. A detailed written statement indicating the reasons for the clearing of land, dripline encroachment, removal, relocation or replacement of the trees and a proposal to replace or relocate removed or damaged trees and including the following:
 - a. The amount of land to be disturbed.
 - b. The method and equipment to be used.
 - c. The dates the clearing of land, dripline encroachment, removal, relocation or replacement of trees will take place.
 - d. Utilization of any tree credit. A tree planting credit agreement pursuant to this article, as prepared by the city shall be required as a condition of utilizing this option.
 3. Four (4) copies of a legible survey as defined herein drawn to one (1) inch equals to twenty (20) feet scale or to the largest practicable scale(as determined by the department of planning and zoning), indicating the following:
 - a. Location of all existing structures including the building pad as defined herein, improvements and site uses, properly dimensioned and referenced to property lines, setback and yard requirements.
 - b. Existing site elevations.
 - c. Location of existing utility services and all easements.
 - d. The name, common and botanical, size and location of all trees on the site specifically designated by number. The trees shall be tagged and identified consistently with the numbering system utilized on the tree survey. Groups of nuisance trees in close proximity may be designated as "clumps" of trees with the predominate type shown.
 - e. Required tree information shall be summarized in legend or tabular form on the plan.
 4. Four (4) copies of a legible site development plan drawn to one (1) inch equals twenty (20) feet scale or to the largest practicable scale indicating the following applicable items as determined by the department of planning and zoning:
 - a. Location of all proposed structures, improvement and site uses, properly dimensioned and referenced to property lines, setback and yard requirements.
 - b. Proposed site elevations, where any fill or excavation around existing trees is required.
 - c. Location of proposed or existing utility services in relation to trees.
 - d. The name, common and botanical, size and location of all trees on the site specifically designating by number the trees to be retained, removed, relocated or replaced. The trees shall be identified consistently with the numbering system utilized on the tree survey. Groups of nuisance trees in close proximity which are to remain may be designated as "clumps" of trees with the predominate type shown.
 - e. Location of all individual or group barricades.
 - f. Landscaping plan pursuant hereto.
 - g. Tree information required shall be summarized in tabular form on the plan and shall include the reason for the proposed clearing of land, removal, relocation or replacement.
- (d) Dripline encroachment plan. A dripline encroachment plan shall be required if any construction, excavation, filling or other development activity will occur within the dripline of any trees designated for preservation.
- a. This plan shall include:
 - a. Designation of each tree subject to any drip line encroachment.
 - b. A written statement of the reasons for the encroachment.
 - c. A detailed statement of the proposed efforts to protect the tree from damage due to the encroachment, and to insure its survival.

- d. Should any tree die as a result of drip line encroachment, a plan and detailed reasons for any necessary removal or replacement of the tree shall be provided.
 - b. Trees within this plan are subject to the standards for tree protection during development detailed in this section.
 - (a) On-site representative required. The applicant for a tree removal permit on environmentally sensitive lands shall, at the time of application, designate an on-site representative who will be responsible for the installation and the maintenance of all vegetation protective barriers. The representative shall be responsible for supervising the removal of all existing vegetation permitted to be removed. The representative shall be on-site at all times during the vegetation clearing operations.
 - (e) Applications involving developed properties or properties not shown on the map of environmentally sensitive lands as defined herein may be based on drawings showing only that portion of the site directly involved and adjacent structures and landscaping and native vegetation incidental thereto. In such cases, a tree survey is not required. A tree sketch showing the approximate locations of all existing trees with common and botanical name shall be provided instead.
- (2) *Grant of permit by director.* The director shall grant a tree permit upon payment of a fee not to exceed the actual costs of processing the permit, the presentation of the application referenced above, and the presentation of a bond to the city as described in subsection (G) of this section. This permit shall not be effective until a site inspection has been requested and received by the property owner or his authorized agent, and approved by the city.
- (a) Criteria for tree permit. A tree permit shall be issued only after the director determines that existing natural features are being preserved to the maximum extent possible in the design of the improvement as defined in this ordinance, and any of the following conditions exists:
 - 1. For those trees within areas designated on the map of environmentally sensitive lands, over an acre in size, as defined herein, at least twenty-five (25) percent of the native trees are being preserved intact in contiguous land areas. This percentage shall be calculated from the number of native trees within the contiguous land area and shall be applicable to all site plans or plats approved after the effective date of this section.
 - 2. The tree is a nuisance tree as defined in this section. For such removal, no other provisions of this section shall apply and no cost shall be assessed for this permit
 - 3. The tree is located in the building pad, street right-of-way, canal right-of-way, an area designated for line clearing, or a utility or drainage easement where a structure or improvement is to be placed, or where it unreasonably restricts the use of the property.
 - 4. The tree is diseased, injured, or irreparably damaged. For such removal, no other provisions of this section will apply. No cost shall be assessed for this permit. However, minimum landscaping requirements established within article shall be met.
 - 5. The tree is in danger of materially impairing the structural integrity of existing or proposed structures, interferes with utility service, or adversely affects sight distance triangles.
 - 6. The tree is required to be cut down, destroyed, removed or relocated or destructively damaged by a county, state or federal law, or by rules promulgated by a county, state or federal agency. For such removal, no other provisions of this section will apply. No cost shall be assessed for this permit.
 - (b) This permit, if approved, shall be granted for a maximum of six (6) months.
 - (c) This permit shall be posted in a protected area and in a conspicuous place on the site.

- (d) A sign with the minimum dimension of two (2) feet by three (3) feet shall be posted along each roadway frontage of the site and shall be readable from the roadway and shall state:

TREES ON THIS SITE BEING REMOVED ACCORDING TO PERMIT NO. _____
PURSUANT TO CITY OF OPA-LOCKA CODE.

For those permits not requiring tree removal, the sign may read:

TREES ON THIS SITE BEING PROTECTED ACCORDING TO PERMIT NO. _____
PURSUANT TO CITY OF OPA-LOCKA CODE.

(C) *Tree permit required as condition to tree removal pursuant to development or land clearing.* No person, natural or corporate, shall proceed with tree removal pursuant to development or land clearing on any improved, vacant or unimproved land, unless specifically exempted by this section, (including land designated for conservation by the county or the city without a tree permit pursuant to this ordinance.

(D) *Tree permit review.* Review of the tree permit plan shall be completed within fifteen (15) working days of receipt of that plan by the city department of planning and community development.

(E) *Criteria for tree permit review.* Approval of tree permits and replacement of trees or the payment of the optional cash payment as defined herein shall be permitted if the city manager or his designee, after examination of the tree permit, determines that existing natural features as defined in this section are being preserved to the maximum extent possible in the design of the improvement and that any of the following conditions exist:

- (1) For those trees within areas designated on the map of environmentally sensitive lands, over an acre in size, as defined herein, at least twenty-five (25) percent of the native trees are being preserved intact in contiguous land areas. This percentage shall be calculated from the number of native trees within the contiguous land area and shall be applicable to all site plans or plats approved after the effective date of the ordinance from which this section is derived.
- (2) The tree is a nuisance tree as defined in this section. For such removal, no other provisions of this section will apply and no cost shall be assessed for this permit.
- (3) The tree is located in the building pad, street right-of-way, canal right-of-way, an area designated for line clearing, or a utility or drainage easement where a structure or improvement is to be placed or where it unreasonably restricts the use of the property. If certain trees outside the above areas must be removed to allow the operation of equipment, the site plan shall indicate the exact operation area needed and provide for a replacement tree or trees.
- (4) The tree is diseased, injured, or destructively damaged as provided in this section. However, no replacement is necessary unless the removal of the diseased, injured or damaged tree causes the property to contain less than the minimum landscaping requirements.
- (5) The tree is in danger of materially impairing the structural integrity of existing or proposed structures, interferes with utility service, or adversely affects sight distance triangles.
- (6) The tree is required to be cut down, destroyed, removed or relocated or destructively damaged by a county, state or federal law, or by rules promulgated by a county, state or federal agency.

(F) *Tree removal and replacement.* As a condition to this approval of a tree permit or for any tree removal pursuant to this section, the city shall require the applicant to relocate or replace a removed tree at his own expense. However, such relocation or replacement must be within the project site. In the event that relocation or replacement of the tree or trees within the site is not practical as determined by the city manager or his designee, a tree may be removed to public lands, or private property approved by the city manager or his designee.

- (1) *Replacement trees.* A removed tree must be replaced with its equivalent replacement in trees. This replacement tree shall be a type of species having shade potential and other positive values, as further described in

the landscape manual as defined herein, at least equal to that of the tree being removed, and shall be a minimum of six (6) feet in height when planted. The planted tree shall be of native species as defined herein or others as approved by the city manager or his designee; however:

- (a) On lots to be developed for single-family, duplex, townhouse or zero lot line dwelling purposes, trees within the building pad defined herein, the individual driveway leading to that unit excluding circular drives shall be replaced on a tree-for-tree basis.
 - (b) Within multifamily development, trees within the building pad defined herein shall be replaced on a tree-for-tree basis.
 - (c) Within nonresidential properties noted on the environmentally sensitive lands map, trees within the building pad as defined herein shall be replaced on a tree for-tree basis.
- (2) *Maintenance of relocated and replacement trees.* Trees must be relocated or replaced as specified by this section within sixty (60) days of the approval for tree removal; provided, however, if the trees are to be removed to facilitate construction or development activities, said relocation or replacement must be completed prior to the issuance of certificate of occupancy on the construction, development site or phase of development, as applicable. The trees to be relocated or replaced on-site or off-site private property must be maintained in a healthy growing condition and guaranteed for a period of at least one (1) year. Trees to be relocated or replaced on public property must be guaranteed. The guarantee period shall end one (1) year from the date of installation or at acceptance by city staff (whichever is earlier) of any relocated or replaced trees.
- (3) *Optional cash payment.* An optional cash payment equal to the fair market value of the required replacement trees paid by the applicant after recommendation from city staff that replacement of trees on-site pursuant to this subsection is not feasible.
- (4) *Tree credit.* Credit shall be given for the off-site planting of trees meeting the definition of the term "equivalent," replacement at the time of planting against any off-site tree replacement required by this section in accordance with the following terms and condition:
- (a) Credit will be given for those trees planted after the adoption of this section (in excess of tree planting required by this land development code against any tree replacement requirements for tree removal on any property within the city).
 - (b) This credit only applies for a five (5) year period from the date of planting of trees to be utilized for the tree credit.
 - (c) A tree planting credit agreement must be executed by the person requesting such credit on a form approved by the city specifying the numbers and location of such trees for which credit is sought (tree planting agreement needed). This agreement will specify who may utilize the credit and for which properties. The director shall maintain the records of how much credit is currently available in the name of the person receiving such credit. This record shall include the name of the individual authorized to use such credit, the location where the credit is used, the amount of credit used, and the resulting balance of credit available.

(G) *Bond for tree relocation, replacement, or dripline encroachment.* A bond shall be held by the city for one (1) year to insure tree replacement in the event that tree relocation or dripline encroachment results in the death of any tree subject to a tree permit or for any tree damaged or destroyed in any pre-development or development activities such as surveying. Such bond amount shall be assessed at the fair market value of the required replacement trees or for tree replacement which cannot be effected prior to issuance of a certificate of occupancy for the underlying project. If the developer/builder desires, it may employ a landscape architect to supply revised bonding amounts for city review and approval if the landscape architect determines that the trees or palms subject to relocation or dripline

encroachment are unlikely to die as a result of the pre-construction or construction activities. Tree bond amounts of under one thousand five hundred dollars (\$1,500.00) are to be guaranteed through a letter of guarantee rather than through a posting of a cash bond.

(H) *Tree trust fund.*

- (1) *Establishment.* A tree trust fund (hereinafter referred to as the city tree preservation account or the "trust") is hereby established as a depository for tree removal fees and penalty monies. Such monies shall be placed in an interest-bearing account solely for the purpose of funding tree replacement on public property within the city.
- (2) *Term of existence.* The city tree preservation account shall be self-perpetuating from year to year unless specifically terminated by the city commission.
- (3) *Trust assets.* All monies received pursuant to the provisions of this section from public or private concerns shall be placed in trust for an inure to the use and benefit of the city and its successors and assigns in interest.
- (4) *Trust administration.*
 - (a) Trust funds shall be expended, utilized and disbursed only for the purposes designated by the city commission of the city to administer its tree preservation program pursuant to this section.
 - (b) The trust shall be a separate account established and maintained apart from the general revenue funds and accounts of the city.
 - (c) Monies obtained pursuant to this section may be accepted on behalf of the city by the director, and upon receipt shall be delivered to the city department of finance, which shall cause the same to be credited to the trust.
- (5) *Disbursal of assets.*
 - (a) Expenditures of over five thousand dollars (\$5,000.00) shall require approval of the city commission.
 - (b) The city commission shall make expenditures for planting of trees in accordance with land development code provisions pertaining to contracting and purchasing. The city commission shall have control over the disbursement of these monies provided; however, that any such disbursement shall be coordinated with the city manager.
 - (c) Trust funds shall be used to obtain trees, landscaping, sprinkler systems and any other items or materials necessary and proper for the preservation, maintenance, relocation or restoration of tree ecosystems, on any public land in the city. With city commission approval, these monies may also be utilized to engage support elements, such as landscape architects and additional personnel if deemed necessary in the opinion of the director. These monies may also be used to cover the expense of relocation of trees in the city.

Standards for tree protection during development. The following are minimum standards necessary to protect trees designated for preservation from damage during development activities after the tree permit has been approved.

- (1) *Protection of existing trees.* Prior to any clearing of improved, vacant or unimproved land unless specifically exempted from this section (including land designated for conservation by the county or the city), trees to be preserved (as designated in the tree permit approved by the city manager or his designee including any surveying or similar pre-development activity) shall have barriers constructed around them by the developer to prevent physical damage from heavy equipment and other activities incidental to development. Required barriers shall be subject to inspection by the city as a condition of permit approval and prior to any such clearing.
 - (a) *Barriers or barricades.* The barriers or barricades shall be:
 1. Large enough to include the entire area inside the outer edge or dripline of the tree.

2. Conspicuous enough and high enough to be seen easily by operators of trucks and other equipment.
 3. Constructed of sturdy scrap wood (four (4) by four (4) stock), or other sturdy material (not flagging or ribbons) as approved by the director of the department of planning and zoning based on professional judgment that the intent of this provision shall be met.
 4. Constructed as a condition of the issuance of any land clearing, building or other development permit, and prior to any construction or other development activities, and required to remain in place throughout the construction period, barriers or barricades shall be completely removed from the site at the end of the construction period (immediately prior to the issuance of a certificate of occupancy by the city department of buildings and licensing), unless otherwise stipulated in the approved tree preservation plan.
- (2) *Clearing trees and vegetation.*
- (a) *Clearing by hand.* Within the dripline of trees designated for preservation, only clearing by hand is permissible, unless otherwise stipulated in the approved Tree Permit.
 - (b) *Storage.* Trees and vegetation cleared during construction or other development activities shall be stored in an area designated by the city manager or his designee with the grant of a tree permit.
 - (c) *Removal.* All trees and vegetation cleared and stored pursuant to this section shall be removed within two (2) weeks after completion of the clearing.
- (3) *Other required protection of trees and understory.* Developer shall protect the trees and understory plants designated for preservation in the approved tree permit from chemical poisoning, excavation and grade changes to at least the following minimum standards:
- (a) *Utility line trenches.* Utility line trenches shall be routed away from trees to an area outside the dripline to the maximum extent possible.
 - (b) *Grade changes.* Retaining walls and dry wells shall be utilized where needed to protect trees from severe grade changes. For shallow fills, the fill material shall be gently sloped down to the level of the tree roots leaving the tree in a depression larger than the spread of its crown.
 - (c) *Parking on site during construction or development activities.* No parking, vehicle maintenance, storage of construction materials or debris, or cleaning of equipment shall take place within areas marked for preservation, specifically including, but not limited to, within the dripline of any individual trees.
 1. *Parking and storage areas.* The developer or contractor shall establish regular parking and storage areas under the supervision of the city to facilitate compliance with the above standard.
 - (d) *Encroachment.* Encroachment into any barricaded area shall be forbidden with the exception of activities specifically permitted by the approved tree permit, including the dripline encroachment plan as established herein.
- (4) *Pruning of trees and vegetation.* Except as provided in F.S. § 163.045, the developer shall be permitted to cut or prune branches and roots of trees designed for preservation, only under the supervision of the director or his designee (in accordance with the approved permit).
- (a) *Standards where permitted.* The standards for pruning as established by the American National Standards Institute (ANSI A-300) and as outlined in the USDA landscape manual shall be utilized in the pruning of trees within the city.

- (5) *Root system protection.* The root systems of trees shall be protected as follows:
 - (a) *Excavation within the dripline.* The city manager or his designee may approve a dripline encroachment plan, upon an applicant's request to excavate within the dripline of a tree, as part of a tree permit.
 - (b) *Standards for root protection.* The city manager or his designee may establish additional standards for root protection consistent with this section.
 - 1. *Root exposure standards.* If roots are exposed, the developer shall provide temporary earth cover mixed with peat moss and wrapped with burlap to prevent exposed roots from drying out before permanent backfill is placed.
 - 2. *Support of tree or root system.* The developer shall also water, maintain in moist condition, and otherwise temporarily support and protect the tree or root from damage until the tree or root is permanently covered with earth.
 - (c) *Protection of the tree root system.* The developer shall protect tree root systems from damage due to noxious materials in solution caused by run off, or spillage during mixing and placement of construction materials, or drainage from stored materials. The developer shall also protect root systems from flooding, erosion or excessive wetting resulting from dewatering operations.
- (6) *Stormwater runoff.* Whenever possible, stormwater runoff shall be directed into any cypress area contained on site. Prior to entering in the cypress area, all runoff must be filtered through vegetated swales or vegetated berms.
- (7) *Trees damaged during construction.* The developer shall have trees damaged by construction repaired by a professional arborist in a manner acceptable to the city.
 - (a) *Immediate notification of city.* The city manager or his designee must be notified immediately after any damage to any tree damaged by construction operations.
 - (b) *Prompt repair.* Such repairs as necessary shall be made promptly after damage occurs to prevent progressive deteriorations of damaged trees.
 - (c) *Removal and replacement of damaged trees.* The developer shall remove trees which are determined by the director to be incapable of restoration to normal growth pattern. Such trees shall be subject to replacement under the provisions of this section.
 - (d) *Trees that die as a result of damage.* Any tree designated for preservation which is damaged by development activities in violation of this section (not including bonded trees in a drip line encroachment plan under this subsection) and which dies as a result of this damage shall be subject to the tree replacement or removal requirements contained herein except that these requirements may use ABH instead of DBH as defined herein to calculate the equivalent value or equivalent replacement for the dead tree.

(I) *Exemptions.*

- (1) *Damaged trees.* Trees destructively damaged or destroyed by an act of God or an act of war are exempt from this section.
- (2) *Governmental entities.* Any fees or bonding requirements required by this section do not apply to agencies of the federal, state, county and local government including the schoolboard.
- (3) *Utilities.* Any fees or bonding requirements required by this section do not apply to utilities. Utilities are exempt from the inch-for-inch tree replacement requirements herein set forth and shall replace on a tree-for-tree basis.
- (4) *Licensed plant and tree nurseries.* Licensed plant and/or tree nurseries shall be exempt from the terms and provisions of this article only in relation to those trees planted and growing on-site for wholesale and/or retail sale purposes in the ordinary course of said licensee's business.

- (5) *Governmental and private nurseries.* All governmental and private nurseries with respect to trees which have been planted and are growing for future relocation; are exempt from this section.
 - (6) *Developed single-family and duplex properties including townhouse and zero lot line development.* Owner occupied developed single-family and duplex properties including townhouse and zero lot line development not included in the map of environmentally sensitive lands as designate for conservation are exempt from the provisions of this section.
 - (7) *Emergency conditions.* During emergency conditions caused by a hurricane or other disaster, or to protect the public safety, the provisions of this section may be suspended by direction of the city manager.
 - (8) *Nuisance trees.* Nuisance trees as defined herein are exempt from the provisions of this section, except for the requirement to obtain a permit prior to their removal; however, no fee shall be assessed for this permit.
 - (9) *County trafficways.* Planned roadway improvements (including all necessary accessory appurtenances to the roadway improvement such as traffic signals and lighting) authorized by appropriate federal, state or local agencies to regionally significant roadways as identified on the county trafficways plan are exempt from the replacement requirements established herein. However, this shall not exempt those roadways from receiving a tree permit. Regionally significant roadways as identified on the county trafficways plan shall include:
 - Foot trafficways plan.
 - 1. NW 27th Avenue NW 135th Street.
 - 2. NW 37th Avenue/Douglas Road.
 - 3. NW 42nd Avenue/LeJuene Road.
 - 4. NW 22nd Avenue.
 - (10) *City trafficways.* Planned roadway improvements (including all necessary accessory appurtenances to the roadway improvement such as traffic signals and lighting) authorized by appropriate federal, state and local agencies to city trafficways as specified in the Municipal Code are exempt from replacement requirements established herein. However, this shall not exempt those roadways from receiving a tree permit.
 - (11) *Small trees.* Trees less than three (3) inches in diameter as measured four and one-half (4 ½) feet from grade are exempt from the provisions of this section.
 - (12) *Planted trees.* Trees planted on vacant residential property may be relocated or subjected to dripline encroachment prior to the issuance of a certificate of occupancy for a principal building on the property without a permit. All tree removal shall require a permit pursuant to this section. However, for trees planted in designated buffer or landscape parcels or strips any relocation, replacement, or dripline encroachment occurring after one (1) year after planting shall require a permit pursuant to this section.
- (K) *Tree variance.*
- (1) *Generally.* The city recognizes that the regulations provided within this section may not address all situations relating to tree protection and conservation. The city, therefore, may grant variances upon the recommendation of the planning and zoning board, from the provisions of this section upon the filing of an application with the department.
 - (2) *Standards.* A variance shall be granted by the zoning board of appeals, after a public hearing, if it determines that all of the following facts and conditions exist:
 - (a) That there are unique and special circumstances or conditions applying to the property in question that do not generally apply to other properties in the same zoning district.

- (b) That the applicant did not cause the unique and special circumstances or conditions above, nor are these circumstances or conditions the result of mere ignorance or disregard of the provisions from which relief is sought.
 - (c) That the literal interpretation of this land development code section will result in an undue hardship to the applicant; and that such hardship is not self-created by any person having an interest in the property nor is a result of mere ignorance or disregard of the provisions from which relief is sought.
 - (d) That the strict application of this land development code section will deprive the applicant of reasonable use of the property for which the variance is sought.
 - (e) That the variance sought is the minimum variance which makes possible the reasonable use of the property.
- (3) *Application; fees.*
 - (a) Applications for tree variance shall:
 - (i) Be in writing on a form furnished by the city;
 - (ii) Be accompanied by a fee in an amount sufficient to reimburse the city for all administrative expenses associated with each tree variance request; and
 - (iii) State with specificity the grounds upon which the tree variance request is based and include all details (with exhibits when necessary) available to the petitioner to support petitioner's request.
 - (b) If the application is complete as determined by the department of planning and community development, it shall be placed on the agenda of the planning and zoning board at the next available meeting. Complete as stated herein means that the petition and supporting documents have addressed all applicable sections of the prescribed application and that those sections and supporting documents are sufficient in comprehensiveness of data or in quality of information provided.
 - (c) The application shall be scheduled before the planning and zoning board as a public hearing item. The public shall be given notice of each hearing according to the procedure outlined in this land development code. The decision of the planning and zoning board shall be final.
- (4) *Procedure before the planning and zoning board.*
 - (a) Upon public hearing, the planning and zoning board shall first hear the recommendation of the city administration as to the tree variance application. Next, the board shall receive the presentation of the petitioner, and finally, the board shall open the hearing to the public for comments from all interested citizens.
 - (b) In making its presentation the applicant must assume the burden of demonstrating to the board, by substantial competent evidence, support for each position or finding required by subsection (K)(2) of this section for tree variance approval.
 - (c) At the conclusion of the public hearing, the board shall make a final decision on whatever action the board deems to be in the public interest, inclusive of recommending either approval or denial and, where appropriate, conditions which may be imposed upon the tree variance granted. The findings and decision of the planning and zoning board shall be final.
- (L) *Enforcement.*
 - (1) *Generally.* The director shall enforce the provisions of this section.
 - (2) *Individual enforcement.* Each violation of this section or any of its subsections is deemed a separate and distinct infraction of the land development code. Each tree to be protected may be the subject of individual enforcement.

- (3) *Strict liability of owner.* The owner of any property where a tree or trees have been cut down, destroyed, removed, relocated or destructively damaged shall be held strictly liable for a violation of this section unless it can be proven that the damage was caused by:
 - (a) An act of God;
 - (b) An act of war;
 - (c) Development activities on the property pursuant to an approved tree permit; or
 - (d) The owner alleges that the damage was caused by vandals or trespassers and the owner of the property has filed a police report for the incident and had taken reasonable security measures to prevent unauthorized access to the property.
 - (4) *Stop work order.* The enforcement agency shall immediately issue an order to cease and desist any work being carried out in violation of this section or any permit conditions promulgated under this section. Upon notice of such violation, no further work shall take place until appropriate remedial action is instituted as determined by the enforcement agency.
 - (5) *Other enforcement.* Nothing in this section shall prohibit the city from enforcing this section by other means.
- (M) *Penalties.*
- (1) *Fine and replacement.* Each violation of this section shall be punishable in a court of competent jurisdiction by a fine of no more than five hundred dollars (\$500.00) plus the cost of replacement of the trees removed from the site, the costs associated with investigation and prosecution together with any equitable remedies deemed reasonable and proper by the court (cost of replacement tree in this context maybe measured utilizing up to the removed tree's ABH to determine its value or other such measures as deemed appropriate by the court). The removal, relocation or destruction, including dripline encroachment, of each tree for which a tree permit is required in violation of this section shall constitute a separate offense under this section.
 - (2) *Withholding or revocation of city permits.* Failure of any party to follow the procedures as required by this section shall constitute grounds for withholding or revoking site plan approval, building permits, occupancy permits or any other appropriate approvals necessary to continue development. Such extraordinary sanctions, however, shall be instituted immediately upon the direction of the city manager and with the ratification of the city commission at its next regular or special meeting. This ratification shall be considered a public hearing at which all interested parties shall have notice and an opportunity to be heard and to be represented by legal counsel.
 - (3) *After the fact tree permit.* In cases where tree removal is carried out without the necessary permit under the terms and conditions of this section, the property owner shall be required to make application for an after-the-fact tree permit. Application fee shall be triple the regular application fee. The director may grant an after-the-fact tree permit only if he finds that the same application would have rightfully been approved prior to removal of the trees and that each tree destroyed is to be replaced by trees of equal or greater equivalent replacement value. Such replacement trees shall be located on the subject site wherever practical, or they may be required to be located on off-site private or public property. Such replacement shall be assured by a cash bond. If the conditions for an after-the-fact tree permit are not fulfilled, the case shall be referred to the city attorney's office for appropriate action under this section.
- (N) *Contractors to post bond for removal of trash following completion of construction.*
- (1) A cash bond in the amount of two hundred dollars (\$200.00) shall be posted with the office of the building official of the city by all builders wishing to construct within the city either a single-family unit, or a commercial unit of less than five thousand (5,000) square feet to ensure the removal of all trash within a period of five (5) days after construction has been completed and before a certificate of occupancy is issued, and to cover any damage done to public or private property which was caused by the construction.

- (2) For those builders constructing multiple units, dwelling or commercial, there will be a cash bond required in the amount of two hundred dollars (\$200.00) plus ten dollars (\$10.00) for every additional dwelling unit within the structure, or in instances of commercial units, ten dollars (\$10.00) for each additional one thousand (1,000) square feet.
 - (3) In no event, however, shall the city pursuant to the authority provided in subsections (N)(1) and (2) of this section, collect bonds in excess of one thousand dollars (\$1,000.00) from any one (1) person, natural or corporate.
 - (4) In the event that monies posted pursuant to this section are not utilized for trash cleanup and are therefore refundable to the individual and/or corporation posting said bond, and further in the event that said individual or corporation does not request a refund of said monies, the city shall:
 - (a) Make all efforts to locate said individual or corporation and effect the refund; and
 - (b) Retain said monies for a period of twelve (12) months from the date that a certificate of occupancy is issued on the structure for which the bond was posted.
 - a. In the event that the monies cannot be refunded due to the above, the city shall remit the monies to the state pursuant to F.S. ch. 717.
- (Ord. No. 16-07, exh. A(22-186), 9-14-2016)

Sec. 22-187. Plant lists.

Listings of all prohibited trees and plant material, native and approved non-native trees and approved shrubs and ground covers shall be found in the Miami-Dade County Comprehensive Development Master Plan Conservation, Aquifer Recharge and Drainage Element—Policy CON-8I (prohibited species list), and the Miami-Dade County Landscape Manual, as may be amended.

See also Urban Trees for Florida, state department of agriculture and consumer services.

- (A) Prohibited trees and plant material are prohibited and shall be removed from sites and shall not be planted, grown, or offered for sale in the city.
 - (B) Native and approved non-native trees with a DBH of less than two and one-half (2 ½) inches and below sixteen (16) feet in height, and trees which are diseased or weakened by age or injury shall not qualify as approved native or non-native trees for the purpose of replacement.
- (Ord. No. 16-07, exh. A(22-187), 9-14-2016)

Secs. 22-188—22-198. Reserved.

ARTICLE VIII. GREEN STANDARDS

Sec. 22-199. Purpose.

The purpose of the green standards is to establish a program and administrative procedures which minimizes the negative environmental impacts of development; reduces the use of natural resources, creates a healthier and more sustainable living environment; reduces greenhouse gas emissions; promotes economic and environmental health through sustainable and environmentally friendly design in the city.

To assist in implementation of sustainable building practices and strategies that reduce greenhouse gas emissions, a more efficient use of materials, and a reduction in noxious chemicals, the following green building initiatives are required.

(Ord. No. 16-07, exh. A(22-199), 9-14-2016)

Sec. 22-200. Public facilities.

Public facilities shall be constructed to meet the United States Green Building Council (USGBC) Leadership in Energy and Environmental Design (LEED) rating system, the Green Building Initiative's Green Globes rating system, the Florida Green Building Coalition standards, or a nationally recognized, high-performance green building rating system as approved by the state department of management services.
(Ord. No. 16-07, exh. A(22-200), 9-14-2016)

Sec. 22-201. Standards.

A. *Bicycle parking/storage.* Nonresidential development shall provide a minimum of one (1) secure bicycle parking/storage space for each two thousand (2,000) square feet of floor area or part thereof. Townhouse and multifamily development shall provide secure bicycle parking/storage spaces at a ratio of one (1) parking space for each five (5) residential units or fraction thereof. Mixed use development shall provide for a combined number of bicycle parking/storage spaces. The location of the space shall be indicated on the site plan and located in a prominent location near the main entrance of the building or development.

B. *Exchange of off-street parking for bicycle parking.* Nonresidential, townhouse and multifamily development may reduce the amount of required parking in exchange for additional bicycle parking/storage on a one (1) parking space to five (5) bicycle parking/storage space ratio. No more than five (5) percent of required parking shall be eligible for exchange. The bicycle parking/storage shall be in addition to required bicycle parking/storage space.

C. *Hybrid and/or fuel-efficient vehicle parking.* Nonresidential, townhouse and multifamily development requiring twenty (20) or more parking spaces shall provide an area for parking hybrid and/or fuel-efficient vehicles, equal to five (5) percent of the off-street parking required for the site. Such parking spaces shall be clearly marked and reserved for such vehicles and be located close to the handicapped parking spaces.

D. *Low emitting materials.* Nonresidential and/or multifamily development shall incorporate low emitting building or construction materials and substances containing minimal or no levels of volatile organic compounds (low-VOC or no-VOC) for paints, coatings, adhesives, sealants, composite wood, and agri-fiber products. Alternate products and technologies shall be permitted upon written approval of the director.

E. *Water conservation.* Residential and nonresidential developments, as well as major renovations must meet the requirements of the county water-use efficiency standards manual, effective January 2009, as may be amended from time to time. The city shall post a copy of the manual on the city website and shall have a copy available in the department.

F. *Paving materials.* Nonresidential, multifamily, and/or mixed use development shall use paving materials for sidewalks, courtyards, and non-covered parking lots with a minimum Solar Reflective Index (SRI) of twenty-nine (29). As an alternate solution, open grid pervious pavement may be used if it is a minimum of fifty (50) percent pervious and contains vegetation in the open cells.

G. *Roof finishes.* Roof finishes for residential and nonresidential developments shall have a minimum Solar Reflective Index (SRI) of sixty-five (65) for slopes up to a two to twelve (2:12) and twenty-five (25) for slopes greater than two to twelve (2:12). The minimum SRI shall apply to seventy-five (75) percent of the roof surface.

H. *Additional landscape requirements.* In addition to the requirements in the city's landscape article and the county landscape manual, all developments for which a landscape plan is required shall comply with the Florida Friendly Landscaping guiding principles of the Florida Yard and Neighborhood programs. The applicant shall provide written evidence of compliance with each principle.

I. *Shower facilities.* Nonresidential development shall provide one (1) accessible and private indoor shower facility for each building, greater than ten thousand (10,000) square feet in area, to accommodate employees traveling on bicycles. Such areas shall be excluded from floor area ratio calculation.

J. *Storage and collection of recyclables.* Every building shall dedicate an accessible area, serving the entire building, for the collection and storage of non-hazardous recycling materials, including paper, corrugated cardboard, glass, plastic and metals. Such areas shall be a sufficient size to be able to store recyclables for at least one (1) week. Such areas shall be excluded from floor area ratio calculation.

(Ord. No. 16-07, exh. A(22-201), 9-14-2016)

Sec. 22-202. Recycling and diversion of construction and demolition waste.

Sixty (60) percent or more of waste tonnage from construction, demolition, and renovation projects shall be diverted from disposal in landfills. Diversion may be accomplished using new construction methods that reduce the amount of waste generated; through on-site reuse of the waste; delivery of the waste from the site to an approved recycling facility; donation of the material to a non-profit organization in need of such materials; and all other methods as may be approved by the director through acceptance of a construction, demolition and materials management plan (CDMMP).

- A. *CDMMP.* A CDMMP shall be prepared and submitted to the director indicating the method and process for complying with the sixty (60) percent diversion standard along with the following information:
1. Estimated volume or weight of project construction and debris materials to be generated by type.
 2. Estimated volume or weight of construction and debris materials feasible to divert; considering cost, energy consumption and delays; via reuse or recycling.
 3. The vendor and/or facility proposed to collect, divert, market, reuse and/or receive each material diverted.
 4. Estimated volume or weight of the residual materials to be landfilled.
 5. Projects involving the removal of all or part of an existing structure shall indicate deconstruction methods; to the maximum extent feasible. Applicants will indicate the manner and method for making the materials generated available for salvage prior to being transported for disposal in a landfill or transformation facility. If deconstruction is not feasible, the applicant shall indicate the circumstances prohibiting such solution.
- B. *Compliance with the CDMMP.* Prior to scheduling a final zoning inspection, the applicant shall submit documentation indicating compliance with the diversion requirement thresholds specified in the CDMMP. The documentation shall include all of the following:
1. Receipts and gate tickets from the vendor or facility that collected or received construction and demolition debris from the covered project showing the actual weight or volume of that material.
 2. Any additional information the applicant believes is relevant in determining its efforts to comply with this article.
 3. The director shall review the information submitted and determine whether the applicant has complied with the requirements of this article for material diversion. If the director determines that the documentation and certification provided by the applicant does not fully comply with the requirements of this article, the applicant will be found to be in violation and issued a citation equal to three (3) times the diversion fee for the project.
 4. The department may withhold issuance of the certificate of occupancy permit for any project until documentation has been received affirming compliance with this section.
 5. Approval shall not be required where an emergency demolition is required to protect public health and safety.
 6. The department shall only approve the documentation if it indicates at least sixty (60) percent of all construction and demolition debris generated by the project has been diverted pursuant to this chapter; or has received a modification by the department.

- C. *Weighing of waste.* Applicants shall make reasonable efforts to ensure that all construction and demolition materials diverted, or delivered to disposal facilities for disposal, are measured and recorded using the most accurate method of measurement reasonably available. To the extent practical, all construction and demolition debris shall be weighed on scales. Such scales shall be in compliance with all regulatory requirements for accuracy and maintenance. For construction and demolition debris for which weighing is not practical due to size or other considerations, a volumetric measurement may be used. For conversion of volumetric measurements to weight, the applicant shall use the standardized conversion rates approved by the city for this purpose. Documentation of the foregoing shall consist of photocopies of receipts, weight tickets, gate tickets, and other records from recycling facilities, deconstruction contractors, solid waste enterprises and disposal facilities.
 - D. *Modification of the diversion requirement.* An applicant may apply for a modification from the sixty (60) percent diversion requirement if unique site circumstances make it unfeasible to comply. The applicant shall indicate the circumstances that make it unfeasible along with an estimated feasible diversion rate and the rate for each material. The director shall review the application and determine the maximum feasible diversion rate for each material based on site circumstances. This modified threshold rate will be used for comparison purposes in the issuance of a certificate of occupancy. If the Director determines that it is possible for the applicant to meet the sixty (60) percent requirement, the city shall so inform and provide the applicant with the rationale followed for such determination.
 - E. *Approved recycling facility.* Only recycling facilities that are in full compliance with all federal, state, and local permits shall be allowed as an approved recycling facility within a CDMMP.
 - F. *CDMMP application fee.* Each CDMMP application shall be subject to the diversion fee as adopted by resolution of the city commission.
- (Ord. No. 16-07, exh. A(22-202), 9-14-2016)

Sec. 22-203. Green building program designation.

Green building program designation may be granted, after a public hearing, by the city commission.

- A. *Program procedures.* As part of the site plan approval process the applicant shall do the following in order to be considered for the green building program designation:
 1. The applicant must successfully register the project with the Green Building Certification Institute or the Florida Green Building Coalition, or other third party certifying agency as approved by the city manager or his/her designees, and provide evidence of such registration.
 2. Applicant shall have a minimum of one (1) LEED accredited professional, or other similarly accredited professional, on the design team. Applicant shall provide a copy of the LEED accreditation certificate or similar certification and describe the role of the LEED accredited professional on the design team.
 3. The applicant must provide a copy of the pertinent credit checklist indicating which credits the applicant intends to achieve along with a written narrative and detailed drawings and plans illustrating the applicant's intent to meet the prerequisites as described in the applicable LEED rating system or FGBC designation for the specific building type.
 4. Prior to the issuance of the first principal building permit the applicant shall post a performance bond equal to five (5) percent of the total cost of the construction in order to secure performance and fulfillment of the applicant's obligation to obtain the applicable level of certification. In lieu of the bond required by this section, the city may accept an irrevocable letter of credit from a financial institution authorized to do business in the state or provide evidence of cash deposited in an escrow account in a financial institution in the state in the name of the applicant and the city. The letter of credit or escrow shall be in the same amount of the bond if it were posted. If the project fails to meet

the criteria required for certification by the Green Building Certification Institute or other nationally recognized certifying agency within one (1) year after receiving the city's certificate of occupancy, the applicant shall either request an extension or forfeit one hundred (100) percent of the bond. The applicant, for good cause shown, may request an extension of time of up to one (1) additional year to achieve certification. Such extension may be granted at the sole discretion of the city commission after having considered the factors and improvements necessary to achieve the requisite certification. If certification is not achieved within two (2) years after receiving the city's certificate of occupancy, the applicant shall forfeit one hundred (100) percent of the bond. Funds that become available to the city from the forfeiture of the performance bonds shall be deposited in a green building fund established by the city.

- B. *Available incentives.* In furtherance of environmental stewardship and creating a sustainable urban community, green building incentives are established for projects seeking and obtaining third party green building certification.
1. *Increased floor area.* Projects achieving a minimum LEED silver or other equivalent third party certification, up to ten (10) percent increase in floor area; projects achieving a minimum LEED gold or other equivalent third party certification, up to fifteen (15) percent increase in floor area; projects achieving a minimum LEED platinum or other equivalent third party certification, up to twenty (20) percent increase in floor area. The bonus floor area shall not exceed the maximum floor area permitted by the underlying growth management plan designation.
 2. *Increased height.* Additional bonus height up to the maximum permitted by the underlying comprehensive plan designation may be permitted within the mixed use, or institutional or moderate density residential land use designations on the adopted future land use map.
 3. *Reduction in parking.* The applicant may receive a reduction in overall required parking of up to ten (10) percent. In no instance shall a combination of reductions in parking obtained either via a shared parking agreement or via other applicable sections of these land development regulations which allow reductions in parking exceed twenty (20) percent of the required parking for each individual use on the site.
 4. *Expedited site and building plan review.* The director shall implement a program to expedite the review and approval of site plan and building permit applications for green buildings.
 5. *Expedited building inspections.* Building inspections for projects participating in the green building incentive program shall be given priority over non-program participants.
 6. *Reduced site plan review fee.* The applicable site plan review fee shall be equal to eighty (80) percent of the fee required for a non-program participant.
 7. *Eligibility for green building award granted by the city.* For the purpose of publicly recognizing outstanding commitment to "green building," the city shall provide for an award called the Great City Green Building Award to be awarded annually to a development that participated within the program.
 8. *Prior to award.* The applicant shall be required to attend a pre-application meeting with the director for the purpose of a review of the proposed certification checklist and detail of proposed credits for certification. The checklist and certification details shall be confirmed through a development agreement or other agreement between the applicant and the city that the minimum required by the program guidelines, policies and procedures will be incorporated into the development and maintained in perpetuity. The applicant will provide a performance bond in conformance with the requirements set forth herein.

(Ord. No. 16-07, exh. A(22-203), 9-14-2016)

Sec. 22-204. Green building fund.

Funds that become available to the city from the forfeiture of any performance bond shall be deposited in a green building fund established by the city. The city shall use the funds for any of the following: education and training of city staff; education and outreach for the public; energy efficient improvements to municipally owned properties including weatherization, lighting upgrades, heating, ventilation and air conditioning upgrades; open space/green space improvements such as rights-of-way tree plantings; traffic calming, pollution mitigation, low impact drainage and sanitary sewer improvements; and any other additional improvements consistent with green building initiatives as deemed appropriate by the city commission.

(Ord. No. 16-07, exh. A(22-204), 9-14-2016)

Sec. 22-205. Exemptions.

Nothing in these regulations shall prohibit the following:

- A. *Solar equipment.* Solar equipment may encroach into side and rear setbacks.
- B. *Rain barrels.* Rain barrels shall be permitted within side and rear setbacks.
- C. *Clotheslines.* Clotheslines may be located within the rear yard or, in the case of a corner lot, a side yard, and shall not be visible from the public right-of-way.

(Ord. No. 16-07, exh. A(22-205), 9-14-2016)

Secs. 22-206—22-216. Reserved.**ARTICLE IX. CONCURRENCY*****Sec. 22-217. Application for concurrency.**

It is the intent of this article to establish level of service (LOS) requirements for public facilities and to ensure maintaining the LOS standards adopted in the city's comprehensive plan.

The term "concurrency" refers to a finding that public facilities and services necessary to support a proposed development are available, or will be made available, concurrent with the impacts of development. Facilities and services subject to these regulations include transportation facilities (roadways and transit), potable water service, sanitary sewage service, stormwater drainage facilities, solid waste removal service, educational facilities and park facilities. All applications for development orders shall be subject to concurrency review unless specifically exempted.

All development orders shall demonstrate consistency with the comprehensive plan as well as with all applicable provisions of this article. Further, development orders, if applicable, shall demonstrate that specified concurrency facilities shall be available at prescribed levels of service concurrent with the impact of the development of those facilities. A development order shall be permitted only if the final development plan complies with the goals, objectives and policies established in the comprehensive plan.

The department shall verify concurrency based upon maintaining the level of service for the public facilities and services, subject to these regulations, as adopted and as may be amended in the comprehensive plan.

(Ord. No. 16-07, exh. A(22-217), 9-14-2016)

*State law reference—Concurrency, F.S. § 163.3180.

Sec. 22-218. Applicability and exemptions.

In no case shall a development order be issued for a minimum threshold (*de minimis*) or exempted project which would impact a facility subject to these regulations for which a moratorium or deferral on development has been placed.

- (A) *Projects below the minimum threshold (de minimis).* The following development shall be exempt from concurrency review:
 - 1. Residential projects which would result in the creation of one (1) single-family dwelling or one (1) two (2) family dwelling, as well as projects that entail structural alterations, including room additions to single-family structures, which do not change the land use.
 - 2. Any development which does not create additional public facility demands.
 - 3. In the case of transportation facilities, the cumulative total of the *de minimis* impacts, from both improved and vacant properties, shall not exceed three (3) percent of the maximum volume at the adopted level of service standard of the affected transportation facility.
 - 4. Actions administered through development orders and other development which do not increase demand on facilities subject to these regulations, such as grading or land excavation or structural alterations which do not include a change of use and satisfy provisions of subsection (A)1 and 2 of this section.
- (B) *Vested developments.* Vested developments are projects that have valid final development orders or unexpired concurrency reservations pursuant to a plat or building permit issued prior to October 29, 2015.
- (C) *Redevelopment projects.* Proposed redevelopment shall be credited for the existing demand on available capacity. If a redevelopment project generates in excess of the existing demand which it is replacing, a concurrency review shall be required; however, the concurrency review shall only address the amount by which the proposed demand generated exceeds the demand of existing development. The development plan for redevelopment must be submitted no more than one (1) year after the prior use is discontinued in order to qualify for a concurrency credit. If the proposed redevelopment generates equal or less demand than the existing project, the applicant shall be given a concurrency credit enabling the applicant to reserve the unused capacity.
- (D) *City public facilities.* City public facilities which are to ensure the protection of the health, safety and general welfare of the citizens shall be exempt from concurrency review. This shall include all public facility construction projects included in the city capital improvements program required to meet any adopted level of service standard.

(Ord. No. 16-07, exh. A(22-218), 9-14-2016)

Sec. 22-219. Concurrency level of service standards.

The following criteria shall be applied to determine whether or not sufficient public services and facilities capacity exists. Level of service (LOS) standards are as follows:

- (A) *Potable water.*
 - 1. The regional treatment system shall operate with a rated maximum daily capacity no less than two (2) percent above the maximum daily flow for the preceding year, and an average daily capacity two (2) percent above the average daily per capita system demand for the preceding five (5) years. The maximum daily flow shall be determined by calculating the average of the highest five (5) single day flows for the previous twelve (12) months.
 - 2. Water shall be delivered to users at a pressure no less than twenty (20) pounds per square inch (psi) and no greater than one hundred (100) psi. Unless otherwise approved by the county fire rescue department, minimum fire flow, based on the land use served, shall be determined as follows:

<i>Land Use</i>	<i>Minimum Fire Flow Gallons per Minute</i>
Single-family and duplex	750
Multifamily, semiprofessional offices	1,500
Hospitals, schools	2,000
Business (commercial), industry	3,000

3. Water quality shall meet all federal, state, and county primary standards for potable water of the countywide average.
4. Countywide storage capacity for finished water shall be no less than fifteen (15) percent of the countywide average daily demand.

(B) *Sanitary sewer.*

1. Regional wastewater treatment plants shall operate with physical capacity no less than the average annual daily sewage flow.
2. Effluent discharged for the wastewater treatment plants shall meet all federal, state and county standards.
3. The system shall collectively maintain the capacity to collect and dispose of one hundred two (102) percent of the average daily sewage system demand for the preceding five (5) years.

(C) *Solid waste.*

1. The county solid waste management system, which includes county-owned solid waste disposal facilities and those operated under contract with the county for disposal, shall, for a minimum of five (5) years, collectively maintain a solid waste disposal capacity sufficient to accommodate waste flows committed to the system through long-term interlocal agreements or contracts with municipalities and private waste haulers, and anticipated non-committed waste flows.

(D) *Drainage.* The stormwater management (drainage) level of service (LOS) standards for the county contains both a flood protection (FPLOS) and water quality (WQLOS) component. The minimum acceptable flood protection level of service (FPLOS) standards for the county shall be protection from the degree of flooding that would result for a duration of one (1) day from a ten (10) year storm, with exceptions in previously developed canal basins as provided below, where additional development to this base standard would pose a risk to existing development. All structures shall be constructed at, or above, the minimum floor elevation specified in the federal flood insurance rate maps for the county, or as specified in chapter 11-C of the Code of Miami-Dade County, Florida, whichever is higher.

1. Basin-specific FPLOS standards shall be established through the adoption of a stormwater master plan to be approved by the Miami-Dade County Board of County Commissioners and the South Florida Water Management District. Until the approval of basin-specific FPLOS standards through this coordinated process, the following additional exceptions shall apply:
 - a) Wherever the county has adopted cut and fill criteria pursuant to chapter 24-58.3(F) of the Code of Miami-Dade County, Florida (November 30, 2004), including fill encroachment limitations necessary to prevent unsafe flood stages in special drainage basins, the minimum applicable FPLOS standard shall be the degree of protection provided by the applicable cut and fill criteria;
 - b) Where cut and fill criteria have not been established north of S.W. 152 Street inside the urban development boundary (UDB), the minimum acceptable FPLOS standard shall be protection from the degree of flooding that would result for a duration of one (1) day from a ten (10) year storm;
 - c) Exceptions may be granted on a case-by-case basis east of Levee-31 N, where physical characteristics of sites do not allow the ten (10) year one (1) day floodwater to be retained on-site; and

- d) West of Levee-31 N, there shall be no off-site drainage, all septic tank drainfields shall be elevated above the one hundred (100) year flood elevation, and the extent of land filling shall be minimized as provided in applicable provisions of the Miami-Dade County East Everglades Zoning Overlay Ordinance. The county shall review these criteria when the water management facilities programmed in the N.E. Shark River Slough General Design Memorandum and the C-111 General Reconnaissance Review are fully operational.
2. The stormwater management water quality level of service (WQLOS) component of the standard shall be met when the annual geometric mean for each of the following twelve (12) priority NPDES pollutants does not exceed the following target criteria for each of those pollutants within a canal basin, or sub-basin, as determined in accordance with procedures established by county regulatory and economic resources department:

<i>Pollutant</i>	<i>Target Criterion</i>
Biological oxygen demand (BOD)	9 mg/L
Chemical oxygen demand (COD)	65 mg/L
Total suspended solids (TSS)	40 mg/L
Total dissolved solids (TDS)	1,000 mg/L
Total Kjeldahl nitrogen (ammonia-nitrogen and organic nitrogen)	1.5 mg/L
Total nitrate (NOX-N)	0.68 mg/L
Total phosphate (TPO4)	0.33 mg/L
Dissolved phosphate (OPO4)	Not available
Cadmium (Cd)	0.0023 mg/L
Copper (Cu)	0.0258 mg/L
Lead (Pb)	0.0102 mg/L
Zinc (Zn)	0.231 mg/L

3. Applicants seeking development orders in canal basins, or sub-basins, that do not meet either the FPLOS or the WQLOS shall be required to conform to best management practices (BMPs) as provided by the city Code and the Code of Miami-Dade County, Florida. Owners of commercial or industrial properties where BMPs are required, shall, at a minimum, demonstrate that their on-site stormwater system is inspected two (2) times per year and maintained and cleaned as required. Private residential developments in areas where BMPs are required shall demonstrate that their on-site stormwater systems are inspected two (2) times per year and maintained and cleaned as required.
- (E) *Traffic circulation.* The minimum acceptable peak period (meaning the two (2) highest consecutive hours of traffic volume during a weekday) operating level of service (LOS) for all state and county roads in the county inside the urban infill area (UIA) shall be the following:
1. Within the urban infill area:
 - a) Where no public mass transit service exists, roadways shall operate at or above LOS E;
 - b) Where mass transit service having headways of twenty (20) minutes or less is provided within one-half (½) mile distance, roadways shall operate at no greater than one hundred twenty (120) percent of their capacity;
 - c) Where extraordinary transit service such as rapid transit (e.g., commuter rail, Metrorail and People Mover, or premium bus systems) exists, parallel roadways within one-half (½) mile shall operate at no greater than one hundred fifty (150) percent of their capacity.
 2. Notwithstanding the foregoing, the following standards are adopted by the city as its minimum LOS standards for Florida Strategic Intermodal System (SIS) highway corridors in the county inside the UBD:
 - a) Limited access state highways shall operate at LOS D or better, except where exclusive through lanes exist roadways may operate at LOS E.

- b) Controlled access highways shall operate at LOS D or better, except where such roadways are parallel to exclusive transit facilities or are located inside designated transportation concurrency management areas (TCMAs), roadways may operate at LOS E.
- c) Constrained or backlogged limited and controlled access State Highways operating below the foregoing referenced minimum LOS standards must be managed to not cause significant deterioration.

(F) *Mass transit.* The minimum peak-hour mass transit level of service shall be that all areas within the UDB which have a combined resident and work force population of more than ten thousand (10,000) persons per square mile shall be provided with public transit service having thirty (30) minute headways and an average route spacing of one (1) mile, provided that:

1. The average combined population and employment density along the corridor between the existing transit network and the area of expansion exceeds four thousand (4,000) per square mile. The corridor is one-half (0.5) mile on either side of any necessary new routes or route extensions to the area of expansion;
2. It is estimated that there is sufficient demand to warrant service;
3. The service is economically feasible; and
4. The expansion of transit service into new areas is not provided at a detriment to existing or planned services in higher density areas with greater need.

(G) *Recreation and open space.* The minimum level of service for the provision of recreation and open space shall be the following:

1. At least one and eight-tenths (1.8) acres of recreation and open space per one thousand (1,000) resident population;
2. At least one (1) acre of recreation and open space within a five (5) minute walking radius (one-quarter (¼) mile) of all residential and mixed use areas in the city.

(H) *Public schools.*

The city shall coordinate new residential development with the public school facilities for future availability of public school facilities consistent with the adopted level of service standards for public school concurrency, to ensure the inclusion of those projects necessary to address existing deficiencies in the five (5) year schedule of capital improvements, and meet future needs based upon achieving and maintaining the adopted level of service standards throughout the planning period.

Level of service standards for public school facilities apply to those traditional educational facilities, owned and operated by the Miami-Dade County Public Schools that are required to serve the residential development within their established concurrency service areas (CSA). Levels of service standards do not apply to charter schools. However, the actual enrollment (October full-time equivalent (FTE)) of both charter and magnet schools as a percentage of the total district enrollment will be credited against the impact of development.

The adopted level of service (LOS) standard for all county public school facilities is one hundred (100) percent utilization of Florida Inventory of School Houses (FISH) Capacity (With Relocatable Classrooms). The LOS standard, except for magnet schools, shall be applicable in each public school concurrency service area (CSA), defined as the public school attendance boundary established by the Miami-Dade County Public Schools.

The adopted LOS standard for magnet schools is one hundred (100) percent of FISH (with relocatable classrooms), which shall be calculated on a statewide basis.

(Ord. No. 16-07, exh. A(22-219), 9-14-2016)

Sec. 22-220. Concurrency management system (CMS) criteria for review.

The concurrency management system (CMS) is intended to provide criteria and a systematic process for the review and evaluation of all proposed development for its impact on concurrency facilities and services, as required by the Community Planning Act (F.S. § 163.2511 et seq.). The CMS criteria and process are as follows:

CONCURRENCY MANAGEMENT SYSTEM

<i>Potable Water, Sanitary Sewer, Solid Waste, and Drainage</i>
1. A development order or permit is issued subject to the condition that, at the time of the issuance of a certificate of occupancy or its functional equivalent, the necessary facilities and services are in place and available to serve the new development; or
2. At the time the development order or permit is issued, the necessary facilities and services are guaranteed in an enforceable development agreement, pursuant to F.S. §§ 163.3220—163.3243, or an agreement or development order issued pursuant to F.S. ch. 380, to be in place and available to serve new development at the time of the issuance of a certificate of occupancy or its functional equivalent. (F.S. § 163.3180(2)(a))
<i>Transportation Facilities (Roadways and Mass Transit)</i>
1. At the time a development order or permit is issued, the necessary facilities and services are in place or under construction; or
2. A development order or permit is issued subject to the conditions that the necessary facilities and services needed to serve the new development are scheduled to be in place or under actual construction not more than three years after issuance of a certificate of occupancy or its functional equivalent as provided in the adopted local government five-year schedule of capital improvements. The schedule of capital improvements may recognize and include transportation projects included in the first three years of the applicable, adopted state department of transportation five-year work program. The capital improvements element must include the following policies:
a. The estimated date of commencement of actual construction and the estimated date of project completion;
b. A provision that a plan amendment is required to eliminate, defer, or delay construction of any road or mass transit facility or service which is needed to maintain the adopted level of service standard and which is listed in the five-year schedule of capital improvements; or
3. At the time a development order or permit is issued, the necessary facilities and services are the subject of a binding executed agreement which requires the necessary facilities and services to serve the new development to be in place or under actual construction no more than three years after the issuance of a certificate of occupancy or its functional equivalent; or
4. At the time a development order or permit is issued, the necessary facilities and services are guaranteed in an enforceable development agreement, pursuant to F.S. §§ 163.3220—163.3243, or an agreement or development order issued pursuant to F.S. ch. 380, to be in place or under actual construction not more than three years after issuance of a certificate of occupancy or its functional equivalent. (F.S. § 163.3180(2)(c))
5. Reserved.
6. Reserved.
7. Reserved.
<i>Recreation and Open Space</i>
1. At the time the development order or permit is issued, the necessary facilities and services are in place or under actual construction; or

2. A development order or permit is issued subject to the condition that, at the time of the issuance of a certificate of occupancy or its functional equivalent, the acreage for the necessary facilities and services to serve the new development is dedicated or acquired by the local government, or funds in the amount of the developer's fair share (based on county property appraiser's assessed value times 1.25) are committed; and
a. A development order or permit is issued subject to the conditions that the necessary facilities and services needed to serve the new development are scheduled to be in place or under actual construction not more than one year after issuance of a certificate of occupancy or its functional equivalent as provided in the adopted local government 5-year schedule of capital improvements; or
b. At the time the development order or permit is issued, the necessary facilities and services are the subject of a binding executed agreement which requires the necessary facilities and services to serve the new development to be in place or under actual construction not more than one year after issuance of a certificate of occupancy or its functional equivalent; or
c. At the time the development order or permit is issued, the necessary facilities and services are guaranteed in an enforceable development agreement, pursuant to F.S. §§ 163.3220—163.3243, or an agreement or development order issued pursuant to F.S. ch. 380, to be in place or under actual construction not more than one year after issuance of a certificate of occupancy or its functional equivalent. (F.S. § 163.3180(2)(b))
d. In order to achieve the requirement of at least one acre of recreation and open space within ¼ mile of all residential and mixed use areas of the city, impact fees or donations in-lieu-of impact fees may be collected and held in a fund earmarked for the acquisition and/or development of future park acreage in areas where the distance standard is not currently met.
<i>Public Schools</i>
1. For district-wide concurrency service areas:
a. At the time the residential site plan or plat is issued, the necessary facilities and services are in place or under construction; or
b. A residential development order or permit is issued subject to the conditions that the necessary facilities and services needed to serve the new development are scheduled to be in place or under construction not more than 3 years after permit issuance as provided in the adopted public school facilities program.
2. For less than district-wide concurrency service areas: If public school concurrency is applied on less than a district-wide basis in the form of concurrency service areas, a residential development order or permit shall be issued only if the needed capacity for the particular service area is available in one or more contiguous service areas.

(Ord. No. 16-07, exh. A(22-220), 9-14-2016)

Sec. 22-221. Concurrency administration.

The department shall be responsible for concurrency reviews as required by this concurrency management system. The department in conjunction with other city staff shall determine whether adequate capacities for concurrency facilities are available to satisfy the demands of each proposed development.

- (A) *Application for concurrency review.* Concurrency review shall be initiated upon submission and acceptance of an application for a development plan approval, preliminary subdivision plat, or a building permit, whichever first occurs.
- (B) *Project impact assessment.* The department shall use the best available information to establish and evaluate existing capacities for concurrency facilities. The applicant shall be responsible for supplying the anticipated land uses, densities and/or intensities, of a proposed development and the anticipated date of completion of the proposed development. The department shall assess the anticipated impacts of the proposed development on concurrency facilities.

- (C) *Project phasing/timing of improvements.* Concurrency facilities associated with a phased development may also be phased. However, all concurrency facilities necessary to accommodate the impacts of each phase must be available or a schedule for the acquired improvements must be approved prior to the issuance of a development order. The schedule of facility improvements shall ensure that all facility improvements necessary to accommodate the impacts of the development (or portion thereof) for which a certificate of occupancy has been applied shall be in place as provided for in section 22-153.
- (D) *Concurrency review determination.* Upon the conclusion of the concurrency review, the department shall prepare a written determination concerning the proposed development. This determination shall address, but is not limited to:
1. The anticipated public facility impacts of the proposed development;
 2. The ability of existing facilities to accommodate the proposed development at the adopted level of service standards;
 3. Any existing facility deficiencies that will need to be corrected prior to the completion of the proposed development;
 4. The facility improvements or additions necessary to accommodate the impact of the proposed development at the adopted level of service standards and the entities responsible for the design and installation of all required facility improvements or additions; and
 5. The date such facility improvements or additions will need to be completed to be concurrent with the impacts on such facilities created by the proposed development.
- (E) *Concurrency denials.* In the event that the city concurrency review reveals that the proposed development would generate public facility impacts beyond that which can be absorbed by available capacity, the city shall determine whether there is a financial or other legally binding commitment to ensure that public facilities necessary to correct the anticipated deficiency will be in place concurrent with the impacts of the proposed development. If the city and/or a developer are unable to provide such assurances, the project shall be denied.
- (Ord. No. 16-07, exh. A(22-221), 9-14-2016)

Sec. 22-222. Concurrency review.

The department, through review and approval, shall initiate the review to certify that public facilities and services will be available concurrent with the impacts generated by the proposed development as follows:

1. The current available capacity of water service, sewage facilities, solid waste removal service, stormwater drainage, transportation facilities (roadways and transit), park facilities and educational facilities shall be established.
2. The projected impact on each of the public services and facilities listed above will be calculated for the proposed development using the required levels of service contained in the city's adopted comprehensive plan, and in this section, as may be amended from time to time.
3. The projected impact on each of the public services and facilities shall be subtracted from the current available capacity presented above.
4. Certify that the new capacity of the public facilities and service is not below zero (0).
5. A written statement certifying the availability, or lack of availability, of capacity in each of the public facilities and services shall be provided by the department prior to the issuance of the site plan, plat or the building permit, whichever is applicable.
6. Upon issuance of a development order or a building permit, the capacity of the public services and facilities needed to meet the demands of the development being approved shall be reserved for a period of one (1)

year. The city may reserve the public service capacities for a period no longer than one (1) year, unless a valid and binding development agreement between the city and a developer is executed extending the time period. (Ord. No. 16-07, exh. A(22-222), 9-14-2016)

Sec. 22-223. Capacity reservation certificate.

(A) *Reservation of capacity.* After a development order is approved, the capacity demand of said development shall be considered to be reserved for a period of eighteen (18) months. The time frame of the concurrency reservation shall be based on the time frame of the building permit or development agreement. If the time frame of the development order and/or the development agreement lapses, the available capacity assigned to the development order shall be returned to the available capacity pool.

(B) *First-come first-served.* Capacity shall be reserved on a first-come, first-served basis by the department. Such reservation shall be valid only for the specific final development order and for the specified land uses, densities, intensities, construction and improvement schedules contained in the approved development order. Reservation of capacity runs with the land and is transferable to a successor in ownership. Reservation of capacity for concurrency shall expire if the underlying development order or development agreement expires or is revoked. The development order shall state the terms of the concurrency reservation, including the allocation of available capacity, the timeframe for the allocation, and other appropriate legal assurances.

(C) *Project deferrals/development moratoriums.* If at any time the city inventory of the capacity of concurrency facilities indicates that a concurrency facility has dropped below its adopted level of service standard, the city shall cease to issue development orders for projects which would impact the deficient facility or the area impacted by the deficient concurrency facility, as defined within this concurrency management system. Such a suspension or moratorium on the issuance of development orders shall continue until such time as the adopted level of service standard is re-established, the comprehensive plan is amended to reflect an acceptable level of service standard for the facilities in question, or alternative arrangements are made to ensure capacity will be available. (Ord. No. 16-07, exh. A(22-223), 9-14-2016)

Sec. 22-224. Recreation and open space exception and credits.

With respect to each subdivision development or multifamily development, should the developer provide public or private open space for park and recreation purposes for the benefit of the residents of such proposed development, the land dedication requirement or fee in lieu of land shall be reduced by the amount of private park and recreation area provided, subject to the following conditions:

- (A) That the total credit for any private open space for any development shall not exceed fifty (50) percent of the total park and recreation area dedication requirement. Public dedication of open space shall receive one hundred (100) percent credit.
- (B) That each private open space is contiguous and physically designed in a generally compact area within a development in order to be counted as a credit towards meeting the park and recreation area dedication requirement and shall be no less than five-tenths (0.5) acres in size.
- (C) That such open space shall be zoned in an open space district.
- (D) If such open space shall be privately owned, in fee simple absolute, either in common title to the residents of such development or by a corporation or association created for the purpose of holding title to common property for the benefit of such future residents.
- (E) Private open space shall not be encumbered by a lease, use agreement or mortgage and/or any other restriction or encumbrance whereby the developer of the subdivision, his assigns, or successors or heirs will enjoy periodic payments for the use of purchase of such property.

- (F) Private open spaces shall be maintained by and at the discretion of the residents of the development, and that the administration of such maintenance is adequately provided for by a written agreement or by deed restrictions.
 - (H) Private open space shall be adequately defined by legal description by which such open space may be clearly delineated from other property which is subject to individual private ownership.
 - (I) That the use of such private open space is restricted for park and recreational purposes by recorded covenants and restrictions which run with the land in favor of the owners of the property of the development and which have an initial term of enforcement of not less than thirty (30) years, and which cannot be revoked without the consent of the city commission.
 - (J) The yards, court areas, setbacks and open areas required to be maintained by the zoning and building regulations of the city shall not be included in the computation of such private open space.
 - (K) All documentation with respect to the requirements of this section shall be submitted to the office of the city attorney who shall review the documentation and make recommendations to the city commission with respect to its legal sufficiency.
 - (L) Residential development. The fee required to be paid pursuant to the requirements hereof shall be used for the purpose of providing parks, recreational facilities and other amenities.
 - (M) Payment of fees. The payment of fees under the requirements of this section shall be completed in any manner deemed satisfactory by the city commission as long as said payments are made prior to the issuance of any building permit for any portion of the proposed development.
- (Ord. No. 16-07, exh. A(22-224), 9-14-2016)

Sec. 22-225. Capital improvements schedule review.

In order to ensure that proposed capital improvement projects are being planned to meet the concurrency requirements outlined in this article, the department shall draft and review the city's five (5) year capital improvement schedule (CIS). Following the drafting of the CIS, the department shall forward it to the city's local planning agency and the city commission for their review and consideration.

(Ord. No. 16-07, exh. A(22-225), 9-14-2016)

ARTICLE X. SIGN REGULATIONS*

Sec. 22-226. Purpose and intent.

These sign regulations and requirements are the minimum requirements to promote the public health, safety, comfort, good order, appearance, morals and general welfare, to maintain a positive character and image for residential, business and industrial areas throughout the city, to conserve the taxable value of land and buildings, to protect the character and maintain the stability of residential, business, and industrial areas within the city, and to promote the orderly and beneficial development of such areas. The display of signs should be appropriate to the land, building or use they identify and be adequate, but not excessive, for the intended purpose of identification or advertisement.

Unless otherwise prescribed herein, signs placed on land or on a building for the purpose of message display, identification or for advertising a use conducted thereon or therein shall be deemed to be accessory and incidental to subject land, building or use. With respect to signs advertising business uses, these regulations are specifically intended to promote public safety, and avoid excessive competition and clutter among sign displays in the demand for public attention.

(Ord. No. 17-07, exh. A(III), 4-12-2017)

*State law reference—Provisions regulating signage required, F.S. § 163.3202(2)(f).

Sec. 22-227. General principles.

The city is located in Miami-Dade County with major transportation thoroughfares including N.W. 27th Avenue, N.W. 22nd Avenue, NW 135th Street, and N.W. 42nd Avenue. These corridors are the emphasis for development and redevelopment in the city's comprehensive development master plan. The standards set forth herein establish criteria for each type of transportation corridor, tied to roadway classification. This provides a more consistent approach to implementation of the code, as opposed to following zoning district boundaries. (Ord. No. 17-07, exh A(II), 4-12-2017)

Sec. 22-228. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Where there is a question as to the interpretation of a term, word, classification or definition of a sign, the city manager or designee (director) shall make the final determination on the term, category, classification, and/or definition applicable.

For the purposes of this article, the term "sign" means any display of characters, letters, logos, illustrations, figurines, costumed form, whether human or not, or any ornamentation designed or intended, or used as an advertisement or announcement, that directs attention to a particular product, commodity, or business enterprise, or to indicate direction. Use of vehicles, equipment, inflated balloons, lighting, or the like as an attention attractor or advertising device visible from public or private streets, with or without a printed or written message or advertisement, shall also be considered a sign.

Abandoned sign means a sign which advertises or identifies a business establishment, product or activity, not legally established, has ceased, or which is no longer in operation.

Advertising means any form of public announcement intended to aid, draw the attention to, directly or indirectly, in the sale, use or promotion of a product, commodity, service, activity or entertainment.

Anchor tenant means an anchor store shall be considered the major tenant/occupant/use of a building, property, and/or development.

Animated signs means a sign which utilizes motion of any part by any means, including wind power, or displays flashing, oscillating or intermittent lights, animated animal figures or characters.

Automatic electric changing signs means electronic, LCD or LED type signs allowing changeable copy by automated or mechanical means used to depict change of light, action, create special effects, and messages for advertising purposes. Referred to as ACS signs in the Code of Miami-Dade County, Florida.

Awning/canopy signs means any sign affixed to or supported by an awning or canopy. Such sign shall be considered a wall sign.

Banner means a temporary sign made of flexible, sturdy fabric or material and temporarily fixed to a building or structure, or mounted in the ground. Such signs shall include pennants, streamers, or other similar types signs.

Billboard means a sign that advertises a commercial business, commodity, service, product, or activity not conducted, sold, offered, or available on the premises where such sign is located, the copy of which may be intended to be changed periodically. The term "billboard" is referred to as a Class "C" sign in the Code of Miami-Dade County, Florida.

Box or cabinet sign means any sign, the face of which is enclosed, bordered or contained within a box-like structure, frame or other device, such box may be internally illuminated, and mounted flush to the building facade. Such sign shall be considered a wall sign.

Brand identity means the registered corporate trademark of a business, either a logo, logotype, color scheme, slogan, or designs which through consistent copyrighted use have become identifiable with a specific business or institution.

Building directory sign means a sign listing the location of activities, services, addresses and/or tenants within a building, incidental to the property it is located on, but not intended to advertise the use in any manner.

Changeable copy sign (manual) means a sign on which the message copy is changed manually in the field through the utilization of attached letters, numbers, symbols, and other similar characters or changeable pictorial panels.

Channel lettering sign means a fabricated sign of which the lettering and/or other copy is customarily a translucent white or colored acrylic and which has internal illumination within each individual letter and/or component to illuminate the face of each individual letter and/or component. Such signs shall be considered wall signs.

Construction sign means a sign erected or maintained on the premises temporarily while undergoing construction by an architect, contractor, sub-contractor, developer or finance organization, or other type of affiliation with the construction, at which location such individual is furnishing labor, materials, or services and bearing the name of same. Such signs shall be considered a temporary sign.

Copy means all wording, lettering, graphics, logos, trademarks, slogans affixed on a sign in either permanent or removable letter form.

Directional sign/informational signs means a sign which only conveys information or provides direction, and is located and designed to be viewed on site by pedestrians or motorists. Such signs shall include, but not be limited to, signs that depict "entrance," "exit," "caution," "no trespassing," "no parking," "valet parking."

Directory sign means a sign, either freestanding or wall-mounted listing the location of activities, services, addresses and/or tenants within a multi-tenant/use development, incidental to the property it is located on, but not intended to advertise the use in any manner.

Drive-through sign means a sign intended to display menu items for an establishment with a drive-through intended to be visible to the drive-through patrons and not visible from the public rights-of-way.

Entry features means a combination of elements including signs, landscaping, and other architectural elements placed to one (1) or both sides of a roadway or entranceway of a property and/or development, either nonresidential, residential, or mix-use.

Facade means the entire building wall including wall face, parapet, fascia, windows, door, and canopy of an elevation of the building.

Flag means a piece of fabric, cloth, or sturdy material usually oblong, rectangular, square or triangular attached at one (1) edge to a staff, pole or cord that is usually the symbol of a nation, state, county, municipality, or civic organization or a corporate entity.

Freestanding sign means a self-supported sign structure ground-mounted and not attached or affixed in any way to a building or any other structure.

Graphics means the use of illustrations, photos, logos, typography, etc. as a wall treatment or as part of a sign either illuminated and/or non-illuminated.

Handheld sign means any sign held, suspended, or supported by an individual.

Illegal sign means any sign placed, erected or installed without proper approval or permits from the city, or not in compliance with the regulations set forth in this article.

Illumination-external means illumination of a sign face or graphic element from a shielded light source that is not internal to the sign itself.

Illumination-internal means a light source concealed or contained within the sign which becomes visible by shining through a translucent surface, letter or graphic image.

Inflatable/balloon means a sign that is an inflatable structure and/or object of any size which may contain a display of copy or not, and intended to direct attention. Standard balloons with or without copy shall be considered an inflatable/balloon sign.

Logo means a registered symbol, emblem, trademark or graphic device used as a badge or identity, used by an organization or corporation to identify corporate property or products.

Logotype means the use of a group of words or a word which has been designed to create a unique identity or trademark for an organization or corporation.

Maintenance means the routine cleaning, painting, repair or replacement of defective parts of a sign in a manner that does not alter the basic copy, design, size or structure of the sign.

Marquee/marquee sign means a permanent roof-like shelter extending from part or all of a building face, projecting from and supported by the building and extending beyond the building wall, building line or street line. Marquee signs may or may not project over the public right-of-way. For the purposes of this article, a marquee sign shall be treated as a changeable copy sign.

Mascot/figurine/costume sign means any figurine, costumed form, whether human or not, used or intended to be used as a commercial advertisement or announcement, that directs attention to a particular product, commodity or business enterprise.

Memorial sign means a sign which memorializes a person, event, or historical building or object. In addition, memorial signs include plaques or masonry on buildings which may involve the display of name, date of erection and use of building.

Menu board sign means a sign that is displayed immediately adjacent to the front entry of a restaurant in which is displayed the published menu and corresponding prices of the food and services provided.

Mixed-use development means a development, site, and/or building with multiple uses of which there is a mix of residential and nonresidential uses.

Monument sign means a freestanding sign where the supporting structure of the sign face is architecturally and aesthetically integrated into the overall design of the sign. The base of supporting structure is embellished to conceal all structural or support members. The perimeter of said sign is landscaped to enhance the area adjacent to the sign. Eighty (80) percent of the base supporting structure shall be in contact with the ground. The sign face should be solid and not intended to be a pole type design.

Multi-story structure means a building or structure or portion thereof with two (2) or more stories measured from grade, to include stories used for parking.

Multi-use/multi-tenant development means a development, site, and/or building with separate unrelated business entities, each considered a principal use, such as, but not limited to, a shopping center, office building, and mixed use development.

Mural means any mosaic, painting or graphic art technique applied, implanted or placed directly onto a window or wall and containing no copy, advertising symbols, lettering, trademarks or other references to the premises or to the products and/or services offered for sale on the premises.

Mural advertising sign means any mosaic, painting or graphic art technique applied, implanted or placed directly onto a window or wall/which contains copy, advertising symbols, lettering or other references to the premises or to the products and/or services offered.

Nameplate sign means a sign indicating the name, and/or profession or address of a person residing on the premises or legally occupying the premises.

Neon sign means a sign using neon gas tubing as a light source.

Nonconforming sign means a sign existing within the city on the effective date of the ordinance from which this article is derived or a sign existing in an area annexed to the city, after the effective date of the ordinance from which this article is derived, which, by, but not limited to, its design, height, type, copy, sign area, location, use, structural support or other characteristics does not conform to the requirements of this article.

Off-premises sign means a sign located or placed other than on the premises or property of which the copy is intended.

Open house sign means a sign advertising and pointing toward the direction of a house that is open for inspection for the purpose of selling said property. Such signs shall be located on the property of which the copy is intended, otherwise, such sign shall be considered an off-premises sign.

Parapet means the extension of the building facade or wall above the roof line.

Permanent sign means a sign intended for permanent use, without a permitted duration period.

Pole sign means a permanent sign erected, supported, mounted on a pole or poles which is wholly independent of any building or other structure for support.

Portable sign means any movable sign not permanently attached to the ground or a building.

Projecting sign means any sign projecting more than twelve (12) inches from the building facade that it is affixed to, or suspended from above and perpendicular to the building facade.

Public art means publicly accessible original art that enriches the city and evokes meaning. It may include permanent visual art, performances, installations, events and other temporary works, preservation or restoration of unique architectural features, ornamentation or details. It may also include the artist-designed infrastructure and structures themselves. Public art may be classified as a sign, and should consider the site, its context and audience. Public art may possess functional as well as aesthetic qualities; it may be integrated into the site or be a discrete work.

Raceway signs means signs employing a metal box or raceway which conceals the transformers and electrical wiring necessary to operate the sign. The logos or letters that make up the sign are attached to the raceway instead of to the building facade.

Real estate sign means a sign that advertises the owner, or his agent, indicating property which is for rent, sale or lease.

Reverse channel wall sign means individual copy lettering or sign components that are individually mounted directly on the wall having lighting concealed within the letter or number so that the light reflects off the wall (i.e., reverse lighting), creating a halo effect.

Roof sign means a sign erected over or on the roof, or extending above the roof line, which is dependent upon the roof, parapet or upper walls of any building, or portion thereof, for support.

Sandwich sign means a moveable sign not secured or attached to the ground. Such sign shall be considered a portable sign.

Sidewalk sign means advertisement written, stenciled, or painted on the pavement of the right-of-way, as well as sandwich signs.

Sign face means the portion of the sign of which copy is displayed, and shall not include the base or foundation of the monument sign.

Sign height means the vertical distance from the top of the grade to the top of the sign's highest element, including all structural elements. Grade shall be construed to be the newly established grade after construction, exclusive of any filling, berming, mounding or excavating solely for the purpose of locating the sign.

Sign setback means the distance between the adjacent property line to the closest part of the sign structure.

Sign spacing means the distance measured in a straight line from the closest part of one (1) sign structure to closest part on another sign structure or building or structure, except, that when measuring the spacing between signs on the different rights-of-way the measurement shall be taken along the perimeter of the property line and/or then taken perpendicular to signs located across such rights-of-way. Spacing between signs and a building or structure shall be the shortest distance measured from the closest part of the sign structure to the closest part of the building facade.

Sign plan means a set of plans depicting the proposed aesthetics, creative, and dimensional standards for all signage within the property. Such plan shall be in compliance with the regulations contained herein.

Slogan means the use of a group of words or a word which has been designed to create a unique identity or trademark for an organization or corporation.

Sign area for monument, and freestanding signs means the total square footage of a sign inclusive of structural supports.

Sign owner means the owner/tenant/person responsible for the installation, erection, mounting, maintenance, and/or repair of the sign shall be considered the sign owner.

Single use development means a development, site, or building with one (1) principal use. Such use may have related ancillary and accessory uses to the principal uses, but together the uses are intended to operate as one (1) principal use.

Snipe sign means a sign which is tacked, nailed, posted, pasted, glued or otherwise attached to trees, poles, stakes, or fences, or to other objects with the message appearing thereon not applicable to the present use of the premises or structures upon which the sign is located.

Special event sign means a sign identifying a temporary event being held within the city-sponsored or -approved by the city.

Spot/search light sign means a strong, focused light, either stationary or in motion, with the intention of attracting attention to the business, premises, activity or event.

Street frontage means the linear footage measured along the length of the property line of a piece of property, as it abuts to the street right-of-way of a public street. Frontage that abuts an alleyway shall not be counted towards street frontage calculations.

Temporary construction fence sign (TCFS) means a sign affixed to, or integrated on construction fences and walls, as such fences and walls may be required for compliance to applicable regulations, and to shield and buffer construction sites from public view. A TCFS is intended to include certain information and graphic material to identify, advertise, or draw attention to the proposed project.

Temporary holiday sign means a sign that represents a recognized holiday, cultural celebration or religious observance. Such signage shall include associated decorations, lighting, and animation.

Temporary sign means a sign intended for temporary use with a permitted duration period.

Umbrella sign means a sign affixed to an umbrella, usually located outdoors.

Vehicle sign means a sign affixed to, contained within, or painted on a transportation vehicle including automobiles, trucks, boats, trailers, and recreational vehicles for the purpose of identification or advertisement, whether stationary or in motion, with the primary purpose of calling attention to a business establishment, service, production or event.

Wall sign means a sign installed or erected parallel to the facade of any building upon which it is attached and designed to be in proportion to the architectural facade or wall upon which it is fastened and not projecting or extending above the buildings' roof or parapet line. Wall signs shall include all signs such as awning/canopy signs, marquee signs, or any other similar signs, but shall not include signs defined herein as window signs.

Window area means the window area of a storefront and shall be the total square footage of all glass areas of a storefront. This would include all areas of glass windows, doors, side lights and transoms, fixed or operable, located on the elevation of the building or storefront on which the front door or primary entrance to the establishment is located.

Window sign means any sign located within a window or upon the inside surface or outside surface of the window glass used to attract such attention located within the premises. Signs which are located within three (3) feet from the window opening shall be considered a window sign. Such window signs shall include, but not be limited to, signs indicating professional/financial affiliations, services and products, menus/price lists, opening hours, and other similar type signs.

Window sign area means the total area of the imaginary rectangles contiguous to and surrounding each word, picture, logo, logotype, symbol, banding or graphic, as a percentage of the total ground or second floor window area of the premises as it may apply in accordance with this article.
(Ord. No. 17-07, exh. A(IV), 4-12-2017)

Sec. 22-229. Sign plan required.

A. *Purpose.* The purpose of a sign plan is to encourage diversity, creativity, uniformity of all signs for more aesthetically pleasing development. Signage shall be in compliance with an approved sign plan. Owners, or their authorized designee shall submit a proposed sign plan in an application form approved by the city, with established fees, to the director.

B. *Approval required.* Unless otherwise provided in this ordinance, approval of a sign plan by the city shall be required prior to the issuance of a sign permit to install, alter, erect, construct, post, paint, maintain, or relocate any sign. The issuance of a sign permit is subject to a two (2) step process:

- I. Sign plan approval with department of planning and zoning.
- II. Sign plan permit with the department of buildings and licensing.

It shall be unlawful for any person to install, alter, erect, construct, post, paint, maintain, or relocate, within the municipal limits of the city any sign, unless otherwise exempt by this ordinance, without first having obtained a permit from the city, and/or have a valid permit for said work. Said permit shall be issued by the department of buildings and licensing only after determination has been made by the department of planning and zoning that full compliance with all conditions of this ordinance have been met and complied with. Before any permit is issued, an application for such permit shall be filed on a form approved by the city with the established fee.

Applicants must obtain sign plan approval from the department of planning and zoning, per the process outlined in this article. The department, if it approves the application, will issue a letter to the applicant which then can be brought to the department of buildings and licensing to obtain a sign plan permit.

C. Community development sign plan approval process.

Sign plan inclusions. The sign plan shall include all signs to be installed within the property, including any out parcels to be and/or developed sharing common driveways and parking.

1. *Submittal information.* In addition to all customary and required submittal information required for permitting, permit applications involving signs shall, at minimum, include:
 - (a) A drawing of the subject site showing the proposed sign location and distance from property lines and from other signs on the site and adjacent properties;
 - (b) A dimensioned elevation drawing showing the sign area calculations, proposed sign area, height and other dimensions, stress/wind load levels, and proposed illumination, areas of changeable copy, if applicable; and
 - (c) Landscape plan indicating plant material and ground cover.
 - (d) All other information as may be necessary to fully advise and acquaint the issuing department to determine compliance with this ordinance, the Florida Building Code, and other applicable codes adopted by the city. This shall include the sign copy for each sign, including, but not limited to, logos, trademarks, etc., as well as the type of sign, including, but not limited to, the type of lettering i.e., channel letters or cabinet style, color, materials, changeable copy area, etc.
2. *Procedure.*
 - (a) *Investigation/time limits.* Upon the receipt of a completed permit application and upon payment of the appropriate permit fee by the applicant, the city manager or designee shall promptly conduct an investigation of the application, the proposed sign and the premises. The city manager or designee shall grant or deny the permit application within thirty (30) days from the date the completed application with application fee was filed with the city manager or designee.
 - (b) *Issuance or denial of permit.*
 - (1) Sign plan criteria. In reviewing the sign plan the city manager or designee shall determine if the following criteria has been met:
 - (a) That the signage for the project is in keeping with the overall architecture and character of the building development, etc.
 - (b) That the signage for the project is designed to meet the directional needs of the project for communication, identification, wayfinding, regulatory and informational messages in keeping with the overall architectural theme of the development or project.
 - (c) That the signage proposed is legible, conspicuous and easily readable.
 - (d) That the visibility and impact of the type of sign, number of signs, design, size, method of, construction, illumination and location of the proposed signs are in compliance with the minimum standards of this ordinance, and does not adversely impact adjoining properties, or create a hazard of health risk.
 - (e) That the proposed signage is consistent and not in conflict with the intent and interests of the city, as stated in the policy adopting this code.
 - (2) If, after review and investigation as required herein, the city manager or designee determines that the application meets the requirements contained in this chapter and determines the proposed sign will not violate any building, electrical or other adopted codes of the city, including the provisions of this ordinance, the city manager or designee shall issue the permit.
 - (3) The city manager or designee shall have authority to refuse the issuance of or revoke any license or permit issued under the provisions of this article if the application submitted shall not comply with provisions in this article. In addition, the director shall have the authority to refuse issuance of permit approval if:
 - (a) The application for a permit contains a fraudulent statement or misrepresentation.
 - (b) The activity licensed or regulated fails to deposit the necessary and proper monies required by the applicable ordinances or if the applicant owes outstanding monies to the city.

- (c) The activity advertised is conducted in an unlawful manner, or in a manner which constitutes a breach of the peace or a menace to the health, safety or general welfare of the city.
 - (d) The proposed sign would violate any building, electrical or other adopted codes of the city. A copy of the report shall be sent by certified mail to the designated return address of the applicant on the application.
 - (4) If the application is denied, the applicant may submit a corrected application within fourteen (14) days of the notice of denial without additional cost, and staff will review the corrected plan within fourteen (14) days of receipt of resubmission. If the applicant does not resubmit a corrected application within fourteen (14) days of the notice of denial, a new sign plan approval application and fee will have to be submitted, and the city will have an additional thirty (30) days to review the new application.
3. *Appeals.* The decision of the city manager or designee to grant or deny a sign permit is an administrative decision. Any person aggrieved by the action of the city manager or designee in the denial or revocation of any permit or license shall have the right of appeal to planning and zoning board. Appeal shall be taken by filing a written statement setting forth the grounds for appeal with the board within fourteen (14) days after written notice of denial or revocation. The commission shall set a time and place for hearing the appeal and notice of hearing shall be given to the appellant five (5) days prior to the hearing. The decision and order of the Board shall be final and conclusive. Such appeal shall be submitted on a form approved by the city and accompanied with a fee as established in the city's schedule of fees.
- A. *Variances.* Whereas it is the attempt of this sign code to reduce the proliferation of the number, size and types of signs, and whereas it has been determined that less-obtrusive signs will ultimately lead to a healthier economy within the city, therefore, no sign shall be permitted to be installed, altered, erected, constructed, posted, painted, maintained, or relocated, contrary to the provisions of this ordinance unless a variance or waiver is approved by a majority vote in favor of granting such a variance and waiver by the members of the city commission:
- 1. A decision to grant a variance must be in conformance with the following criteria and procedure:
 - (a) The variance is limited to height and/or setback requirements.
 - (b) There is something unique about the building or site configuration that would cause the signage permitted by this ordinance to be ineffective in identifying a use or structure that would otherwise be entitled to a sign.
 - (c) The grant of a variance is not contrary to the plan and intent of the sign code or any adopted redevelopment plan or policies, the aesthetics of the area, and does not create a nuisance or adversely affect any neighboring properties.
 - (d) The sign provides certain aesthetics, landmark recognition, or public benefit that is in the best interest and general welfare of the city, without detrimental impacts to the surrounding area.
 - 2. A variance may be petitioned as set forth below:
 - (a) Complete an application as provided by the department of planning and zoning with the established fee.
 - (b) Provide evidence that the granting of the variance or waiver is consistent with the criteria set forth above for the granting of such variance or waiver.
 - 3. All variances to this ordinance shall only be granted pursuant to the above provisions, and after a public hearing. All variances may be conditioned on requirements deemed necessary in granting said variance.
 - 4. Any variance granted pursuant to this section shall become null and void if a building permit for the approved sign is not applied for within one hundred eighty (180) days of the written ruling from the

city planning and zoning board. The director may issue an extension for up to an additional one hundred eighty (180) days, providing written request with just cause and reason is provided prior to the expiration of the original one hundred eighty (180) day period. Additionally, said variance shall become null and void in the event that a permit expires or is revoked.

5. All signs approved by this waiver process must be constructed and installed as substantially in compliance with the information and plans presented to the city planning and zoning board both in writing and verbally. Failure to construct or erect a sign substantially in compliance with the information and plans presented shall render the variance null and void, and any sign installed, erected not in substantial compliance with the information and plans provided for the variance shall be considered an illegal sign.

(Ord. No. 17-07, exh. A(V), 4-12-2017)

Sec. 22-230. Sign permit.

It shall be unlawful for any person to install, alter, erect, construct, post, paint, maintain, or relocate, within the municipal limits of the city any sign, unless otherwise exempt by this ordinance, without first having obtained a permit from the city, and/or have a valid permit for said work. Said permit shall be issued by the city manager or his designee only after determination has been made that full compliance with all conditions of this ordinance have been met and complied with. Before any permit is issued, an application for such permit shall be filed on a form approved by the city with the established fee.

The approval of a sign permit may require compliance with the Florida Building Code, and/or other provisions of this ordinance. Signs required to comply with the Florida Building Code shall be filed as a building permit under the city's established building permit process and procedures.

A. Permit duration and extension.

4. Except for permits issued as part of a building permit which shall have duration in conformity with the Florida Building Code, or as such other duration criteria as may be otherwise set forth in this ordinance, sign permits shall expire within ninety (90) days from date of issuance.
5. If a sign permit shall expire, a new sign permit with established fees shall be required prior to any sign being installed, altered, erected, constructed, posted, painted, maintained, or relocated.
6. The city manager or designee may extend such permit for up to a ninety (90) day period with just cause and reason being provided by the applicant.
7. Petition for extension shall be filed with the city manager or designee on a form approved by the city with the established fee for the extension request. If a petition for extension is filed more than fifteen (15) days prior to the expiration of the permit and if the extension is granted, the applicable sign permit fee shall not be required.

- B. *Identification of permit holder required.* Each sign requiring a permit shall have affixed on each sign the permit number under which the sign was installed, erected, or mounted, and the sign owner's name and address. For signs not reasonably visible from ground level, such information shall be kept readily available for inspection by the sign owner.

(Ord. No. 17-07, exh. A(22-230), 4-12-2017)

Sec. 22-231. General requirements.

A. Permitted and prohibited signs, general statement. Signs that are specifically identified, defined, listed and/or otherwise authorized by this ordinance shall be permitted as set forth herein. Signs that are not specifically defined, identified, listed and/or otherwise authorized shall be prohibited.

B. *Compliance with building codes.* All signs shall conform to the requirements of the building, electrical, and other applicable technical codes, except as may be otherwise provided herein.

C. *Compliance with zoning codes.* No sign shall be erected or used to advertise any use or matter which would conflict with the regulations for the district in which it is located or be in conflict with the use permitted under the certificate of occupancy for the property.

D. *Conflicts between sign ordinance districts.* Where overlaps occur in ordinance standards, such as at intersections, or in areas with different or overlapping districts, the stricter ordinance standards shall apply.

E. *Qualification and certification of erector.* Where the erection of any sign requires compliance with any county technical code, the erector of the sign shall qualify with the respective examining board.

F. *Fees required.* No sign, where a sign permit is required with established fees shall be installed, altered, erected, constructed, posted, painted, maintained, or relocated, unless the required permit fees are paid.

G. *Responsibility for sign.* The owner and/or tenant of the premises, and the owner and/or erector or benefactor of the sign shall be held responsible for any violation of this ordinance; provided, however, that when the sign has been erected in accordance with this ordinance, the sign company shall be relieved of further responsibility after final approval of the sign.

H. *Inspection.* No sign shall be approved for use, unless the same shall have been inspected by the department issuing the permit, and no sign shall be erected or used unless it complies with all the requirements of this chapter and applicable technical codes. The holder of a permit for a sign shall request inspections of a sign as follows:

1. Foundation inspection shall include method of fastening to building or other approved structure.
2. Shop inspection shall include electrical and/or structural where indicated on the permit and/or approved plan.
3. Final inspection shall include structural framing, electrical work identification of permit number and erector of sign, etc.
4. Additional inspections may be specified on the permit and/or approved plans.

I. *Maintenance.* Every sign, together with its framework, braces, angles, or other supports, shall be well-maintained in appearance and in a good and safe condition, properly secured, supported and braced and able to withstand wind pressures as required by the Florida Building Code or any other regulatory code or ordinance in effect within city limits.

1. In the event that a wall sign is removed, all anchor holes shall be filled and covered in a manner that renders the anchor holes non-discernable with the wall within sixty (60) days of the removal of such sign.
2. All lights and luminous tubes illuminating a sign shall be maintained in working condition. All replacement bulbs and lenses shall be of the same wattage and color as the light it is replacing unless a change is required to meet existing code requirements.
3. All landscaping required and provided with monument signs shall be properly maintained in appearance and good safe conditions.
4. Abandoned signs shall be removed within ninety (90) continuous days of being abandoned, or all copy shall be removed with a blank sign face; or shall be appropriately be covered shielded in a professional manner, no sign face shall be allowed to be open or otherwise incomplete so as to appear abandoned or in disrepair.

(Ord. No. 17-07, exh. A(VII), 4-12-2017)

Sec. 22-232. Signs permitted without sign permit.

The exemption from a sign permit shall not be construed to waive or otherwise exempt compliance with the Florida Building Code, other provisions of this ordinance, or other applicable technical codes.

- A. *Signs exempt from permit requirements.* The following signs may be installed, altered, erected, constructed, posted, painted, maintained, or relocated, without a permit from the city or payment of a sign permit fee:
1. *Traffic control and parking signs.* Traffic control and parking signs required by law, and/or safety design standards.
 2. *Authorized signs in rights-of-way.* Signs installed in the rights-of-way by authorized authorities as may be required by law or permitted otherwise.
 3. *Public safety and information signs.* Signs installed on the property that are required by law for public safety or information purposes.
 4. *Nameplate signs.* Nameplate signs installed on residential property not exceeding two (2) square feet.
 5. *Safety, caution or no trespassing signs.* Signs that are installed on the property for the purpose of indicating a safety, caution, or no trespassing, or other similar type message. Such signs shall not exceed two (2) square feet in size, and may be posted on the building, fence or structure on the property at eye level and may not serve any advertising purpose.
 6. *Memorial signs.* Memorial signs erected by duly authorized public authorities and in compliance with provisions set forth in this ordinance.
 7. *Utility company signs.* Signs erected by utility companies not exceeding two (2) square feet, serving no advertising purpose.
 8. *Signs within enclosed buildings.* Signs within enclosed buildings or structures which are so located that they are not intended to be visible from public or private streets or adjacent properties providing said signs do not pose a hazardous or health risk.
 9. *Temporary holiday and national event signage.* Temporary holiday and national event signage provided said signage and decorations carry no advertising matter and further provided that such signage is not installed more than sixty (60) days for a single event and is removed within seven (7) days after the event ends.
 10. *Special event signs.* Special event signs approved by the city for a city-sponsored or city-approved special event.
 11. *Flags.* Flags, subject to compliance with provisions set forth in this ordinance.
 12. *Real estate signs.* Real estate signs for residential uses, subject to compliance with provisions set forth in this ordinance.
 13. *Political campaign signs.* Political campaign signs, subject to compliance with provisions set forth in this ordinance.
 14. *Banner signs.* Banner signs, subject to compliance with provisions set forth herein. Banners and other decorative materials in conjunction with an event conducted pursuant to a dedication, a grand opening, or a going out of business promotion are permitted without a sign permit. Such banners and decorative materials are not to be posted more than thirty (30) days preceding the event, and are to be removed within seven (7) days following the end of the event.
 15. *Inflatable/balloon signs.* Balloon signs, subject to compliance with provisions set forth in this ordinance.
 16. *Spot/search light signs.* Spot light signs, subject to compliance with provisions set forth in this ordinance.

17. *Changeable copy signs.* Changeable copy signs manual and automated, subject to compliance with the provisions set forth in this ordinance.
18. *Change of window sign copy.* Change of window sign copy provided such copy is in compliance with the approved sign window plan and/or sign plan subject to compliance with provisions set forth in this ordinance.

(Ord. No. 17-07, exh. A(VIII), 4-12-2017)

Sec. 22-233. Nonconforming signs/amortization.

Any lawful permanent sign installed, erected, prior to the adoption of the ordinance from which this article is derived that does not comply with the regulations set forth herein, shall be removed or altered to comply with the applicable regulations of this ordinance by December 31, 2020.

- A. *Amortization of nonconformities.* Legally existing signs that become nonconforming as of the effective date of the ordinance from which this article is derived shall maintain legally nonconforming status for a period of five (5) years six (6) months, with exceptions as herein contained. At that time, all signs not in compliance shall become illegal signs. It shall be unlawful for any sign owner not to be in compliance with the following amortization provisions, with exceptions as herein contained:
 1. Within two (2) years of the effective date of the ordinance from which this article is derived, all owners of legally nonconforming signs are required to prepare and submit to the city a proposed sign plan in accordance with regulations herein.
 2. Within three (3) years of the effective date of the ordinance from which this article is derived, all owners of legally nonconforming signs are required to have an approved sign plan in compliance with this ordinance.
 3. Within five (5) years of the effective date of the ordinance from which this article is derived, all legally nonconforming signs and their supporting members shall be altered, and/or removed from the property.
 4. The city may deny the issuance of any licenses, permits, certificates of occupancy, certificates of use, etc., to an owner if it is determined that the amortization ordinance is not being complied with.
- B. *Amortization of nonconformities in newly annexed areas.* Legally existing signs in areas annexed by the city which become nonconforming as of the effective date of the ordinance from which this article is derived, shall maintain legally nonconforming status for a period of five (5) years six (6) months from the date of annexation or from the date of subsequently adopted changes to the ordinance as provided, whichever time period is greater, with exceptions as herein contained. It shall be unlawful for any sign owner not to be in compliance with the following amortization provisions, with exceptions as herein contained:
 1. Within two (2) years of the effective date of annexation, unless superseded by a new sign ordinance, all owners of legally nonconforming signs are required to prepare and submit to the city a proposed sign plan in accordance with regulations herein.
 2. Within three (3) years of the effective date of annexation, unless superseded by a new sign ordinance, all owners of legally nonconforming signs are required to have an approved sign plan in compliance with this ordinance.
 3. Within five (5) years six (6) months of the effective date of annexation, unless superseded by a new sign ordinance, all legally nonconforming signs shall be altered and/or removed from the property.
 4. The city may deny the issuance of any licenses, permits, certificates of occupancy, certificates of use, etc., to an owner if it is determined that the amortization ordinance is not being complied with.

- C. *Exception for monument signs along collector roads.* Freestanding and monument signs that were lawfully existing prior to October 1, 2013, that do not comply with the regulations set forth herein, shall remain legally nonconforming signs subject to the following:
 - 1. The total sign area and sign height does not exceed the maximum allowable amounts as may be permitted under the regulations set forth herein this ordinance.
 - 2. The sign shall be landscaped, repaired and maintained accordingly in compliance with regulations set forth in this sign code. All landscape requirements shall be met within five (5) years of the adoption of the ordinance from which this article is derived.
 - 3. If the sign is relocated; moved; or altered at a cost greater than fifty (50) percent of the assessed value of the sign; the legal nonconforming status shall be lost and the sign shall be in required to be in compliance with the regulations set forth herein.
- D. *Exception for window signs.* Window signs shall be in compliance with the provisions set forth in this ordinance as outlined in the amortization ordinance below:
 - 1. An owner of a window sign shall submit a window sign plan, consistent and in compliance with the provisions of submitting a sign plan within ninety (90) days of adoption of the ordinance from which this article is derived.
 - 2. Window signs shall be in compliance with the provisions of this ordinance within one hundred eighty (180) days of the adoption of the ordinance from which this article is derived.
- E. *Exception for temporary signs.* All legally existing temporary signs shall be in compliance with the provisions of this ordinance within ninety (90) days of adoption of the ordinance from which this article is derived.
- F. *Exception for billboards.* This amortization period shall not apply to billboard (Class C in the Code of Miami-Dade County, Florida) signs that were lawfully erected on the date of adoption of the ordinance from which this article is derived. These signs shall be permitted as legally nonconforming signs. Said signs shall be subject to the provisions below regarding maintenance and repair of nonconforming signs.
- G. *Sign plan compliance.* In addition to the amortization provisions herein, whenever a sign owner desires to replace, alter, relocate a sign on a property, and/or the repair and maintenance is not in compliance with regulations governing same as specified herein, a sign plan in accordance with the provisions of this ordinance shall be prepared and submitted. Upon approval of the sign plan under this compliance provision, only the applicable signs shall be required to be brought into compliance. All other signs approved on the sign plan shall be brought into compliance in accordance with the amortization ordinance specified herein.
- H. *Multi-tenant sign plan compliance.* When a sign plan is required for multi-tenant development, and an individual sign owner seeks a sign permit for any type of permanent sign, the property owner shall file a sign plan with the city in accordance with the provisions set forth in this ordinance within sixty (60) days of sign permit being filed. Failure to file such sign plan within the prescribed time frame, shall be a violation of this ordinance by the property owner. The city may review the individual sign permit and issue a permit as warranted to individual sign owners, and shall require future sign permits on same property to be in compliance with the criteria set forth herein for sign plan review, and subject to sign permits approved on the property.
- I. *Maintenance and repair of nonconforming signs.* Nonconforming signs shall be maintained in a safe condition and may be repaired and/or otherwise maintained, provided the sign structure is not moved, altered or replaced; provided, further, that the cumulative costs of such repair and/or maintenance does not exceed fifty (50) percent of the replacement value of the sign. If so, the sign shall be made to be in compliance with the provisions set forth in this ordinance. This provision shall apply to situations of necessary repair resulting from fire, flood, explosion, wind, war, riot, or any other an act of force majeure.

- J. *Memorial plaques.* Memorial plaques, such as those of a non-advertising nature involving building identification signs and building cornerstones when cut or carved into a masonry surface or when made of a noncombustible material and made an integral part of the building or structure, shall be exempt. (Ord. No. 17-07, exh. A(IX), 4-12-2017; Ord. No. 19-01, § 2, 3-13-2019; Ord. No. 2020-13, § 2, 9-9-2020)

Sec. 22-234. Signage design standards.

The following design standards shall be applied and complied within the design of all signs, unless specifically set forth differently in this ordinance.

A. *Monument sign dimensional standards.*

1. *Sign area monument signs.*

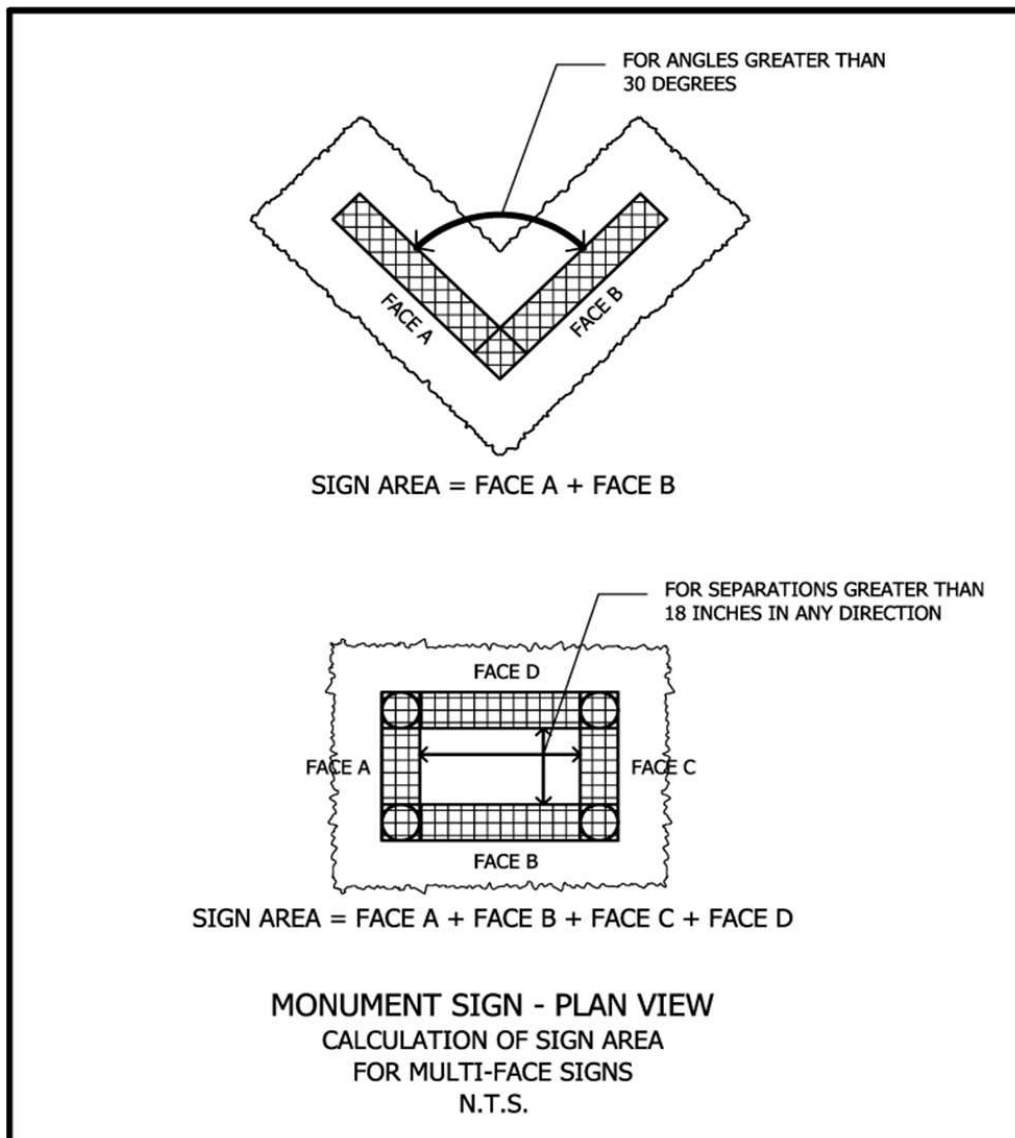
- (a) In computing sign area, standard geometry formulas for common shapes shall be used. Common shapes shall include squares, rectangles, trapezoids and triangles. In the case of irregular shapes, the total sign area will be the area of the smallest common shape that encompasses the various components of the sign.
- (b) For monument signs, the support base above grade shall be deemed to be part of the sign.
- (c) Only one (1) face of a sign is used for the calculation, provided the two (2) sign faces are less than thirty (30) degrees to each other and/or no more than one and one-half (1.5) feet exists between them. Where the sign faces are spaced greater than one and one-half (1.5) feet apart and greater than thirty (30) degrees, then each face shall be calculated towards the permitted sign area.

2. *Figure 0-1; sign area for multi-face signs sign spacing monument signs.*

- (a) When measuring the spacing between monument signs the distance shall be measured in a straight line from the closest part of one (1) sign structure to closest part on another sign structure or building or structure.
- (b) When measuring the spacing between signs on the different rights-of-way the measurement shall be taken along the perimeter of the property line, and/or then taken perpendicular to signs located across such rights-of-way.
- (c) Spacing between signs and a building or structure shall be the shortest distance measured from the closest part of the sign structure to the closest part of the building facade.

3. *Sign height monument signs.*

- (a) When measuring the height of a monument sign the measurement shall be the vertical distance from the top of the grade to the top of the monument sign's highest component, including all structural components.



- (b) Grade shall be construed to be the newly established grade after construction, exclusive of any filling, berming, mounding or excavating solely for the purpose of locating the sign.

B. *Monument sign design standards.* The city seeks to achieve uniform and coordinated monument and freestanding signage within each development. Coordinated signage is created by consistency in the sign size, type, copy area, letters, location, color, and type of sign. In designing monument signs the following standards shall be complied with:

1. *Design.*

- (a) The monument sign shall be a freestanding sign where the supporting structure of the sign face is architecturally and aesthetically integrated into the overall design of the sign.
- (b) The base of supporting structure shall be embellished to conceal all structural or support members.

- (c) Eighty (80) percent of the base supporting structure shall be in contact with the ground but does not have to be a solid base. The base supporting structure may be designed as multiple bases, provided that the overall base in contact with the ground shall be a minimum of eighty (80) percent.
- 2. *Architectural design.*
 - (a) Monument and other freestanding signs should incorporate architectural elements from the primary building. Architectural elements may include materials, textures, colors, shapes, ornamentation or other features characteristic of a style.
- 3. *Landscaping.*
 - (a) A minimum of fifty (50) square feet of landscaping around the base of the sign should be provided, or an amount and type meeting the approval of the director.
 - (b) Plant material shall be selected to complement and enhance the sign, and a hedge no less than two (2) feet in height shall be provided to buffer the base of the sign.
 - (c) Such landscape should be permanently irrigated with an in-ground irrigation system or irrigated in a manner approved by the director.
- 4. *Illumination.*
 - (a) Monument signs may be illuminated internally or externally.
 - (b) All internal illumination components shall be enclosed and shielded from view.
 - (c) All external illumination components shall be shielded, buffered, and concealed as to not be visible from the adjacent rights-of-way.
 - (d) All illumination should be environmentally friendly and energy efficient, which should include, but not be limited to, the use of solar energy or other alternative sources of energy.
- 5. *Setback.*
 - (a) Monument signs shall be setback from all property lines a minimum of seven (7) feet.
- 6. *Spacing.*
 - (a) Monument signs shall be:
 - (1) Spaced a minimum of ten (10) feet from any building.
 - (2) Spaced a minimum of twenty-five (25) feet from another monument sign.
- 7. *Proportion.*
 - (a) Monument signs should be proportionate in height and width at a ratio of one (1.0) to one and one-half (1.5), in either orientation, however, the width shall not exceed ten (10) feet.
- 8. *Height.*
 - (a) Maximum height of monument signs shall be fifteen (15) feet unless otherwise provided for.
- 9. *Location.*
 - (a) Monument signs shall not be located in the sight distance triangle.
 - (b) Shall not be located as to interfere with public alarms, signals, or signs.
 - (c) No sign or support shall be placed in such position or manner as to obstruct or interfere, either physically or visually, with any fire alarm, police alarm, traffic signal or sign or any devices maintained by or under public authority.
 - (d) Monument signs shall be orientated to be between forty-five (45) degrees and ninety (90) degrees to the abutting right-of-way.

10. *Sign copy single use development.*
 - (a) Sign copy for single use development shall be limited to the primary name of the business, trademarked logos and/or slogans, and street address number. All other copy shall be prohibited.
 - (b) Copy should be identical on all faces of the sign.
11. *Sign copy multi-use/multi-tenant development.*
 - (a) Sign copy for multi-use/multi-tenant/mix-use development shall be limited to one (1) primary name of the business or complex or shopping center and may list individual uses and tenants.
 - (b) Copy may include the business name, registered trademarks, logos and/or slogans. One (1) street address number per sign. All other copy is prohibited.
 - (c) Copy should be identical on all faces of the sign.
12. *Changeable copy sign manual standards.* Monument signs with changeable copy shall be permitted subject to compliance with the following standards:
 - (a) The manual changeable copy portion of the sign shall be integrated into the design of the sign. Such changeable copy portions of the sign shall not be an add-on but rather must be fully integrated into the sign.
 - (b) The manual changeable copy area shall not exceed thirty (30) percent of the total sign area.
 - (c) Changeable copy shall be limited to advertising events, items and pricing, announcements, specials, slogans directly related to the sign owner. All other copy shall be prohibited. The changing of copy on such signs shall not require a sign permit.
 - (d) Manual changeable copy shall not change more than once a day.
 - (e) Changeable copy shall only be permitted on monument signs. Changeable copy on wall signs, window signs or any other sign, are prohibited.
13. *Automatic changeable copy signs standards.* Monument signs with automatic changeable copy shall be permitted subject to compliance to the following standards:
 - (a) The automatic changeable copy area portion of the sign shall be integrated into the design of the monument sign. Such changeable copy portions of the sign shall not be an add-on but rather must be fully integrated into the sign design.
 - (b) Automated changeable copy area shall not exceed thirty (30) percent of the total sign area permitted for the monument signs.
 - (c) A maximum of one (1) monument sign with automatic changeable copy per property/development shall be permitted.
 - (d) Automatic changeable copy on monument signs shall only be permitted on properties/developments with a minimum lot frontage of two hundred (200) linear feet on an arterial and collector roadway as defined herein.
 - (e) The minimum distance between monument signs with automatic changeable copy shall be five hundred (500) feet.
 - (f) Incandescent lamps/bulbs in excess of nine (9) watts are prohibited in an automatic changeable copy sign. Incandescent lamps/bulbs shall not be exposed but shall be covered by translucent lenses or filters. The automatic changeable copy portion of the sign shall be equipped with an automatic operational night dimming device.
 - (g) The following operating modes shall be prohibited:
 - (1) *Flash.* The condition created by displaying the same message intermittently by turning it on and off, on and off, with rapidity, or any other delivery mode that creates a flashing effect.

- (2) *Zoom*. The look or condition created by expanding a message from a central point to its full size.
- (3) *Stop or danger*. Any signs which use the word "stop" or "danger" or imply the need or requirement of stopping, or which are copies or imitations of official signs.
- (4) *Revolving or flashing light*. Any color combination of revolving or flashing light giving the impression of a police, fire, or caution light shall be prohibited.
- (h) Automated changeable copy shall be limited to advertising events, items and pricing, announcements, specials, slogans directly related to the sign's owner. All other copy shall be prohibited. The changing of copy on such signs shall not require a sign permit.
- (i) Prior to the installation and use, all owners of monument signs with automatic changeable copy shall file and record a declaration of use, meeting the approval of the director, on a form prescribed and approved by the director, which will govern the operation of the changeable copy and contain penalties for abatement and removal of the sign for violations of the declaration of use and the provisions herein.
- (j) Automatic changeable copy shall only be permitted on monument signs. Automatic changeable copy on wall signs, window signs or any other sign, are prohibited.

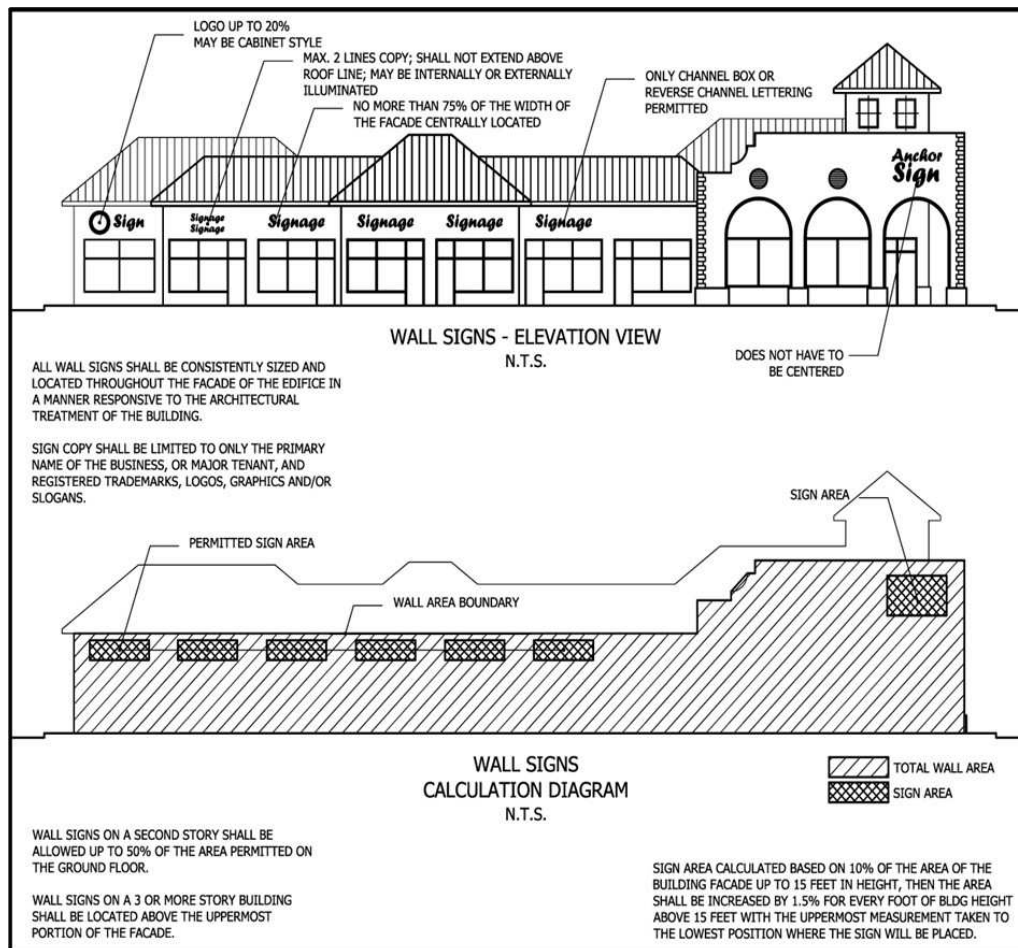
C. *Wall sign dimensional standards.*

1. *Sign area wall signs.*

- (a) In calculating the area of wall signs, or window signs, individual words or components (i.e., logos, trademarks, slogans, major products, services, etc.) may be considered separate signs only if they are obviously disassociated from other copy. When signs are enclosed in a border or highlighted by background graphics, the perimeter of such border or background will be used to compute sign area. The total area of components and copy shall be used to determine the total wall sign or window sign area.
- (b) When calculating the permitted square feet of the wall sign area, it shall be calculated based on ten (10) percent of the area of the building facade up to fifteen (15) feet in height, then the area shall be increased by one and one-half (1.5) percent for each foot of building height above the fifteen (15) feet with the uppermost measurement taken to the lowest part or position where the sign will be placed.
- (c) The building facade used towards the calculation shall only be the facade the sign is proposed to be affixed.

D. *Wall sign design standards.* The city seeks to achieve uniform and coordinated signage within each development. Coordinated wall signage is created by consistency in the sign size, type, copy area, letters, location, color, and type of sign. In designing wall signs the following standards shall be complied with (Figure 0-2 - Wall Sign Calculations Diagram).

- 1. *Design*. Wall signs shall only be of channel lettering and reverse channel lettering type and design, and cabinet signs shall only be permitted up to a maximum of twenty (20) percent of the total wall sign area and cabinet signs shall only be used to display copy of registered trademarks, logos, and/or slogans. Non-illuminated signs shall be permitted on non-PAMA, collector corridors and certain other ROW after review and approval by the city manager or designee.
- 2. *Multiple signs*. Where multiple wall signs with the same sign copy are to be placed on different building facades for the same sign owner/tenant/business each wall sign should be identical in design, save and except the applicable maximum permitted sign area may be different, and location of placement may be different.



3. *Channel lettering signs.*
 - (a) Channel lettering shall be located as to be centered on the building facade, or the proportionate share of the facade, it is affixed to.
 - (b) Anchor stores are not required to have the channel letter signs centered on the building facade.
 - (c) Copy should be of all the same font type, however, lettering size and type, colors, trademarked logos and slogans, common to the business may be used.
 - (d) Non illuminated signs shall be permitted on non-PAMA. Collector Corridors and certain other rights-of-way (ROW) subject to zoning approval by the city manager or designee and also must be in compliance with the standards for channel lettering wall signs.
4. *Cabinet signs.*
 - (a) If cabinet signs are used to display registered trademarks, logos, and/or slogans, the cabinet sign shall be integrated as intended to be viewed as one (1) wall sign.
 - (b) A cabinet sign up to twenty (20) percent of the permitted wall sign area may be used to display a registered trademark, logo, or slogan on a building facade, without the permitted channel lettering.

5. *Location.*
 - (a) No wall sign shall extend above the roofline except where an exterior parapet wall projects above the roofline, in which case, such sign may not extend above the top edge of the parapet.
 - (b) Wall signs shall not be allowed on a building facade abutting a single-family zoned or developed property.
 - (c) Wall signs shall be located as to not interfere with public alarms, signals, or signs. No sign or support shall be placed in such position or manner as to obstruct or interfere, either physically or visually, with any fire alarm, police alarm, traffic signal or sign or any devices maintained by or under public authority.
6. *Proportion.* Wall signs shall not extend beyond seventy-five (75) percent of the width of the building facade or the tenant's proportionate share of the building facade.
7. *Projection.* Wall signs shall not project more than twelve (12) inches from the building surface where it is affixed.
8. *Sign copy.*
 - (a) Sign copy for wall signs shall be limited to only the primary name of the business, major service and brands, or major tenant, and registered trademarks, logos, graphics and/or slogans, directories. All other copy shall be prohibited.
 - (b) Wall signs shall not contain more than three (3) lines of copy; when a third line is used, one (1) of the three (3) lines shall not be greater than fifty (50) percent the height of the line with the greatest line height.
9. *Proportion.* Wall signs shall not extend beyond seventy-five (75) percent of the width of the building facade or the tenant's proportionate share of the building facade.
10. *Projection.* Wall signs shall not project more than twelve (12) inches from the building surface where it is affixed.
- E. *Directional/information sign design standards.* Directional/informational signs are for the purpose of providing information and directions on-site to the general public and are not intended for advertising purposes. In designing directional and information signage the following standards shall be complied with:
 1. *Design.* Directional/informational signs may be freestanding, mounted on a pole type or monument type structure, or of a type intended to be affixed flush to or perpendicular to a wall.
 2. *Size.* Directional/informational sign shall not exceed two (2) square feet in size. Except that along collector and all other rights-of-way, directional/information signs shall not exceed eight (8) square feet in size.
 3. *Number.* The number of directional/information signs shall be limited to what may be deemed necessary and adequate to provide the directions and the information being conveyed as may be approved by a sign plan permit.
 4. *Setback.* Freestanding directional/informational signs for traffic control, or to indicate entrance and exit shall be setback a minimum of five (5) feet from any property line.
 5. *Spacing.* Freestanding directional/informational signs shall be spaced a minimum of ten (10) feet from each other.
 6. *Height.*
 - (a) Freestanding directional/information signs shall not exceed thirty (30) inches in height, measured from the base of the sign to the uppermost point.

- (b) Wall mounted directional/informational signs may be mounted at eye level as to be visible to the general public and not intended to be visible from the right-of-way. Except that along collector and other rights-of-way, such signs may be wall mounted as to provide adequate visibility and directions as deemed necessary and as may be approved by a sign plan permit.
- (c) If suspended from a ceiling or structure minimum clearance shall be nine (9.0) feet from grade, or if over a vehicle driveway, travel lane minimum clearance shall be fourteen (14.0) feet from grade.

7. *Location.*

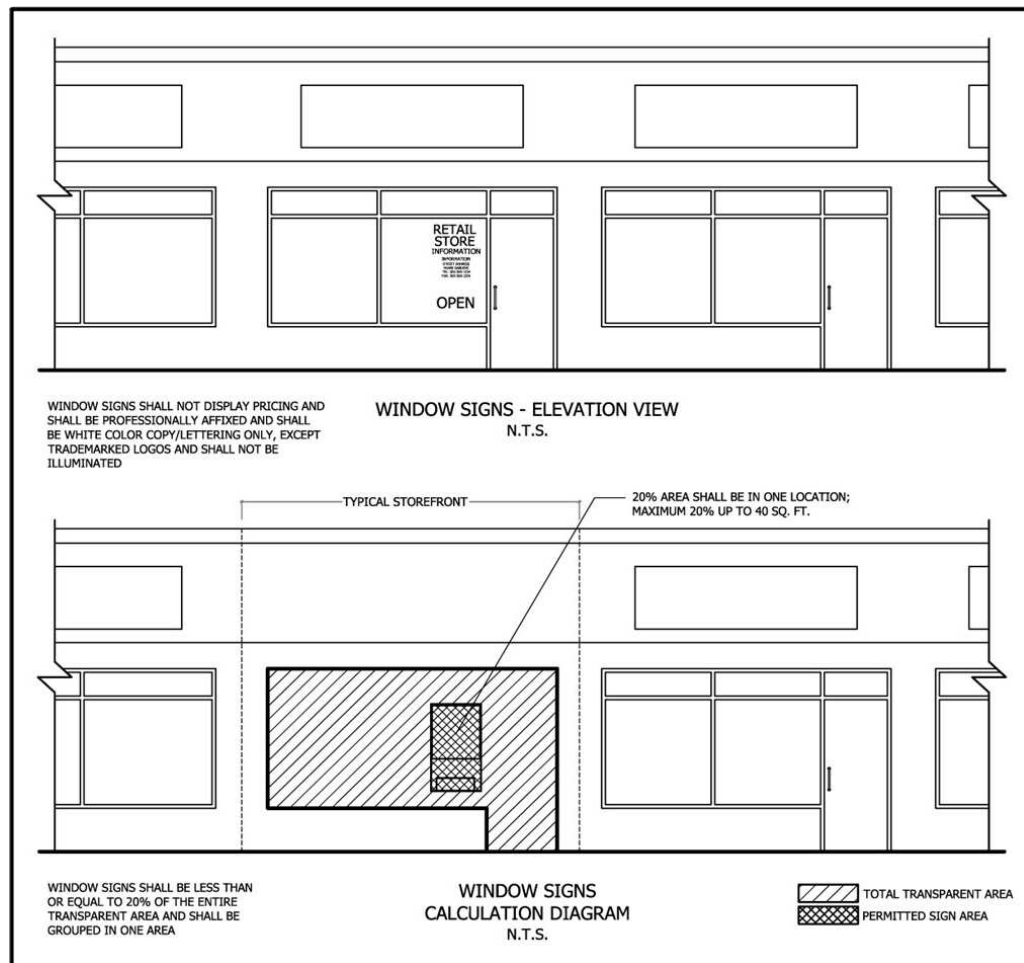
- (a) Directional/information signs may be located within the sight distance triangle providing the sign is not greater than thirty (30) inches in height.
- (b) Wall mounted directional/informational signs may be mounted on walls, fences, or suspended from a ceiling or structure.
- (c) Wall mounted or suspended signs may be parallel or perpendicular to the building wall.
- (d) Notwithstanding compliance with these standards, no directional or informational sign may be located on the property as to pose or create a hazardous or health safety concern.

8. *Illumination.* Directional/informational signs may be illuminated internally or externally. If illuminated externally all components providing illumination shall be adequately screened or recessed as to not be visible from the rights-of-way.

9. *Copy.* Directional/informational signs shall only provide copy necessary to adequately provide the direction or information for which it is intended and shall not provide any advertising copy other than the name and logo of any tenant/owner/occupant of the property.

F. *Window sign standards.* Window signs are intended to provide secondary signage to allow for the day to day advertising and promotion of the business and/or services, but not distract from the overall architectural design/features/character of the building. For the purposes of this section, a window sign shall be those signs which are affixed to the window, as noted in Figure 0-3. In designing window signs the following standards shall be complied with (Figure 0-3 - Window Sign Calculation Diagram):

- 1. *Design.* Window signs shall be professionally installed and/or professionally framed and may be affixed to or displayed within the window area. Handwritten copy shall only be used with white boards or chalk boards. One (1) illuminated or neon window sign shall be permitted subject to the sign area regulations herein. Automatic changeable copy signs are prohibited as window signs.



2. *Area.*

- (a) For window signs located on the first or ground floor, the total area of all signs affixed or displayed in the window shall not exceed twenty (20) percent of the window area up to a maximum of forty (40) square feet.
- (b) For window signs located on the second floor or above the ground floor, the total area of all signs affixed or displayed in the window shall not exceed ten (10) percent of the window area up to a maximum of twenty (20) square feet.
- (c) In calculating the total permitted window sign area only windows and doors facing a right-of-way and/or windows on the main entrance of the building, and only those windows that are on the ground floor shall be used for the calculation. Perimeter borders, stripes and bonding are permitted but will count towards the calculation of window sign area.
- (d) Window sign area shall not be counted towards the maximum wall sign area allowed. Temporary real estate signs as may be permitted herein shall not be counted towards the overall maximum sign area permitted.
- (e) Illuminated or neon window signs shall be limited to a maximum size of eight (8) square feet. Illuminated or neon sign areas shall count towards the maximum sign area allowed.

3. *Location.*
 - (a) Window signs shall only be permitted on windows or doors located on the first or ground floor and located on the second floor, and on windows and doors on the facade facing a public right-of-way or commonly used as the main entrance to the premises.
 - (b) Window signs shall not be permitted on windows above the ground in multi-story buildings.
 - (c) All window signs shall be located within the same twenty (20) percent area as depicted on the approved window sign plan.
 4. *Copy.*
 - (a) Window sign copy may include business name, logos graphics, and slogans, primary products and services, emblems of professional and financial affiliations, hours of operation, and other similar signage.
 5. *Display of merchandise.* Display of merchandise in the window area, provided that it does not press up against the window, shall not count towards the twenty (20) percent for the size of a window sign, and shall be permitted as long as it is kept in a neat and orderly fashion.
- H. *Entrance feature signs.* Entrance feature signs shall be permitted on all residential developments, and mix-use developments subject to compliance to the following standards:
1. *Number.* One (1) entrance feature monument sign or two (2) entrance feature wall signs.
 2. *Sign area.*
 - (a) A maximum entrance feature sign area of up to twenty-four (24) square feet for developments with less than one hundred (100) linear feet of lot frontage on a right-of-way.
 - (b) Up to a maximum of sixty-four (64) square feet for developments with one hundred (100) linear feet or greater of lot frontage on a right-of-way. If two wall signs are used, the total area of both wall signs shall not exceed the maximum area permitted.
 3. *Height.*
 - (a) The maximum height of the monument sign shall be six (6) feet measured from grade to the uppermost portion of the monument sign. In the event the grade at the base of the sign is bermed, the measurement shall be taken from the grade at the closest right-of-way line to the uppermost point of the sign.
 - (b) Maximum height of a wall sign shall be six (6) feet measured from grade to the uppermost portion of the wall sign.
 4. *Separation.*
 - (a) Entrance feature monument signs shall be separated from each other by a minimum of two hundred (200) feet and from other freestanding signs by at least fifty (50) feet.
 - (b) Entrance feature wall signs shall be separated by a minimum of twenty-five (25) feet of other wall signs.
 5. *Setback.* Entrance feature monument signs shall setback a minimum of seven (7) feet from a right-of-way line.
 6. *Location.*
 - (a) Entrance feature monument signs may be located within twenty-five (25) feet of the entranceway and shall not be located in the sight visibility triangle.
 - (b) Entrance feature wall signs may be affixed to the perimeter wall/fence/guardhouse of the development, and must be within twenty-five (25) feet of the entranceway.

7. *Copy.*
 - (a) Copy on entrance feature signs shall be limited to the name of the development, developer's name and address street number.
 - (b) Sign copy shall be limited to no more than two (2) lines of text.
- I. *Directory signs.* Directory signs shall be permitted subject to compliance to the following standards:
 1. *Number.* One (1) directory sign shall be permitted for each multi-use/multi-tenant building on the property.
 2. *Size.* Directory signs shall be limited to three (3) square feet in size, and lettering shall not exceed a maximum of three (3) inches in height.
 3. *Copy.* Copy shall be limited to the names of tenants and businesses, and suite or address number. All other copy shall be prohibited.
 4. *Location.* Directory signs may be freestanding or affixed to the building facade, and shall be setback at least twenty-five (25) feet from a public right-of-way.
- J. *Flags.* Flags shall be permitted subject to compliance with all the following standards and compliance with the United States Flag Code (36 USC 173—178) which is hereby adopted and made part of this section by reference as if it were set forth herein. Violations of the United States Flag Code shall be civil in nature. For the purposes of this sign code, applicability of regulations regarding flags will be on a per master site plan basis, regardless of the amount of parcels which compose the master site plan.
 1. *For nonresidential, multifamily residential, commercial and industrial, and/or mixed use development.*
 - (a) *Number.* A maximum of one (1) flag pole per property shall be permitted on properties with lot frontages of one hundred (100) feet or less; a maximum of two (2) flag poles for properties with lot frontages greater than one hundred (100) feet up to two hundred (200) feet; and a maximum of three (3) flag poles for properties with lot frontages of greater than two hundred (200) feet. No more than three (3) flags shall be flown on one (1) pole, with a maximum of up to three (3) flags per property or development.
 - (b) *Size.* Maximum flag size shall be forty (40) square feet. The width of the flag shall not be more than thirty (30) percent of the length of the pole to which it is attached.
 - (c) *Height.* Maximum pole height shall be thirty (30) feet or not more than ten (10) feet above the roof line of primary building, whichever is less.
 - (d) *Location.* All flags shall be flown on a ground-mounted pole designed and constructed as a flag pole or affixed to a pole affixed to a building. The pole shall be ground-mounted and constructed according to the Florida Building Code. If affixed to a building, the pole shall be no longer than ten (10) feet in length. No rooftop flags are permitted.
 - (e) *Spacing.* Multiple flag poles shall be grouped. They shall be located a maximum of ten (10) feet from one another.
 - (f) *Setback.* Flag poles shall have a minimum ten (10) foot setback from all property lines.
 - (g) *Copy.* Only flags with copy that has been professionally printed shall be allowed. Flag copy must be of a non-advertising nature.
 - (h) *Maintenance.* Flags and flag poles shall be maintained in good condition as to not be flailed or weathered.
 2. *For single-family residential uses, duplexes, townhouses, and other residential uses.*
 - (a) *Number.* A maximum of one (1) flag shall be permitted per property.
 - (b) *Size.* Maximum size of the flag shall be limited to twenty-four (24) square feet.

- (c) *Height.* Flag poles shall be limited to no greater than five (5) feet above height of the residence or up to thirty-five (35) feet, whichever is less.
 - (d) *Location.* All flags shall be flown on a flag pole, either ground-mounted or affixed to a wall. Flags may only be located in the front yard or rear yard.
 - (e) *Setback.* Flag poles shall setback a minimum of ten (10) feet from front property lines and five (5) feet from all other property lines.
 - (f) *Copy.* Only flags with copy that has been professionally printed shall be allowed. Flag copy must be of a non-advertising nature.
 - (g) *Maintenance.* Flags and flag poles shall be maintained in good condition as to not be flailed or weathered.
- 3. *Flags en masse prohibited.* The flags permitted by this subsection shall not be used en masse in order to circumvent this subsection by using said flags primarily as an advertising device.
- K. *Memorial signs.* Memorial signs shall be permitted on all nonresidential, mixed use, and residential developments subject to compliance with the following standards:
 - 1. *Number.* One (1) memorial sign per property.
 - 2. *Area.* Memorial signs monument or wall type shall not exceed one (1) square foot in size. Area of the foundation and/or base of a monument type memorial signs shall not be calculated towards the permitted area of the sign.
 - 3. *Location.* Wall type memorial signs may be located on the building facade but not at a height greater than six (6) feet and located a minimum of five (5) feet from any other sign. Monument type memorial signs may be located on a base or foundation not exceeding thirty (30) inches in height, and spaced a minimum of five (5) feet from other signs on the property.
- L. *Gasoline service stations.* Due to the unique retail service of gasoline service stations, in addition to all the standards set forth herein, the following standards shall also be permitted subject to compliance to the following standards:
 - 1. *Wall sign.* In lieu of locating a wall sign on the building facade, a wall sign may be affixed to the canopy facade.
 - 2. *Monument sign.* In the event the permitted changeable copy of up to thirty (30) percent of the monument sign cannot accommodate the pricing regulations required by law, the changeable copy may be increased the minimum amount for compliance.
 - 3. *Size.* Wall sign on canopies shall be limited to up forty (40) percent of the area calculated as permitted for the building facade. Color schemes unique to the registered brand shall not be included in calculating the permitted wall sign area.
 - 4. *Gasoline pumps.* Signage on gasoline pumps may include customary and required informational signage, including, but not limited to, information and data required by law, price, and credit card logos. Up to a total of four (4) square feet of logos and brand identity signage shall be permitted to be located on each gasoline pump. Signs, other than required by law, located on top of pumps shall be prohibited.
 - 5. *Prohibited.* Banners, either on or otherwise mounted/placed on/with or connected to pumps shall be prohibited.

- M. *Theaters, playhouses, and other similar cultural or civic establishments.* Due to the changing nature and number of events or showings theaters, playhouses, and other culturally orientated establishments may be permitted an additional changeable copy signage. In addition, to standards set forth in this ordinance, the following standards shall be permitted subject to compliance to the following:
1. *Number.* Theaters, playhouses and other culturally orientated establishments shall be permitted up to three (3) changeable copy signs. An additional and optional changeable display for ticket pricing shall be allowed if the ticket office can be accessed directly from a sidewalk right-of-way and must be adjacent to or above the ticket office window.
 2. *Sign area.*
 - (a) Changeable copy area shall be limited to up to seventy-five (75) square feet. Multiple-screen theaters may be permitted additional changeable copy not to exceed twenty-five (25) square feet per additional screen greater than three (3), but not to exceed a total sign square footage of two hundred (200) square feet of sign area. Total area shall include the area of the changeable copy and the area of any poster display boxes or frames.
 - (b) Box office changeable copy sign area shall not exceed the size of the ticket box window with which it is associated.
 3. *Wall sign.* The changeable copy sign may be a cabinet wall sign allowing for interchangeable copy but shall only be affixed to the front building facade, or facade of the main entrance.
 4. *Display box.* Posters and other advertisements shall be only affixed within a professionally constructed display box or frame. Display boxes shall not exceed standard poster sizes.
 5. *Marquees.* For the purpose of counting signs, each face of a marquee shall count as a sign. Marquee signs must be fifteen (15) feet from right-of way, and at least five (5) feet from interior side property line. Maximum height is thirty (30) feet from the average grade of the right-of-way to the top of the sign.
 6. *Copy.* Changeable sign copy shall be limited to the title of the performance and the MPAA rating. Display box copy shall be limited to posters.
- N. *Drive-through menu board signs.* Due to the unique retail service that restaurants operating drive-through lanes provide and the necessity for efficient and effective service and the need for additional signage with changeable copy to service their customers, restaurants with drive through lanes, in addition to signage that may be permitted in compliance with the standards herein, shall be permitted additional signage subject to compliance to the following standards:
1. *Number.* Two (2) menu board signs shall be permitted per drive through lane. Drive-through signs may be freestanding or affixed to a wall or one (1) of each.
 2. *Size.* Each drive-through menu sign shall not exceed twenty (20) square feet in area. Lettering used in the copy shall not exceed six (6) inches in height.
 3. *Spacing.* Each drive-through menu sign shall be spaced at minimum of ten (10) feet from each other, and from other freestanding signs on the property.
 4. *Height.* Freestanding and signs affixed to a wall shall be not exceed six (6) feet in height.
 5. *Location.* Drive-through menu signs shall be located as to be visible for the drive-through lane and not intentionally orientated to be visible for rights-of-way or drive aisles of the development.
- Copy.* Copy shall be limited to the menu items, pricing, specials, and graphics/pictures typical of restaurant menus. Menu board signs may be all changeable copy. All other copy shall be prohibited.

O. *Public art.* Mural signs located within the city shall be permitted, subject to the following conditions:

1. Compliance with zoning regulations. Mural signs shall be subject to zoning rules in determination of permitted uses.
 - (a) Murals and other forms of public arts with no advertising materials shall be subject to oversight by public arts ordinances adopted by the city and to compliance with the provisions set forth in this ordinance.
 - (b) The city commission or a designated arts commission. Determination of adherence to public arts ordinances for mural signs of a non-advertising nature shall fall under the jurisdiction by the city commission or a designated arts commission.
2. Mural advertising signs are expressively prohibited.
3. Murals shall only be placed on blank walls.
4. A mural sign shall be permitted to cover the entire blank portion of a wall of a building.
5. Illumination of mural signs shall be limited to the hours of 6:00 p.m. to 12:00 midnight.

(Ord. No. 17-07, exh. A(X), 4-12-2017)

Sec. 22-234.1. Certain county code provisions inapplicable.

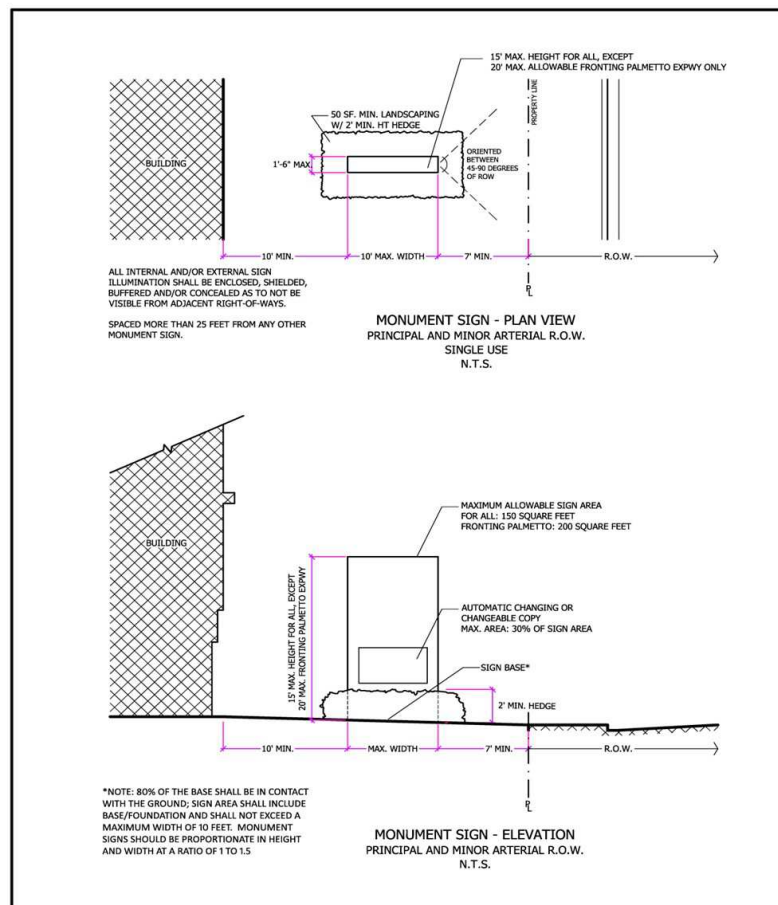
The city hereby opts out of the provisions of chapter 33, article VI, division 5 entitled "Commercial Signs on Expressway Right-of-Way", of the Code of Miami-Dade County, Florida, pursuant to Miami-Dade County Code § 33-121.11 in order that such provisions shall not apply to signs located within the territorial limits of the city.
(Ord. No. 16-04, § 1, 5-11-2016)

Sec. 22-235. Signage along principal arterial and minor arterial corridors (PAMA).

The signs permitted on property is determined by the property's location on the city's rights-of-way as defined on the city roadway classification map and determined by the type of use of the property. In addition to applicable criteria and design standards set forth in this article, the following signs standards shall be applicable in principal and minor arterial corridors, as set forth below. Where overlaps occur with districts, the corridor, and PAMA in ordinance standards, the stricter ordinance standards shall apply.

- 1) *Monument signs (PAMA).* Monument signs on properties with frontage on a principal arterial or minor arterial right-of-way (Figure 0-4 - Monument Signs on PAMA) shall conform to the following standards where applicable:
 1. *Number.*
 - (a) One (1) monument sign on properties with a minimum linear lot frontage of fifty (50) or more feet on a public right-of-way.
 - (b) Monument signs are not permitted on properties with less than fifty (50) linear feet of lot frontage on a right-of-way.
 - (c) A second monument sign may be allowed if the property has two (2) lot frontages of fifty (50) linear feet or more on a right-of-way or if the property has five hundred (500) feet or more of linear lot frontage on one (1) right-of-way. In any event, a maximum of two (2) signs shall be permitted.
 2. *Sign area.*
 - (a) Forty (40) square feet for the first fifty (50) feet of lot frontage on a street, plus three-fourths (0.75) square foot for each additional foot of lot frontage, up to a maximum of one hundred fifty (150) square feet total for one (1) sign.

- (b) Where two (2) signs may be permitted each sign shall not exceed one hundred fifty (150) square feet, for a total of three hundred (300) square feet.
3. *Sign height.* Fifteen (15) feet.
- 2) *Wall signs (PAMA).* Wall signs on properties with frontage on a principal arterial or minor arterial right-of-way shall conform to the following standards where applicable:
1. *Number.*
- (a) One (1) wall sign per building facade with frontage on a right-of-way, up to a maximum of two (2) wall signs. In lieu of a wall sign on the building facade with frontage on a right-of-way one (1) wall sign may be located on the building facade if such building facade faces into the parking area and is not abutting single-family residentially developed property.
- (b) If permitted a second wall sign, the second sign shall be identical copy, color, illumination method and method of construction. Each sign's size will be determined independently based on the facade frontage.
- (c) All buildings that have access from an alley or drive aisle may have one (1) non-illuminated identity sign, located on the rear door of the building not to exceed three (3) square feet in sign area, and not located higher than eight (8) feet above grade.



2. *Size.*

- (a) The total area of the wall sign shall not exceed ten (10) percent of the building facade with frontage on a right-of-way for the first fifteen (15) feet in height of the building, then the area may be increased by one and one-half (1.5) percent for each foot of building height measured from the base of the building above grade to the bottom of where the sign is located, up to a maximum of two hundred (200) square feet for buildings with up to one hundred (100) feet of building facade with frontage on a right-of-way.
- (b) Up to four hundred (400) square feet for buildings with more than one hundred (100) feet of building facade with frontage on a right-of-way.

- 3) *Window signs (PAMA).* Window signs on properties with frontage on a principal arterial or minor arterial right-of-way shall follow the standards, where applicable, in accordance with window sign design standards as set forth in this ordinance.
- 4) *Multi-use/multi-tenant/mix-use development (PAMA).* In addition to the monument design standards, multi-use/multi-tenant/mixed use developments along principal and minor arterials shall comply with the following standards where applicable:

1. *Number.*

- (a) For one (1) and two (2) story buildings one (1) wall sign per tenant's/use proportionate share of building facade with frontage on a right-of-way, as well as one (1) additional wall type sign located at the rear or side of a building facade if such building facade faces into the parking area and is not abutting single-family residentially developed property.
- (b) Tenants/uses that have two (2) facades fronting a right-of-way may have two (2) wall signs. The second sign shall be identical copy, color, illumination method and method of construction. Each sign's size will be determined independently based on the proportionate share of frontage of the facade for each tenant/use.
- (c) For buildings with three (3) or more stories one (1) wall sign per building facade with frontage facing a right-of-way, up to a maximum of two (2) wall signs. In lieu of a wall sign on the building facade with frontage on a right-of-way, one (1) wall sign may be located on the building facade that faces into the parking area, provided that such sign is not abutting single-family residences or single-family residentially zoned property. The second sign shall be identical copy, color, illumination method and method of construction. Each sign's size will be determined independently based on the facade frontage.
- (d) Wall signs located on second story building facades shall be permitted up to fifty (50) percent of the sign area as would be permitted on the ground floor building facade.

- 5) *Directory signs (PAMA).* Directory signs shall comply with the design standards set forth in the other sections of this ordinance.

(Ord. No. 17-07, exh. A(XI), 4-12-2017)

Sec. 22-236. Signage along collector roads.

Signage on properties with frontage rights-of-way other than arterial rights-of-way (Figure 0-5 - Monument Signs) shall conform to the following standards where applicable. Where overlaps occur with districts, PAMA, and the collector roads provisions of this section in ordinance standards, the stricter ordinance standards shall apply.

A. *Monument signs collector roads.*

- 1. *Number.* One (1) monument sign on properties with a minimum linear lot frontage of fifty (50) or more feet on a public right-of-way. Monument signs are not permitted on properties with less than 50 linear feet of lot frontage on a right-of-way.

2. *Sign area.* Twenty-four (24) square feet for first fifty (50) feet of lot frontage on a street, plus one-half (0.5) square foot for each additional foot of frontage, up to a maximum of fifty-four (54) square feet.
3. *Multi-use/multi-tenant development.* A second freestanding sign may be allowed if the site has more than five hundred (500) feet of street frontage. The maximum size of each sign shall be fifty-four (54) square feet for a total of one hundred eight (108) square feet.
4. *Height.* Six (6) feet maximum.

B. *Wall signs collector roads.*

1. *Design standards.* In designing wall signs the following standards shall be complied with:
 - (a) *Design.* Wall signs shall be comprised of channel lettering and reverse channel lettering type and design, cabinet signs. Other wall types of wall signs may be permitted in accordance with an approved sign plan, so long as they are consistent with the sign plan.
 - (b) *Multiple signs.* Where multiple wall signs with the same sign copy are to be placed on different building facades for the same sign owner/tenant/business, each wall sign should be identical in design, save and except the applicable maximum permitted sign area may be different, and location of placement may be different.
 - (c) *Cabinet signs and other type signs.* If cabinet signs or other types of signs are used to display registered trademarks, logos, slogans, the sign shall be integrated as intended to be viewed as one (1) wall sign.
 - (d) *Location.*

No wall sign shall extend above the roofline except where an exterior parapet wall projects above the roofline, in which case, such sign may not extend above the top edge of the parapet.

Wall signs shall not be allowed on a building facade abutting a single-family zoned or developed property.

Wall signs shall be located as to not interfere with public alarms, signals, or signs. No sign or support shall be placed in such position or manner as to obstruct or interfere, either physically or visually, with any fire alarm, police alarm, traffic signal or sign or any devices maintained by or under public authority.
2. *Number.*
 - (a) One (1) wall sign per building facade with frontage on a right-of-way, up to a maximum of two (2) wall signs. In lieu of a wall sign on the building facade with frontage on a right-of-way one (1) wall sign may be located on the building facade if such building facade faces into the parking area and is not abutting single-family residentially developed property.
 - (b) If a second wall sign is permitted, the second sign shall be identical copy, color, illumination method and method of construction to the first sign. Each sign's size will be determined independently based on the facade frontage.
3. *Size.*
 - (a) The total area of the wall sign shall not exceed ten (10) percent of the building facade with frontage on a right-of-way for the first fifteen (15) feet in height of the building, then the area may be increased by one and one-half (1.5) percent for each foot of building height measured to the bottom of where the sign is located, up to a maximum of two hundred (200) square feet for buildings with up to one hundred (100) feet of building facade with frontage on a right-of-way.
 - (b) Up to four hundred (400) square feet for buildings with more than one hundred (100) feet of building facade with frontage on a right-of-way.

C. *Window signs collector roads.* Window signs shall comply with the design standards set forth in the other sections of this article.
(Ord. No. 17-07, exh. A(XII), 4-12-2017)

Sec. 22-237. Signage in historical districts and/or for historical buildings.

a. Signage on historical building and/or in designated historical districts, if applicable, shall follow other sign standards as denoted in this ordinance, with the following exceptions: font and color. Content of the signage shall be restricted in font and color style to those appropriate to the architectural features of the building.

b. Size. The size of the signage shall be restricted so as to not detract from the architectural or historic aspects of the building.

c. Determination. Determination of compliance of the above shall be determined via certification by the city's board of architects.

d. City Moorish architecture motif. Signage of buildings designated as Arabian motifs shall follow the approval procedures outlined in section 6-14 (City Arabian Motif Architectural Regulations).
(Ord. No. 17-07, exh. A(XII), 4-12-2017)

Sec. 22-238. Signage in the TOD Transit Oriented Development District.

Signage in the TOD Transit Oriented Development District shall comply with standards set forth in this ordinance. Permissible uses of these signs shall be subject to regulations in this ordinance as well as the zoning code for the transit oriented development district.

- A. Sandwich signs shall only be permitted in a transit oriented development zone, subject the following conditions:
 - a. Signs must be related to a food service establishment, and shall be placed within 2 feet of the entrance of the establishment advertised on the sign.
 - b. Sign shall be immediately adjacent to the building, and not placed as to cause an obstruction in the middle of the sidewalk right-of-way.
 - c. Signs shall be no more than two and one-half (2.5) feet in width.
 - d. Signs may only be placed in areas where the sidewalk right-of-way is at least ten (10) feet in width.
- (Ord. No. 17-07, exh. A(XIV) 4-12-2017)

Sec. 22-239. Signage in the Magnolia North Redevelopment Overlay Zone.

Signage in the Magnolia North Redevelopment Overlay Zone shall comply with standards set forth in this ordinance. Permissible uses of these signs shall be subject to regulations in this ordinance.
(Ord. No. 16-07, exh. A(XV), 9-14-2016; Ord. No. 17-07, exh. A(22-239), 4-12-2017)

Sec. 22-240. Mixed-Use Overlay District.

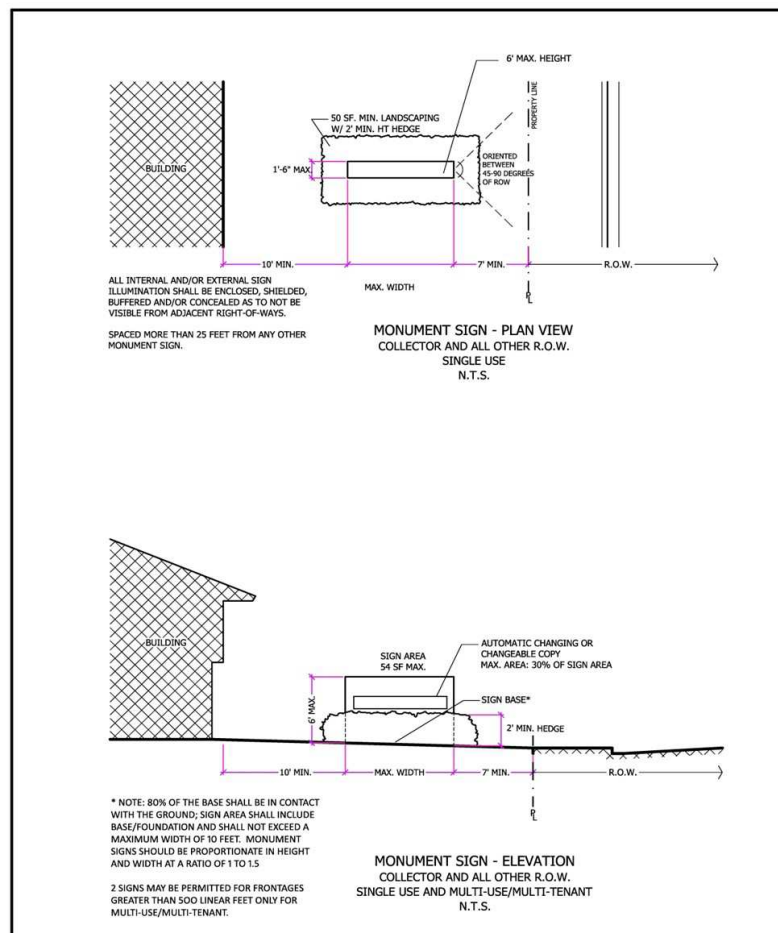
Signage in the mixed use overlay zone shall comply with standards set forth in this ordinance. Permissible uses of these signs shall be subject to regulations in this ordinance.
(Ord. No. 17-07, exh. A(XVI), 4-12-2017)

Sec. 22-241. Reserved.

Sec. 22-242. Temporary signs.

Temporary signs are permitted in the city for duration of time depending on the type of sign. Failure to remove a temporary sign within the permitted timeframe shall result in a violation of this ordinance. Temporary signs shall be permitted subject to compliance to the following provisions:

- A. *Construction signs.* One (1) development/project sign plus one (1) for each architect, contractor, sub-contractor, developer or finance organization at which location such individual is furnishing labor, materials, or services trade, financial institution, or sponsor.
1. *Sign area.* Each sign shall not be greater than thirty-two (32) square feet; however, the total sign area of all construction signs shall not exceed two hundred fifty-six (256) square feet. Only the sign face shall be counted toward the maximum sign area allowed. There is no sign size limit if the sign is painted on an approved construction shed/trailer.
 2. *Sign height.* Maximum sign height shall be ten (10) feet, measured from the base of sign to the uppermost portion of the sign.
 3. *Duration.* All construction signs shall be removed within fifteen (15) days after the certificate of occupancy for the structure is issued.



4. *Permit.* A sign permit shall not be required for a construction sign. The exemption from a sign permit shall not be construed to waive or otherwise exempt compliance with the Florida Building Code, or other provisions of this ordinance.

B. *Temporary construction fence sign (TCFS).* Temporary construction fence signs (TCFS) shall be permitted subject to compliance with the following:

1. *Location.* Temporary construction fence signs are permitted in all zoning districts. Such signs must be located on-site for real estate development projects, specifically at the construction site. Building permits must be issued for construction of the project in question prior to the construction or placement of a TCFS. TCFS shall only be permitted along lot frontages on public rights-of-way.
2. *Setbacks.* The minimum setback for temporary construction fence signs should be five (5) feet from the front property line or any right-of-way line or shall meet the minimum standards for compliance with other applicable regulations.
3. *Landscape.* Landscape should be provided within the five (5) foot setback. At minimum, such should include shrubs spaced a minimum of thirty-six (36) inches on center, a minimum of twenty-four (24) inches at planting, or some combination of setback and landscaping meeting the approval of the director. Such landscape shall be maintained in acceptable condition for the duration that the fence exists.
4. *Modifications.* The director shall have the authority, but no obligation, to modify said setbacks and landscape requirements based on a review of written justification that must be submitted by the applicant. The director shall have the authority to increase setbacks and minimum landscape requirements as deemed appropriate to the interests of the city.
5. *Size.* TCFS may be constructed up to eight (8) feet in height.
6. *Copy.* All copy shall be professionally prepared and affixed, and copy shall be limited to the following:
 - (a) Development name.
 - (b) Development company.
 - (c) Contact phone number.
 - (d) Website.
 - (e) Graphics/pictures of proposed development, buildings, people.
 - (f) Sale price.
7. *Lettering.* Lettering shall not exceed two (2) percent of the sign surface area.
8. *Submittal.* The following items shall be submitted in the review of the TCFS application on a form approved by the city:
 - (a) Site plan/survey clearly depicting the location of the TCFS.
 - (b) Color illustration/elevation of the TCFS depicting the copy with dimensions of size and lettering.
9. *Review and approval.* The director shall review the content and design of all TCFS and may impose any and all additional conditions deemed appropriate, including, but not limited to, setbacks, content, size, length, material, color, lighting, and landscape.
10. *Duration.* TCFS shall be permitted up to one (1) year from approval and may be extended for an additional period at discretion of the director, providing just cause and reason is provided by the applicant. TCFS shall be removed within fifteen (15) days after the final certificate of occupancy for the structures is issued.

- C. *Political campaign signs standards.* One (1) sign per property per candidate or ballot issue.
1. *Sign size.* The maximum size allowed shall be nine (9) square feet per sign on residential properties and thirty-two (32) square feet on nonresidential/mixed use properties.
 2. *Setback.* Signs shall setback a minimum of five (5) feet from all property lines.
 3. *Sign location.* No sign shall be located within, on, or over public right-of-way, public lands, or utility poles, or be located in a required sight visibility triangle.
 4. *Placement on vacant lots.* No political campaign sign shall be placed upon an unimproved lot without the written consent of the property owner filed with the city clerk prior to posting of the sign.
 5. *Signs on vehicles or machinery.* Political campaign signs placed on vehicles or machinery in residentially zoned property, except bumper stickers, shall not exceed four and one-half (4 ½) square feet and shall be securely fastened to the vehicle in order to ensure that the vehicle is capable of being operated in a safe manner upon the roads of the state.
 6. *Prohibited.* Portable political campaign signs, except for those signs securely fastened to vehicles or machinery noted above, defined for purposes of this ordinance as signs not secured to the ground in accordance with the building code, shall be prohibited.
 7. *Traffic hazards.* Political campaign signs shall not be located on property in such a manner as to interfere with or present a hazard to the flow of traffic along the streets adjacent to the property upon which such sign is located. The city shall take appropriate actions to remove or cause such signs to be removed.
 8. *Removal of improper political campaign signs.* Political campaign signs not posted in accordance with these regulations shall be subject to removal by the candidate, the property owner or the city. If the city removes the sign, the city shall deduct the cost and expense of removal from the posted cash bond.
 9. *Duration.* Sign shall be erected no earlier than ninety (90) days prior to the first primary. Signs shall be removed within five (5) days after the last election which candidate or issue was on the ballot. Promoters, sponsors and candidates shall be responsible for compliance with the provisions in this section and shall remove signs promoting or endorsing their respective candidacies when such signs are displayed or used in violation of this section. Additionally, any private owner who fails to remove an unlawful special events sign from his or her property shall be deemed in violation of this section. Any sign not removed within this time frame shall be considered an abandoned sign and subject to removal without notice.
 10. *Bond.* The city commission shall have the authority to require that each candidate in a municipal election and non-municipal elections, prior to the installation and/or construction of signs in accordance with this section, to post or cause to be posted with the city a refundable cash bond in an amount determined by the city commission as part of the customary procedure to establish such fees.
 11. *Permit.* A sign permit shall not be required for a political sign. The exemption from a sign permit shall not be construed to waive or otherwise exempt compliance with the Florida Building Code, or other provisions of this ordinance.
- D. *Real estate signs (nonresidential and mixed use developments).* A maximum of one (1) sign per lot frontage on a right-of-way, except that properties with a lot frontage of five-hundred (500) linear feet or more are allowed a maximum of two (2) signs per lot frontage on right-of-way.
1. *Size.* Real estate signs shall not exceed six (6) square feet when affixed to a window or building facade, and forty-four (44) square feet for freestanding real estate signs. The support structure of the freestanding sign shall not be counted towards the area of the sign.
 2. *Setback.* Freestanding real estate signs shall setback a minimum of ten (10) feet from all property lines.
 3. *Height.* Real estate signs shall be a maximum height of eight (8) feet.

4. *Spacing.* Real estate signs shall be spaced a minimum of two hundred fifty (250) feet apart when located on the same property and spaced a minimum of one hundred (100) feet from real estate signs on other property. Real estate signs shall be spaced a minimum of five (5) feet from any other sign on the property.
 5. *Location.* Freestanding real estate signs shall only be placed in landscaped areas of the property and shall not be located in the sight distance triangle, and shall be placed at either a forty-five (45) degree or ninety (90) degree angle to the right-of-way.
 6. *Maintenance.* Real estate signs shall be maintained in good condition and readable and shall not be faded or weathered and shall be replaced every twelve (12) months.
 7. *Copy.* Sign copy shall only contain necessary copy directly related to the real estate activity/transaction for the property on which the sign is located. Advertising of products or services other than the real estate shall be prohibited.
 8. *Duration.* Real estate signs shall be permitted up to one (1) year from approval and may be extended for an additional period at the discretion of the director, providing just cause and reason is provided by the applicant. Real estate signs shall be removed within fifteen (15) days after the sale or transaction of the property.
 9. *Permit.* A sign permit shall be required.
 10. *Exception for banners.*
 - (a) *Size.* Real estate banner signs shall be allowed up to a maximum size of ten (10) percent of the building facade area of which the banner is mounted.
 - (b) *Location.* Real estate banner signs shall only be affixed or mounted to the building facade. Notwithstanding compliance with these standards, no real estate banner sign may be located on the property as to pose or create a hazardous or health safety concern.
 - (c) *Permit.* A sign permit shall be required prior to the mounting of a real estate banner sign. A banner used as a real estate sign shall require public hearing approval.
- E. *Real estate signs (single-family residential, individual townhouse, duplexes, and similar dwelling units).* Real estate signs shall be permitted subject to compliance to the following standards:
1. *Number.* One (1) real estate sign per property and one (1) open house real estate sign per property. Up to three (3) temporary off-premises open house directional signs per residential development for the purpose of providing directions to multiple new dwellings for sale or lease in said development, or per resale home.
 2. *Size.* Each sign on the property shall not exceed four (4) square feet in area. Off-premises open house signs shall not exceed three (3) square feet in size.
 3. *Setback.* Signs shall be setback a minimum of five (5) feet from any property line.
 4. *Height.* Real estate signs on the property shall be a maximum height of five (5) feet. Temporary off-premises open house signs shall not exceed a maximum height of two (2) feet.
 5. *Location.* Open house signs shall be freestanding attached to their own support anchored in the ground and shall not be affixed to the building and shall not be located in the right-of-way. Permission to locate off-site open house signs shall be obtained from property owners. Signs located in the rights-of-way, or without property owner permission may be removed and discarded accordingly.
 6. *Maintenance.* Signs and all supporting structures shall be maintained in good condition and readable and shall not be faded or weathered and shall be replaced every twelve (12) months.

7. *Copy.* Real estate sign copy shall be limited to the "For Sale" or "For Rent," name of the agent, company, broker, phone number, address, website/email address, and other information as may be required by law or regulations. Open house directional sign copy shall be limited to "Open House" and an address and/or directions.
 8. *Duration.* Off-premises open house signs shall be permitted only during actual open house events and only between the hours of 9:00 a.m. on Fridays to 10:00 p.m. on Sundays. These hours shall be extended to include federal holidays.
 9. *Permit.* A sign permit shall not be required. The exemption from a sign permit shall not be construed to waive or otherwise exempt compliance with the Florida Building Code or other provisions of this ordinance.
- F. *Banner signs.* Banner signs shall be permitted subject to compliance to the following standards:
1. *Permit.* A sign permit shall be required for a banner sign.
 2. *Exception.* Banner signs approved for a city-sponsored or approved special event shall be exempt from these standards.
 3. *Usage.* Temporary banner signs can only be issued to bona fide retail/commercial, institutional, educational, religious, or restaurant use located on a single site or in a shopping center. Banner signs are only for purposes of advertising a grand opening, going out of business, or promotional or sales event.
 4. *Material.* Banner signs must be of a flexible material, no permanent type signage shall be considered a banner.
 5. *Number of signs.* Only one (1) banner sign per any one (1) year period for single use properties can be issued. No more than three (3) banner signs shall be permitted at any one (1) time and in any one (1) year period in a multiple tenants/multi-use development.
 6. *Location.* Banner signs must be installed on the same property as the business and must be in close proximity to the actual business. Banner signs must be mounted temporarily in a landscaped area, on a fence or wall. No permanent installation is allowed. Banners cannot be secured to trees, light poles or other structures.
 7. *Spacing and setback.* Banner signs must be spaced at least ten feet from each other and shall be a minimum of seven (7) feet away from the right-of-way at all times.
 8. *Size.* Banner signs may not be greater than fifty (50) square feet in size.
 9. *Safety.* No banner sign may be located on the property as to pose or create a hazardous or health safety concern.
 10. *Duration.* Applicants have up to fifteen (15) days to install the banner and the banner sign may only be displayed for forty-five (45) days. Permits will expire sixty (60) days from date of issuance, and all signs shall be removed. The banner and any installation material must be completely removed after forty-five (45) days of being installed or before the expiration of the permit, whichever comes first, or the applicant may be subject to a civil code violation.
 11. *Code inspection.* The banner sign permit must be kept on the business premises and readily available for inspection by a code compliance officer or the applicant may be subject to a civil violation notice.
- G. *Inflatable/balloon signs.* Inflatable/balloon signs shall be permitted provided they are in compliance with the following standards:
1. *Number.* The maximum number of inflatable/balloon signs shall be limited to one (1).
 2. *Size.* Inflatable/balloon signs shall have maximum size of thirty-two (32) feet in height and twenty (20) feet in width.

3. *Setback.* Inflatable/balloon signs shall setback a minimum of fifteen (15) feet from all property lines.
4. *Location.* Inflatable/balloon signs shall only be located on nonresidential, mixed use properties. Signs may be located in the front of buildings, on roof tops, and on the property as to not occupy parking areas, drive aisles, and shall not impede traffic or pedestrian flow, or create an unsafe or hazardous situation on or off the property.
5. *Duration.* Inflatable/balloon signs shall be permitted up to four (4) times each calendar year per property. No more than once each calendar quarter per applicant or per multi-tenant/multi-use property. Maximum of seventeen (17) days per sign during any one (1) calendar quarter.
6. *Copy.* Copy on the inflatable/balloon signs shall be limited to the business, or organization, or event name, and the primary product or service.
7. *Height.* Maximum of thirty-two (32) feet above the rooftop of the building in which the advertised use or occupant is located. Rooftop installations require the written consent of the property owner.
8. *Permit.* A sign permit shall not be required for an inflatable/balloon sign. The exemption from a sign permit shall not be construed to waive or otherwise exempt compliance with the Florida Building Code, or other provisions of this ordinance.

H. *Spotlight/searchlight sign.* Spotlight/searchlight signs shall be permitted provided they are in compliance with the following standards:

1. *Number.* The maximum number of spotlight signs shall be limited to one (1). One (1) sign shall have a maximum of up to four (4) individual spot lights.
2. *Setback.* Spotlight signs shall setback a minimum of fifteen (15) feet from all property lines.
3. *Location.* Spotlight signs shall only be located on nonresidential, mixed use properties. Signs may be located in the front of buildings, and on the property as to not occupy parking areas, drive aisles, and shall not impede traffic or pedestrian flow, or create an unsafe or hazardous situation on or off the property.
4. *Duration.* Spotlight signs shall be permitted per property or development up to three (3) times per calendar year for up to a maximum of three (3) consecutive days at any one time.
5. *Copy.* Illumination of copy shall not be permitted.
6. *Permit.* A sign permit shall not be required for a spotlight sign. The exemption from a sign permit shall not be construed to waive or otherwise exempt compliance with the Florida Building Code or other provisions of this ordinance.

I. *Mobile vendor and street vendor signs.*

1. Street vendors in semi-permanent structures and permanent structures shall be allowed one (1) sign, not exceeding five (5) square feet, which may contain the name of their business, the goods being sold at the location, and the prices of such goods.
2. Mobile vendors shall be allowed signs on their vehicle for the purpose of indicating the items being sold and the prices for such items only.
3. Mobile vendor signs shall be affixed to the vehicles related to the items advertised on the sign, with the following exception: Mobile vendors shall be allowed one (1) freestanding sign, not to exceed one (1) square foot, which may be placed only on their counter.

(Ord. No. 17-07, exh. A(XIII), 4-12-2017)

Sec. 22-242. Prohibited signs.

It shall be unlawful for any person to install, alter, erect, construct, post, paint, maintain, or relocate, within the municipal limits of the city any sign, without first having obtained a permit from the city, and/or have a valid permit for said work, unless otherwise exempt by this ordinance.

Said permit shall be issued by the city manager or his designee only after determination has been made that full compliance with all conditions of this ordinance, the Florida Building Code and other applicable regulations have been met and complied with.

Before any permit is issued, an application for such permit shall be filed in a manner required by the city. Any sign that does not have or has not been issued a valid permit as may be required by this ordinance shall be prohibited. In addition, the following signs shall be prohibited in the city;

1. Any sign not in compliance with the standards set forth in this ordinance.
2. Signs so located as to constitute a danger to public safety, including signs placed in the sight distance triangle.
3. Signs that exhibit thereon any lewd, obscene, offensive, or lascivious matter.
4. Wall signs with changeable copy, with the exception of marquee signs as provided for in this article.
5. Window signs above the second floor of any building.
6. Portable political campaign signs, except for those signs securely fastened to vehicles.
7. Any sign not secured to the ground or affixed to a wall or window in accordance with the Florida Building Code.
8. Banners, either on or otherwise mounted/placed on/with or connected to gasoline pumps, trees, utility poles, walls, or to other signage, except as specifically permitted in accordance with this ordinance.
9. Signs located on top of gasoline pumps, unless as required by law.
10. Flag that advertises a product, service, event, or slogan, except as specifically permitted in accordance with this ordinance.
11. Any signs, other than traffic signs, those under public authority, or those otherwise provided for in this ordinance, which uses the words "Stop" or "Danger," which implies the need to stop or present danger, are prohibited.
12. Signs or sign supports with revolving or flashing lights that mimics the color combinations of public alarms and signals, such as any fire alarm, police alarm, traffic signal or sign of any devices maintained by or under public authority, are prohibited.
13. Portable signs, except as specifically permitted in accordance with this ordinance.
14. Vehicle signs used to advertise a place of business or activity that can be viewed from a public right-of-way. This shall not be interpreted to prohibit identification of commercial vehicles provided such vehicles are operational and moved and used daily for delivery or service purposes and are not used, or intended for use, as portable signs. This shall not be interpreted to prohibit a mobile vendor from having a sign used to display information, such as prices, of the items being sold. This sign shall also not be interpreted to apply to buses, taxicabs, and similar common carrier vehicles which are licensed or certified by the county or other governmental agency.
15. Roof signs, parapet signs, and signs projecting above a canopy, parapet, or roof of a building, except balloon signs that may be permitted in accordance with this ordinance.
16. Billboards signs, except for those specifically allowed by the city commission with a zoning council recommendation.

17. Changeable copy signs except as specifically permitted in accordance with this ordinance.
18. A sign which covers, interrupts or disrupts the major architectural features of a building.
19. Signs or sign support that may interfere with public alarms, signals, or signs or placed in such position or manner as to obstruct or interfere, either physically or visually, with any fire alarm, police alarm, traffic signal or sign or any devices maintained by or under public authority.
20. Abandoned signs as herein defined, that remains out of compliance of the provisions herein for more than sixty (60) days of being abandoned.
21. Animated signs as herein defined, except for those specifically allowed by the city commission with a zoning council recommendation.
22. Open house signs located off-premises.
23. Real estate signs with photographs, graphics of agents/brokers.
24. Off-premises signs.
25. Neon signs, except as specifically permitted in section 22-234(F).
26. All snipe signs.
27. Standard balloons with or without copy used with the intention of drawing attention.
28. Any blinking or flashing lights, revolving or rotating signs, streamer lights, pennants, streamers, and all fluttering, spinning or other type of attention attractors or advertising devices are prohibited except during recognized holiday periods such attention-attractors that pertain to such holiday periods may be displayed on a temporary basis during such periods in accordance with provisions herein.
29. Automatic changeable copy window signs.
30. Signs on unoccupied or temporary structures, unless otherwise provided for in this ordinance.
31. Bench signs.
32. Pole signs.

(Ord. No. 17-07, exh. A(XVIII), 4-12-2017)

Sec. 22-243. Violations and penalties.

A. The city manager or designee, the building official, law enforcement officers, code enforcement officers and the community development director, and/or their designees of the city shall be authorized to enforce the provisions of this ordinance and pursuant to said authorization shall be empowered to enforce as permitted by law all violations of this ordinance.

B. Any person or entity found guilty of violating any section of this ordinance shall be subject to a fine up to five hundred dollars (\$500.00) per violation per day. Each day such violation is committed, or permitted to continue, shall constitute a separate offense and shall be punishable as such hereunder.

(Ord. No. 17-07, exh. A(XX), 4-12-2017)

ARTICLE XI. DEFINITIONS

Sec. 22-237[22-244]. Purpose.

Words and terms used in this code shall be given the meanings set forth in this section. All words and terms not specifically defined in this section shall be given their common, ordinary meanings, as the context may reasonably suggest.

(Ord. No. 16-07, exh. A(22-237), 9-14-2016)

Sec. 22-238[22-245]. Terms defined.

The following words, terms and phrases, when used in these regulations, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

A

Abandonment/abandoned means to cease or discontinue a use or activity without intent to resume but excluding temporary or short-term interruptions to a use or activity during periods of remodeling, maintaining, or otherwise improving or rearranging a facility, or during normal periods of vacation or seasonal closure. An "intent to resume" can be shown through continuous operation of a portion of the facility, maintenance of sewer, water, and other public utilities, or other outside proof of continuance such as bills of lading, delivery records, etc.

Abut means to physically touch or having property or district lines in common.

Access means a means of ingress and egress to a lot from either a public street, alley or private way.

Accessory building, structure or use means a subordinate structure detached from but located on the same lot as the principal structure, the use of which is incidental and subordinate to that of the principal structure. Where there is no principal structure on the lot, the accessory structure shall be considered as a principal structure for the purpose of the height, area and bulk regulations. These accessory buildings or structures may include, but are not limited to, the following: generators, pools, whirlpool spas, courts, cabanas, chickee huts, gazebos, sheds, detached garages and carports, antennas and wireless telecommunications facilities.

Accessory dwelling unit means an ancillary or secondary living unit (that has a separate kitchen, bathroom, and sleeping area) existing either within the same structure, or on the same lot, as the primary dwelling unit.

Addition to existing building means any construction or alteration which increases the size of a building.

Adjacent property means property that touches or is directly across a street, private street or access easement, or right-of-way (other than a freeway or principal arterial) from the subject property.

Adult business means any premises within the city where members of the public, or any person for consideration, are offered any live or recorded performance, or any visual image tangibly fixed in any medium, which performance, image, or recording has as its primary or dominant theme subject matter depicting, describing, or relating to specified sexual activities or specified anatomical areas, and which performance, recording, or visual image requires the exclusion of minors from the premises, pursuant to F.S. ch. 847.

Adult congregate living facility means any building, section or distinct part of a building, private home, boarding home, home for the aged, or other residential facility, whether operated for profit or not, which undertakes through its ownership or management to provide housing, meals, and one (1) or more personal services for a period exceeding twenty-four (24) hours to one (1) or more adults who are not relatives of the owner or administrator, not including substance abuse facilities.

Adult day care means any building, or other place, whether operated for profit or not, which undertakes through its ownership or management to provide, for a part of the twenty-four (24) hour day, basic services to three (3) or more adults, not related to the owner/operator by blood or marriage, who require such services.

Adult group home means a nursing home facility, adult congregate living facility or adult family-care home facility licensed by the state.

Alley means a through right-of-way (public or private), of less than twenty-five (25) feet in width, that offers only secondary access to abutting properties which is not used for general traffic.

Alteration means any change in the size, shape or character of construction of a building, structure or sign. Superficial enhancement of the exterior of an existing building for the purpose of beautifying and modernizing shall not be considered a structural alteration.

Animal boarding means any place of business where dogs and/or cats are maintained for overnight boarding for a fee. Animal boarding facility may include grooming but shall not include any animal control center or any veterinary hospital, or any animal facility operated by any subdivision of local, state or federal government. Animal boarding facility shall not include any research facility subject to inspections under any provision of any state and/or federal law.

Animal grooming means all stores, shops or other business wherein animals are accepted for personal treatment not overnight, such as, but not limited to, hair trimming, fur cutting, bathing, washing, pedicuring, combing or brushing, shampooing, or any and all other measures and treatments designed or performed for the purpose of improving the cleanliness or appearance of animals.

Apartment means a building with or without resident supervision occupied or intended to be occupied by more than two (2) families living separately with separate cooking and sleeping facilities in each unit.

Appliance, furniture and electronic rental and repair means any place of business which provides for the repair and rental of small appliances, electronics and furniture.

Arcade means a walkway adjacent to a building, covered by a roof, yet not fully enclosed.

Arterial means a street as defined in F.S. § 334.03(1). All arterials in the county are designated on the Miami-Dade County Transportation Map.

Artist workspace means a space for the production of art works, which includes, but is not limited to, art galleries and art studios.

Assembly means a group of persons organized and united for some common purpose.

Attic means the area between roof framing and the ceiling of the rooms below that is not habitable, but may be reached by ladder and used for storage of mechanical equipment enclosed with walls, flooring, and a ceiling creates finished attic space eligible for status as a story.

Automobile service center means any building, structure, or lot used for the following: dispensing, selling or offering for retail sale gasoline, kerosene, lubricating oil, or grease for the operation and maintenance of vehicles. This may include buildings or structures that are used for the retail sale and direct delivery to motor vehicles of candy, soft drinks and other related items for the convenience of the motoring public, and may include facilities for hand car washing, lubricating, minor repairs or vehicle service. Such establishments shall not include facilities for major vehicle service.

B

Balcony means a platform enclosed by a parapet or railing that projects from the wall of a building and is not within the general outline or profile of the building.

Banquet hall means a facility or hall available for lease by private parties for the purpose of dining and social events.

Bar, lounge or tavern means any place of business where alcoholic beverages are sold or offered for sale for consumption on the premises and where the sale of food is incidental to the sale of such beverages or where no food is sold, and includes any establishment in receipt of a valid alcoholic beverage license from the state which permits the sale for consumption on the premises of alcoholic beverages as a principal use. Establishments where alcoholic beverages are permitted for consumption on the premises as an incidental or accessory use are not considered a bar.

Bikeway means any road, path, or way which is designated as being open to non-motorized vehicular travel.

Block means a parcel of land entirely surrounded by streets, streams, railroad rights-of-way, parks or other public space or combinations thereof.

Boat means a vessel for travel on water. The following shall be exempt from the term "boat":

- a) Non-motor-powered vessels;
- b) Non-motor-powered vessels used exclusively on private lakes and ponds;
- c) Vessels owned by the United States government; and
- d) Vessels used exclusively as a ship's lifeboat.

Boat storage/marine facility means a recreational boating establishment, which may provide covered or uncovered dry boat storage, marine fuel and lubricants, marine supplies, boat and boat motor sales or rentals. Repairs which are incidental to the principal marine use are permitted as an accessory use; however, no boat construction or reconstruction is permitted.

Boat trailer means a non-automotive vehicle designed to be hauled by road as a vehicle for the transportation of boats.

Boundary means a line indicating the bounds or limits of any tract or parcel of land, or the various use districts of an urban area.

Buffer area (see also *Screening*) means a physical barrier, landscaped area or green space intended to separate two (2) adjacent land uses or properties from one another.

Build to line means an alignment established a certain distance from the curb line to a line along which the building shall be built. Front porches and handicap ramps shall be exempt from build-to line requirements, and must occur behind the property line.

Buildable area means the area of a lot remaining after the minimum yard and open space requirements of these regulations have been met.

Building means any structure used or intended for supporting or sheltering any use or occupancy.

Building code means the Florida Building Code, as amended; the National Electrical Code, as amended; the National Electrical Safety Code, as amended; FCC regulations, as amended; and any other applicable federal, state, and local building code.

Building footprint means the area of a lot or site included within the surrounding exterior walls of a building or portion of a building, exclusive of courtyards. In the absence of surrounding exterior walls, the building footprint shall be the area under the horizontal projection of the roof.

Building line means the line established by law, beyond which a building shall not extend, except as specifically provided by law.

Building permit means an official document or certification that is issued by the building official after review for compliance with building constructions standards adopted by the city and which authorizes the construction, alteration, enlargement, conversion, reconstruction, remodeling, rehabilitation, erection, demolition, moving, or repair of a building or structure and does not include a review for compliance with land development regulations.

Building setback means the distance as measured perpendicularly from the front, side, or rear property line to the building.

Buildout means development of land to its full potential or theoretical capacity as permitted under current or proposed planning or zoning designations.

Built upon area means a portion of a development that is covered by impervious or partially impervious cover, including, but not limited to, buildings, pavement, gravel roads and parking areas, recreation facilities.

Business tax receipt means a license issued by the city as a prerequisite to the maintaining and conducting of a business, service or profession.

C

Canopy means any fixed roof-like structure, not movable like an awning, and which is cantilevered in whole or in part self-supporting but having no side walls or curtains other than valances not more than eighteen (18) inches deep. Lean-to canopies, fixed umbrellas and similar structures are included in this classification. Structures having side walls or valances more than eighteen (18) inches deep shall be classified as a tent as set forth herein.

Car washing means the operation performed on a vehicle in order to clean it; it may include both exterior and interior washing and cleaning functions.

Car washing, mechanical, means a structure containing facilities for the automatic or semi-automatic washing, waxing and drying of automobiles.

Carport means a private automobile shelter not completely enclosed by walls and doors.

Carrier means a company licensed by the Federal Communications Commission (FCC) that provides wireless services. A tower builder or owner is not a carrier unless licensed to provide personal wireless services.

Carwash, hand, means a for-profit service involving the washing and/or waxing, and/or buffing of vehicles by hand labor. The term "hand carwash" does not include self-service mechanical hose car washes, or car washing operations serving as an incidental use to businesses which are primarily involved in the selling, renting or leasing of vehicles.

Catering kitchen means a facility for the preparation of food items to be served at events and venues off-premises.

Child care facility means any child care arrangement which provides child care for more than five (5) children unrelated to the operator and which receives a payment, fee, or grant for any of the children receiving care, wherever operated, and whether or not operated for profit. The following are not included:

- (a) Public schools and nonpublic schools and their integral programs, except as provided in F.S. § 402.3025;
- (b) Summer camps having children in full-time residence;
- (c) Summer day camps;
- (d) Bible schools normally conducted during vacation periods; and
- (e) Operators of transient establishments, as defined in F.S. ch. 509, which provide child care services solely for the guests of their establishment or resort, provided that all child care personnel of the establishment are screened according to the Level 2 screening requirements of F.S. ch. 435.

Civic use means a building or land area devoted to educational, neighborhood or governmental activities and serving the needs of the public or local citizenry.

Cluster development means a development design technique that concentrates buildings in specific areas on a site to allow the remaining land to be used for recreation, common open space, and preservation of environmentally sensitive areas.

Collector means a street as defined in F.S. § 334.03(4).

Colonnade means a series of columns set at regular intervals and usually supporting the base of a roof structure.

Commercial vehicle means a motor vehicle with two (2) axles or more used for the purchase, sale or transportation of commodities, including, but not limited to, motor or non-motored vehicles displaying the names of commercial entities.

Committed trip means a trip reserved for concurrency purposes based on an approved development order.

Common area recreational facility means recreational structures or areas in a particular development such as community buildings; pools; cabañas; tennis, basketball or racquetball courts; solariums and play lots for the use and enjoyment of the residents and guests.

Community facility means a building or facility owned and operated by a governmental, civic, fraternal or veterans organization or association or nonprofit entity which is open to the public or a designated part of the public for recreational, social and educational activities, which primarily serve the immediate community in which the facility is located.

Community residential home means a dwelling unit licensed to serve residents, who are clients of the department of elderly affairs, the agency for persons with disabilities, the department of juvenile justice, or the department of children and family services or a dwelling unit licensed by the agency for health care administration which provides a living environment for unrelated residents who operate as the functional equivalent of a family, including such supervision and care by supportive staff as may be necessary to meet the physical, emotional, and social needs of the residents.

Concurrency means the necessary public facilities and services to maintain the adopted level of service standards are available when the impacts of development occur.

Conditional use means a use not permitted by right but may provide for an individual or community serving need and which, subject to conditions, would not impact the integrity of the zoning district.

Consignment shop means an establishment wherein goods limited to clothing, shoes and/or accessories for adults and/or children are sold by the operator of the shop, acting as the agent for the owner of such goods, in return for a percentage of the profits, or other consideration. Such goods may be comprised of a combination of used goods and new goods, or of used goods only.

Contiguous. Lands are contiguous if they abut each other, or if separated by streets, ways, easements, pipelines, power lines, conduits, or rights-of-way under single ownership of the petitioner, a governmental agency, a subdivision or a public or private utility. Lands shall not be considered contiguous unless they can be developed with internal vehicular and pedestrian connectivity.

Convenience store means a retail use, not exceeding one thousand (1,000) square feet, that is an accessory use in and serves residents and visitors in residential buildings with three hundred (300) or more units.

Critical facility means a facility, including, but not limited to, schools, nursing homes, hospitals, police, fire and emergency response installations, and installations which produce, use, or store hazardous materials or hazardous waste.

D

Day care means an enterprise involving the care of no more than five (5) preschool and elementary school children from more than one (1) unrelated family including preschool children living in the home and preschool children received for day care who are related to the resident care giver.

Day spa means an establishment that provides at least three (3) services for personal wellness or grooming (including massage and body care treatments, facials, and other aesthetic treatments) and no more than one (1) chair for makeup or hair treatments.

Demolition means the complete constructive removal of a building or structure on any site.

Density means an objective measurement of the number of people or residential units allowed per unit of land, such as residents or employees per acre.

Density, gross, means the total number of dwelling units divided by the overall area (as measured to the centerline of adjacent streets).

Density, net, means the total number of dwelling units divided by lot area (exclusive of rights-of-way).

Design excellence means architectural designs which rise above the ordinary because of design, treatments and materials which provide character and diversity and contribute to establishing an address and a sense of place.

Developer means any person, including a government agency, undertaking any development as defined herein.

Developer agreement means a formal document adopted by resolution of the city commission, which outlines the responsibilities for expansion, extensions and reimbursement schedules for the construction of improvements to meet the adopted level of service.

Development means any manmade change to improved or unimproved real estate, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavating, drilling operations, or storage of materials or equipment.

Development order means any order granting, denying, or granting with conditions an application for a development permit.

Development permit means any building permit, zoning permit, subdivision approval, rezoning, certification, variance, or any other official action of local government having the effect of permitting the development of land.

Director means the director of the department of planning and community development or his or her qualified designee.

District means any area delineated on the official zoning map under the terms and provisions of this Code or which may hereinafter be created subsequent to the enactment of this Code for which regulations governing the area, height, use of buildings, or use of land, and other regulations relating to development or maintenance of existing uses or structures, are uniform.

Drive-through means a driveway or roadway that is designed and intended to provide access for vehicles whereby occupants of vehicles receive and/or obtain a product or service.

Driveway means a vehicular access or a private road that enables vehicles to travel from a public or private road to the entrance of a public or private property.

Dry cleaning means any fully equipped steam laundry or dry cleaning and dyeing establishment wherein the actual processing of garments is done. A dry cleaning establishment shall also engage in collecting clothes from customers, over the counter, processing them, and returning them to the customers.

Dry cleaning plant means a facility in business to provide dry cleaning services, on a large scale, for off-site customers. A dry cleaning plant is an industrial operation, is not open to serve the general public, and is regulated by environmental laws that require the safe disposal of contaminated solvents and wash water used in the cleaning process.

Duplex means a building containing two (2) single-family dwelling units totally separated from each other by a vertical common firewall. Each unit shall have direct access to the outside and separate cooking and sleeping areas.

Dwelling or residence means any building or part thereof, occupied in whole or in part, as the residence or living quarters of one (1) or more persons, permanently, or temporarily, continuously or transiently.

Dwelling, multifamily, means a building or portion thereof used for occupancy of three (3) or more families living independently of each other and containing three (3) or more dwellings, including, but not limited to, what is commonly known as an apartment building.

Dwelling, single-family attached (group, row, duplex, and townhouses), means one (1) or more dwellings having a common or party wall.

Dwelling, single-family detached, means a dwelling not occupied by more than one (1) family; a dwelling comprised of only one (1) unit.

E

Easement means an interest in land owned by another person, consisting in the right to use or control the land, or an area above or below it, for a specific limited purpose.

Educational facility means a building or group of buildings used primarily as an institution of higher learning established and operated for profit or not-for-profit, or recognized by the State of Florida as an institution offering post high school curriculum, including college/university dormitories.

Entrance features means any combination of decorative structures and landscape elements located at the entrance to a development, which identifies or draws attention to the development and/or exercises control of ingress and egress to the development. An entrance feature may include, although not necessarily be limited to, ornamental walls, fences, identifying lettering, logos, works of art, and other decorative structures, earthworks, water bodies, fountains, trees, plantings, and other landscape elements, as well as gatehouses, either singly or in any combination thereof.

Existing development means the use of a lot, parcel or structure at the time of the enactment of this code or any section thereof.

Existing urban service area means built-up areas where public facilities and services such as sewage treatment systems, roads, schools, and recreation areas are already in place.

F

Facade means that exterior side of a building which faces, and is most nearly parallel to, a public or private street. The facade shall include the entire building walls, including wall faces, parapets, fascia, windows, doors, canopies, etc. but does include exposed roof surfaces.

Family means one (1) or more persons living together as a single housekeeping unit.

Fence means a barrier used to enclose a property as a means of protection or confinement.

Financial institution means facilities, including any bank, insurance company, savings and loan association, credit union, mortgage company or any other person or organization, engaged in the business of lending money, guaranteeing loans, or extending credit.

Fine arts studio means a facility for the instruction and/or rehearsal of fine arts, including, but not limited to, music, dance, and painting.

Flag means a piece of fabric with a color or pattern representing a government or other organization, entity, or idea.

Flea markets and bazaars means markets, often outdoors, consisting of a number of individual stalls selling old or used articles, curios and antiques, cut-rate merchandise, etc.

Floodplain management.

Area of shallow flooding means a designated AO or AH zone on the community's flood insurance rate map (FIRM) with base flood depths from one (1) to three (3) feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and indeterminate, and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

Area of special flood hazard means the land in the floodplain within a community subject to a one (1) percent or greater chance of flooding in any given year. This term is synonymous with the phrase "special flood hazard area."

Base flood means the flood having a one (1) percent chance of being equaled or exceeded in any given year (also called the "one hundred (100) year flood" and the "regulatory flood").

Base flood elevation means the water-surface elevation associated with the base flood.

Basement means that portion of a building having its floor sub-grade (below ground level) on all sides.

Best management practices means any activities, prohibitions, practices, procedures, programs, or other measures designed to prevent or reduce the discharge of pollutants directly or indirectly into waters of the United States. This shall include, but is not limited to, those measures specified in the stormwater best management practice handbooks for municipal, industrial/commercial, and construction activity and those measures identified by the city.

Breakaway wall means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces without causing damage to the elevated portion of the building or the supporting foundation system.

Coastal high hazard area means an area of special flood hazard extending from offshore to the inland limit of a primary frontal dune along an open coast and any other area subject to high velocity wave action from storms or seismic sources. The area is designated on the FIRM as Zone V1—V30, VE, or V.

Datum means a reference surface used to ensure that all elevation records are properly related. Many communities have their own datum that was developed before there was a national standard. The current national datum is the National Geodetic Vertical Datum (NGVD) of 1929, which is expressed in relation to mean sea level, or the North American Vertical Datum (NAVD) of 1988.

Elevated building means a non-basement building built to have the lowest floor elevated above the ground level by foundation walls, posts, piers, columns, pilings, or shear walls.

Encroachment means any portion of any structure that extends beyond the required setback, easement or floodplain.

Existing construction means, for the purposes of floodplain management, structures for which the start of construction commenced before the date of the initial flood insurance rate map (FIRM). Existing construction means, for the purposes of determining rates, structures for which the start of construction commenced September 29, 1972. The term "existing construction" may also be referred to as "existing structures."

Flood or flooding means:

- (a) A general and temporary condition of partial or complete inundation of normally dry land areas from:
 - (1) The overflow of inland or tidal waters.
 - (2) The unusual and rapid accumulation or runoff of surface waters from any source.
 - (3) Mudslides (i.e., mudflows) which are proximately caused by flooding as defined in subsection (a)(2) of this definition and are akin to a river of liquid and flowing mud on the surface of normally dry land areas, as when earth is carried by a current of water and deposited along the path of the current.
- (b) The collapse or subsidence of land along a shore of a lake or other body of water as the result of erosion or undermining caused by waves or currents of water exceeding anticipated cyclical levels or suddenly caused by an unusually high water level in a natural body of water, accompanied by a severe storm or by an unanticipated force of nature, such as a flash flood or an abnormal tidal surge or by some similarly unusual and unforeseeable event which results in flooding as defined in subsection (a)(1) of this definition.

Flood boundary and floodway map (FBFM) means the official map of the community on which the Federal Emergency Management Agency (FEMA) has delineated the areas of special flood hazard and regulatory floodways.

Flood hazard boundary map (FHBM) means an official map of the community, issued by FEMA, where the boundaries of the areas of special flood hazard have been identified as only approximate Zone A.

Flood insurance rate map (FIRM) means an official map of the community, issued by FEMA, which delineated both the areas of special flood hazard and the risk premium zones applicable to the community.

Flood insurance study (FIS) means the official hydraulic and hydrologic report provided by FEMA. The study contains an examination, evaluation, and determination of flood hazards, and, if appropriate, corresponding water surface elevations, or an examination, evaluation, and determination of mudslide (i.e., mudflow) and other flood-related erosion hazards. The study may also contain flood profiles, as well as the FIRM, FHBM (where applicable), and other related data and information.

Floodplain means any land area susceptible to being inundated by water from any source. (See *Flooding*.)

Floodplain administrator means the individual appointed to administer and enforce the floodplain management regulations of the community.

Floodplain management means the operation of an overall program of corrective and preventive measures for reducing flood damage and preserving and enhancing, where possible, natural resources in the floodplain, including, but not limited to, emergency preparedness plans, flood control works, floodplain management regulations, and open space plans.

Floodplain management regulations means this code and other zoning ordinances, subdivision regulations, building codes, health regulations, special purpose ordinances (such as floodplain ordinance, grading ordinance, and erosion control ordinance), and other applications of police power which control development in floodprone areas. The term "floodplain management regulations" describes federal, state, or local regulations in any combination thereof, which provide standards for preventing and reducing flood loss and damage.

Floodproofing means any combination of structural and non-structural additions, changes, or adjustments to structures, which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

Floodway means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

Floodway area means the channel of a watercourse and those portions of the adjoining floodplains which are required to carry and discharge the one hundred (100) year flood with no significant increase in the base flood elevation.

Floodway fringe means that portion of a floodplain that is inundated by floodwaters but is not within a defined floodway. Floodway fringes serve as temporary storage for floodwaters.

Free of obstruction means any type of lower area enclosure or other construction element that will obstruct the flow of velocity water and wave action beneath the lowest horizontal structural member of the lowest floor of an elevated building during a base flood event is not allowed. This requirement applies to the structures in velocity zones (V zones).

Freeboard means the additional height, usually expressed as a factor of safety in feet, above a flood level for purposes of floodplain management. Freeboard tends to compensate for many unknown factors, such as wave action, blockage of bridge or culvert openings and hydrological effect of urbanization of the watershed, that could contribute to flood heights greater than the height calculated for a selected frequency flood and floodway conditions.

Functionally dependent use means a use that cannot be used for its intended purpose unless it is located or carried out in close proximity to water, such as a docking or port facility necessary for the loading and unloading of cargo or passengers, shipbuilding or ship repair. The term "functionally dependent use" does not include long-term storage, manufacture, sales, or service facilities.

Low impact stormwater control system design means a stormwater management approach modeled to allow natural infiltration of rainfall as close as possible to the original area of rainfall. The design replicates an unimproved natural system which does not involve piped or curb and gutter applications; but achieves infiltration through design of a well maintained natural meandering grass swale system. Low impact design protects natural resources from pollutants, reduces unnecessary consumption of land and increases the preservation of natural open space.

Lowest floor means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, used solely for parking of vehicles, building access, or storage, in an area other than a basement, is not considered a building's lowest floor, provided that such enclosure is not built so as to render the structure in violation of the non-elevation design standards of this ordinance.

Mean sea level means the average height of the sea for all stages of the tide. It is used as a reference for establishing various elevations within the floodplain. For purposes of this code, the term "mean sea level" is synonymous with National Geodetic Vertical Datum (NGVD) of 1929, or North American Vertical Datum (NAVD) of 1988.

National Geodetic Vertical Datum (NGVD) of 1929 means a vertical control used as a reference for establishing varying elevations within the floodplain.

New construction means, for floodplain management purposes, any structure for which the start of construction commenced on or after the effective date of the initial floodplain management code, ordinance, or standard based upon specific technical base flood elevation data that establishes the area of special flood hazard—include only one (1) date. The term "new construction" also includes any subsequent improvements to such structures. For flood insurance rates, structures for which the start of construction commenced on or before September 29, 1972, and includes any subsequent improvements to such structures, are considered new construction.

Regulatory floodway means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

Remedy a deficiency or violation means, for the purposes of floodplain management, to bring the regulation, procedure, structure or other development into compliance with state, federal or local floodplain management regulations; or if this is not possible, to reduce the impacts of its noncompliance. Ways the impacts may be reduced include protecting the structure or other affected development from flood damages, implementing the enforcement provisions of this ordinance or otherwise deterring future similar violations, or reducing federal financial exposure with regard to the structure or other development.

Repetitive loss means, for the purposes of floodplain management, flood related damage sustained on a structure on two (2) separate occasions during a ten (10) year period for which the cost of repairs at the time of each such flood event, on the average, equals or exceeds twenty-five (25) percent of the market value of the structure before the damage occurred.

Riverine means relating to, formed by, or resembling a river (including tributaries), stream, brook, etc.

Water surface elevation means the height, in relation to the National Geodetic Vertical Datum (NGVD) of 1929 or the North American Vertical Datum (NAVD) of 1988, of floods of various magnitudes and frequencies in the floodplains of coastal or riverine areas.

Watercourse means a lake, river, creek, stream, wash, channel or other topographic feature on or over which waters flow at least periodically. Watercourse includes specifically designated areas in which substantial flood damage may occur.

Floor area, gross, means the sum of the horizontal areas of all floors of a building, including areas used for human occupancy in basements and attics, as measured from the exterior faces of the walls. Such area does not include basements, unenclosed porches, or attics not used for human occupancy.

Floor area ratio (FAR) means a measurement of development intensity determined by dividing the floor area of the building or buildings on any lot by the net area of the lot.

Florida friendly landscaping means guiding principles of the Florida Yard and Neighborhood programs which principles include locating the right plant in the right place, water efficiently, fertilize appropriately, mulch, attract wildlife, manage pests, responsibly recycle, reduce storm water runoff, and protect the waterfront.

Footprint means the outline or shape of a building or structure as determined on a horizontal plane.

Frontage means the length of any one (1) property line of a site, which property line abuts a legally accessible public right-of-way.

Funeral home means an establishment with facilities for the preparation of the dead for burial, for viewing of the deceased and for funerals.

G

Garage, private, means a structure for the private use of the owner or occupant of a principal structure situated on the same lot for the storage of motor vehicles.

Garage, public, means a structure designed and used for the storage of motor vehicles.

Garage, repair, means a building designed and used for the storage, care, repair, or refinishing of motor vehicles, including both minor and major mechanical overhauling, paint, and body work.

Geographic search area means that initial circular area which has a radius of no less than one (1) mile designated by a wireless provider or operator for a new tower. The geographic search area shall be determined based upon engineering considerations including grids, frequency coordination and levels of service consistent with good engineering practices.

Glare means a light emitting from a luminaire with an intensity great enough to reduce a viewer's ability to see and in extreme cases to cause momentary blindness.

Grade means the elevation established for the purpose of regulating the number of stories and the height of buildings. Grade shall be the mean level of the finished surface of the ground adjacent to the exterior walls of a building or a base to support a structure.

Green definitions.

Construction and demolition debris or *C&D* means used or commonly discarded materials removed from premises of a project during construction, remodeling, repair, demolition, deconstruction or renovation resulting from construction, renovation, remodeling, repair, deconstruction, or demolition operations on any pavement, house, residential building, nonresidential building, or other structure, or from landscaping. Such materials include, but are not limited to, dirt, sand, rock, gravel, bricks, plaster, gypsum wallboard, aluminum, glass, asphalt material, plastic pipe, roofing material, carpeting, concrete, wood, masonry, rocks, trees, remnants of new materials, including paper, plastic, carpet scraps, wood scraps, scrap metal, building materials, packaging and rubble resulting from construction, remodeling, renovation, repair and demolition operations on pavement, house, residential building, nonresidential building, and other structures.

Cut-off type lighting fixture means a luminaire that allows a minimum amount of light directed at a horizontal plane (ninety (90) degrees). Light above the horizontal plane is limited to less than two and one-half (2.5) percent of the total lamp lumens.

Florida Green Building Coalition (FGBC) means the Florida Green Building Coalition, Inc. a Florida 501(c)(3) not-for-profit corporation whose mission is to establish and maintain a Florida system of statewide green building standards and third party certification programs with environmental and economic benefits.

Fuel-efficient vehicles means vehicles which have achieved a minimum green score of 40 according to the annual vehicle-rating guide of the American Council for an Energy Efficient Economy.

Full cut-off fixture means a luminaire, as installed, that is designed or shielded in such a manner that no light is present at or above a horizontal plane.

Fully shielded means a light fixture constructed in such a manner that all light emitted by the fixture, whether directly from the lamp or a defusing element, or indirectly by reflection or refraction from any part of the luminaire, is projected below the horizontal as determined by photometric test or certified by the manufacturer. Any structural part of the light fixture providing this shielding must be permanently affixed. Fixture shall be mounted such that no light is emitted above the horizontal plane.

Green building means a structure that is designed, built, renovated, operated and reused in an ecological and resource-efficient manner.

Green building certification means the final designation awarded by a nationally recognized third party certifying agency such as the GBCI or FGBC, or other third party certifying agency as approved by the city manager, evidencing compliance with the certification requirements under the applicable program.

Green Building Certification Institute (GBCI) means the organization which administers and provides third party project certification for commercial and institutional buildings and tenant spaces under the U.S. Green Building Council's Leadership in Energy and Environmental Design (LEED®) Green Building Rating Systems™.

Green Globes® means the most recent version of the Green Globes® Rating System which includes Green Globes for New Construction and Green Globes for Continual Improvements of Existing Buildings.

Hybrid vehicles means vehicles which use a gasoline engine to drive an electric generator and use the electric generator and/or storage batteries to power electric motors that drive the vehicle's wheels.

LEED® means the most recent version of the Leadership in Energy and Environmental Design® Rating System which is a third party certification system designed for rating various building types as developed by the U.S. Green Building Council.

Light pollution means any adverse effect of manmade light, including, but not limited to, discomfort to the eye or diminished vision due to glare, light trespass, up lighting, the uncomfortable distraction to the eye, or any man-made light that diminishes the ability to view the night sky.

Light trespass means the shining of light produced by a luminaire beyond the boundaries of the property on which it is located.

Lumen means a unit of luminous flux; used to measure the amount of light emitted by lamps.

Nadir means the direction pointing vertically down from the lowest light emitting part of the luminaire.

Solar Reflective Index (SRI) means a measure of a material's ability to reject solar heat, as shown by a small temperature rise. It is defined so that a standard black (reflectance 0.05, emittance 0.90) is zero and a standard white (reflectance 0.80, emittance 0.90) is 100.

Up-lighting means fully shielded lighting that is directed in such a manner as to shine light rays above the horizontal plane.

Volatile organic compounds (VOCs) means carbon compounds that participate in atmosphere photochemical reactions (excluding carbon monoxide, carbon dioxide, carbonic acid, metallic carbides and carbonates, and ammonium carbonate). The compounds vaporize at normal room temperatures.

Growth management plan means a plan that meets the requirements of F.S. §§ 163.3177 and 163.3178.

Gun shop means an establishment engaged in the business of selling firearms, regardless of whether said business is solely engaged in the sale of firearms or sells firearms and additional merchandise.

H

Height means the vertical distance from grade to the highest point of the structure in all districts, unless exempted per the requirements of exclusion from height limits.

Height limit means the limit to the vertical extent of a structure that is measured in number of stories or feet.

Historic structure, building, site, object, or district means any structure, building, site, object, or district that is: Listed individually in the National Register of Historic Places (a listing maintained by the Department of the Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register; certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district; on the Florida inventory of historic places, which has been approved by the Secretary of the Interior; or on a local inventory of historic places in communities with historic preservation programs that have been certified either: by the approved Florida program as determined by the Secretary of the Interior, or directly by the Secretary of the Interior.

Home occupation means an occupation, craft or profession conducted entirely within a dwelling unit such that the use is incidental to the residential use of the dwelling unit and does not change the residential character of the dwelling unit.

Hospital means a building or group of buildings having room facilities for overnight patients, used for providing services for the inpatient medical or surgical care of sick or injured humans, and which may include related facilities, central service facilities, and staff offices.

Hotell/motell/lodging means a building in which lodging or boarding and lodging are provided and offered to the transient public, emphasizing tourist and business travelers for compensation in which ingress and egress to and from all rooms is made through an inside lobby or office which is supervised normally by a person at all hours. As such it is open to the transient public in contrast to a condo hotel, boarding, lodging house/lodging or an apartment building.

I

Impervious means a surface which has been compacted or covered with a layer of material so that it is highly resistant to infiltration by water, including surfaces such as compacted sand, lime rock, shell or clay, as well as most conventionally surfaced streets, roofs, sidewalks, parking lots and other similar structures.

Impervious area means that portion of a lot measured in square feet of those surfaces which are impervious.

Industrial means manufacturing, assembly and processing of materials, including outdoor storage of materials, transmission of TV and radio, including tire vulcanizing, retreading or sale of used tires and the sale of building materials.

Industrial, light, means a use involving limited showrooms, accessory offices, fabrication, or processing of materials that are already in processed form, warehousing, wholesaling, distribution, communication, scientific and research facilities but not including outdoor storage.

Institutional use means a use that serves the educational or cultural needs of the community, including museums and other similar uses.

Interference means the impairment of transmission or reception of any desired communications or radio frequencies within the city. The term "interference" embraces electrical interference in all of its forms, including, without limitation, co-channel interference, interference from intermodulation products, and blanketing inference.

L

Land development regulations means any ordinance enacted by the city for the regulation of any aspect of development, including an ordinance governing zoning, subdivisions, landscaping, tree protection, or signs, the city's comprehensive management plan, or any other ordinance concerning any aspect of the development of land.

Landscape feature means any improvement or vegetation, including, but not limited to, courtyards, fences, shrubbery, trees, sidewalks, planters, plantings, gates, low walls, street furniture and exterior lighting.

Landscape plan means a plan associated with a subdivision, land development, or parking facility plan indicating the placement of landscape materials, including specifications, species, quantities, and method of installation.

LEED (Leadership in Energy and Environmental Design) certification means the rating system established by the United States Green Building Council (USGBC) or, in the case of bonuses described in this code, the Florida Green Building Coalition.

Liquor package store means a state-licensed vendor selling alcoholic beverages in sealed containers only for consumption off the premises subject to the limitations provided in chapter 4 (alcoholic beverages) of the city's Code of Ordinances.

Live work space means a space that combines a workspace and a living quarters.

Loading space means an off-street space on the same lot with a building or group of buildings, for temporary parking of a commercial vehicle while loading and unloading merchandise or materials.

Local planning agency means the agency designated pursuant to F.S. § 163.3174.

Lot means a designated parcel, tract, or area of land established by plat, subdivision, or as otherwise permitted by law, to be separately owned, used, developed or built upon.

Lot area, gross, means the area of the overall parcel as measured to the centerline of the adjacent rights-of-way.

Lot area, net, means the area of the parcel excluding the adjacent rights-of-way.

Lot, corner, means a lot abutting the intersection of two (2) or more streets.

Lot coverage means the area of a lot which is occupied or covered by, but not limited to, buildings, including covered porches and accessory buildings, decks, pools, driveways, walkways, patios, sidewalks, parking structures and roads (i.e., impervious areas).

Lot depth means the mean horizontal distance between the front and rear lot lines.

Lot frontage means the distance for which the front lot line and the street right-of-way line are coincident. The front yard is identified based on the address and the portion of land between the street and the front of the house.

Lot line, front, means the front of a lot shall be construed to be that portion abutting the street. For corner lots, the lot front shall be the narrowest portion of the lot abutting any street.

Lot line, rear, means the rear property line of a lot is that lot line opposite to the front property line.

Lot line, side, means any lot boundary line not a front lot line or a rear lot line. A side lot line separating a lot from a street is an exterior side lot line. A side lot line separating a lot from another lot is an interior side lot line.

Lot width means the horizontal distance between side lot lines, measured at the required front setback line.

M

Major renovation/remodel means any design and construction project that alters the structure or other site improvements of an existing building where the cost of construction is equal to or exceeds fifty (50) percent of the building's replacement cost.

Manufactured home means a building, transportable in one (1) or more sections, which is built on a permanent chassis and designed to be used with or without a permanent foundation when connected to the required utilities. The term "manufactured home" also includes park trailers, travel trailers, and similar transportable structures placed on a site for one hundred eighty (180) consecutive days or longer and intended to be improved property.

Manufacturing means the transformation of materials or substances into new products, including the assembly of component parts, and the production or refining of goods, materials, or substances into new products, including the assembly of component parts, a bottling plant or food product processing, packaging and storage, but not including research and technology production uses.

Market value means the building value, which is the property value excluding the land value and that of the detached accessory structures and other improvements on site (as agreed to between a willing buyer and seller) as established by what the local real estate market will bear. Market value can be established by an independent certified appraisal (other than a limited or curbside appraisal, or one based on income approach), actual cash value (replacement cost depreciated for age and quality of construction of building), or adjusted tax-assessed values.

Mechanical equipment means an air conditioning unit, water cooling tower, swimming pool pump, irrigation pump, well water pump, fan, power generator or other similar power source equipment, permanently affixed to real property.

Medical clinic means an office, health care facility, or clinic, licensed by the state or operated by two (2) or more physicians or medical practitioners licensed by the state, that is not part of a hospital and that provides elective care for patients on-site who remain less than twenty-four (24) hours. Medical clinics shall not include sanitariums, convalescent homes, or nursing homes but may include, but not be limited to, outpatient surgical clinics and sleep disorder centers.

Medical marijuana retail center means a retail establishment, licensed by the state department of health as a "medical marijuana treatment facility," "medical marijuana treatment center," "dispensing organization," "dispensing organization facility," or similar use, that sells and dispenses medical marijuana, but does not engage in any other activity related to the preparation, wholesale storage, distribution, transfer, cultivation, or processing of any form of marijuana or marijuana product, and does not allow on-site consumption of marijuana. A medical marijuana treatment center shall not be construed to be a medical marijuana retail center.

Medical marijuana treatment center means any facility licensed by the state department of health to acquire, cultivate, possess, process (including, but not limited to, development of related products such as food, tinctures, aerosols, oils, or ointments), transfer, transport, sell, distribute, dispense, store, or administer marijuana, products containing marijuana, related supplies, or educational materials, as authorized by state law. A medical marijuana treatment center may include retail sales or dispensing of marijuana. A facility which provides only retail sales or dispensing of marijuana shall not be classified as a medical marijuana treatment center under this code. The term "medical marijuana treatment center" also may be referred to as a "medical marijuana treatment facility" or "dispensing organization" or other similar term recognized by state law.

Mixed-use development means a development that encompasses two (2) or more uses (example: multi-family residential and office; multifamily residential and commercial/retail; office/retail; or any other combination of two (2) or more uses).

Mixed-use occupancy means occupancy of a building or parcel of land by more than one (1) type of use.

Mobile home means a trailer designed to be used as living quarters, providing the normal and usual facilities of a residence, intended by size and capacity for extended use as a dwelling which is constructed with a permanent hitch or other device allowing transport of the unit.

Mobile structure means a structure on wheels, rollers or skids and not structurally anchored to a foundation.

Model home means a structure constructed to represent a certain residential unit design meeting all the requirements of the city for approval of a certificate of occupancy except for approval of the land use upon which the model home is built.

Model home, dry, means a model home constructed completely in accordance with the ordinances and requirements of the city but which shall not be connected to some or all utility services.

Moorish Revival Architecture means the articulated Islamic architecture of North Africa and parts of Spain and Portugal. Characteristic elements of Moorish architecture include muqarnas, horseshoe arches, voussoirs, domes, crenellated arches, lancet arches, ogee arches, courtyards, and decorative tile work known as zellij in Arabic or azulejo in Spanish and Portuguese.

Multifamily structure means a building or portion thereof used for occupancy of three (3) or more families living independently of each other in individual dwelling units; including units that are located over one (1) another; having separate or joint entrances.

N

Newspaper of general circulation means a newspaper published at least on a weekly basis and printed in the language most commonly spoken in the area within which it circulates, but does not include a newspaper intended primarily for members of a particular professional or occupational group, a newspaper whose primary function is to carry legal notices, or a newspaper that is given away primarily to distribute advertising, as provided for in F.S. § 163.3164(32), as amended.

Night club means a restaurant, dining room or other establishment, which operates after 11:00 p.m., where food and/or alcoholic beverages are licensed to be sold and consumed on the premises, and where music, dance, floor shows or other forms of entertainment are provided for guests and patrons with or without an admission fee.

Nonconforming structure means a building or structure lawfully established which does not conform to the requirements of these land development regulations for location or other dimensional requirement for such building or structure in the zoning district assigned to the property, i.e., the minimum setback, maximum height, maximum building coverage, parking or landscaping.

Nonconforming use means A use which exists lawfully prior to the effective date of these land development regulations and is maintained at the time of and after the effective date of these land development regulations, although it does not conform to the use restrictions of these land development regulations.

Nursing or convalescent home means a home, institution, building or residence, public or private, whether operated for profit or not which provides maintenance, personal care or nursing for a period exceeding twenty-four (24) hours to three (3) or more ill, physically infirm or aged persons, who are not related by blood or marriage or adoption to the operator.

O

Office means a use involving a business, profession, service, including banks and financial institutions, or government activity which does not involve retail activities on site and not including veterinary offices and problematic uses.

Off-street parking means the storage space for vehicles on premises other than rights-of-way.

Open space means ground level areas on a lot which are landscaped or designed for pedestrian or recreational use, including covered arcades and plazas under buildings which are accessible to the public.

Outdoor dining area means an area of designated size used as a seating area with tables and chairs for the contiguous restaurant. This seating may be in addition to the indoor seating, or it may be the only seating available for the restaurant.

Outdoor sale means the placement of goods, equipment, or materials for sale, rental, or lease in a location not enclosed by a structure consisting of walls and a roof. The term "outdoor display" does not mean yard sales as defined in the city Code.

Outdoor storage means the storage of any material for a period greater than twenty-four (24) hours, including items for sale, lease, processing, and repair (including vehicles) not in an enclosed building.

Overlay district means a set of regulations which are superimposed upon and supplement, but do not replace, the underlying zoning district and regulations otherwise applicable to the designated areas.

P

Parapet means the portion of a building wall which rises above the roof level.

Parcel of land means any quantity of land capable of being described with such definiteness that its locations and boundaries may be established, which is designated by its owner or developer and land to be used, or developed as, a unit or which has been used or developed as a unit, as provided in F.S. § 163.3164(35).

Park means any area that is predominately open space, used principally for active or passive recreation, and not used for a profit-making purpose.

Parking means the temporary, transient storage of vehicles used for transportation, while their operators are engaged in other activities. The term "parking" does not include storage of new or used cars for sale, service, rental or any other purpose other than specified above.

Parking space or stall means an area on a lot and/or within a building intended for parking of a personal vehicle.

Passenger terminal means a facility where passengers board and disembark from mass transportation modes (i.e., buses, trains, airplanes).

Patio or terrace living area means a constructed hard surface area that is paved or bricked (not asphalt).

Pawnbroker

Pedestrian-oriented development means development designed with an emphasis primarily on the street sidewalk and on pedestrian access to the site and building, rather than on auto access and parking areas. The building is generally placed close to the street and the main entrance is oriented to the street sidewalk. There are generally windows or display cases along building facades which face the street. Typically, buildings cover a large portion of the site. Although parking areas may be provided, they are generally limited in size, and they are not emphasized by the design of the site.

Performance guarantee means a financial guarantee (letter of credit or bond) to ensure that all improvements, facilities, or work required will be completed in compliance with the ordinances, regulations, plans, permits and specifications of a development.

Permit. See *Development permit*.

Pervious area means that portion of a lot measured in square feet of those surfaces which allow the infiltration or percolation of water directly into the ground.

Place of public assembly means any area where individuals assemble, whether publicly or privately owned and maintained, where assembly is the principle use of the property. The term "place of public assembly" includes, but is not limited to, auditoriums, fraternal lodges, community centers, private clubs, and theaters; and places of worship or other facilities that are used for prayer and assembly by persons of similar beliefs.

Plat means a plan, map, or chart of a piece of land with actual or proposed features.

Final plat means the final tracing map or drawing or chart on which the subdivider's plan of subdivision is presented to the governing body for approval, and which, if approved, will be submitted to the clerk of the circuit court for recording.

Tentative plat means a preliminary map, drawing or chart indicating the proposed layout of the subdivision submitted for approval and as further defined in Code of Miami-Dade County, Florida, chapter 28. The purpose being for subdivision design, therefore conceptual in nature, and subject to change prior to the boundary survey being made for which a plat of record is being filed.

Waiver of plat means a subdivision that involves only the dedication of a road, highway, street, alley or easement and due to unusual conditions or circumstances the city finds that it is not necessary that a plat be recorded; or, that the land to be subdivided is to be divided into no more than six (6) parcels; or, that the land is of such an unusual size or shape or has other unusual conditions that justify waiving the plat requirement; or, a parcel of land conveyed by a recorded warranty deed that is dated prior to October 28, 2015.

Plaza means an area that is open to the public for passive recreational purposes, limited public assembly and social interaction which is designed and intended for common use and employment of the public.

Pole means any utility, electricity, telephone, power or light pole, other than any pole owned by the city.

Porch means an attached open air projection from the outside facade of a building covered by a roof and used solely for ingress and egress and not for occupancy.

Porte cochere means a structure attached to a residence and erected over a driveway, not exceeding one (1) story in height, and open on two (2) or more sides.

Portico means a colonnade or covered ambulatory and often at the entrance of a building.

Principal building means a building in which is conducted the primary or predominant use of the lot on which it is located.

Private club means a property owned or leased and operated by an individual, group, or an association of persons and maintained and operated solely by and for the members of such a group or association and their guests and which is not available for unrestricted public access or use.

Promenade means a wide controlled pedestrian walk, formal in aesthetic design. They may be made of pavers, crushed gravel, grass, wood decking, or concrete.

Public means belonging or open to, enjoyed and used by and/or maintained for the public generally, but not limited to a facility, the control of which is wholly or partially exercised by some governmental agency.

Public art means the creative application of skill and taste by artists to the production of permanent tangible objects according to aesthetic principles, including, but not limited to, paintings, sculptures, engravings, carvings, frescos, mobiles, murals, collages, mosaics, statues, and bas-reliefs. The following shall not be considered public art:

- a) Art objects which are mass produced;
- b) Works that are decorative, ornamental or functional elements of the architecture or landscape design, except when commissioned from an artist as an integral aspect of a structure or site;
- c) Architectural rehabilitation or historical preservation;
- d) Signs or business logos.

Public facilities and services means facilities relating to comprehensive plan elements required by F.S. § 163.3177. The term "public facilities and services" means roads, sanitary sewer, solid waste, drainage, potable water, recreation and mass transit.

Public hearing means a publicly advertised meeting of an official legislative or quasi-judicial body conducting city business during which the, public is allowed to give testimony concerning issues under consideration.

Public notice means notice as defined by F.S. § 163.3164(40).

Public park means a park, playground, swimming pool, community center, reservoir, golf course, or athletic field, within the city, which is under the control, operation, or management of the city or any other governmental agency.

Public right-of-way or *ROW* means a public right-of-way, public utility easement, highway, street, bridge, tunnel, pier, waterway, dock, wharf, court, lane, path, or alley or any other property for which the public entity is the authority that has jurisdiction and control and may lawfully grant access to such property pursuant to applicable law, and includes the surface, the air space over the surface and the area below the surface to the extent the public entity holds a property interest therein. The term "public right-of-way" does not include private property. The term "public right-of-way" does not include any real or personal property except as described above and shall not include city buildings, fixtures, poles, conduits, facilities or other structures or improvements, regardless of whether they are situated in the public rights-of-way. For the purposes of wireless telecommunication facilities, the city is the sole authority for public rights-of-way.

Public safety and nuisance means anything which is injurious to safety or health of the entire community or a neighborhood, or any considerable number of persons, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin.

Public utility means any state-regulated facility for rendering electrical, gas, communications, transportation, water supply, sewage disposal, drainage, garbage or refuse disposal or fire protection service or the like, to the general public.

R

Recording and TV/radiofilm means a station or facility for the production of radio and television broadcasts, videos or films and/or the recording of film or sound.

Recreation/entertainment, indoor, means a business which is open to the public where customers pay the proprietor for the use or enjoyment of recreational facilities or equipment within an enclosed building. This category of use includes auditoria, bowling alleys, movie theaters, racquetball facilities, skating, fitness centers, gymnastic facilities, and billiard facilities.

Recreation/entertainment, outdoor, means a business which is open to the public where customers pay for the use of recreational facilities or equipment on-site but not within an enclosed building.

Recreational vehicle means a vehicle that is:

- (a) Built on a single chassis;
- (b) Four hundred (400) square feet or less when measured at the largest horizontal projection;
- (c) Designed to be self-propelled or permanently towable by a light duty truck; and
- (d) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Religious institutions means churches and ecclesiastical or denominational organizations, or established physical places for worship in the state at which nonprofit religious services and activities are regularly conducted and carried on, and shall also mean church cemeteries.

Repair garage means a building designed and used for the storage, care, repair, or refinishing of vehicles, including both major and minor service.

Research and technology use means a use such as medical, optical and scientific research facilities, laboratories, pharmaceutical compounding and photographic processing facilities and facilities for the assembly of electronic components, optical equipment and precision instruments or laboratories or buildings the primary use of which is the research, testing and development of goods, materials, foodstuffs or products.

Residential use means a single-family or multifamily dwelling unit which contains a sleeping area, bathroom, kitchen and eating area.

Restaurant means a facility, including, but not limited to, cafeteria or coffee shop/sandwich shop, with the following characteristics: a varied, non-standardized menu; preparation of food by cooks or chefs; primary orientation to eat-in service; utilization of non-disposable eating utensils, plates, glasses, and cups; waiter or waitress service at tables. The term "restaurant" also means a restaurant facility with the following characteristics: standardized limited menu; fast food preparation; orientation to take-out or eat-in service; utilization of disposable eating utensils and packaging; no waiter or waitress service at the tables.

Retail, sales and service means a use, the principle use or purpose of which is the sale of primarily new goods, products, materials, or services directly to the consumer from within an enclosed building, including grocery stores, bakeries, hardware stores, antique and collectible stores, dry cleaning drop-off and pick-up station, dry cleaning establishments, pet shops, personal services, indoor recreation, personal instruction, art galleries, and including the sale of alcoholic beverages for off-premises consumption provided that the sale of alcoholic beverages is subordinate to the principal use and the display of alcoholic beverages occupies less than twenty-five (25) percent of the floor area of the use, sale of principally new automobiles involving the outdoor display of a maximum of twenty (20) automobiles of which no more than thirty (30) percent shall be pre-owned, not including street vendors, farmers' markets, consignment shops, automobile services stations, thrift stores, self-service laundries, the on premise consumption of alcoholic beverages or problematic uses.

Right-of-way. See *Public right-of-way*.

Road, private, means vehicular ingress and egress established as a separate tract for the benefit of certain adjacent properties not abutting public right-of-way.

Roof means the exterior top covering of a building.

Roof line means the top edge of the roof or top of the parapet, whichever forms the top line of the building structure.

Roof overhang means the overhead features of an architectural element beyond the building wall such as roofs.

Rooftop equipment means all machinery and equipment located on the roof of a structure.

S

Satellite dish antenna means a round, parabolic antenna intended to receive signals from orbiting satellites and other sources.

School means an educational institution, public or private, within the city, offering a curriculum acceptable by local and state educational officials to fulfill legal requirements of education for nursery, elementary through high school levels, or any part thereof.

Screening means the method by which a view of one (1) site from another adjacent site is shielded, concealed, or hidden. Screening techniques include fences, walls, hedges, berms, or other features.

Service station means any premises where fuel and similar products are sold, and minor services may be conducted.

Setback means the minimum horizontal distance between the lot or property line and the nearest front, side, or rear line of the building, as the case may be, including terraces or any covered projection thereof. Steps and ramps are excluded from this calculation.

Setback, front, means a setback that is measured from a front lot line.

Setback, interior side, means a setback that is measured from an interior side lot line.

Setback, rear, means a setback that is measured from a rear lot line.

Setback, side, means a setback that is measured from a side lot line.

Shared parking means any parking spaces intended to be utilized for more than one (1) use occurring on a single lot or within a single building, where persons utilizing the spaces are unlikely to need the spaces at the same time of day.

Shopfront means a facade facing aligned with public right-of-way with glazed window openings, at least one (1) entrance, and the ability to function as an independent store without any exterior modification.

Shopping center means a grouping of retail business and service uses on a single site with common parking facilities.

Showroom means a building or premises where new vehicles, boats, equipment, furniture, appliances, and other products are prominently displayed and offered for sale by an authorized agent.

Sight distance triangle means an area of land at the intersection of streets, or a street and a driveway, within which nothing may be erected, planted, placed, or allowed to grow in a manner which will obstruct the vision of motorists entering or leaving the intersection.

Sign means any device or representation for visual communication that is used for the purpose of bringing the subject matter to the attention of the public. The term "sign" includes, but is not limited to, figures, letters, logos, devices, flags, pennants, emblems, and pictures.

Abandoned sign means a sign for a business or purpose that is no longer present at the sign location.

Animated sign means a sign that uses movement, change of lighting or change of color to depict action or create a special effect or scene. Also, a sign or device visible from the public right-of-way with letters or characters that move or change more frequently than every six (6) seconds.

Area of sign. Sign area shall be computed by means of the smallest square, circle, or rectangle, triangle, or combination of shapes that will encompass the outer limits of the writing, representation, emblem, logo or other display, together with any material or color forming an integral part of the background of the display or area used to differentiate the sign from the backdrop against which it is placed. Sign area shall not include any supporting framework, bracing, or wall when such structure otherwise meets the regulations of this code and is incidental to the display itself. Signs comprised of individual elements attached to a building wall shall be measured as one (1) unit, when the distance between the sign elements is less than two (2) times the dimension of each element. When the faces of a double-faced sign are parallel, only one (1) side shall be counted in computing sign area. If the two (2) faces of such double-faced sign are of unequal area, the larger sign face shall be considered the area of the sign.

Attached sign means a sign which is attached to or supported by a building, a wall, or other structure. The term "attached sign" does not include a sign painted directly on the wall face of a building or structure.

Automatic electric changing sign (ACS) means any electrical or electronically controlled sign where different messages or copy changes are shown and including tri-vision panels. Also, any sign, or portions of a sign, where any light source, including, but not limited to, incandescent bulbs or light-emitting diodes (LEDs), constitutes the sign text or image. The term "automatic electric changing sign" includes, but is not limited to, electronic message boards; television screens; plasma screens; digital screens; flat screens; LED screens; video boards; other types of electric and electronic display boards and screens; and holographic displays.

Awning, canopy, roller curtain or umbrella sign means any sign which is stamped, perforated, or stitched on the surface area of an awning, canopy, roller curtain or umbrella.

Banner means a sign intended to be hung either with or without a frame, possessing characters, letters, illustrations or ornamentation applied to paper, plastic, fabric or other non-rigid material, excluding flags and insignias of any government entity.

Building marker sign means any sign indicating the name of a building and date and incidental information about its construction.

Canopy sign means a sign that is suspended from, attached to, supported from, or forming a part of a canopy.

Cantilever means that portion of a building, projecting horizontally, whether it be on the same plane as the roof line or not.

Cantilever sign means any sign which is mounted on a cantilever.

Changeable copy sign means any sign within a monument display designated so that letters or numbers are manually attached or automated to change to a different message.

Construction sign means any sign erected and maintained on the premises temporarily while undergoing construction by an architect, contractor, developer, finance organization, subcontractor, or materials vendor upon which property such individual is furnishing labor, services, or material.

Detached sign means any sign not attached to or painted on a building, but which is affixed and permanently attached to the ground and which is not a monument sign as defined herein. The term "permanently attached" as used herein means that the supporting structure of the sign is attached to the ground by a concrete foundation or other support anchored in the ground.

Directional sign means:

- (1) A sign permanently erected or permitted directing an individual to a location of ingress or egress to or from the property.
- (2) A sign permanently erected or permitted identifying a building.

Directory sign means a sign interior to the property listing only the names and/or uses, or locations of more than one (1) business, activity, or professional office conducted within a building, group of buildings, or commercial center or office park.

Election sign means a sign relating to a candidate for political office or a measure scheduled for election.

Facade sign means a sign consisting of letters and graphics applied directly to the facade of the building, within the single external sign band or zone designated on the facade of a building.

Face of sign means the part of the sign that is or can be used to identify, advertise, or communicate information or for visual representation that attracts the attention of the public for any purpose. Sign face includes any background material, panel, trim, color, and direct or self-illumination used that differentiates the sign from the building, structure, backdrop surface, or object upon which or against which it is placed. The sign structure shall not be included as a portion of the sign face provided that no message, symbol, or any of the aforementioned sign face criteria are displayed on or designed ad part of the sign structure.

Fixed projecting sign means a sign affixed to the exterior wall of a building or structure with the sign faces not parallel to the plane of such wall.

Flat sign means a sign erected parallel to and extending not more than twelve (12) inches from the facade of any building to which it is attached and supported throughout its entire length by the facade and not extending above the facade.

Freestanding sign means a sign supported by a sign structure secured in the ground that is wholly independent of any building, fence, vehicle, or object other than the sign structure for support.

Hanging sign means a sign that hangs down and is supported by or attached to the underside of a canopy, awning, marquee, or extension of a structure.

Height of sign means the vertical distance measured from the nearest crown of the adjacent road to the top of the sign face or sign structure, whichever is greater.

Incidental sign means a sign, generally informational, that has a purpose secondary to the use of the site on which it is located, such as parking, entrance, loading only, and similar information and directives.

Marquee means a covered structure projecting from, and supported by, the building with independent roof and drainage provisions, and which is erected over a doorway or entranceway as protection against the weather.

Monument sign means a freestanding, self-supported structure not attached or affixed in any way to a building or any other primary structure, and with concealed means of support that is ground mounted.

Multifamily office sign means a sign identifying the location of the management office of a multifamily residential property.

Multi-tenant center sign means any shopping center, office center or business center in which two (2) or more occupancies abut each other or share common parking facilities or driveways or are otherwise related.

Noncommercial sign means a sign that does not contain copy that advertises the availability of any merchandise, service, institution, residential area, entertainment, or activity.

Obsolete sign means a sign for a business or purpose that no longer exists.

Off-premises sign means a sign that directs attention to a commercial business, commodity, service, product, or activity not conducted, sold, offered, or available on the premises where such sign is located, the copy of which may be intended to be changed periodically. An off-premises sign is the principal use of the property on which it is located. It may also be referred to as a "billboard." The term "off-premises sign" includes a sign displayed on a trailer or the bed of a truck that advertises something other than the identity of the truck, the driver or its contents.

On-premises sign means a sign that is located on the premises of the occupant, business, or property identified on the sign. The occupant, business, or property is the principal use of the property, and the sign is an accessory use of the property on which it is located.

Painted sign means a sign painted directly on any exterior portion of a structure.

Point of sale sign means any sign advertising or designating the use, occupant of the premises, or merchandise or products sold on the premises.

Pole sign means a sign erected upon a pole, poles, post, or pole-like structure that is visible and wholly independent of any building or structure for support.

Political sign means any sign erected for the purpose of an election campaign.

Portable sign means any sign not attached to or painted on a building and not affixed or permanently attached to the ground.

Projected sign means any image projected onto any surface or into the sky for the purpose of drawing the attention of the public or identifying an establishment, product or service.

Projecting sign means any sign which is an independent structure, which is attached to the building wall, and which extends at any angle from the face of the wall.

Real estate for sale sign means a sign erected by the owner or his or her agent advertising the real property upon which the sign is located for sale.

Real estate leasing sign means a sign erected by the owner or his or her agent advertising the premises or real property upon which the sign is located for rent or lease.

Restrictive covenant means a clause in a deed or lease to real property that limits what the owner of the land or lease can do with the property.

Roof sign means a sign erected over or on, and wholly or partially dependent upon, the roof of any building for support, or attached to the roof in any way.

Snipe sign means a sign that is tacked, nailed, posted, pasted, glued, or otherwise attached to trees, poles, stakes, fences, or other objects.

Special event sign means a temporary or banner sign that carries a message regarding a special event or activity for which a special event permit or seasonal sales permit is required and has been obtained.

Structure (sign) means a supporting structure erected or intended for the purpose of identification, with or without a sign thereon, situated upon or attached to the premises, upon which any sign may be fastened, affixed, displayed, or applied; however, this definition shall not include a building or fence.

Suspended sign means a sign that is suspended from the underside of a horizontal plane surface and supported by same surface.

Temporary sign means any sign to be displayed for a limited period of time.

Vehicle sign means any sign attached, either permanently or temporarily, to any type of vehicle.

V-shaped point of sale sign means a point of sale sign with two (2) sign faces, which is constructed of solid materials in the form of a "V."

Wall sign means any sign painted on or attached to and erected parallel to the face of, or erected and confined within the limits of, the outside wall of any building and supported by such wall or building.

Window sign means a sign located on the inside of a window or within a building or other enclosed structure, where the sign face is visible and legible from the exterior through a window or other opening.

Yard sale signs means signs advertising yard or garage sales.

Single-family means a building designed exclusively for occupancy by one (1) family with cooking and sleeping areas.

Single-use development means a tract of land, building, or project area developed with one (1) primary use category, such as residential; commercial and retail; office; institutional; or public.

Site means a parcel of land which is to be developed as a single unit, subdivision, or project.

Site plan means a document or group of documents containing sketches, text, drawings, maps, photographs, and other material intended to present and explain certain elements of a proposed development, including physical design, siting of buildings and structures, lighting, signs, interior vehicular and pedestrian access, the provision of improvements, landscaping and open space and the interrelationship of these elements.

Special event means circuses, fairs, carnivals, festivals, or other types of special events that:

- (1) Run for longer than one (1) day but not longer than two (2) weeks;
- (2) Are intended to or likely to attract substantial crowds; and
- (3) Are unlike the customary or usual activities generally associated with the property where the special event is to be located.

Start of construction, for other than new construction or substantial improvements under the Coastal Barrier Resources Act P. L. 97-348, means and includes substantial improvement, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, or improvement was within one hundred eighty (180) days of the permit date. The actual start means the first placement of permanent construction of a building (including a manufactured home) on a site, such as the pouring of slabs or footings, installation of piles,

construction of columns, or any work beyond the stage of excavation or placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main building. For substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Storage and wholesaling facility means any premises where the principal use is the storage of goods and materials, or the sale of goods and materials in bulk quantities primarily for purposes of resale.

Storage, outdoor, means any outdoor lot that is primarily used for the storage of goods and materials.

Storage warehouse means a structure which is designed and used for the containment of bulk products or materials of either dry, liquid, or cold storage nature and where goods are received and/or stored for delivery to an ultimate customer at remote locations primarily for the purpose of resale.

Story means that portion of a building included between the surface of any floor and the surface of the floor next above it, or if there is no floor above it, the space between such floor and the ceiling above it. A basement shall be counted as a story if its ceiling is over five (5) feet above the average level of the finished ground surface adjoining the exterior walls of such building, or if it is occupied for business or dwelling purposes.

Street means a public or private right-of-way used, or intended to be used, for passage or travel by motor vehicles. Streets are further classified by the functions they perform. The dedication of half-streets at the perimeter of a new subdivision is prohibited. If circumstances render this impracticable, adequate provision for the dedication on the remaining half shall be required.

Structural alteration means any change, except for repair, or replacement of the structural members of a building, including, but not limited to, bearing walls, column, beams or girders, but where no additional facilities of floor space are added thereto.

Structure means:

- (1) Anything constructed, installed, or portable, the use of which requires a location on a parcel of land. It includes a movable structure while it is located on land which can be used for housing, business, commercial, agricultural, or office purposes either temporarily or permanently. The term "structure" also includes fences, billboards, swimming pools, poles, pipelines, transmission lines, tracks, and advertising signs.
- (2) For floodplain management purposes, a walled and roofed building, including gas or liquid storage tank that is principally aboveground, as well as a manufactured home.

Subdivision means the division of any tract or parcel of land into three (3) or more parcels.

Substantial damage means damage of any origin sustained by a structure during a five (5) year period whereby the cumulative cost of restoring the structure to its before damaged condition would equal or exceed forty (40) percent of the market value of the structure before the damage occurred. The term "substantial damage" also includes repetitive loss structures. See definition of the term "substantial improvement" for an explanation of the procedure to be utilized for the purpose of calculating substantial damage.

Substantial improvement means any combination of reconstruction, rehabilitation, addition, or other improvement of a structure taking place during a five (5) year period, the cumulative cost of which equals or exceeds forty (40) percent of the market value of the structure before the start of construction of the improvement. The term "substantial improvement" includes structures that have incurred repetitive loss or substantial damage regardless of the actual repair work performed. The term "substantial improvement" does not, however, include any repair or improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifica-

tions, which have been identified by the local code enforcement official prior to the application for permit for improvement, and which are the minimum necessary to ensure safe living conditions. For the purposes of calculating substantial improvements and/or substantial damage, the following procedure shall be utilized:

- (a) The costs of the improvements or repairs for a project shall be obtained from one (1) of the following sources:
 - (1) Detailed cost estimate of the improvements or repairs from the licensed general contractor of record.
 - (2) A cost estimate prepared using professional construction estimation software, such as R.S. Means or the Federal Emergency Management Agency's substantial damage estimation program, as prepared by a licensed architect or engineer.
- (b) Any one (1) of the following sources will be considered acceptable estimates of market value:
 - (1) An independent appraisal by a professional appraiser licensed by the State of Florida. The appraisal must exclude the value of the land and not use the income capitalization approach which bases value on the use of the property, not the structure.
 - (2) Detailed estimates of the structure's actual cash value, which shall equal the replacement cost of the building, minus depreciation percentage based on age and condition.
 - (3) Property appraisals used for tax assessment purposes with an adjustment recommended by the county property appraiser to reflect market conditions (adjusted assessed value).
- (c) For structures in which the substantial improvement or substantial damage percentage is greater than or equal to thirty (30) percent, a more precise market value estimate may be required.

Sustainable means the finite capacity of any place to support human activities, given a set of impacts that those activities have on the place. Once capacity is reached, the impacts of additional growth or activities harm the integrity of the place and impair its ability to function as intended.

T

Telecommunications. See *Wireless communications*.

Temporary conditional use permit means a permit that is for a special purpose, granted to a purchaser of property that is the subject of an existing special use permit, for a limited period of time and under the same conditions and restrictions set out in the original conditional use permit.

Temporary event means an event lasting not more than two (2) consecutive weeks during one (1) calendar year.

Townhouse means a building or structure designed for or occupied by no more than one (1) family or household and attached to other similar buildings or structures by not more than two (2) party walls extending from the foundation to the roof, providing two (2) direct means of access from the outside, and cooking, sleeping and sanitary facilities for the use of each family or household of the townhouse. A townhouse may include a building or structure in fee simple, condominium, cooperative or leasehold ownership or any combination thereof.

Traditional neighborhood development means a development that offers a mixture of housing types and prices; prominently sited civic or community buildings; and stores/offices/workplaces to provide a balanced mix of activities. Church and preschool/elementary school facilities are encouraged. A traditional neighborhood development has a recognizable center and clearly defined edges; optimum size is a quarter mile from center to edge.

Trailer means a vehicle without motive power, designed to be towed by a passenger automobile but not designed for human occupancy and which may include a utility trailer, boat trailer, horse trailer, or snowmobile trailer.

Transit stop means a designated location that provides passengers access to the transit system and/or a point of transfer between transit routes.

Trees, large, medium and small, means tree height categories where a large tree shall grow to a minimum height of forty (40) feet; a medium tree to a minimum height of thirty (30) feet; and a small tree to a minimum height of twenty (20) feet.

U

Urban agriculture means urban farming, or urban gardening is the practice of cultivating, processing and distributing food in or around urban areas. Urban agriculture can also involve animal husbandry, aquaculture, agroforestry, urban beekeeping, and horticulture.

Urban sprawl means urban development or uses which are located in predominantly rural areas, or rural areas interspersed with generally low-intensity or low-density urban uses, and which are characterized by one (1) or more of the following conditions:

- (a) The premature or poorly planned conversion of rural land to other uses;
- (b) The creation of areas of urban development or uses which are not functionally related to land uses which predominate the adjacent area; or
- (c) The creation of areas of urban development or uses which fail to maximize the use of existing public facilities or the use of areas within which public services are currently provided.

Urban sprawl is typically manifested in one (1) or more of the following land use or development patterns: Leapfrog or scattered development; ribbon or strip commercial or other development; or large expanses of predominantly low-intensity, low-density, or single-use development.

V

Variance means a grant of relief from the requirements of this code.

Vehicle sales/display means a business or commercial activity involving the display, rental and/or sale of used automobiles, small trucks and vans on a single parcel of land, not including an out parcel, independent of any other uses on the same parcel of land and specifically not including vehicle service or car washing, or boat and marine vessels, recreational vehicles, heavy equipment, mobile homes, and other vehicular or transport mechanisms and including vehicle service.

Vehicle service, major, means vehicle and boat repairs conducted entirely inside a building which include engine repairs where the cylinder head, pan or exhaust manifold is removed; steam cleaning of engines; undercoating; vehicle spray painting; auto glass repair and replacement; repair and replacement of transmission, differential, transaxles, shaft and universal joints, wheel and steering linkages and assemblies; rebuilding and upholstering the interior of vehicles; customizing, restoration or rebuilding of vehicles; chassis, frame, body, fender and bumper molding, straightening, replacement and finishing; and repairs involving extensive welding, racing of engines or lengthy or overnight idling of engines.

Vehicle service, minor, means an activity conducted entirely within an enclosed structure primarily involved in servicing or repairing of automobiles, motorcycles, trucks, recreational vehicles and other similarly sized vehicular or transport mechanisms or heavy machinery. Vehicle services include washing, waxing, changing oil, tuning, installing mufflers or detailing, window tinting, shock absorbers, and painting.

Veterinary clinic means an establishment providing for the short-term care of domestic animals by a veterinarian when such is conducted wholly within a building having no provision for outside storage and for which the keeping of animals is limited to short-term medical care.

Violation means the failure of a structure or other development to be fully compliant with the requirements of this code.

W

Water use means a use that cannot exist in another location and is dependent on the water by reason of the intrinsic nature of its operations, such as marinas, piers, and docks.

Whip antenna means a cylindrical antenna that transmits signals in three hundred sixty (360) degrees.

Wireless telecommunications.

Alternative tower structure means a design mounting structure that camouflages or conceals the presence of an antenna or telecommunications tower, for example, flag poles, manmade trees, clock towers, bell steeples, light poles, utility poles and similar alternative designs.

Antenna means a transmitting and/or receiving device mounted on a telecommunications tower, building or structure and used in wireless telecommunications services that radiates or captures electromagnetic waves, digital signals, analog signals, radio frequencies, wireless communications signals and other communications signals including directional antennas such as panel and microwave dish antennas, and omni-directional antennas such as whips, but excluding radar antennas, amateur radio antennas and satellite earth stations.

Array means a group of up to twelve (12) antennas that are either:

- (i) Mounted or side mounted on the rooftop of a building or rooftop structure; or
- (ii) Directly or indirectly mounted on a telecommunications tower.

Backhaul network means the lines that connect personal wireless service facilities to one (1) or more cellular telephone switching offices, and/or long distance providers, or the public switched telephone network.

Broadcasting facility means any telecommunications tower or Antenna built primarily for the purpose of broadcasting AM, FM or television signals.

Camouflaged facility means a facility that is disguised, hidden, part of an existing or proposed structure, or placed within an existing or proposed structure in a manner that makes it not readily identifiable as a wireless communications facility. A camouflaged facility may or may not have a secondary function (e.g., bell tower, spire, flag pole, etc.). The term "camouflaged facility" is synonymous with "stealth facility."

Collocation means the situation when a second or subsequent wireless provider uses an existing structure to locate a second or subsequent antenna. The term "collocation" includes the ground, platform, or roof installation of equipment enclosures, cabinets, or buildings, and cables, brackets, and other equipment associated with the location and operation of the antennas.

Commercial mobile radio services means, per section 704 of the Telecommunications Act of 1996, any of several technologies using radio signals at various frequencies to send and receive voice, data and video.

Equipment facility means a room, cabinet, shelter, pedestal, build-out of an existing structure, building, or similar structure used to house ancillary equipment for a telecommunications tower or antenna. Each such cabinet, shelter, or building shall be considered a separate equipment facility.

Existing structure means, for the purposes of wireless telecommunications, a structure that exists at the time an application for permission to place an antenna on a structure is filed with the city. The term includes any structure that can structurally support the attachment of an antenna in compliance with applicable codes.

Guyed tower means a telecommunications tower that is supported, in whole or in part, by guy wires and ground anchors.

Lattice tower means a telecommunications tower that is constructed to be self-supporting by lattice type supports and without the use of guy wires or other supports.

Microcell facility means a telecommunications facility consisting of an antenna and related equipment which is located either on a telecommunications tower or affixed to a structure in some fashion for the provision of wireless services.

Microwave dish antenna means a dish-like antenna used to link telecommunications sites together by wireless transmission and/or receipt of voice or data.

Monopole tower means a telecommunications tower consisting of a single pole or spire self-supported on a permanent foundation, constructed without guy wires, ground anchors, or other supports.

Personal wireless services means commercial mobile radio services, unlicensed wireless services, and common carrier wireless exchange access services, as defined under federal law, 47 USC 332(c)(7)(C), or as this definition may be amended from time to time, and includes, but is not limited to, cellular, personal communication services, specialized mobile radio, enhanced specialized mobile radio, and paging service. personal wireless services shall not be considered as essential services, public safety telecommunications, public utilities or private utilities.

Pre-existing telecommunications tower means a telecommunications tower for which a building permit has been properly issued prior to the effective date of this code, including permitted telecommunications towers that have not yet been constructed so long as such approval is current and not expired.

Preferred zoning districts means the zoning districts within this code in which the city provides a preference for the installation of wireless communications facilities.

Public safety telecommunications means any and all wireless communications to and from police, fire, and other emergency services operating within the city.

Search area means the geographic area, in which a wireless communications facility must be located in order to provide FCC required coverage, as certified through an affidavit by a radio frequency engineer as to radio frequency waves or other such appropriate technical expert.

Self-support tower. See *Lattice tower*.

Service provider means any person or business entity wishing to locate a telecommunications tower or antenna within the city limits to provide personal wireless services.

State of the art means existing technology where the level of facilities, technical performance, capacity, equipment, components and personal wireless service is equal to that developed and demonstrated to be as technologically advanced and generally available for comparable service areas in South Florida.

Stealth facility or tower or stealth means any wireless communications facility or tower that is designed to blend into the surrounding environment. Examples of such facilities would include, but are not limited to, architecturally screened roof-mounted antenna, building-mounted antenna painted to match the existing structure, antenna integrated into architectural elements, alternative tower structures or other similar structures.

Telecommunications Act means the Telecommunications Act of 1996, Pub. L No. 104-104, codified at 47 USC, and as may be amended from time to time.

Telecommunications services means the offering of telecommunication (or the transmission, between or among points, specified by the user of information of the user's choosing, without change in the form or content of the information as sent and received), for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used. Personal wireless telecommunications services shall not be considered as essential services, public utilities or private utilities.

Telecommunications tower or tower means any structure, and support thereto, designed and constructed primarily for the purpose of supporting one (1) or more antennas intended for transmitting or receiving personal wireless services, telephone, radio and similar communication purposes, including alternative tower structure, lattice, stealth, monopole, and guyed towers. The term "telecommunications tower" includes radio and television

transmission telecommunications towers, microwave telecommunications towers, common-carrier telecommunications towers, and cellular telephone telecommunications towers, among others. Poles are only a support structure and are not a telecommunications tower.

Wireless communications facility means any equipment or facility used to provide personal wireless service and may include, but is not limited to, antennas, towers, equipment facility, cabling, antenna brackets, and other such equipment. Placing a wireless communications facility on an existing structure does not cause the existing structure to become a wireless communications facility. It also means personal wireless services facilities, as defined under federal law, 47 USC 332(c)(7)(C), as this definition may be amended from time to time, and includes, but is not limited to, antennas and radio-transmitting telecommunications towers, and associated facilities used to transmit telecommunications signals. Poles are only a support structure and are not a wireless communications facility. An open video system is not a wireless communications facility to the extent that it provides video services; a cable system is not a wireless communications facility to the extent that it provides cable service.

Y

Yard means any open space located on the same lot with a building, unoccupied and unobstructed from the ground up, except for accessory buildings, or such projections as are expressly permitted in these land use regulations. The minimum depth or width of a yard shall be measured by the horizontal distance between the lot line and the nearest point of the foundation wall of the main building.

Yard, front, means a yard extending along the full width of a front lot line between side lot lines and from the front lot line to the front building line in depth. Front yard depth shall be measured at right angles to the front line of the lot.

Yard, rear, means a yard extending across the full width of the lot and lying between the rear lot line and the nearest line of the building. Rear yard depth shall be measured at right angles to the rear line of the lot.

Yard, side, means a yard lying between the side line of the lot and the nearest line of the building and extending from the front yard to the rear yard, or in the absence of either of such front or rear yards, to the front or rear lot lines. Side yard width shall be measured at right angles to side lines of the lot.

Yard, side street, means the area extending between the front yard and the rear yard or rear street yard and situated between the side street lot line and the face of the principal building, which is parallel to, or most nearly parallel to, the side street lot line.

Z

Zero lot line means the location of a building on a lot in such a manner that one (1) or more of the building's sides rests directly on a lot line.

Zoning code means an ordinance enacted by the city commission pursuant to state law that sets forth regulations and standards relating to the nature and extent of uses of land and structures, which is consistent with the growth management plan of the city, which includes a zoning map, and complies with the provisions of the state.

Zoning district means any district delineated on the official zoning district map of the city under the terms and provisions of this code, which may be amended from time to time, for which regulations governing the area, height, use of buildings, or use of land, and other regulations relating to development or maintenance of existing uses or structures, are uniform.

Zoning map means the map and any amendments thereto designating the zoning districts, incorporated into this ordinance by reference. The zoning map is not published herein. It is on file in the office of the city clerk and is available on the city's webpage.

Secs. 22-239[22-246]—22-250. Reserved.

ARTICLE XII. IMPACT FEES

DIVISION 1. GENERALLY

Secs. 22-251—22-270. Reserved.

DIVISION 2. ROAD DRAINAGE IMPACT FEE

Sec. 22-271. Legislative findings.

The city commission finds, determines, and declares:

- A. The city must expand its road drainage system in order to maintain current standards if new development is to be accommodated without decreasing current levels of service. This must be done in order to promote and protect the public health, safety and welfare.
- B. The state legislature, through the enactment of F.S. § 3202(3) has sought to encourage the city to enact impact fees.
- C. The imposition of impact fees is one of the preferred methods of ensuring that development bears a proportionate share of the cost of capital facilities necessary to accommodate such development. This must be done in order to promote and protect the public health, safety and welfare.
- D. Each of the types of land development described in section 22-277 will create demand for the expansion of road drainage capacity and the construction of road drainage improvements.
- E. The impact fees established by section 22-277 are derived from, are based upon, and do not exceed the costs of providing additional road drainage capacity and road drainage improvements necessitated by the new land developments for which the impact fees are levied.
- F. The report entitled "Method and Data used to Calculate Police, Park & Recreation and Public Works Impact Fees", dated July 19, 2004, sets forth a reasonable methodology and analysis for the determination of the impact of new development on the need for and costs for additional road drainage capacity and road drainage improvements in the city.

(Ord. No. 04-09, § 1, 9-22-2004)

Sec. 22-272. Short title, authority and applicability.

A. This division shall be known and may be cited as the "The City of Opa-locka Road Drainage Impact Fee Ordinance."

B. The city commission has the authority to adopt this division pursuant to article IV of the constitution of the state and F.S. ch. 125.

C. This division shall apply in the incorporated area of the city.
(Ord. No. 04-09, § 2, 9-22-2004)

Sec. 22-273. Intent and purposes.

- A. This division is intended to assist in the implementation of the city comprehensive plan.

B. The purpose of this division is to regulate the use and development of land so as to ensure that new development bears a proportionate share of the cost of capital expenditures necessary to provide road drainage and road drainage improvements in the city.
(Ord. No. 04-09, § 3, 9-22-2004)

Section 22-274. Rules of construction.

A. The provisions of this division shall be liberally construed so as to effectively carry out its purpose in the interest of the public health, safety and welfare.

B. For the purposes of administration and enforcement of this division, unless otherwise stated in this division, the following rules of construction shall apply to the text of this division:

- (1) In case of any difference of meaning or implication between the text of this division and any caption, illustration, summary table, or illustrative table, the text shall control.
- (2) The term "shall" is always mandatory and not discretionary; the term "may" is permissive.
- (3) Words used in the present tense shall include the future; and words used in the singular number shall include the plural, and the plural the singular, unless the context clearly indicates the contrary.
- (4) The phrase "used for" includes "arranged for," "designed for," "maintained for," or "occupied for."
- (5) The word "person" includes an individual, a corporation, a partnership, an incorporated association, or any other similar entity.
- (6) Unless the context clearly indicates the contrary, where a regulation involves two (2) or more items, conditions, provisions, or events connected by the conjunction "and," "or" or "either...or," the conjunction shall be interpreted as follows:
 - (a) "And" indicates that all the connected terms, conditions, provisions or events shall apply.
 - (b) "Or" indicates that the connected items, conditions, provisions or events may apply singly or in any combination.
 - (c) "Either...or" indicates that the connected items, conditions, provisions or events shall apply singly but not in combination.
- (7) The word "includes" shall not limit a term to the specific example but is intended to extend its meaning to all other instances or circumstances of like kind or character.
- (8) "Administrative official" means the director of the department of development services or his/her designee who will carry out the administration of this division.

(Ord. No. 04-09, § 4, 9-22-2004)

Sec. 22-275. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- A. A "feepayer" is a person applying for the issuance of a building permit.
- B. "Building permit" is the approval issued by the city that authorizes the construction or placement of a building, dwelling, mobile home, recreational vehicle or other structure on a site, where the purposes of the building or structure is for the occupancy by humans. This would include temporary as well as permanent occupancy.
- C. A "capital improvement" includes planning, land acquisition, site improvements, the construction of new or expanded road drainage facilities, and the acquisition of equipment, but excludes maintenance and operation.

D. "Development order" means a regulatory approval by the city.

E. "Square footage" shall be measured in terms of heated or air-conditioned floor area.
(Ord. No. 04-09, § 5, 9-22-2004)

Sec. 22-276. Imposition of road drainage impact fee.

A. Any person who, after the effective date of the ordinance from which this division is derived, seeks to develop land within the city by applying for a building permit is hereby required to pay a road drainage impact fee in the manner and amount set forth in this division.

B. No certificate of occupancy for any activity requiring payment of a road drainage impact fee pursuant to section 22-277 shall be issued unless and until the road drainage impact fee hereby required has been paid.

C. No extension of a building permit issued prior to the effective date of this ordinance for any activity requiring payment of a road drainage impact fee pursuant to section 22-277 shall be granted unless and until the road drainage impact fee hereby required has been paid.
(Ord. No. 04-09, § 6, 9-22-2004)

Sec. 22-277. Computation of the amount of road drainage impact fee.

At the option of the fee payer, the amount of the road drainage impact fee may be determined by one or more of the following procedures:

A. Road drainage impact fee schedule per use group:

(New unit or expansion per gross square foot)

Residential	\$0.454
Retail	\$1.062
Industrial	\$0.265
Institutional	\$0.668
Governmental	\$0.535

- (1) If a building permit is requested for a single project with mixed uses, then the road drainage impact fee shall be determined through using the road drainage impact fee schedule above, by apportioning the space committed to each use specified. A list of specific uses for each use group listed above shall be created prior to the effective date of the ordinance from which this division is derived.
- (2) If the type of development activity that a residential building permit is applied for is not specified on the road drainage impact fee schedule above, the administrative official shall use the road drainage impact fee applicable to the most nearly comparable type of land use on the road drainage impact fee schedule above. The administrative official shall be guided in the selection of a comparable type by the city comprehensive plan and its supporting documents, and the city land use and development regulations. If the administrative official determines that there is no comparable type of land use according to the road drainage impact fee schedule above, then he/she shall determine the appropriate impact fee by considering demographic or other documentation which is available from state, local and regional authorities.
- (3) In the case of a change of use, redevelopment, or expansion or modification of an existing use which requires the issuance of a new or extended building permit, the road drainage impact fee shall be based upon the net positive increase of the impact for the new or modified use as compared to the previous use. The administrative official shall be guided in this determination by the sources and agencies listed above.

B. Independent fee calculation study. If a feepayer opts not to have the road drainage impact fee determined according to subsection (A) of this section, then the feepayer shall submit analyses and documentation based upon generally accepted methodologies, and according to the following procedure:

- (1) Prepare and submit to the administrative official an independent fee calculation study for the land development activity for which a building permit is sought. The documentation submitted shall show the basis upon which the independent fee calculation was made;
- (2) The administrative official shall, within a reasonable period of time, consider the documentation submitted by the feepayer but is not required to accept such documentation as he/she shall reasonably deem to be inaccurate or not reliable and may, in the alternative, require the feepayer to submit additional or different documentation for consideration;
- (3) If the administrative official determines that the submitted independent fee calculation study is acceptable, then he/she may adjust the road drainage impact fee to a more appropriate amount applicable to the particular development;
- (4) If the administrative official determines that the submitted independent fee calculation study is not acceptable, then he/she shall state the reasons in writing for his/her determination, and the feepayer shall pay the road drainage impact fee based upon the road drainage impact fee schedule shown in subsection (A) of this section;

Notwithstanding any provisions to the contrary:

- (1) Impact fees for roadway drainage shall be calculated based on ERUs as that term is defined in section 21-193 of the city's stormwater utility ordinance.
- (2) For roadway drainage, the impact fee shall be eight hundred twenty nine dollars (\$829.00) per ERU. (Ord. No. 04-09, § 7, 9-22-2004; Ord. No. 15-21, § 2, 7-22-2015)

Sec. 22-278. Payment of fee.

A. The feepayer shall pay the road drainage impact fee required by this division to the administrative official or his/her designee prior to the issuance of a temporary certificate of occupancy, certificate of occupancy, or other final approval.

B. All funds collected shall be promptly transferred for deposit in the road drainage impact fee trust fund account as determined in section 22-280 and used solely for the purposes specified in this division. (Ord. No. 04-09, § 8, 9-22-2004)

Sec. 22-279. Road drainage impact fee districts.

There is hereby established one (1) road drainage impact fee benefit district which includes all land within the city jurisdictional boundary. (Ord. No. 04-09, § 9, 9-22-2004)

Sec. 22-280. Road drainage impact fee trust fund established.

A. There is hereby established one (1) road drainage impact fee trust fund, established by section 22-279.

B. Funds withdrawn from this account must be used in accordance with the provisions of section 22-281. (Ord. No. 04-09, § 10, 9-22-2004)

Sec. 22-281. Use of funds.

A. Funds collected from road drainage impact fees shall be used solely for the purpose of acquiring and/or making capital improvements to road drainage under the jurisdiction of the city, the county, or the state, and shall not be used for maintenance or operations.

B. Funds shall be used exclusively for acquisitions, expansions, or capital improvements within the city-wide road drainage impact fee district, which the funds were collected. Funds shall be expended in the order in which they are collected.

C. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which road drainage impact fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in subsection (A) of this section.

D. At least once each fiscal period, the administrative official shall present to the city commission a proposed capital improvement program for road drainage, assigning funds, including any accrued interest, to specific road drainage improvement projects and related expenses. Monies, including any accrued interest, not assigned in any fiscal period shall be retained in the road drainage impact fee trust fund until the next fiscal period except as provided by the refund provisions of this division.

E. Funds may be used to provide refunds as described in section 22-282.
(Ord. No. 04-09, § 11, 9-22-2004)

Sec. 22-282. Refund of fees paid.

A. If a building permit expires without commencement of construction, then the feepayer shall be entitled to a refund, without interest, of the road drainage impact fee paid as a condition for its issuance except that the city shall retain three (3) percent or one hundred dollars (\$100.00) of the fee, whichever is greater, to offset a portion of the costs of collection and refund. The feepayer must submit an application for such a refund to the administrative official thirty (30) days, prior to the expiration of the permit.

B. Any funds not expended or encumbered by the end of the calendar quarter immediately following six (6) years from the date the road drainage impact fee was paid shall, upon application of the then current landowner, be returned to such landowner with interest at the rate of three (3) percent per annum, provided that the landowner submits an application for a refund to the administrative official within one hundred eighty (180) days of the expiration of the six (6) year period. An extension of the six (6) year period, of an additional four (4) years may be permitted, at the city commission's discretion, for projects or improvements that entail long range planning and design.

(Ord. No. 04-09, § 12, 9-22-2004)

Sec. 22-283. Exemptions and credits.

A. *Exemptions.* The following shall be exempted from payment of public safety impact fees:

- (1) Alterations or expansion of an existing building where no additional square footage is created, where the use is not changed, and/or where no additional demand for road drainage or applicable improvements will be created, as determined by the administrative official.
- (2) The construction of accessory buildings or structures, unless such construction is determined by the administrative official to be an expansion or extension of the principal use for which road drainage impact fees are payable.
- (3) The replacement of a building or structure with a new building or structure of the same size and use.
- (4) The installation of a replacement mobile home on a lot or other such site when a road drainage impact fee for such mobile home site has previously been paid pursuant to this division or where a mobile home legally existed on such site on or prior to the effective date of the ordinance from which this division is derived.
- (5) The installation of a mobile unit for temporary construction purposes.

Any claim of exemption must be made no later than the time of application for a building permit. Any claim not so made shall be deemed waived.

B. *Credits.* Any claim for credit under these provisions shall be made on an official impact fee credit application provided by the city, and submitted along with all other required documentation to the administrative official. Credit against required road drainage impact fees shall be subject to the following:

- (1) Road drainage land and/or road drainage capital improvements may be offered by the feepayer as total or partial payment of the required road drainage impact fee. The offer must specifically request or provide for a road drainage impact fee credit. If the administrative official accepts such an offer, whether the acceptance is before or after the effective date of the ordinance from which this division is derived, the credit shall be determined and provided in the following manner:
 - (a) Credit for the dedication of land shall be valued at:
 - (i) One hundred fifteen (115) percent of the most recent assessed value by the Manatee County property appraiser;
 - (ii) By fair market value established by a private, certified appraiser acceptable to the city. At the city's option, a second appraisal may be contracted at the city's expense. Credit for the dedication of road drainage land shall be provided when the property has been conveyed at no charge to, and accepted by, the city in a manner satisfactory to the city commission; or
 - (iii) By such other appropriate method as the city commission may have accepted prior to the effective date of the ordinance from which this division is derived for particular road drainage improvements.
 - (b) Applicants for credit for construction of road drainage improvements shall:
 - (i) Submit acceptable engineering drawings and specifications, and construction cost estimates to the administrative official;
 - (ii) The administrative official shall, within a reasonable period of time, determine credit for construction based upon either these cost estimates, or upon alternative engineering criteria and construction cost estimates if the administrative official determines that such estimates submitted by the applicant are either unreliable or inaccurate;
 - (iii) The administrative official shall provide the applicant with a letter or certificate setting forth the dollar amount of the credit, the reason for the credit, and the legal description or other adequate description of the project or development to which the credit may be applied. The applicant must sign and date a duplicate copy of such letter or certificate indicating his/her agreement to the terms of the letter or certificate and return such signed document to the administrative official before credit will be given;
 - (iv) The failure of the applicant to sign, date, and return such document within sixty (60) days shall nullify the credit.
 - (c) Except as provided in subsection (d) of this section, credit against road drainage impact fees otherwise due will not be provided until:
 - (i) The construction is completed and accepted by the city, the county, or the state, whichever is applicable;
 - (ii) A suitable maintenance and warranty bond is received and approved by the city clerk, when applicable.
 - (d) Credit may be provided before completion of specified road drainage improvements if adequate assurances are given by the applicant that the standards set out in subsection (c) of this section will be met and if the feepayer posts security as provided below for the costs of such construction. Security in the form of a performance bond, irrevocable letter of credit or escrow agreement shall be posted

with and approved by the city in an amount determined by the administrative official. If the road drainage construction project will not be constructed within one (1) year of the acceptance of the offer by the administrative official, the amount of the security shall be increased by ten (10) percent compounded, for each year of the life of the security. The security shall be reviewed and approved by the city commission prior to acceptance of the security. If the road drainage construction project is not to be completed within five (5) years of the date of the feepayer's offer, the city commission must approve the road drainage construction project and its scheduled completion date prior to the acceptance of the offer by the administrative official.

- (2) Any claim for credit must be made no later than the time of application for a building permit. Any claim not so made shall be deemed waived. The feepayer may apply for credit prior to the issuance of a building permit, however, credit shall only be applied against building permits issued subsequent to the application for credit. Refunds shall be made only to the person or entity who made the creditable payment or contribution.
 - (3) Credits shall not be transferable from one project or development to another without the approval of the city commission and may only be transferred to a different development upon a finding by the city commission that the dedication for which the credit was given benefits such different development.
 - (4) No credit shall exceed the amount due for the applicable road drainage impact fee required.
 - (5) The right of credit shall run with the land and be claimed only by the owners of the land for which credit is claimed.
- (Ord. No. 04-09, § 13, 9-22-2004)

Sec. 22-284. Appeals.

A. Any feepayer aggrieved by a decision of the administrative official made pursuant to this division shall have the right to appeal to the city commission. Prior to any such appeal the aggrieved feepayer shall file a request for reconsideration with the administrative official who shall act upon such request within fifteen (15) days.

B. If, after reconsideration by the administrative official, the feepayer chooses to continue with an official appeal, the feepayer, within fifteen (15) days of the administrative official's decision on the request for reconsideration, may file with the administrative official a notice of appeal specifying the grounds, therefore. The administrative official shall forthwith transmit to the city commission all papers constituting the record upon which the action appealed from is taken. The mayor and city commission shall thereafter establish a reasonable date and time for a hearing on the appeal, give due notice thereof, and decide the same within a reasonable period of time following the hearing. Any feepayer submitting a notice of appeal shall have the right to appear at the hearing, to present evidence, and be represented by counsel.

C. A feepayer may pay a road drainage impact fee under protest to obtain a building permit and by making such payment shall not be estopped from:

- (1) Exercising the right of appeal provided for in this section; or
 - (2) Receiving a refund of any amount deemed to have been erroneously collected.
- (Ord. No. 04-09, § 14, 9-22-2004)

Sec. 22-285. Review.

The road drainage impact fee schedule contained in section 22-277(A) shall be reviewed by the city commission at least once each fiscal biennium.

(Ord. No. 04-09, § 15, 9-22-2004)

Sec. 22-286. Penalty provision.

A violation of this ordinance shall be prosecuted in the same manner as misdemeanors are prosecuted and upon conviction the violator shall be punishable according to law; however, in addition to or in lieu of any criminal prosecution, the city shall have the power to initiate legal action in civil court to enforce the provisions of this division.

(Ord. No. 04-09, § 16, 9-22-2004)

Secs. 22-287—22-309. Reserved.

DIVISION 3. PUBLIC SAFETY IMPACT FEE

Sec. 22-310. Legislative findings.

A. The city must expand its public safety capital facilities in order to maintain current standards if new development is to be accommodated without decreasing current standards. This must be done in order to promote and protect the public health, safety and welfare.

B. The state legislature, through the enactment of F.S. § 163.3202(3) has sought to encourage the city to enact impact fees.

C. The imposition of impact fees is one of the preferred methods of ensuring that development bears a proportionate share of the cost of public safety capital facilities necessary to accommodate such development. This must be done in order to promote and protect the public health, safety and welfare.

D. Each of the types of land development described in section 22-316, will create a need for the construction, equipping, or expansion of public safety capital facilities.

E. The fees established by section 22-316 are derived from, are based upon, and do not exceed the costs of providing additional public safety necessitated by the new land developments for which the fees are levied.

F. The report entitled "Methods and Data Used to Calculate Police, Park & Recreation and Public Works Impact Fees", dated July 19, 2004, sets forth a reasonable methodology and analysis for the determination of the impact of new development on the need for and costs for additional public safety in the city.

(Ord. No. 04-10, § 1, 9-22-2004)

Sec. 22-311. Short title, authority and applicability.

A. This division shall be known and may be cited as the "The City of Opa-locka Public Safety Impact Fee Ordinance."

B. The city commission of the city has the authority to adopt this ordinance pursuant to article IV of the constitution of the state, and F.S. ch. 166.

C. This division shall apply in the incorporated area of the city.

(Ord. No. 04-10, § 2, 9-22-2004)

Sec. 22-312. Intents and purposes.

A. This division is intended to assist in the implementation of the city comprehensive plan.

B. The purpose of this division is to regulate the use and development of land so as to ensure that new development bears a proportionate share of the cost of capital expenditures necessary to provide public safety in the city.

(Ord. No. 04-10, § 3, 9-22-2004)

Sec. 22-313. Rules of construction.

A. The provisions of this division shall be liberally construed so as to effectively carry out its purpose in the interest of the public health, safety and welfare.

B. For the purposes of administration and enforcement of this division, unless otherwise stated in this division, the following rules of construction shall apply to the text of this division:

- (1) In case of any difference of meaning or implication between the text of this ordinance and any caption, illustration, summary table, or illustrative table, the text shall control.
- (2) The term "shall" is always mandatory and not discretionary; the term "may" is permissive.
- (3) Words used in the present tense shall include the future; and words used in the singular number shall include the plural, and the plural the singular, unless the context clearly indicates the contrary.
- (4) The phrase "used for" includes "arranged for," "designed for," "maintained for," or "occupied for."
- (5) The term "person" includes an individual, a corporation, a partnership, an incorporated association, or any other similar entity.
- (6) Unless the context clearly indicates the contrary, where a regulation involves two (2) or more items, conditions, provisions, or events connected by the conjunction "and," "or" or "either...or," the conjunction shall be interpreted as follows:
 - (a) "And" indicates that all the connected terms, conditions, provisions or events shall apply.
 - (b) "Or" indicates that the connected items, conditions, provisions or events may apply singly or in any combination.
 - (c) "Either...or" indicates that the connected items, conditions, provisions or events shall apply singly but not in combination.
- (7) The term "includes" shall not limit a term to the specific example but is intended to extend its meaning to all other instances or circumstances of like kind or character.
- (8) "City manager" means the city manager and municipal officials he/she may designate to carry out the administration of this division.

(Ord. No. 04-10, § 4, 9-22-2004)

Sec. 22-314. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- A. A "feepayer" means a person applying for the issuance of a building permit.
- B. "Building permit" means the approval issued by the city that authorizes the construction or placement of a building, dwelling, mobile home, recreational vehicle or other structure on a site.
- C. "Capital equipment" means buildings, vehicles, weapons, and communications equipment, all with an expected use life of three years or more. The term "capital equipment" shall include the cost of training new police officers when such new officers constitute a net expansion of the city protective force.

- D. "Development order" means a regulatory approval by the city.

(Ord. No. 04-10, § 5, 9-22-2004)

Sec. 22-315. Imposition of public safety impact fee.

A. Any person who, after the effective date of the ordinance from which this division is derived seeks to develop land within the city, by applying for a building permit, is hereby required to pay a public safety impact fee in the manner and amount set forth in this division.

B. No new building permit for any activity requiring payment of an impact fee pursuant to section 22-316 shall be issued unless and until the public safety impact fee hereby required has been paid.

C. No extension of a building permit issued prior to the effective date of the ordinance from which this division is derived for any activity requiring payment of an impact fee pursuant to section 22-316 shall be granted unless and until the public safety impact fee hereby required has been paid.
(Ord. No. 04-10, § 6, 9-22-2004)

Sec. 22-316. Computation of the amount of public safety impact fee.

A. At the option of the feepayer, the amount of the public safety impact fee may be determined by the following fee schedules:

Public safety fee schedule

Residential floor area
Cost per sq. ft....\$0.166
Business floor area
Cost per sq. ft....\$0.166

- (1) If a building permit is requested for mixed uses, then the fee shall be determined through using the above schedules by apportioning the space committed to uses specified on the schedules.
- (2) If the type of development activity that a building permit is applied for is not specified on the above fee schedules, the city manager shall use the fee applicable to the most nearly comparable type of land use on the above fee schedules.

The city manager shall be guided in the selection of a comparable type by the city comprehensive plan, supporting documents of the city comprehensive plan, and the city zoning ordinance. If the city manager determines that there is no comparable type of land use on the above fee schedules then the city manager shall determine the fee by considering demographic or other documentation which is available from the city planning department, and state and regional authorities.

- (3) In the case of change of use, redevelopment, or expansion or modification of an existing use which requires the issuance of a building permit, the impact fee shall be based upon the net positive increase in the impact fee for the new use as compared to the previous use. The city manager shall be guided in this determination by the sources and agencies listed above.

B. If a feepayer opts not to have the impact fee determined according to subsection (A) of this section, then the feepayer shall prepare and submit to the city manager an independent fee calculation study for the land development activity for which a building permit is sought. The documentation submitted shall show the basis upon which the independent fee calculation was made. The city manager shall consider the documentation submitted by the feepayer but is not required to accept such documentation as he/she shall reasonably deem to be inaccurate or not reliable and may, in the alternative, require the feepayer to submit additional or different documentation for consideration. If an acceptable independent fee calculation study is not presented, the feepayer shall pay public safety impact fees based upon the schedule shown in subsection (A) of this section. If an acceptable independent fee calculation study is

presented, the city manager may adjust the fee to that appropriate to the particular development. Determinations made by the city manager pursuant to this section may be appealed to the city commission by filing a written request with the city manager within ten (10) days of the city manager's determination.
(Ord. No. 04-10, § 7, 9-22-2004; Ord. No. 15-22, § 2, 7-22-2015)

Sec. 22-317. Payment of fee.

A. The feepayer shall pay the public safety impact fee required by this division to the city manager or his/her designee prior to the issuance of a building permit.

B. All funds collected shall be properly identified by and promptly transferred for deposit in the public safety impact fee trust fund to be held in separate accounts as determined in section 22-319 and used solely for the purposes specified in this division.
(Ord. No. 04-10, § 8, 9-22-2004)

Sec. 22-318. Public safety impact fee trust fund established.

A. There is hereby established a public safety impact fee trust fund.

B. Funds withdrawn from this account must be used in accordance with the provisions of section 22-319.
(Ord. No. 04-10, § 9, 9-22-2004)

Sec. 22-319. Use of funds.

A. Funds collected from public safety impact fees shall be used solely for the purpose of acquiring, equipping, and/or making capital improvements to public safety facilities under the jurisdiction of the city, the county, or the state, and shall not be used for maintenance or operations.

B. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which public safety impact fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in subsection (A) of this section.

C. At least once each fiscal period the city manager shall present to the city commission a proposed capital improvement program for public safety, assigning funds, including any accrued interest, from the several public safety impact fee trust funds to specific public safety improvement projects and related expenses. Monies, including any accrued interest, not assigned in any fiscal period shall be retained in the public safety impact fee trust fund until the next fiscal period except as provided by the refund provisions of this division.

D. Funds may be used to make refunds required under any development order hereto, before or hereafter issued or entered into by the city as such refunds pertain to the subject matter of this division.

E. Funds may be used to provide refunds as described in section 22-321.
(Ord. No. 04-10, § 10, 9-22-2004)

Sec. 22-320. Refund of fees paid.

A. If a building permit expires without commencement of construction, then the feepayer shall be entitled to a refund, without interest, of the impact fee paid as a condition for its issuance except that the city shall retain three (3) percent of the fee to offset a portion of the costs of collection and refund. The feepayer must submit an application for such a refund to the city clerk within thirty (30) days of the expiration of the permit.

B. Any funds not expended or encumbered by the end of the calendar quarter immediately following six (6) years from the date the public safety impact fee was paid shall, upon application of the then current landowner, be returned to such landowner with interest at the rate of three (3) percent per annum, provided that the landowner submits an application for a refund to the city clerk within one hundred eighty (180) days of the expiration of the six (6) year period.
(Ord. No. 04-10, § 11, 9-22-2004)

Sec. 22-321. Exemptions and credits.

A. The following shall be exempted from payment of the impact fee:

- (1) Alterations or expansion of an existing building where no additional units are created and where the use is not changed.
- (2) The construction of accessory buildings or structures.
- (3) The replacement of a building or structure with a new building or structure of the same size and use.
- (4) The installation of a replacement mobile home on a lot or other such site when a public safety impact fee for such mobile home site has previously been paid pursuant to the ordinance from which this division is derived or where a mobile home legally existed on such site on or prior to the effective date of the ordinance from which this division is derived.

Any claim of exemption must be made no later than the time of application for a building permit. Any claim not so made shall be deemed waived.

B. Credits.

- (1) Public safety land and/or public safety capital improvements may be offered by the feepayer as total or partial payment of the required impact fee. The offer must request or provide for a public safety impact fee credit. If the city manager accepts such an offer, whether the acceptance is before or after the effective date of the ordinance from which this division is derived, the credit shall be determined and provided in the following manner:
 - (a) Credit for the dedication of land shall be valued at:
 - (i) One hundred fifteen (115) percent of the most recent assessed value by the property appraiser;
 - (ii) By such other appropriate method as the city commission may have accepted prior to the effective date of the ordinance from which this division is derived for particular public safety improvements; or
 - (iii) By fair market value established by private appraisers acceptable to the city. Credit for the dedication of public safety land shall be provided when the property has been conveyed at no charge to, and accepted by, the city in a manner satisfactory to the city commission.
 - (b) Applicants for credit for construction of public safety improvements shall submit acceptable engineering drawings and specifications, and construction cost estimates to the city manager. The city manager shall determine credit for construction based upon either these cost estimates or upon alternative engineering criteria and construction cost estimates if the city manager determines that such estimates submitted by the applicant are either unreliable or inaccurate. The city manager shall provide the applicant with a letter or certificate setting forth the dollar amount of the credit, the reason for the credit, and the legal description or other adequate description of the project or development to which the credit may be applied. The applicant must sign and date a duplicate copy of such letter or certificate indicating his/her agreement to the terms of the letter or certificate and return such signed document to the city manager before credit will be given. The failure of the applicant to sign, date, and return such document within sixty (60) days shall nullify the credit.

- (c) Except as provided in subsection (d) of this section, credit against impact fees otherwise due will not be provided until:
 - (i) The construction is completed and accepted by the city, the county, or the state, whichever is applicable;
 - (ii) A suitable maintenance and warranty bond is received and approved by the city clerk, when applicable.
 - (d) Credit may be provided before completion of specified public safety improvements if adequate assurances are given by the applicant that the standards set out in subsection (c) of this section will be met and if the feepayer posts security as provided below for the costs of such construction. Security in the form of a performance bond, irrevocable letter of credit or escrow agreement shall be posted with and approved by the city clerk in an amount determined by the city manager. If the public safety construction project will not be constructed within one (1) year of the acceptance of the offer by the city manager, the amount of the security shall be increased by ten (10) percent compounded, for each year of the life of the security. The security shall be reviewed and approved by the city commission prior to acceptance of the security. If the public safety construction project is not to be completed within five (5) years of the date of the feepayer's offer, the city commission must approve the public safety construction project and its scheduled completion date prior to the acceptance of the offer by the city manager.
 - (2) Any claim for credit must be made no later than the time of application for a building permit. Any claim not so made shall be deemed waived.
 - (3) Determinations made by the city manager pursuant to the credit provisions of this section may be appealed to the city commission by filing a written request with the city manager within ten (10) days of the city manager's determination.
- (Ord. No. 04-10, § 12, 9-22-2004)

Sec. 22-322. Review.

The fees contained in section 22-316(A) shall be reviewed by the city commission at least once each fiscal biennium.

(Ord. No. 04-10, § 13, 9-22-2004)

Sec. 22-323. Penalty provision.

A violation of this division shall be prosecuted in the same manner as misdemeanors are prosecuted and, upon conviction, the violator shall be punishable according to law; however, in addition to or in lieu of any criminal prosecution, the city shall have the power to sue in civil court to enforce the provisions of this division.

(Ord. No. 04-10, § 14, 9-22-2004)

Secs. 22-324—22-343. Reserved.

DIVISION 4. PARK IMPACT FEE

Sec. 22-344. Legislative findings.

The city commission finds, determines and declares:

- A. The city must expand its park system in order to maintain current park standards if new development is to be accommodated without decreasing current standards. This must be done in order to promote and protect the public health, safety and welfare.

- B. The state legislature, through the enactment of F.S. ch. 163 pt. II (F.S. 163.2511 et seq.) has sought to encourage the city to enact impact fees. The state legislature, through the enactment of F.S. ch. 163.3202(3), has sought to encourage the city to enact impact fees.
- C. The imposition of impact fees is one of the preferred methods of ensuring that development bears a proportionate share of the cost of capital facilities necessary to accommodate such development. This must be done in order to promote and protect the public health, safety and welfare;
- D. Each of the types of land development described in section 22-350, will create demand for the acquisition or expansion of parks and the construction of park improvements.
- E. The fees established by section 22-350 are derived from, are based upon, and do not exceed the costs of providing additional park and park improvements necessitated by the new land developments for which the fees are levied.
- F. The report entitled "Methods and Data Used to Calculate Police, Park & Recreation and Public Works Impact Fees," dated July 19, 2004, sets forth a reasonable methodology and analysis for the determination of the impact of new development on the need for and costs for additional parks and park improvements in the city.

(Ord. No. 04-11, § 1, 9-22-2004)

Sec. 22-345. Short title, authority and applicability.

A. This division shall be known and may be cited as the "The City of Opa-locka Park Impact Fee Ordinance."

B. The city commission has the authority to adopt the ordinance from which this division is derived pursuant to article IV of the constitution of the state, and F.S. ch. 166.

C. This division shall apply in the incorporated area of the city.

(Ord. No. 04-11, § 2, 9-22-2004)

Sec. 22-346. Intents and purposes.

A. This division is intended to assist in the implementation of the city comprehensive plan.

B. The purpose of this division is to regulate the use and development of land so as to ensure that new development bears a proportionate share of the cost of capital expenditures necessary to provide parks and park improvements in the city.

(Ord. No. 04-11, § 3, 9-22-2004)

Sec. 22-347. Rules of construction.

A. The provisions of this division shall be liberally construed so as to effectively carry out its purpose in the interest of the public health, safety and welfare.

B. For the purposes of administration and enforcement of this division, unless otherwise stated in this division, the following rules of construction shall apply to the text of this division:

- (1) In case of any difference of meaning or implication between the text of this division and any caption, illustration, summary table, or illustrative table, the text shall control.
- (2) The term "shall" is always mandatory and not discretionary; the term "may" is permissive.
- (3) Words used in the present tense shall include the future; and words used in the singular number shall include the plural, and the plural the singular, unless the context clearly indicates the contrary.
- (4) The phrase "used for" includes "arranged for," "designed for," "maintained for," or "occupied for."

- (5) The term "person" includes an individual, a corporation, a partnership, an incorporated association, or any other similar entity.
 - (6) Unless the context clearly indicates the contrary, where a regulation involves two (2) or more items, conditions, provisions, or events connected by the conjunction "and," "or" or "either...or," the conjunction shall be interpreted as follows:
 - (a) "And" indicates that all the connected terms, conditions, provisions or events shall apply.
 - (b) "Or" indicates that the connected items, conditions, provisions or events may apply singly or in any combination.
 - (c) "Either...or" indicates that the connected items, conditions, provisions or events shall apply singly but not in combination.
 - (7) The term "includes" shall not limit a term to the specific example but is intended to extend its meaning to all other instances or circumstances of like kind or character.
 - (8) "City manager" means the city manager municipal and officials he/she may designate to carry out the administration of this division.
- (Ord. No. 04-11, § 4, 9-22-2004)

Sec. 22-348. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- A. A "feepayer" means a person applying for the issuance of a building permit.
 - B. "Building permit for a residential building" means the approval issued by the city that authorizes the construction or placement of a building, dwelling, mobile home, recreational vehicle or other structure on a site, where the purposes of the building or structure is for the occupancy by humans. This would include temporary as well as permanent occupancy.
 - C. A "capital improvement" includes parks planning, land acquisition, site improvements, buildings, and equipment, but excludes maintenance and operation.
 - D. "Development order" means a regulatory approval by the city.
 - E. "Private recreational facility" means any recreational facility which is not owned by or dedicated to any governmental entity.
- (Ord. No. 04-11, § 5, 9-22-2004)

Sec. 22-349. Imposition of park impact fee.

A. Any person who, after the effective date of the ordinance from which this division is derived, seeks to develop land within the city by applying for a building permit for a residential building is hereby required to pay a park impact fee in the manner and amount set forth in this division.

B. No new residential building permit for any activity requiring payment of an impact fee pursuant to section 22-350 shall be issued unless and until the park impact fee hereby required has been paid.

C. No extension of a residential building permit issued prior to the effective date of the ordinance from which this division is derived for any activity requiring payment of an impact fee pursuant to section 22-350 shall be granted unless and until the park impact fee hereby required has been paid.

(Ord. No. 04-11, § 6, 9-22-2004)

Sec. 22-350. Computation of the amount of park impact fee.

A. At the option of the feepayer, the amount of the park impact fee may be determined by the following fee schedule:

Park impact fee schedule

Residential floor area

Cost per sq. ft. ...\$0.998

- (1) If a building permit is requested for mixed uses, then the fee shall be determined through using the above schedule by apportioning the space committed to uses specified on the schedule.
- (2) If the type of development activity that a residential building permit is applied for is not specified on the above fee schedule, the city manager shall use the fee applicable to the most nearly comparable type of land use on the above fee schedules. The city manager shall be guided in the selection of a comparable type by the city comprehensive plan, supporting documents of the city comprehensive plan, and the city zoning ordinance. If the city manager determines that there is no comparable type of land use on the above fee schedule then the city manager shall determine the appropriately discounted fee by considering demographic or other documentation which is available from state, local and regional authorities.
- (3) In the case of change of use, redevelopment, or expansion or modification of an existing use which requires the issuance of a residential building permit, the impact fee shall be based upon the net positive increase in the impact fee for the new use as compared to the previous use. The city manager shall be guided in this determination by the sources and agencies listed above.

B. If a feepayer opts not to have the impact fee determined according to subsection (A) of this section, then the feepayer shall prepare and submit to the city manager an independent fee calculation study for the land development activity for which a building permit is sought. The documentation submitted shall show the basis upon which the independent fee calculation was made. The city manager shall consider the documentation submitted by the feepayer but is not required to accept such documentation as he/she shall reasonably deem to be inaccurate or not reliable and may, in the alternative, require the feepayer to submit additional or different documentation for consideration. If an acceptable independent fee calculation study is not presented, the feepayer shall pay park impact fees based upon the schedule shown in subsection (A) of this section. If an acceptable independent fee calculation study is presented, the city manager may adjust the fee to that appropriate to the particular development. The adjustment may include a credit against the fee otherwise payable up to three (3) percent for private recreational facilities constructed or deed restricted or otherwise set aside for recreational purposes by the feepayer which serve the same purposes and functions as set forth for public parks in the city comprehensive plan. Determinations made by the city manager pursuant to this section may be appealed to the city commission by filing a written request with the city manager within ten (10) days of the city manager's determination.

(Ord. No. 04-11, § 7, 9-22-2004; Ord. No. 15-23, § 2, 7-22-2015)

Sec. 22-351. Payment of fee.

A. The feepayer shall pay the park impact fee required by this division to the city manager or his/her designee prior to the issuance of a residential building permit.

B. All funds collected shall be properly identified by park impact fee district and promptly transferred for deposit in the appropriate park impact fee trust fund to be held in separate accounts as determined in section 22-353 used solely for the purposes specified in this division.

(Ord. No. 04-11, § 8, 9-22-2004)

Sec. 22-352. Park impact fee districts.

There are hereby established four (4) park impact fee districts as shown in appendix I attached to the ordinance from which this section is derived and incorporated herein by reference.

(Ord. No. 04-11, § 9, 9-22-2004)

Sec. 22-353. Park impact fee trust funds established.

A. There are hereby established four (4) separate park impact fee trust funds, one for each park impact fee district established by section 22-352.

B. Funds withdrawn from these accounts must be used in accordance with the provisions of section 22-354.
(Ord. No. 04-11, § 10, 9-22-2004)

Sec. 22-354. Use of funds.

A. Funds collected from park impact fees shall be used solely for the purpose of acquiring and/or making capital improvements to parks under the jurisdiction of the city, the county, or the state and shall not be used for maintenance or operations.

B. Funds shall be used exclusively for acquisitions, expansions, or capital improvements within the park impact fee district as identified in appendix I, attached to the ordinance from which this section is derived, from which the funds were collected or for projects in other park impact fee districts which are of benefit to the park impact district from which the funds were collected. Funds shall be expended in the order in which they are collected.

C. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which park impact fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in subsection (A) of this section and are located within the appropriate impact fee districts created by section 22-352 or as provided in subsection (B) of this section.

D. At least once each fiscal period the city manager shall present to the city commission a proposed capital improvement program for parks, assigning funds, including any accrued interest, from the several park impact fee trust funds to specific park improvement projects and related expenses. Monies, including any accrued interest, not assigned in any fiscal period shall be retained in the same park impact fee trust funds until the next fiscal period except as provided by the refund provisions of this division.

E. Funds may be used to provide refunds as described in section 22-355.
(Ord. No. 04-11, § 11, 9-22-2004)

Sec. 22-355. Refund of fees paid.

A. If a residential building permit expires without commencement of construction, then the feepayer shall be entitled to a refund, without interest, of the impact fee paid as a condition for its issuance except that the city shall retain three (3) percent of the fee to offset a portion of the costs of collection and refund. The feepayer must submit an application for such a refund to the city manager thirty (30) days prior to the expiration of the permit.

B. Any funds not expended or encumbered by the end of the calendar quarter immediately following six (6) years from the date the park impact fee was paid shall, upon application of the then current landowner, be returned to such landowner with interest at the rate of three (3) percent per annum, provided that the landowner submits an application for a refund to the city clerk within one hundred eighty (180) days of the expiration of the six (6) year period.

(Ord. No. 04-11, § 12, 9-22-2004)

Sec. 22-356. Exemptions and credits.

A. The following shall be exempted from payment of the impact fee:

- (1) Alterations or expansion of an existing building where no additional residential units are created and where the use is not changed.
- (2) The construction of accessory buildings or structures.
- (3) The replacement of a destroyed or partially destroyed building or structure with a new building or structure of the same size and use.
- (4) The installation of a replacement mobile home on a lot or other such site when a park impact fee for such mobile home site has previously been paid pursuant to this ordinance or where a mobile home legally existed on such site on or prior to the effective date of the ordinance from which this division is derived.
- (5) The construction of any nonresidential building or structure or the installation of a nonresidential mobile home.

Any claim of exemption must be made no later than the time of application for a building permit. Any claim not so made shall be deemed waived.

B. Credits.

- (1) Park land and/or park capital improvements may be offered by the feepayer as total or partial payment of the required impact fee. The offer must specifically request or provide for a park impact fee credit. If the city manager accepts such an offer, whether the acceptance is before or after the effective date of the ordinance from which this division is derived, the credit shall be determined and provided in the following manner:
 - (a) Credit for the dedication of land shall be valued at (i) one hundred fifteen (115) percent of the most recent assessed value by the property appraiser; or (ii) by such other appropriate method as the city commission may have accepted prior to the effective date of the ordinance from which this division is derived for particular park improvements; or (iii) by fair market value established by private appraisers acceptable to the city. Credit for the dedication of park land shall be provided when the property has been conveyed at no charge to, and accepted by, the city in a manner satisfactory to the city commission.
 - (b) Applicants for credit for construction of park improvements shall submit acceptable engineering drawings and specifications, and construction cost estimates to the city manager. The city manager shall determine credit for construction based upon either these cost estimates or upon alternative engineering criteria and construction cost estimates if the city manager determines that such estimates submitted by the applicant are either unreliable or inaccurate. The city manager shall provide the applicant with a letter or certificate setting forth the dollar amount of the credit, the reason for the credit, and the legal description or other adequate description of the project or development to which the credit may be applied. The applicant must sign and date a duplicate copy of such letter or certificate indicating his/her agreement to the terms of the letter or certificate and return such signed document to the city manager before credit will be given. The failure of the applicant to sign, date, and return such document within sixty (60) days shall nullify the credit.
 - (c) Except as provided in subsection (d) of this section, credit against impact fees otherwise due will not be provided until:
 - (i) The construction is completed and accepted by the city, the county or the state, whichever is applicable;
 - (ii) A suitable maintenance and warranty bond is received and approved by the city clerk, when applicable.

- (d) Credit may be provided before completion of specified park improvements if adequate assurances are given by the applicant that the standards set out in subsection (c) of this section will be met and if the feepayer posts security as provided below for the costs of such construction. Security in the form of a performance bond, irrevocable letter of credit or escrow agreement shall be posted with and approved by the city in an amount determined by the city manager. If the park construction project will not be constructed within one (1) year of the acceptance of the offer by the city manager, the amount of the security shall be increased by ten (10) percent compounded, for each year of the life of the security. The security shall be reviewed and approved by the city commission prior to acceptance of the security. If the park construction project is not to be completed within five (5) years of the date of the feepayer's offer, the city commission must approve the park construction project and its scheduled completion date prior to the acceptance of the offer by the city manager.
 - (2) Any claim for credit must be made no later than the time of application for a building permit. Any claim not so made shall be deemed waived.
 - (3) Credits shall not be transferable from one project or development to another without the approval of the city commission and may only be transferred to a development within a different impact fee district upon a finding by the city commission that the dedication for which the credit was given benefits such different impact fee district.
 - (4) Determinations made by the city manager pursuant to this section may be appealed to the city commission by filing a written request with the city manager with ten (10) days of the city manager's determination.
- (Ord. No. 04-11, § 13, 9-22-2004)

Sec. 22-357. Review.

The fee schedule contained in section 22-350(A) shall be reviewed by the city commission at least once each fiscal biennium.

(Ord. No. 04-11, § 14, 9-22-2004)

Sec. 22-358. Penalty provision.

A violation of the ordinance from which this division is derived shall be prosecuted in the same manner as misdemeanors are prosecuted and upon conviction the violator shall be punishable according to law; however, in addition to or in lieu of any criminal prosecution, the city shall have the power to sue in civil court to enforce the provisions of this division.

(Ord. No. 04-11, § 15, 9-22-2004)

Secs. 22-359—22-378. Reserved.

DIVISION 5. WATER AND SEWER IMPACT FEE

Sec. 22-379. Legislative findings.

The city commission finds, determines, and declares:

- A. The city must expand its water and sewer system in order to maintain current standards if new development is to be accommodated without decreasing current levels of service. This must be done in order to promote and protect the public health, safety and welfare.
- B. The state legislature through the enactment of F.S. § 3202(3) has sought to encourage the city to enact impact fees.

- C. The imposition of impact fees is one of the preferred methods of ensuring that development bears a proportionate share of the cost of capital facilities necessary to accommodate such development. This must be done in order to promote and protect the public health, safety and welfare;
- D. Each of the types of land development described in section 22-385, will create demand for the expansion of road drainage capacity and the construction of road drainage improvements.
- E. The impact fees established by section 22-385 are derived from, are based upon, and do not exceed the costs of providing additional water and sewer capacity and improvements necessitated by the new land developments for which the impact fees are levied.
- F. The city retained Burton and Associates to conduct a study on the need for water and sewer impact fees and the methods for calculating such fees, and that study, which was presented to the city commission on May 5, 2015, is hereby incorporated reference in its entirety.

(Ord. No. 15-24, § 1, 7-22-2015)

Sec. 22-380. Short title and authority.

A. This division shall be known and may be cited as the "The City of Opa-locka Water and Sewer Impact Fee Ordinance."

B. The city commission has the authority to adopt this ordinance pursuant to article IV of the constitution of the state, and F.S. ch. 125.

C. This division shall apply in the incorporated area of the city.

(Ord. No. 15-24, § 2, 7-22-2015)

Sec. 22-381. Intents and purposes.

A. This division is intended to assist in the implementation of the city comprehensive plan.

B. The purpose of this division is to regulate the use and development of land so as to ensure that new development bears a proportionate share of the cost of capital expenditures necessary to provide water and sewer improvements in the city.

(Ord. No. 15-24, § 3, 7-22-2015)

Sec. 22-382. Rules of construction.

A. The provisions of this division shall be liberally construed so as to effectively carry out its purpose in the interest of the public health, safety and welfare.

B. For the purposes of administration and enforcement of the ordinance from which this division is derived, unless otherwise stated in this division, the following rules of construction shall apply to the text of this division:

- (1) In case of any difference of meaning or implication between the text of this division and any caption, illustration, summary table, or illustrative table, the text shall control.
- (2) The term "shall" is always mandatory and not discretionary; the term "may" is permissive.
- (3) Words used in the present tense shall include the future; and words used in the singular number shall include the plural, and the plural the singular, unless the context clearly indicates the contrary.
- (4) The phrase "used for" includes "arranged for," "designed for," "maintained for," or "occupied for."
- (5) The term "person" includes an individual, a corporation, a partnership, an incorporated association, or any other similar entity.

- (6) Unless the context clearly indicates the contrary, where a regulation involves two (2) or more items, conditions, provisions, or events connected by the conjunction "and," "or" or "either...or," the conjunction shall be interpreted as follows:
- (a) "And" indicates that all the connected terms, conditions, provisions or events shall apply.
 - (b) "Or" indicates that the connected items, conditions, provisions or events may apply singly or in any combination.
 - (c) "Either...or" indicates that the connected items, conditions, provisions or events shall apply singly but not in combination.
- (7) The term "includes" shall not limit a term to the specific example but is intended to extend its meaning to all other instances or circumstances of like kind or character.
- (8) "Administrative official" means the director of the building and license department and the building official or his/her designee who will carry out the administration of this division.
- (Ord. No. 15-24, § 4, 7-22-2015)

Sec. 22-383. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- A. A "feepayer" is a person applying for the issuance of a building permit.
 - B. "Building permit" is the approval issued by the city that authorizes the construction or placement of a building, dwelling, mobile home, recreational vehicle or other structure on a site, where the purposes of the building or structure is for the occupancy by humans. This would include temporary as well as permanent occupancy.
 - C. A "capital improvement" includes planning, land acquisition, site improvements, the construction of new or expanded road drainage facilities, and the acquisition of equipment, but excludes maintenance and operation.
 - D. "Development order" means a regulatory approval by the city.
 - E. "Square footage" shall be measured in terms of heated or air-conditioned floor area.
- (Ord. No. 15-24, § 5, 7-22-2015)

Sec. 22-384. Imposition of water and sewer impact fee.

A. Any person who, after the effective date of the ordinance from which this division is derived, seeks to develop land within the city by applying for a building permit is hereby required to pay a water and sewer impact fee in the manner and amount set forth in this division.

B. No certificate of occupancy for any activity requiring payment of a road drainage impact fee pursuant to section 22-385 shall be issued unless and until the water and sewer impact fee hereby required has been paid.

C. No extension of a building permit issued prior to the effective date of the ordinance from which this division is derived for any activity requiring payment of a road drainage impact fee pursuant to section 22-385 shall be granted unless and until the water and sewer impact fee hereby required has been paid.

(Ord. No. 15-24, § 6, 7-22-2015)

Sec. 22-385. Computation of the amount of water and sewer impact fee.

The total combined water and sewer impact fees are \$2,715.00. A table presenting the calculated impact fee assuming one hundred (100) percent cost recovery from this study is presented below:

<i>Calculated Water & Sewer Impact Fees per ERU</i>		
<i>Water</i>	<i>Sewer</i>	<i>Combined</i>
\$1,439.00	\$1,276.00	\$2,715.00

Water meter size is used to determine ERUs for water and sewer customers. Single-family homes represent one ERU as they typically have a three-quarter ($\frac{3}{4}$) inch by five-eighths ($\frac{5}{8}$) inch water meter. For larger meter sizes, the following table shows the ERUs for each meter size and the resulting water and sewer impact fees by meter size. The ERUs for each meter size are determined by the AWWA maximum flow criteria for each meter size. (See the table below and the attached impact fee study).

<i>Water Meter Size</i>	<i>ERUs</i>	<i>Water Impact Fee</i>	<i>Sewer Impact Fee</i>	<i>Combined: Water and Sewer Impact Fee</i>
$\frac{3}{4}$ inch	1	1,439	1,276	2,715
1 inch	2.5	3,598	3,190	6,788
1 $\frac{1}{2}$ inch	5	7,195	6,380	13,575
2 inch	8	11,512	10,208	21,720
3 inch	16	23,024	20,416	43,440
4 inch	25	35,975	31,900	67,875
6 inch	50	71,950	63,800	135,750
8 inch	80	115,120	102,080	217,200

(Ord. No. 15-24, § 7, 7-22-2015)

Sec. 22-386. Payment of fee.

A. The fee payer shall pay the water and sewer impact fee prior to the issuance of a permit.

B. The water and sewer impact fee required by this ordinance to the administrative official or his/her designee, prior to the issuance of a temporary certificate of occupancy, certificate of occupancy, or other final approval.

C. All funds collected shall be promptly transferred for deposit in the water and sewer impact fee trust fund account as determined in section 22-388 and used solely for the purposes specified in this division.

(Ord. No. 15-24, § 8, 7-22-2015)

Sec. 22-387. Water and sewer impact fee districts.

There is hereby established one (1) water and sewer impact fee benefit district which includes all land within the city jurisdictional boundary.

(Ord. No. 15-24, § 9, 7-22-2015)

Sec. 22-388. Water and sewer impact fee trust fund established.

A. There is hereby established one (1) water and sewer impact fee trust fund, established by section 22-387.

B. Funds withdrawn from this account must be used in accordance with the provisions of section 22-389.

(Ord. No. 15-24, § 10, 7-22-2015)

Sec. 22-389. Use of funds.

A. Funds collected from water and sewer impact fees shall be used solely for the purpose of acquiring and/or making capital improvements to water and sewer infrastructure under the jurisdiction of the city, the county, or the state and shall not be used for city day-to-day operations or road maintenance.

B. Funds shall be used exclusively for acquisitions, expansions, or capital improvements within the city-wide water and sewer impact fee district, which the funds were collected. Funds shall be expended in the order in which they are collected.

C. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which water and sewer impact fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in subsection (A) of this section.

D. At least once each fiscal period the administrative official shall present to the city commission a proposed capital improvement program for road drainage, assigning funds, including any accrued interest, to specific road drainage improvement projects and related expenses. Monies, including any accrued interest, not assigned in any fiscal period shall be retained in the water and sewer impact fee trust fund until the next fiscal period except as provided by the refund provisions of this division.

E. Funds may be used to provide refunds as described in section 22-390.
(Ord. No. 15-24, § 11, 7-22-2015)

Sec. 22-390. Refund of fees paid.

A. If a building permit expires without commencement of construction, then the feepayer shall be entitled to a refund, without interest, of the water and sewer impact fee paid as a condition for its issuance except that the city shall retain three (3) percent or one hundred dollars (\$100.00) of the fee, whichever is greater, to offset a portion of the costs of collection and refund. The feepayer must submit an application for such a refund to the administrative official thirty (30) days, prior to the expiration of the permit.

B. Any funds not expended or encumbered by the end of the calendar quarter immediately following six (6) years from the date the water and sewer impact fee was paid shall, upon application of the then current land owner, be returned to such landowner with interest at the rate of three (3) percent per annum, provided that the land owner submits an application for a refund to the administrative official within 180 days of the expiration of the six (6) year period. An extension of the six (6) year period, of an additional four (4) years may be permitted, at the city commission's discretion, for projects or improvements that entail long range planning and design.
(Ord. No. 15-24, § 12, 7-22-2015)

Sec. 22-391. Exemptions and credits.

A. *Exemptions.* The following shall be exempted from payment of water and sewer impact fees:

- (1) Alterations or expansion of an existing building where no additional square footage is created, where the use is not changed, and/or where no additional demand for water and sewer facilities or applicable improvements will be created, as determined by the administrative official.
- (2) The construction of accessory buildings or structures, unless such construction is determined by the administrative official to be an expansion or extension of the principal use for which road drainage impact fees are payable.
- (3) The replacement of a building or structure with a new building or structure of the same size and use.
- (4) The installation of a replacement mobile home on a lot or other such site when a water and sewer impact fee for such mobile home site has previously been paid pursuant to the ordinance from which this division is derived or where a mobile home legally existed on such site on or prior to the effective date of the ordinance from which this division is derived.
- (5) The installation of a mobile unit for temporary construction purposes.

Any claim of exemption must be made no later than the time of application for a building permit. Any claim not so made shall be deemed waived.

B. *Credits.* Any claim for credit under these provisions shall be made on an official impact fee credit application provided by the city and submitted along with all other required documentation to the administrative official. Credit against required water and sewer impact fees shall be subject to the following:

- (1) Water and sewer land and/or road drainage capital improvements may be offered by the feepayer as total or partial payment of the required water and sewer impact fee. The offer must specifically request or provide for a water and sewer impact fee credit. If the administrative official accepts such an offer, whether the acceptance is before or after the effective date of the ordinance from which this division is derived, the credit shall be determined and provided in the following manner:
 - (a) Credit for the dedication of land shall be valued at:
 - (i) One hundred fifteen (115) percent of the most recent assessed value by the Miami-Dade county property appraiser;
 - (ii) By fair market value established by a private, certified appraiser acceptable to the city. At the city's option, a second appraisal may be contracted at the city's expense. Credit for the dedication of water and sewer land shall be provided when the property has been conveyed at no charge to, and accepted by, the city in a manner satisfactory to the city commission; or
 - (iii) By such other appropriate method as the city commission may have accepted prior to the effective date of the ordinance from which this division is derived for particular water and sewer facility improvements.
 - (b) Applicants for credit for construction of water and sewer facilities improvements shall:
 - (i) Submit acceptable engineering drawings and specifications, and construction cost estimates to the administrative official;
 - (ii) The administrative official shall, within a reasonable period of time, determine credit for construction based upon either these cost estimates, or upon alternative engineering criteria and construction cost estimates if the administrative official determines that such estimates submitted by the applicant are either unreliable or inaccurate;
 - (iii) The administrative official shall provide the applicant with a letter or certificate setting forth the dollar amount of the credit, the reason for the credit, and the legal description or other adequate description of the project or development to which the credit may be applied. The applicant must sign and date a duplicate copy of such letter or certificate indicating his/her agreement to the terms of the letter or certificate and return such signed document to the administrative official before credit will be given;
 - (iv) The failure of the applicant to sign, date, and return such document within sixty (60) days shall nullify the credit.
 - (c) Except as provided in subsection (d) of this section, credit against water and sewer impact fees otherwise due will not be provided until:
 - (i) The construction is completed and accepted by the city, the county, or the state, whichever is applicable;
 - (ii) A suitable maintenance and warranty bond is received and approved by the city clerk, the city manager and the city attorney of the city, when applicable.
 - (d) Credit may be provided before completion of specified water and sewer improvements if adequate assurances are given by the applicant that the standards set out in subsection (B)(1)(c)(i) and (ii) of this section will be met and if the feepayer posts security as provided below for the costs of such construction. Security in the form of a performance bond, irrevocable letter of credit or escrow

agreement shall be posted with and approved by the city in an amount determined by the administrative official. If the water and sewer construction project will not be constructed within one (1) year of the acceptance of the offer by the administrative official, the amount of the security shall be increased by ten (10) percent compounded, for each year of the life of the security. The security shall be reviewed and approved by the city commission prior to acceptance of the security. If the water and sewer construction project is not to be completed within five (5) years of the date of the feepayer's offer, the city commission must approve the water and sewer construction project and its scheduled completion date prior to the acceptance of the offer by the administrative official.

- (2) Any claim for credit must be made no later than the time of application for a building permit. Any claim not so made shall be deemed waived. The feepayer may apply for credit prior to the issuance of a building permit, however, credit shall only be applied against building permits issued subsequent to the application for credit. Refunds shall be made only to the person or entity who made the creditable payment or contribution.
- (3) Credits shall not be transferable from one project or development to another without the approval of the city commission and may only be transferred to a different development upon a finding by the city commission that the dedication for which the credit was given benefits such different development.
- (4) No credit shall exceed the amount due for the applicable water and sewer impact fee required.
- (5) The right of credit shall run with the land and be claimed only by the owners of the land for which credit is claimed.

(Ord. No. 15-24, § 13, 7-22-2015)

Sec. 22-392. Appeals.

A. Any feepayer aggrieved by a decision of the administrative official made pursuant to the ordinance from which this division is derived shall have the right to appeal to the city commission. Prior to any such appeal, the aggrieved feepayer shall file a request for reconsideration with the administrative official who shall act upon such request within fifteen (15) days.

B. If, after reconsideration by the administrative official, the feepayer chooses to continue with an official appeal, the feepayer, within fifteen (15) days of the administrative official's decision on the request for reconsideration, may file with the administrative official a notice of appeal specifying the grounds, therefore. The administrative official shall forthwith transmit to the city commission all papers constituting the record upon which the action appealed from is taken. The mayor and city commission shall thereafter establish a reasonable date and time for a hearing on the appeal, give due notice thereof, and decide the same within a reasonable period of time following the hearing. Any feepayer submitting a notice of appeal shall have the right to appear at the hearing, to present evidence, and be represented by counsel.

C. A feepayer may pay a water and sewer impact fee under protest to obtain a building permit and by making such payment shall not be estopped from:

- (1) Exercising the right of appeal provided for in this section; or
- (2) Receiving a refund of any amount deemed to have been erroneously collected.

(Ord. No. 15-24, § 14, 7-22-2015)

Sec. 22-393. Review.

The water and sewer impact fee schedule contained in section 22-385(A) shall be reviewed by the city commission at least once each fiscal biennium.

(Ord. No. 15-24, § 15, 7-22-2015)

Sec. 22-394. Penalty provision.

A violation of this division shall be prosecuted in the same manner as misdemeanors are prosecuted and upon conviction the violator shall be punishable according to law; however in addition to or in lieu of any criminal prosecution. The city shall have the power to initiate legal action in civil court to enforce the provisions of this division.

(Ord. No. 15-24, § 16, 7-22-2015)

LAND DEVELOPMENT REGULATIONS COMPARATIVE TABLE

LEGISLATION

This table gives the location of ordinances and other legislation within the Land Development Code.

Legislation	Date	Section	LDC Section
Ord. No. 04-09	9-22-2004	1	22-271
		2	22-272
		3	22-273
		4	22-274
		5	22-275
		6	22-276
		7	22-277
		8	22-278
		9	22-279
		10	22-280
		11	22-281
		12	22-282
		13	22-283
		14	22-284
		15	22-285
		16	22-286
Ord. No. 04-10	9-22-2004	1	22-310
		2	22-311
		3	22-312
		4	22-313
		5	22-314
		6	22-315
		7	22-316
		8	22-317
		9	22-318
		10	22-319
		11	22-320
		12	22-321
		13	22-322
		14	22-323
Ord. No. 04-11	9-22-2004	1	22-344
		2	22-345
		3	22-346
		4	22-347
		5	22-348
		6	22-349
		7	22-350
		8	22-351
		9	22-352
		10	22-353
		11	22-355
		13	22-356
		14	22-357

OPA-LOCKA LAND DEVELOPMENT CODE

Legislation	Date	Section	LDC Section
		15	22-358
Ord. No. 15-21	7-22-2015	2	22-277
Ord. No. 15-22	7-22-2015	2	22-316
Ord. No. 15-23	7-22-2015	2	22-350
Ord. No. 15-24	7-22-2015	1	22-379
		2	22-380
		3	22-381
		4	22-382
		5	22-383
		6	22-384
		7	22-385
		8	22-386
		9	22-387
		10	22-388
		11	22-389
		12	22-390
		13	22-391
		14	22-392
		15	22-393
		16	22-394
Ord. No. 16-04	5-11-2016	1	22-234.1
Ord. No. 16-06	7-13-2016	2	22-118
Ord. No. 16-07	9-14-2016	exh. A(22-1)	22-1
		exh. A(22-2)	22-2
		exh. A(22-3)	22-3
		exh. A(22-4)	22-4
		exh. A(22-5)	22-5
		exh. A(22-6)	22-6
		exh. A(22-7)	22-7
		exh. A(22-8)	22-8
		exh. A(22-9)	22-9
		exh. A(22-10)	22-10
		exh. A(22-11)	22-11
		exh. A(22-12)	22-12
		exh. A(22-13)	22-13
		exh. A(22-14)	22-14
		exh. A(22-15)	22-15
		exh. A(22-16)	22-16
		exh. A(22-17)	22-17
		exh. A(22-18)	22-18
		exh. A(22-19)	22-19
		exh. A(22-31)	22-31
		exh. A(22-32)	22-32
		exh. A(22-33)	22-33
		exh. A(22-34)	22-34
		exh. A(22-36)	22-36
		exh. A(22-37)	22-37
		exh. A(22-49)	22-49
		exh. A(22-50)	22-50
		exh. A(22-51)	22-51

LAND DEVELOPMENT REGULATIONS COMPARATIVE TABLE

Legislation	Date	Section	LDC Section
		exh. A(22-53)	22-53
		exh. A(22-54)	22-54
		exh. A(22-55)	22-55
		exh. A(22-56)	22-56
		exh. A(22-57)	22-57
		exh. A(22-58)	22-58
		exh. A(22-59)	22-59
		exh. A(22-60)	22-60
		exh. A(22-61)	22-61
		exh. A(22-62)	22-62
		exh. A(22-63)	22-63
		exh. A(22-75)	22-75
		exh. A(22-76)	22-76
		exh. A(22-77)	22-77
		exh. A(22-78)	22-78
		exh. A(22-79)	22-79
		exh. A(22-80)	22-80
		exh. A(22-81)	22-81
		exh. A(22-82)	22-82
		exh. A(22-83)	22-83
		exh. A(22-84)	22-84
		exh. A(22-85)	22-85
		exh. A(22-86)	22-86
		exh. A(22-87)	22-87
		exh. A(22-88)	22-88
		exh. A(22-89)	22-89
		exh. A(22-90)	22-90
		exh. A(22-91)	22-91
		exh. A(22-92)	22-92
		exh. A(22-93)	22-93
		exh. A(22-94)	22-94
		exh. A(22-95)	22-95
		exh. A(22-96)	22-96
		exh. A(22-97)	22-97
		exh. A(22-98)	22-98
		exh. A(22-99)	22-99
		exh. A(22-100)	22-100
		exh. A(22-111)	22-111
		exh. A(22-112)	22-112
		exh. A(22-113)	22-113
		exh. A(22-114)	22-114
		exh. A(22-115)	22-115
		exh. A(22-116)	22-116
		exh. A(22-117)	22-117
		exh. A(22-118)	22-118
		exh. A(22-120)	22-120
		exh. A(22-121)	22-121
		exh. A(22-122)	22-122
		exh. A(22-123)	22-123
		exh. A(22-124)	22-124

OPA-LOCKA LAND DEVELOPMENT CODE

Legislation	Date	Section	LDC Section
		exh. A(22-125)	22-125
		exh. A(22-126)	22-126
		exh. A(22-127)	22-127
		exh. A(22-128)	22-128
		exh. A(22-129)	22-129
		exh. A(22-130)	22-130
		exh. A(22-131)	22-131
		exh. A(22-132)	22-132
		exh. A(22-133)	22-133
		exh. A(22-134)	22-134
		exh. A(22-135)	22-135
		exh. A(22-136)	22-136
		exh. A(22-137)	22-137
		exh. A(22-139)	22-139
		exh. A(22-140)	22-140
		exh. A(22-141)	22-141
		exh. A(22-142)	22-142
		exh. A(22-151)	22-151
		exh. A(22-152)	22-152
		exh. A(22-153)	22-153
		exh. A(22-154)	22-154
		exh. A(22-155)	22-155
		exh. A(22-156)	22-156
		exh. A(22-157)	22-157
		exh. A(22-158)	22-158
		exh. A(22-159)	22-159
		exh. A(22-160)	22-160
		exh. A(22-171)	22-171
		exh. A(22-172)	22-172
		exh. A(22-173)	22-173
		exh. A(22-174)	22-174
		exh. A(22-175)	22-175
		exh. A(22-176)	22-176
		exh. A(22-177)	22-177
		exh. A(22-178)	22-178
		exh. A(22-179)	22-179
		exh. A(22-180)	22-180
		exh. A(22-181)	22-181
		exh. A(22-182)	22-182
		exh. A(22-183)	22-183
		exh. A(22-184)	22-184
		exh. A(22-185)	22-185
		exh. A(22-186)	22-186
		exh. A(22-187)	22-187
		exh. A(22-199)	22-199
		exh. A(22-200)	22-200
		exh. A(22-201)	22-201
		exh. A(22-202)	22-202
		exh. A(22-203)	22-203
		exh. A(22-204)	22-204

LAND DEVELOPMENT REGULATIONS COMPARATIVE TABLE

Legislation	Date	Section	LDC Section
Ord. No. 17-07	4-12-2017	exh. A(22-205)	22-205
		exh. A(22-217)	22-217
		exh. A(22-218)	22-218
		exh. A(22-219)	22-219
		exh. A(22-220)	22-220
		exh. A(22-221)	22-221
		exh. A(22-222)	22-222
		exh. A(22-223)	22-223
		exh. A(22-224)	22-224
		exh. A(22-225)	22-225
		exh. A(22-237)	22-244
		exh. A(22-238)	22-245
		exh. A(22-230)	22-230
		exh. A(22-239)	22-239
		exh A(II)	22-227
		exh. A(III)	22-226
		exh. A(IV)	22-228
		exh. A(V)	22-229
		exh. A(VII)	22-231
		exh. A(VIII)	22-232
		exh. A(IX)	22-233
		exh. A(X)	22-234
		exh. A(XI)	22-235
		exh. A(XII)	22-236, 22-237
		exh. A(XIII)	22-242
		exh. A(XIV)	22-238
		exh. A(XV)	22-239
		exh. A(XVI)	22-240
		exh. A(XVIII)	22-242
		exh. A(XX)	22-243
Ord. No. 17-18	12-13-2017	1(22-80)	22-80
		1(22-82)	22-82
		1(22-142)	22-142
		1(22-143)	22-143
		1(22-144)	22-144
		V	22-119
Ord. No. 17-19	12-13-2017	exh. A(22-119A)— exh. A(22-119C)	22-119
Ord. No. 18-01	3-28-2018	3	22-94
Ord. No. 19-01	3-13-2019	2	22-233
Ord. No. 2020-03	2-12-2020	2	22-136
Ord. No. 2020-13	9-9-2020	2	22-233
Ord. No. 2022-06	1-12-2022	2	22-142.1
Ord. No. 2022-07	1-12-2022	2(22-101)	22-101
Ord. No. 2022-08	1-12-2022	2(22-102)	22-102
Ord. No. 2022-12	6-22-2022	2(22-114)	22-114
Ord. No. 2023-02	1-11-2023	2(exh. A)	22-81
Ord. No. 2023-08	5-24-2023	2(22-153)	22-153
Ord. No. 2023-21	10-25-2023	2	22-61
Ord. No. 2024-11	4-10-2024	2	22-116

OPA-LOCKA LAND DEVELOPMENT CODE

Legislation	Date	Section	LDC Section
Ord. No. 2024-16	9-11-2024	Added	22-145
Ord. No. 2024-20	10-23-2024	2	22-116
Ord. No. 2025-03	2-12-2025	2(Exh. A)	22-81
Ord. No. 2025-06	2-12-2025	2	22-101(O)
Ord. No. 2025-07	4- 9-2025	2	22-80—22-82
Ord. No. 2025-22	7-23-2025	3	22-34(A)

LAND DEVELOPMENT REGULATIONS

STATE LAW REFERENCE TABLE

This table shows the location within the Land Development Regulations, either in the text or notes following the text, of references to the Florida Statutes (F.S.).

F.S. Section	Section this LDC	F.S. Section	Section this LDC
110-01—110-03	22-101	—	22-245
ch. 125	22-272	ch. 717	22-186
—	22-380	ch. 847	22-76
ch. 163	22-101	—	22-245
—	22-344	3202(3)	22-271
ch. 163, pt. II	22-344	—	22-379
163.045	22-186		
163.2511 et seq.	Ch. 22 (note)		
—	22-220		
—	22-344		
163.3164(32)	22-245		
163.3164(35)	22-245		
163.3164(40)	22-245		
163.3174	22-33		
—	22-245		
163.3177	22-76		
—	22-245		
163.3178	22-245		
163.3180	Ch. 22, Art. IX		
163.3180(2)(a)	22-220		
163.3180(2)(b)	22-220		
163.3180(2)(c)	22-220		
163.3202	22-2		
163.3202(2)(f)	Ch. 22, Art. X		
163.3202(3)	Ch. 22 (note)		
—	22-310		
163.3220—163.3243	22-112		
—	22-220		
ch. 166	Ch. 22 (note)		
—	22-136		
—	22-311		
—	22-345		
316.515	22-116		
327.02(47)	22-114		
334.03(1)	22-245		
334.03(4)	22-245		
ch. 380	22-220		
402.3025	22-76		
—	22-245		
420.0004	22-97, 22-98		
ch. 435	22-76		
—	22-245		
ch. 509	22-76		

LAND DEVELOPMENT REGULATIONS INDEX

A	Section	APPEALS	Section
ABANDONMENT		Application review and approval requirements.....	22-49M et seq.
Zoning		See: APPLICATION REVIEW AND APPROVAL REQUIREMENTS	
Nonconforming development		Impact fees	
Abandonment/discontinuation..	22-11A	Road drainage impact fee.....	22-284
ADMINISTRATIVE PROVISIONS		Water and sewer impact fee.....	22-392
City commission.....	22-32	APPLICATION REVIEW AND APPROVAL REQUIREMENTS	
Department of planning and zoning..	22-37	Administrative adjustment procedure	22-59
Development review committee.....	22-36	Administrative adjustment limitations and exclusions.....	22-59A
Local planning agency	22-33	Advertising.....	22-59(F)
Planning and zoning board	22-34	Conditions and safeguards	22-59(E)
Duties and responsibilities.....	22-34B	Consent and notice	22-59B
Established.....	22-34A	Inspection.....	22-59C
Purpose and authority	22-31	Review standards	22-59D
ADVERTISING		Appeal of administrative decision....	22-50
Application review and approval requirements		Certificates of occupancy and re-occupancy	22-61
Administrative adjustment procedure	22-59(F)	Certificates of occupancy.....	22-61.1
General requirements for applications		Certificates of re-occupancy	22-61.2
Advertising and notice requirements	22-49K	Comprehensive plan amendments ...	22-51
AGREEMENTS. See: CONTRACTS AND AGREEMENTS		Application filing	22-51B
ALCOHOLIC BEVERAGES		Initiation of application	22-51A
Districts, permitted uses, and development standards		Procedure	22-51D
Historic downtown Opa-locka district		Submittal requirements	22-51C
Alcoholic beverage sales within the district	22-101(L)	Conditional use and special exception applications.....	22-60
Supplemental standards		Application	22-60C
Alcoholic beverages.....	22-137	Approval criteria.....	22-60B
AMUSEMENTS AND ENTERTAINMENTS		City commission approval	22-60E
Supplemental standards		General criteria	22-60A
Regulations of adult entertainment establishments	22-136	Planning and zoning board recommendation	22-60D
ANNEXATIONS		General requirements for applications	22-49
Sign regulations		Acceptance for processing	22-49D
Nonconforming signs/amortization		Advertising and notice requirements	22-49K
Amortization of nonconformities in newly annexed areas..	22-233B	Appeal	22-49M
		Application completeness and accuracy	22-49C
		Application filing fee.....	22-49B
		Burden of proof or persuasion	22-49E
		Commencement of development ..	22-49J
		Cost recovery	22-49I
		Development order modification ..	22-49H

OPA-LOCKA LAND DEVELOPMENT CODE

	Section		Section
APPLICATION REVIEW AND APPROVAL REQUIREMENTS (Cont'd.)		APPLICATION REVIEW AND APPROVAL REQUIREMENTS (Cont'd.)	
Official review.....	22-49F	Review procedures for vested rights	22-63A
Pre-application conference.....	22-49A	Violations, penalties and other remedies	22-62
Procedures on matters considered by the city commission from acts of the planning and zoning board.....	22-49G	Other administrative remedies	22-62C
Re-application	22-49P	Other legal remedies	22-62B
Request for waivers/modifications of submittal requirements	22-49O	Violations and penalties	22-62A
Withdrawal of appeal.....	22-49N		
Withdrawal of development applications and refund of fees	22-49L	B	
Land development regulations text amendments.....	22-53	BEER. See: ALCOHOLIC BEVERAGES	
Application filing	22-53B	BICYCLES	
Initiation of application	22-53A	Green standards	
Procedure	22-53D	Standards	
Submittal requirements.....	22-53C	Bicycle parking/storage.....	22-201A
Rezoning	22-54	Exchange of off-street parking for bicycle parking	22-201B
Application filing	22-54A		
City commission approval criteria .	22-54E	BILLBOARDS. See: SIGN REGULATIONS	
Expiration of rezoning approvals..	22-54F	BOARDS, COMMISSIONS AND COMMITTEES	
Planning and zoning board approval criteria	22-54D	Administrative provisions	
Public hearing.....	22-54C	City commission	22-32
Submittal requirements.....	22-54B	Development review committee ...	22-36
Site plan application.....	22-55	Application review and approval requirements.....	22-54D et seq.
Approval criteria.....	22-55B		
Development review committee ...	22-55D	See: APPLICATION REVIEW AND APPROVAL REQUIREMENTS	
Plan submission and review.....	22-55C	Sign regulations	
Procedure	22-55A	Signage design standards	
Site plan modification.....	22-56	Drive-through menu board signs	22-234N
Minor modification determination	22-56A	Supplemental standards	
Temporary use permit.....	22-57	Art in public places	
Issuance or denial of permit	22-57A	Art selection committee membership, qualifications	22-139(F)
Renewals, extensions.....	22-57C	Art selection committee	22-139(E)
Revocation of permit	22-57D		
Termination.....	22-57B	BOATS, DOCKS AND WATERWAYS	
Variance	22-58	Off-street parking and loading requirements	
Application	22-58A	Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks	22-160
Approval standards.....	22-58B		
Conditions of granting of a variance	22-58C		
Vested rights determinations	22-63		
Application	22-63B		
Effect of vested rights determination.....	22-63C		

LAND DEVELOPMENT REGULATIONS INDEX

	Section		Section
BOATS, DOCKS AND WATERWAYS (Cont'd.)		BUSINESSES	
Supplemental standards.....	22-114 et seq.	Districts, permitted uses, and development standards	22-88 et seq.
See: SUPPLEMENTAL STANDARDS		See: DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS	
BONDS, SURETY OR PERFORMANCE		Supplemental standards	
Landscaping and tree preservation		Auto service stations to service vehicles for a licensed business ..	22-140
Tree preservation and removal			
Bond for tree relocation, replacement, or dripline encroachment	22-186(G)	C	
Contractors to post bond for removal of trash following completion of construction	22-186(N)	CERTIFICATES, CERTIFICATION	
BUILDINGS AND BUILDING REGULATIONS		Application review and approval requirements.....	22-61 et seq.
Districts, permitted uses, and development standards	22-100 et seq.	See: APPLICATION REVIEW AND APPROVAL REQUIREMENTS	
See: DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS		Concurrency	
Green standards		Capacity reservation certificate	22-223
Green building fund	22-204	Districts, permitted uses, and development standards	
Green building program designation.....	22-203	Opa-locka Innovation District	
Landscaping and tree preservation		Development standards for buildings designed to achieve LEED silver certification...	22-102W)
Types of landscaping		Sign regulations	
Building perimeter	22-182.3	General requirements	
Off-street parking and loading requirements		Qualification and certification of erector	22-231E
Off-street loading requirements		CIVIL EMERGENCIES	
More than one use in one building	22-158(A)	Off-street parking and loading requirements	
Sign regulations		Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks	
General requirements		Delivery and construction vehicles: emergency repairs	22-160(B)
Compliance with building codes	22-231B	COMMERCIAL DISTRICTS	
Signage in historical districts and/or for historical buildings	22-237	Districts, permitted uses, and development standards	
Zoning.....	22-11B et seq.	Permitted uses table.....	22-80
See: ZONING		COMMERCIAL. See: BUSINESSES	
BURNING. See: FIRE PREVENTION AND PROTECTION		COMMUNITY DEVELOPMENT. See: PLANNING AND DEVELOPMENT	
BUSES			
Off-street parking and loading requirements			
Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks	22-160		

OPA-LOCKA LAND DEVELOPMENT CODE

	Section		Section
CONCURRENCY		CONTRACTS AND AGREEMENTS	
Applicability and exemptions	22-218	(Cont'd.)	
City public facilities.....	22-218(D)	Tree preservation and removal	
Projects below the minimum thresh-		Contractors to post bond for re-	
old (de minimis).....	22-218(A)	moval of trash following	
Redevelopment projects	22-218(C)	completion of construction	22-186(N)
Vested developments.....	22-218(B)	Supplemental standards	
Application for concurrency	22-217	Developer agreement and restric-	
Capacity reservation certificate.....	22-223	tive covenants	22-112
First-come first-served.....	22-223(B)		
Project deferrals/development mor-		D	
atoriums	22-223(C)	DEEDS AND TITLES	
Reservation of capacity.....	22-223(A)	Zoning	
Capital improvements schedule re-		Private deed restrictions	22-7
view.....	22-225		
Concurrency administration	22-221	DEFINITIONS	
Application for concurrency review	22-221(A)	Terms defined	22-245
Concurrency denials	22-221(E)	Purpose.....	22-244
Concurrency review determination	22-221(D)		
Project impact assessment	22-221(B)	DEMOLITION	
Project phasing/timing of improve-		Green standards	
ments	22-221(C)	Recycling and diversion of construc-	
Concurrency level of service stan-		tion and demolition waste	22-202
dards	22-219		
Drainage	22-219(D)	DENSITY	
Mass transit.....	22-219(F)	Districts, permitted uses, and develop-	
Potable water.....	22-219(A)	ment standards	22-85 et seq.
Public schools.....	22-219(H)	See: DISTRICTS, PERMITTED	
Recreation and open space	22-219(G)	USES, AND DEVELOP-	
Sanitary sewer	22-219(B)	MENT STANDARDS	
Solid waste.....	22-219(C)	DEVELOPMENT. See: PLANNING	
Traffic circulation.....	22-219(E)	AND DEVELOPMENT	
Concurrency management system		DISTRIBUTION	
(CMS) criteria for review.....	22-220	Supplemental standards	
Concurrency review	22-222	Underground utilities	
Recreation and open space exception		Distribution systems	22-132(B)
and credits.....	22-224	Feeder, distribution and service	
		line crossings	22-132(A)
CONDITIONAL USES			
Application review and approval re-		DISTRICTS, PERMITTED USES,	
quirements		AND DEVELOPMENT STAND-	
Conditional use and special excep-		DARDS	
tion applications	22-60	B-1 Commercial Neighborhood Busi-	
		ness District	22-89
CONSTRUCTION. See: BUILDINGS		B-2 Commercial Liberal Business Dis-	
AND BUILDING REGULA-		trict.....	22-90
TIONS		B-3 Commercial Intensive Business	
		District	22-91
CONTRACTS AND AGREEMENTS		B-O Business Office District	22-88
Landscaping and tree preservation		C Civic District.....	22-96

LAND DEVELOPMENT REGULATIONS INDEX

	Section		Section
DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS (Cont'd.)		DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS (Cont'd.)	
Downtown Mixed Use Future Land Use District	22-97	Site development standards.....	22-99G
Historic downtown Opa-locka district	22-101	Uses permitted; residential/commercial mixed use	22-99E
Alcoholic beverage sales within the district	22-101(L)	Off-street parking and loading requirements	
Building height limit	22-101(O)	Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks	
Building site area required	22-101(P)	Motor vehicles prohibited or restricted in residential districts	22-160(A)
Definitions	22-101(C)	Opa-locka Innovation District	22-102
Establishment of the district	22-101(B)	Building height limit	22-102N)
Floor area limitations	22-101(Q)	Building site area required	22-102O)
Goals and objectives	22-101(E)	Definitions	22-102D)
Implementation concepts	22-101(F)	Development standards for buildings designed to achieve LEED silver certification	22-102W)
Incentives	22-101(J)	Developmental standards	22-102U)
Incorporation of TOD District	22-101(J)	Floor area limitations	22-102P)
Maximum allowable density and square footage requirements ..	22-101(R)	Geographic area	22-102C)
Off hours security devices	22-101(U)	Goals and objectives	22-102B)
Open space and landscaping requirements	22-101(T)	Incentives	22-102K)
Parking standards and requirements	22-101(N)	Intent and purpose	22-102A)
Precedence over other zoning and land use regulations	22-101(G)	Off hours security devices	22-102T)
Protective screening	22-101(S)	Open space and landscaping requirements	22-102S)
Signs	22-101(M)	Outdoor storage and protective screening	22-102R)
Special permit	22-101(K)	Parking standards and requirements	22-102M)
Uses	22-101(D)	Performance standards	22-102V)
Zoning regulations	22-101(I)	Precedence over other zoning and land use regulations	22-102H)
I-1 Light Industrial District	22-92	Prohibited uses	22-102G)
I-2 Industrial Planned District	22-95	Road classifications in the OLID ..	22-102I)
I-3 Liberal Industrial District	22-93	Signage	22-102L)
Prohibited uses	22-93A	Square footage requirements	22-102Q)
I-4 Liberal Industrial District, storage and salvage	22-94	Zoning regulations	22-102J)
Table of standards	22-94.1	Other development standards for vertical mixed use buildings	22-100
Impact fees	22-279 et seq.	First floor height	22-100.2
See: IMPACT FEES		Mix of uses	22-100.1
Magnolia North Mixed Use Future Land Use District	22-98	Permitted uses table	
MXUOD Corridor Mixed Use Overlay District	22-99	Commercial districts	22-80
Definitions	22-99C	Industrial districts	22-81
Development characteristics	22-99B	Mixed use and civic districts	22-82
District purpose	22-99A	Residential districts	22-79
Eligibility and application	22-99D	Prohibited uses and structures	22-78
Maximum allowable density and intensity	22-99F		

OPA-LOCKA LAND DEVELOPMENT CODE

	Section		Section
DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS (Cont'd.)		ENCLOSURES. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
Purpose.....	22-75	ENVIRONMENTAL CONCERNS	
R-1 Single-Family Residential District.....	22-83	Landscaping and tree preservation	
R-2 Two-Family Residential District.....	22-84	Environmental survey.....	22-181
R-3 Moderate Density Residential District.....	22-85		
R-4 High Density Residential District.....	22-87	F	
R-TH Residential Townhouse District.....	22-86	FARMING, FARMS	
Schedule of districts and official zoning map.....	22-77	Supplemental standards	
Sign regulations	22-231D et seq.	Operating standards for farmers' markets	22-143
See: SIGN REGULATIONS		Temporary use	
Use definitions	22-76	Farmers' market program	22-119C
Zoning		FEES, CHARGES AND RATES	
Official zoning district map	22-9	Application review and approval requirements	
DITCHES. See: DRAINAGE		General requirements for applications	
DOCKS. See: BOATS, DOCKS AND WATERWAYS		Withdrawal of development applications and refund of fees	22-49L
DRAINAGE		Impact fees	22-271 et seq.
Concurrency		See: IMPACT FEES	
Concurrency level of service standards.....	22-219(D)	Sign regulations	
Impact fees	22-271 et seq.	General requirements	
See: IMPACT FEES		Fees required	22-231F
E		FENCES, WALLS, HEDGES AND ENCLOSURES	
EASEMENTS		Sign regulations	22-242B et seq.
Supplemental standards		See: SIGN REGULATIONS	
Utilities		Supplemental standards.....	22-119E et seq.
Utility easements	22-133(G)	See: SUPPLEMENTAL STANDARDS	
ELECTRICITY		FINES, FORFEITURES AND OTHER PENALTIES	
Supplemental standards		Application review and approval requirements	
Utilities	22-133(A)	Violations, penalties and other remedies.....	22-62
EMERGENCIES		Violations and penalties.....	22-62A
Off-street parking and loading requirements		Impact fees	22-286 et seq.
Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks		See: IMPACT FEES	
Delivery and construction vehicles: emergency repairs	22-160(B)	Landscaping and tree preservation	
		Tree preservation and removal	
		Penalties	22-186(M)

LAND DEVELOPMENT REGULATIONS INDEX

	Section		Section
FINES, FORFEITURES AND OTHER PENALTIES (Cont'd.)		GREEN STANDARDS (Cont'd.)	
Sign regulations		Modification of the diversion requirement	22-202D
Violations and penalties	22-243	Weighing of waste	22-202C
FIRE PREVENTION AND PROTECTION		Standards.....	22-201
Supplemental standards		Additional landscape requirements	22-201H
Utilities		Bicycle parking/storage	22-201A
Fire hydrants	22-133(E)	Exchange of off-street parking for bicycle parking.....	22-201B
FIREWORKS		Hybrid and/or fuel-efficient vehicle parking.....	22-201C
Supplemental standards		Low emitting materials	22-201D
Temporary outdoor sale of trees and fireworks	22-120	Paving materials	22-201F
FOOD AND FOOD SERVICES		Roof finishes.....	22-201G
Off-street parking and loading requirements		Shower facilities.....	22-201I
Stacking spaces		Storage and collection of recyclables.....	22-201J
Food restaurants	22-159(A)	Water conservation	22-201E
FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES		GUARANTEES. See: BONDS, SURETY OR PERFORMANCE	
G		H	
GARBAGE. See: SOLID WASTE		HEARINGS	
GASOLINE		Application review and approval requirements	
Sign regulations		Rezoning	
Signage design standards		Public hearing	22-54C
Gasoline service stations	22-234L	HEDGES. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
GREEN STANDARDS		HISTORICAL PRESERVATION	
Exemptions.....	22-205	Districts, permitted uses, and development standards	
Clotheslines	22-205C	Historic downtown Opa-locka district	22-101
Rain barrels.....	22-205B	Sign regulations	
Solar equipment	22-205A	Signage in historical districts and/or for historical buildings	22-237
Green building fund.....	22-204	HOURS	
Green building program designation .	22-203	Districts, permitted uses, and development standards	
Available incentives	22-203B	Historic downtown Opa-locka district	
Program procedures	22-203A	Off hours security devices	22-101(U)
Public facilities	22-200	Opa-locka Innovation District	
Purpose.....	22-199	Off hours security devices.....	22-102T)
Recycling and diversion of construction and demolition waste.....	22-202		
Approved recycling facility	22-202E		
CDMMP application fee	22-202F		
CDMMP.....	22-202A		
Compliance with the CDMMP	22-202B		

OPA-LOCKA LAND DEVELOPMENT CODE

	Section		Section
HOUSING		IMPACT FEES (Cont'd.)	
Districts, permitted uses, and development standards	22-79 et seq.	Rules of construction	22-347
See: DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS		Short title, authority and applicability	22-345
Landscaping and tree preservation		Use of funds	22-354
Types of landscaping		Public safety impact fee	
Residential tree canopy	22-182.5	Computation of the amount of public safety impact fee	22-316
Off-street parking and loading requirements		Definitions	22-314
Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks		Exemptions and credits	22-321
Motor vehicles prohibited or restricted in residential districts	22-160(A)	Imposition of public safety impact fee	22-315
Sign regulations		Intents and purposes	22-312
Temporary signs		Legislative findings	22-310
Real estate signs (single-family residential, individual townhouse, duplexes, and similar dwelling units)	22-242E	Payment of fee	22-317
Supplemental standards		Penalty provision	22-323
Boat and watercraft storage and registration for zoned single-family residential	22-114	Public safety impact fee trust fund established	22-318
		Refund of fees paid	22-320
		Review	22-322
		Rules of construction	22-313
		Short title, authority and applicability	22-311
		Use of funds	22-319
		Road drainage impact fee	
		Appeals	22-284
		Computation of the amount of road drainage impact fee	22-277
		Definitions	22-275
		Exemptions and credits	22-283
		Credits	22-283B
		Exemptions	22-283A
		Imposition of road drainage impact fee	22-276
		Intents and purposes	22-273
		Legislative findings	22-271
		Payment of fee	22-278
		Penalty provision	22-286
		Refund of fees paid	22-282
		Review	22-285
		Road drainage impact fee districts	22-279
		Road drainage impact fee trust fund established	22-280
		Rules of construction	22-274
		Short title, authority and applicability	22-272
		Use of funds	22-281
		Water and sewer impact fee	
		Appeals	22-392
I			
IDENTIFICATION			
Sign regulations			
Sign permit			
Identification of permit holder required	22-230B		
IMPACT FEES			
Park impact fee			
Computation of the amount of park impact fee	22-350		
Definitions	22-348		
Exemptions and credits	22-356		
Imposition of park impact fee	22-349		
Intents and purposes	22-346		
Legislative findings	22-344		
Park impact fee districts	22-352		
Park impact fee trust funds established	22-353		
Payment of fee	22-351		
Penalty provision	22-358		
Refund of fees paid	22-355		
Review	22-357		

LAND DEVELOPMENT REGULATIONS INDEX

[illegible]

OPA-LOCKA LAND DEVELOPMENT CODE

	Section		Section
LANDSCAPING AND TREE PRES- ERVATION (Cont'd.)		LICENSES AND PERMITS	
Plant lists	22-187	Application review and approval re- quirements.....	22-57 et seq.
Plant material and installation	22-183	See: APPLICATION REVIEW AND APPROVAL RE- QUIREMENTS	
Existing tree credits	22-183.3	Districts, permitted uses, and develop- ment standards	22-75 et seq.
Tree species mix	22-183.2	See: DISTRICTS, PERMITTED USES, AND DEVELOP- MENT STANDARDS	
Trees and shrubs	22-183.1	Landscaping and tree preservation ...	22-186(B) et seq.
Purpose.....	22-171	See: LANDSCAPING AND TREE PRESERVATION	
Removal, replacement, relocation of significant vegetation.....	22-185	Off-street parking and loading require- ments	
Tree preservation and removal	22-186	Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks	
Bond for tree relocation, replace- ment, or dripline encroachment	22-186(G)	Permitted off-street parking.....	22-160(C)
Contractors to post bond for re- moval of trash following com- pletion of construction	22-186(N)	Sign regulations	22-230 et seq.
Criteria for tree permit review	22-186(E)	See: SIGN REGULATIONS	
Definitions	22-186(A)	Supplemental standards.....	22-140 et seq.
Enforcement	22-186(L)	See: SUPPLEMENTAL STAN- DARDS	
Exemptions	22-186(I)	Zoning.....	22-17 et seq.
Penalties	22-186(M)	See: ZONING	
Permit required	22-186(B)	LIGHTING, LIGHTS	
Tree permit required as condition to tree removal pursuant to de- velopment or land clearing ...	22-186(C)	Supplemental standards	
Tree permit review	22-186(D)	Exterior lighting standards/light pol- lution reduction.....	22-113
Tree removal and replacement	22-186(F)	LIQUOR. See: ALCOHOLIC BEVER- AGES	
Tree trust fund	22-186(H)	LOADING AND UNLOADING	
Tree variance	22-186(K)	Off-street parking and loading require- ments	22-151 et seq.
Tree/vegetation protection and conser- vation.....	22-184	See: OFF-STREET PARKING AND LOADING REQUIRE- MENTS	
Types of landscaping	22-182	LOTS	
Buffer area	22-182.7	Zoning	
Building perimeter	22-182.3	Substandard single-family lots.....	22-12
Existence of canal, water body, etc., no exemption	22-182.8		
Landscaped ends of parking aisles	22-182.1		
Maximum distance to base of tree.	22-182.2		
Residential tree canopy	22-182.5		
Screening of central solid waste stor- age area	22-182.12		
Screening of mechanical equipment	22-182.10		
Screening of outdoor storage areas	22-182.9		
Screening of public utilities.....	22-182.11		
Site canopy coverage.....	22-182.6		
Street tree canopy.....	22-182.4		
Unoccupied lot areas	22-182.13		

M

MAINTENANCE

LAND DEVELOPMENT REGULATIONS INDEX

	Section		Section
MAINTENANCE (Cont'd.)		OFF-STREET PARKING AND LOADING REQUIREMENTS (Cont'd.)	
Landscaping and tree preservation		More than one use in one building	22-158(A)
Maintenance responsibilities.....	22-180	Shared spaces	22-158(B)
Sign regulations		Size.....	22-158(E)
General requirements.....	22-231I	Parking specifications	22-153
Nonconforming signs/amortization		Parking structures	22-154
Maintenance and repair of non-conforming signs	22-233I	Pavement markings.....	22-157
Supplemental standards.....	22-118 et seq.	Purpose and intent	22-151
See: SUPPLEMENTAL STANDARDS		Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks .	22-160
Zoning		Delivery and construction vehicles: emergency repairs.....	22-160(B)
Nonconforming development		Motor vehicles prohibited or restricted in residential districts.	22-160(A)
Maintenance, repairs and renovations	22-11G	Permitted off-street parking	22-160(C)
MONUMENTS		Shared parking	22-156
Sign regulations	22-233C et seq.	Stacking spaces.....	22-159
See: SIGN REGULATIONS		Bypass lane	22-159(G)
MOTOR VEHICLES. See: TRAFFIC AND VEHICLES		Car wash.....	22-159(C)
N		Conflicts	22-159(F)
NONCONFORMITIES		Day care facilities	22-159(D)
Sign regulations	22-233 et seq.	Financial institution drive-up windows	22-159(B)
See: SIGN REGULATIONS		Food restaurants.....	22-159(A)
Zoning.....	22-11 et seq.	Other uses.....	22-159(E)
See: ZONING		OPEN BURNING. See: FIRE PREVENTION AND PROTECTION	
NOTICES, NOTIFICATION		OPEN SPACES. See: YARDS AND OPEN SPACES	
Application review and approval requirements		ORDINANCES, RESOLUTIONS, ETC.	
Administrative adjustment procedure		Sign regulations	
Consent and notice.....	22-59B	General requirements	
General requirements for applications		Conflicts between sign ordinance districts	22-231D
Advertising and notice requirements	22-49K	P	
O		PARKING	
OFF-STREET PARKING AND LOADING REQUIREMENTS		Districts, permitted uses, and development standards	
General principles.....	22-152	Historic downtown Opa-locka district	
Minimum parking ratios	22-155	Parking standards and requirements	22-101(N)
Off-street loading requirements	22-158		
Administrative hardship waiver....	22-158(D)		
Loading demand statements.....	22-158(C)		

OPA-LOCKA LAND DEVELOPMENT CODE

	Section		Section
PARKING (Cont'd.)		PLANNING AND DEVELOPMENT	
Opa-locka Innovation District		Administrative provisions	22-33 et seq.
Parking standards and require- ments	22-102M)	See: ADMINISTRATIVE PROVI- SIONS	
Green standards	22-201A et seq.	Application review and approval re- quirements	22-49G et seq.
See: GREEN STANDARDS		See: APPLICATION REVIEW AND APPROVAL RE- QUIREMENTS	
Landscaping and tree preservation		Concurrency	
Types of landscaping		Applicability and exemptions	
Landscaped ends of parking aisles	22-182.1	Vested developments	22-218(B)
Off-street parking and loading require- ments	22-151 et seq.	Capacity reservation certificate	
See: OFF-STREET PARKING AND LOADING REQUIRE- MENTS		Project deferrals/development moratoriums	22-223(C)
Supplemental standards		Districts, permitted uses, and develop- ment standards	22-75 et seq.
Parking of trucks	22-115	See: DISTRICTS, PERMITTED USES, AND DEVELOP- MENT STANDARDS	
PARKS AND RECREATION		Landscaping and tree preservation	
Concurrency		Tree preservation and removal	
Concurrency level of service stan- dards		Tree permit required as condi- tion to tree removal pursu- ant to development or land clearing	22-186(C)
Recreation and open space	22-219(G)	Sign regulations	22-229C et seq.
Recreation and open space excep- tion and credits	22-224	See: SIGN REGULATIONS	
Supplemental standards		Zoning	22-4 et seq.
Recreational vehicles	22-116	See: ZONING	
Temporary use		POLLUTION	
Temporary structures in conjunc- tion with permanent outdoor recreational uses or recre- ational facilities	22-119B	Supplemental standards	
PENALTIES. See: FINES, FORFEIT- URES AND OTHER PENAL- TIES		Exterior lighting standards/light pol- lution reduction	22-113
PERFORMANCE BONDS. See: BONDS, SURETY OR PERFOR- MANCE		PRINCIPAL USES	
PERMITS. See: LICENSES AND PER- MITS		Zoning	
PERMITTED USES		Commercial principal use	22-13
Districts, permitted uses, and develop- ment standards	22-75 et seq.	PROHIBITED USES	
See: DISTRICTS, PERMITTED USES, AND DEVELOP- MENT STANDARDS		Districts, permitted uses, and develop- ment standards	22-78 et seq.
		See: DISTRICTS, PERMITTED USES, AND DEVELOP- MENT STANDARDS	
		PROPERTY	
		Supplemental standards	
		Property maintenance	22-118

LAND DEVELOPMENT REGULATIONS INDEX

	Section		Section
PUBLIC PLACES. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES		RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC.	
R		RESTAURANTS	
RATES. See: FEES, CHARGES AND RATES		Off-street parking and loading requirements	
REAL ESTATE, REAL PROPERTY		Stacking spaces	
Sign regulations		Food restaurants	22-159(A)
Temporary signs		RETAIL. See: SALES	
Real estate signs (nonresidential and mixed use developments)	22-242D	RIGHT-OF-WAYS	
Real estate signs (single-family residential, individual townhouse, duplexes, and similar dwelling units)	22-242E	Supplemental standards	
RECREATION. See: PARKS AND RECREATION		Sales within public right-of-way ...	22-117
RECREATIONAL VEHICLES		RUBBISH. See: SOLID WASTE	
Supplemental standards	22-116	S	
RECYCLING		SAFETY	
Green standards	22-201J et seq.	Impact fees	22-310 et seq.
See: GREEN STANDARDS		See: IMPACT FEES	
REGISTRATION		Supplemental standards	
Supplemental standards		Swimming pools	
Boat and watercraft storage and registration for zoned single-family residential	22-114	Maintenance of safety barrier; duty of owner, occupant ...	22-126(E)
Registration of boats and personal watercraft	22-114.3	Safety barrier	22-126(A)
RESIDENCES, RESIDENTIAL. See: HOUSING		SALES	
RESIDENTIAL DISTRICTS		Districts, permitted uses, and development standards	
Districts, permitted uses, and development standards	22-79 et seq.	Historic downtown Opa-locka district	
See: DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS		Alcoholic beverage sales within the district	22-101(L)
Off-street parking and loading requirements		Supplemental standards	22-117 et seq.
Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks		See: SUPPLEMENTAL STANDARDS	
Motor vehicles prohibited or restricted in residential districts	22-160(A)	SCHOOLS	
		Concurrency	
		Concurrency level of service standards	
		Public schools	22-219(H)
		SECURITIES. See: BONDS, SURETY OR PERFORMANCE	
		SECURITY	
		Districts, permitted uses, and development standards	
		Historic downtown Opa-locka district	
		Off hours security devices	22-101(U)

OPA-LOCKA LAND DEVELOPMENT CODE

	Section		Section
SECURITY (Cont'd.)		SIGN REGULATIONS (Cont'd.)	
Opa-locka Innovation District		Purpose and intent	22-226
Off hours security devices	22-102T)	Sign permit	22-230
SEWERS. See: WATER AND SEWERS		Identification of permit holder required	22-230B
SHRUBBERY. See: TREES AND SHRUBBERY		Permit duration and extension.....	22-230A
SIDEWALKS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES		Sign plan required	22-229
		Approval required	22-229B
		Community development sign plan approval process	22-229C
		Purpose	22-229A
SIGN REGULATIONS		Signage along collector roads	22-236
Certain county code provisions inapplicable	22-234.1	Monument signs collector roads...	22-236A
Definitions	22-228	Wall signs collector roads.....	22-236B
Districts, permitted uses, and development standards		Window signs collector roads.....	22-236C
Opa-locka Innovation District		Signage along principal arterial and minor arterial corridors (PAMA)	22-235
Signage	22-102L)	Directory signs (PAMA).....	22-235.5)
General principles	22-227	Monument signs (PAMA)	22-235.1)
General requirements	22-231	Multi-use/multi-tenant/mix-use development (PAMA).....	22-235.4)
Compliance with building codes...	22-231B	Wall signs (PAMA)	22-235.2)
Compliance with zoning codes	22-231C	Window signs (PAMA)	22-235.3)
Conflicts between sign ordinance districts	22-231D	Signage design standards.....	22-234
Fees required.....	22-231F	Directional/information sign design standards	22-234E
Inspection.....	22-231H	Directory signs.....	22-234I
Maintenance	22-231I	Drive-through menu board signs ..	22-234N
Permitted and prohibited signs, general statement	22-231A	Entrance feature signs	22-234H
Qualification and certification of erector	22-231E	Flags	22-234J
Responsibility for sign	22-231G	Gasoline service stations.....	22-234L
Mixed-Use Overlay District	22-240	Memorial signs	22-234K
Nonconforming signs/amortization ..	22-233	Monument sign design standards..	22-234B
Amortization of nonconformities in newly annexed areas	22-233B	Monument sign dimensional standards	22-234A
Amortization of nonconformities .	22-233A	Public art	22-234O
Exception for billboards	22-233F	Theaters, playhouses, and other similar cultural or civic establishments	22-234M
Exception for monument signs along collector roads	22-233C	Wall sign design standards.....	22-234D
Exception for temporary signs.....	22-233E	Wall sign dimensional standards...	22-234C
Exception for window signs.....	22-233D	Window sign standards	22-234F
Maintenance and repair of nonconforming signs	22-233I	Signage in historical districts and/or for historical buildings	22-237
Memorial plaques.....	22-233J	Signage in the Magnolia North Redevelopment Overlay Zone	22-239
Multi-tenant sign plan compliance	22-233H	Signage in the TOD Transit Oriented Development District	22-238
Sign plan compliance	22-233G		
Prohibited signs	22-242		

LAND DEVELOPMENT REGULATIONS INDEX

	Section		Section
SIGN REGULATIONS (Cont'd.)		STORAGE (Cont'd.)	
Signs permitted without sign permit .	22-232	Landscaping and tree preservation	
Signs exempt from permit require- ments	22-232A	Types of landscaping	
Temporary signs.....	22-242	Screening of central solid waste storage area.....	22-182.12
Banner signs	22-242F	Screening of outdoor storage ar- eas	22-182.9
Construction signs	22-242A	Off-street parking and loading require- ments	
Inflatable/balloon signs	22-242G	Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks	22-160
Mobile vendor and street vendor signs.....	22-242I	Supplemental standards	
Political campaign signs standards	22-242C	Boat and watercraft storage and reg- istration for zoned single-fam- ily residential.....	22-114
Real estate signs (nonresidential and mixed use developments)	22-242D	Boats and watercraft storage	22-114.2
Real estate signs (single-family res- idential, individual townhouse, duplexes, and similar dwelling units).....	22-242E		
Spotlight/searchlight sign	22-242H	STREETS, SIDEWALKS AND OTHER PUBLIC PLACES	
Temporary construction fence sign (TCFS).....	22-242B	Green standards	
Violations and penalties.....	22-243	Standards	
		Exchange of off-street parking for bicycle parking	22-201B
SOLID WASTE		Landscaping and tree preservation	
Concurrency		Types of landscaping	
Concurrency level of service stan- dards	22-219(C)	Street tree canopy	22-182.4
Green standards		Off-street parking and loading require- ments	22-151 et seq.
Recycling and diversion of construc- tion and demolition waste	22-202	See: OFF-STREET PARKING AND LOADING REQUIRE- MENTS	
Weighing of waste.....	22-202C	Sign regulations	
Landscaping and tree preservation... et seq.	22-182.12 et seq.	Temporary signs	
See: LANDSCAPING AND TREE PRESERVATION		Mobile vendor and street vendor signs	22-242I
		Supplemental standards	
STORAGE		Art in public places	22-139
Districts, permitted uses, and develop- ment standards		STRUCTURES. See: BUILDINGS AND BUILDING REGULA- TIONS	
I-4 Liberal Industrial District, stor- age and salvage	22-94	SUPPLEMENTAL STANDARDS	
Opa-locka Innovation District		Alcoholic beverages	22-137
Outdoor storage and protective screening	22-102R)	Art in public places.....	22-139
Green standards		Appropriation for construction to include amount for works of art.....	22-139(B)
Standards		Art selection committee member- ship, qualifications	22-139(F)
Bicycle parking/storage.....	22-201A		
Storage and collection of recycla- bles	22-201J		

OPA-LOCKA LAND DEVELOPMENT CODE

SUPPLEMENTAL STANDARDS	Section	SUPPLEMENTAL STANDARDS	Section
(Cont'd.)		(Cont'd.)	
Art selection committee.....	22-139(E)	Intent and purpose; regulated uses	22-136(C)
Definitions.....	22-139(A)	Location.....	22-136(E)
Ownership.....	22-139(H)	Sales within public right-of-way.....	22-117
Personnel.....	22-139(I)	Sheds.....	22-121
Procurement process.....	22-139(C)	Stormwater management.....	22-131
Selection criteria.....	22-139(G)	Structures and uses limited in yards..	22-122
Waiver of requirements.....	22-139(D)	Swimming pools.....	22-126
Auto service stations to service vehicles for a licensed business.....	22-140	Authority to disapprove barriers...	22-126(D)
Boat and watercraft storage and registration for zoned single-family residential.....	22-114	Construction specifications of walls and fences.....	22-126(C)
Boats and watercraft storage.....	22-114.2	Maintenance of pool; duty of owner, occupant.....	22-126(F)
Definitions.....	22-114.1	Maintenance of safety barrier; duty of owner, occupant.....	22-126(E)
Registration of boats and personal watercraft.....	22-114.3	Permits.....	22-126(B)
Day care and other nursery facilities.	22-124	Safety barrier.....	22-126(A)
Developer agreement and restrictive covenants.....	22-112	Temporary fence to enclose swimming pools while under construction.....	22-126(G)
Events.....	22-135	Temporary outdoor sale of trees and fireworks.....	22-120
Exclusion from height limits.....	22-111	Temporary use.....	22-119
Exterior lighting standards/light pollution reduction.....	22-113	Farmers' market program.....	22-119C
Fixtures.....	22-113(A)	Permitted fences.....	22-119E
Flea markets and bazaars.....	22-127	Prohibited fences.....	22-119F
Group homes.....	22-123	Supplemental regulations.....	22-119G
Home occupation.....	22-141	Temporary structures in conjunction with permanent outdoor recreational uses or recreational facilities.....	22-119B
Impervious area.....	22-130	Temporary uses and occupancies..	22-119A
Alternative materials.....	22-130(A)	Trailers.....	22-119D
Pavers.....	22-130(B)	Underground utilities.....	22-132
Indoor shooting range/gun club.....	22-145	Distribution systems.....	22-132(B)
Lot frontage and yard requirements..	22-129	Feeder, distribution and service line crossings.....	22-132(A)
Moorish revival style design standards	22-142.1	On-site service.....	22-132(C)
Operating standards for community gardens.....	22-142	Utilities.....	22-133
Operating standards for farmers' markets.....	22-143	Cable TV.....	22-133(F)
Operating standards for urban gardens.....	22-144	Electricity.....	22-133(A)
Parking of trucks.....	22-115	Fire hydrants.....	22-133(E)
Places of religious worship.....	22-125	Illumination.....	22-133(D)
Property maintenance.....	22-118	Telephone.....	22-133(C)
Recreational vehicles.....	22-116	Utility easements.....	22-133(G)
Regulations of adult entertainment establishments.....	22-136	Water and sewer.....	22-133(B)
Authority.....	22-136(A)	Walls, fences and hedges.....	22-134
Exemptions.....	22-136(D)	Yard sales.....	22-128
Findings.....	22-136(B)		

LAND DEVELOPMENT REGULATIONS INDEX

	Section		Section
SURETY BONDS. See: BONDS, SURETY OR PERFORMANCE		TRUCKS AND TRAILERS	
SWIMMING POOLS		Off-street parking and loading require- ments	
Supplemental standards		Regulations for parking, storing or keeping commercial vehicles, boats, buses, trailers and trucks	22-160
Generally	22-126	Supplemental standards	
Temporary fence to enclose swim- ming pools while under con- struction	22-126(G)	Parking of trucks	22-115
Swimming pools	22-126	Temporary use	
		Trailers	22-119D
T		U	
TITLES. See: DEEDS AND TITLES		UTILITIES	
TRAFFIC AND VEHICLES		Landscaping and tree preservation	
Concurrency		Types of landscaping	
Concurrency level of service stan- dards		Screening of public utilities	22-182.11
Traffic circulation	22-219(E)	Supplemental standards	
Green standards		Underground utilities	22-132
Standards		Utilities	22-133
Hybrid and/or fuel-efficient vehi- cle parking	22-201C	V	
Off-street parking and loading require- ments	22-160 et seq.	VARIANCES	
See: OFF-STREET PARKING AND LOADING REQUIRE- MENTS		Application review and approval re- quirements	
Sign regulations		Variance	22-58
Signage design standards		Conditions of granting of a vari- ance	22-58C
Drive-through menu board signs	22-234N	Landscaping and tree preservation	
Supplemental standards		Tree preservation and removal	
Auto service stations to service ve- hicles for a licensed business ..	22-140	Tree variance	22-186(K)
Recreational vehicles	22-116	VEGETATION	
TRANSPORTATION. See: TRAFFIC AND VEHICLES		Landscaping and tree preservation ...	22-184 et seq.
TRASH. See: SOLID WASTE		See: LANDSCAPING AND TREE PRESERVATION	
TREES AND SHRUBBERY		VEHICLES. See: TRAFFIC AND VE- HICLES	
Landscaping and tree preservation		VENDORS	
Plant material and installation		Sign regulations	
Trees and shrubs	22-183.1	Temporary signs	
Supplemental standards		Mobile vendor and street vendor signs	22-242I
Temporary outdoor sale of trees and fireworks	22-120	W	
		WALLS. See: FENCES, WALLS, HEDGES AND ENCLOSURES	

OPA-LOCKA LAND DEVELOPMENT CODE

	Section		Section
WATER AND SEWERS		ZONING (Cont'd.)	
Concurrency		Application review and approval requirements.....	22-49 et seq.
Concurrency level of service standards		See: APPLICATION REVIEW AND APPROVAL REQUIREMENTS	
Potable water	22-219(A)	Authority	22-2
Sanitary sewer	22-219(B)	Changes, amendments, or supplements	22-10
Green standards		Commercial principal use	22-13
Standards		Concurrency.....	22-217 et seq.
Water conservation	22-201E	See: CONCURRENCY	
Impact fees	22-379 et seq.	Districts, permitted uses, and development standards	22-75 et seq.
See: IMPACT FEES		See: DISTRICTS, PERMITTED USES, AND DEVELOPMENT STANDARDS	
Landscaping and tree preservation		Enforcement.....	22-16
Types of landscaping		Form of ownership.....	22-8
Existence of canal, water body, etc., no exemption	22-182.8	Green standards.....	22-199 et seq.
Supplemental standards.....	22-114 et seq.	See: GREEN STANDARDS	
See: SUPPLEMENTAL STANDARDS		Impact fees	22-271 et seq.
WATERWAYS. See: BOATS, DOCKS AND WATERWAYS		See: IMPACT FEES	
		Intent of land development regulations	22-4
Y		Landscaping and tree preservation...	22-171 et seq.
YARDS AND OPEN SPACES		See: LANDSCAPING AND TREE PRESERVATION	
Concurrency		Nonconforming development	22-11
Concurrency level of service standards		Abandonment/discontinuation	22-11A
Recreation and open space	22-219(G)	Compliance with regulations	22-11H
Recreation and open space exception and credits	22-224	Conforming use of a nonconforming building	22-11C
Districts, permitted uses, and development standards		Establishment of nonconformity ..	22-11I
Historic downtown Opa-locka district		Maintenance, repairs and renovations.....	22-11G
Open space and landscaping requirements.....	22-101(T)	Nonconforming accessory use or accessory building.....	22-11F
Opa-locka Innovation District		Nonconforming use of a conforming building	22-11B
Open space and landscaping requirements.....	22-102S)	Nonconforming use of a nonconforming building	22-11D
Supplemental standards.....	22-122 et seq.	Nonconforming use of land	22-11E
See: SUPPLEMENTAL STANDARDS		Special provisions for specific nonconformities	22-11J
Z		Off-street parking and loading requirements	22-151 et seq.
ZONING		See: OFF-STREET PARKING AND LOADING REQUIREMENTS	
Administrative provisions	22-31 et seq.	Official zoning district map	22-9
See: ADMINISTRATIVE PROVISIONS			
Applicability to development.....	22-5		

LAND DEVELOPMENT REGULATIONS INDEX

	Section	Section
ZONING (Cont'd.)		
Permits and licenses	22-17	
Private deed restrictions	22-7	
Purpose	22-3	
Right to judicial review	22-19	
Rules of interpretation	22-6	
Severability	22-18	
Sign regulations	22-226 et seq.	
See: SIGN REGULATIONS		
Substandard single-family lots	22-12	
Supplemental standards	22-111 et seq.	
See: SUPPLEMENTAL STANDARDS		
Title	22-1	
Vested rights	22-15	
Exceptions, vested rights	22-15A	
Violation of permit condition of time limitation	22-14	

